

THE
LIFE
OF
GEORGE WASHINGTON,
COMMANDER IN CHIEF
OF THE
AMERICAN FORCES,
DURING THE WAR WHICH ESTABLISHED THE INDEPENDENCE
OF HIS COUNTRY,
AND
FIRST PRESIDENT
OF THE
UNITED STATES.

COMPILED
UNDER THE INSPECTION OF
THE HONOURABLE BUSHROD WASHINGTON,
FROM
ORIGINAL PAPERS
BEQUEATHED TO HIM BY HIS DECEASED RELATIVE, AND NOW IN POSSESSION
OF THE AUTHOR.

TO WHICH IS PREFIXED,
AN INTRODUCTION,
CONTAINING
A COMPENDIOUS VIEW OF THE COLONIES PLANTED BY THE ENGLISH
ON THE
CONTINENT OF NORTH AMERICA,
FROM THEIR SETTLEMENT
TO THE COMMENCEMENT OF THAT WAR WHICH TERMINATED IN THEIR
INDEPENDENCE.

BY JOHN MARSHALL.

VOL. I.

THE CITIZENS' GUILD
OF WASHINGTON'S BOYHOOD HOME
FREDERICKSBURG, VA.

1926

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Title: The Life of George Washington: A Linked Index to the Project Gutenberg Editions

Author: John Marshall

Editor: David Widger

Release date: May 18, 2009 [eBook #28859]

Most recently updated: July 7, 2019

Language: English

Other information and formats: www.gutenberg.org/ebooks/28859

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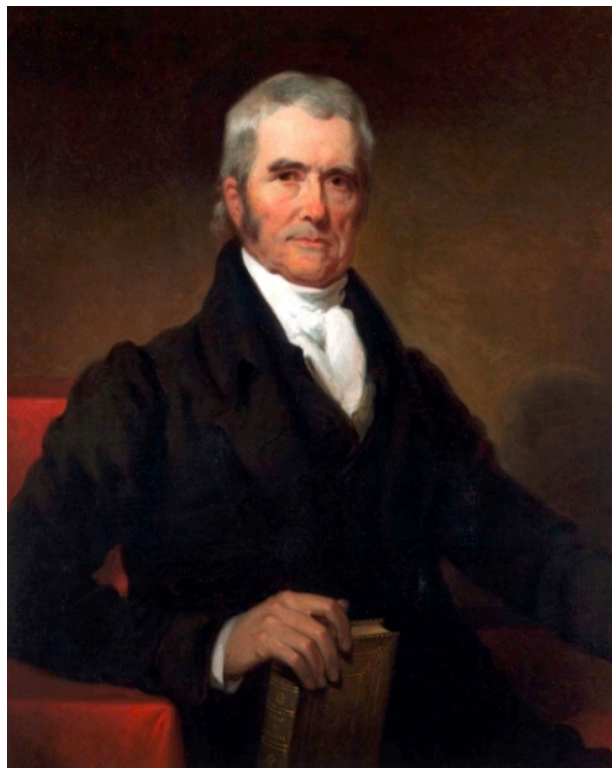
THE LIFE OF
GEORGE WASHINGTON

By John Marshall

(1755-1835)

Compiled by David Widger

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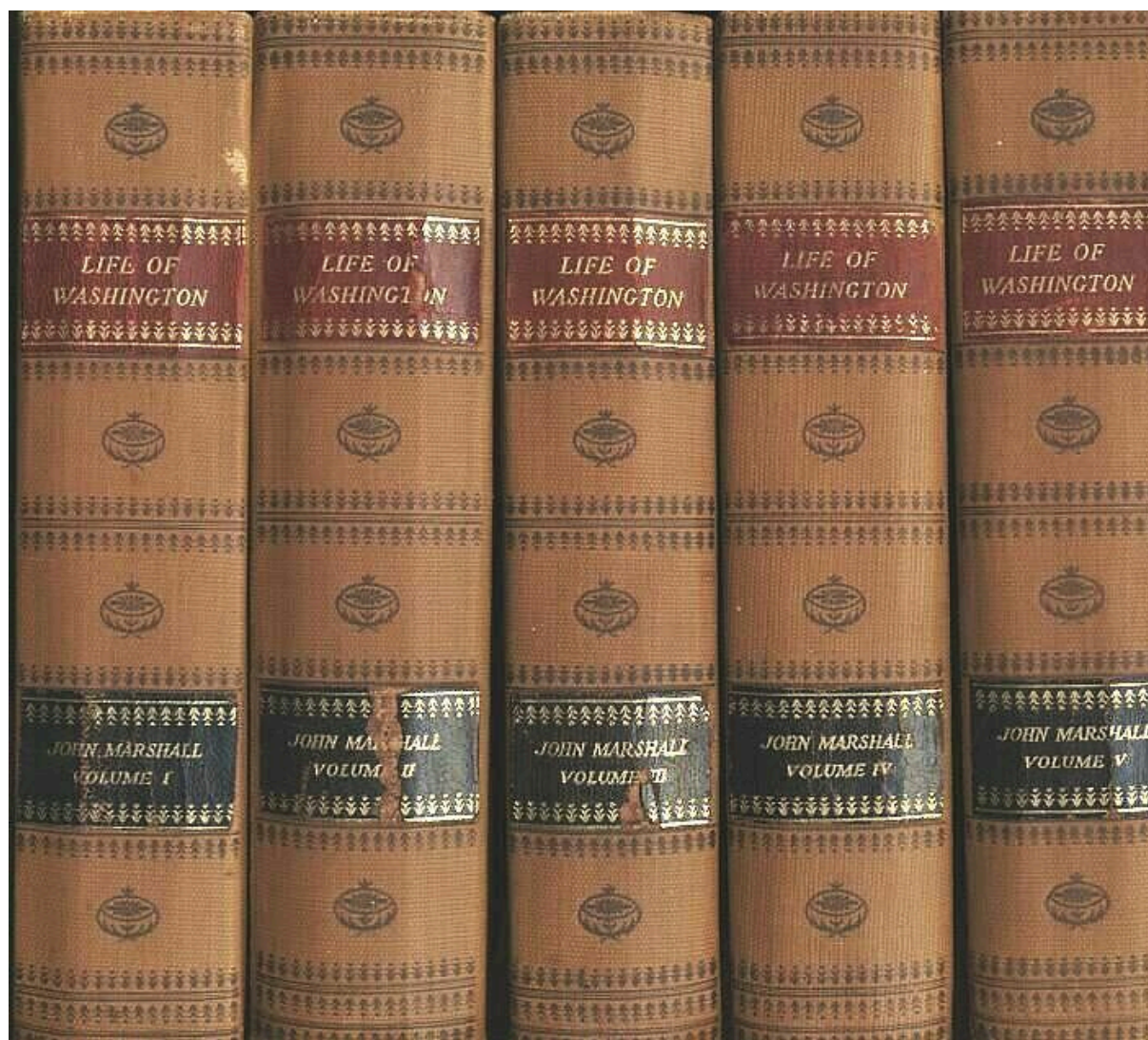
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General Washington

From the full length portrait by John Trumbull at Yale University

This portrait is one of 54 canvasses the artist presented to Yale University in return for an annuity of \$1,000. Washington was in his forty-third year and it is considered the best likeness of him at the outbreak of the Revolution. The canvas depicts him, "six feet two inches in height, with brown hair, blue eyes, large head and hands, and strong arms."

THE LIFE

OF
GEORGE WASHINGTON,
COMMANDER IN CHIEF
OF THE

**AMERICAN FORCES,
DURING THE WAR WHICH ESTABLISHED THE
INDEPENDENCE OF HIS COUNTRY,
AND**

FIRST PRESIDENT
OF THE

UNITED STATES.

**COMPILED UNDER THE INSPECTION OF
THE HONOURABLE BUSHROD WASHINGTON,**

FROM

ORIGINAL PAPERS

**BEQUEATHED TO HIM BY HIS DECEASED RELATIVE, AND
NOW IN POSSESSION OF THE AUTHOR.**

TO WHICH IS PREFIXED,

**AN INTRODUCTION,
CONTAINING A COMPENDIOUS VIEW OF THE COLONIES
PLANTED BY THE ENGLISH ON THE
CONTINENT OF NORTH AMERICA,
FROM THEIR SETTLEMENT TO THE COMMENCEMENT
OF THAT WAR WHICH TERMINATED IN THEIR**

INDEPENDENCE.

BY JOHN MARSHALL.

VOL. I.

THE CITIZENS' GUILD
OF WASHINGTON'S BOYHOOD HOME
FREDERICKSBURG, VA.

1926

THIS SET OF THE
Fredericksburg
Edition

OF THE AUTHORIZED LIFE OF

George Washington

by John Marshall

ISSUED IN ITS ORIGINAL
FORMAT, BUT WITH THE
TEXT OF THE REVISED
EDITION, HAS BEEN
SPECIALLY PREPARED

FOR

Clementina K. Shreiber

PUBLISHER'S PREFACE

In his will George Washington bequeathed to his favorite nephew, Bushrod Washington, his personal letters, private papers and secret documents accumulated during a lifetime of service to his country. When the bequest became known, many of the literary men of the country were proposed for the commission to write the authorized life of our First President.

Bushrod Washington's choice fell upon John Marshall, Chief Justice of the Supreme Court. To him he handed over all the precious papers left him by his distinguished relative. George Washington and Marshall's father, Thomas Marshall, were boyhood companions, so John Marshall knew "the Father of His Country" as a neighbor and friend from his earliest youth, and served under him in the Revolution.

If it be true that it takes a great man to interpret the life of a great man then Bushrod Washington made no mistake in the selection of a biographer. For Marshall, under the influence of Washington, came to be nearly as great a man as the character whose life and achievements held his deepest thought for nearly a quarter of a century. Certainly his services to his country rank close to Washington's. Marshall's sympathetic understanding of his subject, his first-hand knowledge of events with his remarkable powers of expression qualified him to produce the masterpiece that has come down to us.

Seven years were spent in preparing the first edition, published in 1804-07. The work was based chiefly on Washington's own diaries and letters and secret archives and it told not simply the epic story of this great life but the truth about the birth of our nation. Marshall later spent fifteen years revising the first edition, verifying to the last detail every chapter, page and paragraph of his monumental work.

The first edition, published by C.P. Wayne of Philadelphia, was an achievement in beautiful printing and bookmaking and still stands out today as such. The present publishers have followed the format of the original edition but have used the revised text which Marshall spent so many years in perfecting.

Washington's personality lives on in John Marshall's great biography. He still has the power to raise up men to greatness as he did during his lifetime. The precepts, the principles and the shining example of this foremost of self-

educated, self-made Americans have the power to uplift and start toward new heights of achievement, all who come in contact with him. The work is now reissued in the hope that it may give his countrymen of the present day the benefit of the counsel, the guidance and the inspiration that has proven so valuable in the past.

February 22nd, 1926.

PREFACE

BY THE AUTHOR

A desire to know intimately those illustrious personages, who have performed a conspicuous part on the great theatre of the world, is, perhaps, implanted in every human bosom. We delight to follow them through the various critical and perilous situations in which they have been placed, to view them in the extremes of adverse and prosperous fortune, to trace their progress through all the difficulties they have surmounted, and to contemplate their whole conduct, at a time when, the power and the pomp of office having disappeared, it may be presented to us in the simple garb of truth.

If among those exalted characters which are produced in every age, none can have a fairer claim to the attention and recollection of mankind than those under whose auspices great empires have been founded, or political institutions deserving to be permanent, established; a faithful representation of the various important events connected with the life of the favourite son of America, cannot be unworthy of the general regard. Among his own countrymen it will unquestionably excite the deepest interest.

As if the chosen instrument of Heaven, selected for the purpose of effecting the great designs of Providence respecting this our western hemisphere, it was the peculiar lot of this distinguished man, at every epoch when the destinies of his country seemed dependent on the measures adopted, to be called by the united voice of his fellow citizens to those high stations on which the success of those measures principally depended. It was his peculiar lot to be equally useful in obtaining the independence, and consolidating the civil institutions, of his country. We perceive him at the head of her armies, during a most arduous and perilous war on the events of which her national existence was staked, supporting with invincible fortitude the unequal conflict. That war being happily terminated, and the political revolutions of America requiring that he should once more relinquish his beloved retirement, we find him guiding her councils with the same firmness, wisdom, and virtue, which had, long and successfully, been displayed in the field. We behold him her chief magistrate at a time when her happiness, her liberty, perhaps her preservation depended on so administering the affairs of the Union, that a government standing entirely

on the public favour, which had with infinite difficulty been adopted, and against which the most inveterate prejudices had been excited, should conciliate public opinion, and acquire a firmness and stability that would enable it to resist the rude shocks it was destined to sustain. It was too his peculiar fortune to afford the brightest examples of moderation and patriotism, by voluntarily divesting himself of the highest military and civil honours when the public interests no longer demanded that he should retain them. We find him retiring from the head of a victorious and discontented army which adored him, so soon as the object for which arms had been taken up was accomplished; and withdrawing from the highest office an American citizen can hold, as soon as his influence, his character, and his talents ceased to be necessary to the maintenance of that government which had been established under his auspices.

He was indeed, "first in war,[\[1\]](#) first in peace, and first in the hearts of his fellow citizens."

A faithful detail of the transactions of a person so pre-eminently distinguished will be looked for with avidity, and the author laments his inability to present to the public a work which may gratify the expectations that have been raised. In addition to that just diffidence of himself which he very sincerely feels, two causes beyond his control combine to excite this apprehension.

Accustomed to look in the page of history for incidents in themselves of great magnitude, to find immense exertions attended with inconsiderable effects, and vast means employed in producing unimportant ends, we are in the habit of bestowing on the recital of military actions, a degree of consideration proportioned to the numbers engaged in them. When the struggle has terminated, and the agitations felt during its suspense have subsided, it is difficult to attach to enterprises, in which small numbers have been concerned, that admiration which is often merited by the talents displayed in their execution, or that interest which belongs to the consequences that have arisen from them.

The long and distressing contest between Great Britain and these states did not abound in those great battles which are so frequent in the wars of Europe. Those who expect a continued succession of victories and defeats; who can only feel engaged in the movements of vast armies, and who believe that a Hero must be perpetually in action, will be disappointed in almost every page of the following history. Seldom was the American chief in a condition to indulge his native courage in those brilliant achievements to which he was

stimulated by his own feelings, and a detail of which interests, enraptures, and astonishes the reader. Had he not often checked his natural disposition, had he not tempered his ardour with caution, the war he conducted would probably have been of short duration, and the United States would still have been colonies. At the head of troops most of whom were perpetually raw because they were perpetually changing; who were neither well fed, paid, clothed, nor armed; and who were generally inferior, even in numbers, to the enemy; he derives no small title to glory from the consideration, that he never despaired of the public safety; that he was able at all times to preserve the appearance of an army, and that, in the most desperate situation of American affairs, he did not, for an instant, cease to be formidable. To estimate rightly his worth we must contemplate his difficulties. We must examine the means placed in his hands, and the use he made of those means. To preserve an army when conquest was impossible, to avoid defeat and ruin when victory was unattainable, to keep his forces embodied and suppress the discontents of his soldiers, exasperated by a long course of the most cruel privations, to seize with unerring discrimination the critical moment when vigorous offensive operations might be advantageously carried on, are actions not less valuable in themselves, nor do they require less capacity in the chief who performs them, than a continued succession of battles. But they spread less splendour over the page which recounts them, and excite weaker emotions in the bosom of the reader.

There is also another source from which some degree of disappointment has been anticipated. It is the impossibility of giving to the public in the first part of this work many facts not already in their possession.

The American war was a subject of too much importance to have remained thus long unnoticed by the literary world. Almost every event worthy of attention, which occurred during its progress, has been gleaned up and detailed. Not only the public, but much of the private correspondence of the commander in chief has been inspected, and permission given to extract from it whatever might properly be communicated. In the military part of this history, therefore, the author can promise not much that is new. He can only engage for the correctness with which facts are stated, and for the diligence with which his researches have been made.

The letters to and from the commander in chief during the war, were very numerous and have been carefully preserved. The whole of this immensely voluminous correspondence has, with infinite labour, been examined; and the work now offered to the public is, principally, compiled from it. The facts which occurred on the continent are, generally, supported by these letters, and

it has therefore been deemed unnecessary to multiply references to them. But there are many facts so connected with those events, in which the general performed a principal part, that they ought not to be omitted, and respecting which his correspondence cannot be expected to furnish satisfactory information.

Such facts have been taken from the histories of the day, and the authority relied on for the establishment of their verity has been cited. Doddesly's Annual Register, Belsham, Gordon, Ramsay, and Stedman have, for this purpose, been occasionally resorted to, and are quoted for all those facts which are detailed in part on their authority. Their very language has sometimes been employed without distinguishing the passages, especially when intermingled with others, by marks of quotation, and the author persuades himself that this public declaration will rescue him from the imputation of receiving aids he is unwilling to acknowledge, or of wishing, by a concealed plagiarism, to usher to the world, as his own, the labours of others.

In selecting the materials for the succeeding volumes, it was deemed proper to present to the public as much as possible of general Washington himself. Prominent as he must be in any history of the American war, there appeared to be a peculiar fitness in rendering him still more so in one which professes to give a particular account of his own life. His private opinions therefore; his various plans, even those which were never carried into execution; his individual exertions to prevent and correct the multiplied errors committed by inexperience, are given in more minute detail; and more copious extracts from his letters are taken, than would comport with the plan of a more general work.

Many events too are unnoticed, which in such a composition would be worthy of being introduced, and much useful information has not been sought for, which a professed history of America ought to comprise. Yet the history of general Washington, during his military command and civil administration, is so much that of his country, that the work appeared to the author to be most sensibly incomplete and unsatisfactory, while unaccompanied by such a narrative of the principal events preceding our revolutionary war, as would make the reader acquainted with the genius, character, and resources of the people about to engage in that memorable contest. This appeared the more necessary as that period of our history is but little known to ourselves. Several writers have detailed very minutely the affairs of a particular colony, but the *desideratum* is a composition which shall present in one connected view, the transactions of all those colonies which now form the United States.

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INTRODUCTION

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The United States of America extend, on the Atlantic, from the bay of Passamaquoddi in the 45th, to Cape Florida in the 25th, degree of north latitude; and thence, on the gulf of Mexico, including the small adjacent islands to the mouth of the Sabine, in the 17th degree of west longitude from Washington. From the mouth of the Sabine to the Rocky mountains, they are separated from Spanish America by a line which pursues an irregular north-western direction to the 42d degree of north latitude, whence it proceeds west, to the Pacific. On the north they are bounded by the British provinces; from which, between the Lake of the Woods and the Rocky, or Stony mountains, they are separated by the 49th parallel of north latitude. Their northern boundary, west of these mountains, has not yet been adjusted.

The extent of this vast Republic, in consequence of its recent acquisition of almost unexplored territory, has not yet been accurately ascertained; but may be stated at two millions of square miles.

Its population, which began on the Atlantic, and is travelling rapidly westward, amounted in 1820, according to the census of that year, to nine millions six hundred and fifty-four thousand four hundred and fifteen persons. The enumerations which have been made under the authority of government, show an augmentation of numbers at the rate of about thirty-four *per centum*^[2] in ten years; and it is probable, that for many years to come, this ratio will not be materially changed.

Public sentiment, to which the policy of the government conforms, is opposed to a large military establishment; and the distance of the United States

from the great powers of the world, protects them from the danger to which this policy might otherwise expose them.

The navy has become an object of great interest to the nation, and may be expected to grow with its resources. In April 1816, Congress passed an act appropriating one million of dollars annually, to its gradual increase; and authorising the construction of nine ships, to rate not less than seventy-four guns each, and of twelve, to rate not less than forty-four guns each.

The execution of this act is in rapid progress. Inconsiderable as the navy now is, with respect to the number and force of its ships, it is deemed inferior to none in existence for the bravery and skill of its officers and men. When we take into view the extensive sea coast of the United States, the magnificent lakes, or inland seas, which form a considerable part of their northern frontier, the abundance of their materials for ship building, and the genius of their population for maritime enterprise, it is not easy to resist the conviction that this bulwark of defence will, at no very distant period, attain a size and strength sufficient to ensure the safety of the nation and the respect of the world.

The net revenue of the United States amounted, in the year 1822, to considerably more than twenty millions of dollars; and, unless a course of legislation unfavourable to its augmentation be adopted, must grow with their population.

In arts, in arms, and in power, they have advanced, and are advancing, with unexampled rapidity.

The history of their progress, from the first feeble settlements made by Europeans on a savage coast, to their present state of greatness; while it has just claims to the attention of the curious of all nations, may be expected deeply to interest every American.

Soon after the return of Columbus from that memorable voyage which opened the vast regions of the west to civilized man, the maritime states of Europe manifested a desire to share with Spain, the glory, the wealth, and the dominion to be acquired in the new world. By no one of these states, was this desire carried into action more promptly than by England, Henry VII. had received communications from Columbus, during the tedious and uncertain negotiations of that great man, at the dilatory court of Ferdinand, which prepared him for the important discoveries afterwards made, and inclined him to countenance the propositions of his own subjects for engaging in similar adventures. Commission of Cabot. On the 5th of March 1495, he granted a commission to John Cabot, an enterprising Venetian who had settled in Bristol,

and to his three sons, Lewis, Sebastian, and Sanctius, empowering them, or either of them, to sail under the banner of England, towards the east, north, or west, in order to discover countries unoccupied by any Christian state, and to take possession of them in his name.

His voyage to America.

It does not appear that the expedition contemplated at the date of this commission was prosecuted immediately; but in May 1496, Cabot, with his second son, Sebastian, sailed from Bristol in a small squadron, consisting of one ship furnished by the King, and four barks fitted out by merchants of that city; and, steering almost due west, discovered the islands of Newfoundland and St. Johns, and, soon afterward, reached the continent of North America, along which he sailed from the fifty-sixth to the thirty-eighth degree of north latitude, in the vain hope of discovering a passage into the Pacific.

Thus, according to the English historians, was first discovered that immense continent which stretches from the gulf of Mexico as far north as has yet been explored; and to this voyage, the English trace their title to the country they afterwards acquired by settlement, and by arms.

France, which has since contested with Britain the possession of a considerable portion of this important territory, has also advanced claims to its discovery; but they seem not to be well founded.

The scheme of making settlements relinquished.

The ardour which had been excited in the bosom of Henry for making acquisitions in the new world, expired with this first effort. Cabot, on his return, found that monarch entirely disinclined to the farther prosecution of a scheme in which he had engaged with some zeal, the commencement of which had been attended with encouraging appearances.

Several causes are supposed to have contributed to suspend the pursuits of the English in America. Previous to its discovery, the Portuguese had explored the Azores, or Western Islands; in consequence of which they claimed this continent, and contended for the exclusion of the Spaniards from the Western Ocean. The controversy was decided by the Pope, who, on the 7th of May 1493, of his own "mere liberality and certain knowledge, and the plenitude of apostolic authority," granted to Spain, the countries discovered or to be discovered by her, to the westward of a line to be drawn from pole to pole, a hundred leagues west of the Azores; (excepting such countries as might be in the possession of any other Christian prince antecedent to the year 1493;) and to Portugal, her discoveries eastward of that line.

The validity of this grant was probably strengthened, in the opinion of Henry, by other circumstances. He set a high value on the friendship of the King of Spain, with whom he was then negotiating the marriage which afterwards took place between his eldest son and Catharine, the daughter of that monarch. Ferdinand was jealous to excess of all his rights; and Henry was not inclined to interrupt the harmony subsisting between the two crowns, by asserting claims to the country discovered by Cabot, which was obviously within the limits to which the pretensions of Spain extended.

Renewed by Elizabeth.

The fisheries of Newfoundland were carried on by individuals, to a considerable extent, and a paltry traffic was continued with the natives; but no serious design of acquiring territory, and planting colonies in America was formed until the reign of Elizabeth, when a plan for making permanent settlements was proposed and patronized by several persons of rank and influence. To select a man qualified for this arduous task, and disposed to engage in it, was among the first objects to which their attention was directed. Sir Humphry Gilbert had rendered himself conspicuous by his military services, and by a treatise concerning the north-west passage, in which great ingenuity and learning, are stated by Dr. Robertson, to be mingled with the enthusiasm, the credulity, and sanguine expectation which incite men to new and hazardous undertakings. On this gentleman the adventurers turned their eyes, and he was placed at the head of the enterprise. On the 11th of June 1578, he obtained letters patent from the Queen, vesting in him the powers that were required; on receiving which, he, with the associates of his voyage, embarked for America. But his success did not equal his expectations. The various difficulties inseparable from the settlement of a distant, unexplored country, inhabited only by savages; the inadequacy of the supplies which could be furnished for a colony by the funds of a few private individuals; the misfortune of having approached the continent too far towards the north, where the cold barren coast of Cape Breton was rather calculated to repel than invite a settlement; have been assigned as the probable causes of his failure.^[3]

Two expeditions conducted by this gentleman ended disastrously. In the last, he himself perished; having done nothing farther in the execution of his patent, than taking possession of the island of Newfoundland, in the name of Elizabeth.

Sir Walter Raleigh, alike distinguished by his genius, his courage, and the severity of his fate, had been deeply interested in the adventures in which his half brother, Sir Humphry Gilbert, had wasted his fortune, and was not deterred

by their failure, or by the difficulties attending such an enterprise, from prosecuting with vigour, a plan so well calculated to captivate his bold and romantic temper.

1584

Patent to Sir Walter Raleigh.

On the 26th of March, he obtained a patent from the Queen; and, on the 27th of April, dispatched two small vessels under the command of captains Amidas and Barlow for the purpose of visiting the country, and of acquiring some previous knowledge of those circumstances which might be essential to the welfare of the colony he was about to plant. To avoid the error of Gilbert in holding too far north, Amidas and Barlow took the route by the Canaries, and the West India islands, and approached the North American continent towards the gulf of Florida. On the 2d of July, they touched at a small island situate on the inlet into Pamlico sound, whence they proceeded to Roanoke, near the mouth of Albemarle sound.

After employing a few weeks in traffic with the Indians, from whom they collected some confused accounts respecting the neighbouring continent, they took with them two of the natives, who willingly accompanied them, and embarked for England, where they arrived on the 15th of September. The splendid description which they gave of the soil, the climate, and the productions of the country they had visited, so pleased Elizabeth, that she bestowed on it the name of Virginia, as a memorial that it had been discovered during the reign of a virgin Queen.^[4] Raleigh, encouraged by their report to hasten his preparations for taking possession of the property, fitted out a squadron consisting of seven small ships, laden with arms, ammunition, provisions, and passengers, 1585 Voyage of Sir Richard Grenville. which sailed from Plymouth on the 9th of April, under the command of Sir Richard Grenville, who was his relation, and interested with him in the patent. Having taken the southern route, and wasted some time in cruising against the Spaniards, Sir Richard did not reach the coast of North America, until the close of the month of June. He touched at both the islands on which Amidas and Barlow had landed, and made some excursions into different parts of the continent around Pamlico, and Albemarle sounds.

First colony.

Having established a colony, consisting of one hundred and eight persons, in the island of Roanoke, an incommodious station, without any safe harbour, he committed the government of it to Mr. Ralph Lane; and, on the 25th of August, sailed for England.^[5]

An insatiate passion for gold, attended by an eager desire to find it in the bowels of the earth, for a long time the disease of Europeans in America, became the scourge of this feeble settlement. The English flattered themselves that the country they had discovered could not be destitute of those mines of the precious metals with which Spanish America abounded. The most diligent researches were made in quest of them; and the infatuating hope of finding them stimulated the colonists to the utmost exertions of which they were capable. The Indians soon discerned the object for which they searched with so much avidity, and amused them with tales of rich mines in countries they had not yet explored. Seduced by this information, they encountered incredible hardships, and, in this vain search wasted that time which ought to have been employed in providing the means of future subsistence. Mutual suspicion and disgust between them and the natives ripened into open hostility; and, the provisions brought from England being exhausted, they were under the necessity of resorting for food to the precarious supplies which could be drawn from the rivers and woods. 1586In this state of distress, they were found, in June, by Sir Francis Drake, who was then returning from a successful expedition against the Spaniards in the West Indies. He agreed to supply them with about one hundred men, four months' provisions, and a small vessel; but, before she could be brought into a place of security, and the men and stores disembarked, she was driven out to sea by a sudden and violent storm. Colonists carried back to England by Drake.Discouraged by this misfortune, and worn out with fatigue and famine, the colonists unanimously determined to abandon the colony, and were, at their own request, taken on board the fleet which sailed for England.[6]

Thus terminated the first English colony planted in America. The only acquisition made by this expensive experiment, was a better knowledge of the country and its inhabitants.

Grenville plants a second colony.

A few days after the departure of Drake with Lane and his associates, a small vessel which had been dispatched by Raleigh with a supply of provisions, reached its place of destination. Not finding the colonists, this vessel returned to England. Soon after its departure, Sir Richard Grenville arrived with three ships and ample supplies. Having searched in vain for the colonists he had left, and being unable to conjecture their fate, he placed fifteen men in the island with provisions for two years, for the purpose of retaining possession of the country, and returned to England. Destroyed by the Indians.This small party was soon destroyed by the Indians.

Not discouraged by the ill success which had thus far attended his efforts to make a settlement in America, Raleigh, in the following year, fitted out three ships under the command of captain John White, and, it is said, directed the colony to be removed to the waters of the Chesapeake, which bay had been discovered by Lane in the preceding year. Instructed by calamity, he adopted more efficacious means for preserving and continuing the colony than had before been used. The number of men was greater; they were accompanied by some women, and their supply of provisions was more abundant. Mr. White was appointed their governor, twelve assistants were assigned him as a council, and a charter incorporating them by the name of the governor and assistants of the city of Raleigh in Virginia, was granted them.

Third colony arrives.

Thus prepared for a permanent settlement, they arrived in July at Roanoke, where they received the melancholy intelligence of the loss of their countrymen who had been left there by Sir Richard Grenville. They determined, however, to remain at the same place, and began to make the necessary preparations for their accommodation. Aware of the danger to be apprehended from the hostile disposition of their neighbours, they endeavoured to effect a reconciliation with the natives, one of whom, who had accompanied Amidas and Barlow to England, and who was distinguished by his unshaken attachment to the English, was christened, and styled Lord of *Dassa Monpeake*, an Indian nation in the neighbourhood.[7]

About the same time the first child of English parentage was born in America. She was the daughter of Ananias Dare, and, after the place of her birth, was named *Virginia*.

Soon perceiving their want of many things essential to the preservation, and comfortable subsistence of a new settlement, the colonists, with one voice, deputed their governor, to solicit those specific aids which their situation particularly and essentially required. On his arrival in England, he found the whole nation alarmed at the formidable preparations for their invasion, made by Philip II. of Spain; and Raleigh, Grenville, and the other patrons of the colony, ardently engaged in those measures of defence which the public danger demanded. Mingling, however, with his exertions to defend his native country, some attention to the colony he had planted, Raleigh found leisure to fit out a small fleet for its relief, the command of which was given to Sir Richard Grenville; but, the apprehensions from the Spanish armament still increasing, the ships of force prepared by Raleigh were detained in port by order of the

Queen, and Sir Richard Grenville was commanded not to leave Cornwall, where his services were deemed necessary. 1588 On the 22d of April, White put to sea with two small barks, but, instead of hastening to the relief of his distressed countrymen, wasted his time in cruising; and, being beaten by a superior force, was totally disabled from prosecuting his voyage.[\[8\]](#)

1589

Raleigh assigns his patent.

The attention of Raleigh being directed to other more splendid objects, he assigned his patent to Sir Thomas Smith and a company of merchants in London.

1590

After this transfer, a year was permitted to elapse before any effort was made for the relief of the colony. In March, three ships fitted out by the company, in one of which Mr. White embarked, sailed from Plymouth; but, having cruelly and criminally wasted their time in plundering the Spaniards in the West Indies, they did not reach Hatteras until the month of August. Third colony lost. They fired a gun to give notice of their arrival, and sent a party to the place where the colony had been left; but no vestige of their countrymen could be found. In attempting the next day to go to Roanoke, one of the boats, in passing a bar, was half filled with water, another was upset, and six men were drowned. Two other boats were fitted out with nineteen men to search the island thoroughly on which the colony had been left.

At the departure of Mr. White, it was in contemplation to remove about fifty miles into the country; and it had been agreed that, should the colonists leave the island, they would carve the name of the place to which they should remove, on some tree, door, or post; with the addition of a cross over it, as a signal of distress, if they should be really distressed at the time of changing their situation. After considerable search, the word CROATAN was found carved in fair capital letters on one of the chief posts, but unaccompanied by the sign of distress which had been agreed on.

Croatan was the name of an Indian town on the north side of Cape Lookout, and for that place, the fleet weighed anchor the next day. Meeting with a storm, and several accidents, they were discouraged from proceeding on their voyage, and, determining to suspend their search, returned to the West Indies.

The company made no farther attempt to find these lost colonists; nor has the time or the manner of their perishing ever been discovered.[\[9\]](#)

1602

Voyage of Gosnald.

The subsequent voyages made by the English to North America were for the sole purpose of traffic, and were unimportant in their consequences, until the year 1602, when one was undertaken by Bartholomew Gosnald, which contributed greatly to the revival of the then dormant spirit of colonising in the new world. He sailed from Falmouth in a small bark with thirty-two men; and steering nearly west, reached the American continent, on the 11th of May, in about forty-three degrees of north latitude.

Finding no good harbour at this place, Gosnald put to sea again and stood southward. The next morning, he descried a promontory which he called cape Cod, and, holding his course along the coast as it stretched to the south-west, touched at two islands, the first of which he named Martha's Vineyard, and the second, Elizabeth's Island. Having passed some time at these places, examining the country, and trading with the natives, he returned to England.[\[10\]](#)

This voyage was completed in less than four months, and was attended with important consequences. Gosnald had found a healthy climate, a rich soil, good harbours, and a route which shortened considerably the distance to the continent of North America. He had seen many of the fruits known and prized in Europe, blooming in the woods; and had planted European grain which grew rapidly. Encouraged by this experiment, and delighted with the country, he formed the resolution of transporting thither a colony, and of procuring the co-operation of others by whom his plan might be supported. So unfortunate however had been former attempts of this sort, that men of wealth and rank, though strongly impressed by his report of the country, were slow in giving full faith to his representations, and in entering completely into his views. One vessel was fitted out by the merchants of Bristol, and another by the earl of Southampton, and Lord Arundel of Wardour, in order to learn whether Gosnald's account of the country was to be considered as a just representation of its state, or as the exaggerated description of a person fond of magnifying his own discoveries. Both returned with a full confirmation of his veracity, and with the addition of so many new circumstances in favour of the country, as greatly increased the desire of settling it.

Richard Hackluyt, prebendary of Westminster, a man of distinguished learning and intelligence, contributed more than any other by his judicious exertions, to form an association sufficiently extensive, powerful, and wealthy, to execute the often renewed, and often disappointed project of establishing colonies in America.

At length, such an association was formed; and a petition was presented to James I., who had succeeded to the crown of England, praying the royal sanction to the plan which was proposed. That pacific monarch was delighted with it, and immediately acceded to the wishes of its projectors.

Patent to Sir Thomas Gates and others.

On the 10th of April, letters patent were issued under the great seal of England, to the petitioners, Sir Thomas Gates and his associates, granting to them those territories in America, lying on the sea coast, between the 34th and 45th degrees of north latitude, and which either belonged to that monarch, or were not then possessed by any other Christian prince or people; and also the islands adjacent thereto, or within one hundred miles thereof. They were divided, at their own desire, into two companies. One, consisting of certain knights, gentlemen, merchants, and other adventurers of the city of London, and elsewhere, was called the first colony, and was required to settle between the 34th and 41st degrees of north latitude; the other, consisting of certain knights, gentlemen, merchants, and other adventurers of Bristol, Exeter, Plymouth, and elsewhere, was named the second colony, and was ordered to settle between the 38th and 45th degrees of north latitude; yet so that the colony last formed should not be planted within one hundred miles of the prior establishment.

The adventurers were empowered to transport so many English subjects as should be willing to accompany them, who, with their descendants, were, at all times, to enjoy the same liberties, within any other dominions of the crown of England, as if they had remained, or were born, within the realm. A council consisting of thirteen, to be appointed and removed at the pleasure of the crown, was established for each colony, to govern it according to such laws as should be given under the sign manual and privy seal of England.

Two other boards to consist also of thirteen persons each, and to be appointed by the King, were invested with the superior direction of the affairs of the colonies.

The adventurers were allowed to search for, and open mines of gold, silver, and copper, yielding one-fifth of the two former metals, and one-fifteenth of the last, to the King; and to make a coin which should be current both among the colonists and natives.

The president and council were authorised to repel those who should, without their authority, attempt to settle, or trade, within their jurisdiction, and to seize, and detain the persons, and effects, of such intruders, until they should

pay a duty of two and one-half *per centum ad valorem*, if subjects, but of five *per centum* if aliens. These taxes were to be applied, for twenty-one years, to the use of the adventurers, and were afterwards to be paid into the royal exchequer.

Code of laws for the colony drawn up by the King.

While the council for the patentees were employed in making preparations to secure the benefits of their grant, James was assiduously engaged in the new, and, to his vanity, the flattering task of framing a code of laws for the government of the colonies about to be planted. Having at length prepared this code, he issued it under the sign manual, and privy seal of England. By these regulations, he vested the general superintendence of the colonies, in a council in England, "composed of a few persons of consideration and talents." The church of England was established. The legislative and executive powers within the colonies, were vested in the president and councils; but their ordinances were not to touch life or member, were to continue in force only until made void by the King, or his council in England for Virginia, and were to be in substance, consonant to the laws of England. They were enjoined to permit none to withdraw the people from their allegiance to himself, and his successors; and to cause all persons so offending to be apprehended, and imprisoned until reformation; or, in cases highly offensive, to be sent to England to receive punishment. No person was to be permitted to remain in the colony without taking the oath of obedience. Tumults, mutiny, and rebellion, murder, and incest, were to be punished with death; and for these offences, the criminal was to be tried by a jury. Inferior crimes were to be punished in a summary way, at the discretion of the president and council.

Lands were to be holden within the colony as the same estates were enjoyed in England. Kindness towards the heathen was enjoined; and a power reserved to the King, and his successors to ordain farther laws, so that they were consonant to the jurisprudence of England.[\[11\]](#)

Under this charter, and these laws, which manifest, at the same time, a total disregard of all political liberty, and a total ignorance of the real advantages which a parent state may derive from its colonies; which vest the higher powers of legislation in persons residing out of the country, not chosen by the people, nor affected by the laws they make, and yet leave commerce unrestrained; the patentees proceeded to execute the arduous and almost untried task of peopling a strange, distant, and uncultivated land, covered with woods and marshes, and inhabited only by savages easily irritated, and when irritated, more fierce than the beasts they hunted.

CHAPTER II.

Voyage of Newport.... Settlement at Jamestown.... Distress of colonists.... Smith.... He is captured by the Indians.... Condemned to death, saved by Pocahontas.... Returns to Jamestown.... Newport arrives with fresh settlers.... Smith explores the Chesapeake.... Is chosen president.... New charter.... Third voyage of Newport.... Smith sails for Europe.... Condition of the colony.... Colonists determine to abandon the country.... Are stopped by Lord Delaware.... Sir Thomas Dale.... New charter.... Capt. Argall seizes Pocahontas.... She marries Mr. Rolfe.... Separate property in lands and labour.... Expedition against Port Royal.... Against Manhadoes.... Fifty acres of land for each settler.... Tobacco.... Sir Thomas Dale.... Mr. Yeardley.... First assembly.... First arrival of females.... Of convicts.... Of African slaves.... Two councils established.... Prosperity of the colony.... Indians attempt to massacre the whites.... General war.... Dissolution of the company.... Arbitrary measures of the crown.... Sir John Harvey.... Sir William Berkeley.... Provincial assembly restored.... Virginia declares in favour of Charles II.... Grant to Lord Baltimore.... Arrival of a colony in Maryland.... Assembly composed of freemen.... William Clayborne.... Assembly composed of representatives.... Divided into two branches.... Tyrannical proceedings.

The funds immediately appropriated to the planting of colonies in America, were inconsiderable, and the early efforts to accomplish the object, were feeble.

The first expedition for the southern colony consisted of one vessel of a hundred tons, and two barks, carrying one hundred and five men, destined to remain in the country.

1606

Voyage of Newport.

The command of this small squadron was given to captain Newport, who, on the 19th of December, sailed from the Thames. Three sealed packets were delivered to him, one addressed to himself, a second to captain Bartholomew Gosnold, and the third to captain John Radcliffe, containing the names of the council for this colony. These packets were accompanied with instructions

directing that they should be opened, and the names of his Majesty's council proclaimed, within twenty-four hours after their arrival on the coast of Virginia, and not before. The council were then to proceed to the choice of a president, who was to have two votes. To this unaccountable concealment have those dissensions been attributed, which distracted the colonists on their passage, and which afterwards impeded the progress of their settlement.[\[12\]](#)

1607

Is driven into the Chesapeake.

Newport, whose place of destination was Roanoke, took the circuitous route by the West India islands, and had a long passage of four months. The reckoning had been out for three days, and serious propositions had been made for returning to England, when a fortunate storm drove him to the mouth of the Chesapeake. On the 26th of April, he descried cape Henry, and soon afterward cape Charles. A party of about thirty men, which went on shore at cape Henry, was immediately attacked by the natives, and, in the skirmish which ensued, several were wounded on both sides.

The first act of the colonists was the selection of a spot for their settlement. They proceeded up a large river, called by the natives Powhatan, and agreed to make their first establishment upon a peninsula, on its northern side. In compliment to their sovereign, this place was named Jamestown, and the river was called James. May 13th. Having disembarked, and opened the sealed packets brought from England, the members of the council proceeded to the election of a president, and Mr. Wingfield was chosen. But, under frivolous pretexts, they excluded from his seat among them, John Smith, one of the most extraordinary men of his age, whose courage and talents had excited their envy. During the passage, he had been imprisoned on the extravagant charge of intending to murder the council, usurp the government, and make himself king of Virginia.[\[13\]](#)

The first indications of a permanent settlement in their country, seem to have excited the jealousy of the natives. Displeased with the intrusion, or dissatisfied with the conduct of the intruders, they soon formed the design of expelling, or destroying, these unwelcome and formidable visitors. In execution of this intention, they attacked the colonists suddenly, while at work, and unsuspecting of their hostility; but were driven, terrified, into the woods by the fire from the ship. On the failure of this attempt, a temporary accommodation was effected.

Newport, though named of the council, had been ordered to return to England. As the time of his departure approached, the accusers of Smith, attempting to conceal their jealousy by the affectation of humanity, proposed

that he also should return, instead of being prosecuted in Virginia; but, with the pride of conscious innocence, he demanded a trial; and, being honourably acquitted, took his seat in the council.

About the 15th of June, Newport sailed for England, leaving behind him one of the barks, and about one hundred colonists. While he remained, they had partaken of the food allowed the sailors; but after his departure, they were reduced to the necessity of subsisting on the distributions from the public stores, which had sustained great damage during their long passage. These were both scanty, and unwholesome; the allowance to each man, for a day, being only a pint of worm-eaten wheat and barley. This wretched food increased the malignity of the diseases generated by the climate, among men exposed to all its rigours. Before the month of September, fifty of the company were buried; among whom was Bartholomew Gosnald, who had planned the expedition, and had contributed greatly towards its prosecution. Their distress was increased by internal dissension. The president was charged with embezzling the best stores of the colony, and with feasting at his private table, on beef, bread, and *aqua vitæ*, while famine and death devoured his fellow adventurers. The odium against him was completed by the detection of an attempt to escape from them and their calamities, in the bark which had been left by Newport. In the burst of general indignation which followed the discovery of this meditated desertion, he was deposed, and Radcliffe chosen to succeed him.[\[14\]](#)

As misfortune is not unfrequently the parent of moderation and reflection, this state of misery produced a system of conduct towards the neighbouring Indians, which, for the moment, disarmed their resentments, and induced them to bring in such supplies as the country afforded at that season. It produced another effect of equal importance. A sense of imminent and common danger called forth those talents which were fitted to the exigency, and compelled submission to them. On captain Smith, who had preserved his health unimpaired, his spirits unbroken, and his judgment unclouded, amidst this general misery and dejection, all eyes were turned, and in him, all actual authority was placed by common consent. His example soon gave energy to others.

He erected such rude fortifications as would resist the sudden attacks of the savages, and constructed such habitations as, by sheltering the survivors from the weather, contributed to restore and preserve their health, while his own accommodation gave place to that of all others. In the season of gathering corn, he penetrated into the country at the head of small parties, and by presents and

caresses to those who were well disposed, and by attacking with open force, and defeating those who were hostile, he obtained abundant supplies.

While thus actively and usefully employed abroad, he was not permitted to withdraw his attention from the domestic concerns of the colony. Incapacity for command is seldom accompanied by a willingness to relinquish power; and it will excite no surprise that the late president saw, with regret, another placed above him. As unworthy minds most readily devise unworthy means, he sought, by intriguing with the factious, and fomenting their discontents, to regain his lost authority; and when these attempts were disconcerted, he formed a conspiracy with some of the principal persons in the colony, to escape in the bark, and thus to desert the country. The vigilance of Smith detected these machinations, and his vigour defeated them.[\[15\]](#)

Smith is captured by the Indians,

The prospect which now presented itself of preserving the colony in quiet and plenty, until supplies could be received from England, was obscured by an event which threatened, at first, the most disastrous consequences. In attempting to explore Chiccahomini river to its source, Smith was discovered and attacked by a numerous body of Indians; and in endeavouring, after a gallant defence, to make his escape, he sank up to his neck in a swamp, and was obliged to surrender. The wonder and veneration which he excited by the exhibition of a mariner's compass, saved him from immediate death. He was conducted in triumph, through several towns, to the palace of Powhatan, the most potent king in that part of the country, who condemned him to death, who doomed him to be put to death by placing his head upon a stone, and beating out his brains with a club. At the place of execution, with his head bowed down to receive the blow, he was rescued from a fate which appeared to be inevitable, by that enthusiastic and impassioned humanity which, in every climate, and in every state of society, finds its home in the female bosom. saved by Pocahontas. Pocahontas, the king's favourite daughter, then about thirteen years of age, whose entreaties for his life had been ineffectual, rushed between him and the executioner, and folding his head in her arms, and laying hers upon it, arrested the fatal blow. Her father was then prevailed upon to spare his life, and he was sent back to Jamestown.[\[16\]](#)

Returns to Jamestown.

On arriving at that place, after an absence of seven weeks, he found the colony reduced to thirty-eight persons, who seemed determined to abandon a country which appeared to them so unfavourable to human life. He came just in time to prevent the execution of this design. Alternately employing persuasion,

threats, and even violence, he induced the majority to relinquish their intention; then turning the guns of the fort on the bark, on board which were the most determined, he compelled her to remain, or sink in the river.[17]

By a judicious regulation of intercourse with the Indians, over whom he had gained considerable influence, he restored plenty to the colony, and preserved it until the arrival of two vessels which had been dispatched from England under the command of captain Newport, with a supply of provisions and instruments of husbandry, and with a reinforcement of one hundred and twenty persons, composed of many gentlemen, several refiners, gold smiths, and jewellers, and a few labourers.

The influence of Smith disappeared with the danger which had produced it, and was succeeded by an improvident relaxation of discipline, productive of the most pernicious consequences.[18]

A glittering earth mistaken for gold dust.

About this time, a shining earth, mistaken by the colonists for gold dust, was found in a small stream of water near Jamestown. Their raging thirst for gold was re-excited by this incident. Smith, in his History of Virginia, describing the frenzy of the moment, says, "there was no thought, no discourse, no hope, and no work, but to dig gold, wash gold, refine gold, and load gold. And, notwithstanding captain Smith's warm and judicious representations how absurd it was to neglect other things of immediate use and necessity, to load such a drunken ship with gilded dust, yet was he overruled, and her returns were made in a parcel of glittering dirt, which is to be found in various parts of the country, and which they, very sanguinely, concluded to be gold dust."

1608

The two vessels returned laden, one with this dirt, and the other with cedar. This is the first remittance ever made from America by an English colony.

The effects of this fatal delusion were soon felt, and the colony again began to suffer that distress, from scarcity of food, which had before brought it, more than once, to the brink of ruin.

Smith explores the Chesapeake.

The researches of the English settlers had not yet extended beyond the country adjacent to James river. Smith had formed the bold design of exploring the great bay of Chesapeake, examining the mighty rivers which empty into it, opening an intercourse with the nations inhabiting their borders, and acquiring a knowledge of the state of their cultivation and population. Accompanied by Doctor Russel, he engaged in this hardy enterprise in an open boat of about

three tons burthen, and with a crew of thirteen men. On the 2d of June, he descended the river in company with the last of Newport's two vessels, and, parting with her at the capes, began his survey at cape Charles. With great fatigue and danger, he examined every river, inlet, and bay, on both sides of the Chesapeake, as far as the mouth of the Rappahannock. His provisions being exhausted, he returned, and arrived at Jamestown on the 21st of July. He found the colony in the utmost confusion and disorder. All those who came last with Newport were sick; the danger of famine was imminent; and the clamour against the president was loud, and universal. The seasonable arrival of Smith restrained their fury. The accounts he gave of his discoveries, and the hope he entertained that the waters of the Chesapeake communicated with the south sea,[\[19\]](#) extended their views and revived their spirits. They contented themselves with deposing their president, and, having in vain urged Smith to accept that office, elected his friend Mr. Scrivener as vice president.

After employing three days in making arrangements for obtaining regular supplies, and for the government of the colony, Smith again sailed with twelve men, to complete his researches into the countries on the Chesapeake.

From this voyage he returned on the seventh of September; having advanced as far as the river Susquehannah, and visited all the countries on both shores of the bay. He entered most of the large creeks, sailed up many of the great rivers to their falls, and made accurate observations on the extensive territories through which he passed, and on the various tribes inhabiting them, with whom he, alternately, fought, negotiated, and traded. In every situation, he displayed judgment, courage, and that presence of mind which is essential to the character of a commander; and never failed, finally, to inspire the savages he encountered, with the most exalted opinion of himself and of his nation.

When we consider that he sailed above three thousand miles in an open boat; when we contemplate the dangers and the hardships he encountered; when we reflect on the valuable additions he made to the stock of knowledge respecting America; we shall not hesitate to say that few voyages of discovery, undertaken at any time, reflect more honour on those engaged in them. "So full and exact," says Dr. Robertson, "are his accounts of that large portion of the American continent comprehended in the two provinces of Virginia and Maryland, that after the progress of information and research for a century and a half, his map exhibits no inaccurate view of both countries, and is the original, on which all subsequent delineations and descriptions have been formed."[\[20\]](#)



Ruins of the Old Brick Church Built at Jamestown in 1639

Settled by the English in 1607, on the banks of the James River about 32 miles from its mouth, it was at Jamestown that the first legislative assembly in America was held in 1619, and here in the same year slavery was first introduced into the original thirteen colonies. The site of the settlement, which was originally a peninsula, but is now an island, is owned by the Association for the Preservation of Virginia Antiquities. Besides the ruins of the church shown here those of the fort and of two or three houses built more than a hundred years before the Declaration of Independence was signed are still standing.

Is chosen president.

On his return from this expedition, Smith was chosen president of the council; and, yielding to the general wish, accepted the office. Soon after, Newport arrived with an additional supply of settlers, among whom were the two first females who adventured to the present colony; but he came without provisions.

The judicious administration of the president, however, supplied the wants of the colonists, and restrained the turbulent. Encouraged by his example, and coerced by his authority, a spirit of industry and subordination was created among them, which was the parent of plenty and of peace.[\[21\]](#)

The company in England, though disappointed in the hope of discovering a passage to the Pacific, and of finding mines of the precious metals, still indulged in golden dreams of future wealth. To increase their funds, as well as their influence and reputation, by the acquisition of additional numbers, to explain and enlarge their powers and privileges, and to ensure a colonial government conforming to their own views and wishes, 1609 New Charter. the company petitioned for a new charter, which was granted on the 23d of May. Some of the first nobility and gentry of the country, and most of the companies of London, with a numerous body of merchants and tradesmen, were added to the former adventurers, and they were all incorporated, by the name of "The treasurer and company of adventurers of the city of London, for the first colony in Virginia." To them were granted, in absolute property, the lands extending from Cape or Point Comfort, along the sea coast, two hundred miles to the northward, and from the same point, along the sea coast, two hundred miles to the southward, and up into the land, throughout, from sea to sea, west and north-west; and also all the

islands lying within one hundred miles of the coast of both seas of the precinct aforesaid: to be holden as of the manor of East Greenwich, in free and common soccage, and paying, in lieu of all services, one-fifth of the gold and silver that should be found. The corporation was authorised to convey, under its common seal, particular portions of these lands to subjects or denizens, on such conditions as might promote the intentions of the grant. The powers of the president and council in Virginia were abrogated, and a new council in England was established, with power to the company to fill all vacancies therein by election. This council was empowered to appoint and remove all officers for the colony, and to make all ordinances for its government, not contrary to the laws of England; and to rule the colonists according to such ordinances. License was given to transport to Virginia, all persons willing to go thither, and to export merchandise free from customs for seven years. There was also granted, for twenty-one years, freedom from all subsidies in Virginia, and from all impositions on importations and exportations from or to any of the King's dominions, "except only the five pounds in the hundred due for customs." The colonists were declared to be entitled to the rights of natural subjects. The governor was empowered to establish martial law in case of rebellion or mutiny; and, to prevent the superstitions of the Church of Rome from taking root in the plantation, it was declared that none should pass into Virginia, but such as shall have first taken the oath of supremacy.[\[22\]](#)

The company, being thus enlarged, and enabled to take more effective measures for the settlement of the country, soon fitted out nine ships, with five hundred emigrants. Lord Delawar was constituted governor and captain-general for life; and several other offices were created. Third voyage of Newport. The direction of the expedition was again given to Newport; to whom, and Sir Thomas Gates, and Sir George Somers, powers were severally granted to supersede the existing administration, and to govern the colony until the arrival of Lord Delawar. With singular indiscretion, the council omitted to establish precedence among these gentlemen; who, being totally unable to settle this important point among themselves, agreed to embark on board the same vessel, and to be companions during the voyage. They were parted from the rest of the fleet in a storm, and driven on Bermudas; having on board one hundred and fifty men, a great portion of the provisions destined for the colony, and the new

commission and instructions of the council. The residue of the squadron arrived safely in Virginia.

"A great part of the new company," says Mr. Stith, "consisted of unruly sparks, packed off by their friends to escape worse destinies at home. And the rest were chiefly made up of poor gentlemen, broken tradesmen, rakes and libertines, footmen, and such others as were much fitter to spoil and ruin a Commonwealth, than to help to raise or maintain one. This lewd company, therefore, were led by their seditious captains into many mischiefs and extravagancies. They assumed to themselves the power of disposing of the government, and conferred it sometimes on one, and sometimes on another. To-day the old commission must rule, to-morrow the new, and next day neither. So that all was anarchy and distraction."

The judgment of Smith was not long suspended. With the promptness and decision which belong to vigorous minds, he determined that his own authority was not legally revoked until the arrival of the new commission, and therefore resolved to continue its exercise. Incapable of holding the reins of government with a feeble hand, he exhibited, on this emergency, that energy and good sense which never deserted him when the occasion required them. After imprisoning the chief promoters of sedition, and thereby restoring regularity and obedience, he, for the double purpose of extending the colony, and of preventing the mischiefs to be apprehended from so many turbulent spirits collected in Jamestown, detached one hundred men to the falls of James river, under the command of West, and the same number to Nansemond, under that of Martin. These persons conducted their settlements with so little judgment, that they soon converted all the neighbouring Indians into enemies. After losing several parties, they found themselves in absolute need of the support and direction of Smith. These were readily afforded, until a melancholy accident deprived the colony of the aid of a man whose talents had, more than once, rescued it from that desperate condition into which folly and vice had plunged it. Returning from a visit to the detachment stationed at the falls of James river, his powder bag took fire, while he was sleeping in the boat, and, in the explosion, he was so severely wounded as to be confined to his bed. Smith returns to England. Being unable to obtain the aid of a surgeon in the colony, he embarked for England about the beginning of October.

State of the colony.

At his departure, the colony consisted of about five hundred inhabitants. They were furnished with three ships, seven boats, commodities ready for trade, ten weeks' provision in the public stores, six mares and a horse, a large stock of hogs and poultry, some sheep and goats, utensils for agriculture, nets for fishing, one hundred trained and expert soldiers well acquainted with the Indians, their language and habitations, twenty-four pieces of ordnance, and three hundred muskets, with a sufficient quantity of arms and ammunition.[\[23\]](#)

The fair prospects of the colony were soon blasted by a course of folly and crime, of riot and insubordination.

Numerous pretenders advanced their claims to the supreme command. The choice at length fell upon captain Percy, who derived much consideration from his virtues, as well as from his illustrious family; but his talents, at no time equal to this new and difficult station, were rendered still less competent to the task, by a long course of ill health. Being generally confined by sickness to his bed, he was incapable of maintaining his authority; and total confusion ensued, with its accustomed baneful consequences.

The Indians, no longer awed by the genius and vigour of Smith, attacked the colony on all sides. West and Martin, after losing their boats and nearly half their men, were driven into Jamestown. The stock of provisions was lavishly wasted; and famine added its desolating scourge to their other calamities. After devouring the skins of their horses, and the Indians they had killed, the survivors fed on those of their companions who had sunk under such accumulated misery. The recollection of these tremendous sufferings was long retained, and, for many years, this period was distinguished by the name of THE STARVING TIME.[\[24\]](#)

1610

In six months, the colony was reduced, by these distresses, to sixty persons, who could not have survived ten days longer, when they were relieved from this state of despair by the arrival of Sir Thomas Gates, Sir George Somers, and Captain Newport, from Bermuda.

They abandon the country.

The determination to abandon the country was immediately taken, and the wretched remnant of the colony embarked on board the vessels, and

sailed for England. "None dropped a tear," says Mr. Chalmer, "because none had enjoyed one day of happiness."

Stopped by Lord Delawar.

Fortunately, they met Lord Delawar, who prevailed on them to return; and, on the 10th of June, resettled them at Jamestown.

By mildness of temper, attention to business, and judicious exercise of authority, this nobleman restored order and contentment to the colony, and again impressed the Indians with respect for the English name. 1611Unfortunately, ill health obliged him to resign the government which he placed in the hands of Mr. Percy, and sailed for the West Indies, leaving in the colony about two hundred persons in possession of the blessings of health, plenty, and peace.

Sir Thomas Dale.

On the 10th of May, Sir Thomas Dale, who had been appointed to the government, arrived with a fresh supply of men and provisions, and found the colony relapsing into a state of anarchy, idleness, and want. It required all the authority of the new governor to maintain public order, and to compel the idle and the dissolute to labour. Some conspiracies having been detected, he proclaimed martial law, which was immediately put in execution. This severity was then deemed necessary, and is supposed to have saved the settlement.[\[25\]](#)

In the beginning of August, Sir Thomas Gates, who had been appointed to succeed Sir Thomas Dale, arrived with six ships, and a considerable supply of men and provisions. After receiving this addition to its numbers, the colony again extended itself up James river; and several new settlements were made.

Extravagant accounts of the fertility of Bermuda having reached England, the company became desirous of obtaining it as a place from which Virginia might be supplied with provisions. Application was therefore made to the crown for a new patent, to comprehend this island; 1612New Charter.and, in March, a charter was issued, granting to the treasurer and company all the islands situate in the ocean within three hundred leagues of the coast of Virginia. By this charter, the corporation was essentially new modelled. It was ordained that four general courts of the adventurers should be holden annually, for the determination of affairs of importance, and weekly meetings were directed, for the transaction of

common business. To promote the effectual settlement of the plantation, license was given to open lotteries in any part of England.[\[26\]](#)

These lotteries, which were the first ever drawn in England, brought twenty-nine thousand pounds into the treasury of the company. When they were discontinued, in 1620, on the complaint of the House of Commons, they were declared to have "supplied the real food by which Virginia had been nourished."

About this time an event took place which was followed by important consequences to the colony. Provisions in Jamestown continuing to be scarce, and supplies from the neighbouring Indians, with whom the English were often at war, being necessarily uncertain, captain Argal, with two vessels, was sent round to the Potowmac for a cargo of corn. While obtaining the cargo, he understood that Pocahontas, who had remained steadfast in her attachment to the English, had absented herself from the home of her father, and lay concealed in the neighbourhood. Captain Argal seizes Pocahontas. By bribing some of those in whom she confided Argal prevailed on her to come on board his vessel, where she was detained respectfully, and brought to Jamestown. He was induced to take this step by the hope that the possession of Pocahontas would give the English an ascendancy over her father, who was known to dote on her. In this, however, he was disappointed. Powhatan offered corn and friendship, if they would first restore his daughter, but, with a loftiness of spirit which claims respect, rejected every proposition for conciliation which should not be preceded by that act of reparation.

During her detention at Jamestown, she made an impression on the heart of Mr. Rolf, a young gentleman of estimation in the colony, who succeeded in gaining her affections. They were married with the consent of Powhatan, who was entirely reconciled to the English by that event, and continued, ever after, to be their sincere friend. This connexion led also to a treaty with the Chiccahominies, a brave and daring tribe, who submitted themselves to the English, and became their tributaries.[\[27\]](#)

1613

About the same time, an important change took place in the internal arrangements of the colony.

Heretofore no separate property in lands had been acquired, and no individual had laboured for himself. The lands had been held, cleared, and

cultivated in common, and their produce carried into a common granary, from which it was distributed to all. This system was to be ascribed, in some measure, to the unwise injunction contained in the royal instructions, directing the colonists to trade together for five years in one common stock. Its effect was such as ought to have been foreseen. Industry, deprived of its due reward, exclusive property in the produce of its toil, felt no sufficient stimulus to exertion, and the public supplies were generally inadequate to the public necessities. Separate property in lands. To remove this cause of perpetual scarcity, Sir Thomas Dale divided a considerable portion of land into lots of three acres, and granted one of them, in full property, to each individual. Although the colonists were still required to devote a large portion of labour to the public, a sudden change was made in their appearance and habits. Industry, impelled by the certainty of recompense, advanced with rapid strides; and the inhabitants were no longer in fear of wanting bread, either for themselves, or for the emigrants from England.

[\[28\]](#)

1614

Early in the following year, Sir Thomas Gates returned to England, leaving the government again with Sir Thomas Dale. This gentleman detached captain Argal on an enterprise of which no immediate notice was taken, but which was afterwards recollected with indignation.

The French, who had directed their course to the more northern parts of the continent, had been among the first adventurers to North America. Their voyages of discovery are of a very early date, and their attempts to establish a colony were among the first which were made. After several abortive efforts, a permanent settlement was made in Canada, in the year 1604, and the foundation of Quebec was laid in the year 1608. In November 1603, Henry IV. appointed De Mont lieutenant-general of that part of the territory which he claimed, lying in North America, between the 40th and 46th degrees of north latitude, then called Acadié, with power to colonise and to rule it; and he soon afterwards granted to the same gentleman and his associates, an exclusive right to the commerce of peltry in Acadié and the gulf of St. Lawrence. In consequence of these grants, a settlement was formed in the subsequent year, on that coast, near the river St. Croix; and in 1605, Port Royal was built on a more northern part of the bay of Fundy.

The colony, receiving not much support from France, was feeble and unprosperous, but retained quiet possession of the country. In a time of profound peace, the expedition of Argal was directed against it. He found it totally unprepared for defence. The inhabitants, who had assiduously and successfully cultivated the friendship of the Indians, were scattered abroad in the woods, engaged in their several pursuits; and a ship and bark just arrived from France, laden with articles necessary for the use of the colony, were surprised in port, and their cargoes taken to Jamestown. After the departure of Argal, the French resumed their former station.

The pretext for this predatory expedition was, that the French, by settling in Acadie, had invaded the rights of the English, acquired by the first discovery of the continent.

Argal also paid a visit to New York, then in possession of the Dutch; which country he claimed under the pretext that captain Hudson was an Englishman, and could not transfer the benefit of his discoveries from his sovereign. He demanded possession of the place; and the Dutch governor, being unable to resist, "peaceably submitted both himself and his colony to the King of England, and the governor of Virginia under him," and consented to pay a tribute. Argal then continued his voyage to Jamestown. But another governor soon afterwards arriving from Amsterdam with better means of asserting the title of his nation, the payment of the tribute was refused, and the place put in a state of defence.[\[29\]](#)

Fifty acres of land laid off for each settler.

The advantages resulting to the colony from allowing each individual to labour, in part for himself, having soon become apparent, the system of working in common to fill the public stores, seems to have been totally relinquished; and, not long afterwards, fifty acres of land, promised by the rules of the company to each emigrant, were surveyed and delivered to those having the title.

1615

Tobacco.

About the same time, tobacco was first cultivated in Virginia.

This plant, although detested by the King, who even wrote a pamphlet against it, which he styled a *counter blast*; although discountenanced by the leading members of parliament, and even by the company, who issued edicts against its cultivation; although extremely unpleasant to persons not

accustomed to it, and disagreeable in its effects, surmounted all opposition, and has, by an unaccountable caprice, been brought into general use, and become one of the most considerable staples of America.[\[30\]](#)

1616

Yearly.

In the spring of the following year, Sir Thomas Dale sailed for England, leaving the government in the hands of Mr. George Yearly, who, after a lax administration of one year, was succeeded by captain Argal.

1617

Argal.

Argal was a man of talents and energy, but selfish, haughty, and tyrannical. He continued martial law during a season of peace; and a Mr. Brewster, who was tried under this arbitrary system, for contemptuous words spoken of the governor, was sentenced to suffer death. He obtained with difficulty an appeal to the treasurer and company in England, by whom the sentence was reversed.[\[31\]](#)

While martial law was, according to Stith, the common law of the land, the governor seems to have been the sole legislator. His general edicts mark the severity of his rule. He ordered that merchandise should be sold at an advance of twenty-five *per centum*, and tobacco taken in payment at the rate of three shillings per pound, under the penalty of three years' servitude to the company; that no person should traffic privately with the Indians, or teach them the use of fire arms, under pain of death; that no person should hunt deer or hogs without the governor's permission; that no man should shoot, unless in his own necessary defence, until a new supply of ammunition should arrive, on pain of a year's personal service; that none should go on board the ships at Jamestown, without the governor's leave; that every person should go to church on Sundays and holidays, under the penalty of slavery during the following week for the first offence, during a month for the second, and during a year and a day for the third. The rigour of this administration necessarily exciting much discontent, the complaints of the Virginians at length made their way to the company. Mr. Yearly. Lord Delawar being dead, Mr. Yearly was appointed captain-general, with instructions to examine the wrongs of the colonists, and to redress them.[\[32\]](#)

1619

The new governor arrived in April, and soon after, to the inexpressible joy of the inhabitants, declared his determination to convoke a colonial assembly.

This is an important era in the history of Virginia. Heretofore, all legislative authority had been exercised, either by the corporation in England, or by their officers in the colony. The people had no voice, either personally, or by their representatives, in the government of themselves; and their most important concerns were managed by persons often unacquainted with their situation, and always possessing interests different from theirs. They now felicitated themselves on having really the privileges of Englishmen.

First colonial assembly.

This first assembly met at Jamestown on the 19th of June. The colony being not then divided into counties, the members were elected by the different boroughs, amounting at that time to seven. From this circumstance the popular branch of the legislature received the appellation of the house of burgesses, which it retained until all connexion with England was dissolved.

The assembly, composed of the governor, the council, and burgesses, met together in one apartment, and there discussed the various matters which came before them. The laws then enacted, which, it is believed, are no longer extant, were transmitted to England for the approbation of the treasurer and company.[\[33\]](#)

Although the emigrations from England continued to be considerable, few females had crossed the Atlantic. Men without wives could not consider their residence in the country as permanent, and must intend after amassing some wealth, to return to their native land. To remove this impediment to the population of the colony, First arrival of females, 1620 ninety girls, of humble fortune and spotless character, were transported by the company to Virginia; and in the subsequent year, they were followed by sixty of the same description. They were received by the young planters as a blessing which substituted domestic happiness for the cheerless gloom of solitude; and the face of the country was essentially changed.[\[34\]](#) The prospect of becoming parents was accompanied with the anxieties for the welfare of their children; and the education of youth soon became an object of attention. The necessity of seminaries of learning was

felt, and several steps were taken towards founding the college, afterwards established by William and Mary.

and of convicts.

About the same time the company received orders from the King to convey to Virginia one hundred idle and dissolute persons, then in custody of the knight marshal. These were the first convicts transported to America. The policy which dictated this measure was soon perceived to be not less wise than it was humane. Men who, in Europe, were the pests of the body politic, made an acceptable addition to the stock of labour in the colony; and, in a new world, where the temptations to crime seldom presented themselves, many of them became useful members of society.

Heretofore the commerce of Virginia had been engrossed by the corporation. In the year 1620, this distressing and unprofitable monopoly was given up, and the trade was open to all. The free competition produced by this change of system was of essential advantage to the colony, 1621African slaves.but was the immediate cause of introducing a species of population which has had vast influence on the past, and may affect the future destinies of America, to an extent which human wisdom can neither foresee nor control. A Dutch vessel, availing itself of this commercial liberty, brought into James river twenty Africans, who were immediately purchased as slaves.[\[35\]](#)

Two councils established.

In July, the company passed an ordinance establishing a frame of government for the colony. This instrument provided that there should be two supreme councils in Virginia, the one to be called the Council of State, to be appointed and displaced by the treasurer and company, and to assist the governor with advice on executive subjects; the other to be denominated the General Assembly, and to consist of the governor, the council of state, and burgesses; to be chosen for the present, by the inhabitants of every town, hundred, or settlement, in the colony, two for each. The assembly was empowered to enact general laws for the government of the colony, reserving a negative to the governor. Its acts were not to be in force until confirmed by the general court in England, and the ratification returned under its seal. On the other hand, no order of the general court was to bind the colony until assented to by the assembly.

1622

A controversy concerning the importation of tobacco into the European dominions of the crown, which had for some time existed between the King and the company, was, at length, adjusted.

The King had demanded high duties on that article, while he permitted its importation from the dominions of Spain, and also restrained its direct exportation from Virginia, to the warehouses of the company in Holland, to which expedient his exactions had driven them. It was at length agreed that they should enjoy the sole right of importing that commodity into the kingdom, for which they should pay a duty of nine pence per pound, in lieu of all charges, and that the whole production of the colony should be brought to England.

The industry, population, and produce of the colony, were now greatly increased. At peace with the Indians, they had extended their settlements to the Rappahannock and to the Potowmac. This change of circumstances having rendered it inconvenient to bring all causes to Jamestown before the governor and council, who had heretofore exercised all judicial power in the country, County courts inferior courts were established, to sit in convenient places, in order to render justice more cheap and accessible to the people. Thus originated the county courts of Virginia.

In this year the cup of prosperity, which the colonists had begun to taste, was dashed from their lips by an event which shook the colony to its foundation. In 1618, Powhatan died, and was succeeded, in his dominions and in his influence over all the neighbouring tribes, by Opechancanough, a bold and cunning chief, as remarkable for his jealousy and hatred of the new settlers, as for his qualifications to execute the designs suggested by his resentments. He renewed, however, the stipulations of Powhatan; and, for a considerable time, the general peace remained undisturbed. The colonists, unsuspecting of danger, observed neither the Indians nor their machinations. Engaged entirely in the pursuits of agriculture, they neglected their military exercises, and every useful precaution. Meanwhile, the Indians, being often employed as hunters, were furnished with fire arms, and taught to use them. They were admitted, at all times, freely into the habitations of the English, as harmless visitants, were fed at their tables, and lodged in their chambers. Indian conspiracy to massacre all the whites. During this state of friendly intercourse, the plan of a general massacre, which should involve man, woman, and child, in indiscriminate slaughter, was formed with cold and

unrelenting deliberation. The tribes in the neighbourhood of the English, except those on the eastern shore of the Chesapeake, who were not trusted with the plan, were successively gained over; and, notwithstanding the perpetual intercourse between them and the white people, the most impenetrable secrecy was observed. So deep and dark was their dissimulation, that they were accustomed to borrow boats from the English to cross the river, in order to concert and mature their execrable designs.

The 22d of March was designated as the day on which all the English settlements were to be attacked. The better to disguise their intentions, and to ensure success, they brought, in the preceding evening, deer, turkies, and fish, as presents; and, even on the morning of the massacre, came freely among the whites, behaving in their usual friendly manner, until the very instant which had been appointed for the commencement of the scene of carnage. The fatal hour being arrived, they fell at once on every settlement, and murdered without distinction of age or sex. So sudden was the execution of their plan, that few perceived the weapons, or the approach of the blow, which terminated their existence. Thus, in one hour, and almost in the same instant, fell three hundred and forty-seven men, women and children; most of them by their own plantation tools.

The massacre would have been still more complete, had not information been given, the preceding night, to a Mr. Pace, by an Indian domesticated in his house, and treated as a son, who, being pressed to murder his benefactor, disclosed the plot to him. He immediately carried the intelligence to Jamestown, and the alarm was given to some of the nearest settlements, which were thereby saved. At some other places, too, where the circumstances of the attack enabled the English to seize their arms, the assailants were repulsed.

General war.

This horrible massacre was succeeded by a vindictive and exterminating war, in which the wiles of the Indians were successfully retaliated on themselves. During this disastrous period, many public works were abandoned; the college institution was deserted; the settlements were reduced from eighty to eight; and famine superadded its afflicting scourge to the accumulated distresses of the colony.[\[36\]](#)

As soon as intelligence of these calamitous events reached England, a contribution was made by the adventurers for the relief of the sufferers;

arms from the tower were delivered to the treasurer and company; and several vessels were dispatched with those articles which might best alleviate such complicated distress.

Dissension and dissolution of the company.

But the dissolution of the company was rapidly approaching. That corporation contained many men of the first rank and talents in the nation, who in their assemblies, were in habits of discussing the measures of the crown with the accustomed freedom of a popular body. Two violent factions, which assumed the regular appearance of court and country parties, divided the company, and struggled for the ascendancy. James endeavoured to give the preponderance to the court party, but his endeavours were unsuccessful; and his failure disposed him to listen to complaints against a corporation, whose deliberations he found himself unable to control. To their mismanagement he ascribed the slow progress made by the colony, and the heavy losses that had been sustained.[\[37\]](#)

1623

After hearing both the corporation and their accusers, the privy council determined to issue a commission, appointing persons to be named by the crown, to inquire into the affairs of Virginia from the earliest settlement of the province, and to report thereon to the government. This commission seized the charters, books, and papers of the company; and all letters and packets brought from the colony were ordered to be laid unopened before the privy council. Their report attributed the misfortunes of the colony to the corporation in England; and James, at no time a friend to popular assemblies, communicated to them his resolution to revoke the old charter and grant a new one, which should respect private property, but place power in fewer hands. The requisition that they should assent to this proposition, and surrender their charter, was accompanied with the information that the King was determined, in default of submission, to take such proceedings for recalling their letters patent as might be just. 1624Colony taken into the hands of the King.The company, however, resolutely determined to defend its rights; whereupon a writ of *quo warranto* was instituted in the court of King's Bench, which was decided according to the wishes of the monarch. The company was dissolved, and all its powers were revested in the crown.

Above one hundred and fifty thousand pounds sterling had been expended in planting the colony; and more than nine thousand persons had

been sent from England to people it. Yet, at the dissolution of the company, the annual imports from Virginia did not exceed twenty thousand pounds in value, and the population of the country was reduced to about eighteen hundred persons.

While these things were transacting in England, the war against the Indians was prosecuted in the colony, with vigour and success. The neighbouring hostile tribes were nearly exterminated, and were driven entirely from the rivers, so that the settlements were extended in safety.

In February, the general assembly was once more convened. The several orders which had been previously made by the governor and council, were enacted into laws; and form the oldest legislative rules of action now remaining on record. Among them are various regulations respecting the church of England. But the act best representing the condition of the colonists, is a solemn declaration, "that the governor should not impose any taxes on the colony, otherwise than by the authority of the general assembly; and that he should not withdraw the inhabitants from their private labour to any service of his own." At this session, too, the privilege of exemption from arrest, while the assembly was sitting, was extended to the burgesses. Several other measures were adopted for the correction of abuses; and the laws of that session, generally, are marked with that good sense and patriotism, which are to be expected from men perfectly understanding their own situation, and legislating for themselves.

From this assembly, the royal commissioners endeavoured, in vain, to procure an address to the King, professing "their willingness to submit themselves to his princely pleasure, in revoking the ancient patents;" but a petition was agreed to and transmitted, acknowledging their satisfaction at his having taken the plantation into his more especial care, beseeching him to continue the then form of government, to confirm to Virginia and the Somers isles, the sole importation of tobacco, and soliciting that, if the promised aid of soldiers should be granted them, the governor and assembly might have a voice in directing their operations.

Virginia having thus become a royal government, the King issued a special commission, appointing a governor and twelve councillors, to whom the entire direction of the affairs of the province was committed. No assembly was mentioned, nor was it intended to permit the continuance of that body, for, to the popular shape of the late system, James attributed the

disasters of the colony. But some attention to their interests, was mingled with this subversion of political liberty. Yielding to the petitions of the English parliament and of the colonists, he issued a proclamation prohibiting the growth of tobacco in the kingdom, and the importation of it into England or Ireland, except from Virginia, or the Somers isles, and in vessels belonging to his subjects. His death prevented the completion of a legislative code for the colony, which he had commenced, and which he flattered himself, would remedy all the ills that had been experienced.

Charles I.

Arbitrary measures of the crown.

1625

Charles I. adopted, in its full extent, the colonial system of his father. He committed to Sir George Yeardly, whom he appointed governor of Virginia, and to his council, the whole legislative and executive powers of the colony, with instructions to conform exactly to orders which should be received from him. They were empowered to make laws and to execute them; to impose taxes, and to enforce the payment of them; to seize the property of the late company; and to apply it to the public use; and to transport the colonists to England, to be punished there for crimes committed in Virginia. To complete this hateful system, the crown exacted a monopoly of the tobacco trade, and appointed agents, to whose management that article was entirely committed.[\[38\]](#)

1629

Sir John Harvey.

The full pressure of these arbitrary regulations was not felt till Sir John Harvey, on the death of Sir George Yeardly, was appointed governor of Virginia. The mind of this gentleman is represented by the historians of the day, as having been of a structure to make even tyranny more odious. Rapacious, haughty, and unfeeling, he exercised his powers in the most offensive manner. Respect for his commission, suppressed opposition to his authority for several years. 1636Roused, at length, almost to madness by oppression, the Virginians, in a fit of popular rage, seized their governor, and sent him a prisoner to England, accompanied by two deputies charged with the duty of representing their grievances, and his misconduct.

Charles deemed it necessary to discountenance this summary and violent proceeding, so entirely incompatible with that implicit obedience which he had ever exacted from his subjects. The deputies of the colony were sternly received; no inquiry appears to have been made into the conduct of Harvey; 1637and, early in the succeeding year, he was sent back to Virginia, invested with all his former powers.[\[39\]](#)

The time, however, approached, when a new system of administration was to be adopted. The discontents of the nation, and his own wants, obliged Charles to determine on convening a parliament. He was probably unwilling to increase the ill temper resulting from his maladministration at home, by bringing before the representatives of the people, complaints of the despotism which had been exercised in America.

Sir William Berkeley.

To this change of circumstances may be ascribed the appointment of Sir William Berkeley to succeed Harvey as governor of Virginia. In almost every respect, this gentleman was unlike his predecessor. Highly respectable for his rank and abilities, he was still more distinguished by his integrity, by the mildness of his temper, and by the gentleness of his manners. To complete the satisfaction of the colonists, he was empowered and directed to summon the burgesses of all the plantations, to meet the governor and council in the general assembly, Provincial assembly restored.and thereby to restore to the people their share in the government. These changes had such an effect in Virginia that, when afterward informed of a petition presented in the name of the assembly to parliament, "praying for the restoration of the ancient patents, and corporation government," the general assembly not only transmitted an explicit disavowal of it, but sent an address to the King, expressing their high sense of his favour towards them, and earnestly desiring to continue under his immediate protection. During the civil war, as well as after the establishment of the commonwealth, they continued firm in their attachment to the royal family.

1650

The House of Commons, however, having succeeded in the establishment of its power over England, was not disposed to permit its authority to be questioned in Virginia. An ordinance was passed, declaring that, as the colonies were settled at the cost and by the people of England, "they are and ought to be subordinate to, and dependent on, that nation; and

subject to such law and regulations as are or shall be made by parliament. That in Virginia and other places, the powers of government had been usurped by persons who had set themselves up in opposition to the commonwealth, who were therefore denounced as rebels and traitors; and all foreign vessels were forbidden to enter the ports of any of the English settlements in America." As the men who then governed were not in the habit of making empty declarations, the council of state was empowered to send a fleet to enforce obedience to parliament.[\[40\]](#)

Sir George Ayscue was accordingly detached with a powerful squadron, and was instructed to endeavour, by gentle means, to bring the colonists to obedience; but, if these failed, to use force, and to give freedom to such servants and slaves of those who should resist, as would serve in the troops under his command. 1651 After reducing Barbadoes, and the other islands to submission, the squadron entered the Chesapeake. Berkeley, having hired a few Dutch ships which were then trading to Virginia, made a gallant resistance; but, unable long to maintain so unequal a contest, he yielded to superior force, having first stipulated for a general amnesty. He then withdrew to a retired situation where, beloved and respected by the people, he resided as a private man, until a counter revolution called him, once more, to preside over the colony.[\[41\]](#)

After the revocation of the charter, it became more easy to obtain large grants of land. This circumstance, notwithstanding the tyranny of the provincial government, promoted emigration, and considerably increased the population of the colony. At the commencement of the civil war, Virginia was supposed to contain about twenty thousand souls.[\[42\]](#)

While the ordinance of 1650, forbidding all trade between the colonies and foreign nations, was dispensed with in favour of republican New England, it was rigorously enforced against the loyal colony of Virginia. These restrictions were the more burdensome, because England did not then furnish a sufficient market for all the produce, nor a supply for all the wants of the colonies. This severity was not calculated to detach the affections of the people from the royal family. Their discontents were cherished, too, by the great number of cavaliers who had fled to Virginia after the total defeat of their party in England. Taking advantage of an interregnum occasioned by the sudden death of governor Matthews, the people resolved to throw off their forced allegiance to the commonwealth, and called on Sir William

Berkeley to resume the government. He required only their solemn promise to venture their lives and fortunes with him in support of their King. Charles II. proclaimed in Virginia. This being readily given, Charles II. was proclaimed in Virginia, before intelligence had been received of the death of Cromwell. His restoration was soon afterwards effected in England; and this rash measure not only escaped chastisement, but became a meritorious service of which Virginia long boasted, and which was not entirely forgotten by the Prince.[\[43\]](#)

At the restoration, the colony contained about thirty thousand persons.

One of the causes which, during the government of Harvey, had disquieted Virginia, was the diminution of territory occasioned by grants of great tracts of country lying within the limits of the colony. The most remarkable of these was the grant of Maryland to Lord Baltimore.

Maryland.

In June 1632, Charles I. granted to that nobleman for ever, "that region bounded by a line drawn from Watkin's Point on Chesapeak bay, to the ocean on the east; thence, to that part of the estuary of Delaware on the north, which lieth under the 40th degree, where New England is terminated; thence, in a right line, by the degree aforesaid, to the meridian of the fountain of the Potowmac; thence, following its course, by the farther bank to its confluence." The territory described in this grant was denominated Maryland, and was separated entirely from Virginia. The proprietor was empowered, with the assent of the freemen, or their delegates, whom he was required to assemble for that purpose, to make all laws for the government of the new colony, not inconsistent with the laws of England. Privileges, in other respects analogous to those given to the other colonies, were comprised in this charter; and it is remarkable that it contains no clause obliging the proprietary to submit the laws which might be enacted to the King, for his approbation or dissent; nor any reservation of the right of the crown to interfere in the government of the province.[\[44\]](#)

This is the first example of the dismemberment of a colony, and the creation of another within its original limits, by the mere act of the crown.

The first migration into the new colony consisted of about two hundred gentlemen with their adherents, chiefly Roman Catholics, who sailed from England under Calvert, the brother of the proprietor, in November, 1633 and, early in the following year, landed in Maryland, near the mouth of

the Potowmac. Their first effort was to conciliate the good will of the natives, whose town they purchased, and called St. Mary's. This measure was as wise as it was just. By obtaining the peaceable possession of land already prepared for cultivation, the Marylanders were enabled to raise their food immediately; and this circumstance, together with their neighbourhood to Virginia, where the necessities of life were then raised in abundance, secured them from famine and its concomitant diseases;—afflictions which had swept away such numbers of the first settlers of North America.

The inhabitants of Virginia presented a petition against the grant to Lord Baltimore, which was heard before the privy council in July, 1633. The decision was in favour of the continuance of the patent; leaving to the petitioners their remedy at law. To prevent farther differences, free commerce was permitted between the colonies; and they were enjoined to receive no fugitives from each other; to do no act which might bring on a war with the natives; and on all occasions to assist each other as became fellow subjects of the same state.

1635

Assembly of all the freemen.

In February 1635, the first assembly of Maryland was convened. It appears to have been composed of the whole body of the freemen. Their acts were, most probably, not approved by the proprietor, who transmitted, in turn, for their consideration, a code of laws prepared by himself. 1638 This code was laid before the assembly who rejected it without hesitation, and prepared a body of regulations adapted to their situation. William Clayborne. Among these was an act of attainder against William Clayborne, who was charged with felony and sedition, with having exercised the powers of government within the province without authority, and with having excited the Indians to make war on the colony.[\[45\]](#)

As early as the year 1631, Charles had granted a license to William Clayborne, one of the council and secretary of state of Virginia, "to traffic in those parts of America for which there is already no patent granted for sole trade." To enforce this license, Harvey, then governor of Virginia, had granted his commission also, containing the same powers. Under this license and commission, Clayborne made a small settlement in the isle of Kent, near Annapolis, which he continued to claim; and refused to submit to the jurisdiction of Maryland. Not content with infusing his own turbulent

spirit into the inhabitants of Kent island, he scattered jealousies among the natives, and persuaded them that "the new comers" were Spaniards, and enemies of the Virginians. Having been indicted, and found guilty of murder, piracy, and sedition, he fled from justice; whereupon his estate was seized and confiscated. Clayborne loudly denounced these proceedings as oppressive, and complained of them to his sovereign. At the same time, he prayed for a confirmation of his former license to trade, and for a grant of other lands adjoining the isle of Kent, with power to govern them. The lords commissioners of the colonies, to whom this subject was referred, determined that the lands in question belonged to Lord Baltimore; and that no plantation, or trade with the Indians, within the limits of his patent, ought to be allowed, without his permission. The other complaints made by Clayborne were not deemed proper for the interference of government.

1639

Hitherto, the legislature had been composed of the whole body of the freemen. But the increase of population, and the extension of settlements, having rendered the exercise of the sovereign power by the people themselves intolerably burdensome, an act was passed, in 1639, "for establishing the House of Assembly." This act declared that those elected should be called burgesses, and should supply the place of the freemen who chose them, as do the representatives in the Parliament of England. These burgesses, with others called by special writ, together with the governor and secretary, were to constitute the General Assembly; but the two branches of the legislature were to sit in the same chamber. In 1650, this last regulation was changed; and an act was passed declaring that those called by special writ should form the upper house, while those chosen by the hundreds should compose the lower house; and that bills assented to by both branches of the legislature and by the governor, should be deemed the laws of the province.

Perfect harmony prevailed between the proprietor and the people; and Maryland, attentive to its own affairs, remained in a state of increasing prosperity until the civil war broke out in England. This government, like that of Virginia, was attached to the royal cause; 1641but Clayborne, who took part with the Parliament, found means to intrigue among the people, and to raise an insurrection in the province. Calvert, the governor, was obliged to fly to Virginia for protection; and the insurgents seized the reins

of government. After the suppression of this revolt, and the restoration of tranquillity, an act of general pardon and oblivion was passed, from the benefits of which only a few leading individuals were excepted; but this, like most other insurrections, produced additional burdens on the people which did not so soon pass away. A duty, for seven years, of ten shillings on every hundred weight of tobacco exported in Dutch bottoms, was granted to the proprietor; the one-half of which was appropriated to satisfy claims produced by the recovery and defence of the province.[\[46\]](#)

1651

This state of repose was disturbed by the superintending care of Parliament. In September 1651, commissioners were appointed "for reducing and governing the colonies within the bay of Chesapeake." Among them was Clayborne, the evil genius of Maryland. As the proprietor had acknowledged and submitted to the authority of Parliament, he was permitted to govern the colony in the name of "the keepers of the liberties of England;" but could not long retain the possession of actual authority. The distractions of England, having found their way into Maryland, divided the colonists; and the commissioners supported with their countenance, the faction opposed to the established government. The contentions generated by this state of things, at length broke out in a civil war, which terminated in the defeat of the governor and the Roman Catholics. A new assembly was convened, which, being entirely under the influence of the victorious party, passed an act declaring that none who professed the popish religion could be protected in the province by the laws; that such as profess faith in God by Jesus Christ, although dissenting from the doctrine and discipline publicly held forth, should not be restrained from the exercise of their religion, provided such liberty was not extended to popery, or prelacy, or to such as, under the profession of Christ, practise licentiousness. Other laws in the same spirit were enacted; and a persecution was commenced against the Quakers, as well as against those guilty of popery, and prelacy.

A scene of revolutionary turbulence ensued, in the course of which a resolution was passed declaring the upper house to be useless, which continued in force until the restoration. Philip Calvert was then appointed governor by Lord Baltimore, and the ancient order of things was restored. The colony, notwithstanding these commotions, continued to flourish; and, at the restoration, its population was estimated at twelve thousand souls.

CHAPTER III.

First ineffectual attempts of the Plymouth company to settle the country.... Settlement at New Plymouth.... Sir Henry Rosewell and company.... New charter.... Settlements prosecuted vigorously.... Government transferred to the colonists.... Boston founded.... Religious intolerance.... General court established.... Royal commission for the government of the plantations.... Contest with the French colony of Acadie.... Hugh Peters.... Henry Vane.... Mrs. Hutchinson.... Maine granted to Gorges.... Quo warranto against the patent of the colony.... Religious dissensions.... Providence settled.... Rhode Island settled.... Connecticut settled.... War with the Piquods.... New Haven settled.

1606

The steps by which the first, or southern colony, advanced to a firm and permanent establishment, were slow and painful. The company for founding the second, or northern colony, was composed of gentlemen residing in Plymouth, and other parts of the west of England; was less wealthy, and possessed fewer resources than the first company, which resided in the capital. Their efforts were consequently more feeble, and less successful, than those which were made in the south.[\[47\]](#)

The first vessel fitted out by this company was captured and confiscated by the Spaniards, who, at that time, asserted a right to exclude the ships of all other nations from navigating the American seas. Not discouraged by this misfortune, 1607the company in the following year dispatched two other vessels, having on board about two hundred persons designed to form the proposed settlement. The colonists arrived safely on the American coast in autumn, and took possession of a piece of ground near the river Sagahadoc, where they built fort St. George. Their sufferings during the ensuing winter were extreme. Many of the company, among whom were Gilbert their admiral, and George Popham their president, sank under the diseases by which they were attacked; and the vessels which brought them supplies in the following spring, brought also the information that their

principal patron, Sir John Popham, chief justice of England, was dead. 1608 Discouraged by their losses and sufferings, and by the death of a person on whom they relied chiefly for assistance, the surviving colonists determined to abandon the country, and embark on board the vessels then returning to England. The frightful pictures they drew of the country, and of the climate, deterred the company, for some time, from farther attempts to make a settlement, and their enterprizes were limited to voyages for the purposes of taking fish, and of trading with the natives for furs. 1614 One of these was made by captain Smith, so distinguished in the history of Virginia. Having explored, with great accuracy, that part of the coast which stretches from Penobscot to Cape Cod, he delineated it on a map; which he presented to the young Prince of Wales, with descriptions dictated by a sanguine mind, in which enthusiasm was combined with genius. The imagination of the Prince was so wrought upon by the glowing colours in which Smith painted the country, that he declared it should be called New England, which name it has ever since retained.[\[48\]](#)

The languishing company of Plymouth, however, could not be stimulated to engage in farther schemes of colonisation, the advantages of which were distant and uncertain, while the expense was immediate and inevitable. To a stronger motive than even interest, is New England indebted for its first settlement.

An obscure sect, which had acquired the appellation of Brownists from the name of its founder, and which had rendered itself peculiarly obnoxious by the democracy of its tenets respecting church government, had been driven by persecution to take refuge at Leyden in Holland, where its members formed a distinct society under the care of their pastor, Mr. John Robinson. There they resided several years in safe obscurity. This situation, at length, became irksome to them. Their families intermingled with the Dutch, and they saw before them, with extreme apprehension, the danger of losing their separate identity. Under the influence of these and other causes, they came to the determination of removing in a body to America.

1618

They applied to the London company for a grant of lands; and, to promote the success of their application by the certainty of their emigrating, they said, "that they were well weaned from the delicate milk of their mother country, and inured to the difficulties of a strange land. That they

were knit together in a strict and sacred bond, by virtue of which they held themselves bound to take care of the good of each other, and of the whole. That it was not with them, as with other men, whom small things could discourage, or small discontents cause to wish themselves at home again." The only privilege on which they insisted, was a license under the great seal, to practise and profess religion in that mode, which, under the impulse of conscience, they had adopted. This reasonable and moderate request was refused. James had already established the church of England in Virginia; and, although he promised to connive at their non-conformity, and not to molest them while they demeaned themselves peaceably, he positively refused to give that explicit and solemn pledge of security, which they required. This, for a short time, suspended their removal; but the causes of their discontent in Holland continuing, they, at length, determined to trust to the verbal declarations of the King, and negotiated with the Virginia company for a tract of land within the limits of their patent.[\[49\]](#)

1620

In September, they sailed from England, with only one hundred and twenty men, in a single ship. Their destination was Hudson's river; but the first land they made was Cape Cod. They soon perceived that they were not only beyond their own limits, but beyond those of the company from which they derived their title; but it was now the month of November, and consequently too late in the season again to put to sea in search of a new habitation. Settlement at New Plymouth. After exploring the coast, they chose a position for their station, to which they gave the name of New at New Plymouth. On the 11th of November, before landing, a solemn covenant was signed by the heads of families, and freemen, in which, after reciting that they had undertaken to plant a colony for the glory of God, and for the honour of their King and country, and professing their loyalty to their sovereign Lord King James, they combined themselves into a body politic, for the purpose of making equal laws for the general good.[\[50\]](#)

Having thus formed a compact, the obligation of which all admitted, they proceeded to the choice of a governor for one year; and to enable him the better to discharge the trust confided to him, they gave him one assistant. In 1624, three others were added; and the number was afterwards increased to seven. The supreme power resided in, and, during the infancy of the colony, was exercised by, the whole body of the male inhabitants. They assembled

together, occasionally, to determine on all subjects of public concern; nor was a house of representatives established until the year 1639. They adopted the laws of England as a common rule of action, adding occasionally municipal regulations. Some of the changes in their penal code strongly marked their character and circumstances. While only a moderate fine was imposed on forgery, fornication was punished with whipping, and adultery with death.[\[51\]](#)

Misguided by their religious theories, they fell into the same error which had been committed in Virginia, and, in imitation of the primitive Christians, threw all their property into a common stock, laboured jointly for the common benefit, and were fed from the common stores. This regulation produced, even in this small and enthusiastic society, its constant effect. They were often in danger of starving; and severe whipping, administered to promote labour, only increased discontent.

The colonists landed at a season of the year which was unfavourable to the establishment of a new settlement. The winter, which was intensely cold, had already commenced; and they were not in a condition to soften its rigours. Before the return of spring, fifty of them perished with maladies increased by the hardships to which they were exposed, by the scarcity of food, and by the almost total privation of those comforts to which they had been accustomed. The survivors, as the season moderated, encountered new difficulties. Their attention to the means of providing for their future wants was interrupted by the necessity of taking up arms to defend themselves against the neighbouring savages. Fortunately for the colonists, the natives had been so wasted by pestilence, the preceding year, that they were easily subdued, and compelled to accept a peace, on equitable terms.

The colonists were supported, under these multiplied distresses, by the hope of better times, and by that high gratification which men exasperated by persecution and oppression, derived from the enjoyment of the rights of conscience, and the full exercise of the powers of self-government. From their friends in England, they received occasional but scanty supplies; and continued to struggle against surrounding difficulties, with patience and perseverance. They remained in peace, alike exempt from the notice and oppression of government. Yet, in consequence of the unproductiveness of their soil, and their adherence to the pernicious policy of a community of

goods and of labour, they increased more slowly than the other colonies; and, in the year 1630, amounted to only three hundred souls.

Until the year 1630, they possessed no other title to their lands than is derived from occupancy. In that year they obtained a grant from the New Plymouth company, but were never incorporated as a body politic by royal charter. Having received no powers from the parliament or King, and being totally disregarded by the Plymouth company, they remained a mere voluntary association, yielding obedience to laws, and to magistrates, formed and chosen by themselves. In this situation they continued undisturbed, and almost unknown, more tolerant and more moderate than their neighbours, until their union with a younger, and more powerful sister, who advanced with a growth unusually rapid to a state of maturity.[\[52\]](#)

The original company of Plymouth, having done nothing effectual towards settling the territory which had been granted to them, and being unable to preserve the monopoly of their trade and fisheries, applied to James for a new and more enlarged patent. On the 3d of November, he granted that territory which lies between the 40th and 48th degrees of north latitude to the Duke of Lenox, the Marquis of Buckingham, and several others, in absolute property; and incorporated them under the name of "the council established at Plymouth, for planting and governing that country called New England;" with jurisdiction and powers similar to those which had before been conferred on the companies of south and north Virginia, and especially that of excluding all other persons whatever from trading within their boundaries and fishing in the neighbouring seas. This improvident grant, which excited the indignation of the people of England, then deeply interested in the fur trade and fisheries, soon engaged the attention, and received the censure of parliament. The patentees were compelled to relinquish their odious monopoly; and, being thus deprived of the funds on which they had relied to furnish the expense of supporting new settlements, they abandoned the design of attempting them. New England might have remained long unoccupied by Europeans, had not the same causes, which occasioned the emigration of the Brownists, still continued to operate. The persecution to which the puritans were exposed, increased their zeal and their numbers. In despair of obtaining at home a relaxation of those rigorous penal statutes under which they had long smarted, they looked elsewhere for that toleration which was denied them in their native land. Understanding that their brethren in New Plymouth were permitted to

worship their creator according to the dictates of conscience, their attention was directed towards the same coast; and several small emigrations were made, at different times, to Massachusetts bay; so termed from the name of the Sachem who was sovereign of the country.

1627

Mr. White, a non-conforming minister at Dorchester, formed an association of several gentlemen, who had imbibed puritanical opinions, for the purpose of conducting a colony to the bay of Massachusetts, and rendering it an asylum for the persecuted of his own persuasion. In prosecution of these views, a treaty was concluded with the council of Plymouth for the purchase of part of New England; Sir Henry Rosewell and others. and that corporation, in March 1627, sold to Sir Henry Rosewell and others, all that part of New England lying three miles to the south of Charles river, and three miles north of Merrimack river, and extending from the Atlantic to the South sea. A small number of planters and servants were, soon afterwards, dispatched under Endicot, who, in September, laid the foundation of Salem, the first permanent town in Massachusetts.[\[53\]](#)

The purchasers perceived their inability to accomplish the settlement of the extensive regions they had acquired, without the aid of more opulent partners. These were soon found in the capital; but they required that a new charter should be obtained from the crown, comprehending their names, which should confirm the grant to the council of Plymouth, and confer on the grantees the powers of government. So seldom is man instructed by the experience of others, that, disregarding the lessons furnished by Virginia, they likewise required that the supreme authority should be vested in persons residing in London. 1628The proprietors having acceded to these requisitions, application was made to Charles for a patent conforming to them, which issued on the 4th day of March, 1628.

This charter incorporated the grantees by the name of "The governor and company of Massachusetts bay in New England."

The whole executive power was vested in a governor, a deputy governor, and eighteen assistants; to be named, in the first instance, by the crown, and afterwards elected by the company. The governor, and seven, or more, of the assistants, were authorised to meet in monthly courts, for the dispatch of such business as concerned the company, or settlement. The legislative power was vested in the body of the proprietors, who were to assemble four

times a year in person, under the denomination of the general court; and besides electing freemen, and the necessary officers of the company, were empowered to make ordinances for the good of the community, and the government of the plantation and its inhabitants; provided they should not be repugnant to the laws of England. Their lands were to be holden in free and common soccage; and the same temporary exemption from taxes, and from duties on exports and imports, which had been granted to the colony of Virginia, was accorded to them. As in the charter of Virginia, so in this, the colonists and their descendants were declared to be entitled to all the rights and privileges of natural born subjects.

The patent being obtained, the governor and council engaged with ardour in the duties assigned them. To support the expenses of a fresh embarkation, it was resolved that every person subscribing fifty pounds, should be entitled to two hundred acres of land as the first dividend. Five vessels sailed in May, carrying about two hundred persons, who reached Salem in June. At that place they found Endicot, to whom they brought a confirmation of his commission as governor. The colony consisted of three hundred persons, one hundred of whom removed to Charlestown.

Religion, which had stimulated them to remove from their native land, became the first object of their care in the country they had adopted. Being zealous puritans, they concurred in the institution of a church, establishing that form of policy, which has since been denominated independent. A confession of faith was drawn up to which the majority assented; and an association was formed in which they covenanted with the Lord, and with each other, to walk together in all his ways, as he should be pleased to reveal himself to them. Pastors, and other ecclesiastical officers, were chosen, who were installed into their sacred offices, by the imposition of the hands of the brethren.[\[54\]](#)

A church being thus formed, several were received as members who gave an account of their faith and hope as Christians; and those only were admitted into the communion, whose morals and religious tenets were approved by the elders.[\[55\]](#)

Pleased with the work of their hands, and believing it to be perfect, they could tolerate no difference of opinion. Just escaped from persecution, they became persecutors themselves. Some few of their number, attached to the ritual of the church of England, were dissatisfied with its total abolition;

and, withdrawing from communion with the church, met apart, to worship God in the manner they deemed most proper. At the head of this small number were two of the first patentees, who were also of the council. 1629 They were called before the governor, who, being of opinion that their non-conformity and conversation tended to sedition, sent them to England. The opposition ceased when deprived of its leaders.[\[56\]](#)

The following winter brought with it the calamities which must be uniformly sustained by the first emigrants into a wilderness, where the cold is severe, and the privations almost universal. In the course of it, nearly half their number perished, "lamenting that they did not live to see the rising glories of the faithful." The fortitude, however, of the survivors, was not shaken; nor were their brethren in England deterred from joining them. Religion supported the colonists under all their difficulties; and the intolerant spirit of the English hierarchy diminished, in the view of the puritans in England, the dangers and the sufferings to be encountered in America; and disposed them to forego every other human enjoyment, for the consoling privilege of worshipping the Supreme Being according to their own opinions. Many persons of fortune determined to seek in the new world that liberty of conscience which was denied them in the old; but, foreseeing the misrule inseparable from the residence of the legislative power in England, they demanded, as preliminary to their emigration, that the powers of government should be transferred to New England, and be exercised in the colony. The company had already incurred expenses for which they saw no prospect of a speedy reimbursement; and although they doubted the legality of the measure, were well disposed by adopting it, to obtain such important aid. Government transferred to Massachusetts bay. A general court was therefore convened, by whom it was unanimously resolved "that the patent should be transferred, and the government of the colony removed from London to Massachusetts bay." It was also agreed that the members of the corporation remaining in England, should retain a share in the trading stock and profits for the term of seven years.[\[57\]](#)

1630

Such was the effect of this revolution in the system of government, that, early in the following year, fifteen hundred persons, among whom were several of family and fortune, embarked, at an expense of upwards of twenty thousand pounds, and arrived at Salem in July. Boston

founded. Dissatisfied with this situation, they explored the country in quest of better stations; and, settling in many places around the bay, they laid the foundation of several towns, and, among others, of Boston.

The difficulty of obtaining subsistence, the difference of their food from that to which they had been accustomed, the intense cold of the winter, against which sufficient provision was not yet made, were still severely felt by the colonists, and still carried many of them to the grave; but that enthusiasm which had impelled them to emigrate, preserved all its force; and they met, with a firm unshaken spirit, the calamities which assailed them. 1631 Our admiration of their fortitude and of their principles, sustains, however, some diminution from observing the sternness with which they denied to others that civil and religious liberty which, through so many dangers and hardships, they sought for themselves. Their general court decreed that none should be admitted as freemen, or permitted to vote at elections, or be capable of being chosen as magistrates, or of serving as jurymen, but such as had been received into the church as members. Thus did men who had braved every hardship for freedom of conscience, deny the choicest rights of humanity, to all those who dissented from the opinion of the majority on any article of faith, or point of church discipline.

The numerous complaints of the severities exercised by the government of Massachusetts, added to the immense emigration of persons noted for their enthusiasm, seem, at length, to have made some impression on Charles; 1633 and an order was made by the King in council, to stop the ships at that time ready to sail, freighted with passengers for New England. This order, however, seems never to have been strictly executed, as the emigrations continued without any sensible diminution.

Hitherto the legislature had been composed of the whole body of the freemen. Under this system, so favourable to the views of the few who possess popular influence, the real power of the state had been chiefly engrossed by the governor and assistants, aided by the clergy. The emigration, however, having already been considerable, and the settlements having become extensive, it was found inconvenient, if not impracticable, longer to preserve a principle which their charter enjoined. 1634 In the year 1634, by common consent, the people elected delegates who met the governor and council, and constituted the general court. This important improvement in their system, rendered familiar, and probably suggested, by

the practice in the mother country, although not authorised by the charter, remained unaltered, so long as that charter was permitted to exist.[58]

Commission for the government of the plantations.

The colony of Massachusetts having been conducted, from its commencement, very much on the plan of an independent society, at length attracted the partial notice of the jealous administration in England; 1635 and a commission for "the regulation and government of the plantations" was issued to the great officers of state, and to some of the nobility, in which absolute power was granted to the archbishop of Canterbury and to others, "to make laws and constitutions concerning either their state public, or the utility of individuals." The commissioners were authorised to support the clergy by assigning them "tithes, oblations, and other profits, according to their discretion; to inflict punishment on those who should violate their ordinances; to remove governors of plantations, and to appoint others; and to constitute tribunals and courts of justice, ecclesiastical and civil, with such authority and form as they should think proper;" but their laws were not to take effect until they had received the royal assent, and had been proclaimed in the colonies. The commissioners were also constituted a committee to hear complaints against a colony, its governor or other officers, with power to remove the offender to England for punishment. They were farther directed to cause the revocation of such letters patent, granted for the establishment of colonies, as should, upon inquiry, be found to have been unduly obtained, or to contain a grant of liberties hurtful to the royal prerogative.[59]

From the first settlement at Salem, the colony of Massachusetts had cultivated the friendship of their neighbours of New Plymouth. The bonds of mutual amity were now rendered more strict, not only by some appearances of a hostile disposition among the natives, but by another circumstance which excited alarm in both colonies.

The voyages for discovery and settlement, made by the English and French, to the coast of North America, having been nearly cotemporaneous, their conflicting claims soon brought them into collision with each other. The same lands were granted by the sovereigns of both nations; and, under these different grants, actual settlements had been made by the French as far south and west as St. Croix, and, by the English, as far north and east as Penobscot. During the war with France, which broke out early in the reign

of Charles I., that monarch granted a commission to captain Kirk for the conquest of the countries in America occupied by the French; under which, in 1629, Canada and Acadie were subdued; but, by the treaty of St. Germain, those places were restored to France without any description of their limits; and Fort Royal, Quebec, and Cape Breton, were severally surrendered by name. In 1632, a party of French from Acadie committed a robbery on a trading house established at Penobscot by the people of New Plymouth. With the intelligence of this fact, information was also brought that cardinal Richelieu had ordered some companies to Acadie, and that more were expected the next year, with priests, Jesuits, and other formidable accompaniments, for a permanent settlement. The governor of Acadie established a military post at Penobscot, and, at the same time wrote to the governor of New Plymouth stating, that he had orders to displace the English as far as Pemaquid. Not being disposed to submit quietly to this invasion of territory, the government of New Plymouth undertook an expedition for the recovery of the fort at Penobscot, consisting of an English ship of war under the command of captain Girling, and a bark with twenty men belonging to the colony. The garrison received notice of this armament, and prepared for its reception by fortifying and strengthening the fort; in consequence of which Girling, after expending his ammunition and finding himself too weak to attempt the works by assault, applied to Massachusetts for aid. That colony agreed to furnish one hundred men, and to bear the expense of the expedition by private subscription; but a sufficient supply of provisions, even for this small corps, could not be immediately obtained, and the expedition was abandoned. Girling returned, and the French retained possession of Penobscot till 1654. The apprehensions entertained of these formidable neighbours contributed, in no small degree, to cement the union between Massachusetts and Plymouth.

[60]

Two persons, afterwards distinguished in English annals, arrived this year in Boston. One was Hugh Peters, the coadjutor and chaplain of Oliver Cromwell; the other was Mr. Henry Vane, the son of Sir Henry Vane, who was, at that time a privy councillor of great credit with the King. 1636The mind of this young gentleman was so deeply imbued with the political and religious opinions of the puritans, that he appeared ready to sacrifice, for the enjoyment of them, all his bright prospects in his native land. His mortified exterior, his grave and solemn deportment, his reputation for piety

and wisdom, his strong professions of attachment to liberty and to the public good, added to his attention to some of the leading members in the church, won rapidly the affections of the people, and he was chosen their governor.

His administration commenced with more external pomp than had been usual, or would seem to be congenial either with his own professions, or with the plain and simple manners of the people whom he governed. When going to court or church, he was always preceded by two sergeants who walked with their halberts. Yet his popularity sustained no diminution, until the part he took in the religious controversies of the country detached from him many of its most judicious inhabitants.[\[61\]](#)

Independent of the meetings for public worship on every Sunday, of the stated lecture in Boston on every Thursday, and of occasional lectures in other towns, there were frequent meetings of the brethren of the churches, for religious exercises. Mrs. Hutchinson, who had been much flattered by the attentions of the governor, and of Mr. Cotton, one of the most popular of the clergy; who added eloquence to her enthusiasm, and whose husband was among the most respected men of the country; dissatisfied with the exclusion of her sex from the private meetings of the brethren, instituted a meeting of the sisters also, in which she repeated the sermons of the preceding Sunday, accompanied with remarks and expositions. These meetings were attended by a large number of the most respectable of her sex; and her lectures were, for a time, generally approved. At length she drew a distinction between the ministers through the country. She designated a small number as being under a covenant of grace; the others, as being under a covenant of works. Contending for the necessity of the former, she maintained that sanctity of life is no evidence of justification, or of favour with God; and that the Holy Ghost dwells personally in such as are justified. The whole colony was divided into two parties, equally positive, on these abstruse points, whose resentments against each other threatened the most serious calamities. Mr. Vane espoused, with zeal, the wildest doctrines of Mrs. Hutchinson, and Mr. Cotton decidedly favoured them. The lieutenant governor Mr. Winthrop, and the majority of the churches, were of the opposite party. Many conferences were held; days of fasting and humiliation were appointed; a general synod was called; and, after violent dissensions, Mrs. Hutchinson's opinions were condemned as erroneous, and she was banished. Many of her disciples followed her. Vane,

in disgust, quitted America; unlamented even by those who had lately admired him. He was thought too visionary; and is said to have been too enthusiastic even for the enthusiasts of Massachusetts.

The patentees, having no common object to prosecute, resolved to divide their lands; and, in the expectation of receiving a deed of confirmation for the particular portion which fortune should allot to each, cast lots, in the presence of James, for the shares each should hold in severalty. They continued, however, to act some years longer as a body politic, during which time, they granted various portions of the country to different persons; and executed under the seal of the corporation, deeds of feoffment for the lots drawn by each member of the company; patents of confirmation for which were solicited, but appear to have been granted only to Gorges, for Maine. The charter was surrendered by the company and accepted by the crown.[\[62\]](#)

1637

Charles, in pursuance of his determination to take the government of New England into his own hands, issued a proclamation directing that none should be transported thither who had not the special license of the crown, which should be granted to those only who had taken the oaths of supremacy and allegiance, and had conformed to the discipline of the church of England. This order, however, could not be completely executed; and the emigrations, which were entirely of non-conformists, still continued. Those who were disgusted with the ceremonials rigidly exacted in England, estimated so highly the simple frame of church policy established in Massachusetts, that numbers surmounted every difficulty, to seek an asylum in this new Jerusalem. Among them were men of the first political influence and mental attainments. Pym, Hampden, Hazlerig, and Cromwell, with many others who afterwards performed a conspicuous part in that revolution which brought the head of Charles to the block, are said to have been actually on board a vessel prepared to sail for New England, and to have been stopped by the special orders of the privy council.[\[63\]](#)

1638

The commissioners for the regulation and government of the plantations having reported that Massachusetts had violated its charter, a writ of *quo warranto* was issued, on which judgment was given in favour of the crown. The process was never served on any member of the corporation; and it is

therefore probable that the judgment was not final. The privy council however ordered the governor and company to send their patent to England to be surrendered. The general court answered this order by a petition to the commissioners in which they said, "we dare not question your Lordship's proceedings in requiring our patent to be sent unto you; we only desire to open our griefs; and if in any thing we have offended his Majesty or your Lordships, we humbly prostrate ourselves at the foot stool of supreme authority; we are sincerely ready to yield all due obedience to both; we are not conscious that we have offended in any thing, as our government is according to law; we pray that we may be heard before condemnation, and that we may be suffered to live in the wilderness." Fortunately for the colonists, Charles and his commissioners found too much employment at home, to have leisure for carrying into complete execution, a system aimed at the subversions of what was most dear to the hearts of Americans.

To the religious dissensions which distracted Massachusetts, and to the rigour with which conformity was exacted, is to be attributed the first settlement of the other colonies of New England. As early as the year 1634, Roger Williams, a popular preacher at Salem, who had refused to hold communion with the church at Boston, because its members refused to make a public declaration of their repentance for having held communion with the church of England during their residence in that country, was charged with many exceptionable tenets. Among several which mark his wild enthusiasm, one is found in total opposition, to the spirit of the times and to the severity of his other doctrines. He maintained, that to punish a man for any matter of conscience is persecution, and that even papists and Arminians are entitled to freedom of conscience in worship, provided the peace of civil society be secured. The divines of Massachusetts, in opposition to this doctrine, contended that they did not persecute men for conscience, but corrected them for sinning against conscience; and so they did not persecute, but punish heretics. This unintelligible sophism not convincing Williams, he was, for this, and for his other heresies, banished by the magistrates, as a disturber of the peace of the church, and of the commonwealth.



Plymouth, Massachusetts, in 1622

From the painting by W.L. Williams

Here, under Governor Bradford, who directed their destiny for a precarious quarter of a century, the Pilgrim Fathers strove desperately to maintain a foothold in America, and several times were on the point of abandoning the enterprise. To such straits were they reduced, in 1622, a year after the death of Governor Carter, that half rations were doled out, and when, in May of that year, a ship arrived from England bearing encouraging letters to the Pilgrims, but no substantial supplies, Governor Bradford remarked bitterly: "All this is but cold comfort to fill hungry bellies."

Many of his disciples followed him into exile, and, travelling south until they passed the line of Massachusetts, purchased a tract of land of the Narragansetts, then a powerful tribe of Indians, where, in 1635, Providence settled. they made a settlement to which they gave the name of Providence. After fixing the place of their future residence, they entered into a voluntary association, and framed a government composed of the whole body of freemen. After the manner of Massachusetts, they created a church by collecting a religious society; but, as one of the causes of their migration had been the tenet that all were entitled to freedom of conscience

in worship, entire toleration was established. The new settlers cultivated with assiduity the good will of the natives, with whom a long peace was preserved.[\[64\]](#)

The banishment of Williams was soon followed by that of Mrs. Hutchinson. Rhode Island settled. She was accompanied by many of her disciples, who, pursuing the steps of Williams, and, arriving in his neighbourhood, purchased a tract of land from the same tribe, and founded Rhode Island. Imitating the conduct of their neighbours, they formed a similar association for the establishment of civil government, and adopted the same principles of toleration. In consequence of this conduct the island soon became so populous as to furnish settlers for the adjacent shores.[\[65\]](#)

1634

Connecticut too is a colony of Massachusetts. As early as the year 1634, several persons, among whom was Mr. Hooker, a favourite minister of the church, applied to the general court of Massachusetts for permission to pursue their fortunes in some new and better land. This permission was not granted at that time; and, it being then the received opinion that the oath of a freeman, as well as the original compact, bound every member of the society so as not to leave him the right to separate himself from it without the consent of the whole, this emigration was suspended. The general court, however, did not long withhold its assent. Connecticut settled. The country having been explored, and a place selected on the west side of the river Connecticut, a commission was granted to the petitioners to remove, on the condition of their still continuing under the jurisdiction of Massachusetts, some few huts had been erected the preceding year in which a small number of emigrants had wintered; and, the fall succeeding, about sixty persons traversed the wilderness in families. 1636 In 1636, about one hundred persons, led by Pynchon, Hooker, and Haynes, followed the first emigrants, and founded the towns of Hartford, Springfield, and Weathersfield. There are some peculiarities attending this commission and this settlement, which deserve to be noticed.

The country to be settled was, confessedly, without the limits of Massachusetts; yet Roger Ludlow was authorised to promulgate the orders which might be necessary for the plantations; to inflict corporal punishment, imprisonment, and fines; to determine all differences in a judicial way; and to convene the inhabitants in a general court, if it should

be necessary. This signal exercise of authority grew out of the principle, solemnly asserted by the general court of Massachusetts, that the oath of fidelity to the commonwealth was binding, although the person should no longer reside within its limits.

There were other difficulties attending the title of the settlers. The Dutch at Manhadoes, or New York, claimed a right to the river, as its first discoverers. In addition to this hostile title, Lord Say and Seal, and Lord Brooke, with some others, contemplating a retreat in the new world from the despotism with which England was threatened, had made choice of Connecticut river for that purpose, and had built a fort at its mouth, called Saybrooke. The emigrants from Massachusetts, however, kept possession; and proceeded to clear and cultivate the country. They purchased the rights of Lord Say and Seal, and Lord Brooke, and their partners; and the Dutch, being too feeble to maintain their title by the sword, gradually receded from the river. The emigrants, disclaiming the authority of Massachusetts, entered into a voluntary association for the establishment of a government, which, in its form, was like those established in the other colonies of New England. The principal difference between their constitution and that of Massachusetts was, that they imparted the right of freemen to those who were not members of the Church.[\[66\]](#)

These new establishments gave great and just alarm to the Piquods, a powerful tribe of Indians on the south of Massachusetts. They foresaw their own ruin in this extension of the English settlements; and the disposition excited by this apprehension soon displayed itself in private murders, and other acts of hostility. With a policy suggested by a strong sense of danger, they sought a reconciliation with the Narraghansetts, their ancient enemies and rivals; and requested them to forget their long cherished animosities, and to co-operate cordially against a common enemy whose continuing encroachments threatened to overwhelm both in one common destruction. Noticing the rapid progress of the English settlements, they urged, with reason, that, although a present friendship subsisted between the Narraghansetts and the new comers, yet all, in turn, must be dispossessed of their country, and this dangerous friendship could promise no other good than the wretched privilege of being last devoured.

These representations could not efface from the bosoms of the Narraghansetts, that deep rooted enmity which neighbours, not bound

together by ligaments of sufficient strength to prevent reciprocal acts of hostility, too often feel for each other. Dreading still less the power of a foreign nation, than that of men with whom they had been in the habit of contending, they not only refused to join the Piquods, but communicated their proposition to the government of Massachusetts, with whom they formed an alliance against that tribe. War with the Piquods. Open war being resolved on by both parties, Captain Underhill was sent to the relief of fort Saybrooke which had been besieged by the Indians; and the three colonies, Massachusetts, Plymouth, and Connecticut, agreed to march their united forces into the country of the Piquods, to effect their entire destruction. The troops of Connecticut were first in motion. Those of Massachusetts were detained by the controversy concerning the covenant of works, and of grace, which had insinuated itself into all the transactions of that colony. Their little army, when collected, found itself divided by this metaphysical point; and the stronger party, believing that the blessing of God could not be expected to crown with success the arms of such unhallowed men as their opponents in faith on this question, refused to march until their small band was purified by expelling the unclean, and introducing others whose tenets were unexceptionable.

While this operation was performing, the troops of Connecticut, reinforced by a body of friendly Indians and by a small detachment from Saybrooke, determined to march against the enemy. The Piquods had taken two positions which they had surrounded with palisadoes, and had resolved to defend. The nearest was on a small eminence surrounded by a swamp near the head of Mystic river. Against this fort the first attack was made. The Indians, deceived by a movement of the vessels from Saybrooke to Narraghansett, believed the expedition to have been abandoned; and celebrated, in perfect security, the supposed evacuation of their country. About day-break, while they were asleep, the English approached, and the surprise would have been complete, had they not been alarmed by the barking of a dog. They immediately gave the war whoop, and flew undismayed to arms. The English rushed to the attack, forced their way through the works, and set fire to the Indian wigwams. The confusion soon became general, and almost every man was killed or taken.

Soon after this action, the troops of Massachusetts arrived, and it was resolved to pursue the victory. Several skirmishes terminated unfavourably to the Piquods; and, in a short time, they received another total defeat,

which put an end to the war. A few only of this once powerful nation survived, who, abandoning their country, dispersed themselves among the neighbouring tribes, and were incorporated with them.[\[67\]](#)

This vigorous essay in arms of the New England colonists impressed on the Indians a high opinion of their courage and military superiority; but their victory was sullied with cruelties which cannot be recollected without mingled regret and censure.

1638

Immediately after the termination of this war New Haven was settled.

A small emigration from England conducted by Eaton and Davenport, arrived at Boston in June. Unwilling to remain where power and influence were already in the hands of others, they refused to continue within the jurisdiction of Massachusetts; New Haven settled, and, disregarding the threats at Manhadoes, settled themselves west of Connecticut river, on a place which they named New Haven. Their institutions, civil and ecclesiastical, were in the same spirit with those of their elder sister, Massachusetts.

The colony was now in a very flourishing condition. Twenty-one thousand two hundred emigrants had arrived from England; and, although they devoted great part of their attention to the abstruse points of theology which employed the casuists of that day, they were not unmindful of those solid acquisitions which permanently improve the condition of man. Sober, industrious, and economical, they laboured indefatigably in opening and improving the country, and were unremitting in their efforts to furnish themselves with those supplies which are to be drawn from the bosom of the earth. Of these, they soon raised a surplus for which fresh emigrants offered a profitable market; and their foreign trade in lumber, added to their fish and furs, furnished them with the means of making remittances to England for those manufactures which they found it advantageous to import. Their fisheries had become so important as to attract the attention of government. For their encouragement, a law was passed exempting property employed in catching, curing, or transporting fish, from all duties and taxes, and the fishermen, and ship builders, from militia duty. By the same law, all persons were restrained from using cod or bass fish for manure.

CHAPTER IV.

Massachusetts claims New Hampshire and part of Maine.... Dissensions among the inhabitants.... Confederation of the New England colonies.... Rhode Island excluded from it.... Separate chambers provided for the two branches of the Legislature.... New England takes part with Parliament.... Treaty with Acadié.... Petition of the non-conformists.... Disputes between Massachusetts and Connecticut.... War between England and Holland.... Machinations of the Dutch at Manhadoes among the Indians.... Massachusetts refuses to join the united colonies in the war.... Application of New Haven to Cromwell for assistance.... Peace with the Dutch.... Expedition of Sedgewic against Acadié.... Religious intolerance.

1639

The government of Massachusetts, induced by the rapidity with which the colony had attained its present strength to form sanguine hopes of future importance, instituted an inquiry into the extent of their patent, with a view to the enlargement of territory. To facilitate this object, commissioners were appointed to explore the Merrimack, and to ascertain its northernmost point. The charter conveyed to the grantees all the lands within lines to be drawn three miles south of Charles river, and the same distance north of the Merrimack. Massachusetts claims New Hampshire and part of Maine. The government construed this description as authorising a line to be drawn due east from a point three miles north of the head of Merrimack, which soon leaves that river, and includes all New Hampshire, and a considerable part of Maine. In pursuance of this exposition of the charter, the general court asserted its jurisdiction over New Hampshire, in which there were a few scattered habitations, and proceeded to authorise settlements in that country.

[\[68\]](#)

The attempts which had been made to colonise the northern and eastern parts of New England had proved almost entirely unsuccessful. Sir Ferdinando Gorges and John Mason had built a small house at the mouth of

Piscataqua, about the year 1623; and, nearly at the same time, others erected a few huts along the coast from Merrimack eastward to Sagadahock for the purpose of fishing. In 1631, Gorges and Mason sent over a small party of planters and fishermen under the conduct of a Mr. Williams, who laid the foundation of Portsmouth.

When the Plymouth company divided New England among its members, that territory lying along the coast from Merrimack river, and for sixty miles into the country to the river Piscataqua, was granted to Mason, and was called New Hampshire; that territory northeastward of New Hampshire, to the river Kennebec, and sixty miles into the country, was granted to Sir Ferdinando Gorges. In 1639, Gorges obtained a patent for this district under the name of Maine, comprehending the lands for one hundred, instead of sixty miles, into the country, together with the powers of sovereignty. He framed a system of government which, being purely executive, could not even preserve itself. After struggling with a long course of confusion, and drawing out, for several years, a miserable political existence, Maine submitted itself to the jurisdiction of Massachusetts, and consented to become a part of that colony. In the course of the years 1651 and 1652, this junction was effected, and Maine was erected into a county, the towns of which sent deputies to the general court at Boston. To this county was conceded the peculiar privilege that its inhabitants, although not members of the church, should be entitled to the rights of freemen on taking the oath.

[\[69\]](#)

The settlements in New Hampshire, too, were maintaining only a doubtful and feeble existence, when they drew a recruit of inhabitants from the same causes which had peopled Rhode Island and Connecticut.

1637

In 1637, when Mrs. Hutchinson and other Antinomians were exiled, Mr. Wheelright, her brother in law, a popular preacher, was likewise banished. He carried with him a considerable number of his followers; and, just passing the north-eastern boundary of Massachusetts, planted the town of Exeter. These emigrants immediately formed themselves, according to the manner of New England, into a body politic for their own government.

1640

A few persons arrived soon afterwards from England, and laid the foundation of the town of Dover. They also established a distinct

government. Their first act proved to be the source of future discord. The majority chose one Underbill as governor; but a respectable minority was opposed to his election. To this cause of discontent was added another of irresistible influence. They were divided on the subject of the covenant of works, and of grace. These dissensions soon grew into a civil war, which was happily terminated by Williams, who was, according to the practice of small societies torn by civil broils, invited by the weaker party to its aid. He marched from Portsmouth at the head of a small military force; and, banishing the governor, and the leaders of the Antinomian faction, restored peace to this distracted village.

Massachusetts had asserted a right over this territory. Her claim derived aid, not only from the factions which agitated these feeble settlements, but also from the uncertainty of the tenure by which the inhabitants held their lands. Only the settlers at Portsmouth had acquired a title from Mason; and the others were, consequently, unfriendly to his pretensions. These causes produced a voluntary offer of submission to the government of Massachusetts, which was accepted; and the general court passed an order, declaring the inhabitants of Piscataqua to be within their jurisdiction, with the privileges of participating in all their rights, and of being exempted from all "public charges, other than those which shall arise for, or among themselves, or from any action, or course that may be taken for their own good or benefit." Under the protecting wing of this more powerful neighbour, New Hampshire attained the growth which afterwards enabled her to stand alone; and long remembered with affection the benefits she had received.[\[70\]](#)

Charles, environed with difficulties arising from his own misrule, was at length compelled to meet his Parliament; and, in November, the great council of the nation was again assembled. The circumstances which had caused such considerable emigrations to New England, existed no longer. The puritans were not only exempt from persecution, but became the strongest party in the nation; and, from this time, New England is supposed to have derived no increase of population from the parent state.[\[71\]](#)

Confederation of the New England colonies.

About the same period many evidences were given of a general combination of the neighbouring Indians against the settlements of New England; and apprehensions were also entertained of hostility from the

Dutch at Manhadoes. A sense of impending danger suggested the policy of forming a confederacy of the sister colonies for their mutual defence; and so confirmed had the habit of self-government become since the attention of England was absorbed in her domestic dissensions, that it was not thought necessary to consult the parent state on this important measure. 1643After mature deliberation, articles of confederation were digested; and in May 1643, they were conclusively adopted.[\[72\]](#)

By them the united colonies of New England, viz. Massachusetts, Plymouth, Connecticut, and New Haven, entered into a firm and perpetual league, offensive and defensive.

Each colony retained a distinct and separate jurisdiction; no two colonies could join in one jurisdiction without the consent of the whole; and no other colony could be received into the confederacy without the like consent.

The charge of all wars was to be borne by the colonies respectively, in proportion to the male inhabitants of each, between sixteen and sixty years of age.

On notice of an invasion given by three magistrates of any colony, the confederates were immediately to furnish their respective quotas. These were fixed at one hundred from Massachusetts, and forty-five from each of the other parties to the agreement. If a larger armament should be found necessary, commissioners were to meet, and ascertain the number of men to be required.

Two commissioners from each government, being church members, were to meet annually on the first Monday in September. Six possessed the power of binding the whole. Any measure approved by a majority of less than six was to be referred to the general court of each colony, and the consent of all was necessary to its adoption.

They were to choose annually a president from their own body, and had power to frame laws or rules of a civil nature, and of general concern. Of this description were rules which respected their conduct towards the Indians, and measures to be taken with fugitives from one colony to another.

No colony was permitted, without the general consent, to engage in war, but in sudden and inevitable cases.

If, on any extraordinary meeting of the commissioners, their whole number should not assemble, any four who should meet were empowered to determine on a war, and to call for the respective quotas of the several colonies; but not less than six could determine on the justice of the war, or settle the expenses, or levy the money for its support.

If any colony should be charged with breaking an article of the agreement, or with doing an injury to another colony, the complaint was to be submitted to the consideration and determination of the commissioners of such colonies as should be disinterested.[\[73\]](#)

This union, the result of good sense, and of a judicious consideration of the real interests of the colonies, remained in force until their charters were dissolved. Rhode Island excluded from it. Rhode Island, at the instance of Massachusetts, was excluded; and her commissioners were not admitted into the congress of deputies which formed the confederation.

On her petitioning at a subsequent period to be received as a member, her request was refused, unless she would consent to be incorporated with Plymouth. This condition being deemed inadmissible, she never was taken into the confederacy. From the formation of this league, its members were considered by their neighbours as one body with regard to external affairs, and such as were of general concern; though the internal and particular objects of each continued to be managed by its own magistrates and legislature.

The vigorous and prudent measures pursued by the united colonies, disconcerted the plans of the Indians, and preserved peace.

Rhode Island and Providence plantations, excluded from the general confederacy, were under the necessity of courting the friendship of the neighbouring Indians. So successful were their endeavours that, in the year 1644, they obtained from the chiefs of the Narragansetts a formal surrender of their country.[\[74\]](#)

The first general assembly, consisting of the collective freemen of the plantations, was convened in May, 1647. In this body the supreme authority of the nation resided. The executive duties were performed by a governor and four assistants, chosen from among the freemen by their several towns; and the same persons constituted also the supreme court for the administration of justice. Every township, forming within itself a

corporation, elected a council of six, for the management of its peculiar affairs, and for the settlement of its disputes.[\[75\]](#)

1644

Hitherto the governor, assistants, and representatives, of Massachusetts had assembled in the same chamber, and deliberated together. At first their relative powers do not seem to have been accurately understood; nor the mode of deciding controverted questions to have been well defined. The representatives being the most numerous body, contended that every question should be decided by a majority of the whole, while the assistants asserted their right to a negative. More than once, this contest suspended the proceedings of the general court. But the assistants having, with the aid of the clergy, succeeded on each occasion, the representatives yielded the point, and moved that separate chambers should be provided for the two branches of the legislature. This motion being carried in the affirmative, their deliberations were afterwards conducted apart from each other.

This regulation was subsequently modified with respect to judicial proceedings; for the legislature was the court of the last resort. If, in these, the two houses differed, the vote was to be taken conjointly.

New England takes part with Parliament.

In England, the contests between the King and Parliament, at length ripened into open war. The colonies of New England took an early and sincere part on the side of Parliament. Their interests were committed to such agents as might best conciliate the favour of the House of Commons, who, in return, manifested the impression received from them, and from the general conduct of their northern colonies, by passing a resolutions exempting from the payment of "duties or other customs," until the house should order otherwise, all merchandises exported to or from New England. [\[76\]](#) And, in 1644, the general court passed an ordinance declaring "that what person soever shall by word, writing, or action, endeavour to disturb our peace directly or indirectly by drawing a party under pretence that he is for the King of England, and such as join with him against the Parliament, shall be accounted as an offender of a high nature against this commonwealth, and to be proceeded with either capitally or otherwise, according to the quality and degree of his offence; provided always that this shall not be extended against any merchants, strangers and shipmen that come hither merely for trade or merchandise, albeit they should come from

any of those parts that are in the hands of the King, and such as adhere to him against the Parliament; carrying themselves here quietly, and free from railing, or nourishing any faction, mutiny, or sedition among us as aforesaid."[\[77\]](#)

These manifestations of mutual kindness were not interrupted by an ordinance of Parliament, passed in 1643, appointing the earl of Warwick, governor in chief and lord high admiral of the colonies, with a council of five peers, and twelve commoners, to assist him; and empowering him, in conjunction with his associates, to examine the state of their affairs; to send for papers and persons; to remove governors and officers, appointing others in their places; and to assign over to them such part of the powers then granted as he should think proper. Jealous as were the people of New England of measures endangering their liberty, they do not appear to have been alarmed at this extraordinary exercise of power. So true is it that men close their eyes on encroachments committed by that party to which they are attached, in the delusive hope that power, in such hands, will always be wielded against their adversaries, never against themselves.

This prosperous state of things was still farther improved by a transaction which is the more worthy of notice as being an additional evidence of the extent to which the colonies of New England then exercised the powers of self-government. Treaty with Acadié. A treaty of peace and commerce was entered into between the governor of Massachusetts, styling himself governor of New England, and Monsieur D'Aulney, lieutenant general of the King of France in Acadié. This treaty was laid before the commissioners for the colonies and received their sanction.

1646

The rigid adherence of Massachusetts to the principle of withholding the privilege of a freeman from all who dissented from the majority in any religious opinion, could not fail to generate perpetual discontents. Petition of the non-conformists. A petition was presented to the general court, signed by several persons highly respectable for their situation and character, but, not being church members, excluded from the common rights of society, complaining that the fundamental laws of England were not acknowledged by the colony; and that they were denied those civil and religious privileges to which they were entitled, as freeborn Englishmen, of good moral conduct. Their prayer to be admitted to the rights, or to be relieved from the

burdens, of society, was accompanied with observations conveying a very intelligible censure on the proceedings of the colony, and a threat of applying to Parliament, should the prayer of their petition be rejected.

The most popular governments not being always the most inclined to tolerate opinions differing from those of the majority, this petition gave great offence, and its signers were required to attend the court. Their plea, that the right to petition government was sacred, was answered by saying that they were not accused for petitioning, but for using contemptuous and seditious expressions. They were required to find sureties for their good behaviour; and, on refusing to acknowledge their offence, were fined at the discretion of the court. An appeal from this decision having been refused, they sent deputies to lay their case before Parliament; but the clergy exerted themselves on the occasion; and the celebrated Cotton, in one of his sermons, asserted "that if any should carry writings or complaints against the people of God in that country to England, it would be as Jonas in the ship." A storm having risen during the passage, the mariners, impressed with the prophecy of Cotton, insisted that the obnoxious papers should be thrown overboard; and the deputies were constrained to consign their credentials to the waves. On their arrival in England, they found Parliament but little disposed to listen to their complaints. The agents of Massachusetts had received instructions to counteract their efforts; and the governments of New England were too high in favour, to admit of a rigid scrutiny into their conduct.[\[78\]](#)

In some of the internal dissensions which agitated Massachusetts, Winthrop, a man of great influence, always among their first magistrates, and often their governor, was charged while deputy governor with some arbitrary conduct. He defended himself at the bar, in the presence of a vast concourse of people; and, having been honourably acquitted, addressed them from the bench, in a speech which was highly approved.

As this speech tends to illustrate the political opinions of the day, an extract from it may not be unworthy of regard. "The questions," he said, "which have troubled the country of late, and from which these disturbances in the state have arisen, have been about the authority of the magistrate and the liberty of the people. Magistracy is certainly an appointment from God. We take an oath to govern you according to God's law, and our own; and if we commit errors, not willingly, but for want of skill, you ought to bear

with us, because, being chosen from among yourselves, we are but men, and subject to the like passions as yourselves. Nor would I have you mistake your own liberty. There is a freedom of doing what we list, without regard to law or justice; this liberty is indeed inconsistent with authority; but civil, moral, and federal liberty, consists in every man's enjoying his property, and having the benefit of the laws of his country; which is very consistent with a due subjection to the civil magistrate. And for this you ought to contend, with the hazard of your lives." [\[79\]](#)

During the remnant of his life, he was annually chosen governor.

1649

About this time, a controversy which had long subsisted between Massachusetts, and Connecticut, was terminated. The latter, for the purpose of maintaining Saybrooke, had laid a duty on all goods exported from Connecticut river. The inhabitants of Springfield, a town of Massachusetts lying on the river, having refused to pay this duty, the cause was laid before the commissioners of the united colonies; and, after hearing the parties, those of Plymouth and New Haven adjourned the final decision of the case until the next meeting, in order to hear farther objections from Massachusetts, but directed that, in the meantime, the duty should be paid.

At the meeting in 1648, Massachusetts insisted on the production of the patent of Connecticut. It was perfectly well known that the original patent could not be procured; and the agents for Connecticut, after stating this fact, offered an authentic copy. The commissioners recommended that the boundary line should be run, to ascertain whether Springfield was really in Massachusetts, but still directed that the duty should continue to be paid. On this order being made, the commissioners of Massachusetts produced a law of their general court, reciting the controversy, with the orders which had been made in it, and imposing a duty on all goods belonging to the inhabitants of Plymouth, Connecticut, or New Haven, which should be imported within the castle, or exported from any part of the bay, and subjecting them to forfeiture for non-payment. The commissioners remonstrated strongly against this measure, and recommended it to the general court of Massachusetts, seriously to consider whether such proceedings were reconcilable with "the law of love," and the tenor of the articles of confederation. In the meantime, they begged to be excused from "all farther agitations concerning Springfield."

In this state of the controversy fort Saybrooke was consumed by fire, and Connecticut forbore to re-build it, or to demand the duty. In the following year, Massachusetts repealed the ordinance which had so successfully decided the contest.[\[80\]](#)

Thus does a member of a confederacy, feeling its own strength, and the weakness of those with whom it is associated, deride the legitimate decisions of the federal body, when opposed to its own interest or passions, and obey the general will, only when that will is dictated by itself.

Although, while civil war raged in the mother country, New England had been permitted to govern itself as an independent nation, Parliament seems to have entertained very decisive opinions respecting the subordination of the provinces, and its own controlling power. The measures taken for giving effect to these opinions, involved all the colonies equally. The council of state was authorised to displace governors and magistrates, and to appoint others. Massachusetts was required to take a new patent, and to hold its courts, not in the name of the colony, but in the name of the Parliament. 1651The general court, unwilling to comply with these requisitions, transmitted a petition to Parliament, styling that body "the supreme authority," and expressing for it the highest respect. They stated their uniform attachment to Parliament during the civil war, the aid they had given, and the losses they had sustained. After speaking of the favours they had received, they expressed the hope "that it will not go worse with them than it did under the late King; and that the frame of this government will not be changed, and governors and magistrates imposed on them against their will." They declared, however, their entire submission to the will of Parliament; and, avowing for that body the most zealous attachment, prayed a favourable answer to their humble petition.

But the united colonies had lately given great umbrage by supplying Virginia and Barbadoes, then enemies of the commonwealth, with warlike stores and other commodities. It was also matter of real complaint that their exemption from the payment of duties enabled them to enrich themselves at the expense of others; and a revocation of their privileges in this respect was seriously contemplated. Yet the requisitions concerning their charter were never complied with, and do not appear to have been repeated.[\[81\]](#)

In this year, war was declared by England against Holland. The united colonies, accustomed to conduct their affairs in their own way, did not think

themselves involved in this contest, unless engaged in it by some act of their own. The Dutch at Manhadoes, too weak to encounter their English neighbours, solicited the continuance of peace; and, as the trade carried on between them was mutually advantageous, this request was readily granted. 1653Machinations of the Dutch with the Indians.Intelligence however was soon brought by the Indians, that the Dutch were privately inciting them to a general confederacy for the purpose of extirpating the English. This intelligence gave the more alarm, because the massacre at Amboyna was then fresh in the recollection of the colonists. An extraordinary meeting of the commissioners was called at Boston, who were divided in opinion with regard to the propriety of declaring war. In consequence of this division, a conference was held before the general court and several elders of Massachusetts. The elders, being requested to give their opinion in writing, stated "that the proofs and presumptions of the execrable plot, tending to the destruction of so many of the dear saints of God, imputed to the Dutch governor, and the fiscal, were of such weights as to induce them to believe the reality of it; yet they were not so fully conclusive as to clear up a present proceeding to war before the world, and to bear up their hearts with that fullness of persuasion which was mete, in commending the case to God in prayer, and to the people in exhortations; and that it would be safest for the colonies to forbear the use of the sword; but advised to be in a posture of defence until the mind of God should be more fully known either for a settled peace, or more manifest grounds of war."[\[82\]](#) With this opinion of the elders, the vote of the general court concurred.

The intelligence of the practices of the Dutch governor with the Indians becoming more certain, all the commissioners except Mr. Bradstreet of Massachusetts, declared in favour of war. Their proceedings were immediately interrupted by a declaration of the general court of Massachusetts, that no determination of the commissioners, although they should be unanimous, should bind the general court to join in an offensive war which should appear to be unjust. A serious altercation ensued, in the course of which the other colonies pressed the war as a measure essential to their safety; but Massachusetts adhered inflexibly to its first resolution. This additional evidence of the incompetency of their union to bind one member, stronger than all the rest, threatened a dissolution of the confederacy; and that event seems to have been prevented only by the inability of the others to stand alone. Alarmed at their situation, and irritated by the conduct of

their elder sister, Connecticut and New Haven represented Cromwell, then lord protector of England, the danger to which the colonies were exposed from the Dutch and the Indians; and the hazard the smaller provinces must continue to incur, unless the league between them could be maintained and executed according to its true intent, and the interpretation which its articles had uniformly received.

With his usual promptness and decision, Cromwell detached a small armament for the reduction of the Dutch colony, and recommended to Massachusetts to furnish aid to the expedition. Although the legitimate requisitions of the government of the union had been ineffectual, the recommendation of the lord protector was not to be disregarded; and the general court passed a resolution conforming to it. 1654A treaty of peace, which was signed in April, saved the Dutch colony.[\[83\]](#)

The progress of the French in their neighbourhood had been viewed with regret and apprehension by all New England. Expedition against Acadié.Sedgewic, the commander of the forces which had been destined against Manhadoes, animated with the vigour of his master, was easily prevailed on to turn his arms against a people, whose religious tenets he detested, and whose country he hated. He soon dislodged the French from Penobscot, and subdued all Acadié. 1655The ministers of his most christian majesty, pending the negotiations for the treaty of Westminster, demanded restitution of the forts Pentagoet, St. Johns, and Port Royal; but, each nation having claims on the country, their pretensions were referred to the arbitrators appointed to adjust the damages committed on either side since the year 1640; and the restitution of Acadié was postponed for future discussion.

1656

Cromwell seems not to have intended to restore the countries he had conquered. He granted to St. Etienne, Crown and Temple, for ever, the territory denominated Acadié, and part of the country commonly called Nova Scotia, extending along the coast to Pentagoet, and to the river St. George.

Until the restoration, the colonies of New England continued in a state of unexampled prosperity. Those regulations respecting navigation, which were rigorously enforced against others less in favour, were dispensed with for their benefit. They maintained external peace by the vigour and sagacity

with which their government was administered; and, improved the advantages which the times afforded them by industry and attention to their interests. In this period of prosperity, they acquired a degree of strength and consistence which enabled them to struggle through the difficulties that afterwards assailed them.

These sober industrious people were peculiarly attentive to the instruction of youth. Education was among the first objects of their care. In addition to private institutions, they had brought the college at Cambridge to a state of forwardness which reflects much credit on their character. As early as the year 1636, the general court had bestowed four hundred pounds on a public school at Newtown, the name by which Cambridge was then known. Two years afterwards, an additional donation was made by the reverend Mr. John Harvard, in consequence of which the institution received the name of Harvard college. In 1642, this college was placed under the government of the governor, and deputy governor, and of the magistrates, and ministers of the six next adjacent towns, who, with the president were incorporated for that purpose; and, in 1650, its first charter was granted.[\[84\]](#)

It is to be lamented that the same people possessed a degree of bigotry in religion, and a spirit of intolerance, which their enlightened posterity will view with regret. During this period of prosperity, the government maintained the severity of its institutions against all those who dissented from the church; and exerted itself assiduously in what was thought the holy work of punishing heretics, and introducing conformity in matters of faith. In this time, the sect denominated Quakers appeared. They were fined, imprisoned, whipped, and, at length put to death; but could not be totally suppressed. As enthusiastic as their persecutors, they gloried in their sufferings, and deemed themselves the martyrs of truth.

CHAPTER V.

Transactions succeeding the restoration of Charles II.... Contests between Connecticut and New Haven.... Discontents in Virginia.... Grant to the Duke of York.... Commissioners appointed by the crown.... Conquest of the Dutch settlements.... Conduct of Massachusetts to the royal commissioners.... Their recall.... Massachusetts evades a summons to appear before the King and council.... Settlement of Carolina.... Form of government.... Constitution of Mr. Locke.... Discontents in the county of Albemarle.... Invasion from Florida.... Abolition of the constitution of Mr. Locke.... Bacon's rebellion.... His death.... Assembly deprived of judicial power.... Discontents in Virginia.... Population of the colony.

1660

The restoration of Charles II. was soon known in America, and excited, in the different colonies very different emotions. In Virginia, and in Maryland, the intelligence was received with transport, and the King was proclaimed amidst acclamations of unfeigned joy. In Massachusetts, the unwelcome information was heard with doubt, and in silence. Republicans in religion and in politics, all their affections were engaged in favour of the revolutionary party in England, and they saw, in the restoration of monarchy, much more to fear than to hope for themselves. Nor were they mistaken in their forebodings.

No sooner was Charles seated on the throne, than Parliament voted a duty of five *per centum* on all merchandises exported from, or imported into, any of the dominions belonging to the English crown; and, in the course of the same session the celebrated navigation act was re-enacted. The difficulty of carrying this system into execution among a distant people, accustomed to the advantages of a free trade, was foreseen; and the law directed that the governors of the several plantations should, before entering into office, take an oath faithfully to observe it.[\[85\]](#)

As some compensation to the colonists for these commercial restraints, it was also enacted that no tobacco should be planted or made in England or Ireland, Guernsey, or Jersey. These regulations confined the trade of the colonies to England; and confined on them, exclusively, the production of tobacco.

Charles, on ascending the throne, transmitted to Sir William Berkeley a commission as governor of Virginia, with instructions to summon an assembly, and to assure it of his intention to grant a general pardon to all persons, other than those who were attainted by act of Parliament; provided all acts passed during the rebellion, derogating from the obedience due to the King and his government, should be repealed.

1661

The assembly, which had been summoned in March 1660, in the name of the King, though he was not then acknowledged in England, and which had been prorogued by the governor to the following March, then convened, and engaged in the arduous task of revising the laws of the colony. One of the motives assigned for this revision strongly marks the temper of the day. It is that they may "repeal and expunge all unnecessary acts, and chiefly such as might keep in memory their forced deviation from his majesty's obedience."[\[86\]](#)

This laborious work was accomplished; and, in its execution, the first object of attention was religion. The church of England was established by law, and provision was made for its ministers. To preserve the purity and unity of its doctrines and discipline, those only who had been ordained by some bishop in England, and who should subscribe an engagement to conform to the constitution of the church of England and the laws there established, could be inducted by the governor: and no others were permitted to preach. The day of the execution of Charles I. was ordered to be kept as a fast; and the anniversaries of the birth, and of the restoration of Charles II. to be celebrated as holy days. The duties on exports and tonnage were rendered perpetual; the privilege of the burgesses from arrest was established, and their number fixed; the courts of justice were organised; and many useful laws were passed, regulating the interior affairs of the colony.[\[87\]](#)

An effort was made to encourage manufactures, especially that of silk. For each pound of that article which should be raised, a premium of fifty pounds of tobacco was given; and every person was enjoined to plant a number of mulberry trees proportioned to his quantity of land, in order to furnish food for the silk worm. But the labour of the colony had been long directed to the culture of tobacco, and Indian corn; and new systems of culture can seldom be introduced until their necessity becomes apparent.

This attempt to multiply the objects of labour did not succeed, and the acts on the subject were soon repealed.

In Maryland, the legislature was also convened, and, as in Virginia, their first employment was to manifest their satisfaction with the restoration; after which they entered upon subjects of general utility.

Rhode Island, excluded from the confederacy of the other New England colonies, and dreading danger to her independence from Massachusetts, was well pleased at the establishment of an authority which could overawe the strong, and protect the weak. Charles II. was immediately proclaimed; 1662 Rhode Island incorporated, and an agent was deputed to the court of that monarch, for the purpose of soliciting a patent, confirming the right of the inhabitants to the soil, and jurisdiction of the country. The object of the mission was obtained, and the patentees were incorporated by the name of "The governor and company of the English colony of Rhode Island and Providence." The legislative power was vested in an assembly to consist of the governor, deputy governor, the assistants, and such of the freemen as should be chosen by the towns. The presence of the governor or his deputy, and of six assistants, was required to constitute an assembly. They were empowered to pass laws adapted to the situation of the colony, and not repugnant to those of England. "That part of the dominions of the crown in New England containing the islands in Narragansetts bay, and the countries and parts adjacent," was granted to the governor and company and their successors, with the privilege to pass through, and trade with, any other English colonies.[\[88\]](#)

In Connecticut, the intelligence of the restoration was not attended by any manifestation of joy or sorrow. Winthrop was deputed to attend to the interests of the colony; Patent to Connecticut, and, in April, 1662, he obtained a charter incorporating them by the name of "The governor and company of the English colony of Connecticut in New England." The executive, as in the other colonies of New England, consisted of a governor, deputy governor, and assistants. The legislature was composed of the members of the executive, and of two deputies from every town. It was authorised to appoint annually the governor, assistants, and other officers; to erect courts of justice, and to make such laws as might be necessary for the colony, with the usual proviso, that they should not be contrary to those of England. To this corporation, the King granted that part of his dominions

in New England, bounded, on the east, by Narragansetts bay, on the north, by the southern line of Massachusetts, on the south, by the sea, and extending in longitude from east to west, with the line of Massachusetts, to the south sea.

1663

Contest between Connecticut and New Haven.

By this charter, New Haven was, without being consulted, included in Connecticut. The freemen of that province, dissatisfied with this measure, determined in general meeting, "that it was not lawful to join;" and unanimously resolved to adhere to their former association. A committee was appointed to address the assembly of Connecticut on this interesting subject. They insisted, not that the charter was void, but that it did not include them.

A negotiation between the two provinces was commenced, in which the people of New Haven maintained their right to a separate government with inflexible perseverance, and with a considerable degree of exasperation. They appealed to the crown from the explanation given by Connecticut to the charter; and governor Winthrop, the agent who had obtained that instrument, and who flattered himself with being able, on his return, to conciliate the contending parties, deemed it advisable to arrest all proceeding on their petition, by pledging himself that no injury should be done to New Haven by Connecticut; and that the incorporation of the two colonies should be effected only by the voluntary consent of both.

The government of Connecticut, however, still persisting to assert its jurisdiction, attempted to exercise it by claiming obedience from the people, appointing constables in their towns, disavowing the authority of the general court of New Haven, and protecting those who denied it. Complaints of these proceedings were laid before the commissioners of the united colonies, who declared that New Haven was still an integral member of the union, and that its jurisdiction could not be infringed without a breach of the articles of confederation.

Disregarding this decision, Connecticut pursued unremittingly, the object of incorporation. The inhabitants of New Haven were encouraged to refuse the payment of taxes imposed by their legislature; and, when distress was made on the disobedient, assistance was obtained from Hartford. These proceedings seemed only to increase the irritation on the part of New

Haven, where a deep sense of injury was entertained, and a solemn resolution taken to break off all farther treaty on the subject.

This state of things was entirely changed by a piece of intelligence which gave the most serious alarm to all New England. Information was received that the King had granted to his brother, the duke of York, all the lands claimed by the Dutch, to which he had annexed a considerable part of the territory over which the northern colonies had exercised jurisdiction; and that an armament for the purpose of taking possession of the grant might soon be expected. To this it was added, that commissioners were to come at the same time, empowered to settle the disputes, and to new model the governments, of the colonies.

The commissioners of the united colonies, perceiving the necessity of accommodating internal differences, now took a decided part in favour of the proposed incorporation. The most intelligent inhabitants of New Haven became converts to the same opinion; but the prejudices imbibed by the mass of the people being still insurmountable, a vote in favour of the union could not be obtained.

At length, after the arrival of the commissioners appointed by the crown, and a manifestation of their opinion in favour of the incorporation; after a long course of negotiation which terminated in a compact establishing certain principles of equality required by the jealousy of New Haven; the union was completed, and the representatives of the two colonies met in the same assembly.

During the frequent changes which took place in England after the death of Cromwell, Massachusetts preserved a cautious neutrality; and seemed disposed to avail herself of any favourable occurrences, without exposing herself to the resentments of that party which might ultimately obtain the ascendancy. Although expressly ordered, she did not proclaim Richard as lord-protector; nor did she take any step to recognise the authority of Parliament. The first intelligence of the restoration of Charles was received with the hesitation of men who are unwilling to believe a fact too well supported by evidence to be discredited; and when they were informed of it in a manner not to be questioned, they neither proclaimed the King, nor manifested, by any public act, their admission of his authority. This was not the only testimony of their dissatisfaction. Whaley and Goff, two of the judges of Charles I., came passengers in the vessel which brought this

intelligence, and were received with distinction by the government, and with affection by the people.[\[89\]](#)

In a session of the general court, held in October, 1660, an address to the King was moved; but reports of the yet unsettled state of the kingdom being received, the motion did not prevail. They had seen so many changes in the course of a few months, as to think it not improbable that an address to the King might find the executive power in the hands of a committee of safety, or council of state. This uncertain state of things was not of long continuance. In November, a ship arrived from Bristol, bringing positive advices of the joyful and universal submission of the nation to the King, with letters from their agent, and from others, informing them that petitions had been presented against the colony, by those who thought themselves aggrieved by its proceedings. The time for deliberation was passed. A general court was convened, and a loyal address to the King was voted, in which, with considerable ability, though in the peculiar language of the day, they justified their whole conduct; and, without abandoning any opinion concerning their own rights, professed unlimited attachment to their sovereign. A similar address was made to Parliament; and letters were written to those noblemen who were the known friends of the colony, soliciting their interposition in its behalf. A gracious answer being returned by the King, a day of thanksgiving was appointed to acknowledge their gratitude to Heaven for inclining the heart of his majesty favourably to receive and answer their address.

Their apprehensions, however, of danger from the revolution in England still continued. Reports prevailed that their commercial intercourse with Virginia and the islands was to be interdicted; and that a governor-general might be expected whose authority should extend over all the colonies. On this occasion, the general court came to several resolutions, respecting the rights of the people, and the obedience due from them, which are strongly expressive of their deliberate opinions on these interesting subjects.

It was resolved,

That the patent (under God) is the first and main foundation of the civil polity of the colony.

That the governor and company are, by the patent, a body politic, invested with the power to make freemen.

That the freemen have authority to choose annually a governor, deputy governor, assistants, representatives, and all other officers.

That the government thus constituted hath full power, both legislative and executive, for the government of all the people, whether inhabitants or strangers, without appeals; save only in the case of laws repugnant to those of England.

That the government is privileged by all means, even by force of arms, to defend itself both by land and sea, against all who should attempt injury to the plantation or its inhabitants, and that in their opinion, any imposition prejudicial to the country, contrary to any just law of theirs, (not repugnant to the laws of England) would be an infringement of their rights.[\[90\]](#)

These strong and characteristic resolutions were accompanied by a recognition of the duties to which they were bound by their allegiance. These were declared to consist, in upholding that colony as belonging of right to his majesty, and not to subject it to any foreign prince; in preserving his person and dominions; and in settling the peace and prosperity of the King and nation, by punishing crimes, and by propagating the Gospel.[\[91\]](#)

It was, at the same time, determined that the royal warrant, which had been received sometime before, for apprehending Whaley and Goff, ought to be faithfully executed. These persons however were permitted to escape to Connecticut, where they were received with every demonstration of regard, and to remain during life in New England, only taking care not to appear in public.

At length, in August 1661, it was determined to proclaim the King; but, as if unable to conceal the reluctance with which this step was taken, an order was made, on the same day, prohibiting all disorderly behaviour on the occasion, and, in particular, directing that no man should presume to drink his majesty's health, "which," adds the order, "he hath in a special manner forbid."

Farther intelligence being received from England of the increasing complaints against the government of Massachusetts, agents were deputed with instructions to represent the colonists as loyal and obedient subjects, to remove any ill impressions that had been made against them, and to learn the disposition of his majesty toward them; but to do nothing which might prejudice their charter.

The agents, who engaged reluctantly in a service from which they rightly augured to themselves censure rather than approbation, were received more favourably than had been expected. They soon returned with a letter from the King, confirming their charter, and containing a pardon for all treasons committed during the late troubles, with the exception of those only who were attainted by act of Parliament. But the royal missive also required that the general court should review its ordinances, and repeal such of them as were repugnant to the authority of the crown; that the oath of allegiance should be taken by every person; that justice should be administered in the King's name; that all who desired it, should be permitted to use the book of common prayer, and to perform their devotions according to the ceremonials of the church of England; and that freeholders of competent estates, not vicious, should be allowed to vote in the election of officers, though they were of different persuasions in church government.[\[92\]](#)

These requisitions gave much disquiet; and that alone seems ever to have been complied with which directed judicial proceedings to be carried on in the name of the King. The agents on their return were ill received by the people; and were considered as having sacrificed the interests of their country, because, with the agreeable, were mingled some bitter though unavoidable ingredients.

During these transactions, the Parliament of England proceeded to complete its system of confining the trade of the colonies to the mother country. It was enacted that no commodity of the growth or manufacture of Europe, shall be imported into the settlements of England, in Asia, Africa, or America, but such as shall be shipped in England, and proceed directly in English bottoms, navigated by Englishmen. Salt for the fisheries, wine from Madeira and the Azores; and servants, horses, and victuals, from Scotland and Ireland, were excepted from this general rule.

To counterbalance these restrictions, duties were imposed on salted and dried fish caught or imported by other vessels than those belonging to subjects of the crown; and additional regulations were made for enforcing the prohibition of the culture of tobacco in England.

These commercial restrictions were the never failing source of discontent and controversy between the mother country and her colonies. Even in those of the south, where similar restraints had been enforced by Cromwell, they were executed imperfectly; but, in New England, where the governors

were elected by the people, they appear to have been, for some time, entirely disregarded.[\[93\]](#)

Discontents in Virginia.

The good humour which prevailed in Virginia on the restoration of Charles to the throne, was not of long duration. The restraints on commerce, and the continually decreasing price of tobacco, soon excited considerable discontents. The legislature endeavoured, by prohibiting its culture for a limited time, to raise its value; but, Maryland refusing to concur in the measure, the attempt was unsuccessful. Other legislative remedies were applied with as little advantage. Acts were passed suspending all proceedings in the courts of law, except for goods imported; giving to country creditors priority in payment of debts; and to contracts made within the colony, precedence in all courts of justice. Such expedients as these have never removed the discontents which produced them.

The English government seems, at all times, to have questioned the right of the Dutch to their settlements in America; and never to have formally relinquished its claim to that territory. Charles now determined to assert it; 1664Grant to the duke of York.and granted to his brother the duke of York "all that part of the main land of New England, beginning at a certain place called and known by the name of St. Croix, next adjoining to New England in America, and from thence extending along the sea coast unto a certain place called Pemaquie, or Pemaquid, and so up the river thereof to the farthest Head of the same, as it tendeth northward; and extending from thence to the river Kernbequin, and so upwards by the shortest course to the river Canada northward; and also all that island or islands commonly called by the general name or names of Meitowax, or Long Island, situate and being towards the west of Cape Cod, and the narrow Highgansetts, abutting upon the main land between the two rivers there called and known by the several names of Connecticut and Hudson's river, and all the land from the west side of Connecticut river to the east side of Delaware bay, and also all those several islands called or known by the names of Martha's Vineyard or Nantucks, otherwise Nantucket."

To reduce this country, part of which was then in the peaceable possession of the Dutch, colonel Nichols was dispatched with four frigates, carrying three hundred soldiers. Commissioners appointed by the Crown.In the same ships, came four commissioners, of whom colonel Nichols was

one, "empowered to hear and determine complaints and appeals in causes, as well military as civil and criminal, within New England; and to proceed in all things for settling the peace and security of the country." Intelligence of this deputation preceded its arrival, and the preparation made for its reception, evidences the disposition then prevailing in Massachusetts. A committee was appointed to repair on board the ships as soon as they should appear, and to communicate to their commanders the desire of the local government that the inferior officers and soldiers should be ordered, when they came on shore to refresh themselves, "at no time to exceed a convenient number, to come unarmed, to observe an orderly conduct, and to give no offence to the people and laws of the country." As if to manifest in a still more solemn manner their hostility, to the objects of the commissioners, a day of fasting and prayer was appointed to implore the mercy of God under their many distractions and troubles.[\[94\]](#)

The commissioners arrived in July, and their commission was immediately laid before the council, with a letter from the King requiring prompt assistance for the expedition against New Netherlands.

The general court, which was immediately convened, after having first resolved "that they would bear faith and true allegiance to his majesty, and adhere to their patent, so dearly obtained, and so long enjoyed, by undoubted right in the sight of God and man," determined to raise two hundred men for the expedition. In the mean time colonel Nichols proceeded to Manhadoes. Conquest of the Dutch colony. The auxiliary force raised by Massachusetts was rendered unnecessary by the capitulation of New Amsterdam, which was soon followed by the surrender of the whole province.

The year after captain Argal had subdued Manhadoes, the garrison, having obtained a reinforcement from Holland, returned to their ancient allegiance. In 1621, the states general made a grant of the country to the West India company, who erected a fort called Good Hope on Connecticut (which they denominated Fresh) river, and another called Nassau on the east side of Delaware bay. The fort on Connecticut river, however, did not protect that frontier against the people of New England, who continued to extend their settlements towards the south. The Dutch remonstrated in vain against these encroachments, and were under the necessity of receding as their more powerful neighbours advanced, until the eastern part of Long

Island, and the country within a few miles of the Hudson were relinquished. Farther south, the Dutch had built fort Casimir (now New Castle) on the Delaware. This fort was taken from them by the Swedes, who claimed the western shore of that river, but was retaken by the Dutch, who, at the same time, conquered Christina, and received the submission of the few Swedes who were scattered on the margin of the river. They also made a settlement at cape Henlopen, which attracted the attention of lord Baltimore, who sent a commission to New Castle ordering the Dutch governor to remove beyond the 40th degree of north latitude, to which his lordship's claim extended. This mandate however was not obeyed.

On the appearance of colonel Nichols before New Amsterdam, Stuyvesant, the governor, was disposed to defend the place; but the inhabitants, feeling no inclination for the contest, took part with their invaders; and Stuyvesant was compelled to sign a capitulation, by which he surrendered the town to the English, stipulating for the inhabitants their property, and the rights of free denizens. New Amsterdam took the name of New York, and the island of Manhattans that of York Island.[\[95\]](#)

Hudson's, and the south, or Delaware river, were still to be reduced. Carteret commanded the expedition against fort Orange, up Hudson's river, which surrendered on the twenty-fourth of September, and received the name of Albany. While at that place, he formed a league with the five nations, which proved eminently useful to the views of the English in America.

The command of the expedition against the settlement on the Delaware was given to sir Robert Carr, who completed the conquest of that country.

Thus did England acquire all that fine country lying between her southern and northern colonies; an acquisition deriving not less importance from its situation, than from its extent and fertility.

Nichols took possession of the conquered territory, but was compelled to surrender a part of it to Carteret.

Soon after the patent to the duke of York, and before the conquest of New Netherlands, that prince had granted to lord Berkeley, and sir George Carteret, all that tract of land adjacent to New England, to the westward of Long Island, bounded on the east, south, and west, by the river Hudson, the sea, and the Delaware; and, on the north, by forty-one degrees and forty minutes north latitude. This country was denominated New Jersey.[\[96\]](#)

The conquest of New Netherlands being achieved, the commissioners entered on the other duties assigned them. A great part of Connecticut had been included in the patent to the duke of York; and a controversy concerning limits arose between that colony and New York. In December, their boundaries were adjusted by the commissioners in a manner which appears to have been satisfactory to all parties.

In Plymouth, and in Rhode Island, the commissioners found no difficulty in the full exercise of the powers committed to them. In Massachusetts, they were considered as men clothed with an authority subversive of the liberties of the colony, which the sovereign could not rightly confer. The people of that province had been long in habits of self-government, and seem to have entertained opinions which justified their practice. They did not acknowledge that allegiance to the crown which is due from English subjects residing within the realm; but considered themselves as purchasers from independent sovereigns of the territory which they occupied, and as owing to England, only that voluntary subjection which was created and defined by their charter. They considered this instrument as a compact between the mother country and themselves, and as enumerating all the cases in which obedience was due from them. In this spirit, they agreed, soon after the arrival of the commissioners, on an address to the crown. This address, in which they express great apprehension of danger to their rights from the extraordinary powers granted to men not appointed in conformity with their charter, is drawn up in a style of much earnestness and sincerity, and concludes with these remarkable words, "let our government live, our patent live, our magistrates live, our religious enjoyments live; so shall we all yet have farther cause to say from our hearts, let the King live for ever." This address was accompanied with letters to many of the nobility supposed to possess influence at court, praying their intercession in behalf of the colony; but neither the address, nor the letters were favourably received.[\[97\]](#)

1665

Conduct of Massachusetts to the royal commissioners.

In April the commissioners arrived at Boston, and their communications with the general court commenced. The suspicions which these two bodies entertained of each other, opposed great obstacles to any cordial co-operation between them. The papers, on the part of the commissioners,

display high ideas of their own authority, as the representatives of the crown, and a pre-conceived opinion that there was a disposition in the government to resist that authority. Those on the part of the general court manifest a wish to avoid a contest with the crown, and a desire to gratify his majesty, so far as professions of loyalty and submission could gratify him; but they manifest also a conviction of having done nothing improper, and a steadfast determination to make no concession incompatible with their rights. With these impressions, the correspondence soon became an altercation. The commissioners, finding their object was to be obtained neither by reasoning, nor by threats, attempted a practical assertion of their powers by summoning the parties before them, in order to hear and decide a complaint against the governor and company. The general court, with a decision which marked alike their vigour, and the high value they placed on their privileges, announced by sound of trumpet, their disapprobation of this proceeding, which they termed inconsistent with the laws and established authority; and declared that, in observance of their duty to God and to his majesty, and of the trust reposed in them by his majesty's good subjects in the colony, they could not consent to such proceedings, nor countenance those who would so act, or such as would abet them.

As a ground of compromise, the court stated their willingness to hear the case themselves in the presence of the commissioners, who would thereby be enabled to understand its merits; but this proposition was at once rejected, and every effort towards reconciliation proved unavailing.[\[98\]](#)

1666

From Massachusetts, the commissioners proceeded to New Hampshire and Maine. They decided in favour of the claims of Mason and Gorges, and erected a royal government in each province, appointed justices of the peace, and exercised other acts of sovereignty; after which they returned to Boston. The general court, declaring that their proceedings to the eastward tended to the disturbance of the public peace, asked a conference on the subject, which was refused with a bitterness of expression that put an end to all farther communication between the parties. Massachusetts, soon afterwards, re-established her authority both in New Hampshire and Maine. They are recalled.

Charles, on being informed of these transactions, recalled his commissioners, and ordered the general court to send agents to England, to

answer the complaints made against its proceedings. The court, having more than once experienced the benefits of procrastination, affected at first to disbelieve the authenticity of the letter; and afterwards excused themselves from sending agents by saying that the ablest among them could not support their cause better than had already been done.

During these transactions in the north, new colonies were forming in the south.

In the year 1663, that tract of country extending from the 36th degree of north latitude to the river St. Matheo, was made a province by the name of Carolina, and granted to lord Clarendon, the duke of Albemarle, lord Craven, lord Berkeley, lord Ashley, sir George Carteret, sir John Colleton, and sir William Berkeley, in absolute property for ever. This charter bears a strong resemblance to that of Maryland, and was probably copied from it.

Settlement of Carolina.

The proprietors took immediate measures for Settlement the settlement of their colony. Its constitution consisted of a governor, to be chosen by themselves from thirteen persons nominated by the colonists; and an assembly to be composed of the governor, council, and representatives of the people, who should have power to make laws not contrary to those of England, which were to remain in force until the dissent of the proprietors should be published. Perfect freedom in religion was promised; and, as an inducement to emigration, one hundred acres of land, at the price of a half penny for each acre, were allowed for every freeman, and fifty for every servant, who should, within the space of five years, be settled in the province.

A small settlement had been made on Albemarle sound by some emigrants from Virginia, the superintendence of which had been conferred by the proprietors, on sir William Berkeley, then governor of that colony; with instructions to visit it, to appoint a governor and council of six persons for the management of its affairs, and to grant lands to the inhabitants on the same terms that those in Virginia might be obtained.

The attention of the proprietors was next turned to the country south of cape Fear, which, as far as the river St. Matheo, was erected into a county by the name of Clarendon. Considerable numbers from Barbadoes emigrated into it, one of whom, Mr. John Yeamans, was appointed

commander in chief; and, in 1665, a separate government was erected in it, similar to that in Albemarle.

The proprietors having discovered some valuable lands not comprehended in their original patent, obtained a new charter which bestowed on them a more extensive territory. This charter grants that province within the King's dominions in America, extending north eastward to Carahutke inlet, thence in a straight line to Wyonok, which lies under 36 degrees 30 minutes north latitude; south westward to the 29th degree of north latitude; and from the Atlantic ocean to the South sea. Powers of government and privileges analogous to those comprised in other colonial charters, were also contained in this.

The people of Albemarle, employed like those of Virginia, in the cultivation of corn and tobacco, received their scanty supplies principally from New England; and carried on their small commerce in the vessels of those colonies. Their progress was slow, but they were contented. 1667A new constitution was given them, by which the executive power was placed in a governor, to act by the advice of a council of twelve, six of whom were to be chosen by himself, and the others by the assembly, which was composed of the governor, the council, and twelve delegates, to be elected annually by the freeholders. Perfect freedom in religion was established, and all were entitled to equal privileges, on taking the oaths of allegiance to the King, and of fidelity to the proprietors.

The first acts of this legislature indicate the condition and opinions of the people. It was declared that none should be sued, during five years, for any cause of action arising out of the country; and that no person should accept a power of attorney to receive debts contracted abroad.

1669

Constitution of Mr. Locke.

The proprietors, dissatisfied with their own systems, applied to Mr. Locke for the plan of a constitution. They supposed that this profound and acute reasoner must be deeply skilled in the science of government. In compliance with their request, he framed a body of fundamental laws which were approved and adopted. A palatine for life was to be chosen from among the proprietors, who was to act as president of the palatine court, which was to be composed of all those who were entrusted with the execution of the powers granted by the charter. A body of hereditary

nobility was created, to be denominated Landgraves, and Caciques, the former to be invested with four baronies, consisting each of four thousand acres, and the latter to have two, containing each two thousand acres of land. These estates were to descend with the dignities for ever.

The provincial legislature, denominated a Parliament was to consist of the proprietors, in the absence of any one of whom, his place was to be supplied by a deputy appointed by himself; of the nobility; and of the representatives of the freeholders, who were elected by districts. These discordant materials were to compose a single body which could initiate nothing. The bills to be laid before it were to be prepared in a grand council composed of the governor, the nobility, and the deputies of the proprietors, who were invested also with the executive power. At the end of every century, the laws were to become void without the formality of a repeal. Various judicatories were erected, and numerous minute perplexing regulations were made. This constitution, which was declared to be perpetual, soon furnished additional evidence, to the many afforded by history, of the great but neglected truth, that experience is the only safe school in which the science of government is to be acquired; and that the theories of the closet must have the stamp of practice, before they can be received with implicit confidence.

1670

The duke of Albemarle was chosen the first palatine, but did not long survive his election; and lord Berkeley was appointed his successor. The other proprietors were also named to high offices; and Mr. Locke was created a landgrave.

After this change of constitution, the attention of the proprietors was first directed to the south. A settlement was made at Port Royal, under the conduct of William Sayle, who had been appointed governor of that part of the coast which lies south-west of cape Carteret. He was accompanied by Joseph West, who was intrusted with the commercial affairs of the proprietors, and who, with the governor, conducted the whole mercantile business of the colony.

William Sayle, after leading the first colony to Port Royal, and convening a parliament in which there were neither landgraves nor caciques, became the victim of the climate; after which, the authority of sir John Yeamans, who had hitherto governed the settlement at cape Fear, was extended over

the territory south-west of cape Carteret. In the same year, the foundation of *old Charlestown* was laid, which continued, for some time, to be the capital of the southern settlements.

While these exertions were making in the south, great dissatisfaction was excited in Albemarle. In 1670, Stevens, the governor, had been ordered to introduce into that settlement, the constitution prepared by Mr. Locke. This innovation was strenuously opposed; and the discontent it produced was increased by a rumour, which was not the less mischievous for being untrue, that the proprietors designed to dismember the province. There was also another cause which increased the ill humour pervading that small society. The proprietors attempted to stop the trade carried on in the vessels of New England, and the attempt produced the constant effect of such measures—much ill temper both on the part of those who carried on the traffic, and of those for whom it was conducted.

At length, these discontents broke out into open insurrection. The insurgents, led by Culpeper, who had been appointed surveyor-general of Carolina, obtained possession of the country, seized the revenues, and imprisoned the president, with seven deputies who had been named by the proprietors. Having taken possession of the government, they established courts of justice, appointed officers, called a parliament, and, for several years, exercised the powers of an independent state; yet they never, formally, disclaimed the power of the proprietors.

All this time, the titheables of Albemarle, a term designating all the men, with the negroes and Indian women, between sixteen and sixty years of age, amounted only to fourteen hundred; and the exports consisted of a few cattle, a small quantity of Indian corn, and about eight hundred thousand weight of tobacco.

1688

About this time, an event occurred in the southern settlements, showing as well the poverty of the people, as the manner in which the affairs of the proprietors were conducted. Joseph West, their agent, was appointed to succeed Yeamans in the government; and, the colony being unable to pay his salary, the plantation, and mercantile stock of the proprietors, were assigned to him in satisfaction of his claims.

In England, the opinion had been long entertained that the southern colonies were adapted to the production of those articles which succeed in

the warmer climates of Europe. In pursuance of this opinion, Charles, in 1679, employed two vessels to transport foreign protestants into the southern colony for the purpose of raising wine, oil, silk, and other productions of the south; and, to encourage the growth of these articles, exempted them, for a limited time, from taxation. The effort, however, did not succeed.

Old Charlestown being found an inconvenient place for the seat of government, the present Charleston became the metropolis of South Carolina. This situation was deemed so unhealthy, that directions were given to search out some other position for a town. The seat of government, however, remained unaltered until the connexion with Great Britain was dissolved.

Carolina continued to increase slowly in wealth and population without any remarkable incident, except the invasion of its most southern settlement by the Spaniards from St. Augustine. This was occasioned, in part, by the jealousy with which the English colony inspired its neighbours, but was principally, and immediately attributable to the countenance given, in Charleston, to the buccaneers who then infested those seas, and who were particularly hostile to the Spaniards. It was with difficulty the colonists were prevented by the proprietors from taking ample vengeance for this injury. Their resentments, though restrained, were not extinguished; and, until the annexation of the Floridas to the British crown, these colonies continued to view each other with distrust and enmity.

The dissatisfaction of the colony with its constitution grew with its population. After some time a settled purpose was disclosed, to thwart and oppose the wishes of the proprietors in every thing. Constitution of Mr. Locke abandoned. Wearied with a continued struggle to support a system not adapted to the condition of the people, the proprietors at length abandoned the constitution of Mr. Locke, and restored the ancient form of government.[\[99\]](#)

Discontents of Virginia.

The discontents which arose in Virginia soon after the restoration, continued to augment. To the regularly decreasing price of tobacco, and the restraints imposed on commerce by the acts of navigation, other causes of dissatisfaction were soon added. Large grants of land were made to the favourites of the crown: and considerable burdens were produced, and

injuries inflicted by the hostility of the Indians. Agents were deputed to remonstrate against these improvident grants, as well as to promote the views of the colony with regard to other objects of great moment; and a considerable tax was imposed to support the expense of the deputation. They are said to have been on the point of obtaining the objects of their mission, when all farther proceedings were suspended in consequence of a rebellion, which, for a time, wore a very serious aspect.

Bacon's rebellion.

At the head of the insurgents was colonel Nathaniel Bacon, a gentleman who had received his education, in England, at the inns of court; 1663and had been appointed a member of the council soon after his arrival in Virginia. Young, bold, and ambitious; possessing an engaging person, and commanding elocution; he was well calculated to rouse and direct the passions of the people. Treading the path by which ambition marches to power, he harangued the people on their grievances, increased their irritation against the causes of their disgust, and ascribed the evils with which they thought themselves oppressed to those who governed them, while he professed no other object than their good. He declaimed particularly against the languor with which the Indian war had been prosecuted; and, striking the note to which their feelings were most responsive, declared that, by proper exertions, it might have been already terminated.

The people, viewing him as their only friend, and believing the zeal he manifested to be produced solely by his devotion to their cause gave him their whole confidence and elected him their general. In return, he assured them that he would never lay down his arms until he had avenged their sufferings on the savages, and redressed their other grievances.

1676

He applied to the governor for a commission appointing him general to prosecute the war against the Indians. A temporising policy being pursued, he entered Jamestown at the head of six hundred armed men, and obtained all he demanded, from an intimidated government. No sooner had he withdrawn from the capital than the governor, at the request of the assembly which was then in session, issued a proclamation declaring him a rebel, and commanding his followers to deliver him up, and to retire to their respective

homes. Bacon and his army, equally incensed at this piece of impotent indiscretion, returned to Jamestown, and the governor fled to Accomack.

The general of the insurgents called a convention of his friends, who inveighed against the governor, for having, without cause, endeavoured to foment a civil war in the country, and after failing in this attempt, for having abdicated the government, to the great astonishment of the people. They stated farther that, the governor having informed the King "that their commander and his followers were rebellious, and having advised his majesty to send forces to reduce them, it consisted with the welfare of the colony, and with their allegiance to his sacred majesty, to oppose and suppress all forces whatsoever until the King be fully informed of the state of the case by such persons as shall be sent by Nathaniel Bacon in behalf of the people." This extraordinary manifesto was concluded with the recommendation of an oath, first taken by the members of the convention, to join the general and his army against the common enemy in all points whatever; and to endeavour to discover and apprehend such evil disposed persons as design to create a civil war by raising forces against him, and the army under his command.

In the mean time, the governor collected a considerable force which crossed the bay under the command of major Robert Beverly, and several sharp skirmishes were fought. A civil war was commenced; agriculture declined; Jamestown was burnt by the insurgents; those parts of the country which remained in peace were pillaged; and the wives of those who supported the government were carried to camp, where they were very harshly treated. His death. Virginia was relieved from this threatening state of things, and from the increasing calamities it portended, by the sudden death of Bacon.

1677

Having lost their leader, the malcontents were incapable of farther agreement among themselves. They began, separately, to make terms with the government, and all opposition soon ended. Sir William Berkeley was re-instated in his authority, and an assembly was convened, which seems to have been actuated by the spirit of revenge common to those who suffer in civil contests.[\[100\]](#)

The real motives and objects of this rebellion are not perfectly understood. Many were disposed to think that Bacon's original design

extended no farther than to gratify the common resentments against the Indians, and to acquire that reputation and influence which result from conducting a popular war successfully. Others believe that he intended to seize the government. Whatever may have been his object, the insurrection produced much misery, and no good, to Virginia.[\[101\]](#)

1680

Soon after the restoration of domestic quiet, sir William Berkeley returned to England, and was succeeded by Herbert Jeffreys, who relieved the colony from one of its complaints by making peace with the Indians.

About the year 1680, an essential change was made in the jurisprudence of Virginia. In early times, the assembly was the supreme appellate court of the province. During the administration of lord Culpeper, a controversy arose between the burgesses, and counsellors, who composed also the general court, concerning the right of the latter to sit as a part of the assembly, on appeals from their own decisions. The burgesses claimed, exclusively, the privilege of judging in the last resort. Assembly deprived of judicial power. This controversy was determined by taking all judicial power from the assembly, and allowing an appeal from judgments of the general court to the King in council, where the matter in contest exceeded the value of three hundred pounds sterling.[\[102\]](#)

From the rebellion of Bacon to the revolution in 1688, the history of Virginia affords no remarkable occurrence. The low price of tobacco, that perpetual source of dissatisfaction, still continued to disquiet the country. Combinations were formed among the people to raise its value by preventing, for a time, the growth of the article; and disorderly parties assembled to destroy the tobacco plants in the beds when it was too late to sow the seed again. Violent measures were adopted to prevent these practices, and several individuals were executed.

These discontents did not arrest the growth of the colony. A letter from sir William Berkeley, dated in June, 1671, states its population at forty thousand, and its militia at eight thousand. A letter from lord Culpeper in December, 1681, supposes that there might then be in the colony fifteen thousand fighting men. This calculation however is probably exaggerated, as the report of general Smith, prepared in 1680 from actual returns, represents the militia as then consisting of eight thousand five hundred and sixty-eight men, of whom thirteen hundred were cavalry.[\[103\]](#)

CHAPTER VI.

Prosperity of New England.... War with Philip.... Edward Randolph arrives in Boston.... Maine adjudged to Gorges.... Purchased by Massachusetts.... Royal government erected in New Hampshire.... Complaints against Massachusetts.... Their letters patent cancelled.... Death of Charles II.... James II. proclaimed.... New commission for the government of New England.... Sir Edmond Andros.... The charter of Rhode Island abrogated.... Odious measures of the new government.... Andros deposed.... William and Mary proclaimed.... Review of proceedings in New York and the Jerseys.... Pennsylvania granted to William Penn.... Frame of government.... Foundation of Philadelphia laid.... Assembly convened.... First acts of the legislature.... Boundary line with lord Baltimore settled.

1680

Prosperity of New England.

After the departure of the commissioners, New England was for some time quiet and prosperous. The plague, the fire of London, and the discontents of the people of England, engrossed the attention of the King, and suspended the execution of his plans respecting Massachusetts. In the mean time, that colony disregarded the acts of navigation, traded as an independent state, and governed New Hampshire and Maine without opposition.[\[104\]](#)

War with Philip.

This state of prosperous repose was interrupted by a combination of Indians so formidable, and a war so bloody, as to threaten the very existence of all New England. This combination was formed by Philip, the second son of Massassoet. The father and eldest son had cultivated the friendship of the colonists; but Philip, equally brave and intelligent, saw the continuing growth of the English with apprehension, and by his conduct soon excited their suspicion. 1675He gave explicit assurances of his pacific disposition; but, from the year 1670 till 1675, when hostilities commenced,

he was secretly preparing for them. The war was carried on with great vigour and various success: the savages, led by an intrepid chief, who believed that the fate of his country depended on the entire destruction of the English, made exertions of which they had not been thought capable. Several battles were fought; and all that barbarous fury which distinguishes Indian warfare, was displayed in its full extent. Wherever the Indians marched, their route was marked with murder, fire, and desolation. Massachusetts, New Hampshire, and Plymouth, were the greatest sufferers. In those provinces especially, the Indians were so intermingled with the whites, that there was scarcely a part of the country in perfect security, or a family which had not to bewail the loss of a relation or friend. For a considerable time no decisive advantage was gained. 1676At length, the steady efforts of the English prevailed; and in August 1676, when the tide of success was running strong in favour of the colonists, Philip, after losing his family and chief counsellors, was himself killed by one of his own nation, whom he had offended. After his death, the war was soon terminated by the submission of the Indians. Never had the people of New England been engaged in so fierce, so bloody, and so desolating a conflict. Though the warriors of the nation of which Philip was prince, were estimated at only five hundred men, he had, by alliances, increased his force to three thousand. In this estimate the eastern Indians are not included. Many houses, and flourishing villages were reduced to ashes, and six hundred persons were either killed in battle, or murdered privately.[\[105\]](#)

While this war was raging with its utmost violence, the government of Massachusetts was under the necessity of directing a part of its attention to the claims of Mason and Gorges. The efforts of Charles to procure an appearance of the colony before the council having proved ineffectual, he determined to give judgment in its absence, unless an appearance should be entered within six months. Edward Randolph. Edward Randolph, who was dispatched to give notice of this determination, arrived in Boston in the summer of 1676; and, as other letters brought by the same vessel gave assurance that this resolution would be adhered to, the general court hastened the departure of deputies to represent the colony, and support its interests.

Maine adjudged to Gorges.

It was the opinion of the King in council that the line of Massachusetts did not run more than three miles north of the Merrimack; and Maine was adjudged to Gorges. The claim of Mason to New Hampshire being confined to the soil, all title to which, though so long exercised, was now waived by Massachusetts; and the terre-tenants not being before the court, that part of the case was decided so far only as respected the boundary of Massachusetts, which, being against the pretensions of that colony, its jurisdiction over New Hampshire ceased. Charles had been for some time treating for the purchase both of New Hampshire and Maine which he intended to bestow on his favourite son, the duke of Monmouth, but his poverty had prevented the contract. Massachusetts, though not ignorant of this fact, finding that the decision respecting Maine would be in favour of Gorges, purchased his title for twelve hundred pounds sterling. The offended monarch insisted on a relinquishment of the contract; but Massachusetts, apologising for what had been done, retained the purchase, and governed the country as a subordinate province.[\[106\]](#)

1679

Royal government in New Hampshire.

New Hampshire having become a distinct colony, a royal government was erected in that province; the legislature of which voted an affectionate address to Massachusetts, avowing a willingness to have retained their ancient connexion, had such been the pleasure of their common sovereign.

The temper and conduct of Massachusetts remaining unchanged, the charges against its government were renewed. The complaints of the Quakers were perseveringly urged; and the neglect of the acts of navigation, constituted a serious accusation against the colony. The general court, in a letter to their agents, declared these acts "to be an invasion of the rights, liberty, and property of the subjects of his majesty in the colony, they not being represented in Parliament." But as his majesty had signified his pleasure that they should be conformed to, "they had made provision by a law of the colony that they should be strictly attended to from time to time, although it greatly discouraged trade, and was a great damage to his majesty's plantation." Their agents gave correct information of the state of things in England, and assured them that only a fair compliance with the regulations respecting trade could secure them from an open breach with the crown. These honest representations produced the usual effect of

unwelcome truths. They diminished the popularity of the agents, and excited a suspicion in Boston that they had not supported the interests of the colony with sufficient zeal. On their return, they brought with them a letter containing the requisitions of the King; and were soon followed by Randolph, who had been appointed collector at Boston. The general court began to manifest some disposition to appease their sovereign, and passed several laws for this purpose; but still declined complying with his directions to send agents with full powers to attend to the new ordering of the province; and the collector encountered insuperable obstacles in his attempts to execute the laws of trade. Almost every suit he instituted for the recovery of penalties or forfeitures was decided against him, at the costs of the prosecutor. These difficulties induced him to return to England, to solicit additional powers, which were equally disregarded.

The complaints of the King on these subjects were answered by professions of loyalty, and by partial compliances with the demands of the crown; but the main subject of contest remained unaltered.

1684

At length, being convinced that the King was determined to annul the charter, Massachusetts so far yielded to his will, as to appoint agents to represent the colony. But persons empowered to submit to such regulations as might be made by government, were, in other words, persons appointed to surrender the charter. They were therefore instructed not to do, or consent to, any thing that might infringe the liberties granted by charter, or the government established thereby. These powers were declared to be insufficient; and the agents were informed that, unless others, in every respect satisfactory, should be immediately obtained, it was his majesty's pleasure that a *quo warranto* should be issued without delay. This unpleasant intelligence was immediately communicated to the general court, accompanied with information of the proceedings which had lately taken place in England. In that country, many corporations had surrendered their charters; and, on the refusal of London, a *quo warranto* had issued against the city, which had been decided in favour of the crown. The question whether it was advisable to submit to his majesty's pleasure, or to permit the *quo warranto* to issue, was seriously referred to the general court, and was as seriously taken into consideration throughout the colony. In concurrence with the common sentiment, the general court determined

that "it was better to die by other hands than their own." On receiving this final resolution, the fatal writ was issued, and was committed to the care of Randolph, who brought also a declaration of the King, that if the colony, before the writ should be prosecuted, would submit to his pleasure, he would regulate their charter for his service, and their good; and would make no farther alterations in it than should be necessary for the support of his government in the province. The governor and assistants passed a vote of submission; but, the deputies refusing their assent thereto, the high court of chancery, in Trinity term 1684, decreed against the governor and company, "that their letters patent, and the enrolment thereof be cancelled."

1685

Death of Charles II. James II. proclaimed.

Charles did not survive this decree long enough to complete his system respecting the New England colonies, or to establish a new government for Massachusetts. He died early in the following year; and his successor, from whose stern temper, and high toned opinions, the most gloomy presages had been drawn, was proclaimed, in Boston, with melancholy pomp.

Their presages were soon verified. Immediately after James had ascended the throne, a commission was issued for a president and council, as a temporary government for Massachusetts, New Hampshire, Maine, and Narragansetts; whose powers were entirely executive and judicial. 1686 This commission reached Boston in May, and was laid before the general court, not as a body invested with political authority, but as one composed of individuals of the first respectability and influence in the province. The general court agreed unanimously to an address, in answer to this communication, declaring "that the liberty of the subject is abridged, by the new system, both in matters of legislation and in laying taxes; and that it highly concerns them to whom it is directed to consider whether it be safe;" and added "that, if the newly appointed officers, mean to take upon themselves the government of the people, though they could not give their assent thereto, they should demean themselves as loyal subjects, and humbly make their addresses to God, and, in due time, to their gracious prince, for relief."

Mr. Dudley, the president named in the commission, was a native of Massachusetts, and seems to have mingled with his respect for the constitutional prerogative of the crown, a due regard for the rights of the

people. Any immediate alterations, therefore, in the interior arrangements of the country were avoided; and the commissioners transmitted a memorial to the lords of the council for the colonies, stating the necessity of a well regulated assembly to represent the people, and soliciting an abatement of the taxes. This moderate conduct did not accord with the wishes of that class of men who court power wherever it may be placed. These sought the favour of their sovereign by prostrating every obstacle to the execution of his will; and soon transmitted complaints to administration, charging the commissioners with conniving at violations of the laws respecting trade, and countenancing ancient principles in religion and government.

Sir Edmond Andros.

James was dissatisfied with the conduct of his commissioners; and was also of opinion that a wise policy required a consolidation of the colonies, and a permanent administration for New England. With a view to this object, he appointed Sir Edmond Andros, who had governed New York, captain-general and vice-admiral of Massachusetts, New Hampshire, Maine, New Plymouth, Pemaquid, and Narragansetts; and empowered him, with the consent of a council to be appointed by the crown, to make ordinances not inconsistent with the laws of the realm, which should be submitted to the King for his approbation or dissent; and to impose taxes for the support of government.

In December 1685, Andros arrived at Boston, where he was received with the respect which was due to the representative of the crown. In pursuance of his orders, he dissolved the government of Rhode Island, broke its seal, and assumed the administration of the colony. In the preceding year, articles of high misdemeanour had been exhibited against that colony and referred to Sayer, the attorney general, with orders to issue a writ of *quo warranto* to annul their patent. The assembly stopped farther proceedings, by passing an act formally surrendering their charter. Their submission, however, availed them nothing. Their fate was involved in that of Massachusetts.[\[107\]](#)

Odious measures of government.

In pursuance of the determination to break the charters and unite the colonies, articles of misdemeanour had been also exhibited against the governor and company of Connecticut, on which a writ of *quo warranto* had been issued. The government of that colony addressed a letter to the

secretary of state, desiring, with many professions of loyalty, to remain in its present situation; but, if it should be the purpose of his majesty to dispose otherwise of them, submitting to his royal commands, and requesting to be annexed to Massachusetts. No farther proceedings were had on the *quo warranto*, and Andros was ordered to accept the submission of the colony, and annex it to Massachusetts. 1687 This order was executed in October, when Andros appeared in Hartford at the head of a small corps of regular troops, demanded the charter, and declared the government to be dissolved. The colony submitted, but the charter was concealed in a tree, which was venerated long afterwards and is still in existence.[\[108\]](#)

The grand legislative council, composed of individuals selected by the crown throughout the united colonies, readily assembled, and proceeded to execute the duties assigned to it.

The measures of the new government were not calculated to diminish the odium excited by its objectionable form. The fees of office were enormous; and the regulations respecting divine worship, marriages, the acts of navigation, and taxes, were deemed highly oppressive. In addition to these causes of discontent, the governor general took occasion to cast a doubt on the validity of the titles by which lands were holden.

1688

To obtain relief from these oppressive grievances, Mather, an eminent politician and divine, was deputed by the colonies of New England to lay their complaints before the King. He was graciously received, but could effect no substantial change in the colonial administration. James had determined to reduce all the governments, proprietary as well as royal, to an immediate dependence on the crown; and, to effect this purpose, had directed writs of *quo warranto* to issue against those charters which still remained in force. This plan was adopted, not only for the purpose of establishing his favourite system of government, but also of forming a barrier to the encroachments of France, by combining the force of the colonies as far as the Delaware. During this reign, Canada was pushed south of Lake Champlain; and fortresses were erected within the immense forests which then separated that province from New York and New England. With a view to this union of force, a new commission was made out for Andros, annexing New York and the Jerseys to his government, and appointing Francis Nicholson his lieutenant.

1689

The dissatisfaction of the people continued to increase; and every act of the government, even those which were in themselves laudable, was viewed through the medium of prejudice.

At length these latent ill humours burst forth into action. Some vague intelligence was received concerning the proceedings of the Prince of Orange in England. The old magistrates and leading men silently wished, and secretly prayed, that success might attend him, but determined to commit nothing unnecessarily to hazard, and quietly to await an event, which no movement of theirs could accelerate or retard.

Andros deposed.

The people were less prudent. Stung with the recollection of past injuries, their impatience, on the first prospect of relief, could not be restrained. On the 18th of April, without any apparent pre-concerted plan, a sudden insurrection broke out in Boston, and about fifty of the most unpopular individuals, including the governors, were seized and imprisoned; and the government was once more placed in the hands of the ancient magistrates. William and Mary proclaimed. All apprehensions of danger from this precipitate measure were soon quieted by the information that William and Mary had been crowned King and Queen of England. They were immediately proclaimed in Boston with unusual pomp, and with demonstrations of proclaimed unaffected joy.[\[109\]](#)

The example of Massachusetts was quickly followed by Connecticut and Rhode Island. Andros was no sooner known to be in prison than he was deposed also in Connecticut; and, in both colonies the ancient form of government was restored.

In New Hampshire a convention was called, which determined to re-annex that colony to Massachusetts, and deputies were elected to represent them in the general court. This reunion continued to be their wish, but was opposed by the King, who, in 1692, appointed for it a distinct governor.

In order to bring the affairs of the middle colonies to this period, it will be necessary briefly to review the transactions of several years.

Review of proceedings in New York and New Jersey.

The treaty of Breda, which restored Acadie to France, confirmed New Netherlands to England. Quiet possession of that valuable territory was

retained until 1673, when, England being engaged again in war with Holland, a small Dutch squadron appeared before the fort at New York, which surrendered without firing a shot. The example was followed by the city and country; and, in a few days, the submission of New Netherlands was complete. After this acquisition the old claim to Long Island was renewed, and some attempts were made to wrest it from Connecticut. That province however, after consulting its confederates, and finding that offensive operations would be agreeable to the union, declared war against the Dutch; and not content with defending its own possessions, prepared an expedition against New York. The termination of the war between England and Holland prevented its prosecution, and restored to the English the possessions they had lost.[\[110\]](#)

To remove all controversy concerning his title, which had been acquired while the granted lands were in possession of the Dutch, the duke of York, after the peace of 1674, obtained a renewal of his patent, and appointed sir Edmond Andros governor of his territories in America. This commission included New Jersey, his former grant of which he supposed to be annulled by the conquest thereof in 1673. Andros, disregarding the decision of the commissioners, claimed for the duke that part of Connecticut which lies west of the river of that name; and, during the war with Philip, endeavoured to support his claim by force. The determined resistance of Connecticut compelled him to relinquish an attempt on Saybrooke; after which he returned to New York. The taxes which had been laid by the Dutch were collected, and duties, for a limited time, were imposed, by authority of the duke. This proceeding excited great discontent. The public resentment was directed, first against the governor, whose conduct was inquired into and approved by his master, and afterwards against the collector, who was seized and sent to England; but never prosecuted. The representatives of the duke in New York, feeling the difficulty of governing a high spirited people on principles repugnant to all their settled opinions, repeatedly, but ineffectually, urged him to place the colony on the same footing with its neighbours, by creating a local legislature, one branch of which should be elected by the people. It was not until the year 1683, when the revenue laws were about to expire, when the right of the duke to re-enact them was denied in America, and doubted in England, that he could be prevailed on to appoint a new governor with instructions to convene an assembly.[\[111\]](#)

In 1674, lord Berkeley assigned his interest in the Jerseys to William Penn and his associates. They afterwards acquired the title of sir George Carteret also, and immediately conveyed one-half of their interest to the earl of Perth and others, who, in 1683, obtained a conveyance from the duke of York directly to themselves.

During these transactions, continual efforts were made to re-annex the Jerseys to New York. Carteret had endeavoured to participate in the advantages of commerce by establishing a port at Amboy; but Andros seized and condemned the vessels trading thither, and was supported by the duke in this exercise of power. The assembly of New York claimed the right of taxing the people of Jersey; and the collector, continued to exercise his former authority within their territory. On his complaining, after the accession of the duke of York to the throne, that every vessel he prosecuted was discharged by the verdict of the jury, a writ of *quo warranto* was directed. The English judges did not then hold their offices during good behaviour; and the proprietors of East Jersey, confident that the cause would be decided against them, surrendered their patent to the crown, praying only a grant of the soil. The Jerseys were, soon afterwards, annexed to New England.[\[112\]](#)

Dongan, who, in 1683, had succeeded Andros in the government of New York, took a deep interest in the affairs of the five nations, who had been engaged in bloody wars with Canada. The French, by establishing a settlement at Detroit, and a fort at Michilimackinack, had been enabled to extend their commerce among the numerous tribes of Indians who hunted on the banks of the great lakes, and the upper branches of the Mississippi. They excluded the people of New York from any share in this gainful commerce; in consequence of which Dongan solicited and obtained permission to aid the five nations. This order, however, was soon countermanded; and a treaty was concluded, stipulating that no assistance should be given to the savages by the English colonists; soon after which Dongan was recalled, and New York was annexed to New England.

From the accession of James to the throne, he had discontinued the assemblies of New York, and empowered the governor, with the consent of his council, to make laws "as near as might be" to those of England. The reinstatement of this arbitrary system gave general disgust, and, together with the apprehension that the Roman Catholic religion would be

established, prepared the people of New York, as well as those of the other colonies, for that revolution which wrested power from hands accustomed to abuse it. On receiving intelligence of the revolution at Boston, the militia were raised by a captain Jacob Leisler, who took possession of the fort in the name of King William, and drove Nicholson, the lieutenant governor, out of the country. This event gave rise to two parties, who long divided New York, and whose mutual animosities were the source of much uneasiness and mischief to the province.[\[113\]](#)

Pennsylvania granted to William Penn.

William Penn having gained some knowledge of the country west of the Delaware, formed the design of acquiring that territory as a separate estate. On his petition, a charter was issued in 1681, granting to him, in absolute property, by the name of Pennsylvania, that tract of country bounded on the east by the river Delaware, extending westward five degrees of longitude, stretching to the north from twelve miles north of New Castle to the forty-third degree of latitude, and limited on the south by a circle of twelve miles, drawn round New Castle to the beginning of the fortieth degree of latitude.

In this charter, the acts of navigation were recognised, a local legislature was created, and provision made that a duplicate of its laws should be transmitted, within five years, to the King in council; any of which that were repugnant to those of England, or inconsistent with the authority of the crown, might be declared void in six months. This charter conveyed nearly the same powers and privileges with that of Maryland, but recognised the right of Parliament to tax the colony.

Penn soon commenced the settlement of the province, and immediately asserted a claim to a part of the territory which had been supposed by lord Baltimore to be within the bounds of Maryland. In this claim originated a controversy between the two proprietors, productive of considerable inconvenience and irritation to both.

He published a frame of government for Pennsylvania, the chief intention of which was declared to be "for the support of power in reverence with the people, and to secure the people from the abuse of power; that they may be free by their just obedience, and the magistrates honourable for their just administration; for liberty without obedience is confusion, and obedience without liberty is slavery."

This scheme of fundamental law contains many provisions indicating good sense and just notions of government, but was too complex for an infant settlement; and, after many fruitless attempts to amend it, was laid aside, and a more simple form was adopted, resembling in its principal features, those established in the other colonies, which remained until the proprietary government itself was dissolved.

In August 1682, Penn obtained from the duke of York a conveyance of the town of New Castle, with the territory twelve miles around it, and that tract of land extending thence southward, on the Delaware, to cape Henlopen. Soon after this grant was issued, he embarked for America, accompanied by about two thousand emigrants; and, in the October following, landed on the banks of the Delaware. In addition to the colonists sent out by himself, he found, on his arrival several small settlements of Swedes, Dutch, Finlanders, and English, amounting to about three thousand persons. Penn cultivated the good will of the natives, from whom he purchased such lands as were necessary for the present use of the colonists. Foundation of Philadelphia. At this time the foundation of Philadelphia was laid, which we are assured contained near one hundred houses within twelve months from its commencement. An assembly was convened which, instead of being composed of all the freemen, according to the frame of government, was, at the request of the people themselves, constituted of their representatives. Among the laws which were enacted was one annexing the territories lately purchased from the duke of York to the province, and extending to them all its privileges. Universal freedom in religion was established; and every foreigner who promised allegiance to the King, and obedience to the proprietor was declared a freeman. [\[114\]](#)

In the hope of extending his limits to the Chesapeake, Penn, soon after his arrival, met lord Baltimore for the purpose of adjusting their boundaries. The patent of that nobleman calls for the fortieth degree of north latitude, and he proposed to determine the intersection of that degree with the Delaware by actual observation. Penn, on the contrary, insisted on finding the fortieth degree by mensuration from the capes of Virginia, the true situation of which had been already ascertained. Each adhering firmly to his own proposition, the controversy was referred to the committee of plantations, who, after the crown had descended on James, decided that the peninsula between the bays of Chesapeake and Delaware, should be divided into two equal parts by a line drawn from the latitude of cape Henlopen to

the fortieth degree, and adjudged that the land lying from that line towards the Delaware should belong to his majesty, and the other moiety to Lord Baltimore. This adjudication was ordered to be immediately executed.

Pennsylvania was slow in acknowledging the Prince and Princess of Orange. The government continued to be administered in the name of James for some time after his abdication was known. At length, however, William and Mary were proclaimed; and Penn had the address to efface the unfavourable impressions which this delay was calculated to make on them.

CHAPTER VII.

New charter of Massachusetts.... Affairs of New York.... War with France.... Schenectady destroyed.... Expedition against Port Royal.... Against Quebec.... Acadié recovered by France.... Pemaquid taken.... Attempt on St. Johns.... Peace.... Affairs of New York.... Of Virginia.... Disputes between England and France respecting boundary in America.... Recommencement of hostilities.... Quotas of the respective colonies.... Treaty of neutrality between France and the five nations.... Expedition against Port Royal.... Incursion into Massachusetts.... Plan for the invasion of Canada.... Port Royal taken.... Expedition against Quebec.... Treaty of Utrecht.... Affairs of New York.... Of Carolina.... Expedition against St. Augustine.... Attempt to establish the Episcopal church.... Invasion of the colony.... Bills of credit issued.... Legislature continues itself.... Massacre in North Carolina by the Indians.... Tuscaroras defeated.... Scheme of a Bank.

1689

The revolution which placed the Prince and Princess of Orange on the throne, revived in Massachusetts, the hope of recovering the ancient charter. Elections were held by authority of the temporary government, and the representatives requested the council to exercise, until orders should be received from England, the powers and authorities vested in that body by the charter. The council acceded to this proposition; and the ancient system was re-established. It was soon perceived by the agents of Massachusetts that the old charter would not be restored, and that the King was determined to retain the appointment of the governor in his own hands. The colony, however, was authorised to exercise the powers of government according to the ancient system, until a new arrangement should be made. The vessel by which these directions were transmitted, carried also orders that sir Edmond Andros, and those imprisoned with him should be sent to England.

The general court deputed additional agents, with instructions to solicit the confirmation of their beloved charter; but these solicitations were

ineffectual. 1691New Charter.The King was inflexible; and, at length, a new charter was framed, introducing some changes which affected radically the independence that had been long practically possessed by the colony. The governor was to be appointed by the crown, was enabled to call, adjourn, prorogue, and dissolve the assembly at pleasure; he had the appointment solely, of all military officers; and, with the consent of his council, of all officers belonging to the courts of justice.

1692

Sir William Phipps, the first governor, arrived in May, and immediately issued writs for a general assembly, which met in June, and accepted the charter; though a considerable party had been formed to oppose it. This instrument annexed Plymouth and Nova Scotia to Massachusetts; but, contrary to the wishes of both colonies, omitted New Hampshire, which became permanently a separate government.[\[115\]](#)

Affairs of New York.

In New York, Leisler, who had obtained the entire control of the lower country, associated with himself in the government, a few trusty partisans, denominated a committee of safety, over whom he presided. Some of the principal inhabitants of the city, dissatisfied at seeing a man of low birth, without education, in possession of supreme power, retired to Albany, where a convention of the people was assembled, who determined to hold the fort and country for the King and Queen, but not to submit to the authority of Leisler. On receiving intelligence of these transactions, Jacob Milbourne was detached with a small force to reduce the place; but, finding that the people adhered to the convention, and that his harangues against James and popery made no impression on them, he returned to New York. The next spring he appeared again before the fort; and, being favoured by an irruption of the Indians, obtained possession of it. The principal members of the convention absconded, upon which their effects were seized and confiscated. This harsh measure produced resentments which were transmitted from father to son.

Leisler retained the supreme power, without farther opposition, until the arrival of sir Henry Slaughter, who had been appointed governor of the province. Though informed of the commission which Slaughter bore, this infatuated man refused to yield the government to him; and showed a disposition, without the ability, to resist. This ill judged obstinacy threw the

governor, who soon obtained possession of the fort, into the arms of the opposite party. Leisler and Milbourne were arrested, tried for high treason, condemned, and executed. Their estates were confiscated, but were afterwards restored to their families.[\[116\]](#)

While these things were passing in the interior, the colonies of New England and New York were engaged in a bloody and desolating war with the French of Canada, and with the Indians. The English people had long viewed with apprehension, the advances of France towards universal dominion; and with infinite disgust, the influence of Louis XIV. in their cabinet. On the elevation of the Prince of Orange to the throne, they entered with alacrity into all his views for opposing barriers to the power, and restraints on the ambition, of that haughty monarch. War with France. The war which was proclaimed between the two nations, extended itself to their possessions in America. De Calliers, who sailed from Canada to France in 1688, had formed a plan for the conquest of New York, which was adopted by his government. Caffiniere commanded the ships which sailed from Rochefort on this expedition, subject however to the count de Frontignac, who was general of the land forces destined to march from Canada by the route of the river Sorel and of lake Champlain. The fleet and troops arrived at Chebucta, whence the count proceeded to Quebec leaving orders with Caffiniere to sail to New York.

On reaching Quebec, the count found all Canada in the utmost distress. In the preceding summer, twelve hundred warriors of the Five nations had suddenly landed on the island of Montreal, and put to death about one thousand of the inhabitants whom they found in perfect security. The place was again attacked in October, and the lower part of the island entirely destroyed. In consequence of these calamitous events, fort Frontignac, on lake Ontario, was evacuated, and two vessels which had been constructed there were burnt.

Count Frontignac, who, in his sixty-eighth year, possessed the activity of youth, after remaining a few days on shore, re-embarked in a canoe for Montreal. In the hope of conciliating the Five nations, he held a great council with them at Onondago, where the Indians showed some disposition towards a peace without concluding one. To influence their deliberations, and raise the depressed spirits of the Canadians, he sent out several parties against the English colonies. That against New York, consisting of about

two hundred French, and some Indians; after marching twenty-two days with their provisions on their backs, through a wilderness covered deep with snow, arrived, on 8th of February 1690, about eleven at night, at Schenectady, a village a few miles north-west of Albany. Schenectady destroyed. Finding the gates open and unguarded, they immediately entered the town, the inhabitants of which were asleep; and, dividing themselves into small parties, invested every house at the same time. No alarm was given until the doors were broken open; and then was commenced the perpetration of those barbarities which add so much to the ordinary horrors of war. The whole village was instantly in flames; pregnant women were ripped open and their infants cast into the flames, or dashed against the posts of the doors. Sixty persons were massacred, twenty-seven carried into captivity, and those who escaped fled naked, through a deep snow and storm to Albany. In the flight, twenty-five lost their limbs from the intensity of the cold. The town was pillaged until about noon the next day, when the enemy marched off with their plunder. Being pursued by a party of young men from Albany, about twenty-five of them were killed and captured.[\[117\]](#)

In the spring and summer of 1689, several settlements and forts in New Hampshire and Maine, were successfully attacked by the Indians; who, wherever they were victorious, perpetrated their usual cruelties. Expedition against Port Royal. Knowing that these depredations originated in Canada and Acadie, the general court of Massachusetts planned an expedition against both Port Royal and Quebec. Early in the spring, eight small vessels, carrying seven or eight hundred men, sailed under the command of sir William Phipps; and, almost without opposition, took possession of Port Royal, and of the whole coast between that place and New England. The fleet returned in May, having taken nearly plunder enough to discharge the expense of the equipment. But two detachments made about the same time by count Frontignac, attacked the Salmon falls, and fort Casco, where they killed and took about one hundred and eighty persons.



Penn Seeking Freedom for Imprisoned Friends

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The reference made in the panel inscription at the top of this picture is to William Penn's imprisonment in the Tower of London for publishing "The Sandy Foundation Shaken," in which he attacked the doctrines of the Trinity. While in prison he wrote his most famous and popular book, "No Cross, No Crown" and "Innocency With Her Open Face", in vindication of his Quaker faith. In 1681 Penn obtained from the British Crown, in lieu of a debt of £16,000 due him as heir to his father, Admiral Penn, a grant of territory now comprising the State of Pennsylvania. There he founded Philadelphia, as a Quaker colony, in the following year.

A vessel had been dispatched to England in April with letters urging the importance of conquering Canada, and soliciting the aid of the King to that enterprise. He was however too much occupied in Europe to attend to America; and it was determined to prosecute the expedition without his assistance. Against Quebec. New York and Connecticut, engaged to furnish a body of men, to march, by the way of lake Champlain, against Montreal, while the troops of Massachusetts should proceed by sea to Quebec. The fleet, consisting of between thirty and forty vessels, the largest of which

carried forty-four guns, sailed from Nantucket the ninth of August, having on board two thousand men. This expedition also was commanded by sir William Phipps, a brave man, but not qualified for so difficult an enterprise. He did not arrive before Quebec until October, when it was too late for a regular siege. Instead of availing himself of the first impression, sir William is charged with having wasted two or three days in sight of the place, after which he summoned it to surrender. Having performed this ceremony, he landed between twelve and thirteen hundred men, and marched until night, under a scattering fire from an enemy concealed in the woods. At night, a deserter gave such an account of the French force as entirely discouraged him.

Connecticut and New York were disappointed in receiving the assistance expected from the Five nations; who furnished neither the warriors they had promised, nor canoes to transport their troops over the lakes. The commissary too had neglected to lay up the necessary supplies of provisions. These disappointments obliged the party destined against Montreal to retreat without making an attempt on that place; which enabled the French general to oppose the whole force of Canada to Phipps.

The evening after the troops were landed, the ships were drawn up before the place, but received more damage from the batteries than they could do to the town. After wasting a few days in unavailing parade, the army re-embarked with precipitation, and returned to Boston.

The general court, so far from suspecting that the expedition might possibly miscarry, seem to have counted, not only on success, but on acquiring sufficient treasure from the enemy to pay their soldiers. The army, finding the government totally unprepared to satisfy its claims, was on the point of mutinying. In this state of difficulty, bills of credit were issued, and were received in lieu of money. A tax was imposed at the same time, payable in the paper notes of the colony at five per centum above par. Notwithstanding the exertions to keep up its credit, the paper depreciated to fourteen shillings in the pound, which depreciation was, almost entirely, sustained by the army. As the time for collecting the tax approached, the paper rose above par, but this appreciation was gained by the holders.[\[118\]](#)

Colonel Phipps, soon after his return from Canada, embarked for England, to renew the solicitations of the colony for aid in another attempt on Quebec. Though unsuccessful in this application, the government of the

province was bestowed on him; and, in this character, he returned to Boston. A desultory war continued to be carried on, which, without furnishing any events that would now be interesting, produced heavy expense, and much individual misery.

1693

Canada being considered as the source of all these evils, its conquest continued to be the favourite object of Massachusetts. At length, King William yielded to the solicitations of that colony and determined to employ a force for the reduction of Quebec. Unfortunately the first part of the plan was to be executed in the West Indies, where the capture of Martinique was contemplated. While on that service a contagious fever attacked both the land and sea forces; and, before they reached Boston, thirteen hundred sailors, and eighteen hundred soldiers, were buried. The survivors not being in a condition to prosecute the enterprise, it was abandoned.[\[119\]](#)

On the conquest of Acadie by sir William Phipps, the government of Massachusetts had been extended over that province; but, as the prejudices and affections of the inhabitants were entirely on the side of France, it was soon perceived that a military force alone could preserve the acquisition; and Massachusetts was unable, at her own expense, to support a sufficient body of troops for the defence of the country. 1696Port Royal was recovered by Villebonne, after which all Acadie shook off the government of Massachusetts, and resumed its allegiance to France. About the same time a fort at Pemaquid was attacked and carried by Iberville.

Peace.

In December, the treaty of peace which had been concluded at Riswick was proclaimed at Boston; and hostilities with the French in Canada immediately ceased. The depredations of the Indians continued only a short time after this event; and, in the course of the following year, general tranquillity was restored.

1697

The frontiers of New Hampshire had been not less exposed during the war, than those of Massachusetts. Perpetual and distressing incursions had been made into the country, which were marked by the burning of undefended habitations, and the massacre of men, women, and children.

[\[120\]](#)

Affairs of New York.

The frontiers of New York were covered by the Five nations. Hostilities were carried on between them and the French, but they were not attended by any material circumstance.

During the war the English government meditated a union of the colonies for the purpose of forming an army to defend New York; and the governors were instructed to propose to the several provinces to raise the quota of troops assigned to each^[121] by the crown. Though this plan never took effect, the fact is of some interest.

The influence of the French not yet extending far enough south to involve the colonies beyond New York in the calamities of Indian warfare, few occurrences took place among them which deserve attention. Of Virginia. In Virginia, the college of William and Mary, to which a charter had been granted in 1692, was liberally endowed, and was established at Williamsburg by an act of assembly which passed in the year 1693. In 1698, the state-house at Jamestown, with many valuable papers, was consumed by fire; and, in the following year, the legislature passed an act for removing the seat of government to Williamsburg, then called the middle plantation, and for building a capitol at that place.

By the treaty of Riswick, it was agreed that France and England should mutually restore to each other all conquests made during the war; and it was farther stipulated that commissioners should be appointed to examine and determine the rights and pretensions of each monarch to the places situated in Hudson's bay.

The consequences of not ascertaining boundaries were soon perceived. The English claimed as far west as the St. Croix, while France asserted her right to the whole country east of the Kennebeck.

War renewed.

These claims remained unsettled; and were mingled with other differences of more importance, which soon occasioned the re-commencement of hostilities.

1702

The whole weight of the war in America fell on New England. Previous to its commencement, the earl of Bellamont, who was at that time governor of New York as well as of Massachusetts and of New Hampshire, had

required that the quotas of men, assigned by the crown to the different colonies for the defence of New York, should be furnished. This requisition however was not complied with; and, before hostilities began, a treaty of neutrality was negotiated between the Five nations and the governor of Canada, which was assented to by lord Cornbury, then governor of New York. This treaty preserved the peace of that province, but left Massachusetts and New Hampshire to struggle with the combined force of the French and their Indian allies;—a struggle which seems to have been viewed by New York with the utmost composure.

Hostilities between Great Britain and France were immediately followed by incursions of French and Indians into the exposed parts of New England. A predatory and desolating war, attended with no striking circumstance, but with considerable expense and great individual distress, was carried on for some years. During its continuance, propositions were made for a cessation of hostilities; and the negotiations on this subject were protracted to a considerable length; but Dudley, who had succeeded the earl of Bellamont as governor of Massachusetts and New Hampshire, declined engaging for the neutrality of those provinces, in the hope that Nova Scotia and Canada might be subdued in the course of the war.

1707

The battle of Almanza, in Spain, having induced the British cabinet to direct an armament intended for New England to European objects, Dudley determined to make an attempt on Acadie, though no aid should arrive from England. With this view, he applied, early in the spring, to the assemblies of both his provinces, and to the colonies of Connecticut and Rhode Island; requesting them to raise one thousand men for the expedition. Connecticut declined furnishing her quota; but the other three colonies raised the whole number, who were disposed into two regiments, one commanded by colonel Wainright, and the other by colonel Hilton. On the 13th of May, they embarked at Nantucket on board a fleet of transports furnished with whale boats, under convoy of a man of war and a galley. The chief command was given to colonel March, who had behaved gallantly in several encounters with the Indians, but had never been engaged in such service as this. They arrived before Port Royal in a few days, and landed without opposition. After making some ineffectual attempts to bombard the fort, a disagreement among the officers, and a misapprehension of the state of the fort and

garrison, induced the troops to re-embark in a disorderly manner.[\[122\]](#) Dudley, who was unwilling to relinquish the enterprise, directed the army to remain in its position till farther orders. March was beloved by the soldiers, and was known to be brave, but his capacity was doubted. It was therefore thought unsafe either to recall him, to place an officer over him, or to continue him in the chief command. The expedient devised in this perplexity was, to send a commission to the army, composed of three members of the council, invested with all the powers which the governor himself, if present, would possess. These commissioners arrived at Casco about the middle of July, where they found the army insubordinate, and indisposed to the service. The troops, however, were again embarked, and arrived at Passamaquodi, on the seventh of August. The spirits of the general were broken, and his health was impaired. While dispositions for landing the army were making, he declared his inability to act, and the command devolved on colonel Wainright. The landing was effected on the 10th of August; but the troops could not be inspired with that union and firmness which are essential to success. After devoting ten days to inefficient, unmeaning operations, they re-embarked, and returned, sickly, fatigued and dispirited.

1708

During this unfortunate expedition, the frontiers were kept in perpetual alarm by small parties of Indians; and, in the succeeding year, a formidable armament was destined by Vaudreuil, the governor of Canada, against New England. This enterprise was not fully prosecuted, in consequence of the failure of several Indian tribes to furnish the number of warriors expected from them. Incursion into Massachusetts. A considerable force, however, penetrated into Massachusetts, and burnt a part of the town of Haverhill; where about one hundred persons were killed and many others carried off as prisoners. These invaders were pursued and overtaken by a body of troops collected in the neighbourhood, who killed a few of them, and recovered several of their own countrymen.

The New England colonies, still attributing all these calamities to the French were earnest in their solicitations to the crown, for aids which might enable them to conquer Canada. Their application was supported by the representations of Francis Nicholson, who had been lieutenant governor, first of New York, and afterward of Virginia; of Samuel Vietch, a trader to

Nova Scotia, and of colonel Schuyler, a gentleman of great influence in New York, who undertook a voyage to England for the purpose of communicating his sentiments more fully to administration, and carried with him resolutions of the assembly, expressing the high opinion that body entertained of his merit. Influenced by these representations, the British cabinet determined to undertake an expedition against the French settlements on the continent of North America, and on New Foundland, to consist of a squadron, having on board five regiments of regular troops, 1709 which were to be at Boston by the middle of May, 1709, where they were to be joined by twelve hundred men to be raised in Massachusetts and Rhode Island. Fifteen hundred men also were to be raised in the governments south of Rhode Island, who should proceed, by the way of lake Champlain, against Montreal. All the colonies, except Pennsylvania, executed with punctuality the part assigned to them. Nicholson, who was appointed to command the troops destined against Montreal, marched to Wood creek, where he was ordered to continue, until the arrival of the forces from Europe; that the two armies might co-operate with each other. The New England troops, who had been assembled at Boston remained at that place till September, expecting the arrival of the fleet and army from England. About that time, Nicholson returned from Wood creek, and it was obviously too late to proceed against Quebec. A meeting of the commanding officers, and governors of provinces was requested, in order to deliberate on future operations. A few days before this meeting was to take place, a ship arrived from England, with the intelligence that the armament intended for America had been ordered to Portugal, and with directions to hold a council of war, in order to determine on the propriety of employing the troops raised in America, against Port Royal; in which event the ships of war then at Boston were to aid the expedition. The commanders of the ships, except captain, afterwards admiral, Matthews, refused to engage in this service; and, it being unsafe to proceed without convoy, the men were disbanded.[\[123\]](#)

A congress, composed of governors, and of delegates from several of the assemblies, met at Rhode Island, and recommended the appointment of agents to assist colonel Nicholson in representing the state of the country to the Queen, and soliciting troops for an expedition against Canada, the next spring. Government seems at first to have thought favourably of this proposal, but finally determined to proceed only against Port Royal.

1710Five frigates and a bomb ketch, which were assigned for this service, arrived with Nicholson, in July. Although the troops were then to be raised, the whole armament, consisting of one regiment of marines, and four regiments of infantry, sailed from Boston the 18th of September; and on the 24th arrived before Port Royal. The place was immediately invested, and, after the exchange of a few shot and shells, was surrendered. Vietch was appointed governor, and its name, in compliment to the Queen, was changed to Annapolis.

After the reduction of Port Royal, Nicholson returned to England to renew the often repeated solicitations for an expedition against Canada. The ministry was now changed; and the colonists despaired of obtaining from those in power, any aids against the French. Contrary to the general expectation, his application succeeded; 1711and he arrived at Boston, in June, with orders to the governors as far south as Pennsylvania, to get their quotas of men and provisions in readiness to act with the fleet and army expected from Europe. Within sixteen days, while the several governors were yet deliberating on the subject of these orders, the fleet arrived. The service according perfectly with the wishes of the people as well as of the governors, every practicable exertion was made; and difficulties were overcome which, on other occasions, might have been deemed insurmountable. To supply the money which the English treasury could not then advance, the general court of Massachusetts issued bills of credit to the amount of forty thousand pounds; and the example was followed by Connecticut, New York, and New Jersey. Provisions were obtained by impressment.

The army consisted of seven veteran regiments, who had served under the duke of Marlborough; one regiment of marines; and two regiments of provincials; amounting, in the whole, to six thousand five hundred men; a force equal to that which afterwards reduced Quebec, when in a much better state of defence. This armament sailed from Boston on the 30th of July. Their sanguine hopes were all blasted in one fatal night. On the 23d of August, in the river St. Lawrence, the weather being thick and dark, eight transports were wrecked on Egg Island, near the north shore, and one thousand persons perished. The next day the fleet put back, and was eight days beating down the river against an easterly wind, which, in two, would have carried it to Quebec. After holding a fruitless consultation respecting an attempt on Placentia, the expedition was abandoned; and the squadron

sailed for England. Loud complaints were made, and heavy charges reciprocated, on this occasion. The ignorance of the pilots, the obstinacy of the admiral, the detention of the fleet at Boston, its late arrival there, the want of seasonable orders, and the secret intentions of the ministry, were all subjects of bitter altercation; but no regular inquiry was ever made into the causes of the miscarriage.

The plan of this campaign embraced also an attack on Montreal. Four thousand men raised in Connecticut, New York, and New Jersey, and commanded by colonel Nicholson, marched against that place by the way of Albany and lake Champlain. The failure of the expedition against Quebec enabling the governor of Canada to turn his whole force towards the lakes, Nicholson was under the necessity of making a precipitate retreat.

Peace.

No other event of importance took place during this war, which was terminated by the treaty of Utrecht. By the 12th article of this treaty, France ceded to England "all Nova Scotia or Acadié, with its ancient boundaries, as also the city of Port Royal, now called Annapolis Royal, and all other things in those parts which depend on the said lands." This territory, which had been comprehended in the grant made to the Plymouth company, was, with the consent of that company, afterwards granted by James as King of Scotland, under the name of Nova Scotia, to sir William Alexander.

Affairs of New York.

In New York, the Leislerian and anti-Leislerian parties continued to persecute each other. To this calamity was added, in the year 1702, the still heavier affliction of a malignant fever, imported in a vessel from the West Indies, which, in almost every instance, proved mortal. A similar disease raged, about the same time, in several other sea port towns; and was probably the same which has since produced such fatal effects under the name of the yellow fever.

In the same year, lord Cornbury, a needy and profligate nobleman, was appointed governor of the province. He embraced the anti-Leislerian party, that being then the strongest. On meeting the assembly, he urged the necessity of providing money for the public exigencies; and, as he had arranged himself with the ruling party, the vote of supply was liberal.

It was soon perceived that the confidence in the governor was misplaced. Considerable sums levied for objects of great interest, were applied to his

private use. The system adopted in New York, for collecting and keeping public money, was calculated to favour this speculation. The colony having no treasurer, its revenue came into the hands of the receiver general for the crown, whence it was drawn by a warrant from the governor. Contests soon arose, between his lordship and the legislature, on the subject of money; the house requiring a statement of disbursements, and the appointment of a treasurer, to be controlled by them. At length, in 1706, an act was passed raising three thousand pounds for fortifications, and directing the money to be placed in the hands of a person named by the legislature. The assent of the governor to this act was not given till the succeeding year, and was then accompanied with a message stating, that he had it in command from the Queen "to permit the general assembly to name their own treasurer when they raised extraordinary supplies for particular uses and which are no part of the standing and constant revenue."

The continual demands of the governor for money, his misapplication of it, his extortion in the form of fees, and his haughty tyrannical conduct increased the irritation subsisting between him and the legislature. At length, the Queen yielded to the complaints of both New York and New Jersey, and consented to recall him.

During these altercations, some spirited resolutions were entered into by the assembly; one of which claims particular notice. It is in these words: "Resolved, that the imposing and levying of any monies upon her majesty's subjects in this colony, under any pretence or colour whatsoever, without their consent in general assembly, is a grievance, and violation of the people's property."

This strong assertion of a principle, which afterwards dismembered the British empire, then passed away without notice. It was probably understood to be directed only against the assumption of that power by the governor.[\[124\]](#)

In Carolina, the vexatious contests with the proprietors still continued. The public attention was for a time diverted from these, by hostilities with their neighbours of Florida. 1702Before the declaration of war made against France and Spain, had been officially communicated, it was reported in the colonies that this event had taken place, and Mr. Moore, the governor of the southern settlements, proposed to the assembly an expedition against St. Augustine. Temperate men were opposed to this enterprise; but the

assurances of the governor, that Florida would be an easy conquest, and that immense treasure would be the reward of their valour, were too seductive to be resisted. A great majority of the assembly declared in favour of the expedition, and voted the sum of two thousand pounds sterling for its prosecution. Six hundred militia were embodied for the service, and an equal number of Indians engaged as auxiliaries.

Expedition against St. Augustine.

In the plan of operations which had been concerted, colonel Daniel was to move by the inland passage, with a party of militia and Indians, and attack the town by land; while the governor, with the main body should proceed by sea, and block up the harbour. Colonel Daniel executed his part of the plan with promptitude and vigour. He advanced against the town, which he entered and plundered before the governor reached the harbour. The Spaniards, however, had been apprised of the preparations making at Charleston, and had laid up provisions for four months, in the castle, into which they retired, as Daniel entered the town. On the arrival of the governor, the place was completely invested; but, it being impossible to carry the castle without battering artillery, colonel Daniel was dispatched to Jamaica for cannon, bombs, and mortars. During his absence, two small Spanish vessels of war were seen off the mouth of the harbour; upon which the governor raised the siege, abandoned his transports, and made a precipitate retreat to Carolina. Colonel Daniel returned soon afterwards, and, having no suspicion that the siege was raised, stood in for the harbour. He fortunately discovered his situation in time to escape, though with much difficulty.

This rash and ill conducted expedition entailed on the colony a debt of six thousand pounds sterling. The ignominy attached to it was soon wiped off by one that was attended with better success. The Appalachian Indians, who were attached to the Spaniards, had become extremely troublesome to the inhabitants of the frontiers. The governor, at the head of a body of militia and friendly Indians, marched into the heart of their settlements, laid their towns in ashes, made several prisoners, and compelled them to sue for peace, and submit to the British government.[\[125\]](#)

Governor Johnson.

Soon after this transaction, sir Nathaniel Governor Johnson, who had been appointed to succeed Mr. Moor arrived in Charleston. He

endeavoured, but ineffectually to turn the attention of the colonists to the culture of silk. This article, as well as cotton was neglected, and rice became the great staple of the country.

Attempt to establish the Episcopal church.

During his administration, the contests between the proprietors and the people increased. An attempt to establish the Episcopal church was added to other pre-existing causes of discord. The colony having been settled by emigrants from different nations, of different religious persuasions, the indiscreet endeavour to produce uniformity, could not fail to increase their irritation. The influence of the governor in the legislature obtained the passage of such acts as were necessary for his purpose; but many petitions against them were laid before parliament; and the house of lords presented so decisive an address to her majesty on the subject, that a writ of *quo warranto* against the charter was directed. This measure, however, was not put in execution; and the attention of the colonists was diverted, for a time, from these intestine broils, by the appearance of danger from abroad.

1704

Spain claimed the whole country, as part of Florida; and was preparing an expedition to enforce this claim. Governor Johnson, who had acquired some military skill in European service, having received intelligence of these preparations, made great exertions to fortify the entrance into the harbour of Charleston, and to put the province in a state of defence.

There was reason to rejoice that these precautions were used; for, although no armament arrived from Europe, yet an expedition planned in the Havanna, was carried into execution.

Colony invaded.

A French frigate and four armed Spanish sloops, commanded by Monsieur Le Febour, sailed for Charleston, with orders to touch at St. Augustine for men. His force is said to have amounted to about eight hundred. A government cruiser descried this squadron off the bar of St. Augustine, and brought the intelligence to Charleston. Scarcely had the captain delivered his information, when signals from Sullivan's island announced its appearance off the coast. The alarm was immediately given, and the militia of the town were under arms. In the evening the fleet reached Charleston bar, but deferred attempting to pass it until the morning.

After consuming a day in sounding the south bar, the Spanish flotilla crossed it, and anchored above Sullivan's island. The governor then directed some pieces of heavy artillery to be placed in the vessels in the harbour; and gave the command of them to William Rhet. A summons to surrender being rejected, a party of the enemy landed on James' island, and burnt a few houses. Another party, consisting of one hundred and sixty men, landed, about the same time, on the opposite side of the river. Both these were attacked and defeated.

Encouraged by this success, Johnson determined to attack the invaders by sea. In execution of this determination, Rhet, with six small vessels, proceeded down the river to the place where the hostile flotilla rode at anchor which, at his approach, precipitately re-crossed the bar. For some days it was believed that the enterprise was abandoned; but while the inhabitants were rejoicing at their deliverance, advice was received that a ship of force had been seen in Sewee bay, and had landed a number of men. On examining his prisoners, the governor was informed that the enemy had expected a ship of war with a reinforcement of two hundred men, under the command of Monsieur Arbuset. Taking his measures with the promptness of an experienced officer, he ordered captain Fenwick to pass the river, and march against the detachment which had landed; while Rhet, with two small armed vessels, sailed round by sea, with orders to meet the ship in Sewee bay. Fenwick came up with the party on shore, charged them briskly, and drove them to their ship, which, on the appearance of Rhet, surrendered without firing a shot. The prize with about ninety prisoners was brought up to Charleston.

Thus was terminated with the loss of near three hundred men killed and prisoners, among the latter of whom were the general and some naval officers, the invasion of Carolina by Monsieur Le Febour. It seems to have been undertaken in the confidence that the colony was too weak for resistance; and was conducted without skill or courage.

Bills of credit.

To defray the expenses incurred in repelling this invasion, bills of credit to the amount of eight thousand pounds were issued. The effect of this emission was such a depreciation of the currency under the form of a rise in the price of commodities and of exchange, that one hundred and fifty pounds in paper, were given for one hundred pounds sterling.

1707

Lord Granville, the palatine, a bigoted churchman, under whose influence violent measures had been taken for the establishment of religious conformity in Carolina, died in the year 1707. He was succeeded by lord Craven, who, though of the same religious tenets, supported them with moderation. His disposition to indulge, and thereby mollify, the dissenters, was considered by the zealots of the established church, as endangering religion; and the legislature, which was elected under the influence of the late palatine, and of his governor, dreading a change in the administration, 1708Legislature continues itself.adopted the extraordinary measure of continuing itself "for two years, and for the time and term of eighteen months after the change of government, whether by the death of the present governor, or the succession of another in his time."[\[126\]](#) Thus adding one other humiliating proof to those which perpetually occur, that principles are deplorably weak, when opposed by the passions.

1712

Massacre in North Carolina by the Indians.

In the year 1712, the Indians in North Carolina, alarmed, as their countrymen had been in the other colonies, by the increasing population and regular encroachments of the whites, formed with their accustomed secrecy, the plan of exterminating in one night these formidable neighbours. No indication of their design was given until they broke into the houses of the planters. The slaughter on Roanoke was immense. In that settlement alone, one hundred and thirty-seven persons were murdered. A few escaped by concealing themselves in the woods, who, the next day, gave the alarm. The remaining whites were collected together in a place of safety, and guarded by the militia until assistance could be received from South Carolina.

This was prompt and effectual. The assembly at Charleston voted four thousand pounds for the service; and colonel Barnwell was detached with six hundred militia, and three hundred and sixty Indians, to the relief of the afflicted North Carolinians. With the utmost celerity he passed through the difficult and dangerous wilderness which then separated the northern from the southern settlements; Indians defeated.and, attacking the savages with unexpected fury, killed three hundred of them, and made one hundred

prisoners. The survivors retreated to the Tuscorora town, and took refuge within a wooden breast-work, in which they were surrounded by the whites.

After sustaining considerable loss, they sued for peace and obtained it; but soon afterwards abandoned their country, and united themselves with the Iroquois, or Five nations.

The expense of this expedition greatly transcended the scanty means of South Carolina. To supply the exigencies of government, and to promote the convenience of commerce, the legislature determined to issue forty-eight thousand pounds in bills of credit, to be denominated bank bills. This money was to be lent out, at interest, on security, and to be redeemed gradually by the annual payment of one-twelfth part of the sum loaned. The bills were made a legal tender; and the creditor who should refuse them, lost his debt.

After the emission of these bills, exchange rose, the first year, to one hundred and fifty, and in the second to two hundred per centum, above par. The effect of this depreciation, and of the tender laws which accompanied it, on creditors, and on morals, was obvious and certain.

CHAPTER VIII.

Proceedings of the legislature of Massachusetts.... Intrigues of the French among the Indians.... War with the savages.... Peace.... Controversy with the governor.... Decided in England.... Contests concerning the governor's salary.... The assembly adjourned to Salem.... Contest concerning the salary terminated.... Great depreciation of the paper currency.... Scheme of a land bank.... Company dissolved by act of Parliament.... Governor Shirley arrives.... Review of transactions in New York.

1714

The heavy expenses of Massachusetts during the late war had produced such large emissions of paper money, that a considerable depreciation took place, and specie disappeared. The consequent rise of exchange, instead of being attributed to its true cause, was ascribed to the decay of trade.

The colony, having now leisure for its domestic concerns, turned its attention to this interesting subject.

Affairs of Massachusetts.

Three parties were formed. The first, a small one, actuated by the principle that "honesty is the best policy," was in favour of calling in the paper money, and relying on the industry of the people, to replace it with a circulating medium of greater stability.

The second proposed a private bank, which was to issue bills of credit, to be received by all the members of the company, but at no certain value compared with gold and silver. It was not intended to deposit specie in the bank for the redemption of its notes as they might be offered; but to pledge real estates as security that the company would perform its engagements.

The third party was in favour of a loan of bills from the government, to any of the inhabitants who would mortgage real estate to secure their repayment in a specified term of years; the interest to be paid annually, and applied to the support of government.

The first party, perceiving its numerical weakness, joined the third; and the whole province was divided between a public and private bank.

At length, the party for the public bank prevailed in the general court, and fifty thousand pounds were issued and placed in the hands of trustees; to be lent for five years, at an interest of five *per centum per annum*, one-fifth part of the principal to be paid annually.

1716

This scheme failing to improve the commerce of the colony, governor Shute, who had succeeded Dudley, reminded the assembly of the bad state of trade, which he ascribed to the scarcity of money; and recommended the consideration of some effectual measures to supply this want. The result of this recommendation was a second loan of one hundred thousand pounds for ten years, to be placed in the hands of commissioners in each county, in proportion to its taxes. The whole currency soon depreciated to such a degree, that the entire sum in circulation did not represent more real value, than was represented by that which was circulating before the emission. The governor had now sufficient leisure, and the general court furnished him with sufficient motives, to reflect on the policy he had recommended. An attempt to raise his salary as money depreciated, did not succeed, and only the usual nominal sum was voted for his support.

1719

In Massachusetts, peace abroad was the signal for dissension at home. Independent in her opinions and habits, she had been accustomed to consider herself rather as a sister kingdom, acknowledging one common sovereign with England, than as a colony. The election of all the branches of the legislature, a principle common to New England, contributed, especially while the mother country was occupied with her own internal divisions, to nourish these opinions and habits. Although the new charter of Massachusetts modified the independence of that colony, by vesting the appointment of the governor in the crown, yet the course of thinking which had prevailed from the settlement of the country, had gained too much strength to be immediately changed; and Massachusetts sought, by private influence over her chief magistrate, to compensate herself for the loss of his appointment. With this view, it had become usual for the general court to testify its satisfaction with his conduct by presents; and this measure was also adopted in other colonies.

Apprehending that this practice might dispose the governors to conciliate the legislatures at the expense of their duty to the crown, the Queen had given peremptory orders to receive no more gifts; and to obtain acts fixing their salaries permanently at a sum named by herself. The mandate respecting presents was, of course, obeyed; and some of the colonies complied with the requisition respecting the salary; but in Massachusetts and New York, it was steadily resisted.

A controlling power over salaries was a source of influence which was pertinaciously maintained; and its efficacy was tried in all the conflicts between Massachusetts and her governor. Almost every important measure brought before the legislature, was productive of contests between these departments. They disagreed, not only on the policy of particular acts, but on the limits of their power. The governor claimed the right of negating the speaker chosen by the representatives, which was denied by them; and, each party persisting in its pretensions, the assembly was dissolved, and new elections took place. The same members being generally re-chosen, the house of representatives assembled with increased irritation, and passed some angry resolutions respecting its dissolution. The governor, in turn, charged the house with encroachments on the power of the executive; among other instances of which, he mentioned certain resolutions passed on the commencement of hostilities by the Indians, which were deemed equivalent to a declaration of war, and had therefore been rejected.

1721

Disagreements were multiplied between them. Paper money and trade were inexhaustible sources of discontent. New elections produced no change of temper. After war was formally declared against the Indians, the house endeavoured to exercise executive powers in its prosecution; and, the council not concurring with them, the representatives attempted, in one instance, to act alone.

The measures recommended by the governor to successive assemblies, were disregarded; irritating resolves were adopted and reiterated; and a course of angry crimination and recrimination took place between them in the progress of which the governor's salary was reduced in its nominal as well as real amount; and the sum granted, instead of being voted, as had been usual, at the commencement of the session, was reserved to its close.

1722

In the midst of these contests, governor Shute, who had privately solicited and obtained leave to return to England, suddenly embarked on board the *Sea Horse* man of war, leaving the controversy concerning the extent of the executive power, to devolve on the lieutenant governor.[\[127\]](#)

The house of representatives persisted in asserting its control over objects which had been deemed within the province of the executive; but its resolutions were generally negatived by the council. This produced some altercation between the two branches of the legislature; but they at length united in the passage of a resolution desiring their agent in England to take the best measures for protecting the interests of the colony, which were believed to be in danger from the representations of governor Shute.

Intrigues of the French with the Indians.

During these contests in the interior, the frontiers had suffered severely from the depredations of the Indians. The French had acquired great influence over all the eastern tribes. Jesuit missionaries generally resided among them, who obtained a great ascendancy in their councils. After the cession of Nova Scotia to Great Britain, father Rahlé, a missionary residing among the savages of that province exerted successfully all his address to excite their jealousies and resentments against the English. By his acts, and those of other missionaries, all the eastern Indians, as well as those of Canada, were combined against New England. They made incursions into Massachusetts, in consequence of which, some troops were detached to the village in which Rahlé resided, for the purpose of seizing his person. He received intimation of their approach in time to make his escape; but they secured his papers, among which were some showing that in exciting the savages to war against the English colonists, he had acted under the authority of the governor of Canada, who had secretly promised to supply them with arms and ammunition.

1726

Envoys were deputed with a remonstrance against conduct so incompatible with the state of peace then subsisting between France and England. The governor received this embassy politely, and, at first, denied any interference in the quarrel, alleging that the Indians were independent nations who made war and peace without being controlled by him. On being shown his letters to Rahlé, he changed his language, and gave assurances of his future good offices in effecting a peace. On the faith of these assurances, conferences were held with some Indian chiefs then in Canada; several captives were ransomed; Peace.and, soon after the return of the commissioners to New England, the war was terminated by a treaty of peace signed at Boston.[\[128\]](#)

Decision against the house on the controversy with the governor.

Meanwhile the complaints of governor Shute against the house of representatives were heard in England. Every question was decided against the house. In most of them, the existing charter was deemed sufficiently explicit; but, on two points, it was thought advisable to have explanatory articles. These were, the right of the governor to negative the appointment of the speaker, and the right of the house on the subject of the adjournment. New Charter.An explanatory charter therefore affirming the power claimed by the governor to negative a speaker, and denying to the house of representatives the right of adjourning itself for a longer time than two days. This charter was submitted to the general court, to be accepted or refused; but it was accompanied with the intimation that, in the event of its being refused, the whole controversy between the governor and house of representatives would be laid before Parliament. The conduct of the representatives had been so generally condemned in England, as to excite fears that an act to vacate the charter would be the consequence of a parliamentary inquiry. The temper of the house too had undergone a change. The violence and irritation which marked its proceedings in the contest with governor Shute had subsided; and a majority determined to accept the new charter.

1727

The trade of the province still languished, and complaints of the scarcity of money were as loud as when only specie was in circulation. To remedy these evils, a bill for emitting a farther sum in paper passed both houses, but

was rejected by the lieutenant governor, as being inconsistent with his instructions. The house of representatives, thereupon, postponed the consideration of salaries till the next session. The assembly was then adjourned at its own request, and, after a recess of a fortnight, was again convened. As an expedient to elude the instructions to the governor which interdicted his assent to any act for issuing bills of credit, except for charges of government, a bill passed with the title of "an act for raising and settling a public revenue for and towards defraying the necessary charges of government, by an emission of sixty thousand pounds in bills of credit." This bill providing for the payment of the salaries to which several members of the council were entitled, passed that house also; and the lieutenant governor gave a reluctant assent to it. Its passage into a law furnishes strong evidence of the influence which the control over salaries gave to the house of representatives.

1728

Contest respecting salary.

Mr. Burnet, who had been appointed governor of Massachusetts and New Hampshire, was received with great pomp in Boston. At the first meeting of the assembly, he stated the King's instructions to insist on an established salary, and his intention firmly to adhere to them. The assembly was not less firm in its determination to resist this demand; and, that no additional and unnecessary obloquy might be encountered, resolved, not to mingle any difference concerning the amount of the salary, with the great question of its depending on the will of the legislature. As soon therefore as the compliments usual on the arrival of a governor had passed, the house voted one thousand seven hundred pounds towards his support, and to defray the charges of his journey. This vote was understood to give him, as a present salary, a sum equal to one thousand pounds sterling per annum. The governor declared his inability to assent to this bill, it being inconsistent with his instructions. After a week's deliberation, the assembly granted three hundred pounds for the expenses of his journey, which he accepted; and, in a distinct vote, the farther sum of one thousand four hundred pounds was granted toward his support. The latter vote was accompanied with a joint message from both houses, wherein they asserted their undoubted right as Englishmen, and their privilege by the charter, to raise and apply money for the support of government; and their willingness to give the governor an ample and honourable support; but they apprehended it would be most for

his majesty's service to do so without establishing a fixed salary. The governor returned an answer on the same day, in which he said, that, if they really intended to give him an ample and honourable support, they could have no just objection to making their purpose effectual by fixing his salary; for he would never accept a grant of the kind then offered.

The council was disposed to avoid the contest, and to grant a salary to the present governor for a certain time; but the house of representatives, remaining firm to its purpose, sent a message to the governor requesting that the court might rise. He answered, that a compliance with this request would put it out of the power of the legislature to pay immediate regard to the King's instructions; and he would not grant a recess, until the business of the session should be finished. The representatives then declared that, "in faithfulness to the people, they could not come into an act for establishing a salary on the governor or commander in chief for the time being," and, therefore, renewed their request that the court might rise.

Both the governor and the house of representatives seem, thus far, to have made their declarations with some reserve. A salary during his own administration might, perhaps, have satisfied him, though he demanded that one should be settled, generally, on the commander in chief for the time being; and the house had not yet declared against settling a salary on him for a limited time. Each desired that the other should make some concession. Both declined; both were irritated by long altercation; and, at length, instead of mutually advancing fixed at the opposite extremes. After several ineffectual efforts on each side, the representatives sent a message to the governor, stating at large the motives which induced the resolution they had formed. The governor returned a prompt answer, in which he also detailed the reasons in support of the demand he had made. These two papers, manifesting the principles and objects of both parties, deserve attention even at this period.

The house, not long after receiving this message, far from making any advances towards a compliance with his request, came to two resolutions strongly expressive of its determination not to recede from the ground which had been taken.

These resolutions gave the first indication, on the part of the representatives, of a fixed purpose to make no advance towards a compromise. They induced the governor to remind the court of the danger

to which the proceedings of that body might expose the charter. This caution did not deter the house from preparing, and transmitting to the several towns of the province a statement of the controversy, which concludes with saying, "we dare neither come into a fixed salary on the governor for ever, nor for a limited time, for the following reasons:

First, Because it is an untrodden path which neither we, nor our predecessors have gone in, and we cannot certainly foresee the many dangers that may be in it, nor can we depart from that way which has been found safe and comfortable.

Secondly, Because it is the undoubted right of all Englishmen, by *magna charta*, to raise and dispose of money for the public service, of their own free accord, without compulsion.

Thirdly, Because it must necessarily lessen the dignity and freedom of the house of representatives, in making acts, and raising and applying taxes, &c. and, consequently, cannot be thought a proper method to preserve that balance in the three branches of the legislature, which seems necessary to form, maintain, and uphold, the constitution.

Fourthly, Because the charter fully empowers the general assembly to make such laws and orders as they shall judge for the good and welfare of the inhabitants; and if they, or any part of them, judge this not to be for their good, they neither ought nor could come into it, for, as to act beyond or without the powers granted in the charter might justly incur the King's displeasure, so not to act up and agreeable to those powers, might justly be deemed a betraying of the rights and privileges therein granted; and if they should give up this right, they would open a door to many other inconveniences."

Many messages passed in quick succession between the governor and the house, in the course of which the arguments stated in the papers which have been mentioned, were enlarged and diversified. At length, the house repeated its request for an adjournment; but the governor replied that "unless his majesty's pleasure had due weight with them, their desires would have very little with him."

The council now interposed with a resolution declaring "that it is expedient for the court to ascertain a sum as a salary for his excellency's support, as also the term of time for its continuance." This resolution was transmitted to the house of representatives, and immediately rejected.

After much controversy, a small seeming advance towards an accommodation was made. Instead of voting a salary, as had been usual, for half a year, a grant was made to the governor of three thousand pounds, equal to one thousand pounds sterling, to enable him to manage the affairs of the province. This was generally understood to be a salary for a year. The governor having withheld his assent from this vote, the house entreated him to accept the grant; and added "we cannot doubt but that succeeding assemblies, according to the ability of the province, will be very ready to grant as ample a support; and if they should not, your excellency will then have an opportunity of showing your resentment." The governor however persisted to withhold his assent from the vote.

The colony generally, and especially Boston, was opposed to a compliance with the instructions of the crown. At a general meeting of the inhabitants, the town passed a vote, purporting to be unanimous against fixing a salary on the governor. Adjournment of the Assembly to Salem. In consequence of this vote, and of an opinion that the members of the house were influenced by the inhabitants of the town, the governor determined to change the place at which the court should hold its session; and on the 24th of October, adjourned it to the 30th then to meet at Salem, in the country of Essex.

Change of place did not change the temper of the house. This was not, as in the contests with governor Shute, an angry altercation, into which the representatives were precipitated by a restless and encroaching temper, but a solemn and deliberate stand, made in defence of a right believed to be unquestionable, and of a principle deemed essential to the welfare of the colony. The ground taken was considered well, and maintained with firmness. Votes and messages of the same tenor with those which had been often repeated, continued to pass between the representatives and the governor, until the subject was entirely exhausted. Each party being determined to adhere to its principles, the house met and adjourned daily, without entering on business.

In the mean time, the governor received no salary. To the members of Boston, who had not been accustomed to the expense of attending the legislature at a distant place, a compensation, above their ordinary wages, was made by that town.

The house, firmly persuaded of the propriety of its conduct, prepared a memorial to the King praying a change in the royal instructions to the governor. Agents were appointed to represent the general court in England, and a vote was passed for defraying the expenses attendant on the business. The council refused to concur in this vote, because the agents had been appointed by the house of representatives singly; and the measure must have been abandoned for want of money, had not the inhabitants of Boston raised the sum required, by subscription.

1729

Letters were soon received from these agents, inclosing a report from the board of trade, before whom they had been heard by council, entirely disapproving the conduct of the house. The letters also indicated that, should the house persist in its refusal to comply with the King's instructions, the affair might be carried before parliament. But, should even this happen, the agents thought it more advisable that the salary should be fixed by the supreme legislature, than by that of the province. "It was better," they said, "that the liberties of the people should be taken from them, than given up by themselves."

The governor, at length, refused to sign a warrant on the treasury for the wages of the members. "One branch of the legislature," he said, "might as well go without their pay as the other." The act, and the reason for it, were alike unsatisfactory to the house.

Death of Governor Burnet.

After a recess from the 20th of December to the 2d of April, the general court met again at Salem. Repeated meetings at that place having produced no accommodation, the governor adjourned the legislature to Cambridge. A few days after the commencement of the session, he was seized with a fever, of which he died.

Mr. Burnet is said to have possessed many valuable qualities; and, had he not been engaged, by a sense of duty, in this long contest, he would, in all probability, have been a favourite of the province.[\[129\]](#)

1730

Arrival of Governor Belcher.

Mr. Belcher, who succeeded Burnet, arrived at Boston early in August where he was cordially received. At the first meeting of the general court,

he pressed the establishment of a permanent salary, and laid before them his instructions, in which it was declared that, in the event of the continued refusal of the assembly, "his majesty will find himself under the necessity of laying the undutiful behaviour of the province before the legislature of Great Britain, not only in this single instance, but in many others of the same nature and tendency, whereby it manifestly appears that this assembly, for some years last past, have attempted, by unwarrantable practices, to weaken, if not cast off, the obedience they owe to the crown, and the dependence which all colonies ought to have on the mother country."

At the close of these instructions, his majesty added his expectation, "that they do forthwith comply with this proposal, as the last signification of our royal pleasure to them on this subject, and if the said assembly shall not think fit to comply therewith, it is our will and pleasure, and you are required, immediately, to come over to this kingdom of Great Britain, in order to give us an exact account of all that shall have passed on this subject, that we may lay the same before our parliament."

The house proceeded, as in the case of governor Burnet, to make a grant to Mr. Belcher of one thousand pounds currency for defraying the expense of his voyage, and as a gratuity for his services while the agent of the colony in England; and, some time after, voted a sum equal to one thousand pounds sterling to enable him to manage the public affairs, &c.; but fixed no time for which the allowance was made. The council concurred in this vote, adding an amendment "and that the same sum be annually allowed for the governor's support." The house not agreeing to this amendment, the council carried it so as to read "that the same sum should be annually paid during his excellency's continuance in the government, and residence here." This also was disagreed to and the resolution fell.

The small-pox being in the town of Cambridge, the assembly was adjourned to Roxbury.

Two or three sessions passed with little more, on the part of the governor, than a repetition of his demand for a fixed salary, and an intimation that he should be obliged to return to England, and state the conduct of the house of representatives to the King. Some unsuccessful attempts were made by his friends to pass a bill fixing the salary during his administration, with a protest against the principle, and against that bill's being drawn into precedent. Failing in this expedient, and finding the house inflexible, he

despaired of succeeding with that body, and turned his attention to the relaxation of his instructions. 1731He advised an address from the house to his majesty, praying that he might be permitted to receive the sum which the legislature had offered to grant him. This was allowed by the crown; with the understanding that he was still to insist on a compliance with his instructions. Leave to accept particular grants was obtained for two or three years successively; and, at length, a general permission was conceded to accept such sums as might be given by the assembly.[\[130\]](#)

Contest concerning the salary terminated.

Thus was terminated, the stubborn contest concerning a permanent salary for the governor. Its circumstances have been given more in detail than consists with the general plan of this work, because it is considered as exhibiting, in genuine colours, the character of the people engaged in it. It is regarded as an early and an honourable display of the same persevering temper in defence of principle, of the same unconquerable spirit of liberty, which at a later day, and on a more important question, tore the British colonies from a country to which they had been strongly attached.

1733

The immense quantity of depreciated paper which was in circulation throughout New England, had no tendency to diminish the complaints of the scarcity of money. Massachusetts and New Hampshire were restrained from farther emissions by the instructions to their governors, who received their appointments from the crown. Connecticut, engaged chiefly in agricultural pursuits, suffered less from this depreciated medium than her neighbours, and was less disposed to increase its evils. Rhode Island, equally commercial with Massachusetts, and equally fond of paper, chose her own governor, and might therefore indulge, without restraint, her passion for a system alike unfavourable to morals and to industry. That colony now issued one hundred thousand pounds on loan, to its inhabitants, for twenty years. The merchants of Boston, apprehensive that this capital would transfer the stock of Massachusetts to Rhode Island, associated against receiving the new emission; and many of them formed a company which issued one hundred and ten thousand pounds, redeemable with specie, in ten years, a tenth part annually, at the then current value of paper. The association against receiving the new emission of Rhode Island was not long observed; and the bills of New Hampshire and Connecticut were also

current. Silver immediately rose to twenty-seven shillings the ounce, and the notes issued by the merchants soon disappeared, leaving in circulation only the government paper.

1739

Great uneasiness prevailed through Massachusetts on this subject. The last instalment of the bills would become due in 1741, and no power existed to redeem them by new emissions. Serious consequences were apprehended from calling in the circulating medium without substituting another in its place, and the alarm was increased by the circumstance that the taxes had been so lightly apportioned on the first years, as to require the imposition of heavy burdens for the redemption of what remained in circulation. The discontents excited by these causes were manifested in the elections, and were directed against the governor, who was openly hostile to the paper system.

Land bank.

The projector of the bank again came forward; and, placing himself at the head of seven or eight hundred persons, some of whom possessed property, proposed to form a company which should issue one hundred and fifty thousand pounds in bills. By this scheme, every borrower of a sum larger than one hundred pounds, was to mortgage real estate to secure its repayment. The borrowers of smaller sums might secure their re-payment either by mortgage, or by bond with two securities. Each subscriber, or partner was to pay, annually, three per centum interest on the sum he should take, and five per centum of the principal, either in the bills themselves, or in the produce and manufactures of the country, at such rates as the directors should, from time to time, establish.

Although the favourers of this project were so successful at the elections as to obtain a great majority in the general court, men of fortune, and the principal merchants, refused to receive these bills. Many small traders, however, and other persons interested in the circulation of a depreciated currency, gave them credit. The directors themselves, it was said, became traders; and issued bills without limitation, and without giving security for their redemption. The governor, anticipating the pernicious effects of the institution, exerted all his influence against it. He displaced such executive officers as were members of it, and negatived the speaker, and thirteen members elected to the council, who were also of the company.

1740 Company dissolved. General confusion being apprehended, application was made to parliament for an act to suppress the company. This being readily obtained, the company was dissolved, and the holders of the bills were allowed their action against its members, individually.[\[131\]](#)

About this time governor Belcher was recalled, and Mr. Shirley was appointed to succeed him. He found the land bank interest predominant in the house, and the treasury empty.

1741

In this state of things, he deemed it necessary to depart from the letter of his instructions, in order to preserve their spirit. A bill was passed declaring that all contracts should be understood to be payable in silver at six shillings and eight pence the ounce, or in gold at its comparative value. Bills of a new form were issued, purporting to be for ounces of silver, which were to be received in payment of all debts, with this proviso, that if they should depreciate between the time of contract and of payment, a proportional addition should be made to the debt.

Affairs of New York.

While these transactions were passing in New England, symptoms of that jealousy which an unsettled boundary must produce between neighbours, began to show themselves in Canada and New York. The geographical situation of these colonies had, at an early period, directed the attention of both towards the commerce of the lakes. Mr. Burnet, the governor both of New York and New Jersey, impressed with the importance of acquiring the command of lake Ontario, had, in the year 1722, erected a trading house at Oswego in the country of the Senecas. This measure excited the jealousy of the French, who launched two vessels on the lake, and transported materials to Niagara for building a large store house, and for repairing the fort at that place. These proceedings were strongly opposed by the Senecas, and by the government of New York. Mr. Burnet remonstrated against them as encroachments on a British province, and also addressed administration on the subject. Complaints were made to the cabinet of Versailles; but the governor of Canada proceeded to complete the fort. To countervail the effects of a measure which he could not prevent, governor Burnet erected a fort at Oswego; soon after the building of which, while Mr. Vandam was governor of New York, the French took possession of Crown Point, which they fortified; and thus acquired the command of lake Champlain.

Obviously as this measure was calculated to favour both the offensive and defensive operations of France in America, the English minister, after an unavailing remonstrance, submitted to it.

CHAPTER IX.

War with the southern Indians.... Dissatisfaction of Carolina with the proprietors.... Rupture with Spain.... Combination to subvert the proprietary government.... Revolution completed.... Expedition from the Havanna against Charleston.... Peace with Spain.... The proprietors surrender their interest to the crown.... The province divided.... Georgia settled.... Impolicy of the first regulations.... Intrigues of the Spaniards with the slaves of South Carolina.... Insurrection of the slaves.

1715

In Carolina, the contests between the inhabitants and the proprietors, added to the favour with which the Queen heard the complaints of the dissenters, had turned the attention of the people towards the crown, and produced a strong desire to substitute the regal, for the proprietary government. This desire was increased by an event which demonstrated the incompetency of their government.

War with the Indians.

The Yamassees, a powerful tribe of Indians on the north east of the Savanna, instigated by the Spaniards at St. Augustine, secretly prepared a general combination of all the southern Indians, against the province. Having massacred the traders settled among them, they advanced in great force against the southern frontier, spreading desolation and slaughter on their route. The inhabitants were driven into Charleston; and governor Craven proclaimed martial law. He also obtained an act of assembly empowering him to impress men; to seize arms, ammunition, and stores; to arm such negroes as could be trusted; and, generally, to prosecute the war with the utmost vigour. Agents were sent to Virginia and to England to solicit assistance, and bills were issued for the payment and subsistence of the army.

At the same time, the Indians entered the northern part of the province, and were within fifty miles of the capital. Thus surrounded by enemies, the governor took the course which was suggested equally by courage and by

prudence. Leaving the less active part of the population to find security in the forts at Charleston, he marched with the militia, towards the southern frontier, which was invaded by the strongest body of Indians; and, at a place called Salt Catchers, attacked and totally defeated them. The victors pursued them into their own country, expelled them from it, and drove them over the Savanna river. The fugitives found protection in Florida, where they made a new settlement, from which they continued long afterwards, to make distressing incursions into Carolina.

The agent who had been sent by the legislature to England to implore the protection of the proprietors, had received ulterior instructions, should he not succeed with them, to apply directly to the King. Being dissatisfied with his reception by the proprietors, he petitioned the house of commons, who addressed the King, praying his interposition, and immediate assistance to the colony. The King referred the matter to the lords commissioners of trade and plantations, whose report was unfavourable to the application, because the province of Carolina was a proprietary government. They were of opinion that, if the colony was to be protected at the expense of the nation, its government ought to be vested in the crown. On receiving this opinion, the proprietors, in a general meeting, avowed their inability to protect the province, and declared that, unless his majesty would graciously please to interpose, they could foresee nothing but the utter destruction of his faithful subjects in those parts.

A government unable to afford protection to the people, was ill adapted to the situation of Carolina.

The dissatisfaction growing out of this cause was still farther augmented by the unpopular, and, in some instances, unwise acts of the proprietors.

To relieve the distress produced by war, considerable sums of paper money had been issued; and the proprietors, on the complaint of the merchants, of London engaged in the trade of the province, had given instructions to reduce the quantity in circulation.

1715 to 1717

The assembly had appropriated the country of the Yamassees, to the use of such of his majesty's European subjects, as would settle it. Extracts from the law on this subject being published in England, and in Ireland, five hundred men from the latter kingdom emigrated to Carolina. The proprietors repealed this law; and, to the utter ruin of the emigrants, as well

as to the destruction of this barrier against the savages, ordered the lands to be surveyed, and erected into baronies, for themselves.

While the population was confined to the neighbourhood of Charleston, all the members of the assembly had been elected at that place. As the settlements extended, this practice became inconvenient; and an act was passed, declaring that every parish should choose a certain number of representatives, and that the elections should be held, in each, at the parish church. As if to destroy themselves in the province, the proprietors repealed this popular law also.

Heavy expenses being still incurred for defence against the inroads of the southern Indians, the people complained loudly of the insufficiency of that government which, unable itself to protect them, prevented the interposition of the crown in their favour.

In this temper, governor Johnson, son of the former governor of that name, found the province. He met the assembly with a conciliatory speech, and received an answer expressing great satisfaction at his appointment. His original popularity was increased by the courage he displayed in two expeditions against a formidable band of pirates who had long infested the coast, which he entirely extirpated.

1717

These expeditions occasioned still farther emissions of paper money. The governor, being instructed to diminish its quantity, had influence enough with the assembly to obtain an act for redeeming the bills of credit, in three years, by a tax on lands and negroes. This tax falling heavily on the planters, they sought to elude it by obtaining an act for a farther emission of bills. The proprietors, being informed of this design, and also of an intention to make the produce of the country a tender in payment of all debts, at a fixed value, enjoined the governor not to give his assent to any bill, until it should be laid before them.

About the same time, the King, by an order in council, signified his desire to the proprietors, that they would repeal an act passed in Carolina, for imposing a duty of ten per centum on all goods of British manufacture imported into the province. The repeal of this act, and of one declaring the right of the assembly to name a receiver of the public money, and of the election law, were transmitted to the governor, in a letter directing him to

dissolve the assembly, and to hold a new election at Charleston, according to ancient usage.

1718

The assembly being employed in devising means for raising revenue, their dissolution was deferred; but the repeal of the law imposing duties, and the royal displeasure at the clause laying a duty on British manufactures, were immediately communicated, with a recommendation to pass another act, omitting that clause.

Meanwhile the governor's instructions were divulged. They excited great irritation; and produced a warm debate on the right of the proprietors to repeal a law enacted with the consent of their deputy in the province.

About this time, chief justice Trott, who had become extremely unpopular in the colony, was charged with many iniquitous proceedings; and the governor, the major part of the council, and the assembly, united in a memorial representing his malpractices to the proprietors. 1719Mr. Young was deputed their agent to enforce these complaints.

Soon after his arrival in London, he presented a memorial to the proprietors, detailing the proceedings of Carolina, and stating the objections of the assembly to the right of their lordships to repeal laws, which had been approved by their deputies.

This memorial was very unfavourably received, and the members of the council who had subscribed it, were displaced. The proprietors asserted their right to repeal all laws passed in the province, approved the conduct of the chief justice, censured that of the governor in disobeying their instructions respecting the dissolution of the assembly, and repeated their orders on this subject.

However the governor might disapprove the instructions given him, he did not hesitate to obey them. The new council was summoned, the assembly was dissolved, and writs were issued for electing another at Charleston.

The public mind had been gradually prepared for a revolution, and these irritating measures completed the disgust with which the people viewed the government of the proprietors. An opportunity to make the change so generally desired was soon afforded. War with Spain. A rupture having taken place between Great Britain and Spain, advice was received from

England of a plan formed in the Havanna for the invasion of Carolina. The governor convened the council, and such members of the assembly as were in town, and laid his intelligence before them. He, at the same time, stated the ruinous condition of the fortifications, and proposed that a sum for repairing them should be raised, by voluntary subscription, of which he set the example by a liberal donation.

The assembly declared a subscription to be unnecessary, as the duties would afford an ample fund for the object. The repeal of the law imposing them was said to be utterly void, and would be disregarded.

Combination to subvert the government.

The members of the new assembly, though they had not been regularly convened at Charleston, had held several private meetings in the country to concert measures of future resistance. They had drawn up an association for uniting the whole province in opposition to the proprietary government, which was proposed to the militia at their public meetings, and subscribed almost unanimously. This confederacy was formed with such secrecy and dispatch, that, before the governor was informed of it, almost every inhabitant of the province was engaged in it.

The members of the assembly, thus supported by the people, resolved to subvert the power of the proprietors.

The governor, who resided in the country, had no intimation of these secret meetings and transactions, until he received a letter from a committee of the representatives of the people, offering him the government of the province under the King; it having been determined to submit no longer to that of the proprietors.

Mr. Johnson resolved to suppress this spirit of revolt, and hastened to town in order to lay the letter before his council. They advised him to take no notice of it, until the legislature should be regularly convened. On meeting, the assembly declared, "that the laws, pretended to be repealed, continued to be in force; and that no power, other than the general assembly, could repeal them: That the writs under which they were elected were void, inasmuch as they had been issued by advice of an unconstitutional council: That the representatives cannot, therefore, act as an assembly, but as a convention delegated by the people to prevent the utter ruin of the government: And, lastly, that the lords proprietors had unhinged the frame of the government, and forfeited their right thereto; and that an address be

prepared to desire the honourable Robert Johnson, the present governor, to take on himself the government of the province in the name of the King." The address was signed by Arthur Middleton, as president of the convention, and by twenty-two members.

After several unavailing efforts, on the part of the assembly, to induce Mr. Johnson to accept the government under the King; and, on his part, to reinstate the government of the proprietors; he issued a proclamation dissolving the assembly, and retired into the country.

The proclamation was torn from the hands of the officer, and the assembly elected colonel James Moore chief magistrate of the colony. Revolution completed.

After proclaiming him in the name of the King, and electing a council, the legislature published a declaration stating the revolution that had taken place, with the causes which produced it; and then proceeded, deliberately to manage the affairs of the province.

While Carolina was effecting this revolution, the agent of the colony obtained a hearing before the lords of the regency and council in England, (the King being then in Hanover) who were of opinion that the proprietors had forfeited their charter. They ordered the attorney general to take out a *scire facias* against it, and appointed Francis Nicholson provisional governor of the province under the King. He was received with universal joy; and the people of Carolina passed, with great satisfaction, from the proprietary government to the immediate dominion of the crown. The proprietors surrender to the crown. This revolution was completed by an agreement between the crown and seven of the proprietors, whereby, for the sum of seventeen thousand five hundred pounds sterling, they surrendered their right and interest both in the government and soil. This agreement was confirmed by an act of parliament; soon after which John Lord Carteret, the remaining proprietor, also surrendered all his interest in the government, but retained his rights of property.[\[132\]](#)

1721

Carolina received with joy the same form of government which had been bestowed on her sister colonies. The people pleased with their situation, and secure of protection, turned their attention to domestic and agricultural pursuits; and the face of the country soon evidenced the happy effects which result from contented industry, directed by those who are to receive

its fruits. 1732The province divided.For the convenience of the inhabitants, the province was divided; and was, thenceforward, distinguished by the names of North and South Carolina.[133]

About this period, the settlement of a new colony was planned in England. The tract of country lying between the rivers Savanna and Alatomaha being unoccupied by Europeans, a company was formed for the humane purpose of transplanting into this wilderness, the suffering poor of the mother country. This territory, now denominated Georgia, was granted to the company; and a corporation, consisting of twenty-one persons, was created under the name of "trustees for settling and establishing the colony of Georgia." Large sums of money were subscribed for transporting, and furnishing with necessaries, such poor people as should be willing to pass the Atlantic, and to seek the means of subsistence in a new world. One hundred and sixteen persons embarked at Gravesend, under the conduct of Mr. James Oglethorpe, one of the trustees, who, after landing at Charleston, proceeded to the tract of country allotted for the new colony, and laid the foundation of the town of Savanna, on the river which bears that name. Georgia settled.A small fort was erected on its bank, in which some guns were mounted; and a treaty was held with the Creek Indians, from whom the cession of a considerable tract was obtained.

The trustees continued to make great efforts for the accomplishment of their object, and settled several companies of emigrants in Georgia. Unfortunately, the wisdom of their regulations did not equal the humanity of their motives. Totally unacquainted with the country they were to govern, they devised a system for it, rather calculated to impede than to promote its population.

1733

Considering each male inhabitant both as a soldier and a planter, to be provided with arms and ammunition for defence as well as with utensils for cultivation, they adopted the pernicious resolution of introducing such tenures for holding lands as were most favourable to a military establishment. Impolicy of the first regulation.Each tract granted, was considered as a military fief, for which the possessor was to appear in arms, and take the field, when required for the public defence. The grants were in *tail male*; and, on the termination of the estate, the lands were to revert to the trust, to be re-granted to such persons as would most benefit the colony.

Any lands which should not be enclosed, cleared, and cultivated, within eighteen years, reverted to the trust. The importation of negroes, and of rum, was prohibited; and those only were allowed to trade with the Indians, to whom a license should be given.

However specious the arguments in support of these regulations might appear to the trustees, human ingenuity could scarcely have devised a system better calculated to defeat their hopes.

The tenure of lands drove the settlers into Carolina where that property might be acquired in fee simple. The prohibition of slavery rendered the task of opening the country, too heavy to be successfully undertaken in that burning climate; and the restriction on their trade to the West Indies, deprived them of the only market for lumber, an article in which they abounded.

1734

Mr. Oglethorpe's first employment was the construction of fortifications for defence. He erected one fort on the Savanna, at Augusta, and another on an island of the Alatomaha, called Frederica, for defence against the Indians and the inhabitants of Florida. The Spaniards remonstrated against them; and a commissioner from the Havanna insisted on the evacuation of the country to the thirty-third degree of north latitude, which he claimed in the name of the King of Spain; but this remonstrance and claim were equally disregarded.

The restrictions imposed by the trustees, on the inhabitants of Georgia, were too oppressive to be endured in silence. They remonstrated, particularly, against the tenure by which their lands were held, and against the prohibition of the introduction of slaves. These complaints, the result of experience, were addressed to persons ignorant of the condition of the petitioners, and were neglected. The colony languished; while South Carolina, not unlike Georgia both in soil and climate, advanced with considerable rapidity. Although emigration was encouraged by paying the passage money of the emigrants, by furnishing them with clothes, arms, ammunition, and implements of husbandry, by maintaining their families for the first year, and, in some instances, by furnishing them with stock; yet the unwise policy, which has been mentioned, more than counterbalanced these advantages; and for ten years, during which time the exports from

Carolina more than doubled, the settlers in Georgia could, with difficulty, obtain a scanty subsistence.

1737

The differences between Great Britain and Spain not admitting of adjustment, both nations prepared for war. The Spaniards strengthened East Florida; and the British government ordered a regiment, consisting of six hundred effective men, into Georgia. The command of the troops, both of Georgia and Carolina, was given to major general Oglethorpe, who fixed his headquarters at Frederica.

Before hostilities had commenced, the Spaniards at St. Augustine engaged in criminal intrigues among the blacks of Carolina. Agents had been secretly employed in seducing the slaves of that province to escape to St. Augustine, where liberty was promised them, and where they were formed into a regiment officered by themselves. Hitherto these practices had been attended only with the loss of property; but, about this time, the evil assumed a much more alarming form. Insurrection of the slaves. A large number of slaves assembled at Stono, where they forced a warehouse containing arms and ammunition, murdered the whites in possession of it, and, after choosing a captain, directed their march south westward, with drums beating and colours flying. On their march, they massacred the whites, seized all the arms they could find, and forced such blacks as did not voluntarily join them, to follow their party. Intoxicated with ardent spirits, and with their short lived success, they considered their work as already achieved, and halted in an open field, where the time which might have been employed in promoting their design, was devoted to dancing and exultation. Fortunately, the people of the neighbourhood had assembled on the same day, to attend divine service; and, as was then directed by law, all the men came armed. They marched immediately against the blacks, whom they completely surprised. Many were killed, and the residue dispersed or taken. Thus the insurrection was suppressed on the day of its commencement; and such of its leaders as survived the battle were immediately executed.

During the long repose, which the pacific temper of the duke of Orleans, Regent of France during the minority of Louis XV. and the equally pacific temper of sir Robert Walpole, minister of England, gave to their respective countries, the British colonies in America had increased rapidly in

population and in wealth. Lands were cheap, and subsistence easily acquired. From New York to Virginia inclusive, no enemy existed to restrain new settlements, and no fears of inability to maintain a family, checked the natural propensity to early marriages. The people were employed in cultivating the earth, and in spreading themselves over the vast regions which were open to them; and, during this period, their history furnishes none of those remarkable events which interest posterity.

CHAPTER X.

War declared against Spain.... Expedition against St. Augustine.... Georgia invaded.... Spaniards land on an island in the Alatomaha.... Appearance of a fleet from Charleston.... Spanish army re-embarks.... Hostilities with France.... Expedition against Louisbourg.... Louisbourg surrenders.... Great plans of the belligerent powers.... Misfortunes of the armament under the duke D'Anville.... The French fleet dispersed by a storm.... Expedition against Nova Scotia.... Treaty of Aix la Chapelle.... Paper money of Massachusetts redeemed.... Contests between the French and English respecting boundaries.... Statement respecting the discovery of the Mississippi.... Scheme for connecting Louisiana with Canada.... Relative strength of the French and English colonies.... Defeat at the Little Meadows.... Convention at Albany.... Plan of union.... Objected to both in America and Great Britain.

1739

War with Spain.

The increasing complaints of the merchants, and the loud clamours of the nation, at length forced the minister to abandon his pacific system; and war was declared against Spain. A squadron commanded by admiral Vernon was detached to the West Indies, with instructions to act offensively; and general Oglethorpe was ordered to annoy the settlements in Florida. He planned an expedition against St. Augustine, and requested the assistance of South Carolina. That colony, ardently desiring the expulsion of neighbours alike feared and hated, entered zealously into the views of the general, and agreed to furnish the men and money he requested. A regiment, commanded by colonel Vanderdussen, was immediately raised in Virginia and the two Carolinas. A body of Indians was also engaged, and captain Price, who commanded the small fleet on that station, promised his co-operation. These arrangements being made, and the mouth of St. John's river, on the coast of Florida, being appointed as the place, of rendezvous general Oglethorpe hastened to Georgia, to prepare his regiment for the expedition.

Those unexpected impediments, which always embarrass military movements conducted by men without experience, having delayed the arrival of his northern troops, Oglethorpe entered Florida at the head of his own regiment, aided by a party of Indians; and invested Diego, a small fort about twenty-five miles from St. Augustine, which capitulated after a short resistance. He then returned to the place of rendezvous, where he was joined by colonel Vanderdussen, and by a company of Highlanders under the command of captain M'Intosh; a few days after which, he marched with his whole force, consisting of about two thousand men, to fort Moosa, in the neighbourhood of St. Augustine, which was evacuated on his approach. The general now perceived that the enterprise would be attended with more difficulty than had been anticipated. In the time which intervened between his entering Florida and appearing before the town, supplies of provisions had been received from the country, and six Spanish half gallies carrying long brass nine pounders, and two sloops laden with provisions, had entered the harbour. Finding the place better fortified than had been expected, he determined to invest it completely, and to advance by regular approaches. In execution of this plan, colonel Palmer, with ninety-five Highlanders, and forty-two Indians, remained at fort Moosa, while the army took different positions near the town, and began an ineffectual bombardment from the island of Anastasia. The general was deliberating on a plan for forcing the harbour and taking a nearer position, when colonel Palmer was surprised, and his detachment cut to pieces. At the same time some small vessels from the Havanna, with a reinforcement of men and supply of provisions, entered the harbour through the narrow channel of the Matanzas.

The army began to despair of success; and the provincials, enfeebled by the heat, dispirited by sickness, and fatigued by fruitless efforts, marched away in large bodies. The navy being ill supplied with provisions, and the season for hurricanes approaching, captain Price was unwilling to hazard his majesty's ships on that coast. The general, labouring under a fever, finding his regiment, as well as himself, worn out with fatigue, and rendered unfit for action by disease; reluctantly abandoned the enterprise, and returned to Frederica.

The colonists, disappointed and chagrined by the failure of the expedition, attributed this misfortune entirely to the incapacity of the

general, who was not less dissatisfied with them. Whatever may have been the true causes of the failure, it produced a mutual and injurious distrust between the general and the colonists.[\[134\]](#)

1742

The events of the war soon disclosed the dangers resulting from this want of confidence in general Oglethorpe, and, still more, from the want of power to produce a co-operation of the common force for the common defence.

Spain had ever considered the settlement of Georgia as an encroachment on her territory, and had cherished the intention to seize every proper occasion to dislodge the English by force. With this view, an armament consisting of two thousand men, commanded by Don Antonio di Ridondo, embarked at the Havanna, under convoy of a strong squadron, and arrived at St. Augustine in May. The fleet having been seen on its passage, notice of its approach was given to general Oglethorpe, who communicated the intelligence to governor Glenn of South Carolina, and urged the necessity of sending the troops of that province to his assistance.

Georgia being a barrier for South Carolina, the policy of meeting an invading army on the frontiers of the former, especially one containing several companies composed of negroes who had fled from the latter, was too obvious not to be perceived: yet either from prejudice against Oglethorpe, or the disposition inherent in separate governments to preserve their own force for their own defence, Carolina refused to give that general any assistance. Its attention was directed entirely to the defence of Charleston; and the inhabitants of its southern frontier, instead of marching to the camp of Oglethorpe, fled to that city for safety. In the mean time, the general collected a few Highlanders, and rangers of Georgia, together with as many Indian warriors as would join him, and determined to defend Frederica.

Georgia invaded.

Late in June, the Spanish fleet, consisting of thirty-two sail, carrying above three thousand men, crossed Simon's bar into Jekyll sound, and passing Simon's fort, then occupied by general Oglethorpe, proceeded up the Alutamaha, out of the reach of his guns; after which, the troops landed on the island, and erected a battery of twenty eight pounders.

Fort Simon's being indefensible, Oglethorpe retreated to Frederica. His whole force, exclusive of Indians, amounted to little more than seven hundred men, a force which could only enable him to act on the defensive until the arrival of reinforcements which he still expected from South Carolina. The face of the country was peculiarly favorable to this system of operations. Its thick woods and deep morasses opposed great obstacles to the advance of an invading enemy, not well acquainted with the paths which passed through them. Oglethorpe turned these advantages to the best account. In an attempt made by the Spanish general to pierce these woods in order to reach Frederica, several sharp rencounters took place; in one of which he lost a captain and two lieutenants killed, and above one hundred privates taken prisoners. He then changed his plan of operations; and, abandoning his intention of forcing his way to Frederica by land, called in his parties, kept his men under cover of his cannon, and detached some vessels up the river, with a body of troops on board, to reconnoitre the fort, and draw the attention of the English to that quarter.

About this time, an English prisoner escaped from the Spaniards, and informed general Oglethorpe that a difference existed between the troops from Cuba, and those from St. Augustine, which had been carried so far that they encamped in separate places. This intelligence suggested the idea of attacking them while divided; and his perfect knowledge of the woods favoured the hope of surprising one of their encampments. In execution of this design, he drew out the flower of his army, and marched in the night, unobserved, within two miles of the Spanish camp. There, his troops halted, and he advanced, himself, at the head of a select corps, to reconnoitre the situation of the enemy. While he was using the utmost circumspection to obtain the necessary information without being discovered, a French soldier of his party discharged his musket, and ran into the Spanish lines. Discovery defeating every hope of success, the general retreated to Frederica.

Oglethorpe, confident that the deserter would disclose his weakness, devised an expedient which turned the event to advantage. He wrote to the deserter as if in concert with him, directing him to give the Spanish general such information as might induce him to attack Frederica; hinting also at an attempt meditated by admiral Vernon on St. Augustine, and at late advices from Carolina, giving assurances of a reinforcement of two thousand men. He then tampered with one of the Spanish prisoners, who, for a small bribe,

promised to deliver this letter to the deserter, after which, he was permitted to escape. The prisoner, as was foreseen delivered the letter to his general, who ordered the deserter to be put in irons; and, was, in no small degree, embarrassed to determine whether the letter ought to be considered as a stratagem to save Frederica, and induce the abandonment of the enterprise; or as real instructions to direct the conduct of a spy. While hesitating on the course to be pursued, his doubts were removed by one of those incidents, which have so much influence on human affairs.

The assembly of South Carolina had voted a supply of money to general Oglethorpe; and the governor had ordered some ships of force to his aid. These appeared off the coast while the principal officers of the Spanish army were yet deliberating on the letter. They deliberated no longer. Spanish army re-embarks in confusion. The whole army was seized with a panic; and, after setting fire to the fort, embarked in great hurry and confusion, leaving behind several pieces of heavy artillery, and a large quantity of provisions and military stores.

Thus was Georgia delivered from an invasion which threatened the total subjugation of the province.

The ill success of these reciprocal attempts at conquest, seems to have discouraged both parties; and the Spanish and English colonies, in the neighbourhood of each other, contented themselves, for the residue of the war, with guarding their own frontiers.

The connexion between the branches of the house of Bourbon was too intimate for the preservation of peace with France, during the prosecution of war against Spain. Both nations expected and prepared for hostilities. War had commenced in fact, though not in form, on the continent of Europe; but as they carried on their military operations as auxiliaries, in support of the contending claims of the elector of Bavaria, and the queen of Hungary, to the imperial throne, they preserved in America a suspicious and jealous suspension of hostility, rather than a real peace.

1744

This state of things was interrupted by a sudden incursion of the French into Nova Scotia.

Hostilities with France.

The governor of Cape Breton having received information that France and Great Britain had become principals in the war, took possession of de Canseau with a small military and naval force, and made the garrison, and inhabitants prisoners of war. This enterprise was followed by an attempt on Annapolis, which was defeated by the timely arrival of a reinforcement from Massachusetts. These offensive operations stimulated the English colonists to additional efforts to expel such dangerous neighbors, and to unite the whole northern continent bordering on the Atlantic, under one common sovereign.

The island of Cape Breton, so denominated from one of its capes, lies between the 45th and 47th degree of north latitude, at the distance of fifteen leagues from Cape Ray, the south western extremity of Newfoundland. Its position rendered the possession of it very material to the commerce of France; and the facility with which the fisheries might be annoyed from its ports, gave it an importance to which it could not otherwise have been entitled. Thirty millions of livres,[\[135\]](#) and the labour of twenty-five years, had been employed on its fortifications. From its strength, and still more from the numerous privateers that issued from its ports, it had been termed the Dunkirk[\[136\]](#) of America. On this place, governor Shirley meditated an attack.

The prisoners taken at Canseau, and others who had been captured at sea and carried to Louisbourg, were sent to Boston. The information they gave, if it did not originally suggest this enterprise, contributed greatly to its adoption. They said that Duvivier had gone to France to solicit assistance for the conquest of Nova Scotia, in the course of the ensuing campaign; and that the store ships from France for Cape Breton, not having arrived on the coast until it was blocked up with ice, had retired to the West Indies.

In several letters addressed to administration, governor Shirley represented the danger to which Nova Scotia was exposed, and pressed for naval assistance. These letters were sent by captain Ryal, an officer of the garrison which had been taken at Canseau, whose knowledge of Louisbourg, of Cape Breton, and of Nova Scotia, enabled him to make such representations to the lords of the admiralty, as were calculated to promote the views of the northern colonies.

The governor was not disappointed. Orders were dispatched to commodore Warren, then in the West Indies, to proceed towards the north,

early in the spring; and to employ such a force as might be necessary to protect the northern colonies in their trade and fisheries, as well as to distress the enemy. On these subjects, he was instructed to consult with Shirley, to whom orders of the same date were written, directing him to assist the King's ships with transports, men, and provisions.

Such deep impression had the design of taking Louisbourg made on the mind of Shirley, that he did not wait for intelligence of the reception given to his application for naval assistance. He was induced to decide on engaging in the enterprise, even without such assistance, by the representations of Mr. Vaughan, son of the lieutenant governor of New Hampshire, a man of a sanguine and ardent temper, who could think nothing impracticable which he wished to achieve. Mr. Vaughan had never been at Louisbourg, but had learned something of the strength of the place, from fishermen and others; and the bold turn of his mind suggested the idea of surprising it. There is something infectious in enthusiasm, whatever be its object; and Vaughan soon communicated his own convictions to Shirley.

[\[137\]](#)

1745

The governor informed the general court that he had a proposition of great importance to communicate, and requested that the members would take an oath of secrecy, previous to his laying it before them. This novel request being complied with, he submitted his plan for attacking Louisbourg. It was referred to a committee of both houses; the arguments for and against the enterprise were temperately considered; and the part suggested by prudence prevailed. The expedition was thought too great, too hazardous, and too expensive.

The report of the committee was approved by the house of representatives, and the expedition was supposed to be abandoned; but, notwithstanding the precaution taken to secure secrecy, the subject which had occupied the legislature was divulged,[\[138\]](#) and the people took a deep interest in it. Numerous petitions were presented, praying the general court to re-consider its vote, and to adopt the proposition of the governor. Among the several arguments urged in its favour, that which the petitioners pressed most earnestly, was the necessity of acquiring Louisbourg, to save the fisheries from ruin.

The subject being re-considered, a resolution in favour of the enterprise was carried by a single voice, in the absence of several members known to be against it. Yet all parties manifested equal zeal for its success. A general embargo was laid, and messengers were despatched to the several governments as far south as Pennsylvania, soliciting their aid. These solicitations succeeded only in the northern provinces. There being at that time no person in New England who had acquired any military reputation, the chief command was conferred on colonel Pepperel, a merchant, who was also a large land holder, and was highly respected throughout Massachusetts.[\[139\]](#)

All ranks of men combined to facilitate the enterprise, and those circumstances which are beyond human control, also concurred to favour the general wish.

The governors of Massachusetts and New Hampshire, whose orders forbade their assent to a farther emission of bills of credit, departed from their instructions to promote this favourite project; the people submitted to impressments of their property; and a mild winter gave no interruption to their warlike preparations.

The troops of Massachusetts,[\[140\]](#) New Hampshire, and Connecticut, amounting to rather more than four thousand men, assembled at Canseau about the middle of April; soon after which, to the great joy of the colonial troops, admiral Warren arrived, with a considerable part of his fleet. The army then embarked for Chapeau-rouge bay, and the fleet cruised off Louisbourg.

After repulsing a small detachment of French troops, the landing was effected; and, in the course of the night, a body of about four hundred men led by Vaughan, marched round to the north east part of the harbour, and set fire to a number of warehouses containing spirituous liquors and naval stores. The smoke being driven by the wind into the grand battery, caused such darkness that the men placed in it were unable to distinguish objects; and, being apprehensive of an attack from the whole English army, abandoned the fort and fled into the town.

The next morning, as Vaughan was returning to camp with only thirteen men, he ascended the hill which overlooked the battery, and observing that the chimneys in the barracks were without smoke, and the staff without its flag, he hired an Indian, with a bottle of rum, to crawl through an

embrasure, and open the gate. Vaughan entered with his men and defended the battery against a party then landing to regain possession until the arrival of a reinforcement.

For fourteen nights successively, the troops were employed in dragging cannon from the landing place to the encampment, a distance of near two miles, through a deep morass. The army, being totally unacquainted with the art of conducting sieges, made its approaches irregularly, and sustained some loss on this account.

While these approaches were making by land, the ships of war which continued to cruise off the harbour, fell in with and captured the *Vigilant*, a French man of war of sixty-four guns, having on board a reinforcement of five hundred and sixty men, and a large quantity of stores for the garrison. Soon after this, an unsuccessful, and, perhaps, a rash attempt was made on the island battery by four hundred men; of whom sixty were killed, and one hundred and sixteen taken prisoners. All these prisoners, as if by previous concert, exaggerated the numbers of the besieging army, a deception which was favoured by the unevenness of the ground, and the dispersed state of the troops; and which probably contributed to the surrender of the place. The provincial army did indeed present a formidable front, but, in the rear, all was frolic and confusion.

The *Vigilant* had been anxiously expected by the garrison, and the information of her capture excited a considerable degree of perturbation. This event, with the erection of some works on the high cliff at the light house, by which the island battery was much annoyed, and the preparations evidently making for a general assault, determined Duchambon, the governor of Louisbourg, to surrender; and, in a few days, he capitulated.

Louisbourg surrenders.

Upon entering the fortress, and viewing its strength, and its means of defence, all perceived how impracticable it would have been to carry it by assault.[\[141\]](#)

The joy excited in the British colonies by the success of the expedition against Louisbourg was unbounded. Even those who had refused to participate in its hazards and expense, were sensible of its advantages, and of the lustre it shed on the American arms. Although some disposition was manifested in England, to ascribe the whole merit of the conquest to the navy, colonel Pepperel received, with the title of baronet, the more

substantial reward of a regiment in the British service, to be raised in America; and the same mark of royal favour was bestowed on governor Shirley. Reimbursements too were made by parliament for the expenses of the expedition. It was the only decisive advantage obtained by the English during the war.

The capture of Louisbourg, most probably, preserved Nova Scotia. Du Vivier, who had embarked for France to solicit an armament for the conquest of that province, sailed, in July, 1745, with seven ships of war, and a body of land forces. He was ordered to stop at Louisbourg, and thence to proceed in the execution of his plan. Hearing, at sea, of the fall of that place, and that a British squadron was stationed at it, he relinquished the expedition against Nova Scotia, and returned to Europe.

The British empire on the American continent consisted, originally, of two feeble settlements unconnected with, and almost unknown to each other. For a long time the southern colonies, separated from those of New England by an immense wilderness, and by the possessions of other European powers, had no intercourse with them, except what was produced by the small trading vessels of the north, which occasionally entered the rivers of the south. Neither participated in the wars or pursuits of the other; nor were they, in any respect, actuated by common views, or united by common interest. The conquest of the country between Connecticut and Maryland, laid a foundation, which the settlement of the middle colonies completed, for connecting these disjoined members, and forming one consolidated whole, capable of moving, and acting in concert. This gradual change, unobserved in its commencement, had now become too perceptible to be longer overlooked; and, henceforward, the efforts of the colonies, were in a great measure combined, and directed to a common object.

France, as well as England, had extended her views with her settlements; and, after the fall of Louisbourg, the governments of both nations meditated important operations for the ensuing campaign in America.

Great plans of the belligerents.

France contemplated, not only the recovery of Cape Breton and Nova Scotia, but the total devastation of the sea coast, if not the entire conquest of New England.

Britain, on her part, calculated on the reduction of Canada, and the entire expulsion of the French from the American continent.

Shirley repaired to Louisbourg, after its surrender, where he held a consultation with Warren and Pepperel on the favourite subject of future and more extensive operations against the neighbouring possessions of France. 1746 From that place he wrote pressingly to administration, for reinforcements of men and ships to enable him to execute his plans. The capture of Louisbourg gave such weight to his solicitations that, in the following spring, the duke of New Castle, then secretary of state, addressed a circular letter to the governors of the provinces as far south as Virginia, requiring them to raise as many men as they could spare, and hold them in readiness to act according to the orders that should be received. Before this letter was written, an extensive plan of operations had been digested in the British cabinet. It was proposed to detach a military and naval armament which should, early in the season, join the troops to be raised in New England, at Louisbourg; whence they were to proceed up the St. Lawrence to Quebec. The troops from New York, and from the more southern provinces, were to be collected at Albany, and to march against Crown Point, and Montreal.

This plan, so far as it depended on the colonies, was executed with promptness and alacrity. The men were raised, and waited with impatience for employment; but neither troops, nor orders, arrived from England. The fleet destined for this service, sailed seven times from Spithead; and was compelled as often, by contrary winds, to return.

Late in the season, the military commanders in America, despairing of the succours promised by England, determined to assemble a body of provincials at Albany, and make an attempt on Crown Point. While preparing for the execution of this plan, they received accounts stating that Annapolis was in danger from a body of French and Indians assembled at Minas; upon which, orders were issued for the troops of Massachusetts, Rhode Island, and New Hampshire, to embark for Nova Scotia. Before these orders could be executed, intelligence was received which directed their attention to their own defence.

It was reported that a large fleet and army, under the command of the duke D'Anville, had arrived in Nova Scotia, and the views of conquest, which had been formed by the northern colonies, were converted into fears for their own safety. For six weeks, continual apprehensions of invasion were entertained; and the most vigorous measures were taken to repel it.

From this state of anxious solicitude, they were at length relieved by the arrival of some prisoners set at liberty by the French, who communicated the extreme distress of the fleet.

This formidable armament consisted of near forty ships of war, seven of which were of the line; of two artillery ships; and of fifty-six transports laden with provisions and military stores, carrying three thousand five hundred land forces, and forty thousand stand of small arms, for the use of the Canadians and Indians. The French fleet dispersed by a storm. The fleet sailed in June, but was attacked by such furious and repeated storms, that many of the ships were wrecked, and others dispersed. In addition to this disaster, the troops were infected with a disease which carried them off in great numbers. While lying in Chebucto, under these circumstances, a vessel which had been dispatched by governor Shirley to admiral Townshend at Louisbourg, with a letter stating his expectation that a British fleet would follow that of France to America, was intercepted by a cruiser, and brought in to the admiral. These dispatches were opened in a council of war, which was considerably divided respecting their future conduct. This circumstance, added to the calamities already sustained, so affected the commander in chief, that he died suddenly. The vice-admiral fell by his own hand; and the command devolved on Monsieur le Jonguiere, governor of Canada, who had been declared *chef d'escadre* after the fleet sailed.

The design of invading New England was relinquished, and it was resolved to make an attempt on Annapolis. With this view the fleet sailed from Chebucto, but was again overtaken by a violent tempest which scattered the vessels composing it. Those which escaped shipwreck returned singly to France.[\[142\]](#)

"Never," says Mr. Belknap, "was the hand of divine providence more visible than on this occasion. Never was a disappointment more severe on the part of the enemy, nor a deliverance more complete, without human help, in favour of this country."

As soon as the fears excited by this armament were dissipated, the project of dislodging the French and Indians, who had invaded Nova Scotia, was resumed. Governor Shirley detached a part of the troops of Massachusetts on this service; and pressed the governors of Rhode Island and New Hampshire, to co-operate with him. The quotas furnished by these colonies were prevented by several accidents from joining that of Massachusetts,

which was inferior to the enemy in numbers. The French and Indians, under cover of a snow storm, surprised the English at Minas; who, after an obstinate resistance, in which they lost upwards of one hundred men, were compelled to capitulate, and to engage not to bear arms against his Most Christian Majesty, in Nova Scotia for one year. De Ramsay, who commanded the French, returned soon afterwards to Canada.

No farther transactions of importance took place in America during the war, which was terminated by the treaty of Aix la Chapelle. By this treaty, it was stipulated that all conquests made during the war should be restored; and the colonists had the mortification to see the French re-possess themselves of Cape Breton.

The heavy expenses which had been incurred by the New England colonies, and especially by Massachusetts, had occasioned large emissions of paper money, and an unavoidable depreciation. Instead of availing themselves of peace, to discharge the debts contracted during war, they eagerly desired to satisfy every demand on the public treasury, by farther emissions of bills of credit, redeemable at future and distant periods. Every inconvenience under which commerce was supposed to labour, every difficulty encountered in the interior economy of the province, was attributed to a scarcity of money; and this scarcity was to be removed, not by increased industry, but by putting an additional sum in circulation. The rate of exchange, and the price of all commodities, soon disclosed the political truth that, however the quantity of the circulating medium may be augmented, its aggregate value cannot be arbitrarily increased; and that the effect of such a depreciating currency must necessarily be, to discourage the payment of debts, by holding out the hope of discharging contracts with less real value than that for which they were made; and to substitute cunning and speculation, for honest and regular industry. Yet the majority had persevered in this demoralising system. The depreciation had reached eleven for one; and the evil was almost deemed incurable, when the fortunate circumstance of a reimbursement in specie, made by parliament for colonial expenditures on account of the expeditions against Louisbourg and Canada, suggested to Mr. Hutchinson, speaker of the house of representatives in Massachusetts, the idea of redeeming the paper money in circulation, at its then real value.

This scheme, at first deemed Utopian, was opposed by many well meaning men who feared that its effect would be to give a shock to the trade and domestic industry of the province; and who thought that, as the depreciation had been gradual, justice required that the appreciation should be gradual also.

Paper money redeemed.

With great difficulty, the measure was carried; and the bills of credit in circulation, were redeemed at fifty shillings the ounce. The evils which had been apprehended were soon found to be imaginary. Specie immediately took the place of paper. Trade, so far from sustaining a shock, nourished more than before this change in the domestic economy of the colony; and the commerce of Massachusetts immediately received an impulse, which enabled it to surpass that of her neighbours who retained their paper medium.[\[143\]](#)

Renewal of contests with the French colonies respecting boundary.

The treaty of Aix la Chapelle did not remove the previously existing controversies between the colonies of France and England respecting boundary. These controversies, originating in the manner in which their settlements had been made, and at first of small consequence, were now assuming a serious aspect. America was becoming an object of greater attention; and, as her importance increased, the question concerning limits became important also.

1749

In settling this continent, the powers of Europe, estimating the right of the natives at nothing, adopted, for their own government, the principle, that those who first discovered and took possession of any particular territory, became its rightful proprietors. But as only a small portion of it could then be reduced to actual occupation, the extent of country thus acquired was not well ascertained. Contests respecting prior discovery, and extent of possession, arose among all the first settlers. England terminated her controversy with Sweden and with Holland, by the early conquest of their territories; but her conflicting claims with France and with Spain, remained unadjusted.

On the south, Spain had pretensions to the whole province of Georgia, while England had granted the country as far as the river St. Matheo, in Florida.

On the north, the right of France to Canada was undisputed; but the country between the St. Lawrence and New England had been claimed by both nations, and granted by both. The first settlement appears to have been made by the French; but its principal town, called Port Royal, or Annapolis, had been repeatedly taken by the English; and, by the treaty of Utrecht, the whole province, by the name of Nova Scotia, or Acadié, according to its ancient limits had been ceded to them.

But the boundaries of Nova Scotia, or Acadié, had never been ascertained. Though the treaty of Utrecht had provided that commissioners should be appointed by the two crowns, to adjust the limits of their respective colonies, the adjustment had never been made. France claimed to the Kennebec; and insisted "that only the peninsula which is formed by the bay of Fundy, the Atlantic ocean, and the gulf of St. Lawrence," was included in the cession of "Nova Scotia, or Acadié, according to its ancient limits." England, on the other hand, claimed all the country on the main land south of the river St. Lawrence. Under the treaty of Aix la Chapelle, commissioners were again appointed to settle these differences, who maintained the rights of their respective sovereigns with great ability, and laborious research; but their zeal produced a degree of asperity unfavourable to accommodation.

While this contest for the cold and uninviting country of Nova Scotia was carried on with equal acrimony and talents, a controversy arose for richer and more extensive regions in the south and west.

Discovery of the Mississippi.

So early as the year 1660, information was received, in Canada, from the Indians, that, west of that colony, was a great river, flowing neither to the north, nor to the east. The government, conjecturing that it must empty itself either into the gulf of Mexico or the south sea, committed the care of ascertaining the fact to Joliet, an inhabitant of Quebec, and to the Jesuit Marquette. These men proceeded from lake Michigan up the river of the Foxes, almost to its source, whence they travelled westward to the Ouisconsin, which they pursued to its confluence with the Mississippi. They sailed down this river to the 33d degree of north latitude, and returned by land, through the country of the Illinois, to Canada.

The mouth of the Mississippi was afterwards discovered by la Salle, an enterprising Norman, who, immediately after his return to Quebec,

embarked for France, in the hope of inducing the cabinet of Versailles to patronise a scheme for proceeding by sea to the mouth of that river and settling a colony on its banks.

Having succeeded in this application, he sailed for the gulf of Mexico, with a few colonists; but, steering too far westward, he arrived at the bay of St. Bernard, about one hundred leagues from the mouth of the Mississippi. In consequence of a quarrel between him and Beaulieu, who commanded the fleet, the colonists were landed at this place. La Salle was, soon afterwards, assassinated by his own men; and his followers were murdered or dispersed by the Spaniards and the Indians.

Several other attempts were made by the French to settle the country; but, by some unaccountable fatality, instead of seating themselves on the fertile borders of the Mississippi, they continually landed about the barren sands of Biloxi, and the bay of Mobile. It was not until the year 1722, that the miserable remnant of those who had been carried thither at various times, was transplanted to New Orleans; nor until the year 1731, that the colony began to flourish.

Scheme for connecting Louisiana with Canada.

It had received the name of Louisiana, and soon extended itself by detached settlements, up the Mississippi and its waters, towards the great lakes.[\[144\]](#) As it advanced northward, the vast and interesting plan was formed of connecting it with Canada by a chain of forts.

The fine climate and fertile soil of upper Louisiana enabling it to produce and maintain an immense population, rendered it an object which promised complete gratification to the views of France; while the extent given to it by that nation, excited the most serious alarm among the colonies of Britain.

The charters granted by the crown of England to the first adventurers, having extended from the Atlantic to the South Sea, their settlements had regularly advanced westward, in the belief that their title to the country in that direction, could not be controverted. The settlements of the French, stretching from north to south, necessarily interfered with those of the English. Their plan, if executed, would completely environ the English. Canada and Louisiana united, as has been aptly said, would form a bow, of which the English colonies would constitute the chord.

While Great Britain claimed, indefinitely, to the west, as appertaining to her possession of the sea coast; France insisted on confining her to the

eastern side of the Apalachian, or Alleghany, mountains; and claimed the whole country drained by the Mississippi, in virtue of her right as the first discoverer of that river. The delightful region which forms the magnificent vale of the Mississippi was the object for which these two powerful nations contended; and it soon became apparent that the sword must decide the contest.

The white population of the English colonies was supposed to exceed one million of souls, while that of the French was estimated at only fifty-two thousand.[\[145\]](#)

This disparity of numbers did not intimidate the governor of New France—a title comprehending both Canada and Louisiana; nor deter him from proceeding in the execution of his favourite plan. The French possessed advantages which, he persuaded himself, would counterbalance the superior numbers of the English. Their whole power was united under one governor, who could give it such a direction as his judgment should dictate. The genius of the people and of the government was military; and the inhabitants could readily be called into the field, when their service should be required. Great reliance too was placed on the Indians. These savages, with the exception of the Five Nations, were generally attached to France, and were well trained to war. To these advantages was added a perfect knowledge of the country about to become the theatre of action.

The British colonies, on the other hand, were divided into distinct governments, unaccustomed, except those of New England, to act in concert; were jealous of the power of the crown; and were spread over a large extent of territory, the soil of which, in all the middle colonies, was cultivated by men unused to arms.

The governors of Canada, who were generally military men, had, for several preceding years, judiciously selected and fortified such situations as would give them most influence over the Indians, and facilitate incursions into the northern provinces. The command of Lake Champlain had been acquired by the erection of a strong fort at Crown Point; and a connected chain of posts was maintained from Quebec, up the St. Lawrence, and along the great lakes. It was intended to unite these posts with the Mississippi by taking positions which would favour the design of circumscribing and annoying the frontier settlements of the English.



Great Meadows and the Site of Fort Necessity

On this battleground in the western Pennsylvania wilderness, which marked the beginning of the French and Indian War, July 3, 1754, a force of 400 men under young Major Washington was defeated by 900 French and Indian allies, and for the first and last time in his military career Washington surrendered. He stipulated, however, that he and his troops were to have safe conduct back to civilization, and agreed not to build a fort west of the Allegheny Mountains for a year. Washington was then twenty-two years old.

1750

The execution of this plan was, probably, accelerated by an act of the British government. The year after the conclusion of the war, several individuals both in England and Virginia who were associated under the name of the Ohio company, obtained from the crown a grant of six hundred thousand acres of land, lying in the country claimed by both nations. The objects of this company being commercial as well as territorial, measures were taken to derive all the advantages expected from their grant, in both these respects, by establishing trading houses, and by employing persons to survey the country.

The governor of Canada, who obtained early information of this intrusion, as he deemed it, into the dominions of his most christian majesty, wrote to the governors of New York and Pennsylvania, informing them that the English traders had encroached on the French territory by trading with their Indians; and giving notice that, if they did not desist, he should be under the necessity of seizing them wherever they should be found. At the same time the jealousy of the Indians was excited by impressing them with fears that the English were about to deprive them of their country.

His threat having been disregarded, the governor of Canada put it in execution by seizing the British traders among the Twightwees, and carrying them prisoners to Presque-isle, on Lake Erie; where he was erecting a strong fort. About the same time, a communication was opened from Presque-isle, down French creek, and the Alleghany river, to the Ohio. This communication was kept up by detachments of troops, posted at proper distances from each other, in works capable of covering them from an attack made only with small arms.[\[146\]](#)

1753

This territory having been granted as part of Virginia, to the Ohio company, who complained loudly of these aggressions, Dinwiddie, the lieutenant governor of that province, laid the subject before the assembly, and dispatched MAJOR WASHINGTON, the gentleman who afterwards led his countrymen to independence, with a letter to the commandant of the French forces on the Ohio; requiring him to withdraw from the dominions of his Britannic majesty.

This letter was delivered at a fort on the river Le Boeuf, the western branch of French creek, to Monsieur le Guarduer de St. Pierre, the commanding officer on the Ohio, who replied that he had taken possession of the country by the directions of his general, then in Canada, to whom he would transmit the letter of the lieutenant governor, and whose orders he should implicitly obey.

1754

Preparations were immediately made, in Virginia, to assert the rights of the British crown; and a regiment was raised for the protection of the frontiers. Early in the spring, Major Washington had advanced with a small detachment from this regiment into the country to be contended for, where he fell in with and defeated a party of French and Indians who were

approaching him in a manner indicating hostile designs. On being joined by the residue of his regiment, the command of which had devolved on him, he made great exertions to pre-occupy the post at the confluence of the Alleghany and Monongahela rivers; but, on his march thither, was met by a much superior body of French and Indians, Defeat at the Little Meadows.who attacked him in a small stockade hastily erected at the Little Meadows, and compelled him, after a gallant defence to capitulate. The French had already taken possession of the ground to which Washington was proceeding, and, having driven off some militia, and workmen sent thither by the Ohio company, had erected thereon a strong fortification called fort Du Quêsne.

The earl of Holderness, secretary of state, perceiving war to be inevitable, and aware of the advantages of union, and of securing the friendship of the Five Nations, had written to the governors of the respective colonies recommending these essential objects; and, at the same time, ordering them to repel force by force; and to take effectual measures to dislodge the French from their posts on the Ohio.

Convention at Albany.

At the suggestion of the commissioners for the plantations, a convention of delegates from the several colonies met at Albany, to hold a conference with the Five Nations on the subject of French encroachments, and to secure their friendship in the approaching war. Availing himself of this circumstance governor Shirley had recommended to the other governors to instruct their commissioners on the subject of union. Ample powers for this object were given to the delegates of Massachusetts; and those of Maryland were instructed to observe what others should propose respecting it. But no direct authority for concerting any system to call out and employ the strength of the colonies, was given by any other of the governments.

The congress, consisting of delegates from New Hampshire, Massachusetts, Rhode Island, Connecticut, Pennsylvania, and Maryland, with the lieutenant governor and council of New York, after endeavouring to secure the friendship of the Five Nations by large presents, directed a committee, consisting of one member for each colony, to draw and report a plan of union.

Plan of union.

A plan^[147] was reported which was approved on the 4th of July. Its essential principles were, that application be made for an act of parliament authorising the formation of a grand council to consist of delegates from the several legislatures, and a president general, to be appointed by the crown, and to be invested with a negative power. This council was to enact laws of general import; to apportion their quotas of men and money on the several colonies; to determine on the building of forts; to regulate the operations of armies; and to concert all measures for the common protection and safety.

The delegates of Connecticut alone dissented from this plan. That cautious people feared that the powers vested in the president general might prove dangerous to their welfare.

In England, the objections were of a different character. The colonies had, in several instances, manifested a temper less submissive than was required; and it was apprehended that this union might be the foundation of a concert of measures opposing the pretensions of supremacy maintained by the mother country.

This confederation, therefore, notwithstanding the pressure of external danger, did not prevail. It was not supported in America, because it was supposed to place too much power in the hands of the King; and it was rejected in England from the apprehension that the colonial assemblies would be rendered still more formidable by being accustomed to co-operate with each other.

In its stead, the minister proposed that the governors, with one or two members of the councils of the respective provinces, should assemble to consult, and resolve on measures necessary for the common defence, and should draw on the British treasury for the sums to be expended, which sums should be afterwards raised by a general tax, to be imposed by parliament on the colonies.

This proposition being entirely subversive of all the opinions which prevailed in America, was not pressed for the present; and no satisfactory plan for calling out the strength of the colonies being devised, it was determined to carry on the war with British troops, aided by such reinforcements as the several provincial assemblies would voluntarily afford.^[148]

CHAPTER XI.

General Braddock arrives.... Convention of governors and plan of the campaign.... French expelled from Nova Scotia, and inhabitants transplanted.... Expedition against fort Du Quêsne.... Battle of Monongahela.... Defeat and death of general Braddock.... Expedition against Crown Point.... Dieskau defeated.... Expedition against Niagara.... Frontiers distressed by the Indians.... Meeting of the governors at New York.... Plan for the campaign of 1756.... Lord Loudoun arrives.... Montcalm takes Oswego.... Lord Loudoun abandons offensive operations.... Small-pox breaks out in Albany.... Campaign of 1757 opened.... Admiral Holbourne arrives at Halifax.... Is joined by the earl of Loudoun.... Expedition against Louisbourg relinquished.... Lord Loudoun returns to New York.... Fort William Henry taken.... Controversy between lord Loudoun and the assembly of Massachusetts.

1755

The establishment of the post on the Ohio, and the action at the Little Meadows, being considered by the British government as the commencement of war in America, the resolution to send a few regiments to that country was immediately taken; General Braddock, and early in the year, general Braddock embarked at Cork, at the head of a respectable body of troops destined for the colonies.

An active offensive campaign being meditated, general Braddock convened the governors of the several provinces, on the 14th of April, in Virginia, who resolved to carry on three expeditions.

Plan of the campaign.

The first, and most important, was against fort Du Quêsne. This was to be conducted by general Braddock in person at the head of the British troops, with such aids as could be drawn from Maryland and Virginia.

The second, against Niagara and fort Frontignac, was to be conducted by governor Shirley. The American regulars, consisting of Shirley and

Pepperel's regiments, constituted the principal force destined for the reduction of these places.

The third was against Crown Point. This originated with Massachusetts; and was to be prosecuted entirely with colonial troops, to be raised by the provinces of New England, and by New York. It was to be commanded by colonel William Johnson of the latter province.[\[149\]](#)

While preparations were making for these several enterprises, an expedition, which had been previously concerted by the government of Massachusetts, was carried on against the French in Nova Scotia.

It has been already stated that the limits of this province remained unsettled. While the commissioners of the two crowns were supporting the claims of their respective sovereigns in fruitless memorials, the French occupied the country in contest, and established military posts for its defence. Against these posts this enterprise was to be conducted.

On the 20th of May, the troops of Massachusetts, together with Shirley's and Pepperel's regiments, amounting in the whole to about three thousand men, embarked, at Boston, under the command of lieutenant colonel Winslow. The fleet anchored about five miles from fort Lawrence, where a reinforcement was received of three hundred British troops and a small train of artillery. The whole army, commanded by lieutenant colonel Monckton, immediately after landing, marched against Beau Sejour, the principal post held by the French in that country. At the river Mussaquack, which the French considered as the western boundary of Nova Scotia, some slight works had been thrown up with the intention of disputing its passage. After a short conflict, the river was passed with the loss of only one man; and, in five days, Beau Sejour capitulated. French expelled from Nova Scotia. Other small places fell in succession, and, in the course of the month of June, with the loss of only three men killed, the English acquired complete possession of the whole province of Nova Scotia.

The recovery of this province was followed by one of those distressing measures which involve individuals in indiscriminate ruin, and aggravate the calamities of war.

Nova Scotia having been originally settled by France, its inhabitants were, chiefly, of that nation. In the treaty of Utrecht, it was stipulated for the colonists that they should be permitted to hold their lands on condition of taking the oaths of allegiance to their new sovereign. With this condition

they refused to comply, unless permitted to qualify it with a proviso that they should not be required to bear arms in defence of the province. Though this qualification, to which the commanding officer of the British forces acceded, was afterwards disallowed by the crown, yet the French inhabitants continued to consider themselves as neutrals. Their devotion to France, however, would not permit them to conform their conduct to the character they had assumed. In all the contests for the possession of their country, they were influenced by their wishes rather than their duty; and three hundred of them were captured with the garrison of Beau Sejour.

Their continuance in the country, during the obstinate conflict which was commencing, would, it was feared, endanger the colony; and to expel them from it, leaving them at liberty to choose their place of residence, would be to reenforce the French in Canada. A council was held by the executive of Nova Scotia aided by the admirals Boscawen and Morty, for the purpose of deciding on the destiny of these unfortunate people; The inhabitants transported, and the severe policy was adopted of removing them from their homes, and dispersing them through the other British colonies. This harsh measure was immediately put in execution; and the miserable inhabitants of Nova Scotia were, in one instant, reduced from ease and contentment to a state of beggary. Their lands, and moveables, with the exception of their money and household furniture, were declared to be forfeited to the crown; and, to prevent their return, the country was laid waste, and their houses reduced to ashes.[\[150\]](#)

As soon as the convention of governors had separated, general Braddock proceeded from Alexandria to a fort at Wills' creek, afterwards called fort Cumberland, at that time the most western post in Virginia or Maryland; from which place the army destined against fort Du Quêsne was to commence its march. The difficulties of obtaining wagons, and other necessary supplies for the expedition, and delays occasioned by opening a road through an excessively rough country, excited apprehensions that time would be afforded the enemy to collect in such force at fort Du Quêsne, as to put the success of the enterprise into some hazard.

Under the influence of this consideration, it was determined to select twelve hundred men, who should be led by the general in person to the point of destination. The residue of the army, under the command of colonel Dunbar, was to follow, with the baggage, by slow and easy marches.

This disposition being made, Braddock pressed forward to his object, in the confidence that he could find no enemy capable of opposing him; and reached the Monongahela on the eighth of July.

As the army approached fort Du Quêne, the general was cautioned of the danger to which the character of his enemy, and the face of the country, exposed him; and was advised to advance the provincial companies in his front, for the purpose of scouring the woods, and discovering ambuscades. But he held both his enemy and the provincials in too much contempt, to follow this salutary counsel. Three hundred British troops comprehending the grenadiers and light infantry, commanded by colonel Gage, composed his van; and he followed, at some distance, with the artillery, and the main body of the army, divided into small columns.

Within seven miles of fort Du Quêne, immediately after crossing the Monongahela the second time, in an open wood, thick set with high grass, as he was pressing forward without fear of danger, his front received an unexpected fire from an invisible enemy. Battle of Monongahela. The van was thrown into some confusion; but, the general having ordered up the main body, and the commanding officer of the enemy having fallen, the attack was suspended, and the assailants were supposed to be dispersed. This delusion was soon dissipated. The attack was renewed with increased fury; the van fell back on the main body; and the whole army was thrown into utter confusion.

The general possessed personal courage in an eminent degree; but was without experience in that species of war, in which he was engaged; and seems not to have been endowed with that rare fertility of genius which adapts itself to the existing state of things, and invents expedients fitted to the emergency. In the impending crisis, he was peculiarly unfortunate in his choice of measures. Neither advancing nor retreating, he exerted his utmost powers to form his broken troops, under an incessant and galling fire, on the very ground where they had been attacked. In his fruitless efforts to restore order, every officer on horseback except Mr. Washington, one of his aides-de-camp, was killed or wounded. At length, after losing three horses, the general himself received a mortal wound; upon which his regulars fled in terror and confusion. Fortunately, the Indian enemy was arrested by the plunder found on the field, and the pursuit was soon given over. The

provincials exhibited an unexpected degree of courage, and were among the last to leave the field.

Death of Braddock.

The defeated troops fled precipitately to the camp of Dunbar, where Braddock expired of his wounds. Their panic was communicated to the residue of the army. As if affairs had become desperate, all the stores, except those necessary for immediate use, were destroyed; and the British troops were marched to Philadelphia, where they went into quarters. The western parts of Pennsylvania, Maryland, and Virginia, were left exposed to the incursions of the savages; the frontier settlements were generally broken up; and the inhabitants were driven into the interior. So excessive was the alarm, that even the people of the interior entertained apprehensions for their safety, and many supposed that the seaboard itself was insecure.

The two northern expeditions, though not so disastrous as that against fort Du Quêsne, were neither of them successful. That against Crown Point was so retarded by those causes of delay to which military operations conducted by distinct governments are always exposed, that the army was not ready to move until the last of August. At length general Johnson reached the south end of lake George, on his way to Ticonderoga, of which he designed to take possession.

An armament fitted out in the port of Brest for Canada, had eluded a British squadron which was stationed off the banks of Newfoundland to intercept it; and, with the loss of two ships of war, had entered the St. Lawrence. After arriving at Quebec the baron Dieskau, who commanded the French forces, resolved, without loss of time, to proceed against the English. At the head of about twelve hundred regulars, and about six hundred Canadians and Indians, he marched against Oswego. On hearing of this movement, general Johnson applied for reinforcements; and eight hundred men were ordered by Massachusetts to his assistance. An additional body of two thousand men was directed to be raised for the same object, and the neighbouring colonies also determined to furnish reinforcements.

Dieskau did not wait for their arrival. Perceiving that Johnson was approaching lake George, and being informed that the provincials were without artillery, he determined to postpone his designs upon Oswego, and to attack them in their camp.

On being informed that Dieskau was approaching, Johnson detached colonel Williams, with about one thousand men, to reconnoitre and skirmish with him. This officer met the French about four miles from the American camp, and immediately engaged them. He fell early in the action; and his party was soon overpowered and put to flight. Dieskau defeated. A second detachment, sent in aid of the first, experienced the same fate; and both were closely pursued to the main body, who were posted behind a breast-work of fallen trees. At this critical moment, within about one hundred and fifty yards of this work, the French halted for a short time. This interval having given the Americans an opportunity to recover from the first alarm, they determined on a resolute defence.

When the assailants advanced to the charge, they were received with firmness. The militia and savages fled; and Dieskau was under the necessity of ordering his regulars to retreat. A close and ardent pursuit ensued; and the general himself, being mortally wounded and left alone, was taken prisoner.

During the engagement, a scouting party from fort Edward, under captains Folsom and McGennis, fell in with the baggage of the enemy and routed the guard which had been placed over it. Soon afterwards, the retreating army of Dieskau approached, and was gallantly attacked by the Americans. This unexpected attack from an enemy whose numbers were unknown, completed the confusion of the defeated army, which, abandoning its baggage, fled towards the posts on the lake.[\[151\]](#)

The repulse of Dieskau, magnified into a splendid victory, had some tendency to remove the depression of spirits occasioned by the defeat of Braddock, and to inspire the provincials with more confidence in themselves. General Johnson, who was wounded in the engagement, received very solid testimonials of the gratitude and liberality of his country. Five thousand pounds sterling, and the title of baronet, were the rewards of his service.

This success was not improved. The hopes and expectations of the public were not gratified; and the residue of the campaign was spent in fortifying the camp. Massachusetts pressed a winter campaign; but when her commissioners met those of Connecticut and the lieutenant governor and council of New York, it was unanimously agreed that the army under general Johnson should be discharged, except six hundred men to garrison

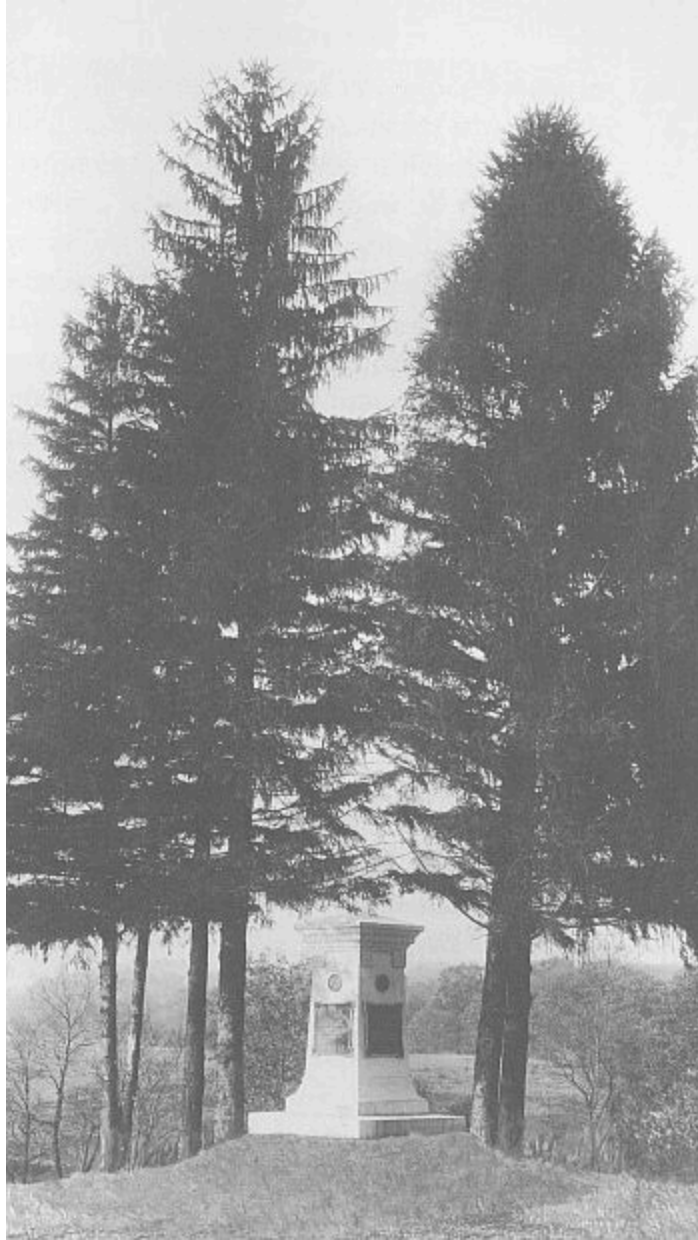
fort Edward, on the great carrying place between the Hudson and lake George, and fort William Henry on that lake.

The French took possession of Ticonderoga, and fortified it.

Expedition against Niagara.

The expedition against Niagara and fort Frontignac, was also defeated by delays in making the preparations necessary for its prosecution. Shirley did not reach Oswego till late in August. After ascertaining the state of the garrison, he determined to abandon that part of the enterprise which respected fort Frontignac, and to proceed against Niagara. While employed in the embarkation of his troops on the lake, the rains set in with such violence as to suspend his operations until the season was so far advanced that the attempt against Niagara was also relinquished, and Shirley returned to Albany.[\[152\]](#)

Thus terminated the campaign of 1755. It opened with so decided a superiority of force on the part of the English, as to promise the most important advantages. But, if we except the expulsion of the French from Nova Scotia, no single enterprise was crowned with success. Great exertions were made by the northern colonies, but their efforts were productive of no benefit. From the want of one general superintending authority in their councils, which could contemplate and control the different parts of the system, which could combine all their operations, and direct them with effect towards the attainment of the object pursued, every thing failed. Such delays and deficiencies were experienced that, though a considerable force was in motion, it could not be brought to the point against which it was to act, until the season for action was over; nor execute the plans which were concerted until the opportunity had passed away.



General Braddock's Grave

Showing the monument recently erected

It is not generally appreciated that this British commander was chosen to head the expedition to destroy the French power in America, in 1754-5, because of his distinguished army record. In the Battle of Fontenoy, for instance, he was colonel in command of the famous Coldstream Guards, who covered themselves with glory; and shortly before embarking for America he was made major-general of the line. Braddock had won his

promotion solely through gallantry and at a time when a lieutenant-colonelcy in this crack British regiment sold for £5000 Sterling.

Despite his fatal mistake in not heeding the advice of his aide, Washington, in conducting his expedition against Fort Duquesne (Pittsburgh), Braddock regarded Washington and Franklin as the greatest men in the colonies. Meeting the French and Indians on July 9, 1755, the British were routed and Braddock was fatally wounded, after having four horses shot under him. Dying four days later at Great Meadows, where he is buried, he bequeathed his favorite surviving horse and body servant to Washington, then a colonel.

The system adopted by the British cabinet, for conducting the war in America, left to the colonial governments to determine, what number of men each should bring into the field; but required them to support their own troops, and to contribute to the support of those sent from Great Britain to their assistance. But this system could not be enforced. The requisitions of the minister were adopted, rejected, or modified, at the discretion of the government on which they were made; and, as no rule of apportionment had been adopted, each colony was inclined to consider itself as having contributed more than its equal share towards the general object, and as having received, less than its just proportion, of the attention and protection of the mother country. This temper produced a slow and reluctant compliance on the part of some, which enfeebled and disconcerted enterprises, for the execution of which the resources of several were to be combined.

Distress of the frontiers.

In the mean time the whole frontier, as far as North Carolina, was exposed to the depredations of the savages, who were, almost universally, under the influence of the French. Their bloody incursions were made in all directions, and many settlements were entirely broken up.

It is a curious and singular fact that, while hostilities were thus carried on by France and England against each other in America, the relations of peace and amity were preserved between them in Europe. Each nation had, in consequence of the military operations in 1754, determined to fit out a considerable armament to aid the efforts made in its colonies; and, when it was understood that admiral Boscawen was ordered to intercept that of

France, the Duc de Mirepoix, the French ambassador at London, complained of the proposed measure, and gave formal notice that the King his master would consider the first gun fired at sea, as a declaration of war. On receiving intelligence of the capture of a part of the squadron by Boscawen, the French minister at the court of St. James was recalled without asking an audience of leave; upon which, letters of marque and reprisal were issued by the British government. This prompt and vigorous measure had much influence on the war, which was declared, in form, the following spring.

General Shirley, on his return to Albany after the close of the campaign in 1755, received a commission appointing him commander in chief of the King's forces in North America. A meeting of all the governors was immediately called at New York, for the purpose of concerting a plan for the ensuing campaign. Operations equally extensive with those proposed for the preceding campaign were again contemplated. To ensure their success, it was determined to raise ten thousand men, for the expedition against Crown Point; six thousand, for that against Niagara; and three thousand, for that against fort Du Quêne. To favour the operations of this formidable force, it was farther determined that two thousand men should advance up the Kennebec, destroy the settlement on the Chaudière, and, descending to the mouth of that river, keep all that part of Canada in alarm.

In the mean time, it was proposed to take advantage of the season when the lake should be frozen, to seize Ticonderoga, in order to facilitate the enterprise against Crown Point. This project was defeated by the unusual mildness of the winter; and, about the middle of January, general Shirley repaired to Boston in order to make the necessary preparations for the ensuing campaign.

Such was the solicitude to accomplish the objects in contemplation, and so deep an interest did the colonists take in the war, that every nerve was strained, to raise and equip the number of men required.

1756

Command bestowed on Lord Loudoun.

Having made in Massachusetts all the preparations for the next campaign, so far as depended on the government, Shirley repaired to Albany, where he was superseded[[153](#)] by major general Abercrombie; who, soon afterwards, yielded the command to the earl of Loudoun. Early

in the year, that nobleman had been appointed to the command of all his majesty's forces in North America; and extensive powers, civil as well as military, had been conferred on him. But he did not arrive at Albany until midsummer.

In the spring, the provincial troops destined for the expedition against Crown Point, were assembled in the neighbourhood of lake George. They were found not much to exceed seven thousand men; and even this number was to be reduced in order to garrison posts in the rear. This army being too weak to accomplish its object, major general Winslow, who commanded it, declared himself unable to proceed on the expedition without reinforcements. The arrival of a body of British troops, with general Abercrombie, removed this difficulty; but another occurred which still farther suspended the enterprise.

The regulations respecting rank had given great disgust in America; and had rendered it disagreeable and difficult to carry on any military operations which required a junction of British and provincial troops. When consulted on this delicate subject, Winslow assured general Abercrombie of his apprehensions that, if the result of the junction should be to place the provincial troops under British officers, it would produce general discontent, and perhaps desertion. His officers concurred in this opinion; and it was finally agreed that British troops should succeed the provincials in the posts then occupied by them, so as to enable the whole colonial force to proceed under Winslow, against Crown Point.

On the arrival of the earl of Loudoun, this subject was revived. The question was seriously propounded, "whether the troops in the several colonies of New England, armed with his majesty's arms, would, in obedience to his commands signified to them, act in conjunction with his European troops; and under the command of his commander in chief?" The colonial officers answered this question in the affirmative; but entreated it as a favour of his lordship, as the New England troops had been raised on particular terms, that he would permit them, so far as might consist with his majesty's service, to act separately. This request was acceded to; but before the army could be put in motion, the attention both of the Europeans and provincials, was directed to their own defence.

Montcalm takes Oswego.

Monsieur de Montcalm, an able officer, who succeeded Dieskau in the command of the French troops in Canada, sought to compensate by superior activity, for the inferiority of his force. While the British and Americans were adjusting their difficulties respecting rank, and deliberating whether to attack Niagara or fort Du Quêne, Montcalm advanced at the head of about five thousand Europeans, Canadians, and Indians, against Oswego. In three days he brought up his artillery, and opened a battery which played on the fort with considerable effect. Colonel Mercer, the commanding officer, was killed; and, in a few hours, the place was declared by the engineers to be no longer tenable. The garrison, consisting of the regiments of Shirley and Pepperel, amounting to sixteen hundred men, supplied with provisions for five months, capitulated, and became prisoners of war. A respectable naval armament, then on the lake, was also captured.

The fort at Oswego had been erected in the country of the Five Nations, and had been viewed by them with some degree of jealousy. Montcalm, actuated by a wise policy, destroyed it in their presence; declaring at the same time, that the French wished only to enable them to preserve their neutrality, and would, therefore, make no other use of the rights of conquest, than to demolish the fortresses which the English had erected in their country to overawe them.

The British general, disconcerted at this untoward event, abandoned all his plans of offensive operations. General Winslow was ordered to relinquish his intended expedition, and to fortify his camp, and endeavour to prevent the enemy from penetrating into the country by the way of South bay, or Wood creek. Major general Webb, with fourteen hundred men, was posted at the great carrying place; and, to secure his rear, sir William Johnson, with one thousand militia, was stationed at the German flats.

These dispositions being made, the colonies were strenuously urged to reinforce the army. It was represented to them that, should any disaster befall Winslow, the enemy might be enabled to overrun the country, unless opposed by a force much superior to that in the field.[\[154\]](#)

Small-pox in Albany.

During this state of apprehensive inactivity, the small-pox broke out in Albany. This enemy was more dreaded by the provincials than Montcalm himself. So great was the alarm, that it was found necessary to garrison the

posts in that quarter, entirely with British troops, and to discharge all the provincials except a regiment raised in New York.

Thus terminated for a second time, in defeat and utter disappointment, the sanguine hopes which the colonists had formed of a brilliant and successful campaign. After all their expensive and laborious preparations, not an effort had been made to drive the invaders of the country even from their out-post at Ticonderoga.

The expedition to lake Ontario had not been commenced; and no preparations had been made for that against fort Du Quêne. The colonies of Pennsylvania, Maryland, and Virginia, far from contemplating offensive operations, had been unable to defend themselves; and their frontiers were exposed to all the horrors of Indian warfare.

The expedition up the Kennebec was also abandoned. Thus, no one enterprise contemplated at the opening of the campaign, was carried into execution.[\[155\]](#)

1757

About the middle of January, the governors of the northern provinces were convened in a military council at Boston. The earl of Loudoun opened his propositions to them with a speech in which he attributed all the disasters that had been sustained, to the colonies; and in which he proposed that New England should raise four thousand men for the ensuing campaign. Requisitions proportionably large were also made on New York and New Jersey.

Campaign of 1757.

The ill success which had, thus far, attended the combined arms of Great Britain and her colonies, did not discourage them. Their exertions to bring a powerful force into the field were repeated; and the winter was employed in preparations for the ensuing campaign. The requisitions of lord Loudoun were complied with; and he found himself, in the spring, at the head of a respectable army. Some important enterprise against Canada, when the armament expected from Europe should arrive, was eagerly anticipated; and the most sanguine hopes of success were again entertained.

Admiral Holbourne arrives. Is joined by Lord Loudoun.

In the beginning of July, Admiral Holbourne reached Halifax with a powerful squadron, and reinforcement of five thousand British troops

commanded by George Viscount Howe, and, on the 6th of the same month, the earl of Loudoun sailed from New York with six thousand regulars. A junction of these formidable armaments was effected without opposition, and the Loudoun colonists looked forward with confidence for a decisive blow which would shake the power of France in America.

The expedition against Louisbourg relinquished.

The plan of this campaign varied from that which had been adopted in the preceding years. The vast and complex movements heretofore proposed, were no longer contemplated, and offensive operations were to be confined to a single object. Leaving the posts on the lakes strongly garrisoned, the British general determined to direct his whole disposable force against Louisbourg; and fixed on Halifax as the place of rendezvous for the fleet and army.

After assembling the land and naval forces at this place, information was received that a fleet had lately arrived from France, and that Louisbourg was so powerfully defended as to render any attempt upon it hopeless. In consequence of this intelligence the enterprise was deferred until the next year; the general and admiral returned to New York in August; and the provincials were dismissed.

The French general, feeling no apprehension for Louisbourg, determined to avail himself of the absence of a large part of the British force, and to obtain complete possession of lake George. With an army collected chiefly from the garrisons of Crown Point, Ticonderoga, and the adjacent forts; amounting, with the addition of Indians, and Canadians, to nine thousand men, the marquis de Montcalm laid siege to fort William Henry. That place was well fortified, and garrisoned by three thousand men; and derived additional security from an army of four thousand men at fort Edwards, under the command of major general Webb. Fort William Henry taken. Notwithstanding the strength of the place and its means of defence, Montcalm urged his approaches with so much vigour, that articles of capitulation, surrendering the fort, artillery, and stores, and stipulating that the garrison should not serve against his Most Christian Majesty or his allies for the space of eighteen months, were signed within six days after its investment.

When this important place was surrendered, the commander in chief had not returned from Halifax. General Webb, alarmed for fort Edward, applied

for reinforcements; and the utmost exertions were made to furnish the aids he required. The return of the army to New York on the last of August, dispelled all fear of an invasion, and enabled the general, who contemplated no farther active operations, to dismiss the provincials.

Unsuccessful in all his attempts to gather laurels from the common enemy, the earl of Loudoun engaged in a controversy with Massachusetts; in the commencement of which, he displayed a degree of vigour which had been kept in reserve for two campaigns. This controversy is thus stated by Mr. Minot.

Upon information from the governor that a regiment of Highlanders was expected in Boston, the general court provided barracks for the accommodation of one thousand men at Castle Island. Soon afterwards, several officers arrived from Nova Scotia to recruit their regiments. Finding it impracticable to perform this service while in the barracks at the castle, they applied to the justices of the peace to quarter and billet them, as provided by act of parliament. The justices refused to grant this request, on the principle that the act did not extend to the colonies. When informed of this refusal, lord Loudoun addressed a letter to the justices, insisting peremptorily on the right, as the act did, in his opinion, extend to America, and to every part of the King's dominions, where the necessities of the people should oblige him to send his troops. He concluded a long dissertation on the question in the following decisive terms, "that having used gentleness and patience, and confuted their arguments, without effect, they having returned to their first mistaken plan, their not complying would lay him under the necessity of taking measures to prevent the whole continent from being thrown into a state of confusion. As nothing was wanting to set things right, but the justices doing their duty (for no act of the assembly was necessary or wanting for it) he had ordered the messenger to remain only forty-eight hours in Boston; and if on his return he found things not settled, he would instantly order into Boston the three battalions from New York, Long Island, and Connecticut; and if more were wanting, he had two in the Jerseys at hand, besides those in Pennsylvania. As public business obliged him to take another route, he had no more time left to settle this material affair, and must take the necessary steps before his departure, in case they were not done by themselves."

The general court passed a law for the purpose of removing the inconveniences of which the officers complained; but, this law not equalling the expectations of lord Loudoun, he communicated his dissatisfaction in a letter to the governor, which was laid before the assembly, who answered by an address to his excellency in which the spirit of their forefathers seemed to revive. They again asserted that the act of parliament did not extend to the colonies; and that they had for this reason enlarged the barracks at the castle, and passed a law for the benefit of recruiting parties, as near the act of parliament as the circumstances of the country would admit; that such a law was necessary to give power to the magistrates, and they were willing to make it, whenever his majesty's troops were necessary for their defence. They asserted their natural rights as Englishmen; that by the royal charter, the powers and privileges of civil government were granted to them; that their enjoyment of these was their support under all burdens, and would animate them to resist an invading enemy to the last. If their adherence to their rights and privileges should, in any measure, lessen the esteem which his lordship had conceived for them, it would be their great misfortune; but that they would have the satisfaction of reflecting that, both in their words and actions, they had been governed by a sense of duty to his majesty, and faithfulness to the trust committed to them.

This address being forwarded to lord Loudoun, he affected to rely on their removing all difficulties in future, and not only countermanded the march of the troops, but condescended to make some conciliatory observations respecting the zeal of the province in his majesty's service. For these the two houses made an ample return in a message to the governor, in which they disavowed any intention of lessening their dependence on parliament; and expressly acknowledged the authority of all acts which concerned, and extended to, the colonies.

This explicit avowal of sentiments so different from those which Massachusetts had long cherished respecting her connexion with the mother country, would induce a belief that she had recently become more colonial in her opinions. This was probably the fact; but Mr. Minot, who may be presumed to have been personally acquainted with the transaction, does not attribute to that cause entirely, the conciliating temper manifested at the close of a contest, which had commenced with such appearances of asperity. Massachusetts had made large advances for the prosecution of the

war, for which she expected reimbursements from parliament; and was not willing, at such a juncture, to make impressions unfavorable to the success of her claims.

CHAPTER XII.

Preparations for the campaign of 1758.... Admiral Boscawen and general Amherst arrive at Halifax.... Plan of the campaign.... Expedition against Louisbourg, Ticonderoga, and Crown Point.... General Abercrombie repulsed under the walls of Ticonderoga.... Fort Frontignac taken.... Expedition against fort Du Quêsne.... Preparations for the campaign of 1759.... General Amherst succeeds general Abercrombie.... Plan of the campaign.... Ticonderoga and Crown Point taken.... Army goes into winter quarters.... French repulsed at Oswego.... Defeated at Niagara.... Niagara taken.... Expedition against Quebec.... Check to the English army.... Battle on the Plains of Abraham.... Death of Wolfe and Montcalm.... Quebec capitulates.... Garrisoned by the English under the command of general Murray.... Attempt to recover Quebec.... Battle near Sillery.... Quebec besieged by Monsieur Levi.... Siege raised.... Montreal capitulates.... War with the southern Indians.... Battle near the town of Etchoe.... Grant defeats them and burns their towns.... Treaty with the Cherokees.... War with Spain.... Success of the English.... Peace.

1758

The affairs of Great Britain in North America wore a more gloomy aspect, at the close of the campaign of 1757, than at any former period. By the acquisition of fort William Henry, the French had obtained complete possession of the lakes Champlain and George. By the destruction of Oswego, they had acquired the dominion of those lakes which connect the St. Lawrence with the waters of the Mississippi, and unite Canada to Louisiana. By means of fort Du Quêsne, they maintained their ascendancy over the Indians, and held undisturbed possession of the country west of the Allegheny mountains; while the English settlers were driven to the Blue Ridge. The great object of the war in that quarter was gained, and France held the country for which hostilities had been commenced. With inferior numbers, the French had been victorious in every campaign, and had uniformly gained ground on the English colonies. Nor were they less

successful elsewhere. The flame of war which was kindled in America, had communicated itself to Europe and Asia. In every quarter of the world where hostilities had been carried on, the British arms were attended with defeat and disgrace.

But this inglorious scene was about to be succeeded by one of unrivalled brilliancy. From the point of extreme depression to which their affairs had sunk, the brightest era of British history was to commence. Far from being broken by misfortune, the spirit of the nation was high; and more of indignation than dismay was inspired by the ill success of their arms. The public voice had, at length, made its way to the throne, and had forced, on the unwilling monarch, a minister who has been justly deemed one of the greatest men of the age in which he lived.

Mr. Pitt had been long distinguished in the House of Commons, for the boldness and the splendour of his eloquence. His parliamentary talents, and the independent grandeur of his character, had given him a great ascendancy in that body, and had made him the idol of the nation. In 1756, he had been introduced into the cabinet, but could not long retain his place. The public affection followed him out of office; and, the national disasters continuing, it was found impracticable to conduct the complicated machine of government without his aid. In the summer of 1757, an administration was formed, which conciliated the great contending interests in parliament; and Mr. Pitt was placed at its head. The controlling superiority of his character gave him the same ascendancy in the cabinet which he had obtained in the house of commons; and he seemed to dictate the measures of the nation. Only a short time was required to show that qualities, seldom united in the same person, were combined in him; and his talents for action seemed to eclipse even those he had displayed in debate. His plans partaking of the proud elevation of his own mind, and the exalted opinion he entertained of his countrymen, were always grand; and the means he employed for their execution, were always adequate to the object. Possessing the public confidence without limitation, he commanded all the resources of the nation, and drew liberally from the public purse; but the money was always faithfully and judiciously applied to the public service. Too great in his spirit, too lofty in his views, to become the instrument of faction; when placed at the head of the nation, he regarded only the interest of the nation; and, overlooking the country or the party, which had given birth to merit, he searched for merit only, and employed it wherever it was

found. From the elevation of the house of Brunswick to the British throne, a great portion of the people, under the denomination of tories, had been degraded, persecuted, and oppressed. Superior to this narrow and short sighted policy, Mr. Pitt sought to level these enfeebling and irritating distinctions, and to engage every British subject in the cause of his country. Thus commanding both the strength and the wealth of the kingdom, with perhaps greater talents, he possessed certainly greater means, than any of his predecessors.[\[156\]](#)

In no part of his majesty's dominions was the new administration more popular than in his American colonies. Deeply and peculiarly interested in the events of the war, they looked for a change of fortune from this change of men, and cheerfully made every exertion, of which they were capable, for the ensuing campaign. The circular letter of Mr. Pitt assured the several governors that, to repair the losses and disappointments of the last inactive campaign, the cabinet was determined to send a formidable force, to operate by sea and land, against the French in America; and he called upon them to raise as large bodies of men, within their respective governments, as the number of inhabitants might allow. Arms, ammunition, tents, provisions, and boats, would, he said, be furnished by the crown; and he required the colonies to clothe and pay their men; assuring them, at the same time, that it should be recommended to parliament to make them compensation.

Great preparations for the campaign.

The legislature of Massachusetts agreed to furnish seven thousand men; Connecticut five thousand; and New Hampshire three thousand. These troops, great as were their numbers, when compared with the population of the country, were in the field early in May; and the transports for carrying those of Massachusetts to Halifax, were ready to sail in fifteen days after they were engaged. Near one-third of the effective men of that province, are said to have been in military service; and the taxes were so heavy that, in the capital, they amounted to two-thirds of the income of real estate.[\[157\]](#)

In the mother country too, the utmost activity was transfused into every department. Her fleets blocked up in the French ports the men and stores designed for Canada, and captured, on the seas, most of those which had been able to make their way into the ocean. Admiral Boscawen and General Amherst arrive. At the same time, a powerful armament, equipped with unusual expedition, sailed from her ports. Early in the spring, admiral Boscawen arrived at Halifax with a formidable fleet, and twelve thousand British troops, under the command of general Amherst.

The earl of Loudoun had returned to England, and the command of the British and American forces in the colonies, had devolved on general Abercrombie. That officer found himself at the head of the most powerful army ever seen in the new world. His whole numbers, comprehending troops of every description, have been computed by Mr. Belsham at fifty thousand men, of whom twenty thousand were provincials.

The objects of the campaign were no longer defeated by delays. The preparations for action were made during the winter, and military operations commenced in the spring.

Plan of the campaign.

Three expeditions were proposed. The first was against Louisbourg; the second against Ticonderoga and Crown Point; and the third against fort Du Quêrne.[\[158\]](#)

Expedition against Louisbourg.

The army destined against Louisbourg, consisting of fourteen thousand men, was commanded by major general Amherst; and the fleet, consisting of twenty ships of the line and eighteen frigates, by admiral Boscawen. On

the 24th of May, the troops embarked at Halifax; and, on the 2d of June, arrived before Louisbourg.

The use made by Great Britain of her naval superiority was felt in no part of the possessions of his Most Christian Majesty more sensibly than in Louisbourg. The garrison of that important place was composed of only two thousand five hundred regulars, aided by six hundred militia. The harbour was defended by five ships of the line; one ship of fifty guns; and five frigates, three of which were sunk across the mouth of the basin.

Soon after investment of the place, one of the large ships was set on fire by a bomb from a battery on the light house point, and blown up. The flames were communicated to two others which shared the same fate. The English admiral then sent a detachment of six hundred seamen, in boats, into the harbour, under captains La Forcey and Balfour, to make an attempt on the two remaining ships of the line, which still kept possession of the basin. This service was executed with great gallantry. One, which was aground, was destroyed, and the other was towed off in triumph.

The harbour being in possession of the English, and several practicable breaches made in the works, the place was no longer deemed defensible, and the governor was under the necessity of capitulating. The garrison became prisoners of war, and Louisbourg, with its artillery, provisions and military stores; and also Island Royal, St. Johns, and their dependencies, were surrendered to the English, who encountered no farther difficulty in taking possession of the whole island.[\[159\]](#)

This important acquisition was made with the loss of between five and six hundred men, killed and wounded. The joy it diffused throughout the colonies, long familiarised to disaster, was in proportion to their former disappointments.

Against Ticonderoga.

The expedition against Ticonderoga and Crown Point was conducted by general Abercrombie in person. His army, consisting of near sixteen thousand effectives, of whom nine thousand were provincials, was attended by a formidable train of artillery, and possessed every requisite to ensure success.

On the 5th of July, he embarked on lake George, and reached the landing place early the next morning. A disembarkation being effected without opposition, the troops were immediately formed into four columns, the

British in the centre, and the Provincials on the flanks; in which order they marched towards the advanced guard of the French, composed of one battalion posted in a log camp, which, on the approach of the English, made a precipitate retreat.

Abercrombie continued his march towards Ticonderoga, with the intention of investing that place; but, the woods being thick, and the guides unskilful, his columns were thrown into confusion, and, in some measure, entangled with each other. In this situation lord Howe, at the head of the right centre column, fell in with a part of the advance guard of the French, which, in retreating from lake George, was likewise lost in the wood. He immediately attacked and dispersed them; killing several, and taking one hundred and forty-eight prisoners, among whom were five officers.

This small advantage was purchased at a dear rate. Though only two officers, on the side of the British, were killed, one of these was lord Howe himself, who fell on the first fire. This gallant young nobleman had endeared himself to the whole army. The British and provincials alike lamented his death; and the assembly of Massachusetts passed a vote for the erection of a superb cenotaph to his memory, in the collegiate church of Westminster, among the heroes and patriots of Great Britain.

Without farther opposition, the English army took possession of the post at the Saw Mills, within two miles of Ticonderoga. This fortress, which commands the communication between the two lakes, is encompassed on three sides by water, and secured in front by a morass. The ordinary garrison amounting to four thousand men, was stationed under the cannon of the place, and covered by a breast-work, the approach to which had been rendered extremely difficult by trees felled in front, with their branches outward, many of which were sharpened so as to answer the purpose of chevaux-de-frize. This body of troops was rendered still more formidable by its general than by its position. It was commanded by the marquis de Montcalm.

Having learned from his prisoners the strength of the army under the walls of Ticonderoga, and that a reinforcement of three thousand men was daily expected, general Abercrombie thought it advisable to storm the place before this reinforcement should arrive. Being informed by an engineer directed to reconnoitre the works, that they were unfinished, and were

practicable, he resolved, without waiting for his artillery, to storm the lines; and the dispositions for an assault were instantly made.

The rangers, the light infantry, and the right wing of the provincials, were ordered to form a line out of cannon shot of the intrenchments, with their right extending to lake George, and their left to lake Champlain. The regulars who were to storm the works, were formed in the rear of this line. The piquets were to begin the attack, and to be sustained by the grenadiers; and the grenadiers by the battalions. The whole were ordered to march up briskly, to rush upon the enemy's fire, and to reserve their own until they had passed the breast-work.

The troops marched to the assault with great intrepidity; but their utmost efforts could make no impression on the works. The impediments in front of the intrenchments retarded their advance, and exposed them, while entangled among the boughs of the trees, to a very galling fire. The breast-work itself was eight or nine feet high, and much stronger than had been represented; so that the assailants, who do not appear to have been furnished with ladders, were unable to pass it. After a contest of near four hours, and several repeated attacks, general Abercrombie ordered a retreat. General Abercrombie repulsed under the walls of Ticonderoga.

The army retired to the camp from which it had marched in the morning; and, the next day, resumed its former position on the south side of lake George.[\[160\]](#)

In this rash attempt, the killed and wounded of the English amounted to near two thousand men, of whom not quite four hundred were provincials. The French were covered during the whole action, and their loss was inconsiderable.[\[161\]](#)

Entirely disconcerted by this unexpected and bloody repulse, General Abercrombie relinquished his designs against Ticonderoga and Crown Point. Searching however for the means of repairing the misfortune, if not the disgrace, sustained by his arms, he readily acceded to a proposition made by colonel Bradstreet, for an expedition against fort Frontignac. This fortress stands on the north side of Ontario, at the point where the St. Lawrence issues from that lake; and though a post of real importance, had been left, in a great degree, undefended.

The detachment designed for this service was commanded by colonel Bradstreet. It consisted of three thousand men, of whom two hundred were

British, and was furnished with eight pieces of cannon, and three mortars. Fort Frontignac taken.

Colonel Bradstreet embarked on the Ontario at Oswego, and on the 25th of August, landed within one mile of the fort. In two days, his batteries were opened at so short a distance that almost every shell took effect; and the governor, finding the place absolutely untenable, surrendered at discretion. The Indians having deserted, the prisoners amounted only to one hundred and ten men. A great quantity of military stores, together with nine armed vessels, mounting from eight to eighteen guns, also fell into the hands of the English.[\[162\]](#)

After destroying the fort and vessels, and such stores as could not be brought off, colonel Bradstreet returned to the army which undertook nothing farther during the campaign.

Expedition against Fort Du Quêsne.

The demolition of fort Frontignac and of the stores which had been collected there, contributed materially, to the success of the expedition against fort Du Quêsne. The conduct of this enterprise had been entrusted to general Forbes, who marched from Philadelphia, about the beginning of July, at the head of the main body of the army, destined for this service, in order to join colonel Bouquet at Raystown. So much time was employed in preparing to move from this place, that the Virginia regulars, commanded by colonel Washington, were not ordered to join the British troops until the month of September. It had been determined not to use the road made by Braddock, but to cut a new one from Raystown to fort du Quêsne. About the time this resolution was formed, and before the army was put in motion, major Grant was detached from the advanced post at Loyal Hannan with eight hundred men, to reconnoitre the fort and the adjacent country. This gentleman invited an attack from the garrison, the result of which was that upwards of three hundred of the detachment were killed and wounded, and major Grant himself was made a prisoner.[\[163\]](#)

Fort Du Quêsne evacuated.

Early in October general Forbes moved from Raystown; but the obstructions to his march were so great that he did not reach fort Du Quêsne until late in November. The garrison, being deserted by the Indians, and too weak to maintain the place against the formidable army which was approaching, abandoned the fort the evening before the arrival of the

British, and escaped down the Ohio in boats. The English placed a garrison in it, and changed its name to Pittsburg, in compliment to their popular minister. The acquisition of this post was of great importance to Pennsylvania, Maryland, and Virginia. Its possession had given the French an absolute control over the Indians of the Ohio, who were accustomed to assemble at that place, for the purpose of making their destructive incursions into those colonies. Their route was marked by fire and the scalping knife; and neither age nor sex could afford exemption from their ferocity. The expulsion of the French gave the English entire possession of the country, and produced a complete revolution in the disposition of the Indians inhabiting it. Finding the current of success to be running against their ancient friends, they were willing to reconcile themselves to the most powerful; and all the Indians between the lakes and the Ohio concluded a peace with the English.

Although the events of 1758 did not equal the expectations which had been formed from the force brought into the field, the advantages were decisive. The whole country constituting the original cause of the war, had changed masters, and was in possession of the English. The acquisition of the island of Cape Breton opened the way to Quebec; and their success in the west enabled them to direct all their force against Canada. The colonists, encouraged by this revolution in their affairs, and emboldened, by the conquests already made, to hope for others still more extensive, prepared vigorously on the application of Mr. Pitt, for the farther prosecution of the war.

General Amherst succeeds General Abercrombie.

Late in the year 1758, general Abercrombie was succeeded in the command of the army by major general Amherst, who formed the bold plan of conquering Canada in the course of the ensuing campaign.

1759

The decided superiority of Great Britain at sea, and the great exertions of France in other quarters of the world, still prevented the arrival of such reinforcements as were necessary for the preservation of his most christian majesty's possessions in North America. Plan of the campaign. To take advantage of this weakness, the English proposed to enter Canada by three different routes, with three powerful armies; and to attack all the strongholds by which that country was defended.

It was determined that one division of the army, to be commanded by brigadier general Wolfe, a young officer who had signalised himself in the siege of Louisbourg, should ascend the St. Lawrence, and lay siege to Quebec. A strong fleet was to escort the troops destined for this enterprise, and to co-operate with them.

Major general Amherst was to lead the central and main army against Ticonderoga and Crown Point. After making himself master of these places, he was to proceed over lake Champlain, and by the way of Richelieu, to the St. Lawrence, and down that river, so as to effect a junction with general Wolfe before the walls of Quebec. From their combined force, the conquest of the capital of Canada was expected.

The third army was to be commanded by general Prideaux. Its first destination was against Niagara. After the reduction of this place, Prideaux was to embark on lake Ontario, and proceed down the St. Lawrence against Montreal. Should Montreal fall into his hands before the surrender of Quebec, he was to join the grand army at that place.[\[164\]](#)

It could not be expected that a plan so extensive and so complex, should succeed in all its parts; and it was greatly to be apprehended, that the failure of one part might defeat the whole. But it suited the daring spirit which eminently distinguished the officers then commanding the British forces, and was entered upon with zeal and activity.

As the other two expeditions, especially that against Quebec, were supposed to depend greatly on the celerity with which the movements of the main army should be made, general Amherst began his preparations in the commencement of winter, for the enterprise he was to undertake. Early in the spring, he transferred his head quarters from New York to Albany, where his troops were assembled by the last of May. Notwithstanding his continued exertions, the summer was far advanced before he could cross lake George; Ticonderoga abandoned. nor did he reach Ticonderoga until the 22d of July. The lines drawn around that place were immediately abandoned, and the English took possession of them.

The French troops in this quarter being unequal to the defence of the posts they held, their object seems to have been to embarrass and delay the invading army; but not to hazard any considerable diminution of strength, by persevering in the defence of places until the retreat of the garrison should become impracticable. The hope was entertained, that by retreating

from post to post, and making a show of intending to defend each, the advance of the English might be retarded, until the season for action on the lakes should pass away; while the French would be gradually strengthened by concentration, and thus enabled to maintain some point, which would arrest the progress of Amherst down the St. Lawrence.

In pursuance of this plan, as soon as the English had completed their arrangements for taking possession of lake Champlain, the garrison of Ticonderoga retreated to Crown Point.

and Crown Point.

Early in the month of August, Amherst advanced to Crown Point, which was abandoned on his approach; and the garrison retired to isle Aux Noix, at the northern extremity of lake Champlain. The French had collected between three and four thousand men at this place, in an entrenched camp, defended by artillery, and protected by several armed vessels on the lake. After making great exertions to obtain a naval superiority, General Amherst embarked his army on lake Champlain; but, a succession of storms compelling him to abandon the farther prosecution of the enterprise, he returned to Crown Point, where the troops were put into winter quarters.

[\[165\]](#)

In the beginning of July, general Prideaux, embarked on lake Ontario with the army destined against Niagara. Immediately after his departure from Oswego, that place, which was defended by twelve hundred men under the command of colonel Haldiman, was vigorously attacked by a body of French and Indians, who were repulsed with some loss.

In the mean time, Prideaux proceeded towards Niagara, and landed without opposition, about three miles from the fort. The place was invested in form, and the siege was carried on by regular approaches. In its progress, General Prideaux was killed by the bursting of a cohorn, and the command devolved on general Johnson. Great efforts were made to relieve this important place. A considerable body of troops drawn from the neighbouring garrisons, aided by some Indian auxiliaries, advanced on the English army, with the determination to risk a battle, in order to raise the siege. Early in the morning of the 24th, the approach of this party was announced, and a strong detachment marched out to meet it. The action, which immediately commenced, was not of long duration. The French were

forsaken by their savage allies, and victory soon declared in favour of the English.

Niagara capitulates.

This battle decided the fate of Niagara. The works of the besiegers had been pushed within one hundred yards of the walls, and a farther attempt to defend the place being hopeless, a capitulation was signed, by which the garrison, amounting to rather more than six hundred men, became prisoners of war.

Although important advantages were gained by the British arms in Upper Canada, yet, as neither division of the army, in that quarter, succeeded so completely as to co-operate with general Wolfe, serious fears were entertained for the fate of that officer. The enterprise conducted by him being of the greatest hazard and of the deepest interest, its success was to decide, whether the whole campaign would terminate in a manner favourable to the future conquest of Canada.

Expedition against Quebec.

As soon as the waters were sufficiently freed from ice to be navigable, Wolfe embarked eight thousand men with a formidable train of artillery, at Louisbourg, under convoy of admirals Saunders and Holmes. Late in June, he anchored about half way up the island of Orleans, on which he landed, without opposition.

From this position, he could take a near and accurate view of the obstacles to be surmounted, before he could hope for success in his enterprise. These were so great, that even his bold and sanguine temper perceived more to fear than to hope; and, in a celebrated letter written to Mr. Pitt, and afterwards published, he declared that he could not flatter himself with being able to reduce the place.[\[166\]](#)

Quebec stands on the north side of the St. Lawrence, and on the west of the St. Charles, which rivers unite immediately below the town. It consists of an upper and a lower town; the latter is built upon the strand, which stretches along the base of the lofty rock, on which the former is situated. This rock continues, with a bold and steep front, far to the westward, parallel to, and near the river St. Lawrence. On this side, therefore, the city might well be deemed inaccessible. On the other, it was protected by the river St. Charles, in which were several armed vessels, and floating batteries, deriving additional security from a strong boom drawn across its

mouth. The channel of this river is rough and broken, and its borders intersected with ravines. On its left, or eastern bank, was encamped a French army, strongly entrenched, and amounting, according to the English accounts, to ten thousand men.[\[167\]](#) The encampment extended from St. Charles, eastward, to the Montmorency, and its rear was covered by an almost impenetrable wood. To render this army still more formidable, it was commanded by a general, who had given signal proofs of active courage, and consummate prudence. The marquis de Montcalm, who, when strong enough to act offensively, had so rapidly carried Oswego, and fort William Henry, and who, when reduced to the defensive, had driven Abercrombie with such slaughter from the walls of Ticonderoga, was now at the head of the army which covered Quebec, and was an antagonist, in all respects, worthy of Wolfe.

The British general perceived these difficulties in their full extent, but, his ardent mind glowing with military enthusiasm, sought only how to subdue them.

He took possession of Point Levi, on the southern side of the St. Lawrence, where he erected several heavy batteries, which opened on the town, but were at too great a distance to make any considerable impression on the works. Nor could his ships be employed in this service. The elevation of the principal fortifications placed them beyond the reach of the guns of the fleet; and the river was so commanded by the batteries on shore, as to render a station near the town ineligible.

The English general, sensible of the impracticability of reducing Quebec, unless he should be enabled to erect his batteries on the north side of the St. Lawrence, determined to use his utmost endeavours to bring Montcalm to an engagement. After several unavailing attempts to draw that able officer from his advantageous position, Wolfe resolved to pass the Montmorency, and to attack him in his entrenchments.

In consequence of this resolution, thirteen companies of British grenadiers, and part of the second battalion of royal Americans, were landed near the mouth of the Montmorency, under cover of the cannon of the ships; while two divisions, under generals Townshend and Murray, prepared to cross that river higher up. The original plan was to make the first attack on a detached redoubt close to the water's edge, apparently unprotected by the fire from the entrenchments, in the hope that Montcalm might be induced to

support this work, and thereby enable Wolfe to bring on a general engagement.[168]

On the approach of the British troops, this redoubt was evacuated. Observing some confusion in the French camp, Wolfe determined to avail himself of the supposed impression of the moment, and to storm the lines. With this view, he directed the grenadiers and royal Americans to form on the beach, where they were to wait until the whole army could be arranged to sustain them. Orders were at the same time dispatched to Townshend and Murray to be in readiness for fording the river.

The grenadiers and royal Americans, disregarding their orders, rushed forward, with impetuous valour on the entrenchments of the enemy. They were received with so steady and well supported a fire, that they were thrown into confusion, and compelled to retreat. The English army repulsed. The general advancing in person with the remaining brigades, the fugitives formed again in the rear of the army; but the plan of the attack was effectually disconcerted, and the English commander gave orders for re-passing the river, and returning to the island of Orleans.

Convinced by this disaster of the impracticability of approaching Quebec on the side of the Montmorency, Wolfe again turned his whole attention to the St. Lawrence. To destroy some ships of war lying in the river, and at the same time to distract the attention of Montcalm by descents at different places, twelve hundred men were embarked in transports under the command of general Murray, who made two vigorous, but unsuccessful attempts, to land on the northern shore. In the third he was more fortunate. In a sudden descent on Chambaud, he burnt a valuable magazine filled with military stores, but was still unable to accomplish the main object of the expedition. The ships were secured in such a manner as not to be approached by the fleet or army. Murray was recalled; and on his return brought with him the intelligence that Niagara was taken, that Ticonderoga and Crown Point had been abandoned, and that general Amherst was making preparations to attack the isle Aux Noix.[169]

This intelligence, though joyfully received, promised no immediate assistance; and the season for action was rapidly wasting away.[170] Nor was it easy for Wolfe to avoid contrasting the success of the British arms under other auspices, with the ill fortune attending his own.

A council of war having determined that all their future efforts should be directed towards effecting a landing above the town, the troops were withdrawn from the island of Orleans, and embarked on board the fleet. Some of them were landed at Point Levi, and the residue carried higher up the river.[\[171\]](#)

Montcalm could not view this movement without alarm. That part of Quebec, which faces the country, had not been well fortified; and he was apprehensive that a landing might be effected high up the river, and the town approached on its weak side. At the same time, he could not safely relinquish his position, because the facility of transportation which the command of the water gave the English, would enable them to seize the ground he then occupied, should his army be moved above the town.

Thus embarrassed, he detached Monsieur de Bougainville with fifteen hundred men, to watch the motions of the English, and to prevent their landing.

In this state of things Wolfe formed the bold and hazardous plan of landing in the night, a small distance above the city, on the northern bank of the river; and, by scaling a precipice, accessible only by a narrow path, and therefore but weakly guarded, to gain the heights in the rear of the town.

This resolution being taken, the admiral moved up the river, several leagues above the place where the landing was to be attempted, and made demonstrations of an intention to disembark a body of troops at different places. During the night, a strong detachment, in flat bottomed boats, fell silently down with the tide to the place fixed on for the descent. This was made an hour before day-break, about a mile above cape Diamond, Wolfe being the first man who leaped on shore. The Highlanders and light infantry, who composed the van, under the particular command of colonel Howe, had been directed to secure a four gun battery defending an entrenched path by which the heights were to be ascended, and to cover the landing of the remaining troops. The violence of the current forced them rather below the point of disembarkation; a circumstance which increased their difficulties. However, scrambling up the precipice, they gained the heights, and quickly dispersed the guard. The whole army followed up this narrow pass; and, having encountered only a scattering fire from some Canadians and Indians, gained the summit by the break of day, when the several corps were formed under their respective leaders.[\[172\]](#)

The intelligence that the English had gained the heights of Abraham was soon conveyed to Montcalm, who comprehended at once the full force of the advantage obtained by his adversary, and prepared for the engagement which could no longer be avoided. Leaving his camp at Montmorency, he crossed the St. Charles, for the purpose of attacking the English army.[\[173\]](#)

This movement was made in the view of Wolfe, who immediately formed his order of battle. His right wing was commanded by general Monckton, and his left by general Murray. The right flank was covered by the Louisbourg grenadiers, and the rear and left by the light infantry of Howe. The reserve consisted of Webb's regiment, drawn up in eight subdivisions, with large intervals between them.

Montcalm had formed his two wings of European and colonial troops in nearly equal numbers. A column of Europeans composed his centre; and two small field pieces were brought up to play on the English line. In this order he marched to the attack, advancing in his front about fifteen hundred militia and Indians, who kept up an irregular and galling fire under cover of the bushes.

The movements of the French indicating an intention to flank his left, general Wolfe ordered the battalion of Amherst, and the two battalions of royal Americans, to that part of his line; where they were formed *en potence* under general Townshend, presenting a double front. Disregarding the fire of the militia and Indians, he ordered his troops to reserve themselves for the column advancing in the rear of these irregulars.

Battle on the plains of Abraham.

Montcalm had taken post on the left of the French army, and Wolfe on the right of the British; so that the two generals met each other, at the head of their respective troops; and there the battle was most severe. The French advanced briskly to the charge, and commenced the action with great animation. The English reserved their fire until the enemy were within forty yards of them, when they gave it with immense effect. The action was kept up for some time with great spirit. Death of Wolfe, Wolfe, advancing at the head of his grenadiers with charged bayonets, received a mortal wound and soon afterwards expired. Undismayed by the loss of their general, the English continued their exertions under Monckton, on whom the command devolved. He also received a ball through his body, and general Townshend took command of the British army. and of Montcalm. About the same time

Montcalm received a mortal wound, and general Senezergus, the second in command, also fell. The left wing and centre of the French began to give way; and, being pressed close by the British, were driven from the field.

On the left and rear of the English, the action was less severe. The light infantry had been placed in houses; and colonel Howe, the better to support them, had taken post still farther to the left, behind a copse. As the right of the French attacked the English left, he sallied from this position, upon their flanks, and threw them into disorder. In this critical moment, Townshend advanced several platoons against their front, and completely frustrated the attempt to turn the left flank.

Victory of the English.

In this state of the action, Townshend was informed that the command had devolved on him. Proceeding instantly to the centre, he found that part of the army thrown into some disorder by the ardour of pursuit; and his immediate efforts were employed in restoring the line. Scarcely was this effected, when Monsieur de Bougainville, who had been detached as high as cape Rouge to prevent a landing above, and who, on hearing that the English had gained the plains of Abraham, hastened to the assistance of Montcalm, appeared in the rear at the head of fifteen hundred men. Fortunately for the English, the right wing of the French, as well as their left and centre, had been entirely broken, and driven off the field. Two battalions and two pieces of artillery being advanced towards Bougainville, he retired; and Townshend did not think it advisable to risk the important advantages already gained, by pursuing this fresh body of troops through a difficult country.[\[174\]](#)

In this decisive battle, nearly equal numbers appear to have been engaged. The English however possessed this immense advantage:—they were all veterans; while not more than half the French were of the same description. This circumstance would lead to an opinion that some motive, not well explained, must have induced Montcalm to hazard an action before he was assured of being joined by Bougainville.

The French regulars were almost entirely cut to pieces. The loss of the English was not so considerable as the fierceness of the action would indicate. The killed and wounded were less than six hundred men; but among the former, was the commander in chief. This gallant officer, whose rare merit, and lamented fate, have presented a rich theme for panegyric to

both the poet and historian, received a ball in his wrist in the commencement of the action; but, wrapping a handkerchief around his arm, he continued to encourage his troops. Soon afterwards he received a shot in the groin, which he also concealed; and was advancing at the head of the grenadiers, when a third bullet pierced his breast. Though expiring, it was with reluctance he permitted himself to be carried into the rear, where he displayed, in the agonies of death, the most anxious solicitude concerning the fate of the day. Being told that the enemy was visibly broken, he reclined his head, from extreme faintness, on the arm of an officer standing near him; but was soon roused with the distant cry of "they fly, they fly." "Who fly?" exclaimed the dying hero. On being answered "the French." "Then," said he, "I depart content;" and, almost immediately expired. "A death more glorious," adds Mr. Belsham, "and attended with circumstances more picturesque and interesting, is no where to be found in the annals of history."

The less fortunate, but not less gallant Montcalm expired on the same day. The same love of glory, and the same fearlessness of death, which so remarkably distinguished the British hero, were equally conspicuous in his competitor for victory and for fame. He expressed the highest satisfaction on hearing that his wound was mortal; and when told that he could survive only a few hours, quickly replied, "so much the better, I shall not then live to see the surrender of Quebec."[\[175\]](#)

Quebec capitulates.

The first days after the action were employed by general Townshend in making preparations for the siege of Quebec. But before his batteries were opened, the town capitulated; on condition that the inhabitants should, during the war, be protected in the free exercise of their religion, and the full enjoyment of their civil rights, leaving their future destinies to be decided by the treaty of peace.

Quebec was garrisoned by about five thousand English, under the command of general Murray; and the fleet sailed from the St. Lawrence.

The English minister, aware of the importance of completing the work thus fortunately begun, was not of a temper to relax his exertions. His letters to the governors of the several colonies contained declarations of his intention to employ a strong military force for the ensuing year, and exhortations to them to continue their efforts for the annihilation of the

French power in Canada. These exhortations were accompanied with assurances that he would again apply to parliament to reimburse their future extraordinary expenses; and were productive of the desired effect. The several assemblies voted the same number of troops, and amount of supplies, as had been furnished the preceding year.

In the mean time the governor of New France, and the general of the army, made great exertions to retrieve their affairs, and to avert the ruin which threatened them.

The remaining European troops were collected about Montreal; where they were reinforced with six thousand militia, and a body of Indians. Monsieur de Levi, on whom the command had devolved, determined to attempt the recovery of Quebec, before the opening of the St. Lawrence should enable the English to reinforce the garrison, and to afford it the protection of their fleet. But the out-posts being found too strong to admit of his carrying the place by *a coup de main*, he was under the necessity of postponing the execution of this design, until the upper part of the St. Lawrence should open, and afford a transportation by water, for his artillery and military stores.

1760

In the month of April these were embarked at Montreal, under convoy of six frigates; which, sailing down the St. Lawrence, while the army marched by land, reached Point au Tremble in ten days.

To avoid the hardships and dangers of a siege in a town too extensive to be defended by his sickly garrison, and inhabited by persons known to be hostile, Murray took the bold resolution of hazarding a battle. Having formed this determination, he led out his garrison to the heights of Abraham, Battle near Sillery, and attacked the French near Sillery. He was received with unexpected firmness; and, perceiving that his utmost efforts could make no impression, he called off his army, and retired into the city. In this fierce encounter, the English loss amounted to near one thousand men; and they represent that of the French to have been not less considerable.

Quebec besieged.

Monsieur de Levi improved his victory to the utmost. His trenches were opened before the town, on the same evening; but such was the difficulty of bringing up his heavy artillery, that near a fortnight elapsed before he could

mount his batteries, and bring his guns to bear on the city. The batteries had been opened but a few days, when the garrison was relieved from its perilous situation, by the arrival of a British fleet.

Quebec being secure, Monsieur de Levi raised the siege, and retired to Montreal.

During these transactions, general Amherst was taking measures for the annihilation of the remnant of French power in Canada. He determined to employ the immense force under his command for the accomplishment of this object, and made arrangements, during the winter, to bring the armies from Quebec, lake Champlain, and lake Ontario, to act against Montreal.

The preparations being completed, the commander in chief marched at the head of upwards of ten thousand British and provincials, from the frontiers of New York to Oswego, where he was joined by sir William Johnson, with one thousand Indians. He embarked his army at that place, and proceeded down the St. Lawrence to Montreal.

Murray, who had been directed to advance up the river to the same point, with as many men as could be spared from Quebec, appeared below the town on the very day that Amherst approached it from above. The two generals found no difficulty in disembarking their troops, and the whole plan of co-operation had been so well concerted that, in a short time, they were joined by colonel Haviland with the detachment from Crown Point.

Montreal capitulates.

The junction of these armies presenting before Montreal a force not to be resisted, the governor offered to capitulate. In the month of September, Montreal, and all other places within the government of Canada, then remaining in the possession of France, were surrendered to his Britannic majesty. The troops were to be transported to France, and the Canadians to be protected in their property, and the full enjoyment of their religion.[\[176\]](#)

That colossal power, which France had been long erecting in America, with vast labour and expense; which had been the motive for one of the most extensive and desolating wars of modern times; was thus entirely overthrown. The causes of this interesting event are to be found in the superior wealth and population of the colonies of England, and in her immense naval strength; an advantage, in distant war, not to be counterbalanced by the numbers, the discipline, the courage, and the

military talents, which may be combined in the armies of an inferior maritime power.



[\[Enlarge\]](#)

The Death of Wolfe on the Plains of Abraham

From the painting by Benjamin West, in the Capitol at Ottawa, Canada

Surrounded by his devoted officers, General James Wolfe died in the hour of victory over the French General Montcalm, in which the English captured Quebec, September 13, 1759, and decided the destiny of North American civilization. General Wolfe lived to hear the cry "They run!", and expired with the words "Now God be praised, I will die in peace."

In this canvas, painted in 1771, West departed from the venerated custom of clothing pictorial characters in Greek or Roman costume. Sir Joshua Reynolds, who had endeavored to dissuade him, later said, "I retract my objections. I foresee that this picture will not only become one of the most popular, but will occasion a revolution in art."

The joy diffused throughout the British dominions by this splendid conquest, was mingled with a proud sense of superiority which did not estimate with exact justice, the relative means employed by the belligerents.

In no part of those dominions was this joy felt, in a higher degree, or with more reason, than in America. In that region, the wars between France and England had assumed a form, happily unknown to other parts of the civilised world. Not confined, as in Europe, to men in arms; women and children were its common victims. It had been carried by the savage to the fire side of the peaceful peasant, where the tomahawk and scalping knife were applied indiscriminately to every age, and to either sex. The hope was now fondly indulged that these scenes, at least in the northern and middle colonies, were closed for ever.

The colonies of South Carolina and Georgia had been entirely exempted from the sharp conflicts of the north. France having been unable to draw Spain into the war, their neighbours in Florida remained quiet; and the Indians on their immediate frontiers were in the English interest. As the prospect of establishing peace in the north seemed to brighten, this state of repose in the south sustained a short interruption.

When the garrison of fort Du Quêne retired down the Ohio into Louisiana, the French employed their address in the management of Indians, to draw the Cherokees from their alliance with Great Britain. Their negotiations with these savages were favoured by the irritations given to their warriors in Virginia, where they had been employed against the French, and the Indians in the French interest.

Their ill humour began to show itself in 1759. Upon its first appearance, governor Lyttleton prepared to march into their country at the head of a respectable military force. Alarmed at these hostile appearances, they dispatched thirty-two of their chiefs to Charleston, for the purpose of deprecating the vengeance with which their nation was threatened. Their pacific representations did not arrest the expedition. The governor not only persisted in the enterprise, but, under the pretext of securing the safe return of the Indian messengers, took them into the train of his army, where they were, in reality, confined as prisoners. To add to this indignity, they were, when arrived at the place of destination, shut up together in a single hut.

Notwithstanding the irritation excited by this conduct, a treaty was concluded, in which it was agreed that the chiefs detained by the governor should remain with him as hostages, until an equal number of those who had committed murder on the frontiers, should be delivered in exchange for them; and that, in the meantime, the Indians should seize and deliver up

every white or red man coming into their country, who should endeavour to excite them to war against the English. After making this accommodation, the governor returned to Charleston, leaving his hostages prisoners in fort Prince George.

Scarcely had the army retired, when the Cherokees began to contrive plans for the relief of their chiefs. In an attempt to execute these plans, they killed the captain of the fort and wounded two officers. Orders were immediately given to put the hostages in irons; an indignity so resented by these fierce savages, that the first persons who attempted to execute the orders were stabbed. The soldiers enraged at this resistance, fell on the hostages and massacred them.

War with the southern Indians.

Inflamed to madness by this event, the whole nation flew to arms; and, according to their established mode of warfare, wreaked their fury on the inhabitants of the country in indiscriminate murder.

Mr. Bull, on whom the government of the province had devolved, represented the distresses of South Carolina in such strong terms to general Amherst, that colonel Montgomery was ordered into that colony with a detachment of regular troops. He arrived in April; but, as all the forces would be required in the north, in order to complete the conquest of Canada, he was directed to strike a sudden blow, and to return to New York in time for the expedition against Montreal.

The utmost exertions were made by the colony in aid of colonel Montgomery, and he entered the Cherokee country with all the forces that could be collected. Their lower towns were destroyed; Battle near Etchoe. but, near the village of Etchoe, the first of their middle settlements, in an almost impenetrable wood, he was met by a large body of savages, and a severe action ensued. The English claimed the victory, but without much reason. They were so roughly handled, that colonel Montgomery withdrew his army, and retired to fort Prince George, at which place he prepared to embark for New York.

The consternation of the province was the greater, as serious fears were entertained that the Creeks and Choctaws, might be induced by the French to join the Cherokees. Colonel Montgomery was pressed in the most earnest manner, not to leave the province; and was, with difficulty, prevailed on to

permit four companies to remain, while, with the main body of his detachment, he returned to New York.

1761

Mean while, the war continued to rage. The savages surrounded fort Loudoun; and the garrison amounting to four hundred men, was compelled by famine to surrender, on condition of being permitted to march into the settlements. The Indians, who regard conventions no longer than they are useful, attacked the garrison on its march, killed a number, and made the residue prisoners. Carolina again applied to general Amherst for assistance, who having completed the conquest of Canada, had leisure to attend to the southern colonies. Late in May, a strong detachment, commanded by colonel Grant, arrived at fort Prince George; and the colony raised a body of provincials, and of friendly Indians, to join him.

Early in June, he marched for the Cherokee towns. Near the place where the action had been fought the preceding year by Montgomery, the Indians again assembled in force, and gave battle in defence of their country. The action commenced about eight in the morning, and was maintained with spirit until eleven, when the Cherokees began to give way. They were pursued for two or three hours, after which Grant marched to the adjacent village of Etchoe, which he reduced to ashes. Indians defeated. All the towns of the middle settlement shared the same fate. Their houses and corn fields were destroyed, and the whole country laid waste. Reduced to extremity, they sued sincerely for peace; and, in the course of the summer, the war was terminated by a treaty.[\[177\]](#)

It was not in America only that the vigour presiding in the councils of Britain shed lustre on the British arms. Splendid conquests were also made in Asia and Africa; and in Europe, her aids of men and money enabled the greatest monarch of his age to surmount difficulties which only Frederick and Mr. Pitt could have dared to encounter.

1762

At length, Spain, alarmed at the increase of British power in America, and apprehensive for the safety of her own dominions, determined to take part against Great Britain; and, early in the year 1762, the two crowns declared war against each other. It was prosecuted, on the part of Great Britain, with signal success; and, in the course of the year, Martinique, Granada, St. Lucia, St. Vincent, and all the Caribbee Islands were wrested

from France; and the very important city of Havanna, which in a great degree commands the gulf of Mexico, was taken from Spain.

This course of conquest, which no force in possession of France and Spain seemed capable of checking, while any of their distant possessions remained to be subdued, was arrested by preliminary articles of peace signed at Paris.

By this treaty, his Christian Majesty ceded to Britain, all the conquests made by that power on the continent of North America, together with the river and port of Mobile; and all the territory to which France was entitled on the left bank of the Mississippi, reserving only the island of New Orleans. And it was agreed that, for the future, the confines between the dominions of the two crowns, in that quarter of the world, should be irrevocably fixed by a line drawn along the middle of the Mississippi, from its source as far as the river Iberville, and thence, by a line drawn along the middle of that river, and of the lakes Maurepas and Pont Chartrain.

The Havanna was exchanged with Spain for the Floridas. By establishing these great natural boundaries to the British empire in North America, all causes of future contest respecting that continent, with any potentate of Europe, were supposed to be removed.

CHAPTER XIII.

Opinions on the supremacy of parliament, and its right to tax the colonies.... The stamp act.... Congress at New York.... Violence in the towns.... Change of administration.... Stamp act repealed.... Opposition to the mutiny act.... Act imposing duties on tea, &c. resisted in America.... Letters from the assembly of Massachusetts to members of the administration.... Petition to the King.... Circular letter to the colonial assemblies.... Letter from the earl of Hillsborough.... Assembly of Massachusetts dissolved.... Seizure of the Sloop Liberty.... Convention at Faneuil Hall.... Moderation of its proceedings.... Two British regiments arrive at Boston.... Resolutions of the house of Burgesses of Virginia.... Assembly dissolved.... The members form an association.... General measures against importation.... General court convened in Massachusetts.... Its proceedings.... Is prorogued.... Duties, except that on tea, repealed.... Circular letter of the earl of Hillsborough.... New York recedes from the non-importation agreement in part.... Her example followed.... Riot in Boston.... Trial and acquittal of Captain Preston.

1763

The attachment of the colonies to the mother country was never stronger than at the signature of the treaty of Paris.[\[178\]](#) The union of that tract of country which extends from the Atlantic to the Mississippi, and from the gulf of Mexico to the north pole, was deemed a certain guarantee of future peace, and an effectual security against the return of those bloody scenes from which no condition in life could afford an exemption.

This state of things, long and anxiously wished for by British America, had, at length, been effected by the union of British and American arms. The soldiers of the parent state and her colonies had co-operated in the same service, their blood had mingled in the same plains, and the object pursued was common to both people.

While the British nation was endeared to the Americans by this community of danger, and identity of interest, the brilliant achievements of the war had exalted to enthusiasm their admiration of British valour. They were proud of the land of their ancestors, and gloried in their descent from Englishmen. But this sentiment was not confined to the military character of the nation. While the excellence of the English constitution was a rich theme of declamation, every colonist believed himself entitled to its advantages; nor could he admit that, by crossing the Atlantic, his ancestors had relinquished the essential rights of British subjects.

The degree of authority which might rightfully be exercised by the mother country over her colonies, had never been accurately defined. In Britain, it had always been asserted that Parliament possessed the power of binding them in all cases whatever. In America, at different times, and in different provinces, different opinions had been entertained on this subject.

In New England, originally settled by republicans, habits of independence had nourished the theory that the colonial assemblies possessed every legislative power not surrendered by compact; that the Americans were subjects of the British crown, but not of the nation; and were bound by no laws to which their representatives had not assented. From this high ground they had been compelled reluctantly to recede. The Judges, being generally appointed by the governors with the advice of council, had determined that the colonies were bound by acts of parliament which concerned them, and which were expressly extended to them; and the general court of Massachusetts had, on a late occasion, explicitly recognised the same principle. This had probably become the opinion of many of the best informed men of the province; but the doctrine seems still to have been extensively maintained, that acts of parliament possessed only an external obligation; that they might regulate commerce, but not the internal affairs of the colonies.

In the year 1692, the general court of Massachusetts passed an act, denying the right of any other legislature to impose any tax whatever on the colony; and also asserting those principles of national liberty, which are found in Magna Charta. Not long afterwards, the legislature of New York, probably with a view only to the authority claimed by the governor, passed an act in which its own supremacy, not only in matters of taxation, but of general legislation, is expressly affirmed. Both these acts however were

disapproved in England; and the parliament asserted its authority, in 1696, by declaring "that all laws, bye laws, usages, and customs, which shall be in practice in any of the plantations, repugnant to any law made or to be made in this kingdom relative to the said plantations, shall be void and of none effect." And three years afterwards, an act was passed for the trial of pirates in America, in which is to be found the following extraordinary clause: "Be it farther declared that, if any of the governors, or any person or persons in authority there, shall refuse to yield obedience to this act, such refusal is hereby declared to be a forfeiture of all and every [sic] the charters granted for the government and propriety of such plantations."

The English statute book furnishes many instances in which the legislative power of parliament over the colonies was extended to regulations completely internal; and it is not recollected that their authority was in any case openly controverted.

In the middle and southern provinces, no question respecting the supremacy of parliament, in matters of general legislation, ever existed. The authority of such acts of internal regulation as were made for America, as well as of those for the regulation of commerce, even by the imposition of duties, provided those duties were imposed for the purpose of regulation, had been at all times admitted. But these colonies, however they might acknowledge the supremacy of parliament in other respects, denied the right of that body to tax them internally.

Their submission to the act for establishing a general post office, which raised a revenue on the carriage of letters, was not thought a dereliction of this principle; because that regulation was not considered as a tax, but as a compensation for a service rendered, which every person might accept or decline. And all the duties on trade were understood to be imposed, rather with a view to prevent foreign commerce, than to raise a revenue. Perhaps the legality of such acts was the less questioned, because they were not rigorously executed, and their violation was sometimes designedly overlooked. A scheme for taxing the colonies by authority of parliament had been formed so early as the year 1739, and recommended to government by a club of American merchants, at whose head was sir William Keith, governor of Pennsylvania. In this scheme, it was proposed to raise a body of regulars, to be stationed along the western frontier of the British settlements, for the protection of the Indian traders; the expense of which

establishment was to be paid with monies arising from a duty on stamped paper and parchment in all the colonies. This plan, however, was not countenanced by those in power; and seems never to have been seriously taken up by the government until the year 1754. The attention of the minister was then turned to a plan of taxation by authority of parliament; and it will be recollected that a system was devised and recommended by him, as a substitute for the articles of union proposed by the convention at Albany. The temper and opinion of the colonists, and the impolicy of irritating them at a crisis which required all the exertions they were capable of making, suspended this delicate and dangerous measure; but it seems not to have been totally abandoned. Of the right of parliament, as the supreme legislature, of the nation, to tax as well as govern the colonies, those who guided the councils of Britain seem not to have entertained a doubt; and the language of men in power, on more than one occasion through the war, indicated a disposition to put this right in practice when the termination of hostilities should render the experiment less dangerous. The failure of some of the colonies, especially those in which a proprietary government was established, to furnish, in time, the aids required of them, contributed to foster this disposition. This opposition of opinion on a subject the most interesting to the human heart, was about to produce a system of measures which tore asunder all the bonds of relationship and affection that had subsisted for ages, and planted almost inextinguishable hatred in bosoms where the warmest friendship had long been cultivated.

1764

The unexampled expenses of the war required a great addition to the regular taxes of the nation. Considerable difficulty was found in searching out new sources of revenue, and great opposition was made to every tax proposed. Thus embarrassed, administration directed its attention to the continent of North America. The system which had been laid aside was renewed; and, on the motion of Mr. Grenville, first commissioner of the treasury, a resolution passed without much debate, declaring that it would be proper to impose certain stamp duties in the colonies and plantations, for the purpose of raising a revenue in America, payable into the British exchequer. This resolution was not carried into immediate effect, and was only declaratory of an intention to be executed the ensuing year.[\[179\]](#)

Other resolutions were passed at the same time, laying new duties on the trade of the colonies, which being in the form of commercial regulations, were not generally contested on the ground of right, though imposed expressly for the purpose of raising revenue. Great disgust, however, was produced by the increase of the duties, by the new regulations which were made, and by the manner in which those regulations were to be executed. The gainful commerce long carried on clandestinely with the French and Spanish colonies, in the progress of which an evasion of the duties imposed by law had been overlooked by the government, was to be rigorously suppressed by taxes amounting to a prohibition of fair trade; and their exact collection was to be enforced by measures not much less offensive in themselves, than on account of the object to be effected.[\[180\]](#)

Completely to prevent smuggling, all the officers in the sea service, who were on the American station, were converted into revenue officers; and directed to take the custom house oaths. Many vexatious seizures were made, for which no redress could be obtained but in England. The penalties and forfeitures, too, accruing under the act, as if the usual tribunals could not be trusted, were made recoverable in any court of vice-admiralty in the colonies. It will be readily conceived how odious a law, made to effect an odious object, must have been rendered by such provisions as these.

1765

The resolution concerning the duties on stamps excited a great and general ferment in America. The right of parliament to impose taxes on the colonies for the purpose of raising a revenue, became the subject of universal conversation, and was almost universally denied. Petitions to the King, and memorials to both houses of parliament against the measure, were transmitted by several of the provincial assemblies to the board of trade in England, to be presented to his majesty immediately; and to parliament, when that body should be convened. The house of representatives of Massachusetts instructed their agent to use his utmost endeavours to prevent the passage of the stamp act, or any other act levying taxes or impositions of any kind on the American provinces. A committee was appointed to act in the recess of the general court, with instructions to correspond with the legislatures of the several colonies, to communicate to them the instructions given to the agent of Massachusetts, and to solicit their concurrence in similar measures. These legislative proceedings were,

in many places, seconded by associations entered into by individuals, for diminishing the use of British manufactures.[\[181\]](#)

The administration, perceiving the opposition to be encountered by adhering to the vote of the preceding session, informed the agents of the colonies in London that, if they would propose any other mode of raising the sum required[\[182\]](#), their proposition would be accepted, and the stamp duty laid aside. The agents replied that they were not authorised to propose any substitute, but were ordered to oppose the bill when it should be brought into the house, by petitions questioning the right of parliament to tax the colonies. This reply placed the controversy on ground which admitted of no compromise. Determined to persevere in the system he had adopted, and believing successful resistance to be impossible, Mr. Grenville brought into parliament his celebrated act for imposing stamp duties in America; and it passed both houses by great majorities, but not without animated debate. So little weight does the human mind allow to the most conclusive arguments, when directed against the existence of power in ourselves, that general Conway is said to have stood alone[\[183\]](#) in denying the right claimed by parliament.

This act excited serious alarm throughout the colonies. It was sincerely believed to wound vitally the constitution of the country, and to destroy the most sacred principles of liberty. Combinations against its execution were formed; and the utmost exertions were used to diffuse among the people a knowledge of the pernicious consequences which must flow from admitting that the colonists could be taxed by a legislature in which they were not represented.

The assembly of Virginia was in session when the intelligence was received; and, by a small majority, passed several resolutions introduced by Mr. Henry, and seconded by Mr. Johnson,[\[184\]](#) one of which asserts the exclusive right of that assembly to lay taxes and impositions on the inhabitants of that colony.[\[185\]](#)

On the passage of these resolutions, the governor dissolved the assembly; and writs for new elections were issued. In almost every instance, the members who had voted in favour of the resolutions were re-elected, while those who had voted against them were generally excluded.

The legislatures of several other colonies passed resolutions similar to those of Virginia. The house of representatives of Massachusetts,

contemplating a still more solemn and effectual expression of the general sentiment, recommended a congress of deputies from all the colonial assemblies, to meet at New York the first Monday in October. Circular letters communicating this recommendation, were addressed to the respective assemblies wherever they were in session. New Hampshire alone, although concurring in the general opposition, declined sending members to the congress; and the legislatures of Virginia and North Carolina were not in session.[\[186\]](#)

In the meantime, the press teemed with the most animating exhortations to the people, to unite in defence of their liberty and property; and the stamp officers were, almost universally, compelled to resign.

Congress at New York.

At the time appointed, the commissioners from the assemblies of Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, the three lower counties on the Delaware, Maryland, and South Carolina assembled at New York; and, having chosen Timothy Ruggles, of Massachusetts, their chairman, proceeded on the important objects for which they had convened. The first measure of congress was a declaration[\[187\]](#) of the rights and grievances of the colonists. This paper asserts their title to all the rights and liberties of natural born subjects within the kingdom of Great Britain; among the most essential of which are, the exclusive power to tax themselves, and the trial by jury.

The act granting certain stamp and other duties in the British colonies was placed first on the list of grievances. Its direct tendency they said, was, by taxing the colonists without their consent, and by extending the jurisdiction of courts of admiralty, to subvert their rights and liberties. They also addressed a petition to the King, and a memorial to each house of parliament.

These papers were drawn with temperate firmness. They express, unequivocally, the attachment of the colonists to the mother country; and assert the rights they claim in the earnest language of conviction.

Having, in addition to these measures, recommended to the several colonies to appoint special agents, with instructions to unite their utmost endeavours in soliciting a redress of grievances; and directed their clerk to make out a copy of their proceedings for each colony, congress adjourned.

[\[188\]](#)

To interest the people of England against the measures of administration, associations were formed for the encouragement of domestic manufactures, and against the use of those imported from Great Britain. To increase their quantity of wool, the colonists determined to kill no lambs, and to use all the means in their power to multiply their flocks of sheep. To avoid the use of stamps, proceedings in the courts of justice were suspended; and a settlement of all controversies by arbitration was strongly recommended.

Violence in the large towns.

While this determined and systematic opposition was made by the thinking part of the community, some riotous and disorderly meetings took place, especially in the large towns, which threatened serious consequences. Many houses were destroyed, much property injured, and several persons, highly respectable in character and station, were grossly abused.

While these transactions were passing in America, causes entirely unconnected with the affairs of the colonies, produced a total revolution in the British cabinet. The Grenville party was succeeded by an administration unfriendly to the plan for taxing the colonies without their consent. General Conway, one of the principal secretaries of state, addressed a circular letter to the several governors, in which he censured, in mild terms, the violent measures that had been adopted, and recommended to them, while they maintained the dignity of the crown and of parliament, to observe a temperate and conciliatory conduct towards the colonists, and to endeavour, by persuasive means, to restore the public peace.

1766

Parliament was opened by a speech from the throne, in which his majesty declared his firm confidence in their wisdom and zeal, which would, he doubted not, guide them to such sound and prudent resolutions, as might tend at once to preserve the constitutional rights of the British legislature over the colonies, and to restore to them that harmony and tranquillity which had lately been interrupted by disorders of the most dangerous nature.

In the course of the debate in the house of commons, on the motion for the address, Mr. Pitt, in explicit terms, condemned the act for collecting stamp duties in America; and avowed the opinion that parliament had no right to tax the colonies. He asserted, at the same time, "the authority of that kingdom to be sovereign and supreme in every circumstance of government

and legislation whatever." He maintained the difficult proposition "that taxation is no part of the governing, or legislative power; but that taxes are a voluntary gift and grant of the commons alone;" and concluded an eloquent speech, by recommending to the house, "that the stamp act be repealed, *absolutely, totally, and immediately.*"

The opinions expressed by Mr. Pitt were warmly opposed by the late ministers. Mr. Grenville said, "that the disturbances in America were grown to tumults and riots; he doubted, they bordered on open rebellion; and, if the doctrine he had heard that day should be confirmed, he feared they would lose that name to take that of revolution. The government ever them being dissolved, a revolution would take place in America." He contended that taxation was a part of the sovereign power;—one branch of legislation; and had been exercised over those who were not represented. He could not comprehend the distinction between external and internal taxation; and insisted that the colonies ought to bear a part of the burdens occasioned by a war for their defence.

Stamp act repealed.

The existing administration, however, concurred in sentiment with Mr. Pitt, and the act was repealed; but its repeal was accompanied with a declaratory act, asserting the right of Great Britain to bind the colonies in all cases whatsoever.

The intelligence of this event was received in America with general manifestations of joy. The assertion of the abstract principle of right gave many but little concern, because they considered it merely as a salve for the wounded pride of the nation, and believed confidently that no future attempt would be made to reduce it to practice. The highest honours were conferred on those parliamentary leaders who had exerted themselves to obtain a repeal of the act; and, in Virginia, the house of Burgesses voted a statue to his majesty, as an acknowledgment of their high sense of his attention to the rights and petitions of his people.

Though all the colonies rejoiced at the repeal of the stamp act, the same temper did not prevail in all of them. In the commercial cities of the north, the regulations of trade were nearly as odious as the stamp act itself. Political parties too had been formed, and had assumed a bitterness in some of the colonies, entirely unknown in others. These dispositions were not long concealed. The first measures of Massachusetts and of New York

demonstrated that, in them, the reconciliation with the mother country was not cordial.

The letter of secretary Conway, transmitting the repeal of the act imposing a duty on stamps, enclosed also a resolution of parliament declaring that those persons who had suffered injuries in consequence of their assisting to execute that act, ought to be compensated by the colony in which such injuries were sustained. This was chiefly in Massachusetts. The resolution of parliament was laid before the general court of that province, by governor Bernard, in a speech rather in the spirit of the late, than the present administration;—rather calculated to irritate than assuage the angry passions that had been excited. The house of representatives resented his manner of addressing them; and appeared more disposed to inquire into the riots, and to compel those concerned in them to make indemnities, than to compensate the sufferers out of the public purse. But, after a second session, and some intimation that parliament would enforce its requisition, an act of pardon to the offenders, and of indemnity to the sufferers, was passed; but was rejected by the King, because the colonial assembly had no power, by their charter, to pass an act of general pardon, but at the instance of the crown.[\[189\]](#)

In New York, where general Gage was expected with a considerable body of troops, a message was transmitted by the governor to the legislature, desiring their compliance with an act of parliament called "the mutiny act," which required that the colony in which any of his majesty's forces might be stationed, should provide barracks for them, and necessaries in their quarters. The legislature postponed the consideration of this message until the troops were actually arrived; and then, after a second message from the governor, reluctantly and partially complied with the requisitions of the act.

At a subsequent session, the governor brought the subject again before the assembly, who determined that the act of parliament could be construed only to require that provision should be made for troops on a march, and not while permanently stationed in the country.[\[190\]](#) The reason assigned for not furnishing the accommodations required by the governor, implies the opinion that the act of parliament was rightfully obligatory; and yet the requisitions of the mutiny act were unquestionably a tax; and no essential distinction is perceived between the power of parliament to levy a tax by its own authority, and to levy it through the medium of the colonial

legislatures; they having no right to refuse obedience to the act. It is remarkable that such inaccurate ideas should still have prevailed, concerning the controlling power of parliament over the colonies.

In England it was thought to manifest a very forbearing spirit, that this instance of disobedience was punished with no positive penalties; and that the ministers contented themselves with a law prohibiting the legislature of the province from passing any act, until it should comply, in every respect, with the requisitions of parliament. The persevering temper of Massachusetts not having found its way to New York, this measure produced the desired effect.

Two companies of artillery, driven into the port of Boston by stress of weather, applied to the governor for supplies. He laid the application before his council, who advised that, "in pursuance of the act of parliament" the supplies required should be furnished. They were furnished, and the money to procure them was drawn from the treasury by the authority of the executive.

1767

On the meeting of the legislature, the house of representatives expressed in pointed terms their disapprobation of the conduct of the governor. Particular umbrage was given by the expression "*in pursuance of an act of parliament.*" "After the repeal of the stamp act, they were surprised to find that this act, equally odious and unconstitutional, should remain in force. They lamented the entry of this reason for the advice of council the more, as it was an unwarrantable and unconstitutional step which totally disabled them from testifying the same cheerfulness they had always shown in granting to his majesty, of their free accord, such aids as his service has from time to time required."[\[191\]](#) Copies of these messages were transmitted by governor Bernard to the minister, accompanied by letters not calculated to diminish the unpleasantness of the communication.

The idea of raising revenue in America, was so highly favoured in England, especially by the landed interest, that not even the influence of administration could have obtained a repeal of the stamp act, on the naked principle of right. Few were hardy enough to question the supremacy of parliament; and the act receding from the practical assertion of the power to tax the colonists, deeply wounded the pride of the King, and of the nation.

The temper discovered in some of the colonies was ill calculated to assuage the wound, which this measure had inflicted, on the haughty spirit of the country; and is supposed to have contributed to the revival of a system, which had been reluctantly abandoned.

Charles Townshend, chancellor of the exchequer, said boastingly in the house of commons, "that he knew how to draw a revenue from the colonies without giving them offence."[\[192\]](#) Mr. Grenville eagerly caught at the declaration, and urged this minister to pledge himself to bring forward the measure, at which he had hinted. During the sickness and absence of lord Chatham, the cabinet had decided on introducing a bill for imposing certain duties on tea, glass, paper, and painter's colours, imported into the colonies from Great Britain; and appropriating the money in the first instance, to the salaries of the officers of government. This bill was brought into parliament, and passed almost without opposition.

The friends of America, in England, had distinguished between internal and external taxation; and the same distinction had been made in the colonies. But the discussions originating in the stamp act, while they diffused among the colonists a knowledge of their political rights, had inspired also more accurate ideas respecting them.

These duties were plainly intended, not to regulate commerce, but to raise revenue, which would be as certainly collected from the colonists, as the duties on stamps could have been. The principle of the two measures was the same. Many of the Americans were too intelligent to be misguided by the distinction between internal and external taxation, or by the precedents quoted in support of the right, for which parliament contended. This measure was considered as establishing a precedent of taxation for the mere purpose of revenue, which might afterwards be extended at the discretion of parliament; and was spoken of as the *entering wedge*, designed to make way for impositions too heavy to be borne. The appropriation of the money did not lessen the odium of the tax. The colonists considered the dependence of the officers of government, on the colonial legislature, for their salaries, as the best security for their attending to the interests, and cultivating the affections of the provinces.[\[193\]](#) Yet the opinion that this act was unconstitutional, was not adopted so immediately, or so generally, as in the case of the stamp act. Many able political essays appeared in the papers, demonstrating that it violated the principles of the English constitution and

of English liberty, before the conviction became general, that the same principle which had before been successfully opposed, was again approaching in a different form.

1768

The general court of Massachusetts, perceiving plainly that the claim to tax America was revived, and being determined to oppose it, addressed an elaborate letter to Dennis de Berdt, agent for the house of representatives, detailing at great length, and with much weight of argument, all the objections to the late acts of parliament. Letters were also addressed to the earl of Shelburne and general Conway, secretaries of state, to the marquis of Rockingham, lord Camden, the earl of Chatham, and the lords commissioners of the treasury. These letters, while they breathe a spirit of ardent attachment to the British constitution, and to the British nation, manifest a perfect conviction that their complaints were just.

Conclusive as the arguments they contained might have appeared to Englishmen, if urged by themselves in support of their own rights, they had not much weight, when used to disprove the existence of their authority over others. The deep and solemn tone of conviction, however, conveyed in all these letters, ought to have produced a certainty that the principles assumed in them had made a strong impression, and would not be lightly abandoned. It ought to have been foreseen that with such a people, so determined, the conflict must be stern and hazardous; and, it was well worth the estimate, whether the object would compensate the means used to obtain it.

Petition to the King.

The assembly also voted a petition to the King, replete with professions of loyalty and attachment; but stating, in explicit terms, their sense of the acts against which they petitioned.

A proposition was next made for an address to the other colonies on the power claimed by parliament, which, after considerable debate, was carried in the affirmative; and a circular letter to the assemblies of the several provinces, setting forth the proceedings of the house of representatives, was prepared and adopted.[\[194\]](#)

To rescue their measures from the imputation of systematic opposition to the British government, the house, without acknowledging the obligation of the mutiny act, complied with a requisition of the governor to make a

farther provision for one of the King's garrisons within the province. The governor, soon afterwards, prorogued the general court with an angry speech, not calculated to diminish the resentments of the house directed against himself; resentments occasioned as much by the haughtiness of his manners, and a persuasion that he had misrepresented their conduct and opinions to ministers, as by the unpopular course his station required him to pursue.[\[195\]](#)

The circular letter of the house of representatives of Massachusetts was well received in the other colonies. They approved the measures which had been taken, and readily united in them. They, too, petitioned the King against the obnoxious acts of parliament, and instructed their several agents to use all proper means to obtain their repeal. Virginia transmitted a statement of her proceedings[\[196\]](#) to her sister colonies; and her house of Burgesses, in a letter to Massachusetts, communicating the representation made to parliament, say, "that they do not affect an independency of their parent kingdom, the prosperity of which they are bound, to the utmost of their abilities, to promote; but cheerfully acquiesce in the authority of parliament to make laws for the preserving a necessary dependence, and for regulating the trade of the colonies; yet they cannot conceive, and humbly insist, it is not essential to support a proper relation between the mother country, and colonies transplanted from her, that she should have a right to raise money from them without their consent, and presume they do not aspire to more than the right of British subjects, when they assert that no power on earth has a right to impose taxes on the people, or take the smallest portion of their property without their consent given by their representatives in parliament."[\[197\]](#)

On the first intimation of the measures taken by Massachusetts, the earl of Hillsborough, who had been appointed to the newly created office of secretary of state for the department of the colonies, addressed a circular to the several governors, to be laid before the respective assemblies, in which he treated the circular letter of Massachusetts, as being of the most dangerous tendency, calculated to inflame the minds of his majesty's good subjects in the colonies, to promote an unwarrantable combination, to excite an open opposition to the authority of parliament, and to subvert the true principles of the constitution.[\[198\]](#)

His first object was to prevail on the several assemblies openly to censure the conduct of Massachusetts; his next, to prevent their approving the proceedings of that colony. The letter, far from producing the desired effect, rather served to strengthen the determination of the colonies to unite in their endeavours to obtain a repeal of laws universally detested. On manifesting this disposition, the assemblies were generally dissolved;—probably in pursuance of instructions from the crown.

When the general court of Massachusetts was again convened, governor Bernard laid before the house of representatives, an extract of a letter from the earl of Hillsborough, in which, after animadverting in harsh terms on the circular letter to the colonies, he declared it to be "the King's pleasure" that the governor "should require the house of representatives, in his majesty's name, to rescind the resolution on which the circular letter was founded, and to declare their disapprobation of, and dissent from, that rash and hasty proceeding."

This message excited considerable agitation; but the house, without coming to any resolution on it, requested the governor to lay before them the whole letter of the earl of Hillsborough, and also copies of such letters as had been written by his excellency to that nobleman, on the subject to which the message referred.

The copies were haughtily refused; but the residue of the letter from the earl of Hillsborough was laid before them. That minister said, "if, notwithstanding the apprehensions which may justly be entertained of the ill consequence of a continuance of this factious spirit, which seems to have influenced the resolutions of the assembly at the conclusion of the last session, the new assembly should refuse to comply with his majesty's reasonable expectation, it is the King's pleasure that you immediately dissolve them."

This subject being taken into consideration, a letter to the earl was reported, and agreed to by a majority of ninety-three to thirteen, in which they defended their circular letter in strong and manly, but respectful terms; and concluded with saying, "the house humbly rely on the royal clemency, that to petition his majesty will not be deemed by him to be inconsistent with a respect to the British constitution as settled at the revolution by William III., and that to acquaint their fellow subjects involved in the same distress, of their having so done, in full hopes of success, even if they had

invited the union of all America in one joint supplication, would not be discountenanced by their gracious sovereign, as a measure of an inflammatory nature. That when your lordship shall in justice lay a true state of these matters before his majesty, he will no longer consider them as tending to create unwarrantable combinations, or excite an unjustifiable opposition to the constitutional authority of parliament; that he will then truly discern who are of that desperate faction which is continually disturbing the public tranquillity; and that, while his arm is extended for the protection of his distressed and injured subjects, he will frown upon all those who, to gratify their own passions, have dared to attempt to deceive him."[\[199\]](#)

Legislature of Massachusetts dissolved.

A motion to rescind the resolution on which their circular letter was founded, passed in the negative, by a majority of ninety-two to seventeen; and a letter to the governor was prepared, stating their motives for refusing to comply with the requisition of the earl of Hillsborough. Immediately after receiving it, he prorogued the assembly, with an angry speech; and, the next day, dissolved it by proclamation.[\[200\]](#)

While the opposition was thus conducted by the legislature with temperate firmness, and legitimate means, the general irritation occasionally displayed itself at Boston, in acts of violence denoting evidently that the people of that place, were prepared for much stronger measures than their representatives had adopted.

Seizure of the sloop Liberty.

The seizure of the sloop Liberty belonging to Mr. Hancock, by the collector of the customs, occasioned the assemblage of a tumultuous mob, who beat the officers and their assistants, took possession of a boat belonging to the collector, burnt it in triumph, and patrolled the streets for a considerable time. The revenue officers fled for refuge, first to the Romney man of war, and afterwards to Castle William. After the lapse of some time, the governor moved the council to take into consideration some measure for restoring vigour and firmness to government. The council replied "that the disorders which happened were occasioned by the violent and unprecedented manner in which the sloop Liberty had been seized by the officers of the customs." And the inhabitants of Boston, in a justificatory memorial, supported by affidavits, insisted that the late tumults were

occasioned, principally, by the haughty conduct of the commissioners and their subordinate officers, and by the illegal and offensive conduct of the Romney man of war.[201]

The legislature however did not think proper to countenance this act of violence. A committee of both houses, appointed to inquire into the state of the province, made a report which, after reprobating the circumstances attending the seizure, to which the mob was ascribed, declared their abhorrence of a procedure which they pronounced criminal; desired the governor to direct a prosecution against all persons concerned in the riot; and to issue a proclamation offering a reward to any person who should make discoveries by which the rioters or their abettors should be brought to condign punishment.

This report, however, seems to have been intended, rather to save appearances, than to produce any real effect. It was perfectly understood that no person would dare to inform; or even to appear, as a witness, in any prosecution which might be instituted. Suits were afterwards brought against Mr. Hancock and others, owners of the vessel and cargo; but they were never prosecuted to a final decision.[202]

This riot accelerated a measure, which tended, in no inconsiderable degree, to irritate still farther the angry dispositions already prevalent in Boston.

The governor had pressed on administration the necessity of stationing a military force in the province, for the protection of the officers employed in collecting the revenue, and of the magistrates, in preserving the public peace. In consequence of these representations, orders had already been given to general Gage to detach, at least, one regiment on this service, and to select for the command of it, an officer on whose prudence, resolution, and integrity, he could rely. The transactions respecting the sloop Liberty rendered any attempt to produce a countermand of these orders entirely abortive; and, probably occasioned two regiments, instead of one, to be detached by general Gage.[203]

It seems to have been supposed that a dissolution of the assembly of Massachusetts would dissolve also the opposition to the measures of administration; and that the people, having no longer constitutional leaders, being no longer excited and conducted by their representatives, would gradually become quiet, and return to, what was termed, their duty to

government. But the opinions expressed by the house of representatives were the opinions of the great body of the people, and had been adopted with too much ardour to be readily suppressed. The most active and energetic part of society had embraced them with enthusiasm; and the dissolution of the assembly, by creating a necessity for devising other expedients, hastened the mode of conducting opposition at least as efficacious, and afterwards universally adopted.

At a town meeting of the inhabitants of Boston, a committee was deputed for the purpose of praying the governor to convene another general assembly. He replied that no other could be convened until his majesty's commands to that effect should be received. This answer being reported, the meeting resolved "that to levy money within that province by any other authority than that of the general court, was a violation of the royal charter, and of the undoubted natural rights of British subjects.

"That the freeholders, and other inhabitants of the town of Boston would, at the peril of their lives and fortunes, take all legal and constitutional measures to defend all and singular the rights, liberties, privileges, and immunities, granted in their royal charter.

"That as there was an apprehension in the minds of many of an approaching war with France, those inhabitants who were not provided with arms should be requested duly to observe the laws of the province, which required that every freeholder should furnish himself with a complete stand."

But the important resolution was "that, as the governor did not think proper to call a general court for the redress of their grievances, the town would then make choice of a suitable number of persons to act for them as a committee in a convention, to be held at Faneuil Hall in Boston, with such as might be sent to join them from the several towns in the province."

These votes were communicated by the select men, in a circular letter to the other towns in the province, which were requested to concur, and to elect committee men, to meet those of Boston in convention.

Convention assemblies in Boston.

The measure was generally adopted; and a convention met, which was regarded with all the respect that could have been paid to a legitimate assembly.[\[204\]](#)

Its moderation.

The country in general, though united on the great constitutional question of taxation, was probably not so highly exasperated as the people of Boston; and the convention acted with unexpected moderation. They disclaimed all pretensions to any other character than that of mere individuals, assembled by deputation from the towns, to consult and advise on such measures as might tend to promote the peace of his majesty's subjects in the province, but without power to pass any acts possessing a coercive quality.

They petitioned the governor to assemble a general court, and addressed a letter to the agent of the province in England, stating the character in which they met, and the motives which brought them together. After expressing their opinions with temper and firmness on the subjects of general complaint, and recommending patience and order to the people, they dissolved themselves, and returned to their respective homes.[\[205\]](#)

Two regiments arrive.

The day before the convention rose, the two regiments which had been detached by general Gage arrived, under convoy, in Nantasket road. The council had rejected an application of the governor to provide quarters for them, because the barracks in the castle were sufficient for their accommodation; and, by act of parliament, the British troops were not to be quartered elsewhere until those barracks were full. General Gage had directed one regiment to be stationed in Boston; but, on hearing a report that the people were in a state of open revolt, he gave additional orders, which left the whole subject to the discretion of the commanding officer; who was induced, by some rash threats of opposing the disembarkation of the troops to land both regiments in that place. The ships took a station which commanded the whole town, and lay with their broad sides towards it, ready to fire, should any resistance be attempted. The troops landed under cover of their cannon, and marched into the common with loaded muskets and fixed bayonets;[\[206\]](#) a display of military pomp, which was believed by the inhabitants to have been intended for the purpose either of intimidation, or of irritation.

The select men, as well as the council, having refused to provide quarters for the troops, the governor ordered the state house to be opened for their reception; and they took possession of all the apartments in it, except that which was reserved for the council. The people were filled with indignation

at seeing the chamber of their representatives crowded with regular soldiers, their counsellors surrounded with foreign troops, and their whole city exhibiting the appearance of a garrisoned town. With the difference of manners between the soldiers and the inhabitants, and the strong prejudices reciprocally felt against each other, it is not wonderful that personal broils should frequently occur, and that mutual antipathies should be still farther increased.[\[207\]](#)

While these measures were pursuing in America, every session of parliament was opened with a speech from the King, stating that a disposition to refuse obedience to the laws, and to resist the authority of the supreme legislature of the nation, still prevailed among his misguided subjects in some of the colonies. In the addresses to the throne, both houses uniformly expressed their abhorrence of the rebellious spirit manifested in the colonies, and their approbation of the measures taken by his majesty for the restoration of order and good government.

To give a more solemn expression to the sense of parliament on this subject, the two houses entered into joint resolutions, condemning the measures pursued by the Americans; and agreed to an address, approving the conduct of the crown, giving assurances of effectual support to such farther measures as might be found necessary to maintain the civil magistrates in a due execution of the laws within the province of Massachusetts Bay, and beseeching his majesty to direct the governor of that colony to obtain and transmit information of all treasons committed in Massachusetts since the year 1767, with the names of the persons who had been most active in promoting such offences, that prosecutions might be instituted against them within the realm, in pursuance of the statute of the 35th of Henry VIII.[\[208\]](#)

1769

The impression made by these threatening declarations, which seem to have been directed particularly against Massachusetts, in the hope of deterring the other provinces from involving themselves in her dangers, was far from being favourable to the views of the mother country. The determination to resist the exercise of the authority claimed by Great Britain not only remained unshaken, but was manifested in a still more decided form.

Not long after these votes of parliament, the assembly of Virginia was convened by lord Botetourt, a nobleman of conciliating manners, who had lately been appointed governor of that province. The house took the state of the colony into their immediate consideration, Resolutions of the house of Burgesses of Virginia, and passed unanimously several resolutions asserting the exclusive right of that assembly to impose taxes on the inhabitants within his majesty's dominion of Virginia, and their undoubted right to petition for a redress of grievances, and to obtain a concurrence of the other colonies in such petitions. "That all persons charged with the commission of any offence within that colony, were entitled to a trial before the tribunals of the country, according to the fixed and known course of proceeding therein, and that to seize such persons, and transport them beyond sea for trial, derogated in a high degree from the rights of British subjects, as thereby the inestimable privilege of being tried by a jury from the vicinage, as well as the liberty of summoning and producing witnesses on such trial, will be taken from the party accused."

An address to his majesty was also agreed on, which states in the style of loyalty and real attachment to the crown, the deep conviction of the house of Burgesses of Virginia, that the complaints of the colonists were well founded.[\[209\]](#)

Assembly dissolved.

Intelligence of these proceedings having reached the governor, he suddenly dissolved the assembly. This measure did not produce the desired effect. The members convened at a private house, and, having chosen their speaker, moderator, proceeded to form a non-importing association, which was signed by every person present, and afterwards, almost universally throughout the province.[\[210\]](#)

From the commencement of the controversy, the opinion seems to have prevailed in all the colonies, that the most effectual means of succeeding in the struggle in which they were engaged, were those which would interest the merchants and manufacturers of Great Britain in their favour. Under the influence of this opinion, associations had been proposed in Massachusetts, as early as May 1765, for the non-importation of goods from that country. The merchants of some of the trading towns in the other colonies, especially those of Philadelphia, refused, at that time, to concur in a measure which they thought too strong for the existing state of things; and it was laid aside.

But, in the beginning of August, it was resumed in Boston; and the merchants of that place entered into an agreement not to import from Great Britain any articles whatever, except a few of the first necessity, between the first of January 1769, and the first of January 1770; and not to import tea, glass, paper, or painter's colours, until the duties imposed on those articles should be taken off. This agreement was soon afterwards adopted in the town of Salem, the city of New York, and the province of Connecticut; but was not generally entered into through the colonies, until the resolutions and address of the two houses of parliament which have already been mentioned, seemed to cut off the hope that petitions and memorials alone, would effect the object for which they contended.[\[211\]](#)

The proceedings of the house of Burgesses of Virginia had been transmitted to the speakers of the several assemblies throughout the continent. Measures against the importation of British goods. In the opinion of the neighbouring colonies, the occasion required efficacious measures; and an association, similar to that which had been formed by their elder sister, was entered into by Maryland, and the Carolinas. The inhabitants of Charleston went so far as to break off all connexion with Rhode Island and Georgia, which had refused to adopt the non-importation agreement. This vigorous measure was not without its influence; and those provinces, soon afterwards, entered into the association.[\[212\]](#)

In Portsmouth in New Hampshire, where governor Wentworth possessed great influence, some repugnance to this measure was also discovered; but, being threatened with a suspension of their intercourse with the other colonies, the merchants of that place concurred in the general system.

All united in giving effect to this agreement. The utmost exertions were used to improve the manufactures of the country; and the fair sex, laying aside the late fashionable ornaments of England, exulted, with patriotic pride, in appearing dressed in the produce of their own looms. Committees chosen by the people superintended importations; and the force of public opinion went far to secure the agreement from violation.

General court in Massachusetts.

The necessities of government requiring a supply of money, the general court of Massachusetts was again convened. The members of the former house of representatives were generally re-elected, and brought with them the temper which had occasioned their dissolution. Instead of entering on

the business for which they were called together, they engaged in a controversy with the governor concerning the removal of the ships of war from the harbour, and of the troops from the town of Boston, to which they contended, his power, as the representative of the crown was adequate.

The governor, ascribing this temper to the influence of the metropolis, adjourned the general court to Cambridge; but this measure served to increase the existing irritation. The business recommended to them remained unnoticed; their altercations with the governor continued; and they entered into several warm resolutions enlarging the catalogue of their grievances, in terms of greater exasperation than had appeared in the official acts of any legislature on the continent.[\[213\]](#)

It is prorogued.

Not long after the passage of these resolutions, the house explicitly refused to make the provision required by the mutiny act for the troops stationed in Massachusetts; upon which, the legislature was prorogued until the first of January.[\[214\]](#)

The committees, appointed to examine the cargoes of vessels arriving from Great Britain, continued to execute the trust reposed in them. Votes of censure were passed on such as refused to concur in the association, or violated its principles; and the names of the offenders were published, as enemies to their country. In some cases, the goods imported in contravention of it, were locked up in warehouses; and, in some few instances, they were re-shipped to Great Britain.

Not long after the strong resolutions already noticed had been agreed to by parliament, while their effect was unfolding itself in every part of the American continent, an important revolution took place in the British cabinet. The duke of Grafton was placed at the head of a new administration. He supported, with great earnestness, a proposition to repeal the duties imposed for the purpose of raising revenue in the colonies; but his whole influence was insufficient to carry this measure completely. Administration resolved on a partial repeal of duties. It was deemed indispensable to the maintenance of the legislative supremacy of Great Britain, to retain the duty on some one article; and that on tea was reserved while the others were relinquished.

Seldom has a wise nation adopted a more ill judged measure than this. The contest with America was plainly a contest of principle, and had been

conducted entirely on principle by both parties. The amount of taxes proposed to be raised was too inconsiderable to interest the people of either country. But the principle was, in the opinion of both, of the utmost magnitude. The measure now proposed, while it encouraged the colonists to hope that their cause was gaining strength in Britain, had no tendency to conciliate them.

Circular letter of the earl of Hillsborough.

In pursuance of this resolution of the cabinet, a circular letter was written by the earl of Hillsborough to the several governors, informing them "that it was the intention of his majesty's ministers to propose, in the next session of parliament, taking off the duties on glass, paper, and painter's colours, in consideration of such duties having been laid contrary to the true spirit of commerce; and assuring them that, at no time, had they entertained the design to propose to parliament to lay any further taxes on America for the purpose of raising a revenue."[\[215\]](#)

This measure was soon communicated in letters from private individuals in England to their correspondents in Massachusetts. The merchants of Boston, apprehensive that an improper opinion concerning its operation might be formed, resolved that the partial repeal of the duties did not remove the difficulties under which their trade laboured, and was only calculated to relieve the manufacturers of Great Britain; and that they would still adhere to their non-importation agreement.[\[216\]](#)

The communication of the earl of Hillsborough to the several governors, was laid before the respective assemblies as they convened, in terms implying an intention to renounce the imposition, in future, of any taxes in America. But this communication seems not to have restored perfect content in any of the colonies.

The Virginia legislature was in session on its arrival, and governor Botetourt laid it before them. Their dissatisfaction with it was manifested by a petition to the King re-asserting the rights previously maintained; and by an association, signed by the members as individuals, renewing their non-importation agreement, until the duty on tea should be repealed.[\[217\]](#)

Yet several causes combined to prevent a rigid observance of these associations. The sacrifice of interest made by the merchants could be continued only under the influence of powerful motives. Suspicions were entertained of each other in the same towns; and committees to superintend

the conduct of importers were charged with gross partiality. The different towns too watched each other with considerable jealousy; and accusations were reciprocally made of infractions of the association to a great extent. Letters were published purporting to be from England, stating that large orders for goods had been received; and the inconvenience resulting from even a partial interruption of commerce, and from the want of those manufactures which the inhabitants had been accustomed to use, began to be severely and extensively felt. In Rhode Island and Albany, it was determined to import as usual, with the exception of such articles as should be dutiable. On the remonstrances of other commercial places, especially of Boston, these resolutions were changed; and the hope was entertained that the general system on which the colonies relied, would still be maintained.

New York recedes in part from the non-importation agreement.

These hopes were blasted by New York. That city soon manifested a disposition to import as usual, with the exception of those articles only which were subject to a duty. At first, the resolution thus to limit the operation of the non-importation agreement, was made to depend on its being acceded to by Boston and Philadelphia. These towns refused to depart from the association as originally formed, and strenuously urged their brethren of New York to persevere with them in the glorious struggle. This answer was communicated to the people, and their opinion on the question of rescinding, or adhering to, was taken in from their respective wards. This determination excited the most lively chagrin in New England and Philadelphia. Their remonstrances against it were, however, ineffectual; and the example was soon followed throughout the colonies.[\[218\]](#)

The people of New York alleged, in justification of themselves, that the towns of New England had not observed their engagements fairly; and that the merchants of Albany had been in the practice of receiving goods from Quebec. But no sufficient evidence in support of these assertions was ever produced.

1770

About this time a circumstance occurred, which produced the most serious agitation. The two regiments stationed in Boston, to support, as was said, the civil authority, and preserve the peace of the town, were viewed by the inhabitants with very prejudiced eyes. March. Riot in Boston. Frequent quarrels arose between them; and at length, an affray took place in the

night, near the gates of the barracks, which brought out captain Preston, the officer of the day, with a part of the main guard, between whom and the townsmen blows ensued; on which some of the soldiers fired, and four of the people were killed.

The alarm bells were immediately rung, the drums beat to arms, and an immense multitude assembled. Inflamed to madness by the view of the dead bodies, they were with difficulty restrained from rushing on the 29th regiment, which was then drawn up under arms in King street. The exertions of the lieutenant governor, who promised that the laws should be enforced on the perpetrators of the act, and the efforts of several respectable and popular individuals, prevented their proceeding to extremities, and prevailed on them, after the regiment had been marched to the barracks, to disperse without farther mischief. Captain Preston, and the soldiers who had fired, were committed to prison for trial. On the next day, upwards of four thousand citizens of Boston assembled at Faneuil Hall; and, in a message to the lieutenant governor, stated it to be "the unanimous opinion of the meeting, that the inhabitants and soldiers can no longer live together in safety; that nothing can rationally be expected to restore the peace of the town, and prevent farther blood and carnage, but the immediate removal of the troops; and they therefore most fervently prayed his honour that his power and influence might be exerted for their instant removal."

The lieutenant governor expressed his extreme sorrow at the melancholy event which had occurred; and declared that he had taken measures to have the affair inquired into, and justice done. That the military were not under his command, but received their orders from the general at New York, which orders it was not in his power to countermand. That, on the application of the council for the removal of the troops, colonel Dalrymple, their commanding officer, had engaged that the twenty-ninth regiment, which had been concerned in the affair, should be marched to the castle, and there placed in barracks until farther orders should be received from the general; and that the main guard should be removed, and the fourteenth regiment laid under such restraints, that all occasions of future disturbance should be prevented. This answer was voted to be unsatisfactory; and a committee was deputed to wait on the lieutenant governor, and inform him that nothing could content them but an immediate and total removal of the troops.

This vote was laid before the council by Mr. Hutchinson, who had succeeded Mr. Bernard in the government of the province. The council declared themselves unanimously of opinion "that it was absolutely necessary for his Majesty's service, the good order of the town, and the peace of the province, that the troops should be immediately removed out of the town of Boston."

This opinion and advice being communicated to colonel Dalrymple, he gave his honour that measures should be immediately taken for the removal of both regiments. Satisfied with this assurance, the meeting secured the tranquillity of the town by appointing a strong military watch, and immediately dissolved itself.

This transaction was very differently related by the different parties. Mr. Gordon, whose history was written when the resentments of the moment had subsided, and who has collected the facts of the case carefully, states it in such a manner as nearly, if not entirely, to exculpate the soldiers. It appears that an attack upon them had been pre-concerted; and that, after being long insulted with the grossest language, they were repeatedly assaulted by the mob with balls of ice and snow, and with sticks, before they were induced to fire. Trial of captain Preston and the soldiers. This representation is strongly supported by the circumstances, that captain Preston, after a long and public trial, was acquitted by a Boston jury; and that six of the eight soldiers who were prosecuted, were acquitted, and the remaining two found guilty of manslaughter only. Mr. Quincy, and Mr. John Adams, two eminent lawyers, and distinguished leaders of the patriotic party, defended the accused, without sustaining any diminution of popularity. Yet this event was very differently understood through the colonies. It was generally believed to be a massacre, equally barbarous and unprovoked; and it increased the detestation in which the soldiers were universally held.

CHAPTER XIV.

Insurrection in North Carolina.... Dissatisfaction of Massachusetts.... Corresponding committees.... Governor Hutchinson's correspondence communicated by Dr. Franklin.... The assembly petition for his removal.... He is succeeded by general Gage.... Measures to enforce the act concerning duties.... Ferment in America.... The tea thrown into the sea at Boston.... Measures of Parliament.... General enthusiasm in America.... A general congress proposed.... General Gage arrives.... Troops stationed on Boston neck.... New counsellors and judges.... Obligated to resign.... Boston neck fortified.... Military stores seized by general Gage.... Preparations for defence.... King's speech.... Proceedings of Parliament.... Battle of Lexington.... Massachusetts raises men.... Meeting of Congress.... Proceedings of that body.... Transactions in Virginia.... Provincial congress of South Carolina.... Battle of Breed's hill.

1770

In the middle and southern colonies, the irritation against the mother country appears to have gradually subsided and no disposition was manifested to extend opposition farther than to the importation of tea. Insurrection in North Carolina. Their attention was a good deal directed to an insurrection in North Carolina, where a number of ignorant people, supposing themselves to be aggrieved by the fee bill, rose in arms for the purpose of shutting up the courts of justice, destroying all officers of government, and all lawyers, and of prostrating government itself. Governor Tryon marched against them, defeated them in a decisive battle, quelled the insurrection, and restored order.

Dissatisfaction of Massachusetts.

In Massachusetts, where the doctrine that parliament could not rightfully legislate for the colonies was maintained as a corollary from the proposition that parliament could not tax them, a gloomy discontent was manifested. That the spirit of opposition seemed to be expiring, without securing the

rights they claimed, excited apprehensions of a much more serious nature in the bosoms of that inflexible people, than the prospect of any conflict, however terrible. This temper displayed itself in all their proceedings.

The legislature, which the governor continued to convene at Cambridge, remonstrated against this removal as an intolerable grievance; and, for two sessions, refused to proceed on business. In one of their remonstrances, they asserted the right of the people to appeal to heaven in disputes between them and persons in power, when power shall be abused.

Corresponding committees.

From the commencement of the contest, Massachusetts had been peculiarly solicitous to unite all the colonies in one system of measures. In pursuance of this favourite idea, a committee of correspondence was elected by the general court, to communicate with such committees as might be appointed by other legislatures.[\[219\]](#) Similar committees were soon afterwards chosen by the towns[\[220\]](#) throughout the province, for the purpose of corresponding with each other; and the example was soon followed by other colonies.

1772

While this system of vigilance was in progress, a discovery was made which greatly increased the ill temper of New England. Doctor Franklin, the agent of Massachusetts, by some unknown means, Governor Hutchinson's correspondence obtained possession of the letters which had been addressed by governor Hutchinson, and by lieutenant governor Oliver, to the department of state. He transmitted these letters to the general court. They were obviously designed to induce government to persevere in the system which was alienating the affections of the colonists. The opposition was represented as being confined to a few factious men, whose conduct was not generally approved, and who had been emboldened by the weakness of the means used to restrain them. More vigorous measures were recommended; and several specific propositions were made, which were peculiarly offensive. Among these was a plan for altering the charters of the colonies, and rendering the high officers dependent solely on the crown for their salaries.[\[221\]](#)

1773

Petition for the removal of the governor and lieutenant governor.

The assembly, inflamed by these letters, unanimously resolved, "that their tendency and design were to overthrow the constitution of the government, and to introduce arbitrary power into the province." At the same time, a petition to the King was voted, praying him to remove governor Hutchinson and lieutenant governor Oliver, for ever, from the government of the colony. This petition was transmitted to Doctor Franklin, and laid before the King in council. After hearing it, the lords of the council reported "that the petition in question was founded upon false and erroneous allegations, and that the same is groundless, vexatious, and scandalous, and calculated only for the seditious purposes of keeping up a spirit of clamour and discontent in the provinces." This report, his majesty was pleased to approve.

Hutchinson succeeded by Gage.

Governor Hutchinson however was soon afterwards removed, and general Gage appointed to succeed him.

The fears of Massachusetts, that the spirit which had been roused in the colonies might gradually subside, were not of long continuance. The determination not to import tea from England, had so lessened the demand for that article, that a considerable quantity had accumulated in the magazines of the East India company. They urged the minister to take off the import American duty of three pence per pound, and offered, in lieu of it, to pay double that sum on exportation. Measures to enforce the duties.¹⁷⁷⁴ Instead of acceding to this proposition, drawbacks were allowed on tea exported to the colonies; and the export duty on that article was taken off. These encouragements induced the company to make shipments on their own account; and large quantities were consigned to agents in Boston, New York, Philadelphia, Charleston, and other principal places on the continent.^[222]

The crisis was arrived; and the conduct of the colonies was now to determine whether they would submit to be taxed by parliament, or meet the consequences of a practical assertion of the opinions they had maintained. The tea, if landed, would be sold; the duties would, consequently, be paid; and the precedent for taxing them established. The same sentiment on this subject appears to have pervaded the whole continent at the same time. This ministerial plan of importation was considered by all, as a direct attack on the liberties of the people of

America, which it was the duty of all to oppose. Ferment in America. A violent ferment was excited in all the colonies; the corresponding committees were extremely active; and it was almost universally declared that whoever should, directly or indirectly, countenance this dangerous invasion of their rights, was an enemy to his country. The consignees were, generally, compelled to relinquish their consignments; and, in most instances, the ships bringing the tea were obliged to return with it.

At Boston, a town meeting appointed a committee to wait on the consignees to request their resignation. This request not being complied with, another large meeting[223] assembled at Faneuil Hall, who voted, with acclamation, "that the tea shall not be landed, that no duty shall be paid, and that it shall be sent back in the same bottoms." With a foreboding of the probable consequences of the measure about to be adopted, and a wish that those consequences should be seriously contemplated, a leading member[224] thus addressed the meeting:

"It is not, Mr. Moderator, the spirit that vapours within these walls that must stand us in stead. The exertions of this day will call forth events which will make a very different spirit necessary for our salvation. Whoever supposes that shouts and hosannahs will terminate the trials of the day, entertains a childish fancy. We must be grossly ignorant of the importance and value of the prize for which we contend; we must be equally ignorant of the power of those who have combined against us; we must be blind to that malice, inveteracy, and insatiable revenge, which actuate our enemies, public and private, abroad and in our bosoms, to hope that we shall end this controversy without the sharpest, sharpest conflicts;—to flatter ourselves that popular resolves, popular harangues, popular acclamations, and popular vapour, will vanquish our foes. Let us consider the issue. Let us look to the end. Let us weigh and consider, before we advance to those measures, which must bring on the most trying and terrible struggle this country ever saw." [225]

The question was again put, and passed unanimously in the affirmative. The captain of the vessel, aware of the approaching danger, was desirous of returning, and applied to the governor for a clearance. Affecting a rigid regard to the letter of his duty, he declined giving one, unless the vessel should be properly qualified at the custom house. This answer being reported, the meeting was declared to be dissolved; and an immense crowd

repaired to the quay, Tea thrown into the sea. where a number of the most resolute, disguised as Mohawk Indians, boarded the vessel, broke open three hundred and forty-two chests of tea, and discharged their contents into the ocean.[\[226\]](#)

Measures of parliament.

These proceedings were laid before parliament in a message from the crown, and excited a high and general indignation against the colonies. Both houses expressed, almost unanimously, their approbation of the measures adopted by his Majesty; and gave explicit assurances that they would exert every means in their power, to provide effectually for the due execution of the laws, and to secure the dependence of the colonies upon the crown and parliament of Great Britain. The temper both of the parliament and of the nation was entirely favourable to the high-handed system of coercion proposed by ministers; and that temper was not permitted to pass away unemployed. A bill was brought in "for discontinuing the lading and shipping of goods, wares, and merchandises, at Boston or the harbour thereof, and for the removal of the custom-house with its dependencies to the town of Salem." This bill was to continue in force, not only until compensation should be made to the East India company for the damage sustained, but until the King in council should declare himself satisfied as to the restoration of peace and good order in Boston. It passed both houses without a division, and almost without opposition.[\[227\]](#)



[\[Enlarge\]](#)

The Boston Tea Party

From the painting by Robert Reid, in the Massachusetts State House

In this picture, a leading modern American artist has succeeded admirably in depicting the band of Boston citizens who, disguised as Indians, boarded three British ships in Boston Harbor, December 16, 1773, and threw their cargoes of tea overboard, in defying England to impose on the American colonies a tax on tea for the benefit of the straitened East India Company; 342 chests, valued at about £18,000 were destroyed in this manner, without a sound from a great mob of onlookers thronging the wharves. The mob dispersed quietly as soon as the last chest went overboard.

Soon afterwards, a bill was brought in "for better regulating the government of the province of Massachusetts Bay." This act entirely subverted the charter, and vested in the crown the appointment of the counsellors, magistrates, and other officers of the colony, who were to hold their offices during the royal pleasure. This bill also was carried through both houses by great majorities; but not without a vigorous opposition, and an animated debate.[\[228\]](#)

The next measure proposed was a bill "for the impartial administration of justice in the province of Massachusetts Bay. It provided that in case any person should be indicted, in that province, for murder or any other capital offence, and it should appear by information given on oath to the governor, that the fact was committed in the exercise or aid of magistracy in suppressing riots, and that a fair trial could not be had in the province, he should send the person so indicted to any other colony, or to Great Britain to be tried." This act was to continue in force for four years.[\[229\]](#)

A bill was also passed for quartering soldiers on the inhabitants; and the system was completed, by "an act making more effectual provision for the government of the province of Quebec." This bill extended the boundaries of that province so as to comprehend the territory between the lakes, the Ohio, and the Mississippi; and established a legislative council to be appointed by the crown, for its government.[\[230\]](#)

Amidst these hostile measures, one single conciliatory proposition was made. Mr. Rose Fuller moved that the house resolve itself into a committee to take into consideration the duty on the importation of tea into America, with a view to its repeal. This motion was seconded by Mr. Burke, and supported with all the power of reasoning, and all the splendour of eloquence which distinguished that consummate statesman; but reason and eloquence were of no avail. It was lost by a great majority. The earl of Chatham, who had long been too ill to attend parliament, again made his appearance in the house of lords. He could have been drawn out, only by a strong sense of the fatal importance of those measures into which the nation was hurrying. But his efforts were unavailing. Neither his weight of character, his sound judgment, nor his manly eloquence, could arrest the hand of fate which seemed to propel this lofty nation, with irresistible force, to measures which terminated in its dismemberment.[\[231\]](#)

It was expected, and this expectation was encouraged by Mr. Hutchinson, that, by directing these measures particularly against Boston, not only the union of the colonies would be broken, but Massachusetts herself would be divided. Never was expectation more completely disappointed. All perceived that Boston was to be punished for having resisted, only with more violence, the principle which they had all resisted; and that the object of the punishment was to coerce obedience to a principle they were still determined to resist. They felt therefore that the cause of Boston was the

cause of all, that their destinies were indissolubly connected with those of that devoted town, and that they must submit to be taxed by a parliament, in which they were not and could not be represented, or support their brethren who were selected to sustain the first shock of a power which, if successful there, would overwhelm them all. The neighbouring towns, disdaining to avail themselves of the calamities inflicted on a sister for her exertions in the common cause, clung to her with increased affection; General enthusiasm, and that spirit of enthusiastic patriotism, which, for a time, elevates the mind above all considerations of individual acquisition, became the ruling passion in the American bosom.

On receiving intelligence of the Boston port bill, a meeting of the people of that town was called. They perceived that "the sharpest, sharpest conflict" was indeed approaching, but were not dismayed by its terrors. Far from seeking to shelter themselves from the threatening storm by submission, they grew more determined as it increased.

Resolutions were passed, expressing their opinion of the impolicy, injustice, inhumanity, and cruelty of the act, from which they appealed to God, and to the world; and also inviting the other colonies to join with them in an agreement to stop all imports and exports to and from Great Britain, Ireland, and the West Indies, until the act should be repealed.[\[232\]](#)

It was not in Boston only that this spirit was roused. Addresses were received from every part of the continent, expressing sentiments of sympathy in their afflictions, exhorting them to resolution and perseverance, and assuring them that they were considered as suffering in the common cause.

The legislature of Virginia was in session when intelligence of the Boston port bill reached that province. The house of Burgesses set apart the first of June, the day on which the bill was to go into operation, for fasting, prayer, and humiliation, to implore the divine interposition to avert the heavy calamity which threatened the destruction of their civil rights, the evils of a civil war; and to give one heart and one mind to the people, firmly to oppose every invasion of their liberties. Similar resolutions were adopted in almost every province; and the first of June became, throughout the colonies, a day of fasting, humiliation, and prayer, in the course of which sermons were preached to the people, well calculated to inspire them with

horror, against the authors of the unjust sufferings of their fellow subjects in Boston.

This measure occasioned the dissolution of the assembly. The members, before separation, entered into an association, in which they declared that an attack on one colony to compel submission to arbitrary taxes, is an attack on all British America, and threatens ruin to the rights of all, unless the united wisdom of the whole be applied in prevention. A general congress proposed. They, therefore, recommended to the committee of correspondence, to communicate with the several committees of the other provinces, on the expediency of appointing deputies from the different colonies, to meet annually in congress, and to deliberate on the common interests of America. This measure had already been proposed in town meetings, both in New York and Boston.

General Gage arrives in Boston.

While the people of Boston were engaged in the first consultations respecting the bill directed particularly against themselves, general Gage arrived in town. He was received, notwithstanding the deep gloom of the moment, with those external marks of respect which had been usual, and which were supposed to belong to his station.

The general court convened by the governor at Salem, passed resolutions, declaring the expediency of a meeting of committees from the several colonies; and appointed five gentlemen as a committee on the part of Massachusetts. The colonies from New Hampshire to South Carolina inclusive, adopted this measure; and, where the legislatures were not in session, elections were made by the people. The legislature of Massachusetts also passed declaratory resolutions expressing their opinion on the state of public affairs, and recommending to the inhabitants of that province to renounce, totally, the consumption of East India teas, and to discontinue the use of all goods imported from the East Indies and Great Britain, until the grievances of America should be completely redressed.

The governor, having obtained intelligence of the manner in which the house was employed, sent his secretary with directions to dissolve the assembly. Finding the doors shut, and being refused admittance, he read the order of dissolution aloud on the staircase. The next day, the governor received an address from the principal inhabitants of Salem, at that time the metropolis of the province, which marks the deep impression made by a sense of common danger. No longer considering themselves as the inhabitants of Salem, but as Americans, and spurning advantages to be derived to themselves from the distress inflicted on a sister town, for its zeal in a cause common to all, they expressed their deep affliction for the calamities of Boston.

About this time rough drafts of the two remaining bills relative to the province of Massachusetts, as well as of that for quartering troops in America, were received in Boston, and circulated through the continent. They served to confirm the wavering, to render the moderate indignant, and to inflame the violent.

An agreement was framed by the committee of correspondence in Boston, entitled "a solemn league and covenant," whereby the subscribers bound themselves, "in the presence of God," to suspend all commercial

intercourse with Great Britain, from the last day of the ensuing month of August, until the Boston port bill, and the other late obnoxious laws should be repealed. They also bound themselves, in the same manner, not to consume, or purchase from any other, any goods whatever which should arrive after the specified time; and to break off all dealings with the purchasers as well as with the importers of such goods. They renounced, also, all intercourse and connexion with those who should refuse to subscribe to that covenant, or to bind themselves by some similar agreement; and annexed to the renunciation of intercourse, the dangerous penalty of publishing to the world, the names of all who refused to give this evidence of attachment to the rights of their country.

General Gage issued a proclamation in which he termed this covenant "an unlawful, hostile, and traitorous combination, contrary to the allegiance due to the King, destructive of the legal authority of parliament, and of the peace, good order, and safety of the community." All persons were warned against incurring the pains and penalties due to such dangerous offences; and all magistrates were charged to apprehend and secure for trial such as should be guilty of them. But the time when the proclamation of governors could command attention had passed away; and the penalties in the power of the committee of correspondence were much more dreaded than those which could be inflicted by the civil magistrate.[\[233\]](#)

Resolutions were passed in every colony in which legislatures were convened, or delegates assembled in convention, manifesting different degrees of resentment, but concurring in the same great principles. All declared that the cause of Boston was the cause of British America; that the late acts respecting that devoted town were tyrannical and unconstitutional; that the opposition to this ministerial system of oppression ought to be universally and perseveringly maintained; that all intercourse with the parent state ought to be suspended, and domestic manufactures encouraged; and that a general congress should be formed for the purpose of uniting and guiding the councils, and directing the efforts, of North America.

The committees of correspondence selected Philadelphia for the place, and the beginning of September as the time, for the meeting of this important council.

Congress assembles.

On the fourth of September, the delegates from eleven[234] provinces appeared at the place appointed; and, the next day, they assembled at Carpenter's Hall, when Peyton Randolph, late speaker of the house of Burgesses of Virginia, was unanimously chosen president. The respective credentials of the members were then read and approved; and this august assembly, having determined that each colony should have only one vote; that their deliberations should be conducted with closed doors; and that their proceedings, except such as they might determine to publish, should be kept inviolably secret; entered on the solemn and important duties assigned to them.[235]

Committees were appointed to state the rights claimed by the colonies, which had been infringed by acts of parliament passed since the year 1763; to prepare a petition to the King, and addresses to the people of Great Britain, to the inhabitants of the province of Quebec, and to the twelve colonies represented in congress.

Certain resolutions[236] of the county of Suffolk in Massachusetts, having been taken into consideration, it was unanimously resolved "that this assembly deeply feels the suffering of their countrymen in Massachusetts Bay, under the operation of the late unjust, cruel, and oppressive acts of the British parliament; that they most thoroughly approve the wisdom and fortitude with which opposition to these wicked ministerial measures has hitherto been conducted; and they earnestly recommend to their brethren, a perseverance in the same firm and temperate conduct, as expressed in the resolutions determined upon, at a meeting of the delegates for the county of Suffolk, on Tuesday the sixth instant; trusting that the effect of the united efforts of North America in their behalf, will carry such conviction to the British nation of the unwise, unjust, and ruinous policy of the present administration, as quickly to introduce better men, and wiser measures."

It was resolved, unanimously, "that contributions from all the colonies, for supplying the necessities, and alleviating the distresses of our brethren in Boston, ought to be continued, in such manner, and so long, as their occasions may require."

The merchants of the several colonies were requested not to send to Great Britain any orders for goods, and to direct the execution of those already sent to be suspended, until the sense of congress on the means to be taken for preserving the liberties of America, be made public. In a few days,

resolutions were passed, suspending the importation of goods from Great Britain, or Ireland, or any of their dependencies, and of their manufactures from any place whatever, after the first day of the succeeding December; and against the purchase or use of such goods. It was also determined that all exports to Great Britain, Ireland, and the West Indies, should cease on the 10th of September, 1775 less American grievances should be redressed before that time. An association, corresponding with these resolutions, was then framed, and signed by every member present. Never were laws more faithfully observed, than were these resolutions of congress; and their association was, of consequence, universally adopted.

Early in the session, a declaration[237] of rights was made in the shape of resolutions. This paper merits particular attention, because it states precisely the ground then taken by America. It is observable that it asserted rights which were not generally maintained, at the commencement of the contest; but the exclusive right of legislation in the colonial assemblies, with the exception of acts of the British parliament *bona fide* made to regulate external commerce, was not averred unanimously.

The addresses prepared, the various papers drawn up, and the measures recommended by this congress, form the best eulogy of the members who composed it. Affection to the mother country, an exalted admiration of her national character, unwillingness to separate from her, a knowledge of the hazards and difficulties of the approaching contest, mingled with enthusiastic patriotism, and a conviction that all which can make life valuable was at stake, characterise their proceedings.

Address to the people of Great Britain.

"When," they say in the address to the people to the people of Great Britain, "a nation led to greatness by the hand of liberty, and possessed of all the glory that heroism, munificence, and humanity, can bestow, descends to the ungrateful task of forging chains for her friends and children, and, instead of giving support to freedom turns advocate for slavery and oppression, there is reason to suspect she has either ceased to be virtuous, or been extremely negligent in the appointment of her rulers.

"In almost every age, in repeated conflicts, in long and bloody wars, as well civil as foreign, against many and powerful nations, against the open assaults of enemies, and the more dangerous treachery of friends, have the inhabitants of your island, your great and glorious ancestors, maintained

their independence, and transmitted the rights of men and the blessings of liberty to you their posterity.

"Be not surprised therefore that we, who are descended from the same common ancestors, that we, whose forefathers participated in all the rights, the liberties, and the constitution, you so justly boast of, and who have carefully conveyed the same fair inheritance to us, guaranteed by the plighted faith of government, and the most solemn compacts with British sovereigns, should refuse to surrender them to men, who found their claims on no principles of reason, and who prosecute them with a design, that by having *our* lives and property in their power, they may with the greater facility enslave *you*."

After stating the serious condition of American affairs, and the oppressions, and misrepresentations of their conduct, which had induced the address; and their claim to be as free as their fellow subjects in Britain; they say, "are not the proprietors of the soil of Great Britain lords of their own property? Can it be taken from them without their consent? Will they yield it to the arbitrary disposal of any men, or number of men whatever? You know they will not.

"Why then are the proprietors of the soil of America less lords of their property than you are of yours, or why should they submit it to the disposal of your parliament, or any other parliament or council in the world, not of their election? Can the intervention of the sea that divides us cause disparity of rights, or can any reason be given why English subjects, who live three thousand miles from the royal palace, should enjoy less liberty than those who are three hundred miles distant from it?

"Reason looks with indignation on such distinctions, and freemen can never perceive their propriety."

After expatiating on the resources which the conquest of America would place in the hands of the crown for the subjugation of Britain, the address proceeds, "we believe there is yet much virtue, much justice, and much public spirit in the English nation. To that justice we now appeal. You have been told that we are seditious, impatient of government, and desirous of independency. Be assured that these are not facts but calumnies. Permit us to be as free as yourselves, and we shall ever esteem a union with you to be our greatest glory, and our greatest happiness;—we shall ever be ready to

contribute all in our power to the welfare of the empire;—we shall consider your enemies as our enemies, and your interest as our own.

"But if you are determined that your ministers shall wantonly sport with the rights of mankind:—if neither the voice of justice, the dictates of the law, the principles of the constitution, nor the suggestions of humanity, can restrain your hands from shedding human blood in such an impious cause, we must then tell you that we will never submit to be hewers of wood or drawers of water for any ministry or nation in the world.

"Place us in the same situation that we were at the close of the late war, and our former harmony will be restored."[\[238\]](#)

Petition to the King.

The petition to the King states succinctly the grievances complained of, and then proceeds to say:

"Had our creator been pleased to give us existence in a land of slavery, the sense of our condition might have been mitigated by ignorance and habit. But thanks be to his adorable goodness, we were born the heirs of freedom, and ever enjoyed our right under the auspices of your royal ancestors, whose family was seated on the British throne, to rescue and secure a pious and gallant nation from the popery and despotism of a superstitious and inexorable tyrant. Your majesty, we are confident, justly rejoices that your title to the crown is thus founded on the title of your people to liberty; and, therefore, we doubt not but your royal wisdom must approve the sensibility that teaches your subjects anxiously to guard the blessing they received from divine providence, and thereby to prove the performance of that compact, which elevated the illustrious house of Brunswick to the imperial dignity it now possesses.

"The apprehensions of being degraded into a state of servitude, from the pre-eminent rank of English freemen, while our minds retain the strongest love of liberty, and clearly foresee the miseries preparing for us and for our posterity, excites emotions in our breasts, which, though we cannot describe, we should not wish to conceal. Feeling as men, and thinking as subjects, in the manner we do, silence would be disloyalty. By giving this faithful information, we do all in our power to promote the great objects of your royal cares—the tranquillity of your government, and the welfare of your people.

"Duty to your majesty and regard for the preservation of ourselves and our posterity,—the primary obligations of nature and society, command us to entreat your royal attention; and, as your majesty enjoys the signal distinction of reigning over freemen, we apprehend the language of freemen cannot be displeasing. Your royal indignation, we hope, will rather fall on those designing and dangerous men, who, daringly interposing themselves between your royal person and your faithful subjects, and for several years past incessantly employed to dissolve the bonds of society, by abusing your majesty's authority, misrepresenting your American subjects, and prosecuting the most desperate and irritating projects of oppression, have at length compelled us, by the force of accumulated injuries, too severe to be any longer tolerable, to disturb your majesty's repose by our complaints.

"These sentiments are extorted from hearts that much more willingly would bleed in your majesty's service. Yet so greatly have we been misrepresented, that a necessity has been alleged of taking our property from us without our consent, to defray the charge of the administration of justice, the support of civil government, and the defence, protection, and security of the colonies."

After assuring his majesty of the untruth of these allegations, they say, "yielding to no British subjects in affectionate attachment to your majesty's person, family, and government, we too dearly prize the privilege of expressing that attachment, by those proofs that are honourable to the prince that receives them, and to the people who give them, ever to resign it to any body of men upon earth.

"We ask but for peace, liberty, and safety. We wish not a diminution of the prerogative, nor do we solicit the grant of any new right in our favour. Your royal authority over us, and our connection with Great Britain, we shall always carefully and zealously endeavour to support and maintain."

After re-stating in a very affecting manner the most essential grievances of which they complain, and professing that their future conduct, if their apprehensions should be removed, would prove them worthy of the regard they had been accustomed, in their happier days to enjoy, they add:

"Permit us then most gracious sovereign, in the name of all your faithful people in America, with the utmost humility to implore you, for the honour of Almighty God, whose pure religion our enemies are undermining; for your glory which can be advanced only by rendering your subjects happy,

and keeping them united; for the interest of your family, depending on an adherence to the principles that enthroned it; for the safety and welfare of your kingdom and dominions, threatened with almost unavoidable dangers and distresses; that your majesty, as the loving father of your whole people, connected by the same bonds of law, loyalty, faith, and blood, though dwelling in various countries, will not suffer the transcendent relation formed by these ties, to be farther violated, in uncertain expectation of effects that, if attained, never can compensate for the calamities, through which they must be gained." [\[239\]](#)

Address to the American people.

The address to their constituents is replete with serious and temperate argument. In this paper, the several causes which had led to the existing state of things, were detailed more at large; and much labour was used to convince their judgments that their liberties must be destroyed, and the security of their property and persons annihilated, by submission to the pretensions of Great Britain. The first object of congress being to unite the people of America, by demonstrating the sincerity with which their leaders had sought for reconciliation on terms compatible with liberty, great earnestness was used in proving that the conduct of the colonists had been uniformly moderate and blameless. After declaring their confidence in the efficacy of the mode of commercial resistance which had been recommended, the address concludes with saying, "your own salvation, and that of your posterity, now depends upon yourselves. You have already shown that you entertain a proper sense of the blessings you are striving to retain. Against the temporary inconveniences you may suffer from a stoppage of trade, you will weigh in the opposite balance, the endless miseries you and your descendants must endure, from an established arbitrary power. You will not forget the honour of your country, that must, from your behaviour, take its title in the estimation of the world to glory or to shame; and you will, with the deepest attention, reflect, that if the peaceable mode of opposition recommended by us, be broken and rendered ineffectual, as your cruel and haughty ministerial enemies, from a contemptuous opinion of your firmness, insolently predict will be the case, you must inevitably be reduced to choose, either a more dangerous contest, or a final, ruinous, and infamous submission.

"Motives thus cogent, arising from the emergency of your unhappy condition, must excite your utmost diligence and zeal, to give all possible strength and energy to the pacific measures calculated for your relief. But we think ourselves bound in duty to observe to you, that the schemes agitated against the colonies have been so conducted, as to render it prudent that you should extend your views to mournful events, and be in all respects prepared for every contingency. Above all things, we earnestly entreat you, with devotion of spirit, penitence of heart, and amendment of life, to humble yourselves, and implore the favour of Almighty God; and we fervently beseech his divine goodness to take you into his gracious protection."[\[240\]](#)

The letter to the people of Canada required no inconsiderable degree of address. The extent of that province was not so alarming to its inhabitants as to their neighbours; and it was not easy to persuade the French settlers, who were far the most numerous, that the establishment of their religion, and the partial toleration of their ancient jurisprudence, were acts of oppression which ought to be resisted. This delicate subject was managed with considerable dexterity, and the prejudices of the Canadians were assailed with some success.

Letters were also addressed to the colonies of St. Johns, Nova Scotia, Georgia, and the Floridas, inviting them to unite with their brethren in a cause common to all British America.[\[241\]](#)

After completing the business before them, and recommending that another Congress should be held at the same place on the tenth of the succeeding May, the House dissolved itself.

October.

The proceedings of Congress were read throughout America, with enthusiastic admiration. Their recommendations were revered as revelations, and obeyed as laws of the strongest obligation. Absolute unanimity could not be expected to exist; but seldom has a whole people been more united; and never did a more sincere and perfect conviction of the justice of a cause animate the human bosom, than was felt by the great body of the Americans. The people, generally, made great exertions to arm and discipline themselves. Independent companies of gentlemen were formed in all the colonies; and the whole face of the country exhibited the aspect of approaching war. Yet the measures of Congress demonstrate that,

although resistance by force was contemplated as a possible event, the hope was fondly cherished that the non-importation of British goods would induce a repeal of the late odious acts. It is impossible to account for the non-importation agreement itself. Had war been considered as inevitable, every principle of sound policy required that imports should be encouraged, and the largest possible stock of supplies for an army be obtained.

New counsellors and judges.

With the laws relative to the province, governor Gage received a list of thirty-two new counsellors, a sufficient number of whom, to carry on the business of the government, accepted the office, and entered on its duties.

All those who accepted offices under the new system, were denounced as enemies to their country. The new judges were unable to proceed in the administration of justice. When the court houses were opened, the people crowded into them in such numbers that the judges could not obtain admittance; and, on being ordered by the officers to make way for the court, they answered that they knew no court, independent of the ancient laws and usages of their country, and to no other would they submit.[\[242\]](#) Obligated to resign. The houses of the new counsellors were surrounded by great bodies of people, whose threats announced to them that they must resign their offices, or be exposed to the fury of an enraged populace. The first part of the alternative was generally embraced.

Boston neck fortified.

In this irritable state of the public mind, and critical situation of public affairs, it was to be expected that every day would furnish new matter of discontent and jealousy. General Gage deemed it a necessary measure of security, to fortify Boston neck; and this circumstance induced the inhabitants to contemplate seriously an evacuation of the town, and removal into the country. Congress was consulted on this proposition; but was deterred from recommending it, by the difficulties attending the measure. It was however referred to the provincial congress, with the declaration that, if the removal should be deemed necessary, the expense attending it ought to be borne by all the colonies.

Military stores seized by general Gage.

The fortification of Boston neck was followed by a measure which excited still greater alarm. The time for the general muster of the militia approached. Under real or pretended apprehensions from their violence, the

ammunition and stores which were lodged in the provincial arsenal at Cambridge, and the powder in the magazines at Charlestown, and some other places which was partly private and partly provincial property, were seized, by order of the governor, and conveyed to Boston.

Under the ferment excited by this measure, the people assembled in great numbers, and were with difficulty dissuaded from marching to Boston, and demanding a re-delivery of the stores. Not long afterwards, the fort at Portsmouth in New Hampshire was stormed by an armed body of provincials; and the powder it contained was transported to a place of safety. A similar measure was adopted in Rhode Island.

About the same time a report reached Connecticut that the ships and troops had attacked Boston, and were actually firing on the town. Several thousand men immediately assembled in arms, and marched with great expedition a considerable distance, before they were undeceived.

It was in the midst of these ferments, and while these indications of an opinion that hostilities might be expected daily were multiplying on every side, that the people of Suffolk assembled in convention, and passed the resolutions already mentioned, which in boldness surpass any that had been adopted.

Provincial congress in Massachusetts.

Before the general agitation had risen to its present alarming height, governor Gage had issued writs for the election of members to a general assembly. These writs were afterwards countermanded by proclamation; but the proclamation was disregarded; the elections were held; and the delegates, who assembled and voted themselves a provincial congress, conducted the affairs of the colony as if they had been regularly invested with all the powers of government; and their recommendations were respected as sacred laws.

Prepares for defence.

They drew up a plan for the defence of the province; provided magazines, ammunition and prepares stores for twelve thousand militia; and enrolled a number of minute men, a term designating a select part of the militia, who engaged to appear in arms at a minute's warning.

On the approach of winter, the general had ordered temporary barracks to be erected for the troops, partly for their security, and partly to prevent the

disorders which would unavoidably result from quartering them in the town. Such however was the detestation in which they were held, that the select men and committees obliged the workmen to desist from the work, although they were paid for their labour by the crown, and although employment could, at that time, be seldom obtained. He was not much more successful in his endeavours to obtain carpenters in New York; and it was with considerable difficulty that these temporary lodgments could be erected.

The agency for purchasing winter covering for the troops was offered to almost every merchant in New York; but such was the danger of engaging in this odious employment, that not only those who were attached to the party resisting the views of administration, but those also who were in secret friendly to those views, refused undertaking it, and declared "that they never would supply any article for the benefit of men who were sent as enemies to their country."

King's speech to parliament.

In Great Britain, a new parliament was assembled; and the King, in his opening speech, informed them, "that a most daring spirit of resistance and disobedience still prevailed in Massachusetts, and had broken forth in fresh violences of a very criminal nature; that the most proper and effectual measures had been taken to prevent these mischiefs; and that they might depend upon a firm resolution to withstand every attempt to weaken or impair the supreme authority of this legislature over all the dominions of the crown."

Proceedings of that body.

The addresses re-echoed the sentiments of the speech; all amendments to which were rejected in both houses by considerable majorities.[\[243\]](#) Yet the business respecting America was not promptly introduced. Administration seems to have hesitated on the course to be adopted; and the cabinet is said to have been divided respecting future measures. 1775The few friends of conciliation availed themselves of this delay, to bring forward propositions which might restore harmony to the empire. Lord Chatham was not yet dead. "This splendid orb," to use the bold metaphor of Mr. Burke, "was not yet entirely set. The western horizon was still in a blaze with his descending glory;" and the evening of a life which had exhibited one bright unchequered course of elevated patriotism, was devoted to the service of

that country whose aggrandisement seemed to have swallowed up every other passion of his soul. Taking a prophetic view of the future, he demonstrated the impossibility of subjugating America, and urged, with all the powers of his vast mind, the immediate removal of the troops from Boston, as a measure indispensably necessary, to open the way for an adjustment of the existing differences with the colonies. Not discouraged by the great majority against this motion, he brought forward a bill for settling the troubles in America, which was rejected by sixty-one to thirty-two voices.

The day after the rejection of this bill, lord North moved, in the house of commons, an address to his Majesty, declaring that, from a serious consideration of the American papers, "they find a rebellion actually exists in the province of Massachusetts Bay." In the course of the debate on this address, several professional gentlemen spoke with the utmost contempt of the military character of the Americans; and general Grant, who ought to have known better, declared that "at the head of five regiments of infantry, he would undertake to traverse the whole country, and drive the inhabitants from one end of the continent to the other."

The address was carried by 288 to 106; and on a conference, the house of lords agreed to join in it. Lord North, soon after, moved a bill for restraining the trade and commerce of the New England provinces, and prohibiting them from carrying on the fisheries on the banks of Newfoundland.[\[244\]](#)

While this bill was pending, and only vengeance was breathed by the majority, his lordship, to the astonishment of all, suddenly moved, what he termed his conciliatory proposition. Its amount was, that parliament would forbear to tax any colony, which should tax itself in such a sum as would be perfectly satisfactory. Apparent as it must have been that this proposition would not be accepted in America, it was received with indignation by the majority of the house; and ministers found some difficulty in showing that it was in maintenance of the right to tax the colonies. Before it could be adopted lord North condescended to make the dangerous, and not very reputable acknowledgment, that it was a proposition designed to divide America, and to unite Great Britain. It was transmitted to the governors of the several colonies, in a circular letter from lord Dartmouth, with directions to use their utmost influence to prevail on the legislatures to accede to the proposed compromise. These endeavours were not successful.

The colonists were universally impressed with too strong a conviction of the importance of union, and understood too well the real principle of the contest, to suffer themselves to be divided or deceived by a proposition, conciliatory only in name.

After the passage of the bill for restraining the trade of New England, information was received that the inhabitants of the middle and southern colonies, were supporting their northern brethren in every measure of opposition. In consequence of this intelligence, a second bill was passed for imposing similar restrictions on East and West Jersey, Pennsylvania, Maryland, Virginia, South Carolina, and the counties on the Delaware. The favourite colonies of New York and North Carolina were omitted, as being less disaffected than the others. Fortunately, some time afterwards, the house of commons refused to hear a petition from the legislature of New York, which alone had declined acceding to the resolutions of congress, on the suggestion of the minister that it contained claims incompatible with the supremacy of parliament. This haughty rejection had some tendency to convince the advocates of milder measures than had been adopted in their sister colonies, that there was no medium between resistance and absolute submission.

The King's speech, and the proceedings of parliament, served only to convince the leaders of opposition in America, that they must indeed prepare to meet "mournful events." They had flattered themselves that the union of the colonies, the petition of congress to the King, and the address to the people of Great Britain, would produce happy effects. But these measures removed the delusion. The provincial congress of Massachusetts published a resolution informing the people that there was real cause to fear that the reasonable and just applications of that continent to Great Britain for peace, liberty, and safety, would not meet with a favourable reception; that, on the contrary, the tenor of their intelligence, and general appearances, furnished just cause for the apprehension that the sudden destruction of that colony, at least, was intended. They therefore urged the militia in general, and the minute men in particular, to spare neither time, pains, nor expense, to perfect themselves in military discipline; and also passed resolutions for procuring and making fire arms and bayonets.[\[245\]](#)

In the mean time, delegates were elected for the ensuing congress. Even in New York, where the influence of administration in the legislature had

been sufficient to prevent an adoption of the recommendations of congress, a convention was chosen for the purpose of electing members to represent that province in the grand council of the colonies.

In New England, although a determination not to commence hostility appears to have been maintained, an expectation of it, and a settled purpose to repel it, universally prevailed.

It was not long before the firmness of this resolution was put to the test.

On the night preceding the 19th of April, general Gage detached lieutenant colonel Smith, and major Pitcairn, with the grenadiers and light infantry of the army, amounting to eight or nine hundred men, with orders to destroy some military stores which had been collected at Concord, about eighteen miles from Boston, notwithstanding the secrecy and dispatch which were used, the country was alarmed by messengers sent out by Doctor Warren; Battle of Lexington.and, on the arrival of the British troops at Lexington, about five in the morning, part of the company of militia belonging to the town, was found on the parade, under arms. Major Pitcairn, who led the van, galloped up, calling out, "disperse, rebels, disperse." He was followed close by his soldiers, who rushed upon the militia with loud huzzas. Some scattering guns were fired, which were immediately followed by a general discharge, and the firing was continued as long as any of the militia appeared. Eight men were killed, and several wounded.

After dispatching six companies of light infantry to guard two bridges which lay at some distance beyond the town, lieutenant colonel Smith proceeded to Concord. While the main body of the detachment was employed in destroying the stores in the town, some minute men and militia, who were collected from that place and its neighbourhood, having orders not to give the first fire, approached one of the bridges, as if to pass it in the character of common travellers. They were fired on, and two of them were killed. The fire was instantly returned, and a skirmish ensued, in which the regulars were worsted, and compelled to retreat with some loss. The alarm now becoming general, the people rushed to the scene of action, and attacked the King's troops on all sides. Skirmish succeeded skirmish, and they were driven, from post to post, into Lexington. Fortunately for the British, general Gage did not entertain precisely the opinion of the military character of the Americans, which had been expressed in the house of

commons. Apprehending the expedition to be not entirely without hazard, he had, in the morning, detached lord Percy with sixteen companies of foot, a corps of marines, and two companies of artillery, to support lieutenant colonel Smith. This seasonable reinforcement, happening to reach Lexington about the time of his arrival at that place, kept the provincials at a distance with their field pieces, and gave the grenadiers and light infantry time to breathe. But as soon as they resumed their march, the attack was recommenced; and an irregular but galling fire was kept up on each flank, as well as in front and rear, until they arrived, on the common of Charlestown. Without delay, they passed over the neck to Bunker's hill, where they remained secure for the night, under the protection of their ships of war; and, early next morning, crossed over to Boston.

In this action, the loss of the British in killed, wounded, and prisoners, was two hundred and seventy-three; while that of the provincials did not exceed ninety. This affair, however trivial in itself, was of great importance in its consequences. It was the commencement of a long and obstinate war, and had no inconsiderable influence on that war, by increasing the confidence which the Americans felt in themselves, and by encouraging opposition, with the hope of being successful. It supported the opinion which the colonists had taken up with some doubt, that courage and patriotism were ample substitutes for the knowledge of tactics; and that their skill in the use of fire arms, gave them a great superiority over their adversaries.

Although the previous state of things was such as to render the commencement of hostilities unavoidable, each party seemed anxious to throw the blame on its opponent. The British officers alleged that they were fired on from a stone wall, before they attacked the militia at Lexington; while the Americans proved, by numerous depositions, that at Lexington, as well as at the bridge near Concord, the first fire was received by them. The statement made by the Americans is supported, not only by the testimony adduced, but by other circumstances. In numbers, the militia at Lexington did not exceed one-ninth of the British; and it is not probable that their friends would have provoked their fate while in that perilous situation, by commencing a fire on an enraged soldiery. It is also worthy of attention, that the Americans uniformly sought to cover their proceedings with the letter of the law; and, even after the affair at Lexington, made a point of receiving the first fire at the bridge beyond Concord.

The provincial congress, desirous of manifesting the necessity under which the militia had acted, sent to their agents, the depositions which had been taken relative to the late action, with a letter to the inhabitants of Great Britain, stating that hostilities had been commenced against them, and detailing the circumstances attending that event.

But they did not confine themselves to addresses. They immediately passed a resolution for raising thirteen thousand six hundred men in Massachusetts, to be commanded by general Ward; and called on New Hampshire, Rhode Island, and Connecticut, for their respective quotas, to complete an army of thirty thousand men for the common defence. They also authorised the receiver general to borrow one hundred thousand pounds on the credit of the colony, and to issue securities for the repayment thereof, bearing an interest of six per centum per annum.

The neighbouring colonies complied promptly with this requisition; and, in the mean time, such numbers assembled voluntarily, that many were dismissed in consequence of the defect of means to subsist them in the field; and the King's troops were themselves blocked up in the peninsula of Boston.

About the same time, that enterprising spirit, which pervaded New England, manifested itself in an expedition of considerable merit.

The possession of Ticonderoga and Crown Point, and the command of lakes George and Champlain, were objects of importance in the approaching conflict. It was known that these posts were weakly defended; and it was believed that the feeble garrisons remaining in them were the less to be dreaded, because they thought themselves perfectly secure. Under these impressions, some gentlemen of Connecticut, at the head of whom were Messrs. Deane, Wooster, and Parsons, formed the design of seizing these fortresses by surprise; and borrowed a small sum of money from the legislature of the colony, to enable them to carry on the expedition. About forty volunteers marched from Connecticut towards Bennington, where they expected to meet with colonel Ethan Allen, and to engage him to conduct the enterprise, and to raise an additional number of men.

Colonel Allen readily entered into their views, and engaged to meet them at Castleton. Two hundred and seventy men assembled at that place, where they were joined by colonel Arnold, who was associated with colonel Allen in the command. They reached lake Champlain in the night of the ninth of

May. Ticonderoga surprised. Both Allen and Arnold embarked with the first division consisting of eighty-three men, who effected a landing without being discovered, and immediately marched against the fort, which, being completely surprised, surrendered without firing a gun. The garrison consisted of only forty-four rank and file, commanded by a captain and one lieutenant. Crown Point surrenders. From Ticonderoga, colonel Seth Warren was detached to take possession of Crown Point, which was garrisoned only by a sergeant and twelve men. This service was immediately executed, and the fort was taken without opposition.

At both these places, military stores of considerable value fell into the hands of the Americans. The pass at Skeensborough was seized about the same time by a body of volunteers from Connecticut.

To complete the objects of the expedition, it was necessary to obtain the command of the lakes, which could be accomplished only by seizing a sloop of war lying at St. Johns. This service was effected by Arnold, who, having manned and armed a schooner found in South bay, surprised the sloop, and took possession of her without opposition.

Thus, by the enterprise of a few individuals, and without the loss of a single man, the important posts of Ticonderoga and Crown Point were acquired, with the command of the lakes on which they stand.

Meeting of congress.

Intelligence of the capture of Ticonderoga was immediately transmitted to congress, then just assembled at Philadelphia. The resolutions passed on the occasion, furnish strong evidence of the solicitude felt by that body, to exonerate the government, in the opinion of the people, from all suspicion of provoking a continuance of the war, by transcending the limits of self defence. Indubitable evidence, it was asserted, had been received of a design for a cruel invasion of the colonies from Canada, for the purpose of destroying their lives and liberties; and it was averred that some steps had actually been taken towards carrying this design into execution. To a justifiable desire of securing themselves from so heavy a calamity, was attributed the seizure of the posts on the lakes by the neighbouring inhabitants; and it was recommended to the committees of New York and Albany to take immediate measures for the removal of the cannon and military stores to some place on the south end of lake George, there to be preserved in safety. An exact inventory of the stores was directed to be

taken, "in order that they might be safely returned, when the restoration of the former harmony between Great Britain and the colonies, so ardently wished for by the latter, should render it prudent, and consistent with the overruling law of self preservation."

Measures, however, were adopted to maintain the posts; but, to quiet the apprehensions of their neighbours, congress resolved that, having nothing more in view than self defence, "no expedition or incursion ought to be undertaken or made by any colony, or body of colonists, against, or into, Canada."

This resolution was translated into the French language, and transmitted to the people of that province, in a letter in which all their feelings, and particularly their known attachment to France, were dexterously assailed; and the effort was earnestly made to kindle in their bosoms, that enthusiastic love of liberty which was felt too strongly by the authors of the letter, to permit the belief that it could be inoperative with others.

During these transactions, generals Howe, Burgoyne, and Clinton, arrived at Boston, soon after which general Gage issued a proclamation declaring martial law to be in force, and offering pardon to those who would lay down their arms and submit to the King, with the exception of Samuel Adams, and John Hancock.

On receiving intelligence of the battle of Lexington, New York appeared to hesitate no longer. In that place also, the spirit which animated the colonies generally, obtained the ascendancy. Yet the royal party remained formidable; and it was thought advisable to march a body of Connecticut troops into the neighbourhood, professedly to protect the town against some British regiments expected from Ireland, but really with the design of protecting the patriotic party.

The middle and southern colonies, though not so forward as those of the north, laid aside the established government, and prepared for hostilities.

Transactions in Virginia.

In Virginia, the governor, lord Dunmore, had just returned from a successful expedition against the Indians, in which he had acquired considerable popularity. Presuming too much on the favour of the moment, and dissatisfied with some recommendations concerning the militia and independent companies made by the colonial convention which had assembled in Richmond, he employed the captain of an armed vessel then

lying in James river, a few miles from Williamsburg, to convey to his ship by night, a part of the powder in the magazine, belonging to the colony.

This measure, though conducted with great secrecy, was discovered; and the people of the town assembled next morning in arms, for the purpose of demanding restitution of the property which had been taken. The magistrates, having prevailed on them to disperse, presented an address to the governor, remonstrating against the removal of the powder, which they alleged to be the more injurious, because it was necessary for their defence in the event of an insurrection among their slaves.

The governor acknowledged that the powder had been removed by his order, but gave assurances that he would restore it, if an insurrection of the slaves should render the measure necessary. Unsatisfactory as this answer was, no farther means were used in Williamsburg for its recovery.

This transaction excited a strong sensation in the interior of the country. Meetings were held in several counties, and the conduct of the governor was greatly condemned. The independent companies of Hanover and King William, at the instance of Mr. Patrick Henry, a member of congress, assembled, and marched for Williamsburg, with the avowed design of compelling restitution of the powder, or of obtaining its value. Their march was stopped by the active interposition of Mr. Braxton, who obtained from the King's receiver general, a bill for the value of the property that had been removed, with which he returned to the companies, and prevailed on them to relinquish a farther prosecution of the enterprise.[\[246\]](#)

The alarm occasioned by this movement induced lady Dunmore, to retire with her family on board the Fowey man of war, lying in James river; whilst his lordship fortified his palace, which he garrisoned with a corps of marines; and published a proclamation in which he charged those who had procured the bill from the receiver general, with rebellious practices.

During this state of irritation, lord North's conciliatory proposition was received; and an assembly was suddenly called, to whose consideration it was submitted. The governor used all his address to procure its acceptance; but, in Virginia, as in the other colonies, it was rejected, because it obviously involved a surrender of the whole subject in contest.

One of the first measures of the assembly was to inquire into the causes of the late disturbances, and particularly to examine the state of the magazine. Although this building belonged to the colony, it was in the

custody of the governor; and, before admittance could be obtained; some persons of the neighbourhood broke into it, one of whom was wounded by a spring gun, and it was found that the powder which remained had been buried, and that the guns were deprived of their locks. Governor Dunmore retires to the Fowey ship of war. These circumstances excited so great a ferment that the governor thought proper to withdraw to the Fowey man of war. Several letters passed between him and the legislature containing reciprocal complaints of each other, in the course of which they pressed his return to the seat of government, while he insisted on their coming on board the Fowey. They were content that he should, even there, give his assent to some bills that were prepared, but he refused so to do, and the assembly dissolved itself; the members being generally elected to a convention then about to meet in Richmond.

Thus terminated for ever, the regal government in Virginia.

Provisional congress of South Carolina.

In South Carolina, so soon as intelligence of the battle of Lexington was received, a provincial congress was called by the committee of correspondence. An association was formed, the members of which pledged themselves to each other to repel force by force, whenever the continental or provincial congress should determine it to be necessary; and declared that they would hold all those inimical to the colonies, who should refuse to subscribe it. The congress also determined to put the town and province in a posture of defence, and agreed to raise two regiments of infantry, and one of rangers.

Arrival of lord William Campbell.

While the congress was in session, lord William Campbell, who had been appointed governor, arrived in the province, and was received with those demonstrations of joy which had been usual on such occasions. The congress waited on him with an address expressing the causes of their proceedings; in which they declared that no love of innovation, no desire of altering the constitution of government, no lust of independence, had the least influence on their councils; but that they had been compelled to associate and take up arms, solely for the preservation, and in defence, of their lives, liberties, and property. They entreated his excellency to make such a representation of the state of the colony, and of their true motives, as to assure his majesty that he had no subjects who more sincerely desired to

testify their loyalty and affection, or would be more willing to devote their lives and fortunes to his real service. His lordship returned a mild and prudent answer.[\[247\]](#)

For some time lord William Campbell conducted himself with such apparent moderation, as to remain on good terms with the leaders of the opposition; but he was secretly exerting all the influence of his station to defeat their views; and was, at length, detected in carrying on negotiations with the Indians, and with the disaffected in the interior. These people had been induced to believe that the inhabitants of the sea coast, in order to exempt their tea from a trifling tax, were about to engage them in a contest, which would deprive them of their salt, osnaburgs, and other imported articles of absolute necessity. The detection of these intrigues excited such a ferment that the governor was compelled to fly from Charleston, and take refuge on board a ship of war in the river. The government was then, as elsewhere, taken entirely into the hands of men chosen by the people; and a body of provincial troops was ordered into that part of the country which adhered to the royal cause, where many individuals, contrary to the advice of governor Campbell, had risen in arms. The leaders were seized, and their followers dispersed.

In North Carolina also, governor Martin was charged with fomenting a civil war, and exciting an insurrection among the negroes. Relying on the aid he expected from the disaffected, especially from some Highland emigrants, he made preparations for the defence of his palace; but the people taking the alarm before his troops were raised, he was compelled to seek safety on board a sloop of war in Cape Fear river; soon after which, the committee resolved "that no person or persons whatsoever should have any correspondence with him, on pain of being deemed enemies to the liberties of America, and dealt with accordingly."

As soon as congress was organised, Mr. Hancock laid before that body the depositions showing that, in the battle of Lexington, the King's troops were the aggressors; together with the proceedings of the provincial congress of Massachusetts on that subject.

The affairs of America were now arrived at a crisis to which they had been, for some time, rapidly tending; and it had become necessary for the delegates of the other provinces finally to determine, either to embark with New England in war, or, by separating from her, to surrender the object for

which they had jointly contended, and submit to that unlimited supremacy which was claimed by parliament.

Even among the well informed, the opinion, that the contest would ultimately be determined by the sword, had not become general. The hope had been indulged by many of the popular leaders, that the union of the colonies, the extent and serious aspect of the opposition, and the distress which their non-importation agreements would produce among the merchants and manufacturers of the parent state, would induce administration to recede from its high pretensions, and restore harmony and free intercourse. This opinion had derived strength from the communications made them by their zealous friends in England. The divisions and discontents of that country had been represented as much greater than the fact would justify; and the exhortations transmitted to them to persevere in the honourable course which had been commenced with so much glory, had generally been accompanied with assurances that success would yet crown their patriotic labours. Many had engaged with zeal in the resistance made by America, and had acted on a full conviction of the correctness of the principles for which they contended, who would have felt some reluctance in supporting the measures which had been adopted, had they believed that those measures would produce war. But each party counted too much on the divisions of the other; and each seems to have taken step after step, in the hope that its adversary would yield the point in contest, without resorting to open force. Thus, on both sides, the public feeling had been gradually conducted to a point, which would, in the first instance, have been viewed with horror, and had been prepared for events, which, in the beginning of the controversy, would have alarmed the most intrepid. The prevailing sentiment in the middle and southern colonies still was, that a reconciliation, on the terms proposed by America, was not even yet impracticable, and was devoutly to be wished; but that war was to be preferred to a surrender of those rights, for which they had contended, and to which they believed every British subject, wherever placed, to be unquestionably entitled. They did not hesitate therefore which part of the alternative to embrace; and their delegates united cordially with those of the north, in such measures as the exigency required. The resolution was unanimous that, as hostilities had actually commenced, and as large reinforcements to the British army were expected, these colonies should be immediately put in a state of defence, and the militia of New York be armed

and trained, and kept in readiness to act at a moment's warning. Congress also determined to embody a number of men, without delay, for the protection of the inhabitants of that place, but did not authorise opposition to the landing of any troops which might be ordered to that station by the crown. The convention of New York had already consulted congress on this subject, and had been advised to permit the soldiers to take possession of the barracks, and to remain there so long as they conducted themselves peaceably; but, if they should commit hostilities, or invade private property, to repel force by force. Thus anxious was congress even after a battle had been fought, not to widen the breach between the two countries. In addition to the real wish for reconciliation, sound policy directed that the people of America should engage in the arduous conflict which was approaching, with a perfect conviction that it was forced upon them, and not invited by the intemperate conduct of their leaders. The divisions existing in several of the States suggested the propriety of this conduct, even to those who despaired of deriving any other benefit from it, than a greater degree of union among their own countrymen. In this spirit, congress mingled with the resolutions for putting the country in a state of defence, others expressing the most earnest wish for reconciliation with the mother country, to effect which, that body determined to address, once more, an humble and dutiful petition to the King, and to adopt measures for opening a negotiation in order "to accommodate the unhappy disputes subsisting between Great Britain and the colonies."

As no great confidence could be placed in the success of pacific propositions, the resolution for putting the country in a state of defence was accompanied with others rendered necessary by that undetermined state between war and peace, in which America was placed. All exports to those colonies, which had not deputed members to congress, were stopped; and all supplies of provisions, and other necessities, to the British fisheries, or to the army or navy in Massachusetts Bay, or to any vessels employed in transporting British troops to America, or from one colony to another, were prohibited. Though this resolution was only an extension of the system of commercial resistance which had been adopted before the commencement of hostilities, and was evidently provoked by the late act of parliament, it seems to have been entirely unexpected, and certainly produced great distress.

Massachusetts having stated the embarrassments resulting from being without a regular government, "at a time when an army was to be raised to defend themselves against the butcheries and devastations of their implacable enemies," and having declared a readiness to conform to such general plan as congress might recommend to the colonies, it was resolved "that no obedience is due to the act of parliament for altering the charter of that colony, nor to officers who, instead of observing that charter, seek its subversion." The governor and lieutenant governor, therefore, were to be considered as absent, and their offices vacant. To avoid the intolerable inconveniences arising from a total suspension of government, "especially at a time when general Gage had actually levied war, and was carrying on hostilities against his majesty's peaceable and loyal subjects in that colony," it was "recommended to the convention to write letters to the inhabitants of the several places which are entitled to representation in the assembly, requesting them to choose such representatives; and that such assembly or council exercise the powers of government until a governor of his majesty's appointment will consent to govern the colony, according to its charter."
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These resolutions were quickly followed by others of greater vigour, denoting more decidedly, a determination to prepare for the last resort of nations.

It was earnestly recommended to the conventions of all the colonies to provide the means of making gun powder, and to obtain the largest possible supplies of ammunition. Even the non-importation agreement was relaxed in favour of vessels importing these precious materials. The conventions were also urged to arm and discipline the militia; and so to class them, that one-fourth should be minute men. They were also requested to raise several regular corps for the service of the continent; and a general resolution was entered into, authorising any province thinking itself in danger, to raise a body of regulars not exceeding one thousand men, to be, paid by the united colonies.

Congress also proceeded to organise the higher departments of the army, of which, colonel George Washington of Virginia was appointed commander in chief.
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Bills of credit to the amount of three millions of dollars were emitted for the purpose of defraying the expenses of the war, and the faith of the twelve

confederated colonies was pledged for their redemption. Articles of war for the government of the continental army were formed; though the troops were raised under the authority of the respective colonies, without even a requisition from congress, except in a few instances. Manifesto of congress. A solemn dignified declaration, in form of a manifesto, was prepared, to be published to the army in orders, and to the people from the pulpit. After detailing the causes of their opposition to the mother country, with all the energy of men feeling the injuries of which they complain, the manifesto exclaims, "but why should we enumerate our injuries in detail? By one statute, it is declared that parliament can, of right, make laws to bind us in all cases whatsoever! What is to defend us against so enormous, so unlimited a power? Not a single man of those who assume it, is chosen by us, or is subject to our control or influence: but, on the contrary, they are, all of them, exempt from the operation of such laws; and an American revenue, if not diverted from the ostensible purposes for which it is raised, would actually lighten their own burdens in proportion as they increase ours. We saw the misery to which such despotism would reduce us. We, for ten years, incessantly and ineffectually, besieged the throne as supplicants; we reasoned, we remonstrated with parliament in the most mild and decent language."

The manifesto next enumerates the measures adopted by administration to enforce the claims of Great Britain, and then adds,—"we are reduced to the alternative of choosing an unconstitutional submission to the tyranny of irritated ministers, or resistance by force.—The latter is our choice. We have counted the cost of this contest, and find nothing so dreadful as voluntary slavery. Honour, justice, and humanity, forbid us tamely to surrender that freedom which we received from our gallant ancestors, and which our innocent posterity have a right to receive from us. We cannot endure the infamy and guilt of resigning succeeding generations to that wretchedness which inevitably awaits them, if we basely entail hereditary bondage upon them.

"Our cause is just. Our union is perfect. Our internal resources are great; and, if necessary, foreign assistance is undoubtedly attainable. We gratefully acknowledge, as signal instances of the divine favour towards us, that his providence would not permit us to be called into this severe controversy, until we were grown up to our present strength, had been previously exercised in warlike operation, and possessed of the means of defending

ourselves. With hearts fortified with these animating reflections, we most solemnly, before God and the world, DECLARE that, exerting the utmost energy of those powers which our beneficent creator hath graciously bestowed upon us, the arms we have been compelled by our enemies to assume, we will, in defiance of every hazard, with unabating firmness and perseverance, employ for the preservation of our liberties; being with one mind resolved to die freemen, rather than to live slaves.

"Lest this declaration should disquiet the minds of our friends and fellow subjects in any part of the empire, we assure them that we mean not to dissolve that union which has so long and so happily subsisted between us, and which we sincerely wish to see restored. Necessity has not yet driven us to that desperate measure, or induced us to excite any other nation to war against them. We have not raised armies with ambitious designs of separating from Great Britain, and establishing independent states. We fight not for glory, or for conquest. We exhibit to mankind the remarkable spectacle of a people attacked by unprovoked enemies, without any imputation or even suspicion of offence. *They* boast of their privileges and civilization, and yet proffer no milder conditions than servitude or death.

"In our own native land in defence of the freedom that is our birth right, and which we ever enjoyed until the late violation of it, for the protection of our property, acquired solely by the honest industry of our forefathers, and ourselves, against violence actually offered, we have taken up arms. We shall lay them down when hostilities shall cease on the part of the aggressors, and all danger of their being renewed shall be removed, and not before."

Some intelligence respecting the movements of the British army having excited a suspicion that general Gage intended to penetrate into the country, the provincial congress recommended it to the council of war to take measures for the defence of Dorchester neck, and to occupy Bunker's hill, a commanding piece of ground just within the peninsula on which Charlestown stands. In observance of these instructions, a detachment of one thousand men, commanded by colonel Prescott, was ordered to take possession of this ground; but, by some mistake, Breed's hill, situate nearer to Boston, was marked out, instead of Bunker's hill, for the proposed intrenchments.

The party sent on this service worked with so much diligence and secrecy that, by the dawn of day, they had thrown up a small square redoubt, without alarming some ships of war which lay in the river at no great distance. As soon as the returning light discovered this work to the ships, a heavy cannonade was commenced upon it, which the provincials sustained with firmness. They continued to labour until they had thrown up a small breast work stretching from the east side of the redoubt to the bottom of the hill, so as to extend considerably their line of defence.

As this eminence overlooked Boston, general Gage determined to drive the provincials from it; and for this purpose, detached major general Howe, and brigadier general Pigot, at the head of ten companies of grenadiers, and the same number of light infantry with a proper proportion of field artillery. These troops landed at Moreton's point; but, perceiving that the Americans waited for them with firmness, they remained on their ground until the arrival of a reinforcement from Boston, for which general Howe had applied. During this interval, the Americans also were reinforced by a detachment under the command of generals Warren and Pommeroy; and they availed themselves of this delay to strengthen their defences with some adjoining posts and rails which they pulled up and arranged in two parallel lines at a small distance from each other; rilling the space between with hay, so as to form a complete cover from the musketry of the assailants.

The British troops, on being joined by their second detachment, advanced slowly, in two lines, under cover of a heavy discharge of cannon and howitzers, frequently halting in order to allow their artillery time to demolish the works. While they were advancing, orders were given to set fire to Charlestown, a handsome village, which flanked their line of march, and which was soon consumed.

It is not easy to conceive a spectacle more grand and more awful than was now exhibited, nor a moment of more anxious expectation. The scene of action was in full view of the heights of Boston and of its neighbourhood, which were covered with spectators taking deep and opposite interests in the events passing before them. The soldiers of the hostile armies not on duty, the citizens of Boston, and the inhabitants of the adjacent country; all feeling emotions which set description at defiance, were witnesses of the majestic and tremendous scene.

Battle of Breed's hill.

The provincials permitted the English to approach unmolested, within less than one hundred yards of the works, and then poured in upon them so deadly a fire that their line was broken, and they fell back with precipitation towards the landing place. By the great exertions of their officers, they were rallied and brought up to the charge; but were again driven back in confusion by the heavy and incessant fire from the works. General Howe is said to have been left, at one time, almost alone; and it is certain that few officers about his person escaped unhurt.

The impression to be made by victory or defeat in this early stage of the war, was deemed so important that extraordinary exertions were used once more to rally the English. With difficulty, they were led a third time to the works. The redoubt was attacked on three sides, while some pieces of artillery raked the breast work from end to end. At the same time, a cross fire from the ships, and floating batteries lying on both sides of the isthmus by which the peninsula is connected with the continent, not only annoyed the works on Breed's hill, but deterred any considerable reinforcements from entering the peninsula. The ammunition of the Americans being nearly exhausted, they were no longer able to keep up the same incessant stream of fire which had twice repulsed the assailants; and the redoubt, which the English mounted with ease, was carried at the point of the bayonet. Yet the Americans, many of whom were without bayonets, are said to have maintained the contest with clubbed muskets, until the redoubt was half filled with the King's troops.

The redoubt being lost, the breast work was abandoned; and the hazardous movement was accomplished, of retreating in the face of a victorious enemy over Charlestown neck; exposed to the same cross fire, which had deterred the reinforcements from coming to their assistance.

The detachment employed on this enterprise consisted of about three thousand men, composing the flower of the British army; and high encomiums were bestowed on the resolution they displayed. According to the returns, their killed and wounded amounted to one thousand and fifty four,—an immense proportion of the number engaged in the action. Notwithstanding the danger of the retreat over Charlestown neck, the loss of the Americans was stated at only four hundred and fifty men. Among the killed was Doctor Warren, a gentleman greatly beloved and regretted, who fell just after the provincials began their retreat from the breast work.

At the time, the colonial force on the peninsula was generally stated at fifteen hundred men. It has been since estimated at four thousand.

Although the Americans lost the ground, they claimed the victory. Many of the advantages of victory were certainly gained. Their confidence in themselves was greatly increased; and it was asked, universally, how many more such triumphs the invaders of their country could afford?

The British army had been treated too roughly, to attempt farther offensive operations. They contented themselves with seizing and fortifying Bunker's hill, which secured the peninsula of Charlestown; in which, however, they remained as closely blockaded as in that of Boston.

The Americans were much elated by the intrepidity the raw troops had displayed, and the execution they had done, in this engagement. They fondly cherished the belief that courage, and dexterity in the use of fire arms, would bestow advantages amply compensating the want of discipline. Unfortunately for the colonies, this course of thinking was not confined to the mass of the people. It seems to have extended to those who guided the public councils, and to have contributed to the adoption of a system, which, more than once, brought their cause to the brink of ruin. They did not distinguish sufficiently between the momentary efforts of a few brave men, brought together by a high sense of the injuries which threatened their country, and carried into action under the influence of keen resentments; and those steady persevering exertions under continued suffering, which must be necessary to bring an important war to a happy termination. Nor did they examine with sufficient accuracy, several striking circumstances attending the battle which had been fought. It is not easy to read the accounts given of the action without being persuaded, that, had the Americans on Breed's hill been supplied with ammunition, and been properly supported; had the reinforcements ordered to their assistance entered the peninsula, as soldiers in habits of obedience would have done, and there displayed the heroic courage which was exhibited by their countrymen engaged in defence of the works; the assailants must have been defeated, and the flower of the British army cut to pieces. It ought also to have been remarked that, while the few who were endowed with more than a common portion of bravery, encountered the danger of executing the orders they had received, the many were deterred by the magnitude of that

danger. But it is not by the few that great victories are to be gained, or a country to be saved.

Amidst these hostile operations, the voice of peace was yet heard. Allegiance to the King was still acknowledged; and a lingering hope remained that an accommodation was not impossible. Congress voted a petition to his majesty, replete with professions of duty and attachment; and addressed a letter to the people of England, conjuring them by the endearing appellations of "friends, countrymen, and brethren," to prevent the dissolution of "that connexion which the remembrance of former friendships, pride in the glorious achievements of common ancestors, and affection for the heirs of their virtues, had heretofore maintained." They uniformly disclaimed any idea of independence, and professed themselves to consider union with England on constitutional principles, as the greatest blessing which could be bestowed on them.

But Britain had determined to maintain, by force, the legislative supremacy of parliament; and America was equally determined, by force, to repel the claim.

NOTES.

NOTE—No. I.—See [Page 195](#).

The annals of Massachusetts, for this period, exhibit one of those wonderful cases of popular delusion, which infecting every class of society, and gaining strength from its very extravagance; triumphing over human reason, and cruelly sporting with human life; reveal to man his deplorable imbecility, and would teach him, if the experience of others could teach, never to countenance a departure from that moderation, and those safe and sure principles of moral rectitude which have stood the test of time, and have received the approbation of the wise and good in all ages. A very detailed and interesting account of the humiliating and affecting events here alluded to has been given by Mr. Hutchinson, but is too long to be inserted entire in this work; they were, however, of too much magnitude while passing, to be entirely unnoticed even at this day.

In Great Britain, as well as in America, the opinion had long prevailed that, by the aid of malignant spirits, certain persons possessed supernatural powers, which were usually exercised in the mischievous employment of tormenting others; and the criminal code of both countries was disgraced with laws for the punishment of witchcraft. With considerable intervals between them, some few instances had occurred in New England of putting this sanguinary law in force; but in the year 1692, this weakness was converted into frenzy; and after exercising successfully its destructive rage on those miserable objects whose wayward dispositions had excited the ill opinion, or whose age and wretchedness ought to have secured them the pity of their neighbours, its baneful activity was extended to persons in every situation of life, and many of the most reputable members of society became its victims.

The first scene of this distressing tragedy was laid in Salem. The public mind had been prepared for its exhibition by some publications, stating the evidence adduced in former trials for witchcraft both in Old and New England, in which full proof was supposed to have been given of the guilt of the accused. Soon after this, some young girls in Boston had accustomed

themselves to fall into fits, and had affected to be struck dead on the production of certain popular books, such as the *assembly's catechism*, and *Cotton's milk for babes*, while they could read Oxford's jests, or popish and quaker books, with many others, which were deemed profane, without being in any manner affected by them. These pretences, instead of exposing the fraud to instant detection, seem to have promoted the cheat; and they were supposed to be possessed by demons who were utterly confounded at the production of those holy books. "Sometimes," says Mr. Hutchinson, "they were deaf, then dumb, then blind; and sometimes, all these disorders together would come upon them. Their tongues would be drawn down their throats, then pulled out upon their chins. Their jaws, necks, shoulders, elbows, and all their joints would appear to be dislocated, and they would make most piteous outcries of burnings, of being cut with knives, beat, &c. and the marks of wounds were afterwards to be seen." At length an old Irish woman, not of good character, who had given one of those girls some harsh language, and to whom all this diabolical mischief was attributed, was apprehended by the magistracy; and neither confessing nor denying the fact, was, on the certificate of physicians that she was *compos mentis*, condemned and executed.

Sir William Phipps, the governor, on his arrival from England, brought with him opinions which could not fail to strengthen the popular prejudice, and the lieutenant governor supported one which was well calculated to render it sanguinary. He maintained that though the devil might appear in the shape of a guilty person, he could never be permitted to assume that of an innocent one. Consequently, when those who affected to perceive the form which tormented them designated any particular person as guilty, the guilt of that person was established, because he could not, if innocent, be personated by an evil spirit.

The public mind being thus predisposed, four girls in Salem complained of being afflicted in the same manner with those in Boston. The physicians, unable to account for the disorder, attributed it to witchcraft, and an old Indian woman in the neighbourhood was selected as the witch. The attention bestowed on these girls gave them great importance; and not only confirmed them in the imposture, but produced other competitors who were ambitious of the same distinction. Several other persons were now bewitched; and not only the old Indian, but two other old women, the one bedridden, and the other subject to melancholy and distraction, were

accused as witches. It was necessary to keep up the agitation already excited, by furnishing fresh subjects for astonishment; and in a short time, the accusations extended to persons who were in respectable situations. The manner in which these accusations were received, evidenced such a degree of public credulity, that the impostors seem to have been convinced of their power to assail with impunity, all whom caprice or malignity might select for their victims. Such was the prevailing infatuation, that in one instance, a child of five years old was charged as an accomplice in these pretended crimes; and if the nearest relatives of the accused manifested either tenderness for their situation, or resentment at the injury done their friends, they drew upon themselves the vengeance of these profligate impostors, and were involved in the dangers from which they were desirous of rescuing those with whom they were most intimately connected. For going out of church when allusions were made from the pulpit to a person of fair fame, a sister was charged as a witch; and for accompanying on her examination a wife who had been apprehended, the husband was involved in the same prosecution, and was condemned and executed. In the presence of the magistrates these flagitious accusers affected extreme agony, and attributed to those whom they accused, the power of torturing them by a look. The examinations were all taken in writing, and several of them are detailed at full length in Mr. Hutchinson's history of Massachusetts. They exhibit a deplorable degree of blind infatuation on one side, and of atrocious profligacy on the other, which if not well attested, could scarcely be supposed to have existed.

Many persons of sober lives, and unblemished characters, were committed to prison; and the public prejudices had already pronounced their doom. Against charges of this nature, thus conducted, no defence could possibly be made. To be accused was to be found guilty. The very grossness of the imposition seemed to secure its success, and the absurdity of the accusation to establish the verity of the charge.

The consternation became almost universal. It was soon perceived that all attempts to establish innocence must be ineffectual; and the person accused could only hope to obtain safety, by confessing the truth of the charge, and criminating others. The extent of crime introduced by such a state of things almost surpasses belief. Every feeling of humanity is shocked when we learn that to save themselves, children accused their parents; in some

instances, parents their children; and in one case, sentence of death was pronounced against a husband on the testimony of his wife.

There were examples of persons who under the terrors of examination confessed themselves guilty, and accused others; but unable afterwards to support the reproaches of conscience, retracted their confessions under the persuasion that death would be the consequence of doing so.

During this reign of popular frenzy, the bounds of probability were so far transcended, that we scarcely know how to give credit to the well attested fact, that among those who were permitted to save themselves by confessing that they were witches, and joining in the accusation of their parents, were to be found children from seven to ten years of age! Among the numbers who were accused, only one person was acquitted. For this he was indebted to one of the girls who would not join the others in criminating him.

The examination had commenced in February, and the list of commitments had swelled to a lamentable bulk by June, when the new charter having arrived, commissioners of oyer and terminer were appointed for the trial of persons charged with witchcraft. By this court, a considerable number were condemned, of whom nineteen, protesting their innocence, were executed. It is observed by Mr. Hutchinson, that those who were condemned and not executed had most probably saved themselves by a confession of their guilt.

Fortunately for those who were still to be tried, the legislature, convened under the new charter, created a regular tribunal for the trial of criminal as well as civil cases, and the court of commissioners rose to sit no more. The first session of the regular court for the trial of criminal cases was to be held in January, and this delay was favourable to reflection and to the recovery of the public reason. Other causes contributed to this event. There remained yet in the various prisons of the colony, a vast number of women, many of whom were of the most reputable families in the towns in which they had resided. Allusion had been made to many others of the first rank, and some had been expressly named by the bewitched and confessing witches. A Mr. Bradstreet, who had been appointed one of the council, and was son to the old governor of that name; but who as a justice of the peace was suspected of not prosecuting with sufficient rigour, was named by the witnesses as a confederate, and found it necessary to abscond. The governor's lady it is

said, and the wife of one of the ministers who had favoured this persecution, were among the accused; and a charge was also brought against the secretary of the colony of Connecticut.

Although the violence of the torrent of prejudice was beginning to abate, yet the grand jury in January, found a true bill against fifty persons, but of those brought to trial, only three were condemned, and they were not executed. All those who were not tried in January, were discharged by order of the governor, "and never," says Mr. Hutchinson, "has such a jail delivery been known in New England. And never was there given a more melancholy proof of the degree of depravity of which man is capable when the public passions countenance crime."

NOTE—No. II.—See [Page 291](#).

The PLAN of the Union was as follows, viz.

"It is proposed that humble application be made for an act of parliament of Great Britain, by virtue of which one general government may be formed in America, including all the said colonies: [Massachusetts Bay, New Hampshire, Connecticut, Rhode Island, New York, New Jersey, Pennsylvania, Maryland, Virginia, North Carolina, and South Carolina] within and under which government, each colony may retain its present constitution, except in the particulars wherein a change may be directed by the said act, as hereafter follows:

PRESIDENT GENERAL AND GRAND COUNCIL.

That the said general government be administered by a president general, to be appointed and supported by the crown, and a grand council, to be chosen by the representatives of the people of the several colonies, met in their assemblies.

ELECTION OF MEMBERS.

That within — months after passing such act, the houses of representatives that happen to be sitting within that time, or that shall be especially for that purpose convened, may and shall choose members for the grand council in the following proportion, that is to say:

Massachusetts Bay 7

New Hampshire 2

Connecticut	5
Rhode Island	2
New York	4
New Jersey	3
Pennsylvania	6
Maryland	4
Virginia	7
North Carolina	4
South Carolina	4

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PLACE OF FIRST MEETING.

Who shall meet for the first time at the city of Philadelphia, in Pennsylvania, being called by the president general as soon as conveniently may be after his appointment.

NEW ELECTION.

That there shall be a new election of the members of the grand council every three years; and on the death or resignation of any member, his place shall be supplied by a new choice, at the next sitting of the assembly of the colony he represented.

PROPORTION OF THE MEMBERS AFTER THE FIRST THREE YEARS.

That after the first three years, when the proportion of money arising out of each colony to the general treasury can be known, the number of members to be chosen for each colony shall, from time to time, in all ensuing elections, be regulated by that proportion (yet so as that the number to be chosen by any one province be not more than seven, nor less than two).

MEETINGS OF THE GRAND COUNCIL AND CALL.

That the grand council shall meet once in every year, and oftener, if occasion require, at such time and place as they shall adjourn to at the last preceding meeting, or as they shall be called to meet at by the president general, on any emergency; he having first obtained in writing the consent

of seven of the members to such call, and sent due and timely notice to the whole.

CONTINUANCE.

That the grand council have power to choose their speaker: and shall neither be dissolved, prorogued, nor continued sitting longer than six weeks at one time; without their own consent, or the special command of the crown.

MEMBERS ATTENDANCE.

That the members of the grand council shall be allowed for their services, ten shillings sterling per diem, during their session and journey to and from the place of meeting; twenty miles to be reckoned a day's journey.

ASSENT OF PRESIDENT GENERAL AND HIS DUTY.

That the assent of the president general be requisite to all acts of the grand council; and that it be his office and duty to cause them to be carried into execution.

POWER OF PRESIDENT GENERAL AND GRAND COUNCIL, TREATIES OF PEACE AND WAR.

That the president general, with the advice of the grand council, hold or direct all Indian treaties in which the general interest of the colonies may be concerned; and make peace or declare war with Indian nations.

INDIAN TRADE.

That they make such laws as they judge necessary for regulating all Indian trade.

INDIAN PURCHASES.

That they make all purchases from the Indians for the crown, of lands not now within the bounds of particular colonies, or that shall not be within their bounds, when some of them are reduced to more convenient dimensions.

NEW SETTLEMENTS.

That they make new settlements on such purchases by granting lands in the king's name, reserving a quit rent to the crown, for the use of the general treasury.

LAWS TO GOVERN THEM.

That they make laws for regulating and governing such new settlements, until the crown shall think fit to form them into particular governments.

RAISE SOLDIERS AND EQUIP VESSELS, &C.

That they raise and pay soldiers, build forts for the defence of any of the colonies, and equip vessels of force to guard the coasts and protect the trade on the ocean, lakes, or great rivers; but they shall not impress men in any colony, without the consent of the legislature.

POWER TO MAKE LAWS, LAY DUTIES, &C.

That for these purposes they have power to make laws, and lay and levy such general duties, imposts, or taxes, as to them shall appear most equal and just, (considering the ability and other circumstances of the inhabitants in the several colonies) and such may be collected with the least inconvenience to the people; rather discouraging luxury, than loading industry with unnecessary burdens.

GENERAL TREASURER AND PARTICULAR TREASURER.

That they may appoint a general treasurer and particular treasurer in each government, when necessary; and from time to time may order the sums in the treasuries of each government into the general treasury, or draw on them for special payments, as they find most convenient.

MONEY, HOW TO ISSUE.

Yet no money to issue but by joint orders of the president general and grand council, except where sums have been appropriated to particular purposes, and the president general has been previously empowered by an act to draw for such sums.

ACCOUNTS.

That the general accounts shall be yearly settled, and reported to the several assemblies.

QUORUM.

That a quorum of the grand council, empowered to act with the president general, do consist of twenty-five members; among whom there shall be one or more from the majority of the colonies.

LAWS TO BE TRANSMITTED.

That the laws made by them for the purposes aforesaid, shall not be repugnant, but, as near as may be, agreeable to the laws of England, and

shall be transmitted to the king in council, for approbation, as soon as may be after their passing; and if not disapproved within three years after presentation, to remain in force.

DEATH OF THE PRESIDENT GENERAL.

That in case of the death of the president general, the speaker of the grand council for the time being shall succeed, and be vested with the same powers and authorities, to continue until the king's pleasure be known.

OFFICERS, HOW APPOINTED.

That all military commission officers, whether for land or sea service, to act under this general constitution, shall be nominated by the president general; but the approbation of the grand council is to be obtained, before they receive their commissions. And all civil officers are to be nominated by the grand council, and to receive the president general's approbation before they officiate.

VACANCIES, HOW SUPPLIED.

But in case of vacancy, by death, or removal of any officer, civil or military, under this constitution, the governor of the province in which such vacancy happens, may appoint until the pleasure of the president general and grand council can be known.

EACH COLONY MAY DEFEND ITSELF ON EMERGENCY, &C.

That the particular military as well as civil establishments in each colony remain in their present state, the general constitution notwithstanding; and that on sudden emergencies any colony may defend itself, and lay the accounts of expense thence arising before the president general and grand council, who may allow and order payment of the same as far as they judge such accounts reasonable."

Minot.

NOTE—No. III.—See [Page 370](#).

These being the first resolutions of any assembly after the passage of the stamp act, they are inserted.

Whereas, The honourable house of commons in England have of late drawn into question how far the general assembly of this colony hath power

to enact laws for laying taxes and imposing duties payable by the people of this his majesty's most ancient colony, for settling and ascertaining the same to all future times, the house of Burgesses of the present general assembly have come to the several following resolutions.

Resolved, That the first adventurers and settlers of this his majesty's colony and dominion of Virginia, brought with them, and transmitted to their posterity, and all others his majesty's subjects since inhabiting in this his majesty's colony, all the privileges and immunities that have at any time been held, enjoyed, and possessed by the people of Great Britain.

Resolved, That by two royal charters granted by King James I. the colonies aforesaid are declared entitled to all the privileges of denizens, and natural born subjects, to all intents and purposes as if they had been abiding and born within the realm of England.

Resolved, That the taxation of the people by themselves, or by persons chosen by themselves, to represent them, who can only know what taxes the people are able to bear, and the easiest mode of raising them, and are equally affected by such taxes themselves, is the distinguished characteristic of British freedom, and without which the ancient constitution cannot subsist.

Resolved, That his majesty's liege people of this most ancient colony have uninterruptedly enjoyed the right of being thus governed by their own assembly in the article of their taxes and internal police, and that the same hath never been forfeited nor any other way yielded up, but hath been constantly recognised by the King and people of Great Britain.

Resolved, Therefore, that the general assembly of this colony have the sole power to lay taxes and impositions upon the inhabitants of this colony; and that every attempt to vest such a power in any person or persons whatsoever, other than the general assembly aforesaid, has a manifest tendency to destroy British as well as American freedom.

NOTE—No. IV.—See [Page 371](#).

"The members of this congress, sincerely devoted with the warmest sentiments of affection and duty, to his majesty's person and government, inviolably attached to the present happy establishment of the protestant

succession, and with minds deeply impressed by a sense of the present and impending misfortunes of the British colonies on this continent; having considered, as maturely as time will permit, the circumstances of the said colonies, esteem it our indispensable duty to make the following declarations of our humble opinion, respecting the most essential rights and liberties of the colonists, and of the grievances under which they labour, by reason of several late acts of parliament.

I. That his majesty's subjects in these colonies, owe the same allegiance to the crown of Great Britain that is owing from his subjects born within the realm, and all due subordination to that august body the parliament of Great Britain.

II. That his majesty's liege subjects in these colonies, are entitled to all the inherent rights and liberties of his natural born subjects, within the kingdom of Great Britain.

III. That it is inseparably essential to the freedom of a people, and the undoubted right of Englishmen, that no taxes be imposed on them, but with their own consent, given personally, or by their representatives.

IV. That the people of these colonies are not, and, from their local circumstances, cannot be represented in the house of commons of Great Britain.

V. That the only representatives of these colonies are persons chosen therein by themselves, and that no taxes ever have been, or can be constitutionally imposed upon them, but by their respective legislatures.

VI. That all supplies to the crown being free gifts from the people, it is unreasonable, and inconsistent with the principles and spirit of the British constitution, for the people of Great Britain to grant to his majesty the property of the colonists.

VII. That trial by jury is the inherent and invaluable right of every British subject in these colonies.

VIII. That the late act of parliament entitled, 'an act for granting and applying certain stamp duties, and other duties, in the British colonies and plantations in America,' &c. by imposing taxes on the inhabitants of these colonies; and the said act, and several other acts, by extending the jurisdiction of the courts of admiralty beyond its ancient limits, have a manifest tendency to subvert the rights and liberties of the colonists.

IX. That the duties imposed by several late acts of parliament, from the peculiar circumstances of these colonies, will be extremely burdensome and grievous; and from the scarcity of specie, the payment of them absolutely impracticable.

X. That as the profits of the trade of these colonies ultimately centre in Great Britain, to pay for the manufactures which they are obliged to take from thence, they eventually contribute very largely to all supplies granted to the crown.

XI. That the restrictions imposed by several late acts of parliament on the trade of these colonies, will render them unable to purchase the manufactures of Great Britain.

XII. That the increase, prosperity, and happiness of these colonies depend on the full and free enjoyment of their rights and liberties, and an intercourse with Great Britain mutually affectionate and advantageous.

XIII. That it is the right of the British subjects in these colonies to petition the king, or either house of parliament.

XIV. That it is the indispensable duty of these colonies, to the best of sovereigns, to the mother country, and to themselves, to endeavour, by a loyal and dutiful address to his majesty, and humble applications to both houses of parliament, to procure the repeal of the act for granting and applying certain stamp duties, of all clauses of any other acts of parliament, whereby the jurisdiction of the admiralty is extended as aforesaid, and of the other late acts for the restriction of American commerce."

Prior Documents.

NOTE—No. V.—See [Page 383](#).

Province of Massachusetts Bay, Feb. 11, 1768.

Sir,

The house of representatives of this province have taken into their consideration the great difficulties that must accrue to themselves and their constituents, by the operation of the several acts of parliament imposing duties and taxes on the American colonies.

As it is a subject in which every colony is deeply interested, they have no reason to doubt but your house is duly impressed with its importance: and that such constitutional measures will be come into as are proper. It seems to be necessary, that all possible care should be taken that the representations of the several assemblies, upon so delicate a point, should harmonise with each other: the house, therefore, hope that this letter will be candidly considered in no other light, than as expressing a disposition freely to communicate their mind to a sister colony, upon a common concern, in the same manner as they would be glad to receive the sentiments of your or any other house of assembly on the continent.

The house have humbly represented to the ministry their own sentiments; that his majesty's high court of parliament is the supreme legislative power over the whole empire: that in all free states the constitution is fixed: and, as the supreme legislative derives its power and authority from the constitution, it cannot overleap the bounds of it, without destroying its foundation; that the constitution ascertains and limits both sovereignty and allegiance; and therefore, his majesty's American subjects who acknowledge themselves bound by the ties of allegiance, have an equitable claim to the full enjoyment of the fundamental rules of the British constitution; that it is an essential unalterable right in nature, ingrafted into the British constitution as a fundamental law, and ever held sacred and irrevocable by the subjects within the realm, that what a man hath honestly acquired is absolutely his own, which he may freely give, but cannot be taken from him without his consent; that the American subjects may therefore, exclusive of any consideration of charter rights, with a decent firmness adapted to the character of freemen and subjects, assert this natural and constitutional right.

It is moreover their humble opinion, which they express with the greatest deference to the wisdom of the parliament, that the acts made there, imposing duties on the people of this province, with the sole and express purpose of raising a revenue, are infringements of their natural and constitutional rights; because as they are not represented in the British parliament, his majesty's commons in Britain by those acts grant their property without their consent.

This house further are of opinion, that their constituents, considering their local circumstances, cannot by any possibility be represented in the

parliament; and that it will forever be impracticable that they should be equally represented there, and consequently not at all, being separated by an ocean of a thousand leagues: that his majesty's royal predecessors, for this reason, were graciously pleased to form a subordinate legislative here, that their subjects might enjoy the unalienable right of a representation. Also, that, considering the utter impracticability of their ever being fully and equally represented in parliament, and the great expense that must unavoidably attend even a partial representation there, this house think, that a taxation of their constituents, even without their consent, grievous as it is, would be preferable to any representation that could be admitted for them there.

Upon these principles, and also considering that were the right in the parliament ever so clear, yet for obvious reasons it would be beyond the rule of equity, that their constituents should be taxed on the manufactures of Great Britain here, in addition to the duties they pay for them in England, and other advantages arising to Great Britain from the acts of trade; this house have preferred a humble, dutiful, and loyal petition to our most gracious sovereign, and made such representation to his majesty's ministers, as they apprehend would tend to obtain redress.

They have also submitted to consideration, whether any people can be said to enjoy any degree of freedom, if the crown, in addition to its undoubted authority of constituting a governor, should appoint him such a stipend as it shall judge proper without the consent of the people, and at their expense; and whether, while the judges of the land, and other civil officers, hold not their commissions during good behaviour, their having salaries appointed for them by the crown, independent of the people, hath not a tendency to subvert the principles of equity, and endanger the happiness and security of the subject.

In addition to these measures, the house have written a letter to their agent Mr. de Berdt, the sentiments of which he is directed to lay before the ministry; wherein they take notice of the hardship of the act for preventing mutiny and desertion, which requires the governor and council to provide enumerated articles for the king's marching troops and the people to pay the expense: and also the commission of the gentlemen appointed commissioners of the customs to reside in America, which authorises them to make as many appointments as they think fit, and to pay the appointees

what sums they please, for whose malconduct they are not accountable: from whence it may happen, that officers of the crown may be multiplied to such a degree, as to become dangerous to the liberties of the people, by virtue of a commission which doth not appear to this house to derive any such advantages to trade as many have been led to expect.

These are the sentiments and proceedings of the house, and as they have too much reason to believe that the enemies of the colonies have represented them to his majesty's ministers and the parliament as factious, disloyal, and having a disposition to make themselves independent of the mother country, they have taken occasion in the most humble terms, to assure his majesty and his ministers, that, with regard to the people of this province, and, as they doubt not, of all the colonies, the charge is unjust.

The house is fully satisfied, that your assembly is too generous and enlarged in sentiment to believe, that this letter proceeds from an ambition of taking the lead, or dictating to the other assemblies; they freely submit their opinion to the judgment of others; and shall take it kind in your house to point out to them anything further that may be thought necessary.

This house cannot conclude without expressing their firm confidence in the king, our common head and father, that the united and dutiful supplications of his distressed American subjects will meet with his royal and favourable acceptance.

NOTE—No. VI.—See [Page 410](#).

An account of the origin of these committees, and of their mode of proceeding, is thus given by Mr. Gordon, and is not unworthy of attention.

"Governor Hutchinson and his adherents having been used to represent the party in opposition, as only an uneasy factious few in Boston, while the body of the people were quite contented; Mr. Samuel Adams was thereby induced to visit Mr. James Warren, of Plymouth. After conversing upon the subject, the latter proposed to originate and establish committees of correspondence in the several towns of the colony, in order to learn the strength of the friends to the rights of the continent, and to unite and increase their force. Mr. Samuel Adams returned to Boston, pleased with the proposal, and communicated the same to his confidants. Some doubted

whether the measure would prosper, and dreaded a disappointment which might injure the cause of liberty. But it was concluded to proceed. The prime managers were about six in number, each of whom, when separate, headed a division; the several individuals of which, collected and led distinct subdivisions. In this manner the political engine has been constructed. The different parts are not equally good and operative. Like other bodies, its composition includes numbers who act mechanically, as they are pressed this way or that way by those who judge for them; and divers of the wicked, fitted for evil practices, when the adoption of them is thought necessary to particular purposes, and a part of whose creed it is, that in political matters the public good is above every other consideration, and that all rules of morality when in competition with it, may be safely dispensed with. When any important transaction is to be brought forward, it is thoroughly considered by the prime managers. If they approve, each communicates it to his own division; from thence, if adopted, it passes to the several subdivisions, which form a general meeting in order to canvass the business. The prime managers being known only by few to be the promoters of it, are desired to be present at the debate, that they may give their opinion when it closes. If they observe that the collected body is in general strongly against the measure they wish to have carried, they declare it to be improper: is it opposed by great numbers, but not warmly, they advise to a re-consideration at another meeting, and prepare for its being then adopted; if the opposition is not considerable, either in number or weight of persons, they give their reasons, and then recommend the adoption of the measure. The principal actors are determined on securing the liberties of their country, or perishing in the attempt.

"The news of his majesty's granting salaries to the justices of the superior court, afforded them a fair opportunity for executing the plan of establishing committees of correspondence through the colony. The most spirited pieces were published, and an alarm spread, that the granting such salaries tended rapidly to complete the system of their slavery.

"A town meeting was called, and a committee of correspondence appointed, to write circular letters to all the towns in the province, and to induce them to unite in measures. The committee made a report, containing several resolutions contradictory to the supremacy of the British legislature. After setting forth, that all men have a right to remain in a state of nature as long as they please, they proceed to a report upon the natural rights of the

colonists as men, christians, and subjects; and then form a list of infringements and violations of their rights. They enumerate and dwell upon the British parliament's having assumed the power of legislation for the colonies in all cases whatsoever—the appointment of a number of new officers to superintend the revenues—the granting of salaries out of the American revenue, to the governor, the judges of the superior court, the king's attorney and solicitor general. The report was accepted; copies printed; and six hundred circulated through the towns and districts of the province, with a pathetic letter addressed to the inhabitants, who were called upon not to doze any longer, or sit supinely in indifference, while the iron hand of oppression was daily tearing the choicest fruits from the fair tree of liberty. The circular letter requested of each town a free communication of sentiments on the subjects of the report, and was directed to the select men, who were desired to lay the same before a town meeting, which has been generally practised, and the proceedings of the town upon the business have been transmitted to the committee at Boston. This committee have their particular correspondents in the several towns, who, upon receiving any special information, are ready to spread it with dispatch among the inhabitants. It consists of twenty-one persons of heterogeneous qualities and professions, &c."

Gordon's Hist. Am. War, vol. I. p. 312.

NOTE—No. VII.—See [Page 425](#).

THE FOLLOWING IS A LIST OF THE MEMBERS COMPOSING
THE FIRST CONGRESS:

New Hampshire.

John Sullivan,
Nathaniel Fulsom.

Massachusetts Bay.

James Bowdoin,
Thomas Cushing,
Samuel Adams,

John Adams,
Robert Treat Paine.

Rhode Island and Providence Plantations.

Stephen Hopkins,
Samuel Ward.

Connecticut.

Eliphalet Dyer,
Roger Sherman,
Silas Deane.

*From the city and county of New York, and other counties
in province of New York.*

James Duane,
Henry Wisner,
John Jay,
Philip Livingston,
Isaac Low,
John Alsop.

From the county of Suffolk, in the province of New York.

William Floyd.

New Jersey.

James Kinsey,
William Livingston,
John Dehart,
Stephen Crane,
Richard Smith.

Pennsylvania.

Joseph Galloway,
Charles Humphreys,
Samuel Rhoads,
George Ross,
John Morton,
Thomas Mifflin,
Edward Biddle,
John Dickinson.

Newcastle, Kent, and Sussex, on Delaware.

Cesar Rodney,
Thomas M'Kean,
George Read.

Maryland.

Robert Goldsborough,
Thomas Johnson,
William Paca,
Samuel Chase,
Matthew Tilghman.

Virginia.

Peyton Randolph,
Richard Henry Lee,
George Washington,
Patrick Henry,
Richard Bland,
Benjamin Harrison,
Edmund Pendleton.

North Carolina.

William Hooper,

Joseph Hughes,
Richard Caswell.

South Carolina.

Henry Middleton,
John Rutledge,
Thomas Lynch,
Christopher Gadsden,
Edward Rutledge.

NOTE—No. VIII.—See [Page 425](#).

These resolutions manifested a degree of irritation which had not before been displayed. They are introduced in the following manner:

"Whereas the power but not the justice, the vengeance but not the wisdom of Great Britain, which of old persecuted, scourged, and exiled our fugitive parents from their native shores, now pursues us their guiltless children, with unrelenting severity; and whereas this, then savage and uncultivated desert, was purchased by the toil and treasure, or acquired by the blood and valour of those our venerable progenitors; to us they bequeathed the dear bought inheritance; to our care and protection they consigned it; and the most sacred obligations are upon us to transmit the glorious purchase, unfettered by power, unclogged with shackles, to our innocent and beloved offspring. On the fortitude, on the wisdom, and on the exertions of this important day, is suspended the fate of this new world, and of unborn millions. If a boundless extent of continent, swarming with millions, will tamely submit to live, move, and have their being at the arbitrary will of a licentious minister, they basely yield to voluntary slavery, and future generations shall load their memories with incessant execrations. On the other hand, if we arrest the hand which would ransack our pockets, if we disarm the parricide which points the dagger to our bosoms, if we nobly defeat that fatal edict which proclaims a power to frame laws for us in all cases whatsoever, thereby entailing the endless and numberless curses of slavery upon us, our heirs, and their heirs for ever; if we successfully resist that unparalleled usurpation of unconstitutional power, whereby our

capital is robbed of the means of life; whereby the streets of Boston are thronged with military executioners; whereby our coasts are lined, and harbours crowded with ships of war; whereby the charter of the colony, that sacred barrier against the encroachments of tyranny, is mutilated, and in effect annihilated; whereby a murderous law is framed to shelter villains from the hands of justice; whereby the unalienable and inestimable inheritance, which we derived from nature, the constitution of Britain, and the privileges warranted to us in the charter of the province, is totally wrecked, annulled, and vacated: Posterity will acknowledge that virtue which preserved them free and happy; and while we enjoy the rewards and blessings of the faithful, the torrent of panegyrists will roll our reputations to that latest period, when the streams of time shall be absorbed in the abyss of eternity.

"Therefore resolved," &c. &c. &c.

NOTE—No. IX.—See [Page 427](#).

"Whereas, since the close of the last war, the British parliament, claiming a power, of right, to bind the people of America by statutes in all cases whatsoever, hath in some acts expressly imposed taxes on them; and in others, under various pretences, but in fact for the purpose of raising a revenue, hath imposed rates and duties payable in these colonies, established a board of commissioners with unconstitutional powers, and extended the jurisdiction of courts of admiralty, not only for collecting the said duties, but for the trial of causes merely arising within the body of a county.

"And whereas, in consequence of other statutes, judges, who before held only estates at will in their offices, have been made dependent on the crown alone for their salaries, and standing armies kept in times of peace: And whereas it has lately been resolved in parliament, that by force of a statute, made in the thirty-fifth year of the reign of King Henry VIII. colonists may be transported to England and tried there upon accusations for treasons, and mis prisons and concealments of treasons committed in the colonies, and by a late statute, such trials have been directed in cases therein mentioned.

"And whereas, in the last session of parliament, three statutes were made; one entitled, 'An act to discontinue in such manner and for such time as are

therein mentioned, the landing and discharging, lading or shipping of goods, wares, and merchandise, at the town, and within the harbour of Boston, in the province of Massachusetts Bay in North America;' another entitled, 'An act for the better regulating the government of the province of Massachusetts Bay in New England;' and another act, entitled, 'An act for the impartial administration of justice, in the cases of persons questioned for any act done by them in the execution of the law, or for the suppression of riots and tumults, in the province of the Massachusetts Bay in New England;' and another statute was then made, 'for making more effectual provision for the government of the province of Quebec,' &c. All which statutes are impolitic, unjust, and cruel, as well as unconstitutional, and most dangerous and destructive of American rights.

"And whereas, assemblies have been frequently dissolved, contrary to the rights of the people, when they attempted to deliberate on grievances; and their dutiful, humble, loyal, and reasonable petitions to the crown for redress, have been repeatedly treated with contempt by his majesty's ministers of state; the good people of the several colonies of New Hampshire, Massachusetts Bay, Rhode Island and Providence Plantations, Connecticut, New York, New Jersey, Pennsylvania, New Castle, Kent and Sussex on Delaware, Maryland, Virginia, North Carolina, and South Carolina, justly alarmed at the arbitrary proceedings of parliament and administration, have severally elected, constituted and appointed deputies to meet and sit in general congress, in the city of Philadelphia, in order to obtain such establishment, as that their religion, laws, and liberties, may not be subverted: whereupon the deputies so appointed being now assembled, in a full and free representation of these colonies, taking into their most serious consideration, the best means of attaining the ends aforesaid, do in the first place, as Englishmen their ancestors in like cases have usually done, for asserting and vindicating their rights and liberties, declare, that the inhabitants of the English colonies in North America, by the immutable laws of nature, the principles of the English constitution, and the several charters or compacts, have the following rights.

"Resolved, unanimously, 1st, that they are entitled to life, liberty, and property; and they have never ceded to any sovereign power whatever, a right to dispose of either without their consent.

"Resolved, unanimously, 2d, that our ancestors, who first settled these colonies, were, at the time of their emigration from the mother country, entitled to all the rights, liberties, and immunities of free and natural born subjects, within the realm of England.

"Resolved, unanimously, 3d, that by such emigration they by no means forfeited, surrendered, or lost any of those rights, but that they were, and their descendants now are, entitled to the exercise and enjoyment of all such of them, as their local and other circumstances enabled them to exercise and enjoy.

"Resolved, 4th, that the foundation of English liberty and of all free government, is a right in the people to participate in their legislative council: and as the English colonists are not represented, and from their local and other circumstances cannot properly be represented in the British parliament, they are entitled to a free and exclusive power of legislation in their several provincial legislatures, where their right of representation can alone be preserved, in all cases of taxation and internal polity subject only to the negative of their sovereign, in such manner as has been heretofore used and accustomed: but from the necessity of the case, and a regard to the mutual interest of both countries, we cheerfully consent to the operation of such acts of the British parliament, as are, *bona fide*, restrained to the regulation of our external commerce, for the purposes of securing the commercial advantages of the whole empire to the mother country, and the commercial benefits of its respective members; excluding every idea of taxation internal or external, for raising a revenue on the subjects in America without their consent.

"Resolved, unanimously, 5th that the respective colonies are entitled to the common law of England, and more especially to the great and inestimable privilege of being tried by their peers of the vicinage, according to the course of that law.

"Resolved, 6th, that they are entitled to the benefit of such of the English statutes, as existed at the time of their colonisation; and which they have, by experience, respectively found to be applicable to their several local and other circumstances.

"Resolved, unanimously, 7th, that these, his majesty's colonies are likewise entitled to all the immunities and privileges granted and confirmed

to them by royal charters, or secured by their several codes of provincial laws.

"Resolved, unanimously, 8th, that they have a right peaceably to assemble, consider of their grievances, and petition the King; and that all prosecutions, prohibitory proclamations, and commitments for the same, are illegal.

"Resolved, unanimously, 9th, that the keeping a standing army in these colonies, in times of peace, without the consent of the legislature of that colony in which such army is kept, is against law.

"Resolved, unanimously, 10th, it is indispensably necessary to good government, and rendered essential by the English constitution, that the constituent branches of the legislature be independent of each other; that, therefore, the exercise of legislative power in several colonies, by a council appointed, during pleasure, by the crown, is unconstitutional, dangerous, and destructive to the freedom of American legislation.

"All and each of which the aforesaid deputies, in behalf of themselves and their constituents, do claim, demand, and insist on, as their indubitable rights and liberties; which cannot be legally taken from them, altered or abridged by any power whatever, without their own consent, by their representatives in their several provincial legislatures.

"In the course of our inquiry, we find many infringements and violations of the foregoing rights, which, from an ardent desire that harmony and mutual intercourse of affection and interest may be restored, we pass over for the present, and proceed to state such acts and measures as have been adopted since the last war, which demonstrate a system formed to enslave America.

"Resolved, unanimously, that the following acts of parliament are infringements and violations of the rights of the colonists; and that the repeal of them is essentially necessary, in order to restore harmony between Great Britain and the American colonies, viz.

"The several acts of 4 Geo. III. chap. 15, and 34.—5 Geo. III. chap. 25.—6 Geo. III. chap. 52.—7 Geo. III. chap. 41, and chap. 46.—8 Geo. III. chap. 22; which imposed duties for the purpose of raising a revenue in America; extend the power of the admiralty courts beyond their ancient limits; deprive the American subject of trial by jury; authorise the judge's certificate to indemnify the prosecutor from damages, that he might

otherwise be liable to; requiring oppressive security from a claimant of ships and goods seized, before he shall be allowed to defend his property, and are subversive of American rights.

"Also 12 Geo. III. chap. 24, intituled, 'an act for the better securing his majesty's dockyards, magazines, ships, ammunition, and stores,' which declares a new offence in America, and deprives the American subject of a constitutional trial by a jury of the vicinage, by authorising the trial of any person charged with the committing of any offence described in the said act, out of the realm, to be indicted and tried for the same in any shire or county within the realm.

"Also the three acts passed in the last session of parliament, for stopping the port and blocking up the harbour of Boston, for altering the charter and government of Massachusetts Bay, and that which is intituled, 'an act for the better administration of justice,' &c.

"Also, the act passed in the same session for establishing the Roman catholic religion in the province of Quebec, abolishing the equitable system of English laws, and erecting a tyranny there, to the great danger, (from so total a dissimilarity of religion, law, and government) of the neighbouring British colonies, by the assistance of whose blood and treasure the said country was conquered from France.

"Also, the act passed in the same session for the better providing suitable quarters for officers and soldiers in his majesty's service in North America.

"Also, that the keeping a standing army in several of these colonies, in time of peace, without the consent of the legislature of that colony in which such army is kept, is against law.

"To these grievous acts and measures, Americans cannot submit; but in hopes their fellow subjects in Great Britain will, on a revision of them, restore us to that state, in which both countries found happiness and prosperity, we have for the present only resolved to pursue the following peaceable measures: 1. to enter into a non-importation, non-consumption, and non-exportation agreement or association. 2. To prepare an address to the people of Great Britain, and a memorial to the inhabitants of British America: and, 3. To prepare a loyal address to his majesty, agreeable to resolutions already entered into."

END OF VOLUME I

FOOTNOTES

[1] The expressions of a resolution prepared by general Lee, and passed in the house of representatives of the United States, on their being informed of the death of general Washington.

[2] The general estimate in the United States is, that their population doubles in twenty-five years.

[3] Robertson. Chalmer.

[4] Robertson. Chalmer. Stith.

[5] Robertson. Chalmer. Stith.

[6] Robertson. Chalmer. Stith. Smith.

[7] Robertson. Chalmer. Stith. Smith.

[8] Robertson. Chalmer. Stith. Smith.

[9] Robertson. Chalmer. Stith.

[10] Robertson. Chalmer. Stith.

[11] Robertson.

[12] Robertson. Chalmer. Stith.

[13] Robertson. Chalmer. Stith.

[14] Stith. Smith.

[15] Stith.

[16] Stith.

[17] Stith.

[18] Ibid.

[19] This error might very possibly be produced by the Indians representing the great western lakes as seas.

[20] Dr. Robertson must allude to the country below the falls of the great rivers.

[21] Robertson. Chalmer.

[22] Charter.

[23] Stith.

[24] Robertson. Chalmer. Stith. Beverly.

[25] Robertson. Chalmer. Stith. Beverly.

[26] Robertson. Chalmer. Stith. Beverly.

[27] Robertson. Chalmer. Stith. Beverly.

[28] Robertson. Chalmer. Stith. Beverly.

[29] Robertson. Chalmer. Stith.

[30] Robertson.

[31] Robertson. Chalmer. Stith.

[32] Robertson. Chalmer. Stith.

[33] Robertson. Chalmer. Stith.

[34] Mr. Stith says the price for a wife was at first, one hundred, and afterwards, one hundred and fifty pounds of tobacco; and a debt so contracted was made of higher dignity than any other.

[35] Robertson. Chalmer. Stith.

[36] Robertson. Chalmer. Stith.

[37] *Ibid.*

[38] Robertson. Chalmer. Stith.

[39] Robertson. Chalmer. Stith.

[40] Robertson. Chalmer.

[41] Robertson. Chalmer.

[42] *Idem.*

[43] Robertson. Chalmer.

[44] Chalmer. Robertson.

[45] Chalmer.

[46] Chalmer.

[47] Robertson.

[48] Robertson. Chalmer. Hutchison.

[49] Robertson.

[50] Robertson. Chalmer. Hutchison.

[51] Robertson. Chalmer. Hutchison.

[52] Robertson. Chalmer. Hutchison.

[53] Robertson. Chalmer. Hutchison.

[54] Robertson.

[55] Robertson.

[56] Robertson. Chalmer. Hutchison.

[57] Robertson. Chalmer. Hutchison.

[58] Robertson. Chalmer. Hutchison.

[59] Chalmer. Hutchison.

[60] Hutchison.

[61] Chalmer. Hutchison.

[62] Chalmer. Hutchison.

[63] Hume.

[64] Chalmer. Hutchison.

[65] Chalmer.

[66] All the powers of government for nearly three years, seem to have been in the magistrates. Two were appointed in each town, who directed all the affairs of the plantation. The freemen appear to have had no voice in making the laws, or in any part of the government except in some instances of general and uncommon concern. In these instances committees were sent from the several towns to a general meeting. During this term, juries seem not to have been employed in any case.

[67] Chalmer. Hutchison. Trumbull.

[68] Chalmer. Hutchison.

[69] Chalmer. Hutchison.

[70] Chalmer. Hutchison.

[71] Hutchison.

[72] This was an union, says Mr. Trumbull, of the highest consequence to the New England colonies. It made them formidable to the Dutch and Indians, and respectable among their French neighbours. It was happily adapted to maintain harmony among themselves, and to secure the rights and peace of the country. It was one of the principal means of the preservation of the colonies, during the civil wars, and unsettled state of affairs in England. It was the great source of mutual defence in Philip's war; and of the most eminent service in civilising the Indians, and propagating the Gospel among them. The union subsisted more

than forty years, until the abrogation of the charters of the New England colonies by King James II.

[73] Chalmer. Hutchison. Trumbull.

[74] Chalmer.

[75] Ibid.

[76] In the subsequent year Parliament exempted New England from all taxes "until both houses should otherwise direct;" and, in 1646, all the colonies were exempted from all talliages except the excise, "provided their productions should be exported only in English bottoms."

[77] Hutchison.

[78] Chalmer. Hutchison.

[79] Hutchison.

[80] Chalmer. Hutchison.

[81] Chalmer. Hutchison.

[82] Chalmer. Hutchison.

[83] Chalmer. Hutchison.

[84] Chalmer. Hutchison.

[85] Chalmer. Hutchison.

[86] Virginia Laws. Chalmer.

[87] Virginia Laws. Chalmer.

[88] Chalmer.

[89] Chalmer. Trumbull.

[90] Hutchison. Chalmer.

[91] Idem.

[92] Hutchison. Chalmer.

[93] Hutchison. Chalmer.

[94] Chalmer. Hutchison.

[95] Chalmer. Smith.

[96] Chalmer. Smith.

[97] Hutchison.

[98] Chalmer. Hutchison.

[99] Chalmer. History of South Carolina and Georgia.

[100] Chalmer. Beverly.

[101] Idem.

[102] Chalmer. Beverly.

[103] Chalmer.

[104] From a paper in possession of the British administration, it appears that in 1673, New England was supposed to contain one hundred and twenty thousand souls, of whom sixteen thousand were able to bear arms. Three-fourths of the wealth and population of the country, were in Massachusetts and its dependencies. The town of Boston alone contained fifteen hundred families.

[105] Chalmer. Hutchison.

[106] Chalmer. Hutchison.

[107] Chalmer. Hutchison.

[108] Trumbull. Hutchison. Chalmer.

[109] Chalmer. Hutchison.

[110] Trumbull. Hutchison.

[111] Smith.

[112] Chalmer. Smith.

[113] Chalmer. Smith.

[114] History of Pennsylvania. Chalmer.

[115] Hutchison.

[116] Smith.

[117] Smith.

[118] See [note No. I](#), at the end of the volume.

[119] Hutchison. Belknap.

[120] Belknap.

[121] The quotas assigned by the crown are as follows:

To Massachusetts Bay	350
Rhode Island and Providence plantations	48
Connecticut	120
New York	200
Pennsylvania	80
Maryland	160
Virginia	240

Total, 1,198

[122] Belknap.

[123] Belknap. Hutchison.

[124] So early as the year 1692, the difference of opinion between the mother country and the colonies on the great point, which afterwards separated them, made its appearance. The legislature of Massachusetts, employed in establishing a code of laws under their new charter, passed an act containing the general principles respecting the liberty of the subject, that are asserted in magna charta, in which was the memorable clause, "no aid, tax, talliage, assessment, custom, benevolence, or imposition whatsoever, shall be laid, assessed, imposed, or levied, on any of his majesty's subjects or their estates, on any pretence whatsoever, but by the act and consent of the governor, council, and representatives of the people, assembled in general court."

It is scarcely necessary to add that the royal assent to this act was refused.

[125] History of South Carolina.

[126] Chalmer.

[127] Hutchison.

[128] Hutchison. Belknap.

[129] Hutchison.

[130] Hutchison.

[131] Hutchison.

[132] History of South Carolina.

[133] Idem.

[134] In the same year Charleston was reduced to ashes. A large portion of its inhabitants passed, in one day, from prosperity to indigence. Under the pressure of this misfortune, the legislature applied to parliament for aid; and that body, with a liberality reflecting honour on its members, voted twenty thousand pounds, to be distributed among the sufferers.

[135] About five and a half millions of dollars.

[136] Belknap.

[137] Belknap.

[138] It is said the secret was kept until a member who performed family devotion at his lodgings, betrayed it by praying for the divine blessing on the attempt.

[139] Hutchison.

[140] The day before the armament sailed from Massachusetts, an express boat, which had been dispatched to admiral Warren to solicit assistance, returned with the unwelcome intelligence that he declined furnishing the aid required. This information could not arrest the expedition. Fortunately for its success, the orders from England soon afterwards reached the admiral, who immediately detached a part of his fleet; which he soon followed himself in the Superb, of sixty guns.

[141] Belknap. Hutchison.

[142] Hutchison. Belknap.

[143] Hutchison.

[144] Abbe Raynal.

[145] The following estimate is taken from "The History of the British empire in North America," and is there said to be an authentic account from the militia rolls, poll taxes, bills of mortality, returns from governors, and other authorities.

The colonies of	Inhabitants.
Halifax and Lunenburg in Nova Scotia	5,000
New Hampshire	30,000
Massachusetts Bay	220,000
Rhode Island and Providence	35,000
Connecticut	100,000
New York	100,000
The Jerseys	60,000
Pennsylvania (then including Delaware)	250,000
Maryland	85,000
Virginia	85,000
North Carolina	45,000
South Carolina	30,000
Georgia	6,000

	Total 1,051,000

The white inhabitants of the French colonies were thus estimated:

The colonies of	Inhabitants.
Canada	45,000

Louisiana	7,000

Total	52,000

[146] Minot Gazette.

[147] See [note No. II](#), at the end of the volume.

[148] Minot.

[149] Minot.

[150] Minot.

[151] Minot. Belknap. Entic.

[152] Minot. Belknap. Entic.

[153] He was also recalled from his government.

[154] The northern colonies had been enabled to attend to these representations, and, in some degree to comply with the requisitions made on them, by having received from the British government, in the course of the summer, a considerable sum of money as a reimbursement for the extraordinary expenses of the preceding year. One hundred and fifteen thousand pounds sterling had been apportioned among them, and this sum gave new vigour and energy to their councils.

[155] Minot. Belknap. Entic.

[156] Fussel.

[157] Minot.

[158] Minot. Belknap.

[159] Minot. Belknap. Belsham. Russel.

[160] Letter of general Abercrombie.

[161] Minot. Belknap.

[162] Letter of colonel Bradstreet.

[163] MSS.

[164] Minot. Belknap. Belsham. Russel. Entic.

[165] Minot. Belknap. Belsham. Russel. New York Gazette.

[166] Belsham.

[167] These accounts must be exaggerated. According to the letter of general Townshend, the force engaged on the Plains of Abraham amounted to three

thousand five hundred men; and not more than fifteen hundred are stated to have been detached under Bougainville.

[168] Belsham.

[169] Belsham. Russel.

[170] Belsham.

[171] Belsham.

[172] Belsham. Russel.

[173] Townshend's letter.

[174] Townshend's letter. Belsham. Russel. Gazette.

[175] Russel.

[176] Minot. Belknap. Belsham. Russel.

[177] History of South Carolina and Georgia.

[178] After the expulsion of the French from Canada, a considerable degree of ill humour was manifested in Massachusetts with respect to the manner in which the laws of trade were executed. A question was agitated in court, in which the colony took a very deep interest. A custom house officer applied for what was termed "a writ of assistance," which was an authority to search any house for dutiable articles suspected to be concealed in it. The right to grant special warrants was not contested; but this grant of a general warrant was deemed contrary to the principles of liberty, and an engine of oppression equally useless and vexatious, which would enable every petty officer of the customs to gratify his resentments by harassing the most respectable men in the province. The ill temper excited on this occasion was shown by a reduction of the salaries of the judges; but no diminution of attachment to the mother country appears to have been produced by it.

[179] Belsham.

[180] Belsham. Minot.

[181] Minot.

[182] 100,000*l.* sterling.

[183] Mr. Pitt was not in the house; and Mr. Ingersoll, in his letter, states that Alderman Beckford joined General Conway. Mr. Belsham, therefore, who makes this statement, was probably mistaken.

[184] See [note No. III](#), at the end of the volume.

[185] Prior documents. Virginia Gazette.

[186] Minot.

[187] See [note No. IV](#), at the end of the volume.

[188] Minot. Prior documents.

[189] Minot.

[190] Minot. Prior documents. Belsham.

[191] Minot.

[192] Belsham.

[193] Prior documents.

[194] See [note No. V](#), at the end of the volume.

[195] Minot.

[196] Prior documents.

[197] In this letter the house of Burgesses express their opinion of the mutiny act in the following terms: "The act suspending the legislative power of New York, they consider as still more alarming to the colonies, though it has that single province in view. If parliament can compel them to furnish a single article to the troops sent over, they may, by the same rule, oblige them to furnish clothes, arms, and every other necessary, even the pay of the officers and soldiers; a doctrine replete with every mischief, and utterly subversive of all that's dear and valuable; for what advantage can the people of the colonies derive from choosing their own representatives, if those representatives, when chosen, be not permitted to exercise their own judgments, be under a necessity (on pain of being deprived of their legislative authority) of enforcing the mandates of a British parliament."

[198] Prior documents.

[199] Prior documents.

[200] Minot.

[201] Minot. Prior documents.

[202] Minot.

[203] Minot.

[204] Minot.

[205] Minot.

[206] Gazette.

[207] Minot.

[208] Belsham. Prior documents.

[209] Gazette. Prior documents.

[210] Gazette. Prior documents.

[211] Minot.

[212] Gazette. Prior documents.

[213] Prior documents. Minot.

[214] Minot.

[215] Prior documents.

[216] Minot.

[217] Gazette.

[218] Minot. Prior documents. Gazette.

[219] Almost at the same time, and without concert, the same measure was adopted in Virginia.

[220] See [note No. VI](#), at the end of the volume.

[221] Minot.

[222] Minot. Belsham.

[223] The language said by Mr. Gordon to have been used at this meeting proves that many of the people of Boston were already ripe for the revolution. To the more cautious among "*the sons of liberty*" who had expressed some apprehensions lest they should push the matter too far, and involve the colony in a quarrel with Great Britain, others answered "It must come to a quarrel between Great Britain and the colony sooner or later; and if so what can be a better time than the present? Hundreds of years may pass away before parliament will make such a number of acts in violation as it has done of late years, and by which it has excited so formidable an opposition to the measures of administration. Besides, the longer the contest is delayed, the more administration will be strengthened. Do not you observe how the government at home are increasing their party here by sending over young fellows to enjoy appointments, who marry into our best families, and so weaken the opposition? By such means, and by multiplying posts and places, and giving them to their own friends, or applying them to the corruption of their antagonists, they will increase their own force faster in proportion, than the force of the country party will increase by population. If then we must quarrel ere we can have our rights secured, now is the most eligible period. Our credit also is at stake; we must venture, and unless we do, we shall be discarded by the sons of liberty in the other colonies, whose assistance we may expect upon emergencies, in case they find us steady, resolute, and faithful."

[224] Mr. Quincy.

[225] Minot.

[226] Minot.

[227] Belsham.

[228] Belsham.

[229] Idem.

[230] Belsham.

[231] Idem.

[232] Minot.

[233] Belsham. Minot.

[234] Those of North Carolina arrived on the fourteenth.

[235] See [note No. VII](#), at the end of the volume.

[236] See [note No. VIII](#), at the end of the volume.

[237] See [note No. IX](#), at the end of the volume.

[238] The committee which prepared this eloquent and manly address, were Mr. Lee, Mr. Livingston, and Mr. Jay. The composition has been generally attributed to Mr. Jay.

[239] The committee which brought in this admirably well drawn, and truly conciliatory address, were Mr. Lee, Mr. John Adams, Mr. Johnson, Mr. Henry, Mr. Rutledge, and Mr. Dickinson. The original composition has been generally attributed to Mr. Dickinson.

[240] Mr. Lee, Mr. Livingston, and Mr. Jay, were also the committee who brought in this address.

[241] These letters, as well as that to the inhabitants of the province of Quebec, were prepared by Mr. Cushing, Mr. Lee, and Mr. Dickinson.

[242] Minot.

[243] Belsham.

[244] Belsham.

[245] Prior documents. Minot.

[246] The independent companies of the upper part of the northern neck, also assembled to the number of about six hundred men, and proceeded on horseback as far as Fredericksburg, when a council was held in which Richard Henry Lee, then on his way to congress, presided, which advised their return to their respective homes.

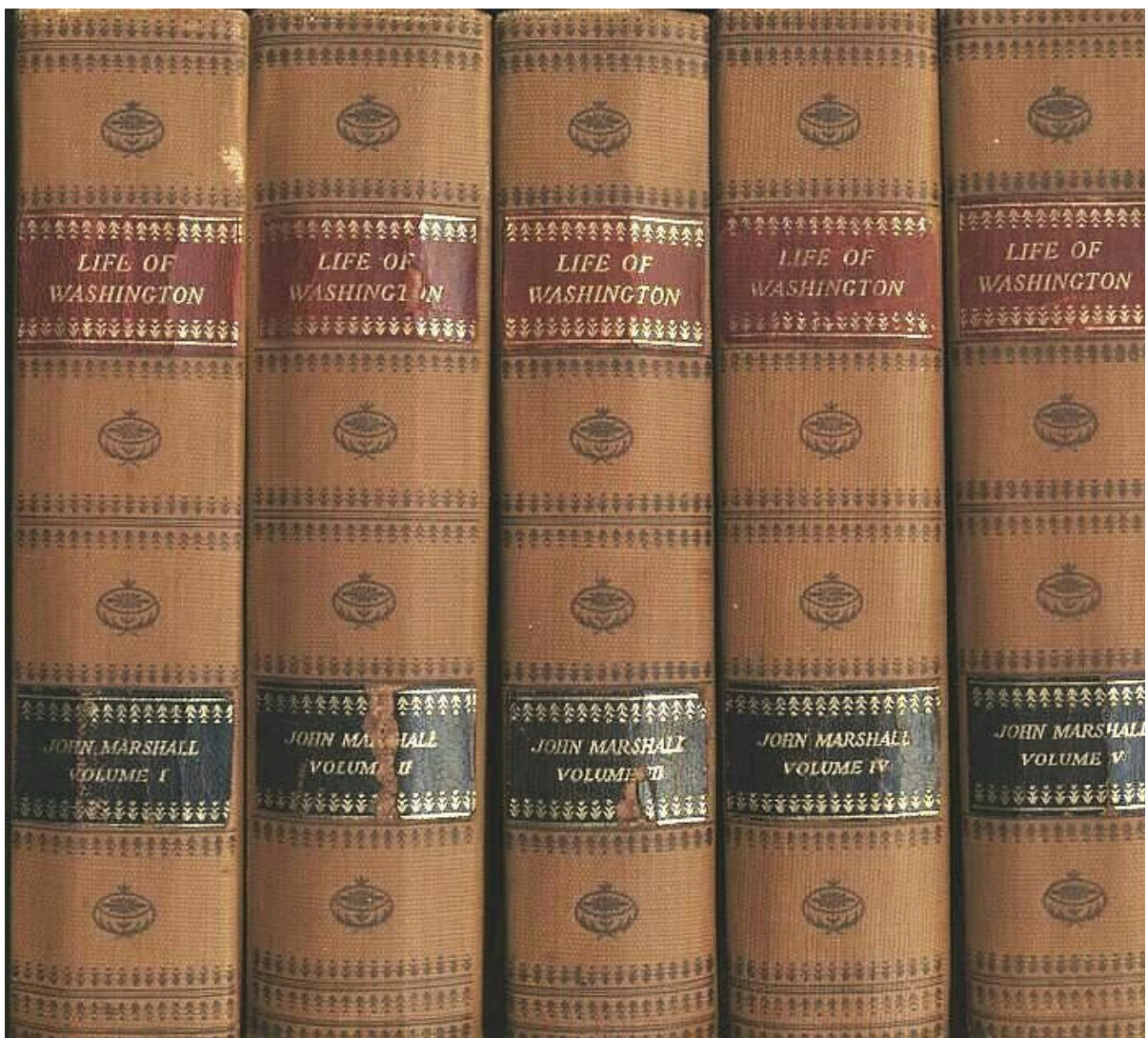
[247] Gordon.

[248] Journals of congress.

[249] Artemus Ward of Massachusetts, then commanding the troops before Boston; Colonel Charles Lee, lately an officer in the British service; and Israel Putnam of Connecticut, were appointed major generals; Horatio Gates, who had held the rank of major in the British service, was appointed adjutant general.

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Clementina K. Shreiber

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THE LIFE
OF

GEORGE WASHINGTON

CHAPTER I.

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1732

Birth of Mr. Washington.

George Washington, the third son of Augustine Washington, was born on the 22d of February, 1732, near the banks of the Potowmac, in the county of Westmoreland, in Virginia. His father first married Miss Butler, who died in 1728; leaving two sons, Lawrence and Augustine. In 1730, he intermarried with Miss Mary Ball, by whom he had four sons, George, John, Samuel and Charles; and one daughter, Betty, who intermarried with Colonel Fielding Lewis, of Fredericksburg.

His great grandfather, John Washington, a gentleman of a respectable family, had emigrated from the north of England about the year 1657, and settled on the place where Mr. Washington was born.

At the age of ten years he lost his father. Deprived of one parent, he became an object of more assiduous attention to the other; who continued to impress those principles of religion and virtue on his tender mind, which constituted the solid basis of a character that was maintained through all the trying vicissitudes of an eventful life. But his education was limited to those subjects, in which alone the sons of gentlemen, of moderate fortune, were, at that time, generally instructed. It was confined to acquisitions strictly useful, not even extending to foreign languages.

In 1743, his eldest brother intermarried with the daughter of the Honourable George William Fairfax, then a member of the council; and this connexion

introduced Mr. Washington to Lord Fairfax, the proprietor of the Northern Neck of Virginia, who offered him, when in his eighteenth year, an appointment as surveyor, in the western part of that territory. His patrimonial estate being inconsiderable, this appointment was readily accepted; and in the performance of its duties, he acquired that information respecting vacant lands, and formed those opinions concerning their future value, which afterwards contributed greatly to the increase of his private fortune.

1750

Those powerful attractions which the profession of arms presents to young and ardent minds, possessed their full influence over Mr. Washington. Stimulated by the enthusiasm of military genius, to take part in the war in which Great Britain was then engaged, he had pressed so earnestly to enter into the navy, that, at the age of fifteen, a midshipman's warrant was obtained for him. The interference of a timid and affectionate mother deferred the commencement, and changed the direction of his military career. Four years afterwards, at a time when the militia were to be trained for actual service, he was appointed one of the Adjutants General of Virginia, with the rank of Major. The duties annexed to this office soon yielded to others of a more interesting character.

France was beginning to develop the vast plan of connecting her extensive dominions in America, by uniting Canada with Louisiana. The troops of that nation had taken possession of a tract of country claimed by Virginia, and had commenced a line of posts, to be extended from the Lakes to the Ohio. The attention of Mr. Dinwiddie, Lieutenant Governor of that Province, was attracted to these supposed encroachments; and he deemed it his duty to demand, in the name of the King his master, that they should be suspended.

1753

This mission was toilsome and hazardous. The Envoy would be under the necessity of passing through an extensive and almost unexplored wilderness, intersected with rugged mountains and considerable rivers, and inhabited by fierce savages, who were either hostile to the English, or of doubtful attachment. While the dangers and fatigues of this service deterred others from undertaking it, they seem to have possessed attractions for Mr. Washington, and he engaged in it with alacrity.

October 31.

His mission to the French on the Ohio.

On receiving his commission, he left Williamsburg and arrived, on the 14th of November, at Wills' creek, then the extreme frontier settlement of the English, where guides were engaged to conduct him over the Alleghany mountains. After surmounting the impediments occasioned by the snow and high waters, he reached the mouth of Turtle creek, where he was informed that the French General was dead, and that the greater part of the army had retired into winter quarters. Pursuing his route, he examined the country through which he passed with a military eye, and selected the confluence of the Monongahela and Alleghany rivers, the place where fort Du Quesne was afterwards erected by the French, as an advantageous position, which it would be adviseable to seize and to fortify immediately.

1754

After employing a few days among the Indians in that neighbourhood, and procuring some of their chiefs to accompany him, whose fidelity he took the most judicious means to secure, he ascended the Alleghany river. Passing one fort at the mouth of French creek, he proceeded up the stream to a second, where he was received by Monsieur Le Gardeur de St. Pierre, the commanding officer on the Ohio, to whom he delivered the letter of Mr. Dinwiddie, and from whom he received an answer with which he returned to Williamsburg. January 16. The exertions made by Mr. Washington on this occasion, the perseverance with which he surmounted the difficulties of the journey, and the judgment displayed in his conduct towards the Indians, raised him in the public opinion, as well as in that of the Lieutenant Governor. His journal,[\[1\]](#) drawn up for the inspection of Mr. Dinwiddie, was published, and impressed his countrymen with very favourable sentiments of his understanding and fortitude.

Appointed lieutenant colonel of a regiment of regular troops.

As the answer from the commandant of the French forces on the Ohio indicated no disposition to withdraw from that country, it was deemed necessary to make some preparations to maintain the right asserted over it by the British crown; and the assembly of Virginia authorized the executive to raise a regiment for that purpose, to consist of three hundred men. The command of this regiment was given to Mr. Fry,[\[2\]](#) and Major Washington was appointed Lieutenant Colonel. Anxious to be engaged in active service, he obtained permission, about the beginning of April, to advance with two companies to the Great Meadows in the Alleghany mountains. By this movement he hoped to cover that frontier, to make himself more perfectly acquainted with the country, to gain some information respecting the situation

and designs of the French, and to preserve the friendship of the savages. Soon after his arrival at that place, he was visited by some friendly Indians, who informed him that the French, having dispersed a party of workmen employed by the Ohio company to erect a fort on the south-eastern branch of the Ohio, were themselves engaged in completing a fortification at the confluence of the Alleghany and Monongahela rivers: a detachment from which place was then on its march towards his camp. Open hostilities had not yet commenced; but the country was considered as invaded: and several circumstances were related, confirming the opinion that this party was approaching with hostile views. Among others, it had withdrawn itself some distance from the path, and had encamped for the night in a bottom, as if to ensure concealment. Entertaining no doubt of the unfriendly designs with which these troops were advancing, Lieutenant Colonel Washington resolved to anticipate them. Surprises Monsieur Jumonville. Availing himself of the offer made by the Indians to serve him as guides, he proceeded through a dark and rainy night to the French encampment, which he completely surrounded. At day-break, his troops fired and rushed upon the party, which immediately surrendered. One man only escaped capture, and M. Jumonville alone, the commanding officer, was killed.

While the regiment was on its march to join the detachment advanced in front, the command devolved on Lieutenant Colonel Washington by the death of Colonel Fry. Soon after its arrival, it was reinforced by two independent companies of regulars. After erecting a small stockade at the Great Meadows, Colonel Washington commenced his march towards fort Du Quesne, with the intention of dislodging the French from that place. He had proceeded about thirteen miles, when he was met by some friendly Indians, who informed him that the French and their savage allies, "as numerous as the pigeons in the woods," were advancing rapidly to meet him. Among those who brought this information was a trusty chief, only two days from the fort on the Ohio, who had observed the arrival of a considerable reinforcement at that place, and had heard their intention of marching immediately to attack the English, with a corps composed of eight hundred French and four hundred Indians. This intelligence was corroborated by information previously received from deserters, who had reported that a reinforcement was expected.

The troops commanded by Colonel Washington were almost destitute of provisions; and the ground he occupied was not adapted to military purposes. A road at some distance, leading through other defiles in the mountains, would enable the French to pass into his rear, intercept his supplies, and starve him into a surrender, or fight him with a superiority of three to one.

June 23.

In this hazardous situation, a council of war unanimously advised a retreat to the fort at the Great Meadows, now termed fort Necessity; where the two roads united, and where the face of the country was such as not to permit an enemy to pass unperceived. At that place, it was intended to remain, until reinforcements of men, and supplies of provisions, should arrive.

July 2.

Capitulation of fort Necessity.

In pursuance of this advice, Colonel Washington returned to fort Necessity, and began a ditch around the stockade. Before it was completed, the French, amounting to about fifteen hundred men, commanded by Monsieur de Villier, appeared before the fort, Third.and immediately commenced a furious attack upon it. They were received with great intrepidity by the Americans, who fought partly within the stockade, and partly in the surrounding ditch, which was nearly filled with mud and water. Colonel Washington continued the whole day on the outside of the fort, encouraging the soldiers by his countenance and example. The assailants fought under cover of the trees and high grass, with which the country abounds. The engagement was continued with great resolution from ten in the morning until dark; when Monsieur de Villier demanded a parley, and offered terms of capitulation. Fourth.The proposals first made were rejected; but, in the course of the night, articles were signed, by which the fort was surrendered, on condition that its garrison should be allowed the honours of war—should be permitted to retain their arms and baggage, and be suffered to march without molestation into the inhabited parts of Virginia. The capitulation being in French—a language not understood by any person in the garrison, and being drawn up hastily in the night, contains an expression which was inaccurately translated at the time, and of which advantage has been since taken, by the enemies of Mr. Washington, to imply an admission on his part, that Monsieur Jumonville was assassinated. An account of the transaction was published by Monsieur de Villier, which drew from Colonel Washington a letter to a friend, completely disproving the calumny. Though entirely discredited at the time, it was revived at a subsequent period, when circumstances, well understood at the date of the transaction, were supposed to be forgotten.[3]

The loss of the Americans in this affair is not ascertained. From a return made on the 9th of July, at Wills' Creek, it appears that the killed and wounded, of the Virginia regiment, amounted to fifty-eight; but the loss sustained by the

two independent companies is not stated. That of the assailants was supposed to be more considerable.

Great credit was given to Colonel Washington by his countrymen, for the courage displayed on this occasion. The legislature evinced its satisfaction with the conduct of the whole party, by passing a vote of thanks^[4] to him, and the officers under his command; and by giving three hundred pistoles, to be distributed among the soldiers engaged in the action.

The regiment returned to Winchester, to be recruited; soon after which it was joined by a few companies from North Carolina and Maryland. On the arrival of this reinforcement, the Lieutenant Governor, with the advice of council, regardless of the condition or number of the forces, ordered them immediately to march over the Alleghany mountains, and to expel the French from fort Du Quesne, or to build one in its vicinity.

August.

The little army in Virginia, which was placed under the command of Colonel Innes, from North Carolina, did not, as now reinforced, exceed half the number of the enemy, and was neither provided with the means of moving, nor with supplies for a winter campaign. With as little consideration, directions had been given for the immediate completion of the regiment, without furnishing a single shilling for the recruiting service. Although a long peace may account for many errors at the commencement of war, some surprise will be felt at such ill-considered and ill-judged measures. September. Colonel Washington remonstrated strongly against these orders, but prepared to execute them. The assembly, however, having risen without making any provision for the farther prosecution of the war, this wild expedition was laid aside, and the Virginia regiment was reduced to independent companies.

In the course of the winter, orders were received "for settling the rank of the officers of his majesty's forces when serving with the provincials in North America." These orders directed "that all officers commissioned by the King, or by his General in North America, should take rank of all officers commissioned by the Governors of the respective provinces; and farther, that the general and field officers of the provincial troops should have no rank when serving with the general and field officers commissioned by the crown; but that all captains, and other inferior officers of the royal troops, should take rank over provincial officers of the same grade, having senior commissions."

Strong as was his attachment to a military life, Colonel Washington possessed in too eminent a degree the proud and punctilious feelings of a

soldier, to submit to a degradation so humiliating as was produced by his loss of rank. Professing his unabated inclination to continue in the service, if permitted to do so without a sacrifice too great to be made, he retired indignantly from the station assigned him, and answered the various letters which he received, pressing him still to hold his commission, with assurances that he would serve with pleasure, when he should be enabled to do so without dishonour.

His eldest brother had lately died, and left him a considerable estate on the Potowmac. This gentleman had served in the expedition against Carthagena; and, in compliment to the admiral who commanded the fleet engaged in that enterprise, had named his seat *Mount Vernon*! To this delightful spot Colonel Washington withdrew, resolving to devote his future attention to the avocations of private life. This resolution was not long maintained.

1755

March.

General Braddock, being informed of his merit, his knowledge of the country which was to be the theatre of action, and his motives for retiring from the service, gratified his desire to make one campaign under a person supposed to possess some knowledge of war, by inviting him to enter his family as a volunteer aid-de-camp.

Is appointed aid-de-camp to General Braddock.

April.

Having determined to accept this invitation, he joined the commander-in-chief, immediately after his departure from Alexandria, and proceeded with him to Wills' Creek. The army, consisting of two European regiments and a few corps of provincials, was detained at that place until the 12th of June, by the difficulty of procuring wagons, horses, and provisions. Colonel Washington, impatient under these delays, suggested the propriety of using pack-horses instead of wagons, for conveying the baggage. June. The commander-in-chief, although solicitous to hasten the expedition, was so attached to the usages of regular war, that this salutary advice was at first rejected; but, soon after the commencement of the march, its propriety became too obvious to be longer neglected.

Fifteenth.

On the third day after the army had moved from its ground, Colonel Washington was seized with a violent fever, which disabled him from riding on horseback, and was conveyed in a covered wagon. General Braddock, who

found the difficulties of the march greater than had been expected, continuing to consult him privately, he strenuously urged that officer to leave his heavy artillery and baggage with the rear division of the army; and with a chosen body of troops and some pieces of light artillery, to press forward with the utmost expedition to fort Du Quesne. In support of this advice, he stated that the French were then weak on the Ohio, but hourly expected reinforcements. During the excessive drought which prevailed at that time, these could not arrive; because the river Le Boeuf, on which their supplies must be brought to Venango, did not then afford a sufficient quantity of water for the purpose. A rapid movement therefore might enable him to carry the fort, before the arrival of the expected aid; but if this measure should not be adopted, such were the delays attendant on the march of the whole army, that rains sufficient to raise the waters might reasonably be expected, and the whole force of the French would probably be collected for their reception; a circumstance which would render the success of the expedition doubtful.

This advice according well with the temper of the commander-in-chief, it was determined in a council of war, held at the Little Meadows, that twelve hundred select men, to be commanded by General Braddock in person, should advance with the utmost expedition against fort Du Quesne. Colonel Dunbar was to remain with the residue of the two regiments, and all the heavy baggage.

June 19.

Although this select corps commenced its march with only thirty carriages, including ammunition wagons, the hopes which had been entertained of the celerity of its movements were not fulfilled. "I found," said Colonel Washington, in a letter to his brother, written during the march, "that instead of pushing on with vigour, without regarding a little rough road, they were halting to level every mole-hill, and to erect bridges over every brook." By these means they employed four days in reaching the great crossings of the Yohiogany, only nineteen miles from the Little Meadows.

Colonel Washington was obliged to stop at that place;—the physician having declared that his life would be endangered by continuing with the army. He obeyed, with reluctance, the positive orders of the general to remain at this camp, under the protection of a small guard, until the arrival of Colonel Dunbar; having first received a promise that means should be used to bring him up with the army before it reached fort Du Quesne.

July 8.

The day before the action of the Monongahela he rejoined the general in a covered wagon; and, though weak, entered on the duties of his station.

In a short time after the action had commenced, Colonel Washington was the only aid remaining alive, and unwounded. The whole duty of carrying the orders of the commander-in-chief, in an engagement with marksmen who selected officers, and especially those on horseback, for their objects, devolved on him alone. Under these difficult circumstances, he manifested that coolness, that self-possession, that fearlessness of danger which ever distinguished him, and which are so necessary to the character of a consummate soldier. Two horses were killed under him, and four balls passed through his coat; but, to the astonishment of all, he escaped unhurt,—while every other officer on horseback was either killed or wounded. "I expected every moment," says an eye-witness,^[5] "to see him fall. His duty and situation exposed him to every danger. Nothing but the superintending care of Providence could have saved him from the fate of all around him."

Defeat and death of that general.

August.

At length, after an action of nearly three hours, General Braddock, under whom three horses had been killed, received a mortal wound; and his troops fled in great disorder. Every effort to rally them was ineffectual until they had crossed the Monongahela, when, being no longer pursued, they were again formed. The general was brought off in a small tumbril by Colonel Washington, Captain Stewart of the guards, and his servant. The defeated detachment retreated with the utmost precipitation to the rear division of the army; soon after which, Braddock expired. In the first moments of alarm, all the stores were destroyed, except those necessary for immediate use; and not long afterwards, Colonel Dunbar marched the remaining European troops to Philadelphia, in order to place them in, what he termed, winter quarters.

Colonel Washington was greatly disappointed and disgusted by the conduct of the regular troops in this action. In his letter to Lieutenant Governor Dinwiddie, giving an account of it, he said, "They were struck with such an inconceivable panic, that nothing but confusion and disobedience of orders prevailed among them. The officers in general behaved with incomparable bravery, for which they greatly suffered; there being upwards of sixty killed and wounded—a large proportion out of what we had.

"The Virginia companies behaved like men, and died like soldiers; for, I believe, out of three companies on the ground that day, scarce thirty men were left alive. Captain Peronny, and all his officers down to a corporal, were killed.

Captain Poulson had almost as hard a fate, for only one of his escaped. In short, the dastardly behaviour of the regular troops (so called,) exposed those who were inclined to do their duty, to almost certain death; and, at length, in spite of every effort to the contrary, they broke, and ran as sheep before hounds; leaving the artillery, ammunition, provisions, baggage, and in short every thing, a prey to the enemy; and when we endeavoured to rally them, in hopes of regaining the ground, and what we had left upon it, it was with as little success as if we had attempted to have stopped the wild bears of the mountains, or the rivulets with our feet: for they would break by, in spite of every effort to prevent it."[6]



Wakefield—the Birthplace of George Washington

This is from an etching made in idealization of the original house, situated on the banks of the Potomac, 38 miles from Fredericksburg, in Westmoreland County, Virginia, where our First President was born, February 22, 1732. The original house, which was built by Washington's father, Augustine, was destroyed by fire more than 150 years ago, before the Declaration of Independence was signed.

August.

Is appointed to the command of a regiment.

Colonel Washington had long been the favourite soldier of Virginia; and his reputation grew with every occasion for exertion. His conduct in this battle had been universally extolled;[\[7\]](#) and the common opinion of his countrymen was, that, had his advice been pursued, the disaster had been avoided. The assembly was in session, when intelligence was received of this defeat, and of the abandonment of the colony by Colonel Dunbar. The legislature, perceiving the necessity of levying troops for the defence of the province, determined to raise a regiment, to consist of sixteen companies, the command of which was offered to Colonel Washington; who was also designated, in his commission, as the Commander-in-chief of all the forces raised and to be raised in the colony of Virginia. The uncommon privilege of naming his Field Officers was added to this honourable manifestation of the public confidence.

Retaining still his prepossessions in favour of a military life, he cheerfully embraced this opportunity of re-entering the army. After making the necessary arrangements for the recruiting service, and visiting the posts on the frontiers, which he placed in the best state of defence of which they were susceptible; he set out for the seat of government, where objects of the first importance required his attention; but was overtaken below Fredericksburg by an express, carrying the intelligence, that a large number of French and Indians, divided into several parties, had broken up the frontier settlements; were murdering and capturing men, women, and children; burning their houses, and destroying their crops. The troops stationed among them for their protection, were unequal to that duty; and, instead of being able to afford aid to the inhabitants, were themselves blocked up in their forts.

Extreme distress of the frontiers and exertions of Colonel Washington to augment the regular forces of the colony.

Colonel Washington hastened back to Winchester, where the utmost confusion and alarm prevailed. His efforts to raise the militia were unavailing. Attentive only to individual security, and regardless of the common danger, they could not be drawn from their families. Instead of assembling in arms, and obtaining safety by meeting their invaders, the inhabitants fled into the lower country, and increased the general terror. In this state of things, he endeavoured to collect and arm the men who had abandoned their houses, and to remove their wives and children to a distance from this scene of desolation and carnage. Pressing orders were at the same time despatched to the newly appointed officers, to forward their recruits; and to the county lieutenants, east of the Blue Ridge, to hasten their militia to Winchester: but before these orders

could be executed, the party which had done so much mischief, and excited such alarm, had recrossed the Alleghany mountains.

1756

April.

Early in the following spring, the enemy made another irruption into the inhabited country, and did great mischief. The number of troops on the regular establishment was totally insufficient for the protection of the frontier, and effective service from the militia was found to be unattainable. The Indians, who were divided into small parties, concealed themselves with so much dexterity, as seldom to be perceived until the blow was struck. Their murders were frequently committed in the very neighbourhood of the forts; and the detachments from the garrisons, employed in scouring the country, were generally eluded, or attacked to advantage. In one of these skirmishes, the Americans were routed, and Captain Mercer was killed. The people either abandoned the country, or attempted to secure themselves in small stockade forts, where they were in great distress for provisions, arms, and ammunition; were often surrounded, and sometimes cut off. Colonel Washington was deeply affected by this state of things. "I see their situation," said he, in a letter to the Lieutenant Governor, "I know their danger, and participate their sufferings, without having it in my power to give them farther relief than uncertain promises. In short, I see inevitable destruction in so clear a light, that unless vigorous measures are taken by the assembly, and speedy assistance sent from below, the poor inhabitants now in forts must unavoidably fall, while the remainder are flying before the barbarous foe. In fine, the melancholy situation of the people; the little prospect of assistance; the gross and scandalous abuses cast upon the officers in general, which is reflecting upon me in particular for suffering misconduct of such extraordinary kind; and the distant prospect, if any, of gaining reputation in the service, cause me to lament the hour that gave me a commission, and would induce me, at any other time than this of imminent danger, to resign, without one hesitating moment, a command from which I never expect to reap either honour or benefit; but, on the contrary, have almost an absolute certainty of incurring displeasure below, while the murder of helpless families may be laid to my account here."

Colonel Washington had been prevented from taking post at fort Cumberland by an unfortunate and extraordinary difficulty, growing out of an obscurity in the royal orders, respecting the relative rank of officers commissioned by the king, and those commissioned by the governor. A Captain Dagworthy, who was at that place, and of the former description, insisted on

taking the command, although it had been committed to Lieutenant Colonel Stevens; and, on the same principle, he contested the rank of Colonel Washington also. This circumstance had retained that officer at Winchester, where public stores to a considerable amount were deposited, with only about fifty men to guard them. In the deep distress of the moment, a council of war was called, to determine whether he should march this small body to some of the nearest forts, and, uniting with their petty garrisons, risk an action; or wait until the militia could be raised. The council unanimously advised a continuance at Winchester. Lord Fairfax, who commanded the militia of that and the adjacent counties, had ordered them to his assistance; but they were slow in assembling. The unremitting exertion of three days, in the county of Frederick, could produce only twenty men.

The incompetency of the military force to the defence of the country having become obvious, the assembly determined to augment the regiment to fifteen hundred men. In a letter addressed to the house of burgesses, Colonel Washington urged the necessity of increasing it still farther, to two thousand men; a less number than which could not possibly, in his opinion, be sufficient to cover the extensive frontier of Virginia, should the defensive system be continued. In support of this demand, he stated, in detail, the forts which must be garrisoned; and observed, that, with the exception of a few inhabitants in forts on the south branch of the Potowmac, the north mountain near Winchester had become the frontier; and that, without effectual aid, the inhabitants would even pass the Blue Ridge. He farther observed that the woods seemed "alive with French and Indians;" and again described so feelingly the situation of the inhabitants, that the assembly requested the governor to order half the militia of the adjoining counties to their relief; and the attorney general, Mr. Peyton Randolph, formed a company of one hundred gentlemen, who engaged to make the campaign, as volunteers. Ten well trained woodsmen, or Indians, would have rendered more service.

The distress of the country increased. As had been foreseen, Winchester became almost the only settlement west of the Blue Ridge, on the northern frontier; and fears were entertained that the enemy would soon pass even that barrier, and ravage the country below. Express after express was sent to hasten the militia, but sent in vain. At length, about the last of April, the French and their savage allies, laden with plunder, prisoners, and scalps, returned to fort Du Quesne.

Some short time after their retreat, the militia appeared. This temporary increase of strength was employed in searching the country for small parties of

Indians, who lingered behind the main body, and in making dispositions to repel another invasion. A fort was commenced at Winchester, which, in honour of the general who had been appointed to the command of the British troops in America, was called fort Loudoun; and the perpetual remonstrances of Colonel Washington at length effected some improvement in the laws for the government of the troops.

Instead of adopting, in the first instance, that military code which experience had matured, the assembly passed occasional acts to remedy particular evils as they occurred; in consequence of which, a state of insubordination was protracted, and the difficulties of the commanding officer increased. Slight penalties were at first annexed to serious military offences; and when an act was obtained to punish mutiny and desertion with death, such crimes as cowardice in action, and sleeping on a post, were pretermitted. It was left impossible to hold a general court martial, without an order from the governor; and the commanding officer was not at liberty to make those arrangements in other respects which his own observation suggested, but shackled by the control of others, who could neither judge so correctly, nor be so well informed, as himself.

These errors of a government unused to war, though continually remarked by the officer commanding the troops, were slowly perceived by those in power, and were never entirely corrected.

Successive incursions continued to be made into the country by small predatory parties of French and Indians, who kept up a perpetual alarm, and murdered the defenceless, wherever found. In Pennsylvania, the inhabitants were driven as far as Carlisle; and in Maryland, Fredericktown, on the eastern side of the Blue Ridge, became a frontier. With the Virginia regiment, which did not yet amount to one thousand men, aided occasionally by militia, Colonel Washington was to defend a frontier of near four hundred miles in extent, and to complete a chain of forts. He repeatedly urged the necessity and propriety of abandoning fort Cumberland, which was too far in advance of the settlements, and too far north, to be useful, while it required for its defence a larger portion of his force than could be spared with a proper regard to the safety of other and more advantageous positions. The governor, however, thought the abandonment of it improper, since it was a "*king's fort*;" and Lord Loudoun, on being consulted, gave the same opinion.

Among the subjects of extreme chagrin to the commander of the Virginia troops, was the practice of desertion. The prevalence of this crime was ascribed, in a considerable degree, to the ill-judged parsimony of the assembly.

The daily pay of a soldier was only eight pence, out of which two pence were stopped for his clothes. This pay was inferior to what was received in every other part of the continent; and, as ought to have been foreseen, great discontents were excited by a distinction so invidious. The remonstrances of the commanding officer, in some degree, corrected this mischief; and a full suit of regimentals was allowed to each soldier, without deducting its price from his pay.

This campaign furnishes no event which can interest the reader; yet the duties of the officer, though minute, were arduous; and the sufferings of the people, beyond measure afflicting. It adds one to the many proofs which have been afforded, of the miseries to be expected by those who defer preparing the means of defence, until the moment when they ought to be used; and then, rely almost entirely, on a force neither adequate to the danger, nor of equal continuance.

It is an interesting fact to those who know the present situation of Virginia, that, so late as the year 1756, the Blue Ridge was the northwestern frontier; and that she found immense difficulty in completing a single regiment to protect the inhabitants from the horrors of the scalping knife, and the still greater horrors of being led into captivity by savages who added terrors to death by the manner of inflicting it.

As soon as the main body of the enemy had withdrawn from the settlements, a tour was made by Colonel Washington to the south-western frontier. There, as well as to the north, continued incursions had been made; and there too, the principal defence of the country was entrusted to an ill-regulated militia. The fatal consequences of this system are thus stated by him, in a letter to the lieutenant governor: "The inhabitants are so sensible of their danger, if left to the protection of these people, that not a man will stay at his place. This I have from their own mouths, and the principal inhabitants of Augusta county. The militia are under such bad order and discipline, that they will come and go, when and where they please, without regarding time, their officers, or the safety of the inhabitants, but consulting solely their own inclinations. There should be, according to your honour's orders, one-third of the militia of these parts on duty at a time; instead of that, scarce one-thirtieth is out. They are to be relieved every month, and they are a great part of that time marching to and from their stations; and they will not wait one day longer than the limited time, whether relieved or not, however urgent the necessity for their continuance may be." Some instances of this, and of gross misbehaviour, were then

enumerated; after which, he pressed the necessity of increasing the number of regulars to two thousand men.

After returning from this tour, to Winchester, he gave the Lieutenant Governor, in curious detail, a statement of the situation in which he found the country, urging, but urging in vain, arguments which will always be suggested by experience, against relying chiefly on militia for defence.

Sensible of the impracticability of defending such an extensive frontier, Colonel Washington continued to press the policy of enabling him to act on the offensive. The people of Virginia, he thought, could be protected only by entering the country of the enemy; giving him employment at home, and removing the source of all their calamities by taking possession of fort Du Quesne.

"As defensive measures," he observed in a letter to the Lieutenant Governor, "are evidently insufficient for the security and safety of the country, I hope no arguments are necessary to evince the necessity of altering them to a vigorous offensive war, in order to remove the cause." But in the event, that the assembly should still indulge their favourite scheme of protecting the inhabitants by forts along the frontiers, he presented a plan, which, in its execution, would require two thousand men—these were to be distributed in twenty-two forts, extending from the river Mayo to the Potowmac, in a line of three hundred and sixty miles. In a letter written about the same time to the speaker of the assembly, he said, "The certainty of advantage, by an offensive scheme of action, renders it, beyond any doubt, preferable to our defensive measures. Our scattered force, so separated and dispersed in weak parties, avails little to stop the secret incursions of the savages. We can only perhaps put them to flight, or frighten them to some other part of the country, which answers not the end proposed. Whereas, had we strength enough to invade their lands, we should restrain them from coming abroad, and leaving their families exposed. We should then remove the principal cause, and have stronger probability of success; we should be free from the many alarms, mischiefs, and murders, that now attend us; we should inspirit the hearts of our few Indian friends, and gain more esteem with them. In short, could Pennsylvania and Maryland be induced to join us in an expedition of this nature, and to petition his Excellency Lord Loudoun for a small train of artillery, with some engineers, we should then be able, in all human probability, to subdue the terror of fort Du Quesne; retrieve our character with the Indians; and restore peace to our unhappy frontiers."

His total inability to act offensively, or even to afford protection to the frontiers of Virginia, was not the only distressing and vexatious circumstance to which he was exposed. The Lieutenant Governor, to whose commands he was subjected in every minute particular, and who seems to have been unequal to the difficulties of his station, frequently deranged his system by orders which could not be executed without considerable hazard and inconvenience. Colonel Washington could not always restrain his chagrin on such occasions; and, on one of them, observed in a letter to an intimate friend, who possessed great influence in the country, "whence it arises, or why, I am truly ignorant, but my strongest representations of matters relative to the peace of the frontiers are disregarded, as idle and frivolous; my propositions and measures, as partial and selfish; and all my sincerest endeavours for the service of my country, perverted to the worst purposes. My orders are dark, doubtful, and uncertain: to-day approved, tomorrow condemned; left to act and proceed at hazard; accountable for the consequences, and blamed without the benefit of defence. If you can think my situation capable of exciting the smallest degree of envy, or of affording the least satisfaction, the truth is yet hid from you, and you entertain notions very different from the reality of the case. However, I am determined to bear up under all these embarrassments some time longer, in the hope of better regulations under Lord Loudoun, to whom I look for the future fate of Virginia."

Not long after this letter was written, Lord Loudoun, in whose person the offices of Governor and Commander-in-chief were united, arrived in Virginia. A comprehensive statement of the situation of the colony, in a military point of view, and of the regiment in particular, was drawn up and submitted to him by Colonel Washington. In this he enumerated the errors which had prevented the completion of his regiment, showed the insufficiency of the militia for any military purpose, and demonstrated the superiority of an offensive system over that which had been pursued.

1757

This statement was probably presented by Colonel Washington in person, who was permitted, during the winter, to visit Lord Loudoun in Philadelphia, where that nobleman met the Governors of Pennsylvania, Maryland, and North Carolina, and the Lieutenant Governor of Virginia, in order to consult with them on the measures to be taken, in their respective Provinces, for the ensuing campaign. He was, however, disappointed in his favourite hope of being able to act offensively against the French on the Ohio. Lord Loudoun had determined to direct all his efforts against Canada, and to leave only twelve hundred men

in the middle and southern colonies. Instead of receiving assistance, Virginia was required to send four hundred men to South Carolina. Not discouraged by these disappointments, Colonel Washington continued indefatigable in his endeavours to impress on Mr. Dinwiddie, and on the assembly, the importance of reviving, and properly modifying their military code, which had now expired, of making a more effective militia law, and of increasing their number of regular troops.

May.

So far from succeeding on the last subject, he had the mortification to witness a measure which crushed his hopes of an adequate regular force. Being unable to complete the regiment by voluntary enlistment, the assembly changed its organization, and reduced it to ten companies; each to consist of one hundred men. Yet his anxious wishes continued to be directed towards fort Du Quesne. In a letter written about this time to Colonel Stanwix, who commanded in the middle colonies, he said, "You will excuse me, sir, for saying, that I think there never was, and perhaps never again will be, so favourable an opportunity as the present for reducing fort Du Quesne. Several prisoners have made their escape from the Ohio this spring, and agree in their accounts, that there are but three hundred men left in the garrison; and I do not conceive that the French are so strong in Canada, as to reinforce this place, and defend themselves at home this campaign: surely then this is too precious an opportunity to be lost."

But Mr. Pitt did not yet direct the councils of Britain; and a spirit of enterprise and heroism did not yet animate her generals. The campaign to the north was inglorious; and to the west, nothing was even attempted, which might relieve the middle colonies.

October 8.

Large bodies of savages, in the service of France, once more spread desolation and murder over the whole country, west of the Blue Ridge. The regular troops were inadequate to the protection of the inhabitants; and the incompetency of the defensive system to their security became every day more apparent. "I exert every means," said Colonel Washington, in a letter to Lieutenant Governor Dinwiddie, "to protect a much distressed country; but it is a task too arduous. To think of defending a frontier of more than three hundred and fifty miles extent, as ours is, with only seven hundred men, is vain and idle; especially when that frontier lies more contiguous to the enemy than any other.

"I am, and for a long time have been, fully convinced, that if we continue to pursue a defensive plan, the country must be inevitably lost."

October 24.

In another letter he said, "The raising a company of rangers, or augmenting our strength in some other manner, is so far necessary, that, without it, the remaining inhabitants of this once fertile and populous valley will scarcely be detained at their dwellings until the spring. And if there is no expedition to the westward then, nor a force more considerable than Virginia can support, posted on our frontiers; if we still adhere, for the next campaign, to our destructive defensive schemes, there will not, I dare affirm, be one soul living on this side the Blue Ridge the ensuing autumn, if we except the troops in garrison, and a few inhabitants of this town, who may shelter themselves under the protection of this fort. This I know to be the immoveable determination of all the settlers of this country." To the Speaker of the assembly he gave the same opinion; and added, "I do not know on whom these miserable undone people are to rely for protection. If the assembly are to give it to them, it is time that measures were at least concerting, and not when they ought to be going into execution, as has always been the case. If they are to seek it from the Commander-in-chief, it is time their condition was made known to him. For I can not forbear repeating again, that, while we pursue defensive measures, we pursue inevitable ruin."

August 27.

It was impossible for Colonel Washington, zealous in the service of his country, and ambitious of military fame, to observe the errors committed in the conduct of the war, without censuring them. These errors were not confined to the military affairs of the colony. The Cherokee and Catawba Indians had hitherto remained faithful to the English, and it was very desirable to engage the warriors of those tribes heartily in their service; but so miserably was the intercourse with them conducted, that, though a considerable expense was incurred, not much assistance was obtained, and great disgust was excited among them. The freedom with which the Commander-in-chief of the Virginia forces censured public measures, gave offence to the Lieutenant Governor, who considered these censures as manifesting a want of respect for himself. Sometimes he coarsely termed them *impertinent*; and at other times, charged him with looseness in his information, and inattention to his duty. On one of these occasions, Colonel Washington thus concluded a letter of detail, "Nothing remarkable has happened, and therefore I have nothing to add. I must beg leave, however, before I conclude, to observe, in justification of my own conduct, that it is with pleasure I receive reproof when reproof is due, because

no person can be readier to accuse me, than I am to acknowledge an error, when I have committed it; nor more desirous of atoning for a crime, when I am sensible of being guilty of one. But, on the other hand, it is with concern I remark, that my best endeavours lose their reward; and that my conduct, although I have uniformly studied to make it as unexceptionable as I could, does not appear to you in a favourable point of light. Otherwise, your honour would not have accused me of *loose* behaviour, and *remissness* of duty, in matters where, I think, I have rather exceeded than fallen short of it. This, I think, is evidently the case in speaking of Indian affairs at all, after being instructed in very express terms, '*Not to have any concern with, or management of Indian affairs.*' This has induced me to forbear mentioning the Indians in my letters to your honour of late, and to leave the misunderstanding, which you speak of, between Mr. Aikin and them, to be related by him."

Not long after this, he received a letter informing him of some coarse calumny, reflecting on his veracity and honour, which had been reported to the Lieutenant Governor. He enclosed a copy of this letter to Mr. Dinwiddie, and thus addressed him,—"I should take it infinitely kind if your honour would please to inform me whether a report of this nature was ever made to you; and, in that case, who was the author of it.

"It is evident from a variety of circumstances, and especially from the change in your honour's conduct towards me, that some person, as well inclined to detract, but better skilled in the art of detraction than the author of the above stupid scandal, has made free with my character. For I can not suppose, that malice so absurd, so barefaced, so diametrically opposite to truth, to common policy, and, in short, to everything but villany, as the above is, could impress you with so ill an opinion of my honour and honesty.

"If it be possible that ——, for my belief is staggered, not being conscious of having given the least cause to any one, much less to that gentleman, to reflect so grossly; I say, if it be possible that ---- could descend so low as to be the propagator of this story, he must either be vastly ignorant of the state of affairs in this country *at that time*, or else, he must suppose that the whole body of the inhabitants had combined with me in executing the deceitful fraud. Or why did they, almost to a man, forsake their dwellings in the greatest terror and confusion; and while one half of them sought shelter in paltry forts, (of their own building,) the other should flee to the adjacent counties for refuge; numbers of them even to Carolina, from whence they have never returned?

"These are facts well known; but not better known than that these wretched people, while they lay pent up in forts, destitute of the common supports of

life, (having in their precipitate flight forgotten, or rather, been unable to secure any kind of necessities,) did despatch messengers of their own, (thinking I had not represented their miseries in the piteous manner they deserved,) with addresses to your honour and the assembly, praying relief. And did I ever send any alarming account, without sending also the original papers (or the copies) which gave rise to it?

"That I have foibles, and perhaps many of them, I shall not deny. I should esteem myself, as the world also would, vain and empty, were I to arrogate perfection.

"Knowledge in military matters is to be acquired only by practice and experience; and if I have erred, great allowance should be made for want of them; unless my errors should appear to be wilful; and then, I conceive, it would be more generous to charge me with my faults, and to let me stand or fall according to evidence, than to stigmatize me behind my back.

"It is uncertain in what light my services may have appeared to your Honour: but this I know, and it is the highest consolation I am capable of feeling, that no man that ever was employed in a public capacity, has endeavoured to discharge the trust reposed in him with greater honesty, and more zeal for the country's interest than I have done; and if there is any person living, who can say with justice that I have offered any intentional wrong to the public, I will cheerfully submit to the most ignominious punishment that an injured people ought to inflict. On the other hand, it is hard to have my character arraigned, and my actions condemned, without a hearing.

"I must therefore again beg in *more plain*, and in very *earnest* terms, to know if ——has taken the liberty of representing my conduct to your Honour with such ungentlemanly freedom as the letter implies. Your condescension herein will be acknowledged a singular favour."

In a letter, some short time after this, to the Lieutenant Governor, he said, "I do not know that I ever gave your Honour cause to suspect me of ingratitude; a crime I detest, and would most carefully avoid. If an open, disinterested behaviour carries offence, I may have offended; for I have all along laid it down as a maxim, to represent facts freely and impartially, but not more so to others than to you, sir. If instances of my ungrateful behaviour had been particularized, I would have answered them. But I have been long convinced that my actions and their motives have been maliciously aggravated." A request that he might be permitted to come to Williamsburg for the settlement of some accounts, which he was desirous of adjusting under the inspection of the Lieutenant Governor, who proposed to leave the province in the following

November, was refused in abrupt and disobliging terms. In answer to the letter containing the refusal, Colonel Washington, after stating the immoveable disposition of the inhabitants to leave the country unless more sufficiently protected, added, "To give a more succinct account of their affairs than I could in writing, was the principal, among many other reasons, that induced me to ask leave to come down. It was not to enjoy a party of pleasure that I asked leave of absence. I have indulged with few of those, winter or summer."

Mr. Dinwiddie soon afterwards took leave of Virginia, and the government devolved on Mr. Blair, the President of the Council. Between him and the commander of the colonial troops the utmost cordiality existed.

General Forbes undertakes the expedition against Fort Du Quesne.

After the close of this campaign, Lord Loudoun returned to England, and General Abercrombie succeeded to the command of the army. The department of the middle and southern provinces was committed to General Forbes, who, to the inexpressible gratification of Colonel Washington, determined to undertake an expedition against fort Du Quesne.

1758

He urged an early campaign, but he urged it ineffectually; and, before the troops were assembled, a large body of French and Indians broke into the country, and renewed the horrors of the tomahawk and scalping-knife. The county of Augusta was ravaged and about sixty persons were murdered. The attempts made to intercept these savages were unsuccessful; and they recrossed the Alleghany, with their plunder, prisoners, and scalps.

May 24.

At length, orders were given to assemble the regiment at Winchester, and be in readiness to march in fifteen days. On receiving them, Colonel Washington called in his recruiting parties; but so inattentive had the government been to his representations that, previous to marching his regiment, he was under the necessity of repairing to Williamsburg, personally to enforce his solicitations for arms, ammunition, money, and clothing. That these preparations for an expedition vitally interesting to Virginia, should remain to be made after the season for action had commenced, does not furnish stronger evidence of the difficulties encountered by the chief of the military department, than is given by another circumstance of about the same date. He was under the necessity of pointing out and urging the propriety of allowing to his regiment, which had performed much severe service, the same pay which had been granted to a second regiment, voted the preceding session of Assembly, to serve for a single year.

Among other motives for an early campaign, Colonel Washington had urged the impracticability of detaining the Indians. His fears were well founded. Before a junction of the troops had been made, these savages became impatient to return to their homes; and, finding that the expedition would yet be delayed a considerable time, they left the army, with promises to rejoin it at the proper season.

June 24.

In pursuance of the orders which had been received, the Virginia troops moved in detachments from Winchester to fort Cumberland, where they assembled early in July: after which, they were employed in opening a road to Raystown, where Colonel Bouquet was stationed. As the English were continually harassed by small parties of French and Indians, the general had contemplated advancing a strong detachment over the Alleghany mountains, for the purpose of giving them employment at home. By the advice of Colonel Washington this plan was relinquished. In support of his opinion, he stated the probability that a large force was collected at fort Du Quesne, and the impracticability of moving a strong detachment, without such a quantity of provisions, as would expose it to the danger of being discovered and cut to pieces. He advised to harass them with small parties, principally of Indians; and this advice was pursued.

July.

Colonel Washington had expected that the army would march by Braddock's road: but, late in July, he had the mortification to receive a letter from Colonel Bouquet, asking an interview with him, in order to consult on opening a new road from Raystown, and requesting his opinion on that route. "I shall," says he, in answer to this letter, "most cheerfully work on any road, pursue any route, or enter upon any service, that the general or yourself may think me usefully employed in, or qualified for; and shall never have a will of my own, when a duty is required of me. But since you desire me to speak my sentiments freely, permit me to observe, that, after having conversed with all the guides, and having been informed by others acquainted with the country, I am convinced that a road, to be compared with General Braddock's, or indeed that will be fit for transportation even by pack-horses, can not be made. I own I have no predilection for the route you have in contemplation for me."

A few days after writing this letter, he had an interview with Colonel Bouquet, whom he found decided in favour of opening the new road. After their separation, Colonel Washington, with his permission, addressed to him a letter to be laid before General Forbes, then indisposed at Carlisle, in which he stated his reasons against this measure. He concluded his arguments against the new road: arguments which appear to be unanswerable, by declaring his fears that, should the attempt be made, they would be able to do nothing more than fortify some post on the other side of

the Alleghany, and prepare for another campaign. This he prayed Heaven to avert.

He was equally opposed to a scheme which had been suggested of marching by the two different routes, and recommended an order of march by Braddock's road, which would bring the whole army before fort Du Quesne in thirty-four days, with a supply of provisions for eighty-six days.

August 2.

In a letter of the same date addressed to Major Halket, aid of General Forbes, Colonel Washington thus expressed his forebodings of the mischiefs to be apprehended from the adoption of the proposed route. "I am just returned from a conference held with Colonel Bouquet. I find him fixed—I think I may say unalterably fixed—to lead you a new way to the Ohio, through a road, every inch of which is to be cut at this advanced season, when we have scarcely time left to tread the beaten track, universally confessed to be the best passage through the mountains.

"If Colonel Bouquet succeeds in this point with the general, all is lost! all is lost indeed! our enterprise is ruined! and we shall be stopped at the Laurel hill this winter; but not to gather laurels, except of the kind which cover the mountains. The southern Indians will turn against us, and these colonies will be desolated by such an accession to the enemy's strength. These must be the consequences of a miscarriage; and a miscarriage, the almost necessary consequence of an attempt to march the army by this route."

Colonel Washington's remonstrances and arguments were unavailing; and the new route was adopted. His extreme chagrin at this measure, and at the delays resulting from it, was expressed in anxious letters to Mr. Fauquier, then governor of Virginia, and to the speaker of the house of burgesses.

September 2.

In a letter to the speaker, written while at fort Cumberland, he said: "We are still encamped here; very sickly, and dispirited at the prospect before us. That appearance of glory which we once had in view—that hope—that laudable ambition of serving our country, and meriting its applause, are now no more: all is dwindled into ease, sloth, and fatal inactivity. In a word, all is lost, if the ways of men in power, like certain ways of Providence, are not inscrutable. But we who view the actions of great men at a distance can only form conjectures agreeably to a limited perception; and, being ignorant

of the comprehensive schemes which may be in contemplation, might mistake egregiously in judging of things from appearances, or by the lump. Yet every f—I will have his notions—will prattle and talk away; and why may not I? We seem then, in my opinion, to act under the guidance of an evil genius. The conduct of our leaders, if not actuated by superior orders, is tempered with something—I do not care to give a name to. Nothing now but a miracle can bring this campaign to a happy issue." He then recapitulated the arguments he had urged against attempting a new road, and added, "But I spoke unavailingly. The road was immediately begun; and since then, from one to two thousand men have constantly wrought on it. By the last accounts I have received, they had cut it to the foot of the Laurel hill, about thirty-five miles; and I suppose, by this time, fifteen hundred men have taken post about ten miles further, at a place called Loyal Hanna, where our next fort is to be constructed.

"We have certain intelligence that the French strength at fort Du Quesne did not exceed eight hundred men, the thirteenth ultimo; including about three or four hundred Indians. See how our time has been misspent—behold how the golden opportunity is lost—perhaps, never to be regained! How is it to be accounted for? Can General Forbes have orders for this?—Impossible. Will then our injured country pass by such abuses? I hope not. Rather let a full representation of the matter go to his majesty; let him know how grossly his glory and interests, and the public money have been prostituted."

September 22.

Defeat of Major Grant.

Colonel Washington was soon afterwards ordered to Raystown. Major Grant had been previously detached from the advanced post at Loyal Hanna, with a select corps of eight hundred men, to reconnoitre the country about fort Du Quesne. In the night he reached a hill near the fort, and sent forward a party for the purpose of discovery. They burnt a log house, and returned. Next morning, Major Grant detached Major Lewis, of Colonel Washington's regiment, with a baggage guard, two miles into his rear; and sent an engineer, with a covering party, within full view of the fort, to take a plan of the works. In the mean time he ordered the *reveillée* to be beaten in different places. An action soon commenced, on which Major Lewis, leaving Captain Bullett, with about fifty Virginians to guard the baggage,

advanced with the utmost celerity to support Major Grant. The English were defeated with considerable loss; and both Major Grant and Major Lewis were taken prisoners. In this action, the Virginians evidenced the spirit with which they had been trained. Out of eight officers, five were killed, a sixth wounded, and a seventh taken prisoner. Captain Bullett, who defended the baggage with great resolution, and contributed to save the remnant of the detachment, was the only officer who escaped unhurt. Of one hundred and sixty-two men, sixty-two were killed on the spot, and two wounded. This conduct reflected high honour on the commanding officer of the regiment as well as on the troops; and he received, on the occasion, the compliments of the general. The total loss was two hundred and seventy-three killed, and forty-two wounded.

October 8.

It was at length determined that the main body of the army should move from Raystown; and the general called on the colonels of regiments, to submit severally to his consideration, a plan for his march. That proposed by Colonel Washington has been preserved, and appears to have been judiciously formed.

They reached the camp at Loyal Hanna, through a road indescribably bad, about the fifth of November; where, as had been predicted, a council of war determined that it was unadvisable to proceed farther this campaign. It would have been almost impossible to winter an army in that position. They must have retreated from the cold inhospitable wilderness into which they had penetrated, or have suffered immensely; perhaps have perished. Fortunately, some prisoners were taken, who informed them of the extreme distress of the fort. Deriving no support from Canada, the garrison was weak; in great want of provisions; and had been deserted by the Indians. These encouraging circumstances changed the resolution which had been taken, and determined the general to prosecute the expedition.

Fort Du Quesne evacuated by the French, and taken possession of by the English.

November 25.

Colonel Washington was advanced in front; and, with immense labour, opened a way for the main body of the army. The troops moved forward with slow and painful steps until they reached fort Du Quesne, of which

they took peaceable possession; the garrison having on the preceding night, after evacuating and setting it on fire, proceeded down the Ohio in boats.

To other causes than the vigour of the officer who conducted this enterprise, the capture of this important place is to be ascribed. The naval armaments of Britain had intercepted the reinforcements designed by France for her colonies; and the pressure on Canada was such as to disable the governor of that province from detaching troops to fort Du Quesne. Without the aid of these causes, the extraordinary and unaccountable delays of the campaign must have defeated its object.

The works were repaired, and the new fort received the name of the great minister, who, with unparalleled vigour and talents, then governed the nation.

After furnishing two hundred men from his regiment as a garrison for fort Pitt, Colonel Washington marched back to Winchester; whence he soon afterwards proceeded to Williamsburg, to take his seat in the General Assembly, of which he had been elected a member by the county of Frederick, while at fort Cumberland.

A cessation of Indian hostility being the consequence of expelling the French from the Ohio, Virginia was relieved from the dangers with which she had been threatened; and the object for which alone he had continued in the service, after perceiving that he should not be placed on the permanent establishment, was accomplished. His health was much impaired, and his domestic affairs required his attention.

Resignation and marriage of Colonel Washington.

Impelled by these and other motives of a private nature, he determined to withdraw from a service, which he might now quit without dishonour; and, about the close of the year, resigned his commission, as colonel of the first Virginia regiment, and commander-in-chief of all the troops raised in the colony.



The Washington Family Burial Ground

Wakefield, Westmoreland County, Virginia

Here rest the mortal remains of George Washington's great-grandfather, Colonel John Washington, who came to Virginia in 1658 and was buried here in 1677; of his grandfather, Lawrence Washington, buried in 1697; of his grandmother, Jane (Butler), in 1729; of his father, Augustine Washington, in 1743; and other members of the Washington family.

The officers whom he had commanded were greatly attached to him. They manifested their esteem and their regret at parting, by a very affectionate address,[\[8\]](#) expressive of the high opinion they entertained both of his military and private character.

This opinion was not confined to the officers of his regiment. It was common to Virginia; and had been adopted by the British officers with whom he served. The duties he performed, though not splendid, were arduous; and were executed with zeal, and with judgment. The exact discipline he established in his regiment, when the temper of Virginia was extremely hostile to discipline, does credit to his military character, and the gallantry the troops displayed, whenever called into action, manifests the spirit infused into them by their commander.

The difficulties of his situation, while unable to cover the frontier from the French and Indians, who were spreading death and desolation in every quarter, were incalculably great; and no better evidence of his exertions, under these distressing circumstances, can be given, than the undiminished confidence still placed in him, by those whom he was unable to protect.

The efforts to which he incessantly stimulated his country for the purpose of obtaining possession of the Ohio; the system for the conduct of the war which he continually recommended; the vigorous and active measures always urged upon those by whom he was commanded; manifest an ardent and enterprising mind, tempered by judgment, and quickly improved by experience.

Not long after his resignation, he was married to Mrs. Custis; a young lady to whom he had been for some time attached; and who, to a large fortune and fine person, added those amiable accomplishments which ensure domestic happiness, and fill, with silent but unceasing felicity, the quiet scenes of private life.

CHAPTER II.

Colonel Washington appointed commander-in-chief of the American forces.... Arrives at Cambridge.... Strength and disposition of the two armies.... Deficiency of the Americans in arms and ammunition.... Distress of the British from the want of fresh provisions.... Falmouth burnt.... Success of the American cruisers.... Measures to form a continental army.... Difficulty of re-enlisting the troops.... Plan for attacking Boston.... General Lee detached to New York.... Possession taken of the heights of Dorchester.... Boston evacuated.... Correspondence respecting prisoners.

1775

The attention of Colonel Washington, for several years after his marriage, was principally directed to the management of his estate. He continued a most respectable member of the legislature of his country, in which he took an early and a decided part against the claims of supremacy asserted by the British Parliament. As hostilities approached, he was chosen by the independent companies, formed through the northern parts of Virginia, to command them; and was elected a member of the first congress which met at Philadelphia. The illustrious patriots who composed it, soon distinguished him as the soldier of America, and placed him on all those committees whose duty it was to make arrangements for defence. When it became necessary to appoint a commander-in-chief, his military character, the solidity of his judgment, the steady firmness of his temper, the dignity of his person and deportment, the confidence inspired by his patriotism and integrity, and the independence of his fortune, combined to designate him, in the opinion of all, for that important station. Local jealousy was suppressed, not only by the enthusiasm of the moment, but by that policy which induced the sagacious delegation from New England, to prefer a commander-in-chief from the south.

Colonel Washington appointed Commander-in-chief of the American forces.

On the 14th of June, he was unanimously chosen "General, and Commander-in-chief of the armies of the United Colonies, and all the forces now raised, or to be raised by them."[\[9\]](#)

June 15.

On the succeeding day, when the President communicated this appointment to him, he expressed his high sense of the honour conferred upon him, and his firm determination to exert every power he possessed in the service of his country and of her "glorious cause." At the same time he acknowledged the distress he felt from a consciousness that his abilities and military experience might not be equal to the extensive and important trust.

He declined all compensation for his services; and avowed an intention to keep an exact account of his expenses, which he should rely on Congress to discharge.

A special commission was directed, and a resolution unanimously passed, declaring that "Congress would maintain, assist, and adhere to him, as the General and Commander-in-chief of the forces raised, or to be raised, for the maintenance and preservation of American liberty, with their lives and fortunes."

He prepared, without delay, to enter upon the arduous duties of his office; and, remaining only a few days in New York, where several important arrangements were to be made, proceeded to the head quarters of the American army.

Arrives at Cambridge.

As all orders of men concurred in approving his appointment, all concurred in expressing their satisfaction at that event, and their determination to afford him entire support. A committee of the Congress of Massachusetts waited to receive him at Springfield, on the confines of the colony, and to escort him to the army. On his arrival, an address was presented to him by the House of Representatives, breathing the most cordial affection, and testifying the most exalted respect. His answer[\[10\]](#) was well calculated to keep up impressions essential to the success of that arduous contest into which the United Colonies had entered.

July 3.

Strength and disposition of the two armies.

The first moments after his arrival in camp were employed in reconnoitring the enemy, and examining the strength and situation of the American troops.

The main body of the British army, under the immediate command of General Howe, was entrenching itself strongly on Bunker's hill. Three floating batteries lay in Mystic river, near the camp, and a twenty gun ship below the ferry, between Boston and Charlestown. A strong battery on the Boston side of the water, on Cop's or Cope's hill, served to cover and strengthen the post on Bunker's hill. Another division was deeply entrenched on Roxbury neck. The light horse, and an inconsiderable body of infantry, were stationed in Boston.

The American army lay on both sides of Charles river. The right occupied the high grounds about Roxbury; whence it extended towards Dorchester; and the left was covered by Mystic or Medford river, a space of at least twelve miles. These extensive lines could not be contracted without opening to the British general a communication with the country.

For the purpose of a more distinct arrangement, the army was thrown into three grand divisions. That part of it which lay about Roxbury constituted the right wing, and was commanded by Major General Ward; the troops near Mystic or Medford river formed the left, which was placed under Major General Lee. The centre, including the reserve, was under the immediate command of General Washington, whose head quarters were at Cambridge.

The army consisted of fourteen thousand five hundred men; but several circumstances combined to render this force less effective than its numbers would indicate.

Deficiency of the Americans in arms and ammunition.

So long had the hope of avoiding open hostilities been indulged, that the time for making preparations to meet them had passed away unemployed, and the neglect could not be remedied. On General Washington's arrival in camp, he had ordered a return of the ammunition to be made; and the report stated three hundred and three barrels of powder to be in store. A few days after this return, the alarming discovery was made, that the actual quantity was not more than sufficient to furnish each man with nine cartridges. This mistake had been produced by a misapprehension of the committee of supplies, (for the magazines were not yet in possession of military officers,)

who, instead of returning the existing quantity, reported the whole which had been originally furnished by the Province. Though the utmost exertions were made, this critical state of things continued about a fortnight, when a small supply of powder was received from Elizabethtown, in New Jersey. [11] The utmost address was used to conceal from the enemy this alarming deficiency; but when it is recollected, in how many various directions, and to what various bodies, application for assistance was unavoidably made, it will appear scarcely possible that those efforts at concealment could have been completely successful. It is more probable that the communications which must have been made to the British general were discredited; and that he could not permit himself to believe, that an army without bayonets would be hardy enough to maintain the position occupied by the Provincials, if destitute of ammunition.

The troops were also in such need of tents, as to be placed in barracks, instead of being encamped in the open field; and were almost destitute of clothing. They had, too, been raised by the colonial governments; each of which organized its quota on different principles. From this cause resulted not only a want of uniformity, but other defects which were much more important. In Massachusetts, the soldiers had chosen their platoon officers, and generally lived with them as equals. This unmilitary practice was the certain index of that general insubordination which pervaded every department. The difficulty of establishing principles of order and obedience, always considerable among raw troops, was increased by the short terms for which enlistments had been made. The quotas of some of the colonies would be entitled to a discharge in November; and none were engaged to continue in service longer than the last of December. The early orders evidence a state of things still more loose and unmilitary than was to be inferred from the circumstances under which the war had been commenced.

An additional inconvenience, derived from this mixed agency of local governments with that of the Union, was thus stated by General Washington in a letter addressed to congress:—"I should be extremely deficient in gratitude as well as justice, if I did not take the first opportunity to acknowledge the readiness and attention which the congress and different committees have shown to make every thing as convenient and agreeable as possible; but there is a vital and inherent principle of delay, incompatible with military service, in transacting business through such various and different channels.[12] I esteem it my duty, therefore, to represent the

inconvenience that must unavoidably ensue from a dependence on a number of persons for supplies; and submit it to the consideration of congress, whether the public service will not be best promoted by appointing a Commissary General for the purpose." [\[13\]](#)

Every military operation was also seriously affected by the total want of engineers, and the deficiency of working tools.

To increase difficulties already so considerable, the appointment of general officers, made by congress, gave extensive dissatisfaction, and determined several of those who thought themselves injured, to retire from the service.

These disadvantages deducted essentially from the capacity of the American force: but under them all, the General observed with pleasure "the materials for a good army." These were "a great number of men, able bodied, active, zealous in the cause, and of unquestionable courage." Possessed of these materials, he employed himself indefatigably in their organization. The army was arranged into divisions and brigades; and congress was urged to the appointment of a Paymaster, Quarter-master General, and such other general staff as are indispensable in the structure of a regular military establishment.

The two armies continued to work on their respective fortifications, without seriously molesting each other. Slight skirmishes occasionally took place, in which little execution was done; and, although the Americans made some advances, no attempt was made to dislodge them.

September.

The Commander-in-chief submitted with reluctance to this state of apparent inactivity. He felt the importance of destroying the army in Boston, before it should be strengthened by reinforcements in the ensuing spring; and with a view to this object, frequently reconnoitred its situation, and was assiduous in collecting every information respecting its strength. The result of his observations and inquiries seems to have been, a strong inclination to the opinion, that to carry the works by storm, though hazardous, was not impracticable. A council of general officers being unanimously of opinion, that for the present at least, the attempt ought not to be made, it was laid aside.

Distress of the British from the want of fresh provisions.

A rigorous blockade being maintained, the British army began to suffer considerably for fresh meat and vegetables. The small parties which sailed from Boston, in quest of these articles, were frequently disappointed by the vigilance of the minute men. But the continuance of active exertion, which this service required on the part of the inhabitants of the sea coast, soon became burdensome; and the governors of the several colonies pressed for detachments from the main army. Although it was impossible to spare the troops required, without hazarding the cause of the colonies, great irritation was excited by the refusal to comply with these demands of particular protection. They at length became so importunate, and the unavoidable refusal to comply with them was so ill received, that congress was induced to pass a resolution, declaring that the army before Boston was designed only to oppose the enemy at that place, and ought not to be weakened by detachments for the security of other parts of the country. At Newport, in Rhode Island, the committee sought to secure the place, by entering into a compromise with Captain Wallace, who commanded the ships of war on that station, stipulating that he should be furnished with provisions on condition of his sparing the town, and committing no depredations on the country. This compromise contravened so essentially the general plan of distressing the British forces, that General Washington deemed it necessary to interpose, and represent to the Governor of that province, the mischief to be apprehended from so dangerous a practice.

While the blockade of Boston was thus perseveringly maintained, other events of considerable importance took place elsewhere.

In July, Georgia joined her sister colonies, and chose delegates to represent her in congress: after which, the style of "The thirteen United Colonies" was assumed; and by that title, the English Provinces, confederated and in arms, were thenceforward designated.

September 5.

After a recess of one month, congress again assembled at Philadelphia. The state of the colonies, and the letters of the Commander-in-chief being immediately taken into consideration, the scarcity of arms and ammunition engaged their most serious attention. Great exertions^[14] had been made, by importation and by domestic manufacture, to extricate the country from this perilous situation; but the supplies were unequal to the necessities of the

army; and the danger resulting from the want of articles, so vitally essential in war, still continued to be great.

The importance of a maritime force to the military operations of a country possessing an immense extent of sea coast must always be sensibly felt; and, in an early stage of the contest, the particular attention of the United Colonies was directed more immediately to this interesting object, by an event not very unusual in war, but which, at this time, excited no ordinary degree of resentment.

Orders had been issued to the commanders of the British ships of war to proceed, as in the case of actual rebellion, against those seaport towns which were accessible, and in which any troops should be raised, or military works erected.

October.

Falmouth burnt.

Falmouth, a flourishing village on the sea coast of Massachusetts, having given some particular offence, a small naval force, commanded by Captain Mowat, was, under colour of these orders, detached for its destruction. After making an ineffectual effort to induce the inhabitants to deliver up their arms and ammunition, and four of the principal citizens as hostages, he commenced a furious cannonade and bombardment, by which the town was reduced to ashes. An attempt was then made to penetrate into the country; but the militia and minute men, rather irritated than intimidated by this wanton act of unavailing devastation, drove the party, which had landed, back to their ships.

This measure was loudly reprobated throughout America, and contributed, not a little, to turn the attention of the United Colonies to their marine. It was one immediate motive with the convention of Massachusetts, for granting letters of marque and reprisal; and was assigned by congress, in addition to the capture of American merchantmen on the high seas, as an inducement for fitting out some ships of war; to man which they directed two battalions of marines to be recruited.

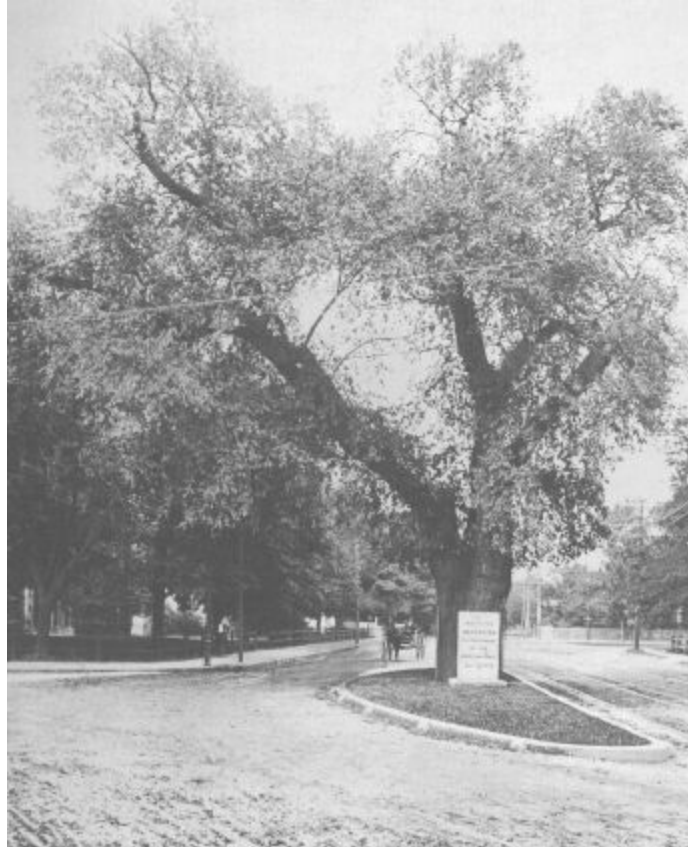
Success of the American cruisers.

Though congress deferred granting general letters of reprisal, they adopted a measure of equal efficacy, but less hostile in appearance. Their ships of war were authorized to capture all vessels employed in giving assistance to the enemy; the terms used in their resolution were such as

comprehended every possible capture. A few small cruisers had already been fitted out by the directions of General Washington; and the coasts soon swarmed with the privateers of New England. These naval exertions were attended with valuable consequences. Many captures were made; and important supplies of ammunition were thus obtained.

Although the British army had manifested no intention to evacuate Boston, fears were continually entertained for New York. Mr. Tryon, who was popular in that province, had been lately recalled from North Carolina, and appointed its governor. His utmost influence was employed in detaching that colony from the union; and his exertions were seconded by the Asia man of war, whose guns commanded the town. The consequence of these intrigues and of this terror was, that even in the convention, disaffection to the American cause began openly to show itself; and a determination to join the king's standard is said to have been expressed with impunity. These threatening appearances were rendered the more serious by some confidential communications from England, stating the intention of administration to send a fleet into the Hudson, and to occupy both New York and Albany. Under the alarm thus excited, an effort was made in congress to obtain a resolution for seizing the governor. He had, however, been artful enough to make impressions in his favour; and he was defended by a part of the delegation from New York with so much earnestness that, for a time, the advocates of the proposition forbore to press it. Afterwards, when the increasing defection in that province induced Congress to resume the subject, the resolution was expressed in general terms; and assumed the form of a recommendation, to those who exercised the legislative and executive functions in the several provinces, "to arrest and secure every person in the respective colonies, whose going at large might, in their opinion, endanger the safety of the colony, or the liberties of America." Intelligence of this resolution is supposed to have been received by the governor, who, after some correspondence with the mayor of the city respecting his personal safety, retired for security on board the Halifax packet, and continued to carry on his intrigues with nearly as much advantage as while on shore.

But the subject which, next to the supply of arms and ammunition, most interested the American government, was the re-enlistment of the army.



The Historic Washington Elm at Cambridge, Massachusetts

"Under this tree," as the granite tablet states, "Washington first took command of the American army, July 3d, 1775." This picture is from a photograph taken about the year 1900. In spite of the most determined efforts to preserve this historic relic, the tree fell in November, 1923.

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Measures to form a continental army.

On the 29th of September, at the earnest solicitation of General Washington, a committee had been appointed by congress, with directions to repair to the camp at Cambridge; there to consult with the Commander-in-chief, and with the chief magistrates of New Hampshire, Connecticut, and Rhode Island, and the council of Massachusetts, "on the most effectual method of continuing, supporting, and regulating a continental army." On the return of this committee, congress determined that the new army should consist of twenty thousand three hundred and seventy-two men, including officers; to be raised as far as practicable from the troops already in service.

Unfortunately, in constituting this first military establishment of the union, an essential error was committed; the consequences of which ceased only with the war. The soldiers, instead of being engaged for an unlimited time, were enlisted for the term of only one year, if not sooner discharged by congress. It is not easy to account entirely for this fatal error. With their jealousy of a permanent army, were probably intermingled hopes that the war would not be of long duration, and fears that much difficulty would be encountered in prevailing on men to enter into engagements of unlimited extent. Perhaps the habits of the northern colonies, where it had been usual to raise men for a single campaign, may have contributed to this measure. Whatever may have been its motives, its consequences were of the most serious nature; and it brought the American cause, more than once, into real hazard.

Other resolutions accompanied that for raising and establishing the new army, which exhibit the perilous condition of the country, and its want of those means, which were indispensable to the support of the arduous conflict in which it was engaged.

One resolution ordered the detention, at a valuation, of the arms of those soldiers who should refuse to re-enlist, although they were private property, and but ill adapted to military purposes; another, offered two dollars to every recruit who would supply himself with a blanket; a third, ordered the purchase of any cloths which could be procured, without regard to colour, to be delivered to the soldiers, after deducting the price from their pay; and a fourth, required the soldiers to furnish their own arms, or to pay for the use of those which might be supplied by the government.

October 22.

Before the arrangements made by the committee were confirmed by congress, General Washington proceeded to take the preparatory steps for carrying them into execution.

It being understood that the engagements of the officers, as well as of the soldiers, would expire with the year; the whole army was to be formed anew. The officers therefore were required to signify in writing to their respective colonels, their determination to leave, or to continue in the service; that it might be communicated to congress through the officer commanding brigades.

Difficulty of re-enlisting the army.

The urgency of the case could not produce a compliance with these orders. Many disregarded them; and others annexed conditions to their remaining in the service. Repetitions of them became necessary; and an unconditional declaration was required.^[15] But that high spirit and enthusiastic ardour, which had brought such numbers into the field after the battle of Lexington, was already beginning to dissipate; and that alacrity for the service, which had been expected, was not displayed. The orders of the day contain the most animating exhortations to the army, and the strongest appeals to its patriotism; but there was an ominous hesitation in forming new engagements.

November 12.

At length, with much labour, the officers were arranged, upon which, recruiting orders were issued. But the sufferings of the army for fuel, clothes, and even provisions, had been great; and to this cause may be attributed the tardiness with which the soldiers in camp enrolled themselves. One officer from each company was employed to recruit in the country; but their progress was not such as the crisis demanded; and the army was dissolving by the expiration of the time for which it had been enlisted. The impatience of the soldiers to revisit their friends, overcame all their solicitude for maintaining the blockade of Boston; and it was with great difficulty that those entitled to a discharge were detained in camp even for ten days; at the end of which time a body of militia was expected to supply their places. This fact, however, did not convince the governments of the United Colonies, that it was possible to rely too much on individual patriotism; and that the American cause, if defended entirely by temporary armies, must be often exposed to imminent hazard.

November 30.

Perceiving the difficulty of recruiting the army, the General earnestly recommended to congress, to try the effect of a bounty. This proposition was not adopted until late in January; and, on the last day of December, when all the old troops, not engaged on the new establishment, were disbanded, only nine thousand six hundred and fifty men had been enlisted for the army of 1776; many of whom were unavoidably permitted to be absent on furlough. Their numbers, however, were considerably augmented during the winter; and, in the mean time, the militia cheerfully complied with the requisitions made on them.

December.

Notwithstanding these complicated difficulties and embarrassments, the General viewed with deep mortification the semblance of inactivity to which his situation compelled him to submit. In the commencement of the contest, while the minds of many were undetermined, it was of vast importance to secure the public confidence, and it was necessary to pay some attention even to the public caprice. The real difficulties under which he laboured were not generally known. His numbers were exaggerated, and his means of carrying on offensive operations were magnified. The expulsion of the British army from Boston had been long since anticipated by many; and those were not wanting, who endeavoured to spread discontent by insinuating that the Commander-in-chief was desirous of prolonging the war, in order to continue his own importance. To these symptoms of impatience, and to the consequences they might produce, he could not be insensible; but it was not in his power to silence such complaints, by disclosing to the world his real situation. His views still continued to be directed towards Boston; and, congress having manifested a disposition favourable to an attack on that place, the general officers had been again assembled, and had again advised unanimously against the measure. Supposing that fears for the safety of the town might embarrass the proceedings of the army, congress resolved, "that if General Washington and his council of war should be of opinion that a successful attack might be made on the troops in Boston, he should make it in any manner he might think expedient, notwithstanding the town and property in it might be thereby destroyed."

Plans for attacking Boston.

Whilst waiting for a favourable opportunity to execute this bold plan, the American general availed himself of the occasional aids received from the militia, to make advances on the besieged, and to seize positions which would favour ulterior operations. Ploughed Hill, Cobble Hill, and Lechmere's Point, were successively occupied and fortified. His approaches were carried within half a mile of the works on Bunker's Hill; and his guns drove their floating batteries from their stations, and protected others constructed under his orders.

Hitherto, the object of the war had been a redress of grievances. The language, that it was a war against a corrupt administration, had been

carefully observed; and allegiance to the British crown was universally avowed. The progress, however, of the public mind towards independence, though slow, was certain; and measures were necessarily taken, which apparently tended to that object. Among these, was the act of establishing temporary governments in place of that revolutionary system which followed the suspension of the ancient institutions.

The first application on this subject was made by Massachusetts;[\[16\]](#) and her example was soon followed by other colonies. These applications could not fail to draw forth the sentiments of members on the very interesting question of separation from the mother country. They who wished to lead public opinion to independence, were desirous of establishing a regular government in each province, entirely competent to the administration of its affairs; while they who were hostile to that event, opposed every measure which might either incline the colonies towards it, or strengthen the opinion in Great Britain, that it was the real object of all who had resisted the legislative supremacy of parliament. A resolution was with difficulty obtained in the case of New Hampshire, which formed a precedent for others of the same nature, recommending to the provincial convention to call a full and free representation of the people, who should establish such form of government as would best promote the general happiness, and most effectually secure peace and good order in the colony, during the continuance of the present dispute with Great Britain. Without this last clause, which still maintained the appearance of preserving the ancient connexion with the parent state, the recommendation would not have been made. About the same time, congress also resolved that it would be extremely dangerous to the liberties and welfare of America, for any colony separately to petition the king or either house of parliament.

Having taken into consideration a proclamation, declaring certain persons in the colonies to have forgotten their allegiance, and to be in a state of open rebellion, and threatening with punishment those who should be found carrying on correspondence with them;—congress declared, "in the name of the people of these United Colonies, and by the authority according to the purest maxims of representation derived from them, that whatever punishment shall be inflicted upon any persons in the power of their enemies, for favouring, aiding, or abetting the cause of American liberty, shall be retaliated in the same kind, and in the same degree, upon those in

their power, who have favoured, aided, or abetted, or shall favour, aid, or abet the system of ministerial oppression."

The British army, the command of which, on the recall of General Gage, had devolved upon General Howe, still remained inactive in Boston; and was still closely blocked up on the land side. The history of this winter campaign, is a history of successive struggles on the part of the American general, with the difficulties imposed by the want of arms, ammunition, and permanent troops, on a person extremely solicitous, by some grand and useful achievement, to prove himself worthy of the high station to which the voice of his country had called him.

1776

January.

Considering the resolution relative to the attack on Boston as indicating the desire of congress on that subject, he assured the president that an attempt would be made to put it in execution the first moment he should perceive a probability of success. If this should not occur, as soon as might be expected or wished, he prayed that his situation might be recollected, and that congress would do him the justice to believe, that circumstances, not inclination on his part, occasioned the delay. "It is not," said he, "in the pages of history to furnish a case like ours. To maintain a post within musket shot of the enemy for six months together, without *ammunition*; and at the same time, to disband one army and recruit another, within that distance of twenty-odd British regiments, is more than, probably, ever was attempted. But if we succeed as well in the latter, as we have hitherto done in the former, I shall think it the most fortunate event of my whole life."

In the month of January a council of war, at which Mr. John Adams, a member of congress, and Mr. Warren, president of the provincial congress of Massachusetts, assisted: Resolved, "that a vigorous attempt ought to be made on the ministerial troops in Boston, before they can be reinforced in the spring, if the means can be provided, and a favourable opportunity should offer." It was farther advised, "that thirteen regiments of militia should be asked for from Massachusetts and the neighbouring colonies, in order to put the army in a condition to make the attempt. The militia to assemble on the first of February, and to continue in service, if necessary, until the first of March." The colonies readily complied with these requisitions; but so mild had the season hitherto been, that the waters about

Boston continued open. "Congress would discover in my last," said the general, on the nineteenth of January, "my motives for strengthening these lines with militia. But whether, as the weather turns out exceedingly mild, (insomuch as to promise nothing favourable from ice,) and there is no appearance of powder, I shall be able to attempt any thing decisive, time only can determine. No man upon earth wishes to destroy the nest in Boston more than I do; no person would be willing to go greater lengths than I shall to accomplish it, if it shall be thought adviseable; but if we have no powder to bombard with, nor ice to pass on, we shall be in no better situation than we have been all the year: we shall be in a worse, as their works are stronger."

General Lee detached to New York.

Early in January, the Commander-in-chief received unquestionable intelligence that an armament was equipping in Boston, to sail under General Clinton on a secret expedition. Many considerations induced him to believe that New York was its destination. He thought the possession of the Hudson of great importance to the British: and that the numerous adherents to the royal cause in New York, furnished an additional reason for transferring the seat of war to that colony. Whilst deliberating on this subject, he received a letter from General Lee, requesting to be detached to Connecticut, for the purpose of assembling a body of volunteers, who should march into New York, and be employed both for the security of that place, and the expulsion or suppression of a band of tories collecting on Long Island. Though inclined to the adoption of this measure, delicacy towards those who exercised the powers of civil government in the colony, suspended his decision on it. Mr. John Adams, who possessed great and well merited influence, was then at Watertown, attending the provincial convention; and with him, the general held some communications respecting his powers. That gentleman being decidedly of opinion that they extended to the case, General Lee was detached, with instructions to raise a body of volunteers in Connecticut, to reinforce the battalions of New Jersey and New York, which were placed under his command. His orders were to proceed to New York; to examine the fortifications of the city, and up the river; to put them in the best possible state of defence; to disarm all persons whose conduct rendered them justly suspected of designs unfriendly to the government, especially those on Long Island; and to collect the arms and ammunition in their possession, for the use of the army.

No difficulty was found in raising the volunteers required from Connecticut. The people of that province were zealous and enterprising, and Governor Trumbull having sanctioned the measure, troops were immediately embodied, and Lee commenced his march for New York at the head of twelve hundred men.

The inhabitants of that place were much alarmed at his approach. Captain Parker of the Asia man of war had threatened that he would destroy the town in the event of its being entered by any considerable body of provincials; and it was believed that these threats would be executed.

A committee of safety, which had been appointed to exercise the powers of government during the recess of the provincial congress, addressed a letter to General Lee, expressing astonishment at the report that he was about to enter the town without previously intimating his design, and pressing him earnestly not to pass the confines of Connecticut, until they could have further explanations with him.

Holding in utter contempt the threats of Captain Parker, Lee continued his march; and, in a letter [\[17\]](#) to congress, represented in such strong terms the impolicy of leaving the military arrangements for New York under the control of the local government, that congress appointed three of their own body, to consult with him and the council of safety, respecting the defence of the place; and instructed him to obey the directions of that committee.

Lee soon acquired that ascendancy which is the prerogative of a superior mind, over those who were sent for his government, and they directed him to execute whatever he suggested. A plan recommended by him, for fortifying the city and preserving its connexion with Long Island, was adopted, and prosecuted with vigour.

General Clinton arrived almost at the same instant with General Lee, but without troops. He said openly, that none were coming; that no hostilities were contemplated against New York; and that he was, himself, merely on a visit to his friend Tryon. "If it be really so," added General Lee, in his letter containing this communication, "it is the most whimsical piece of civility I ever heard of." General Clinton did not affect to conceal that his real object was to proceed to North Carolina, where he expected that five regiments from Europe would join the small force he should carry with him.

About the middle of February, the cold was intense, and the ice became sufficiently firm to bear the troops. General Washington was now disposed

to execute the bold plan he had formed, of attacking General Howe in Boston; but a council of war being almost unanimous against the measure, it was abandoned. The want of ammunition for the artillery was a principal inducement to this opinion.

The attempt, probably, would not have succeeded, and must certainly have been attended with considerable loss. But the advice of the council seems to have been adopted with regret. In communicating their opinion to congress, the general observed, "Perhaps the irksomeness of my situation may have given different ideas to me, from those which influence the gentlemen I consulted; and might have inclined me to put more to the hazard than was consistent with prudence. If it had this effect, I am not sensible of it, as I endeavoured to give the subject all the consideration a matter of such importance required. True it is, and I can not help acknowledging, that I have many disagreeable sensations on account of my situation; for, to have the eyes of the whole continent fixed on me, with anxious expectation of hearing some great event, and to be restrained in every military operation for want of the necessary means to carry it on, is not very pleasing; especially as the means used to conceal my weakness from the enemy, conceal it also from our friends, and add to their wonder."

Late in February, various appearances among the British troops indicated an intention to evacuate Boston; but as these appearances might be deceptive, and he had now received a small supply of powder, General Washington determined to prosecute vigorously a plan he had formed, to force General Howe either to come to an action, or to abandon the town.

Since the allowance of a bounty, recruiting had been more successful; and the regular force had been augmented to rather more than fourteen thousand men. In addition to these troops, the Commander-in-chief had called to his aid about six thousand of the militia of Massachusetts. Thus reinforced, he determined to take possession of the heights of Dorchester, and to fortify them. As the possession of this post would enable him to annoy the ships in the harbour and the soldiers in the town, he was persuaded that a general action would ensue. But if this hope should be disappointed, his purpose was to make the works on the heights of Dorchester only preparatory to seizing and fortifying Nook's Hill, and the points opposite the south end of Boston, which commanded the harbour, a

great part of the town, and the beach from which an embarkation must take place in the event of a retreat.

March.

Possession taken of the heights of Dorchester.

To facilitate the execution of this plan, a heavy bombardment and cannonade were commenced on the town and on the British lines, which were repeated the two succeeding nights. On the last of them, immediately after the firing had begun, a strong detachment, under the command of General Thomas, took possession of the heights without opposition. Such was their activity and industry through the night that, although the ground was almost impenetrable, the works were sufficiently advanced by the morning, nearly to cover them. When day-light disclosed their operations to the British, a considerable degree of embarrassment appeared, and an ineffectual fire was commenced on the party in possession of the heights, who in turn opened a battery on the besieged; and continued with unremitting labour to strengthen their position.

March 5.

It was necessary to dislodge the Americans from the heights, or to evacuate the town; and General Howe, as had been foreseen, determined to embrace the former part of the alternative. Three thousand chosen men, to be commanded by Lord Percy, were ordered on this service. These troops were embarked, and fell down to the castle, in order to proceed up the river to the intended scene of action; but were scattered by a furious storm, which disabled them from immediately prosecuting the enterprise. Before they could again be in readiness for the attack, the works were made so strong, that the attempt to storm them was thought unadvisable, and the evacuation of the town became inevitable.

In the expectation that the flower of the British troops would be employed against the heights of Dorchester, General Washington had concerted a plan for availing himself of that occasion, to attack Boston itself. The storm which defeated the proposed attack on the heights defeated this enterprise also.

Boston evacuated.

March 17.

The determination to evacuate Boston was soon communicated. A paper signed by some of the select men of the town, and brought out with a flag,

stated the fact. This paper was accompanied by propositions said to be made on the part of General Howe, but not signed by him, relative to the security of the town, and the peaceable embarkation of his army. As these propositions were not addressed to the Commander-in-chief, and were not authenticated by the signature of General Howe, nor by any act obligatory on him, General Washington thought it improper directly to notice them; and ordered the officer to whom they were delivered to return an answer stating the reasons why they were not treated with more attention. The determination, however, to continue his advances and to secure Nook's Hill, was changed; and considerable detachments were moved towards New York, before the actual evacuation of Boston. This event took place on the 17th of March; and, in a few days, the whole fleet sailed out of Nantasket road, directing its course eastward.

The recovery of this important town gave great joy to the United Colonies. Congress passed a vote of thanks to the General and his army, "for their wise and spirited conduct in the siege and acquisition of Boston;" and directed a medal of gold to be struck in commemoration of the event.

As soon as the British fleet had put to sea, the American army proceeded by divisions to New York, where it arrived on the 14th of April.

During the siege of Boston, an altercation concerning prisoners took place between the commanders of the respective armies, which was viewed with great interest throughout America. The character of the war—a war between a sovereign and those who professed to be his subjects, led to a course of conduct on the part of the British General, which the actual state of things did not justify.

General Gage, as Governor of Massachusetts, had received all the irritations of which his mind was susceptible—irritations which seemed to have had no inconsiderable influence over his conduct as Commander-in-chief. He regarded the Americans nearly as rebels; and treated them as if the great national resistance they were making on principle, was to be viewed as the act of a few daring and turbulent individuals, rising against laws of unquestionable obligation, who would soon be quelled, and punished for their disobedience of legitimate authority. In this spirit, he threw some distinguished gentlemen of Boston, and the American officers and soldiers who fell into his hands, into the common jail of felons; and treated them,

without respect to military rank or condition, not as prisoners of war, but as state criminals.

Correspondence respecting prisoners.

General Washington remonstrated very seriously against this unjustifiable measure. Considering political opinion entirely out of the question, and "conceiving the obligations of humanity, and the claims of rank, to be universally binding, except in the case of retaliation;" he expressed the hope he had entertained, "that they would have induced, on the part of the British General, a conduct more conformable to the rights they gave." While he claimed the benefits of these rights, he declared his determination "to be regulated entirely, in his conduct towards the prisoners who should fall into his hands, by the treatment which those in the power of the British General should receive."

To this letter, a haughty and intemperate answer was returned, retorting the complaints concerning the treatment of prisoners, and affecting to consider it as an instance of clemency, that the cord was not applied to those whose imprisonment was complained of. To this answer, General Washington gave a manly and dignified reply, which was, he said, "to close their correspondence perhaps forever;" and which concluded with saying, "If your officers, our prisoners, receive from me a treatment different from what I wished to show them, they and you will remember the occasion of it."

The result of this correspondence was communicated to the council of Massachusetts,[\[18\]](#) who were requested to order the British officers then on parole to be confined in close jail, and the soldiers to be sent to such place of security as the general court should direct.

On the recall of General Gage, the command devolved on General Howe, whose conduct was less exceptionable; and this rigorous treatment of prisoners was relaxed.

Not long after this correspondence with General Gage, while Montgomery was employed in the siege of St. John's, Colonel Ethan Allen was captured in a bold and rash attempt on Montreal. Under the pretext of his having acted without authority, he was put in irons, and sent to England as a traitor.

While he was yet in Canada, congress requested the Commander-in-chief to inquire into the fact. He addressed a letter to Sir William Howe, requiring

explanations on it, and assuring him that General Prescott, who had been taken in Canada, and was understood to have contributed to the severities inflicted on Colonel Allen, should receive exactly the fate of that officer.

General Howe, not holding any authority in Canada, or not choosing to enter fully into this subject, General Schuyler was directed to make particular inquiries into the conduct of Prescott; and congress, on being informed of the inefficacy of the application to General Howe, ordered that officer into close jail.

CHAPTER III.

Invasion of Canada meditated.... Siege of St. John's.... Capture of fort Chamblée.... Carleton defeated at Longueisle.... St. John's capitulated.... Montreal surrenders.... Arnold's expedition.... He arrives before Quebec.... Retires to Point Aux Trembles.... Montgomery lays siege to Quebec.... Unsuccessful attack on that place.... Death of Montgomery.... Blockade of Quebec.... General Thomas takes command of the army.... The blockade raised.... General Sullivan takes the command.... Battle of the Three Rivers.... Canada evacuated.... General Carleton constructs a fleet.... Enters lake Champlain.... Defeats the American flotilla.... Takes possession of Crown Point.... Retires into winter quarters.

1775

During these transactions, events of great interest were passing still further north.

Serious dissatisfaction prevailed in Canada. The measures of administration had disquieted the British settlers, without conciliating the ancient inhabitants. At the same time, the regular troops had been chiefly ordered to Boston, and the province left almost entirely undefended. These facts were known in the United Colonies. It was also known that military stores to an immense amount had been deposited in Quebec, and that preparations were making to invade the colonies from that quarter. The possession of that country was believed to be all important; and its present temper countenanced the opinion, that its weight would be thrown into the scale of that party, which should first show a force in it sufficient for the protection of its inhabitants. The facility with which Crown Point and Ticonderoga had been taken, and the command of the lakes George and Champlain acquired, added to the motives already stated, inspiring congress with the daring design of anticipating the plans meditated in Canada, by taking possession of that province.

Invasion of Canada meditated.

In June, 1775, a resolution passed that body, directing General Schuyler to repair to Ticonderoga, and take the proper measures for securing that post and Crown Point, and for retaining the command of the lakes. He was, at the same time authorized, if he should find the measure not disagreeable to the Canadians, to take possession of St. John's and Montreal, and to pursue any other steps which might have a tendency to promote the peace and security of the United Colonies.

Near three thousand men from New England and New York were designed for this service. A number of batteaux were directed to be built at Ticonderoga and Crown Point, to convey them along lake Champlain, and fifty thousand dollars in specie were voted for the expenses of the army in Canada.

General Schuyler, who was at New York when this important command was confided to him, hastened to Ticonderoga, in order to make the necessary arrangements for the enterprise.

The troops of that department, belonging to different colonies, stationed at different places, and acknowledging no one commanding officer, were found in a state of entire disorganization. The stores were misapplied, or wasted; no subordination nor camp discipline was observed; and had the enemy been in a condition to attempt a *coup de main*, Ticonderoga and Crown Point would have been lost, with as much facility as they had been acquired.

September.

Schuyler immediately commenced the task of preparing vessels for the transportation of the troops; a task the more laborious and tedious, as the timber for the batteaux was then to be procured from the woods. Before the preparations were complete, or the soldiers destined for the expedition were assembled, the impatience expressed by the discontented in Canada rendered an immediate movement adviseable. Orders were therefore given to General Montgomery to embark with the troops then in readiness; and General Schuyler having directed the expected reinforcements to rendezvous at the Isle Aux Noix, followed and joined him before he reached that place.

The Americans enter that Province.

Circular letters to the Canadians, exhorting them to rouse and assert their liberties, and declaring, that the Americans entered their country, not as

enemies, but as friends and protectors, were immediately dispersed among them; and to improve the favourable impression which had been made, it was determined to advance directly to St. John's. On the sixth of September, the American army, amounting to about one thousand men, entirely destitute of artillery, embarked on the Sorel, and proceeding down that river, landed within a mile and a half of the fort. The intelligence received during the evening, determined them to return to the Isle Aux Noix, and wait for their remaining troops and artillery.

The Isle Aux Noix lies at the junction of the Sorel with lake Champlain; and to prevent the armed vessels at St. John's from entering the latter, a boom was drawn across the narrow channel, at the point of union between those waters.

While at that place, General Schuyler became so ill as to be confined to his bed; and the command devolved on Montgomery.

September 25.

Siege of St. Johns.

Late in September the artillery was brought up; and reinforcements arrived, which augmented the army to nearly two thousand men;—upon which Montgomery again proceeded to the investment of St. John's. This place was garrisoned by five or six hundred regulars, with about two hundred Canadian militia, and was well provided with artillery and military stores. The army of Canada, as well as the other armies of the United Colonies, was almost entirely without powder; and, of consequence, the siege advanced slowly. Its necessities in this respect were fortunately relieved by the capture of fort Chamblée, which being supposed to be covered by St. John's, was not in a defensible condition. October. Capture of Fort Chamblée. In this place, about one hundred and twenty barrels of gunpowder were taken, after which the siege of St. John's was prosecuted with vigour; but the garrison made a resolute defence, and for some time indulged the hope of being relieved.[\[19\]](#)

Carleton defeated at Longueisle.

Colonel M'Clean, a veteran officer, with his regiment of royal highland emigrants, and a few hundred Canadians, was posted near the junction of the Sorel with the St. Lawrence. General Carleton was at Montreal, where he had collected about a thousand men, chiefly Canadians. At the head of these troops, he hoped to effect a junction with M'Clean, after which he

designed to march with his whole force against Montgomery, and endeavour to raise the siege; but, on attempting to cross over from Montreal, he was encountered and entirely defeated at Longueisle by a detachment of the American troops under Colonel Warner. Another party advanced on M'CLean. Being entirely abandoned by his Canadians so soon as they were informed of the defeat of the governor, and having also received information that Arnold was approaching Point Levi, M'CLean retreated to Quebec. The Americans occupied the post he had abandoned, and erected batteries on a point of land at the junction of the Sorel with the St. Lawrence; where they also constructed several armed rafts and floating batteries, in order to prevent Carleton with the vessels at Montreal from escaping down the river.

St. Johns capitulates.

November 3.

Montgomery was pressing the siege of St. John's with great vigour, and had advanced his works near the fort, when the account of the success at Longueisle reached him. On receiving this intelligence, he sent a flag by one of the prisoners, with a letter to Major Preston, the commanding officer, demanding a surrender of the place. All hopes of relief having now vanished, the garrison capitulated, on being allowed the honours of war.

Scarcely was this first success obtained, when the consequences of short enlistments began to be felt. The time of service for which the troops had engaged being about to expire, great difficulty was experienced in prevailing on them to proceed farther; and before the General could induce them to march against Montreal, he was under the necessity of stipulating explicitly, that all who wished it should be discharged at that place. Having effected this compromise, he proceeded against Montreal; while his floating batteries, under Colonel Easton, advanced up the St. Lawrence, and not only prevented the armed vessels of the enemy from escaping to Quebec, but drove them still higher up the river.

Montreal surrenders.

November 13.

Montreal was not in a condition to be defended. After engaging to allow the Canadians in their own laws, the free exercise of their religion, and the privilege of governing themselves, Montgomery took peaceable possession of the town; and Governor Carleton retired to his flotilla. While

preparations were making to attack these vessels, the Governor was conveyed in a boat with muffled oars down the river, in a dark night, and made his escape to Quebec. The fleet soon afterwards surrendered, and the General prepared, with the utmost expedition, to proceed with the few troops who were willing to follow him, to the capital of Canada.

Diminished as his army was by the discharge of those who claimed the performance of his engagements made at St. John's, it was necessary to leave a part of it at Montreal, St. John's, and Chamblée to garrison those places—keep open the communication between Quebec and the United Colonies—preserve the dependence of the Canadians—overawe the Indians, and hold in check the garrisons above him at Detroit and Niagara. These essential objects, though provided for with the utmost possible economy of men, formed such deductions from his force, as to leave little more than three hundred soldiers to follow their General in the enterprise against Quebec.

August.

Foreseeing that the whole force of Canada would be concentrated about Montreal, General Washington had planned an expedition against Quebec, to be carried on by a detachment from his camp before Boston, which was to march by the way of Kennebec river; and, passing through the dreary wilderness lying between the settled parts of Maine and the St. Lawrence, to enter Canada about ninety miles below Montreal.

The object of this hardy enterprise was to compel Carleton, either to draw his troops from the upper country and leave the passage open to the army invading the province by the way of the river Sorel, or, if he should maintain that position, to take possession of Quebec. All his accounts assured him that this place was unable to hold out against the force which would appear before it; and, if attacked by an American army before the return of Carleton, would surrender without firing a shot.

This arduous enterprise was committed to Colonel Arnold. About a thousand men, consisting of New England infantry, some volunteers,[\[20\]](#) a company of artillery under Captain Lamb, and three companies of riflemen, were selected for the service.

Arnold's expedition by the way of the Kennebec.

Such delays in expediting this detachment were occasioned by the derangements of the army, that Arnold could not commence his march until

the middle of September.

The success of the expedition depending in a great measure on the friendly temper of the province against which it was directed, the instructions given to Arnold earnestly inculcated the cultivation of a good understanding with the Canadians; and even enjoined an abandonment of the enterprise, should this sudden invasion of their country threaten to irritate them, and induce them to take up arms against the United Colonies. He was furnished with about one thousand pounds in specie to defray contingent expenses, and with a cargo of manifestoes to be dispersed through Canada.

The opinion which had been formed of the favourable disposition of the Canadians was not disproved by the event. They gave essential aid to the Americans, and cheerfully facilitated their march through that province. But the previous difficulties to be surmounted were much greater than had been apprehended. The intermediate country, which had never been well explored, opposed obstacles to the march, which only perseverance like that of Arnold and of his brave and hardy followers, could have conquered. Colonel Enos, who commanded the rear division, consisting of one third of the detachment, returned from the Dead River, a branch of the Kennebec. At first, his appearance excited the utmost indignation in the army; yet, on being arrested, he was acquitted by a court martial, on the principle that it was absolutely impracticable to obtain provisions on the route to preserve the troops from perishing with famine.

Arnold, who at the head of the first two divisions, still prosecuted his march, was thirty-two days traversing a hideous wilderness, without seeing a house, or any thing human. Notwithstanding the zealous and wonderfully persevering exertions of his men, the obstacles he encountered so protracted his march, that he did not reach the first settlements on the Chaudière, which empties itself into the St. Lawrence, near Quebec, until the 3d of November.

On the high grounds which separate the waters of the Kennebec from those of the St. Lawrence, the scanty remnant of provisions was divided among the companies; each of which was directed, without attempting to preserve any connexion with the other, to march with the utmost possible celerity into the inhabited country. Whilst those who gained the front were yet thirty miles from the first poor and scattered habitations which

composed that frontier of Canada, their last morsel of food was consumed. But, preceded by Arnold, who went forward for the purpose of procuring for them something which might satisfy the demands of nature, the troops persevered in their labours with a vigour unimpaired by the hardships they had encountered, until they once more found themselves in regions frequented by human beings.

After a march of such unexampled fatigue, no more time was allowed for repose than was barely sufficient to collect the rear, and to refresh the men. During this short respite from toil, the address signed by General Washington was published, and every assurance given to the people, that they came to protect, and not to plunder them. The line of march was resumed; and, on the 9th of November, this gallant corps reached Point Levi, opposite Quebec.

He arrives before Quebec.

The town was almost entirely without a garrison, and nothing could exceed the astonishment of its inhabitants. Could Arnold have immediately crossed the St. Lawrence, and have availed himself of the first consternation, it is believed that he might have entered the place without opposition; but a high wind, and the want of boats, rendered the passage of the river impossible.

One of his Indian messengers, despatched with letters to General Schuyler, had either betrayed him or been intercepted; and thus intelligence of his approach was communicated to Colonel M'CLean who was then at the mouth of the Sorel. Trembling for the capital of the province, that gallant veteran determined to throw himself into it, and endeavour to defend it. In the mean time, the winds continued so high for several nights as to render the passage of the river in the canoes which had been collected, too hazardous to be attempted; and it was only in the night that the Americans could hope to cross, because four ships of war were distributed at different stations in the river, and armed boats were employed to ply around them. Whilst the Americans were thus unavoidably detained on the south side of the St. Lawrence, Colonel M'CLean, with his corps of emigrants, entered the city.

November 12.

At length the wind moderated; and Arnold determined to attempt the river. Eluding the armed vessels, and conquering a rapid current, he, with

great difficulty and danger, crossed over in the night, and landed his little army about a mile and a half above the place which is rendered memorable by the disembarkation of Wolfe. The passage of the rugged cliffs which continue on the northern bank of the St. Lawrence for some distance above Quebec, being impracticable at this place, he marched down on the shore to Wolfe's Cove, and ascending with his band of hardy followers the same precipice which had opposed such obstacles to the British hero; he, too, formed his small corps on the heights near the plains of Abraham.

The dangerous and difficult operations of crossing the river in canoes, whilst the passage was vigilantly guarded by ships of war, and of gaining the almost perpendicular heights of the opposite shore, were completed, soon after midnight, by the advance party, consisting of the rifle companies. While waiting for the residue of the detachment, a council of all the officers was held for the purpose of determining on their future measures. Although destitute of every implement required for an assault, Arnold proposed to march immediately against Quebec. He counted on surprising the place, and finding the gates open; but this opinion, which was not earnestly pressed, was overruled.

Though disappointed in the expectation of surprising Quebec, Arnold did not immediately relinquish the hope of obtaining possession of that important place. Not superior to the garrison in point of numbers, and without a single piece of artillery, he was obviously incapable of acting offensively; but he flattered himself that a defection in the town might yet put it in his hands. With this view, he paraded on the adjacent heights for some days, and sent two flags to demand a surrender. But the presence of Colonel M'Clellan restrained those measures which the fears of the inhabitants dictated. Deeming any communication with the assailants dangerous, he refused to receive the flag, and fired on the officer who bore it. Intelligence was soon obtained, that the first alarm was visibly wearing off, and giving place to other sentiments unfavourable to the hope of gaining Quebec. Fears for the vast property contained in the town had united the disaffected; who were, at their own request, embodied and armed. The sailors too were landed, and placed at the batteries; and, by these means, the garrison had become more numerous than the American army.

And retires to Point Aux Trembles.

November 19.

After collecting those who had been left on the south side of the St. Lawrence, Arnold could not parade more than seven hundred men, and they were in no condition to risk an action. In their laborious march through the wilderness, nearly one third of their muskets had been rendered useless; and their ammunition had sustained such damage that the riflemen had not more than ten, nor the other troops more than six rounds for each man. Under these circumstances, it was thought most adviseable to retire to Point Aux Trembles, twenty miles above Quebec, and there await the arrival of Montgomery. On their march, they saw the vessel which conveyed General Carleton; and afterwards found he had been on shore at Point Aux Trembles, a few hours before they reached that place.[\[21\]](#)

In war, the success of the most judicious plans often depends on accidents not to be foreseen nor controlled. Seldom has the truth of this proposition been more clearly demonstrated, than in the issue of the expedition conducted by Colonel Arnold. The situation of Canada conformed exactly to the expectations of the American general. Not suspecting that so bold and difficult an enterprise could be meditated, its Governor had left Quebec entirely defenceless, and had drawn the strength of the province towards the lakes. Could Arnold have reached that place a few days sooner—could he even have crossed the river on his first arrival at Point Levi—or had Colonel Enos been able to follow the main body with his division of the detachment—every probability favours the opinion, that this hardy and well conceived expedition would have been crowned with the most brilliant success. Nay, more—had Arnold been careful to relieve the inhabitants of the town from all fears respecting their property, there is reason to believe, they would have refused to defend it. But although this bold enterprise was planned with judgment, and executed with vigour; although the means employed were adequate to the object; yet the concurrence of several minute and unfavourable incidents entirely defeated it, and deprived it of that éclat to which it was justly entitled.

December 5.

Having clothed his almost naked troops at Montreal, General Montgomery, at the head of about three hundred men, proceeded with his usual expedition to join Colonel Arnold at Point Aux Trembles, where he supplied the troops of that officer with clothes provided at Montreal; and

afterwards marched with their united forces directly to Quebec. But, before his arrival, Governor Carleton, who had entered the town, was making every preparation for a vigorous defence. The garrison now consisted of about fifteen hundred men, of whom eight hundred were militia, and between four and five hundred were seamen. Montgomery's effective force was stated, by himself, at only eight hundred. His situation would have filled with despair a mind less vigorous, less sanguine, and less brave. His numbers were not sufficient to render success probable, according to any common principle of calculation; and the prospect of their being diminished might be rationally entertained. But, relying on their courage, on himself and his fortune, and on the fears of the garrison; stimulated, too, by the high expectations formed throughout America of his success, and by the dread of disappointing those expectations, he determined to lay immediate siege to the town.

Montgomery lays siege to Quebec.

In a few days he opened a six gun battery within seven hundred yards of the walls; but his artillery was too light to make a breach, and he did not calculate on any effect from it. His object was to amuse the garrison, and conceal his real design.

Although the troops supported the excessive hardships to which they were exposed, with constancy and firmness, Montgomery feared that such continued sufferings would overcome them; and, as he would soon have no legal authority to retain a part of them, he apprehended that he should be abandoned by that part. Impressed with the real necessity of taking decisive steps, and impelled by his native courage, this gallant officer determined to risk an assault.

Of such materials was his little army composed, that the most desperate hardihood could not hope to succeed in the purposed attempt, unless it should receive the approbation of all his troops. It was therefore necessary, not only to consult the officers individually on this delicate subject, but to obtain also the cheerful assent of the soldiers to the meditated enterprise. The proposition was at first received coldly by a part of Arnold's corps, who were, by some means, disgusted with their commanding officer; but the influence of Morgan, who was particularly zealous for an assault, and who held up as a powerful inducement, the rights conferred by the usages of war

on those who storm a fortified town, at length prevailed; and the measure was almost unanimously approved.

Whilst the general was preparing for the assault, the garrison received intelligence of his design from a deserter. This circumstance induced him to change the plan, which had originally been to attack both the upper and lower towns at the same time. That finally adopted, was to divide the army into four parts; and while two of them, consisting of Canadians under Major Livingston, and a small party under Major Brown, were to distract the garrison by making two feints against the upper town at St. John's and Cape Diamond; the other two, led, the one by Montgomery in person, and the other by Arnold, were to make real attacks on opposite sides of the lower town. After gaining that, it would yet be extremely difficult to conquer the obstacles to be surmounted in forcing their way to the upper town; but, as all the wealth of the city would then be in their power, it was confidently expected that the inhabitants, to secure their property, would compel the governor to capitulate.

December 31.

Unsuccessful attack on that place.

Between four and five in the morning, the signal was given; and the several divisions moved to the assault under a violent storm of snow. The plan was so well concerted, that from the side of the river St. Lawrence, along the fortified front round to the basin, every part seemed equally threatened.[\[22\]](#) Montgomery advanced at the head of the New York troops, along the St. Lawrence, by the way of Auncie de Mere, under Cape Diamond. The first barrier on this side, at the Pot Ash, was defended by a battery, in which a few pieces of artillery were mounted; about two hundred paces in front of which was a block-house and picket. The guard placed at the block-house being chiefly Canadians, after giving a random and harmless fire, threw away their arms, and fled in confusion to the barrier. Their terrors were communicated to those who defended this important pass; and from the intelligence afterwards received by the American prisoners in Quebec, it appears that the battery was for a time deserted.

Death of Montgomery.

Unfortunately, the difficulties of the route rendered it impossible for Montgomery to avail himself instantly of this first impression. Cape Diamond, around which he was to make his way, presents a precipice, the

foot of which is washed by the river, where such enormous and rugged masses of ice had been piled on each other, as to render the way almost impassable.[\[23\]](#) Along the scanty path leading under the projecting rocks of the precipice, the Americans pressed forward in a narrow file, until they reached the block-house and picket. Montgomery, who was himself in front, assisted with his own hand to cut down or pull up the pickets, and open a passage for his troops: but the roughness and difficulty of the way had so lengthened his line of march, that he found it absolutely necessary to halt a few minutes. Having re-assembled about two hundred men, he advanced boldly and rapidly at their head, to force the barrier. One or two persons had now ventured to return to the battery, and seizing a slow-match, discharged a gun, when the American front was within forty paces of it. This single and accidental fire proved fatal to the enterprise. The general, with Captains M'Pherson and Cheeseman, the first of whom was his aid, together with his orderly sergeant and a private, were killed upon the spot. The loss of their general, in whom their confidence had been so justly placed, discouraged the troops; and Colonel Campbell, on whom the command devolved, made no attempt to reanimate them. This whole division retired precipitately from the action, and left the garrison at leisure to direct its undivided force against Arnold.

At the common signal for the attack, the division commanded by this officer moved in files along the street of St. Roques towards the Saut de Matelots, where the first barrier had been constructed, and a battery of two twelve pounders erected. In imitation of Montgomery, he too led the forlorn hope in person, and was followed by Captain Lamb with his company of artillery, and a field piece mounted on a sled. Close in the rear of the artillery was the main body, in front of which was Morgan's company of riflemen, commanded by himself. The path along which the troops were to march was so narrow, that the two pieces of artillery in the battery were capable of raking with grape shot every inch of the ground; whilst the whole right flank was exposed to an incessant fire of musketry from the walls, and from the pickets of the garrison.

In this order Arnold advanced along the St. Charles with the utmost intrepidity. The alarm was immediately given, and the fire on his flank commenced. As he approached the barrier, he received a musket ball in the leg which shattered the bone, and was carried off the field. Morgan rushed forward to the battery at the head of his company, and received from one of

the pieces, almost at its mouth, a discharge of grape shot, which killed only one man. The barricade was instantly mounted, on which the battery was deserted without a discharge from another gun. The captain of the guard, with the greater number of his men, were made prisoners.

Morgan formed his troops in the streets within the barrier, and took into custody several English and Canadian burghers; but his situation soon became extremely critical. He was not followed by the main body of the division—he had no guide—and was, himself, totally ignorant of the situation of the town. It was yet dark—and he had not the slightest knowledge of the course to be pursued, or of the defences to be encountered. Under these circumstances, it was thought unadvisable to advance farther. They were soon joined by Lieutenant Colonel Green, and Majors Bigelow and Meigs, with several fragments of companies, so as to constitute altogether about two hundred men.

As the light of day began to appear, this gallant party was again formed, with Morgan's company in front; and, with one voice, loudly called on him to lead them against the second barrier, which was now known to be less than forty paces from them, though concealed by an angle of the street from their immediate view. Seizing the few ladders brought with them, they again rushed forward; and under an incessant fire from the battery, and from the windows overlooking it, applied their ladders to the barricade; and maintained for some time a fierce, and, on their part, a bloody contest. Exposed thus, in a narrow street, to a galling fire, and finding themselves unable to force the barrier, or to discharge more than one in ten of their fire arms—the violence of the storm having unfitted them for service; many of the assailants threw themselves into the stone houses on each side, which afforded them a shelter both from the storm and from the enemy. After continuing some time in this situation, Morgan proposed to cut their way back to the American camp. They were prevented from adopting this daring resolution, only by the suggestion that the attack led by Montgomery, of whose fate they were ignorant, might possibly be successful; and that, in the event of his having entered the opposite part of the town, their co-operation might be useful to him. On this account, they determined still to maintain their situation. But the force of the enemy increasing considerably, they soon perceived that they were no longer masters of their own destinies, and surrendered themselves prisoners of war.[\[24\]](#)

In this bold attack on Quebec, the loss on the part of the garrison was inconsiderable. That of the Americans was about four hundred men, three hundred and forty of whom were prisoners. It fell chiefly on Arnold's division. Captain Hendricks of the Pennsylvania riflemen, Lieutenant Humphries of Morgan's company, and Lieutenant Cooper of Connecticut, were among the slain. Captains Lamb and Hubbard, and Lieutenants Steele and Tisdale, were among the wounded. Every officer at the second barrier received several balls through his clothes, and some of them were severely scorched by the powder from the muzzles of the muskets discharged at them. But the loss most deplored, and most fatal to the hopes of the American army, was that of their general.

Richard Montgomery was a native of Ireland, and had served with reputation in the late war. After its conclusion he settled in New York, where he married an American lady, and took a decided part with the colonies in their contest with Great Britain. His military reputation was high throughout America. In the history of his achievements, while commanding in Canada, we perceive the bold, skilful, and active partisan; and, so far as a judgment can be formed of a capacity for conducting the movements of a large army from judicious management of a small one, we can not hesitate to allow him the talents of an able general. At the head of a small body of undisciplined troops, drawn from different colonies, unwilling to be commanded by a stranger, jealous of him in the extreme, often disposed to disobedience, and anxious for their homes, he conquered difficulties which not many would have ventured to meet; and, until his last fatal moment, was uniformly successful. In little more than two months, he made himself master of Canada, from the lakes to Quebec: and, as if determined to triumph over the climate itself, laid siege, in the depth of winter, to that important fortress. His measures seem to have been taken with judgment, and were certainly executed with great courage and unremitting exertion. When he appears to have risked much, and to have exposed his troops to excessive hardships, this line of conduct was not inconsiderately chosen. The state of his affairs left him only the alternative between attempting to storm Quebec, or abandoning the great object of the expedition. Nor was his attempt so hopeless a measure as the strength of the place, and the event might, at first view, induce us to suppose. The design was worthy of the lofty spirit which formed it; though hazardous, it was not desperate; and if great courage was required to crown it with success, great courage was

employed in its execution. He counted, and with reason, on the fears of the garrison, and on the immense extent of ground to be guarded. Had he not fallen himself, or been deserted by his troops, it is even yet believed the enterprise would have succeeded. The progress made by Arnold's division gives great countenance to this opinion.

To manifest the high sense entertained of his services, congress directed a monument, expressing the circumstances of his death and the gratitude of his country, to be erected to his memory.

The Americans, being no longer in a condition to continue the siege, retired about three miles from the city; where, though inferior in numbers to the garrison, they maintained the blockade. By preserving this bold countenance, they retained the confidence of the Canadians; which saved their affairs, for a time, from total ruin.

Governor Carleton was content to preserve Quebec, until the reinforcements he expected in the spring should enable him to act on the offensive. He therefore determined not to hazard an attack, with a garrison on which it was unsafe to rely; and Arnold, on whom the command had devolved, remained undisturbed. Although badly wounded, he retained his courage and activity; and, though deserted by those whose terms of service had expired, so as to be reduced at one time to about five hundred effective men, he discovered no disposition to sink under the weight of adverse fortune.

While the affairs of the colonies wore this gloomy aspect in Canada, congress was indulging sanguine hopes of annexing that province to the union. Nine regiments, including one to be raised in that colony, were voted for its defence during the ensuing campaign; and General Schuyler was directed to construct a number of batteaux at Ticonderoga, for the purpose of transporting the troops to the scene of action.

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Whilst adopting these measures, congress received the melancholy intelligence of the disaster of the 31st December. Far from being dispirited by this reverse of fortune, that body redoubled its exertions to hasten reinforcements to the army in Canada, and urged the several conventions to collect for its use all the specie they could obtain. January 17. These measures were, in some degree, accelerated by having been anticipated by the Commander-in-chief.[\[25\]](#)

The service in Canada being deemed of too much importance to be entrusted to Colonel, now Brigadier General Arnold, or to General Wooster; and the health of General Schuyler not admitting of his proceeding to Quebec; General Thomas, an officer who had acquired reputation at Roxbury, was ordered to take command of the army in that province.

In the hope of exciting throughout Canada the sentiments which prevailed in the United Colonies, and of forming with it a perfect union, three commissioners, Mr. Franklin, Mr. Chase, and Mr. Carroll,^[26] were deputed with full powers on this subject, and with instructions to establish a free press. These commissioners were directed to assure the people that they would be permitted to adopt such form of government as should be agreeable to themselves; to exercise freely all the rights of conscience; and to be considered as a sister colony, governed by the same general system of mild and equal laws which prevailed in the other colonies, with only such local differences as each might deem conducive to its own happiness. They were also instructed to inquire into the conduct of the American army, and to correct any irregularities which might be offensive to the people.

Congress seems to have entertained the opinion expressed by General Washington in a letter to General Schuyler, "that the Province could be secured only by laying hold of the affections of the people, and engaging them heartily in the common cause." In pursuance of this opinion, they adopted the magnanimous policy of compensating those individuals who had suffered for their adherence to the Americans.

Blockade of Quebec continued.

In the mean time Arnold maintained the blockade of Quebec. But reinforcements were slow in arriving, notwithstanding every exertion to hasten them, and from the first of January to the first of March, the effective force before that place had never exceeded seven hundred men, and had often been as low as five hundred. In March, reinforcements arrived in greater numbers, and the army was increased to seventeen hundred; but this number was soon reduced by the small-pox, which had made its way into camp, where, in contempt of orders, it was propagated by inoculation.

To render the blockade in any degree effectual, this small army, which occupied the island of Orleans and both sides of the St. Lawrence, was spread over a circuit of twenty-six miles, and divided by three ferries. The establishment of discipline had been impracticable, if attempted; and the

Canadians were often injured and irritated. There is reason to believe that even General Arnold was disposed to think himself in the country of an enemy; and that, in repressing disorders, he did not exert that energy which he had always displayed conspicuously in the field.

March 4.

Many causes combined to diminish the attachment originally manifested by the Canadians to the United Colonies. The necessities of his situation compelled General Arnold to issue a proclamation making paper money current, under the promise of redeeming it in four months, and denouncing those as enemies, who should refuse to receive it. The Canadians were unwilling to exchange their property or labour, for an article of such uncertain value; and the discontents excited by the attempt to force it on them were very considerable.

Another circumstance, which had great influence with reflecting men, was the obvious incompetence of the American force to its object. The Canadians had expected a powerful army—sufficient for the protection of the country; and their disappointment in this respect, produced a great change in their opinions and conduct.

The dissatisfaction arising from these causes was augmented by the priests. They, as a body, were never cordial in the American interest; and having been, since the death of Montgomery, very injudiciously neglected, had become almost universally hostile to the views of the United Colonies.

General Carleton was no stranger to the revolution which was taking place in the minds of the Canadians, and entertained the hope of raising the siege by their assistance. A detachment of about sixty men, from the garrison of Quebec, landed twelve leagues below the town on the south side of the river, and were joined by about two hundred and fifty Canadians, who were rapidly increasing in numbers, when they were suddenly attacked by a detachment sent by Arnold, which surprised their advance guard, killed a few, took some prisoners, and dispersed the residue.

April 2.

As the season of the year approached when reinforcements from England might be expected, Arnold deemed it necessary to recommence active operations, and to resume the siege. His batteries were again erected, and were opened on the 2d of April, but without much effect. He had not weight

of metal to make a breach in the wall, nor an engineer capable of directing a siege, nor artillerists who understood the management of the pieces.

On the 1st of April, Wooster had arrived, and, on the succeeding day, Arnold's horse fell with him, and so bruised one of his legs as to confine him to his bed for some time. Believing himself to be neglected, he obtained leave of absence as soon as he was able to move, and took the command at Montreal.

April 15.

A considerable part of the army having become entitled to a discharge, no inducement could prevail on them to continue longer in so severe a service. This deduction from Wooster's force was the more sensibly felt, because the present situation of the roads, the lakes, and the St. Lawrence, suspended the arrival of the reinforcements destined for his aid.

General Thomas takes command of the army.

Among the first who reached camp after this state of things took place, was General Thomas. He arrived on the 1st of May, and found an army consisting of nineteen hundred men; of whom, less than one thousand, including officers, were effective. Among these were three hundred entitled to discharge, who refused to do duty, and insisted importunately on being immediately dismissed. This small force was still more enfeebled by being so divided that it was impracticable to unite more than three hundred men at any one point. All the magazines contained but one hundred and fifty barrels of powder, and six days provisions; nor could adequate supplies from the country people be obtained, as the Canadians no longer manifested any disposition to serve them.

The river began to open below, and it was certain, that the British would seize the first moment of its being practicable, to relieve this important place. Amidst these unpromising circumstances, the hopes of taking Quebec appeared to General Thomas to be chimerical, and a longer continuance before the town both useless and dangerous. It was apparent that the first reinforcements which should arrive would deprive him entirely of the use of the river, and consequently would embarrass the removal of his sick, and military stores. No object remained to justify this hazard.

The blockade of Quebec is raised.

May 6.

Under these impressions, he called a council of war, which unanimously determined, that the army was not in a condition to risk an assault—that the sick should be removed to the Three Rivers, and the artillery and other stores embarked in their boats, in order to move to a more defensible position. On the evening of the same day, intelligence was received that a British fleet was below; and, the next morning, five ships, which had, with much labour and danger, made their way up the river through the ice, appeared in sight. They soon entered the harbour, and landed some men whilst the Americans were assiduously employed in the embarkation of their sick and stores—an operation carried on the more slowly, because the first appearance of the ships deprived them of the aid expected from the teams and carriages of the Canadians.

About noon, Carleton made a sortie at the head of one thousand men, formed in two divisions, and supported by six field pieces. The Americans had thrown up no intrenchments, and could not bring into action more than three hundred men. Under these circumstances, victory was scarcely possible, and could have produced no important effect. General Thomas, therefore, with the advice of the field officers about him, determined not to risk an action, and ordered his troops to retreat up the river. This was done with much precipitation, and many of the sick, with all the military stores, fell into the hands of the enemy. The army continued its retreat to the Sorel, where General Thomas was seized with the small-pox, of which he died.

[\[27\]](#)

The Americans were much dissatisfied with the conduct of this gentleman. To him they, in some degree, attributed the disasters which ruined their affairs in Canada. But this censure was unjust. He took command of the army when it was too weak to maintain its ground, and when the time for saving the sick and the military stores had passed away.

The siege of Quebec, instead of being continued longer, ought to have been abandoned at an earlier period. This was the real fault of those who commanded in Canada. It is to be ascribed to the reluctance always felt by inexperienced officers to disappoint the public expectation, by relinquishing an enterprise concerning which sanguine hopes have been entertained; and to encounter the obloquy of giving up a post, although it can no longer with prudence be defended. In the perseverance with which the siege of Quebec was maintained, these motives operated with all their force, and they

received an addition, from the unwillingness felt by the Americans, to abandon those of their friends who had taken so decisive a part in their favour, as to be incapable of remaining in safety behind them.

June 4.

General Sullivan takes the command.

After the death of General Thomas, reinforcements assembled at the mouth of the Sorel, which increased the army to four or five thousand men, who were commanded by General Sullivan. The friendly Canadians who had supposed themselves abandoned, manifested great joy at the arrival of a force which appeared to them very considerable; and offered every assistance in their power. Sullivan calculated on their joining him in great numbers, and entertained sanguine hopes of recovering and maintaining the post of De Chambeau. As a previous measure, it was necessary to dislodge the enemy at the Three Rivers.

Carleton was not immediately in a situation to follow up the blow given the Americans at Quebec, and to drive them entirely out of the province; but the respite allowed them was not of long duration.

Towards the end of May large reinforcements arrived, which augmented the British army in Canada to about thirteen thousand men. The general rendezvous appointed for these troops was at the Three Rivers. The army was greatly divided. A considerable corps, commanded by General Frazer, had reached the Three Rivers, and the main body was on its way from Quebec. The distance from the Sorel was about fifty miles, and several armed vessels and transports, full of troops, lay about five miles higher up than the Three Rivers, full in the way.[\[28\]](#)

General Thompson, who commanded the army after the illness of General Thomas, understanding the party at the Three Rivers to consist of about eight hundred men, partly Canadians, had detached Colonel St. Clair with between six and seven hundred men, to attack it, if there should be any probability of doing so with advantage. Colonel St. Clair advanced to Nicolet, where, believing himself not strong enough for the service on which he had been ordered, he waited for further reinforcements, or additional instructions. At this time General Sullivan arrived; and, understanding the enemy to be weak at the Three Rivers, orders General Thompson to join Colonel St. Clair at Nicolet, with a reinforcement of nearly fourteen hundred men, to take command of the whole detachment,

and to attack the troops lying at the Three Rivers, provided there was a favourable prospect of success.

June 8.

General Thompson joined Colonel St. Clair at Nicolet, and, believing himself strong enough to perform the service consigned to him, fell down the river by night, and passed to the other side, with the intention of surprising Frazer. The plan was to attack the village a little before day-break, at the same instant, at each end; whilst two smaller corps were drawn up to cover and support the attack.

Battle of the Three Rivers.

The troops passed the armed vessels without being perceived, but arrived at Three Rivers about an hour later than had been intended; in consequence of which they were discovered, and the alarm was given at their landing. To avoid the fire of some ships in the river, they attempted to pass through what appeared to be a point of woods, but was in reality a deep morass three miles in extent. The delays occasioned by their detention in this morass, gave General Frazer full time to land some field pieces, and prepare for their reception; while General Nesbit fell into their rear, and cut off their return to the boats. They advanced to the charge, but were soon repulsed; and finding it impracticable to return the way they came, were driven some miles through a deep swamp, which they traversed with inconceivable toil, and every degree of distress. The British at length gave over the pursuit.

In this unfortunate enterprise, General Thompson and Colonel Irwin, with about two hundred men, were made prisoners; and from twenty to thirty were killed. The loss of the British was inconsiderable.

June 14.

The whole American force in Canada now amounted to about eight thousand men, not one half of whom were fit for duty. About two thousand five hundred effectives were with General Sullivan at the Sorel. The whole were in a state of total insubordination—much harassed with fatigue—and dispirited by their late losses, by the visible superiority of the enemy, and by the apprehension that their retreat would be entirely cut off. Under all these discouraging circumstances, General Sullivan formed the rash determination of defending the post at Sorel; and was induced only by the unanimous opinion of his officers, and a conviction that the troops would not support him, to abandon it a few hours before the British took

possession of it. The same causes drew him reluctantly from Chamblée and St. John's; but he resolved to remain at the Isle Aux Noix, until he should receive orders to retreat. He had been joined at St. John's by General Arnold, who had crossed over at Longueisle just in time to save the garrison of Montreal.

The Isle Aux Noix is a low unhealthy place, badly supplied with water; where the troops were so universally seized with fevers, as to compel General Sullivan to retire to the Isle Lamotte. At that place he received the orders of General Schuyler to embark on the lakes for Crown Point.

The armed vessels on the Sorel and St. Lawrence were destroyed, and the fortifications of Chamblée and St. John's set on fire. All the baggage of the army, and nearly all the military stores were saved.

The British army, during this whole retreat, followed close in the rear, and took possession of the different posts which the Americans had occupied, immediately after they were evacuated.

On the Sorel the pursuit stopped. The Americans had the command of the lake, and the British general deemed it prudent to wrest it from them before he advanced farther. To effect this, it was necessary to construct a number of vessels, which required time and labour. Meanwhile, General Gates was ordered to take command of the northern army, which was directed to be reinforced with six thousand militia.

Canada evacuated.

Thus terminated the enterprise against Canada. It was a bold, and, at one period, promised to be a successful effort to annex that extensive province to the United Colonies. The dispositions of the Canadians favoured the measure; and had Quebec fallen, there is reason to believe the colony would have entered cordially into the union. Had a few incidents turned out fortunately; had Arnold been able to reach Quebec a few days sooner, or to cross the St. Lawrence on his first arrival—or had the gallant Montgomery not fallen in the assault of the 31st December, it is probable the expedition would have been crowned with complete success. But the radical causes of failure, putting fortune out of the question, were to be found in the lateness of the season when the troops were assembled, in a defect of the preparations necessary for such a service, and still more in the shortness of the time for which the men were enlisted. Had the expedition been successful, the practicability of maintaining the country is much to be

doubted. Whilst General Montgomery lay before Quebec, and expected to obtain possession of the place, he extended his views to its preservation. His plan required a permanent army of ten thousand men; strong fortifications at Jacques Cartier, and the rapids of Richelieu; and armed vessels in the river, above the last place. With this army and these precautions, he thought the country might be defended; but not with an inferior force.

It seems, therefore, to have been an enterprise requiring means beyond the ability of congress; and the strength exhausted on it would have been more judiciously employed in securing the command of the lakes George and Champlain, and the fortified towns upon them.

While General Carleton was making preparations to enter the lakes, General Schuyler was using his utmost exertions to retain the command of them. But, so great was the difficulty of procuring workmen and materials, that he found it impossible to equip a fleet which would be equal to the exigency. It consisted of only fifteen small vessels; the largest of which was a schooner mounting twelve guns, carrying six and four pound balls. The command of this squadron, at the instance of General Washington, was given to General Arnold.

General Carleton constructs a fleet.

With almost incredible exertions, the British general constructed a powerful fleet; and, afterwards, dragged up the rapids of St. Therese and St. John's, a vast number of long boats and other vessels, among which was a gondola weighing thirty tons. This immense work was completed in little more than three months; and, as if by magic, General Arnold saw on Lake Champlain, early in October, a fleet consisting of near thirty vessels; the largest of which, the Inflexible, carried eighteen twelve-pounders. Enters Lake Champlain. This formidable fleet, having on board General Carleton himself, and navigated by seven hundred prime seamen under the command of Captain Pringle, proceeded immediately in quest of Arnold, who was advantageously posted between the island of Valicour and the western main.

Notwithstanding the disparity of force, a warm action ensued. A wind, unfavourable to the British, kept the Inflexible and some other large vessels at too great a distance to render any service. This circumstance enabled Arnold to keep up the engagement until night, when Captain Pringle discontinued it, and anchored his whole fleet in a line, as near the vessels of

his adversary as was practicable. In this engagement, the best schooner belonging to the American flotilla was burnt, and a gondola was sunk.

Defeats the American flotilla.

In the night, Arnold attempted to escape to Ticonderoga; and, the next morning, was out of sight; but, being immediately pursued, was overtaken about noon, and brought to action a few leagues short of Crown Point. He kept up a warm engagement for about two hours, during which the vessels that were most ahead escaped to Ticonderoga. Two galleys and five gondolas, which remained, made a desperate resistance. At length one of them struck; after which Arnold ran the remaining vessels on shore, and blew them up; having first saved his men, though great efforts were made to take them.

On the approach of the British army, a small detachment, which had occupied Crown Point as an out-post, evacuated the place, and retired to Ticonderoga, which Schuyler determined to defend to the last extremity.

Takes possession of Crown Point. Retires into winter quarters.

General Carleton took possession of Crown Point, and advanced a part of his fleet into Lake George, within view of Ticonderoga. His army also approached that place, as if designing to invest it; but, after reconnoitring the works, and observing the steady countenance of the garrison, he thought it too late to lay siege to the fortress. Re-embarking his army, he returned to Canada, where he placed it in winter quarters; making the Isle Aux Noix his most advanced post.

CHAPTER IV.

Transactions in Virginia.... Action at Great Bridge.... Norfolk evacuated.... Burnt.... Transactions in North Carolina.... Action at Moore's Creek Bridge.... Invasion of South Carolina.... British fleet repulsed at Fort Moultrie.... Transactions in New York.... Measures leading to Independence.... Independence declared.

1775

July.

Transactions in Virginia.

Whilst the war was carried on thus vigorously in the north, the southern colonies were not entirely unemployed. The convention of Virginia determined to raise two regiments of regular troops for one year, and to enlist a part of the militia as minute-men.

October.

Lord Dunmore, the Governor of the colony, who was joined by the most active of the disaffected, and by a number of slaves whom he had encouraged to run away from their masters, was collecting a naval force, which threatened to be extremely troublesome in a country so intersected with large navigable rivers as the colony of Virginia. With this force he carried on a slight predatory war, and, at length, attempted to burn the town of Hampton. The inhabitants, having received intimation of his design, gave notice of it to the commanding officer at Williamsburg, where some regulars and minute-men were stationed. Two companies were despatched to their assistance, who arrived just before the assault was made, and obliged the assailants to retreat, with some loss, to their vessels.

November 7.

In consequence of this repulse, his Lordship proclaimed martial law; summoned all persons capable of bearing arms to repair to the royal standard, or be considered as traitors; and offered freedom to all indented servants and slaves who should join him.[\[29\]](#)

This proclamation made some impression about Norfolk, where the Governor collected such a force of the disaffected and negroes, as gave him an entire ascendancy in that part of the colony.

Intelligence of these transactions being received at Williamsburg, a regiment of regulars and about two hundred minute-men, were ordered down under the command of Colonel Woodford,[\[30\]](#) for the defence of the inhabitants. Hearing of their approach, Lord Dunmore took a well chosen position on the north side of Elizabeth river, at the Great Bridge, where it was necessary for the provincials to cross in order to reach Norfolk; at which place he had established himself in some force. Here he erected a small fort on a piece of firm ground surrounded by a marsh, which was accessible, on either side, only by a long causeway. Colonel Woodford encamped within cannon-shot of this post, in a small village at the south end of the causeway; across which, just at its termination, he constructed a breast-work; but, being without artillery, was unable to make any attempt on the fort.

December.

Action at the Great Bridge.

In this position both parties continued for a few days, when Lord Dunmore ordered Captain Fordyce, the commanding officer at the Great Bridge, though inferior in numbers, to storm the works of the provincials. Between day-break and sunrise, this officer, at the head of about sixty grenadiers of the 14th regiment, who led the column, advanced along the causeway with fixed bayonets, against the breast-work. The alarm was immediately given; and, as is the practice with raw troops, the bravest rushed to the works, where, regardless of order, they kept up a heavy fire on the front of the British column. Captain Fordyce, though received so warmly in front, and taken in flank by a party posted on a small eminence on his right, marched up with great intrepidity, until he fell dead within a few steps of the breast-work. The column immediately broke and retreated; but being covered by the artillery of the fort, was not pursued.

In this ill-judged attack, every grenadier is said to have been killed or wounded; while the Americans did not lose a single man.

Norfolk evacuated.

The following night, the fort was evacuated. The provincial troops proceeded to Norfolk, under the command of Colonel Howe of North

Carolina, and Lord Dunmore took refuge on board his vessels.

1776

January.

And burnt.

After taking possession of the town, the American soldiers frequently amused themselves by firing into the vessels in the harbour, from the buildings near the water. Irritated by this, Lord Dunmore determined to destroy the houses immediately on the shore; and, on the night of the first of January, under cover of a heavy cannonade, landed a body of troops, and set fire to a number of houses near the river. The provincials, who entertained strong prejudices against this station, saw the flames spread from house to house without making any attempt to extinguish them. After the fire had continued several weeks, in which time it had consumed about four-fifths of the town, Colonel Howe, who had waited on the convention to urge the necessity of destroying the place, returned with orders to burn the remaining houses; which were carried into immediate execution.

February.

Thus was destroyed the most populous and flourishing town in Virginia. Its destruction was one of those ill-judged measures, of which the consequences are felt long after the motives are forgotten.

After Norfolk was laid in ashes, Lord Dunmore continued a predatory war on the rivers—burning houses, and robbing plantations—which served only to distress a few individuals, and to increase the detestation in which he was held through the country. At length, his wretched followers, wearied with their miserable condition, were sent to Florida.[\[31\]](#)

As the war became more serious, the convention deemed it necessary to increase the number of regular regiments from two to nine, which were afterwards taken into the continental service.

Transactions in North Carolina.

In North Carolina, Governor Martin, though obliged to take refuge on board a ship of war, in Cape Fear river, indulged the hope of being able to reduce that colony.

A body of ignorant and disorderly men on the western frontier, styling themselves regulators, had attempted by arms, some time before the existing war, to control and stop the administration of justice. After failing

in this attempt, they became as hostile to the colonial, as they had been to the royal government.

The province also contained many families who had lately emigrated from the highlands of Scotland; and who, retaining their attachment to the place of their nativity, transferred it to the government under which they had been bred. From the union of these parties, Governor Martin entertained sanguine hopes of making a successful struggle for North Carolina. His confidence was increased by the assurances he had received, that a considerable land and naval armament was destined for the southern colonies.

To prepare for co-operating with this force, should it arrive; or, in any event, to make an effort to give the ascendancy in North Carolina to the royal cause, he sent several commissions to the leaders of the highlanders, for raising and commanding regiments; and granted one to a Mr. M'Donald, their chief, to act as their general. He also sent them a proclamation, to be used on a proper occasion, commanding all persons, on their allegiance, to repair to the royal standard. This was erected by General M'Donald at Cross Creek, about the middle of February, and nearly fifteen hundred men arranged themselves under it.

Fifteenth.

Upon the first advice that the loyalists were assembling, Brigadier General Moore marched at the head of a provincial regiment, with such militia as he could suddenly collect, and some pieces of cannon, and took a strong position within a few miles of them. Twentieth. General M'Donald soon approached, and sent a letter to Moore, enclosing the Governor's proclamation, and recommending to him and his party to join the King's standard by a given hour the next day. The negotiation was protracted by Moore, in the hope that the numerous bodies of militia who were advancing to join him, would soon enable him to surround his adversary. M'Donald, at length, perceived his danger, and, suddenly decamping, endeavoured by forced marches to extricate himself from it, and join Governor Martin and Lord William Campbell, who were encouraged to commence active operations by the arrival of General Clinton in the colony.

Action at Moore's Creek Bridge.

The provincial parties, however, were so alert in every part of the country, that he found himself under the necessity of engaging Colonels

Caswell and Lillington, who, with about one thousand minute-men and militia, had entrenched themselves directly in his front, at a place called Moore's Creek Bridge. The royalists were greatly superior in number, but were under the disadvantage of being compelled to cross the bridge, the planks of which were partly taken up, in the face of the intrenchments occupied by the provincials. They commenced the attack, however, with great spirit; but Colonel M'Leod who commanded them, in consequence of the indisposition of M'Donald, and several others of their bravest officers and men, having fallen in the first onset, their courage deserted them, and they fled in great disorder, leaving behind them their general and several others of their leaders, who fell into the hands of the provincials.[\[32\]](#)

This victory was of eminent service to the American cause in North Carolina. It broke the spirits of a great body of men, who would have constituted a formidable reinforcement to an invading army; increased the confidence of the provincials in themselves, and attached to them the timid and wavering, who form a large portion of every community.

General Clinton, who was to command in the south, had left Boston with a force too inconsiderable to attempt any thing until he should be reinforced by the troops expected from Europe. After parting with Governor Tryon in New York, he had proceeded to Virginia, where he passed a few days with Lord Dunmore; but finding himself too weak to effect any thing in that province, he repaired to North Carolina, and remained with Governor Martin until the arrival of Sir Peter Parker. Fortunately for the province, the unsuccessful insurrection of M'Donald had previously broken the strength and spirits of the loyalists, and deprived them of their most active chiefs; in consequence of which, the operations which had been meditated against North Carolina were deferred. Clinton continued in Cape Fear until near the end of May, when, hearing nothing certain from General Howe, he determined to make an attempt on the capital of South Carolina.

May.

Early in the month of April, a letter from the secretary of state to Mr. Eden, the royal governor of Maryland, disclosing the designs of administration against the southern colonies, was intercepted in the Chesapeake; and thus, South Carolina became apprized of the danger which threatened its metropolis. Mr. Rutledge, a gentleman of vigour and talents, who had been chosen president of that province on the dissolution of the

regal government, adopted the most energetic means for placing it in a posture of defence.

June.

Invasion of South Carolina.

In the beginning of June, the British fleet came to anchor off the harbour of Charleston. The bar was crossed with some difficulty; after which, it was determined to commence operations by silencing a fort on Sullivan's island.

During the interval between passing the bar and attacking the fort, the continental troops of Virginia and North Carolina arrived in Charleston; and the American force amounted to between five and six thousand men, of whom two thousand five hundred were regulars. This army was commanded by General Lee, whose fortune it had been to meet General Clinton at New York, in Virginia, and in North Carolina. Viewing with a military eye the situation of the post entrusted to his care, Lee was disinclined to hazard his army by engaging it deeply in the defence of the town; but the solicitude of the South Carolinians to preserve their capital, aided by his confidence in his own vigilance, prevailed over a caution which was thought extreme, and determined him to attempt to maintain the place.

Two regular regiments of South Carolina, commanded by Colonels Gadsden and Moultrie, garrisoned fort Johnson and fort Moultrie. About five hundred regulars, and three hundred militia under Colonel Thompson, were stationed in some works which had been thrown up on the north-eastern extremity of Sullivan's island; and the remaining troops were arranged on Hadrell's Point, and along the bay in front of the town. General Lee remained in person with the troops at Hadrell's Point, in the rear of Sullivan's island. His position was chosen in such a manner as to enable him to observe and support the operations in every quarter, and especially to watch and oppose any attempt of the enemy to pass from Long Island to the continent; a movement of which he seems to have been particularly apprehensive.

June 28.

British fleet repulsed at Fort Moultrie.

The British ships, after taking their stations, commenced an incessant and heavy cannonade on the American works. Its effect, however, on the fort, was not such as had been expected. This was attributable to its form, and to its materials. It was very low, with merlons of great thickness; and was constructed of earth, and a species of soft wood common in that country, called the palmetto, which, on being struck with a ball, does not splinter, but closes upon it.

The fire from the fort was deliberate; and, being directed with skill, did vast execution. The garrison united the cool determined courage of veterans, with the enthusiastic ardour of youth. General Lee crossed over in a boat, to determine whether he should withdraw them; and was enraptured with the ardour they displayed. They assured him they would lose the fort only with their lives; and the mortally wounded breathed their last, exhorting their fellow soldiers to the most heroic defence of the place.

July 15.

The engagement continued until night. By that time, the ships were in such a condition, as to be unfit to renew the action on the ensuing day. The Bristol lost one hundred and eleven men, and the Experiment seventy-nine. Captain Scott, of the one, lost his arm; and Captain Morris, of the other, was mortally wounded. Lord Campbell, late Governor of the province, who served as a volunteer on board one of these vessels, was also mortally wounded; and both ships were so shattered, as to inspire hopes that they would be unable to repass the bar. About nine, they slipped their cables and moved off. A few days afterwards, the troops were re-embarked, and all farther designs against the southern colonies being for the present relinquished, the squadron sailed for New York.[\[33\]](#)

The attack on fort Moultrie was supported by the British seamen with their accustomed bravery; and the slaughter on board the ships was uncommonly great. The loss of the Americans, in killed and wounded, was only thirty-five men.

Great and well merited praise was bestowed on Colonel Moultrie, who commanded the fort, and on the garrison, for the resolution displayed in defending it. Nor was the glory acquired on this occasion confined to them. All the troops that had been stationed on the island partook of it: and the

thanks of the United Colonies were voted by congress to General Lee, Colonel Moultrie, Colonel Thompson, and the officers and men under their command.

This fortunate event, for such it may well be termed, though not of much magnitude in itself, was, like many other successes attending the American arms in the commencement of the war, of great importance in its consequences. By impressing on the colonists a conviction of their ability to maintain the contest, it increased the number of those who resolved to resist British authority, and assisted in paving the way to a declaration of independence.

April.

Transactions in New York.

Even before the evacuation of Boston, it had been foreseen that New York must become the seat of war; and that most important military operations would be carried on in that colony. The fortifications which had been commenced for the defence of its capital were indefatigably prosecuted; and, after the arrival of General Washington, these works, combined with those to be erected in the passes through the highlands up the Hudson, were the objects of his unremitting attention.

The difficulty which had been experienced in expelling the British from Boston, had demonstrated the importance of preventing their establishment in New York; and had contributed to the determination of contesting with them, very seriously, the possession of that important place. The execution of this determination, however, was difficult and dangerous. The defence of New York, against an enemy commanding the sea, requires an army capable of meeting him in the open field, and of acting offensively both on Long and York Islands. Congress had not adopted measures which might raise such an army. The Commander-in-chief, in his letters to that body, had long and earnestly urged the policy of bringing the whole strength of the country into regular operation. The government was not inattentive to his remonstrances; but many circumstances combined to prevent such a military establishment as the exigency required.

The congress which assembled in 1775 had adjourned with strong hopes that the differences between the Mother Country and the Colonies would soon be adjusted to their mutual satisfaction. When the temper manifested both by the king and his parliament had dissipated these hopes, and the

immense preparations of Great Britain for war, evinced the necessity of preparations equally vigorous on the part of America, the resolution to make them was finally taken. But, unaccustomed to the great duties of conducting a war of vast extent, they could not estimate rightly the value of the means employed, nor calculate the effects which certain causes would produce. Opinions of the most pernicious tendency prevailed; from which they receded slowly, and from which they could be ultimately forced only by melancholy experience.

The most fatal among these was the theory, that an army could be created every campaign for the purposes of that campaign; and that such temporary means would be adequate to the defence of the country. They relied confidently on being able on any emergency, to call out a force suited to the occasion:—they relied too much on the competence of such a force to the purposes of war, and they depended too long on the spirit of patriotism, which was believed to animate the mass of the people.

Under these impressions, the determination to form a permanent army was too long delayed; and the measures necessary to raise such an army were deferred, till their efficacy became doubtful. It was not until June, 1776, that the representations of the Commander-in-chief could obtain a resolution, directing soldiers to be enlisted for three years, and offering a bounty of ten dollars to each recruit. The time when this resolution could certainly have been executed, had passed away. That zeal for the service, which was manifested in the first moments of the war, had long since begun to abate; and though the determination to resist had become more general, that enthusiasm which prompts individuals to expose themselves to more than an equal share of danger and hardship, was visibly declining. The progress of these sentiments seems to have been unexpected; and the causes producing such effects appear not to have been perceived. The regiments voted by congress were incomplete; and that bounty, which, if offered in time, would have effected its object, came too late to fill them.

It was not in numbers only that the weakness of the American army consisted. In arms, ammunition, tents, and clothes, its deficiency was such as to render it unfit for the great purposes of war, and inferior, in all these respects, to the enemy which it was destined to encounter.

But, however inadequate to the object the regular force might be, both the government and the Commander-in-chief were determined to defend

New York; and congress passed a resolution to reinforce the army with thirteen thousand eight hundred militia. For the defence of the middle colonies, and for the purpose of repelling any attempt to land on the Jersey shore, it was resolved to form a flying camp, to be composed of ten thousand men, to be furnished by Pennsylvania, Delaware, and Maryland. The militia, both of the flying camp and of the army at New York, were to be engaged to serve until the first of December; and the Commander-in-chief was empowered to call on the neighbouring colonies for such additional temporary aids of militia, as the exigencies of his army might render necessary.

Great and embarrassing as were the difficulties already noticed, they were augmented by the disaffection of the city of New York, and of the adjacent islands. Although Governor Tryon had found it necessary to take refuge on board some ships lying in the harbour, he had been permitted to continue an open intercourse with the inhabitants, which enabled him to communicate freely with the royalists; and to concert plans of future co-operation. This intercourse was broken off by the arrival of the Commander-in-chief;—yet a plot was formed, through the agency of the mayor, to rise in favour of the British on their landing; and, as was understood, to seize and deliver up General Washington himself. This plot had extended to the American army, and even to the general's guards. It was fortunately discovered in time to be defeated; and some of the persons concerned were executed. About the same time a similar plot was discovered in the neighbourhood of Albany; and there too, executions were found necessary.

Hitherto, the sole avowed object of the war had been a redress of grievances. The utmost horror had been expressed at the idea of attempting independence; and the most anxious desire of re-establishing the union which had so long subsisted between the two countries on its ancient principles, was openly and generally declared. But however sincere these declarations might have been at the commencement of the conflict, the operation of hostilities was infallible. To profess allegiance and respect for a monarch with whom they were at open war, was an absurdity too great to be long continued. The human mind, when it receives a strong impulse, does not, like projectiles, stop at the point to which the force originally applied may have been calculated to carry it. Various causes act upon it in its course. When the appeal was made to arms, a great majority of those who

guided the councils and led the forces of America, wished only for a repeal of the acts of parliament which had occasioned their resistance to the authority of the crown; and would have been truly unwilling to venture upon the unexplored field of self-government. For some time, prayers were offered for the king, in the performance of divine service; and, in the proclamation of a fast by congress, in June, 1775, one of the motives for recommending it, was, to beseech the Almighty "to bless our rightful sovereign King George III. and inspire him with wisdom."



Independence Hall, Philadelphia

In this unpretentious brick building, erected in 1729-34, and intimately associated with the birth of the nation, the Continental Congress met, Washington was made Commander-in-Chief of the American army in 1775, and the Declaration of Independence was adopted on July 4, 1776, and read to the people assembled in the street. It is now a museum of Revolutionary and historical relics.

Measures leading to independence.

The prejudices in favour of a connexion with England, and of the English constitution, gradually, but rapidly yielded to republican principles, and a

desire for independence. New strength was every day added to the opinions, that a cordial reconciliation with Great Britain had become impossible; that mutual confidence could never be restored; that reciprocal jealousy, suspicion, and hate, would take the place of that affection, which could alone render such a connexion happy and beneficial; that even the commercial dependence of America upon Britain, was greatly injurious to the former, and that incalculable benefits must be derived from opening to themselves the markets of the world; that to be governed by a distant nation or sovereign, unacquainted with, and unmindful of their interests, would, even if reinstated in their former situation, be an evil too great to be voluntarily borne. But victory alone could restore them to that situation—and victory would give them independence. The hazard was the same; and since the risk of every thing was unavoidable, the most valuable object ought, in common justice, and common prudence, to be the reward of success. With such horror, too, did they view the present war, as to suppose it could not possibly receive the support of a free people. The alacrity therefore with which the English nation entered into it, was ascribed to a secret and dangerous influence, which was, with rapid progress, undermining the liberties and the morals of the Mother Country; and which, it was feared, would cross the Atlantic, and infect the principles of the colonists likewise, should the ancient connexion be restored. The intercourse of America with the world, and her own experience, had not then been sufficient to teach her the important truth, that the many, as often as the few, can abuse power, and trample on the weak, without perceiving that they are tyrants; that they too, not unfrequently, close their eyes against the light; and shut their ears against the plainest evidence, and the most conclusive reasoning.

It was also urged, with great effect, that the possibility of obtaining foreign aid would be much increased by holding out the dismemberment of the British empire, to the rivals of that nation, as an inducement to engage in the contest.

American independence became the general theme of conversation; and more and more the general wish. The measures of congress took their complexion from the temper of the people. Their proceedings against the disaffected became more and more vigorous; their language respecting the British government was less the language of subjects, and better calculated to turn the public attention towards congress and the provincial assemblies,

as the sole and ultimate rulers of the country. General letters of marque and reprisal were granted; and the American ports were opened to all nations and people, not subject to the British crown.

May 6.

At length, a measure was adopted, which was considered by congress and by America in general, as deciding the question of independence. Hitherto, it had been recommended to particular colonies, to establish temporary institutions for the conduct of their affairs during the existence of the contest; but now, a resolution was offered, recommending generally to such colonies as had not already established them, the adoption of governments adequate to the exigency. Mr. John Adams, Mr. Rutledge, and Mr. Richard Henry Lee, all zealous advocates for independence, were appointed a committee, to prepare a proper preamble to the resolution. The report of these gentlemen was accepted, and the resolution passed.[\[34\]](#)

May 15.

The provincial assemblies and conventions acted on this recommendation; and governments were generally established. In Connecticut and Rhode Island, it was deemed unnecessary to make any change in their actual situation, because, in those colonies, the executive, as well as the whole legislature, had always been elected by themselves. In Maryland, Pennsylvania, and New York, some hesitation was at first discovered; and the assemblies appeared unwilling to take this decisive step. The public opinion, however, was in favour of it, and finally prevailed.

The several colonies, now contemplating themselves as sovereign states, and mingling with the arduous duty of providing means to repel a powerful enemy, the important and interesting labour of framing governments for themselves and their posterity, exhibited the novel spectacle of matured and enlightened societies, uninfluenced by external or internal force, devising, according to their own judgments, political systems for their own government.

With the exceptions already stated, of Connecticut and Rhode Island, whose systems had ever been in a high degree democratic, the hitherto untried principle was adopted, of limiting the departments of governments by a written constitution, prescribing bounds not to be transcended by the legislature itself.

The solid foundations of a popular government were already laid in all the colonies. The institutions received from England were admirably calculated to prepare the way for temperate and rational republics. No hereditary powers had ever existed; and every authority had been derived either from the people or the king. The crown being no longer acknowledged, the people remained the only source of legitimate power. The materials in their possession, as well as their habits of thinking, were adapted only to governments in all respects representative; and such governments were universally adopted.

The provincial assemblies, under the influence of congress, took up the question of independence; and, in some instances, authorized their representatives in the great national council, to enter into foreign alliances. Many declared themselves in favour of a total and immediate separation from Great Britain; and gave instructions to their representatives conforming to this sentiment.

June 7.

Thus supported by public opinion, congress determined to take this decisive step; and on the 7th of June, a resolution to that effect was moved by Richard Henry Lee, and seconded by John Adams. The resolution was referred to a committee, who reported it in the following terms. "Resolved, that these United Colonies are, and of right ought to be free and independent states; and that all political connexion between them and the state of Great Britain is, and ought to be, totally dissolved."

June 28.

This resolution was referred to a committee of the whole, in which it was debated on Saturday the 8th, and Monday the 10th of June. It appearing that New York, New Jersey, Pennsylvania, Delaware, Maryland, and South Carolina were not yet matured for the measure, but were fast advancing to that state, the debate was adjourned to the first of July, when it was resumed. In the mean time, a committee^[35] was appointed to prepare the declaration of independence, which was reported on the 28th of June, and laid on the table. On the first of July the debate on the original resolution was resumed. The question was put in the evening of that day, and carried in the affirmative by the votes of New Hampshire, Connecticut, Massachusetts, Rhode Island, New Jersey, Maryland, Virginia, North Carolina, and Georgia, against Pennsylvania and South Carolina. Delaware

was divided; and the delegates from New York, having declared their approbation of the resolution, and their conviction that it was approved by their constituents also, but that their instructions, which had been drawn near twelve months before, enjoined them to do nothing which might impede reconciliation with the mother country, were permitted to withdraw from the question. The report of the committee was put off till the next day at the request of Mr. Rutledge of South Carolina, who expressed the opinion that his colleagues would then concur in the resolution for the sake of unanimity. July 2. The next day South Carolina did concur in it. The votes of Pennsylvania and Delaware were also changed by the arrival of other members. Congress then proceeded to consider the declaration of independence. After some amendments[36] it was approved, and signed by every member present except Mr. Dickenson.[37]

Independence declared.

July 4.

This declaration was immediately communicated to the armies, who received it with enthusiasm. It was also proclaimed throughout the United States, and was generally approved by those who had engaged in the opposition to the claims of the British Parliament. Some few individuals, who had been zealous supporters of all measures which had for their object only a redress of grievances, and in whose bosoms the hope of accommodation still lingered,—either too timid to meet the arduous conflict which this measure rendered inevitable, or, sincerely believing that the happiness of America would be best consulted by preserving their political connexion with Great Britain, viewed the dissolution of that connexion with regret. Others, who afterwards deserted the American cause, attributed their defection to this measure. It was also an unfortunate truth, that in the whole country between New England and the Potowmac, which was now become the great theatre of action, although the majority was in favour of independence, a formidable minority existed, who not only refused to act with their countrymen, but were ready to give to the enemy every aid in their power.

It can not, however, be questioned, that the declaration of independence was wise, and well-timed. The soundest policy required that the war should no longer be a contest between subjects and their acknowledged sovereign.

CHAPTER V.

Lord and Sir William Howe arrive before New York.... Circular letter of Lord Howe.... State of the American Army.... The British land in force on Long Island.... Battle of Brooklyn.... Evacuation of Long Island.... Fruitless negotiations.... New York evacuated.... Skirmish on the heights of Haerlem.... Letter on the state of the army.

1776

While congress was deliberating in Philadelphia on the great question of independence, the British fleet appeared before New York.

Lord and Sir William Howe arrive before New York.

On evacuating Boston, General Howe had retired to Halifax; where he purposed to remain till reinforcements should arrive from England. But the situation of his army in that place was so uncomfortable, and the delays in the arrival of the troops from Europe were so great, that he at length resolved to sail for New York, with the forces already under his command.

June 10.

In the latter end of June, he arrived off Sandy Hook, in the Grey Hound; and, on the 29th of that month, the first division of the fleet from Halifax reached that place. The rear division soon followed; and the troops were landed on Staten Island, July 3 & 4. on the third and fourth of July. They were received with great demonstrations of joy by the inhabitants, who took the oaths of allegiance to the British crown, and embodied themselves under the authority of the late Governor Tryon, for the defence of the island. Strong assurances were also received from Long Island, and the neighbouring parts of New Jersey, of the favourable dispositions of a great proportion of the people to the royal cause.

It was foreseen that the provisions remaining on the small islands about New York, must fall into the possession of the invading army, and General Washington had intended to remove them to a place of safety; but, the existing state of public opinion requiring the co-operation of the several committees, this measure of wise precaution could not be completely

executed; and General Howe, on his arrival, obtained ample supplies for his army.

The command of the fleet destined for the American service was intrusted to Lord Howe, the brother of the general; and they were both constituted commissioners for restoring peace to the colonies, and granting pardons, with such exceptions as they should think proper to make. He arrived at Staten Island on the twelfth of July.

July 12.

The difficulty of closing the Hudson against an enemy possessing a powerful fleet was soon demonstrated. Two frigates passed the batteries without injury, and took a station which enabled them to cut off the communication by water, between the army at New York, and that at Ticonderoga. An attempt to set these frigates on fire failed in its execution, and only a tender was burnt;—soon after which these vessels returned to the fleet.

Circular letter of Lord Howe.

July 14.

Lord Howe was not deterred by the declaration of Independence from trying the influence of his powers for pacification. He sent on shore, by a flag, a circular letter, dated off the coast of Massachusetts, addressed severally to the late governors under the crown, enclosing a declaration, which he requested them to make public. This declaration announced his authority to grant pardons to any number or description of persons, who, during the tumult and disorders of the times, might have deviated from their just allegiance, and who might be willing, by a speedy return to their duty, to reap the benefits of the royal favour; and to declare any colony, town, port, or place, in the peace and under the protection of the crown, and excepted from the penal provisions of the act of parliament prohibiting all trade and intercourse with the colonies. Assurances were also given that the meritorious services of all persons who should aid and assist in restoring public tranquillity in the colonies, or in any parts thereof, would be duly considered.

July 19.

These papers were immediately transmitted by the Commander-in-chief to congress, who resolved that they should "be published in the several gazettes, that the good people of the United States might be informed of

what nature were the commissioners, and what the terms, with the expectation of which, the insidious court of Britain had sought to amuse and disarm them; and that the few who still remained suspended by a hope, founded either in the justice or moderation of their late king, might now, at length, be convinced, that the valour alone of their country is to save its liberties."

About the same time, Lord Howe sent, with a flag, a letter addressed to "George Washington, esquire," which the General refused to receive, as "it did not acknowledge the public character with which he was invested by congress, and in no other character could he have any intercourse with his lordship." In a resolution approving this proceeding, congress directed, "that no letter or message be received on any occasion whatever from the enemy, by the Commander-in-chief, or others, the commanders of the American army, but such as shall be directed to them in the characters they respectively sustain."

July 20.

The commissioners felt some difficulty in recognizing either the civil or military character conferred on individuals by the existing powers in America; and yet it was desirable, either for the purpose of effecting a pacification, or, if that should be impracticable, of increasing the divisions already existing, to open negotiations, and hold out the semblance of restoring peace. They cast about for means to evade this preliminary obstacle to any discussion of the terms they were authorized to propose; and, at length, Colonel Patterson, adjutant general of the British army, was sent on shore by General Howe, with a letter directed to George Washington, &c. &c. &c. He was introduced to the general, whom he addressed by the title of "Excellency;" and, after the usual compliments, opened the subject of his mission, by saying, that General Howe much regretted the difficulties which had arisen respecting the address of the letters; that the mode adopted was deemed consistent with propriety, and was founded on precedent, in cases of ambassadors and plenipotentiaries, where disputes or difficulties had arisen about rank; that General Washington might recollect he had, last summer, addressed a letter to "the honourable William Howe;" that Lord, and General Howe, did not mean to derogate from his rank, or the respect due to him, and that they held his person and character in the highest esteem;—but that the direction, with the

addition of &c. &c. &c. implied every thing which ought to follow. Colonel Patterson then produced a letter which he said was the same that had been sent, and which he laid on the table.

The General declined receiving it, and said, that a letter directed to a person in a public character, should have some description or indication of that character; otherwise it would be considered as a mere private letter. It was true the *etceteras* implied every thing, and they also implied any thing; that the letter to General Howe, alluded to, was an answer to one received from him under a like address; which, having been taken by the officer on duty, he did not think proper to return, and therefore answered in the same mode of address; and that he should absolutely decline any letter relating to his public station, directed to him as a private person.

Colonel Patterson then said, that General Howe would not urge his delicacy farther, and repeated his assertions that no failure of respect was intended.

After some conversation relative to the treatment of prisoners, Colonel Patterson said, that the goodness and benevolence of the king had induced him to appoint Lord Howe, and General Howe, his commissioners to accommodate the unhappy dispute at present subsisting: that they had great powers, and would derive much pleasure from effecting the accommodation; and that he wished this visit to be considered as the first advance towards so desirable an object.

General Washington replied, that he was not vested with any powers on this subject; but he would observe that, so far as he could judge from what had yet transpired, Lord Howe and General Howe were only empowered to grant pardons; that those who had committed no fault, wanted no pardon; and that the Americans were only defending what they deemed their indubitable rights. This, Colonel Patterson said, would open a very wide field for argument: and, after expressing his fears that an adherence to forms might obstruct business of the greatest moment and concern, he took his leave.

The substance of this conversation was communicated to congress, who directed its publication.

August.

The reinforcements to the British army, of whom about four hundred and fifty had been captured by the American cruisers, were now arriving daily

from Europe; and General Howe had also been joined by the troops from Charleston. His strength was estimated at twenty-four thousand men.

State of the American army.

To this army, alike formidable for its numbers, its discipline, and its equipments,—aided in its operations by a numerous fleet, and conducted by commanders of skill and experience, was opposed a force, unstable in its nature,—incapable, from its structure, of receiving discipline,—and inferior to its enemy, in numbers, in arms, and in every military equipment. It consisted, when General Howe landed on Staten Island, of ten thousand men, who were much enfeebled by sickness. The diseases which always afflict new troops, were increased by exposure to the rain and night air, without tents. At the instance of the General, some regiments, stationed in the different states, were ordered to join him; and, in addition to the requisitions of men to serve until December—requisitions not yet complied with—the neighbouring militia were called into service for the exigency of the moment. Yet, in a letter written to congress on the 8th of August, he stated that "for the several posts on New York, Long, and Governor's Island, and Paulus Hook, the army consisted of only seventeen thousand two hundred and twenty-five men, of whom three thousand six hundred and sixty-eight were sick; and that, to repel an immediate attack, he could count certainly on no other addition to his numbers, than a battalion from Maryland under the command of Colonel Smallwood." This force was rendered the more inadequate to its objects by being necessarily divided for the defence of posts, some of which were fifteen miles distant from others, with navigable waters between them.

"These things," continued the letter, "are melancholy, but they are nevertheless true. I hope for better. Under every disadvantage, my utmost exertions shall be employed to bring about the great end we have in view; and, so far as I can judge from the professions and apparent dispositions of my troops, I shall have their support. The superiority of the enemy, and the expected attack, do not seem to have depressed their spirits. These considerations lead me to think that though the appeal may not terminate so happily as I could wish, yet the enemy will not succeed in their views without considerable loss. Any advantage they may gain, I trust will cost them dear."

Soon after this letter, the army was reinforced by Smallwood's regiment, and by two regiments from Pennsylvania, with a body of New England and New York militia, which increased it to twenty-seven thousand men, of whom one fourth were sick.

A part of the army was stationed on Long Island, under the command of Major General Sullivan. The residue occupied different stations on York Island, except two small detachments, one on Governor's Island, and the other at Paulus Hook; and except a part of the New York militia under General Clinton, who were stationed on the Sound, towards New Rochelle, and about East and West Chester, in order to oppose any sudden attempt which might be made to land above Kingsbridge, and cut off the communication with the country.

July 2.

Expecting daily to be attacked, and believing that the influence of the first battle would be considerable, the Commander-in-chief employed every expedient which might act upon that enthusiastic love of liberty, that indignation against the invaders of their country, and that native courage, which were believed to animate the bosoms of his soldiers; and which were relied on as substitutes for discipline and experience. "The time," say his orders issued soon after the arrival of General Howe, "is now near at hand, which must determine whether Americans are to be freemen or slaves; whether they are to have any property they can call their own; whether their houses and farms are to be pillaged and destroyed, and themselves consigned to a state of wretchedness from which no human efforts will deliver them. The fate of unborn millions will now depend, under God, on the courage and conduct of this army. Our cruel and unrelenting enemy leaves us only the choice of a brave resistance, or the most abject submission. We have therefore to resolve to conquer or to die. Our own, our country's honour, call upon us for a vigorous and manly exertion; and if we now shamefully fail, we shall become infamous to the whole world. Let us then rely on the goodness of our cause, and the aid of the Supreme Being, in whose hands victory is, to animate and encourage us to great and noble actions. The eyes of all our countrymen are now upon us, and we shall have their blessings and praises, if happily we are the instruments of saving them from the tyranny meditated against them. Let us therefore animate and encourage each other, and show the whole world that a freeman contending

for liberty, on his own ground, is superior to any slavish mercenary on earth."

To the officers, he recommended coolness in time of action; and to the soldiers, strict attention and obedience, with a becoming firmness and spirit.

He assured them that any officer, soldier, or corps, distinguished by any acts of extraordinary bravery, should most certainly meet with notice and rewards; whilst, on the other hand, those who should fail in the performance of their duty, would as certainly be exposed and punished.

July 21.

Whilst preparations were making for the expected engagement, intelligence was received of the repulse of the British squadron which had attacked fort Moultrie. The Commander-in-chief availed himself of the occasion of communicating this success to his army, to add a spirit of emulation to the other motives which should impel them to manly exertions. "This glorious example of our troops," he said, "under the like circumstances with ourselves, the General hopes, will animate every officer and soldier to imitate, and even to out-do them, when the enemy shall make the same attempt on us. With such a bright example before us of what can be done by brave men fighting in defence of their country, we shall be loaded with a double share of shame and infamy, if we do not acquit ourselves with courage, and manifest a determined resolution to conquer or die."

As the crisis approached, his anxiety increased. Endeavouring to breathe into his army his own spirit, and to give them his own feeling, he thus addressed them. "The enemy's whole reinforcement is now arrived; so that an attack must, and will soon be made. The General, therefore, again repeats his earnest request that every officer and soldier will have his arms and ammunition in good order; keep within his quarters and encampments as far as possible; be ready for action at a moment's call; and when called to it, remember, that liberty, property, life, and honour, are all at stake; that upon their courage and conduct rest the hopes of their bleeding and insulted country; that their wives, children, and parents, expect safety from them only; and that we have every reason to believe, that heaven will crown with success so just a cause.

"The enemy will endeavour to intimidate by show and appearance; but remember, they have been repulsed on various occasions by a few brave

Americans; their cause is bad; and if opposed with firmness and coolness on their first onset, with our advantage of works, and knowledge of the ground, the victory is most assuredly ours. Every good soldier will be silent and attentive, wait for orders, and reserve his fire until he is sure of doing execution; of this the officers are to be particularly careful."

He directed explicitly that any soldier who should attempt to conceal himself, or retreat without orders, should instantly be shot down; and solemnly promised to notice and reward those who should distinguish themselves. Thus did he, by infusing those sentiments which would stimulate to the greatest individual exertion, into every bosom, endeavour to compensate for the want of arms, of discipline, and of numbers.

As the defence of Long Island was intimately connected with that of New York, a brigade had been stationed at Brooklyn, a post capable of being maintained for a considerable time. An extensive camp had been marked out and fortified at the same place. Brooklyn is a village on a small peninsula made by East river, the Bay, and Gowanus Cove. The encampment fronted the main land of the island, and the works stretched quite across the peninsula, from Waalebought Bay in the East river on the left, to a deep marsh on a creek emptying into Gowanus Cove, on the right. The rear was covered and defended against an attack from the ships, by strong batteries on Red Hook and on Governor's Island, which in a great measure commanded that part of the bay, and by other batteries on East river, which kept open the communication with York Island. In front of the camp was a range of hills covered with thick woods, which extended from east to west nearly the length of the island, and across which were three different roads leading to Brooklyn ferry. These hills, though steep, are every where passable by infantry.

The British land in force on Long Island.

The movements of General Howe indicating an intention to make his first attack on Long Island, General Sullivan was strongly reinforced. Early in the morning of the twenty-second, the principal part of the British army, under the command of General Clinton, landed under cover of the guns of the fleet, and extended from the ferry at the Narrows, through Utrecht and Gravesend, to the village of Flatland.[\[38\]](#)

July 23.

Confident that an engagement must soon take place, General Washington made still another effort to inspire his troops with the most determined courage. "The enemy," said he, in addressing them, "have now landed on Long Island, and the hour is fast approaching, on which the honour and success of this army, and the safety of our bleeding country depend. Remember, officers and soldiers, that you are freemen, fighting for the blessings of liberty—that slavery will be your portion and that of your posterity, if you do not acquit yourselves like men." He repeated his instructions respecting their conduct in action, and concluded with the most animating and encouraging exhortations.

July 25.

Major General Putnam was now directed to take command at Brooklyn, with a reinforcement of six regiments; and he was charged most earnestly by the Commander-in-chief, to be in constant readiness for an attack, and to guard the woods between the two camps with his best troops.

General Washington had passed the day at Brooklyn, making arrangements for the approaching action; and, at night, had returned to New York.

The Hessians under General De Heister composed the centre of the British army at Flatbush; Major General Grant commanded the left wing which extended to the coast, and the greater part of the British forces under General Clinton. Earl Percy and Lord Cornwallis turned short to the right, and approached the opposite coast of Flatland.[\[39\]](#)

The two armies were now separated from each other by the range of hills already mentioned. The British centre at Flatbush was scarcely four miles distant from the American lines at Brooklyn; and a direct road led across the heights from the one to the other. Another road, rather more circuitous than the first, led from Flatbush by the way of Bedford, a small village on the Brooklyn side of the hills. The right and left wings of the British army were nearly equi-distant from the American works, and about five or six miles from them. The road leading from the Narrows along the coast, and by the way of Gowan's Cove, afforded the most direct route to their left; and their right might either return by the way of Flatbush and unite with the centre, or take a more circuitous course, and enter a road leading from Jamaica to Bedford. These several roads unite between Bedford and Brooklyn, a small distance in front of the American lines.

The direct road from Flatbush to Brooklyn was defended by a fort which the Americans had constructed in the hills; and the coast and Bedford roads were guarded by detachments posted on the hills within view of the British camp. Light parties of volunteers were directed to patrol on the road leading from Jamaica to Bedford; about two miles from which, near Flatbush, Colonel Miles of Pennsylvania was stationed with a regiment of riflemen. The convention of New York had ordered General Woodhull, with the militia of Long Island, to take post on the high grounds, as near the enemy as possible; but he remained at Jamaica, and seemed scarcely to suppose himself under the control of the regular officer commanding on the island.

July 27.

About nine at night, General Clinton silently drew off the van of the British army across the country, in order to seize a pass in the heights, about three miles east of Bedford, on the Jamaica road. In the morning, about two hours before day-break, within half a mile of the pass, his patrols fell in with and captured one of the American parties, which had been stationed on this road. Learning from his prisoners that the pass was unoccupied, General Clinton immediately seized it; and, on the appearance of day, the whole column passed the heights, and advanced into the level country between them and Brooklyn.[\[40\]](#)

Before Clinton had secured the passes on the road from Jamaica, General Grant advanced along the coast at the head of the left wing, with ten pieces of cannon. As his first object was to draw the attention of the Americans from their left, he moved slowly, skirmishing as he advanced with the light parties stationed on that road.[\[41\]](#)

This movement was soon communicated to General Putnam, who reinforced the parties which had been advanced in front; and, as General Grant continued to gain ground, still stronger detachments were employed in this service. About three in the morning, Brigadier General Lord Stirling was directed to meet the enemy, with the two nearest regiments, on the road leading from the Narrows. Major General Sullivan, who commanded all the troops without the lines, advanced at the head of a strong detachment on the road leading directly to Flatbush; while another detachment occupied the heights between that place and Bedford.

About the break of day, Lord Stirling reached the summit of the hills, where he was joined by the troops which had been already engaged, and

were retiring slowly before the enemy, who almost immediately appeared in sight. A warm cannonade was commenced on both sides, which continued for several hours; and some sharp, but not very close skirmishing took place between the infantry. Lord Stirling, being anxious only to defend the pass he guarded, could not descend in force from the heights; and General Grant did not wish to drive him from them until that part of the plan, which had been entrusted to Sir Henry Clinton, should be executed.

Battle of Brooklyn and evacuation of Long Island.

In the centre, General De Heister, soon after day-light, began to cannonade the troops under General Sullivan; but did not move from his ground at Flatbush, until the British right had approached the left and rear of the American line. In the mean time, in order the more effectually to draw their attention from the point where the grand attack was intended, the fleet was put in motion, and a heavy cannonade was commenced on the battery at Red Hook.

About half past eight, the British right having then reached Bedford, in the rear of Sullivan's left, General De Heister ordered Colonel Donop's corps to advance to the attack of the hill; following, himself, with the centre of the army. The approach of Clinton was now discovered by the American left, which immediately endeavoured to regain the camp at Brooklyn. While retiring from the woods by regiments, they encountered the front of the British. About the same time, the Hessians advanced from Flatbush, against that part of the detachment which occupied the direct road to Brooklyn.^[42] Here, General Sullivan commanded in person; but he found it difficult to keep his troops together long enough to sustain the first attack. The firing heard towards Bedford had disclosed the alarming fact that the British had turned their left flank, and were getting completely into their rear. Perceiving at once the full danger of their situation, they sought to escape it by regaining the camp with the utmost possible celerity. The sudden rout of this party enabled De Heister to detach a part of his force against those who were engaged near Bedford. In that quarter, too, the Americans were broken, and driven back into the woods; and the front of the column led by General Clinton, continuing to move forward, intercepted and engaged those who were retreating along the direct road from Flatbush. Thus attacked both in front and rear, and alternately driven by the British on the Hessians, and by the Hessians back again on the British, a succession of

skirmishes took place in the woods, in the course of which, some parts of corps forced their way through the enemy, and regained the lines of Brooklyn, and several individuals saved themselves under cover of the woods; but a great proportion of the detachment was killed or taken. The fugitives were pursued up to the American works; and such is represented to have been the ardour of the British soldiers, that it required the authority of their cautious commander to prevent an immediate assault.

The fire towards Brooklyn gave the first intimation to the American right, that the enemy had gained their rear. Lord Stirling perceived the danger, and that he could only escape it by retreating instantly across the creek. This movement was immediately directed; and, to secure it, his lordship determined to attack, in person, a British corps under Lord Cornwallis, stationed at a house rather above the place at which he intended to cross the creek. About four hundred men of Smallwood's regiment were drawn out for this purpose, and the attack was made with great spirit. This small corps was brought up several times to the charge; and Lord Stirling stated that he was on the point of dislodging Lord Cornwallis from his post; but the force in his front increasing, and General Grant also advancing on his rear, the brave men he commanded were no longer able to oppose the superior numbers which assailed them on every quarter; and those who survived were, with their General, made prisoners of war. This attempt, though unsuccessful, gave an opportunity to a large part of the detachment to save themselves by crossing the creek.

The loss sustained by the American army in this battle could not be accurately ascertained by either party. Numbers were supposed to have been drowned in the creek, or suffocated in the marsh, whose bodies were never found; and exact accounts from the militia are seldom to be obtained, as the list of the missing is always swelled by those who return to their homes. General Washington did not admit it to exceed a thousand men; but in this estimate he must have included only the regular troops. In the letter written by General Howe, the amount of prisoners is stated at one thousand and ninety-seven; among whom were Major General Sullivan, and Brigadiers Lord Stirling and Woodhull, by him named Udell. He computes the loss of the Americans at three thousand three hundred men; but his computation is probably excessive. He supposes, too, that the troops engaged on the heights, amounted to ten thousand; but they could not have much exceeded

half that number. His own loss is stated at twenty-one officers, and three hundred and forty-six privates; killed, wounded, and taken.

As the action became warm, General Washington passed over to the camp at Brooklyn, where he saw, with inexpressible anguish, the destruction in which his best troops were involved, and from which it was impossible to extricate them. Should he attempt any thing in their favour with the men remaining within the lines, it was probable the camp itself would be lost, and that whole division of his army destroyed. Should he bring over the remaining battalions from New York, he would still be inferior in point of numbers; and his whole army, perhaps the fate of his country, might be staked on the issue of a single battle thus inauspiciously commenced. Compelled to behold the carnage of his troops, without being able to assist them, his efforts were directed to the preservation of those which remained.

July 28.

Believing the Americans to be much stronger than they were in reality, and unwilling to commit any thing to hazard, General Howe made no immediate attempt to force their lines. He encamped in front of them; and, on the twenty-eighth at night, broke ground in form, within six hundred yards of a redoubt on the left.

July 29.

In this critical state of things, General Washington determined to withdraw from Long Island. This difficult movement was effected on the night of the twenty-eighth, with such silence, that all the troops and military stores, with the greater part of the provisions, and all the artillery, except such heavy pieces as could not be drawn through the roads, rendered almost impassable by the rains which had fallen, were carried over in safety. Early next morning, the British out-posts perceived the rear guard crossing the East river, out of reach of their fire.

From the commencement of the action on the morning of the twenty-seventh, until the American troops had crossed the East river on the morning of the twenty-ninth, the exertions and fatigues of the Commander-in-chief were incessant. Throughout that time, he never closed his eyes, and was almost constantly on horseback.

The manner in which this critical operation was executed, and the circumstances under which it was performed, added greatly to the

reputation of the American general, in the opinion of all military men. To withdraw, without loss, a defeated, dispirited, and undisciplined army from the view of an experienced and able officer, and to transport them in safety across a large river, while watched by a numerous and vigilant fleet, require talents of no ordinary kind; and the retreat from Long Island may justly be ranked among those skilful manoeuvres which distinguish a master in the art of war.

The attempt to defend Long Island was so perilous in itself, and so disastrous in its issue, that it was condemned by many at the time, and is yet represented as a great error of the Commander-in-chief. But, in deciding on the wisdom of measures, the event will not always lead to a correct judgment. Before a just opinion can be formed, it is necessary to consider the previous state of things—to weigh the motives which induced the decision—and to compare the value of the object, and the probability of securing it, with the hazards attending the attempt.

It was very desirable to preserve New York, if practicable; or, if that could not be done, to consume the campaign in the struggle for that place. The abandonment of Long Island, besides giving the enemy secure and immediate possession of an extensive and fertile country, would certainly facilitate the success of his attempt upon New York. It was therefore to be avoided, if possible.

The impossibility of avoiding it was not evident until the battle was fought. It is true, that the American force on the island could not have been rendered equal, even in point of numbers, to that of the British; but, with the advantage of the defensible country through which the assailants were to pass, and of a fortified camp which could be attacked only on one side, hopes might be entertained, without the imputation of being oversanguine, of maintaining the position for a considerable time; and, ultimately, of selling it at a high price. This opinion is supported by the subsequent movements of General Howe, who, even after the victory of the twenty-seventh, was unwilling to hazard an assault on the American works, without the co-operation of the fleet; but chose rather to carry them by regular approaches. Nor would the situation of the troops on Long Island have been desperate, even in the event of a conjoint attack by land and water, before their strength and spirits were broken by the action of the twenty-seventh. The East river was guarded by strong batteries on both sides, and the

entrance into it from the bay was defended by Governor's Island, which was fortified, and in which two regiments were stationed. The ships could not lie in that river, without first silencing those batteries—a work not easily accomplished. The aid of the fleet, therefore, could be given only at the point of time when a storm of the works should be intended; and when that should appear practicable, the troops might be withdrawn from the island.

There was then considerable hazard in maintaining Long Island; but not so much as to demonstrate the propriety of relinquishing a post of such great importance, without a struggle.

With more appearance of reason, the General has been condemned for not having guarded the road which leads over the hills from Jamaica to Bedford.

The written instructions given to the officer commanding on Long Island, two days previous to the action, directed that the woods should be well guarded, and the approach of the enemy through them rendered as difficult as possible. But his numbers were not sufficient to furnish detachments for all the defiles through the mountains; and if a corps, capable of making an effectual resistance, had been posted on this road, and a feint had been made on it, while the principal attack was by the direct road from Flatbush, or by that along the coast, the events of the day would probably have been not less disastrous. The columns marching directly from Flatbush must, on every reasonable calculation, have been in possession of the plain in the rear of the detachment posted on the road from Jamaica, so as to intercept its retreat to the camp. So great is the advantage of those who attack, in being able to choose the point against which to direct their grand effort.

The most advisable plan, then, appears to have been, to watch the motions of the enemy so as to be master of his designs; to oppose with a competent force every attempt to seize the heights; and to guard all the passes in such a manner as to receive notice of his approach through any one of them, in sufficient time to recall the troops maintaining the others.

This plan was adopted—and the heavy disasters of the day are attributable, principally, to the failure of those charged with the execution of that very important part of it which related to the Jamaica road. The letter of General Howe states that an American patrolling party was taken on this road; and General Washington, in a private and confidential communication to a friend, says, "This misfortune happened, in a great measure, by two

detachments of our people who were posted in two roads leading through a wood, to intercept the enemy in their march, suffering a surprise, and making a precipitate retreat."

The events of this day, too, exhibited a practical demonstration of a radical defect in the structure of the army. It did not contain a single corps of cavalry. That miscalculating economy which refuses the means essential to the end, was not sufficiently relaxed to admit of so expensive an establishment. Had the General been furnished with a few troops of light-horse, to serve merely as videts, it is probable that the movement so decisive of the fate of the day could not have been made unnoticed. The troops on the lines do not appear to have observed the column which was withdrawn, on the evening of the twenty-sixth, from Flatbush to Flatland. Had this important manoeuvre been communicated, it would, most probably, have turned the attention of General Putnam, more particularly, to the Jamaica road. It is to the want of videts, that a failure to obtain this important intelligence is to be ascribed. The necessity of changing the officer originally intrusted with the command, was also an unfortunate circumstance, which probably contributed to the event which happened.

Whatever causes might have led to this defeat, it gave a gloomy aspect to the affairs of America. Heretofore, her arms had been frequently successful, and her soldiers had always manifested a great degree of intrepidity. A confidence in themselves, a persuasion of superiority over the enemy, arising from the goodness of their cause, and their early and habitual use of fire arms, had been carefully encouraged. This sentiment had been nourished by all their experience preceding this event. When they found themselves, by a course of evolutions in which they imagined they perceived a great superiority of military skill, encircled with unexpected dangers, from which no exertions could extricate them, their confidence in themselves and in their leaders was greatly diminished, and the approach of the enemy inspired the apprehension that some stratagem was concealed, from which immediate flight alone could preserve them.

September 2.

In a letter from General Washington to congress, the state of the army after this event was thus feelingly described: "Our situation is truly distressing. The check our detachment sustained on the 27th ultimo, has dispirited too great a proportion of our troops, and filled their minds with

apprehension and despair. The militia, instead of calling forth their utmost efforts to a brave and manly opposition, in order to repair our losses, are dismayed, intractable, and impatient to return. Great numbers of them have gone off; in some instances, almost by whole regiments; in many, by half ones and by companies, at a time. This circumstance, of itself, independent of others, when fronted by a well appointed enemy, superior in number to our whole collected force, would be sufficiently disagreeable; but when it is added, that their example has infected another part of the army; that their want of discipline, and refusal of almost every kind of restraint and government, have rendered a like conduct but too common in the whole; and have produced an entire disregard of that order and subordination necessary for the well doing of an army, and which had been before inculcated as well as the nature of our military establishment would admit of; our condition is still more alarming, and with the deepest concern I am obliged to confess my want of confidence in the generality of the troops.

"All these circumstances fully confirm the opinion I ever entertained, and which I, more than once, in my letters, took the liberty of mentioning to congress, that no dependence could be placed in a militia, or other troops than those enlisted and embodied for a longer period than our regulations have hitherto prescribed. I am persuaded, and am as fully convinced as of any one fact that has happened, that our liberties must, of necessity, be greatly hazarded, if not entirely lost, if their defence be left to any but a permanent army."

Fruitless negotiations.

The first use made by Lord Howe of the victory of the 27th of August, was to avail himself of the impression it had probably made on congress, by opening a negotiation in conformity with his powers as a commissioner. For this purpose, General Sullivan was sent on parole to Philadelphia, with a verbal message, the import of which was, "that though he could not at present treat with congress as a political body, yet he was very desirous of having a conference with some of its members, whom he would consider, for the present, only as private gentlemen, and meet them as such at any place they would appoint.

"That, in conjunction with General Howe, he had full powers to compromise the dispute between Great Britain and America, on terms advantageous to both; the obtaining of which detained him near two months

in England, and prevented his arrival in New York before the declaration of independence took place.

"That he wished a compact might be settled at this time, when no decisive blow was struck, and neither party could allege being compelled to enter into such agreement.

"That in case congress were disposed to treat, many things which they had not as yet asked, might, and ought to be granted them; and that if, upon the conference, they found any probable ground of an accommodation, the authority of congress must be afterwards acknowledged—otherwise the compact would not be complete."

This proposition was not without its embarrassments. Its rejection would give some countenance to the opinion, that, if independence were waved, a restoration of the ancient connexion between the two countries, on principles formerly deemed constitutional, was still practicable; an opinion which would have an unfavourable effect on the public sentiment. On the other hand, to enter into a negotiation under such circumstances, might excite a suspicion, that their determination to maintain the independence they had declared, was not immoveable; and that things were in such a situation, as to admit of some relaxation in the measures necessary for the defence of the country.

The answer given to Lord Howe, through General Sullivan, was, "that congress, being the representatives of the free and independent States of America, can not, with propriety, send any of its members to confer with his Lordship in their private characters; but that, ever desirous of establishing peace on reasonable terms, they will send a committee of their body to know whether he has any authority to treat with persons authorized by congress for that purpose, on behalf of America; and what that authority is;—and to hear such propositions as he shall think proper to make, respecting the same."

The President was, at the same time, directed to communicate to General Washington the opinion of congress, that no propositions for making peace "ought to be received or attended to, unless the same be made in writing, and addressed to the representatives of the United States in congress, or persons authorized by them: And if applications on that subject be made to him by any of the commanders of the British forces, that he inform them, that these United States, who entered into the war only for the defence of

their lives and liberties, will cheerfully agree to peace on reasonable terms, whenever such shall be proposed to them in manner aforesaid."

It is worthy of remark, that, in these resolutions, congress preserves the appearance of insisting on the independence of the United States, without declaring it to be the indispensable condition of peace.

Mr. Franklin, Mr. John Adams, and Mr. Edward Rutledge, all zealous supporters of independence, were appointed "to receive the communications of Lord Howe."

They waited on his Lordship; and, on their return, reported, that he had received them on the 11th of September, on Staten Island, opposite to Amboy, with great politeness.

He opened the conversation by acquainting them, that though he could not treat with them as a committee of congress, yet, as his powers enabled him to confer and consult with any private gentlemen of influence in the colonies, on the means of restoring peace between the two countries, he was glad of this opportunity of conferring with them on that subject; if they thought themselves at liberty to enter into a conference with him in that character. The committee observed to his Lordship, that, as their business was to hear, he might consider them in what light he pleased, and communicate to them any propositions he might be authorized to make for the purpose mentioned; but that they could consider themselves in no other character than that in which they were placed by order of congress. His Lordship then proceeded to open his views at some length. He offered peace only on the condition that the colonies should return to their allegiance and obedience to the British crown. He made no explicit propositions as inducements to this measure, but gave assurances that there was a good disposition in the king and his ministers to make the government easy to them, with intimations that, in case of submission, the offensive acts of parliament would be revised, and the instructions to the Governors reconsidered; so that, if any just causes of complaint were found in the acts, or any errors in government were found to have crept into the instructions, they might be amended or withdrawn.

The committee gave it as their opinion to his Lordship, that a return to the domination of Great Britain was not now to be expected. They mentioned the repeated humble petitions of the colonies to the king and parliament, which had been treated with contempt, and answered only by

additional injuries; the unexampled patience which had been shown under their tyrannical government; and that it was not until the late act of parliament, which denounced war against them, and put them out of the king's protection, that they declared their independence; that this declaration had been called for by the people of the colonies in general, and that every colony had approved it when made,—and all now considered themselves as independent states, and were settling, or had settled, their governments accordingly; so that it was not in the power of congress to agree for them that they should return to their former dependent state; that there was no doubt of their inclination for peace, and their willingness to enter into a treaty with Britain, that might be advantageous to both countries; that though his Lordship had, at present, no power to treat with them as independent states, he might, if there was the same good disposition in Britain, much sooner obtain fresh powers from his government, for that purpose, than powers could be obtained by congress, from the several colonies, to consent to a submission.

His Lordship then expressed his regret that no accommodation was like to take place, and put an end to the conference.

These fruitless negotiations produced no suspension of hostilities.

The British army, now in full possession of Long Island, was posted from Bedford to Hurlgate; and thus fronted and threatened York Island from its extreme southern point, to the part opposite the northern boundary of Long Island, a small distance below the heights of Haerlem; comprehending a space of about nine miles.

The two armies were divided only by the East river, which is generally less than a mile wide.

September 4.

Immediately after the victory at Brooklyn, dispositions were made by the enemy to attack New York, and a part of the fleet sailed round Long Island, and appeared in the Sound. Two frigates passed up the East river, without receiving any injury from the batteries, and anchored behind a small island which protected them from the American artillery. At the same time, the main body of the fleet lay at anchor close in with Governor's Island, from which the American troops had been withdrawn, ready to pass up either the North or East river, or both, and act against any part of York Island.

These movements indicated a disposition, not to make an attack directly on New York, as had been expected, but to land near Kingsbridge, and take a position which would cut off the communication of the American army with the country.

Aware of the danger of his situation, General Washington began to remove such stores as were not immediately necessary; and called a council of general officers for the purpose of deciding, whether New York should be evacuated without delay, or longer defended.

In his letter communicating to congress the result of this council, which was against an immediate evacuation, he manifested a conviction of the necessity of that measure, though he yielded to that necessity with reluctance. Speaking of the enemy, he observed, "It is now extremely obvious from their movements, from our intelligence, and from every other circumstance, that, having their whole army upon Long Island, except about four thousand men who remain on Staten Island, they mean to enclose us in this island, by taking post in our rear, while their ships effectually secure the front; and thus, by cutting off our communication with the country, oblige us to fight them on their own terms, or surrender at discretion; or, if that shall be deemed more adviseable, by a brilliant stroke endeavour to cut this army to pieces, and secure the possession of arms and stores, which they well know our inability to replace.

"Having their system unfolded to us, it becomes an important consideration how it could be most successfully opposed. On every side there is a choice of difficulties, and experience teaches us, that every measure on our part (however painful the reflection) must be taken with some apprehension, that all our troops will not do their duty.

"In deliberating upon this great question," he added, "it was impossible to forget that history, our own experience, the advice of our ablest friends in Europe, the fears of the enemy, and even the declarations of congress, demonstrate that, on our side, the war should be defensive;—(it has ever been called a war of posts;)—that we should, on all occasions, avoid a general action, nor put any thing to the risk, unless compelled by necessity, into which we ought never to be drawn."

After communicating the decision which had been made by the council of officers, he stated the opinion of those who were in favour of an

immediate evacuation with such force, as to confirm the belief that it remained his own.

The majority, who overruled this opinion, did not expect to be able to defend the city, permanently, but to defer the time of losing it, in the hope of wasting so much of the campaign, before General Howe could obtain possession of it, as to prevent his undertaking any thing farther until the following year. They therefore advised a middle course between abandoning the town absolutely, and concentrating their whole strength for its defence. This was, to form the army into three divisions; one of which should remain in New York; the second be stationed at Kingsbridge, and the third occupy the intermediate space, so as to support either extreme. The sick were to be immediately removed to Orange Town. A belief that congress was inclined to maintain New York at every hazard, and a dread of the unfavourable impression which its evacuation might make on the people, seem to have had great influence in producing the determination to defend the place yet a short time longer.

September 10.

This opinion was soon changed. The movements of the British general indicated clearly an intention either to break their line of communication, or to enclose the whole army in York Island. His dispositions were alike calculated to favour the one or the other of those objects. The general, who had continued to employ himself assiduously in the removal of the military stores to a place of safety,[\[43\]](#) called a second council to deliberate on the farther defence of the city, which determined, by a large majority, that it had become not only prudent, but absolutely necessary to withdraw the army from New York.

September 12.

In consequence of this determination, Brigadier General Mercer, who commanded the flying camp on the Jersey shore, was directed to move up the North river, to the post opposite fort Washington; and every effort was used to expedite the removal of the stores.

On the morning of the fifteenth, three ships of war proceeded up the North river as high as Bloomingdale; a movement which entirely stopped the farther removal of stores by water. About eleven on the same day, Sir Henry Clinton, with a division of four thousand men who had embarked at the head of New Town bay, where they had lain concealed from the view of

the troops posted on York Island, proceeded through that bay into the East river, which he crossed; and, under cover of the fire of five men of war, landed at a place called Kipp's bay, about three miles above New York.

New York evacuated.

The works thrown up to oppose a landing at this place, were of considerable strength, and capable of being defended for some time; but the troops stationed in them abandoned them without waiting to be attacked, and fled with precipitation. On the commencement of the cannonade, General Washington ordered the brigades of Parsons and Fellowes to the support of the troops posted in the lines, and rode himself towards the scene of action. The panic of those who had fled from the works was communicated to the troops ordered to sustain them; and the Commander-in-chief had the extreme mortification to meet the whole party retreating in the utmost disorder, totally regardless of the great efforts made by their generals to stop their disgraceful flight. Whilst General Washington was exerting himself to rally them, a small corps of the enemy appeared; and they again broke and fled in confusion. The only part to be taken was immediately to withdraw the few remaining troops from New York, and to secure the posts on the heights. For this latter purpose, the lines were instantly manned; but no attempt was made to force them. The retreat from New York was effected with an inconsiderable loss of men, sustained in a skirmish at Bloomingdale; but all the heavy artillery, and a large portion of the baggage, provisions, and military stores, much of which might have been saved had the post at Kipp's bay been properly defended, were unavoidably abandoned. In this shameful day, one colonel, one captain, three subalterns, and ten privates were killed: one lieutenant colonel, one captain, and one hundred and fifty-seven privates were missing.

The unsoldierly conduct displayed on this occasion was not attributable to a want of personal courage, but to other causes. The apprehensions excited by the defeat on Long Island had not yet subsided; nor had the American troops recovered their confidence either in themselves or in their commanders. Their situation appeared to themselves to be perilous; and they had not yet acquired that temper which teaches the veteran to do his duty wherever he may be placed; to assure himself that others will do their duty likewise; and to rely that those, who take into view the situation of the

whole, will not expose him to useless hazard; or neglect those precautions which the safety and advantage of the whole may require.

Unfortunately, there existed in a great part of the army, several causes, in addition to the shortness of enlistments and reliance on militia, which were but too operative in obstructing the progress of these military sentiments. In New England, whence the supplies of men had been principally drawn, the zeal excited by the revolution had taken such a direction, as in a great degree to abolish those distinctions between the platoon officers and the soldiers, which are indispensable to the formation of an army suited to all the purposes of war. It has been already said that these officers, who constitute an important part of every army, were, in many companies, elected by the privates. Of consequence, a disposition to associate with them on the footing of equality, was a recommendation of more weight, and frequently conduced more to the choice, than individual merit. Gentlemen of high rank have stated that, in some instances, men were elected, who agreed to put their pay in a common stock with that of the soldiers, and divide equally with them. It is not cause of wonder, that among such officers, the most disgraceful and unmilitary practices should frequently prevail; and that the privates should not respect them sufficiently, to acquire habits of obedience and subordination. This vital defect had been in some degree remedied, in new modelling the army before Boston; but it still existed to a fatal extent.

September 15.

Having taken possession of New York, General Howe stationed a few troops in the town; and, with the main body of his army, encamped on the island near the American lines. His right was at Horen's Hook on the East river, and his left reached the North river near Bloomingdale; so that his encampment extended quite across the island, which is, in this place, scarcely two miles wide; and both his flanks were covered by his ships.

The strongest point of the American lines was at Kingsbridge, both sides of which had been carefully fortified. M'Gowan's Pass, and Morris's Heights were also occupied in considerable force, and rendered capable of being defended against superior numbers. A strong detachment was posted in an intrenched camp on the heights of Haerlem, within about a mile and a half of the British lines.

The present position of the armies favoured the views of the American General. He wished to habituate his soldiers, by a series of successful skirmishes, to meet the enemy in the field; and he persuaded himself that his detachments, knowing a strong intrenched camp to be immediately in their rear, would engage without apprehension, would soon display their native courage, and would speedily regain the confidence they had lost.

Opportunities to make the experiments he wished were soon afforded. The day after the retreat from New York, the British appeared in considerable force in the plains between the two camps; and the General immediately rode to his advanced posts, in order to make in person such arrangements as this movement might require. Soon after his arrival, Lieutenant Colonel Knowlton of Connecticut, who, at the head of a corps of rangers, had been skirmishing with this party, came in, and stated their numbers on conjecture at about three hundred men; the main body being concealed in a wood.

The General ordered Colonel Knowlton with his rangers, and Major Leitch with three companies of the third Virginia regiment, which had joined the army only the preceding day, to gain their rear, while he amused them with the appearance of making dispositions to attack their front.

Skirmish on the heights of Haerlem.

This plan succeeded. The British ran eagerly down a hill, in order to possess themselves of some fences and bushes, which presented an advantageous position against the party expected in front; and a firing commenced—but at too great a distance to do any execution. In the mean time, Colonel Knowlton, not being precisely acquainted with their new position, made his attack rather on their flank than rear; and a warm action ensued.

In a short time, Major Leitch, who had led the detachment with great intrepidity, was brought off the ground mortally wounded, having received three balls through his body; and soon afterwards the gallant Colonel Knowlton also fell. Not discouraged by the loss of their field officers, the captains maintained their ground, and continued the action with great animation. The British were reinforced; and General Washington ordered some detachments from the adjacent regiments of New England and Maryland, to the support of the Americans. Thus reinforced, they made a gallant charge, drove the enemy out of the wood into the plain, and were

pressing him still farther, when the General, content with the present advantage, called back his troops to their intrenchments.[\[44\]](#)

In this sharp conflict, the loss of the Americans, in killed and wounded, did not exceed fifty men. The British lost more than double that number. But the real importance of the affair was derived from its operation on the spirits of the whole army. It was the first success they had obtained during this campaign; and its influence was very discernible. To give it the more effect, the parole the next day was Leitch; and the General, in his orders, publicly thanked the troops under the command of that officer, who had first advanced on the enemy, and the others who had so resolutely supported them. He contrasted their conduct with that which had been exhibited the day before; and the result, he said, evidenced what might be done where officers and soldiers would exert themselves. Once more, therefore, he called upon them so to act, as not to disgrace the noble cause in which they were engaged. He appointed a successor to "the gallant and brave Colonel Knowlton, who would," he said, "have been an honour to any country, and who had fallen gloriously, fighting at his post."

In this active part of the campaign, when the utmost stretch of every faculty was required, to watch and counteract the plans of a skilful and powerful enemy, the effects of the original errors committed by the government, in its military establishment, were beginning to be so seriously felt, as to compel the Commander-in-chief to devote a portion of his time and attention to the complete removal of the causes which produced them.

The situation of America was becoming extremely critical. The almost entire dissolution of the existing army, by the expiration of the time for which the greater number of the troops had been engaged, was fast approaching. No steps had been taken to recruit the new regiments which congress had resolved to raise for the ensuing campaign; and there was much reason to apprehend, that in the actual state of things, the terms offered would not hold forth sufficient inducements to fill them.

September 24.

Letter on the state of the army.

With so unpromising a prospect before him, the General found himself pressed by an army, permanent in its establishment, supplied with every requisite of war, formidable for its discipline and the experience of its leaders, and superior to him in numbers. These circumstances, and the

impressions they created, will be best exhibited by an extract from a letter written at the time to congress. It is in these words: "From the hours allotted to sleep, I will borrow a few moments to convey my thoughts, on sundry important matters, to congress. I shall offer them with that sincerity which ought to characterize a man of candour; and with the freedom which may be used in giving useful information, without incurring the imputation of presumption.

"We are now, as it were, upon the eve of another dissolution of our army. The remembrance of the difficulties which happened upon that occasion last year; the consequences which might have followed the change, if proper advantages had been taken by the enemy; added to a knowledge of the present temper and disposition of the troops; reflect but a very gloomy prospect upon the appearance of things now, and satisfy me, beyond the possibility of doubt, that unless some speedy and effectual measures are adopted by congress, our cause will be lost.

"It is in vain to expect that any, or more than a trifling part of this army, will engage again in the service, on the encouragement offered by congress. When men find that their townsmen and companions are receiving twenty, thirty, and more dollars, for a few months service, (which is truly the case,) this can not be expected, without using compulsion; and to force them into the service would answer no valuable purpose. When men are irritated, and their passions inflamed, they fly hastily and cheerfully to arms; but after the first emotions are over, to expect among such people as compose the bulk of an army, that they are influenced by any other motives than those of interest, is to look for what never did, and I fear never will happen; the congress will deceive themselves therefore if they expect it.

"A soldier, reasoned with upon the goodness of the cause he is engaged in, and the inestimable rights he is contending for, hears you with patience, and acknowledges the truth of your observations; but adds, that it is of no more consequence to him than to others. The officer makes you the same reply, with this further remark, that his pay will not support him, and he can not ruin himself and family to serve his country, when every member of the community is equally benefited and interested by his labours. The few, therefore, who act upon principles of disinterestedness, are, comparatively speaking, no more than a drop in the ocean. It becomes evidently clear, then, that as this contest is not likely to become the work of a day; as the

war must be carried on systematically; and to do it, you must have good officers; there is, in my judgment, no other possible means to obtain them, but by establishing your army upon a permanent footing, and giving your officers good pay. This will induce gentlemen, and men of character, to engage; and, until the bulk of your officers are composed of such persons as are actuated by principles of honour and a spirit of enterprise, you have little to expect from them. They ought to have such allowances as will enable them to live like, and support the character of gentlemen; and not be driven by a scanty pittance to the low and dirty arts which many of them practise, to filch the public of more than the difference of pay would amount to, upon an ample allowance. Besides, something is due to the man who puts his life in your hands, hazards his health, and forsakes the sweets of domestic enjoyments. Why a captain in the continental service should receive no more than five shillings currency per day, for performing the same duties that an officer of the same rank in the British service receives ten shillings sterling for, I never could conceive; especially, when the latter is provided with every necessary he requires, upon the best terms, and the former can scarcely procure them at any rate. There is nothing that gives a man consequence, and renders him fit for command, like a support that renders him independent of every body but the state he serves.

"With respect to the men, nothing but a good bounty can obtain them upon a permanent establishment, and for no shorter time than the continuance of the war ought they to be engaged; as facts incontestably prove that the difficulty and cost of enlistments increase with time. When the army was first raised at Cambridge, I am persuaded the men might have been got, without a bounty, for the war: after that, they began to see that the contest was not likely to end so speedily as was imagined, and to feel their consequence, by remarking, that to get their militia, in the course of the last year, many towns were induced to give them a bounty. Foreseeing the evils resulting from this, and the destructive consequences which would unavoidably follow short enlistments, I took the liberty, in a long letter, (date not now recollected, as my letter book is not here,) to recommend the enlistments for and during the war, assigning such reasons for it, as experience has since convinced me, were well founded. At that time, twenty dollars would, I am persuaded, have engaged the men for this term: but it will not do to look back—and if the present opportunity is slipped, I am persuaded that twelve months more will increase our difficulties four fold. I

shall therefore take the liberty of giving it as my opinion, that a good bounty be immediately offered, aided by the proffer of at least a hundred, or a hundred and fifty acres of land, and a suit of clothes, and a blanket, to each non-commissioned officer and soldier, as I have good authority for saying, that however high the men's pay may appear, it is barely sufficient, in the present scarcity and dearness of all kinds of goods, to keep them in clothes, much less to afford support to their families. If this encouragement, then, is given to the men, and such pay allowed to the officers, as will induce gentlemen of liberal character and liberal sentiments to engage; and proper care and caution be used in the nomination, (having more regard to the characters of persons than the number of men they can enlist,) we should, in a little time, have an army able to cope with any that can be opposed to it, as there are excellent materials to form one out of: but whilst the only merit an officer possesses is his ability to raise men; whilst those men consider and treat him as an equal, and in the character of an officer, regard him no more than a broomstick, being mixed together as one common herd; no order nor discipline can prevail, nor will the officer ever meet with that respect which is essentially necessary to due subordination.

"To place any dependence upon militia, is assuredly resting upon a broken staff. Men just dragged from the tender scenes of domestic life; unaccustomed to the din of arms; totally unacquainted with every kind of military skill, which, being followed by a want of confidence in themselves, when opposed to troops regularly trained, disciplined, and appointed—superior in knowledge, and superior in arms—makes them timid, and ready to fly from their own shadows. Besides, the sudden change in their manner of living, particularly in their lodging, brings on sickness in many, impatience in all; and such an unconquerable desire of returning to their respective homes, that it not only produces shameful and scandalous desertions among themselves, but infuses the like spirit into others. Again, men accustomed to unbounded freedom and no control, can not brook the restraint which is indispensably necessary to the good order and government of an army; without which, licentiousness, and every kind of disorder, triumphantly reign. To bring men to a proper degree of subordination, is not the work of a day, a month, or a year; and unhappily for us, and the cause we are engaged in, the little discipline I have been labouring to establish in the army under my immediate command, is in a

manner done away by having such a mixture of troops as have been called together within these few months."

The frequent remonstrances of the Commander-in-chief; the opinions of all military men; and the severe, but correcting hand of experience, had at length produced some effect on the government of the union;—and soon after the defeat on Long Island, congress had directed the committee composing the board of war, to prepare a plan of operations for the next succeeding campaign. Their report proposed a permanent army, to be enlisted for the war, and to be raised by the several states, in proportion to their ability. A bounty of twenty dollars was offered to each recruit; and small portions of land to every officer and soldier.

October 4.

The resolutions adopting this report were received by the Commander-in-chief soon after the transmission of the foregoing letter. Believing the inducements they held forth for the completion of the army to be still insufficient, he, in his letter acknowledging the receipt of them, urged in the most serious terms, the necessity of raising the pay of the officers, and the bounty offered to recruits. "Give me leave to say, sir," he observed, "I say it with due deference and respect, (and my knowledge of the facts, added to the importance of the cause, and the stake I hold it in, must justify the freedom,) that your affairs are in a more unpromising way than you seem to apprehend.

"Your army, as mentioned in my last, is upon the eve of political dissolution. True it is, you have voted a larger one in lieu of it; but the season is late, and there is a material difference between voting battalions, and raising men. In the latter, there are more difficulties than Congress seem aware of; which makes it my duty (as I have been informed of the prevailing sentiments of this army) to inform them, that unless the pay of the officers (especially that of the field officers) is raised, the chief part of those that are worth retaining will leave the service at the expiration of the present term; as the soldiers will also, if some greater encouragement is not offered them, than twenty dollars and one hundred acres of land."

After urging in strong terms the necessity of a more liberal compensation to the army, and stating that the British were actually raising a regiment with a bounty of ten pounds sterling for each recruit, he added, "when the pay and establishment of an officer once become objects of interested

attention, the sloth, negligence, and even disobedience of orders, which at this time but too generally prevail, will be purged off;—but while the service is viewed with indifference; while the officer conceives that he is rather conferring than receiving an obligation: there will be a total relaxation of all order and discipline; and every thing will move heavily on, to the great detriment of the service, and inexpressible trouble and vexation of the general.

"The critical situation of our affairs at this time will justify my saying, that no time is to be lost in making fruitless experiments. An unavailing trial of a month, to get an army upon the terms proposed, may render it impracticable to do it at all, and prove fatal to our cause; as I am not sure whether any rubs in the way of our enlistments, or unfavourable turn in our affairs, may not prove the means of the enemy's recruiting men faster than we do."

After stating at large the confusion and delay, inseparable from the circumstance that the appointments for the new army were to be made by the states, the letter proceeds, "upon the present plan, I plainly foresee an intervention of time between the old and new army, which must be filled with militia, if to be had, with whom no man, who has any regard for his own reputation, can undertake to be answerable for consequences. I shall also be mistaken in my conjectures, if we do not lose the most valuable officers in this army, under the present mode of appointing them; consequently, if we have an army at all, it will be composed of materials not only entirely raw, but, if uncommon pains are not taken, entirely unfit: and I see such a distrust and jealousy of military power, that the Commander-in-chief has not an opportunity, even by recommendation, to give the least assurance of reward for the most essential services.

"In a word, such a cloud of perplexing circumstances appears before me, without one flattering hope, that I am thoroughly convinced, unless the most vigorous and decisive exertions are immediately adopted to remedy these evils, the certain and absolute loss of our liberties will be the inevitable consequence: as one unhappy stroke will throw a powerful weight into the scale against us, and enable General Howe to recruit his army, as fast as we shall ours; numbers being disposed, and many actually doing so already. Some of the most probable remedies, and such as experience has brought to my more intimate knowledge, I have taken the

liberty to point out; the rest I beg leave to submit to the consideration of congress.

"I ask pardon for taking up so much of their time with my opinions, but I should betray that trust which they and my country have reposed in me, were I to be silent upon matters so extremely interesting."

On receiving this very serious letter, congress passed resolutions conforming to many of its suggestions. The pay of the officers was raised, and a suit of clothes allowed annually to each soldier: The legislatures of the states having troops in the continental service, either at New York, Ticonderoga, or New Jersey, were requested to depute committees to those places in order to officer the regiments on the new establishment: and it was recommended to the committees to consult the General on the subject of appointments.



Washington's Headquarters at White Plains

Here, twenty-two miles northeast of New York City, Washington made his headquarters in October, 1776, and directed the Battle of White Plains or Chatterton Hill. Opposed to the American forces was a British army, greatly superior in numbers, under General Howe, whose delay in attaching the Americans enabled Washington to take up an unassailable

position at North Castle, preparatory to his subsequent masterly retreat across New Jersey.

CHAPTER VI.

The British land at Frog's Neck.... The American army evacuates York Island, except fort Washington.... Both armies move towards the White Plains.... Battle of the White Plains.... The British army returns to Kingsbridge.... General Washington crosses the North river.... The lines of fort Washington carried by the British, and the garrison made prisoners.... Evacuation of fort Lee.... Weakness of the American army.... Ineffectual attempts to raise the militia.... General Washington retreats through Jersey.... General Washington crosses the Delaware.... Danger of Philadelphia.... Capture of General Lee.... The British go into winter quarters.... Battle of Trenton.... Of Princeton.... Firmness of congress.

1776

The armies did not long retain their position on York Island. General Howe was sensible of the strength of the American camp, and was not disposed to force it. His plan was to compel General Washington to abandon it, or to give battle in a situation in which a defeat must be attended with the total destruction of his army. With this view, after throwing up entrenchments on M'Gowan's hill for the protection of New York, he determined to gain the rear of the American camp, by the New England road, and also to possess himself of the North river above Kingsbridge. October 9. To assure himself of the practicability of acquiring the command of the river, three frigates passed up it under the fire from fort Washington, and from the opposite post on the Jersey shore, afterwards called fort Lee, without sustaining any injury from the batteries, or being impeded by the chevaux-de-frise which had been sunk in the channel between those forts.

Twelfth.

The enemy land at Frog's Neck.

This point being ascertained, he embarked a great part of his army on board flat bottomed boats, and, passing through Hurl Gate into the Sound,

landed at Frog's Neck, about nine miles from the camp on the heights of Haerlem.

In consequence of this movement, Washington strengthened the post at Kingsbridge, and detached some regiments to West Chester for the purpose of skirmishing with the enemy, so soon as he should march from the ground he occupied. The road from Frog's Point to Kingsbridge leads through a strong country, intersected by numerous stone fences, so as to render it difficult to move artillery, or even infantry, in compact columns, except along the main road, which had been broken up in several places. The General, therefore, entertained sanguine hopes of the event, should a direct attack be made on his camp.

General Howe continued some days waiting for his artillery, military stores, and reinforcements from Staten Island, which were detained by unfavourable winds.

October 16.

The American army evacuates York island except Fort Washington.

In the mean time, as the habits of thinking in America required that every important measure should be the result of consultation, and should receive the approbation of a majority, the propriety of removing the American army from its present situation was submitted to a council of the general officers. After much investigation, it was declared to be impracticable, without a change of position, to keep up their communication with the country, and avoid being compelled to fight under great disadvantages, or to surrender themselves prisoners of war. General Lee, who had just arrived from the south, and whose experience as well as late success gave great weight to his opinions, urged the necessity of this movement with much earnestness. It was, at the same time, determined to hold fort Washington, and to defend it as long as possible. A resolution of congress of the 11th of October, desiring General Washington, by every art and expense, to obstruct, if possible, the navigation of the river, contributed, not inconsiderably, to this determination.

In pursuance of this opinion of the military council, measures were taken for moving the army up the North River, so as to extend its front, or left, towards the White Plains, beyond the British right, and thus keep open its communication with the country. The right, or rear division, remained a few days longer about Kingsbridge under the command of General Lee, for the

security of the heavy baggage and military stores, which, in consequence of the difficulty of obtaining wagons, could be but slowly removed.

October 18.

General Howe, after uniting his forces at Pell's Point, moved forward his whole army, except four brigades destined for the defence of New York, through Pelham's manor, towards New Rochelle. Some skirmishes took place on the march with a part of Glover's brigade, in which the conduct of the Americans was mentioned with satisfaction by the Commander-in-chief; and, as General Howe took post at New Rochelle, a village on the Sound, General Washington occupied the heights between that place and the North River.

October 21.

Both armies move towards the White Plains.

At New Rochelle, the British army was joined by the second division of Germans, under the command of General Knyphausen, and by an incomplete regiment of cavalry from Ireland; some of whom had been captured on their passage. Both armies now moved towards the White Plains, a strong piece of ground already occupied by a detachment of militia. The main body of the American troops formed a long line of entrenched camps, extending from twelve to thirteen miles, on the different heights from Valentine's Hill, near Kingsbridge, to the White Plains, fronting the British line of march, and the Brunx, which divided the two armies. The motions of General Howe were anxiously watched, not only for the purposes of security, and of avoiding a general action, but in order to seize any occasion which might present itself of engaging his out-posts with advantage. While the British army lay at New Rochelle, the position of a corps of American loyalists commanded by Major Rogers was supposed to furnish such an occasion. He was advanced, farther eastward, to Mamaroneck, on the Sound, where he was believed to be covered by the other troops. An attempt was made to surprise him in the night, by a detachment which should pass between him and the main body of the British army, and, by a coup de main, bear off his whole corps. Major Rogers was surprised, and about sixty of his regiment killed and taken. The loss of the Americans was only two killed, and eight or ten wounded; among the latter was Major Green of Virginia, a brave officer, who led the detachment, and who received a ball through his body.

Not long afterwards, a regiment of Pennsylvania riflemen, under Colonel Hand, engaged an equal number of Hessian chasseurs, with some advantage.

The caution of the English general was increased by these evidences of enterprise in his adversary. His object seems to have been to avoid skirmishes, and to bring on a general action, if that could be effected under favourable circumstances; if not, he calculated on nearly all the advantages of a victory from the approaching dissolution of the American army. He proceeded therefore slowly. His march was in close order, his encampments compact, and well guarded with artillery; and the utmost circumspection was used to leave no vulnerable point.

October 25.

As the sick and baggage reached a place of safety, General Washington gradually drew in his out-posts, and took possession of the heights on the east side of the Brunx, fronting the head of the British columns, at the distance of seven or eight miles from them. The next day, he was joined by General Lee, who, after securing the sick and the baggage, had, with considerable address, brought up the rear division of the army; an operation the more difficult as the deficiency of teams was such that a large portion of the labour usually performed by horses or oxen, devolved on men.

General Washington was encamped on high broken ground, with his right flank on the Brunx. This stream meandered so as also to cover the front of his right wing, which extended along the road leading towards New Rochelle, as far as the brow of the hill where his centre was posted. His left, which formed almost a right angle with his centre, and was nearly parallel to his right, extended along the hills northward, so as to keep possession of the commanding ground, and secure a retreat, should it be necessary, to a still stronger position in his rear.

On the right of the army, and on the west side of the Brunx, about one mile from camp, on a road leading from the North River, was a hill, of which General M'Dougal was ordered to take possession, for the purpose of covering the right flank. His detachment consisted of about sixteen hundred men, principally militia; and his communication with the main army was open, that part of the Brunx being passable without difficulty.

Intrenchments were thrown up to strengthen the lines.

General Howe, having made arrangements to attack Washington in his camp, advanced early in the morning in two columns, the right commanded by Sir Henry Clinton, and the left by General Knyphausen; and, about ten, his van appeared in full view, on which a cannonade commenced without much execution on either side.

October 28.

Battle of the White Plains.

The British right formed behind a rising ground, about a mile in front of the American camp, and extending from the road leading from Mamaranec towards the Bronx, stood opposed to the American centre.

On viewing Washington's situation, Howe, who accompanied Knyphausen, determined to carry the hill occupied by M'Dougal, as preliminary to an attack on the centre and right of the American camp. He therefore directed Colonel Rawle, with a brigade of Hessians, to cross the Bronx and make a circuit so as to turn M'Dougal's right flank, while Brigadier General Leslie, with a strong corps of British and Hessian troops should attack him in front. When Rawle had gained his position, the detachment commanded by Leslie also crossed the Bronx, and commenced a vigorous attack.^[45] The militia in the front line immediately fled; but the regulars maintained their ground with great gallantry. Colonel Smallwood's regiment of Maryland, and Colonel Reitzimer's of New York, advanced boldly towards the foot of the hill to meet Leslie, but, after a sharp encounter, were overpowered by numbers, and compelled to retreat. General Leslie then attacked the remaining part of M'Dougal's forces, who were soon driven from the hill, but kept up for some time an irregular fire from the stone walls about the scene of action. General Putnam, with Real's brigade, was ordered to support them; but not having arrived till the hill was lost, the attempt to regain it was deemed unadvisable, and the troops retreated to the main army.

In this animated engagement, the loss was supposed to be nearly equal. That of the Americans was between three and four hundred in killed, wounded, and taken. Colonel Smallwood was among the wounded.

General Washington continued in his lines expecting an assault. But a considerable part of the day having been exhausted in gaining the hill which had been occupied by M'Dougal, the meditated attempt on his intrenchments was postponed until the next morning; and the British army

lay on their arms the following night, in order of battle, on the ground taken during the day.

October 30.

This interval was employed by General Washington in strengthening his works, removing his sick and baggage, and preparing for the expected attack by adopting the arrangement of his troops to the existing state of things. His left maintained its position; but his right was drawn back to stronger ground. Perceiving this, and being unwilling to leave any thing to hazard, Howe resolved to postpone farther offensive operations, until Lord Percy should arrive with four battalions from New York, and two from Mamaroneck. This reinforcement was received on the evening of the thirtieth, and preparations were then made to force the American intrenchments the next morning. In the night, and during the early part of the succeeding day, a violent rain still farther postponed the assault.

Having now removed his provisions and heavy baggage to much stronger ground, and apprehending that the British general, whose left wing extended along the height, taken from M'Dougal, to his rear, might turn his camp, and occupy the strong ground to which he designed to retreat, should an attempt on his lines prove successful, General Washington changed his position in the night, and withdrew to the heights of North Castle, about five miles from the White Plains.

November 1.

Deeming this position too strong to be attempted with prudence, General Howe determined to change his plan of operations, and to give a new direction to his efforts.[\[46\]](#)

While forts Washington and Lee were held by the Americans, his movements were checked, and York Island insecure. With a view to the acquisition of these posts, he directed General Knyphausen to take possession of Kingsbridge, which was defended by a small party of Americans placed in fort Independence. On his approach, this party retreated to fort Washington; and Knyphausen encamped between that place and Kingsbridge.

November 5.

The British army returns to Kingsbridge.

In the mean time, General Howe retired slowly down the North River. His designs were immediately penetrated by the American general, who perceived the necessity of passing a part of his army into Jersey, but was restrained from immediately leaving the strong ground he occupied by the apprehension that his adversary might, in that event, return suddenly and gain his rear. A council of war was called, which determined unanimously, that, should General Howe continue his march towards New York, all the troops raised on the west side of the Hudson should cross that river, to be afterwards followed by those raised in the eastern part of the continent, leaving three thousand men for the defence of the Highlands about the North river.

In a letter to congress communicating this movement of the British army, and this determination of the council, the general said, "I can not indulge the idea that General Howe, supposing him to be going to New York, means to close the campaign, and to sit down without attempting something more. I think it highly probable, and almost certain, that he will make a descent with part of his troops into the Jerseys; and, as soon as I am satisfied that the present manoeuvre is real, and not a feint, I shall use all the means in my power to forward a part of our force to counteract his designs.

"I expect the enemy will bend their force against fort Washington, and invest it immediately. From some advices, it is an object that will attract their earliest attention."

He also addressed a letter to the governor of New Jersey, expressing a decided opinion that General Howe would not content himself with investing fort Washington, but would invade the Jerseys; and urging him to put the militia in the best possible condition to reinforce the army, and to take the place of the new levies, who could not, he suggested, be depended on to continue in service one day longer than the first of December, the time for which they were engaged.

Immediate intelligence of this movement was likewise given to General Greene, who commanded in the Jerseys; and his attention was particularly pointed to fort Washington.

As the British army approached Kingsbridge, three ships of war passed up the North River, notwithstanding the fire from forts Washington and Lee, and notwithstanding the additional obstructions which had been placed in the channel.

November 8.

On being informed of this, another letter was addressed to General Greene, stating that this fact was so plain a proof of the inefficacy of all the obstructions thrown in the river, as to justify a change in the dispositions which had been made. "If," continued the letter, "we can not prevent vessels from passing up, and the enemy are possessed of the surrounding country, what valuable purpose can it answer to attempt to hold a post from which the expected benefit can not be derived? I am therefore inclined to think it will not be prudent to hazard the men and stores at Mount Washington; but as you are on the spot, I leave it to you to give such orders respecting the evacuation of the place, as you may think most adviseable; and so far revoke the orders given to Colonel Magaw to defend it to the last."

Measures were now taken to cross the North River with the troops which had been raised on its western side, and General Washington determined to accompany that division of the army. The eastern regiments remained on the eastern side of the river, under the command of General Lee, with orders to join the Commander-in-chief, should the British army cross the Hudson. And General Washington with a part of his army crosses the North River.

After visiting the posts about Peekskill, and making all the arrangements in his power for their defence, General Washington passed the North River in the rear of the troops designed to act in the Jerseys, and proceeded to the quarters of General Greene, near fort Lee.

From too great a confidence^[47] in the strength of fort Washington, and a conviction of its importance, General Greene had not withdrawn its garrison under the discretionary orders he had received, but still indulged a hope that the post might be maintained, or, should its situation become desperate, that means might be found to transport the troops across the river to the Jersey shore, which was defended by fort Lee.

Mount Washington is a high piece of rocky ground, near the North River, very difficult of ascent, especially towards the north, or Kingsbridge. The fort was capable of containing about one thousand men; but the lines and out-works, which were chiefly on the southern side, towards New York, were drawn quite across the island. The ground was naturally strong, the approaches difficult, and the fortifications, though not sufficient to resist heavy artillery, were believed to be in a condition to resist any attempt to carry them by storm. The garrison consisted of troops, some of whom were

among the best in the American army; and the command had been given to Colonel Magaw, a brave and intelligent officer, in whom great confidence was placed.

November 13.

General Howe, after retiring from the White Plains, encamped at a small distance from Kingsbridge, on the heights of Fordham; and, having made the necessary preparations for an assault, summoned the garrison to surrender, on pain of being put to the sword. Colonel Magaw replied, that he should defend the place to the last extremity, and communicated the summons to General Greene at fort Lee, Fifteenth.who transmitted it to the Commander-in-chief, then at Hackensack. He immediately rode to fort Lee, and, though it was late in the night, was proceeding to fort Washington, where he expected to find Generals Putnam and Greene, when, in crossing the river, he met those officers returning from a visit to that fort. They reported that the garrison was in high spirits, and would make a good defence; on which he returned with them to fort Lee.

November 16.

Early next morning, Colonel Magaw posted his troops, partly on a commanding hill north of the fort, partly in the outermost of the lines drawn across the island on the south of the fort, and partly between those lines, on the woody and rocky heights fronting Haerlem River, where the ground being extremely difficult of ascent, the works were not closed. Colonel Rawlings, of Maryland, commanded on the hill towards Kingsbridge; Colonel Cadwallader, of Pennsylvania, in the lines, and Colonel Magaw himself continued in the fort.

The strength of the place had not deterred the British general from resolving to carry it by storm; and, on receiving the answer of Colonel Magaw, arrangements were made for a vigorous attack next day. About ten, the assailants appeared before the works, and moved to the assault in four different quarters. Their first division consisting of Hessians and Waldeckers, amounting to about five thousand men, under the command of General Knyphausen, advanced on the north side of the fort, against the hill occupied by Colonel Rawlings, who received them with great gallantry. The second, on the east, consisting of the British light infantry and guards, was led by Brigadier General Matthews, supported by Lord Cornwallis, at the head of the grenadiers and the thirty-third regiment. These troops crossed

Haerlem River in boats, under cover of the artillery planted in the works, which had been erected on the opposite side of the river, and landed within the third line of defence which crossed the island. The third division was conducted by Lieutenant Colonel Stirling, who passed the river higher up; and the fourth by Lord Percy, accompanied by General Howe in person. This division was to attack the lines in front, on the south side.[\[48\]](#)

The attacks on the north and south by General Knyphausen and Lord Percy, were made about the same instant, on Colonels Rawlings and Cadwallader, who maintained their ground for a considerable time; but, while Colonel Cadwallader was engaged in the first line against Lord Percy, the second and third divisions which had crossed Haerlem River made good their landing, and dispersed the troops fronting that river, as well as a detachment sent by Colonel Cadwallader to support them. Thus being overpowered, and the British advancing between the fort and the lines, it became necessary to abandon them. In retreating to the fort, some of the men were intercepted by the division under Colonel Stirling, and made prisoners.

The resistance on the north was of longer duration. Rawlings maintained his ground with firmness, and his riflemen did vast execution. A three gun battery also played on Knyphausen with great effect. At length, the Hessian columns gained the summit of the hill; after which, Colonel Rawlings, who perceived the danger which threatened his rear, retreated under the guns of the fort.

The lines of Fort Washington carried by the enemy, and the garrison made prisoners.

Having carried the lines, and all the strong ground adjoining them, the British general again summoned Colonel Magaw to surrender. While the capitulation was in a course of arrangement, General Washington sent him a billet, requesting him to hold out until the evening, when means should be attempted to bring off the garrison. But Magaw had proceeded too far to retreat; and it is probable the place could not have resisted an assault from so formidable a force as threatened it. The greatest difficulties had been overcome; the fort was too small to contain all the men; and their ammunition was nearly exhausted. Under these circumstances the garrison became prisoners of war.

The loss on this occasion was the greatest the Americans had ever sustained. The garrison was stated by General Washington at about two thousand men. Yet, in a report published as from General Howe, the number of prisoners is said to be two thousand and six hundred, exclusive of officers. Either General Howe must have included in his report persons who were not soldiers, or General Washington must have comprehended the regulars only in his letter. The last conjecture is most probably correct. The loss of the assailants, according to Mr. Stedman, amounted to eight hundred men. This loss fell heaviest on the Germans.

Evacuation of Fort Lee.

November 18.

On the surrender of fort Washington, it was determined to evacuate fort Lee; and a removal of the stores was immediately commenced. Before this operation could be completed, a detachment commanded by Lord Cornwallis, amounting to about six thousand men, crossed the North River below Dobb's ferry, and endeavoured, by a rapid march, to enclose the garrison between the North and Hackensack Rivers. An immediate retreat from that narrow neck of land had become indispensable, and was with difficulty effected. All the heavy cannon at fort Lee, except two twelve-pounders, with a considerable quantity of provisions and military stores, including three hundred tents, were lost. After crossing the Hackensack, General Washington posted his troops along the western bank of that river, but was unable to dispute its passage at the head of about three thousand effectives, exposed, without tents, in an inclement season; he was in a level country, without a single intrenching tool, among people far from being zealous in the American cause. In other respects this situation was dangerous. The Passaic, in his rear, after running several miles nearly parallel to the Hackensack, unites with that river below the ground occupied by the Americans, who were consequently still exposed to the hazard of being inclosed between two rivers.

November 21.

Weakness of the American army.

This gloomy state of things was not brightened by the prospect before him. In casting his eyes around, no cheering object presented itself. No confidence could be placed on receiving reinforcements from any quarter. But, in no situation could Washington despond. His exertions to collect an

army, and to impede the progress of his enemy, were perseveringly continued. Understanding that Sir Guy Carleton no longer threatened Ticonderoga, he directed General Schuyler to hasten the troops of Pennsylvania and Jersey to his assistance, and ordered^[49] General Lee to cross the North River, and be in readiness to join him, should the enemy continue the campaign. But, under the influence of the same fatal cause which had acted elsewhere, these armies too were melting away, and would soon be almost totally dissolved. General Mercer, who commanded a part of the flying camp stationed about Bergen, was also called in; but these troops had engaged to serve only till the 1st of December, and, like the other six months men, had already abandoned the army in great numbers. No hope existed of retaining the remnant after they should possess a legal right to be discharged; and there was not much probability of supplying their places with other militia. To New England he looked with anxious hope; and his requisitions on those states received prompt attention. Six thousand militia from Massachusetts, and a considerable body from Connecticut, were ordered to his assistance; but some delay in assembling them was unavoidable, and their march was arrested by the appearance of the enemy in their immediate neighbourhood.

Three thousand men, conducted by Sir Henry Clinton, who were embarked on board a fleet commanded by Sir Peter Parker, sailed late in November from New York, and, without much opposition, took possession of Newport. This invasion excited serious alarm in Massachusetts and Connecticut, and these states retained for their own defence, the militia who had been embodied at the instance of the Commander-in-chief.

Not intending to maintain his present position, General Washington had placed some regiments along the Hackensack to afford the semblance of defending its passage until his stores could be removed; and, with the residue of the troops, crossed the Passaic, and took post at Newark. Soon after he had marched, Major General Vaughan appeared before the new bridge over Hackensack. The American detachment which had been left in the rear, being unable to defend it, broke it down, and retired before him over the Passaic.

Ineffectual attempts to raise the militia.

Having entered the open country, General Washington determined to halt a few days on the south side of this river, make some show of resistance,

and endeavour to collect such a force as would keep up the semblance of an army. His letters, not having produced such exertions as the public exigencies required, he deputed General Mifflin to the government of Pennsylvania, and Colonel Reid, his Adjutant General, to the government of New Jersey, with orders to represent the real situation of the army, and the certainty that, without great reinforcements, Philadelphia must fall into the hands of the enemy, and the state of Jersey be overrun.

While thus endeavouring to strengthen himself with militia, he pressed General Lee to hasten his march, and cautioned him to keep high enough up the country to avoid the enemy, who, having got possession of the mail containing one of his late letters, would certainly endeavour to prevent the junction of the two armies.

This perilous state of things was rendered still more critical by indications of an insurrection in the county of Monmouth, in Jersey, where great numbers favoured the royal cause. In other places, too, a hostile temper was displayed, and an indisposition to farther resistance began to be manifested throughout that state. These appearances obliged him to make detachments from the militia of his army, to overawe the disaffected of Monmouth, who were on the point of assembling in force.

General Washington retreats through Jersey.
November 23.

As the British army crossed the Passaic, General Washington abandoned his position behind that river; and the day Lord Cornwallis entered Newark, he retreated to Brunswick, a small village on the Raritan.

December 1.

At this place, the levies drawn from Maryland and Jersey to compose the flying camp, became entitled to their discharge. No remonstrances could detain them; and he sustained the mortification of seeing his feeble army still more enfeebled by being entirely abandoned by these troops, in the face of an advancing enemy. The Pennsylvania militia belonging to the flying camp were engaged to serve till the 1st of January. So many of them deserted, that it was deemed necessary to place guards on the roads, and ferries over the Delaware, to apprehend and send them back to camp. The Governor of New Jersey was again pressed for assistance, but it was not in his power to furnish the aid required. The well affected part of the lower

country was overawed by the British army; and the militia of Morris and Sussex came out slowly and reluctantly.

While at Brunswick, attempts were made to retard the advance of the British army by movements indicating an intention to act on the offensive; but this feint was unavailing. Lord Cornwallis continued to press forward; and, as his advanced guards showed themselves on the opposite side of the bridge, General Washington evacuated the town, and marched through Princeton to Trenton. Directions had already been given to collect all the boats on the Delaware, from Philadelphia upwards for seventy miles, in the hope that the progress of the enemy might be stopped at this river; and that, in the mean time, reinforcements might arrive which would enable him to dispute its passage.

December 2.

Having, with great labour, transported the few remaining military stores and baggage over the Delaware, he determined to remain as long as possible on the northern banks of that river.

The army which was thus pressed slowly through the Jerseys, was aided by no other cavalry than a small corps of badly mounted Connecticut militia, commanded by Major Sheldon; and was almost equally destitute of artillery. Its numbers, at no time during the retreat, exceeded four thousand men, and on reaching the Delaware, was reduced to less than three thousand; of whom, not quite one thousand were militia of New Jersey. Even among the continental troops there were many whose term of service was about to expire.

Its defectiveness of numbers did not constitute its only weakness. The regulars were badly armed, worse clad, and almost destitute of tents, blankets, or utensils for dressing their food. They were composed chiefly of the garrison of fort Lee, and had been obliged to evacuate that place with too much precipitation to bring with them even those few articles of comfort and accommodation with which they had been furnished. The Commander-in-chief found himself at the head of this small band of soldiers, dispirited by their losses and fatigues, retreating almost naked and bare-footed, in the cold of November and December, before a numerous, well appointed, and victorious army, through a desponding country, much more disposed to obtain safety by submission, than to seek it by a manly resistance.

In this crisis of American affairs, a proclamation was issued by Lord and General Howe, as commissioners appointed on the part of the crown for restoring peace to America, commanding all persons assembled in arms against his majesty's government, to disband and return to their homes; and all civil officers to desist from their treasonable practices, and relinquish their usurped authority. A full pardon was offered to every person who would, within sixty days, appear before certain civil or military officers of the crown, claim the benefit of that proclamation, and testify his obedience to the laws by subscribing a declaration of his submission to the royal authority. Copies of it were dispersed through the country, after which numbers flocked in daily, to make their peace and obtain protection. The contrast between the splendid appearance of the pursuing army, and that of the ragged Americans who were flying before them, could not fail to nourish the general opinion that the contest was approaching its termination.

Among the many valuable traits in the character of Washington, was that unyielding firmness of mind which resisted these accumulated circumstances of depression, and supported him under them. Undismayed by the dangers which surrounded him, he did not for an instant relax his exertions, nor omit any thing which could obstruct the progress of the enemy, or improve his own condition. He did not appear to despair of the public safety, but struggled against adverse fortune with the hope of yet vanquishing the difficulties which surrounded him; and constantly showed himself to his harassed and enfeebled army, with a serene, unembarrassed countenance, betraying no fears in himself, and invigorating and inspiring with confidence the bosoms of others. To this unconquerable firmness, to this perfect self-possession under the most desperate circumstances, is America, in a great degree, indebted for her independence.

December 5.

After removing his baggage and stores over the Delaware, and sending his sick to Philadelphia, the American General, finding that Lord Cornwallis still continued in Brunswick, detached twelve hundred men to Princeton in the hope that this appearance of advancing on the British might not only retard their progress, but cover a part of the country, and reanimate the people of Jersey.

Some portion of this short respite from laborious service was devoted to the predominant wish of his heart,—preparations for the next campaign,—by impressing on congress a conviction of the real causes of the present calamitous state of things. However the human mind may resist the clearest theoretic reasoning, it is scarcely possible not to discern obvious and radical errors, while smarting under their destructive consequences. The abandonment of the army by whole regiments of the flying camp, in the face of an advancing and superior enemy; the impracticability of calling out the militia of Jersey and Pennsylvania in sufficient force to prevent Lord Cornwallis from overrunning the first state, or restrain him from entering the last, had it not been saved by other causes, were practical lessons on the subjects of enlistments for a short time, and a reliance on militia, which no prejudice could disregard, and which could not fail to add great weight to the remonstrances formerly made by the Commander-in-chief, which were now repeated.

December 6.

The exertions of General Mifflin to raise the militia of Pennsylvania, though unavailing in the country, were successful in Philadelphia. A large proportion of the inhabitants of that city capable of bearing arms, had associated for the general defence; and, on this occasion, fifteen hundred of them marched to Trenton; to which place a German battalion was also ordered by congress. Seventh. On the arrival of these troops, General Washington commenced his march to Princeton, but was stopped by the intelligence that Lord Cornwallis, having received large reinforcements, was advancing rapidly from Brunswick by different routes, and endeavouring to gain his rear.

Eighth.

General Washington crosses the Delaware.

On receiving this intelligence, he crossed the Delaware, and posted his army in such a manner as to guard the fords. As his rear passed the river, the van of the British army appeared in sight. The main body took post at Trenton, and detachments were placed both above and below, while small parties, without interruption from the people of the country, reconnoitred the Delaware for a considerable distance. Danger of Philadelphia. From Bordentown below Trenton the course of the river turns westward, and forms an acute angle with its course from Philadelphia to that place; so that

Lord Cornwallis might cross a considerable distance above, and be not much, if any, farther from that city than the American army.

The British general made some unsuccessful attempts to seize a number of boats guarded by Lord Stirling, about Coryell's Ferry; and, in order to facilitate his movements down the river, on the Jersey shore, repaired the bridges below Trenton, which had been broken down by order of General Washington. He then advanced a strong detachment to Bordentown, giving indications of an intention to cross the Delaware at the same time above and below; and either to march in two columns to Philadelphia, or completely to envelop the American army in the angle of the river. To counteract this plan, the American General stationed a few gallies to watch the movements of his enemy below, and aid in repelling any effort to pass over to the Pennsylvania shore; and made such a disposition of his little army as to guard against any attempt to force a passage above, which he believed to be the real design.

Having made his arrangements, he waited anxiously for reinforcements; and, in the meantime, sent daily parties over the river to harass the enemy, and to observe his situation.

The utmost exertions were made by government to raise the militia. In the hope that a respectable body of continental troops would aid these exertions, General Washington had directed General Gates, with the regulars of the northern army, and General Heath, with those at Peekskill, to march to his assistance.

Capture of General Lee.

Although General Lee had been repeatedly urged to join the Commander-in-chief, he proceeded slowly in the execution of these orders, manifesting a strong disposition to retain his separate command, and rather to hang on, and threaten the rear of the British army, than to strengthen that in its front. With this view he proposed establishing himself at Morristown. On receiving a letter from General Washington disapproving this proposition, and urging him to hasten his march, Lee still avowed a preference for his own plan, and proceeded reluctantly towards the Delaware. While passing through Morris county, at the distance of twenty miles from the British encampment, he, very incautiously, quartered under a slight guard, in a house about three miles from his army. Information of this circumstance was given by a countryman to Colonel Harcourt, at that time detached with a body of cavalry to watch his movements, who immediately formed and executed the design of seizing him. Early in the morning of the 12th of December, this officer reached Lee's quarters, who received no intimation of his danger until the house was surrounded, and he found himself a prisoner. He was carried off in triumph to the British army, where he was, for some time, treated as a deserter from the British service.

This misfortune made a serious impression on all America. The confidence originally placed in General Lee had been increased by his success in the southern department, and by a belief that his opinions, during the military operations in New York, had contributed to the adoption of those judicious movements which had, in some measure, defeated the plans of General Howe in that quarter. It was also believed that he had dissented from the resolution of the council of war for maintaining forts Washington and Lee. No officer, except the Commander-in-chief, possessed, at that time, in so eminent a degree, the confidence of the army, or of the country; and his loss was, almost universally, bewailed as one of the greatest calamities which had befallen the American arms. It was regretted by no person more than by General Washington himself. He respected the merit of that eccentric veteran, and sincerely lamented his captivity.

General Sullivan, on whom the command of that division devolved after the capture of Lee, promptly obeyed the orders which had been directed to that officer; and, crossing the Delaware at Philipsburg, joined the Commander-in-chief. On the same day General Gates arrived with a few

northern troops. By these and other reinforcements, the army was augmented to about seven thousand effective men.

The British go into winter quarters.

The attempts of the British general to get possession of boats for the transportation of his army over the Delaware having failed, he gave indications of an intention to close the campaign, and to retire into winter quarters. About four thousand men were cantoned on the Delaware at Trenton, Bordentown, the White Horse, and Mount Holly; and the remaining part of the army of Jersey was distributed from that river to the Hackensack. Strong corps were posted at Princeton, Brunswick, and Elizabethtown.

To intimidate the people, and thereby impede the recruiting service, was believed to be no inconsiderable inducement with General Howe, for covering so large a portion of Jersey. To counteract these views, General Washington ordered three of the regiments from Peekskill to halt at Morristown, and to unite with about eight hundred militia assembled at that place under Colonel Ford. General Maxwell was sent to take command of these troops, with orders to watch the motions of the enemy, to harass him in his marches, to give intelligence of all his movements, to keep up the spirits of the militia, and to prevent the inhabitants from going within the British lines, and taking protection.

December 20.

The short interval between this cantonment of the British troops, and the recommencement of active operations, was employed by General Washington in repeating the representations he had so often made to congress, respecting preparations for the ensuing campaign. The dangers resulting from a reliance on temporary armies had been fully exemplified; and his remonstrances on that subject were supported by that severe experience which corrects while it chastises. In the course of the campaign, he had suffered greatly from the want of cavalry, of artillery, and of engineers. His ideas on these important subjects had been already stated to congress, and were now reurged. With respect to the additional expense to be incurred by the measures recommended, he observed, "that our funds were not the only object now to be taken into consideration. The enemy, it was found, were daily gathering strength from the disaffected. This strength, like a snow ball by rolling, would increase, unless some means

should be devised to check effectually the progress of their arms. Militia might possibly do it for a little while; but in a little while also, the militia of those states which were frequently called upon would not turn out at all, or would turn out with so much reluctance and sloth, as to amount to the same thing. Instance New Jersey! Witness Pennsylvania! Could any thing but the river Delaware have saved Philadelphia?

"Could any thing," he asked, "be more destructive of the recruiting business than giving ten dollars bounty for six weeks service in the militia, who come in, you can not tell how; go, you can not tell when; and act, you can not tell where; who consume your provisions, exhaust your stores, and leave you at last in a critical moment.

"These, sir," he added, "are the men I am to depend upon ten days hence. This is the basis upon which your cause will rest, and must for ever depend, until you get a large standing army sufficient of itself to oppose the enemy."



[\[Enlarge\]](#)

Washington Crossing the Delaware

From the painting by Emanuel Leutze, in the Metropolitan Museum of Art, New York City.

On December 8, 1776, following his retreat across New Jersey, with the British army under Cornwallis pressing him closely, Washington transported his army of 6,000 men across the Delaware into Pennsylvania and to safety. He had seized all the boats within seventy miles, leaving Cornwallis to wait until the river froze over before he could follow.

In recrossing the Delaware (as here depicted) to strike the British at Trenton, Washington executed the most brilliant military maneuver of his career.

In his sesquicentennial address delivered at Cambridge, Massachusetts, July 3, 1925, President Coolidge related this incident which gives us Cornwallis's estimate of the importance of the Trenton victory:

"It is recorded that a few evenings after the surrender of Lord Cornwallis at Yorktown a banquet was given by Washington and his staff to the British commander and his staff. One likes to contemplate the sportsmanship of that function. Amabilities and good wishes were duly exchanged, and finally Lord Cornwallis rose to present his compliments to Washington. There had been much talk of past campaigning experiences, and Cornwallis, turning to Washington, expressed the judgment that when history's verdict was made up 'the brightest garlands for your Excellency will be gathered, not from the shores of the Chesapeake, but from the banks of the Delaware.'"

He also hinted the idea, extremely delicate in itself, of enlarging his powers so as to enable him to act, without constant applications to congress for their sanction of measures, the immediate adoption of which was essential to the public interests. "This might," he said, "be termed an application for powers too dangerous to be trusted." He could only answer, "that desperate diseases required desperate remedies. He could with truth declare that he felt no lust for power, but wished with as much fervency as any man upon this wide extended continent, for an opportunity of turning the sword into a ploughshare; but his feelings as an officer and a man had been such as to force him to say, that no person ever had a greater choice of difficulties to contend with than himself."

After recapitulating the measures he had adopted, which were not within his power, and urging many other necessary arrangements, he added, "it may be thought I am going a good deal out of the line of my duty to adopt these measures, or to advise thus freely. A character to lose; an estate to forfeit; the inestimable blessing of liberty at stake; and a life devoted, must be my excuse."

The present aspect of American affairs was gloomy in the extreme. The existing army, except a few regiments, affording an effective force of about fifteen hundred men, would dissolve in a few days. New Jersey had, in a great measure, submitted; and the militia of Pennsylvania had not displayed the alacrity expected from them. General Howe would, most probably, avail himself of the ice which would soon form, and of the dissolution of the American army, to pass the Delaware and seize Philadelphia. This event was dreaded, not only on account of its intrinsic importance, but of its peculiar effect at this time, when an army was to be recruited on which the future hopes of America were to rest. It was feared, and with reason, that it would make such an impression on the public mind as to deter the American youth from engaging in a contest becoming desperate.

Impelled by these considerations, General Washington meditated a blow on the British army, while dispersed in its cantonments, which might retrieve the affairs of America in the opinion of the public, and recover the ground that had been lost.

He formed the daring plan of attacking all the British posts on the Delaware at the same instant. If successful in all, or any of these attacks, he hoped not only to wipe off the impression made by his losses, and by his retreat, but also to relieve Philadelphia from immediate danger, and to compel his adversary to compress himself in such a manner as no longer to cover the Jerseys.

The positions taken to guard the river were equally well adapted to offensive operations.

The regulars were posted above Trenton from Yardley's up to Coryell's Ferry. The Pennsylvania flying camp, and Jersey militia, under the command of General Irvine, extended from Yardley's to the ferry opposite Bordentown; and General Cadwallader with the Pennsylvania militia lay still lower down the river.

In the plan of attack which had been digested, it was proposed to cross in the night at M'Konkey's Ferry, about nine miles above Trenton; to march down in two divisions, the one taking the river road, and the other the Pennington road, both which lead into the town; the first, towards that part of the western side which approaches the river, and the last towards the north. This part of the plan was to be executed by the General in person, at the head of about two thousand four hundred continental troops. It was thought practicable to pass them over the river by twelve, and to reach the point of destination by five in the morning of the next day, when the attack was to be made. General Irvine was directed to cross at the Trenton Ferry, and to secure the bridge below the town, in order to prevent the escape of the enemy by that road. General Cadwallader was to pass over at Dunk's Ferry, and carry the post at Mount Holly. It had been in contemplation to unite the troops employed in fortifying Philadelphia, to those at Bristol, and to place the whole under General Putnam; but such indications were given in that city of an insurrection of the royal cause, that this part of the plan was abandoned. The cold on the night of the 25th was very severe. Snow, mingled with hail and rain, fell in great quantities, and so much ice was made in the river that, with every possible exertion, the division conducted by the General in person could not effect its passage until three, nor commence its march down the river till near four. As the distance to Trenton by either road is nearly the same, orders were given to attack at the instant of arrival, and, after driving in the out-guards, to press rapidly after them into the town, and prevent the main body from forming.

Battle of Trenton.

December 26.

General Washington accompanied the upper column, and arriving at the out-post on that road, precisely at eight, drove it in, and, in three minutes, heard the fire from the column which had taken the river road. The picket guard attempted to keep up a fire while retreating, but was pursued with such ardour as to be unable to make a stand. Colonel Rawle, who commanded in the town, paraded his men, and met the assailants. In the commencement of the action, he was mortally wounded, upon which the troops, in apparent confusion, attempted to gain the road to Princeton. General Washington threw a detachment into their front, while he advanced rapidly on them in person. Finding themselves surrounded, and their artillery already seized, they laid down their arms, and surrendered

themselves prisoners of war. About twenty of the enemy were killed, and about one thousand made prisoners. Six field pieces, and a thousand stand of small arms were also taken. On the part of the Americans, two privates were killed; two frozen to death; and one officer, Lieutenant Monroe,[\[50\]](#) of the third Virginia regiment, and three or four privates wounded.

Unfortunately, the ice rendered it impracticable for General Irvine to execute that part of the plan which was allotted to him. With his utmost efforts, he was unable to cross the river; and the road towards Bordentown remained open. About five hundred men, among whom was a troop of cavalry, stationed in the lower end of Trenton, availed themselves of this circumstance, and crossing the bridge in the commencement of the action, escaped down the river. The same cause prevented General Cadwallader from attacking the post at Mount Holly. With great difficulty a part of his infantry passed the river, but returned on its being found absolutely impracticable to cross with the artillery.

Although this plan failed in so many of its parts, the success attending that which was conducted by General Washington in person was followed by the happiest effects.

Had it been practicable for the divisions under Generals Irvine and Cadwallader to cross the river, it was intended to proceed from Trenton to the posts at and about Bordentown, to sweep the British from the banks of the Delaware,[\[51\]](#) and to maintain a position in the Jerseys. But finding that those parts of the plan had failed, and supposing the British to remain in force below, while a strong corps was posted at Princeton, General Washington thought it unadvisable to hazard the loss of the very important advantage already gained, by attempting to increase it, and recrossed the river with his prisoners and military stores. Lieutenant Colonel Baylor, his aid-de-camp, who carried the intelligence of this success to congress, was presented with a horse completely caparisoned for service, and recommended to the command of a regiment of cavalry.

Nothing could surpass the astonishment of the British commander at this unexpected display of vigour on the part of the American General. His condition, and that of his country, had been thought desperate. He had been deserted by all the troops having a legal right to leave him; and, to render his situation completely ruinous, nearly two-thirds of the continental soldiers still remaining with him, would be entitled to their discharge on the

first day of January. There appeared to be no probability of prevailing on them to continue longer in the service, and the recruiting business was absolutely at an end. The spirits of a large proportion of the people were sunk to the lowest point of depression. New Jersey appeared to be completely subdued; and some of the best judges of the public sentiment were of opinion that immense numbers in Pennsylvania, also, were determined not to permit the sixty days allowed in the proclamation of Lord and Sir William Howe, to elapse, without availing themselves of the pardon it proffered. Instead of offensive operations, the total dispersion of the small remnant of the American army was to be expected, since it would be rendered too feeble by the discharge of those engaged only until the last day of December, to attempt, any longer, the defence of the Delaware, which would by that time, in all probability, be passable on the ice. While every appearance supported these opinions, and the British General, without being sanguine, might well consider the war as approaching its termination, this bold and fortunate enterprise announced to him, that he was contending with an adversary who could never cease to be formidable while the possibility of resistance remained. Finding the conquest of America more distant than had been supposed, he determined, in the depth of winter to recommence active operations; and Lord Cornwallis, who had retired to New York with the intention of embarking for Europe, suspended his departure, and returned to the Jerseys in great force, for the purpose of regaining the ground which had been lost.

Meanwhile, Count Donop, who commanded the troops below Trenton, on hearing the disaster which had befallen Colonel Rawle, retreated by the road leading to Amboy, and joined General Leslie at Princeton. The next day, General Cadwallader crossed the Delaware, with orders to harass the enemy, but to put nothing to hazard until he should be joined by the continental battalions, who were allowed a day or two of repose, after the fatigues of the enterprise against Trenton. General Mifflin joined General Irvine with about fifteen hundred Pennsylvania militia, and those troops also crossed the river.

Finding himself once more at the head of a force with which it seemed practicable to act offensively, the General determined to employ the winter in endeavouring to recover Jersey.

December 30.

With this view, he ordered General Heath to leave a small detachment at Peekskill, and with the main body of the New England militia, to enter Jersey, and approach the British cantonments on that side. General Maxwell was ordered, with all the militia he could collect, to harass their flank and rear, and to attack their out-posts on every favourable occasion, while the continental troops, led by himself, recrossed the Delaware, and took post at Trenton. On the last day of December, the regulars of New England were entitled to a discharge. With great difficulty, and a bounty of ten dollars, many of them were induced to renew their engagements for six weeks.

1777

January 1.

The British were now collected in force at Princeton under Lord Cornwallis; and appearances confirmed the intelligence, secretly^[52] obtained, that he intended to attack the American army.

Generals Mifflin and Cadwallader, who lay at Bordentown and Crosswix, with three thousand six hundred militia, were therefore ordered to join the Commander-in-chief, whose whole effective force, with this addition, did not exceed five thousand men.

January 2.

Lord Cornwallis advanced upon him the next morning; and about four in the afternoon, the van of the British army reached Trenton. On its approach, General Washington retired across the Assumpinck, a creek which runs through the town. The British attempted to cross the creek at several places, but finding all the fords guarded, they desisted from the attempt, and kindled their fires. The Americans kindled their fires likewise; and a cannonade was kept up on both sides till dark.

The situation of General Washington was again extremely critical. Should he maintain his position, he would certainly be attacked next morning, by a force so very superior, as to render the destruction of his little army inevitable. Should he attempt to retreat over the Delaware, the passage of that river had been rendered so difficult by a few mild and foggy days which had softened the ice, that a total defeat would be hazarded. In any event, the Jerseys would, once more, be entirely in possession of the enemy; the public mind again be depressed; recruiting discouraged; and Philadelphia, a second time, in the grasp of General Howe.

In this embarrassing state of things, he formed the bold design of abandoning the Delaware, and marching, by a circuitous route, along the left flank of the British army, into its rear, at Princeton, where its strength could not be great; and, after beating the troops at that place, to move rapidly to Brunswick, where the baggage and principal magazines of the army lay under a weak guard. He indulged the hope that this manoeuvre would call the attention of the British general to his own defence. Should Lord Cornwallis, contrary to every reasonable calculation, proceed to Philadelphia, nothing worse could happen in that quarter, than must happen should the American army be driven before him; and some compensation for that calamity would be obtained by expelling the enemy completely from Jersey, and cutting up, in detail, all his parties in that state.

January 3.

Of Princeton.

This plan being approved by a council of war, preparations were made for its immediate execution. As soon as it was dark, the baggage was removed silently to Burlington; and, about one in the morning, after renewing their fires, and leaving their guards to go the rounds as usual; the army decamped with perfect silence, and took a circuitous route along the Quaker road to Princeton, where three British regiments had encamped the preceding night, two of which commenced their march early in the morning to join the rear of their army at Maidenhead. At sunrise, when they had proceeded about two miles, they saw the Americans on their left, advancing in a direction which would enter the road in their rear. They immediately faced about, and, repassing Stony Brook, moved under cover of a copse of wood towards the American van, which was conducted by General Mercer. A sharp action ensued, which, however, was not of long duration. The militia, of which the advanced party was principally composed, soon gave way; and the few regulars attached to them were not strong enough to maintain their ground. While exerting himself gallantly to rally his broken troops, General Mercer was mortally wounded, and the van was entirely routed. But the fortune of the day was soon changed. The main body, led by General Washington in person, followed close in the rear, and attacked the British with great spirit. Persuaded that defeat would irretrievably ruin the affairs of America, he advanced in the very front of danger, and exposed himself to the hottest fire of the enemy. He was so well supported by the same troops who, a few days before, had saved their country at Trenton,

that the British, in turn, were compelled to give way. Their line was broken, and the two regiments separated from each other. Colonel Mawhood, who commanded that in front, and was, consequently, nearest the rear division of the army, under Lord Cornwallis, retired to the main road, and continued his march to Maidenhead. The fifty-fifth regiment, which was on the left, being hard pressed, fled in confusion across the fields into a back road, leading between Hillsborough and Kingston towards Brunswick. The vicinity of the British forces at Maidenhead secured Colonel Mawhood, and General Washington pressed forward to Princeton. The regiment remaining in that place took post in the college, and made a show of resistance; but some pieces of artillery being brought up to play upon that building, it was abandoned, and the greater part of them became prisoners. A few saved themselves by a precipitate flight to Brunswick.

In this engagement, rather more than one hundred British were killed in the field, and near three hundred were taken prisoners. The loss of the Americans, in killed, was somewhat less, but in their number was included General Mercer, a valuable officer, who had served with the Commander-in-chief during his early campaigns in Virginia, and was greatly esteemed by him. Colonels Haslet and Potter, Captain Neal of the artillery, Captain Fleming, and five other valuable officers, were also among the slain.

On the return of day-light, Lord Cornwallis discovered that the American army had decamped in the night; and immediately conceived the whole plan. Alarmed at the danger which threatened Brunswick, he marched with the utmost expedition for that place, and was close in the rear of the American army before it could leave Princeton.

The situation of General Washington was again perilous in the extreme. His small army was exhausted with fatigue. His troops had been without sleep, all of them one night, and some of them, two. They were without blankets, many of them were bare-footed and otherwise thinly clad, and were eighteen miles from his place of destination. He was closely pursued by a superior enemy who must necessarily come up with him before he could accomplish his designs on Brunswick. Under these circumstances he abandoned the remaining part of his original plan, and took the road leading up the country to Pluckemin, where his troops were permitted to refresh themselves. Lord Cornwallis continued his march to Brunswick, which he reached in the course of that night.

The sufferings of the American soldiers had been so great from the severity of the season, and the very active service in which they had been engaged; their complaints, especially on the part of the militia, were so loud; their numbers were reducing so fast by returning home, and by sickness; that General Washington found it impracticable to continue offensive operations. He retired to Morristown, in order to put his men under cover, and to give them some repose.

The bold, judicious, and unexpected attacks made at Trenton and Princeton, had a much more extensive influence than would be supposed from a mere estimate of the killed and taken. They saved Philadelphia for the winter; recovered the state of Jersey; and, which was of still more importance, revived the drooping spirits of the people, and gave a perceptible impulse to the recruiting service throughout the United States.

The problem, that a nation can be defended against a permanent force, by temporary armies, by occasional calls of the husbandman from his plough to the field, was completely disproved; and, in demonstrating its fallacy, the independence of America had nearly perished in its cradle. The utmost efforts were now directed to the creation of an army for the ensuing campaign, as the only solid basis on which the hopes of the patriot could rest. During the retreat through the Jerseys, and while the expectation prevailed that no effectual resistance could be made to the British armies, some spirited men indeed were animated to greater and more determined exertions; but this state of things produced a very different effect on the great mass, which can alone furnish the solid force of armies. In the middle states especially, the panic of distrust was perceived. Doubts concerning the issue of the contest became extensive; and the recruiting service proceeded so heavily and slowly as to excite the most anxious solicitude for the future.

The affairs of Trenton and Princeton were magnified into great victories; and were believed by the body of the people to evidence the superiority of their army and of their general. The opinion that they were engaged in hopeless contest, yielded to a confidence that proper exertions would ensure ultimate success.

This change of opinion was accompanied with an essential change of conduct; and, although the regiments required by congress were not completed, they were made much stronger than was believed to be possible before this happy revolution in the aspect of public affairs.

Firmness of Congress.

The firmness of congress throughout the gloomy and trying period which intervened between the loss of fort Washington and the battle of Princeton, gives the members of that time a just claim to the admiration of the world, and to the gratitude of their fellow citizens. Undismayed by impending dangers, they did not, for an instant, admit the idea of surrendering the independence they had declared, and purchasing peace by returning to their colonial situation. As the British army advanced through Jersey, and the consequent insecurity of Philadelphia rendered an adjournment from that place a necessary measure of precaution, their exertions seemed to increase with their difficulties. They sought to remove the despondence which was seizing and paralyzing the public mind, by an address to the states, in which every argument was suggested which could rouse them to vigorous action. They made the most strenuous efforts to animate the militia, and impel them to the field, by the agency of those whose popular eloquence best fitted them for such a service.

1776

December 20.

When reassembled at Baltimore, the place to which they had adjourned, their resolutions exhibited no evidence of confusion or dismay; and the most judicious efforts were made to repair the mischief produced by past errors.

Declaring that, in the present state of things, the very existence of civil liberty depended on the right execution of military powers, December 27. to a vigorous direction of which, distant, numerous, and deliberative bodies were unequal, they authorized General Washington to raise sixteen additional regiments, and conferred upon him, for six months, almost unlimited powers for the conduct of the war.

Towards the close of 1776, while the tide of fortune was running strongest against them, some few members, distrusting their ability to make a successful resistance, proposed to authorize their commissioners at the court of Versailles to transfer to France the same monopoly of their trade which Great Britain had possessed.[\[53\]](#) This proposition is stated to have been relinquished, because it was believed that concessions of this kind would impair many arguments which had been used in favour of independence, and disunite the people. It was next proposed to offer a

monopoly of certain enumerated articles; but the unequal operation of this measure gave to the proposition a speedy negative. Some proposed offering to France an offensive and defensive league; but this also was rejected. The more enlightened members argued that, though the friendship of small states might be purchased, that of France could not. They alleged that, if she would risk a war with Great Britain by openly espousing their cause, she would not be induced to that measure by the prospect of direct advantages, so much as by a desire to lessen the overgrown power of a dangerous rival. [54] It was therefore urged that the most certain means of influencing France to interfere, was an assurance that the United States were determined to persevere in refusing to resume their former allegiance. Under the influence of this better opinion, resolutions were again entered into, directing their commissioners in Europe to give explicit assurances of their determination at all events to maintain their independence. Copies of these resolutions were sent to the principal courts of Europe; and agents were appointed to solicit their friendship to the new formed states.[55] These despatches fell into the hands of the British, and were published by them; a circumstance which promoted the views of congress, who were persuaded that an apprehension of their coming to an accommodation with Great Britain constituted a material objection to the interference of foreign courts, in what was represented as merely a domestic quarrel. A resolution adopted in the deepest distress, to listen to no terms of reunion with their parent state, would, it was believed, convince those who wished for the dismemberment of the British empire, that sound policy required their interference so far as to prevent the conquest of the United States.

CHAPTER VII.

American army inoculated.... General Heath moves to Kingsbridge.... Returns to Peekskill.... Destruction of stores at Peekskill.... At Danbury.... Expedition to Sagg Harbour... Camp formed at Middlebrook.... Sir William Howe moves out to Somerset Court House.... Returns to Amboy.... Attempts to cut off the retreat of the American army to Middlebrook.... Lord Cornwallis skirmishes with Lord Stirling.... General Prescott surprised and taken.... The British army embarks.

1777

The effect of the proclamation published by Lord and General Howe on taking possession of New Jersey, was, in a great degree, counteracted by the conduct of the invading army. Fortunately for the United States, the hope that security was attainable by submission, was soon dissipated. Whatever may have been the exertions of their General to restrain his soldiers, they still considered and treated the inhabitants rather as conquered rebels than returning friends. Indulging in every species of licentiousness, the plunder and destruction of property were among the least offensive of the injuries they inflicted. The persons, not only of the men, but of that sex through which indignities least to be forgiven, and longest to be remembered, are received, were exposed to the most irritating outrage. Nor were these excesses confined to those who had been active in the American cause. The lukewarm, and even the loyalists, were the victims of this indiscriminating spirit of rapine and violence.

The effect of such proceedings on a people whose country had never before been the seat of war, and whose non-resistance had been occasioned solely by the expectation of that security which had been promised as the reward of submission to the royal authority, could not fail to equal the most sanguine hopes of the friends of the revolution. A sense of personal wrongs produced a temper which national considerations had proved too weak to excite; and, when the battles of Trenton and Princeton relieved the

inhabitants from fears inspired by the presence of their invaders, the great body of the people flew to arms; and numbers who could not be brought into the field to check the advancing enemy, and prevent the ravages which uniformly afflict a country that becomes the seat of war, were prompt in avenging those ravages. Small bodies of militia scoured the country, seized on stragglers, behaved unexceptionably well in several slight skirmishes, and were collecting in such numbers as to threaten the weaker British posts with the fate which had befallen Trenton and Princeton.

To guard against that spirit of enterprise which his adversary had displayed to such advantage, General Howe determined to strengthen his posts by contracting them. The position taken for the purpose of covering the country were abandoned; and the British force in New Jersey was collected at New Brunswick, on the Raritan, and at Amboy, a small town at the mouth of that river.

Feeble as was the American army, this movement was not effected without some loss. On the evacuation of Elizabeth town, General Maxwell attacked the British rear, and captured about seventy men with a part of their baggage.

The American troops had been so diminished by the extreme severity of the service, that it was with much difficulty the appearance of an army could be maintained. Fresh militia and volunteers arrived in camp, whose numbers were exaggerated by report. These additions to his small remaining regular force enabled the General to take different positions near the lines of the enemy, to harass him perpetually, restrain his foraging parties, and produce considerable distress in his camp.

January 12.

While, with little more than an imaginary army, General Washington thus harassed and confined his adversary, he came to the hazardous resolution of freeing himself and his troops from the fear of a calamity which he found it impossible to elude, and which had proved more fatal in his camp than the sword of the enemy.

American army inoculated.

Inoculation having been rarely practised in the western world, the American youth remained liable to the small pox. Notwithstanding the efforts to guard against this disease, it had found its way into both the northern and middle army, and had impaired the strength of both to an

alarming degree. To avoid the return of the same evil, the General determined to inoculate all the soldiers in the American service. With the utmost secrecy, preparations were made to give the infection in camp; and the hospital physicians in Philadelphia were ordered to carry all the southern troops, as they should arrive, through the disease. Similar orders were also given to the physicians at other places; and thus an army exempt from the fear of a calamity which had, at all times, endangered the most important operations, was prepared for the ensuing campaign. This example was followed through the country; and this alarming disease was no longer the terror of America.

As the main body of the British army was cantoned in Jersey, and a strong detachment occupied Rhode Island, General Washington believed that New York could not be perfectly secure. His intelligence strengthened this opinion; and, as an army, respectable in point of numbers, had been assembled about Peekskill, he ordered General Heath to approach New York for the purpose of foraging, and, should appearances favour the attempt, of attacking the forts which guarded the entrance into the island. The hope was entertained that General Howe, alarmed for New York, might either withdraw his troops from Jersey, or so weaken his posts in that state as to endanger them. Should this hope be disappointed, it was believed that something handsome might be done, either on York or Long Island.

General Heath moves down to Kingsbridge, but returns to Peekskill without effecting anything.

In pursuance of this plan, General Heath marched down to West Chester, and summoned fort Independence to surrender; but, the garrison determining to hold the place, a council of war deemed it unadvisable to risk an assault. An embarkation of troops which took place, about that time, at Rhode Island, alarmed General Heath for his rear, and induced him to resume his ground in the Highlands.

Though this attempt entirely failed, the Commander-in-chief still meditated important operations during the winter. All the intelligence from Europe demonstrated the necessity of these operations, and the fallacy of the hope, still extensively cherished, that the war would be abandoned by Great Britain. The administration was still supported by great majorities in parliament; and the nation seemed well disposed to employ all its means to reannex to the empire, what were still denominated, revolted colonies. It

was not to be doubted that large reinforcements would arrive in the spring; and the safety of the nation would be in hazard should General Howe remain in full force till they should be received. The utmost efforts were made by the Commander-in-chief to collect a sufficient number of troops to enable him to give a decisive blow to some one of the positions of his enemy. The state sovereignties, where the real energies of government resided, were incessantly urged to fill their regiments, and to bring their quotas into the field; and congress, at his instance, passed resolutions authorizing him to draw the troops from Peekskill, and to call out the militia of the neighbouring states. "It being," these resolutions proceed to say, "the earnest desire of congress, to make the army under the immediate command of General Washington sufficiently strong, not only to curb and confine the enemy within their present quarters, and prevent their drawing support of any kind from the country, but, by the divine blessing, totally to subdue them before they can be reinforced."

These resolves were communicated to the general, in a letter, manifesting the confident expectation of congress that the desire expressed in them would soon be realized. But the energy displayed in their passage could not be maintained in their execution.

Many causes concurred to prevent the collection of a force competent to those vigorous operations which the enterprising genius of the Commander-in-chief had provisionally planned, and the sanguine temper of congress had anticipated. Some of the state assemblies did not even complete the appointment of officers till the spring; and then, bitter contests concerning rank remained to be adjusted when the troops should join the army. After these arrangements were made, the difficulty of enlisting men was unexpectedly great. The immense hardships to which the naked soldiers had been exposed, during a winter campaign, in the face of a superior enemy; the mortality resulting from those hardships, and probably from an injudicious arrangement of the hospital department which was found to be the tomb of the sick; had excited a general disgust to the service; and a consequent unwillingness to engage in it.

From these causes the army continued so feeble that the general, instead of being able to execute the great designs he had meditated, entertained serious fears that Sir William Howe would take the field during the winter, force his positions, cross the Delaware on the ice, and proceed to

Philadelphia. In the apprehension of this attempt, and to avoid that confusion which would result from the removal of stores in the crisis of military operations, he had taken the precaution, as soon as the armies were in winter quarters, to convey those which were most valuable, to a distance from the route which it was supposed the British army would pursue.

March 4.

The real condition of the army is exhibited in a letter from the Commander-in-chief to congress, in answer to that which enclosed the resolutions already mentioned, and which expressed the brilliant schemes of victory formed by the government. "Could I," said the general, "accomplish the important objects so eagerly wished by congress; confining the enemy within their present quarters, preventing their getting supplies from the country, and totally subduing them before they are reinforced, I should be happy indeed. But what prospect or hope can there be of my effecting so desirable a work at this time? The enclosed return,[\[56\]](#) to which I solicit the most serious attention of congress, comprehends the whole force I have in Jersey. It is but a handful, and bears no proportion on the scale of numbers to that of the enemy. Added to this, the major part is made up of militia. The most sanguine in speculation can not deem it more than adequate to the least valuable purposes of war."

Skirmishes.

Though unable to act with the vigour he wished, the American general kept up a war of skirmishes through the winter. In the course of it, the British loss was believed to be considerable; and hopes were entertained that, from the scarcity of forage, neither their cavalry nor draft horses would be in a condition to take the field when the campaign should open. Their foraging parties were often attacked to advantage. Frequent small successes, the details of which filled the papers throughout the United States, not only increased the confidence of the American soldiers, but served greatly to animate the people.

State of the army.

The hope of collecting a sufficient force during the winter to make any valuable impression on the British army being disappointed, the views of the General were directed to the next campaign.

As the new army was to be raised by the authority of the state governments, he urged on them the necessity of bringing a respectable force

into the field early in the spring, with all the earnestness which was suggested by his situation, and zeal for the service.

In Connecticut and Massachusetts, the country was laid off into districts, each of which was required, by a given day, to furnish a soldier enlisted for three years, or during the war; in default of which, one person, from those capable of bearing arms, was to be drafted to serve until the first of the ensuing January. The Commander-in-chief, though still deprecating the introduction of men into the army whose terms of service would be of short duration, felt the necessity of submitting to this expedient, as the most eligible which could now be adopted.

In Virginia, where the same difficulty attended enlistments, it was proposed by the executive to fill the regiments with volunteers, who should engage to serve for six months. This plan was submitted to General Washington by Governor Henry, and his opinion asked upon it. "I am under the necessity of observing," said the General in reply, "that the volunteer plan which you mention will never answer any valuable purpose, and that I can not but disapprove the measure. To the short engagements of our troops may be fairly and justly ascribed almost every misfortune that we have experienced."

In a subsequent letter to the same gentleman, enforcing earnestly the necessity of bringing a sufficient army into the field, though coercive measures should be adopted, some alternatives were suggested, which, in a later period of the war, constituted the basis of various experiments to furnish the quota of troops required from that state.

As the season for active operations approached, fresh difficulties, growing out of the organization of the American system, unfolded themselves. As every state was exposed to invasion, and the command of the ocean enabled the British general to transfer the war, at pleasure, to any part of the Union, the attention of each was directed exclusively to its particular situation. Each state in the neighbourhood of the great theatre of action, contemplating its own danger, claimed the protection which is due from the whole to its parts. Although the object of the confederation was the same with that pursued by each of its members, the spirit incident to every league could not be controlled in an empire where, notwithstanding the existence of a head, the essentials of government resided in the members. It was displayed in repeated efforts to give to the energies of the army such

various directions, as would leave it unable to effect any great object, or to obstruct any one plan the enemy might form. The patriotism of the day, however, and the unexampled confidence placed by all the state governments in the Commander-in-chief, prevented the mischiefs this spirit is so well calculated to generate. His representations made their proper impression; and the intention of retaining continental troops for local defence was abandoned, though with some reluctance. The burden, however, of calling militia from their domestic avocations, at every threat of invasion, to watch every military post in each state, became so intolerable, that the people cast about for other expedients to relieve themselves from its weight. The plan of raising regular corps, to be exclusively under state authority, and thus be a perpetual substitute for the yeomanry of the country, presented itself as the most effectual and convenient mode of protecting the coasts from insult.

During the winter, General Howe kept his troops in their quarters, attending to their comfort. As the season for more active operations approached, his first attention was directed to the destruction of the scanty supplies prepared by the Americans for the ensuing campaign. A small place on the Hudson called Peekskill, about fifty miles above New York, was generally the residence of the officer commanding in the Highlands, and was used for the reception of stores, to be distributed into the neighbouring posts as occasion might require. Its strength, like that of all others depending for defence on militia, was subject to great fluctuation. As soon as the ice was out of the river, General Howe took advantage of its occasional weakness, to carry on an expedition against it, for the purpose of destroying the stores there deposited, or of bringing them away.

March 23.

Destruction of stores at Peekskill.

Colonel Bird was detached up the river on this service, with about five hundred men, under convoy of a frigate and some armed vessels. General M'Dougal, whose numbers did not at that time exceed two hundred and fifty men, received timely notice of his approach, and exerted himself for the removal of the stores into the strong country in his rear. Before this could be effected, Colonel Bird appeared; and M'Dougal, after setting fire to the remaining stores and barracks, retired into the strong grounds in the rear of Peekskill. The British detachment completed the conflagration, and returned

to New York. During their short stay, a piquet guard was attacked by Colonel Willet, and driven in with the loss of a few men; a circumstance, believed by General M'Dougal, to have hastened the re-embarkation of the detachment.

At Danbury.

April.

Military stores to a considerable amount had likewise been deposited at Danbury, on the western frontier of Connecticut. Although this place is not more than twenty miles from the Sound, yet the roughness of the intervening country, the frequent passage of troops from the eastward through the town, and the well known zeal of the neighbouring militia, were believed sufficient to secure the magazines collected at it. Against Danbury an expedition was projected; and two thousand men under the command of Governor Tryon, major general of the provincials in the British service, assisted by Brigadiers Agnew and Sir William Erskine, were employed in it.

April 28.

On the 25th of April the fleet appeared off the coast of Connecticut; and in the evening the troops were landed without opposition between Fairfield and Norwalk. General Silliman, then casually in that part of the country, immediately despatched expresses to assemble the militia. In the mean time Tryon proceeded to Danbury, which he reached about two the next day. On his approach, Colonel Huntingdon, who had occupied the town with about one hundred and fifty men, retired to a neighbouring height, and Danbury, with the magazines it contained, was consumed by fire. General Arnold, who was also in the state superintending the recruiting service, joined General Silliman at Reading, where that officer had collected about five hundred militia. General Wooster, who had resigned his commission in the continental service, and been appointed major general of the militia, fell in with them at the same place, and they proceeded in the night through a heavy rain to Bethel, about eight miles from Danbury. Having heard next morning that Tryon, after destroying the town and magazines, was returning, they divided their troops; and General Wooster, with about three hundred men, fell in his rear, while Arnold, with about five hundred, crossing the country, took post in his front at Ridgefield. Wooster came up with his rear about eleven in the morning, attacked it with great gallantry, and a sharp skirmish ensued, in which he was mortally wounded,[\[57\]](#) and

his troops were repulsed. Tryon then proceeded to Ridgefield, where he found Arnold already intrenched on a strong piece of ground, and prepared to dispute his passage. A warm skirmish ensued, which continued nearly an hour. Arnold was at length driven from the field; after which he retreated to Paugatuck, about three miles east of Norwalk. At break of day next morning, after setting Ridgefield on fire, the British resumed their march. About eleven in the forenoon, they were again met by Arnold, whose numbers increased during the day to rather more than one thousand men; among whom were some continental troops. A continued skirmishing was kept up until five in the afternoon, when the British formed on a hill near their ships. The Americans attacked them with intrepidity, but were repulsed and broken. Tryon, availing himself of this respite, re-embarked his troops, and returned to New York.

The loss of the British amounted to about one hundred and seventy men. That of the Americans, was represented by Tryon, as being much more considerable. By themselves, it was not admitted to exceed one hundred. In this number, however, were comprehended General Wooster, Lieutenant Colonel Gould, and another field officer, killed; and Colonel Lamb wounded. Several other officers and volunteers were killed. Military and hospital stores to a considerable amount, which were greatly needed by the army, were destroyed in the magazines at Danbury; but the loss most severely felt was rather more than one thousand tents, which had been provided for the campaign about to open.

Not long afterwards this enterprise was successfully retaliated. A British detachment had been for some time employed in collecting forage and provisions on the eastern end of Long Island. Howe supposed this part of the country to be so completely secured by the armed vessels which incessantly traversed the Sound, that he confided the protection of the stores, deposited at a small port called Sagg Harbour, to a schooner with twelve guns, and a company of infantry.

Expedition of Colonel Meigs to Sagg Harbour.

May.

General Parsons, who commanded a few recruits at New Haven, thinking it practicable to elude the cruisers in the bay, formed the design of surprising this party, and other adjacent posts, the execution of which was entrusted to Lieutenant Colonel Meigs, a gallant officer, who had

accompanied Arnold in his memorable march to Quebec. He embarked with about two hundred and thirty men, on board thirteen whale boats, and proceeded along the coast to Guilford, where he was to cross the Sound. With about one hundred and seventy of his detachment, under convoy of two armed sloops, he proceeded across the Sound to the north division of the island near South Hold, in the neighbourhood of which a small foraging party, against which the expedition was in part directed, was supposed to lie; but they had marched two days before to New York. The boats were conveyed across the land, a distance of about fifteen miles, into a bay which deeply intersects the eastern end of Long Island, where the troops re-embarked. Crossing the bay, they landed at two in the morning, about four miles from Sagg Harbour, which place they completely surprised, and carried with charged bayonets. May 24. At the same time, a division of the detachment secured the armed schooner, and the vessels laden with forage, which were set on fire, and entirely consumed. Six of the enemy were killed, and ninety taken prisoners. A very few escaped under cover of the night.

The object of his expedition being effected without the loss of a man, Colonel Meigs returned to Guilford with his prisoners. "Having," as was stated in the letter to General Parsons, "moved with such uncommon celerity, as to have transported his men, by land and water, ninety miles in twenty-five hours." Congress directed a sword to be presented to him, and passed a resolution expressing the high sense entertained of his merit, and of the prudence, activity, and valour, displayed by himself and his party.

The exertions made by the Commander-in-chief through the winter to raise a powerful army for the ensuing campaign, had not been successful. The hopes respecting its strength which the flattering reports made from every quarter had authorized him to form, were cruelly disappointed; and he found himself not only unable to carry into effect the offensive operations he had meditated, but unequal even to defensive war. That steady and persevering courage, however, which had supported himself and the American cause through the gloomy scenes of the preceding year, did not forsake him; and that sound judgment which applies to the best advantage those means which are attainable, however inadequate they may be, still remained. His plan of operations was adapted to that which he believed his enemy had formed. He was persuaded either that General Burgoyne would endeavour to take Ticonderoga, and to penetrate to the Hudson, in which

event General Howe would co-operate with him by moving up that river, and attempting to possess himself of the forts and high grounds commanding its passage; or that Burgoyne would join the grand army at New York by sea; after which the combined armies would proceed against Philadelphia.

To counteract the designs of the enemy, whatever they might be, to defend the three great points, Ticonderoga, the Highlands of New York, and Philadelphia, against two powerful armies so much superior to him, in arms, in numbers, and in discipline, it was necessary to make such an arrangement of his troops as would enable the parts reciprocally to aid each other, without neglecting objects of great, and almost equal magnitude which were alike threatened, and were far asunder. To effect these purposes, the troops of New England and New York were divided between Ticonderoga and Peekskill, while those from Jersey to North Carolina inclusive, were directed to assemble at the camp to be formed in Jersey. The more southern troops remained in that weak quarter of the union for its protection.

Camp formed at Middlebrook.

These arrangements being made, and the recruits collected, the camp at Morristown was broken up, the detachments called in, and the army assembled at Middlebrook, just behind a connected ridge of strong and commanding heights, north of the road leading to Philadelphia, and about ten miles from Brunswick.

This camp, the approaches to which were naturally difficult, was rendered still more defensible by intrenchments. The heights in front commanded a prospect of the course of the Raritan, the road to Philadelphia, the hills about Brunswick, and a considerable part of the country between that place and Amboy; so as to afford a full view of the most interesting movements of the enemy.

The force brought into the field by America required all the aid which could be derived from strong positions, and unremitting vigilance. On the 20th of May, the total of the army in Jersey, excluding cavalry and artillery, amounted to only eight thousand three hundred and seventy-eight men, of whom upwards of two thousand were sick. The effective rank and file were only five thousand seven hundred and thirty-eight.

Had this army been composed of the best disciplined troops, its inferiority, in point of numbers, must have limited its operations to defensive war; and have rendered it incompetent to the protection of any place, whose defence would require a battle in the open field. But more than half the troops[58] were unacquainted with the first rudiments of military duty, and had never looked an enemy in the face. As an additional cause of apprehension, a large proportion of the soldiers, especially from the middle states, were foreigners, many of them servants, in whose attachment to the American cause full confidence could not be placed.

General Washington, anticipating a movement by land towards Philadelphia, had taken the precaution to give orders for assembling on the western bank of the Delaware, an army of militia, strengthened by a few continental troops, the command of which was given to General Arnold, who was then in Philadelphia, employed in the settlement of his accounts.

The first and real object of the campaign, on the part of General Howe, was the acquisition of Philadelphia. He intended to march through Jersey; and, after securing the submission of that state, to cross the Delaware on a portable bridge constructed in the winter for the purpose, and proceed by land to that city. If, in the execution of this plan, the Americans could be brought to a general action on equal ground, the advantages of the royal army must insure a victory. But should Washington decline an engagement, and be again pressed over the Delaware, the object would be as certainly obtained.

Had Sir William Howe taken the field before the continental troops were assembled, this plan might probably have been executed without any serious obstruction; but the tents and camp equipage expected from Europe did not arrive until General Washington had collected his forces, and taken possession of the strong post on the heights of Middlebrook. It would be dangerous to attack him on such advantageous ground; for, although his camp might be forced, victory would probably be attended with such loss, as to disable the victor from reaping its fruits.

If it was deemed too hazardous to attack the strong camp at Middlebrook, an attempt to cross the Delaware, in the face of an army collected on its western bank, while that under General Washington remained unbroken in his rear, was an experiment of equal danger. It comported with the cautious temper of Sir William Howe to devise some other plan of operation to

which he might resort, should he be unable to seduce the American general from his advantageous position.

The two great bays of Delaware and Chesapeake suggested the alternative of proceeding by water, should he be unable to manoeuvre General Washington out of his present encampment.

June.

The plan of the campaign being settled, and some small reinforcements with the expected camp equipage being received from Europe, General Howe, leaving a garrison in New York, and a guard in Amboy, assembled his army at Brunswick, June 12. and gave strong indications of an intention to penetrate through the country to the Delaware, and reach Philadelphia by land.

Believing this to be his real design, Washington placed a select corps of riflemen under the command of Colonel Morgan, an officer who had distinguished himself in the unfortunate attempt to storm Quebec, and in whom those peculiar qualities which fit a man for the command of a partisan corps, designed to act on the lines of a formidable enemy, were eminently united.

He was ordered to take post at Vanvughton's Bridge on the Raritan, just above its confluence with the Millstone River, to watch the left flank of the British army, and seize every occasion to harass it.

Sir William Howe moves out to Somerset Court House in great force.

Early in the morning of the 14th, Sir William Howe, leaving two thousand men under the command of General Matthews at Brunswick, advanced in two columns towards the Delaware. The front of the first, under Lord Cornwallis, reached Somerset Court House, nine miles from Brunswick, by the appearance of day; and the second, commanded by General de Heister, reached Middlebush about the same time.

This movement was made with the view of inducing General Washington to quit his fortified camp, and approach the Delaware,[\[59\]](#) in which event, the British general expected to bring on an engagement on ground less disadvantageous than that now occupied by the American army. But that officer understood the importance of his position too well to abandon it. On the first intelligence that the enemy was in motion, he drew out his whole army, and formed it, to great advantage, on the heights in front of his camp.

This position was constantly maintained. The troops remained in order of battle during the day; and, in the night, slept on the ground to be defended. In the mean time the Jersey militia, with an alacrity theretofore unexampled in that state, took the field in great numbers. They principally joined General Sullivan, who had retired from Princeton, behind the Sourland hills towards Flemingtown, where an army of some respectability was forming, which could readily co-operate with that under the immediate inspection of the Commander-in-chief.

The settled purpose of General Washington was to defend his camp, but not to hazard a general action on other ground. He had therefore determined not to advance from the heights he occupied, into the open country, either towards the enemy, or the Delaware.

The object of General Howe seems to have been, by acting on his anxiety for Philadelphia, to seduce him from the strong ground about Middlebrook, and tempt him to approach the Delaware, in the hope of defending its passage. Should he succeed in this, he had little doubt of being able to bring on an engagement, in which he counted with certainty on victory. The considerations which restrained General Howe from attempting to march through Jersey, leaving the American army in full force in his rear, had determined Washington to allow him to proceed to the Delaware, if such should be his intention. In that event, he had determined to throw those impediments only in the way of the hostile army which might harass and retard its march; and, maintaining the high and secure grounds north of the road to be taken by the enemy, to watch for an opportunity of striking some important blow with manifest advantage.

He was not long in penetrating the designs of his adversary. "The views of the enemy," he writes to General Arnold in a letter of the 17th, "must be to destroy this army, and get possession of Philadelphia. I am, however, clearly of opinion, that they will not move that way until they have endeavoured to give a severe blow to this army. The risk would be too great to attempt to cross a river, when they must expect to meet a formidable opposition in front, and would have such a force as ours in their rear. They might possibly be successful, but the probability would be infinitely against them. Should they be imprudent enough to make the attempt, I shall keep close upon their heels, and will do every thing in my power to make the project fatal to them.

"But, besides the argument in favour of their intending, in the first place, a stroke at this army, drawn from the policy of the measure, every appearance contributes to confirm the opinion. Had their design been for the Delaware in the first instance, they would probably have made a secret, rapid march for it, and not have halted so as to awaken our attention, and give us time to prepare for obstructing them. Instead of that they have only advanced to a position necessary to facilitate an attack on our right, the part in which we are most exposed. In addition to this circumstance, they have come out as light as possible, leaving all their baggage, provisions, boats, and bridges, at Brunswick. This plainly contradicts the idea of their intending to push for the Delaware."

Returns to Amboy.

Finding the American army could not be drawn from its strong position, General Howe determined to waste no more time in threatening Philadelphia by land, but to withdraw from Jersey, and to embark his army as expeditiously as possible for the Chesapeake or the Delaware. On the night of the 19th he returned to Brunswick, and on the 22d to Amboy, from which place, the heavy baggage and a few of his troops passed into Staten Island, on the bridge which had been designed for the Delaware.

General Washington had expected this movement from Brunswick, and had made arrangements to derive some advantage from it. General Greene was detached with three brigades to annoy the British rear; and Sullivan and Maxwell were ordered to co-operate with him. In the mean time the army paraded on the heights of Middlebrook, ready to act as circumstances might require.

About sunrise, Colonel Morgan drove in a piquet guard, soon after which that division commenced its march to Amboy. Some sharp skirmishing took place between this party and Morgan's regiment, but the hope of gaining any important advantage was entirely disappointed; and the retreat to Amboy was effected with inconsiderable loss.

June 24.

In order to cover his light parties, which still hung on the British flank and rear, General Washington advanced six or seven miles, to Quibbletown on the road to Amboy; and Lord Stirling's division was pushed still farther, to the neighbourhood of the Metucking Meeting House, for the purpose of

co-operating with the light parties, should the retreat to Staten Island afford an opportunity of striking at the rear.

Endeavors to cut off the retreat of the American army to Middlebrook, but is disappointed.

Believing it now practicable to bring on an engagement, and probably hoping to turn the left of the American army, and gain the heights in its rear, General Howe, in the night of the 25th, recalled the troops from Staten Island; and, early next morning, made a rapid movement, in two columns, towards Westfield. The right, under the command of Lord Cornwallis, took the route by Woodbridge to the Scotch Plains; and the left, led by Sir William Howe in person, marched by Metucking Meeting House, to fall into the rear of the right column. It was intended that the left should take a separate road, soon after this junction, and attack the left flank of the American army at Quibbletown; while Lord Cornwallis should gain the heights on the left of the camp at Middlebrook. Four battalions with six pieces of cannon were detached to Bonhamtown.[\[60\]](#)

Lord Cornwallis skirmishes near the Scotch Plains with Lord Stirling.
June 30.

About Woodbridge, the right column fell in with one of the American parties of observation which gave notice of this movement. General Washington discerned his danger, put the whole army instantly in motion, and regained the camp at Middlebrook. Lord Cornwallis fell in with Lord Stirling, and a sharp skirmish ensued, in which the Americans were driven from their ground with the loss of three field pieces, and a few men. They retreated to the hills about the Scotch Plains, and were pursued as far as Westfield. Perceiving the passes in the mountains on the left of the American camp to be guarded, and the object of this skilful manoeuvre to be, consequently, unattainable, his lordship returned through Rahway to Amboy; and the whole army crossed over to Staten Island.

July 2.

General Washington was now again left to his conjectures respecting the plan of the campaign. Before Sir William Howe had, in any degree disclosed his views, intelligence was received of the appearance of Burgoyne on Lake Champlain, and that Ticonderoga was threatened. This intelligence strengthened the opinion that the design of Howe must be to seize the passes in the mountains on the Hudson, secure the command of

that river, and effect a junction between the two armies. Yet he could not permit himself to yield so entirely to this impression, as to make a movement which might open the way by land to Philadelphia. His army therefore maintained its station at Middlebrook; but arrangements were made to repel any sudden attack on the posts which defended the Hudson.

Some changes made in the stations of the British ships and troops having relieved the American general from his apprehensions of a sudden march to Philadelphia, he advanced Sullivan's division to Pompton Plains, on the way to Peekskill; and proceeded with the main body of his army, to Morristown;—thus approaching the highlands of New York, without removing so far from Middlebrook as to be unable to regain that camp should General Howe indicate an intention to seize it.

Meanwhile, the British General prosecuted, diligently, his plan of embarkation, which was, necessarily, attended with circumstances indicating a much longer voyage than that up the North River. These circumstances were immediately communicated to the eastern states, and congress was earnestly pressed to strengthen the fortifications on the Delaware, and to increase the obstructions in that river.

July 16.

In the midst of these appearances, certain intelligence was received that Burgoyne was in great force on the lakes, and was advancing against Ticonderoga. This intelligence confirmed the opinion that the main object of Howe must be to effect a junction with Burgoyne on the North River. Under this impression, General Washington ordered Sullivan to Peekskill, and advanced, himself, first to Pompton Plains, and afterwards to the Clove, where he determined to remain until the views of the enemy should be disclosed.

While the General thus anxiously watched the movements of his adversary, an agreeable and unexpected piece of intelligence was received from New England. The command of the British troops in Rhode Island had devolved on General Prescott. Thinking himself perfectly secure in an island, the water surrounding which was believed to be entirely guarded by his cruisers, and at the head of an army greatly superior to any force then collected in that department, he indulged himself in convenient quarters, rather distant from camp; and was remiss with respect to the guards about his person. Information of this negligence was communicated to the main,

and a plan was formed to surprise him. This spirited enterprise was executed, with equal courage and address, by Lieutenant Colonel Barton of the Rhode Island militia.

General Prescott surprised and taken.

On the night of the 10th, he embarked on board four whale boats, at Warwick Neck, with a party consisting of about forty persons, including Captains Adams and Philips, and several other officers. After proceeding about ten miles by water, unobserved by the British guard-boats, although several ships of war lay in that quarter, he landed on the west of the island, about midway between Newport and Bristol ferry, and marching a mile to the quarters of Prescott, dexterously seized the sentinel at his door, and one of his aids. The general himself was taken out of bed, and conveyed to a place of safety.

The success of this intrepid enterprise diffused the more joy throughout America, because it was supposed to secure the liberation of General Lee, by enabling General Washington to offer an officer of equal rank in exchange for him.

Congress expressed a high sense of the gallant conduct of Colonel Barton, and his party; and presented him with a sword as a mark of approbation.

As the fleet fell down towards Sandy Hook, General Washington withdrew slowly from the Clove, and disposed his army in different divisions, so as to march to any point which might be attacked. The British army embarks.

At length, the embarkation was completed, and the fleet put to sea.

CHAPTER VIII.

General Washington commences his march to the Delaware.... Takes measures for checking Burgoyne.... British army lands at Elk River.... General Washington advances to Brandywine.... Retreat of Maxwell.... Defeat at Brandywine.... Slight skirmish near the White Horse, and retreat to French Creek.... General Wayne surprised.... General Howe takes possession of Philadelphia.... Removal of Congress to Lancaster.

1777

July.

General Washington commences his march to the Delaware.

On receiving intelligence that the British fleet had sailed from New York, the American army commenced its march to the Delaware. About the time of its departure, a letter from Sir William Howe, directed to General Burgoyne at Quebec, was delivered to General Putnam by the person who had received it, as was said, for the purpose of carrying it to Quebec, and was transmitted by Putnam to the Commander-in-chief. In this letter, General Howe said that "he was exhibiting the appearance of moving to the southward, while his real intent was against Boston, from whence he would co-operate with the army of Canada." This stratagem entirely failed. General Washington, at once, perceived that the letter was written with a design that it should fall into his hands, and mislead him with respect to the views of the writer.

He takes measures for checking Burgoyne.

While the utmost vigilance and judgment were required to conduct the operations of the army under the immediate command of General Washington, the transactions in the north were too vitally interesting not to engage a large share of his attention. He not only hastened the march of those generals who were designed to act in that department, and pressed the governors of the eastern states to reinforce the retreating army with all their militia, but made large detachments of choice troops from his own;—thus weakening himself in order to strengthen other generals whose strength

would be more useful. The fame of being himself the leader of the victorious army did not, with false glare, dazzle his judgment, or conceal the superior public advantage to be derived from defeating the plans of Burgoyne.

On the 30th of July, all doubts respecting the destination of the British fleet were supposed to be removed by its appearance off the capes of Delaware; and orders were immediately given for assembling the detached parts of the army in the neighbourhood of Philadelphia. Scarcely were these orders given, when the aspect of affairs was changed, and they were countermanded. An express from Cape May brought the information that the fleet had sailed out of the bay of Delaware, and was proceeding eastward. From this time, no intelligence respecting it was received until about the 7th of August, when it appeared a few leagues south of the capes of Delaware, after which it disappeared, and was not again seen until late in that month. The fact was, that on entering the capes of Delaware, the difficulties attending an attempt to carry his fleet up that bay and river, determined General Howe to relinquish his original design, and to transport his army to the Chesapeake. Contrary winds prevented his gaining the mouth of that bay until the 16th of August.

The several divisions of the army were immediately ordered[\[61\]](#) to unite in the neighbourhood of Philadelphia, and the militia of Pennsylvania, Maryland, Delaware, and the northern counties of Virginia, were directed to take the field.

British fleet comes up the Chesapeake and lands an army under Sir William Howe at Elk River.

The British fleet, after entering the Chesapeake, sailed up it with favourable winds, and entered Elk River, up which the admiral proceeded as high as it was safely navigable; and on the 25th of August the troops were landed at the ferry.

The British army, at its disembarkation, has been generally computed at eighteen thousand men. They were in good health and spirits, admirably supplied with all the implements of war, and led by an experienced general, of unquestionable military talents.

General Washington advances to Brandywine.

The day before Sir William Howe landed, the American army marched through Philadelphia, and proceeded to the Brandywine. The divisions of

Greene and Stephen were advanced nearer to the Head of Elk, and encamped behind White Clay creek.

Congress had directed General Smallwood and Colonel Girt to take command of the militia of Maryland, who had been ordered by General Washington to assemble near the head of the bay. The militia of the lower counties of Delaware, commanded by General Rodney, were directed also to assemble in the British rear, and to co-operate with those of Maryland. Colonel Richardson's continental regiment, which had been stationed on the Eastern shore, was ordered to join this corps.

The militia of Pennsylvania, commanded by Major General Armstrong, were united with the main body of the army. Great exertions were used to bring them promptly into the field, and they came forward generally with some degree of alacrity. Although the numbers required by congress did not assemble, more appeared than could be armed.

The real strength of the American army can not be accurately stated. It was estimated by Sir William Howe at fifteen thousand, including militia; and this estimate did not far exceed their real total, as exhibited by the returns. But it is a fact, attributable in some degree to the badness of their clothing, and scarcity of tents, and in some degree to the neglect of the commissary department, to provide those articles of food which contribute to the preservation of health, that the effective force was always far below the total number. The effectives, including militia, did not exceed eleven thousand.

Morgan's regiment of riflemen having been detached to the northern army, a corps of light infantry was formed for the occasion, the command of which was given to General Maxwell. This corps was advanced to Iron Hill, about three miles in front of White Clay creek. The cavalry, consisting of four regiments, amounting to about nine hundred men, including persons of every description, were employed principally on the lines.

Lord Cornwallis attacks Maxwell's corps, and compels them to retreat.

One division of the British army, commanded by Sir William Howe in person, had taken post at Elkton, with its van advanced to Gray's Hill. General Knyphausen, with a second division, had crossed the ferry and encamped at Cecil Court House. He was directed to march up on the eastern side of the river, and to join Sir William Howe seven or eight miles south of Christiana. The intention to make this movement being disclosed by the

preparatory arrangements, General Washington advised Maxwell to post a choice body of men in the night on an advantageous part of the road, in order to annoy him on his march. In the morning of the third of September, the two divisions under Lord Cornwallis and General Knyphausen, moved forward and formed a junction at Pencader, or Atkins' tavern, where they encamped. In their way, the column led by Lord Cornwallis fell in with and attacked Maxwell, who retreated over White Clay creek, with the loss of about forty killed and wounded.

September 5.

The whole American army, except the light infantry, took a position behind Red Clay creek, on the road leading from the camp of Sir William Howe to Philadelphia. On this ground, the General thought it probable that the fate of Philadelphia, and of the campaign, might be decided; and he resorted to all the means in his power to encourage his troops, and stimulate them to the greatest exertions.

September 8.

On the 8th of September, the British army was again put in motion. The main body advanced by Newark, upon the right of the Americans, and encamped within four miles of that place, extending its left still farther up the country. Meanwhile, a strong column made a show of attacking in front, and, after manoeuvring some time, halted at Milton, within two miles of the centre.

September 9.

General Washington was soon convinced that the column in front was designed only to amuse, while the left should effect the principal and real object. Believing that object to be to turn his right, and cut off his communication with Philadelphia, he changed his ground, and, crossing the Brandywine early in the night, took post behind that river, at Chadd's Ford. General Maxwell was advanced in front, and placed, advantageously, on the hills south of the river, on the road leading over the ford. The militia, under General Armstrong, were posted at a ford two miles below Chadd's; and the right extended some miles above, with a view to other passes deemed less practicable. In this position, General Washington attended the movements of the adverse army.

In the evening, Howe marched forward in two columns, which united, early the next morning, at Kennet's Square; after which he advanced parties

on the roads leading to Lancaster, to Chadd's Ford, and to Wilmington.

The armies were now within seven miles of each other, with only the Brandywine between them, which opposed no obstacle to a general engagement. This was sought by Howe, and not avoided by Washington. It was impossible to protect Philadelphia without a victory, and this object was deemed throughout America, and especially by congress, of such magnitude as to require that an action should be hazarded for its attainment.

In the morning of the 11th, soon after day, information was received that the whole British army was in motion, advancing on the direct road leading over Chadd's Ford. The Americans were immediately under arms, and placed in order of battle, for the purpose of contesting the passage of the river. Skirmishing soon commenced between the advanced parties; and, by ten, Maxwell's corps, with little loss on either side, was driven over the Brandywine below the ford. Knyphausen, who commanded this column, paraded on the heights, reconnoitred the American army, and appeared to be making dispositions to force the passage of the river. A skirt of woods, with the river, divided him from Maxwell's corps, small parties of whom occasionally crossed over, and kept up a scattering fire, by which not much execution was done. At length one of these parties, led by Captains Waggoner and Porterfield, engaged the British flank guard very closely, killed a captain with ten or fifteen privates, drove them out of the wood, and were on the point of taking a field piece. The sharpness of the skirmish soon drew a large body of the British to that quarter, and the Americans were again driven over the Brandywine.[\[62\]](#)

About eleven in the morning, information reached General Washington that a large column with many field pieces, had taken a road leading from Kennet's Square, directly up the country, and had entered the great valley road, down which they were marching to the upper fords of the Brandywine. This information was given by Colonel Ross of Pennsylvania, who was in their rear, and estimated their numbers at five thousand men.

On receiving this information, Washington is said to have determined to detach Sullivan and Lord Stirling to engage the left division of the British army, and with the residue of his troops, to cross Chadd's Ford in person, and attack Knyphausen. Before this plan could be executed, counter intelligence was received inducing an opinion that the movement of the British on their left was a feint, and that the column under Lord Cornwallis,

after making demonstrations of crossing the Brandywine above its forks, had marched down the southern side of that river to reunite itself with Knyphausen.

Not long after the first communication was made by Colonel Ross, information was received from Colonel Bland of the cavalry, which produced some doubt respecting the strength of this column. He saw only two brigades; but the dust appeared to rise in their rear for a considerable distance. A major of the militia came in, who alleged that he left the forks of the Brandywine so late in the day that it was supposed Lord Cornwallis must have passed them by that time, had he continued his march in that direction, and who asserted that no enemy had appeared in that quarter. Some light horsemen who had been sent to reconnoitre the road, returned with the same information.

The uncertainty produced by this contradictory intelligence was at length removed; and about two in the afternoon, it was ascertained that the column led by Lord Cornwallis, after making a circuit of about seventeen miles, had crossed the river above its forks, and was advancing in great force.

A change of disposition was immediately made. The divisions commanded by Sullivan, Stirling, and Stephen, took new ground, advanced farther up the Brandywine, and fronted the British column marching down that river. The division commanded by Wayne remained at Chadd's Ford, to keep Knyphausen in check; in which service Maxwell was to co-operate. Greene's division, accompanied by General Washington in person, formed a reserve, and took a central position between the right and left wings.

The divisions detached against Lord Cornwallis formed hastily on an advantageous piece of ground, above Birmingham Meeting House, with their left near the Brandywine, and having both flanks covered by a thick wood. The artillery was judiciously posted, and the disposition of the whole was well made. Unfortunately, Sullivan's division, in taking its ground, made too large a circuit, and was scarcely formed when the attack commenced.

The American army defeated at Brandywine, and retreat to Chester.

On perceiving the Americans, the British army was formed in order of battle; and, about half past four, the action began. It was kept up warmly for some time. The American right first gave way, and by its flight exposed the flank of the remaining divisions to a galling fire. The line continued to

break from the right, and, in a short time, was completely routed. The right wing made some attempts to rally, but, being briskly charged, again broke, and the flight became general.

On the commencement of the action on the right, General Washington pressed forward with Greene, to the support of that wing; but, before his arrival, its rout was complete, and he could only check the pursuit. For this purpose, the 10th Virginia regiment commanded by Colonel Stevens, and a regiment of Pennsylvania commanded by Colonel Stewart, neither of which had been in action, were posted advantageously on the road taken by the defeated army. The impression made by the fire of these regiments, and the approach of night, induced Sir William Howe, after dispersing them, to give over the pursuit.

When the American right was found to be fully engaged with Lord Cornwallis, Knyphausen made real dispositions for crossing the river. Chadd's Ford was defended by an intrenchment and battery, with three field pieces, and a howitzer. After some resistance, the work was forced; and, the defeat of the right being known, the left wing also withdrew from its ground. The whole army retreated that night to Chester, and the next day to Philadelphia.

The loss sustained by the Americans in this action has been estimated at three hundred killed, and six hundred wounded. Between three and four hundred, principally the wounded, were made prisoners.

As must ever be the case in new raised armies, unused to danger, and from which undeserving officers have not been expelled, their conduct was not uniform. Some regiments, especially those which had served the preceding campaign, maintained their ground with the firmness and intrepidity of veterans, while others gave way as soon as they were pressed. The authors of a very correct history of the war,[\[63\]](#) speaking of this action, say, "a part of their troops, among whom were particularly numbered some Virginia[\[64\]](#) regiments, and the whole corps of artillery, behaved exceedingly well in some of the actions of this day, exhibiting a degree of order, firmness, and resolution, and preserving such a countenance in extremely sharp service, as would not have discredited veterans. Some other bodies of their troops behaved very badly."[\[65\]](#)

The official letter of Sir William Howe stated his loss at rather less than one hundred killed, and four hundred wounded. As the Americans sustained

very little injury in the retreat, this inequality of loss can be ascribed only to the inferiority of their arms. Many of their muskets were scarcely fit for service; and, being of unequal calibre, their cartridges could not be so well fitted, and, consequently, their fire could not do as much execution as that of the enemy. This radical defect was felt in all the operations of the army.

From the ardour with which the Commander-in-chief had inspired his troops before this action, it is probable that the conflict would have been more severe, had the intelligence respecting the movement on the left of the British army been less contradictory. Raw troops, changing their ground in the moment of action, and attacked in the agitation of moving, are easily thrown into confusion. This was the critical situation of a part of Sullivan's division, and was the cause of the right's breaking before Greene could be brought up to support it; after which, it was impossible to retrieve the fortune of the day.

But had the best disposition of the troops been made at the time, which subsequent intelligence would suggest, the action could not have terminated in favour of the Americans. Their inferiority in numbers, in discipline, and in arms, was too great to leave them a probable prospect of victory. A battle, however, was not to be avoided. The opinion of the public, and of congress, demanded it. The loss of Philadelphia, without an attempt to preserve it, would have excited discontents which, in the United States, might be productive of serious mischief; and action, though attended with defeat, provided the loss be not too great, must improve an army in which, not only the military talents, but even the courage, of officers, some of them of high rank, remained to be ascertained.

Among the wounded was the Marquis de la Fayette, and Brigadier General Woodford.

The battle of Brandywine was not considered as decisive by congress, the General, or the army. The opinion was carefully cherished that the British had gained only the ground; and that their loss was still more considerable than had been sustained by the Americans. Congress appeared determined to risk another battle for the metropolis of America. Far from discovering any intention to change their place of session, they passed vigorous resolutions for reinforcing the army, and directed General Washington to give the necessary orders for completing the defences of the Delaware.

September 12.

From Chester, the army marched through Darby, over the Schuylkill bridge, to its former ground, near the falls of that river. General Greene's division, which, having been less in action, was more entire than any other, covered the rear; and the corps of Maxwell remained at Chester until the next day, as a rallying point for the small parties, and straggling soldiers, who might yet be in the neighbourhood.

Having allowed his army one day for repose and refreshment, General Washington recrossed the Schuylkill, and proceeded on the Lancaster road, with the intention of risking another engagement.

Sir William Howe passed the night of the 11th on the field of battle. On the succeeding day, he detached Major General Grant with two brigades to Concord meeting-house; and on the 13th, Lord Cornwallis joined General Grant, and marched towards Chester. Another detachment took possession of Wilmington; to which place the sick and wounded were conveyed.

To prevent a sudden movement to Philadelphia by the lower road, the bridge over the Schuylkill was loosened from its moorings, and General Armstrong was directed, with the Pennsylvania militia to guard the passes over that river.

On the 15th, the American army, intending to gain the left of the British, reached the Warren tavern, on the Lancaster road, twenty-three miles from Philadelphia. Intelligence was received, early next morning, that Howe was approaching in two columns. It being too late to reach the ground he had intended to occupy, Washington resolved to meet and engage him in front.

September 16.

Both armies prepared, with great alacrity, for battle. The advanced parties had met, and were beginning to skirmish, when they were separated by a heavy rain, which, becoming more and more violent, rendered the retreat of the Americans a measure of absolute necessity. The inferiority of their arms never brought them into such imminent peril as on this occasion. Their gunlocks not being well secured, their muskets soon became unfit for use. Their cartridge-boxes had been so inartificially constructed, as not to protect their ammunition from the tempest. Their cartridges were soon damaged; and this mischief was the more serious, because very many of the soldiers were without bayonets.

After a slight skirmish compelled again to retire, cross the Schuylkill, and proceed to French Creek.

The army being thus rendered unfit for action, the design of giving battle was reluctantly abandoned, and a retreat commenced. It was continued all the day, and great part of the night, through a cold and most distressing rain, and very deep roads. A few hours before day, the troops halted at the Yellow Springs, where their arms and ammunition were examined, and the alarming fact was disclosed, that scarcely a musket in a regiment could be discharged, and scarcely one cartridge in a box was fit for use. This state of things suggested the precaution of moving to a still greater distance, in order to refit their arms, obtain a fresh supply of ammunition, and revive the spirits of the army. The General therefore retired to Warwick furnace, on the south branch of French Creek, where ammunition and a few muskets might be obtained in time to dispute the passage of the Schuylkill, and make yet another effort to save Philadelphia.

The extreme severity of the weather had entirely stopped the British army. During two days, General Howe made no other movement than to unite his columns.

From French Creek, General Wayne was detached with his division, into the rear of the British, with orders to join General Smallwood; and, carefully concealing himself and his movements, to seize every occasion which this march might offer, of engaging them to advantage. Meanwhile, General Washington crossed the Schuylkill at Parker's ferry, and encamped on both sides of Perkyomy Creek.

September 19.

General Wayne surprised, and after a sharp action compelled to retreat.

General Wayne lay in the woods near the entrance of the road from Darby into that leading to Lancaster, about three miles in the rear of the left wing of the British troops encamped at Trydruffin, where he believed himself to be perfectly secure. But the country was so extensively disaffected that Sir William Howe received accurate accounts of his position and of his force. Major General Gray was detached to surprise him, and effectually accomplished his purpose. About eleven, in the night of the 20th, his pickets, driven in with charged bayonets, gave the first intimation of Gray's approach. Wayne instantly formed his division; and while his right sustained a fierce assault, directed a retreat by the left, under cover of a few regiments who, for a short time, withstood the violence of the shock. In his letter to the Commander-in-chief, he says that they gave the assailants some

well-directed fires which must have done considerable execution; and that, after retreating from the ground on which the engagement commenced, they formed again, at a small distance from the scene of action; but that both parties drew off without renewing the conflict. He states his loss at about one hundred and fifty[66] killed and wounded. The British accounts admit, on their part, a loss of only seven.

When the attack commenced, General Smallwood, who was on his march to join Wayne, a circumstance entirely unexpected by General Gray, was within less than a mile of him; and, had he commanded regulars, might have given a very different turn to the night. But his militia thought only of their own safety; and, having fallen in with a party returning from the pursuit of Wayne, fled in confusion with the loss of only one man.

Some severe animadversions on this unfortunate affair having been made in the army, General Wayne demanded a court martial, which, after investigating his conduct, was unanimously of opinion, "that he had done every thing to be expected from an active, brave, and vigilant officer;" and acquitted him with honour.

September 21.

Having secured his rear, by compelling Wayne to take a greater distance, Sir William Howe marched along the valley road to the Schuylkill, and encamped on the bank of that river, from the Fatland ford up to French Creek, along the front of the American army. To secure his right from being turned, General Washington again changed his position, and encamped with his left near, but above the British right.

Washington marches to Pottsgrove.

September 22.

General Howe now relinquished his plan of bringing Washington to another battle; and, thinking it adviseable, perhaps, to transfer the seat of war to the neighbourhood of his ships, determined to cross the Schuylkill, and take possession of Philadelphia. In the afternoon, he ordered one detachment to cross at Fatland ford which was on his right, and another to cross at Gordon's ford, on his left, and to take possession of the heights commanding them. These orders were executed without much difficulty, and the American troops placed to defend these fords were easily dispersed.

This service being effected, the whole army marched by its right, about midnight, and crossing at Fatland without opposition, proceeded a

considerable distance towards Philadelphia, and encamped, with its left near Sweed's ford, and its right on the Manatawny road, having Stony run in its front.

It was now apparent that only immediate victory could save Philadelphia from the grasp of the British general, whose situation gave him the option of either taking possession of that place, or endeavouring to bring on another engagement. If, therefore, a battle must certainly be risked to save the capital, it would be necessary to attack the enemy.

Public opinion, which a military chief finds too much difficulty in resisting, and the opinion of congress required a battle; but, on a temperate consideration of circumstances, Washington came to the wise decision of avoiding one for the present.

His reasons for this decision were conclusive. Wayne and Smallwood had not yet joined the army. The continental troops ordered from Peekskill, who had been detained for a time by an incursion from New York, were approaching; and a reinforcement of Jersey militia, under General Dickenson, was also expected.

To these powerful motives against risking an engagement, other considerations of great weight were added, founded on the condition of his soldiers. An army, manoeuvring in an open country, in the face of a very superior enemy, is unavoidably exposed to excessive fatigue, and extreme hardship. The effect of these hardships was much increased by the privations under which the American troops suffered. While in almost continual motion, wading deep rivers, and encountering every vicissitude of the seasons, they were without tents, nearly without shoes, or winter clothes, and often without food.

A council of war concurred in the opinion the Commander-in-chief had formed, not to march against the enemy, but to allow his harassed troops a few days for repose, and to remain on his present ground until the expected reinforcements should arrive.

Immediately after the battle of Brandywine, the distressed situation of the army had been represented to congress, who had recommended it to the executive of Pennsylvania to seize the cloths and other military stores in the ware houses of Philadelphia, and, after granting certificates expressing their value, to convey them to a place of safety. The executive, being unwilling to encounter the odium of this strong measure, advised that the extraordinary

powers of the Commander-in-chief should be used on the occasion. Lieutenant Colonel Hamilton, one of the General's aids, a young gentleman already in high estimation for his talents and zeal, was employed on this delicate business. "Your own prudence," said the General, in a letter to him while in Philadelphia, "will point out the least exceptionable means to be pursued; but remember, delicacy and a strict adherence to the ordinary mode of application must give place to our necessities. We must, if possible, accommodate the soldiers with such articles as they stand in need of, or we shall have just reason to apprehend the most injurious and alarming consequences from the approaching season."

All the efforts, however, of this very active officer could not obtain a supply, in any degree, adequate to the pressing and increasing wants of the army.

General Howe takes possession of Philadelphia.

Congress removes to Lancaster.

Colonel Hamilton was also directed to cause the military stores which had been previously collected to a large amount in Philadelphia, and the vessels which were lying at the wharves, to be removed up the Delaware. This duty was executed with so much vigilance, that very little public property fell, with the city, into the hands of the British general, who entered it on the 26th of September. The members of congress separated on the eighteenth, in the evening, and reassembled at Lancaster on the twenty-seventh of the same month.

From the 25th of August, when the British army landed at the Head of Elk, until the 26th of September when it entered Philadelphia, the campaign had been active, and the duties of the American general uncommonly arduous. The best English writers bestow high encomiums on Sir William Howe for his military skill, and masterly movements during this period. At Brandywine especially, Washington is supposed to have been "outgeneraled, more outgeneraled than in any action during the war." If all the operations of this trying period be examined, and the means in possession of both be considered, the American chief will appear, in no respect, inferior to his adversary, or unworthy of the high place assigned to him in the opinions of his countrymen. With an army decidedly inferior, not only in numbers, but in every military requisite except courage, in an open country, he employed his enemy near thirty days in advancing about sixty

miles. In this time he fought one general action; and, though defeated, was able to reassemble the same undisciplined, unclothed, and almost unfed army; and, the fifth day afterwards, again to offer battle. When the armies were separated by a storm which involved him in the most distressing circumstances, he extricated himself from them, and still maintained a respectable and imposing countenance.

The only advantage he is supposed to have given was at the battle of Brandywine; and that was produced by the contrariety and uncertainty of the intelligence received. A general must be governed by his intelligence, and must regulate his measures by his information. It is his duty to obtain correct information; and among the most valuable traits of a military character, is the skill to select those means which will obtain it. Yet the best selected means are not always successful; and, in a new army, where military talent has not been well tried by the standard of experience, the general is peculiarly exposed to the chance of employing not the best instruments. In a country, too, which is covered with wood, precise information of the numbers composing different columns is to be gained with difficulty.

It has been said "that the Americans do not appear to have made all the use that might be expected of the advantages which the country afforded for harassing and impeding the British army."

In estimating this objection, it ought to be recollected that General Smallwood was directed, with the militia of Maryland and Delaware, supported by a regiment of continental troops, to hang on and harass the rear of the enemy: that General Maxwell, with a select corps consisting of a thousand men, was ordered to seize every occasion to annoy him on his march: that General Wayne, with his division, was afterwards detached to unite with Smallwood, and command the whole force collected in the rear, which would have been very respectable.

If the militia did not assemble in the numbers expected, or effect the service allotted to them, their failure is not attributable to General Washington. His calls on them had been early and energetic; and the state of his army did not admit of his making larger detachments from it to supply the place they had been designed to fill.

Loud complaints had been made against General Maxwell by the officers of his corps; and a court was ordered to inquire into his conduct, by whom

he was acquitted. Whether that officer omitted to seize the proper occasions to annoy the enemy, or the cautious and compact movements of Sir William Howe afforded none, can not be easily ascertained. General Washington felt the loss of Morgan, and wrote pressinglly to Gates, after his success against Burgoyne, to restore him that officer, with his regiment, as soon as possible.

CHAPTER IX.

Measures to cut off the communication between the British army and fleet.... Battle of Germantown.... Measures to intercept supplies to Philadelphia.... Attack on fort Mifflin.... On Red Bank.... The Augusta blows up.... Fort Mifflin evacuated.... Fort Mercer evacuated.... The British open the communication with their fleet.... Washington urged to attack Philadelphia.... General Howe marches out to Chestnut Hill.... Returns to Philadelphia.... General Washington goes into winter quarters.

1777

September.

Measures taken to prevent a communication between the British army in Philadelphia and their fleet.

Philadelphia being lost, General Washington sought to make its occupation inconvenient and insecure, by rendering it inaccessible to the British fleet. With this design, works had been erected on a low marshy island in the Delaware, near the junction of the Schuylkill, which, from the nature of its soil, was called Mud Island. On the opposite shore of Jersey, at a place called Red Bank, a fort had also been constructed which was defended with heavy artillery. In the deep channel between, or under cover of these batteries, several ranges of frames had been sunk, to which, from their resemblance to that machine, the name of chevaux-de-frise had been given. These frames were so strong and heavy as to be destructive of any ship which might strike against them, and were sunk in such a depth of water as rendered it equally difficult to weigh them or cut them through; no attempt to raise them, or to open the channel in any manner could be successful until the command of the shores on both sides should be obtained.

Other ranges of these machines had been sunk about three miles lower down the river; and some considerable works were in progress at Billingsport on the Jersey side, which were in such forwardness as to be

provided with artillery. These works and machines were farther supported by several galleys mounting heavy cannon, together with two floating batteries, a number of armed vessels, and some fire ships.

The present relative situation of the armies gave a decisive importance to these works. Cutting off the communication of General Howe with his fleet, they prevented his receiving supplies by water, while the American vessels in the river above fort Mifflin, the name given to the fort on Mud Island, rendered it difficult to forage in Jersey, General Washington hoped to render his supplies on the side of Pennsylvania so precarious, as to compel him to evacuate Philadelphia.

The advantages of this situation were considerably diminished by the capture of the Delaware frigate.

September 27.

The day after Lord Cornwallis entered Philadelphia, three batteries were commenced for the purpose of acting against any American ships which might appear before the town. While yet incomplete, they were attacked by two frigates, assisted by several galleys and gondolas. The Delaware, being left by the tide while engaged with the battery, grounded and was captured; soon after which, the smaller frigate, and the other vessels, retired under the guns of the fort. This circumstance was the more interesting, as it gave the British General the command of the ferry, and, consequently, free access to Jersey, and enabled him to intercept the communication between the forts below, and Trenton, from which place the garrisons were to have drawn their military stores.

September 28.

All the expected reinforcements, except the state regiment and militia from Virginia, being arrived, and the detached parties being called in, the effective strength of the army amounted to eight thousand continental troops, and three thousand militia. With this force, General Washington determined to approach the enemy, and seize the first favourable moment to attack him. September 30. In pursuance of this determination, the army took a position on the Skippack road, about twenty miles from Philadelphia, and sixteen from Germantown,—a long village stretching on both sides the great road leading northward from Philadelphia, which forms one continued street nearly two miles in length. The British line of encampment crossed this village at right angles near the centre, and Lord Cornwallis, with four

regiments of grenadiers, occupied Philadelphia. September 29. The immediate object of General Howe being the removal of the obstructions in the river, Colonel Stirling, with two regiments, had been detached to take possession of the fort at Billingsport, which he accomplished without opposition. This service being effected, and the works facing the water destroyed, Colonel Stirling was directed to escort a convoy of provisions from Chester to Philadelphia. October 3. Some apprehensions being entertained for the safety of this convoy, another regiment was detached from Germantown, with directions to join Colonel Stirling.[\[67\]](#)

This division of the British force appeared to Washington to furnish a fair opportunity to engage Sir William Howe with advantage. Determining to avail himself of it, he formed a plan for surprising the camp at Germantown, and attacking both wings, in front and rear, at the same instant.

The divisions of Sullivan and Wayne, flanked by Conway's brigade, were to march down the main road, and, entering the town by the way of Chesnut Hill, to attack the left wing; while General Armstrong, with the Pennsylvania militia, was to move down the Manatawny road[\[68\]](#) by Vanduring's mill, and turning the left flank to attack in the rear. The Commander-in-chief accompanied this column.

The divisions of Greene and Stephen, flanked by M'Dougal's brigade, were to take a circuit by the Lime Kiln road, and, entering the town at the market house, to attack the right wing.

The militia of Maryland and Jersey, under Generals Smallwood and Forman, were to march down the old York road, and turning the right to fall upon its rear.

The division of Lord Stirling, and the brigades of Nash and Maxwell, were to form a corps de reserve.

Parties of cavalry were silently to scour the roads to prevent observation, and to keep up the communication between the heads of the several columns.

October 4.

Royal army attacked at Germantown.

The necessary arrangements being made, the army moved from its ground at seven in the afternoon. Before sunrise the next morning, the

advance of the column led by Sullivan, encountered and drove in a picket placed at Mount Airy, the house of Mr. Allen.^[69] The main body followed close in the rear, and engaging the light infantry and the 40th regiment, posted at the head of the village, soon forced them to give way, leaving their baggage behind them. Though closely pursued, Lieutenant Colonel Musgrave threw himself with five companies of the 40th regiment into a large stone house belonging to Mr. Chew, which stood directly in the way of Wayne's division, and poured on the Americans an incessant and galling fire of musketry from its doors and windows. After making some unsuccessful, and bloody attempts to carry this house by storm, and then battering it for a few minutes with field artillery, which was found too light to make any impression on its walls, a regiment was left to observe the party within it, while the troops who had been checked by Colonel Musgrave again moved forward, passing to the left of the house.

In rather more than half an hour after Sullivan had been engaged, the left wing, having formed the line, came also into action; and, attacking the light infantry posted in front of the British right wing, soon drove it from its ground. While rapidly pursuing the flying enemy, Woodford's brigade,^[70] which was on the right of this wing, was arrested by a heavy fire from Chew's house, directed against its right flank. The inefficiency of musketry against troops thus sheltered being instantly perceived, the brigade was drawn off to the left by its commanding officer, and the field-pieces attached to it were ordered up to play on the house, but were too light to be of service. Some time was consumed in this operation, and the advance of the brigade was, of course, retarded. This part of the line was consequently broken, and the two brigades composing the division of Stephen were not only separated from each other, but from the other division which was led by General Greene in person. That division, consisting of the brigades of Muhlenberg and Scott, pressing forward with eagerness, encountered and broke a part of the British right wing, entered the village, and made a considerable number of prisoners.

Thus far the prospect was flattering. The attack had been made with great spirit; several brigades had entered the town; and such an impression had been made on the British army as to justify the expectation that its wings might be separated from each other, and a complete victory be obtained. Had the American troops possessed the advantages given by experience; had every division of the army performed with precision the part allotted to

it, there is yet reason to believe that the hopes inspired by this favourable commencement would not have been disappointed. But the face of the country, and the darkness of the morning produced by a fog of uncommon density, co-operating with the want of discipline in the army, and the derangements of the corps from the incidents at Chew's house, blasted their flattering appearances, and defeated the enterprise.

The grounds over which the British were pursued abounded with small and strong enclosures, which frequently broke the line of the advancing army. The two divisions of the right wing had been separated at Chew's house; and immediately after their passing it, the right of the left wing was stopped at the same place, so as to cause a division of that wing also. The darkness of the morning rendered it difficult to distinguish objects even at an inconsiderable distance; and it was impossible for the Commander-in-chief to learn the situation of the whole, or to correct the confusion which was commencing. The divisions and brigades separated at Chew's house could not be reunited; and, even among those parts which remained entire, a considerable degree of disorder was soon introduced by the impediments to their advance. Some regiments pursuing with more vivacity than others, they were separated from each other, their weight lessened, and their effect impaired. The darkness which obstructed the reunion of the broken parts of the American army, also prevented their discerning the real situation of the enemy, so as to improve the first impression; and, in some instances, some corps being in advance of others, produced uncertainty whether the troops, seen indistinctly, were friends or foes.

The attacks on the flanks and rear, which formed a part of the original plan, do not appear ever to have been made. The Pennsylvania militia came in view of the chasseurs who flanked the left of the British line, but did not engage them closely. The Maryland and Jersey militia just showed themselves on the right flank, about the time Greene was commencing a retreat.

The Americans repulsed.

These embarrassments gave the British time to recover from the consternation into which they had been thrown. General Knyphausen, who commanded their left, detached two brigades to meet the right of Sullivan which had penetrated far into the village, before his left, which had been detained at Chew's house, could rejoin him; and the action became warm in

this quarter. The British right also recovered from its surprise, and advanced on that part of Greene's division which had entered the town. After a sharp engagement these two brigades began to retreat, and those which were most in advance were surrounded and compelled to surrender. About the same time the right wing also began to retreat. It is understood that they had expended their ammunition.

Every effort to stop this retrograde movement proved ineffectual. The division of Wayne fell back on that of Stephen, and was for an instant mistaken for the enemy. General confusion prevailed, and the confidence felt in the beginning of the action was lost. With infinite chagrin General Washington was compelled to relinquish his hopes of victory, and turn his attention to the security of his army. The enemy not being sufficiently recovered to endanger his rear, the retreat was made without loss, under cover of the division of Stephen, which had scarcely been in the engagement.

In this battle, about two hundred Americans were killed, near three times that number wounded, and about four hundred were made prisoners. Among the killed was General Nash of North Carolina; and among the prisoners was Colonel Matthews of Virginia, whose regiment had penetrated into the centre of the town.

The loss of the British, as stated in the official return of General Howe, did not much exceed five hundred in killed and wounded, of whom less than one hundred were killed; among the latter were Brigadier General Agnew and Colonel Bird.

The American army retreated the same day, about twenty miles, to Perkyomy Creek, where a small reinforcement, consisting of fifteen hundred militia and a state regiment, was received from Virginia; after which it again advanced towards Philadelphia, and encamped once more on Skippack Creek.

The plan of the battle of Germantown must be admitted to have been judiciously formed; and, in its commencement, to have been happily conducted. But a strict adherence to it by those who were entrusted with the execution of its several parts, was indispensable to its success.

Major General Stephen, who commanded the right division of the left wing, was cashiered for misconduct on the retreat, and for intoxication.

Congress expressed, in decided terms, their approbation both of the plan of this enterprise, and of the courage with which it was executed; for which their thanks were given to the general and the army.[\[71\]](#)

The attention of both armies was most principally directed to the forts below Philadelphia.

The loss of the Delaware frigate, and of Billingsport, greatly discouraged the seamen by whom the galleys and floating batteries were manned. Believing the fate of America to be decided, an opinion strengthened by the intelligence received from their connexions in Philadelphia, they manifested the most alarming defection, and several officers as well as sailors deserted to the enemy. This desponding temper was checked by the battle of Germantown, and by throwing a garrison of continental troops into the fort at Red Bank, called fort Mercer, the defence of which had been entrusted to militia. This fort commanded the channel between the Jersey shore and Mud Island; and the American vessels were secure under its guns. The militia of Jersey were relied on to reinforce its garrison, and also to form a corps of observation which might harass the rear of any detachment investing the place.

Measures taken by General Washington for cutting off supplies from Philadelphia.

To increase the inconvenience of General Howe's situation by intercepting his supplies, six hundred militia, commanded by General Potter, crossed the Schuylkill, with orders to scour the country between that river and Chester; and the militia on the Delaware, above Philadelphia, were directed to watch the roads in that vicinity.

The more effectually to stop those who were seduced by the hope of gold and silver to supply the enemy at this critical time, congress passed a resolution subjecting to martial law and to death, all who should furnish them with provisions, or certain other enumerated articles, who should be taken within thirty miles of any city, town or place, in Jersey, Pennsylvania, or Delaware, occupied by British troops.

These arrangements being made to cut off supplies from the country, General Washington reoccupied the ground from which he had marched to fight the battle of Germantown.

Attack upon Fort Mifflin.

Meanwhile, General Howe was actively preparing to attack fort Mifflin from the Pennsylvania shore. He erected some batteries at the mouth of the Schuylkill, in order to command Webb's ferry, which were attacked by Commodore Hazlewood, and silenced; but, the following night, a detachment crossed over Webb's ferry into Province Island, and constructed a slight work opposite fort Mifflin, within two musket shots of the block-house, from which they were enabled to throw shot and shells into the barracks. When day-light discovered this work, three galleys and a floating battery were ordered to attack it, and the garrison surrendered. While the boats were bringing off the prisoners, a large column of British troops were seen marching into the fortress, upon which the attack on it was renewed, but without success; and two attempts made by Lieutenant Colonel Smith to storm it, failed. In a few nights, works were completed on the high ground of Province Island which enfiladed the principal battery of fort Mifflin, and rendered it necessary to throw up some cover on the platform to protect the men who worked the guns.

The aids expected from the Jersey militia were not received. "Assure yourself," said Lieutenant Colonel Smith, in a letter pressing earnestly for a reinforcement of continental troops, "that no dependence is to be put on the militia; whatever men your excellency determines on sending, no time is to be lost." The garrison of fort Mifflin was now reduced to one hundred and fifty-six effectives, and that of Red Bank did not much exceed two hundred.

In consequence of these representations, Colonel Angel, of Rhode Island, with his regiment, was ordered to Red Bank, and Lieutenant Colonel John Greene, of Virginia, with about two hundred men, to fort Mifflin.

Immediately after the battle of Brandywine, Admiral Howe sailed for the Delaware, where he expected to arrive in time to meet and co-operate with the army in and about Philadelphia. But the winds were so unfavourable, and the navigation of the bay of Delaware so difficult, that his van did not get into the river until the 4th of October. The ships of war and transports which followed, came up from the sixth to the eighth, and anchored from New Castle to Reedy Island.

The frigates, in advance of the fleet, had not yet succeeded in their endeavours to effect a passage through the lower double row of chevaux-de-frise. Though no longer protected by the fort at Billingsport, they were defended by the water force above, and the work was found more difficult

than had been expected. It was not until the middle of October that the impediments were so far removed as to afford a narrow and intricate passage through them. In the mean time, the fire from the Pennsylvania shore had not produced all the effect expected from it; and it was perceived that greater exertions would be necessary for the reduction of the works than could safely be made in the present relative situation of the armies. Under this impression, General Howe, soon after the return of the American army to its former camp on the Skippack, withdrew his troops from Germantown into Philadelphia, as preparatory to a combined attack by land and water on forts Mercer and Mifflin.

After effecting a passage through the works sunk in the river at Billingsport, other difficulties still remained to be encountered by the ships of war. Several rows of chevaux-de-frise had been sunk about half a mile below Mud Island, which were protected by the guns of the forts, as well as by the moveable water force. To silence these works, therefore, was a necessary preliminary to the removal of these obstructions in the channel.

October.

Attack upon Red Bank.

On the 21st of October, a detachment of Hessians, amounting to twelve hundred men, commanded by Colonel Count Donop, crossed the Delaware at Philadelphia, with orders to storm the fort at Red Bank. The fortifications consisted of extensive outer works, within which was an intrenchment eight or nine feet high, boarded and fraized. Late in the evening of the twenty-second. Count Donop appeared before the fort, and attacked it with great intrepidity. It was defended with equal resolution. The outer works being too extensive to be manned by the troops in the fort, were used only to gall the assailants while advancing. On their near approach, the garrison retired within the inner intrenchment, whence they poured upon the Hessians a heavy and destructive fire. Colonel Donop killed and his party repulsed with considerable loss. Colonel Donop received a mortal wound; and Lieutenant Colonel Mengerode, the second in command, fell about the same time. Lieutenant Colonel Minsing, the oldest remaining officer, drew off his troops, and returned next day to Philadelphia. The loss of the assailants was estimated by the Americans at four hundred men. The garrison was reinforced from fort Mifflin, and aided by the galleys which

flanked the Hessians in their advance and retreat. The American loss, in killed and wounded, amounted to only thirty-two men.

The Augusta frigate blows up.

The ships having been ordered to co-operate with Count Donop, the Augusta, with four smaller vessels, passed the lower line of chevaux-de-frise, opposite to Billingsport, and lay above it, waiting until the assault should be made on the fort. The flood tide setting in about the time the attack commenced, they moved with it up the river. The obstructions sunk in the Delaware had in some degree changed its channel, in consequence of which the Augusta and the Merlin grounded, a considerable distance below the second line of chevaux-de-frise and a strong wind from the north so checked the rising of the tide, that these vessels could not be floated by the flood. Their situation, however, was not discerned that evening, as the frigates which were able to approach the fort, and the batteries from the Pennsylvania shore, kept up an incessant fire on the garrison, till night put an end to the cannonade. Early next morning it was recommenced, in the hope that, under its cover, the Augusta and the Merlin might be got off. The Americans, on discovering their situation, sent four fire ships against them, but without effect. Meanwhile, a warm cannonade took place on both sides, in the course of which the Augusta took fire, and it was found impracticable to extinguish the flames. Most of the men were taken out, the frigates withdrawn, and the Merlin set on fire; after which the Augusta blew up, and a few of the crew were lost in her.

This repulse inspired congress with flattering hopes for the permanent defence of the posts on the Delaware. That body expressed its high sense of the merits of Colonel Greene of Rhode Island, who had commanded in fort Mercer; of Lieutenant Colonel Smith of Maryland, who had commanded in fort Mifflin; and of Commodore Hazlewood, who commanded the galleys; and presented a sword to each of these officers, as a mark of estimation in which their services were held.

The situation of these forts was far from justifying this confidence of their being defensible. That on Mud Island had been unskilfully constructed, and required at least eight hundred men fully to man the lines. The island is about half a mile long. Fort Mifflin was placed at the lower end, having its principal fortifications in front for the purpose of repelling ships coming up the river. The defences in the rear consisted only of a ditch

and palisade, protected by two block-houses, the upper story of one of which had been destroyed in the late cannonade. Above the fort were two batteries opposing those constructed by the British on Province and Carpenter's Islands, which were separated from Mud Island only by a narrow passage between four and five hundred yards wide.

The vessels of war, engaged in the defence of the Delaware, were partly in the service of the continent, and partly in that of the state of Pennsylvania, under a Commodore who received his commission from the state. A misunderstanding took place between him and Lieutenant Colonel Smith, and also between him and the officers of the continental navy; and it required all the authority of the Commander-in-chief to prevent these differences from essentially injuring the service.

The garrison of fort Mifflin consisted of only three hundred continental troops, who were worn down with fatigue, and constant watching, under the constant apprehension of being attacked from Province Island, from Philadelphia, and from the ships below.

October 29.

Having failed in every attempt to draw the militia of Jersey to the Delaware, General Washington determined to strengthen the garrison by farther drafts from his army. Three hundred Pennsylvania militia were detached, to be divided between the two forts; and, a few days afterwards, General Varnum was ordered, with his brigade, to take a position about Woodbury, near Red Bank, and to relieve and reinforce the garrisons of both forts as far as his strength would permit. The hope was entertained that the appearance of so respectable a continental force might encourage the militia to assemble in greater numbers.

Aware of the advantage to result from a victory over the British army while separated from the fleet, General Washington had been uniformly determined to risk much to gain one. He had, therefore, after the battle of Germantown, continued to watch assiduously for an opportunity to attack his enemy once more to advantage. The circumspect caution of General Howe afforded none. After the repulse at Red Bank, his measures were slow but certain; and were calculated to insure the possession of the forts without exposing his troops to the hazard of an assault.

In this state of things, intelligence was received of the successful termination of the northern campaign, in consequence of which great part of

the troops who had been employed against Burgoyne, might be drawn to the aid of the army in Pennsylvania. But it was feared that, before these reinforcements could arrive, Sir William Howe would gain possession of the forts, and remove the obstructions to the navigation of the Delaware. This apprehension furnished a strong motive for vigorous attempts to relieve fort Mifflin. But the relative force of the armies, the difficulty of acting offensively against Philadelphia, and, above all, the reflection that a defeat might disable him from meeting his enemy in the field even after the arrival of the troops expected from the north, determined General Washington not to hazard a second attack under existing circumstances.

To expedite the reinforcements for which he waited, Colonel Hamilton was despatched to General Gates with directions to represent to him the condition of the armies in Pennsylvania; and to urge him, if he contemplated no other service of more importance, immediately to send the regiments of Massachusetts and New Hampshire to aid the army of the middle department. These orders were not peremptory, because it was possible that some other object (as the capture of New York) still more interesting than the expulsion of General Howe from Philadelphia, might be contemplated by Gates; and Washington meant not to interfere with the accomplishment of such object.

On reaching General Putnam, Colonel Hamilton found that a considerable part of the northern army had joined that officer, but that Gates had detained four brigades at Albany for an expedition intended to be made in the winter against Ticonderoga.

Having made such arrangements with Putnam as he supposed would secure the immediate march of a large body of continental troops from that station, Colonel Hamilton proceeded to Albany for the purpose of remonstrating to General Gates against retaining so large and valuable a part of the army unemployed at a time when the most imminent danger threatened the vitals of the country. Gates was by no means disposed to part with his troops. He could not believe that an expedition then preparing at New York, was designed to reinforce General Howe; and insisted that, should the troops then embarked at that place, instead of proceeding to the Delaware, make a sudden movement up the Hudson, it would be in their power, should Albany be left defenceless, to destroy the valuable arsenal

which had been there erected, and the military stores captured with Burgoyne, which had been chiefly deposited in that town.

Having, after repeated remonstrances, obtained an order directing three brigades to the Delaware, Hamilton hastened back to Putnam, and found the troops which had been ordered to join General Washington, still at Peekskill. The detachment from New York had suggested to Putnam the possibility of taking that place; and he does not appear to have made very great exertions to divest himself of a force he deemed necessary for an object, the accomplishment of which would give so much splendour to his military character. In addition to this circumstance, an opinion had gained ground among the soldiers that their share of service for the campaign had been performed, and that it was time for them to go into winter quarters. Great discontents too prevailed concerning their pay, which the government had permitted to be more than six months in arrear; and in Poor's brigade, a mutiny broke out, in the course of which a soldier who was run through the body by his captain, before he expired, shot the captain dead who gave the wound. Colonel Hamilton came in time to borrow money from the governor of New York, to put the troops in motion; and they proceeded by brigades to the Delaware. But these several delays retarded their arrival until the contest for the forts on that river was terminated.

November.

The preparations of Sir William Howe being completed, a large battery on Province Island of twenty-four and thirty-two pounders, and two howitzers of eight inches each, opened, early in the morning of the 10th of November, upon fort Mifflin, at the distance of five hundred yards, and kept up an incessant fire for several successive days. The block-houses were reduced to a heap of ruins; the palisades were beaten down; and most of the guns dismounted and otherwise disabled. The barracks were battered in every part, so that the troops could not remain in them. They were under the necessity of working and watching the whole night to repair the damages of the day, and to guard against a storm, of which they were in perpetual apprehension. If in the day, a few moments were allowed for repose, it was taken on the wet earth, which, in consequence of heavy rains, had become a soft mud. The garrison was relieved by General Varnum every forty-eight hours; but his brigade was so weak that half the men were constantly on duty.

Colonel Smith was decidedly of opinion, and General Varnum concurred with him, that the garrison could not repel an assault, and ought to be withdrawn; but General Washington still cherished the hope that the place might be maintained until he should be reinforced from the northern army. Believing that an assault would not be attempted until the works were battered down, he recommended that the whole night should be employed in making repairs. His orders were that the place should be defended to the last extremity; and never were orders more faithfully executed.

November 11.

Several of the garrison were killed, and among them Captain Treat, a gallant officer, who commanded the artillery. Colonel Smith received a contusion on his hip and arm which compelled him to give up the command, and retire to Red Bank. Major Fleury, a French officer of distinguished merit, who served as engineer, reported to the Commander-in-chief that, although the block-houses were beaten down, all the guns in them, except two, disabled, and several breaches made in the walls, the place was still defensible; but the garrison was so unequal to the numbers required by the extent of the lines, and was so dispirited by watching, fatigue, and constant exposure to the cold rains which were almost incessant, that he dreaded the event of an attempt to carry the place by

storm. Fourteenth. Fresh troops were ordered to their relief from Varnum's brigade, and the command was taken, first by Colonel Russell, and afterwards by Major Thayer. The artillery, commanded by Captain Lee, continued to be well served. The besiegers were several times thrown into confusion, and a floating battery which opened on the morning of the 14th, was silenced in the course of the day.

Fifteenth.

The defence being unexpectedly obstinate, the assailants brought up their ships as far as the obstructions in the river permitted, and added their fire to that of the batteries, which was the more fatal as the cover for the troops had been greatly impaired. The brave garrison, however, still maintained their ground with unshaken firmness. In the midst of this stubborn conflict, the Vigilant and a sloop of war were brought up the inner channel, between Mud and Province Islands, which had, unobserved by the besieged, been deepened by the current in consequence of the obstructions in the main channel; and, taking a station within one hundred yards of the works, not only kept up a destructive cannonade, but threw hand grenades into them; while the musketeers from the round top of the Vigilant killed every man that appeared on the platform.

Major Thayer applied to the Commodore to remove these vessels, and he ordered six galleys on the service; but, after reconnoitring their situation, the galleys returned without attempting any thing. Their report was that these ships were so covered by the batteries on Province Island as to be unassailable.

Fort Mifflin evacuated and possession taken by the British.

November 16.

It was now apparent to all that the fort could be no longer defended. The works were in ruins. The position of the Vigilant rendered any farther continuance on the island a prodigal and useless waste of human life; and on the 16th, about 11 at night, the garrison was withdrawn.[\[72\]](#)

A second attempt was made to drive the vessels from their stations with a determination, should it succeed, to repossess the island; but the galleys effected nothing; and a detachment from Province Island soon occupied the ground which had been abandoned.

November 17.

The day after receiving intelligence of the evacuation of fort Mifflin, General Washington deputed Generals De Kalb, and Knox, to confer with General Varnum and the officers at fort Mercer on the practicability of continuing to defend the obstructions in the channel, to report thereon, and to state the force which would be necessary for that purpose. Their report was in favour of continuing the defence. A council of the navy officers had already been called by the Commodore in pursuance of a request of the Commander-in-chief made before the evacuation had taken place, who were unanimously of opinion that it would be impracticable for the fleet, after the loss of the island, to maintain its station, or to assist in preventing the chevaux-de-frise from being weighed by the ships of the enemy.

General Howe had now completed a line of defence from the Schuylkill to the Delaware; and a reinforcement from New York had arrived at Chester. These two circumstances enabled him to form an army in the Jerseys sufficient for the reduction of fort Mercer, without weakening himself so much in Philadelphia as to put his lines in hazard. Still deeming it of the utmost importance to open the navigation of the Delaware completely, he detached Lord Cornwallis about one in the morning of the 17th, with a strong body of troops to Chester. From that place, his lordship crossed over to Billingsport, where he was joined by the reinforcement from New York.

November 17.

General Washington received immediate intelligence of the march of this detachment, which he communicated to General Varnum with orders that fort Mercer should be defended to the last extremity. With a view to military operations in that quarter, he ordered one division of the army to cross the river at Burlington, and despatched expresses to the northern troops who were marching on by brigades, directing them to move down the Delaware on its northern side until they should receive farther orders.

Fort Mercer evacuated.

Major General Greene, an officer who had been distinguished early in the war by the Commander-in-chief for the solidity of his judgment and his military talents, was selected for this expedition. A hope was entertained that he would be able, not only to protect fort Mercer, but to obtain some decisive advantage over Lord Cornwallis; as the situation of the fort, which his lordship could not invest without placing himself between Timber and

Manto Creeks, would expose the assailants to great peril from a respectable force in their rear. But, before Greene could cross the Delaware, Lord Cornwallis approached with an army rendered more powerful than had been expected by the junction of the reinforcement from New York; and fort Mercer was evacuated.

A few of the smaller galleys escaped up the river, and the others were burnt by their crews.

Washington still hoped to recover much of what had been lost. A victory would restore the Jersey shore, and this object was deemed so important, that General Greene's instructions indicated the expectation that he would be in a condition to fight Lord Cornwallis.

That judicious officer feared the reproach of avoiding an action less than the just censure of sacrificing the real interests of his country by engaging the enemy on disadvantageous terms. The numbers of the British exceeded his, even counting his militia as regulars; and he determined to wait for Glover's brigade, which was marching from the north. Before its arrival, Lord Cornwallis took post on Gloucester Point, a point of land making deep into the Delaware, which was entirely under cover of the guns of the ships, from which place he was embarking his baggage and the provisions he had collected for Philadelphia.[\[73\]](#)

Believing that Lord Cornwallis would immediately follow the magazines he had collected, and that the purpose of Sir William Howe was, with his united forces, to attack the American army while divided, General Washington ordered Greene to recross the Delaware, and join the army.

The enemy succeeds in opening a free communication with his fleet.

Thus after one continued struggle of more than six weeks, in which the continental troops displayed great military virtues, the army in Philadelphia secured itself in the possession of that city, by opening a free communication with the fleet.[\[74\]](#)

While Lord Cornwallis was in Jersey, and General Greene on the Delaware above him, the reinforcements from the north being received, Washington urged to attack Philadelphia. an attack on Philadelphia was strongly pressed by several officers high in rank; and was in some measure urged by that torrent of public opinion, which, if not resisted by a very firm mind, overwhelms the judgment, and by controlling measures not well

comprehended, may frequently produce, especially in military transactions, the most disastrous effects.

It was stated to the Commander-in-chief, that his army was now in greater force than he could expect it to be at any future time; that being joined by the troops who had conquered Burgoyne, his own reputation, the reputation of his army, the opinion of congress, and of the nation, required some decisive blow on his part. That the rapid depreciation of the paper currency, by which the resources for carrying on the war were dried up, rendered indispensable some grand effort to bring it to a speedy termination.

The plan proposed was, that General Greene should embark two thousand men at Dunks' ferry, and descending the Delaware in the night, land in the town just before day, attack the enemy in the rear, and take possession of the bridge over the Schuylkill. That a strong corps should march down on the west side of that river, occupy the heights enfilading the works of the enemy, and open a brisk cannonade upon them, while a detachment from it should march down to the bridge, and attack in front at the same instant, that the party descending the river should commence its assault on the rear.

Not only the Commander-in-chief, but some of his best officers, those who could not be impelled by the clamours of the ill-informed to ruin the public interests, were opposed to this mad enterprise.

The two armies, they said, were now nearly equal in point of numbers, and the detachment under Lord Cornwallis could not be supposed to have so weakened Sir William Howe as to compensate for the advantages of his position. His right was covered by the Delaware, his left by the Schuylkill, his rear by the junction of those two rivers, as well as by the city of Philadelphia, and his front by a line of redoubts extending from river to river, and connected by an abattis, and by circular works. It would be indispensably necessary to carry all these redoubts; since to leave a part of them to play on the rear of the columns, while engaged in front with the enemy in Philadelphia, would be extremely hazardous.

Supposing the redoubts carried, and the British army driven into the town, yet all military men were agreed on the great peril of storming a town. The streets would be defended by an artillery greatly superior to that of the Americans, which would attack in front, while the brick houses

would be lined with musketeers, whose first must thin the ranks of the assailants.

A part of the plan, on the successful execution of which the whole depended, was, that the British rear should be surprised by the corps descending the Delaware. This would require the concurrence of too many favourable circumstances to be calculated on with any confidence. As the position of General Greene was known, it could not be supposed that Sir William Howe would be inattentive to him. It was probable that not even his embarkation would be made unnoticed; but it was presuming a degree of negligence which ought not to be assumed, to suppose that he could descend the river to Philadelphia undiscovered. So soon as his movements should be observed, the whole plan would be comprehended, since it would never be conjectured that General Greene was to attack singly.

If the attack in front should fail, which was not even improbable, the total loss of the two thousand men in the rear must follow; and General Howe would maintain his superiority through the winter.

The situation of America did not require these desperate measures. The British general would be compelled to risk a battle on equal terms, or to manifest a conscious inferiority to the American army. The depreciation of paper money was the inevitable consequence of immense emissions without corresponding taxes. It was by removing the cause, not by sacrificing the army, that this evil was to be corrected.

Washington possessed too much discernment to be dazzled by the false brilliant presented by those who urged the necessity of storming Philadelphia, in order to throw lustre round his own fame, and that of his army; and too much firmness of temper, too much virtue and real patriotism, to be diverted from a purpose believed to be right, by the clamours of faction or the discontents of ignorance. Disregarding the importunities of mistaken friends, the malignant insinuations of enemies, and the expectations of the ill-informed; he persevered in his resolution to make no attempt on Philadelphia. He saved his army, and was able to keep the field in the face of his enemy; while the clamour of the moment wasted in air, and is forgotten.

The opinion that Sir William Howe meditated an attack on the American camp, was not ill founded. Scarcely had Lord Cornwallis returned to Philadelphia, and Greene to the American army, when unquestionable

intelligence was received that the British general was preparing to march out in full strength, with the avowed object of forcing Washington from his position, and driving him beyond the mountains.

General Howe marches out to Chestnut Hill.

On the 4th of December, Captain M'Lane, a vigilant officer on the lines, discovered that an attempt to surprise the American camp at White Marsh was about to be made, and communicated the information to the Commander-in-chief. In the evening of the same day, General Howe marched out of Philadelphia with his whole force; and, about eleven at night, M'Lane, who had been detached with one hundred chosen men, attacked the British van at the Three Mile Run, on the Germantown road, and compelled their front division to change its line of march. He hovered on the front and flank of the advancing army, galling them severely until three next morning, when the British encamped on Chestnut Hill, in front of the American right, and distant from it about three miles. A slight skirmish had also taken place between the Pennsylvania militia under General Irvine, and the advanced light parties of the enemy, in which the general was wounded, and the militia, without much other loss, were dispersed.

The range of hills on which the British were posted, approached nearer to those occupied by the Americans, as they stretched northward.

Having passed the day in reconnoitring the right, Sir William Howe changed his ground in the course of the night, and moving along the hills to his right, took an advantageous position, about a mile in front of the American left. The next day he inclined still farther to his right, and, in doing so, approached still nearer to the left wing of the American army. Supposing a general engagement to be approaching, Washington detached Gist with some Maryland militia, and Morgan with his rifle corps, to attack the flanking and advanced parties of the enemy. A sharp action ensued, in which Major Morris, of Jersey, a brave officer in Morgan's regiment, was mortally wounded, and twenty-seven of his men were killed and wounded. A small loss was also sustained in the militia. The parties first attacked were driven in; but the enemy reinforcing in numbers, and Washington, unwilling to move from the heights, and engage on the ground which was the scene of the skirmish, declining to reinforce Gist and Morgan, they, in turn, were compelled to retreat.

Returns to Philadelphia.

Sir William Howe continued to manoeuvre towards the flank, and in front of the left wing of the American army. Expecting to be attacked in that quarter in full force, Washington made such changes in the disposition of his troops as the occasion required; and the day was consumed in these movements. In the course of it, the American chief rode through every brigade of his army, delivering, in person, his orders, respecting the manner of receiving the enemy, exhorting his troops to rely principally on the bayonet, and encouraging them by the steady firmness of his countenance, as well as by his words, to a vigorous performance of their duty.^[75] The dispositions of the evening indicated an intention to attack him the ensuing morning; but in the afternoon of the eighth, the British suddenly filed off from their right, which extended beyond the American left, and retreated to Philadelphia. The parties detached to harass their rear could not overtake it.

The loss of the British in this expedition, as stated in the official letter of General Howe, rather exceeded one hundred in killed, wounded, and missing; and was sustained principally in the skirmish of the 7th, in which Major Morris fell.

On no former occasion had the two armies met, uncovered by works, with superior numbers on the side of the Americans. The effective force of the British was then stated at twelve thousand men. It has been since declared by an author^[76] who then belonged to it, but who, though a candid writer, appears to have imbibed prejudices against Sir William Howe, to have amounted to fourteen thousand. The American army consisted of precisely twelve thousand one hundred and sixty-one continental troops, and three thousand two hundred and forty-one militia. This equality in point of numbers, rendered it a prudent precaution to maintain a superiority of position. As the two armies occupied heights fronting each other, neither could attack without giving to its adversary some advantage in the ground; and this was an advantage which neither seemed willing to relinquish.

The return of Sir William Howe to Philadelphia without bringing on an action, after marching out with the avowed intention of fighting, is the best testimony of the respect which he felt for the talents of his adversary, and the courage of the troops he was to encounter.

The cold was now becoming so intense that it was impossible for an army neither well clothed, nor sufficiently supplied with blankets, longer to

keep the field in tents. It had become necessary to place the troops in winter quarters; but in the existing state of things the choice of winter quarters was a subject for serious reflection. It was impossible to place them in villages without uncovering the country, or exposing them to the hazard of being beaten in detachment.

To avoid these calamities, it was determined to take a strong position in the neighbourhood of Philadelphia, equally distant from the Delaware above and below that city; and there to construct huts, in the form of a regular encampment, which might cover the army during the winter. A strong piece of ground at Valley Forge, on the west side of the Schuylkill, between twenty and thirty miles from Philadelphia, was selected for that purpose; and some time before day on the morning of the 11th of December, the army marched to take possession of it. By an accidental concurrence of circumstances, Lord Cornwallis had been detached the same morning at the head of a strong corps, on a foraging party on the west side of the Schuylkill. He had fallen in with a brigade of Pennsylvania militia commanded by General Potter, which he soon dispersed; and, pursuing the fugitives, had gained the heights opposite Matron's ford, over which the Americans had thrown a bridge for the purpose of crossing the river, and had posted troops to command the defile called the Gulph, just as the front division of the American army reached the bank of the river. This movement had been made without any knowledge of the intention of General Washington to change his position, or any design of contesting the passage of the Schuylkill; but the troops had been posted in the manner already mentioned for the sole purpose of covering the foraging party.

Washington apprehended, from his first intelligence, that General Howe had taken the field in full force. He therefore recalled the troops already on the west side, and moved rather higher up the river, for the purpose of understanding the real situation, force, and designs of the enemy. The next day Lord Cornwallis returned to Philadelphia; and, in the course of the night, the American army crossed the river.

General Washington goes into winter quarters.

Here the Commander-in-chief communicated to his army, in general orders, the manner in which he intended to dispose of them during the winter. He expressed, in strong terms, his approbation of their conduct, presented them with an encouraging state of the future prospects of their

country, exhorted them to bear with continuing fortitude the hardships inseparable from the position they were about to take, and endeavoured to convince their judgments that those hardships were not imposed on them by unfeeling caprice, but were necessary for the good of their country.

The winter had set in with great severity, and the sufferings of the army were extreme. In a few days, however, these sufferings were considerably diminished by the erection of logged huts, filled up with mortar, which, after being dried, formed comfortable habitations, and gave content to men long unused to the conveniences of life. The order of a regular encampment was observed; and the only appearance of winter quarters, was the substitution of huts for tents.

CHAPTER X.

Inquiry into the conduct of General Schuyler.... Burgoyne appears before Ticonderoga.... Evacuation of that place,... of Skeensborough.... Colonel Warner defeated.... Evacuation of fort Anne.... Proclamation of Burgoyne.... Counter-proclamation of Schuyler.... Burgoyne approaches fort Edward.... Schuyler retires to Saratoga,... to Stillwater.... St. Leger invests fort Schuyler.... Herkimer defeated.... Colonel Baum detached to Bennington.... is defeated.... Breckman defeated.... St. Leger abandons the siege of fort Schuyler.... Murder of Miss M'Crea.... General Gates takes command.... Burgoyne encamps on the heights of Saratoga.... Battle of Stillwater.... Burgoyne retreats to Saratoga.... Capitulates.... The British take forts Montgomery and Clinton.... The forts Independence and Constitution evacuated by the Americans.... Ticonderoga evacuated by the British.

1777

While, with inferior numbers, General Washington maintained a stubborn contest in the middle states, events of great variety and importance were passing in the north.

After Sir Guy Carleton had distributed his army, for winter quarters, in the several villages from the Isle Aux Noix and Montreal to Quebec, General Burgoyne, who had served under him, embarked for England, in order to communicate a full statement of affairs in the northern department; and to assist in making arrangements for the ensuing campaign. The American army, having been formed for only one year, dissolved of itself at the expiration of that term, and could scarcely furnish even the appearance of garrisons in their forts.

The defence of this frontier was assigned to the regiments directed to be raised in Massachusetts, New Hampshire, and the northwestern parts of New York; but the recruiting service advanced so slowly, and so much difficulty was found in clothing and arming those who were enlisted, that it became indispensable to call in the aid of the militia; and the plan of the

campaign on the part of the British was involved in so much obscurity that General Washington deemed it advisable to direct eight of the regiments of Massachusetts to rendezvous at Peekskill.

An inquiry into the conduct of General Schuyler, which terminates to his honour.

May 22.

The service of General Schuyler in the northern department had been more solid than brilliant. Dissatisfied with his situation, and disgusted with the injustice^[77] he supposed himself to experience, he had for some time meditated a resignation, and had been retained in the service only by the deep interest he felt in the struggle of his country for independence. So soon as his fears for Ticonderoga were removed by the partial opening of Lake Champlain, he waited in person on congress for the purpose of adjusting his accounts, obtaining an inquiry into his conduct, and supporting those necessary measures of defence in the north, which were suggested by his perfect knowledge of the country. At his request, a committee, consisting of a member from each state, was appointed to inquire into his conduct during the time he had held a command in the army. The arduous services performed by this meritorious officer, when investigated, were found so far to exceed any estimate which had been made of them, that congress deemed it essential to the public interest to prevail on him to retain his commission. The resolution which fixed his head quarters at Albany was repealed, and he was directed to proceed forthwith to the northern department, and to take the command of it.

On his arrival, he found the army of the north not only too weak for the objects entrusted to it, but badly supplied with arms, clothes, and provisions. From a spy who had been seized near Onion River, he obtained information that General Burgoyne was at Quebec, and was to command the British forces in that department so soon as they should march out of Canada. That while Ticonderoga should be attacked by the main army, Sir John Johnson, with a strong body of British, Canadians, and Indians, was to penetrate to the Mohawk by Oswego, and place himself between fort Stanwix and fort Edward.

Burgoyne appears before Ticonderoga.

General Schuyler was sensible of the danger which threatened him, and made every exertion to meet it. After completing his arrangements at

Ticonderoga for sustaining a siege, he had proceeded to Albany, for the purpose of attending to his supplies, and of expediting the march of reinforcements, when he received intelligence from General St. Clair, who was entrusted with the defence of Ticonderoga, that Burgoyne had appeared before that place.

In the course of the preceding winter, a plan for penetrating to the Hudson, from Canada, by the way of the lakes, had been digested in the cabinet of London. General Burgoyne, who assisted in forming it, was entrusted with its execution, and was to lead a formidable army against Ticonderoga as soon as the season would permit. At the same time a smaller party under Colonel St. Leger, composed of Canadians, newly raised Americans, and a few Europeans, aided by a powerful body of Indians, was to march from Oswego, to enter the country by the way of the Mohawk, and to join the grand army on the Hudson.

January 22.

Burgoyne reached Quebec as soon as it was practicable to sail up the St. Lawrence, and appeared in full force on the river Bouquet, on the western banks of lake Champlain, much earlier than the American general had supposed to be possible. At this place he met the Indians in a grand council, after which he gave them a war feast. Much of the cruelty afterwards perpetrated by the savages has been attributed to this unfortunate officer; but justice requires the admission that his speech was calculated rather to diminish than increase their habitual ferocity. He endeavoured to impress on them the distinction between enemies in the field, and the unarmed inhabitants, many of whom were friends; and, addressing himself to their avarice, promised rewards for prisoners, but none for scalps. It was perhaps fortunate for America, that, in some instances, peculiarly calculated to excite and interest the human feelings, these feeble restraints were disregarded.

After publishing a manifesto at Putnam River, designed to act on the hopes and fears of the people of the country through which he was to pass, he halted a few days at Crown Point, to make the necessary dispositions for investing Ticonderoga.

June 30.

From Crown Point, the royal army advanced on both sides the lake, keeping up a communication between its divisions, by means of the fleet;

and on the 1st of July encamped within four miles of the American works. A strong party was pushed forward to Three Mile Point; and the fleet anchored just beyond the range of the guns of the fort. July 1. The next day they took possession, without opposition, of the important post at Mount Hope, which commanded, in part, the lines on the northern side, and entirely cut off the communication with lake George.

The weakness of his garrison induced General St. Clair to give up this post without a struggle. Believing it to be impracticable to support it without hazarding a general action, he determined to concentrate his force about Ticonderoga and Mount Independence.

After taking possession of Mount Hope, the British lines were extended on the western side of Champlain, from the mountain quite to the lake, so as completely to inclose the garrison on that side. The German division under Major General Reidsel, which occupied the eastern shore of the lake, was encamped at Three Mile Point, and had pushed forward a detachment near the rivulet, which runs east of Mount Independence.

July.

The besiegers laboured assiduously to bring up their artillery and complete their works. Sugar Hill, a rugged mountain standing at the confluence of the waters that unite at Ticonderoga, which overlooks the fortress and had been thought inaccessible, was examined; and the report being that the ascent, though extremely difficult, was practicable, the work was immediately commenced, and was pressed with so much vigour that the batteries might have opened next day. The garrison was not in a condition to check these operations.

The situation of St. Clair was now at its crisis. Only the ground between the Eastern run and the South River remained open; and this he was informed would be occupied the next day, so that the investment would be complete. The place must be immediately evacuated, or maintained at the hazard of losing the garrison when it should be no longer tenable.

Between these cruel alternations, General St. Clair did not hesitate to choose the first; but deeming it prudent to take the advice of a council of war, he convened the general officers, who unanimously advised the immediate evacuation of the fort.

Evacuation of Ticonderoga and Mount Independence.

July 5.

Preparations for the retreat were instantly commenced. The invalids, the hospital, and such stores as could be moved in the course of the night, were put on board the batteaux, which proceeded under the guard of Colonel Long, up the South River to Skeensborough; and, before day on the morning of the 6th of July, the main body of the army directed its march to the same place.

In the hope of making considerable progress before his retreat should be discovered, General St. Clair had ordered the troops to observe the most profound silence, and, particularly, to set nothing on fire. These judicious orders were disobeyed; and, before the rear guard was in motion, the house which had been occupied by General De Fermoy was in flames. This served as a signal to the besiegers, who immediately entered the works. The main body of the retreating army was rapidly pursued by Generals Frazer and Reidisel, while General Burgoyne, in person, followed the detachment under Colonel Long.

July 6.

The bridge, the boom, and those other works, the construction of which had employed the labour of ten months, were cut through by nine in the morning, so as to afford a passage for the Royal George and Inflexible frigates, as well as for the gun boats, which engaged the American galleys, about three in the afternoon, near the falls of Skeensborough.

The American army evacuate Skeensborough and retire to fort Anne.

In the mean time, three regiments had disembarked at some distance from the fort, with the intention of attacking it by land, and cutting off the retreat of the garrison, as well as that of the detachment in the boats and galleys. This manoeuvre being discovered, the works and batteaux were set on fire, and the troops retired to fort Anne. On this occasion, the baggage of the army, and a great quantity of military stores, were either destroyed by the Americans, or taken by the British.

Knowing that he could save his army only by the rapidity of his march, General St. Clair reached Castletown, thirty miles from Ticonderoga, on the night succeeding the evacuation of the fort. The rear guard under Colonel Warner halted six miles short of that place. Having been augmented by those who from excessive fatigue had fallen out of the line of march, it amounted to rather more than one thousand men.

July 7.

Colonel Warner attacked by General Frazer and obliged to retreat.

The next morning at five, they were overtaken and attacked by General Frazer with eight hundred and fifty men. The action was warm and well contested. In its commencement, two regiments of militia, which lay within two miles of Colonel Warner, were ordered to his assistance. Instead of obeying these orders, they consulted their own safety, and hastened to Castletown. Had these orders been executed, the corps which attacked Warner would probably have been cut to pieces. While the action was maintained with equal spirit on both sides, General Reidsel arrived with his division of Germans, and the Americans were routed.

In this action, Colonel Francis, several other officers, and upwards of two hundred men were left dead on the field; and one colonel, seven captains, ten subalterns, and two hundred and ten privates were made prisoners. Near six hundred are supposed to have been wounded, many of whom must have perished in attempting to escape through the woods towards the inhabited country. The British state their own loss at thirty-five killed, among whom was one field officer, and one hundred and forty-four wounded, including two majors, and five inferior officers. It is scarcely credible, notwithstanding the difference in arms, that in a well contested action, the disparity in the killed could have been so considerable. It is the less probable, as the pursuit was not of long continuance.

To avoid that division of the British army which had proceeded up the North River, St. Clair changed his route; and directed his march to Rutland, to which place he ordered Warner also to retire. At Rutland he fell in with several soldiers who had been separated from their corps, and, two days afterwards, at Manchester, was joined by Warner with about ninety men. From this place he proceeded to fort Edward, where he met General Schuyler.

After taking possession of Skeensborough, Burgoyne had found it necessary to suspend the pursuit, and to give his army refreshment. The troops were in some disorder; distinct corps were intermingled, and his detachments were far apart from each other. He determined therefore to halt a few days at that place, in order to reassemble and arrange his army.

July 7.

Colonel Long evacuates Fort Anne and retires to Fort Edward.

Colonel Long having been directed to defend fort Anne, the ninth regiment of British, under Lieutenant Colonel Hill, had been detached against that place. It being understood that the Americans were in some force, two other regiments, under Brigadier Powell, were ordered to support the first party. Before the arrival of this reinforcement, Colonel Long attacked the ninth regiment, and a sharp skirmish ensued, in which the British kept their ground, and the advantage was claimed by both parties. Hearing that a reinforcement was approaching, Long set fire to the works at fort Anne, and retired to fort Edward.

July 7.

At Stillwater, on his way to Ticonderoga, General Schuyler was informed of the evacuation of that place; and, on the same day, at Saratoga, of the loss of the stores at Skeensborough. He had heard nothing from General St. Clair; and was seriously apprehensive for that officer and his army, which, after the junction of Colonel Long, consisted of about fifteen hundred continental troops, and the same number of militia. They were dispirited by defeat, without tents, badly armed, and had lost great part of their stores and baggage. The country was generally much alarmed; and even the well affected discovered more inclination to take care of themselves than to join the army. In this gloomy state of things, no officer could have exerted more diligence and skill than were displayed by Schuyler. Having fixed his head quarters at fort Edward, he employed to the utmost advantage the short respite from action which Burgoyne unavoidably gave. The country between Skeensborough and fort Edward was almost entirely unsettled, was covered with thick woods, and of a surface extremely rough, and much intersected with creeks and morasses. Wood creek was navigable with batteaux as far as fort Anne; and military stores of every description might be transported up it. He obstructed its navigation by sinking numerous impediments in its course, broke up the bridges, and rendered the roads impassable. He was also indefatigable in driving the live stock out of the way, and in bringing from fort George to fort Edward, the ammunition and other military stores which had been deposited at that place. Still farther to delay the movements of the British, he posted Colonel Warner on their left flank, with instructions to raise the militia in that quarter. The hope was entertained, that the appearance of a respectable force, threatening the flank and rear of the invading army, would not only retard its advance, but would

induce General Burgoyne to weaken it, in order to strengthen the garrison of Ticonderoga.

While thus endeavoring to obstruct the march of the enemy, Schuyler was not less attentive to the best means of strengthening his own army. Reinforcements of regular troops were earnestly solicited; the militia of New England and New York were required to take the field, and all his influence in the surrounding country was exerted to reanimate the people, and to prevent their defection from the American cause.

Proclamation of Burgoyne and counter-proclamation of Schuyler.

While at Skeensborough General Burgoyne issued a second proclamation[78] summoning the people of the adjacent country to send ten deputies from each township to meet Colonel Skeene at Castletown, in order to deliberate on such measures as might still be adopted to save those who had not yet conformed to his first, and submitted to the royal authority. General Schuyler apprehending some effect from this paper, issued a counter proclamation, stating the insidious designs of the enemy. Warning the inhabitants, by the example of Jersey, of the danger to which their yielding to this seductive proposition would expose them, and giving them the most solemn assurances that all who should send deputies to this meeting, or in any manner aid the enemy, would be considered traitors, and should suffer the utmost rigour of the law.

The evacuation of Ticonderoga was a shock for which no part of the United States was prepared. Neither the strength of the invading army, nor of the garrison had been understood. When therefore intelligence was received that a place, on the fortifications of which much money and labour had been expended, which was considered as the key to the whole northwestern country, and supposed to contain a garrison nearly equal to the invading army, had been abandoned without a siege; that an immense train of artillery, and all the military stores, had either fallen into the hands of the enemy, or been destroyed; that the army, on its retreat, had been attacked, defeated, and dispersed; astonishment pervaded all ranks of men; and the conduct of the officers was universally condemned. Congress recalled all the generals of the department, and directed an inquiry into their conduct. Throughout New England especially, the most bitter aspersions were cast on them and General Schuyler, who, from some unknown cause, had never been viewed with favour in that part of the continent, was involved in the

common charge of treachery, to which this accumulation of unlooked-for calamity was generally attributed by the mass of the people.

On the representations of General Washington, the recall of the officers was suspended, until he should be of opinion that the service would not suffer by the measure; and, on a full inquiry afterwards made into their conduct, they were acquitted of all blame.

In a letter of St. Clair to the Commander-in-chief, stating his motives for evacuating Ticonderoga, he represented the strength of his garrison, including nine hundred militia, who would consent to stay but a few days, at only three thousand effective rank and file, many of whom were without bayonets. The lines required ten thousand to man them properly. He also affirmed, that his supply of provisions was sufficient for only twenty days, and that the works on the Ticonderoga side were incomplete, with their flanks undefended. He justified his having failed to call in a larger reinforcement of militia, by the scarcity of provisions, the supply on hand not having been procured until General Schuyler had resumed the command in the department; and attributed his not having evacuated the place in time to preserve his army and stores, to the prevalent opinion that there was not a sufficient force in Canada to attempt so hardy an enterprise, and to his not being at liberty to adopt that measure but in the last necessity.

A court of inquiry justified his conduct, and he retained the confidence of the Commander-in-chief.

On learning the distressed state of the remnant of the army, General Washington made great exertions to repair its losses, and to reinforce it. The utmost industry was used to procure a supply of tents; artillery and ammunition were forwarded from Massachusetts; the remaining troops of that state were ordered to that department; and General Lincoln, who possessed, in a high degree, the confidence of the New England militia, was directed to raise and command them. General Arnold, so often distinguished for his gallantry in the field, was ordered to the northern army, in the hope that his presence and reputation might reanimate the troops; and Colonel Morgan, with his corps of riflemen, was detached on the same service. Through the present dark gloom, Washington discerned a ray of light, and already cherished the hope that much good might result from present evil. "The evacuation of Ticonderoga and Mount Independence," said he in a letter of the 15th of July, to General Schuyler, "is an event of chagrin and

surprise, not apprehended, nor within the compass of my reasoning. This stroke is severe indeed, and has distressed us much. But, notwithstanding, things at present wear a dark and gloomy aspect, I hope a spirited opposition will check the progress of General Burgoyne's arms, and that the confidence derived from success will hurry him into measures that will, in their consequences, be favourable to us. We should never despair. Our situation has before been unpromising, and has changed for the better. So, I trust, it will again. If new difficulties arise, we must only put forth new exertions, and proportion our efforts to the exigency of the times."

On receiving a letter from General Schuyler of the seventeenth, stating the divided situation of the British army, he seemed to anticipate the event which afterwards occurred, and to suggest the measure in which originated that torrent of misfortune with which Burgoyne was overwhelmed. "Though our affairs," he said in reply to this information, "have for some days past worn a dark and gloomy aspect, I yet look forward to a fortunate and happy change. I trust General Burgoyne's army will meet, sooner or later, an effectual check; and, as I suggested before, that the success he has met with will precipitate his ruin. From your accounts, he appears to be pursuing that line of conduct which, of all others, is most favourable to us. I mean acting in detachment. This conduct will certainly give room for enterprise on our part, and expose his parties to great hazard. Could we be so happy as to cut one of them off, though it should not exceed four, five, or six hundred men, it would inspirit the people, and do away much of their present anxiety. In such an event, they would lose sight of past misfortunes; and, urged at the same time by a regard for their own security, would fly to arms, and afford every aid in their power."

After allowing a short repose to his army, General Burgoyne proceeded with ardour to the remaining objects of the campaign. The toils and delays which must be encountered in reaching the Hudson were soon perceived. He found it necessary to open Wood creek, and to repair the roads and bridges which Schuyler had broken up. Such was the unavoidable delay of this difficult operation, that the army did not arrive on the Hudson, in the neighbourhood of fort Edward, till the fourteenth of July. At this place it was necessary again to halt, in order to bring artillery, provisions, batteaux, and other articles from fort George.

Burgoyne approaches Fort Edward and Schuyler retires to Saratoga.
From thence to Stillwater.

The time afforded by this delay had been employed by Schuyler to the utmost advantage. Some reinforcements of continental troops had arrived from Peekskill, and the militia had been assembled; but his strength did not yet afford a reasonable prospect of success in a contest with the enemy opposed to him. On this account, as Burgoyne approached fort Edward, Schuyler retired over the Hudson to Saratoga, and soon afterwards to Stillwater, not far from the mouth of the Mohawk. At this place, General Lincoln, who had been detached to take command of the militia assembling at Manchester, was ordered to rejoin him, and he fortified his camp in the hope of being strong enough to defend it.

August 15

At Stillwater, information was obtained that Burgoyne had evacuated Castletown; so that the only communication with Ticonderoga, whence nearly all his supplies were drawn, was through Lake George; and that the garrison of that important place had been reduced to three hundred men. In consequence of this intelligence, the orders to General Lincoln were countermanded, and he was directed with the militia of Massachusetts, New Hampshire, and of the Grants, making, as was understood, a total of between two and three thousand men, to place himself in the rear of the British army, and cut off its communication with the lakes. Here too he was informed that Colonel St. Leger, with a large body of Indians, in addition to his regulars, had penetrated from Oswego, by the way of the Oneida lake and Wood creek, to the Mohawk, where he had laid siege to fort Schuyler, and had totally defeated General Herkimer, who had raised the militia of Tryon county, in order to relieve the fort. The importance of protecting the inhabitants from the savages, and of preventing a junction between St. Leger and Burgoyne, and the consequent loss of the country on the Mohawk, determined Schuyler, weak as he was, to detach Major General Arnold with three continental regiments to raise the siege. The army was so enfeebled by this measure, that its removal to a place of greater security became necessary, and it was withdrawn to some islands in the confluence of the Hudson and the Mohawk, where the camp was deemed more defensible. Burgoyne had now marched down the east side of the Hudson,

and his advanced parties had crossed the river, and occupied the ground at Saratoga.

St. Leger invests Fort Schuyler.

On the 3d of August, after a message vaunting of his strength, and demanding a surrender, which was answered by a declaration that the fort would be defended to the last extremity, St. Leger invested fort Schuyler. The garrison amounted to six hundred men, all continental troops, who were commanded by Colonel Gansevoort. The besieging army rather exceeded fifteen hundred, of whom from six to nine hundred were Indians.

On the approach of the enemy, General Herkimer, who commanded the militia of Tryon county, assembled them in considerable numbers, and gave information to the garrison, about eleven in the morning of the sixth, of his intention to force a passage that day through the besieging army. Gansevoort determined to favour the execution of this design by a vigorous sortie; and upwards of two hundred men, to be commanded by Lieutenant Colonel Willet, were drawn out for that purpose.

Herkimer, advancing to the relief of the fort, falls into an ambuscade, and is defeated with loss.

Unfortunately St. Leger received information the preceding day of Herkimer's approach, and, early in the morning, placed a strong party, composed of regulars and Indians, in ambuscade on the road along which he was to march. His first notice of it was given by a heavy discharge of small arms, which was followed by a furious attack from the Indians with their tomahawks. He defended himself with resolution; but was defeated with great slaughter. The general and several of the field officers were wounded; and many others, among whom were several persons of distinction, were killed or taken prisoners. The loss was estimated at four hundred men. The destruction was prevented from being still more complete, by the very timely sortie made by Lieutenant Colonel Willet, which checked the pursuit, and recalled those engaged in it to the defence of their own camp.

As soon as Gansevoort understood that Herkimer was advancing, the sortie which he had planned was made. Lieutenant Colonel Willet fell on the camp of the besiegers, and routed them at the first onset. After driving them, some into the woods, and others over the river, he returned to the fort without the loss of a man.

Burgoyne had received early intimation of the arrival of St. Leger before fort Schuyler; and was aware of the advantage to be derived from an immediate and rapid movement down the Hudson. But the obstacles to his progress multiplied daily, and each step produced new embarrassments. Not more than one-third of the horses expected from Canada had arrived; and Schuyler had been active in removing the draft cattle of the country. With unremitting exertion, he had been able to transport from fort George to the Hudson, a distance of eighteen miles, only twelve batteaux, and provisions for four days in advance. The defectiveness of his means to feed his army until it should reach the abundant country below him, presented an impediment to his farther progress, not readily to be surmounted. The difficulty of drawing supplies from fort George would increase every day with the increasing distance; and the communications, already endangered by a considerable body of militia assembling at White Creek, could be secured only by larger detachments from his army than he was in a condition to make. These were strong inducements to attempt some other mode of supply.

Colonel Baum is detached to seize the magazines at Bennington.

It was well known that large magazines of provisions for the use of the American army were collected at Bennington, which place was generally guarded by militia, whose numbers varied from day to day. The possession of these magazines would enable him to prosecute his ulterior plans without relying for supplies from Lake George; and he determined to seize them.

To try the affections of the country, to complete a corps of loyalists, and to mount Reidel's dragoons, were subordinate objects of the expedition. [79] Lieutenant Colonel Baum with five hundred Europeans, and a body of American loyalists, was detached on this service.

To facilitate the enterprise, and be ready to take advantage of its success, Burgoyne moved down the east side of the Hudson, and threw a bridge of rafts over that river for the passage of his van, which took post at Saratoga. At the same time Lieutenant Colonel Brechman, with his corps, was advanced to Batten Hill, in order, if necessary, to support Colonel Baum. [80]

On approaching Bennington, Baum discovered that he should have to encounter a much more considerable force than had been suspected. The New Hampshire militia, commanded by General Starke, had reached that

place on their way to camp; and, uniting with Colonel Warner, made in the whole about two thousand men.

Perceiving his danger, Baum halted about four miles from Bennington, and despatched an express for a reinforcement. In the mean time, he strengthened his position by intrenchments.

Lieutenant Colonel Brechman was immediately ordered to his assistance; but, such was the state of the roads that, though the distance was only twenty-four miles, and his march was pressed unremittingly from eight in the morning of the 15th, he did not reach the ground on which Baum had encamped, until four in the afternoon of the next day.[\[81\]](#)

Is attacked in his intrenchments by General Starke, and entirely routed.

In the mean time, General Starke determined to attack him in his intrenchments. So confident were the provincials belonging to this party, of the attachment of the country to the royal cause, that the American troops, while making their dispositions for the attack, were mistaken for armed friends coming to join them. On discovering his error, Baum prepared for the contest, and made a gallant defence. His works however were carried by storm, and great part of his detachment killed, or taken prisoners. A few escaped into the woods, and saved themselves by flight.

Brechman advances to Baum's aid, is attacked by Colonel Warner, and defeated.

Brechman arrived during the pursuit, and obtained from the fugitives, the first intelligence of the disaster which had befallen them. He immediately attacked the parties of militia who were engaged in the pursuit, and gained some advantage over them. Fortunately for the Americans, Colonel Warner[\[82\]](#) came up at this critical juncture with his continental regiment, and restored, and continued the action, until the main body of the militia re-assembled, and came to support him. Brechman in turn was compelled to retire; but he maintained the engagement until dark, when, abandoning his artillery and baggage, he saved his party under cover of the night.

One thousand stand of arms, and nine hundred swords were taken in this battle. General Burgoyne represented his loss in men at about four hundred; but thirty-two officers, and five hundred and sixty-four privates, including Canadians and loyalists, were made prisoners. The number of the dead was not ascertained, because the action with Brechman had been fought in the woods, and been continued for several miles.

The British general therefore must have included in his estimate of loss, only his European troops.

This important success was soon followed by another of equal influence on the fate of the campaign.

Fort Schuyler had been fortified with more skill, and was defended with more courage, than St. Leger had expected. His artillery made no impression on its walls; and his Indians, who were much better pleased with obtaining plunder and scalps, than besieging fortresses, became intractable, and manifested great disgust with the service. In this temper, they understood that Arnold was advancing with a large body of continental troops; and, soon afterwards were told that Burgoyne and his army had been totally defeated; a report probably founded on the affair at Bennington. Unwilling to share the misfortune of their friends, they manifested a determination not to await the arrival of Arnold. The efforts of St. Leger to detain them being ineffectual, many of them decamped immediately, and the rest threatened to follow.

St. Leger abandons the siege of Fort Schuyler, and retreats to Ticonderoga.

The time for deliberation was past. The camp was broken up with indications of excessive alarm. The tents were left standing; and the artillery, with great part of the baggage, ammunition, and provisions, fell into the hands of the Americans. The retreating army was pursued by a detachment from the garrison; and it was stated by deserters, that the Indians plundered the remaining baggage of the officers, and massacred such soldiers as could not keep up with the line of march. St. Leger returned to Montreal, whence he proceeded to Ticonderoga, with the intention of joining General Burgoyne by that route.

The decisive victory at Bennington, and the retreat of St. Leger from fort Schuyler, however important in themselves, were still more so in their consequences. An army, which had spread terror and dismay in every direction, which had, previously, experienced no reverse of fortune, was considered as already beaten; and the opinion became common, that the appearance of the great body of the people in arms, would secure the emancipation of their country. It was too an advantage of no inconsiderable importance resulting from this change of public opinion, that the disaffected became timid, and the wavering who, had the torrent of success continued, would have made a merit of contributing their aid to the victor, were no

longer disposed to put themselves and their fortunes in hazard, to support an army whose fate was so uncertain.

The barbarities which had been perpetrated by the Indians belonging to the invading armies, excited still more resentment than terror. As the prospect of revenge began to open, their effect became the more apparent; and their influence on the royal cause was the more sensibly felt because they had been indiscriminate.

The murder of Miss M'Crea.

The murder of Miss M'Crea passed through all the papers of the continent: and the story, being retouched by the hand of more than one master, excited a peculiar degree of sensibility.^[83] But there were other causes of still greater influence in producing the events which afterwards took place. The last reinforcements of continental troops arrived in camp about this time, and added both courage and strength to the army. The harvest, which had detained the northern militia upon their farms, was over; and General Schuyler, whose continued and eminent services had not exempted him from the imputation of being a traitor, was succeeded by General Gates, who possessed a large share of the public confidence.

General Gates takes command of the Northern Army.

When Schuyler was directed by congress to resume the command of the northern department, Gates withdrew himself from it. When the resolution passed recalling the general officers who had served in that department, General Washington was requested to name a successor to Schuyler. On his expressing a wish to decline this nomination, and representing the inconvenience of removing all the general officers, Gates was again directed to repair thither and take the command, and their resolution to recall the brigadiers was suspended until the Commander-in-chief should be of opinion that it might be carried into effect with safety.

Schuyler retained the command until the arrival of Gates, which was on the 19th of August, and continued his exertions to restore the affairs of the department, though he felt acutely the disgrace of being recalled in this critical and interesting state of the campaign. "It is," said he, in a letter to the Commander-in-chief, "matter of extreme chagrin to me to be deprived of the command at a time when, soon if ever, we shall probably be enabled to face the enemy; when we are on the point of taking ground^[84] where they must attack to a disadvantage, should our force be inadequate to facing

them in the field; when an opportunity will, in all probability, occur, in which I might evince that I am not what congress have too plainly insinuated by taking the command from me."

If error be attributable to the evacuation of Ticonderoga, no portion of it was committed by Schuyler. His removal from the command was probably severe and unjust as respected himself; but perhaps wise as respected America. The frontier towards the lakes was to be defended by the troops of New England; and, however unfounded their prejudices against him might be, it was prudent to consult them.

Notwithstanding the difficulties which multiplied around him, Burgoyne remained steady to his purpose. The disasters at Bennington and on the Mohawk produced no disposition to abandon the enterprise and save his army.

September 14.

Burgoyne encamps on the heights of Saratoga.

It had now become necessary to recur to the slow and toilsome mode of obtaining supplies from fort George. Having, with persevering labour, collected provision for thirty days in advance, he crossed the Hudson on the 13th and 14th of September, and encamped on the heights and plains of Saratoga, with a determination to decide the fate of the expedition in a general engagement.

General Gates, having been joined by all the continental troops destined for the northern department, and reinforced by large bodies of militia, had moved from his camp in the islands, and advanced to the neighbourhood of Stillwater.

He attacks Gates at Stillwater.

September 19.

The bridges between the two armies having been broken down, the roads being excessively bad, and the country covered with wood, the progress of the British army down the river was slow. On the night of the 17th, Burgoyne encamped within four miles of the American army, and the next day was employed in repairing the bridges between the two camps.[\[85\]](#) In the morning of the 19th he advanced in full force towards the American left. Morgan was immediately detached with his corps to observe the enemy, and to harass his front and flanks. He fell in with a picket in front of the right wing, which he attacked with vivacity, and drove in upon the main body.

Pursuing with too much ardour, he was met in considerable force, and, after a severe encounter, was compelled, in turn, to retire in some disorder. Two regiments being advanced to his assistance, his corps was rallied, and the action became more general. The Americans were formed in a wood, with an open field in front, and invariably repulsed the British corps which attacked them; but when they pursued those corps to the main body, they were in turn driven back to their first ground. Reinforcements were continually brought up, and about four in the afternoon, upwards of three thousand American troops[86] were closely engaged with the whole right wing of the British army commanded by General Burgoyne in person. The conflict was extremely severe, and only terminated with the day. At dark, the Americans retired to their camp, and the British, who had found great difficulty in maintaining their ground, lay all night on their arms near the field of battle.

In this action the killed and wounded on the part of the Americans were between three and four hundred. Among the former were Colonels Coburn and Adams, and several other valuable officers. The British loss has been estimated at rather more than five hundred men.

Each army claimed the victory; and each believed itself to have beaten near the whole of the hostile army with only a part of its own force. The advantage, however, taking all circumstances into consideration, was decidedly with the Americans. In a conflict which nearly consumed the day, they found themselves at least equal to their antagonists. In every quarter they had acted on the offensive; and, after an encounter for several hours, had not lost an inch of ground. They had not been driven from the field, but had retired from it at the close of day, to the camp from which they had marched to battle. Their object, which was to check the advancing enemy, had been obtained; while that of the British general had failed. In the actual state of things, to fight without being beaten was, on their part, victory; while, on the part of the British, to fight without a decisive victory, was defeat. The Indians, who found themselves beaten in the woods by Morgan, and restrained from scalping and plundering the unarmed by Burgoyne, who saw before them the prospect of hard fighting without profit, grew tired of the service, and deserted in great numbers. The Canadians and Provincials were not much more faithful; and Burgoyne soon perceived that his hopes must rest almost entirely on his European troops.

With reason, therefore, this action was celebrated throughout the United States as a victory, and considered as the precursor of the total ruin of the invading army. The utmost exultation was displayed, and the militia were stimulated to fly to arms, and complete the work so happily begun.

General Lincoln, in conformity with directions which have been stated, had assembled a considerable body of New England militia in the rear of Burgoyne, from which he drew three parties of about five hundred men each. One of these was detached under the command of Colonel Brown, to the north end of Lake George, principally to relieve a number of prisoners who were confined there, but with orders to push his success, should he be fortunate, as far as prudence would admit. Colonel Johnson, at the head of another party, marched towards Mount Independence, and Colonel Woodbury, with a third, was detached to Skeensborough to cover the retreat of both the others. With the residue, Lincoln proceeded to the camp of Gates.

Colonel Brown, after marching all night, arrived, at the break of day, on the north end of the lake, where he found a small post which he carried without opposition. The surprise was complete; and he took possession of Mount Defiance, Mount Hope, the landing place, and about two hundred batteaux. With the loss of only three killed and five wounded, he liberated one hundred American prisoners, and captured two hundred and ninety-three of the enemy. This success was joyfully proclaimed through the northern states. It was believed confidently that Ticonderoga and Mount Independence were recovered; and the militia were exhorted, by joining their brethren in the army, to insure that event if it had not already happened.

The attempt on those places however failed. The garrison repulsed the assailants; who, after a few days, abandoned the siege. On their return through Lake George in the vessels they had captured, the militia made an attack on Diamond Island, the depot of all the stores collected at the north end of the lake. Being again repulsed, they destroyed the vessels they had taken, and returned to their former station.[\[87\]](#)

September 21.

The day after the battle of Stillwater, General Burgoyne took a position almost within cannon shot of the American camp, fortified his right, and extended his left to the river. Directly after taking this ground he received a

letter from Sir Henry Clinton, informing him that he should attack fort Montgomery about the 20th of September. The messenger returned with information that Burgoyne was in extreme difficulty, and would endeavour to wait for aid until the 12th of October.[\[88\]](#)

Both armies retained their position until the 7th of October. Burgoyne, in the hope of being relieved by Sir Henry Clinton; and Gates, in the confidence of growing stronger every day.

October 7.

Having received no farther intelligence from Sir Henry, and being reduced to the necessity of diminishing the ration issued to his soldiers, the British general determined to make one more trial of strength with his adversary. In execution of this determination, he drew out on his right fifteen hundred choice troops, whom he commanded in person, assisted by Generals Philips, Reidsel, and Frazer.

The right wing was formed within three-quarters of a mile of the left of the American camp; and a corps of rangers, Indians, and provincials, was pushed on through secret paths, to show themselves in its rear, and excite alarm in that quarter.[\[89\]](#)

These movements were perceived by General Gates, who determined to attack their left, and, at the same time, to fall on their right flank. Poor's brigade, and some regiments from New Hampshire, were ordered to meet them in front; while Morgan with his rifle corps made a circuit unperceived, and seized a very advantageous height covered with wood on their right. As soon as it was supposed that Morgan had gained the ground he intended to occupy, the attack was made in front and on the left, in great force. At this critical moment Morgan poured in a deadly and incessant fire on the front and right flank.

While the British right wing was thus closely pressed in front, and on its flank, a distinct division of the American troops was ordered to intercept its retreat to camp, and to separate it from the residue of the army. Burgoyne perceived the danger of his situation, and ordered the light infantry under General Frazer, with part of the 24th regiment, to form a second line, in order to cover the light infantry of the right, and secure a retreat. While this movement was in progress, the left of the British right was forced from its ground, and the light infantry was ordered to its aid. In the attempt to execute this order, they were attacked by the rifle corps, with great effect;

and Frazer was mortally wounded. Overpowered by numbers, and pressed on all sides by a superior weight of fire, Burgoyne, with great difficulty, and with the loss of his field pieces, and great part of his artillery corps, regained his camp. The Americans followed close in his rear; and assaulted his works throughout their whole extent. Towards the close of day, the intrenchments were forced on their right; and General Arnold, with a few men, actually entered their works; but his horse being killed under him, and himself wounded, the troops were forced out of them; and it being nearly dark, they desisted from the assault. The left of Arnold's division was still more successful. Jackson's regiment of Massachusetts, then led by Lieutenant Colonel Brooks, turned the right of the encampment, and stormed the works occupied by the German reserve. Lieutenant Colonel Brechman who commanded in them was killed, and the works were carried. The orders given by Burgoyne to recover them were not executed; and Brooks maintained the ground he had gained.

Darkness put an end to the action; and the Americans lay all night with their arms in their hands, about half a mile from the British lines, ready to renew the assault with the return of day. The advantage they had gained was decisive. They had taken several pieces of artillery, killed a great number of men, made upwards of two hundred prisoners, among whom were several officers of distinction, and had penetrated the lines in a part which exposed the whole to considerable danger.

Unwilling to risk the events of the next day on the same ground, Burgoyne changed his position in the course of the night, and drew his whole army into a strong camp on the river heights, extending his right up the river. This movement extricated him from the danger of being attacked the ensuing morning by an enemy already in possession of part of his works.

October 8.

General Gates perceived the strength of this position, and was not disposed to hazard an assault. Aware of the critical situation of his adversary, he detached a party higher up the Hudson for the purpose of intercepting the British army on its retreat, while strong corps were posted on the other side of the river to guard its passage.

Retreats to Saratoga.

This movement compelled Burgoyne again to change his position, and to retire to Saratoga. About nine at night the retreat was commenced, and was effected with the loss of his hospital, containing about three hundred sick, and of several batteaux laden with provision and baggage. On reaching the ground to be occupied, he found a strong corps already intrenched on the opposite side of the river, prepared to dispute its passage.

October 10.

From Saratoga, Burgoyne detached a company of artificers, under a strong escort, to repair the roads and bridges towards fort Edward. Scarcely had this detachment moved, when the Americans appeared in force on the heights south of Saratoga creek, and made dispositions which excited the apprehension of a design to cross it and attack his camp. The Europeans escorting the artificers were recalled, and a provincial corps, employed in the same service, being attacked by a small party, ran away and left the workmen to shift for themselves.

No hope of repairing the roads remaining, it became impossible to move the baggage and artillery.

The British army was now almost completely environed by a superior force. No means remained of extricating itself from difficulties and dangers which were continually increasing, but fording a river, on the opposite bank of which a formidable body of troops was already posted; and then escaping to fort George, through roads impassable by artillery or wagons, while its rear was closely pressed by a victorious enemy.[\[90\]](#)

A council of general officers called to deliberate on their situation, took the bold resolution to abandon every thing but their arms and such provisions as the soldiers could carry; and, by a forced march in the night up the river, to extricate themselves from the American army; and crossing at fort Edward, or at a ford above it, to press on to fort George.

Gates had foreseen this movement, and had prepared for it. In addition to placing strong guards at the fords of the Hudson, he had formed an intrenched camp on the high grounds between fort Edward and fort George. The scouts sent to examine the route returned with this information, and the plan was abandoned as impracticable.

Nothing could be more hopeless than the condition of the British army, or more desperate than that of their general, as described by himself. In his letter to Lord George Germain, secretary of state for American affairs, he

says, "A series of hard toil, incessant effort, stubborn action, until disabled in the collateral branches of the army by the total defection of the Indians; the desertion, or timidity of the Canadians and provincials, some individuals excepted; disappointed in the last hope of any co-operation from other armies; the regular troops reduced by losses from the best parts, to three thousand five hundred fighting men, not two thousand of which were British; only three days provisions, upon short allowance, in store; invested by an army of sixteen thousand men; and no appearance of retreat remaining; I called into council all the generals, field officers, and captains commanding corps, and by their unanimous concurrence and advice, I was induced to open a treaty with Major General Gates."

A treaty was opened with a general proposition, stating the willingness of the British general to spare the further effusion of blood, provided a negotiation could be effected on honourable terms.

Surrender of the army under Burgoyne.

October 17.

This proposition was answered by a demand that the whole army should ground their arms in their encampment, and surrender themselves prisoners of war. This demand was instantly rejected, with a declaration that if General Gates designed to insist on it, the negotiation must immediately break off, and hostilities recommence. On receiving this decided answer, Gates receded from the rigorous terms at first proposed; and a convention was signed, in which it was agreed that the British army, after marching out of their encampment with all the honours of war, should lay down their arms, and not serve against the United States till exchanged. They were not to be detained in captivity, but to be permitted to embark for England.

The situation of the armies considered,[\[91\]](#) these terms were highly honourable to the British general, and favourable to his nation. They were probably more advantageous than would have been granted by General Gates, had he entertained no apprehension from Sir Henry Clinton, who was, at length, making the promised diversion on the North River, up which he had penetrated as far as *Æsopus*.

The drafts made from Peekskill for both armies had left that post in a situation to require the aid of militia for its security. The requisitions of General Putnam were complied with; but the attack upon them being delayed, the militia, who were anxious to seed their farms, became

impatient; many deserted; and General Putnam was induced to discharge the residue.

Governor Clinton immediately ordered out half the militia of New York, with assurances that they should be relieved in one month by the other half. This order was executed so slowly that the forts were carried before the militia were in the field.

Great pains had been taken, and much labour employed, to render this position, which is naturally strong, still more secure. The principal defences were forts Montgomery and Clinton. They had been constructed on the western bank of the Hudson, on very high ground, extremely difficult of access, and were separated from each other by a small creek which runs from the mountains into the river. These forts were too much elevated to be battered from the water, and the hills on which they stood were too steep to be ascended by troops landing at the foot of them. The mountains, which commence five or six miles below them, are so high and rugged, the defiles, through which the roads leading to them pass, so narrow, and so commanded by the heights on both sides, that the approaches to them are extremely difficult and dangerous.

To prevent ships from passing the forts, chevaux-de-frise had been sunk in the river, and a boom extended from bank to bank, which was covered with immense chains stretched at some distance in its front. These works were defended by the guns of the forts, and by a frigate and galleys stationed above them, capable of opposing with an equal fire in front any force which might attack them by water from below.

Fort Independence is four or five miles below forts Montgomery and Clinton, and on the opposite side of the river, on a high point of land; and fort Constitution is rather more than six miles above them, on an island near the eastern shore. Peekskill, the general head quarters of the officer commanding at the station, is just below fort Independence, and on the same side of the river. The garrisons had been reduced to about six hundred men; and the whole force under General Putnam did not much exceed two thousand. Yet this force, though far inferior to that which General Washington had ordered to be retained at the station, was, if properly applied, more than competent to the defence of the forts against any numbers which could be spared from New York. To insure success to the enterprise, it was necessary to draw the attention of Putnam from the real

object, and to storm the works before the garrisons could be aided by his army. This Sir Henry Clinton accomplished.

October 6.

Between three and four thousand men embarked at New York, and landed on the 5th of October at Verplank's Point, on the east side of the Hudson, a short distance below Peekskill, upon which General Putnam retired to the heights in his rear. On the evening of the same day, a part of these troops re-embarked, and the fleet moved up the river to Peekskill Neck, in order to mask King's ferry, which was below them. The next morning, at break of day, the troops destined for the enterprise, landed on the west side of Stony Point, and commenced their march through the mountains, into the rear of forts Clinton and Montgomery.^[92] This disembarkation was observed; but the morning was so foggy that the numbers could not be distinguished; and a large fire, which was afterwards perceived at the landing place, suggested the idea that the sole object of the party on shore was the burning of some store houses. In the mean time, the manoeuvres of the vessels, and the appearance of a small detachment left at Verplank's Point, persuaded General Putnam that the meditated attack was on fort Independence.

Forts Montgomery and Clinton taken by the British.

His whole attention was directed to this object; and the real designs of the enemy were not suspected, until a heavy firing from the other side of the river announced the assault on forts Clinton and Montgomery. Five hundred men were instantly detached to reinforce the garrisons of those places; but before this detachment could cross the river the forts were in possession of the British.

Having left a battalion at the pass of Thunderhill, to keep up a communication, Sir Henry Clinton had formed his army into two divisions; one of which consisting of nine hundred men, commanded by Lieutenant Colonel Campbell, made a circuit by the forest of Deane, in order to fall on the back of fort Montgomery; while the other, consisting of twelve hundred men, commanded by General Vaughan, and accompanied by Sir Henry Clinton in person, advanced slowly against fort Clinton.^[93]

Both posts were assaulted about five in the afternoon. The works were defended with resolution, and were maintained until dark, when, the lines being too extensive to be completely manned, the assailants entered them in different places. The defence being no longer possible, some of the garrison

were made prisoners, while their better knowledge of the country enabled others to escape. Governor Clinton passed the river in a boat, and General James Clinton, though wounded in the thigh by a bayonet, also made his escape. Lieutenant Colonels Livingston and Bruyn, and Majors Hamilton and Logan were among the prisoners. The loss sustained by the garrisons was about two hundred and fifty men. That of the assailants, was stated by Sir H. Clinton, at less than two hundred. Among the killed were Lieutenant Colonel Campbell, and two other field officers.

Peekskill, together with Forts Independence and Constitution evacuated by the Americans.

As the boom and chains drawn across the river could no longer be defended, the continental frigates and galleys lying above them were burnt, to prevent their falling into the hands of the enemy. Fort Independence and fort Constitution were evacuated the next day, and Putnam retreated to Fishkill. General Vaughan, after burning Continental village, where stores to a considerable amount had been deposited, proceeded, at the head of a strong detachment, up the river to Æsopus, which he also destroyed.[\[94\]](#)

October 8.

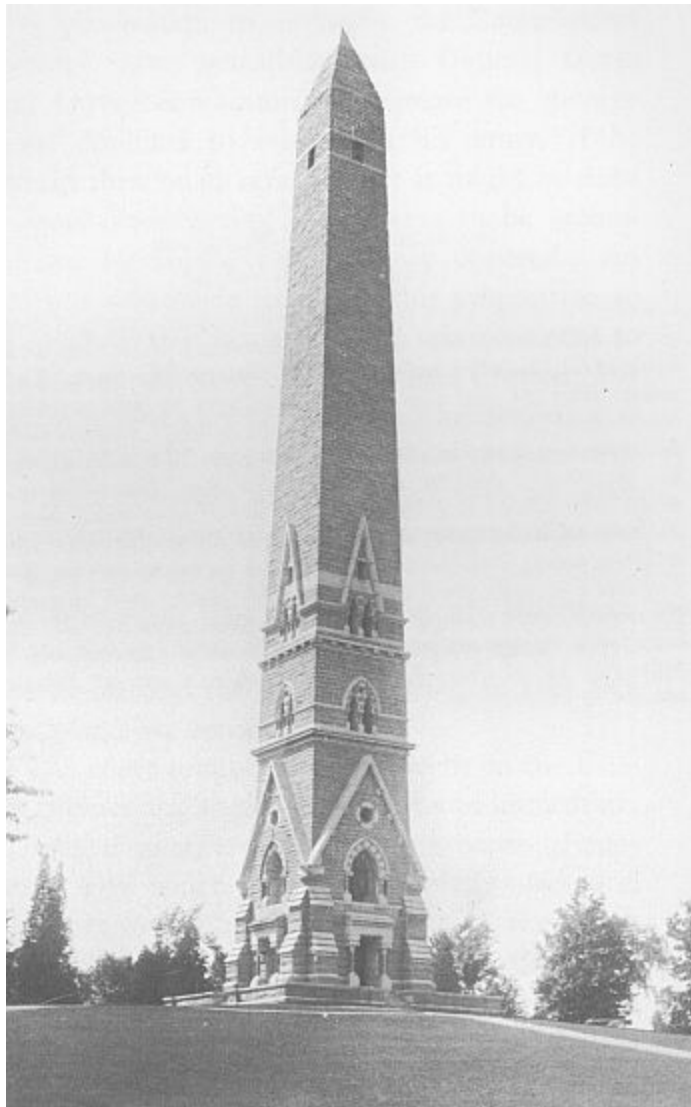
General Putnam, whose army had been augmented by reinforcements of militia to six thousand men, detached General Parsons with two thousand, to repossess himself of Peekskill, and of the passes in the highlands; while, with the residue, he watched the progress of the enemy up the river. The want of heavy artillery prevented his annoying their ships in the Hudson.

On the capitulation of Burgoyne, near five thousand men had been detached by Gates to his aid. Before their arrival, General Vaughan had returned to New York, whence a reinforcement to General Howe was then about to sail.

Great as was the injury sustained by the United States from this enterprise, Great Britain derived from it no solid advantage. It was undertaken at too late a period to save Burgoyne; and though the passes in the highlands were acquired, they could not be retained. The British had reduced to ashes every village, and almost every house within their power; but this wanton and useless destruction served to irritate, without tending to subdue. A keenness was given to the resentment of the injured, which outlasted the contest between the two nations.

The army which surrendered at Saratoga exceeded five thousand men. On marching from Ticonderoga, it was estimated at nine thousand. In addition to this great military force, the British lost, and the Americans acquired, a fine train of artillery, seven thousand stand of excellent arms, clothing for seven thousand recruits, with tents, and other military stores, to a considerable amount.

The thanks of congress were voted to General Gates and his army; and a medal of gold, in commemoration of this great event, was ordered to be struck, and presented to him by the President, in the name of the United States. Colonel Wilkinson, his Adjutant General, whom he strongly recommended, was appointed Brigadier General by brevet.



The Saratoga Battle Monument

Schuylerville, New York

"Nothing bespeaks more strongly the consummate tragedy of Benedict Arnold's career than the Battle Monument which rises on the banks of the Hudson to commemorate the victory of Saratoga. In the square shaft are four high Gothic arches, and in these are placed heroic statues of the generals who won the victory. Horatio Gates, unworthy though he was, stands there in bronze. The gallant Schuyler, the intrepid Morgan, honor the other two. But where is he whose valor turned back the advancing Saint-Leger? whose prompt decision saved the Continental position at Bemis Heights? whose military genius truly gained the day? A vacant niche—empty as England's rewards, void as his own life—speaks more eloquently than words, more strongly than condemnation, more pitifully than tears, of a mighty career blighted by treason and hurled into the bottomless pit of despair. This is America's way of honoring Arnold in his dishonor."

—From *The Real America in Romance*.

In the opinion that the British would not immediately abandon the passes in the highlands, congress ordered Putnam to join General Washington with a reinforcement not exceeding two thousand five hundred men, and directed Gates to take command of the army on the Hudson, with unlimited powers to call for aids of militia from the New England States, as well as from New York and New Jersey.

A proposition to authorize the Commander-in-chief, after consulting with General Gates and Governor Clinton, to increase the detachment designed to strengthen his army, if he should then be of opinion that it might be done without endangering the objects to be accomplished by Gates, was seriously opposed. An attempt was made to amend this proposition so as to make the increase of the reinforcement to depend on the assent of Gates and Clinton; but this amendment was lost by a considerable majority, and the original resolution was carried. These proceedings were attended with no other consequences than to excite some degree of attention to the state of parties.

Ticonderoga and Mount Independence evacuated by the enemy.

Soon after the capitulation of Burgoyne, Ticonderoga and Mount Independence were evacuated, and the garrison retired to Isle Aux Noix,

and St. Johns.

The effect produced by this event on the British cabinet and nation was great and immediate. It seemed to remove the delusive hopes of conquest with which they had been flattered, and suddenly to display the mass of resistance which must yet be encountered. Previous to the reception of this disastrous intelligence, the employment of savages in the war had been the subject of severe animadversion. Parliament was assembled on the 20th of November; and, as usual, addresses were proposed in answer to the speech from the throne, entirely approving the conduct of the administration. In the House of Lords, the Earl of Chatham moved to amend the address by introducing a clause recommending to his Majesty, an immediate cessation of hostilities, and the commencement of a treaty of conciliation, "to restore peace and liberty to America, strength and happiness to England, security and permanent prosperity to both countries." In the course of the very animated observations made by this extraordinary man in support of his motion, he said,^[95] "But, my Lords, who is the man that, in addition to the disgraces and mischiefs of war, has dared to authorize and associate to our arms the tomahawk and scalping-knife of the savage? to call into civilized alliance the wild and inhuman inhabitant of the woods? to delegate to the merciless Indian the defence of disputed rights, and to wage the horrors of his barbarous war against our brethren? My Lords, these enormities cry aloud for redress and punishment. Unless thoroughly done away they will be a stain on the national character. It is not the least of our national misfortunes that the strength and character of our army are thus impaired. Familiarized to the horrid scenes of savage cruelty, it can no longer boast of the noble and generous principles which dignify a soldier. No longer sympathize with the dignity of the royal banner, nor feel the pride, pomp, and circumstance of glorious war that makes ambition virtue. What makes ambition virtue? the sense of honour. But is this sense of honour consistent with the spirit of plunder, or the practice of murder? Can it flow from mercenary motives? or can it prompt to cruel deeds?"^[96]

The conduct of administration, however, received the full approbation of large majorities; but the triumph these victories in Parliament afforded them was of short duration. The disastrous issue of an expedition from which the most sanguine expectations had been formed, was soon known, and the mortification it produced was extreme. A reluctant confession of the calamity was made by the minister, and a desire to restore peace on any

terms consistent with the integrity of the empire found its way into the cabinet.

CHAPTER XI.

Defects in the Commissary department.... Distress of the army at Valley Forge.... The army subsisted by impressments.... Combination in congress against General Washington.... Correspondence between him and General Gates.... Distress of the army for clothes.... Washington's exertions to augment the army.... Congress sends a committee to camp.... Attempt to surprise Captain Lee.... Congress determines on a second expedition to Canada.... Abandons it.... General Conway resigns.... The Baron Steuben appointed Inspector General.... Congress forbids the embarkation of Burgoyne's army.... Plan of reconciliation agreed to in Parliament.... Communicated to congress and rejected.... Information of treaties between France and the United States.... Great Britain declares war against France.... The treaties with France ratified by congress.... Complaints of the treatment of prisoners.... A partial exchange agreed to.

1777

The army under the immediate command of General Washington was engaged through the winter in endeavouring to stop the intercourse between Philadelphia and the country. To effect this object General Smallwood was detached with one division to Wilmington; Colonel Morgan was placed on the lines on the west side of the Schuylkill; and General Armstrong, with the Pennsylvania militia, was stationed near the old camp at White Marsh. Major Jameson, with two troops of cavalry, and M'Lane's infantry, was directed to guard the east, and Captain Lee with his troop, the west side of that river. General Count Pulaski, a Polish nobleman who commanded the horse, led the residue of the cavalry to Trenton, where he trained them for the ensuing campaign.

December 22.

One of the first operations meditated by General Washington after crossing the Schuylkill was the destruction of a large quantity of hay which remained in the islands above the mouth of Derby Creek, within the power

of the British. Early in the morning after his orders for this purpose had been given, Sir William Howe marched out in full force, and encamped between Derby and the middle party, so as completely to cover the islands; while a foraging party removed the hay. Washington, with the intention of disturbing this operation, gave orders for putting his army in motion, when the alarming fact was disclosed, that the commissary's stores were exhausted, and that the last ration had been delivered and consumed.

Accustomed as were the continental troops to privations of every sort, it would have been hazarding too much to move them, under these circumstances, against a powerful enemy. In a desert, or in a garrison where food is unattainable, courage, patriotism, and habits of discipline, enable the soldier to conquer wants which, in ordinary situations, would be deemed invincible. But to perish in a country abounding with provisions, requires something more than fortitude; nor can soldiers readily submit, while in such a country, to the deprivation of food. It is not therefore surprising that, among a few of the troops, some indications of a mutiny appeared. It is much more astonishing that the great body of the army bore a circumstance so irritating, and to them so unaccountable, without a murmur.

On receiving intelligence of the fact, General Washington ordered the country to be scoured, and provisions, for supplying the pressing wants of the moment, to be seized wherever found. In the mean time, light parties were detached to harass the enemy about Derby, where Sir William Howe, with his accustomed circumspection, kept his army so compact, and his soldiers so within the lines, that an opportunity to annoy him was seldom afforded even to the vigilance of Morgan and Lee. After completing his forage, he returned, with inconsiderable loss, to Philadelphia.

That the American army, while the value still retained by paper bills placed ample funds in the hands of government, should be destitute of food, in the midst of a state so abounding with provisions as Pennsylvania, is one of those extraordinary facts which can not fail to excite attention.

Defects in the Commissary Department.

Early in the war, the office of commissary general had been confirmed on Colonel Trumbull, of Connecticut, a gentleman fitted by his talents, activity and zeal, for that important station. Yet, from the difficulty of arranging so complicated a department in its commencement, without the advantages of

experience, complaints were repeatedly made of the insufficiency of supplies.

The subject was taken up by congress; but the remedy administered, as well from the time of its application, as from the ingredients of which it was composed, served only to increase the disease. The system was not completed until near midsummer; and then its arrangements were such that Colonel Trumbull refused to accept the office assigned to him; and new men were to be called into service at a time when the strongest necessity required the exertions of those who understood the plan of supplies for the campaign in all its modifications. In addition to the commissary of purchases, and a commissary general of issues, each to be appointed by congress, the new plan contemplated four deputies in each department, also to be appointed by that body, who were not accountable to, nor removeable by the head of the department, but might be suspended, and accused before congress who should examine the charge, and either remove the accused from his office, or reinstate him in it.

Distress of the American army at Valley Forge for provisions.

This *imperium in imperio*, erected in direct opposition to the opinion of the Commander-in-chief, drove Colonel Trumbull from the army. Congress, however, persisted in the system; and the effects of deranging so important a department as that which feeds the troops, in the midst of a campaign, were not long in unfolding themselves. In every military division of the continent, loud complaints were made of the deficiency of supplies. The success of Gates appears to have been more endangered by this cause, than by the movement of Sir Henry Clinton up the Hudson. The army of General Washington was often greatly embarrassed, and his movements not unfrequently suspended, by the want of provisions. The present total failure of all supply was preceded, for a few days, by the issuing of meat unfit to be eaten. Representations on this subject were made to the Commander-in-chief, who, on the morning that Sir William Howe moved out to Derby, and before intelligence of that movement had been received, communicated them to congress.

The army subsisted in a great measure by impressments.

That body had authorized the Commander-in-chief to seize provisions for the use of his army within seventy miles of head quarters; and either to pay for them in money, or in certificates, for the redemption of which the faith

of the United States was pledged. The odium of this measure was increased by the failure of the government to provide funds to take up these certificates when presented.

At the same time, the provisions carried into Philadelphia were paid for in specie at a good price. The inhabitants of that part of Pennsylvania were not zealous in support of the war, and the difference between prompt payment in gold or silver, and a certificate, the value of which was often diminished by depreciation before its payment, was too great not to influence their wishes and their conduct. Such was the dexterity they employed that, notwithstanding the rigour of the laws, and the vigilance of the troops stationed on the lines, they often succeeded in concealing their provisions from those who were authorized to impress for the army, and in conveying them privately into Philadelphia.

December 10.

General Washington exercised the powers confided to him with caution, but he did exercise them; and by doing so, acquired considerable supplies. Congress appeared as much dissatisfied with the lenity of the Commander-in-chief, as the people were with his rigour, in consequence of which the subject was taken into consideration, his forbearance disapproved, and instructions given for the rigorous exertions in future of the powers with which he was invested. In reply to the letter communicating these resolves, the General stated the conduct he had observed, insisted that provisions had been taken very extensively, and repeated his opinion, that such measures would be much more readily submitted to if executed by the civil authority.

In obedience, however, to the will of congress, he issued a proclamation, requiring the farmers within seventy miles of head quarters, to thrash out one half of their grain by the first of February, and the residue by the first of March, under the penalty of having the whole seized as straw.

The success of this experiment did not correspond with the wishes of congress. It was attended with the pernicious consequences which had been foreseen by the General, to avoid which he had considered this system as a dernier ressort, of which he was to avail himself only in extreme cases. In answer to a letter on this subject from the board of war, he said, "I shall use every exertion that may be expedient and practicable for subsisting the army, and keeping it together; but I must observe, that this never can be done by coercive means. Supplies of provisions and clothing must be had in

another way, or it can not exist. The small seizures that were made of the former some time ago, in consequence of the most pressing and urgent necessity—when the alternative was to do that or dissolve—excited the greatest alarm and uneasiness imaginable, even among some of our best and warmest friends. Such procedures may relieve for an instant, but eventually will prove of the most pernicious consequence. Besides spreading disaffection and jealousy among the people, they never fail, even in the most veteran armies, to raise in the soldiery a disposition to licentiousness, plunder, and robbery, which it has ever been found exceeding difficult to suppress; and which has not only proved ruinous to the inhabitants, but, in many instances, to the armies themselves." In a subsequent letter to congress, he added, "I regret the occasion which compelled us to the measure the other day, and shall consider it as among the greatest of our misfortunes to be under the necessity of practising it again. I am now obliged to keep several parties from the army thrashing grain, that our supplies may not fail; but this will not do."

Combination formed in Congress against General Washington.
General Gates supposed to be concerned in it.

About this time, a strong combination was forming against the Commander-in-chief, into which several members of congress, and a very few officers of the army are believed to have entered.

The splendour with which the capture of a British army had surrounded the military reputation of General Gates, acquired some advocates for the opinion that the arms of America would be more fortunate, should that gentleman be elevated to the supreme command. He could not be supposed hostile himself to the prevalence of this opinion; and some parts of his conduct would seem to warrant a belief that, if it did not originate with him, he was not among the last to adopt it. After the victory of the seventh of October had opened to him the prospect of subduing the arms of Burgoyne, he not only omitted to communicate his success to General Washington, Correspondence on this subject between the two generals. but carried on a correspondence with General Conway, in which that officer expressed great contempt for the Commander-in-chief. When the purport of this correspondence was disclosed to General Washington, Gates demanded the name of the informer in a letter far from being conciliatory in its terms, which was accompanied with the very extraordinary circumstance of being

passed through congress.^[97] The state of Pennsylvania too, chagrined at the loss of its capital, and forgetful of its own backwardness in strengthening the army, which had twice fought superior numbers in its defence, furnished many discontented individuals. They imputed it to General Washington as a fault that, with forces inferior to his enemy in numbers, and in every equipment, he had not effected the same result which had been produced in the north, by a continental army, in itself, much stronger than its adversary, and so reinforced by militia as to treble his numbers. On the report that General Washington was moving into winter quarters, the legislature of that state addressed a remonstrance to congress on the subject, manifesting, in very intelligible terms, their dissatisfaction with the Commander-in-chief. About the same time, a new board of war was created, of which General Gates was appointed the President; and General Mifflin, who was supposed to be of the party unfriendly to Washington, was one of its members. General Conway, who was probably the only brigadier in the army that had joined this faction, was appointed inspector general, and was promoted, above senior brigadiers, to the rank of major general. These were evidences that, if the hold which the Commander-in-chief had taken of the affections and confidence of the army and of the nation could be loosened, the party in congress disposed to change their general, was far from being contemptible in point of numbers. But to loosen this hold was impossible. The indignation with which the idea of such a change was received even by the victorious troops who had conquered under Gates, forms the most conclusive proof of its strength. Even the northern army clung to Washington as the saviour of his country.

These machinations to diminish the well-earned reputation of the Commander-in-chief, could not escape his notice. They made, however, no undue impression on his steady mind, nor did they change one of his measures. His sensibilities seem to have been those of patriotism, of apprehension for his country, rather than of wounded pride. His desire to remain at the head of the army seemed to flow from the conviction that his retaining that station would be useful to his country, rather than from the gratification his high rank might furnish to ambition. When he unbosomed himself to his private friends, the feelings and sentiments he expressed were worthy of Washington. To Mr. Laurens, the president of congress, and his private friend, who, in an unofficial letter, had communicated an anonymous accusation made to him as president, containing heavy charges

against the Commander-in-chief, he said, "I can not sufficiently express the obligation I feel towards you for your friendship and politeness upon an occasion in which I am deeply interested. I was not unapprised that a malignant faction had been for some time forming to my prejudice, which, conscious as I am of having ever done all in my power to answer the important purposes of the trusts reposed in me, could not but give me some pain on a personal account; but my chief concern arises from an apprehension of the dangerous consequences which intestine dissensions may produce to the common cause.

"As I have no other view than to promote the public good, and am unambitious of honours not founded in the approbation of my country, I would not desire, in the least degree, to suppress a free spirit of inquiry into any part of my conduct that even faction itself may deem reprehensible. The anonymous paper handed you exhibits many serious charges, and it is my wish that it may be submitted to congress. This I am the more inclined to, as the suppression or concealment may possibly involve you in embarrassment hereafter, since it is uncertain how many, or who, may be privy to the contents.

"My enemies take an ungenerous advantage of me. They know the delicacy of my situation, and that motives of policy deprive me of the defence I might otherwise make against their insidious attacks. They know I can not combat their insinuations, however injurious, without disclosing secrets it is of the utmost moment to conceal. But why should I expect to be free from censure, the unfailing lot of an elevated station? Merit and talents which I can not pretend to rival, have ever been subject to it. My heart tells me it has been my unremitted aim to do the best which circumstances would permit. Yet I may have been very often mistaken in my judgment of the means, and may in many instances deserve the imputation of error."[\[98\]](#)

Fortunately for America, these combinations only excited resentment against those who were believed to be engaged in them.

December.

Soon after being informed of the unfavourable disposition of some members of congress towards him, and receiving the memorial of the legislature of Pennsylvania against his going into winter quarters, the General also discovered the failure already mentioned in the commissary department. On this occasion, he addressed congress in terms of energy and

plainness which he had used on no former occasion. December 23. In his letter to that body he said, "Full as I was in my representation of the matters in the commissary's department yesterday, fresh and more powerful reasons oblige me to add that I am now convinced beyond a doubt that, unless some great and capital change suddenly takes place in that line, this army must inevitably be reduced to one or other of these three things—to starve, dissolve, or disperse in order to obtain subsistence. Rest assured, sir, that this is not an exaggerated picture, and that I have abundant reason to suppose what I say.

"Saturday afternoon, receiving information that the enemy, in force, had left the city, and were advancing towards Derby with apparent design to forage, and draw subsistence from that part of the country, I ordered the troops to be in readiness, that I might give every opposition in my power; when, to my great mortification, I was not only informed, but convinced, that the men were unable to stir on account of a want of provisions; and that a dangerous mutiny, begun the night before, and which with difficulty was suppressed by the spirited exertions of some officers, was still much to be apprehended from the want of this article.

"This brought forth the only commissary in the purchasing line in this camp, and with him this melancholy and alarming truth, that he had not a single hoof of any kind to slaughter, and not more than twenty-five barrels of flour! From hence, form an opinion of our situation, when I add that he could not tell when to expect any.

Distress of the American army for clothes.

"All I could do under these circumstances, was to send out a few light parties to watch and harass the enemy, whilst other parties were instantly detached different ways to collect, if possible, as much provision as would satisfy the present pressing wants of the soldiers; but will this answer? No, sir. Three or four days of bad weather would prove our destruction. What then is to become of the army this winter? And if we are now as often without provisions as with them, what is to become of us in the spring, when our force will be collected, with the aid perhaps of militia, to take advantage of an early campaign before the enemy can be reinforced? These are considerations of great magnitude, meriting the closest attention, and will, when my own reputation is so intimately connected with, and to be affected by the event, justify my saying, that the present commissaries are

by no means equal to the execution of the office, or that the disaffection of the people surpasses all belief. The misfortune, however, does, in my opinion, proceed from both causes; and, though I have been tender heretofore of giving any opinion, or of lodging complaints, as the change in that department took place contrary to my judgment, and the consequences thereof were predicted; yet, finding that the inactivity of the army, whether for want of provisions, clothes, or other essentials, is charged to my account, not only by the common vulgar, but by those in power; it is time to speak plain in exculpation of myself. With truth, then, I can declare that no man, in my opinion, ever had his measures more impeded than I have, by every department of the army. Since the month of July, we have had no assistance from the quartermaster general; and to want of assistance from this department, the commissary general charges great part of his deficiency. To this I am to add that, notwithstanding it is a standing order (often repeated) that the troops shall always have two days provisions by them, that they may be ready at any sudden call; yet, scarcely any opportunity has ever offered of taking advantage of the enemy, that has not been either totally obstructed, or greatly impeded, on this account; and this, the great and crying evil is not all. Soap, vinegar, and other articles allowed by congress, we see none of, nor have we seen them, I believe, since the battle of Brandywine. The first, indeed, we have little occasion for; few men having more than one shirt, many, only the moiety of one, and some, none at all. In addition to which, as a proof of the little benefit from a clothier general, and at the same time, as a farther proof of the inability of an army under the circumstances of this to perform the common duties of soldiers, we have, by a field return this day made, besides a number of men confined to hospitals for want of shoes, and others in farmers' houses on the same account, no less than two thousand eight hundred and ninety-eight men, now in camp, unfit for duty, because they are bare-foot, and otherwise naked. By the same return, it appears that our whole strength in continental troops, including the eastern brigades, which have joined us since the surrender of General Burgoyne, exclusive of the Maryland troops sent to Wilmington, amounts to no more than eight thousand two hundred in camp fit for duty; notwithstanding which, and that since the fourth instant, our number fit for duty, from the hardships and exposures they have undergone, particularly from the want of blankets, have decreased near two thousand men, we find gentlemen, without knowing whether the army was really

going into winter quarters or not, (for I am sure no resolution of mine would warrant the remonstrance), reprobating the measure as much as if they thought the soldiers were made of stocks or stones, and equally insensible of frost and snow; and moreover, as if they conceived it easily practicable for an inferior army, under the disadvantages I have described ours to be, which are by no means exaggerated, to confine a superior one, in all respects well appointed and provided for a winter's campaign, within the city of Philadelphia, and to cover from depredation and waste the states of Pennsylvania, Jersey, &c. But what makes this matter still more extraordinary in my eye is, that these very gentlemen, who were well apprised of the nakedness of the troops from ocular demonstration, who thought their own soldiers worse clad than others, and advised me, near a month ago, to postpone the execution of a plan I was about to adopt, in consequence of a resolve of Congress for seizing clothes, under strong assurances that an ample supply would be collected in ten days, agreeably to a decree of the state; (not one article of which by the by is yet to come to hand,) should think a winter's campaign, and the covering of their states from the invasion of an enemy, so easy and practicable a business. I can assure those gentlemen, that it is a much easier and less distressing thing to draw remonstrances in a comfortable room, by a good fireside, than to occupy a cold bleak hill, and sleep under frost and snow, without clothes or blankets. However, although they seem to have little feeling for the naked and distressed soldiers, I feel superabundantly for them, and from my soul pity those miseries which it is not in my power either to relieve or to prevent."

The representations made in this letter were not exaggerated. The distresses of the army, however, so far as respected clothing, did not arise from the inattention of congress. Measures for the importation of clothes had been adopted early in the war, but had not produced the effect expected from them. Vigorous but ineffectual means had also been taken to obtain supplies from the interior. The unfortunate non-importation agreements which preceded the commencement of hostilities, had reduced the quantity of goods in the country below the ordinary amount, and the war had almost annihilated foreign commerce. The progress of manufactures did not equal the consumption; and such was the real scarcity, that exactions from individuals produced great distress, without relieving the wants of the army.

A warm blanket was a luxury in which not many participated, either in the camp or in the country.

In the northern states, where the sea coast was too extensive, and the ports too numerous to be completely guarded, and where the people were more inclined to maritime enterprise, supplies both of arms and clothes were attainable in a more considerable degree than in those farther south; but the large sums of money expended in that part of the union for the support of the army, had lessened the value of the currency there more rapidly than elsewhere, and a consequent high nominal price was demanded for imported articles. Congress deemed the terms on which some large contracts had been made by the clothier general in Massachusetts, so exorbitant, as to forbid their execution; and at the same time, addressed a letter to the state government, requesting that the goods should be seized for the use of the army, at prices to be fixed by the legislature, in pursuance of a resolution of the 22d of November.

These recommendations from congress, so far as they exhorted the states to supply the wants of the soldiers, were strongly supported by the General. In his letters to the several governors, he represented the very existence of the army, and the continuance of the contest, as depending on their exertions in this respect.

1778

General Washington's exertions to increase his force, and to place it on a respectable footing before the ensuing campaign.

To recruit the army for the ensuing campaign became again an object of vital importance; and the Commander-in-chief again pressed its necessity on congress, and on the states. To obtain a respectable number of men by voluntary enlistment had, obviously, become impossible. Coercion could be employed only by the state governments; and it required all the influence of General Washington to induce the adoption of a measure so odious in itself, but so indispensable to the acquirement of means to meet the crisis of the war, which, in his judgment, had not yet passed away. He enclosed to each state a return of its troops on continental establishment, thereby exhibiting to each its own deficiency. To those who had not resorted to coercive means, he stated the success with which they had been used by others; and he urged all, by every motive which could operate on the human mind, to

employ those means early enough to enable him to anticipate the enemy in taking the field.

To the causes which had long threatened the destruction of the army, the depreciation of paper money was now to be added. It had become so considerable that the pay of an officer would not procure even those absolute necessities which might protect his person from the extremes of heat and cold. The few who possessed small patrimonial estates found them melting away; and others were unable to appear as gentlemen. Such circumstances could not fail to excite disgust with the service, and a disposition to leave it. Among those who offered their commissions to the Commander-in-chief, were many who, possessing a larger portion of military pride, and therefore feeling with peculiar sensibility the degradation connected with poverty and rags, afforded the fairest hopes of becoming the ornaments of the army. This general indifference about holding a commission; this general opinion that an obligation was conferred, not received by continuing in the service, could not fail to be unfavourable, not only to that spirit of emulation which stimulates to bolder deeds than are required, but to a complete execution of orders, and to a rigid observance of duty.

An officer whose pride was in any degree wounded, whose caprice was not indulged, who apprehended censure for a fault which his carelessness about remaining in the army had probably seduced him to commit, was ready to throw up a commission which, instead of being valuable, was a burden almost too heavy to be borne. With extreme anxiety the Commander-in-chief watched the progress of a temper which, though just commencing, would increase, he feared, with the cause that produced it. He was, therefore, early and earnest in pressing the consideration of this important subject on the attention of congress.

January 10.

Congress send a committee of their own body to the army.

The weak and broken condition of the continental regiments, the strong remonstrances of the General, the numerous complaints received from every quarter, determined congress to depute a committee to reside in camp during the winter, for the purpose of investigating the state of the army, and reporting such reforms as the public good might require.

This committee repaired to head quarters in the month of January. The Commander-in-chief laid before them a general statement, taking a comprehensive view of the condition of the army, and detailing the remedies necessary for the correction of existing abuses, as well as those regulations which he deemed essential to its future prosperity.

This paper, exhibiting the actual state of the army, discloses defects of real magnitude in the existing arrangements. In perusing it, the reader is struck with the numerous difficulties, in addition to those resulting from inferiority of numbers, with which the American general was under the necessity of contending. The memorial is too long to be inserted, but there are parts which ought not to be entirely overlooked. The neglect of the very serious representation it contained respecting a future permanent provision for the officers, threatened, at an after period, to be productive of such pernicious effects, that their insertion in this place will not, it is presumed, be unacceptable.

He recommended as the basis of every salutary reform, a comfortable provision for the officers, which should render their commissions valuable; to effect which the future, as well as the present, ought to be contemplated.

"A long and continual sacrifice of individual interest for the general good, ought not," he said, "to be expected or required. The nature of man must be changed, before institutions built on the presumptive truth of such a principle can succeed.

"This position," he added, "is supported by the conduct of the officers of the American army, as well as by that of all other men. At the commencement of the dispute, in the first effusions of zeal, when it was believed the service would be temporary, they entered into it without regard to pecuniary considerations. But finding its duration much longer than had been at first expected, and that, instead of deriving advantage from the hardships and dangers to which they are exposed, they were, on the contrary, losers by their patriotism, and fell far short of even a competency for their wants, they have gradually abated in their ardour; and, with many, an entire disinclination to the service, under present circumstances, has taken place. To this, in an eminent degree, must be ascribed the frequent resignations daily happening, and the more frequent importunities for permission to resign, from some officers of the greatest merit.

"To this also may be ascribed the apathy, inattention, and neglect of duty, which pervade all ranks; and which will necessarily continue and increase, while an officer, instead of gaining any thing, is impoverished by his commission, and conceives he is conferring, not receiving a favour, in holding it. There can be no sufficient tie on men possessing such sentiments. Nor can any method be adopted to compel those to a punctual discharge of duty, who are indifferent about their continuance in the service, and are often seeking a pretext to disengage themselves from it. Punishment, in this case, would be unavailing. But when an officer's commission is made valuable to him, and he fears to lose it, you may exact obedience from him.

"It is not indeed consistent with reason or justice that one set of men should make a sacrifice of property, domestic ease, and happiness; encounter the rigours of the field, the perils and vicissitudes of war, without some adequate compensation, to obtain those blessings which every citizen will enjoy in common with them. It must also be a comfortless reflection to any man, that, after he may have contributed to secure the rights of his country, at the risk of his life, and the ruin of his fortune, there will be no provision made to prevent himself and his family, from sinking into indigence and wretchedness." With these and other arguments, General Washington recommended, in addition to present compensation, a half pay and pensionary establishment for the army.

"I urge my sentiments," said he, "with the greater freedom, because I can not, and shall not, receive the smallest benefit from the establishment; and can have no other inducement for proposing it, than a full conviction of its utility and propriety."

The wants and distresses of the army, when actually seen by the committee of congress, made a much deeper impression than could have been received from any statement whatever. They endeavoured to communicate to congress the sentiments felt by themselves, and to correct the errors which had been committed. But a numerous body, if it deliberate at all, proceeds slowly in the conduct of executive business; and will seldom afford a prompt corrective to existing mischiefs, especially to those growing out of its own measures.

February 5.

Much of the sufferings of the army was attributed to mismanagement in the quartermaster's department, which, notwithstanding the repeated remonstrances of the Commander-in-chief, had long remained without a head. This subject was taken up early by the committee, and proper representations made respecting it. But congress still remained under the influence of those opinions which had already produced such mischievous effects, and were still disposed to retain the subordinate officers of the department in a state of immediate dependence on their own body. In this temper, they proposed a plan which, not being approved in camp, was never carried into execution.

While congress was deliberating on the reforms proposed, the distresses of the army approached their acme, and its dissolution was threatened. Early in February, the commissaries gave notice that the country, to a great distance, was actually exhausted; and that it would be impracticable to obtain supplies for the army longer than to the end of that month. Already the threatened scarcity began to be felt, and the rations issued were often bad in quality, and insufficient in quantity. General Washington found it necessary again to interpose his personal exertions to procure provisions from a distance.

In the apprehension that the resources of the commissary department would fail before the distant supplies he had taken measures to obtain could reach him, and that the enemy designed to make another incursion into the country around Philadelphia, for the purpose of gleaning what yet remained in possession of the inhabitants, he detached General Wayne, with orders to seize every article proper for the use of an army within fifteen miles of the Delaware, and to destroy the forage on the islands between Philadelphia and Chester.

To defeat the object of this foraging party, the inhabitants concealed their provisions and teams, and gave to the country every appearance of having been entirely pillaged. Before any sufficient aid could be obtained by these means, the bread, as well as the meat, was exhausted, and famine prevailed in camp.

In an emergency so pressing, the Commander-in-chief used every effort to feed his hungry army. Parties were sent out to glean the country; officers of influence were deputed to Jersey, Delaware and Maryland; and circular letters were addressed to the governors of states by the committee of

Congress in camp and by the Commander-in-chief, describing the wants of the army, and urging the greatest exertions for its immediate relief.

Fortunately for America, there were features in the character of Washington which, notwithstanding the discordant materials of which his army was composed, attached his officers and soldiers so strongly to his person, that no distress could weaken their affection, nor impair the respect and veneration in which they held him. To this sentiment is to be attributed, in a great measure, the preservation of a respectable military force, under circumstances but too well calculated for its dissolution.

Through this severe experiment on their fortitude, the native Americans persevered steadily in the performance of their duty; but the conduct of the Europeans, who constituted a large part of the army, was, to a considerable extent, less laudable; and at no period of the war was desertion so frequent as during this winter. Aided by the disaffected, deserters eluded the vigilance of the parties who watched the roads, and great numbers escaped into Philadelphia with their arms.

In a few days, the army was rescued from the famine with which it had been threatened, and considerable supplies of provisions were laid up in camp. It was perceived that the difficulties which had produced such melancholy effects, were created more by the want of due exertion in the commissary department, and by the efforts of the people to save their stock for a better market, than by any real deficiency of food in the country.

This severe demonstration seems to have convinced Congress that their favourite system was radically vicious, and the subject was taken up with the serious intention of remodeling the commissary department on principles recommended by experience. But such were the delays inherent in the organization of that body, that the new system was not adopted until late in April.

At no period of the war had the situation of the American army been more perilous than at Valley Forge. Even when the troops were not entirely destitute of food, their stock of provisions was so scanty that a quantity sufficient for one week was seldom in store. Consequently, had General Howe moved out in force, the American army could not have remained in camp; and their want of clothes disabled them from keeping the field in the winter. The returns of the first of February exhibit the astonishing number of three thousand nine hundred and eighty-nine men in camp, unfit for duty

for want of clothes. Scarcely one man of these had a pair of shoes. Even among those returned capable of doing duty, many were so badly clad, that exposure to the cold of the season must have destroyed them. Although the total of the army exceeded seventeen thousand men, the present effective rank and file amounted to only five thousand and twelve.

While the sufferings of the soldiers filled the hospitals, a dreadful mortality continued to prevail in those miserable receptacles of the sick. A violent putrid fever swept off much greater numbers than all the diseases of the camp.

If then during the deep snow which covered the earth for a great part of the winter, the British general had taken the field, his own army would indeed have suffered greatly, but the American loss is not to be calculated.



Washington's Headquarters at Valley Forge

Here on December 17, 1777, after the Battles of Brandywine and Germantown and the occupation of Philadelphia by the British, Washington established his headquarters for what may be paradoxically termed the darkest winter of the Revolutionary War. The American Commander-in-Chief chose this place partly for its defensibility and partly to protect Congress, then in session at York, Pennsylvania, from a sudden British attack. It was here that Washington and Baron Steuben planned the

reorganization of the American army, and it was here, May 1, 1778, that news reached Washington of the consummation of the French alliance.

Attempt to surprise Captain Lee's corps, and the gallant resistance made by him.

March 28.

Happily, the real condition of Washington was not well understood by Sir William Howe; and the characteristic attention of that officer to the lives and comfort of his troops, saved the American army. Fortunately, he confined his operations to those small excursions that were calculated to enlarge the comforts of his own soldiers, who, notwithstanding the favourable dispositions of the neighbouring country, were much distressed for fuel, and often in great want of forage and fresh provisions. The vigilance of the parties on the lines, especially on the south side of the Schuylkill, intercepted a large portion of the supplies intended for the Philadelphia market; and corporal punishment was frequently inflicted on those who were detected in attempting this infraction of the laws. As Captain Lee was particularly active, a plan was formed, late in January, to surprise and capture him in his quarters. An extensive circuit was made by a large body of cavalry, who seized four of his patrols without communicating an alarm. About break of day the British horse appeared; upon which Captain Lee placed his troopers that were in the house, at the doors and windows, who behaved so gallantly as to repulse the assailants without losing a horse or man. Only Lieutenant Lindsay and one private were wounded. The whole number in the house did not exceed ten.^[99] That of the assailants was said to amount to two hundred. They lost a sergeant and three men with several horses, killed; and an officer and three men wounded.

The result of this skirmish gave great pleasure to the Commander-in-chief, who had formed a high opinion of Lee's talents as a partisan. He mentioned the affair in his orders with strong marks of approbation; and, in a private letter to the captain, testified the satisfaction he felt. For his merit through the preceding campaign, congress promoted him to the rank of major, and gave him an independent partisan corps to consist of three troops of horse.

Congress determine upon a second expedition against Canada.

While the deficiency of the public resources, arising from the alarming depreciation of the bills of credit, manifested itself in all the military departments, a plan was matured in congress, and in the board of war, without consulting the Commander-in-chief, for a second irruption into Canada. It was proposed to place the Marquis de Lafayette at the head of this expedition, and to employ Generals Conway and Starke, as the second and third in command.

This young nobleman, possessing an excellent heart, and all the military enthusiasm of his country, had left France early in 1777, in opposition to the will of his sovereign, to engage in the service of the United States. His high rank, and supposed influence at the court of Versailles, secured him the unlimited respect of his countrymen in America; and, added to his frankness of manners and zeal in their cause, recommended him strongly to congress. While the claims of others of the same country to rank were too exorbitant to be gratified, he demanded no station in the army; would consent to receive no compensation, and offered to serve as a volunteer. He had stipulated with Mr. Deane for the rank of major general without emolument; and, on his arrival in America, that rank was conferred on him, but without any immediate command. In that capacity, he sought for danger, and was wounded at the battle of Brandywine. He attached himself with the ardour of youth to the Commander-in-chief, who smoothed the way to his receiving a command in the army equal to his rank.

The first intimation to General Washington that the expedition was contemplated, was given in a letter from the president of the board of war of the 24th of January, inclosing one of the same date to the Marquis, requiring the attendance of that nobleman on congress to receive his instructions. The Commander-in-chief was requested to furnish Colonel Hazen's regiment, chiefly composed of Canadians, for the expedition; and in the same letter, his advice and opinion were asked respecting it. The northern states were to furnish the necessary troops.

Without noticing the manner in which this business had been conducted, and the marked want of confidence it betrayed, General Washington ordered Hazen's regiment to march towards Albany; and the Marquis proceeded immediately to the seat of congress. At his request, he was to be considered as an officer detached from the army of Washington, to remain under his orders, and Major General the Baron de Kalb was added to the expedition;

after which the Marquis repaired in person to Albany to take charge of the troops who were to assemble at that place in order to cross the lakes on the ice, and attack Montreal.

Before its execution, it is abandoned.

On arriving at Albany, he found no preparations made for the expedition. Nothing which had been promised being in readiness, he abandoned the enterprise as impracticable. Some time afterward, congress also determined to relinquish it; and General Washington was authorized to recall both the Marquis de Lafayette, and the Baron de Kalb.

February 27.

While the army lay at Valley Forge, the Baron Steuben arrived in camp. This gentleman was a Prussian officer, who came to the United States with ample recommendations. He was said to have served many years in the armies of the great Frederick; to have been one of the aids de camp of that consummate commander; and to have held the rank of lieutenant general. He was, unquestionably, versed in the system of field exercise which the king of Prussia had introduced, and was well qualified to teach it to raw troops. He claimed no rank, and offered to render his services as a volunteer. After holding a conference with congress, he proceeded to Valley Forge.

General Conway resigns. Duel between him and General Cadwallader.

Although the office of inspector general had been bestowed on Conway, he had never entered on its duties; and his promotion to the rank of major general had given much umbrage to the brigadiers, who had been his seniors. That circumstance, in addition to the knowledge of his being in a faction hostile to the Commander-in-chief, rendered his situation in the army so uncomfortable, that he withdrew to York, in Pennsylvania, which was then the seat of congress. When the expedition to Canada was abandoned, he was not directed, with Lafayette and De Kalb, to rejoin the army. Entertaining no hope of being permitted to exercise the functions of his new office, he resigned his commission about the last of April, and, some time afterwards, returned to France.[\[100\]](#) The Baron Steuben appointed inspector general. On his resignation, the Baron Steuben, who had, as a volunteer, performed the duties of inspector general, much to the satisfaction of the Commander-in-chief, and of the army, was, on the recommendation of General Washington, appointed to that office with the rank of major general, without exciting the slightest murmur.

This gentleman was of real service to the American troops. He established one uniform system of field exercise; and, by his skill and

persevering industry, effected important improvements through all ranks of the army during its continuance at Valley Forge.

1777

While it was encamped at that place, several matters of great interest engaged the attention of congress. Among them, was the stipulation in the convention of Saratoga for the return of the British army to England. Boston was named as the place of embarkation. At the time of the capitulation, the difficulty of making that port early in the winter was unknown to General Burgoyne. Consequently, as some time must elapse before a sufficient number of vessels for the transportation of his army could be collected, its embarkation might be delayed until the ensuing spring.

November 25.

On receiving this unwelcome intelligence, he applied to General Washington to change the port of embarkation, and to substitute Newport, in Rhode Island, or some place on the Sound, for Boston. If any considerations not foreseen should make this proposal objectionable, he then solicited this indulgence for himself and his suite. This request was communicated to congress, in terms favourable to that part of the application which respected General Burgoyne and his suite; but the objections to any change in the convention which might expedite the transportation of the army, were too weighty to be disregarded; and the General pressed them earnestly on congress. This precaution was unnecessary. The facility with which the convention might be violated by the British, and the captured army be united to that under General Howe, seems to have suggested itself to the American government, as soon as the first rejoicings were over; and such was its then existing temper, that the faith and honour of British officers were believed to be no securities against their appearing again in the field. Under this impression, a resolution had passed early in November, directing General Heath to transmit to the board of war a descriptive list of all persons comprehended in the convention, "in order that, if any officer, soldier, or other person of the said army should hereafter be found in arms against these states in North America, during the present contest, he might be convicted of the offence, and suffer the punishment in such case inflicted by the law of nations."

No other notice was taken of the application made by General Burgoyne to congress through the Commander-in-chief, than to pass a resolution "that General Washington be directed to inform General Burgoyne that congress will not receive, nor consider, any proposition for indulgence, nor for altering the terms of the convention of Saratoga, unless immediately directed to their own body."

December.

Contrary to expectation, a fleet of transports for the reception of the troops reached Rhode Island, on its way to Boston, in the month of December. But, before its arrival, the preconceived suspicions of congress had ripened into conviction several circumstances combined to produce this result. General Burgoyne, dissatisfied with the accommodations prepared for his officers in Boston, had, after a fruitless correspondence with General Heath, addressed a letter to General Gates, in which he complained of the inconvenient quarters assigned his officers, as a breach of the articles of the convention. This complaint was considered by congress as being made for the purpose of letting in the principle, that the breach of one article of a treaty discharges the injured party from its obligations.

This suspicion was strengthened by the indiscreet hesitation of General Burgoyne to permit the resolution requiring a descriptive list of his troops to be executed. His subsequent relinquishment of the objection did not remove the impression it had made.

It was also alleged, that the number of transports was not sufficient to convey the troops to Europe; nor was it believed possible that Sir William Howe could have laid in, so expeditiously, a sufficient stock of provisions for the voyage.

These objections to the embarkation of Burgoyne's troops were strengthened by some trivial infractions of the convention, which, it was contended, gave congress a strict right to detain them. It was stipulated that "the arms" should be delivered up; and it appeared that several cartouch boxes and other military accoutrements, supposed to be comprehended in the technical term *arms*, had been detained. This was deemed an infraction of the letter of the compact, which, on rigid principle, justified the measures afterwards adopted by congress.

Congress forbid the embarkation of the British troops taken at Saratoga.

The whole subject was referred to a committee who reported all the circumstances of the case, whereupon congress came to several resolutions, enumerating the facts already mentioned, the last of which was in these words: "Resolved, therefore, that the embarkation of Lieutenant General Burgoyne, and the troops under his command, be suspended, until a distinct and explicit ratification of the convention of Saratoga shall be properly notified by the court of Great Britain to congress."

These resolutions, together with the report on which they were founded, were transmitted to the several states, and to General Washington. Two copies of them were sent to General Heath, with directions to deliver one of them to General Burgoyne, and with farther directions, "to order the vessels which may have arrived, or which shall arrive, for the transportation of the army under Lieutenant General Burgoyne, to quit, without delay, the port of Boston."

Burgoyne permitted to depart.

On receiving these resolutions, General Burgoyne addressed a letter to congress, containing papers, on which he founded a defence of his conduct, and insisted on the embarkation of his army, as stipulated in the convention; but the committee, to whom these papers were referred, reported their opinion, after the most attentive consideration of them, to be, "that nothing therein contained was sufficient to induce congress to recede from their resolves of the 8th of January last, respecting the convention of Saratoga." This application was accompanied by another letter from General Burgoyne, to be delivered if the army should still be detained, in which, in consideration of the state of his health, he solicited permission to return to England. This request was readily granted.

The impression made on the British nation by the capitulation of Burgoyne, notwithstanding the persevering temper of the king, at length made its way into the cabinet, and produced resolutions in favour of pacific measures.

1778

February.

After the rejection of repeated motions made by the opposition members tending to the abandonment of the American war, Lord North gave notice, in the House of Commons, that he had digested a plan of reconciliation which he designed shortly to lay before the house.

Plan of reconciliation with America agreed to in Parliament.

In conformity with this notice, he moved for leave to bring in, "first, A bill for removing all doubts and apprehensions concerning taxation by the Parliament of Great Britain in any of the colonies and plantations of North America.

"Second. A bill to enable his Majesty to appoint commissioners with sufficient powers to treat, consult, and agree upon the means of quieting the disorders now subsisting in certain of the colonies of North America."

The first contained a declaration that Parliament will impose no tax or duty whatever payable within any of the colonies of North America, except only such duties as it may be expedient to impose for the purposes of commerce, the net produce of which should always be paid and applied to and for the use of the colonies in which the same shall be respectively levied, in like manner as other duties collected under the authority of their respective legislatures are ordinarily paid and applied.

The second authorized the appointment of commissioners by the crown, with power to treat either with the existing governments, or with individuals, in America; provided that no stipulations which might be entered into should have any effect until approved in Parliament, other than is afterward mentioned.

It is then enacted, that the commissioners may have power "to proclaim a cessation of hostilities in any of the colonies, to suspend the operation of the non-intercourse law; and farther, to suspend, during the continuance of the act, so much of all or any of the acts of Parliament which have passed since the 10th day of February, 1763, as relates to the colonies.

"To grant pardon to any number or description of persons, and to appoint a governor in any colony in which his majesty had heretofore exercised the power of making such appointments."

These bills passed both houses of Parliament with inconsiderable opposition.

Intelligence of the treaty between the United States and France having been received by the minister about the time of their being introduced, copies of them, before they had gone through the requisite forms, were hurried to America, to be laid before congress and the public, in the hope

and expectation that they might counteract the effects which it was feared the treaty with France would produce.

April.

General Washington received early information of their arrival, and entertained serious fears of their operation. He was apprehensive that the publication of a proposition for the restoration of peace on the terms originally required by America, would greatly increase the numbers of the disaffected; and immediately forwarded the bills to congress in a letter suggesting the policy of preventing their pernicious influence on the public mind by all possible means, and especially through the medium of the press.

Communicated to, and rejected by Congress.

April 22.

This letter was referred to a committee, consisting of Messrs. Morris, Drayton, and Dana, by whom a report was made, investigating the bills with great acuteness as well as asperity. This report, and the resolutions upon it, were ordered to be published. Other resolutions were passed the succeeding day, recommending it to the states to pardon under such limitations as they might think proper to make, such of their misguided fellow-citizens as had levied war against the United States.

This resolution was accompanied by an order directing it to be printed in English and in German, and requesting General Washington to take such measures as he should deem most effectual for circulating the copies among the American recruits in the enemy's army.[\[101\]](#)

During these transactions, the frigate *La Sensible* arrived with the important intelligence that treaties of alliance and of commerce, had been formed between the United States of America and France. The treaties themselves were brought by Mr. Simeon Deane, the brother of the American Minister in Paris.

This event had long been anxiously expected, and the delay attending it had been such as to excite serious apprehension that it would never take place.

France was still extremely sore under the wounds inflicted during the war which terminated in 1763. It was impossible to reflect on a treaty which had

wrested from her so fair a part of North America, without feeling resentments which would seek the first occasion of gratification.

The growing discontents between Great Britain and her colonies were, consequently, viewed at a distance with secret satisfaction; but rather as a circumstance which might have some tendency to weaken and embarrass a rival, and which was to be encouraged from motives of general policy, than as one from which any definite advantage was to be derived. France appears, at that time, to have required, and wished for, repose. The great exertions of the preceding disastrous war had so deranged her finances, that the wish to preserve peace seems to have predominated in her cabinet. The young monarch, who had just ascended the throne, possessed a pacific unambitious temper, and the councils of the nation were governed by men alike indisposed to disturb the general tranquillity. The advice they gave the monarch was, to aid and encourage the colonies secretly, in order to prevent a reconciliation with the mother country, and to prepare privately for hostilities, by improving his finances, and strengthening his marine; but to avoid every thing which might give occasion for open war. The system which for a time regulated the cabinet of Versailles, conformed to this advice. While the utmost attention was paid to the Minister of Britain, and every measure to satisfy him was openly taken, intimation was privately given to those of the United States, that these measures were necessary for the present, but they might be assured of the good will of the French government.

During the public demonstration of dispositions favourable to England, means were taken to furnish aids of ammunition and arms, and to facilitate the negotiation of loans to the United States; and the owners of American privateers, though forbidden to sell their prizes, or to procure their condemnation, found means to dispose of them privately.

Meanwhile, another party was formed in the cabinet, to whose political system subsequent events gave the ascendancy. Its avowed object was to seize the present moment to revenge past injuries, humble the haughty rival of France, and dismember her empire.

Matters remained in a fluctuating state until December, 1777. Privately encouraged, but discountenanced publicly, the prospects of the American Ministers varied according to the complexion of American affairs.

Intelligence of the convention of Saratoga reached France early in December, 1777. The American deputies took that opportunity to press the treaty which had been under consideration for the preceding twelve months; and to urge the importance, at this juncture, when Britain would, most probably, make proposals for an accommodation,[\[102\]](#) of communicating to congress, precisely, what was to be expected from France and Spain.

They were informed by M. Girard, one of the secretaries of the king's council of state, that it was determined to acknowledge the independence of the United States, and to make a treaty with them. That his Most Christian Majesty was resolved not only to acknowledge, but to support their independence. That in doing this, he might probably soon be engaged in a war; yet he should not expect any compensation from the United States on that account; nor was it pretended that he acted wholly for their sakes; since, besides his real good will to them, it was manifestly the interest of France that the power of England should be diminished by the separation of her colonies. The only condition he should require would be that the United States, in no peace to be made, should give up their independence, and return to their obedience to the British government.

On determining to take this decisive course, the cabinet of Versailles had despatched a courier to his Catholic majesty with information of the line of conduct about to be pursued by France. On his return, the negotiation was taken up in earnest, and a treaty of friendship and commerce was soon concluded. This was accompanied by a treaty of alliance eventual and defensive between the two nations, in which it was declared, that if war should break out between France and England during the existence of that with the United States, it should be made a common cause; and that neither of the contracting parties should conclude either truce or peace with Great Britain without the formal consent of the other, first obtained; and they mutually engaged "not to lay down their arms until the independence of the United States shall have been formally, or tacitly assured by the treaty, or treaties that shall terminate the war."

It was the wish of the ministers of the United States to engage France immediately in the war; and to make the alliance, not eventual, but positive. This proposition, however, was rejected.

In a few weeks after the conclusion of these negotiations, the Marquis de Noailles announced officially to the court of London, the treaty of

friendship and commerce France had formed with the United States. The British government, considering this notification as a declaration of war, published a memorial for the purpose of justifying to all Europe the hostilities it had determined to commence.

Soon after their commencement, the Count de Vergennes received private intelligence that it was contemplated in the cabinet of London to offer to the United States an acknowledgment of their independence as the condition of a separate peace. He immediately communicated this intelligence to the American ministers, requesting them to lose no time in stating to congress that, though war was not declared in form, it had commenced in fact; and that he considered the obligations of the treaty of alliance as in full force; consequently that neither party was now at liberty to make a separate peace. Instructions of a similar import were given to the minister of France in the United States.

Information received of treaties of alliance and commerce being entered into between France and the United States.

The despatches containing these treaties were received by the president on Saturday the second of May, after congress had adjourned. That body was immediately convened, the despatches were opened, and their joyful contents communicated.

In the exultation of the moment, the treaty of alliance, as well as that of commerce and friendship was published; a circumstance which, not without reason, gave umbrage to the cabinet of Versailles; because that treaty, being only eventual, ought not to have been communicated to the public but by mutual consent.

From this event, which was the source of universal exultation to the friends of the revolution, the attention must be directed to one which was productive of very different sensations.

Among the various improvements which struggling humanity has gradually engrafted on the belligerent code, none have contributed more to diminish the calamities of war, than those which meliorate the condition of prisoners. No obligations will be more respected by the generous and the brave; nor are there any, the violation of which could wound the national character more deeply, or expose it to more lasting or better merited reproach.

In wars between nations nearly equal in power, and possessing rights acknowledged to be equal, a departure from modern usage in this respect is almost unknown; and the voice of the civilized world would be raised against the potentate who could adopt a system calculated to re-establish the rigours and misery of exploded barbarism. But in contests between different parts of the same empire, those practices which mitigate the horrors of war yield, too frequently, to the calculations of a blind and erring resentment. The party which supports the ancient state of things, often treats resistance as rebellion, and captives as traitors. The opposite party, supporting also by the sword principles believed to be right, will admit of no departure from established usage, to its prejudice; and may be expected, if possessing the power, to endeavour, by retaliating injuries, to compel the observance of a more just and humane system. But they participate in the fault imputable to their adversaries, by manifesting a disposition to punish those whom they deem traitors, with the same severity of which they so loudly and justly complain, when they are themselves its victims.

General Gage, as Commander-in-chief of the British army, in the harshness of spirit which had been excited while governor of Massachusetts, not only threw all his prisoners into a common jail, but rejected every proposition for an exchange of them. When the command devolved on Sir William Howe, this absurd system was abandoned, and an exchange[\[103\]](#) took place to a considerable extent. But the Americans had not made a sufficient number of prisoners to relieve all their citizens, and many of them still remained in confinement. Representations were continually received from these unfortunate men, describing in strong terms, the severity of their treatment. They complained of suffering almost the extremity of famine, that even the supply of provisions allowed them was unsound, and that they were crowded into prison-ships, where they became the victims of disease.

When charged with conduct so unworthy of his character and station, Sir William Howe positively denied its truth.

It would be unjust to ascribe this excess of inhumanity to an officer who, though perhaps severe in his temper, did not mingle cruelties in his general system, which would excite universal indignation in other wars. It must be admitted that his supplies of provisions were neither good nor abundant; and that the American soldiers, in their own camp, were unhealthy. But the

excessive mortality prevailing among the prisoners can be accounted for on no ordinary principles; and the candid, who were least inclined to criminate without cause, have ever been persuaded that, if his orders did not produce the distress which existed, his authority was not interposed with sufficient energy, to correct the abuses which prevailed.

The capture of General Lee furnished an additional ground of controversy on the subject of prisoners. As he had been an officer in the British service, whose resignation had not, perhaps, been received when he entered into that of America, a disposition was, at first, manifested to consider him as a deserter, and he was closely confined. On receiving information of this circumstance, congress directed General Howe to be assured that Lieutenant Colonel Campbell, and five Hessian field-officers, should be detained, and should experience precisely the fate of General Lee. These officers were taken into close custody, and informed that the resolution announced to General Howe should be strictly enforced.

The sentiments of the Commander-in-chief on the subject of retaliation, seem to have been less severe than those of congress. So great was his abhorrence of the cruelties such a practice must generate, that he was unwilling to adopt it in any case not of absolute and apparent necessity. Not believing that of General Lee to be such a case, he remonstrated strongly against these resolutions. But congress remained inflexible; and the officers designated as the objects of retaliation, were kept in rigorous confinement until General Lee was declared to be a prisoner of war.[\[104\]](#)

The resolutions of congress respecting the prisoners taken at the Cedars, were also the source of much embarrassment and chagrin to the Commander-in-chief. Alleging that the capitulation had been violated on the part of the enemy, and that the savages had been permitted to murder some of the prisoners, and to plunder others, they withheld their sanction from the agreement entered into by General Arnold with Captain Forster, and refused to allow other prisoners to be returned in exchange for those liberated under that agreement, until the murderers should be given up, and compensation made for the baggage said to have been plundered. As the fact alleged was not clearly established, Sir William Howe continued to press General Washington on this subject. Reminding him of the importance of a punctilious observance of faith, plighted in engagements like that made by General Arnold, he persisted to hold the Commander-in-chief personally

bound for an honourable compliance with military stipulations entered into by an officer under his authority.

General Washington, feeling the keenness of the reproach, pressed congress to change their resolution on this subject; but his remonstrances were, for a long time, unavailing.

After the sufferings of the prisoners in New York had been extreme, and great numbers had perished in confinement, the survivors were liberated for the purpose of being exchanged; but so miserable was their condition, that many of them died on their way home. For the dead as well as the living, General Howe claimed a return of prisoners, while General Washington contended that reasonable deductions should be made for those who were actually dead, of diseases under which they laboured when permitted to leave the British prisons.

Until this claim should be admitted, General Howe rejected any partial exchange. General Washington was immovable in his determination to repel it; and thus all hope of being relieved in the ordinary mode appeared to be taken from those whom the fortune of war had placed in the power of the enemy.

Complaints made by General Washington of the treatment of American prisoners in possession of the enemy.

In the mean time, the sufferings of the American prisoners increased with the increasing severity of the season. Information continued to be received, that they suffered almost the extremity of famine. Repeated remonstrances, made on this subject to the British general, were answered by a denial of the fact. He continued to aver that the same food, both in quantity and quality, was issued to the prisoners, as to British troops when in transports, or elsewhere, not on actual duty; and that every tenderness was extended to them, which was compatible with the situation of his army. He yielded to the request made by General Washington to permit a commissary to visit the jails, and demanded passports for an agent to administer to the wants of British prisoners.

When Mr. Boudinot, the American commissary of prisoners, who was appointed by General Washington to visit the jails in Philadelphia, met Mr. Ferguson, the British commissary, he was informed that General Howe thought it unnecessary for him to come into the city, as he would himself inspect the situation and treatment of the prisoners. There is reason to

believe that their causes of complaint, so far as respected provisions, did not exist afterwards in the same degree as formerly; and that the strong measures subsequently taken by congress, were founded on facts of an earlier date.

But clothes and blankets were also necessary, and the difficulty of furnishing them was considerable. General Howe would not permit the purchase of those articles in Philadelphia; and they were not attainable elsewhere.

Proceedings of congress on this subject.

To compel him to abandon this distressing restriction, and to permit the use of paper money within the British lines, congress resolved, that no prisoner should be exchanged until all the expenditures made in paper for the supplies they received from the United States, should be repaid in specie, at the rate of four shillings and sixpence for each dollar. They afterwards determined, that from the 1st day of February, no British commissary should be permitted to purchase any provisions for the use of prisoners west of New Jersey, but that all supplies for persons of that description should be furnished from British stores.

Sir William Howe remonstrated against the last resolution with great strength and justice, as a decree which doomed a considerable number of prisoners, far removed into the country, to a slow and painful death by famine; since it was impracticable to supply them immediately from Philadelphia. The severity of this order was in some degree mitigated by a resolution that each British commissary of prisoners should receive provisions from the American commissary of purchases, to be paid for in specie, according to the resolution of the 19th of December, 1777.

About the same time, an order was hastily given by the board of war, which produced no inconsiderable degree of embarrassment; and exposed the Commander-in-chief to strictures not less severe than those he had applied to the British general.

General Washington had consented that a quartermaster, with a small escort, should come out of Philadelphia, with clothes and other comforts for the prisoners who were in possession of the United States. He had expressly stipulated for their security, and had given them a passport.

January 26.

While they were travelling through the country, information was given to the board of war that General Howe had refused to permit provisions to be sent in to the American prisoners in Philadelphia by water. This information was not correct. General Howe had only requested that flags should not be sent up or down the river without previous permission obtained from himself. On this information, however, the board ordered Lieutenant Colonel Smith immediately to seize the officers, though protected by the passport of General Washington, their horses, carriages, and the provisions destined for the relief of the British prisoners; and to secure them until farther orders, either from the board or from the Commander-in-chief.

General Washington, on hearing this circumstance, despatched one of his aids with orders for the immediate release of the persons and property which had been confined; but the officers refused to proceed on their journey, and returned to Philadelphia.[\[105\]](#)

This untoward event was much regretted by the Commander-in-chief. In a letter received some time afterwards, General Howe, after expressing his willingness that the American prisoners should be visited by deputy commissaries, who should inspect their situation, and supply their wants required, as the condition on which this indulgence should be granted, "that a similar permit should be allowed to persons appointed by him, which should be accompanied with the assurance of General Washington, that his authority will have sufficient weight to prevent any interruption to their progress, and any insult to their persons." This demand was ascribed to the treatment to which officers under the protection of his passport had already been exposed.

General Washington lamented the impediment to the exchange of prisoners, which had hitherto appeared to be insuperable; and made repeated, but ineffectual efforts to remove it. General Howe had uniformly refused to proceed with any cartel, unless his right to claim for all the diseased and infirm, whom he had liberated, should be previously admitted.

At length, after all hope of inducing him to recede from that high ground had been abandoned, he suddenly relinquished it of his own accord, and acceded completely to the proposition of General Washington for the meeting of commissioners, in order to settle equitably the number to which he should be entitled for those he had discharged in the preceding winter. This point being adjusted, commissaries were mutually appointed, who

were to meet on the 10th of March, in Germantown, to arrange the details of a general cartel.

March 4.

The Commander-in-chief had entertained no doubt of his authority to enter into this agreement. On the fourth of March, however, he had the mortification to perceive in a newspaper, a resolution of congress calling on the several states for the amounts of supplies furnished the prisoners, that they might be adjusted according to the rule of the 10th of December, before the exchange should take place.

On seeing this embarrassing resolution, General Washington addressed a letter to Sir William Howe, informing him that particular circumstances had rendered it inconvenient for the American commissioners to attend at the time appointed, and requesting that their meeting should be deferred from the 10th to the 21st of March. The interval was successfully employed in obtaining a repeal of the resolution.

It would seem probable that the dispositions of congress on the subject of an exchange, did not correspond with those of General Washington. From the fundamental principle of the military establishment of the United States at its commencement, an exchange of prisoners would necessarily strengthen the British, much more than the American army. The war having been carried on by troops raised for short times, aided by militia, the American prisoners, when exchanged, returned to their homes as citizens, while those of the enemy again took the field.

General Washington, who was governed by a policy more just, and more permanently beneficial, addressed himself seriously to congress, urging, as well the injury done the public faith, and his own personal honour, by this infraction of a solemn engagement, as the cruelty and impolicy of a system which must cut off for ever all hopes of an exchange, and render imprisonment as lasting as the war. He represented in strong terms the effect such a measure must have on the troops on whom they should thereafter be compelled chiefly to rely, and its impression on the friends of those already in captivity. These remonstrances produced the desired effect, and the resolutions were repealed. The commissioners met according to the second appointment; but, on examining their powers, it appeared that those given by General Washington were expressed to be in virtue of the authority

vested in him; while those given by Sir William Howe contained no such declaration.

This omission produced an objection on the part of the United States; but General Howe refused to change the language, alleging that he designed the treaty to be of a personal nature, founded on the mutual confidence and honour of the contracting generals; and had no intention either to bind his government, or to extend the cartel beyond the limits and duration of his own command.

This explanation being unsatisfactory to the American commissioners, and General Howe persisting in his refusal to make the required alteration in his powers, the negotiation was broken off, and this fair prospect of terminating the distresses of numerous unfortunate persons passed away, without effecting the good it had promised.

Some time after the failure of this negotiation for a general cartel, Sir William Howe proposed that all prisoners actually exchangeable should be sent in to the nearest posts, and returns made of officer for officer of equal rank, and soldier for soldier, as far as numbers would admit; and that if a surplus of officers, should remain, they should be exchanged for an equivalent in privates.

A partial exchange agreed to.

On the representations of General Washington, congress acceded to this proposition, so far as related to the exchange of officer for officer, and soldier for soldier; but rejected the part which admitted an equivalent in privates for a surplus of officers, because the officers captured with Burgoyne were exchangeable within the powers of General Howe. Under this agreement, an exchange took place to a considerable extent; but as the Americans had lost more prisoners than they had taken, unless the army of Burgoyne should be brought into computation, many of their troops were still detained in captivity.

NOTES.

NOTE—No. I. See [Page 5](#).

It will not be unacceptable to the reader to peruse this first report of a young gentleman who afterwards performed so distinguished a part in the revolution of his country, it is therefore inserted at large.

I was commissioned and appointed by the Hon. Robert Dinwiddie, Esq. Governor &c. of Virginia, to visit and deliver a letter to the commandant of the French forces on the Ohio, and set out on the intended journey on the same day: the next, I arrived at Fredericksburg, and engaged Mr. Jacob Vanbraam to be my French interpreter, and proceeded with him to Alexandria, where we provided necessaries. From thence we went to Winchester, and got baggage, horses, &c. and from thence we pursued the new road to Wills' Creek, where we arrived the 14th November.

Here I engaged Mr. Gist to pilot us out, and also hired four others as servitors, Barnaby Currin, and John M'Quire, Indian traders, Henry Steward, and William Jenkins; and in company with those persons left the inhabitants the next day.

The excessive rains and vast quantity of snow which had fallen, prevented our reaching Mr. Frazier's, an Indian trader, at the mouth of Turtle creek, on Monongahela river, until Thursday the 22d. We were informed here, that expresses had been sent a few days before to the traders down the river, to acquaint them with the French general's death, and the return of the major part of the French army into winter quarters.

The waters were quite impassable without swimming our horses, which obliged us to get the loan of a canoe from Frazier, and to send Barnaby Currin and Henry Steward down the Monongahela, with our baggage, to meet us at the forks of Ohio, about ten miles; there, to cross the Alleghany.

As I got down before the canoe, I spent some time in viewing the rivers, and the land in the fork, which I think extremely well situated for a fort, as it has the absolute command of both rivers. The land at the point is twenty, or twenty-five feet above the common surface of the water; and a

considerable bottom of flat, well timbered land all around it very convenient for building. The rivers are each a quarter of a mile or more across, and run here very nearly at right angles; Alleghany, bearing northeast; and Monongahela, southeast. The former of these two is a very rapid and swift running water, the other deep and still, without any perceptible fall.

About two miles from this, on the southeast side of the river, at the place where the Ohio company intended to erect a fort, lives Shingiss, king of the Delawares. We called upon him, to invite him to council at the Loggstown.

As I had taken a good deal of notice yesterday of the situation at the fork, my curiosity led me to examine this more particularly, and I think it greatly inferior, either for defence or advantages; especially the latter. For a fort at the fork would be equally well situated on the Ohio, and have the entire command of the Monongahela, which runs up our settlement, and is extremely well designed for water carriage, as it is of a deep, still nature. Besides, a fort at the fork might be built at much less expense than at the other places.

Nature has well contrived this lower place for water defence; but the hill whereon it must stand being about a quarter of a mile in length, and then descending gradually on the land side, will render it difficult and very expensive to make a sufficient fortification there. The whole flat upon the hill must be taken in, the side next the descent made extremely high, or else the hill itself cut away: otherwise, the enemy may raise batteries within that distance without being exposed to a single shot from the fort.

Shingiss attended us to the Loggstown, where we arrived between sun-setting and dark, the twenty-fifth day after I left Williamsburg. We travelled over some extremely good and bad land to get to this place.

As soon as I came into town, I went to Monakatoocha (as the half king was out at his hunting cabin on Little Beaver creek, about fifteen miles off) and informed him by John Davidson, my Indian interpreter, that I was sent a messenger to the French general; and was ordered to call upon the sachems of the Six Nations to acquaint them with it. I gave him a string of wampum and a twist of tobacco, and desired him to send for the half king, which he promised to do by a runner in the morning, and for other sachems. I invited him and the other great men present, to my tent, where they stayed about an hour and returned.

According to the best observations I could make, Mr. Gift's new settlement (which we passed by) bears about west northwest seventy miles from Wills' creek; Shanapins, or the forks, north by west, or north northwest about fifty miles from that; and from thence to the Loggstown, the course is nearly west about eighteen or twenty miles: so that the whole distance, as we went and computed it, is, at least, one hundred and thirty-five or one hundred and forty miles from our back inhabitants.

25th. Came to town, four of ten Frenchmen, who had deserted from a company at the Kuskuskas, which lies at the mouth of this river. I got the following account from them. They were sent from New Orleans with a hundred men, and eight canoe loads of provisions, to this place, where they expected to have met the same number of men, from the forts on this side of lake Erie, to convoy them and the stores up, who were not arrived when they ran off.

I inquired into the situation of the French on the Mississippi, their numbers, and what forts they had built. They informed me, that there were four small forts between New Orleans and the Black Islands, garrisoned with about thirty or forty men, and a few small pieces in each. That at New Orleans, which is near the mouth of the Mississippi, there are thirty-five companies of forty men each, with a pretty strong fort mounting eight carriage guns; and at the Black Islands there are several companies and a fort with six guns. The Black Islands are about a hundred and thirty leagues above the mouth of the Ohio, which is about three hundred and fifty above New Orleans. They also acquainted me, that there was a small pallisadoed fort on the Ohio, at the mouth of the Obaish, about sixty leagues from the Mississippi. The Obaish heads near the west end of lake Erie, and affords the communication between the French on the Mississippi and those on the lakes. These deserters came up from the lower Shannoah town with one Brown, an Indian trader, and were going to Philadelphia.

About three o'clock this evening the half king came to town. I went up and invited him with Davidson, privately, to my tent; and desired him to relate some of the particulars of his journey to the French commandant, and of his reception there; also, to give me an account of the ways and distance. He told me, that the nearest and levellest way was now impassable, by reason of many large miry savannas; that we must be obliged to go by Venango, and should not get to the near fort in less than five or six nights

sleep, good travelling. When he went to the fort, he said he was received in a very stern manner by the late commander, who asked him very abruptly, what he had come about, and to declare his business: which he said he did in the following speech:

"Fathers, I am come to tell you your own speeches; what your own mouths have declared. Fathers, you, in former days, set a silver basin before us, wherein there was the leg of a beaver, and desired all the nations to come and eat of it, to eat in peace and plenty, and not to be churlish to one another: and that if any such person should be found to be a disturber, I here lay down by the edge of the dish a rod, which you must scourge them with; and if your father should get foolish, in my old days, I desire you may use it upon me as well as others.

"Now, fathers, it is you who are the disturbers in this land, by coming and building your towns; and taking it away unknown to us, and by force.

"Fathers, we kindled a fire a long time ago, at a place called Montreal, where we desired you to stay, and not to come and intrude upon our land. I now desire you may despatch to that place; for be it known to you, fathers, that this is our land and not yours.

"Fathers, I desire you may hear me in civilness; if not, we must handle that rod which was laid down for the use of the obstreperous. If you had come in a peaceable manner, like our brothers the English, we would not have been against your trading with us, as they do; but to come, fathers, and build houses upon our land, and to take it by force, is what we can not submit to.

"Fathers, both you and the English are white, we live in a country between; therefore, the land belongs to neither one nor the other. But the great Being above allowed it to be a place of residence for us; so, fathers, I desire you to withdraw, as I have done our brothers the English; for I will keep you at arm's length. I lay this down as a trial for both, to see which will have the greatest regard to it, and that side we will stand by, and make equal sharers with us. Our brothers, the English, have heard this, and I come now to tell it to you; for I am not afraid to discharge you off this land." This he said was the substance of what he spoke to the general, who made this reply.

"Now, my child, I have heard your speech: you spoke first, but it is my time to speak now. Where is my wampum that you took away, with the

marks of towns in it? This wampum I do not know, which you have discharged me off the land with: but you need not put yourself to the trouble of speaking, for I will not hear you. I am not afraid of flies or musquitoes, for Indians are such as those: I tell you down that river I will go, and build upon it, according to my command. If the river was blocked up, I have forces sufficient to burst it open, and tread under my feet all that stand in opposition, together with their alliances; for my force is as the sand upon the sea shore: therefore here is your wampum; I sling it at you. Child, you talk foolish; you say this land belongs to you, but there is not the black of my nail yours. I saw that land sooner than you did, before the Shannoahs and you were at war; Lead was the man who went down and took possession of that river. It is my land, and I will have it, let who will stand up for, or say against it. I will buy and sell with the English (mockingly). If people will be ruled by me, they may expect kindness, but not else."

The half king told me he had inquired of the general after two Englishmen, who were made prisoners, and received this answer:

"Child, you think it a very great hardship that I made prisoners of those two people at Venango. Don't you concern yourself with it: we took and carried them to Canada, to get intelligence of what the English were doing in Virginia."

He informed me that they had built two forts, one on lake Erie, and another on French creek, near a small lake, about fifteen miles asunder, and a large wagon road between. They are both built after the same model, but different in size: that on the lake the largest. He gave me a plan of them of his own drawing.

The Indians inquired very particularly after their brothers in Carolina gaol.

They also asked what sort of a boy it was who was taken from the south branch; for they were told by some Indians, that a party of French Indians had carried a white boy by Kuskuska town, towards the lakes.

26th. We met in council at the long house about nine o'clock, when I spoke to them as follows:

"Brothers, I have called you together in council, by order of your brother the governor of Virginia, to acquaint you, that I am sent with all possible despatch, to visit and deliver a letter to the French commandant, of very

great importance to your brothers the English; and I dare say to you, their friends and allies.

"I was desired, brothers, by your brother the governor to call upon you, the sachems of the nations, to inform you of it, and to ask your advice and assistance to proceed the nearest and best road to the French. You see, brothers, I have gotten thus far on my journey.

"His honour likewise desired me to apply to you for some of your young men to conduct and provide provisions for us on our way; and be a safeguard against those French Indians who have taken up the hatchet against us. I have spoken thus particularly to you, brothers, because his honour our governor treats you as good friends and allies, and holds you in great esteem. To confirm what I have said, I give you this string of wampum."

After they had considered for some time on the above discourse, the half king got up and spoke.

"Now, my brother, in regard to what my brother the governor had desired of me, I return you this answer.

"I rely upon you as a brother ought to do, as you say we are brothers, and one people. We shall put heart in hand and speak to our fathers, the French, concerning the speech they made to me; and you may depend that we will endeavour to be your guard.

"Brother, as you have asked my advice, I hope you will be ruled by it, and stay until I can provide a company to go with you. The French speech belt is not here; I have it to go for to my hunting cabin. Likewise, the people whom I have ordered in are not yet come, and can not until the third night from this; until which time, brother, I must beg you to stay.

"I intend to send the guard of Mingos, Shannoahs, and Delawares, that our brothers may see the love and loyalty we bear them."

As I had orders to make all possible despatch, and waiting here was very contrary to my inclination, I thanked him in the most suitable manner I could; and told him that my business required the greatest expedition, and would not admit of that delay. He was not well pleased that I should offer to go before the time he had appointed, and told me, that he could not consent to our going without a guard, for fear some accident should befall us, and draw a reflection upon him. Besides, said he, this is a matter of no small

moment, and must not be entered into without due consideration; for I intend to deliver up the French speech belt, and make the Shannoahs and Delawares do the same. And accordingly he gave orders to king Shingiss, who was present, to attend on Wednesday night with the wampum; and two men of their nation to be in readiness to set out with us next morning. As I found it was impossible to get off without affronting them in the most egregious manner, I consented to stay.

I gave them back a string of wampum which I met with at Mr. Frazier's, and which they sent with a speech to his honour the governor, to inform him, that three nations of French Indians, viz. Chippoways, Ottoways, and Orundaks, had taken up the hatchet against the English; and desired them to repeat it over again. But this they postponed doing until they met in full council with the Shannoah and Delaware chiefs.

27th. Runners were despatched very early for the Shannoah chiefs. The half king set out himself to fetch the French speech belt from his hunting cabin.

28th. He returned this evening, and came with Monakatoocha, and two other sachems to my tent; and begged (as they had complied with his honour the governor's request, in providing men, &c.) to know on what business we were going to the French? This was a question I had all along expected, and had provided as satisfactory answers to as I could; which allayed their curiosity a little.

Monakatoocha informed me, that an Indian from Venango brought news, a few days ago, that the French had called all the Mingos, Delawares, &c. together at that place; and told them that they intended to have been down the river this fall, but the waters were growing cold, and the winter advancing, which obliged them to go into quarters; but that they might assuredly expect them in the spring, with a far greater number; and desired that they might be quite passive, and not intermeddle unless they had a mind to draw all their force upon them: for that they expected to fight the English three years (as they supposed there would be some attempts made to stop them) in which time they should conquer. But that if they should prove equally strong, they and the English would join to cut them all off, and divide the land between them: that though they had lost their general, and some few of their soldiers, yet there were men enough to reinforce them, and make them masters of the Ohio.

This speech, he said, was delivered to them by one Captain Joncaire, their interpreter in chief, living at Venango, and a man of note in the army.

29th. The half king and Monakattoocho, came very early and begged me to stay one day more: for notwithstanding they had used all the diligence in their power, the Shannoah chiefs had not brought the wampum they ordered, but would certainly be in to night; if not, they would delay me no longer, but would send it after us as soon as they arrived. When I found them so pressing in their request, and knew that returning of wampum was the abolishing of agreements; and giving this up was shaking off all dependence upon the French, I consented to stay, as I believed an offence offered at this crisis, might be attended with greater ill consequence, than another day's delay. They also informed me, that Shingiss could not get in his men; and was prevented from coming himself by his wife's sickness; (I believe, by fear of the French) but that the wampum of that nation was lodged with Kustalogo, one of their chiefs, at Venango.

In the evening, late, they came again, and acquainted me that the Shannoahs were not yet arrived, but that it should not retard the prosecution of our journey. He delivered in my hearing the speech that was to be made to the French by Jeskakake, one of their old chiefs, which was giving up the belt the late commandant had asked for, and repeating nearly the same speech he himself had done before.

He also delivered a string of wampum to this chief, which was sent by king Shingiss, to be given to Kustalogo, with orders to repair to the French, and deliver up the wampum.

He likewise gave a very large string of black and white wampum, which was to be sent up immediately to the Six Nations, if the French refused to quit the land at this warning; which was the third and last time, and was the right of this Jeskakake to deliver.

30th. Last night, the great men assembled at their council house, to consult further about this journey, and who were to go: the result of which was, that only three of their chiefs, with one of their best hunters, should be our convoy. The reason they gave for not sending more, after what had been proposed at council the 26th, was, that a greater number might give the French suspicions of some bad design, and cause them to be treated rudely: but I rather think they could not get their hunters in.

We set out about nine o'clock with the half king, Jeskakake, White Thunder, and the Hunter; and travelled on the road to Venango, where we arrived the fourth of December, without any thing remarkable happening but a continued series of bad weather.

This is an old Indian town, situated at the mouth of French creek, on Ohio; and lies near north about sixty miles from the Loggstown, but more than seventy the way we were obliged to go.

We found the French colours hoisted at a house from which they had driven Mr. John Frazier, an English subject. I immediately repaired to it, to know where the commander resided. There were three officers, one of whom, Captain Joncaire, informed me that he had the command of the Ohio; but that there was a general officer at the near fort, where he advised me to apply for an answer. He invited us to sup with them, and treated us with the greatest complaisance.

The wine, as they dosed themselves pretty plentifully with it, soon banished the restraint which at first appeared in their conversation, and gave a license to their tongues to reveal their sentiments more freely.

They told me, that it was their absolute design to take possession of the Ohio, and by G-d they would do it: for that, although they were sensible the English could raise two men for their one, yet they knew their motions were too slow and dilatory to prevent any undertaking of theirs. They pretend to have an undoubted right to the river from a discovery made by one La Salle, sixty years ago: and the rise of this expedition is, to prevent our settling on the river or waters of it, as they heard of some families moving out in order thereto. From the best intelligence I could get, there have been fifteen hundred men on this side Ontario lake. But upon the death of the general, all were recalled to about six or seven hundred, who were left to garrison four forts, one hundred and fifty or thereabout in each. The first of them is on French creek, near a small lake, about sixty miles from Venango, near north northwest: the next lies on lake Erie, where the greater part of their stores are kept, about fifteen miles from the other: from this it is one hundred and twenty miles to the carrying place, at the falls of Lake Erie, where there is a small fort, at which they lodge their goods in bringing them from Montreal, the place from whence all their stores are brought. The next fort lies about twenty miles from this, on Ontario lake. Between this fort and Montreal, there are three others, the first of which is nearly opposite to

the English fort Oswego. From the fort on lake Erie to Montreal is about six hundred miles, which, they say, requires no more (if good weather,) than four weeks voyage, if they go in barks or large vessels, so that they may cross the lake: but if they come in canoes, it will require five or six weeks, for they are obliged to keep under the shore.

5th. Rained excessively all day, which prevented our travelling. Captain Joncaire sent for the half king, as he had but just heard that he came with me. He affected to be much concerned that I did not make free to bring them in before. I excused it in the best manner of which I was capable, and told him, I did not think their company agreeable, as I had heard him say a good deal in dispraise of Indians in general: but another motive prevented me from bringing them into his company: I knew that he was an interpreter, and a person of very great influence among the Indians, and had lately used all possible means to draw them over to his interest; therefore, I was desirous of giving him no opportunity that could be avoided.

When they came in, there was great pleasure expressed at seeing them. He wondered how they could be so near without coming to visit him, made several trifling presents, and applied liquor so fast, that they were soon rendered incapable of the business they came about, notwithstanding the caution which was given.

6th. The half king came to my tent, quite sober, and insisted very much that I should stay and hear what he had to say to the French. I fain would have prevented him from speaking any thing until he came to the commandant, but could not prevail. He told me, that at this place a council fire was kindled, where all their business with these people was to be transacted, and that the management of the Indian affairs was left solely to Monsieur Joncaire. As I was desirous of knowing the issue of this, I agreed to stay; but sent our horses a little way up French creek, to raft over and encamp; which I knew would make it near night.

About ten o'clock, they met in council. The king spoke much the same as he had before done to the general; and offered the French speech belt which had before been demanded, with the marks of four towns on it, which Monsieur Joncaire refused to receive, but desired him to carry it to the fort to the commander.

7th. Monsieur La Force, Commissary of the French stores, and three other soldiers, came over to accompany us up. We found it extremely

difficult to get the Indians off to-day, as every stratagem had been used to prevent their going up with me. I had last night left John Davidson (the Indian interpreter) whom I brought with me from town, and strictly charged him not to be out of their company, as I could not get them over to my tent; for they had some business with Kustologa, chiefly to know why he did not deliver up the French speech belt which he had in keeping: but I was obliged to send Mr. Gist over to-day to fetch them, which he did with great persuasion.

At twelve o'clock, we set out for the fort, and were prevented from arriving there until the eleventh by excessive rains, snows, and bad travelling through many mires and swamps; these we were obliged to pass to avoid crossing the creek, which was impossible, either by fording or rafting, the water was so high and rapid.

We passed over much good land since we left Venango, and through several extensive and very rich meadows, one of which, I believe, was nearly four miles in length, and considerably wide in some places.

12th. I prepared early to wait upon the commander, and was received, and conducted to him by the second officer in command. I acquainted him with my business, and offered my commission and letter: both of which he desired me to keep until the arrival of Monsieur Reparti, captain at the next fort, who was sent for and expected every hour.

This commander is a knight of the military order of St. Louis, and named Legardeur de St. Pierre. He is an elderly gentleman, and has much the air of a soldier. He was sent over to take the command, immediately upon the death of the late general, and arrived here about seven days before me.

At two o'clock, the gentleman who was sent for arrived, when I offered the letter, &c. again, which they received, and adjourned into a private apartment for the captain to translate, who understood a little English. After he had done it, the commander desired I would walk in and bring my interpreter to peruse and correct it; which I did.

13th. The chief officers retired to hold a council of war, which gave me an opportunity of taking the dimensions of the fort, and making what observations I could.

It is situated on the south, or west fork of French creek, near the water; and is almost surrounded by the creek, and a small branch of it which forms a kind of island. Four houses compose the sides. The bastions are made of

piles driven into the ground, standing more than twelve feet above it, and sharp at top; with port holes cut for cannon, and loop holes for the small arms to fire through. There are eight six pound pieces mounted in each bastion, and one piece of four pound before the gate. In the bastions are a guard house, chapel, doctor's lodging, and the commander's private store: round which are laid platforms for the cannon and men to stand on. There are several barracks without the fort, for the soldiers' dwelling, covered, some with bark, and some with boards, made chiefly of logs. There are also several other houses, such as stables, smith's shop, &c.

I could get no certain account of the number of men here; but according to the best judgment I could form, there are an hundred, exclusive of officers, of which there are many. I also gave orders to the people who were with me, to take an exact account of the canoes which were hauled up to convey their forces down in the spring. This they did, and told fifty of birch bark, and an hundred and seventy of pine; besides many others which were blocked out, in readiness for being made.

14th. As the snow increased very fast, and our horses daily became weaker, I sent them off unloaded, under the care of Barnaby Currin and two others, to make all convenient despatch to Venango, and there to wait our arrival, if there was a prospect of the river's freezing: if not, then to continue down to Shanapin's town, at the forks of Ohio, and there to wait until we came to cross the Alleghany; intending myself to go down by water, as I had the offer of a canoe or two.

As I found many plots concerted to retard the Indians' business, and prevent their returning with me, I endeavoured all that lay in my power to frustrate their schemes, and hurried them on to execute their intended design. They accordingly pressed for admittance this evening, which at length was granted them, privately, to the commander and one or two other officers. The half king told me that he offered the wampum to the commander, who evaded taking it, and made many fair promises of love and friendship; said he wanted to live in peace and trade amicably with them, as a proof of which, he would send some goods immediately down to the Loggstown for them. But I rather think the design of that is to bring away all our straggling traders they meet with, as I privately understood they intended to carry an officer, &c. with them. And what rather confirms this opinion, I was inquiring of the commander by what authority he had

made prisoners of several of our English subjects. He told me that the country belonged to them; that no Englishman had a right to trade upon those waters; and that he had orders to make every person prisoner who attempted it on the Ohio, or the waters of it.

I inquired of Captain Reparti about the boy that was carried by this place, as it was done while the command devolved on him, between the death of the late general, and the arrival of the present. He acknowledged that a boy had been carried past: and that the Indians had two or three white men's scalps, (I was told by some of the Indians at Venango, eight) but pretended to have forgotten the name of the place where the boy came from, and all the particular facts, though he had questioned him for some hours, as they were carrying past. I likewise inquired what they had done with John Trotter and James M'Clocklan, two Pennsylvania traders, whom they had taken with all their goods. They told me that they had been sent to Canada, but were now returned home.

This evening, I received an answer to his honour the governor's letter, from the commandant.

15th. The commandant ordered a plentiful store of liquor, provision, &c. to be put on board our canoes, and appeared to be extremely complaisant, though he was exerting every artifice which he could invent to set our Indians at variance with us, to prevent their going until after our departure: presents, rewards, and every thing which could be suggested by him or his officers. I can not say that ever in my life I suffered so much anxiety as I did in this affair. I saw that every stratagem, which the most fruitful brain could invent, was practised to win the half king to their interest; and that leaving him there was giving them the opportunity they aimed at. I went to the half king and pressed him in the strongest terms to go; he told me that the commandant would not discharge him until the morning. I then went to the commandant, and desired him to do their business, and complained of ill treatment; for keeping them, as they were part of my company, was detaining me. This he promised not to do, but to forward my journey as much as he could. He protested he did not keep them, but was ignorant of the cause of their stay; though I soon found it out. He had promised them a present of guns, &c. if they would wait until the morning. As I was very much pressed by the Indians to wait this day for them, I consented, on a promise that nothing should hinder them in the morning.

16th. The French were not slack in their inventions to keep the Indians this day also. But as they were obliged, according to promise, to give the present, they then endeavoured to try the power of liquor, which I doubt not would have prevailed at any other time than this: but I urged and insisted with the king so closely upon his word, that he refrained, and set off with us as he had engaged.

We had a tedious and very fatiguing passage down the creek. Several times we had like to have been staved against rocks; and many times were obliged all hands to get out and remain in the water half an hour or more, getting over the shoals. At one place, the ice had lodged, and made it impassable by water; we were, therefore, obliged to carry our canoe across the neck of land, a quarter of a mile over. We did not reach Venango until the 22d, where we met with our horses.

This creek is extremely crooked. I dare say the distance between the fort and Venango, can not be less than one hundred and thirty miles to follow the meanders.

23d. When I got things ready to set off, I sent for the half king, to know whether he intended to go with us, or by water. He told me that White Thunder had hurt himself much, and was sick, and unable to walk; therefore he was obliged to carry him down in a canoe. As I found he intended to stay here a day or two, and knew that Monsieur Joncaire would employ every scheme to set him against the English, as he had before done, I told him, I hoped he would guard against his flattery, and let no fine speeches influence him in their favour. He desired I might not be concerned, for he knew the French too well, for any thing to engage him in their favour; and that though he could not go down with us, he yet would endeavour to meet at the forks with Joseph Campbell, to deliver a speech for me to carry to his honour the governor. He told me he would order the Young Hunter to attend us, and get provisions, &c. if wanted.

Our horses were now so weak and feeble, and the baggage so heavy, (as we were obliged to provide all the necessaries which the journey would require) that we doubted much their performing it. Therefore, myself and others, except the drivers, who were obliged to ride, gave up our horses for packs, to assist along with the baggage. I put myself in an Indian walking dress, and continued with them three days, until I found there was no probability of their getting home in any reasonable time. The horses became

less able to travel every day; the cold increased very fast; and the roads were becoming much worse by a deep snow, continually freezing: therefore, as I was uneasy to get back, to make report of my proceedings to his honour the governor, I determined to prosecute my journey, the nearest way through the woods, on foot.

Accordingly, I left Mr. Vanbraam in charge of our baggage, with money and directions to provide necessaries from place to place for themselves and horses, and to make the most convenient despatch in travelling.

I took my necessary papers, pulled off my clothes, and tied myself up in a watch coat. Then, with gun in hand, and pack on my back, in which were my papers and provisions, I set out with Mr. Gist, fitted in the same manner, on Wednesday the 26th. The day following, just after we had passed a place called Murdering town, (where we intended to quit the path and steer across the country for Shanapin's town) we fell in with a party of French Indians, who had laid in wait for us. One of them fired at Mr. Gist or me, not fifteen steps off, but fortunately missed. We took this fellow into custody, and kept him until about nine o'clock at night, then let him go, and walked all the remaining part of the night without making any stop, that we might get the start, so far, as to be out of the reach of their pursuit the next day, since we were well assured they would follow our track as soon as it was light. The next day we continued travelling until quite dark, and got to the river about two miles above Shanapin's. We expected to have found the river frozen, but it was not, only about fifty yards from each shore. The ice, I suppose, had broken up above, for it was driving in vast quantities.

There was no way for getting over but on a raft, which we set about, with but one poor hatchet, and finished just after sun setting. This was a whole day's work: we next got it launched, then went on board of it, and set off; but before we were half way over, we were jammed in the ice, in such a manner, that we expected every moment our raft to sink, and ourselves to perish. I put out my setting pole to try to stop the raft, that the ice might pass by, when the rapidity of the stream threw it with so much violence against the pole, that it jerked me out into ten feet water; but I fortunately saved myself by catching hold of one of the raft logs. Notwithstanding all our efforts, we could not get to either shore, but were obliged, as we were near an island, to quit our raft and make to it.

The cold was so extremely severe, that Mr. Gist had all his fingers, and some of his toes frozen, and the water was shut up so hard, that we found no difficulty in getting off the island on the ice in the morning, and went to Mr. Frazier's. We met here with twenty warriors, who were going to the southward to war; but coming to a place on the head of the great Kanawa, where they found seven people killed and scalped, (all but one woman with very light hair) they turned about and ran back, for fear the inhabitants should rise and take them as the authors of the murder. They report that the bodies were lying about the house, and some of them much torn and eaten by the hogs. By the marks which were left, they say they were French Indians of the Ottoway nation, &c. who did it.

As we intended to take horses here, and it required some time to find them, I went up about three miles to the mouth of Yohogany, to visit queen Alliquippa, who had expressed great concern that we passed her in going to the fort. I made her a present of a watch coat and a bottle of rum, which latter was thought much the best present of the two.

Tuesday, the first of January, we left Mr. Frazier's house, and arrived at Mr. Gist's, at Monongahela, the second, where I bought a horse, saddle, &c. The sixth, we met seventeen horses loaded with materials and stores for a fort at the forks of Ohio, and the day after, some families going out to settle. This day, we arrived at Wills' creek, after as fatiguing a journey as it is possible to conceive, rendered so by excessive bad weather. From the first day of December to the fifteenth, there was but one day on which it did not rain or snow incessantly; and throughout the whole journey, we met with nothing but one continued series of cold, wet weather, which occasioned very uncomfortable lodgings, especially after we had quitted our tent, which was some screen from the inclemency of it.

On the 11th, I got to Belvoir, where I stopped one day to take necessary rest; and then set out and arrived in Williamsburg the 16th, when I waited upon his honour the governor, with the letter I had brought from the French commandant, and to give an account of the success of my proceedings. This I beg leave to do by offering the foregoing narrative, as it contains the most remarkable occurrences which happened in my journey.

I hope what has been said will be sufficient to make your honour satisfied with my conduct; for that was my aim in undertaking the journey, and chief study throughout the prosecution of it.

NOTE—No. II. See [Page 10](#).

The author is indebted, for the letter alluded to, to the Editor of the Lancaster Journal.

Sir,—I am really sorry that I have it not in my power to answer your request, in a more satisfactory manner. If you had favoured me with the journal a few days sooner, I would have examined it carefully, and endeavoured to point out such errors as might conduce to your use, my advantage, and the public satisfaction; but now it is out of my power.

I had no time to make any remarks upon that piece which is called my journal. The enclosed are observations on the French notes. They are of no use to me separated, nor will they, I believe, be of any to you; yet I send them unconnected and incoherent as they were taken, for I have no opportunity to correct them.

In regard to the journal, I can only observe in general, that I kept no regular one during that expedition: rough minutes of occurrences I certainly took, and find them as certainly and strangely metamorphosed—some parts left out which I remember were entered, and many things added that never were thought of; the names of men and things egregiously miscalled; and the whole of what I saw Englished, is very incorrect and nonsensical:—yet, I will not pretend to say that the little body who brought it to me, has not made a literal translation, and a good one.

Short as my time is, I can not help remarking on Villiers' account of the battle of, and transactions at the Meadows, as it is very extraordinary, and not less erroneous than inconsistent. He says the French received the first fire. It is well known that we received it at six hundred paces distance. He also says, our fears obliged us to retreat in the most disorderly manner after the capitulation. How is this consistent with his other account? He acknowledges that we sustained the attack, warmly, from ten in the morning until dark, and that he called first to parley, which strongly indicates that we were not totally absorbed in fear. If the gentleman in his account had adhered to the truth, he must have confessed, that we looked upon his offer to parley as an artifice to get into and examine our trenches, and refused on this account, until they desired an officer might be sent to them, and gave their parole for his safe return. He might also, if he had been as great a lover of the truth as he was of vain glory, have said, that we absolutely refused

their first and second proposals, and would consent to capitulate on no other terms than such as we obtained. That we were wilfully, or ignorantly deceived by our interpreter in regard to the word *assassination*, I do aver, and will to my dying moment; so will every officer that was present. The interpreter was a Dutchman, little acquainted with the English tongue, therefore might not advert to the tone and meaning of the word in English; but, whatever his motives were for so doing, certain it is, he called it the *death*, or the *loss* of the *Sieur Jumonville*. So we received and so we understood it, until to our great surprise and mortification, we found it otherwise in a literal translation. That we left our baggage and horses at the Meadows is certain; that there was not even a possibility to bring them away is equally certain, as we had every horse belonging to the camp killed or taken away during the action; so that it was impracticable to bring any thing off that our shoulders were not able to bear, and to wait there was impossible, for we had scarce three days provisions, and were seventy miles from a supply; yet, to say we came off precipitately is absolutely false; notwithstanding they did, contrary to articles, suffer their Indians to pillage our baggage, and commit all kinds of irregularity, we were with them until ten o'clock the next day; we destroyed our powder and other stores, nay, even our private baggage, to prevent its falling into their hands, as we could not bring it off. When we had got about a mile from the place of action, we missed two or three of the wounded, and sent a party back to bring them up—this is the party he speaks of. We brought them all safe off, and encamped within three miles of the Meadows. These are circumstances, I think, that make it evidently clear, that we were not very apprehensive of danger. The colours he speaks of to be left, was a large flag of immense size and weight; our regimental colours were brought off and are now in my possession. Their gasconades, and boasted clemency, must appear in the most ludicrous light to every considerate person who reads Villiers' journal;—such preparations for an attack, such vigour and intrepidity as he pretends to have conducted his march with, such revenge, as by his own account, appeared in his attack, considered, it will hardly be thought that compassion was his motive for calling a parley. But to sum up the whole, Mr. Villiers pays himself no great compliment, in saying, we were struck with a panic when matters were adjusted. We surely could not be afraid without cause, and if we had cause after capitulation, it was a reflection upon himself.

I do not doubt, but your good nature will excuse the badness of my paper, and the incoherence of my writing—think you see me in a public house in a crowd, surrounded with noise, and you hit my case. You do me particular honour in offering your friendship: I wish I may be so happy as always to merit it, and deserve your correspondence, which I should be glad to cultivate.

NOTE—No. III. See [Page 51](#).

Sir,—We your most obedient and affectionate officers, beg leave to express our great concern, at the disagreeable news we have received of your determination to resign the command of that corps, in which we have under you long served.

The happiness we have enjoyed, and the honour we have acquired together, with the mutual regard that has always subsisted between you and your officers, have implanted so sensible an affection in the minds of us all, that we can not be silent on this critical occasion.

In our earliest infancy you took us under your tuition, trained us up in the practice of that discipline, which alone can constitute good troops, from the punctual observance of which you never suffered the least deviation.

Your steady adherence to impartial justice, your quick discernment, and invariable regard to merit, wisely intended to inculcate those genuine sentiments of true honour and passion for glory, from which the greatest military achievements have been derived, first heightened our natural emulation and our desire to excel. How much we improved by those regulations and your own example, with what alacrity we have hitherto discharged our duty, with what cheerfulness we have encountered the severest toils, especially while under your particular directions, we submit to yourself, and natter ourselves that we have in a great measure answered your expectations.

Judge, then, how sensibly we must be affected with the loss of such an excellent commander, such a sincere friend, and so affable a companion. How rare is it to find those amiable qualifications blended together in one man! How great the loss of such a man! Adieu to that superiority, which the enemy have granted us over other troops, and which even the regulars and

provincials have done us the honour publicly to acknowledge! Adieu to that strict discipline and order, which you have always maintained! Adieu to that happy union and harmony, which have been our principal cement!

It gives us additional sorrow, when we reflect, to find our unhappy country will receive a loss no less irreparable than our own. Where will it meet a man so experienced in military affairs—one so renowned for patriotism, conduct, and courage? Who has so great a knowledge of the enemy we have to deal with?—who so well acquainted with their situation and strength?—who so much respected by the soldiery?—who, in short, so able to support the military character of Virginia?

Your approved love to your king and country, and your uncommon perseverance in promoting the honour and true interest of the service, convince us that the most cogent reasons only could induce you to quit it; yet we, with the greatest deference, presume to intreat you to suspend those thoughts for another year, and to lead us on to assist in the glorious work of extirpating our enemies, towards which, so considerable advances have been already made. In you, we place the most implicit confidence. Your presence only will cause a steady firmness and vigour to actuate in every breast, despising the greatest dangers, and thinking light of toils and hardships, while led on by the man we know and love.

But if we must be so unhappy as to part, if the exigencies of your affairs force you to abandon us, we beg it as our last request, that you will recommend some person most capable to command, whose military knowledge, whose honour, whose conduct, and whose disinterested principles, we may depend on.

Frankness, sincerity, and a certain openness of soul, are the true characteristics of an officer, and we flatter ourselves that you do not think us capable of saying any thing contrary to the purest dictates of our minds. Fully persuaded of this, we beg leave to assure you, that, as you have hitherto been the actuating soul of our whole corps, we shall at all times pay the most invariable regard to your will and pleasure, and will always be happy to demonstrate by our actions with how much respect and esteem we are, &c.

NOTE—No. IV. See [Page 54](#).

The delegates of the United Colonies of New Hampshire, Massachusetts Bay, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, the counties of Newcastle, Kent and Sussex on Delaware, Maryland, Virginia, North Carolina and South Carolina:

To George Washington, esquire.

We, reposing special trust and confidence in your patriotism, valour, conduct, and fidelity, do, by these presents constitute and appoint you to be general and commander-in-chief of the army of the United Colonies, and of all the forces now raised, or to be raised by them, and of all others who shall voluntarily offer their service, and join the said army for the defence of American liberty, and for repelling every hostile invasion thereof: and you are hereby invested with full power and authority to act as you shall think for the good and welfare of the service.

And we do hereby strictly charge and require all officers and soldiers under your command, to be obedient to your orders, and diligent in the exercise of their several duties.

And we also enjoin and require you to be careful in executing the great trust reposed in you, by causing strict discipline and order to be observed in the army, and that the soldiers be duly exercised and provided with all convenient necessaries.

And you are to regulate your conduct in every respect by the rules and discipline of war, (as herewith given you) and punctually to observe and follow such orders and directions from time to time as you shall receive from this or a future congress of these United Colonies, or committee of congress.

This commission to continue in force, until revoked by us, or a future congress.

NOTE—No. V. See [Page 78](#).

This letter is so truly characteristic of the writer, and treats in a manner so peculiar to himself, the measures of congress on this subject, that, although it may not be immediately connected with the Life of General Washington, the reader will not be displeased with its insertion.

Stamford, January 22, 1779.

Sir,—As General Washington has informed the congress of his motives for detaching me, it is needless to trouble you upon the subject. I am therefore only to inform you that I have collected a body of about twelve hundred men from the colony of Connecticut, whose zeal and ardour demonstrated on this occasion can not be sufficiently praised. With this body I am marching directly to New York to execute the different purposes for which I am detached. I am sensible, sir, that nothing can carry the air of greater presumption than a servant intruding his opinion unasked upon his master, but at the same time there are certain seasons when the real danger of the master may not only excuse, but render laudable, the servant's officiousness. I therefore flatter myself that the congress will receive with indulgence and lenity the opinion I shall offer. The scheme of simply disarming the tories seems to me totally ineffectual; it will only embitter their minds and add virus to their venom. They can, and will, always be supplied with fresh arms by the enemy. That of seizing the most dangerous will, I apprehend, from the vagueness of the instruction, be attended with some bad consequences, and can answer no good one. It opens so wide a door for partiality and prejudice to the different congresses and committees on the continent, that much discord and animosity will probably ensue; it being next to impossible to distinguish who are, and who are not the most dangerous. The plan of explaining to these deluded people the justice and merits of the American cause is certainly generous and humane, but I am afraid, will be fruitless. They are so riveted in their opinions, that I am persuaded should an angel descend from heaven with his golden trumpet, and ring in their ears that their conduct was criminal, he would be disregarded. I had lately myself an instance of their infatuation which, if it is not impertinent, I will relate. At Newport I took the liberty, without any authority but the conviction of necessity, to administer a very strong oath to some of the leading tories, for which liberty I humbly ask pardon of the congress. One article of this oath was to take arms in defence of their country, if called upon by the voice of the congress. To this Colonel Wanton and others flatly refused their assent; to take arms against their sovereign, they said, was too monstrous an impiety. I asked them if they had lived at the time of the revolution whether they would have been revolutionists—their answers were at first evasive, circuitous, and unintelligible, but, by fixing them down precisely to the question, I at length drew from them a positive confession that no violence, no provocation on the part of the court,

could prevail upon them to act with the continent. Such, I am afraid, is the creed and principles of the whole party great and small.—Sense, reason, argument, and eloquence, have been expended in vain; and in vain you may still argue and reason to the end of time. Even the common feelings and resentments of humanity have not aroused them, but rather with a malignant pleasure they have beheld the destruction of their fellow-citizens and relations. But I am running into declamation, perhaps impertinent and presuming, when I ought to confine myself to the scheme I submit to your consideration. It is, sir, in the first place, to disarm all the manifestly disaffected, as well of the lower as the higher class, not on the principle of putting them in a state of impotence (for this I observed before will not be the case) but to supply our troops with arms of which they stand in too great need. Secondly, to appraise their estates and oblige them to deposite at least the value of one half of their respective property in the hands of the continental congress as a security for their good behaviour. And lastly, to administer the strongest oath that can be devised to act offensively and defensively in support of the common rights. I confess that men so eaten up with bigotry, as the bulk of them appear to be, will not consider themselves as bound by this oath; particularly as it is in some measure forced, they will argue that it is by no means obligatory; but if I mistake not, it will be a sort of criterion by which you will be able to distinguish the desperate fanatics from those who are reclaimable. The former must of course be secured and carried to some interior parts of the continent where they can not be dangerous. This mode of proceeding I conceive (if any can) will be effectual—but whether it meets with the approbation or disapprobation of the congress, I most humbly conjure them not to attribute the proposal to arrogance, or self-conceit, or pragmatistical officiousness, but, at worst, to an intemperate zeal for the public service.

Notwithstanding the apparent slimness of the authority, as I am myself convinced that it is substantial, I think it my duty to communicate a circumstance to congress. I have with me here, sir, a deserter from Captain Wallace's ship before Newport. It is necessary to inform you that this Captain Wallace has the reputation of being the most imprudent and rash of all mortals—particularly when he is heated with wine, which, as reported, is a daily incident: that in these moments he blabs his most secret instructions even to the common men. This deserter, then, informs us that the captain a few days ago assembled the sailors and marines on the quarter-deck, and

assured them, by way of encouragement, that they were to proceed very soon to New York, where they were to be joined by his majesty's most loyal subjects of White Plains, Poughkeepsie, and Long Island, and at the same time bestowed abundantly his curses on the admiral and general for their dilatoriness and scandalous conduct in not availing themselves sooner of the invitation they had received from the worthy gentlemen. The congress will make what comments they please on this information, which I must repeat I thought it my duty to communicate. Upon the whole, sir, you may be assured that it is the intention of the ministerialists to take possession, and immediately, of New York. The intercepted letters, the unguarded expressions of their officers, in their interviews with ours on the lines, but above all the manifest advantages resulting to their cause from this measure, put their intention beyond dispute. With submission therefore to the wisdom of the congress, it behooves them, I should think, not to lose a moment in securing this important post, which, if in the hands of the enemy, must cut the continent in twain, and render it almost impossible for the northern and southern colonies to support each other. This crisis, when every thing is at stake, is not a time to be over complacent to the timidity of the inhabitants of any particular spot. I have now under my command a respectable force adequate to the purpose of securing the place, and purging all its environs of traitors, on which subject I shall expect with impatience the determination of the congress. Their orders I hope to receive before or immediately on my arrival.

This instant, the enclosed, express from the provincial congress of New York, was delivered into my hands, but as these gentlemen probably are not fully apprised of the danger hanging over their heads, as I have received intelligence from the camp that the fleet is sailed, and that it is necessary to urge my march, I shall proceed with one division of the forces under my command to that city. A moment's delay may be fatal. The force I shall carry with me is not strong enough to act offensively, but just sufficient to secure the city against any immediate designs of the enemy. If this is to give umbrage, if the governor and captain of the man of war are pleased to construe this step as an act of positive hostility, if they are to prescribe what number of your troops are and what number are not to enter the city, all I can say is that New York must be considered as the minister's place, and not the continent. I must now, sir, beg pardon for the length of this letter, and more so, for the presumption in offering so freely my thoughts to the

congress, from whom it is my duty simply to receive my orders, and as a servant and soldier strictly to obey; which none can do with greater ardour and affection than,

Sir,

Your most obedient humble servant,

CHARLES LEE.

To the honourable John Hancock, esquire, president of the continental congress.

NOTE—No. VI. See [Page 153](#).

THE NAMES OF THE MEMBERS WHO SUBSCRIBED THE
DECLARATION OF INDEPENDENCE WERE AS FOLLOWS, VIZ:

New Hampshire.

Josiah Bartlett,
William Whipple,
Matthew Thornton.

Massachusetts Bay.

Samuel Adams,
John Adams,
Robert Treat Paine,
Elbridge Gerry.

Rhode Island, &c.

Stephen Hopkins,
William Ellery.

Connecticut.

Roger Sherman,
Samuel Huntington,

William Williams,
Oliver Wolcott.

New York.

William Floyd,
Philip Livingston,
Francis Lewis,
Lewis Morris.

New Jersey.

Richard Stockton,
John Witherspoon,
Francis Hopkinson,
John Hart,
Abram Clark.

Pennsylvania.

Robert Morris,
Benjamin Rush,
Benjamin Franklin,
John Morton,
George Clymer,
James Smith,
George Taylor,
James Wilson,
George Ross.

Delaware.

Cesar Rodney,
George Reed.

Maryland.

Samuel Chase,
William Paca,
Thomas Stone,
Charles Carroll, *of Carrollton.*

Virginia.

George Wythe,
Richard Henry Lee,
Thomas Jefferson,
Benjamin Harrison,
Thomas Nelson, jun.
Francis Lightfoot Lee,
Carter Braxton.

North Carolina.

William Hooper,
Joseph Hughes,
John Penn.

South Carolina.

Edward Rutledge,
Thomas Heyward, jun.
Thomas Lynch, jun.
Arthur Middleton.

Georgia.

Button Gwinn,
George Walton,
Lyman Hall.

The people of the United States have taken such universal interest in the composition of this celebrated instrument as to excuse a more minute

attention to it than has been bestowed on the other cotemporaneous state papers.

Mr. Jefferson has preserved a copy of the original draft as reported by the committee, with the amendments made to it in congress, which has been published in his correspondence. The following is extracted from that work.

*Mr. Jefferson's draft as reported by
the committee.*

As amended by congress.

A declaration by the representatives of the United States of America in
general congress assembled.

When in the course of human events
it becomes necessary for one people
to dissolve the political bonds which
have connected them with another,
and to assume among the powers of
the earth the separate and equal
station to which the laws of nature
and of nature's God entitle them, a
decent respect for the opinions of
mankind requires that they should
declare the causes which impel them
to the separation.

Not altered.

We hold these truths to be self-evident, that all men are created equal; that they are endowed by their creator with *inherent and* inalienable rights; that among these are life, liberty, and the pursuit of happiness; that to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed; that whenever any form of government becomes destructive of these ends, it is the right of the people to alter or to

abolish it, and to institute newabolish it, and to institute new government, laying its foundation ongovernment, laying its foundation on such principles, and organising its such principles, and organising its powers in such form, as to them powers in such form, as to them shall seem most likely to effect their shall seem most likely to effect their safety and happiness. Prudence safety and happiness. Prudence indeed will dictate that governments indeed will dictate that governments long established should not belong established should not be changed for light and transient changed for light and transient causes; and accordingly all causes; and accordingly all experience hath shown that mankind experience hath shown that mankind are more disposed to suffer while are more disposed to suffer while evils are sufferable, than to right evils are sufferable, than to right themselves by abolishing the forms themselves by abolishing the forms to which they are accustomed. But to which they are accustomed. But when a long train of abuses and when a long train of abuses and usurpations *begun at a distinguished* usurpations pursuing invariably the *period and* pursuing invariably the same object, evinces a design to same object, evinces a design to reduce them under absolute reduce them under absolute despotism, it is their right, it is their despotism, it is their right, it is their duty to throw off such government, duty to throw off such government, and to provide new guards for their and to provide new guards for their future security. Such has been the future security. Such has been the patient sufferance of these colonies, patient sufferings of these colonies; and such is now the necessity which and such is now the necessity which constrains them to *alter* their former constrains them to *expunge* their systems of government. The history former systems of government. The of the present king of Great Britain history of the present king of Great is a history of *repeated* injuries and Britain is a history of *unremitting* usurpations, *all having* in direct injuries and usurpations *among* object the establishment of an *which appears no solitary fact to* absolute tyranny over these states. *contradict the uniform tenor of the* To prove this let facts be submitted *rest, but all have* in direct object the to a candid world.

establishment of an absolute tyranny
over these states. To prove this let
facts be submitted to a candid world,

for the truth of which we pledge a faith yet unsullied by falsehood.

He has refused his assent to laws the most wholesome and necessary for the public good.

Not altered.

He has forbidden his governors to pass laws of immediate and pressing importance, unless suspended in their operation till his assent should be obtained; and when so suspended he has utterly neglected to attend to them.

Not altered.

He has refused to pass other laws for the accommodation of large districts of people, unless those people would relinquish the right of representation in the legislature, a right inestimable to them, and formidable to tyrants only.

Not altered.

He has called together legislative bodies at places unusual, uncomfortable, and distant from the depository of their public records, for the sole purpose of fatiguing them into compliance with his measures.

Not altered.

He has dissolved representative houses repeatedly *and continually*, for opposing with manly firmness his invasions on the rights of the people.

He has dissolved representative houses repeatedly for opposing with manly firmness his invasions on the rights of the people.

He has refused for a long time after such dissolutions to cause others to be elected, whereby the legislative powers, incapable of annihilation, have returned to the people at large for their exercise, the state

Not altered.

remaining, in the mean time,
exposed to the dangers of invasion
from without and convulsions
within.

He has endeavoured to prevent the
population of these states; for that
purpose obstructing the laws for the
naturalization of foreigners, refusing
to pass others to encourage their
migrations hither, and raising the
conditions of new appropriations of
lands.

Not altered.

He has *suffered* the administration of
justice *totally to cease in some of*
these states, refusing his assent to
laws for establishing judiciary
powers.

He has *obstructed* the administration
of justice *by* refusing his assent to
laws for establishing judiciary
powers.

He has made *our* judges dependent
on his will alone for the tenure of
their offices, and the amount and
payment of their salaries.

He has made judges dependent on
his will alone for the tenure of their
offices, and the amount and payment
of their salaries.

He has erected a multitude of new
offices, *by a self-assumed power*,
and sent hither swarms of new
officers to harass our people and eat
out their substance

He has erected a multitude of new
offices, and sent hither swarms of
new officers to harass our people
and eat out their substance.

He has kept among us in times of
peace standing armies *and ships of*
war without the consent of our
legislatures.

He has kept among us in times of
peace standing armies without the
consent of our legislatures.

He has affected to render the
military independence of and
superior to the civil power.

Not altered.

He has combined with others to
subject us to a jurisdiction foreign to
our constitutions and our

He has combined with others to
subject us to a jurisdiction foreign to
our constitutions and

unacknowledged by our laws, giving unacknowledged by our laws, giving
 his assent to their acts of pretended his assent to their acts of pretended
 legislation for quartering large legislation for quartering large
 bodies of armed troops among us; bodies of armed troops among us;
 for protecting by a mock trial from for protecting by a mock trial from
 punishment for any murders which punishment for any murders which
 they should commit on the they should commit on the
 inhabitants of these states; for inhabitants of these states; for
 cutting off our trade with all parts of cutting off our trade with all parts of
 the world; for imposing taxes on us the world; for imposing taxes on us
 without our consent; for depriving us without our consent; for depriving us
 of the benefits of trial by jury; for *in many cases* of the benefits of trial
 transporting us beyond seas to be by jury; for transporting us beyond
 tried for pretended offences; for seas to be tried for pretended
 abolishing the free system of English offences; for abolishing the free
 laws in a neighbouring province, system of English laws in a
 establishing therein an arbitrary neighbouring province, establishing
 government, and enlarging its therein an arbitrary government, and
 boundaries, so as to render it at once enlarging its boundaries, so as to
 an example and fit instrument for render it at once an example and fit
 introducing the same absolute rule instrument for introducing the same
 into these *states*; for taking away our absolute rule into these *colonies*; for
 charters, abolishing our most taking away our charters, abolishing
 valuable laws, and altering our most valuable laws, and altering
 fundamentally the forms of our fundamentally the forms of our
 governments; for suspending our governments; for suspending our
 own legislatures, and declaring own legislatures, and declaring
 themselves invested with power to themselves invested with power to
 legislate for us in all cases legislate for us in all cases
 whatsoever.

He has abdicated government here, *He has abdicated government here*
withdrawing his governors and *by declaring us out of his protection*
declaring us out of his allegiance *and waging war against us.*
and protection.

He has plundered our seas, ravaged
 our coasts, burnt our towns and
 destroyed the lives of our people.

Not altered.

He is at this time transporting large armies of foreign mercenaries to complete the works of death, desolation and tyranny already begun with circumstances of cruelty and perfidy *scarcely paralleled in the annals of the most barbarous ages and totally unworthy the head of a civilized nation.*

He has constrained our fellow-citizens taken captive on the high seas to bear arms against their country, to become the executioners of their friends and brethren, or to fall themselves by their hands.

Not altered.

He has endeavoured to *bring on the* inhabitants of the frontiers the merciless Indian savages whose known rule of warfare is an undistinguished destruction of all ages, sexes and conditions *of existence.*

He has excited treasonable insurrections of our fellow-citizens, with the allurements of forfeiture and confiscation of our property.

Struck out.

He has waged cruel war against human nature itself, violating its most sacred rights of life and liberty in the persons of a distant people who never offended him, captivating and carrying them into slavery in another hemisphere, or to incur miserable death in their transportation thither. This piratical warfare, the opprobrium of

Struck out.

INFIDEL powers, is the warfare of the CHRISTIAN king of Great Britain. Determined to keep open a market where MEN should be bought and sold, he has prostituted his negative for suppressing every legislative attempt to prohibit or to restrain this execrable commerce. And that this assemblage of horrors might want no fact of distinguished die, he is now exciting those very people to rise in arms among us, and to purchase that liberty of which he has deprived them, by murdering the people on whom he also obtruded them; thus paying off former crimes committed against the LIBERTIES of one people with crimes which he urges them to commit against the LIVES of another.

In every stage of these oppressions we have petitioned for redress in the most humble terms; our repeated petitions have been answered only by repeated injuries.

Not altered.

A prince whose character is thus marked by every act which may define a tyrant is unfit to be the ruler of a people *who mean to be free*.

Future ages will scarcely believe A prince whose character is thus marked by every act which may define a tyrant is unfit to be the ruler of a free people.

a foundation so broad and so undisguised for tyranny over a people fostered and fixed in principles of freedom.

Nor have we been wanting in attention to our British brethren. We have warned them from time to time of attempts by their legislature to extend a jurisdiction over *these our states*. We have reminded them of the circumstances of our emigration and settlement here; *no one of which* we *could warrant so strange a pretension; these were effected at the expense of our own blood and treasure, unassisted by the wealth or the strength of Great Britain; that in which would inevitably interrupt our constituting indeed our several forms of government, we had adopted one common king; thereby laying a foundation for perpetual league and amity with them; but that submission to their parliament was no part of our constitution, nor ever in idea if history may be credited;* in peace friends.

and we appealed to their native justice and magnanimity, as well as to the ties of our common kindred, to disavow these usurpations which were likely to interrupt our connexion and correspondence. They too have been deaf to the voice of justice and of consanguinity, and when occasions have been given them by the regular course of their laws, of removing from their councils the disturbers of our harmony, they have by their free election re-established them in power. At this very time too, they are permitting their chief magistrate to

send over not only soldiers of our common blood, but Scotch and foreign mercenaries to invade and destroy us. These facts have given the last stab to agonizing affection, and manly spirit bids us to renounce for ever these unfeeling brethren. We must endeavour to forget our former love for them, and hold them as we hold the rest of mankind, enemies in war, in peace friends. We might have been a free and a great people together; but a communication of grandeur and of freedom, it seems, is below their dignity. Be it so, since they will have it. The road to happiness and to glory is open to us too. We will tread it apart from them, and acquiesce in the necessity which denounces our eternal separation.

We, therefore, the representatives of the United States of America in general congress assembled, do, in the name and by the authority of the good people of these states, *reject the world for the rectitude of our and renounce all allegiance and intentions,* do in the name, and by subjection to the kings of Great Britain, and all others who may solemnly publish and declare that hereafter claim by, through or under these united colonies are and of right them; we utterly dissolve all political connexion which may heretofore states; that they are absolved from have subsisted between us and the all allegiance to the British crown, people or parliament of Great Britain; and finally we do assert and between them and the state of Great declare these colonies to be free and Britain is, and ought to be, totally independent states, and that as free dissolved; and that as free and and independent states, they have independent states they have full

full power to levy war, conclude peace, contract alliances, establish commerce, and to do all other acts and things which independent states may of right do.

And for the support of this declaration, *with a firm reliance on the protection of divine providence*, we mutually pledge to each other our lives, our fortunes, and our sacred honour.

The words expunged from the original draft are distinguished by italics, as are the words that were introduced by congress.

NOTE—No. VII. See [Page 229](#).

"My reasons for this measure," said the Commander-in-chief in his letter to General Lee, ordering him to cross the Hudson, "and which I think must have weight with you, are, that the enemy are evidently changing the seat of war to this side of the North river; that this country, therefore, will expect the continental army to give what support they can; and, if disappointed in this, will cease to depend upon, or support a force by which no protection is given to them. It is, therefore, of the utmost importance that at least an appearance of force should be made, to keep this state in connexion with the others. If that should not continue, it is much to be feared that its influence on Pennsylvania would be very considerable; and the public interests would be more and more endangered. Unless, therefore, some new event should occur, or some more cogent reason present itself, I would have you move over by the easiest and best passage. I am sensible your numbers will not be large, and that the movement may not perhaps be agreeable to your troops. As to the first, report will exaggerate them, and there will be preserved the appearance of an army, which will, at least, have the effect of encouraging the desponding here; and, as to the other, you will doubtless represent to them, that in duty and gratitude, their service is due wherever the enemy may make the greatest impression, or seem to intend to do so."

NOTE—No. VIII. See [Page 268](#).

In a postscript, it is stated, that an accurate return could not be obtained, but that from the best estimate he could form, the whole force in Jersey fit for duty was under three thousand; all of whom, except nine hundred and eighty-one, were militia, who stood engaged only until the last of that month. The continental troops under inoculation, including their attendants, amounted to about one thousand.

In a letter of the sixth of March to Governor Trumbull, calling on the state of Connecticut for two thousand militia to be marched to Peekskill, after complaining of the militia he had called from the southern states, who came and went as their own caprice might direct, he says, "I am persuaded, from the readiness with which you have ever complied with all my demands, that you will exert yourself in forwarding the aforementioned number of men, upon my bare request. But I hope you will be convinced of the necessity of the demand, when I tell you, in confidence, that after the 15th of this month, when the time of General Lincoln's militia expires, I shall be left with the remains of five Virginia regiments, not amounting to more than as many hundred men, and parts of two or three other continental battalions, all very weak. The remainder of the army will be composed of small parties of militia from this state and Pennsylvania, on whom little dependence can be put, as they come and go when they please. I have issued peremptory orders to every colonel in the regular service, to send in what men he has recruited, even if they amount to but one hundred to a regiment: if they would do this, it would make a considerable force upon the whole. The enemy must be ignorant of our numbers and situation, or they would never suffer us to remain unmolested; and I almost tax myself with imprudence in committing the secret to paper; not that I distrust you, of whose inviolable attachment I have had so many proofs; but for fear the letter should by any accident fall into other hands than those for which it is intended."

NOTE—No. IX. See [Page 382](#).

Justice to the unfortunate demands that an extract from the correspondence between Generals Burgoyne and Gates on this subject should be inserted.

The British general had complained of the harsh treatment experienced by the provincial prisoners taken at Bennington, and requested that a surgeon from his army should be permitted to visit the wounded; and that he might be allowed to furnish them with necessaries and attendants. "Duty and principle," he added, "make me a public enemy to the Americans, who have taken up arms; but I seek to be a generous one; nor have I the shadow of resentment against any individual, who does not induce it by acts derogatory to those maxims, upon which all men of honour think alike." In answer to this letter, General Gates, who had just taken command of the American army, said, "that the savages of America should, in their warfare, mangle and scalp the unhappy prisoners who fall into their hands is neither new nor extraordinary, but that the famous Lieutenant General Burgoyne, in whom the fine gentleman is united with the soldier and the scholar, should hire the savages of America to scalp Europeans, and the descendants of Europeans; nay more, that he should pay a price for each scalp so barbarously taken, is more than will be believed in Europe, until authenticated facts shall, in every gazette, confirm the truth of the horrid tale.

"Miss M'Crea, a young lady, lovely to the sight, of virtuous character, and amiable disposition, engaged to an officer of your army, was, with other women and children, taken out of a house near fort Edward, carried into the woods, and there scalped and mangled in a most shocking manner. Two parents with their six children, were all treated with the same inhumanity, while quietly resting in their once happy and peaceful dwelling. The miserable fate of Miss M'Crea was particularly aggravated, by being dressed to receive her promised husband; but met her murderer employed by you. Upwards of one hundred men, women and children, have perished by the hands of the ruffians to whom, it is asserted, you have paid the price of blood."

To this part of his letter, General Burgoyne replied, "I have hesitated, sir, upon answering the other paragraphs of your letter. I disdain to justify myself against the rhapsodies of fiction and calumny, which from the first of this contest, it has been an unvaried American policy to propagate, but

which no longer imposes on the world. I am induced to deviate from this general rule, in the present instance, lest my silence should be construed an acknowledgment of the truth of your allegations, and a pretence be thence taken for exercising future barbarities by the American troops.

"By this motive, and upon this only, I condescend to inform you, that I would not be conscious of the acts you presume to impute to me, for the whole continent of America, though the wealth of worlds was in its bowels, and a paradise upon its surface.

"It has happened, that all my transactions with the Indian nations, last year and this, have been clearly heard, distinctly understood, accurately minuted, by very numerous, and in many parts, very unprejudiced persons. So immediately opposite to the truth is your assertion that I have paid a price for scalps, that one of the first regulations established by me at the great council in May, and repeated and enforced, and invariably adhered to since, was, that the Indians should receive compensation for prisoners, because it would prevent cruelty; and that not only such compensation should be withheld, but a strict account demanded for scalps. These pledges of conquest, for such you well know they will ever esteem them, were solemnly and peremptorily prohibited to be taken from the wounded, and even the dying, and the persons of aged men, women, children, and prisoners, were pronounced sacred, even in an assault.

"In regard to Miss M'Crea, her fall wanted not the tragic display you have laboured to give it, to make it as sincerely abhorred and lamented by me, as it can be by the tenderest of her friends. The fact was no premeditated barbarity. On the contrary, two chiefs who had brought her off for the purpose of security, not of violence to her person, disputed which should be her guard, and in a fit of savage passion in one, from whose hands she was snatched, the unhappy woman became the victim. Upon the first intelligence of this event, I obliged the Indians to deliver the murderer into my hands, and though to have punished him by our laws, or principles of justice, would have been perhaps unprecedented, he certainly should have suffered an ignominious death, had I not been convinced from my circumstances and observation, beyond the possibility of a doubt, that a pardon under the terms which I presented, and they accepted, would be more efficacious than an execution, to prevent similar mischiefs.

"The above instance excepted, your intelligence respecting the cruelty of the Indians is false.

"You seem to threaten me with European publications, which affect me as little as any other threats you could make; but in regard to American publications, whether your charge against me, which I acquit you of believing, was penned *from* a gazette, or *for* a gazette, I desire and demand of you, as a man of honour, that should it appear in print at all this answer may follow it."

NOTE—No. X. See [Page 405](#).

Lord Suffolk, secretary of state, contended for the employment of Indians, in the war. "Besides its policy and necessity," his lordship said, "that the measure was also allowable on principle, for that it was perfectly justifiable to use all the means that God and nature had put into our hands."

This moving the indignation of Lord Chatham, he suddenly rose, and gave full vent to his feelings in one of the most extraordinary bursts of eloquence that the pen of history has recorded: "I am astonished," exclaimed his lordship, "shocked to hear such principles confessed; to hear them avowed in this house or even this country. My lords, I did not intend to have encroached again on your attention, but I can not repress my indignation. I feel myself impelled to speak. My lords, we are called upon as members of this house, as men, as christians, to protest against such horrible barbarity. That God and nature had put into our hands! what ideas of God and nature that noble lord may entertain I know not, but I know that such detestable principles are equally abhorrent to religion and humanity. What, to attribute the sacred sanction of God and nature to the massacres of the Indian scalping knife! to the cannibal savage, torturing, murdering, devouring, drinking the blood of his mangled victims! such notions shock every precept of morality, every feeling of humanity, every sentiment of honour. These abominable principles and this more abominable avowal of them, demand the most decisive indignation. I call upon that right reverend and this most learned bench to vindicate the religion of their God, to support the justice of their country. I call upon the bishops to interpose the unsullied sanctity of their lawn, upon the judges to interpose the purity of their ermine, to save us from this pollution. I call upon the honour of your

lordships, to reverence the dignity of your ancestors, and to maintain your own. I call upon the spirit and humanity of my country, to vindicate the national character. I invoke the genius of the constitution. From the tapestry that adorns these walls, the immortal ancestor of this noble lord, frowns with indignation at the disgrace of his country. In vain did he defend the liberty, and establish the religion of Britain against the tyranny of Rome, if these worse than popish cruelties and inquisitorial practices are endured among us. To send forth the merciless cannibal thirsting for blood!—against whom?—Your protestant brethren—to lay waste their country, to desolate their dwellings, and extirpate their race and name, by the aid and instrumentality of these horrible hell-hounds of war! Spain can no longer boast preeminence of barbarity. She armed herself with blood-hounds to extirpate the wretched natives of Mexico, but we more ruthless, loose these dogs of war against our countrymen in America, endeared to us by every tie that should sanctify humanity. My lords, I solemnly call upon your lordships, and upon every order of men in the state, to stamp upon this infamous procedure the indelible stigma of the public abhorrence. More particularly I call upon the holy prelates of our religion to do away this iniquity; let them perform a lustration to purify their country from this deep and deadly sin. My lords, I am old and weak, and at present unable to say more, but my feelings and indignation were too strong to have said less. I could not have slept this night in my bed, nor reposed my head upon my pillow, without giving this vent to my eternal abhorrence of such enormous and preposterous principles."

NOTE—No. XI. See [Page 414](#).

The following are the letters which passed between the two generals on this subject:

Albany, December 18, 1777.

Sir,—I shall not attempt to describe what, as a private gentleman, I can not help feeling, on representing to my mind the disagreeable situation which confidential letters, when exposed to public inspection, may place an unsuspecting correspondent in; but, as a public officer, I conjure your excellency, to give me all the assistance you can, in tracing out the author of the infidelity, which put extracts from General Conway's letters to me into

your hands. Those letters have been stealingly copied; but, which of them, when, or by whom, is to me, as yet, an unfathomable secret.

There is not one officer in my suite, or amongst those who have a free access to me, upon whom I could, with the least justification to myself, fix the suspicion; and yet, my uneasiness may deprive me of the usefulness of the worthiest men. It is, I believe, in your excellency's power to do me, and the United States, a very important service, by detecting a wretch who may betray me, and capitally injure the very operations under your immediate direction. For this reason, sir, I beg your excellency will favour me with the proofs you can procure to that effect. But, the crime being, eventually so important, that the least loss of time may be attended with the worst consequences; and, it being unknown to me whether the letter came to you from a member of congress, or from an officer, I shall have the honour of transmitting a copy of this to the president, that congress may, in concert with your excellency, obtain, as soon as possible, a discovery which so deeply affects the safety of the states. Crimes of that magnitude ought not to remain unpunished.

I have the honour to be,
Sir, With the greatest respect,
Your excellency's most humble and most obedient servant,
HORATIO GATES.

His excellency General Washington.

Valley Forge, January 4, 1778.

Sir,—Your letter of the 18th ultimo, came to my hands a few days ago, and to my great surprise informed me, that a copy of it had been sent to congress, for what reason, I find myself unable to account; but, as some end doubtless was intended to be answered by it, I am laid under the disagreeable necessity of returning my answer through the same channel, lest any member of that honourable body should harbour an unfavourable suspicion of my having practised some indiscreet means to come at the contents of the confidential letters between you and General Conway.

I am to inform you then, that ——, on his way to congress in the month of October last, fell in with Lord Stirling at Reading: and, not in confidence that I ever understood, informed his aid-de-camp, Major M'Williams, that

General Conway had written thus to you, "heaven has been determined to save your country, or a weak general and bad counsellors[106] would have ruined it." Lord Stirling, from motives of friendship, transmitted the account with this remark. "The enclosed was communicated by ——to Major M'Williams; such wicked duplicity of conduct I shall always think it my duty to detect."

In consequence of this information, and without having any thing more in view, than merely to show that gentleman that I was not unapprised of his intriguing disposition, I wrote him a letter in these words.

"Sir, a letter which I received last night contained the following paragraph.

"In a letter from General Conway to General Gates, he says, heaven has been determined to save your country, or a weak general and bad counsellors would have ruined it. I am, sir, &c."

Neither the letter, nor the information which occasioned it, was ever, directly, or indirectly, communicated by me to a single officer in this army (out of my own family) excepting the Marquis de Lafayette, who having been spoken to on the subject, by General Conway, applied for, and saw, under injunctions of secrecy, the letter which contained this information; so desirous was I of concealing every matter that could, in its consequences, give the smallest interruption to the tranquillity of this army, or afford a gleam of hope to the enemy by dissensions therein.

Thus, sir, with an openness and candour, which I hope will ever characterize and mark my conduct, have I complied with your request. The only concern I feel upon the occasion, finding how matters stand, is, that in doing this, I have necessarily been obliged to name a gentleman, who, I am persuaded, (although I never exchanged a word with him upon the subject) thought he was rather doing an act of justice, than committing an act of infidelity; and sure I am, that, until Lord Stirling's letter came to my hands, I never knew that General Conway, (whom I viewed in the light of a stranger to you) was a correspondent of yours, much less did I suspect that I was the subject of your confidential letters. Pardon me then for adding, that, so far from conceiving that the safety of the states can be affected, or in the smallest degree injured, by a discovery of this kind, or that I should be called upon in such solemn terms to point out the author, that I considered the information as coming from yourself, and given with a friendly view to

forewarn, and consequently forearm me, against a secret enemy, or in other words, a dangerous incendiary, in which character sooner or later, this country will know General Conway. But, in this, as well as other matters of late, I have found myself mistaken. I am, sir,

Your most obedient servant,
GEO: WASHINGTON.

To Major General Gates.

NOTE—No. XII. See [Page 417](#).

During the existence of this faction, an attempt appears to have been made to alienate the affections of the leading political personages in the states from the commander-in-chief. The following letters exhibit a very unsuccessful effort of this sort, which was made on Governor Henry, of Virginia, by a gentleman not supposed to be a member of congress from that state.

Williamsburgh, February 20, 1778.

Dear Sir,—You will no doubt be surprised at seeing the enclosed letter, in which the encomiums bestowed on me are as undeserved, as the censures aimed at you are unjust. I am sorry there should be one man who counts himself my friend, who is not yours.

Perhaps I give you needless trouble in handing you this paper. The writer of it may be too insignificant to deserve any notice. If I knew this to be the case, I should not have intruded on your time, which is so precious. But there may possibly be some scheme or party forming to your prejudice. The enclosed leads to such a suspicion. Believe me, sir, I have too high a sense of the obligations America has to you, to abet or countenance so unworthy a proceeding. The most exalted merit hath ever been found to attract envy. But I please myself with the hope, that the same fortitude and greatness of mind which have hitherto braved all the difficulties and dangers inseparable from your station, will rise superior to every attempt of the envious partisan.

I really can not tell who is the writer of this letter, which not a little perplexes me. The hand writing is altogether strange to me.

To give you the trouble of this, gives me pain. It would suit my inclination better, to give you some assistance in the great business of the war. But I will not conceal any thing from you, by which you may be affected, for I really think your personal welfare and the happiness of America are intimately connected. I beg you will be assured of that high regard and esteem with which I ever am,

Dear sir,

Your affectionate friend and very humble servant,

P. HENRY.

His excellency General Washington.

(Letter enclosed in the preceding.)

Yorktown, January 12, 1778.

Dear Sir,—The common danger of our country first brought you and me together. I recollect with pleasure the influence of your conversation and eloquence upon the opinions of this country in the beginning of the present controversy. You first taught us to shake off our idolatrous attachment to royalty, and to oppose its encroachments upon our liberties with our very lives. By these means you saved us from ruin. The independence of America is the offspring of that liberal spirit of thinking, and acting, which followed the destruction of the sceptres of kings and the mighty power of Great Britain.

But, sir, we have only passed the Red Sea. A dreary wilderness is still before us, and unless a Moses or a Joshua are raised up in our behalf, we must perish before we reach the promised land. We have nothing to fear from our enemies on the way. General Howe, it is true, has taken Philadelphia; but he has only changed his prison. His dominions are bounded on all sides by his outsentries. America can only be undone by herself. She looks up to her councils and arms for protection; but alas! what are they? her representation in congress dwindled to only twenty-one members—her Adams—her Wilson—her Henry, are no more among them. Her councils weak—and partial remedies applied constantly for universal diseases. Her army—what is it? a major general belonging to it called it a few days ago in my hearing a *mob*. Discipline unknown or *wholly* neglected. The quartermaster and commissary's departments filled with

idleness, ignorance and peculation—our hospitals crowded with six thousand sick, but half provided with necessaries or accommodations, and more dying in them in one month, than perished in the field during the whole of the last campaign.

The money depreciating without any effectual measures being taken to raise it—the country distracted with the Don Quixote attempts to regulate the prices of provisions, an *artificial* famine created by it, and a *real* one dreaded from it. The spirit of the people failing through a more intimate acquaintance with the causes of our misfortunes—many submitting daily to General Howe, and more wishing to do it, only to avoid the calamities which threaten our country. But is our case desperate? by no means. We have wisdom, virtue, and strength *enough* to save us if they could be called into action. The northern army has shown us what Americans are capable of doing with A GENERAL at their head. The spirit of the southern army is no ways inferior to the spirit of the northern. A Gates—a Lee, or a Conway would, in a few weeks, render them an irresistible body of men. The last of the above officers has accepted of the new office of inspector general of our army, in order to reform abuses—but the remedy is only a palliative one. In one of his letters to a friend he says, "a great and good God hath decreed America to be free—or the —— and weak counsellors would have ruined her long ago"—you may rest assured of *each* of the facts related in this letter. The author of it is one of your Philadelphia friends. A hint of his name, if found out by the hand writing, must not be mentioned to your most intimate friend. Even the letter *must* be thrown in the fire. But some of its contents ought to be made public in order to awaken, enlighten, and alarm our country. I rely upon your prudence, and am, dear sir, with my usual attachment to *you*, and to our beloved independence,

Yours, sincerely.

His excellency P. Henry.

Williamsburgh, March 5, 1778.

Dear Sir,—By an express which Colonel Finnie sent to camp, I enclosed you an anonymous letter, which I hope got safe to hand. I am anxious to hear something that will serve to explain the strange affair, which I am now informed is taken up, respecting you. Mr. Custis has just paid us a visit, and by him I learn sundry particulars concerning General Mifflin, that much

surprise me. It is very hard to trace the schemes and windings of the enemies to America. I really thought that man its friend: however, I am too far from him to judge of his present temper.

While you face the armed enemies of our liberty in the field, and, by the favour of God, have been kept unhurt, I trust your country will never harbour in her bosom the miscreant who would ruin her best supporter. I wish not to flatter; but when arts unworthy honest men are used to defame and traduce you, I think it not amiss, but a duty, to assure you of that estimation in which the public hold you. Not that I think any testimony I can bear, is necessary for your support, or private satisfaction, for a bare recollection of what is past must give you sufficient pleasure in every circumstance of life. But I can not help assuring you, on this occasion, of the high sense of gratitude which all ranks of men, in this your native country, bear to you. It will give me sincere pleasure to manifest my regards, and render my best services to you or yours. I do not like to make a parade of these things, and I know you are not fond of it; however, I hope the occasion will plead my excuse.

The assembly have at length empowered the executive here to provide the Virginia troops serving with you, with clothes, &c. I am making provision accordingly, and hope to do something towards it. Every possible assistance from government is afforded the commissary of provisions, whose department has not been attended to. It was taken up by me too late to do much. Indeed the load of business devolved on me is too great to be managed well. A French ship, mounting thirty guns, that has been long chased by the English cruisers, has got into Carolina, as I hear last night.

Wishing you all possible felicity, I am, my dear sir,

Your ever affectionate friend,

and very humble servant,

P. HENRY.

His excellency General Washington.

Valley Forge, March 27, 1778.

Dear Sir,—About eight days past, I was honoured with your favour of the 20th ultimo.

Your friendship, sir, in transmitting me the anonymous letter you had received, lays me under the most grateful obligations; and, if any thing could give a still further claim to my acknowledgments, it is the very polite and delicate terms in which you have been pleased to make the communication.

I have ever been happy in supposing that I held a place in your esteem, and the proof of it you have afforded on this occasion makes me peculiarly so. The favourable light in which you hold me is truly flattering, but I should feel much regret if I thought the happiness of America so intimately connected with my personal welfare, as you so obligingly seem to consider it. All I can say, is, that she has ever had, and, I trust, she ever will have, my honest exertions to promote her interest. I can not hope that my services have been the best; but my heart tells me that they have been the best that I could render.

That I may have erred in using the means in my power for accomplishing the objects of the arduous, exalted station with which I am honoured, I can not doubt; nor do I wish my conduct to be exempted from the reprehension it may deserve. Error is the portion of humanity, and to censure it, whether committed by this or that public character, is the prerogative of freemen....

This is not the only secret insidious attempt that has been made to wound my reputation. There have been others equally base, cruel, and ungenerous; because conducted with as little frankness and proceeding from views perhaps as personally interested.

I am, dear sir, &c.

GEO: WASHINGTON.

To his excellency Patrick Henry, esquire, Governor of Virginia.

Camp, March 28, 1778.

Dear Sir,—Just as I was about to close my letter of yesterday, your favour of the fifth instant came to hand.

I can only thank you again, in the language of the most undissembled gratitude, for your friendship: and assure you, the indulgent disposition which Virginia in particular, and the states in general entertain towards me, gives me the most sensible pleasure. The approbation of my country is what I wish; and, as far as my abilities and opportunity will permit, I hope I shall

endeavour to deserve it. It is the highest reward to a feeling mind; and happy are they who so conduct themselves as to merit it.

The anonymous letter with which you were pleased to favour me, was written by ——, so far as I can judge from a similitude of hands....

My caution to avoid any thing that could injure the service, prevented me from communicating, except to a very few of my friends, the intrigues of a faction which I know was formed against me, since it might serve to publish our internal dissensions; but their own restless zeal to advance their views has too clearly betrayed them, and made concealment on my part fruitless. I can not precisely mark the extent of their views, but it appeared in general, that General Gates was to be exalted on the ruin of my reputation and influence. This I am authorized to say from undeniable facts in my own possession, from publications the evident scope of which could not be mistaken, and from private detractions industriously circulated. ——, it is commonly supposed, bore the second part in the cabal; and General Conway, I know, was a very active and malignant partisan; but I have good reason to believe that their machinations have recoiled most sensibly upon themselves. I am, dear sir, &c.

GEO: WASHINGTON.

His excellency Patrick Henry, esquire, Gov. of Virginia.

The following extract is taken from a letter written about the same time to a gentleman in New England, who had expressed some anxious apprehensions occasioned by a report that the commander-in-chief had determined to resign his station in the army:

"I can assure you that no person ever heard me drop an expression that had a tendency to resignation. The same principles that led me to embark in the opposition to the arbitrary claims of Great Britain, operate with additional force at this day; nor is it my desire to withdraw my services while they are considered of importance in the present contest; but to report a design of this kind, is among the arts, which those who are endeavouring to effect a change are practising to bring it to pass. I have said, and I still do say, that there is not an officer in the service of the United States, that would return to the sweets of domestic life with more heartfelt joy than I should. But I would have this declaration accompanied by these sentiments, that while the public are satisfied with my endeavours, I mean not to shrink from the cause: but the moment her voice, not that of faction, calls upon me to resign, I shall do it with as much pleasure as ever the wearied traveller retired to rest."

NOTE—No. XIII. See [Page 456](#).

The following is an extract of a letter addressed on this occasion by General Washington to congress:

"Though I sincerely commiserate the misfortune of General Lee, and feel much for his present unhappy situation; yet, with all possible deference to the opinion of congress, I fear that their resolutions will not have the desired effect, are founded in impolicy, and will, if adhered to, produce consequences of an extensive and melancholy nature.

"Retaliation is certainly just, and sometimes necessary, even where attended with the severest penalties: but when the evils which may, and must result from it, exceed those intended to be redressed, prudence and policy require that it should be avoided.

"Having premised thus much, I beg leave to examine the justice and expediency of it in the instance before us. From the best information I have been able to obtain, General Lee's usage has not been so disgraceful and dishonourable, as to authorize the treatment decreed to these gentlemen, was it not prohibited by many other important considerations. His confinement, I believe, has been more rigorous than has been generally experienced by the

rest of our officers, or those of the enemy who have been in our possession; but if the reports received on that head be true, he has been provided with a decent apartment, and with most things necessary to render him comfortable. This is not the case with one of the officers comprehended in the resolves, if his letter, of which a copy is transmitted, deserves your credit. Here retaliation seems to have been prematurely begun, or to speak with more propriety, severities have been, and are exercised towards Colonel Campbell, not justified by any that General Lee has yet received.

"In point of policy, and under the present situation of our affairs, most surely the doctrine can not be supported. The balance of prisoners is greatly against us, and a general regard to the happiness of the whole should mark our conduct. Can we imagine that our enemies will not mete the same punishments, the same indignities, the same cruelties, to those belonging to us in their possession, that we impose on theirs? why should we suppose them to have more humanity than we possess ourselves? or why should an ineffectual attempt to relieve the distresses of one brave man, involve many more in misery? At this time, however disagreeable the fact may be, the enemy have in their power, and subject to their call, near three hundred officers belonging to the army of the United States. In this number there are some of high rank, and the most of them are men of bravery and of merit. The quota of theirs in our hands bears no proportion, not being more than fifty. Under these circumstances, we certainly should do no act to draw upon the gentlemen belonging to us, and who have already suffered a long captivity, greater punishments than they now experience. If we should, what will be their feelings, and those of their numerous and extensive connexions? Suppose the treatment prescribed for the Hessian officers should be pursued, will it not establish what the enemy have been aiming to effect by every artifice, and the grossest misrepresentations? I mean, an opinion of our enmity towards them, and of the cruel conduct they experience when they fall into our hands; a prejudice which we, on our part, have heretofore thought it politic to suppress, and to root out by every act of kindness and of lenity. It certainly will. The Hessians will hear of the punishments with all the circumstances of heightened exaggeration, and would feel the injury without investigating the cause, or reasoning upon the justice of it. The mischiefs which may, and must inevitably flow from the execution of the resolves, appear to be endless and innumerable."

END OF VOLUME II.

FOOTNOTES

[1] See [note No. I.](#) at the end of the volume.

[2] With an unaffected modesty which the accumulated honours of his after life could never impair, Major Washington, though the most distinguished military man then in Virginia, declined being a candidate for the command of this regiment. The following letter written on the occasion to Colonel Richard Corbin, a member of the council, with whom his family was connected by the ties of friendship and of affinity, was placed in the hands of the author by Mr. Francis Corbin, a son of that gentleman.

"Dear Sir,—In a conversation at Green Spring you gave me some room to hope for a commission above that of a Major, and to be ranked among the chief officers of this expedition. The command of the whole forces is what I neither look for, expect, or desire; for I must be impartial enough to confess, it is a charge too great for my youth and inexperience to be intrusted with. Knowing this, I have too sincere a love for my country, to undertake that which may tend to the prejudice of it. But if I could entertain hopes that you thought me worthy of the post of Lieutenant-colonel, and would favour me so far as to mention it at the appointment of officers, I could not but entertain a true sense of the kindness.

"I flatter myself that under a skilful commander, or man of sense, (which I most sincerely wish to serve under,) with my own application and diligent study of my duty, I shall be able to conduct my steps without censure, and in time, render myself worthy of the promotion that I shall be favoured with now."

The commission he solicited was transmitted to him by Mr. Corbin, in the following laconic letter:

"Dear George,—I inclose you your commission. God prosper you with it.

"Your friend, RICHARD CORBIN."

[3] See [note No. II.](#) at the end of the volume.

[4] To the vote of thanks, the officers made the following reply:

"We, the officers of the Virginia regiment, are highly sensible of the particular mark of distinction with which you have honoured us, in returning your thanks for our behaviour in the late action; and can not help testifying our

grateful acknowledgments, for your '*high sense*' of what we shall always esteem a duty to our country and the best of kings.

"Favoured with your regard, we shall zealously endeavour to deserve your applause, and, by our future actions, strive to convince the worshipful house of burgesses, how much we esteem their approbation, and, as it ought to be, regard it as the voice of our country.

"Signed for the whole corps,

"GEO: WASHINGTON."

[5] Dr. Craik.

[6] In another letter, he says, "We have been beaten, shamefully beaten—shamefully beaten by a handful of men, who only intended to molest and disturb our march! Victory was their smallest expectation! But see the wondrous works of Providence, the uncertainty of human things! We, but a few moments before, believed our numbers almost equal to the force of Canada; they only expected to annoy us. Yet, contrary to all expectation and human probability, and even to the common course of things, we were totally defeated, and have sustained the loss of every thing."

[7] In a sermon preached not long after the defeat of General Braddock, the Rev. Mr. Davies, speaking of that disaster, and of the preservation of Colonel Washington, said: "I can not but hope that Providence has preserved that youth to be the saviour of this country." These words were afterwards considered as prophetic; and were applied by his countrymen to an event very opposite to that which was contemplated by the person who uttered them.

[8] See [note No. III.](#) at the end of the volume.

[9] See [note No. IV.](#) at the end of the volume.

[10] It is in the following terms:

"Gentlemen,—Your kind congratulations on my appointment and arrival, demand my warmest acknowledgments, and will be ever retained in grateful remembrance. In exchanging the enjoyments of domestic life for the duties of my present honourable but arduous situation, I only emulate the virtue and public spirit of the whole Province of Massachusetts, which, with a firmness and patriotism without example, has sacrificed all the comforts of social and political life, in support of the rights of mankind, and the welfare of our common country. My highest ambition is to be the happy instrument of vindicating these rights, and to see this devoted Province again restored to peace, liberty, and safety.

"GEO: WASHINGTON."

[11] A circumstance attending this transaction, will furnish some idea of the difficulties encountered by those who then conducted the affairs of America. All-important to the general safety as was the speedy replenishment of the magazines of that army which lay encamped in front of the enemy, the committee of Elizabethtown was under the necessity of transmitting this powder secretly, lest the people of the neighbourhood should seize and detain it for their own security.

[12] The General was under the necessity of carrying on a direct correspondence, not only with the several colonial governments, but with the committees of all the important towns and some inferior places.

[13] It is strange that an army should have been formed without such an officer.

[14] The agents of congress had the address to purchase all the powder on the coast of Africa, and that within the British forts, without attracting notice; and to seize the magazine in the island of Bermuda. Great exertions were also made in the interior to obtain saltpetre and sulphur, for the manufacture of that important article.

[15] In this state of things, several officers, supposing that commissions and rank might depend on recruiting men, began, without permission, to recruit soldiers, to serve particularly under the officer enlisting them. Every military principle required that this practice should be arrested; and it was peremptorily forbidden in general orders.

[16] On this application congress recommended that an assembly and council should be chosen in the usual way, who should exercise the powers of government until a Governor of his Majesty's appointment should consent to govern the colony according to its charter.

[17] See [note No. V.](#) at the end of the volume.

[18] In the early part of the war, congress had appointed no commissary of prisoners; nor had the government taken upon itself the custody of them. They were entrusted for safe keeping to the respective legislatures and committees, to whom it was necessary to apply for the execution of every order respecting them.

[19] Annual Register.

[20] Colonel Burr, since Vice President of the United States, was of this number.

[21] In the account of this expedition much use has been made of a journal kept by Colonel Heth who served in it as a Lieutenant in Morgan's company of riflemen.

[22] Letter of Governor Carleton.

[23] Annual Register.

[24] In this account of the attempt to storm Quebec, free use is made of Colonel Heth's journal.

[25] On the first intelligence received in the camp at Boston of the fate of Montgomery, General Washington, though extremely delicate respecting the assumption of power, without waiting for the orders of congress, had immediately requested the New England governments to raise several regiments to reinforce that army. This proceeding was approved by congress.

[26] They were accompanied by Mr. Carroll, a bishop of the Roman Catholic church.

[27] Whilst the troops of the United Colonies were flying from the vicinity of Quebec, an unexpected calamity befel them in a different quarter of that province.

Colonel Bedel, with three hundred and ninety continental troops and two field pieces, had been stationed at the Cedars, a point of land about forty miles above Montreal, which projected far into the St. Lawrence, and could be approached only on one side. Early in the spring, General Carleton had planned an expedition against this post, the execution of which was committed to Captain Forster, who commanded at an English station on Oswegachie. At the head of a company of regulars and a body of Indians, amounting in the whole to six hundred men, he appeared before the American works early in May. Two days previous to his appearance, Colonel Bedel had received intelligence of his approach; and, leaving the fort to be commanded by Major Butterfield, had proceeded himself to Montreal, to solicit assistance. Arnold, who then commanded at that place, immediately detached Major Sherburne to the Cedars with one hundred men; and prepared to follow, in person, at the head of a much larger force.

Although the place could have been easily defended, the besiegers having no artillery—Major Butterfield, intimidated by the threat, that should any Indians be killed during the siege, it would be out of the power of Captain Forster to restrain the savages from massacreing every individual of the garrison, consented to a capitulation, by which the whole party became prisoners of war. The next day, Major Sherburne approached without having received any

information that Butterfield had surrendered. Within about four miles of the Cedars, he was attacked by a considerable body of Indians; and, after a sharp conflict, surrendered at discretion.

On being informed of these untoward events, Arnold, at the head of seven hundred men, marched against the enemy then at Vaudreuil, in the hope of recovering the American prisoners. When preparing for an engagement, he received a flag, accompanied by Major Sherburne, giving him the most positive assurances that if he persisted in his design, it would be entirely out of the power of Captain Forster to prevent his savages from pursuing their horrid customs, and disencumbering themselves of their prisoners by putting every man to death. This massacre was already threatened; and Major Sherburne confirmed the information. Under the influence of this threat, Arnold desisted from his purpose, and consented to a cartel, by which the prisoners were delivered up to him; he agreeing, among other things, not only to deliver as many British soldiers in exchange for them, but also, that they should immediately return to their homes.

[28] Annual Register.

[29] Gazette-Remembrancer.

[30] The author was in this expedition, and relates the circumstances attending it chiefly from his own observation.

[31] Virginia Gazette.

[32] Annual Register—Gordon—Ramsay—Gazette.

[33] Annual Register—Gordon—Ramsay—Letters of General Lee.

[34] Before the vote on the question of independence was taken, congress passed resolutions, declaring that all persons residing within, or passing through any one of the United Colonies, owed allegiance to the government thereof; and that any such person who should levy war against any of the United Colonies, or adhere to the king of Great Britain, or other enemies of the said colonies, or any of them, should be guilty of treason: and recommending it to the several legislatures to pass laws for their punishment.

[35] Mr. Jefferson, Mr. John Adams, Mr. Franklin, and Mr. R.R. Livingston. Mr. R.H. Lee, the mover of the resolution, had been compelled by the illness of Mrs. Lee to leave congress the day on which the committee was appointed.

[36] See [note No. VI.](#) at the end of the volume.

[37] Mr. Jefferson's Correspondence.

[38] General Howe's letter.

[39] General Howe's letter.

[40] General Howe's letter.

[41] General Howe's letter.

[42] General Howe's letter.

[43] He had, on the first appearance of the enemy in force before New York urged the removal of the women and children, with their most valuable effects, to a place of safety.

[44] The author received the account of this skirmish from the Colonel of the third Virginia Regiment, and from the Captains commanding the companies that were engaged.

[45] General Howe's letter.

[46] General Howe's letter.

[47] Extract of a letter from General Greene, dated September 11th, 1778.

"Remember the effect that the loss of the garrison of fort Washington had; there were men enough to have defended themselves against all the army had they not been struck with a panic; but, being most of them irregular troops, they lost their confidence when the danger began to grow pressing, and so fell a prey to their own fears."—*Life of Greene*, v. 1, p. 121.

[48] General Howe's letter.

[49] See [note No. VII.](#) at the end of the volume.

[50] Since President of the United States.

[51] A fact has been stated to the author which shows to what an extent the plan might have been executed had it been possible to cross the river. Colonel Reed, who was with the division of Cadwallader, passed the ferry with the van of the infantry, and immediately despatched some trusty persons to examine the situation of the troops at Mount Holly. The report made by his messengers was, that they had looked into several houses in which the soldiers were quartered, and had found them generally fast asleep, under the influence, as was supposed, of the spirituous liquors they had drunk the preceding day, which was Christmas-day. That there appeared to be no apprehension of danger, nor precaution against it.

[52] In this critical moment, when correct intelligence was so all important, Mr. Robert Morris raised on his private credit in Philadelphia, five hundred pounds in specie, which he transmitted to the Commander-in-chief, who employed it in procuring information not otherwise to have been obtained.

[53] Ramsay.

[54] Ramsay.

[55] Secret Journals of Congress, vol. ii. p. 38, and post.

[56] See [note No. VIII.](#) at the end of the volume.

[57] Congress voted a monument to his memory.

[58] The extreme severity of the service, aided perhaps by the state of the hospitals, had carried to the grave more than two-thirds of the soldiers who had served the preceding campaign, and been engaged for more than one year.

[59] General Howe's letter.

[60] General Howe's letter.

[61] These orders were received by General Sullivan, who had been encamped about Hanover, in Jersey, on his return from an expedition to Staten Island. The British force on that island amounted to between two and three thousand men, of whom nearly one thousand were provincials, who were distributed along the coast, opposite the Jersey shore. The Europeans occupied a fortified camp near the watering place; and General Sullivan thought it practicable to surprise the provincials, and bring them off before they could be supported by the Europeans. Only six boats had been procured for the conveyance of his troops; yet they crossed over into the island before day undiscovered, and completely surprised two of the provincial parties, commanded by Colonels Lawrence and Barton, both of whom, with several officers and men were taken. The alarm being given, Sullivan attempted to withdraw from the island. The number of boats not being sufficient for the embarkation of all his troops at the same time, some confusion obtained among them. General Campbell advanced in force on the rear guard while waiting for the return of the boats, which was captured after making a gallant resistance.

This enterprise was well planned, and in its commencement, happily executed; but ought not to have been undertaken without a number of boats sufficient to secure the retreat.

The loss of the British in prisoners amounted to eleven officers, and one hundred and thirty privates. That of the Americans, is stated by Sullivan, at one major, one captain, one lieutenant, and ten privates killed, and fifteen wounded, and nine officers, and one hundred and twenty-seven privates prisoners. General Campbell, in his account of the action says, that he made two hundred and fifty-nine prisoners, among whom were one lieutenant colonel, three majors, two captains, and fifteen inferior officers.

[62] The author was an eye-witness of this skirmish.

[63] Annual Register.

[64] The third Virginia regiment commanded by Colonel Marshall, which had performed extremely severe duty in the campaign of 1776, was placed in a wood on the right, and in front of Woodford's brigade, and Stephen's division. Though attacked by much superior numbers, it maintained its position without losing an inch of ground, until both its flanks were turned, its ammunition nearly expended, and more than half the officers, and one third of the soldiers were killed and wounded. Colonel Marshall, whose horse had received two balls, then retired in good order to resume his position on the right of his division; but it had already retreated.

[65] Deboore's brigade broke first; and, on an inquiry into his conduct being directed, he resigned. A misunderstanding existed between him and Sullivan, on whose right he was stationed.

[66] The British accounts represent the American loss to have been much more considerable. It probably amounted to at least three hundred men.

[67] Annual Register.—Stedman.

[68] Better known as the Ridge road.

[69] Since Robinson's.

[70] The author was in this brigade, and describes this part of the action from his own observation.

[71] On hearing that General Howe had landed at the head of the Chesapeake, Sir Henry Clinton, for the purpose of averting those aids which Washington might draw from the north of the Delaware, entered Jersey at the head of three thousand men. On the approach of General M'Dougal with a body of continental troops from Peekskill, and on hearing that the militia were assembling under General Dickinson, he returned to New York and Staten Island with the cattle he had collected, having lost in the expedition only eight men killed and twice as many wounded.

M'Dougal continued his march towards the Delaware; and the utmost exertions were made both by Governor Livingston and General Dickinson to collect the militia for the purpose of aiding the army in Pennsylvania. The success of their exertions did not equal their wishes. The militia being of opinion that there was danger of a second invasion from New York, and that their services were more necessary at home than in Pennsylvania, assembled slowly and reluctantly. Five or six hundred crossed the Delaware at Philadelphia, about the time Sir William Howe crossed the Schuylkill, and

were employed in the removal of stores. On the approach of the British army, they were directed to avoid it by moving up the Frankford road; but the commanding officer, having separated himself from his corps, was taken by a party of British horse employed in scouring the country; on which the regiment dispersed, and returned by different roads to Jersey. With much labour General Dickinson assembled two other corps amounting to about nine hundred men, with whom he was about to cross the Delaware when intelligence was received of the arrival at New York of a reinforcement from Europe. He was detained in Jersey for the defence of the state, and the militia designed to serve in Pennsylvania were placed under General Forman. About six hundred of them reached the army a few days before the battle of Germantown, immediately after which they were permitted to return.

[72] In stating the defence of Mud Island, the author has availed himself of the journal of Major Fleury.

[73] While Lord Cornwallis lay on Gloucester Point, about one hundred and fifty men of Morgan's rifle corps under Lieutenant Colonel Butler, and an equal number of militia, the whole under the Marquis de la Fayette, who still served as a volunteer, attacked a picket consisting of about three hundred men, and drove them with the loss of twenty or thirty killed, and a greater number wounded, quite into their camp; after which the Americans retired without being pursued.

[74] While these transactions were passing on the Delaware, General Dickinson projected another expedition against the post on Staten Island. He collected about two thousand men, and requested General Putnam to make a diversion on the side of Kingsbridge, in order to prevent a reinforcement from New York.

Knowing that success depended on secrecy, he had concealed his object even from his field-officers, until eight of the night in which it was to be executed. Yet by three next morning, information of his design was given to General Skinner, who, being on his guard, saved himself and his brigade, by taking refuge, on the first alarm, in some works too strong to be carried by assault. A few prisoners were made and a few men killed, after which General Dickinson brought off his party with the loss of only three killed and ten slightly wounded.

[75] The author states this on his own observation.

[76] Stedman.

[77] When the command of the operating army was given to General Thomas in March 1776, the head quarters of General Schuyler had been fixed by congress at Albany, and that resolution remained in force. General Gates was now directed to repair to Ticonderoga and take command of the army; and Major General St. Clair was ordered to the same place to serve under him.

[78] Remem.

[79] Letter of Burgoyne.

[80] Letter of Burgoyne.

[81] Ibid.

[82] Gordon.

[83] See [note No. IX.](#) at the end of the volume.

[84] The islands in the mouth of the Mohawk.

[85] Letter of Burgoyne.

[86] The accounts of the day stated that the Americans were commanded by General Arnold, but General Wilkinson says that no general officer was in the field.

[87] Remem.

[88] Letter of Burgoyne.

[89] Remem.

[90] Mr. Gordon, in his history of the war, states himself to have received from General Glover an anecdote, showing, that all these advantages were on the point of being exposed to imminent hazard. "On the morning of the eleventh, Gates called the general officers together, and informed them of his having received certain intelligence, which might be depended upon, that the main body of Burgoyne's army was marched off for fort Edward with what they could take; and that the rear guard only was left in the camp, who, after awhile, were to push off as fast as possible, leaving the heavy baggage behind. On this it was concluded to advance and attack the camp in half an hour. The officers repaired immediately to their respective commands. General Nixon's being the eldest brigade, crossed the Saratoga creek first. Unknown to the Americans, Burgoyne had a line formed behind a parcel of brush-wood, to support the park of artillery where the attack was to be made. General Glover was upon the point of following Nixon. Just as he entered the water, he saw a British soldier making across, whom he called and examined." This soldier was a deserter, and communicated the very important fact that the whole British army were in their encampment. Nixon was immediately stopped: and the

intelligence conveyed to Gates, who countermanded his orders for the assault, and called back his troops, not without sustaining some loss from the British artillery.

Gordon is confirmed by General Wilkinson, who was adjutant general in the American army. The narrative of the general varies from that of Gordon only in minor circumstances.

[91] The American army consisted of nine thousand and ninety-three continental troops. The number of the militia fluctuated; but amounted, at the signature of the convention, to four thousand one hundred and twenty-nine. The sick exceeded two thousand five hundred men.

[92] Letter of Sir Henry Clinton.

[93] Letter of Sir Henry Clinton.

[94] Intelligence of the success of Sir Henry Clinton on the North River was received by General Burgoyne, in the night after the convention at Saratoga had been agreed upon, but before the articles had been signed and executed. The British general had serious thoughts of breaking off the treaty.

[95] Life of Chatham.—Belsham.

[96] See [note No. X.](#) at the end of the volume.

[97] See [note No. XI.](#) at the end of the volume.

[98] See [note No. XII.](#) at the end of the volume.

[99] Major Jameson was accidentally present, and engaged in this skirmish.

[100] General Conway, after his resignation, frequently indulged in expressions of extreme hostility to the Commander-in-chief. These indiscretions were offensive to the gentlemen of the army. In consequence of them, he was engaged in an altercation with General Cadwallader, which produced a duel, in which Conway received a wound, supposed for some time to be mortal. While his recovery was despaired of, he addressed the following letter to General Washington.

Philadelphia, July 23d, 1778.

Sir,—I find myself just able to hold the pen during a few minutes, and take this opportunity of expressing my sincere grief for having done, written, or said any thing disagreeable to your excellency. My career will soon be over, therefore, justice and truth prompt me to declare my last sentiments. You are, in my eyes, the great and good man. May you long enjoy the love, veneration, and esteem of these states, whose liberties you have asserted by your virtues.

I am with the greatest respect, sir,

Your excellency's most obedient humble servant,
Phs. Conway.

[101] This request afforded the Commander-in-chief a fair retort on Major General Tryon. That officer had addressed a letter to him enclosing the bills brought into Parliament, and containing, to use the language of General Washington himself, "the more extraordinary and impertinent request" that their contents should be communicated through him to the army. General Washington now acknowledged the receipt of this letter, and, in return, enclosed to Governor Tryon copies of the resolution just mentioned, with a request that he would be instrumental in making them known to the persons on whom they were to operate.

[102] Congress, in their first instructions to their commissioners, directed them to press the immediate declaration of France in favour of the United States, by suggesting that a reunion with Great Britain might be the consequence of delay.—*Secret Journals of Congress*, v. ii. p. 30.

[103] In the execution of this agreement, the inconveniences arising from having committed the custody of prisoners to the several states, was severely felt. In addition to the delay inseparable from the necessity of inquiring for them, and collecting them from different places, they were often sent in without the knowledge of General Washington; and, in some instances, they passed unobserved, with permits from a state government, through his camp, into that of the enemy. These irregularities, and the remonstrances of the Commander-in-chief, at length, induced congress to appoint a commissary of prisoners.

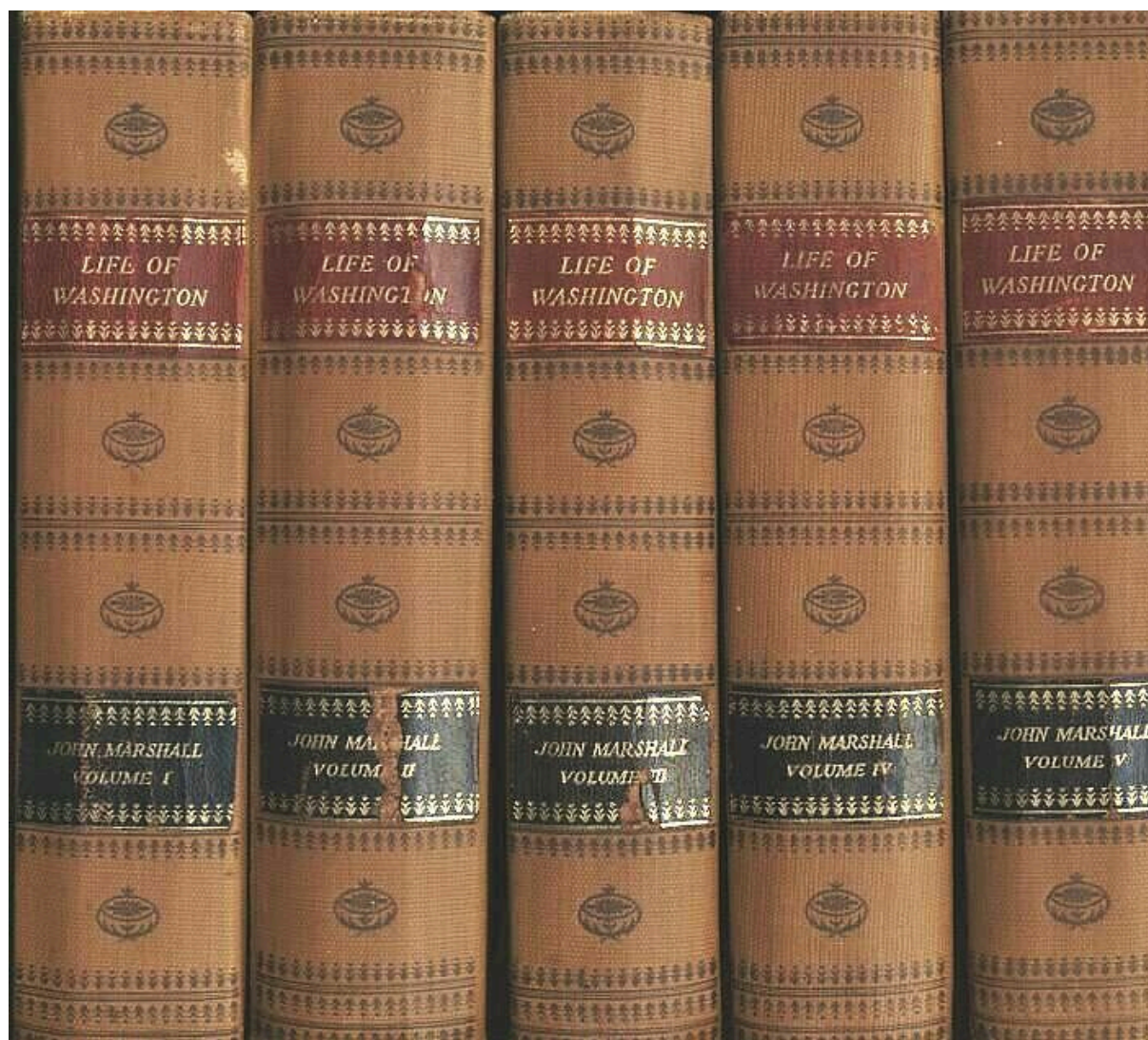
[104] See [note No. XIII.](#) at the end of the volume.

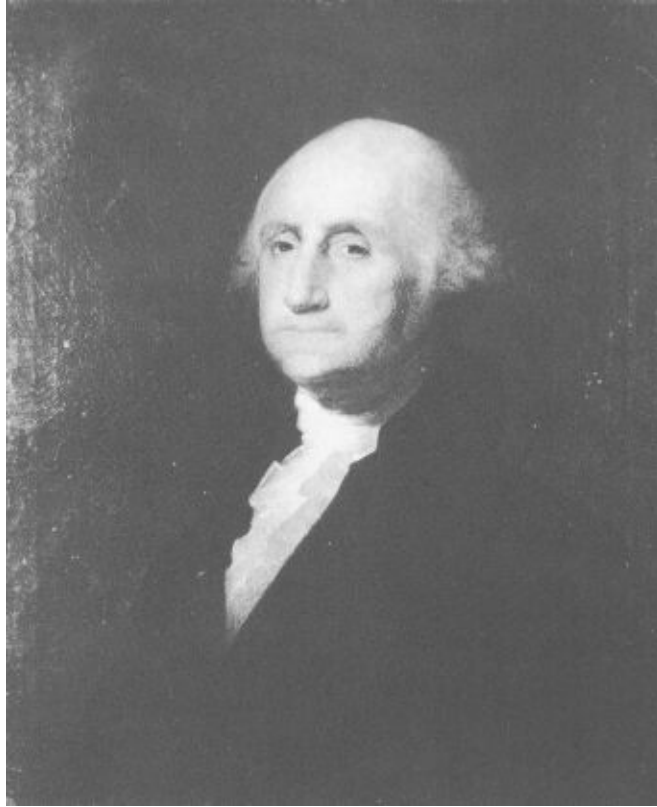
[105] They alleged that their horses had been disabled, and the clothing embezzled.

[106] One of whom, by the by, he was.

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George Washington

From the portrait by Gilbert Stuart

This canvas, valued at \$60,000, hangs in the Masonic Lodge rooms at Fredericksburg, Virginia. It is one of the several portraits of Washington which the artist began executing in 1795 and which are the most famous of both artist and sitter. Of our First President, this celebrated painter has also given us his interesting pen-picture of his subject: "All of his features were indications of the strongest and most ungovernable passions, and had he been born in the forest, he would have been the fiercest man among the savage tribes."

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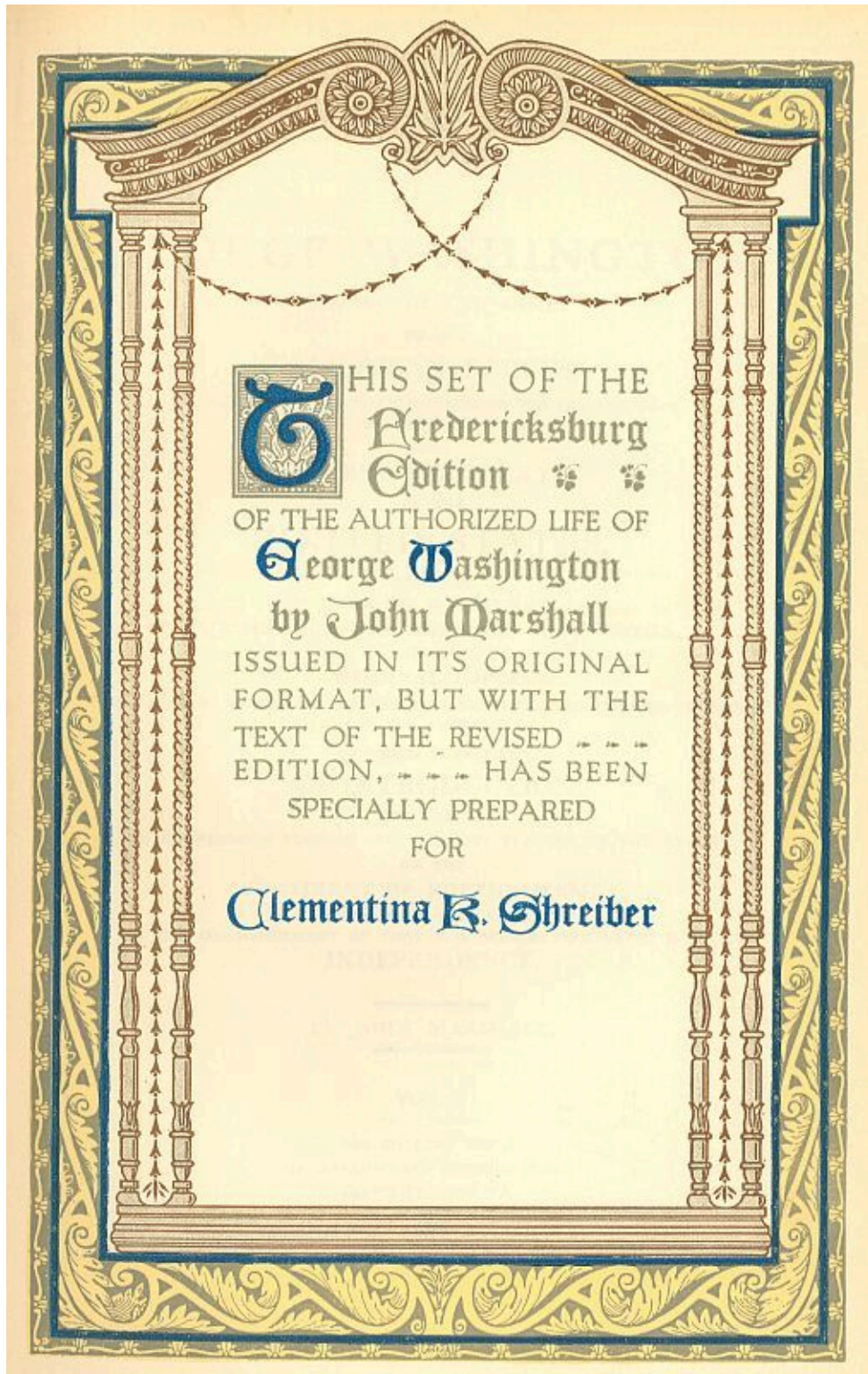
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by John Marshall
ISSUED IN ITS ORIGINAL FORMAT, BUT WITH THE TEXT OF THE
REVISED EDITION, HAVE BEEN SPECIALLY PREPARED FOR
Henry H. Kimball

Transcriber's Note: In the original book, some proper names are spelled inconsistently. The inconsistencies have been preserved in this e-text. For the reader's information, the first of each of the following pairs of names is the correct spelling: Wemys/Wemyss, Tarleton/Tarlton; Dundass/Dundas; M'Lane/M'Clane; Viominel/Viominil.

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THE LIFE
OF

GEORGE WASHINGTON

CHAPTER I.

Incursion into Jersey.... General Lacy surprised.... Attempt on Lafayette at Barren Hill.... General Howe resigns the command of the British army.... Is succeeded by Sir H. Clinton.... He evacuates Philadelphia, and marches through the Jerseys.... A council of war which decides against attacking the British on their march.... Battle of Monmouth.... General Lee arrested.... Sentenced to be suspended for one year.... Thanks of congress to General Washington and his army.

1778

The position at Valley Forge had been taken for the purposes of covering the country, protecting the magazines, and cutting off all supplies to Philadelphia. Although the intercourse of the inhabitants with that place could not be entirely prevented; the sufferings of the British army from the scarcity of fresh provisions and forage were considerable; and, as the spring opened, several expeditions were undertaken both to relieve their own wants, and to distress the army of the United States.

About the middle of March, Colonel Mawhood and Major Simcoe, who were detached into Jersey at the head of about twelve hundred men, landed at Salem, nearly opposite Reedy Island, and dispersed the small bodies of militia who were stationed in that part of the country.

General Washington had given early intelligence of this expedition to Governor Livingston; and had requested that he would immediately order out the militia to join Colonel Shreve, whose regiment was detached into Jersey; but the legislature had neglected to make provision for paying them; and the governor could not bring them into the field. Colonel Shreve, on his arrival at Haddonfield, the place at which they had been directed to assemble, found less than one hundred men. March 23. Colonel Ellis, their commanding officer, remarked, in a letter to the governor, that "without some standing force, little was to be expected from the militia, who, being alone not sufficient to prevent the incursions of the enemy, each one naturally consults his own safety, by not being found in arms."

Mawhood, of course, was unrestrained; and the devastation committed by his party was wantonly distressing. Its course of destruction was preceded by a

summons to Colonel Hand, the commanding officer of the militia, to lay down his arms, which was accompanied with a threat of the consequences to result from his refusal. This threat was too faithfully executed.

After completing his forage, without molestation, Mawhood returned to Philadelphia. During the continuance of this incursion, which lasted six or seven days, not more than two hundred men could be collected to reinforce Colonel Shreve, who was consequently unable to effect any thing, and did not even march to the lower parts of Jersey, which were plundered without restraint.^[1]

May 1.

Not long after this incursion into Jersey, an enterprise was undertaken against General Lacy, who, with a small number of Pennsylvania militia, seldom amounting to six hundred, and sometimes not exceeding fifty, watched the roads leading to Philadelphia on the north side of the Schuylkill, and was generally posted within twenty miles of that town.

General Lacy surprised.

This expedition was entrusted to Colonel Abercrombie and Major Simcoe, who avoided all the posts Lacy had established for his security, and threw a body of troops into his rear before he discovered their approach. After a short resistance, he escaped with the loss of a few men killed, and all his baggage. His corps were entirely dispersed, and he was soon afterwards relieved by General Potter.

To maintain the command of the water as far as was practicable, congress had ordered impediments to be sunk in many of the rivers of common use, so as to obstruct the passage up them, and had constructed frigates, and other smaller vessels, to be employed above those impediments or elsewhere, as the occasion might require. Several of them had been commenced above Philadelphia, but were not completed when the British obtained the command of the river. General Washington then became apprehensive for their safety, and repeatedly expressed his desire that they should be sunk in such a manner as to be weighed with difficulty, should any attempt be made to raise them. The persons, however, who were entrusted by congress with this business, supposed it would be equally secure to put plugs in their bottoms, which might be drawn out on the approach of danger.

Against these vessels, and some stores collected at Bordentown, an expedition was planned which ended in their total destruction. General Dickenson was in the neighbourhood, but his force was too small to interrupt

the execution of the design; and General Maxwell, who had been ordered to his assistance, was retarded in his march by a heavy rain, which did not obstruct the movement of the British, who passed up the river in vessels.

May 18.

To cover the country more effectually on the north of the Schuylkill, to form an advance guard for the security of the main army, and to be in readiness to annoy the rear of the enemy, should he evacuate Philadelphia, an event believed to be in contemplation, General Washington detached the Marquis de Lafayette, with more than two thousand choice troops, to take post near the lines. As this corps formed a very valuable part of the army, the Commander-in-chief recommended in his instructions to General Lafayette the utmost attention to its safety; and, particularly, to avoid any permanent station, as a long continuance in one position would facilitate the execution of measures which might be concerted against him.

The Marquis crossed the Schuylkill and took post near Barren Hill church, eight or ten miles in front of the army. Attempt on Lafayette at Barren Hill. Immediate notice [\[2\]](#) of his arrival was given to Sir William Howe, who reconnoitred his position, and formed a plan to surprise and cut him off.

On the night of the 19th of May, General Grant with five thousand select troops, took the road which leads up the Delaware, and consequently diverges from Barren Hill. After marching some distance, he inclined to the left, and passing White Marsh, where several roads unite, took one leading to Plymouth meeting-house, the position he was directed to occupy, something more than a mile in the rear of the Marquis, between him and Valley Forge. May 20. He reached his point of destination rather before sunrise. Here the roads fork; the one leading to the camp of Lafayette, and the other to Matron's ford over the Schuylkill.

In the course of the night, General Gray, with a strong detachment, had advanced up the Schuylkill on its south side, along the ridge road, and taken post at a ford two or three miles in front of the right flank of Lafayette, while the residue of the army encamped on Chestnut hill.

Captain M'Clane, a vigilant partisan of great merit, was posted on the lines some distance in front of Barren Hill. In the course of the night, he fell in with two British grenadiers at Three Mile Run, who informed him of the movement made by Grant, and also that a large body of Germans was getting ready to march up the Schuylkill. Immediately conjecturing the object, M'Clane detached Captain Parr, with a company of riflemen across the country to

Wanderers hill, with orders to harass and retard the column advancing up the Schuylkill, and hastened in person[3] to the camp of Lafayette. He arrived soon after daybreak, and communicated the intelligence he had received. It was, not long afterwards, confirmed by the fire of Parr on the Ridge road, and by an inhabitant who had escaped from White Marsh as the British column passed that place.[4]

Thus surrounded with danger, Lafayette took with promptitude and decision the only course which could preserve him. He instantly put his troops in motion, and passed over at Matron's ford, which was rather nearer to General Grant, than to himself, without being intercepted by that officer, or sustaining a greater loss than nine men.

General Grant, who reached the ground lately occupied by Lafayette soon after it was abandoned, followed his rear, and appeared at the ford just after the Americans had crossed it; but, finding them advantageously posted, did not choose to attack them; and the whole army returned to Philadelphia, having effected nothing.

He did not escape censure for having allowed the great advantage he had acquired, to slip through his hands unused. He might with the utmost certainty have reached Matron's ford before the Marquis, and have cut off the only retreat which remained for him. But the same skill and address were not displayed in executing this plan as in forming it.[5]

In the statement of this affair made by General Lafayette, he represents himself to have advanced the head of a column towards Grant, as if to attack him, while the rear filed off rapidly towards the Schuylkill. This movement gained ground even for the front, which, while it advanced towards the enemy, also approached the river, and at the same time induced General Grant to halt, in order to prepare for battle.

While this manœuvre was performing in the face of the detachment under Grant, a small party was thrown into the church yard, on the road towards General Gray, which also gave the appearance of an intention to attack in that quarter. By these dispositions, happily conceived, and executed with regularity, the Marquis extricated himself from the destruction which had appeared almost inevitable. In a letter to congress, General Washington termed it "a timely and handsome retreat," and certainly the compliment was merited.

It might be supposed that this young nobleman had not displayed the same degree of military talent in guarding against the approach of danger, as in extricating himself from it. But the imputation which generally attaches to an

officer who permits an enemy to pass unobserved into his rear, is removed by a circumstance stated by Lafayette. The Pennsylvania militia were posted on his left flank with orders to guard the roads about White Marsh. Without his knowledge, they changed their position, and retired into the rear, leaving that important pass open to the enemy.

General Howe resigns his command and returns to England; is succeeded by Sir Henry Clinton.

This was the last enterprise attempted by Sir William Howe. He resigned the command of the army into the hands of Sir Henry Clinton, and embarked for Great Britain. About the same time, orders were received for the evacuation of Philadelphia. The part it was now evident France was about to take in the war, and the naval force which had been prepared by that power before she declared herself, rendered that city a dangerous position, and determined the administration to withdraw the army from the Delaware.

The preparations for this movement could not be made unobserved; but they indicated equally an embarkation of the whole army, or an intention to march to New York through Jersey. The last was believed by the American chief to be most probable; and he made every exertion to take advantage of the movement. His detachments were called in, and the state governments were pressed to expedite the march of their levies.

In the mean time Sir Henry Clinton hastened his preparations for the evacuation of Philadelphia; and the opinion that he intended to reach New York through Jersey, gained ground.

General Maxwell, with the Jersey brigade, was ordered over the Delaware to take post at Mount Holly, and to join Major General Dickenson, who was assembling the militia of that state for the purpose of co-operating with the continental troops, in breaking down the bridges, felling trees in the roads, and otherwise embarrassing the march of the British General.

June 17.

In this state of things intelligence was received that a great part of the British army had crossed the Delaware, and that the residue would soon follow.

The opinion of the general officers was required on the course now to be pursued. General Lee, who had been lately exchanged, and whose experience gave great weight to his opinions, was vehement against risking either a general or partial engagement. The British army was computed at ten thousand effective men, and that of the Americans amounted to between ten and eleven thousand. General Lee was decidedly of opinion that, with such an equality of

force, it would be "criminal" to hazard an action. He relied much on the advantageous ground on which their late foreign connexions had placed the United States, and contended that defeat alone could now endanger their independence. To this he said the army ought not to be exposed. It would be impossible he thought to bring on a partial action, without risking its being made general, should such be the choice of the enemy, since the detachment which might engage must be supported, or be cut to pieces. A general action ought not to be fought unless the advantage was manifestly with the American army. This at present was not the case. He attributed so much to the superior discipline of the enemy as to be of opinion that the issue of the engagement would be, almost certainly, unfavourable.

General Du Portail, a French officer of considerable reputation, maintained the same opinions; and the Baron de Steuben concurred in them. The American officers seem to have been influenced by the councils of the Europeans; and, of seventeen generals, only Wayne and Cadwallader were decidedly in favour of attacking the enemy. Lafayette appeared inclined to that opinion without openly embracing it; and General Greene was inclined to hazard more than the councils of the majority would sanction. The country, he thought, must be protected; and if, in doing so, an engagement should become unavoidable, it would be necessary to fight.

The British army evacuate Philadelphia and march through the Jerseys.

On the morning of the 18th, Philadelphia was evacuated;^[6] and, by two in the afternoon, all the British troops were encamped on the Jersey shore, from Cooper's Creek to Red Bank. Although they availed themselves to a great extent of the transportation by water, yet their line of march was so lengthened and encumbered by baggage, and the weather was so intensely hot, that they were under the necessity of proceeding slowly. Indeed their movements wore the appearance of purposed delay; and were calculated to favour the opinion that Sir Henry Clinton was willing to be overtaken, and wished for a general engagement.

As his line of march, until he passed Crosswicks, led directly up the Delaware, General Washington found it necessary to make an extensive circuit, and to cross the river at Coryell's Ferry; after which he kept possession of the high grounds in Jersey, thereby retaining the choice of bringing on, or avoiding an action.

June 24.

As Sir Henry Clinton encamped at, and about, Allentown, the main body of the American army lay in Hopewell township, about five miles from Princeton, Major General Dickenson, with about one thousand militia, and Maxwell's brigade, hung on Sir Henry Clinton's left flank. General Cadwallader, with Jackson's regiment and a few militia, was in his rear; and Colonel Morgan with a regiment of six hundred men watched his right.

Notwithstanding the almost concurrent opinion of his general officers against risking an action, Washington appears to have been strongly inclined to that measure. He could not be persuaded that, with an army rather superior in point of numbers to his enemy, too much was hazarded by fighting him. Council of war called by General Washington; decide against attacking the enemy on the march. The situation of the two armies was, therefore, once more submitted to the consideration of the general officers, who were asked whether it would be advisable, of choice, to hazard a general action? And, if it would, whether it should be brought on by an immediate general attack, by a partial attack, or by taking such a position as must compel the enemy to become the assailants?

If the council should be of opinion that it was unadvisable to hazard an engagement, then he asked what measures could be taken with safety to the army, to annoy the enemy in his march, should he proceed through the Jerseys?

The proposition respecting a general action was decidedly negatived. But it was proposed to strengthen the corps on the left flank of the enemy with a reinforcement of fifteen hundred men, and to preserve, with the main body of the army, a relative position which would enable it to act as circumstances might require.

In pursuance of this opinion, the troops on the lines were strengthened with a detachment of fifteen hundred select men, commanded by General Scott; and the army moved forward the next day to Kingston.

Though the council had been almost unanimous against a general action, several officers, whose opinions were highly valued, secretly wished for something more than light skirmishing. The opinion of the general against this decision. Knowing this, General Washington, who was still in favour of an engagement, determined to take his measures on his own responsibility. As the British army moved towards Monmouth court-house, he ordered Brigadier General Wayne, with an additional detachment of one thousand select men, to join the advanced corps. June 25. As the continental troops, now constituting the front division, amounted to at least four thousand men, he deemed it proper that they should be commanded by a major general. Lee had a right to claim

this tour of duty; but, as he had declared himself openly and strongly against hazarding even a partial engagement, and supposed that nothing further would be attempted than merely to reconnoitre the enemy, and restrain plundering parties, he showed no inclination to assert his claim. Unintentionally promoting the private wishes of General Washington, that the command should be given to an officer whose view of the service comported more with his own, Lee yielded this important tour of duty to Lafayette. The orders given to this general were, to proceed immediately with the detachment; and, after forming a junction with General Scott, and taking command of the troops on the lines, to gain the enemy's left flank and rear; give him every practicable annoyance; and attack by detachment, or with his whole force, as the occasion might require.

These dispositions and orders could scarcely fail to bring on an engagement. Wayne had openly supported that measure; and Lafayette, though against seeking a general action, had been in favour of a partial one. Of consequence, should any proper occasion offer, he would certainly attack with his whole force, which would as certainly produce such a state of things as would render it proper to support him with the whole army.

June 26.

Immediately after the march of this detachment, General Washington moved to Cranberry, that he might be in readiness to support his front division.

The intense heat of the weather; a heavy storm; and a temporary want of provisions, prevented the army from continuing its march that day. The advanced corps had pressed forward, and taken a position about five miles in rear of the British army, with the intention of attacking it next morning on its march. Thinking this corps too remote to be supported in case of action, General Washington ordered the Marquis to file off by his left towards Englishtown. These orders were executed early in the morning of the twenty-seventh.

Lafayette had scarcely taken command of the advanced party, when General Lee began to regret having yielded it to him. June 27. He perceived that, in the opinion of all the general officers, great importance was attached to it, and that his reputation was in danger of being impaired by connecting his strenuous opposition to even a partial action, with his declining the command of a very strong detachment, which, it was believed, would engage the rear of the enemy. He therefore solicited earnestly for the command he had before declined.

To relieve the feelings of Lee, without wounding those of Lafayette, General Washington detached him with two additional brigades to Englishtown, to support the Marquis. He would, of course, have the direction of the whole front division, which would now amount to five thousand continental troops; but it was expressly stipulated, that if any enterprise had been already formed by Lafayette, it should be carried into execution, as if the commanding officer had not been changed. Lee acceded to this condition; and, with two additional brigades, joined the front division of the army, encamped at Englishtown. The rear division also moved forward, and encamped about three miles in his rear. Morgan's corps still hovered on the right flank of the British, and General Dickenson on their left.

Sir Henry Clinton occupied the high grounds about Monmouth court-house, having his right flank in the skirt of a small wood, while his left was secured by a very thick one, and a morass running towards his rear. His whole front was also covered by a wood, and for a considerable distance towards his left, by a morass.

This position seemed unassailable; and the British were within twelve miles of the high grounds about Middletown, after reaching which they would be perfectly secure.

Under these circumstances, General Washington ordered Lee to attack the British rear the moment it should move from its ground.

June 28.

About five in the morning, intelligence was received from General Dickenson that the front of the enemy was in motion. The troops were immediately put under arms, and Lee was ordered to attack the rear, "unless there should be powerful reasons to the contrary." He was at the same time informed that the rear division would be on its march to support him.

Sir Henry Clinton had observed the appearances on his flanks and rear on the twenty-seventh; and, conjecturing that the American army was in his neighbourhood, had changed the order of his march. The baggage was placed under the care of General Knyphausen, while the strength and flower of his army, entirely unincumbered, formed the rear division, under the particular command of Lord Cornwallis, who was accompanied by the Commander-in-chief.

To avoid pressing on Knyphausen, Cornwallis remained on his ground until about eight; and then, descending from the heights of Freehold into an extensive plain, took up his line of march in rear of the front division.[\[7\]](#)

General Lee had made dispositions for executing the orders given the preceding evening, and repeated in the morning; and, soon after the British rear had moved from its ground, prepared to attack it. General Dickenson had been directed to detach some of his best troops, to take such a position as to co-operate with him; and Morgan was ordered to act on the right flank.

Lee appeared on the heights of Freehold soon after Lord Cornwallis had left them; and, following the British into the plain, ordered General Wayne to attack the rear of their covering party with sufficient vigour to check it, but not to press it so closely as either to force it up to the main body, or to draw reinforcements to its aid. In the mean time, he intended to gain the front of this party by a shorter road, and, intercepting its communication with the line, to bear it off before it could be assisted.



Martha Washington

From the portrait by Gilbert Stuart

After studying under Benjamin West, the American painter who succeeded Sir Joshua Reynolds as (second) president of the Royal Academy in London,

Gilbert Stuart established a studio in Philadelphia where he met and painted the first of his famous portraits of George Washington. This one of Martha Washington, the best known likeness of her in existence, was painted in the city of Washington, where the artist had a studio between 1800 and 1802. She gave him several sittings at Mount Vernon.

While in the execution of this design, a gentleman in the *suite* of General Washington came up to gain intelligence; and Lee communicated to him his present object.

Before he reached the point of destination, there was reason to believe that the British rear was much stronger than had been conjectured. The intelligence on this subject being contradictory, and the face of the country well calculated to conceal the truth, he deemed it adviseable to ascertain the fact himself.

Sir Henry Clinton, soon after the rear division was in full march, received intelligence that an American column had appeared on his left flank. This being a corps of militia was soon dispersed, and the march was continued. When his rear guard had descended from the heights, he saw it followed by a strong corps, soon after which a cannonade was commenced upon it; and, at the same time, a respectable force showed itself on each of his flanks. Suspecting a design on his baggage, he determined to attack the troops in his rear so vigorously, as to compel a recall of those on his flanks; and, for this purpose, marched back his whole rear division. This movement was in progress as Lee advanced for the purpose of reconnoitring. He soon perceived his mistake respecting the force of the British rear, but still determined to engage on that ground, although his judgment disapproved the measure; there being a morass immediately in his rear, which would necessarily impede the reinforcements which might be advancing to his aid, and embarrass his retreat should he be finally overpowered.

This was about ten. While both armies were preparing for action, General Scott (as stated by General Lee) mistook an oblique march of an American column for a retreat; and, in the apprehension of being abandoned, left his position, and repassed the ravine in his rear.

Being himself of opinion that the ground was unfavourable, Lee did not correct the error he ascribed to Scott, but ordered the whole detachment to regain the heights. He was closely pressed, and some slight skirmishing ensued without much loss on either side.

As soon as the firing announced the commencement of the action, the rear division of the army advanced rapidly to the support of the front. As they approached the scene of action, General Washington, who had received no intelligence from Lee giving notice of his retreat, rode forward, and, to his utter astonishment and mortification, met the advanced corps retiring before the enemy, without having made a single effort to maintain its ground. The troops he first saw neither understood the motives which had governed General Lee, nor his present design; and could give no other information than that, by his orders, they had fled without fighting.

General Washington rode to the rear of the division, where he met General Lee, to whom he spoke in terms of some warmth, implying disapprobation of his conduct.

Orders were immediately given to Colonel Stewart and Lieutenant Colonel Ramsay to form their regiments for the purpose of checking the pursuit; and General Lee was directed to take proper measures with the residue of his force to stop the British column on that ground. The Commander-in-chief then rode back to arrange the rear division of the army.

He attacks the enemy at Monmouth Court-house.

These orders were executed with firmness; and, when forced from his ground, Lee brought off his troops in good order, and was directed to form in the rear of Englishtown.

This check afforded time to draw up the left wing and second line of the American army on an eminence, covered by a morass in front. Lord Stirling, who commanded the left wing, brought up a detachment of artillery under Lieutenant Colonel Carrington, and some field pieces, which played with considerable effect on a division of the British which had passed the morass, and was pressing on to the charge. These pieces, with the aid of several parties of infantry, effectually stopped the advance of the enemy.

The action severe but not decisive.

Finding themselves warmly opposed in front, the British attempted to turn the left flank of the American army, but were repulsed. They then attempted the right with as little success. General Greene had advanced a body of troops with artillery to a commanding piece of ground in his front, which not only disappointed the design of turning the right, but enfiladed the party which yet remained in front of the left wing. At this moment, General Wayne was advanced with a body of infantry to engage them in front, who kept up so hot and well directed a fire, that they soon withdrew behind the ravine, to the

ground on which the action had commenced immediately after the arrival of General Washington.[8]

The position now taken by the British army was very strong. Both flanks were secured by thick woods and morasses; and their front was accessible only through a narrow pass. The day had been intensely hot, and the troops were much fatigued. Notwithstanding these circumstances, General Washington resolved to renew the engagement. For this purpose he ordered Brigadier General Poor, with his own and the North Carolina brigade, to gain their right flank, while Woodford with his brigade should turn their left. At the same time the artillery was ordered to advance, and play on their front. These orders were obeyed with alacrity; but the impediments on the flanks of the British were so considerable that, before they could be overcome, it was nearly dark. Farther operations were therefore deferred until next morning; and the brigades which had been detached to the flanks of the British army continued on their ground through the night, and the other troops lay on the field of battle with their arms in their hands. General Washington passed the night in his cloak in the midst of his soldiers.

The British employed the early part of the night in removing their wounded; and, about midnight, marched away in such silence that their retreat was not perceived until day.

As it was certain that they must gain the high grounds about Middletown before they could be overtaken; as the face of the country afforded no prospect of opposing their embarkation; and as the battle already fought had terminated in a manner to make a general impression favourable to the American arms; it was thought proper to relinquish the pursuit, leaving a detachment to hover about the British rear, the main body of the army moved towards the Hudson.

The Commander-in-chief was highly gratified with the conduct of his troops in this action. Their behaviour, he said, after recovering from the first surprise occasioned by the unexpected retreat of the advanced corps, could not be surpassed. General Wayne was particularly mentioned; and the artillery were spoken of in terms of high praise.

The loss of the Americans in the battle of Monmouth was eight officers and sixty-one privates killed, and about one hundred and sixty wounded. Among the slain were Lieutenant Colonel Bonner of Pennsylvania, and Major Dickenson of Virginia, both of whom were much regretted. One hundred and thirty were missing; but a considerable number of these afterwards rejoined their regiments.

In his official letter, Sir Henry Clinton states his dead and missing at four officers, and one hundred and eighty-four privates. His wounded at sixteen officers and one hundred and fifty-four privates. This account, so far as respects the dead, can not be correct, as four officers and two hundred and forty-five privates were buried on the field by persons appointed for the purpose, who made their report to the Commander-in-chief; and some few were afterwards found, so as to increase the number to nearly three hundred. The uncommon heat of the day proved fatal to several on both sides.

As usual, when a battle has not been decisive, both parties claimed the victory. In the early part of the day, the advantage was certainly with the British; in the latter part, it may be pronounced with equal certainty to have been with the Americans. They maintained their ground, repulsed the enemy, were prevented only by the night, and by the retreat of the hostile army from renewing the action, and suffered less in killed and wounded than their adversaries.

It is true that Sir Henry Clinton effected what he states to have been his principal object,—the safety of his baggage. But when it is recollected that the American officers had decided against hazarding an action, that this advice must have trammelled the conduct, and circumscribed the views of the Commander-in-chief, he will be admitted to have effected no inconsiderable object in giving the American arms that appearance of superiority which was certainly acquired by this engagement.

Independent of the loss sustained in the action, the British army was considerably weakened in its march from Philadelphia to New York. About one hundred prisoners were made, and near one thousand soldiers, chiefly foreigners, deserted while passing through Jersey.

The conduct of Lee was generally disapproved. As however he had possessed a large share of the confidence and good opinion of the Commander-in-chief, it is probable that explanations might have been made which would have rescued him from the imputations that were cast on him, and have restored him to the esteem of the army, could his haughty temper have brooked the indignity he believed to have been offered him on the field of battle. General Washington had taken no measures in consequence of the events of that day, and would probably have come to no resolution concerning them without an amicable explanation, when he received from Lee a letter expressed in very unbecoming terms, in which he, in the tone of a superior, required reparation for the injury sustained "from the very singular expressions" said to have been used on the day of the action by the Commander-in-chief.

June 30.

This letter was answered by an assurance that, so soon as circumstances would admit of an inquiry, he should have an opportunity of justifying himself, to the army, to America, and to the world in general; or of convincing them that he had been guilty of disobedience of orders, and misbehaviour before the enemy. General Lee arrested for his behavior in this action, and afterwards to the commander-in-chief. On his expressing a wish for a speedy investigation of his conduct, and for a court-martial rather than a court of inquiry, he was arrested.

First. For disobedience of orders in not attacking the enemy on the 28th of June, agreeably to repeated instructions.

Secondly. For misbehaviour before the enemy on the same day, in making an unnecessary, disorderly, and shameful retreat.

Thirdly. For disrespect to the Commander-in-chief in two letters.

Before this correspondence had taken place, strong and specific charges of misconduct had been made against General Lee by several officers of his detachment, and particularly by Generals Wayne and Scott. In these, the transactions of the day, not being well understood, were represented in colours much more unfavourable to Lee, than facts, when properly explained, would seem to justify. These representations, most probably, induced the strong language of the second article in the charge. Court-martial appointed to try him. Sentenced to be suspended for one year. A court-martial, over which Lord Stirling presided, after a tedious investigation, found him guilty of all the charges exhibited against him, and sentenced him to be suspended for one year. This sentence was, afterwards, though with some hesitation, approved, almost unanimously, by congress. The court softened, in some degree, the severity of the second charge, by finding him guilty, not in its very words, but "of misbehaviour before the enemy, by making an unnecessary, and, in some few instances, a disorderly retreat."

Lee defended himself with his accustomed ability. He proved that, after the retreat had commenced, in consequence of General Scott's repassing the ravine, on the approach of the enemy, he had designed to form on the first advantageous piece of ground he could find; and that, in his own opinion, and in the opinion of some other officers, no safe and advantageous position had presented itself until he met General Washington; at which time it was his intention to fight the enemy on the very ground afterwards taken by that officer. He suggested a variety of reasons in justification of his retreat, which,

if they do not absolutely establish its propriety, give it so questionable a form as to render it probable that a public examination never would have taken place, could his proud spirit have stooped to offer explanation instead of outrage, to the Commander-in-chief.

His suspension gave general satisfaction through the army. Without being masters of his conduct as a military man, they perfectly understood the insult offered to their general by his letters; and, whether rightly or not, believed his object to have been to disgrace Washington, and to obtain the supreme command for himself. So devotedly were all ranks attached to their general, that the mere suspicion of such a design, would have rendered his continuance in the army extremely difficult.

Whatever judgment may be formed on the propriety of his retreat, it is not easy to justify, either the omission to keep the Commander-in-chief continually informed of his situation and intentions, or the very rude letters written after the action was over.

The thanks of congress presented to General Washington and his army for their conduct in the battle at Monmouth.

July 5.

The battle of Monmouth gave great satisfaction to congress. A resolution was passed unanimously, thanking General Washington for the activity with which he marched from the camp at Valley Forge, in pursuit of the enemy; for his distinguished exertions in forming the line of battle, and for his great good conduct in the action; and he was requested to signify the thanks of congress to the officers and men under his command, who distinguished themselves by their conduct and valour in the battle.

After remaining a few days on the high grounds of Middletown, Sir Henry Clinton proceeded to Sandy Hook, whence his army passed over to New York.

CHAPTER II.

Count D'Estaing arrives with a French fleet.... Meditates an attack on the British fleet in New York harbour.... Relinquishes it.... Sails to Rhode Island.... Lord Howe appears off Rhode Island.... Both fleets dispersed by a storm.... General Sullivan lays siege to Newport.... D'Estaing returns.... Sails for Boston.... Sullivan expresses his dissatisfaction in general orders.... Raises the siege of Newport.... Action on Rhode Island.... The Americans retreat to the Continent.... Count D'Estaing expresses his dissatisfaction with Sullivan in a letter to congress.... General Washington labours successfully to heal these discontents.... Lord Howe resigns the command of the British fleet.... Colonel Baylor's regiment surprised.... Captain Donop defeated by Colonel Butler.... Expedition of the British against Egg Harbour.... Pulaski surprised.

1778 July.

Before General Washington could reach the ground he designed to occupy, intelligence was received that a powerful French fleet, under the command of the Count D'Estaing, had appeared off Chingoteague inlet, the northern extremity of the coast of Virginia.

Count D'Estaing arrives on the coast of Virginia with a French fleet under his command.

He meditates an attack on the British fleet at New York, but is obliged to relinquish it. The Count had sailed from Toulon on the 13th of April, with twelve ships of the line and six frigates, having on board a respectable body of land forces. His destination was the Delaware; and he hoped to find the British fleet in that river, and their army in Philadelphia. An uncommon continuance of adverse winds, protracted his voyage across the Atlantic to the extraordinary length of eighty-seven days. This unusual circumstance saved the British fleet and army.

On reaching the capes of the Delaware, the Count announced his arrival to congress; and, having failed in accomplishing his first object, proceeded along the coast to New York, in the hope of being able to attack the British fleet in the harbour of that place.

Sir Henry Clinton was again indebted to some fortunate incidents for his safety.

The violent storms of the preceding winter had broken through the narrow isthmus by which Sandy Hook was connected with the continent, and had converted the peninsula into an island. This rendered it necessary for the army to pass from the main to the Hook on a bridge of boats, which would have been impracticable, if obstructed by a superior fleet. It was effected the very day on which D'Estaing appeared off Chingoteague inlet.

July 13. At Paramus, in Jersey, General Washington received a letter from the president of congress, advising him of this important event, and requesting that he would concert measures with the Count for conjoint and offensive operations.

The next day he received a second letter on the same subject, enclosing two resolutions, one directing him to co-operate with the French admiral, and the other authorizing him to call on the states from New Hampshire to New Jersey inclusive, for such aids of militia as he might deem necessary for the operations of the allied arms.

He determined to proceed immediately to the White Plains, whence the army might co-operate with more facility in the execution of any attempt which might be made by the fleet, and despatched Lieutenant Colonel Laurens, one of his aids de camp, with all the information relative to the enemy, as well as to his own army, which might be useful to D'Estaing. Lieutenant Colonel Laurens was authorized to consult on future conjoint operations, and to establish conventional signals for the purpose of facilitating the communication of intelligence.

The French admiral, on arriving off the Hook, despatched Major de Choisi, a gentleman of his family, to General Washington, for the purpose of communicating fully his views and his strength. His first object was to attack New York. If this should be found impracticable, he was desirous of turning his attention to Rhode Island. To assist in coming to a result on these enterprises, General Washington despatched Lieutenant Colonel Hamilton with such farther communications as had been suggested, by inquiries made since the departure of Lieutenant Colonel Laurens.

Fearing that the water on the bar at the entrance of the harbour was not of sufficient depth to admit the passage of the largest ships of the French fleet without much difficulty and danger, General Washington had turned his attention to other objects which might be, eventually, pursued. General

Sullivan, who commanded the troops in Rhode Island, was directed to prepare for an enterprise against Newport; and the Marquis de Lafayette was detached with two brigades to join him at Providence. July 21. The next day Lieutenant Colonel Hamilton returned to camp with the final determination of the Count D'Estaing to relinquish the meditated attack on the fleet in the harbour of New York, in consequence of the impracticability of passing the bar.

General Greene was immediately ordered to Rhode Island, of which state he was a native; and Lieutenant Colonel Laurens was directed to attach himself to the French admiral, and to facilitate all his views by procuring whatever might give them effect; after which he was to act with the army under Sullivan.

Sails out to Rhode Island and arrives off Newport.

The resolution being taken to proceed against Rhode Island, the fleet got under way, and, on the 25th of July, appeared off Newport, and cast anchor about five miles from that place, just without Brenton's ledge; soon after which, General Sullivan went on board the Admiral, and concerted with him a plan of operations for the allied forces. The fleet was to enter the harbour, and land the troops of his Christian Majesty on the west side of the island, a little to the north of Dyer's island. The Americans were to land at the same time on the opposite coast, under cover of the guns of a frigate.

Although the appearance of the French fleet had animated the whole country, and had produced a considerable degree of alacrity for the service; although the success of the enterprise essentially depended on maintaining a superiority at sea, which there was much reason to apprehend would soon be wrested from them; yet such are the delays inseparable from measures to bring husbandmen into the field as soldiers, that the operations against Newport were suspended for several days on this account.

As the militia of New Hampshire and Massachusetts approached, General Sullivan joined General Greene at Tiverton, and it was agreed with the Admiral that the fleet should enter the main channel immediately, and that the descent should be made the succeeding day. August 8. The ships of war passed the British batteries and entered the harbour, without receiving or doing any considerable damage.

The militia not arriving precisely at the time they were expected, General Sullivan could not hazard the movement which had been concerted, and stated to the Count the necessity of postponing it till the next day. Meanwhile, the preparations for the descent being perceived, General Pigot drew the troops

which had been stationed on the north end of the island into the lines at Newport.

On discovering this circumstance the next morning, Sullivan determined to avail himself of it, and to take immediate possession of the works which had been abandoned. August 9. The whole army crossed the east passage, and landed on the north end of Rhode Island. This movement gave great offence to the Admiral, who resented the indelicacy supposed to have been committed by Sullivan in landing before the French, and without consulting him.

Unfortunately, some difficulties, on subjects of mere punctilio, had previously arisen. The Count D'Estaing was a land as well as sea officer; and held the high rank of lieutenant general in the service of France. Sullivan being only a major general, some misunderstanding on this delicate point had been apprehended; and General Washington had suggested to him the necessity of taking every precaution to avoid it. This, it was supposed, had been effected in their first conference, in which it was agreed that the Americans should land first, after which the French should land, to be commanded by the Count D'Estaing in person. The motives for this arrangement are not stated; but it was most probably made solely with a view to the success of the enterprise. Either his own after-reflections or the suggestions of others dissatisfied the Count with it, and he insisted that the descent should be made on both sides of the island precisely at the same instant, and that one wing of the American army should be attached to the French, and land with them. He also declined commanding in person, and wished the Marquis de Lafayette to take charge of the French troops as well as of the Americans attached to them.

It being feared that this alteration of the plan might endanger both its parts, D'Estaing was prevailed on to reduce his demand from one wing of the American army to one thousand militia. When, afterwards, General Sullivan crossed over into the island before the time to which he had himself postponed the descent, and without giving previous notice to the Count of this movement, some suspicions seem to have been excited, that the measure was taken with other views than were avowed, and no inconsiderable degree of excitement was manifested. The Count refused to answer Sullivan's letter, and charged Lieutenant Colonel Fleury, who delivered it, with being more an American than a Frenchman.

At this time a British fleet appeared, which, after sailing close into the land, and communicating with General Pigot, withdrew some distance, and came to anchor off point Judith, just without the narrow inlet leading into the harbour.

After it had been ascertained that the destination of the Count D'Estaing was America, he was followed by a squadron of twelve ships of the line under Admiral Byron, who was designed to relieve Lord Howe, that nobleman having solicited his recall. The vessels composing this squadron meeting with weather unusually bad for the season, and being separated in different storms, arrived, after lingering through a tedious passage, in various degrees of distress, on different and remote parts of the American coast. Between the departure of D'Estaing from the Hook on the 23d of July, and the 30th of that month, four ships of sixty-four and fifty guns arrived at Sandy Hook.

This addition to the British fleet, though it left Lord Howe considerably inferior to the Count D'Estaing, determined him to attempt the relief of Newport. He sailed from New York on the 6th of August; and, on the 9th, appeared in sight of the French fleet, before intelligence of his departure could be received by the Admiral.

Sails to attack Lord Howe, who appears off Rhode Island.
August 10.

At the time of his arrival the wind set directly into the harbour, so that it was impossible to get out of it; but it shifted suddenly to the north-east the next morning, and the Count determined to stand out to sea, and give battle. Previous to leaving port, he informed General Sullivan that, on his return, he would land his men as that officer should advise.

Not choosing to give the advantage of the weather-gage, Lord Howe also weighed anchor and stood out to sea. He was followed by D'Estaing; and both fleets were soon out of sight.

The militia were now arrived; and Sullivan's army amounted to ten thousand men. Some objections were made by Lafayette to his commencing operations before the return of D'Estaing. That officer advised that the army should be advanced to a position in the neighbourhood of Newport, but should not break ground until the Count should be in readiness to act in concert with them. It was extremely desirable to avoid whatever might give offence to the great ally on whose assistance so much depended; but time was deemed of such importance to an army which could not be kept long together, that this advice was overruled, and it was determined to commence the siege immediately.

August 12.

Before this determination could be executed, a furious storm blew down all the tents, rendered the arms unfit for immediate use, and greatly damaged the ammunition, of which fifty rounds had just been delivered to each man. The

soldiers, having no shelter, suffered extremely; and several perished in the storm, which continued three days. Fifteenth.

General Sullivan lays siege to Newport. On the return of fair weather the siege was commenced, and continued without any material circumstance for several days.

As no intelligence had been received from the Admiral, the situation of the American army was becoming very critical. On the evening of the 19th, their anxieties were relieved for a moment by the reappearance of the French fleet.

The two Admirals, desirous the one of gaining, and the other of retaining the advantage of the wind, had employed two days in manœuvring, without coming to action. Both fleets dispersed by a storm. Towards the close of the second, they were on the point of engaging, when they were separated by the violent storm which had been felt so severely on shore, and which dispersed both fleets. Some single vessels afterwards fell in with each other, but no important capture was made; and both fleets retired in a very shattered condition, the one to the harbour of New York, and the other to that of Newport.

D'Estaing returns to Newport, and against the solicitations of Sullivan, sails for Boston.

A letter was immediately despatched by D'Estaing to Sullivan, informing him that, in pursuance of orders from the King, and of the advice of all his officers, he had taken the resolution to carry the fleet to Boston. His instructions directed him to sail for Boston should his fleet meet with any disaster, or should a superior British fleet appear on the coast.

This communication threw Sullivan and his army into despair. General Greene and the Marquis de Lafayette were directed to wait on the Admiral with a letter from Sullivan remonstrating against this resolution, and to use their utmost endeavors to induce him to change it.

They represented to him the certainty of carrying the garrison if he would co-operate with them only two days, urged the impolicy of exposing the fleet at sea, in its present condition, represented the port of Boston as equally insecure with that of Newport, and added that the expedition had been undertaken on condition that the French fleet and army should co-operate with them; that confiding in this co-operation, they had brought stores into the island to a great amount, and that to abandon the enterprise in the present state of things, would be a reproach and disgrace to their arms. To be deserted at such a critical moment would have a pernicious influence on the minds of the American

people, and would furnish their domestic foes, as well as the common enemy, with the means of animadverting severely on their prospects from an alliance with those who could abandon them under circumstances such as the present. They concluded with wishing that the utmost harmony and confidence might subsist between the two nations, and especially between their officers; and entreated the Admiral, if any personal indiscretions had appeared in conducting the expedition, not to permit them to prejudice the common cause.

Whatever impression these observations may have made on the Count, they could not change the determination he had formed.

General Greene, in his representation of this conversation, stated that the principal officers on board the fleet were the enemies of D'Estaing. He was properly a land officer, and they were dissatisfied with his appointment in the navy. Determined to thwart his measures, and to prevent, as far as could be justified, his achieving any brilliant exploit, they availed themselves of the letter of his instructions, and unanimously persevered in advising him to relinquish the enterprise, and sail for Boston. He could not venture, with such instructions, to act against their unanimous opinion; and, although personally disposed to re-enter the harbour, declined doing so, and sailed from the island.

On the return of Greene and Lafayette, Sullivan made yet another effort to retain the fleet. He addressed a second letter to the Admiral, pressing him, in any event, to leave his land forces. The bearer of this letter was also charged with a protest signed by all the general officers in Rhode Island except Lafayette, the only effect of which was to irritate D'Estaing, who proceeded, without delay, on his voyage to Boston.

In consequence of the departure of the French fleet, Sullivan raises the siege of Newport.

Thus abandoned by the fleet, Sullivan called a council of general officers, who were in favour of attempting an assault if five thousand volunteers who had seen nine months service could be obtained for the enterprise; but the departure of the fleet had so discouraged the militia, that this number could not be procured; and, in a few days, the army was reduced by desertion to little more than five thousand men. As the British were estimated at six thousand, it was determined to raise the siege, and retire to the north end of the island, there to fortify, and wait the result of another effort to induce D'Estaing to return.

August 28.

In the night of the 28th, the army retired by two roads leading to the works on the north end of the island, having its rear covered by Colonels Livingston

and Laurens, who commanded light parties on each.

August 29.

Early next morning the retreat was discovered by the British, who followed in two columns, and were engaged on each road by Livingston and Laurens, who retreated slowly and kept up the action with skill and spirit until the English were brought into the neighbourhood of the main body of the Americans, drawn up in order of battle on the ground of their encampment. The British formed on Quaker Hill, a very strong piece of ground, something more than a mile in front of the American line.

Sullivan's rear was covered by strong works; and in his front, rather to the right, was a redoubt. In this position, the two armies cannonaded each other for some time, and a succession of skirmishes was kept up in front of both lines until about two in the afternoon, when the British advanced in force, attempted to turn the right flank, and made demonstrations of an intention to carry the redoubt in front of the right wing. Action between Sullivan and the British army. General Greene, who commanded that wing, advanced to its support, and a sharp engagement was continued for about half an hour, when the British retreated to Quaker Hill. The cannonade was renewed, and kept up intermingled with slight skirmishing until night.

According to the return made by General Sullivan, his loss in killed, wounded and missing was two hundred and eleven. That of the British, as stated by General Pigot, amounted to two hundred and sixty.

August 30.

The next day, the cannonade was renewed, but neither army was inclined to attack the other. The British waited for reinforcements, and Sullivan had at length determined to retire from the island.

The Commander-in-chief had observed some movements among the British transports indicating the embarkation of troops, and had suggested to Sullivan the necessity of securing his retreat. A fleet of transports soon put to sea with a large body of troops, of which immediate notice was given to Sullivan in a letter recommending his retreat to the continent. This reinforcement, which consisted of four thousand men, commanded by Sir Henry Clinton in person, was delayed by adverse winds until the letter of General Washington was received, and the resolution to evacuate the island was taken. The whole army passed over to the continent unobserved by the enemy, and disembarked about Tiverton by two in the morning.

Sullivan retreats with his army to the continent.

Never was retreat more fortunate. Sir Henry Clinton arrived the next day; and the loss of the American army would have been inevitable.

The complete success of this expedition had been confidently anticipated throughout America; and the most brilliant results had been expected from the capture of so important a part of the British army as the garrison of Newport. The chagrin produced by disappointment was proportioned to the exaltation of their hopes. In general orders issued by Sullivan, soon after the departure of D'Estaing, Sullivan, in one of his general orders, makes use of expressions which offend the count. he permitted some expressions to escape him which were understood to impute to the Count D'Estaing, and to the French nation, an indisposition to promote the interests of the United States. These insinuations wounded the feelings of the French officers, and added, in no small degree, to the resentments of the moment. In subsequent orders, the General sought to correct this indiscretion; and alleged that he had been misunderstood by those who supposed him to blame the Admiral, with whose orders he was unacquainted, and of whose conduct he was, consequently, unable to judge. He also stated explicitly the important aids America had received from France, aids of which he ought not to be unmindful under any disappointment; and which should prevent a too sudden censure of any movement whatever.

Count D'Estaing expresses to congress his dissatisfaction with General Sullivan.

The Count D'Estaing, on his part, addressed a letter to congress containing a statement of all the movements of his fleet subsequent to its arrival on the coast, in which his chagrin and irritation were but ill concealed.

In congress, after approving the conduct of Sullivan and his army, an indiscreet proposition was made to inquire into the causes of the failure of the expedition; but this was set aside by the previous question.

In the first moments of vexation and disappointment, General Sullivan had addressed some letters to the governor of Rhode Island, complaining bitterly of being abandoned by the fleet. These despatches were transmitted by the governor to the speaker of the assembly, and were on the point of being submitted publicly to the house, when they were fortunately arrested by General Greene, who had been introduced on the floor, and placed by the side of the chair; and to whom they were shown by the speaker.

The discontent in New England generally, and in Boston particularly, was so great as to inspire fears that the means of repairing the French ships would not be supplied. To guard against the mischief which might result from this temper, as well as for other objects, General Hancock had repaired from camp to Boston, and Lafayette had followed him on a visit to D'Estaing.

The consequences to be apprehended from this unavailing manifestation of ill temper, soon induced all reflecting men to exert themselves to control it. General Washington labours to heal these discontents, in which he succeeds. In the commencement of its operation, General Washington, foreseeing the evils with which it was fraught, had laboured to prevent them. He addressed letters to General Sullivan, to General Heath, who commanded at Boston, and to other individuals of influence in New England, urging the necessity of correcting the intemperance of the moment, and of guarding against the interference of passion with the public interest.

Soon after the transmission of these letters, he received a resolution of congress, directing him to take every measure in his power to prevent the publication of the protest entered into by the officers of Sullivan's army. In his letter communicating this resolution, he said, "the disagreement between

the army under your command and the fleet, has given me very singular uneasiness. The continent at large is concerned in our cordiality, and it should be kept up by all possible means, consistent with our honour and policy. First impressions, you know, are generally longest retained, and will serve to fix, in a great degree, our national character with the French. In our conduct towards them, we should remember that they are a people old in war, very strict in military etiquette, and apt to take fire when others scarcely seem warm. Permit me to recommend in the most particular manner, the cultivation of harmony and good agreement, and your endeavours to destroy that ill humour which may have found its way among the officers. It is of the utmost importance too, that the soldiers and the people should know nothing of this misunderstanding, or, if it has reached them, that means may be used to stop its progress, and prevent its effects." In a letter to General Greene, after expressing his fears that the seeds of dissension and distrust might be sown between the troops of the two nations, he added, "I depend much on your temper and influence, to conciliate that animosity which, I plainly perceive by a letter from the Marquis, subsists between the American and French officers in our service. This, you may be assured, will extend itself to the Count, and to the officers and men of his whole fleet, should they return to Rhode Island, unless a reconciliation shall have taken place. The Marquis speaks kindly of a letter from you to him on this subject. He will therefore take any advice from you in a friendly way; and, if he can be pacified, the other French gentlemen will, of course, be satisfied; since they look up to him as their head. The Marquis grounds his complaint on a general order of the 24th of August, and upon the universal clamour that prevailed against the French nation.

"I beg you will take every measure to keep the protest entered into by the general officers from being made public. Congress, sensible of the ill consequences that will flow from our differences being known to the world, have passed a resolve to that purpose. Upon the whole, my dear sir, you can conceive my meaning,[\[9\]](#) better than I can express it, and I therefore fully depend on your exerting yourself to heal all private animosities between our principal officers and the French, and to prevent all illiberal expressions and reflections that may fall from the army at large."

The General also seized the first opportunity to recommence his correspondence with the Count; and his letters, without noticing the disagreement which had taken place, were calculated to soothe every angry

sensation which might have been excited. A letter from the admiral stating the whole transaction, was answered by General Washington in a manner so perfectly satisfactory, that the irritation which threatened such serious mischief, appears to have entirely subsided.

Congress also, in a resolution which was made public, expressed their perfect approbation of the conduct of the Count, and directed the president to assure him, in the letter which should transmit it, that they entertained the highest sense of his zeal and attachment.

These prudent and temperate measures restored harmony to the allied armies.

The storm under which the French fleet had suffered so severely did considerable damage also to that of Lord Howe. The British, however, had sustained less injury than the French, and were soon in a condition to put again to sea. Having received information that the Count D'Estaing had made for Boston, Lord Howe sailed for the same port, in the hope of reaching it before him. But in this he was disappointed. On entering the bay he found the French fleet already in Nantasket Road, where such judicious dispositions had been made for its defence, that he relinquished the idea of attacking it, and returned to New York; Lord Howe resigns command of the British fleet, where he resigned the command to Admiral Gambier, who was to retain it till the arrival of Admiral Byron.

Finding that General Sullivan had retreated to the continent, Sir Henry Clinton returned to New York, leaving the command of the troops on board the transports with Major General Gray, who was directed to conduct an expedition to the eastward, as far as Buzzards bay.

September 5.

Gray entered Acushnet River, where he destroyed a number of privateers with their prizes, and some merchant vessels. He also reduced part of the towns of Bedford and Fairhaven to ashes, in which some military and naval stores had been collected. The troops re-embarked the next day, before the militia could be assembled in sufficient force to oppose them, and sailed to Martha's Vineyard, where they destroyed several vessels, and some salt works, and levied a heavy contribution of live stock on the inhabitants.

While so large a detachment from the British army was depredating the coasts of New England, preparations were making in New York for some distant expedition; and many were of opinion that the French fleet was its

object. To be in readiness to oppose a combined attack by sea and land on the fleet, General Gates was directed with three brigades, to proceed by easy marches as far as Danbury, in Connecticut. And Washington moved northward to Fredericksburg; while General Putnam was detached with two brigades to the neighbourhood of West Point, and General M'Dougal, with two others, to join General Gates at Danbury.

September 22.

Soon after the return of General Gray from New England, the British army moved up the North River on each side in great force. The column on the west side, commanded by Lord Cornwallis, consisting of about five thousand men, took a position with its right on the river, and its left extending to Newbridge, on the Hackensack; while the other division, which was commanded by General Knyphausen, consisting of about three thousand men, was advanced about the same distance on the east side of the Hudson. The command of the river enabled these two columns to communicate freely with each other; and, at any time, to reunite. Although General Washington conjectured that this movement was made for the purpose of foraging, yet it was possible that the passes in the Highlands might be its object; and orders were given to the detachments on the lines to hold themselves in readiness to anticipate the execution of such a design.

Colonel Baylor, with his regiment of cavalry, had crossed the Hackensack early in the morning of the 27th of September, and taken quarters at Taupaun, or Herrington, a small village near New Taupaun, where some militia were posted. Immediate notice of his position was given to Lord Cornwallis, who formed a plan to surprise and cut off both the cavalry and militia. The party designed to act against Colonel Baylor was commanded by General Gray, and that against the militia, by Lieutenant Colonel Campbell.

September 28.

That part of the plan which was to be executed by Campbell was defeated by delays in passing the river, during which a deserter gave notice of his approach, and the militia saved themselves by flight. But the corps commanded by General Gray, guided by some of the country people, eluded the patrols, got into the rear of the sergeant's guard which had been posted at a bridge over the Hackensack, cut it off without alarming Baylor, Colonel Baylor's regiment surprised, and completely surprised his whole regiment.

The British troops rushed into a barn where the Americans slept; and, refusing to give quarter, bayoneted for a time all they saw. Of one hundred and four privates, sixty-seven were killed, wounded, and taken. The number of prisoners, amounting to about forty, is stated to have been increased by the humanity of one of Gray's captains, who, notwithstanding his orders, gave quarter to the whole of the fourth troop. Colonel Baylor and Major Clough, who were both wounded with the bayonet, the first dangerously, the last mortally, were among the prisoners.

September 30.

Captain Donop, with his corps, attacked by Colonel Butler, and defeated.

Three days after this affair, Colonel Richard Butler, with a detachment of infantry, assisted by Major Lee with a part of his cavalry, fell in with a small party of chasseurs and yagers under Captain Donop, which he instantly charged, and, without the loss of a man, killed ten on the spot, and took the officer commanding the chasseur, and eighteen of the yagers, prisoners. Only the extreme roughness of the country, which impeded the action of the cavalry, and prevented part of the infantry from coming up, enabled a man of the enemy to escape. Some interest was taken at the time in this small affair, because it seemed, in some measure, to revenge the loss of Colonel Baylor.

After completing their forage, the British army returned to New York.

Expedition of the British against Egg Harbour.

This movement had been, in part, designed to cover an expedition against Little Egg Harbour, which was completely successful; and the works and store-houses at the place, as well as the merchandise and vessels, were entirely destroyed.

It has been already stated that Count Pulaski had been appointed general of the American cavalry. The dissatisfaction given by this appointment to the officers, had induced him to resign his commission; but, thirsting for military fame, and zealous in the American cause, he obtained permission to raise a legionary corps, which he officered chiefly with foreigners, and commanded in person. In this corps, one Juliet, a deserter, had been admitted as an officer. The Count had been ordered to march from Trenton towards Little Egg Harbour, and was lying eight or ten miles from the coast, when this Juliet again deserted, carrying with him intelligence of Pulaski's strength and situation. Pulaski surprised, and his infantry cut off. A plan was

formed to surprise him, which succeeded completely so far as respected his infantry, who were put to the bayonet. The British accounts of this expedition assert that the whole corps was destroyed. Pulaski stated his loss at about forty; and averred that on coming up with his cavalry to the relief of his infantry, he repulsed the enemy. It is probable that the one account diminishes the importance of this enterprise as much as the other magnifies it.

October 12.

Admiral Byron reached New York, and took command of the fleet about the middle of September. After repairing his shattered vessels, he sailed for the port of Boston. Soon after his arrival in the bay, fortune disconcerted all his plans. A furious storm drove him out to sea, and damaged his fleet so much that he found it necessary to put into the port of Rhode Island to refit. This favourable moment was seized by the Count D'Estaing, who sailed, on the 3d of November, for the West Indies.

Thus terminated an expedition from which the most important advantages had been anticipated. A variety of accidents had defeated plans judiciously formed, which had every probability in their favour.

The Marquis de Lafayette, ambitious of fame on another theatre, was desirous of returning to France. Expecting war on the continent of Europe, he was anxious to tender his services to his king, and to his native country.

From motives of real friendship as well as of policy, General Washington was desirous of preserving the connexion of this officer with the army, and of strengthening his attachment to America. He therefore expressed to congress his wish that Lafayette, instead of resigning his commission, might have unlimited leave of absence, to return when it should be convenient to himself; and might carry with him every mark of the confidence of the government.

This policy was adopted by congress in its full extent. The partiality of America for Lafayette was well placed. Never did a foreigner, whose primary attachments to his own country remained undiminished, feel more solicitude for the welfare of another, than was unceasingly manifested by this young nobleman, for the United States.

There being no prospect of an active winter campaign in the northern or middle states, and the climate admitting of military operations elsewhere, a detachment from the British army, consisting of five thousand men

commanded by Major General Grant, sailed, early in November, under a strong convoy, for the West India Islands; and, towards the end of the same month, another embarkation was made for the southern parts of the continent. This second detachment was commanded by Lieutenant Colonel Campbell, who was escorted by Commodore Hyde Parker, and was destined to act against the southern states.

December.

As a force sufficient for the defence of New York yet remained, the American army retired into winter quarters. The main body was cantoned in Connecticut, on both sides the North River, about West Point, and at Middlebrook. Light troops were stationed nearer the lines; and the cavalry were drawn into the interior to recruit the horses for the next campaign. The distribution, the protection of the country, the security of important points, and a cheap and convenient supply of provisions, were consulted.

The troops again wintered in huts; but they were accustomed to this mode of passing that inclement season. Though far from being well clothed, their condition in that respect was so much improved by supplies from France, that they disregarded the inconveniences to which they were exposed.

CHAPTER III.

Arrival of the British commissioners.... Terms of conciliation proposed.... Answer of congress to their propositions.... Attempts of Mr. Johnson to bribe some members of congress.... His private letters ordered to be published.... Manifesto of the commissioners, and counter-manifesto of congress.... Arrival of Monsieur Girard, minister plenipotentiary of France.... Hostilities of the Indians.... Irruption into the Wyoming settlement.... Battle of Wyoming.... Colonel Dennison capitulates for the inhabitants.... Distress of the settlement.... Colonel Clarke surprises St. Vincent.... Congress determines to invade Canada.... General Washington opposes the measure.... Induces congress to abandon it.

1778

About the time that Commodore Parker sailed for the southern states, the commissioners appointed to give effect to the late conciliatory acts of Parliament, embarked for Europe. They had exerted their utmost powers to effect the object of their mission, but without success. Great Britain required that the force of the two nations should be united under one common sovereign; and America was no longer disposed, or even at liberty to accede to this condition. All those affections, which parts of the same empire should feel for each other, had been eradicated by a distressing war; the great body of the people were determined, at every sacrifice, to maintain their independence; and the treaty with France had pledged the honour and the faith of the nation, never to consent to a reunion with the British empire.

Arrival of the British commissioners.

The commissioners arrived in Philadelphia while that place was yet in possession of their army, and are understood to have brought positive orders for its evacuation. Their arrival was immediately announced to General Washington by Sir Henry Clinton, who was joined with them in the commission, and a passport was requested for their secretary, Doctor Ferguson, as the bearer of their first despatches to congress. The

Commander-in-chief declined granting this passport until he should receive the instructions of his government; Terms of conciliation proposed on which a letter addressed "To the president and other the members of congress," was forwarded in the usual manner. Copies of their commission, and of the acts of Parliament on which it was founded, together with propositions conforming to those acts, drawn in the most conciliatory language, were transmitted with this letter.

Some observations having been introduced into it reflecting on the conduct of France,[\[10\]](#) the reading was interrupted, and a motion made to proceed no farther in consequence of this offensive language to his most Christian Majesty. This motion producing some debate, an adjournment was moved and carried. When congress reassembled, the warmth of the preceding day had not entirely subsided; but, after several ineffectual motions to prevent it, the letter was read and committed. Answer of Congress to these propositions. The answer which was reported by the committee, and transmitted to the commissioners, declared that "nothing but an earnest desire to spare the farther effusion of human blood, could have induced them to read a paper containing expressions so disrespectful to his most Christian Majesty, the good and great ally of these states, or to consider propositions so derogatory to the honour of an independent nation.

"That the acts of the British Parliament, the commission from their sovereign, and their letter, supposed the people of the United States to be subjects of the crown of Great Britain, and were founded on the idea of dependence, which is totally inadmissible.

"That congress was inclined to peace, notwithstanding the unjust claims from which this was originated, and the savage manner in which it was conducted. They would therefore be ready to enter upon the consideration of a treaty of peace and commerce, not inconsistent with treaties already subsisting, when the King of Great Britain should demonstrate a sincere disposition for that purpose. The only solid proof of this disposition would be an explicit acknowledgment of the independence of these states, or the withdrawing his fleets and armies."

July 13.

On the 13th of July, after arriving at New York, the commissioners addressed a second letter to congress, expressing their regrets that any difficulties were raised which must prolong the calamities of war; and

reviewing the letter of congress in terms well calculated to make an impression on those who had become weary of the contest, and to revive ancient prejudices in favour of England and against France.

This letter being read, congress resolved that, as neither the independence of the United States was explicitly acknowledged, nor the fleets and armies withdrawn, no answer should be given to it.

It would seem that the first letter of congress must have convinced the British commissioners that no hope could be indulged of restoring peace on any other terms than the independence of the United States. Congress must have been equally certain that the commissioners were not empowered to acknowledge that independence, or to direct the fleets and armies of Great Britain to be withdrawn. The intercourse between them therefore, after the first communications were exchanged, and all subsequent measures, became a game of skill, in which the parties played for the affections and passions of the people; and was no longer a diplomatic correspondence, discussing the interests of two great nations with the hope of accommodation.

Attempts of Mr. Johnson to bribe influential members of congress.

The first packet addressed by the commissioners to congress, contained several private letters, written by Governor Johnson to members of that body, in which he blended, with flattering expressions of respect for their characters and their conduct, assurances of the honours and emoluments to which those would be entitled who should contribute to restore peace and harmony to the two countries and to terminate the present war.

A few days before the receipt of the letter of the 13th of July, congress passed a resolution requiring that all letters of a public nature received by any member from any subject of the British crown, should be laid before them. In compliance with this resolution, the letters of Governor Johnson were produced; and, some time afterwards, Mr. Read stated, in his place, a direct offer which had been made him by a third person, of a considerable sum of money, and of any office in the gift of the crown, as an inducement to use his influence for the restoration of harmony between the two countries. Congress orders the publication of the private letters from Johnson to the members of that body. Congress determined to communicate these circumstances to the American people, and made a solemn declaration, in which, after reciting the offensive paragraphs of the private

letters, and the conversation stated by Mr. Read, they expressed their opinion "that these were direct attempts to corrupt and bribe the congress of the United States, and that it was incompatible with their honour to hold any manner of correspondence or intercourse with the said George Johnson, Esquire, especially to negotiate with him upon affairs in which the cause of liberty is interested." After an unsuccessful attempt to involve the other commissioners in the same exclusion, this declaration was transmitted to them while they were expecting an answer to a remonstrance on the detention of the army of General Burgoyne.

On receiving it, Mr. Johnson withdrew from the commission, declaring that he should be happy to find congress inclined to retract their former declaration, and to negotiate with others on terms equally conducive to the happiness of both countries. This declaration was accompanied by one signed by the other commissioners, in which, without admitting the construction put by congress on his letters, or the authority of the person who held the conversation with Mr. Read, they denied all knowledge of those letters or of that conversation. They at the same time detailed the advantages to be derived by America from the propositions they had made, "advantages," they added, "decidedly superior to any which could be expected from an unnatural alliance with France, only entered into by that nation for the purpose of prolonging the war, after the full knowledge on their part of the liberal terms intended to be offered by Great Britain." With this declaration was transmitted a copy of the former remonstrance[\[11\]](#) against the detention of the convention troops, without the signature of Governor Johnson, and an extract from the instructions given by the Secretary of State to Sir Henry Clinton, authorizing him to demand, in express terms, a performance of the convention made with General Burgoyne, and, if required, to renew and ratify all its conditions in the name of the king.

All the publications of the British commissioners indicate an opinion that they could be more successful with the people than with congress; and, not unfrequently betray the desire that the constituents of that body might be enabled to decide on the measures taken by their representatives.

On the part of congress, it was decreed of the utmost importance to keep the public mind correct, and to defeat all attempts to make unfavourable impressions on it. Several members of that body entered the lists as

disputants, and employed their pens with ability and success, as well in serious argument, as in rousing the various passions which influence the conduct of men. The attempt to accomplish the object of the mission by corruption was wielded with great effect; and it was urged with equal force that should the United States now break their faith with France, and treat on the footing of dependence, they would sacrifice all credit with foreign nations, would be considered by all as faithless and infamous, and would forfeit all pretensions to future aid from abroad; after which the terms now offered might be retracted, and the war be recommenced. To these representations were added the certainty of independence, and the great advantages which must result from its establishment. The letters of the commissioners were treated as attempts to sow divisions among the people of which they might afterwards avail themselves, and thus effect by intrigue, what had been found unattainable by arms.

These essays were read with avidity, and seem to have produced all the effect which was expected from them among the friends of the revolution.

October 8.

The commissioners appear still to have cherished the hope, that a complete knowledge of the terms they had offered, operating on the disappointment of the extravagant hopes which had been founded on the arrival of a French fleet, would make a great impression on a large portion of the American people. This opinion induced them, before their departure, to publish a manifesto, addressed, not only to congress, but to all the provincial assemblies, and all the inhabitants of the colonies of whatever denomination, briefly recapitulating the several steps they had taken to accomplish the object of their mission, and the refusal of congress even to open a conference with them. Manifesto of the commissioners, and counter-manifestos by congress. They declared their readiness still to proceed in the execution of the powers contained in their commission, and to treat either with deputies from all the colonies conjointly, or with any provincial assembly or convention individually, at any time within the space of forty days from the date of their manifesto. They also proclaimed a general pardon for all treasons and rebellious practices committed at any time previous to the date of their manifesto, to such as should, within the term of forty days, withdraw from their opposition to the British government, and conduct themselves as faithful and loyal subjects. To enable all persons to

avail themselves of this proffered pardon, thirteen copies of the manifesto were executed, one of which was transmitted by a flag of truce to each state. A vast number of copies were printed, and great exertions were made by flags and other means to disperse them among the people.

On being informed of these proceedings, congress, without hesitation, adopted the course which the government of an independent nation is bound to pursue, when attempts are made by a foreign power to open negotiations with unauthorized individuals. They declared the measure "to be contrary to the law of nations, and utterly subversive of that confidence which could alone maintain those means which had been invented to alleviate the horrors of war; and, therefore, that the persons employed to distribute such papers, were not entitled to the protection of a flag." They recommended it to the executive departments in the respective states, "to secure, in close custody, every person who, under the sanction of a flag, or otherwise, was found employed in circulating those manifestoes." At the same time, to show that these measures were not taken for the purpose of concealment, they directed a publication of the manifesto in the American papers. Care, however, was taken to accompany it with comments made by individuals, calculated to counteract its effect. A vessel containing a cargo of these papers being wrecked on the coast, the officers and crew were made prisoners; and the requisition of Admiral Gambier for their release, in consequence of the privilege afforded by his flag, was answered by a declaration that they had forfeited that privilege by being charged with seditious papers.

October 30.

Not long after the publication of this paper, a counter-manifesto was issued by congress, in which, after touching on subjects which might influence the public mind, they "solemnly declare and proclaim, that if their enemies presume to execute their threats, or persist in their present course of barbarity, they will take such exemplary vengeance as shall deter others from a like conduct."

Thus ended this fruitless attempt to restore a connexion which had been wantonly broken, the reinstatement of which had become impracticable. With the war, and with independence, a course of opinion had prevailed in America, which not only opposed great obstacles to a reunion of the two countries under one common sovereign, but, by substituting discordant

materials in the place of the cement which formerly bound them together, rendered such an event undesirable even to the British themselves. The time was arrived when the true interest of that nation required the relinquishment of an expensive war, the object of which was unattainable, and which, if attained, could not be long preserved; and the establishment of those amicable relations which reciprocal interests produce between independent states, capable of being serviceable to each other by a fair and equal interchange of good offices.

This opinion, however, was not yet embraced by the cabinet of London; and great exertions were still to be made for the reannexation of the American states to the British empire. Even the opposition was not united against a continuance of the war for the object now proposed; and the Earl of Chatham, who had endeavoured first to prevent the conflict, and afterwards to produce conciliation, closed his splendid life in unavailing efforts to prevent that dismemberment which had become inevitable.[\[12\]](#)

July 14.

Arrival of Girard, minister plenipotentiary from the King of France.

In the midst of these transactions with the commissioners of Great Britain, the Sieur Girard arrived at Philadelphia, in the character of Minister Plenipotentiary of his Most Christian Majesty.

The joy produced by this event was unbounded; and he was received by congress with great pomp.

While these diplomatic concerns employed the American cabinet, and while the war seemed to languish on the Atlantic, it raged to the west in its most savage form.

The difficulties which the inability of the American government to furnish the neighbouring Indians with those European articles which they were accustomed to use, opposed to all the efforts of congress to preserve their friendship, have already been noticed. Early in 1778, there were many indications of a general disposition among those savages to make war on the United States; and the frontiers, from the Mohawk to the Ohio, were threatened with the tomahawk and the scalping knife. Every representation from that country supported the opinion that a war with the Indians should never be defensive; and that, to obtain peace, it must be carried into their own country. Detroit, whose governor was believed to have been particularly active in exciting hostilities, was understood to be in a

defenceless condition; and congress resolved on an expedition against that place. June 11. This enterprise was entrusted to General M'Intosh, who commanded at Pittsburg, and was to be carried on with three thousand men, chiefly militia, to be drawn from Virginia. To facilitate its success, the resolution was also taken to enter the country of the Senecas at the same time, by the way of the Mohawk. The officer commanding on the east of the Hudson was desired to take measures for carrying this resolution into execution; and the commissioners for Indian affairs, at Albany, were directed to co-operate with him.

Unfortunately, the acts of the government did not correspond with the vigour of its resolutions. The necessary preparations were not made, and the inhabitants of the frontiers remained without sufficient protection, until the plans against them were matured, and the storm which had been long gathering, burst upon them with a fury which spread desolation wherever it reached.

Colonel John Butler, with a party of Indians, breaks into the Wyoming settlement.

About three hundred white men, commanded by Colonel John Butler, and about five hundred Indians, led by the Indian chief Brandt, who had assembled in the north, marched late in June against the settlement of Wyoming. These troops embarked on the Chemung or Tyoga, and descending the Susquehanna, landed at a place called the Three Islands, whence they marched about twenty miles, and crossing a wilderness, and passing through a gap in the mountain, entered the valley of Wyoming near its northern boundary. At this place a small fort called Wintermoots had been erected, which fell into their hands without resistance, and was burnt. The inhabitants who were capable of bearing arms assembled on the first alarm at Forty fort, on the west side of the Susquehanna, four miles below the camp of the invading army.

The regular troops, amounting to about sixty, were commanded by Colonel Zebulon Butler;[\[13\]](#) the militia by Colonel Dennison. Colonel Butler was desirous of awaiting the arrival of a small reinforcement under Captain Spalding, who had been ordered by General Washington to his aid on the first intelligence of the danger which threatened the settlement; but the militia generally, believing themselves sufficiently strong to repel the invading force, urged an immediate battle so earnestly, that Colonel Butler

yielded to their remonstrances, and on the 3d of July marched from Forty fort at the head of near four hundred men to attack the enemy.

The British and Indians were prepared to receive him. Their line was formed a small distance in front of their camp, in a plain thinly covered with pine, shrub oaks, and under growth, and extended from the river about a mile to a marsh at the foot of the mountain. The Americans advanced in a single column, without interruption, until they approached the enemy, when they received a fire which did not much mischief. The line of battle^[14] was instantly formed, and the action commenced with spirit. The Americans rather gained ground on the right where Colonel Butler commanded, until a large body of Indians passing through the skirt of the marsh turned their left flank, which was composed of militia, and poured a heavy and most destructive fire on their rear. The word "retreat" was pronounced by some person, and the efforts of the officers to check it were unavailing. The fate of the day was decided, and a flight commenced on the left which was soon followed by the right. As soon as the line was broken, the Indians, throwing down their rifles and rushing upon them with the tomahawk, completed the confusion. The attempt of Colonel Butler and of the officers to restore order were unavailing, and the whole line broke and fled in confusion. The massacre was general, and the cries for mercy were answered by the tomahawk. Rather less than sixty men escaped, some to Forty fort, some by swimming the river, and some to the mountain. A very few prisoners were made, only three of whom were preserved alive, who were carried to Niagara.

Colonel Dennison capitulates for the inhabitants.

Further resistance was impracticable, Colonel Dennison proposed terms of capitulation, which were granted to the inhabitants. It being understood that no quarter would be allowed to the continental troops, Colonel Butler with his few surviving soldiers fled from the valley.

Distress of the settlement.

The inhabitants generally abandoned the country, and, in great distress, wandered into the settlements on the Lehigh and the Delaware. The Indians, as is the practice of savages, destroyed the houses and improvements by fire, and plundered the country. After laying waste the whole settlement, they withdrew from it before the arrival of the continental troops, who were detached to meet them.

To cover every part of the United States would have required a much greater number of men than could be raised. Different districts were therefore unavoidably exposed to the calamities ever to be experienced by those into the bosom of whose country war is carried. The militia in every part of the Union, fatigued and worn out by repeated tours of duty, required to be relieved by continental troops. Their applications were necessarily resisted; but the danger which threatened the western frontier had become so imminent; the appeal made by its sufferings to national feeling was so affecting, that it was determined to spare a more considerable portion of the army for its defence, than had been allotted to that part of the Union, since the capture of Burgoyne. On the first intelligence of the destruction of Wyoming, the regiments of Hartley and Butler, with the remnant of Morgan's corps, commanded by Major Posey, were detached to the protection of that distressed country. July 15. They were engaged in several sharp skirmishes, made separate incursions into the Indian settlements, broke up their nearest villages, destroyed their corn, and by compelling them to retire to a greater distance, gave some relief to the inhabitants.

While the frontiers of New York and Pennsylvania were thus suffering the calamities incident to savage warfare, a fate equally severe was preparing for Virginia. The western militia of that state had made some successful incursions into the country north-west of the Ohio, and had taken some British posts on the Mississippi. These were erected in the county of Illinois; and a regiment of infantry, with a troop of cavalry, were raised for its protection. The command of these troops was given to Colonel George Rogers Clarke, a gentleman whose courage, hardihood, and capacity for Indian warfare, had given repeated success to his enterprises against the savages.

This corps was divided into several detachments, the strongest of which remained with Colonel Clarke at Kaskaskia. Colonel Hamilton, the Governor of Detroit, was at Vincennes with about six hundred men, principally Indians, preparing an expedition, first against Kaskaskia, and then up the Ohio to Pittsburg; after which he purposed to desolate the frontiers of Virginia. Clarke anticipated and defeated his design by one of those bold and decisive measures, which, whether formed on a great or a small scale, mark the military and enterprising genius of the man who plans and executes them.

He was too far removed from the inhabited country to hope for support, and was too weak to maintain Kaskaskia and the Illinois against the combined force of regulars and Indians by which he was to be attacked so soon as the season for action should arrive. While employed in preparing for his defence, he received unquestionable information that Hamilton had detached his Indians on an expedition against the frontiers, reserving at the post he occupied only about eighty regulars, with three pieces of cannon and some swivels. 1779 February. Clarke instantly resolved to seize this favourable moment. After detaching a small galley up the Wabash with orders to take her station a few miles below Vincennes, and to permit nothing to pass her, he marched in the depth of winter with one hundred and thirty men, the whole force he could collect, across the country from Kaskaskia to Vincennes. This march, through the woods, and over high waters, required sixteen days, five of which were employed in crossing the drowned lands of the Wabash. The troops were under the necessity of wading five miles in water, frequently up to their breasts. After subduing these difficulties, Colonel Clarke surprises St. Vincents, and takes possession of it. This small party appeared before the town, which was completely surprised, and readily consented to change its master. Hamilton, after defending the fort a short time, surrendered himself and his garrison prisoners of war. With a few of his immediate agents and counsellors, who had been instrumental in the savage barbarities he had encouraged, he was, by order of the executive of Virginia, put in irons, and confined in a jail.

This expedition was important in its consequences. It disconcerted a plan which threatened destruction to the whole country west of the Alleghany mountains; detached from the British interest many of those numerous tribes of Indians south of the waters immediately communicating with the great lakes; and had, most probably, considerable influence in fixing the western boundary of the United States.

We have already seen that congress, actuated by their wishes rather than governed by a temperate calculation of the means in their possession, had, in the preceding winter, planned a second invasion of Canada, to be conducted by the Marquis de Lafayette; and that, as the generals only were got in readiness for this expedition, it was necessarily laid aside. The design, however, seems to have been suspended, not abandoned. The alliance with France revived the latent wish to annex that extensive territory to the United States. That favourite subject was resumed; Congress

determine to attack Canada, and the other British possessions in North America. and, towards autumn, a plan was completely digested for a combined attack to be made by the allies on all the British dominions on the continent, and on the adjacent islands of Cape Breton and Newfoundland. This plan was matured about the time the Marquis de Lafayette obtained leave to return to his own country, and was ordered to be transmitted by that nobleman to Doctor Franklin, the minister of the United States at the court of Versailles, with instructions to induce, if possible, the French cabinet to accede to it. Some communications respecting this subject were also made to the Marquis, on whose influence in securing its adoption by his own government, much reliance was placed; and, in October, 1778, it was, for the first time, transmitted to General Washington, with a request that he would inclose it by the Marquis, with his observations on it, to Doctor Franklin.

This very extensive plan of military operations for the ensuing campaign, prepared entirely in the cabinet, without consulting, so far as is known, a single military man, consisted of many parts.

Two detachments, amounting, each, to sixteen hundred men, were to march from Pittsburg and Wyoming against Detroit, and Niagara.

A third body of troops, which was to be stationed on the Mohawk during the winter, and to be powerfully reinforced in the spring, was to seize Oswego, and to secure the navigation of Lake Ontario with vessels to be constructed of materials to be procured in the winter.

A fourth corps was to penetrate into Canada by the St. Francis, and to reduce Montreal, and the posts on Lake Champlain, while a fifth should guard against troops from Quebec.

Thus far America could proceed unaided by her ally. But, Upper Canada being reduced, another campaign would still be necessary for the reduction of Quebec. This circumstance would require that the army should pass the winter in Canada, and, in the mean time, the garrison of Quebec might be largely reinforced. It was therefore essential to the complete success of the enterprise, that France should be induced to take a part in it.

The conquest of Quebec, and of Halifax, was supposed to be an object of so much importance to France as well as to the United States, that her aid might be confidently expected.

It was proposed to request his Most Christian Majesty to furnish four or five thousand troops, to sail from Brest, the beginning of May, under convoy of four ships of the line and four frigates; the troops to be clad as if for service in the West Indies, and thick clothes to be sent after them in August. A large American detachment was to act with this French army; and it was supposed that Quebec and Halifax might be reduced by the beginning or middle of October. The army might then either proceed immediately against Newfoundland, or remain in garrison until the spring, when the conquest of that place might be accomplished.

It had been supposed probable that England would abandon the farther prosecution of the war on the continent of North America, in which case the government would have a respectable force at its disposal, the advantageous employment of which had engaged in part the attention of the Commander-in-chief. He had contemplated an expedition against the British posts in Upper Canada as a measure which might be eventually eligible, and which might employ the arms of the United States to advantage, if their troops might safely be withdrawn from the sea board. He had, however, considered every object of this sort as contingent. Having estimated the difficulties to be encountered in such an enterprise, he had found them so considerable as to hesitate on the extent which might safely be given to the expedition, admitting the United States to be evacuated by the British armies.

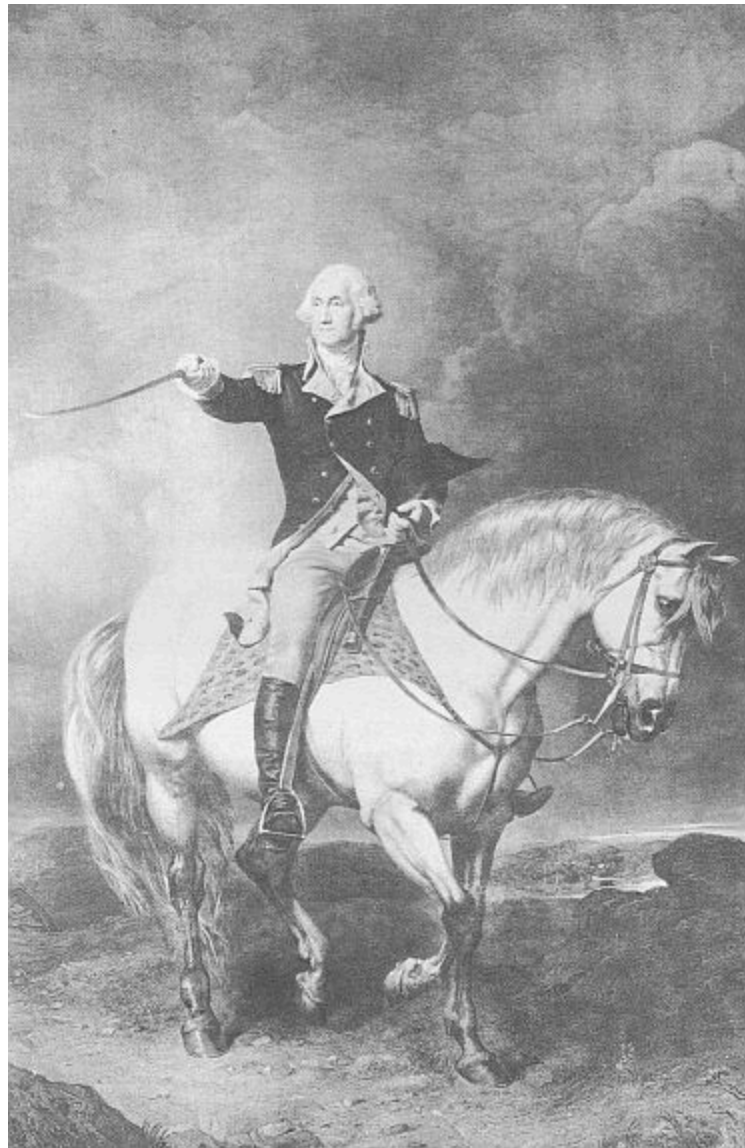
In this state of mind, he received the magnificent plan already prepared by congress. He was forcibly struck with the impracticability of executing that part of it which was to be undertaken by the United States, should the British armies continue in their country; and with the serious mischief which would result to the common cause, as well from diverting so considerable a part of the French force from other objects to one which was, in his opinion, so unpromising, as from the ill impression which would be made on the court and nation by the total failure of the American government to execute its part of a plan originating with itself; a failure which would, most probably, sacrifice the troops and ships employed by France.

On comparing the naval force of England with that of France in the different parts of the world, the former appeared to him to maintain a decided superiority, and consequently to possess the power of shutting up the ships of the latter which might be trusted into the St. Lawrence. To

suppose that the British government would not avail itself of this superiority on such an occasion, would be to impute to it a blind infatuation, or ignorance of the plans of its adversary, which could not be safely assumed in calculations of such serious import.

General Washington urges reasons against the plan.

A plan too, consisting of so many parts, to be prosecuted both from Europe and America, by land and by water; which, to be successful, required such a harmonious co-operation of the whole, such a perfect coincidence of events, appeared to him to be exposed to too many accidents, to risk upon it interests of such high value.



George Washington

From the portrait by John Trumbull

Colonel Trumbull, whose portraits of Washington, Hamilton, Jay, Adams, George Clinton and other Revolutionary contemporaries form a notable gallery, was General Washington's aide-de-camp at the outbreak of the War for Independence, and during its progress became a pupil of Benjamin West, in London. The news of André's execution fastened upon him the suspicion of being a spy, and he spent eight months in an English prison. Returning to America he painted this and other portraits of Washington, as well as a number of historical pictures, including the "Resignation of Washington at Annapolis," which hangs in the Capitol at Washington.

In a long and serious letter to congress, he apologized for not obeying their orders to deliver the plan with his observations upon it to the Marquis; and, entering into a full investigation of all its parts, demonstrated the mischiefs, and the dangers, with which it was replete. This letter was referred to a committee, whose report admits the force of the reasons urged by the Commander-in-chief against the expedition, and their own conviction that nothing important could be attempted unless the British armies should be withdrawn from the United States; and that, even in that event, the present plan was far too complex.

Men, however, recede slowly and reluctantly from favourite and flattering projects on which they have long meditated; and the committee, in their report, proceeded to state the opinion that the posts held by the British in the United States would probably be evacuated before the active part of the ensuing campaign; and that, therefore, eventual measures for the expedition ought to be taken.

This report concludes with recommending "that the general should be directed to write to the Marquis de Lafayette on that subject; and also to write to the minister of these states at the court of Versailles very fully, to the end that eventual measures may be taken, in case an armament should be sent from France to Quebec, for co-operating therewith, to the utmost degree, which the finances and resources of these states will admit."

This report also was approved by congress, and transmitted to the Commander-in-chief; who felt himself greatly embarrassed by it. While his objections to the project retained all their force, he found himself required

to open a correspondence for the purposes of soliciting the concurrence of France in an expedition he disapproved, and of promising a co-operation he believed to be impracticable. In reply to this communication, he said, "The earnest desire I have strictly to comply in every instance, with the views and instructions of congress, can not but make me feel the greatest uneasiness, when I find myself in circumstances of hesitation or doubt, with respect to their directions. But the perfect confidence I have in the justice and candour of that honourable body, emboldens me to communicate, without reserve, the difficulties which occur in the execution of their present order; and the indulgence I have experienced on every former occasion, induces me to imagine that the liberty I now take will not meet with disapprobation."

After reviewing the report of the committee, and stating his objections to the plan, and the difficulties he felt in performing the duty assigned to him, he added, "But if congress still think it necessary for me to proceed in the business, I must request their more definitive and explicit instructions, and that they will permit me, previous to transmitting the intended despatches, to submit them to their determination.

"I could wish to lay before congress more minutely the state of the army, the condition of our supplies, and the requisites necessary for carrying into execution an undertaking that may involve the most serious events. If congress think this can be done more satisfactorily in a personal conference, I hope to have the army in such a situation before I can receive their answer, as to afford me an opportunity of giving my attendance."

Induces Congress to abandon it.

Congress acceded to his request of a personal interview; and, on his arrival in Philadelphia, a committee was appointed to confer with him, as well on this particular subject as on the general state of the army and of the country.

The result of these conferences was, that the expedition against Canada was entirely, though reluctantly,[\[15\]](#) given up, and every arrangement recommended by the Commander-in-chief, received the attention to which his judgment and experience gave all his opinions the fairest claim.

CHAPTER IV.

Divisions in Congress.... Letters of General Washington on the state of public affairs.... Invasion of Georgia.... General Howe defeated by Colonel Campbell.... Savannah taken.... Sunbury surrenders.... Georgia reduced.... General Lincoln takes command of the Southern army.... Major Gardiner defeated by General Moultrie.... Insurrection of the Tories in South Carolina.... They are defeated by Colonel Pickens.... Ash surprised and defeated.... Moultrie retreats.... Prevost marches to Charleston.... Lincoln attacks the British at Stono Ferry unsuccessfully.... Invasion of Virginia.

1779

After the relinquishment of that extensive plan of conquest which had been meditated against Canada, no other object seemed to call forth the energies of the nation, and a general languor appeared to diffuse itself through all the civil departments. The alliance with France was believed to secure independence; and a confidence that Britain could no longer prosecute the war with any hope of success—a confidence encouraged by communications from Europe—prevented those exertions which were practicable, but which it was painful to make. This temper was seen and deplored by the Commander-in-chief, who incessantly combated the opinion that Britain was about to relinquish the contest, and insisted that great and vigorous exertions on the part of the United States were still necessary to bring the war to a successful termination.

It being no longer practicable to engage soldiers by voluntary enlistment, and government not daring to force men into the service for three years, or during the war, the vacant ranks were scantily supplied with drafts for nine, twelve, and eighteen months. A great proportion of the troops were discharged in the course of each year; and, except that the old officers remained, almost a new army was to be formed for every campaign.

Although the Commander-in-chief pressed congress and the state governments continually and urgently, to take timely measures for

supplying the places of those who were leaving the service, the means adopted were so slow and ineffectual in their operation, that the season for action never found the preparations completed; and the necessity of struggling against superior numbers was perpetual.

The pleasing delusion that the war was over, to which the public mind delighted to surrender itself, made no impression on the judgment of Washington. Viewing objects through a more correct medium, he perceived that Great Britain had yet much to hope, and America much to fear, from a continuance of hostilities. He feared that the impression which the divisions, and apparent inertness of the United States had made on the British commissioners, would be communicated to their government; and this consideration increased his anxiety in favour of early and vigorous preparations for the next campaign. Yet it was not until the 23d of January that congress passed the resolution, authorizing the Commander-in-chief to re-enlist the army, nor, until the 9th of March, that the requisition was made on the several states for their quotas. The bounty offered by the first resolution being found insufficient, the government was again under the necessity of resorting to the states. Thus, at a season when the men ought to have been in camp, the measures for raising them were still to be adopted.

About this period, several circumstances conspired to foment those pernicious divisions and factions in congress, which, in times of greater apparent danger, patriotism would have suppressed.

The ministers of the United States, in Europe, had reciprocally criminated each other, and some of them had been recalled. Divisions in congress. Their friends in congress supported their respective interests with considerable animation; and, at length, Mr. Deane published a manifesto, in which he arraigned at the bar of the public, the conduct not only of those concerned in foreign negotiations, but of the members of Congress themselves.

The irritation excited by these and other contests was not a little increased by the appearance, in a New York paper, of an extract from a letter written by Mr. Laurens, the president of congress, to Governor Huiston, of Georgia, which, during the invasion of that state, was found among his papers. In this letter, Mr. Laurens had unbosomed himself with the unsuspecting confidence of a person communicating to a friend the inmost operations of his mind. In a gloomy moment, he had expressed

himself with a degree of severity, which even his own opinion, when not under the immediate influence of chagrin, would not entirely justify, and had reflected on the integrity and patriotism of members, without particularizing the individuals he designed to censure.

These altercations added much to the alarm with which General Washington viewed that security which had insinuated itself into the public mind; and his endeavours were unremitting to impress the same apprehensions on those who were supposed capable of removing the delusion. In his confidential letters to gentlemen of the most influence in the several states, he represented in strong terms the dangers which yet threatened the country, and earnestly exhorted them to a continuance of those sacrifices and exertions which he still deemed essential to the happy termination of the war. The dissensions in congress; the removal of individuals of the highest influence and character from the councils of the nation to offices in the respective states; the depreciation of the currency; the destructive spirit of speculation which the imaginary gain produced by this depreciation had diffused throughout the Union; a general laxity of principles; and an unwillingness to encounter personal inconvenience for the attainment of the great object, in pursuit of which so much blood and treasure had been expended; were the rocks on which, he apprehended, the state vessel might yet split, and to which he endeavoured, incessantly, to point the attention of those whose weight of political character enable them to guide the helm.

Letters from General Washington on the state of public affairs.

"I am particularly desirous of a free communication of sentiments with you at this time," says the General in a letter written to a gentleman of splendid political talents, "because I view things very differently, I fear, from what people in general do, who seem to think the contest at an end, and that to make money, and get places, are the only things now remaining to be done. I have seen without despondency, even for a moment, the hours which America has styled her gloomy ones; but I have beheld no day since the commencement of hostilities, when I have thought her liberties in such imminent danger as at present. Friends and foes seem now to combine to pull down the goodly fabric we have hitherto been raising at the expense of so much time, blood, and treasure."

After censuring with some freedom the prevailing opinions of the day, he added, "To me it appears no unjust simile to compare the affairs of this great continent to the mechanism of a clock, each state representing some one or other of the smaller parts of it, which they are endeavouring to put in fine order, without considering how useless and unavailing their labour is, unless the great wheel, or spring, which is to set the whole in motion, is also well attended to, and kept in good order. I allude to no particular state, nor do I mean to cast reflections upon any one of them, nor ought I, it may be said, to do so on their representatives; but, as it is a fact too notorious to be concealed, that congress is rent by party; that much business of a trifling nature and personal concernment, withdraws their attention from matters of great national moment at this critical period; when it is also known that idleness and dissipation take place of close attention and application, no man who wishes well to the liberties of this country, and desires to see its rights established, can avoid crying out—where are our men of abilities? Why do they not come forth to save their country? Let this voice, my dear sir, call upon you, Jefferson, and others. Do not, from a mistaken opinion that we are to sit down under our vine and our own fig-tree, let our hitherto noble struggle end in ignominy. Believe me when I tell you there is danger of it. I have pretty good reasons for thinking that administration, a little while ago, had resolved to give the matter up, and negotiate a peace with us upon almost any terms; but I shall be much mistaken if they do not now, from the present state of our currency, dissensions, and other circumstances, push matters to the utmost extremity. Nothing I am sure will prevent it but the intervention of Spain, and their disappointed hope from Russia."

The circumstances in the situation and temper of America, which made so deep an impression on the Commander-in-chief, operated with equal force on the British commissioners, and induced them to think that, by continuing the war, more favourable terms than were now demanded might be obtained. They seem to have taken up the opinion that the mass of the people, fatigued and worn out by the complicated calamities of the struggle, sincerely desired an accommodation on the terms proposed by Great Britain; and that the increasing difficulties resulting from the failure of public credit, would induce them to desert congress, or compel that body to accede to those terms. These opinions, when communicated to the government, most probably contributed to protract the war.

The narrative of military transactions will now be resumed.

The British arms had heretofore been chiefly directed against the northern and middle states. The strongest parts of the American continent were pressed by their whole force; and, with the exception of the attempt on Sullivan's island in 1776, no serious design had yet been manifested to make an impression in the south. Entertaining the most confident hopes of recovering all the colonies, the British government had not prosecuted the war with a view to partial conquest. But the loss of the army commanded by Burgoyne, the alliance of America with France, and the unexpected obstinacy with which the contest was maintained, had diminished their confidence; and, when the pacific propositions made in 1778 were rejected, the resolution seems to have been taken to change, materially, the object of their military operations; and, maintaining possession of the islands of New York, to direct their arms against the southern states, on which, it was believed, a considerable impression might be made.

It was not unreasonable to suppose that the influence of this impression might extend northward; but, however this might be, the actual conquest and possession of several states would, when negotiations for a general peace should take place, give a complexion to those negotiations, and afford plausible ground for insisting to retain territory already acquired. The most active and interesting operations therefore of the succeeding campaigns, were in the southern states.

Lieutenant Colonel Campbell, who sailed from the Hook about the last of November, 1778, escorted by a small squadron commanded by Commodore Hyde Parker, reached the isle of Tybee, near the Savannah, on the 23d of December; and, in a few days, the fleet and the transports passed the bar, and anchored in the river.

The command of the southern army, composed of the troops of South Carolina and Georgia, had been committed to Major General Robert Howe, who, in the course of the preceding summer, had invaded East Florida.[\[16\]](#) The diseases incident to the climate made such ravages among his raw soldiers, that, though he had scarcely seen an enemy, he found himself compelled to hasten out of the country with considerable loss. After this disastrous enterprise, his army, consisting of between six and seven hundred continental troops, aided by a few hundred militia, had encamped in the neighbourhood of the town of Savannah, situated on the southern bank of the river bearing that name. The country about the mouth of the river is one

tract of deep marsh, intersected by creeks and cuts of water, impassable for troops at any time of the tide, except over causeways extending through the sunken ground.

Invasion of Georgia.

Without much opposition, Lieutenant Colonel Campbell effected a landing on the 29th, about three miles below the town; upon which Howe formed his line of battle. His left was secured by the river; and along the whole extent of his front was a morass which stretched to his right, and was believed by him to be impassable for such a distance, as effectually to secure that wing.

After reconnoitring the country, Colonel Campbell advanced on the great road leading to Savannah; and, about three in the afternoon, appeared in sight of the American army. While making dispositions to dislodge it, he accidentally fell in with a negro, who informed him of a private path leading through the swamp, round the right of the American lines to their rear. Determining to avail himself of this path, he detached a column under Sir James Baird, which entered the morass unperceived by Howe.

General Howe defeated by the British under Colonel Campbell, who takes possession of Savannah.

As soon as Sir James emerged from the swamp, he attacked and dispersed a body of Georgia militia, which gave the first notice to the American general of the danger which threatened his rear. At the same instant, the British troops in his front were put in motion, and their artillery began to play upon him. A retreat was immediately ordered; and the continental troops were under the necessity of running across a plain, in front of the corps which had been led into their rear by Sir James Baird, who attacked their flanks with great impetuosity, and considerable effect. The few who escaped, retreated up the Savannah; and, crossing that river at Zubly's ferry, took refuge in South Carolina.

The victory was complete, and decisive in its consequences. About one hundred Americans were either killed in the field, or drowned in attempting to escape through a deep swamp. Thirty-eight officers, and four hundred and fifteen privates, were taken. Forty-eight pieces of cannon, twenty-three mortars, the fort with all its military-stores, a large quantity of provisions collected for the use of the army, and the capital of Georgia, fell into the

hands of the conqueror. These advantages were obtained at the expense of only seven killed, and nineteen wounded.

No military force now remained in Georgia, except the garrison of Sunbury, whose retreat to South Carolina was cut off. All the lower part of that state was occupied by the British, who adopted measures to secure the conquest they had made. The inhabitants were treated with a lenity as wise as it was humane. Their property was spared, and their persons protected. To make the best use of victory, and of the impression produced by the moderation of the victors, a proclamation was issued, inviting the inhabitants to repair to the British standard, and offering protection to those who would return to their allegiance.

The effect of these measures did not disappoint those who adopted them. The inhabitants flocked in great numbers to the royal standard; military corps for the protection of the country were formed; and posts were established for a considerable distance up the river.

Sunbury surrenders to General Prevost.

The northern frontier of Georgia being supposed to be settled into a state of quiet, Colonel Campbell turned his attention towards Sunbury, and was about to proceed against that place, when he received intelligence that it had surrendered to General Prevost.

Sir Henry Clinton had ordered that officer to co-operate from East Florida, with Colonel Campbell. On hearing that the troops from the north were off the coast, he entered the southern frontier of Georgia, and invested Sunbury, which, after a slight resistance, surrendered at discretion. The State of Georgia reduced. Having placed a garrison in the fort, he proceeded to Savannah, took command of the army, and detached Colonel Campbell with eight hundred regulars and a few provincials to Augusta, which fell without resistance, and thus the whole state of Georgia was reduced.

While the expedition conducted by Lieutenant Colonel Campbell was preparing at New York, congress was meditating the conquest of East Florida.

The delegates of South Carolina and Georgia, anxious that a general of more experience than Howe should command in the southern department, had earnestly pressed that he should be recalled, and that General Lincoln, whose military reputation was high, should be appointed to succeed him. In compliance with their solicitations, Howe was ordered in September, 1778,

to repair to the head quarters of General Washington, and Lincoln was directed to proceed immediately to Charleston, in South Carolina, in order to take command in the southern department. General Lincoln takes the command of the southern army. In pursuance of this resolution, General Lincoln repaired to Charleston, where he found the military affairs of the country in a state of utter derangement. Congress had established no continental military chest in the southern department. This omission produced a dependence on the government of the state for supplies to move the army on any emergency, and consequent subjection of the troops in continental service to its control. The militia, though taken into continental service, considered themselves as subject only to the military code of the state. These regulations threatened to embarrass all military operations, and to embroil the general with the civil government.

While Lincoln was labouring to make arrangements for the ensuing campaign, he received intelligence of the appearance of the enemy off the coast. The militia of North Carolina, amounting to two thousand men, commanded by Generals Ash and Rutherford, had already reached Charleston; but were unarmed, and congress had been unable to provide magazines in this part of the Union. These troops were, therefore, entirely dependent on South Carolina for every military equipment; and arms were not delivered to them until it was too late to save the capital of Georgia.

So soon as it was ascertained that the British fleet had entered the Savannah river, General Lincoln proceeded with the utmost expedition towards the scene of action. On his march, he received intelligence of the victory gained over General Howe; and was soon afterwards joined by the remnant of the defeated army at Purysburg, a small town on the north side of the Savannah, where he established his head quarters.

The regular force commanded by General Prevost must have amounted to at least three thousand effective men; and this number was increased by irregulars who had joined him in Georgia. The American army rather exceeded three thousand six hundred men, of whom not quite two thousand five hundred were effective. Something more than one thousand were continental troops, part of whom were new levies; the rest were militia.

The theatre of action was so well adapted to defensive war, that, although General Prevost was decidedly superior to his adversary, it was difficult to extend his conquests into South Carolina. Major Gardiner defeated by

General Moultrie. With the view of entering that state by the way of the sea coast, he detached Major Gardiner with about two hundred men, to take possession of the island of Port Royal. That officer, soon after reaching his place of destination, was attacked by General Moultrie, and compelled to retreat with considerable loss. This repulse checked the designs of Prevost on South Carolina.

From the commencement of the war, a considerable proportion of the western inhabitants of the three southern states had been attached to the royal cause. The first successes of the British were soon communicated to them, and they were invited to assemble and join the king's standard at Augusta. Insurrection of the Tories in South Carolina, who are defeated by Colonel Pickens. About seven hundred embodied themselves on the frontiers of South Carolina, and began their march to that place. They were overtaken by Colonel Pickens at the head of the neighbouring militia, near Kittle Creek, and defeated with considerable loss. Colonel Boyd, their leader, was among the slain; and several of those who escaped were apprehended, tried, and five of them executed as traitors. About three hundred reached the British out-posts, and joined the royal standard. This defeat broke the spirits of the Tories for a time; and preserved quiet in the west.

As the American army gained strength by reinforcements of militia, General Lincoln began to contemplate offensive operations. A detachment had been stationed nearly opposite to Augusta under General Ash, and he purposed joining that officer so soon as a sufficient force could be collected, and attempting to recover the upper parts of Georgia. Before he was able to execute this plan, General Prevost withdrew his troops from Augusta to Hudson's Ferry. Ash was then ordered to cross the Savannah, and take post near the confluence of Briar Creek with that river. This camp was thought unassailable. Its left was covered by a deep swamp, and by the Savannah. The front was secured by Briar Creek, which is unfordable several miles, and makes an acute angle with the river.

Having determined to dislodge the Americans from this position, Prevost kept up the attention of General Lincoln by the semblance of a design to cross the Savannah; and, at the same time amused General Ash with a feint on his front, while Lieutenant Colonel Prevost made a circuit of about fifty miles, and, crossing Briar Creek fifteen miles above the ground occupied by

Ash, came down, unperceived and unsuspected, on his rear. Ash surprised and defeated by Prevost. Ash, unused to the stratagems of war, was so completely engaged by the manœuvres in his front, that Lieutenant Colonel Prevost was almost in his camp before any intelligence of his approach was received. The continental troops under General Elbert were drawn out to oppose him, and commenced the action with great gallantry; but most of the militia threw away their arms and fled in confusion. As they precipitated themselves into the swamp and swam the river, not many of them were taken. General Elbert and his small band of continental troops, aided by one regiment of North Carolina militia, were soon overpowered by numbers, and the survivors were compelled to surrender themselves prisoners of war. The killed and taken amounted to between three and four hundred men. General Elbert and Colonel M'Intosh were among the latter. But the loss sustained by the American army was much more considerable. The dispersed militia returned to their homes; and not more than four hundred and fifty of them could be reassembled.

This victory was supposed to give the British such complete possession of Georgia, that a proclamation was issued the succeeding day by General Prevost, establishing civil government, and appointing executive and judicial officers to administer it.

These disasters, instead of terrifying South Carolina into submission, animated that state to greater exertions. Mr. John Rutledge, a gentleman of great talents and decision, was elected governor; and the legislature passed an act empowering him and the council to do every thing that appeared to him and them necessary for the public good. All the energies of the state were drawn forth. The militia were called out in great numbers, and the laws for their government were rendered more severe.[\[17\]](#)

Thus reinforced, General Lincoln resumed his plan for recovering the upper parts of Georgia; and marched the main body of his army up the Savannah.

This river was now swelled greatly beyond its usual limits; and the swamps, marshes, and creeks which intersect the country being full, seemed to present an almost impassable barrier to an invading army. A small military force being deemed sufficient to arrest the progress of an enemy through a route which, if at all practicable, was so difficult, about eight

hundred of the state militia, aided by two hundred continental troops, were left with General Moultrie for the defence of the country.

Aware of the importance of this movement, and hoping to recall Lincoln by alarming him for the safety of Charleston, Prevost compels Moultrie to retreat. General Prevost suddenly crossed the Savannah with three thousand men; and, advancing rapidly on General Moultrie, obliged him to retreat with precipitation. The militia could not be prevailed on to defend the passes with any degree of firmness; and Moultrie, instead of drawing aid from the surrounding country, sustained an alarming diminution of numbers by desertion.

On the passage of the river by Prevost, an express had been despatched to Lincoln with the intelligence. Persuaded that the British general could meditate no serious attempt on Charleston, and that the real object was to induce him to abandon the enterprise in which he was engaged, he detached a reinforcement of three hundred light troops to aid Moultrie, and crossing the Savannah himself, continued his march down the south side of that river towards the capital of Georgia.

Though the original purpose of General Prevost had been limited to the security of Georgia, the opposition he encountered was so much less than he had expected; the tenour of the country was so apparent; the assurances of those who flocked to his standard; of the general disposition of the people to terminate the calamities of war by submission, were so often and so confidently repeated, Prevost marches to Charleston. that he was emboldened to extend his views, and to hazard the continuation of his march to Charleston.

On receiving intelligence of this threatening aspect of affairs in South Carolina, Lincoln recrossed the Savannah, and hastened to the relief of that state.

The situation of Charleston was extremely critical. The inhabitants, entirely unapprehensive of an attack by land, had directed their whole attention to its protection against an invasion by sea. Had Prevost continued his march with the rapidity with which it was commenced, the place must have fallen. But, after having gained more than half the distance, he halted, and consumed two or three days in deliberating on his future measures. While his intelligence determined him to proceed, and assured him of a state of things which rendered success almost certain, that state of things

was rapidly changing. Fortifications on the land side were commenced and prosecuted with unremitting labour; the neighbouring militia were drawn into the town; the reinforcements detached by General Lincoln, and the remnant of the legion of Pulaski arrived; and the governor also entered the city, at the head of some troops which had been stationed at Orangeburg.

The next morning Prevost crossed Ashly River, and encamped just without cannon shot of the works. The town was summoned to surrender, and the day was spent in sending and receiving flags. The neutrality of South Carolina during the war, leaving the question whether that state should finally belong to Great Britain or the United States, to be settled in the treaty of peace, was proposed by the garrison, and rejected by Prevost; who required that they should surrender themselves prisoners of war. This proposition being also rejected, the garrison prepared to sustain an assault. But an attempt to carry the works by storm was too hazardous to be made; and Prevost came to the prudent resolution of decamping that night, and recrossing Ashly River.

The British army passed into the island of St. James, and thence to that of St. John's, which lies south of Charleston harbour; soon after which General Lincoln encamped in the neighbourhood, so as to confine them in a great degree to the island they occupied. This island is separated from the main land by an inlet, to which the name of Stono River has been given; and the communication is preserved by a ferry. A British post was established upon the main land at this ferry, and works were thrown up in front for its defence. When Prevost commenced his retreat, and the troops were moving from island to island, the occasion seemed a fair one for attacking it. Only eight hundred men, commanded by Lieutenant Colonel Maitland, defended it; but a large corps still lay on the island. To prevent these troops from supporting those on the main land, General Moultrie, who commanded in Charleston, was ordered to pass over a body of militia into James's island, who should amuse the enemy in St. John's, while a real attack should be made on the post at the ferry. Lincoln attacks the British at the ferry but without success. About seven in the morning, General Lincoln commenced this attack with about one thousand men; and continued it with great spirit, until he perceived that strong reinforcements were crossing over from the island; when he called off his troops, and retreated, unmolested, to his old ground.

General Moultrie had been unable to execute that part of the plan which devolved on him. Boats were not in readiness to convey the men into James's island, and consequently the feint on St. John's was not made.

The loss of the Americans, in killed and wounded, amounted to twenty-four officers, and one hundred and twenty-five privates. That of the British was stated to be rather less.

Three days after this action, the posts at Stono and St. John's were evacuated. The heat now became too excessive for active service; and the British army, after establishing a post on the island contiguous to Port Royal and St. Helena, retired into Georgia and St. Augustine.

The American militia dispersed, leaving General Lincoln at the head of about eight hundred men; with whom he retired to Sheldon, where his primary object was to prepare for the next campaign, which it was supposed would open in October.

The invasion of the southern states wore so serious an aspect, that Bland's regiment of cavalry, and the remnant of that lately Baylor's, now commanded by Lieutenant Colonel Washington, with the new levies of Virginia, were ordered to repair to Charleston, and to place themselves under the command of General Lincoln. The execution of these orders was for a time suspended by the invasion of Virginia.

An expedition against that state had been concerted in the spring between Sir Henry Clinton and Sir George Collier, the Commander-in-chief of the British naval force on the American station. Invasion of Virginia by General Matthews. The land troops assigned to this service were commanded by General Matthews. The transports, on board of which they embarked, were convoyed by the Admiral in person. On the 9th of May the fleet entered the Chesapeake, and the next day anchored in Hampton Roads.

Virginia had raised a regiment of artillery for the performance of garrison duty in the state, which had been distributed along the eastern frontier; and slight fortifications had been constructed in the most important situations, which were defensible on the side of the water, but were not tenable against a military force strong enough to act on land. Fort Nelson, on the west side of Elizabeth river, garrisoned by about one hundred and fifty soldiers, commanded by Major Matthews, was designed to protect the towns of Norfolk and Portsmouth, which were on each side of the river just above it; and the town of Gosport, which lies still higher up on a point of land

intervening between two branches of the river. Norfolk and Portsmouth were places of the most considerable commerce in Virginia. Large supplies for the army were deposited in them; and the state government had established at Gosport a marine yard, where ships of war and other vessels were building, for which naval stores were collected to a very great amount. The destruction of these vessels and stores, constituted the principal object of General Matthews.

On the morning of the tenth, the fleet entered Elizabeth river, and the troops were landed about three miles below the fort, without opposition. Foreseeing that the works would be attacked the next morning on the land side, the garrison evacuated the fort in the night, and took refuge in a deep and extensive swamp, called the Dismal, which could not be penetrated without difficulty, even by single persons.

The whole sea-board, on the south side of James' river, being now in possession of General Matthews, he fixed his head quarters at Portsmouth, whence small parties were detached to Norfolk, Gosport, Kemps' landing, and Suffolk, where military and naval stores to a great amount, and several vessels richly laden, fell into his hands.

This invasion was of short duration. General Matthews, after destroying the magazines which had been collected in the small towns near the coast, and the vessels in the rivers, was ordered by Sir Henry Clinton to return to New York, where he arrived towards the last of May.

The Admiral and General were both so impressed with the importance of Portsmouth as a permanent station, that they united in representing to the Commander-in-chief the advantages to be derived from keeping possession of it. But, in the opinion of Sir Henry Clinton, the army did not at that time admit of so many subdivisions; and, with a view to more interesting objects, Portsmouth was evacuated.

CHAPTER V.

Discontents in a part of the American army.... Letter from General Washington on the subject.... Colonel Van Schaick destroys an Indian settlement.... Expedition against the Indians meditated.... Fort Fayette surrendered to the British.... Invasion of Connecticut.... General Wayne storms Stony Point.... Expedition against Penobscot.... Powles Hook surprised by Major Lee.... Arrival of Admiral Arbuthnot.... Of the Count D'Estaing.... Siege of Savannah.... Unsuccessful attempt to storm that place.... Siege raised.... Victory of General Sullivan at Newtown.... Spain offers her mediation to the belligerents.... Declares war against England.... Letter from General Washington to congress respecting the annual formation of the army.... The army goes into winter quarters.

1779

The barbarities committed by the Indians, in the course of the preceding year, on the inhabitants of the western frontiers, had added motives of mingled resentment and humanity to those of national interest, for employing a larger force in the protection of that part of the Union than had heretofore been devoted to it.

General Washington had always believed that it was impossible to defend the immense western frontier by any chain of posts which could be established; and that the country would be protected much more certainly by offensive than by defensive war. His plan was to penetrate into the heart of the Indian settlements with a force competent to the destruction of their towns; and also to reduce the British post at Niagara, which gave its possessors an almost irresistible influence over the six nations. This plan constituted one of the various subjects of conference with the committee of congress in Philadelphia, and received the entire approbation of that body.

The state governments also took a strong interest in the protection of their western settlements. Connecticut, New York, and Pennsylvania, applied, severally, to congress, urging the adoption of such vigorous measures as would secure the frontiers against a repetition of the horrors

which had been already perpetrated. These papers were referred to the committee which had been appointed to confer with General Washington, in conformity with whose report it was resolved, "that the Commander-in-chief be directed to take efficient measures for the protection of the inhabitants, and chastisement of the savages."

The Six Nations had made some advances towards acquiring the comforts of civilized life. Several comfortable houses were to be seen in their populous villages; and their fertile fields and orchards yielded an abundant supply of corn and fruit. Some few of their towns were attached to the United States; but, in general, they were under the influence of the British. Many of the loyalists had taken refuge among them, and had added to their strength without diminishing their ferocity. It was determined to lead a force into these villages, sufficient to overpower any numbers they could possibly bring into the field, and to destroy the settlements they had made. To guard against reinforcements from Canada, means were used to inspire that colony with fears for itself.

As the army destined for this expedition was about to move, alarming symptoms of discontent appeared in a part of it. The Jersey brigade, which had been stationed during the winter at Elizabethtown, was ordered early in May, to march by regiments. Discontents in a part of the American army. This order was answered by a letter from General Maxwell, stating that the officers of the first regiment had delivered a remonstrance to their Colonel, addressed to the legislature of the state, declaring that, unless their complaints on the subjects of pay and support should obtain the immediate attention of that body, they were, at the expiration of three days, to be considered as having resigned; and requesting the legislature, in that event, to appoint other officers to succeed them. They declared, however, their readiness to make every preparation for obeying the orders which had been given, and to continue their attention to the regiment until a reasonable time should elapse for the appointment of their successors. "This," added the letter of General Maxwell, "is a step they are extremely unwilling to take, but it is such as I make no doubt they will all take; nothing but necessity—their not being able to support themselves in time to come, and being loaded with debts contracted in time past, could have induced them to resign at so critical a juncture."

The intelligence conveyed in this letter made a serious impression on the Commander-in-chief. He was strongly attached to the army and to its interests; had witnessed its virtue and its sufferings; and lamented sincerely its present distresses. The justice of the complaints made by the officers could no more be denied, than the measure they had adopted could be approved. Relying on their patriotism and on his own influence, he immediately wrote a letter to General Maxwell, to be laid before them, in which, mingling the sensibility of a friend with the authority of a general, he addressed to their understanding and to their love of country, observations calculated to invite their whole attention to the consequences which must result from the step they were about to take.

Letter from General Washington on this subject.

"The patience and perseverance of the army," proceeds the letter, "have been, under every disadvantage, such as to do them the highest honour both at home and abroad, and have inspired me with an unlimited confidence of their virtue, which has consoled me amidst every perplexity and reverse of fortune, to which our affairs, in a struggle of this nature, were necessarily exposed. Now that we have made so great a progress to the attainment of the end we have in view, so that we can not fail without a most shameful desertion of our own interests, any thing like a change of conduct would imply a very unhappy change of principles, and a forgetfulness, as well of what we owe to ourselves, as to our country. Did I suppose it possible this could be the case, even in a single regiment of the army, I should be mortified and chagrined beyond expression. I should feel it as a wound given to my own honour, which I consider as embarked with that of the army at large. But this I believe to be impossible. Any corps that was about to set an example of the kind, would weigh well the consequences; and no officer of common discernment and sensibility would hazard them. If they should stand alone in it, independent of other consequences, what would be their feelings on reflecting that they had held themselves out to the world in a point of light inferior to the rest of the army. Or if their example should be followed, and become general, how could they console themselves for having been the foremost in bringing ruin and disgrace upon their country. They would remember that the army would share a double portion of the general infamy and distress, and that the character of an American officer would become as infamous as it is now glorious.

"I confess the appearances in the present instance are disagreeable, but I am convinced they seem to mean more than they really do. The Jersey officers have not been outdone by any others in the qualities either of citizens or soldiers; and I am confident, no part of them would seriously intend any thing that would be a stain on their former reputation. The gentlemen can not be in earnest; they have only reasoned wrong about the means of obtaining a good end, and, on consideration, I hope and flatter myself they will renounce what must appear to be improper. At the opening of a campaign, when under marching orders for an important service, their own honour, duty to the public and to themselves, and a regard to military propriety, will not suffer them to persist in a measure which would be a violation of them all. It will even wound their delicacy, coolly to reflect that they have hazarded a step, which has an air of dictating terms to their country, by taking advantage of the necessity of the moment.

"The declaration they have made to the state, at so critical a time, that unless they obtain relief in the short period of three days, they must be considered out of the service, has very much that aspect; and the seeming relaxation of continuing until the state can have a reasonable time to provide other officers, will be thought only a superficial veil. I am now to request that you will convey my sentiments to the gentlemen concerned, and endeavour to make them sensible that they are in an error. The service for which the regiment was intended will not admit of delay. It must at all events march on Monday morning, in the first place to camp, and farther directions will be given when it arrives. I am sure I shall not be mistaken in expecting a prompt and cheerful obedience."

The representations of this letter did not completely produce the desired effect. The officers did not recede from their claims. In an address to the Commander-in-chief, they expressed their unhappiness that any act of theirs should give him pain, but proceeded to justify the step they had taken. Repeated memorials had been presented to their legislature, which had been received with promises of attention, but had been regularly neglected. "At length," said they, "we have lost all confidence in our legislature. Reason and experience forbid that we should have any. Few of us have private fortunes; many have families who already are suffering every thing that can be received from an ungrateful country. Are we then to suffer all the inconveniences, fatigues, and dangers of a military life, while our wives and our children are perishing for want of common necessities at home;—and

that without the most distant prospect of reward, for our pay is now only nominal? We are sensible that your excellency can not wish nor desire this from us.

"We are sorry that you should imagine we meant to disobey orders. It was and still is our determination to march with our regiment, and to do the duty of officers until the legislature should have a reasonable time to appoint others, but no longer.

"We beg leave to assure your Excellency, that we have the highest sense of your ability and virtues;—that executing your orders has ever given us pleasure;—that we love the service, and we love our country;—but when that country gets so lost to virtue and justice as to forget to support its servants, it then becomes their duty to retire from its service."

This letter was peculiarly embarrassing. To adopt a stern course of proceeding might hazard the loss of the Jersey line, an event not less injurious to the service, than painful to himself. To take up the subject without doing too much for the circumstances of the army, would be doing too little for the occasion. He therefore declined taking any other notice of the letter, than to declare through General Maxwell that, while they continued to do their duty in conformity with the determination they had expressed, he should only regret the part they had taken, and should hope they would perceive its impropriety.

The legislature of New Jersey, alarmed at the decisive step taken by the officers, was at length induced to pay some attention to their situation; they consenting, on their part, to withdraw their remonstrance. In the meantime, they continued to perform their duty; and their march was not delayed by this unpleasant altercation.

In communicating this transaction to congress, General Washington took occasion to remind that body of his having frequently urged the absolute necessity of some general and adequate provision for the officers of the army. "I shall only observe," continued the letter, "that the distresses in some corps are so great, either where they were not until lately attached to any particular state, or where the state has been less provident, that the officers have solicited even to be supplied with the clothing destined for the common soldiery, coarse and unsuitable as it was. I had not power to comply with the request.

"The patience of men animated by a sense of duty and honour, will support them to a certain point, beyond which it will not go. I doubt not congress will be sensible of the danger of an extreme in this respect, and will pardon my anxiety to obviate it."

Colonel Van Schaick surprises and destroys one of the Indian settlements.

Before the troops destined for the grand expedition were put in motion, an enterprise of less extent was undertaken, which was completely successful. A plan for surprising the towns of the Onondagas, one of the nearest of the hostile tribes, having been formed by General Schuyler, and approved by the Commander-in-chief, Colonel Van Schaick, assisted by Lieutenant Colonel Willet, and Major Cochran, marched from fort Schuyler on the morning of the 19th of April, at the head of between five and six hundred men; and, on the third day, reached the point of destination. The whole settlement was destroyed, after which the detachment returned to fort Schuyler without the loss of a single man. For this handsome display of talents as a partisan, the thanks of congress were voted to Colonel Van Schaick, and the officers and soldiers under his command.

Expedition against the Indians meditated.

The cruelties exercised by the Indians in the course of the preceding year, had given a great degree of importance to the expedition now meditated against them; and the relative military strength and situation of the two parties, rendered it improbable that any other offensive operations could be carried on by the Americans in the course of the present campaign. The army under the command of Sir Henry Clinton, exclusive of the troops in the southern department, was computed at between sixteen and seventeen thousand men. The American army, the largest division of which lay at Middlebrook, under the immediate command of General Washington, was rather inferior to that of the British in real strength. The grand total, except those in the southern and western country, including officers of every description, amounted to about sixteen thousand. Three thousand of these were in New England under the command of General Gates; and the remaining thirteen thousand were cantoned on both sides the North River. The bare statement of numbers, must show the incompetency of the American army to the expulsion of the British from either New York or Rhode Island. On their part, therefore, the plan of the campaign was,

necessarily, defensive; and the hazards and difficulties attending the execution of even a defensive plan were considerable.

Independent of an extensive coast, at all places accessible to the invading army, the Hudson, penetrating deep into the country which was to be the theatre of action, gave great advantages in their military operations to those who commanded the water.

After the destruction of forts Clinton and Montgomery in 1777, it had been determined to construct the fortifications intended for the future defence of the North River, at West Point, a position which, being more completely embosomed in the hills, was deemed more defensible. The works had been prosecuted with unremitting industry, but were far from being completed.

Some miles below West Point, about the termination of the Highlands, is King's Ferry, where the great road, affording the most convenient communication between the middle and eastern states, crosses the North River. The ferry is completely commanded by the two opposite points of land. That on the west side, a rough and elevated piece of ground, is denominated Stony Point; and the other, on the east side, a flat neck of land projecting far into the water, is called Verplank's Point. The command of King's Ferry was an object worth the attention of either army; and Washington had comprehended the points which protect it within his plan of defence for the Highlands. A small but strong work, termed fort Fayette, was completed at Verplank's, and was garrisoned by a company commanded by Captain Armstrong. The works on Stony Point were unfinished. As the season for active operations approached, Sir Henry Clinton formed a plan for opening the campaign with a brilliant *coup de main* up the North River; and, towards the latter end of May, made preparations for the enterprise.

These preparations were immediately communicated to General Washington, who was confident that the British general meditated an attack on the forts in the highlands, or designed to take a position between those forts and Middlebrook, in order to interrupt the communication between the different parts of the American army, to prevent their reunion, and to beat them in detail. Measures were instantly taken to counteract either of these designs. The intelligence from New York was communicated to Generals Putnam and M'Dougal, who were ordered to hold themselves in readiness to

march; and, on the 29th of May, the army moved by divisions from Middlebrook towards the highlands. May. On the 30th, the British army, commanded by Sir Henry Clinton in person, and convoyed by Sir George Collier, proceeded up the river; and General Vaughan, at the head of the largest division, landed next morning, about eight miles below Verplank's. The other division, under the particular command of General Patterson, but accompanied by Sir Henry Clinton, advancing farther up, landed on the west side within three miles of Stony Point.

That place being immediately abandoned, General Patterson took possession of it on the same afternoon. He dragged some heavy cannon and mortars to the summit of the hill in the course of the night; and, June 1. at five next morning, opened a battery on fort Fayette, at the distance of about one thousand yards. During the following night, two galleys passed the fort, and, anchoring above it, prevented the escape of the garrison by water; while General Vaughan invested it closely by land. Fort Fayette surrendered to the British. No means of defending the fort, or of saving themselves remaining, the garrison became prisoners of war. Immediate directions were given for completing the works at both posts, and for putting Stony Point, in particular, in a strong state of defence.

It is scarcely supposable that the views of Sir Henry Clinton in moving up the river, were limited to this single acquisition. The means employed were so disproportioned to the object, as to justify a belief that he contemplated farther and more important conquests. Whatever may have been his plans, the measures of precaution taken by Washington counteracted their execution; and before Clinton was in a situation to proceed against West Point, General M'Dougal was so strengthened, and the American army took such a position on the strong grounds about the Hudson, that the enterprise became too hazardous to be farther prosecuted.

After completing the fortifications on both sides the river, at King's Ferry, Sir Henry Clinton placed a strong garrison in each fort, and proceeded down the river to Philipsburg. The relative situation of the hostile armies presenting insuperable obstacles to any grand operation, they could be employed offensively only on detached expeditions. Connecticut from its contiguity to New York, and its extent of sea coast, was peculiarly exposed to invasion. The numerous small cruisers which plied in the Sound, to the great annoyance of British commerce, and the large supplies of provisions

drawn from the adjacent country, for the use of the continental army, furnished great inducements to Sir Henry Clinton to direct his enterprises particularly against that state. He also hoped to draw General Washington from his impregnable position on the North River into the low country, and thus obtain an opportunity of striking at some part of his army, or of seizing the posts, which were the great object of the campaign. July.

Invasion of Connecticut. With these views, he planned an expedition against Connecticut, the command of which was given to Governor Tryon, who reached New Haven bay on the 5th of July, with about two thousand six hundred men.

General Washington was at the time on the lines, examining in person the condition of the works on Stony and Verplank's Points; in consequence of which, the intelligence which was transmitted to head quarters that the fleet had sailed, could not be immediately communicated to the governor of Connecticut, and the first intimation which that state received of its danger, was given by the appearance of the enemy. The militia assembled in considerable numbers with alacrity; but the British effected a landing, and took possession of the town. After destroying the military and naval stores found in the place, they re-embarked, and proceeded westward to Fairfield, which was reduced to ashes. The good countenance shown by the militia at this place is attested by the apology made by General Tryon for the wanton destruction of private property, which disgraced his conduct. "The village was burnt," he says, "to resent the fire of the rebels from their houses, and to mask our retreat."

July.

From Fairfield the fleet crossed the Sound to Huntingdon bay, where it remained until the eleventh, when it recrossed that water, after which the troops were landed in the night on the low pasture, a peninsula on the east side of the bay of Norwalk. About the same time, a much larger detachment from the British army directed its course towards Horse Neck, and made demonstrations of a design to penetrate into the country in that direction.

On the first intelligence that Connecticut was invaded, General Parsons, a native of that state, had been directed by General Washington to hasten to the scene of action. July. Placing himself at the head of about one hundred and fifty continental troops, who were supported by considerable bodies of militia, he attacked the British in the morning of the twelfth, as soon as they

were in motion, and kept up an irregular distant fire throughout the day. But being too weak to prevent the destruction of any particular town on the coast, Norwalk was reduced to ashes; after which the British re-embarked, and returned to Huntingdon bay, there to wait for reinforcements. At this place, however, Tryon received orders to return to the White Stone; where, in a conference between Sir Henry Clinton and Sir George Collier, it was determined to proceed against New London with an increased force.

On the invasion of Connecticut, the Commander-in-chief was prompt in his exertions to send continental troops from the nearest encampments to its aid; but, before they could afford any real service, Sir Henry Clinton found it necessary to recall Tryon to the Hudson.

General Washington had planned an enterprise against the posts at King's Ferry, comprehending a double attack, to be made at the same time, on both. But the difficulty of a perfect co-operation of detachments, incapable of communicating with each other, determined him to postpone the attack on Verplank's, and to make that part of the plan dependent on the success of the first. His whole attention therefore was turned to Stony Point; and the troops destined for this critical service, proceeded on it as against a single object.

The execution of the plan was entrusted to General Wayne, who commanded the light infantry of the army. Secrecy was deemed so much more essential to success than numbers, that no addition was made to the force already on the lines. One brigade was ordered to commence its march, so as to reach the scene of action in time to cover the troops engaged in the attack, should any unlooked-for disaster befall them; and Major Lee of the light dragoons, who had been eminently useful in obtaining the intelligence which led to the enterprise, was associated with General Wayne, as far as cavalry could be employed in such a service. July. The night of the fifteenth, and the hour of twelve, were chosen for the assault.

Stony Point is a commanding hill, projecting far into the Hudson, which washes three-fourths of its base. The remaining fourth is, in a great measure, covered by a deep marsh, commencing near the river on the upper side, and continuing into it below. Over this marsh there is only one crossing place; but at its junction with the river, is a sandy beach, passable at low tide. On the summit of this hill stood the fort, which was furnished with heavy ordnance. Several breast-works and strong batteries were

advanced in front of the main work; and, about half way down the hill, were two rows of abattis. The batteries were calculated to command the beach and the crossing place of the marsh, and to rake and enfilade any column which might be advancing from either of those points towards the fort. In addition to these defences, several vessels of war were stationed in the river, and commanded the ground at the foot of the hill. The garrison consisted of about six hundred men, commanded by Colonel Johnson.

General Wayne arrived about eight in the afternoon at Spring Steel's, one and a half miles from the fort; and made his dispositions for the assault.

It was intended to attack the works on the right and left flanks at the same instant. The regiments of Febiger and of Meigs, with Major Hull's detachment, formed the right column; and Butler's regiment, with two companies under Major Murfree, formed the left. One hundred and fifty volunteers, led by Lieutenant Colonel Fleury and Major Posey, constituted the van of the right; and one hundred volunteers under Major Stewart, composed the van of the left. At half past eleven the two columns moved to the assault, the van of each with unloaded muskets, and fixed bayonets. They were each preceded by a forlorn hope of twenty men, the one commanded by Lieutenant Gibbon, and the other by Lieutenant Knox. General Wayne surprises and takes Stony Point. They reached the marsh undiscovered; and, at twenty minutes after twelve, commenced the assault.

Both columns rushed forward under a tremendous fire. Surmounting every obstacle, they entered the works at the point of the bayonet; and, without discharging a single musket, obtained possession of the fort.

The humanity displayed by the conquerors was not less conspicuous, nor less honourable than their courage. Not an individual suffered after resistance had ceased.

All the troops engaged in this perilous service manifested a degree of ardour and impetuosity, which proved them to be capable of the most difficult enterprises; and all distinguished themselves, whose situation enabled them to do so. Colonel Fleury was the first to enter the fort and strike the British standard. Major Posey mounted the works almost at the same instant, and was the first to give the watch word—"The fort's our own."—Lieutenants Gibbon and Knox performed the service allotted to them with a degree of intrepidity which could not be surpassed. Of twenty

men who constituted the party of the former, seventeen were killed or wounded.

Sixty-three of the garrison were killed, including two officers. The prisoners amounted to five hundred and forty-three, among whom were one lieutenant colonel, four captains, and twenty subaltern officers. The military stores taken in the fort were considerable.[\[18\]](#)

The loss sustained by the assailants was not proportioned to the apparent danger of the enterprise. The killed and wounded did not exceed one hundred men; General Wayne, who marched with Febiger's regiment in the right column, received a slight wound in the head which stunned him for a time, but did not compel him to leave the column. Being supported by his aids, he entered the fort with a regiment. Lieutenant Colonel Hay was also among the wounded.

Although the design upon fort Fayette had yielded to the desire of securing the success of the attack on Stony Point, it had not been abandoned. Two brigades under General M'Dougal had been ordered to approach the works on Verplank's, in which Colonel Webster commanded, and be in readiness to attack them the instant General Wayne should obtain possession of Stony Point. That this detachment might not permit the favourable moment to pass unimproved, Wayne had been requested to direct the messenger who should convey the intelligence of his success to the Commander-in-chief, to pass through M'Dougal's camp, and give him advice of that event. He was also requested to turn the cannon of the fort against Verplank's, and the vessels in the river. The last orders were executed, and a heavy cannonade was opened on fort Fayette, and on the vessels, which compelled them to fall down the river. Through some misconception, never explained, the messenger despatched by General Wayne did not call on M'Dougal, but proceeded directly to head quarters. Thus, every advantage expected from the first impression made by the capture of Stony Point was lost; and the garrison had full leisure to recover from the surprise occasioned by that event, and to prepare for an attack. This change of circumstances made it necessary to change the plan of operation. General Howe was directed to take the command of M'Dougal's detachment, to which some pieces of heavy artillery were to be annexed. He was ordered, after effecting a breach in the walls, to make the dispositions for an assault, and to demand a surrender; but not to attempt a storm until it

should be dark. To these orders, explicit instructions were added not to hazard his party by remaining before Verplank's, after the British should cross Croton River in force.



The Ruins of Stony Point—On the Hudson

Here, on the night of July 16, 1779, Brigadier-General (Mad Anthony) Wayne led his troops up the hill in darkness, surprised the British garrison and captured this British stronghold at the point of the bayonet. Not a shot was fired by the Americans, who lost fifteen killed and eighty-three wounded; the British sixty-three killed and 533 prisoners. The fortifications were destroyed and the place, being untenable, was abandoned shortly afterwards by the Americans.

Through some unaccountable negligence in the persons charged with the execution of these orders, the battering artillery was not accompanied with suitable ammunition; and the necessary intrenching tools were not brought. These omissions were supplied the next day; but it was then too late to proceed against Verplank's.

On receiving intelligence of the loss of Stony Point, and of the danger to which the garrison of fort Fayette was exposed, Sir Henry Clinton relinquished his views on Connecticut, and made a forced march to Dobbs'

Ferry. Some troops were immediately embarked to pass up the river, and a light corps was pushed forward to the Croton. This movement relieved fort Fayette.

The failure of the attempt to obtain possession of Verplank's Point leaving that road of communication still closed, diminished the advantages which had been expected to result from the enterprise so much, that it was deemed unadvisable to maintain Stony Point. On reconnoitring the ground, General Washington believed that the place could not be rendered secure with a garrison of less than fifteen hundred men; a number which could not be spared from the army without weakening it too much for farther operations. He determined therefore to evacuate Stony Point, and retire to the Highlands. As soon as this resolution was executed, Sir Henry Clinton repossessed himself of that post, repaired the fortifications, and placed a stronger garrison in it; after which he resumed his former situation at Philipsburg.

The two armies watched each other for some time. At length, Sir Henry Clinton, finding himself unable to attack Washington in the strong position he had taken, or to draw him from it, and being desirous of transferring the theatre of active war to the south, withdrew into York Island, and was understood to be strengthening the fortifications erected for its defence, as preparatory to the large detachments he intended making to reinforce the southern army.

Although this movement was made principally with a view to southern operations, it was in some degree hastened by the opinion, that New York required immediate additional protection during the absence of the fleet, which was about to sail for the relief of Penobscot.

Expedition against Penobscot.

Early in June, Colonel M'Clean, with six hundred and fifty men, had penetrated from Nova Scotia into the eastern parts of Maine, and taken possession of a strong piece of ground on the Penobscot, which he had begun to fortify.

The state of Massachusetts, alarmed at an invasion which threatened a serious diminution of territory, determined to dislodge him. A respectable fleet, commanded by Commodore Saltonstall, and an army of near four thousand men, under General Lovell, were prepared with so much celerity,

July 25.that the whole armament appeared in the Penobscot as early as the 25th of July.

M'Clean had taken possession of a peninsula on the eastern side of Penobscot, and had intrenched the isthmus connecting it with the continent. The part towards the river was steep and difficult of access; and was also defended by his frigates and batteries, the principal of which was constructed about the centre of the peninsula.

After being repulsed in his first attempt, General Lovell effected a landing on the western part of the peninsula, where he ascended a precipice of two hundred feet; and, with the loss of only fifty men killed and wounded, drove the party which defended it from the ground. A battery was erected within seven hundred and fifty yards of the main work of the besieged, and a warm cannonade was kept up for several days on both sides.

Perceiving the difficulty of carrying the place with a militia impatient to return to their homes, General Lovell represented his situation to the government of Massachusetts, who applied to General Gates, then commanding at Providence, for a reinforcement of four hundred continental troops. This request was readily granted, and Jackson's regiment was ordered to Penobscot. In the mean time an ineffectual cannonade was continued, and preparations were made to storm the works on the arrival of the expected reinforcements.

Such was the posture of affairs on the 13th of August, when Lovell received information that Sir George Collier had entered the river with a superior naval force. He re-embarked his whole army the following night, and drew up his flotilla in a crescent across the river, as if determined to maintain its position. This show of resistance was made in the hope of stopping Sir George Collier until the land forces on board the transports could be conveyed up the river, and disembarked on the western shore. But the British general was too confident in his strength to permit this stratagem to succeed; and, as he approached, the Americans sought for safety in flight. A general chase and unresisted destruction ensued. The ships of war were blown up, and the transports fled in the utmost confusion up the river. Being pursued by the British squadron, the troops landed in a wild uncultivated country; and were obliged to explore their way, without provisions, through a pathless wilderness, for more than a hundred miles. Exhausted with

famine and fatigue, they at length gained the settled parts of the country, after having lost several men who perished in the woods.

While Sir Henry Clinton continued encamped just above Haerlem, with his upper posts at Kingsbridge, and the American army preserved its station in the Highlands, a bold plan was formed for surprising a British post at Powles Hook, which was executed with great address by Major Lee.

This officer was employed on the west side of the river with directions to observe the situation of the British in Stony Point, but, principally, to watch the motions of their main army. While his parties scoured the country, he obtained intelligence which suggested the idea of surprising and carrying off the garrison at Powles Hook, a point of land on the west side of the Hudson, immediately opposite the town of New York, penetrating deep into the river. On the point nearest New York, some works had been constructed, which were garrisoned by four or five hundred men.

A deep ditch, into which the water of the river flowed, having over it a drawbridge connected with a barred gate, had been cut across the isthmus, so as to make the Hook, in reality, an island. This ditch could be passed only at low water. Thirty paces within it was a row of abattis running into the river; and some distance in front of it, is a creek fordable only in two places.

This difficulty of access, added to the remoteness of the nearest corps of the American army, impressed the garrison with the opinion that they were perfectly secure; and this opinion produced an unmilitary remissness in the commanding officer, which did not escape the vigilance of Lee.

On receiving his communications, General Washington was inclined to favour the enterprise they suggested; but withheld his full assent, until he was satisfied that the assailants would be able to make good their retreat.

The Hackensack, which communicates with the waters of the Hudson below New York, runs almost parallel with that river quite to its source, and is separated from it only a few miles. This neck is still farther narrowed by a deep creek which divides it, and empties into the Hackensack below fort Lee. West of that river runs the Passaic, which unites with it near Newark, and forms another long and narrow neck of land. From Powles Hook to the new bridge, the first place where the Hackensack could be crossed without boats, the distance is fourteen miles; and from the North River to the road leading from the one place to the other, there are three points of

interception, the nearest of which is less than two miles, and the farthest not more than three. The British were encamped in full force along the North River, opposite to these points of interception. To diminish the danger of the retreat, it was intended to occupy the roads leading through the mountains of the Hudson to the Hackensack with a select body of troops.

Every preparatory arrangement being made, the night of the eighteenth of August was fixed on for the enterprise. A detachment from the division of Lord Stirling, including three hundred men designed for the expedition, was ordered down as a foraging party. As there was nothing unusual in this movement, it excited no suspicion. Lord Stirling followed with five hundred men, and encamped at the new bridge.

Major Lee, at the head of three hundred men, took the road through the mountains which ran parallel to the North River; and, having secured all the passes into York Island, reached the creek which surrounds the Hook between two and three in the morning. The British post at Powles Hook surprised by Major Lee and the garrison made prisoners. He passed first the creek, and then the ditch undiscovered; and, about three in the morning, entered the main work, and with the loss of only two killed and three wounded, made one hundred and fifty-nine prisoners, including three officers. Very few of the British were killed. Major Sutherland, who commanded the garrison, threw himself with forty or fifty Hessians into a strong redoubt, which it was thought unadvisable to attack, because the time occupied in carrying it might endanger the retreat. Wasting no time in destroying what could easily be replaced, Major Lee hastened to bring off his prisoners and his detachment.

To avoid the danger of retreating up the narrow neck of land which has already been described, some boats had been brought in the course of the night to Dow's Ferry on the Hackensack, not far from Powles Hook. The officer who guarded them was directed to remain until the arrival of the troops engaged in the expedition, which, it was understood, would happen before day. The light having made its appearance without any intelligence from Major Lee, the officer having charge of the boats conjectured that the attack had been postponed; and, to avoid discovery, retired with them to Newark. The head of the retreating column soon afterwards reached the ferry; and, fatigued as they were by the toilsome march of the preceding night, were compelled to pass as rapidly as possible up the narrow neck of

land between the two rivers to the new bridge. A horseman was despatched with this information to Lord Stirling, and the line of march was resumed.

About nine in the preceding evening, Major Buskirk had been detached up the North River with a considerable part of the garrison of Powles Hook, and some other troops, for the purpose of falling in with the American party supposed to be foraging about the English neighbourhood.

On receiving intelligence of the disappointment respecting the boats, Lord Stirling took the precaution to detach Colonel Ball with two hundred fresh men to meet Lee, and cover his retreat. Just after Ball had passed, Buskirk entered the main road, and fired on his rear. Taking it for granted that this was only the advanced corps of a large detachment sent to intercept the party retreating from Powles Hook, Ball made a circuit to avoid the enemy; and Buskirk, finding a detachment he had not expected, took the same measure to secure his own retreat. The two parties, narrowly missing each other, returned to their respective points of departure; and Lee reached the new bridge without interruption.[\[19\]](#)

This critical enterprise reflected much honour on the partisan with whom it originated, and by whom it was conducted. General Washington announced it to the army in his orders with much approbation; and congress bestowed upon it a degree of applause more adapted to the talent displayed in performing the service than to its magnitude.

Arrival of Admiral Arbuthnot.

A few days after the surprise of Powles Hook, the long expected fleet from Europe, under the command of Admiral Arbuthnot, having on board a reinforcement for the British army, arrived at New York. This reinforcement however did not enable Sir Henry Clinton to enter immediately on that active course of offensive operations which he had meditated. It was soon followed by the Count D'Estaing, who arrived on the southern coast of America with a powerful fleet; after which the British general deemed it necessary to turn all his attention to his own security. Rhode Island, and the posts up the North River were evacuated, and the whole army was collected in New York, the fortifications of which were carried on with unremitting industry.

The Count D'Estaing and Admiral Byron, having sailed about the same time from the coast of North America, met in the West Indies, where the war was carried on with various success. St. Lucia taken by the British. St. Vincents and Grenada by the French. St. Lucia surrendered to the British, in compensation for which the French took St. Vincents and Grenada. About the time of the capture of the latter island, D'Estaing received reinforcements which gave him a decided naval superiority; after which a battle was fought between the two hostile fleets, in which the Count claimed the victory, and in which so many of the British ships were disabled that the Admiral was compelled to retire into port in order to refit.

The earnest representations made on the part of the United States had prevailed on the cabinet of Versailles to instruct the Count D'Estaing to afford them all the aid in his power; and the present moment seemed a fit one for carrying these orders into execution. Letters from General Lincoln, from the executive of South Carolina, and from the French consul at Charleston, urged him to pay a visit to the southern states; and represented the situation of the British in Georgia to be such that his appearance would insure the destruction of the army in that quarter, and the recovery of the state.

Count D'Estaing with his fleet arrives on the southern coast of America.

Yielding to these solicitations, the Count sailed with twenty-two ships of the line, and eleven frigates, having on board six thousand soldiers, and arrived so suddenly on the southern coast of America, that the Experiment of fifty guns, and three frigates, fell into his hands. A vessel was sent to

Charleston with information of his arrival, and a plan was concerted for the siege of Savannah. D'Estaing was to land three thousand men at Beaulieu on the 11th of September, and Lincoln was to cross the Savannah on the same day with one thousand Americans, and effect a junction with him.

The town of Savannah was, at that time, the head quarters of General Prevost. Apprehending no immediate danger, he had weakened the garrison by establishing several out-posts in Georgia; and by leaving Colonel Maitland with a strong detachment in the island of Port Royal, in South Carolina.

On the appearance of the French fleet, expresses were despatched to Colonel Maitland and to all the out-posts, directing the troops to repair without loss of time to Savannah. These orders were promptly obeyed; and, on the 10th of September, the several detachments in Georgia had all arrived in safety, except the sick and convalescents of the garrison of Sunbury, who were intercepted.

September.

Siege of Savannah by the combined armies.

On the 11th, General Lincoln reached Zubly's Ferry, and, on the 15th, was assured that the French had disembarked in force. A junction of the two armies was formed the next day before the town of Savannah.

On the night of the 12th, the Count D'Estaing had landed about three thousand men at Beaulieu; and the next day, before the arrival of General Lincoln, had summoned the garrison to surrender to the arms of the King of France. Being desirous of gaining time, General Prevost answered the summons in such a manner as to encourage the opinion that he designed to capitulate; in the expectation of which a suspension of hostilities for twenty-four hours was granted. In that important interval, Colonel Maitland arrived from Beaufort, with the troops which had been stationed at that place.

As the French were in possession of the main channel by which the Savannah communicates with the sea, Colonel Maitland entered the town by a route which had been deemed impracticable. He came round by Dawfuskie, an island north of the mouth of the river, and landing in a deep marsh, drew his boats through it into the Savannah, above the place where the ships lay at anchor, and thence made his way by small parties into the town.

On receiving this reinforcement, the resolution was taken to defend the place to the last extremity; and, the next day, this determination was communicated to the Count D'Estaing.

September.

After bringing up the heavy ordnance and stores from the fleet, the besieging army broke ground; and, by the first of October, had pushed their sap within three hundred yards of the abattis on the left of the British lines. Several batteries were opened on the besieged which played almost incessantly upon their works, but made no impression on them.

The situation of D'Estaing was becoming critical. More time had already been consumed on the coast of Georgia than he had supposed would be necessary for the destruction of the British force in that state. He became uneasy for the possessions of France in the West Indies, and apprehensive for the safety of the ships under his command. The naval officers remonstrated strenuously against longer exposing his fleet on an insecure coast, at a tempestuous season of the year, and urged the danger of being overtaken by a British squadron, when broken and scattered by a storm, with a degree of persevering earnestness which the Count found himself incapable of resisting.

In a few days the lines of the besiegers might have been carried by regular approaches, into the works of the besieged, which would have rendered the capture of the town and garrison inevitable. But D'Estaing declared that he could devote no more time to this object; and it only remained to raise the siege, or to attempt the works by storm. The latter part of the alternative was adopted.

On the left of the allied army, was a swampy hollow way which afforded a cover for troops advancing on the right flank of the besieged, to a point within fifty yards of their principal work. It was determined to march to the main attack along this hollow; and, at the same time, to direct feints against other parts of the lines.

On the morning of the 9th of October, before day, a heavy cannonade and bombardment were commenced from all the batteries, as preliminary to the assault. Unsuccessful attempt to storm it. About three thousand five hundred French, and one thousand Americans, of whom between six and seven hundred were regulars, and the residue militia of Charleston, advanced in three columns, led by D'Estaing and Lincoln, aided by the principal officers

of both nations, and made a furious assault on the British lines. Their reception was warmer than had been expected. The fire from the batteries of the besieged reached every part of the columns of the assailants which had emerged from the swamp, and did great execution. Yet the allied troops advanced with unabated ardour, passed through the abattis, crossed the ditch, and mounted the parapet. Both the French and Americans planted their standards on the walls, and were killed in great numbers, while endeavouring to force their way into the works. For about fifty minutes, the contest was extremely obstinate. At length, the columns of the assailants began to relax, and a pause was manifested in the assault.

In this critical moment, Major Glaziers, at the head of a body of grenadiers and marines, rushing suddenly from the lines, threw himself on those who had made their way into the redoubts, and drove them over the ditch and abattis into the hollow which they had marched to the attack. It became apparent that farther perseverance could produce no advantage, and a retreat was ordered.

In this unsuccessful attempt, the French lost in killed and wounded, about seven hundred men. Among the latter, were the Count D'Estaing himself, Major General De Fontanges, and several other officers of distinction. The continental troops lost two hundred and thirty-four men, and the Charleston militia, who, though associated with them in danger, were more fortunate, had one captain killed, and six privates wounded.

The loss of the garrison was astonishingly small. In killed and wounded, it amounted only to fifty-five. So great was the advantage of the cover afforded by their works.

The siege raised.

After this repulse, the Count D'Estaing announced to General Lincoln, his determination to raise the siege. The remonstrances of that officer were ineffectual; and the removal of the heavy ordnance and stores was commenced. This being accomplished, both armies moved from their ground on the evening of October 18. the 18th of October. The Americans, recrossing the Savannah at Zubly's Ferry, again encamped in South Carolina, and the French re-embarked.

Although the issue of this enterprise was the source of severe chagrin and mortification, the prudence of General Lincoln suppressed every

appearance of dissatisfaction, and the armies separated with manifestations of reciprocal esteem.

The hopes which had brought the militia into the field being disappointed, they dispersed; and the affairs of the southern states wore a more gloomy aspect than at any former period.

On receiving intelligence of the situation of Lincoln, congress passed a resolution requesting General Washington to order the North Carolina troops, and such others as could be spared from the northern army, to the aid of that in the south; and assuring the states of South Carolina and Georgia of the attention of government to their preservation; but requesting them, for their own defence, to comply with the recommendations formerly made respecting the completion of their continental regiments, and the government of their militia while in actual service.

During these transactions in the south, the long meditated expedition against the Indians was prosecuted with success.

The largest division of the western army was to assemble at Wyoming, on the main branch of the Susquehanna, and General Sullivan expected to leave that place in the month of June. Such, however, were the delays in procuring provisions and military stores, that it was the last of July^[20] before he could move from the place of rendezvous.

Another body of troops, designed to compose a part of the western army, had passed the winter on the Mohawk. August. On the 22d of August, these two divisions united, and the whole army, amounting to five thousand men, marched up the Tyoga, which led into the heart of the Indian country.

Such extensive and tedious preparations could not be made unobserved. The plan of operations contemplated by Sullivan seems to have been completely understood; and, notwithstanding the vast superiority of his force, the Indians determined to defend their country. They resolved to risk a general action for its preservation, and selected the ground for the conflict with judgment.

About a mile in front of Newtown, they collected their whole force, estimated by General Sullivan at fifteen hundred men, but by themselves at only eight hundred, commanded by the two Butlers, Grey, Johnson, M'Donald, and Brandt. Five companies of whites, calculated at two hundred men, were united with them. They had constructed a breast-work about half a mile in length, on a piece of rising ground. The right flank of this work

was covered by the river, which, bending to the right, and winding round their rear, exposed only their front and left to an attack. On the left, was a high ridge nearly parallel to the general course of the river, terminating somewhat below the breast-work; and still farther to the left, was another ridge running in the same direction, and leading to the rear of the American army. The ground was covered with pine interspersed with low shrub-oaks, many of which, for the purpose of concealing their works, had been cut up and stuck in front of them, so as to exhibit the appearance of being still growing. The road, after crossing a deep brook at the foot of the hill, turned to the right, and ran nearly parallel to the breast-work, so as to expose the whole flank of the army to their fire, if it should advance without discovering their position.

Parties communicating with each other were stationed on both hills, so as to fall on the right flank and rear of Sullivan, as soon as the action should commence.

August.

About eleven in the morning of the 29th of August, this work was discovered by Major Par, who commanded the advance guard of the army; upon which, General Hand formed the light infantry in a wood, about four hundred yards distant from the enemy, and stood upon his ground until the main body should arrive. In the mean time, a continual skirmishing was kept up between Par's rifle corps, and small parties of Indians who sallied from their works, and suddenly retreated, apparently with the hope of being incautiously pursued.

Conjecturing that the hills on his right were occupied by the savages, Sullivan ordered General Poor to take possession of that which led into his rear, and, thence, to turn the left, and gain the rear, of the breast-work; while Hand, aided by the artillery, should attack in front. These orders were promptly executed. While the artillery played on the works, Poor pushed up the mountain, and a sharp conflict commenced, which was sustained for some time, with considerable spirit on both sides. Poor continued to advance rapidly, pressing the Indians before him at the point of the bayonet, and occasionally firing on them. They retreated from tree to tree, keeping up an irregular fire, until he gained the summit of the hill. Perceiving that their flank was completely uncovered by this movement, and that they were

in danger of being surrounded, the savages abandoned their breast-work, and, crossing the river, fled with the utmost precipitation.

Victory of General Sullivan at Newtown.

This victory cost the Americans about thirty men. The ascertained loss of the Indians was also inconsiderable. But they were so intimidated, that every idea of farther resistance was abandoned. As Sullivan advanced, they continued to retreat before him without harassing his main body, or even skirmishing with his detachments, except in a single instance.

He penetrated far into the heart of their country, which his parties scoured, and laid waste in every direction. Houses, corn-fields, gardens, and fruit trees, shared one common fate; and Sullivan executed strictly the severe but necessary orders he had received, to render the country completely uninhabitable for the present, and thus to compel the hostile Indians, by want of food, to remove to a greater distance.

The objects of the expedition being accomplished, Sullivan returned to Easton in Pennsylvania, having lost only forty men by sickness and the enemy.

The devastation of the country has been spoken of with some degree of disapprobation; but this sentiment is the result rather of an amiable disposition in the human mind to condemn whatever may have the appearance of tending to aggravate the miseries of war, than of reflection. Circumstances existed which reconciled to humanity this seeming departure from it. Great Britain possessed advantages which ensured a controlling influence over the Indians, and kept them in almost continual war with the United States. Their habitual ferocity seemed to have derived increased virulence from the malignity of the whites who had taken refuge among them; and there was real foundation for the opinion that an annual repetition of the horrors of Wyoming could be prevented only by disabling the savages from perpetrating them. No means in the power of the United States promised so certainly to effect this desirable object, as the removal of neighbours whose hostility could be diminished only by terror, and whose resentments were to be assuaged only by fear.

While Sullivan laid waste the country on the Susquehanna, another expedition under Colonel Brodhead, was carried on from Pittsburg up the Alleghany, against the Mingo, Munscy, and Seneca tribes. At the head of between six and seven hundred men, he advanced two hundred miles up the

river, and destroyed the villages and corn-fields on its head branches. Here too the Indians were unable to resist the invading army.

After one unsuccessful skirmish, they abandoned their villages to a destruction which was inevitable, and sought for personal safety in their woods.

On receiving the communications of General Sullivan, congress passed a vote approving his conduct, and that of his army. That approbation, however, seems not to have extended beyond his conduct in the Indian country. His demands for military stores for the expedition had been so high; in his conversations with his officers, he had so freely censured the government for its failure to comply with those demands; in general orders, he had so openly complained of inattention to the preparations necessary to secure the success of the enterprise; that considerable offence was given to several members of congress, and still more to the board of war. From the operation of these causes, when Sullivan, at the close of the campaign, complained of ill health, and offered, on that account, to resign his commission, the endeavours of his friends to obtain a vote requesting him to continue in the service, and permitting him to retire from actual duty until his health should be restored, were overruled; and his resignation was accepted. The resolution permitting him to resign was, however, accompanied with one thanking him for his past services.

Although these great exertions to terminate Indian hostility did not afford complete security to the western frontiers, they were attended with considerable advantages. The savages, though not subdued, were intimidated; and their incursions became less formidable, as well as less frequent.

The summer of 1779 passed away without furnishing any circumstance in America which could be supposed to have a material influence on the issue of the war. In Europe, however, an event took place which had been long anxiously expected, and was believed to be of decisive importance. Spain at length determined to make one common cause with France against Great Britain. It was supposed that the two powers would be able to obtain a complete ascendancy at sea; and that their combined fleets would maintain a superiority on the American coast, as well as in Europe.

From the first determination of France to take part in the war, it appears to have been the earnest wish of the cabinet of Versailles to engage Spain

likewise in the contest.

Her resentments against England, her solicitude to diminish the naval strength of that nation, and her wish to recover Jamaica, Gibraltar, and the Floridas, urged her to seize the fair occasion now offered of dismembering the British empire, and accomplishing these favourite objects. But her dread of the effect which the independence of the United States might produce on her own colonies, mingled with some apprehensions of danger from the contest she was about to provoke, had produced an appearance of irresolution, which rendered her future course, for a time, uncertain. In this conflict of opposite interests, the influence of the cabinet of Versailles, and the jealousy of the naval power of Britain, at length obtained the victory; and his Catholic Majesty determined to prevent the reannexation of the United States to their mother country; but to effect this object by negotiation rather than by the sword.

Spain offers her mediation to the belligerent powers.

In pursuance of this pacific system, he offered his mediation to the belligerent powers. This proposition was readily accepted by France; but the minister of his Britannic Majesty evaded any explicit arrangements on the subject, while he continued to make general verbal declarations of the willingness of his sovereign to give peace to Europe under the mediation of his Catholic Majesty. In consequence of these declarations, the Spanish minister proposed a truce for a term of years, and that a congress of deputies from the belligerent powers should assemble at Madrid to adjust the terms of a permanent treaty; into which deputies from the United States were to be admitted, as the representatives of a sovereign nation. Although an explicit acknowledgment of their independence was not to be required, it was to be understood that they should be independent in fact, and should be completely separated from the British empire.

This negotiation was protracted to a considerable length; and in the mean time, all the address of the cabinet of London was used to detach either France or the United States from their alliance with each other. Notice of it was given to the American government by the minister of France at Philadelphia, as well as by Mr. Arthur Lee, one of their agents in Europe; and congress was repeatedly urged by the former, to furnish those who might be authorized to represent them in the conferences for a general treaty, with ample powers and instructions to conclude it. An extraordinary

degree of solicitude was manifested to hasten the full powers, and to moderate the claims of the United States.

It seems to have been the policy of the cabinet of Versailles to exclude the American States from a share of the fisheries, and to limit their western boundary to the settlements then made. Either from a real apprehension that the war might be protracted should the United States insist on the acknowledgment of their independence as a preliminary to any treaty, or from an opinion that such preliminary acknowledgment would leave the terms of the treaty less under the control of France, and the American plenipotentiaries more masters of their own conduct, Monsieur Girard laboured to persuade congress to recede from that demand. If they could be independent in fact, he thought the form not worth contending for.[\[21\]](#)

While congress was employed in debating the instructions to their ministers, the negotiation was brought to a close. As Spain became prepared for hostilities, the offered mediation was pressed in such terms as to produce the necessity of either accepting or rejecting it. This drew from the cabinet of London a declaration that the independence of the United States was inadmissible; upon which his Catholic Majesty determined to take part in the war.

War between Spain and England.

On the departure of his minister from London without taking leave, the British government issued letters of marque and reprisal against the vessels and subjects of the Spanish crown; and a powerful Spanish fleet, which had been preparing during the negotiation, was expedited, to co-operate with that of France. Yet the independence of the United States was not acknowledged, nor was their minister accredited. Despatches, giving notice of the hostilities meditated by his Catholic Majesty, were forwarded to Don Galvez, the governor of Louisiana, who collected a considerable military force at New Orleans, and reduced the settlements held by the British crown on the Mississippi, which had not been apprised of the war.

Intelligence of this important event was given to congress while that body was deliberating on the instructions to their negotiators. It is not impossible that this information had some influence on those deliberations; and, rendering the American government less solicitous about the future conduct of Spain, diminished the motives for making territorial sacrifices to that power. Their ministers were ordered to make it a preliminary article to

any negotiation, that Great Britain should agree to treat with the United States, as sovereign, free, and independent; and that their independence should be expressly assured and confirmed by the terms of the treaty itself.

That the United States might be enabled to avail themselves without further delays, of any occasion which might be presented for terminating the war, Mr. John Adams, who was already in Europe, was authorized to negotiate a treaty of peace, and a commercial treaty with Great Britain; and Mr. Jay, at that time president of congress, was appointed minister plenipotentiary to the court of Madrid, with instructions to insist on the free navigation of the Mississippi;—a claim to which Spain objected, and which was discountenanced by France.

As the campaign drew to a close without affording any solid foundation for the hope that the war was about to terminate, General Washington repeated those efforts which he had made so often and so unsuccessfully, to induce early preparations for the ensuing year. He submitted to the view of his government a detailed report of the whole army, which exhibited the alarming fact, that by the last of the following June, the terms of service of nearly one-half the men under his command would expire.

It was not the least considerable of the inconveniences attending the complex system of government then prevailing in the United States, that measures essential to the safety of the nation were never taken in season. Thus, when the time for raising the quotas of the respective states by voluntary enlistment had passed away, and the necessity of resorting to coercive means had become absolute, those means were so delayed, and so irregularly put in execution, that the terms of service of different portions of the army expired almost every month in the year; and raw troops, ignorant of the first rudiments of military duty, were introduced in the most critical moments of a campaign. Had timely and correspondent measures been taken by the states to raise their respective quotas by a specified time in the depth of winter, the recruits would have received the advantage of a few months training before they were brought into actual service, and the General, that of a certain uninterrupted force for each campaign. This course of proceeding had been continually recommended, and the recommendation had been as continually neglected.

Letter from General Washington to Congress.

"In the more early stages of the contest," said the Commander-in-chief to congress, in a letter of the 8th of November, "when men might have been enlisted for the war, no man, as my whole conduct, and the uniform tenor of my letters will evince, was ever more opposed to short enlistments than I was; and while there remained a prospect of obtaining recruits on a permanent footing in the first instance, as far as duty and a regard to my station would permit, I urged my sentiments in favour of it. But the prospect of keeping up an army by voluntary enlistments being changed, or at least standing on too precarious and uncertain a footing to depend on for the exigency of our affairs, I took the liberty in February, 1778, in a particular manner, to lay before the committee of arrangement then with the army at Valley Forge, a plan for an annual draught, as the surest and most certain, if not the only means left us, of maintaining the army on a proper and respectable ground. And, more and more confirmed in the propriety of this opinion by the intervention of a variety of circumstances, unnecessary to detail, I again took the freedom of urging the plan to the committee of conference in January last; and, having reviewed it in every point of light, and found it right, at least the best that has occurred to me, I hope I shall be excused by congress in offering it to them, and in time for carrying into execution for the next year; if they should conceive it necessary for the states to complete their quotas of troops.

"The plan I would propose is, that each state be informed by congress annually of the *real deficiency* of its troops, and called upon to make it up, or such less specific number as congress may think proper, by a draught. That the men draughted join the army by the first of January, and serve until the first of January in the succeeding year. That from the time the draughts join the army, the officers of the states from which they come, be authorized and directed to use their endeavours to enlist them for the war, under the bounties granted to the officers themselves, and to the recruits, by the act of the 23d of January, 1779, viz: ten dollars to the officer for each recruit, and two hundred to the recruits themselves. That all state, county, and town bounties to draughts, if practicable, be entirely abolished, on account of the uneasiness and disorders they create among the soldiery, the desertions they produce, and for other reasons which will readily occur. That on or before the first of October annually, an abstract, or return, similar to the present one, be transmitted to congress, to enable them to make their requisitions to each state with certainty and precision. This I would propose as a general

plan to be pursued; and I am persuaded that this, or one nearly similar to it, will be found the best now in our power, as it will be attended with the least expense to the public, will place the service on the footing of order and certainty, and will be the only one that can advance the general interest to any great extent."

These representations on the part of the Commander-in-chief were not more successful than those which had before been made. Although the best dispositions existed in congress, the proceedings of that body were unavoidably slow; and the difficulty of effecting a concert of measures among thirteen sovereign states, was too great to be surmounted. In consequence of these radical defects in the system itself, the contributions of men made by the states continued to be irregular, uncertain, and out of season; and the army could never acquire that consistency and stability, which would have resulted from an exact observance of the plan so often recommended.

On receiving information of the disaster which had been sustained by the allied arms at Savannah, Sir Henry Clinton resumed his plan of active operations against the southern states. A large embarkation took place soon after that event had been announced to him, which sailed from the Hook towards the end of December. The troops were commanded by himself in person, and the fleet by Admiral Arbuthnot. The defence of New York and its dependencies were entrusted to General Knyphausen.

The preparations made in New York for some distant enterprise were immediately communicated by his faithful intelligencers to General Washington, who conjectured its object, and hastened the march of the troops designed to reinforce General Lincoln.

The season for action in a northern climate being over, the General turned his attention to the distribution of his troops in winter quarters. Habit had familiarized the American army to the use of huts constructed by themselves; and both officers and men were content to pass the winter in a hutted camp. In disposing of the troops, therefore, until the time for action should return, wood and water, a healthy situation, convenience for supplies of provisions, stations which would enable them to cover the country, and to defend particular positions, were the objects taken into consideration, and were all to be consulted.

The American army goes into winter quarters.

With a view to these various circumstances, the army was thrown into two great divisions. The northern was to be commanded by General Heath; and its chief object was the security of West Point, and of the posts on the North River, as low as King's Ferry. Subordinate to this, was the protection of the country on the Sound, and down the Hudson to the neighbourhood of Kingsbridge. The other and principal division, under the immediate command of General Washington, was put under cover, late in December, in the neighbourhood of Morristown.

CHAPTER VI.

South Carolina invaded.... The British fleet passes the bar, and gets possession of the harbour of Charleston.... Opinion of General Washington on the propriety of defending that place.... Sir Henry Clinton invests the town.... Tarlton surprises an American corps at Monk's Corner.... Fort Moultrie surrendered.... Tarlton defeats Colonel White.... General Lincoln capitulates.... Buford defeated.... Arrangements for the government of South Carolina and Georgia.... Sir Henry Clinton embarks for New York.... General Gates takes command of the Southern army.... Is defeated near Camden.... Death of De Kalb.... Success of General Sumpter.... He is defeated.

1780.

The departure of the French fleet produced a sudden change in the prospects of the southern states. The sanguine hopes which had been entertained of the recovery of Georgia, gave place to gloomy and well founded apprehensions for South Carolina.

The facility with which General Prevost had passed through the state, and the assurances he had received of the indisposition of a large portion of the people to defend themselves, disclosed too certainly the true situation of the country, not to convince all discerning men that a real attempt at conquest would be made the ensuing year. General Lincoln perceived the approaching danger, without being able to provide against it. His power, as a military commander, was too limited, and his influence on the government of the state too weak, to draw forth even the means it possessed in time for its protection.

Though the preservation of its metropolis was of vast importance to the state, no preparations were making to put it in a condition to stand a siege. The forts on the islands were in ruins, and the works across the neck remained unfinished. The representations made on this subject to the governor by General Lincoln were not disregarded; but from some defect in

the existing law, the executive found it impracticable to obtain labour for these interesting objects.

Admiral Arbuthnot arrived at Savannah on the 31st of January. January 23. One of his transports, which had been separated from the fleet in a storm, was brought into Charleston harbour on the 23d of that month; and the prisoners gave the first certain intelligence that the expedition from New York was destined against the capital of South Carolina.

Before the middle of February, the fleet entered the harbour, or inlet, of North Edisto; and landed the troops without opposition on St. John's Island. Sir Henry Clinton invests Charleston. A part of the fleet was sent round to blockade the harbour of Charleston, while the army proceeded slowly and cautiously from Stono Creek to Wappoo Cut, and through the islands of St. John and St. James.

This delay, in the event so fatal, but then deemed so propitious to the American arms, was employed to the utmost advantage in improving the defence of Charleston. The legislature had enabled the executive to employ slaves to work on the fortifications; and had passed an act delegating great powers to the Governor and such of his council as he could conveniently consult. Under these acts, six hundred slaves were employed on the works, and vigorous, though not very successful measures were taken by the executive to assemble the militia of the country. The fallacious hope was entertained that, if the town could be rendered defensible, the garrison would be made sufficiently strong by reinforcements from the north, and by the militia of the state, to maintain the place and compel Sir Henry Clinton to raise the siege.

The American army being too weak to make any serious opposition to the progress of the British through the country, the cavalry, with a small corps of infantry, were directed to hover on their left flank; and the other troops, consisting of about fourteen hundred regulars fit for duty, aided by the militia, were drawn into the town, and employed on the works.

Understanding that great exertions were making to improve the fortifications, and that the garrison was gaining strength, Sir Henry Clinton ordered General Patterson to join him with the troops which could be spared from Georgia, and directed Lieutenant Colonel Tarlton, after supplying the horses which had been lost during a very stormy voyage from New York, to cover his march through South Carolina. Colonel Washington

defeats Tarlton. In one of the excursions of that active officer to disperse the militia who assembled to oppose the progress of Patterson through the country, his cavalry encountered Lieutenant Colonel Washington, who commanded the remnant of Baylor's regiment, and were driven back with some loss; but the want of infantry disabled Washington from pressing his advantage.

In defending Charleston, the command of the harbour is of great importance. To preserve this advantage, congress had ordered four frigates to South Carolina, which, with the marine force belonging to the state, and two French vessels, were placed under the command of Commodore Whipple.

General Washington was the more sanguine in the hope of defending the harbour, because it was understood that the bar was impassable by a ship of the line, and that even a large frigate could not be brought over it, without first taking out her guns, or careening her so much that the crew would be unable to work her.

On sounding within the bar it was discovered that the water was too shallow for the frigates to act with any effect, and that, in making the attempt, they would be exposed to the fire of the batteries which the assailants had erected. Under these circumstances, the officers of the navy were unanimously of opinion that no successful opposition could be made at the bar, and that the fleet might act more advantageously in concert with the fort on Sullivan's Island.

The intention of disputing the passage over the bar being abandoned, Commodore Whipple moored his squadron in a line with fort Moultrie, in a narrow passage between Sullivan's Island and the middle ground; and the British ships, without their guns, passed the bar, and anchored in five fathom hole.

It being now thought impossible to prevent the fleet from passing fort Moultrie, and taking such stations in Cooper River as would enable them to rake the batteries on shore, and to close that communication between the town and country, the plan of defence was once more changed, and the armed vessels were carried into the mouth of Cooper River, and sunk in a line from the town to Shute's folly.

This was the critical moment for evacuating the town. The loss of the harbour rendered the defence of the place, if not desperate, so improbable,

that the hope to maintain it, could not have been rationally entertained by a person, who was not deceived by the expectation of aids much more considerable than were actually received.

Opinion of General Washington on the subject of defending Charleston.

When this state of things was communicated to General Washington, by Lieutenant Colonel Laurens, he said in reply, "The impracticability of defending the bar, I fear, amounts to the loss of the town and garrison. At this distance it is impossible to judge for you. I have the greatest confidence in General Lincoln's prudence; but it really appears to me, that the propriety of attempting to defend the town, depended on the probability of defending the bar; and that when this ceased, the attempt ought to have been relinquished. In this, however, I suspend a definitive judgment, and wish you to consider what I say as confidential." Unfortunately, this letter did not arrive in time to influence the conduct of the besieged.

April 1.

Having crossed Ashley River, Sir Henry Clinton moved down the neck, and, on the night of the first of April, broke ground within eight hundred yards of the American lines.

The defences of Charleston had been constructed under the direction of a Mr. Laumay, a French gentleman in the American service; and, although not calculated to resist a regular siege, were far from being contemptible.

While the besiegers were employed on their first parallel, the garrison received a considerable reinforcement. General Woodford, who had marched from Morristown in December, entered the town with the old continental troops of the Virginia line, now reduced to seven hundred effectives. General Hogan, with the line of North Carolina, had arrived before him. The garrison consisted of rather more than two thousand regular troops, of about one thousand North Carolina militia, and of the citizens of Charleston. The exertions of the Governor to bring in the militia of South Carolina had not succeeded.

April 9.

By the 9th of April, Sir Henry Clinton completed his first parallel extending across the neck, and mounted his guns in battery. His works formed an oblique line, from six to seven hundred yards distant from those of the besieged. About the same time, Admiral Arbuthnot passed Sullivan's

Island, under a heavy and well directed fire from fort Moultrie, then commanded by Colonel Pinckney, and anchored under James' Island near fort Johnson, just out of gunshot of the batteries of the town.

Being now in complete possession of the harbour, the British General and Admiral sent a joint summons to General Lincoln, demanding the surrender of the town, to which he returned this firm and modest answer. "Sixty days have elapsed since it has been known that your intentions against this town were hostile, in which, time has been afforded to abandon it; but duty and inclination point to the propriety of supporting it to the last extremity."

On receiving this answer, the besiegers opened their batteries, but seemed to rely principally on proceeding by sap quite into the American lines.

About this time, the Governor with half the members of the council, went into the country, in the hope of collecting a respectable force in the rear, and on the left flank of the besieging army. The Lieutenant Governor, and the other members of the council remained in town.

Hitherto, Sir Henry Clinton had not extended his lines north of Charleston neck, and the communication of the garrison with the country north-east of Cooper remained open. The American cavalry, under the command of General Huger, had passed that river, and was stationed in the neighbourhood of Monk's corner, about thirty miles above Charleston. As an additional security to this, the only remaining communication, two posts of militia were established, one between the Cooper and the Santee rivers, to which the Governor repaired in person; and another at a ferry on the Santee, where boats were to be collected for the purpose of facilitating the passage of the American army over that river, should it be deemed advisable to evacuate the town.

Such importance was attached to this object, that Lincoln, after Woodford had entered Charleston, detached a part of his regular troops, to throw up some works about nine miles above the town, on Wando, the eastern branch of Cooper, and on Lamprere's point. The militia, it was hoped, though unwilling to enter Charleston, might be drawn to these posts.

April 14.

After the fleet had entered the harbour, Sir Henry Clinton turned his attention to the country on the east of Cooper, to acquire the possession of which it was necessary to disable the American cavalry. This service was committed to Lieutenant Colonel Webster, who detached Tarlton with the

horse and a corps of infantry to execute it. He succeeded completely. Tarlton surprises and defeats an American corps at Monk's corner. Conducted in the night through unfrequented paths to the American videttes, he entered the camp with them, killed and took about one hundred men, and dispersed the residue, who saved themselves on foot in a swamp. Near fifty wagons loaded with military stores, and about four hundred horses, fell into the hands of the victors.

This decisive blow gave Lieutenant Colonel Webster possession of the whole country between Cooper and Wando; and closed the only route by which the garrison could have retreated.

The besiegers had now commenced their second parallel, and it became every day more apparent that the town must ultimately yield to their regular approaches. An evacuation was proposed, and Lincoln is understood to have been in favour of that measure; but the remonstrances of the principal inhabitants, who entreated him not to abandon them to the fury of a disappointed enemy, added to the great difficulty which must attend such an attempt, especially when opposed by the civil government, deterred him from adopting the only course which afforded even a probability, by saving his army, of saving the southern states.

Soon after the affair at Monk's corner, Sir Henry Clinton received a reinforcement of three thousand men from New York. This addition to his strength enabled him to detach largely to the aid of Lieutenant Colonel Webster, after which Lord Cornwallis took command of the troops on that side of Cooper River.

April 20.

Upon this change of situation, Lincoln called another council of war. Notwithstanding the multiplied difficulties attending an evacuation of Charleston, he appears to have been still inclined to it. But a number of fortunate circumstances must have concurred to render a retreat possible; and the attempt was effectually prevented by the opposition of the civil government. The opinion seems to have prevailed, that the escape of the garrison would be followed by the destruction of the town, and the ruin of its inhabitants.

The council advised that a capitulation should be proposed, and that the town should be surrendered on condition that the garrison should be at liberty still to bear arms, and that the inhabitants should be secured in their

persons and property. These propositions being rejected, hostilities recommenced.

The besiegers had completed their second parallel, and had begun the third, when Colonel Henderson made a vigorous sally on their right, which was attended with some success. That this was the only sortie made during the siege, is to be ascribed to the weakness of the garrison. General Lincoln deemed it necessary to reserve all his strength to man his lines in the event of an assault, or to force a retreat, should he determine to evacuate the city.

In this state of things, General Du Portail, who had been directed to join the southern army, was conducted by secret ways into the town. He perceived the impossibility of defending the place, and repeated the proposition for attempting a retreat. This proposition was again rejected; and it only remained to defer the surrender as long as possible, in the vain hope that some fortunate occurrence might bring relief.

Every day diminished this hope, and added to the difficulties of the besieged. The garrison of fort Moultrie surrender themselves prisoners of war. The admiral took possession of Mount Pleasant, which induced the immediate evacuation of Lamprere's point; soon after which the garrison of fort Moultrie, amounting to about two hundred men,[\[22\]](#) surrendered themselves prisoners of war. On the same day, the cavalry which had escaped the disaster at Monk's corner, and had been reassembled under the command of Colonel White, of New Jersey, was again surprised and defeated by Lieutenant Colonel Tarlton at Lanneau's ferry.

The investment of the town was now complete; the advances were rapid; and it became obvious that the place could be defended only a few days longer. The besiegers had finished their third parallel; and by a sap pushed to the dam that supplied the canal with water, had drained it in many places to the bottom. The garrison, fatigued and worn out with constant duty, was too weak to man the lines sufficiently; their guns were almost all dismounted; most of the embrasures demolished; their shot nearly expended; their provisions, with the exception of a few cows, entirely consumed; and the approaches of the besiegers so near, that their marksmen frequently picked off the men from the guns, and killed[\[23\]](#) any person who showed himself above the works.

In this state of things, the garrison was summoned, a second time, to surrender; on which a council was again called, which advised a

capitulation. In pursuance of this advice, General Lincoln proposed terms which were refused, and hostilities recommenced.

The besiegers now advanced their works in front of their third parallel, crossed the canal, pushed a double sap to the inside of the abattis, and approached within twenty yards of the American works. Preparations for an assault by sea and land were making. With less than three thousand men, many of whom were militia, lines three miles in extent were to be defended against the flower of the British army, assisted by a powerful maritime force. Convinced that success was not possible, the citizens prepared a petition to General Lincoln, entreating him to surrender the town on the terms which had been offered by the besiegers.

General Lincoln capitulates.

This proposition was made and accepted; and the capitulation was signed on the 12th of May.

May 12.

The town, and all public stores were surrendered. The garrison, as well the citizens who had borne arms as the continental troops, militia, and sailors, were to be prisoners of war. The garrison were to march out of town, and to deposite their arms in front of their works; but their drums were not to beat a British march, nor their colours to be reversed. The militia were to retire to their homes on parole, and their persons and property, as well as the persons and property of the inhabitants of the town, to be secure while they adhered to their paroles.

These terms being agreed on, the garrison laid down their arms, and General Leslie was appointed to take possession of the town.

The defence of Charleston was obstinate, but not bloody. The besiegers conducted their approaches with great caution; and the besieged, too weak to hazard repeated sorties, kept within their lines. The loss on both sides was nearly equal. That of the British was seventy-six killed and one hundred and eighty-nine wounded; and that of the Americans, excluding the inhabitants of the town not bearing arms, was ninety-two killed, and one hundred and forty-eight wounded.

From the official returns made to Sir Henry Clinton by his deputy adjutant general, the number of prisoners, exclusive of sailors, amounted to five thousand six hundred and eighteen men. This report, however, presents

a very incorrect view of the real strength of the garrison. It includes every male adult inhabitant of the town. The precise number of privates in the continental regiments, according to the report made to congress by General Lincoln, was one thousand nine hundred and seventy-seven; of whom five hundred were in the hospital.

The unfortunate are generally condemned; and the loss of the garrison of Charleston so maimed the force, and palsied the operations of the American government in the south, that censure was unsparingly bestowed on the officer who had undertaken and persevered in the defence of that place. In his justificatory letter to the Commander-in-chief, General Lincoln detailed at large the motives of his conduct, and stated the testimony on which those delusive hopes of substantial assistance were founded, which tempted him to remain in town, until the unexpected arrival of the reinforcement from New York deprived him of the power to leave it.

The importance of that great mart of the southern states, which had become the depot for the country to a considerable extent around it; the magazines and military stores there collected, which, from the difficulty of obtaining wagons, could not be removed; the ships of war, which must be sacrificed should the town be evacuated; the intention of congress that the place should be defended; the assurances received that the garrison should be made up to ten thousand men, of whom nearly one half would be regular troops; the anxious solicitude of the government of South Carolina; all concurred to induce the adoption of a measure which, in its consequences, was extremely pernicious to the United States. In the opinion of those who were best enabled to judge of his conduct, General Lincoln appears to have been completely justified. The confidence of his government, and the esteem of the Commander-in-chief, sustained no diminution.

Sir Henry Clinton was aware of the impression his conquest had made, and of the value of the first moments succeeding it. Calculating on the advantages to be derived from showing an irresistible force in various parts of the country at the same time, he made three large detachments from his army;—the first and most considerable, towards the frontiers of North Carolina; the second to pass the Saluda to Ninety-Six; and the third up the Savannah towards Augusta.

Lord Cornwallis, who commanded the northern detachment, received intelligence, soon after passing the Santee, that Colonel Buford, with about

four hundred men, was retreating in perfect security towards North Carolina. He detached Lieutenant Colonel Tarlton with his legion, the infantry being mounted, in pursuit of this party. Buford defeated. That officer, by making a movement of near one hundred miles in two days, overtook Buford, in a line of march, at the Waxhaws, and demanded a surrender on the terms which had been granted to the garrison of Charleston. This was refused. While the flags were passing, Tarlton continued to make his dispositions for the assault, and, the instant the truce was over, his cavalry made a furious charge on the Americans, who had received no orders to engage, and who seem to have been uncertain whether to defend themselves or not. In this state of dismay and confusion, some fired on the assailants, while others threw down their arms and begged for quarter. None was given. Colonel Buford escaped with a few cavalry; and about one hundred infantry, who were in advance, saved themselves by flight; but the regiment was almost demolished. Tarlton, in his official report, says that one hundred and thirteen were killed on the spot, one hundred and fifty so badly wounded as to be incapable of being moved, and fifty-three were brought away as prisoners. The loss of the British was five killed and fourteen wounded.

Tarlton gives a very different account of the circumstances which preceded this massacre. He says that the demand for a surrender was made long before Buford was overtaken, and was answered by a defiance; that, on overtaking him, the British vanguard made prisoners of a sergeant and four light dragoons, in the presence of the two commanders, who immediately prepared for action; that as he advanced to the charge, when within fifty paces, the American infantry presented, and were commanded by their officers to retain their fire until the British cavalry should be nearer.

[\[24\]](#)

The American officers who survived the carnage of the day, generally assert that flags passed after being overtaken, that they had received no orders from Colonel Buford when the charge was made, and that the fire of their troops was retained until the enemy was upon them, because they did not think themselves authorized to give it. The facts that Buford's field pieces were not discharged, and that the loss was so very unequal, are not to be reconciled with the idea of deliberate preparation for battle, and justify the belief that the statement made by the American officers is correct.

After the defeat of Buford, scarcely the semblance of opposition remained in South Carolina and Georgia. The military force employed by congress was nearly destroyed; the spirit of resistance seemed entirely broken; and a general disposition to submit to the victor displayed itself in almost every part of the country.

The two other detachments saw no appearance of an enemy. They received the submission of the inhabitants, who either became neutral by giving their paroles, not to bear arms against his Britannic Majesty, or took the oaths of allegiance, and resumed the character of British subjects.

To keep up this disposition, garrisons were posted in different stations, and a series of measures was pursued for the purpose of settling the civil affairs of the province, and of giving stability to the conquest which had been made.

Sir Henry Clinton takes measures for settling the government of South Carolina and Georgia.

June 3.

So entirely did the present aspect of affairs convince Sir Henry Clinton of the complete subjugation of the state, and of the favourable disposition of the people towards the British government, that he ventured to issue a proclamation, in which he discharged the militia who were prisoners from their paroles, with the exception of those who were taken in Charleston and fort Moultrie, and restored them to all the rights and duties of British subjects; declaring, at the same time, that such of them as should neglect to return to their allegiance, should be considered and treated as enemies and rebels.

This proclamation disclosed to the inhabitants their real situation. It proved that a state of neutrality was not within their reach; that the evils of war were unavoidable; that they must arrange themselves on the one side or the other; and that the only alternative presented to them was, to drive the enemy out of their country, or take up arms against their countrymen.

June 5.

With the most sanguine hopes that the southern states would be reunited to the British empire, Sir Henry Clinton embarked for New York, leaving about four thousand British troops in South Carolina, under the command of Lord Cornwallis.

His lordship found it necessary to suspend the expedition he had meditated against North Carolina. The impossibility of supporting an army in that state before harvest, as well as the intense heat of the season, required this delay. His first care was to distribute his troops through South Carolina and the upper parts of Georgia, so as to promote the great and immediate objects of enlisting the young men who were willing to join his standard, of arranging the plan of a militia, and of collecting magazines at convenient places.

In the mean time, he despatched emissaries to his friends in North Carolina, to inform them of the necessary delay of his expedition into their country, and to request them to attend to their harvest, collect provisions, and remain quiet until late in August or early in September, when the King's troops would be ready to enter the province.

The impatience of the royalists, stimulated by the triumph of their friends in a neighbouring state, and by the necessary severities of a vigilant government, could not be restrained by this salutary counsel. Anticipating the immediate superiority of their party, they could not brook the authority exercised over them, and broke out into premature and ill concerted insurrections, which were vigorously encountered, and generally suppressed. One body of them, however, amounting to about eight hundred men, led by Colonel Bryan, marched down the east side of the Yadkin to a British post at the Cheraws, whence they proceeded to Camden.

Having made his dispositions, and fixed on Camden as the place for his principal magazines, Cornwallis left the command of the frontiers to Lord Rawdon, and retired to Charleston for the purpose of making those farther arrangements of a civil nature, which the state of affairs and the interest of his sovereign might require.

His lordship, as well as Sir Henry Clinton, seems to have supposed the state of South Carolina to be as completely subdued in sentiment as in appearance. Impatient to derive active aids from the new conquest, his measures were calculated to admit of no neutrality. For some time these measures seemed to succeed, and professions of loyalty were made in every quarter. But under this imposing exterior, lurked a mass of concealed discontent, to which every day furnished new aliment, and which waited only for a proper occasion to show itself.

The people of the lower parts of South Carolina, though far from being united, were generally attached to the revolution, and had entered into the war with zeal. They were conducted by a high spirited and intelligent gentry, who ardently sought independence as a real and permanent good.

Several causes had combined to suspend the operation of this sentiment. Many of their leaders were prisoners; and the brilliant successes of the British arms had filled numbers with despair. Others were sensible of the inutility of present resistance; and a still greater number, fatigued and harassed with militia duty, were willing to withdraw from the conflict, and, as spectators, to await its issue. To compel these men to share the burdens of the war, was to restore them to their former friends.

Late in March, General Washington had obtained the consent of congress to reinforce the southern army with the troops of Maryland and Delaware, and with the first regiment of artillery. This detachment was to be commanded by the Baron De Kalb, a German veteran who had engaged early in the service of the United States.

Such, however, was the deranged state of American finances, and such the depression of public credit, that these troops could not be put immediately in motion. They were at length embarked at the Head of Elk, and conveyed by water to Petersburg, in Virginia, whence they marched towards South Carolina. Their progress was delayed by that difficulty of obtaining subsistence which had induced Lord Cornwallis to suspend the invasion of North Carolina until harvest should be gathered. No preparations having been made for them, they were reduced to the necessity of spreading themselves over the country in small detachments, to collect corn, and grind it for their daily food. In this manner they proceeded through the upper parts of North Carolina to Deep River, and encamped near Buffalo Ford in July. At this place the Baron halted for a few days, in some uncertainty respecting his future course.[\[25\]](#)

The militia of North Carolina, commanded by General Caswell, were beyond the Pedee, on the road to Camden, and had nearly consumed the scanty supplies which could be gleaned from a country that was far from being productive. The Baron was premeditating on a plan for leaving the direct road and moving up the country to the fertile banks of the Yadkin, when the approach of Major General Gates was announced by the arrival of his aid-de-camp, Major Armstrong.[\[26\]](#)

Aware of the danger to which the loss of Charleston had exposed that part of the confederacy, congress deemed it of the utmost importance to select a general for that department, in whom great military talents should be combined with that weight of character which might enable him to draw out the resources of the country. General Gates appointed to the command of the southern army.

July. They turned their eyes on Gates; [\[27\]](#) and sanguine hopes were entertained that the conqueror of Burgoyne would prove the saviour of the southern states. On the 13th of June, he was called to the command in the southern department, and was directed to repair immediately to the army. He entered, without loss of time, on the duties of his station; and, on the 25th of July, reached the camp, where he was received by the Baron De Kalb with the utmost cordiality and respect.

The approach of this army, and the information that great exertions were making in Virginia to augment it, revived the hopes of South Carolina, and brought again into action a spirit supposed to be extinguished. The British troops having occupied the north-western parts of the state, the most active friends of the revolution in that quarter had fled from their homes, and sought an asylum in North Carolina and Virginia. As the discontents of their countrymen increased, and the prospect of being supported by regular troops brightened, a small body of these exiles, amounting to less than two hundred, assembled together, and choosing Colonel Sumpter, an old continental officer, for their chief, entered South Carolina. They skirmished with the royal militia and small corps of regulars on the frontiers, sometimes successfully, and always with the active courage of men fighting for the recovery of their property. The followers of Sumpter were soon augmented to six hundred men; and a disposition once more to take up arms showed itself in various parts of the state. Some corps of militia, which had been embodied under the authority of Lord Cornwallis, deserted his standard, and joined their countrymen. Perceiving this change of temper, the British general thought it necessary to draw in his out-posts, and to collect his troops into larger bodies.

On taking command of the southern army, General Gates directed the troops to hold themselves in readiness to march at a moment's warning; and, on the morning of the 27th, put the whole in motion. Disregarding the judicious remonstrances which were made to him against pursuing the direct road, he determined on taking the nearest route to the advanced post

of the British on Lynch's Creek, a few miles from Camden. The motives assigned by himself for passing through this barren country were, the necessity of uniting with Caswell, who had evaded the orders repeatedly given him to join the army, the danger of dispiriting the troops, and intimidating the people of the country, by pursuing a route not leading directly towards the enemy, and the assurances he had received that supplies would overtake him, and would be prepared for him on the road.

These assurances were not fulfilled; and, the country being still more barren than had been anticipated, the distress of the army was extreme. The soldiers subsisted on a few lean cattle found in the woods, and a very scanty supply of green corn and peaches. August 13. Encouraged by the example of their officers, who shared all their sufferings, and checked occasional murmurs, they struggled through these difficulties, and, after effecting a junction with General Caswell and with Lieutenant Colonel Porterfield,[\[28\]](#) the army reached Clermont, sometimes called Rugely's mills, on the 13th of August. Possession was taken of this place without any opposition from Lord Rawdon, who, on the approach of the American army, drew in his outposts, and assembled all his forces at Camden.[\[29\]](#)

The day after the arrival of Gates at Clermont, he was joined by seven hundred militia from Virginia, commanded by Brigadier General Stevens, an officer of considerable merit, who, during the campaigns of 1777 and 1778, had commanded a continental regiment. On the same day, an express arrived from Colonel Sumpter, with information that an escort of clothing, ammunition, and other stores for the garrison at Camden, was on the way from Ninety-Six, and must pass the Wateree at a ferry about a mile from Camden, which was covered by a small redoubt on the opposite side of the river. One hundred regular infantry with two brass field-pieces, were immediately detached to join Colonel Sumpter, who was ordered to reduce the redoubt, and to intercept the convoy.[\[30\]](#)

To attract the attention of the garrison in Camden, and thus co-operate with the expedition under Sumpter, it was determined in a council of general officers to put the army in motion that evening, and to take a post about seven miles from Camden with a deep creek in front.

The sick, the heavy baggage, and the military stores were ordered under a guard to Waxhaws,[\[31\]](#) and the army was directed to be in readiness to march precisely at ten in the evening in the following order.

Colonel Armand's legion composed the van. Porterfield's light infantry, reinforced by a company of picked men from Stevens's brigade, covered the right flank of the legion; while Major Armstrong's light infantry of North Carolina militia, reinforced in like manner from Caswell's division, covered the left. The Maryland division, followed by the North Carolina and Virginia militia, with the artillery, composed the main body and rear guard; and the volunteer cavalry were equally distributed on the flanks of the baggage.

In the event of an attack in front by the British cavalry, the infantry on the flanks were directed to march up, and to continue their fire on the assailants. It was supposed they would enable Colonel Armand to resist the shock; and his orders were positive to maintain his ground against the cavalry, whatever their numbers might be.[\[32\]](#)

At the time of communicating these orders to Colonel Otho H. Williams, the Deputy Adjutant General, Gates, showed him a rough estimate of the army, making it upwards of seven thousand. Convinced that this estimate was exaggerated, Colonel Williams availed himself of his means of information to make an abstract of the whole, which he presented to the general, and which exhibited exactly three thousand and fifty-two in the column of present fit for duty, of whom more than two-thirds were militia. Gates expressed some surprise at the numbers, but said, "there are enough for our purpose," and directed the orders to be issued to the army. About ten at night, the line of march was taken up, and the army had advanced about half way to Camden, when a firing commenced in front.[\[33\]](#)

Intelligence of the approach of the American army, and of the defection of the country between Pedee and the Black River, had been communicated to Lord Cornwallis, and had induced him to hasten in person to Camden, which place he reached the day Gates arrived at Clermont.

The British army did not much exceed two thousand men, of whom about nineteen hundred were regulars; but, as the whole country was rising, Lord Cornwallis apprehended that every day would strengthen his enemy, and therefore determined to attack him in his camp; hoping, by a prompt execution of this resolution, to surprise him. By one of those caprices of fortune on which great events often depend, he marched from Camden to attack Gates in Clermont, at the very hour that Gates moved from that place towards Camden.[\[34\]](#)

August 16.

About half past two in the morning, the advanced parties of the hostile armies, to their mutual surprise, met in the woods, and began to skirmish with each other. Some of Armand's cavalry being wounded by the first fire, threw the others into disorder, and the whole recoiled so suddenly that the first Maryland regiment, composing the front of the column was broken, and the whole line thrown into consternation. From this first impression, the raw troops never recovered. The light infantry, however, particularly Porterfield's corps, behaved so well as to check the advance of the British. Unfortunately, their gallant commander received a mortal wound, which compelled him to leave his regiment. Yet a part of it kept its ground; and, with the aid of the legion infantry, stopped the British van; upon which order was restored to the American army.

The officers were immediately employed in forming a line of battle in front. The Maryland division, including the troops of Delaware, were on the right, the North Carolina militia in the centre, and the Virginia militia on the left.

In this rencounter some prisoners were made, from one of whom Colonel Williams drew the information that the British army, consisting of near three thousand men, commanded by Lord Cornwallis in person, was in full march five or six hundred yards in front. This intelligence was immediately communicated to General Gates, who had supposed Lord Cornwallis to be still in Charleston. The general officers were assembled in the rear of the line, and this information submitted to them. After a short silence, Stevens said, "Gentlemen, is it not too late to do any thing but fight?" No other advice being given, General Gates, who seems to have been himself disposed to risk a battle, directed the officers to repair to their respective commands.

The ground on which the army was drawn up was so narrowed by a marsh on each flank, as to admit of removing the first Maryland brigade, so as to form a second line about two hundred yards in rear of the first. The artillery was placed in the centre of the first line, and Armstrong's light infantry was ordered to cover a small interval between the flank of the left wing and the marsh.

Frequent skirmishes occurred during the night between the advanced parties, with scarcely any other effect than to discover the situation of the

armies, evince the intention of the generals, and serve as a prelude to the events of the succeeding morning.

At dawn of day the British appeared in front, advancing in column. Lieutenant Colonel Webster commanded on the right, and Lord Rawdon on the left. The seventy-first regiment composed the reserve. Four field pieces were attached to the left, and one to the corps de reserve.

Captain Singleton opened some field pieces on the front of the column, at the distance of about two hundred yards, soon after which the American left was ordered to commence the action. It was then perceived that the British right was advancing in line; and as Stevens led on his brigade in good order, Colonel Williams advanced in front with a few volunteers, intending by a partial fire to extort that of the enemy at some distance, and thereby diminish its effect on the militia. The experiment did not succeed. The British rushed forward with great impetuosity, firing and huzzaing at the same time; and the terrified militia, disregarding the exertions of Stevens, who, in the firm tone of courage, endeavoured to inspire them with confidence in the bayonets they had just received, threw down their loaded muskets, fled from the field with the utmost precipitation, and were followed by the light infantry of Armstrong. The whole North Carolina division, except one regiment commanded by Colonel Dixon, an old continental officer, which was posted nearest the continental troops, followed the shameful example. Other parts of the same brigade, which was commanded by Gregory, paused for an instant; but the terror of their brethren was soon communicated to them, and they also threw away their arms, and sought for safety in flight. Their general, while endeavouring to rally them, was dangerously wounded.

Tarleton's legion charged them as they broke, and pursued them in their flight. Gates, in person, assisted by their generals, made several efforts to rally the militia; but the alarm in their rear still continuing, they poured on like a torrent, and bore him with them. He hastened with General Caswell to Clermont, in the hope of stopping a sufficient number of them at their old encampment, to cover the retreat of the continental troops; but this hope was entirely disappointed. Believing the continental troops also to be dispersed, he gave up all as lost, and retreated with a few friends to Charlotte, about eighty miles from the field of battle, where he left General Caswell to assemble the neighbouring militia, and proceeded himself to

Hillsborough, in order to concert some plan of farther defence with the government.

Entirely deserted by the militia who composed the whole centre and left wing of the army, the continental troops, with the Baron De Kalb at their head, were left without orders, under circumstances which might have justified a retreat. But taking counsel from their courage, and seeing only the path of duty, they preferred the honourable and dangerous part of maintaining their position. They were charged by Lord Rawdon about the time the militia on their left were broken by Webster; but the charge was received with unexpected firmness. The bayonet was occasionally resorted to by both parties, and the conflict was maintained for near three quarters of an hour with equal obstinacy. During this time, the regiment on the left of the second Maryland brigade being covered by the reserve, so that it could be only engaged in front, gained ground and made prisoners.

The reserve, having its left entirely exposed, was flanked by the British right wing under Webster; who, after detaching a part of his cavalry and light infantry in pursuit of the flying militia, wheeled on that brigade, and attacking it in front and round the left flank, threw it into some disorder. The soldiers were, however, quickly rallied, and renewed the action with unimpaired spirit. Overpowered by numbers, they were again broken, and by the exertion of their officers were again formed, so as still to maintain the combat, and still to cover the flank of their brethren of the second brigade, who were in a manner blended with the enemy, and who kept up a desperate conflict in the hope of yet obtaining the victory.

The fire of the whole British army was now directed against these two devoted brigades. They had not lost an inch of ground when Lord Cornwallis, perceiving that they were without cavalry, pushed his dragoons upon them, and at the same instant, charged them with the bayonet. These gallant troops were no longer able to keep the field. They were at length broken; and, as they did not give way until intermingled with the enemy, they dispersed and fled in confusion. Before they were reduced to this last extremity, the Baron De Kalb, who fought on foot with the second Maryland brigade, fell under eleven wounds. His aid-de-camp, Lieutenant Colonel Du Buysson, received him in his arms, announced his rank and nation to the surrounding foe, and begged that they would spare his life. While thus generously exposing himself to save his friend, he received

several wounds, and, with his general, was taken prisoner. Death of De Kalb. The Baron expired in a few hours, and spent his last breath in dictating a letter, expressing the warmest affection for the officers and men of his division, and the most exalted admiration of their courage and good conduct.[\[35\]](#)

Never was a victory more complete. Every corps was broken and dispersed in the woods. The general officers were divided from their men; and, except Rutherford of the North Carolina militia who was made a prisoner, reached Charlotte at different times. Colonel Williams, who witnessed the whole battle, and bore a conspicuous part in it, concludes his very animated description of it, with the observation, that "if in this affair the militia fled too soon, the regulars may be thought almost as blameable for remaining too long on the field; especially after all hope of victory must have been despaired of." He censures freely the conduct of the brigadiers, who gave, he says, no orders whatever to their brigades.

About two hundred wagons, with a great part of the baggage, military stores, small arms, and all the artillery, fell into the hands of the conqueror. The loss of men could never be accurately ascertained, as no returns were received from the militia. Of the North Carolina division, between three and four hundred were made prisoners, and between sixty and one hundred were wounded. Of the Virginia militia, three were wounded on the field; and, as they were the first to fly, not many were taken.

For the numbers engaged, the loss sustained by the regulars was considerable. It amounted to between three and four hundred men, of whom a large portion were officers. The British accounts state the loss of the American army at eight or nine hundred killed, and about one thousand prisoners; while their own is said to be only three hundred and twenty-five, of whom two hundred and forty-five were wounded. Although many of the militia were killed during the flight, this account is probably exaggerated. It would seem too, that while the continental troops kept the field, the loss on both sides, in that part of the action, must have been nearly equal.

On his retreat, the day of the battle, General Gates received information of the complete success of Sumpter. That officer had, on the evening that Lord Cornwallis marched from Camden, reduced the redoubt on the Wateree, captured the guard, and intercepted the escort with the stores.

This gleam of light cheered the dark gloom which enveloped his affairs but for a moment. He was soon informed that this corps also was defeated, and entirely dispersed.

On hearing of the disaster which had befallen Gates, Sumpter began to retreat up the south side of the Wateree. Believing himself out of danger, he had halted on the twenty-eighth, during the heat of the day, near the Catawba Ford, to give his harassed troops some repose. August 18. At that place he was overtaken by Tarlton, who had been detached in pursuit of him on the morning of the 17th, and who, advancing with his accustomed celerity, entered the American camp so suddenly, as in a great measure to cut off the men from their arms. Some slight resistance made from behind the wagons was soon overcome, and the Americans fled precipitately to the river and woods. Between three and four hundred of them were killed and wounded; their baggage, artillery, arms, and ammunition were lost; and the prisoners and stores they had taken, were recovered. This advantage was gained with the loss of only nine men killed and six wounded.

Two videttes had been placed by Sumpter, on the road along which Tarlton had advanced, who fired upon his van and killed one of his dragoons, upon which they were both sabred. We are informed by Colonel Tarlton that the inquiries made by Sumpter respecting the two shots, were answered by an assurance from an officer, just returned from the advanced sentries, that the militia were firing at cattle.

August 19.

Intelligence of this disaster reached Charlotte next day. Generals Smallwood and Gist were then arrived at that place, and about one hundred and fifty straggling, dispirited, half famished officers and soldiers had also dropped in. It was thought adviseable to retreat immediately to Salisbury. From that place, General Gates directed the remnant of the troops to march to Hillsborough, where he was endeavouring to assemble another army, which might enable him yet to contend for the southern states.

CHAPTER VII.

Distress in the American camp.... Expedition against Staten Island.... Requisitions on the states.... New scheme of finance.... Committee of congress deputed to camp.... Resolution to make up depreciation of pay.... Mutiny in the line of Connecticut.... General Knyphausen enters Jersey.... Sir Henry Clinton returns to New York.... Skirmish at Springfield.... Exertions to strengthen the army.... Bank established in Philadelphia.... Contributions of the ladies.... Farther proceedings of the states.... Arrival of a French armament in Rhode Island.... Changes in the quartermaster's department.... Enterprise against New York abandoned.... Naval superiority of the British.

1780.

While disasters thus crowded on each other in the southern states, the Commander-in-chief found himself surrounded with difficulties, which required his utmost exertions to avoid calamities equally distressing. His urgent requisitions for men to supply the places of those who were leaving the service, were not complied with, and the soldiers who remained, could scarcely be preserved from either perishing with cold and hunger, or dispersing and living on plunder.

General Greene and Colonel Wadsworth, who had, for the preceding year, been at the head of the quartermaster and commissary departments, possessed distinguished merit, and had employed assistants of unquestionable ability and integrity. Yet, for a great part of the campaign, the rations were frequently reduced, and the army was rarely supplied with provisions for more than a few days in advance. Soon after coming into winter quarters, the magazines were exhausted, and afforded neither meat nor flour to be delivered to the men.

This state of things had been long foreseen; and all the means in the power of the Commander-in-chief had been used to prevent it. Repeated representations of the actual famine with which the army was threatened, had been made to congress, and to the state governments; but no adequate

relief was afforded; and such was the condition of the finances, so embarrassing the state of affairs, that it was perhaps attainable only by measures which the governments could not venture to adopt.

The rapid depreciation of the continental currency, had long been viewed with apprehensive anxiety by the enlightened friends of the revolution, and various unsuccessful expedients had been essayed for the purpose of checking its progress. All perceived that the great quantity in circulation was the principal cause of the diminution of its value; and congress had resolved not to exceed two hundred millions of dollars in their emissions. In the mean time, the utmost endeavours were used to defer an evil so justly dreaded, and among the expedients employed, was that of withholding from the public agents, the money which was necessary for public purposes. This unwise experiment, while it defeated its own object, threatened the dissolution of the American army.

The difference between the value of the article at the times of contract and of payment was soon perceived, and, of course, influenced its price. But this was the least mischievous consequence of this mistaken policy. The public agents contracted enormous debts which they were unable to discharge. Repeated disappointments destroyed their credit; and, towards the close of the year 1779, they found it impracticable to obtain supplies for the subsistence of the army.

From these causes, the contracts entered into could not be co-extensive with the public wants; and many of those which were made were not complied with.

In this critical state of things, an entire revolution was made in the commissary department. Such was the prejudice against the system adopted by Great Britain, for supplying by contract, that it had been usual to allow, as a compensation to the commissary, a stipulated commission on all the monies expended on public account. After some time, this allowance was supposed to be an inducement to purchase at high prices; and an arrangement was made on the first of January, by which the commissary general was to receive a fixed nominal salary in the paper currency, and was permitted to appoint assistants whose compensations were also fixed, and who were to defray, out of those compensations, all the expenses attending the transactions of the business. The practice of allowing them rations and forage was discontinued.

This new system was unfortunately so modified as to increase the embarrassments of the department. It was found difficult to obtain assistants and agents for the compensation allowed; and those who were willing to be employed, were unequal to the duties assigned them.

For several days, the soldiers were reduced to half allowance, and sometimes to less. At length, affairs came to the crisis which had long been threatened; and, early in January, a letter was received from Colonel Wadsworth, informing the general that it was absolutely out of his power to supply the army longer with meat, as he was without money, and had totally exhausted his credit. About the same time, the assistant commissary, residing in camp, gave notice that his stock of provisions was on the point of being expended, and that he had no immediate prospect of a farther supply.

This state of things compelled the Commander-in-chief to adopt efficacious measures, to relieve the immediate and pressing wants of his soldiers. He required from each county in the state of Jersey, a quantity of meat and flour proportioned to its resources, to be raised and forwarded to the army within a limited time, not exceeding six days. In a circular letter addressed to the magistrates, he stated the pressing wants of the army, and the necessity of resorting to coercion should his requisition fail.

To the honour of the magistrates and people of New Jersey, although their country was much exhausted, the supplies required were instantly furnished, and a temporary relief obtained.

The patient and uncomplaining fortitude with which the soldiers bore their sufferings, was strong evidence of their patriotism, and could not fail to make a deep impression on their general. But while their virtues excited his sensibilities, he expressed his fears very freely to congress, that they might be too severely tried.

The unusual severity of the winter, seemed to furnish an opportunity for active enterprise, which the Commander-in-chief observed, without being able to improve. The garrison of New York and its immediate dependencies, was supposed to be reduced to ten or eleven thousand effectives; and the security heretofore derived from its insular situation no longer existed. The ice was so strong that the whole army, with its train of wagons and artillery, might pass over without danger. This circumstance afforded a glorious occasion for striking a blow, which, if successful, would most probably

terminate the war. The effort would seem not to have exceeded the strength of America, could that strength have been exerted in proper season; but the government possessed neither sufficient energy nor concentration of power to call it forth; and this opportunity passed away, as many which present themselves in the course of human affairs, must pass away, if those who should take advantage of them, only begin to deliberate about making preparations in the season for action.

The force under the immediate command of General Washington, was decidedly inferior to that in New York; and so far was he from having reason to expect immediate reinforcements, that congress had not agreed on making a requisition for them. In addition to this feebleness in point of numbers, the soldiers were not half clothed; provisions for immediate use could be obtained only by contributions from the people; the quartermaster's department was unable to put an army in motion; and the military chest did not contain a dollar.

Under the pressure of this combination of discouraging circumstances, the active mind of Washington still looked forward to the possibility of deriving some advantage from the exposed situation of his adversary.

The troops on Staten Island were computed at one thousand or twelve hundred men; and the firm bridge of ice now uniting that island to the Jersey shore, seemed to furnish an opportunity for bearing off this corps. General Washington determined to make the attempt with two thousand five hundred men, to be commanded by Major General Lord Stirling. The more distant troops moved down on sleds; and, to favour a surprise, the opinion was inculcated that they only constituted a relief for the detachment already on the lines.

January.

On the night of the 14th of January, Lord Stirling moved over from De Hart's point; and, detaching Lieutenant Colonel Willet to Decker's house, where Buskirk's regiment was stationed, proceeded himself to the watering place, where the main body was posted. Notwithstanding the precautions which had been taken, the alarm had been given at each post, and the troops had saved themselves in their works; so that only a few prisoners were made. Contrary to the intelligence previously received, the communication with New York was still open; and the works appeared too strong to justify the hazard of attempting to carry them by assault.

January 17.

The object of the expedition being unattainable, Lord Stirling commenced his retreat, which was effected with inconsiderable loss. A body of cavalry, which charged his rear, was repulsed; but, from the intenseness of the cold, and the defectiveness of his means to protect his men from it, some of them were frost bitten, and a few stragglers were made prisoners.

The excessive cold continuing, the rivers were soon afterwards completely blocked up. Even arms of the sea were passable on the ice; and the islands about the mouth of the Hudson, presented the appearance of one whole and unbroken continent. This state of things produced a great degree of suffering among all classes in New York. The supplies usually received by water failed totally, and a great scarcity of provisions and of fuel was the consequence. To increase this scarcity, the American troops on the lines were so disposed as to interrupt the communication between the country and the town; and these arrangements produced a partisan war, in which the advantage was rather on the side of the British.

In one of the most important of these skirmishes, Captain Roberts, of Massachusetts, with fourteen of his men, were killed on the spot; seventeen were wounded, of whom three died in a few days; and Lieutenant Colonel Thompson, of Massachusetts, who commanded the party, two captains, four subalterns, and ninety non-commissioned officers and privates were made prisoners.

The emission of the full sum of two hundred millions of dollars in continental bills of credit, which congress had solemnly resolved not to exceed, had been completed in November, 1779, and the money was expended. The requisitions on the states to replenish the treasury by taxes were not fully complied with; and, had they even been strictly observed, would not have produced a sum equal to the public expenditure. It was therefore necessary to devise other measures for the prosecution of the war. During the distresses which brought the army to the brink of dissolution, these measures were under consideration. So early as December, 1779, congress had determined to change the mode of supplying the army from purchases to requisitions of specific articles on the several states. As preliminary to this system, commissioners were appointed to make the estimates, and to introduce every practicable reform in the expenditures. This subject was under deliberation until the 25th of February, when sundry

resolutions were passed, apportioning on the states their respective quotas of provisions, spirits, and forage, for the ensuing campaign. The value of the several articles was estimated in specie; and assurances were given that accounts between the states should be regularly kept, and finally settled in Spanish milled dollars.

For the purpose of inducing and facilitating a compliance with these requisitions, congress also resolved, "that any state which shall have taken the necessary measures for furnishing its quota, and have given notice thereof to congress, shall be authorized to prohibit any continental quartermaster or commissary from purchasing within its limits."

These resolutions, constituting the basis of a new system on which the future subsistence of the army was essentially to depend, were too deeply interesting not to receive the anxious attention of the Commander-in-chief. With regret, he communicated to congress the radical defects he perceived in their arrangements, with his apprehensions that this untried scheme would fail in practice.

His judgment, and the judgment of all men engaged in high and responsible situations, was decidedly in favour of conducting the war on a national rather than on a state system. But, independent of this radical objection, economy had been so much more consulted than the probable necessities of the army, that, in almost every article, the estimate had fallen far short of the demand to be reasonably expected.

The total omission to provide means for supplying occasional deficiencies from the surplus resources of any particular state, was an error of still greater magnitude. It was obvious that the demand in any state which should become the theatre of war, would be much greater than its quota; and experience had shown that the carriage of specific articles from distant places was always difficult and expensive, and sometimes impracticable. Yet no means were adopted to supply such extraordinary demand, whatever might be the resources of the country. A still more radical objection to the system was the principle, enabling any state which should take means to comply with the requisition, and should notify those means to the government of the United States, to prohibit the continental agents from making any purchases within its territory. Among the states which adopted the proposition of congress was New Jersey, in which the largest division of the army was stationed. Its legislature passed an act

prohibiting the purchase of provisions within its jurisdiction by the staff of the continental line, under severe penalties; and refused to authorize its own agents to provide for any emergency however pressing. It was an additional objection to these requisitions, that they specified no periods of the year within which certain portions of the articles demanded should be raised, and consequently might be complied with, although the army should be left destitute of every necessary for a considerable part of the campaign.

These suggestions, however, with others less material to the military operations, did not receive the attention which was due to their importance. A disposition in the members of congress, growing inevitably out of the organization of the government, to consult the will of their respective states, and to prefer that will to any other object, had discovered itself at an early period, and had gained strength with time. The state of the national treasury was calculated to promote this disposition. It was empty, and could be replenished only by taxes, which congress had not the power to impose; or by new emissions of bills of credit, which the government had pledged the public faith not to make, and which would rest for their redemption only on that faith, which would be violated in the very act of their emission. Under these circumstances, it required a degree of energy seldom found, to struggle with surrounding difficulties for the preservation of a general system, and to resist the temptation to throw the nation at the feet of the states, in whom the vital principle of power, the right to levy taxes, was exclusively vested. While the continental currency preserved its value, this essential defect of the constitution was, in some measure, concealed. The facility with which money was obtained from the press, was a temporary substitute for the command of the resources of the country. But when this expedient failed, it was scarcely possible to advance a single step, but under the guidance of the respective states.

Whatever might be the future effect of this system, it was impracticable to bring it into immediate operation. The legislatures of the several states, by whom it was to be adopted, and carried into execution, were, many of them, not then in session; and were to meet at different times through the ensuing spring. It was consequently to be expected that great part of the summer would pass away before the supplies to be raised by the measure, could be brought into use. In the mean time, and until a new scheme of finance, which accompanied the requisition of specific articles, should be tried, there was no regular provision for the army. Financial

regulations. Bills to the amount of £100,000 sterling, payable at six months' sight, were drawn on Mr. Jay, and others to the same amount, on Mr. Laurens, who were empowered to negotiate loans in Europe. These bills were sold in small sums on pressing occasions; and the loan offices remained open for the purpose of borrowing from individuals.

This new scheme of finance was a second essay to substitute credit unsupported by solid funds, and resting solely on the public faith, for money.

The vast quantity of bills unavoidably emitted before the establishment of regular governments possessing sufficient energy to enforce the collection of taxes, or to provide for their redemption, and before the governments of Europe were sufficiently confident of their stability to afford them aid or credit, was assigned by congress as the principal cause of that depreciation which had taken place in the continental currency. The United States were now, they said, under different circumstances. Their independence was secure; their civil governments were established and vigorous; and the spirit of their citizens ardent for exertion. The government being thus rendered competent to the object, it was necessary to reduce the quantity of paper in circulation, and to appropriate funds that should ensure the punctual redemption of the bills.

For these purposes, the several states were required to continue to bring into the continental treasury, monthly, from February to April inclusive, their full quotas of fifteen millions of dollars. In complying with this requisition, one Spanish milled dollar was to be received in lieu of forty dollars of the paper currency.

The bills so brought in were not to be reissued, but destroyed; and other bills, not to exceed one dollar for every twenty received in discharge of taxes, were to be emitted.

These bills were to be redeemable within six years, and were to bear an interest of five *per centum per annum*, to be paid at the time of their redemption in specie, or, at the election of the holder, annually, in bills of exchange drawn by the United States on their commissioners in Europe, at four shillings and six pence sterling for each dollar. They were to be issued in ascertained proportions on the funds of the several states, with a collateral security on the part of the government, to pay the quota of any particular state, which the events of the war might render incapable of

complying with its own engagements. The bills were to be deposited in the continental loan-offices of the several states, and were to be signed only as the money then in circulation should be brought in by taxes or otherwise. After being signed, six-tenths of them were to be delivered to the states on whose funds they were to be issued, and the remaining four-tenths to be retained for the use of the continent.

The operation of this scheme of finance was necessarily suspended by the same causes which suspended that for requiring specific articles. It depended on the sanction and co-operation of the several state legislatures, many of which were yet to convene.

As it would be impracticable to maintain the value of the money about to be emitted, should the states continue to issue bills of credit, they were earnestly requested to suspend future emissions, and to call the current paper out of circulation. But the time for this measure was not yet arrived, and many of the states continued the use of the press till late in the following year.

The establishment of the army for the ensuing campaign was fixed at thirty-five thousand two hundred and eleven men, and the measures for recruiting it were founded on the state system, which was become entirely predominant.

The few intelligent statesmen who could combine practical good sense with patriotism, perceived the dangerous inefficacy of a system which openly abandoned the national character, and proceeded on the principle that the American confederacy was no more than an alliance of independent nations.

That great delays would be experienced, that the different parts of the plan would be acted on too unequally and too uncertainly to furnish a solid basis for military calculations, that the system would be totally deranged in its execution, were mischiefs foreseen and lamented by many, as resulting inevitably from a course of measures to which the government of the Union was under the painful necessity of submitting.

"Certain I am," said the Commander-in-chief, in a confidential letter to a member of the national legislature, "that unless congress speaks in a more decisive tone; unless they are vested with powers by the several states, competent to the great purposes of the war, or assume them as matter of right, and they and the states respectively act with more energy than they

hitherto have done, our cause is lost. We can no longer drudge on in the old way. By ill-timing the adoption of measures; by delays in the execution of them, or by unwarrantable jealousies; we incur enormous expenses, and derive no benefit from them. One state will comply with a requisition from congress; another neglects to do it; a third executes it by halves; and all differ in the manner, the matter, or so much in point of time, that we are all working up hill; and, while such a system as the present one, or rather want of one, prevails, we ever shall be unable to apply our strength or resources to any advantage.

"This, my dear sir, is plain language to a member of congress; but it is the language of truth and friendship. It is the result of long thinking, close application, and strict observation. I see one head gradually changing into thirteen; I see one army branching into thirteen; and, instead of looking up to congress as the supreme controlling power of the United States, consider themselves as dependent on their respective states. In a word, I see the power of congress declining too fast for the respect which is due to them as the great representative body of America, and am fearful of the consequences."

But whatever might be his objections to the proposed system, General Washington was unremitting in his endeavours to render the plan perfect in detail, and to give to its execution all the aid which his situation and influence enabled him to afford.

The distresses of the army for food, which had found temporary relief in the particular exertions of the magistrates and people of New Jersey, soon returned; and it became once more necessary, even after the magazines had been in some degree replenished, to recur to the same persons for assistance. The supplies of forage had failed, and a great proportion of the horses had perished, or been rendered unfit for use. Neither funds nor credit were possessed for the purchase of others, and the quarter-master-general found himself unable to transport provisions from remote magazines into camp. This circumstance reduced the Commander-in-chief to the painful necessity of calling on the patriotism of private citizens, under the penalty of a military impressment, should a voluntary contribution be refused, for those means of conveyance which the government could not supply.

The want of food was not the only difficulty to be surmounted. Others of a serious nature presented themselves. The pay of an officer was reduced by

the depreciation of the currency, to such a miserable pittance as to be unequal to the supply of the most moderate demands. The pay of a major general would no longer hire an express rider, and that of a captain would not purchase the shoes in which he marched. The American officers were not rich; and many of them had expended their *little all* in the service. If they had exhausted their private funds, or if they possessed none, they could rely only on the state to which they belonged for such clothing as the state might be willing or able to furnish. These supplies were so insufficient and unequal, as to produce extreme dissatisfaction. In the lines of some of the states, the officers gave notice in a body, of their determination to resign on a given day, if some decent and certain provision should not be made for them. The remonstrances of the Commander-in-chief produced an offer to serve as volunteers until their successors should be appointed; and, on the rejection of this proposition, they were with difficulty induced to remain in service.

Under these complicated embarrassments, it required all that enthusiastic patriotism which pre-eminently distinguishes the soldier of principle; all that ardent attachment to the cause of their country which originally brought them into the field, and which their sufferings could not diminish; all the influence of the Commander-in-chief, whom they almost adored; to retain in the service men who felt themselves neglected, and who believed themselves to be the objects of the jealousy of their country, rather than of its gratitude.

Among the privates, causes of disgust grew out of the very composition of the army, which increased the dissatisfaction produced by their multiplied wants.

The first effort made to enlist troops for the war had, in some degree, succeeded. While these men found themselves obliged to continue in service without compensation, and often without the common necessities of life, they perceived the vacant ranks in their regiments filled up by men who were to continue only for a few months, and who received bounties for that short service, from individuals or from the states, which were of great real value, and which appeared to soldiers not acquainted with the actual state of depreciation, to be immense. They could not fail to compare situations, and to repine at engagements which deprived them of advantages which they saw in possession of others. Many were induced to contest those

engagements;^[36] many to desert a service in which they experienced such irritating inequalities; and all felt with the more poignant indignation, those distressing failures in the commissary department, which so frequently recurred.

Committee of Congress deputed to camp.

In consequence of the strong representations made to congress on these various causes of disquiet, a committee of three members repaired to camp for the purpose of consulting with the Commander-in-chief on such arrangements as the means in possession of the government would enable it to make, and the present state of the army might require. In representing the condition of the troops, they said, "That the army was unpaid for five months; that it seldom had more than six days' provisions in advance, and was on several occasions, for several successive days, without meat; that the army was destitute of forage; that the medical department had neither tea, chocolate, wine, nor spirituous liquors of any kind; that every department of the army was without money, and had not even the shadow of credit left; that the patience of the soldiers, borne down by the pressure of complicated sufferings, was on the point of being exhausted."

To relieve this gloomy state of things by transfusing into it a ray of hope for the future, a resolution was passed, declaring that congress would make good to the line of the army, and to the independent corps thereof, the deficiency of their original pay, which had been occasioned by the depreciation of the continental currency; and that the money or other articles heretofore received, should be considered as advanced on account, to be comprehended in the settlement to be finally made. The benefits of this resolution were confined to those who were then in actual service, or should thereafter come into it, and who were engaged for the war or for three years.

This resolution was published in general orders, and had considerable influence on the army, but not sufficient to remove the various causes of dissatisfaction which existed, and were continually multiplying. The engagement to make good the depreciation of their pay, was an act of justice too long withheld; and no promise for the future, could supply the place of present comfortable subsistence. No hope was given that their condition, in this respect, would be improved. For a considerable time, the

troops received only from one-half to one-eighth of a ration of meat; and, at length, were several days without a single pound of that necessary article.

This long course of suffering had unavoidably produced some relaxation of discipline, and had gradually soured the minds of the soldiers to such a degree, that their discontents broke out into actual mutiny.

May 25.

On the 25th of May, two regiments belonging to Connecticut paraded under arms with a declared resolution to return home, or to obtain subsistence at the point of the bayonet. The soldiers of the other regiments, though not actually joining the mutineers, showed no disposition to suppress the mutiny. By great exertions on the part of the officers, aided by the appearance of a neighbouring brigade of Pennsylvania, then commanded by Colonel Stewart, the leaders were secured, and the two regiments brought back to their duty. Some sentiments, however, were disclosed by the soldiers, in answer to the remonstrances of their officers, of a serious and alarming nature. Their pay was now five months in arrear, and the depreciation of the money, they said, was such, that it would be worth nothing when received. When reminded of the late resolution of congress for making good the loss sustained by depreciation, of the reputation acquired by their past good conduct, and of the value of the object for which they were contending; they answered that their sufferings were too great to be longer supported; that they wanted present relief; and must have some present substantial recompense for their services. A paper was found in the brigade, which appeared to have been brought by some emissary from New York, stimulating the troops to the abandonment of the cause in which they were engaged.

June 6.

The discontents of the army, and the complaints excited in the country by the frequent requisitions on the people of New Jersey, had been communicated, with such exaggeration, to the officer commanding in New York, as to induce the opinion that the American soldiers were ready to desert their standards; and the people of New Jersey to change their government. General Knyphausen enters Jersey. To countenance these dispositions, General Knyphausen embarked at Staten Island, and landed in the night with about five thousand men at Elizabethtown Point, in New Jersey. Early next morning he marched towards Springfield, by the way of

Connecticut Farms, but soon perceived that the real temper, both of the country and the army, had been misunderstood.

On the appearance of the enemy, the militia assembled with alacrity, and aided the small patrolling parties of continental troops in harassing him on his march from Elizabethtown to the Connecticut Farms, a distance of five or six miles, where a halt was made. In a spirit of revenge, unworthy the general of an army, more in the character of Tryon who was present, than of Knyphausen who commanded, this settlement was reduced to ashes.[\[37\]](#)

From the Farms, Knyphausen proceeded to Springfield. The Jersey brigade, commanded by General Maxwell, and the militia of the adjacent country, took an advantageous position at that place, and seemed determined to defend it. Knyphausen halted in its neighbourhood, and remained on his ground until night.

Having received intelligence of this movement, General Washington put his army in motion early in the same morning that Knyphausen marched from Elizabethtown Point, and advanced to the Short Hills, in the rear of Springfield, while the British were in the neighbourhood of that place. Dispositions were made for an engagement the next morning, but Knyphausen retired in the night to the place of his disembarkation.

General Washington continued on the hills near Springfield, too weak to hazard an engagement, but on ground chosen by himself. His continental troops did not exceed three thousand men. A return of the whole army under his immediate command, made on the 3d of June, exhibited in the column, of present, fit for duty, only three thousand seven hundred and sixty, rank and file. So reduced was that force on which America relied for independence. "You but too well know," said General Washington in a letter to a friend, giving an account of this incursion, "and will regret with me the cause which justifies this insulting manœuvre on the part of the enemy. It deeply affects the honour of the states, a vindication of which could not be attempted in our present circumstances, without most intimately hazarding their security; at least so far as it may depend on the preservation of the army. Their character, their interest, their all that is dear, call upon them in the most pressing manner, to place the army immediately on a respectable footing."

The long continuance of Knyphausen at Elizabethtown, strengthened a suspicion that Sir Henry Clinton was about to return from South Carolina,

and intended, without disembarking his troops, to proceed up the Hudson to West Point; and that the movement into Jersey was a feint designed to cover the real object.

The letters of the Commander-in-chief, addressed about this period, to those who might be supposed to possess influence in the government of the Union, or in those of the states, exhibit his conjectures respecting the designs of his adversary, as well as his apprehensions from the condition of his own army. To the committee of congress, in camp, he observed, "General Knyphausen still continues in the Jerseys with all the force which can be spared from New York, a force greatly superior to ours. Should Sir Henry join him, their superiority will be decided, and equal to almost any thing they may think proper to attempt. The enemy, it is true, are at this time inactive; but their continuance in their present position proves that they have some project of importance in contemplation. Perhaps they are only waiting until the militia grow tired and return home, (which they are doing every hour,) to prosecute their designs with the less opposition. This would be a critical moment for us. Perhaps they are waiting the arrival of Sir Henry Clinton, either to push up the North River against the Highland posts, or to bend their whole force against this army. In either case, the most disastrous consequences are to be apprehended. You, who are well acquainted with our situation, need no arguments to evince the danger.

"The militia of this state have run to arms, and behaved with an ardour and spirit of which there are few examples. But perseverance, in enduring the rigours of military service, is not to be expected from those who are not by profession obliged to it. The reverse of this opinion has been a great misfortune in our affairs, and it is high time we should recover from an error of so pernicious a nature. We must absolutely have a force of a different composition, or we must relinquish the contest. In a few days, we may expect to rely almost entirely on our continental force, and this, from your own observation, is totally inadequate to our safety. The exigency calls loudly on the states to carry all the recommendations of the committee into the most vigorous and immediate execution; but more particularly that for completing our batteries by a draught with all possible expedition."

June 18.

Sir Henry Clinton returns to New York.

In this precise state of things, he received intelligence of the return of Sir Henry Clinton from the conquest of South Carolina.

The regular force in New York and its dependencies was now estimated at twelve thousand men, great part of whom might be drawn into the field for any particular purpose, because Sir Henry Clinton could command about four thousand militia and refugees for garrison duty.

In communicating to congress the appearance of the British fleet off the Hook, General Washington observed, "a very alarming scene may shortly open, and it will be happy for us if we shall be able to steer clear of some serious misfortune in this quarter. I hope the period has not yet arrived, which will convince the different states by fatal experience, that some of them have mistaken the true situation of this country. I flatter myself, however, that we may still retrieve our affairs if we have but a just sense of them, and are actuated by a spirit of liberal policy and exertion equal to the emergency. Could we once see this spirit generally prevailing, I should not despair of a prosperous issue of the campaign. But there is no time to be lost. The danger is imminent and pressing; the obstacles to be surmounted are great and numerous; and our efforts must be instant, unreserved, and universal."

On the arrival of Sir Henry Clinton, the design of acting offensively in the Jerseys was resumed; but, to divide the American army, demonstrations were made of an intention to seize West Point. To be in readiness for either object, General Greene was left at Springfield with two brigades of continental troops, and with the Jersey militia; while, with the greater part of his army, General Washington proceeded slowly towards Pompton, watching attentively the movements of the British, and apparently unwilling to separate himself too far from Greene. He had not marched farther than Rockaway, eleven miles beyond Morristown, when the British army advanced from Elizabethtown towards Springfield in great force. General Washington detached a brigade to hang on their right flank, and returned with the residue of his army five or six miles, in order to be in a situation to support Greene.

June.

Early in the morning of the 23d, the British army moved in two columns, with great rapidity, towards Springfield. Major Lee was advanced on the Vauxhall road, which was taken by the right column; and Colonel Dayton

on the direct road, which was taken by the left. Both these corps made every possible exertion to check the advancing enemy, while General Greene concentrated his little army at Springfield. Skirmish at Springfield. Scarcely had he made his dispositions, when the British front appeared, and a cannonade commenced between their van and the American artillery which defended a bridge over Rahway, a small river running east of the town, which was guarded by Colonel Angel with less than two hundred men. Colonel Shreve was posted at a second bridge, also over a branch of the Rahway, in order to cover the retreat of Angel from the first. Major Lee with his dragoons and the piquets under Captain Walker, supported by Colonel Ogden, was directed to defend a bridge on the Vauxhall road. The residue of the continental troops were drawn up on high ground, in the rear of the town, with the militia on their flanks.

The right column of the British advanced on Lee, who disputed the passage of the bridge until a considerable body of the enemy forded the river above him, and gained the point of a hill which endangered his position. At this instant, their left attacked Colonel Angel, who defended himself with persevering gallantry. The conflict was sharp, and was maintained for about half an hour, when, compelled by superior numbers to give way, he retired in good order, and brought off his wounded. His retreat was covered by Colonel Shreve, who, after Angel had passed him, was ordered by General Greene to join his brigade. The English then took possession of the town and reduced it to ashes.

The obstinate resistance which had been encountered; the gallantry and discipline displayed by the continental troops who had been engaged; the strength of Greene's position; the firm countenance maintained by his troops, small detachments of whom kept up a continual skirmishing with a view to save a part of the town; all contributed to deter Sir Henry Clinton from a farther prosecution of his original plan. He withdrew that afternoon to Elizabethtown; and, in the following night, passed over to Staten Island. It is probable that the caution manifested during this expedition is to be ascribed to the intelligence that a formidable fleet and army from France was daily expected on the coast.

When the Marquis de Lafayette obtained permission to visit his native country, he retained, with his rank in the American army, that zeal for the interests of the United States, which the affectionate attentions he had

received, and the enthusiasm of a soldier in the cause of those for whom he had made his first campaigns, were calculated to inspire in a young and generous mind, in favour of an infant people, struggling for liberty and self-government with the hereditary rival of his nation.

He was received at the court of Versailles with every mark of favour and distinction;[\[38\]](#) and all his influence was employed in impressing on the cabinet, the importance and policy of granting succours to the United States.

Having succeeded in this favourite object, and finding no probability of active employment on the continent of Europe, he obtained permission to return to America. Lafayette brings intelligence of aid from France. He arrived late in April at Boston, and hastened to head quarters; whence he proceeded to the seat of Government with the information that his most Christian Majesty had consented to employ a considerable land and naval armament in the United States, for the ensuing campaign. This intelligence gave a new impulse both to congress and the state legislatures. Exertions of Congress and of the Commander-in-chief to strengthen the army. The states from New Hampshire to Virginia inclusive were required to pay, within thirty days, ten millions of dollars, part of their quotas which became due on the first of March; and specie bills to the amount of fifty thousand dollars were drawn on Messieurs Franklin and Jay. These sums were sacredly appropriated to the objects of bringing the army into the field, and forwarding their supplies.

The defects in the requisition system, which had been suggested by General Washington, were corrected; and the committee in camp, at the head of which was the late General Schuyler, was empowered, at the request of the Commander-in-chief, to take such measures as were in the power of congress, for drawing out the resources of the nation.

To give effect to these resolutions, the several state legislatures from New Hampshire to Virginia inclusive, were requested to invest the Executives, or some other persons, with powers sufficiently ample to comply with such applications as might be made to them by the committee in camp, and a circular letter was addressed to the state governments, urging them to second the efforts of Congress.

Letters equally stimulating were written by the committee from camp; and the well earned influence of the Commander-in-chief was also

employed to induce an exertion proportioned to the crisis. In addition to those incentives which might operate on ardent minds, he endeavoured, by a temperate review of the situation and resources of the belligerent powers, to convince the judgment that America would have real cause to fear the issue of the contest, should she neglect to improve the advantage to be afforded by the succours expected from France.[\[39\]](#)

Under the impressions produced by these representations, the state legislatures, generally, passed the laws which were required; but the energy displayed in their passage was not maintained in their execution. In general, the assemblies followed the example of congress, and apportioned on the several counties or towns within the state, the quota to be furnished by each. This division of the state was again to be subdivided into classes, each of which was to furnish a man by contributions or taxes imposed upon itself.

Tardy proceedings of the states.

These operations were slow and unproductive.

It was not on the state sovereignties only that beneficial effects were produced by a candid statement of public affairs, several patriotic individuals contributed largely from their private funds to the aid of the public. The merchants, and other citizens of Philadelphia, with a zeal guided by that sound discretion which turns expenditure to the best account, established a bank, for the support of which they subscribed £315,000, Pennsylvania money, to be paid, if required, in specie, the principal object of which was to supply the army with provisions and rum. By the plan of this bank, its members were to derive no emolument whatever from the institution. For advancing their credit and their money, they required only that congress should pledge the faith of the Union to reimburse the costs and charges of the transaction in a reasonable time, and should give such assistance to its execution as might be in their power.

The ladies of Philadelphia too gave a splendid example of patriotism, by large donations for the immediate relief of the suffering army. This example was extensively followed;[\[40\]](#) but it is not by the contributions of the generous that a war can or ought to be maintained. The purse of the nation alone can supply the expenditures of a nation; and, when all are interested in a contest, all ought to contribute to its support. Taxes, and taxes only, can furnish for the prosecution of a national war, means which are just in themselves, or competent to the object. Notwithstanding these donations, the distresses of the army, for clothing especially, still continued; and were the more severely felt when a co-operation with French troops was expected. So late as the 20th of June, General Washington informed congress, that he still laboured under the painful and humiliating embarrassment of having no shirts for the soldiers, many of whom were destitute of that necessary article. "For the troops to be without clothing at any time," he added, "is highly injurious to the service, and distressing to our feelings; but the want will be more peculiarly mortifying when they come to act with those of our allies. If it be possible, I have no doubt, immediate measures will be taken to relieve their distress.

"It is also most sincerely wished, that there could be some supplies of clothing furnished to the officers. There are a great many whose condition is still miserable. This is, in some instances, the case with the whole lines of

the states. It would be well for their own sakes, and for the public good, if they could be furnished. They will not be able, when our friends come to co-operate with us, to go on a common routine of duty; and if they should, they must, from their appearance, be held in low estimation."

This picture presents in strong colours, the real patriotism of the American army. One heroic effort, though it may dazzle the mind with its splendour, is an exertion most men are capable of making; but continued patient suffering and unremitting perseverance, in a service promising no personal emolument, and exposing the officer unceasingly, not only to wants of every kind, but to those circumstances of humiliation which seem to degrade him in the eyes of others, demonstrate a fortitude of mind, a strength of virtue, and a firmness of principle, which ought never to be forgotten.

As the several legislative acts for bringing the army into the field, did not pass until the months of June and July, General Washington remained uninformed of the force on which he might rely, and was consequently unable to form any certain plan of operations.

This suspense was the more cruelly embarrassing, as, in the event of an attempt upon New York, it was of the utmost importance that the French fleet should, on its arrival, take possession of the harbour, which was then weakly defended. But, should this measure be followed by a failure to furnish the requisite support, it would not only be ineffectual; but, in a very possible state of things, might sacrifice the fleet itself.

Should it be ascertained that the states were either unable or unwilling to make the exertions necessary for the siege of New York, other objects presented themselves against which the allied arms might be turned to advantage. To avoid the disgrace and danger of attempting what could not be effected, and the reproach of neglecting any attainable object, were equally desirable, and equally required a correct knowledge of the measures which would be taken by the states.

In a letter to congress communicating his anxiety on this interesting subject, and his total want of information respecting it, General Washington observed, "The season is come when we have every reason to expect the arrival of the fleet, and yet, for want of this point of primary consequence, it is impossible for me to form a system of co-operation. I have no basis to act upon; and, of course, were this generous succour of our ally now to arrive, I

should find myself in the most awkward, embarrassing, and painful situation. The general and the admiral, from the relation in which I stand, as soon as they approach our coast, will require of me a plan of the measures to be pursued, and there ought of right to be one prepared; but circumstanced as I am, I can not even give them conjectures. From these considerations, I have suggested to the committee, by a letter I had the honour of addressing them yesterday, the indispensable necessity of their writing again to the states, urging them to give immediate and precise information of the measures they have taken and of the result. The interest of the states, the honour and reputation of our councils, the justice and gratitude due to our allies, all require that I should, without delay, be enabled to ascertain and inform them, what we can or can not undertake. There is a point which ought now to be determined, on the success of which all our future operations may depend, on which, for want of knowing our prospects, I can make no decision. For fear of involving the fleet and army of our allies in circumstances which would expose them, if not seconded by us, to material inconvenience and hazard, I shall be compelled to suspend it, and the delay may be fatal to our hopes."

The tardy proceedings of the states were not less perplexing to congress than to the Commander-in-chief. To the minister of his most Christian Majesty, who had in the preceding January communicated the probability of receiving succour from France, that body, without calculating accurately the means of complying with its engagements, had pledged itself unequivocally for effectual co-operation. The minister was assured, that the United States had expectations on which they could rely with confidence, of bringing into the field, for the next campaign, an army of twenty-five thousand men; and that such numbers of militia might be added to this continental force, as would render it competent to any enterprise against the posts occupied by the British within the United States.

Assurances were also given that ample supplies of provisions for the combined armies should be laid up in magazines under the direction of congress. The French minister addressed congress on this subject about the time that General Washington expressed so strongly, the necessity of knowing with certainty, on what reinforcements he was to calculate.

Thus pressed by their general and their ally, congress renewed their urgent requisitions on the states, and desired the several governments to

correspond weekly with the committee at head quarters, on the progress made in complying with them.

In the mean time, General Washington meditated unceasingly on the course to be pursued in the various contingencies which might happen; and endeavoured to prepare for any plan of operations which circumstances might render adviseable. The arrival of Sir Henry Clinton diminished the variety of aspects in which the relative situation of the two armies was to be contemplated, and rendered the success of an attempt on New York more doubtful. It was now thought adviseable that the armament from France, instead of sailing directly to the Hook, should proceed in the first instance to Rhode Island; where, after disembarking the troops, and providing for the sick, it might wait until a definitive plan of operations should be concerted.

July 13.

Arrival of a French armament in Rhode Island.

On the 13th of July, while the result of the measures adopted by the several states remained uncertain, the French fleet entered the harbour of Newport, and letters were soon afterwards received from the Count de Rochambeau and the Chevalier Tunay, the officers commanding the land and naval forces, transmitting to General Washington an account of their arrival, of their strength, their expectations, and their orders.

The troops designed to serve in the United States had assembled, early in the year, at Brest; but the transports at that place having been chiefly employed for an armament destined for the West Indies; and the ports from which it had been intended to draw others, being blockaded, only the first division, consisting of five thousand men, had arrived at Newport; but letters from France contained assurances that the second division of the army might soon be expected.

To obviate those difficulties which had occurred on former occasions respecting rank, the orders given to Lieutenant General Count de Rochambeau, which were inclosed in his first letter, placed him entirely under the command of General Washington. The French troops were to be considered as auxiliaries, and were, according to the usages of war, to cede the post of honour to the Americans.[\[41\]](#)

Convinced that cordial harmony between the allied forces was essential to their success, both generals cultivated carefully the friendly dispositions felt by the troops towards each other. Warm professions of reciprocal

respect, esteem, and confidence, were interchanged between them; and each endeavoured to impress on the other, and on all the military and civil departments, the conviction that the two nations, and two armies, were united by the ties of interest and affection. On this occasion, General Washington recommended to his officers, as a symbol of friendship and affection for their allies, to engraft on the American cockade, which was black, a white relief, that being the colour of the French cockade.

Late as was the arrival of the French troops, they found the Americans unprepared for active and offensive operations. Not even at that time were the numbers ascertained which would be furnished by the states. Yet it was necessary for General Washington to communicate a plan of the campaign to the Count de Rochambeau.

The season was already so far advanced that preparations for the operations contemplated eventually, on the arrival of the second division of the French fleet, must be immediately made, or there would not be time, though every circumstance should prove favourable, to execute the design against New York. Such a state of things so ill comported with the engagements of congress, and with the interests of the nation, that, trusting to his being enabled, by the measures already taken by the states, to comply with what was incumbent on him to perform, he determined to hazard much rather than forego the advantages to be derived from the aids afforded by France. In communicating this resolution to congress, he said—"Pressed on all sides by a choice of difficulties in a moment which required decision, I have adopted that line of conduct which comported with the dignity and faith of congress, the reputation of these states, and the honour of our arms. I have sent on definitive proposals of co-operation to the French general and admiral. Neither the period of the season, nor a regard to decency, would permit delay. The die is cast, and it remains with the states either to fulfil their engagements, preserve their credit, and support their independence, or to involve us in disgrace and defeat. Notwithstanding the failures pointed out by the committee, I shall proceed on the supposition that they will, ultimately, consult their own interest and honour and not suffer us to fail for the want of means which it is evidently in their power to afford. What has been done, and is doing, by some of the states, confirms the opinion I have entertained of sufficient resources in the country. Of the disposition of the people to submit to any arrangement for bringing them forth, I see no reasonable ground to doubt. If we fail for want of proper

exertions in any of the governments, I trust the responsibility will fall where it ought; and that I shall stand justified to congress, my country, and the world."



Beverly Robinson Mansion at West Point

Benedict Arnold made this house his headquarters while in command of the fort and garrison there. It was here that Washington came to breakfast with Arnold, one September morning in 1780 and made the discovery that his host had turned traitor and was conspiring to surrender West Point to the British.

A decisive naval superiority, however, was considered as the basis of any enterprise to be undertaken by the allied arms. This naval superiority being assumed, the outlines of the plan were drawn, and the 5th of August was named as the day on which the French troops should re-embark, and the American army assemble at Morrissania.

This plan was committed to Major General the Marquis de la Fayette, who was authorized to explain the situation of the American army, and the views of the General, to the Count de Rochambeau. It was to be considered as preliminary to any operation—that the fleet and army of France should

continue their aid until the enterprise should succeed, or be abandoned by mutual consent.

The Chevalier de Tunay did not long maintain his superiority at sea. Three days after he reached Newport, Admiral Greaves arrived with six ships of the line, and transferred it to the British. On his appearance off the Hook, Arbuthnot passed the bar with four ships of the line; and hearing that De Tunay had reached Rhode Island, proceeded thither, and cruised off the harbour. The Count de Rochambeau had been put into possession of all the forts and batteries about Newport, and the fleet had been moved in a line so as to co-operate with the land forces. This position appearing too formidable to be attempted by the fleet alone, Arbuthnot continued to cruise off Block Island.

As the commanders of the allied forces still cherished the hope of acquiring a superiority at sea, the design on New York was only suspended. This hope was strengthened by intelligence that the Count de Guichen had been joined in the West Indies by a powerful Spanish armament. The Chevalier de Tunay had despatched a packet to inform him that he was blocked up by a superior force, and to solicit such reinforcements as the situation of the Count might enable him to spare. Relying on the success of this application, and on the arrival of the second division of the squadron from Brest, the American general impatiently expected the moment when De Tunay would be enabled to act offensively.

In this crisis of affairs, a derangement took place in a most important department, which threatened to disconcert the whole plan of operations, though every other circumstance should prove favourable.

The immense expenditure of the quartermaster's department—the inadequacy of the funds with which it was supplied—the reciprocal disgusts and complaints produced by these causes, had determined congress to make still another radical change in the system. This subject had been taken up early in the winter; but such were the delays inseparable from the proceedings of the government, that the report of the committee was not made until the month of March, nor finally decided on until the middle of July.

This subject was too interesting to the army, and to the important operations meditated for the campaign, not to engage the anxious attention of the Commander-in-chief. At his request, the quartermaster general, while

the army lay in winter quarters, repaired to Philadelphia for the purpose of giving congress all the information he possessed. He proposed to withdraw the management of the department almost entirely from the civil government, and to place it under the control of the person who should be at its head, subject only to the direction of the Commander-in-chief.

The views of congress were entirely different. While the subject remained suspended before that body, it was taken up by the committee of co-operation at head quarters, where the combined experience and talents of Generals Washington, Schuyler, and Greene, were employed in digesting a system adapted to the actual situation of the United States, which was recommended to congress. To give the more weight to his opinion by showing its disinterestedness, General Greene offered to continue in the discharge of the duties assigned to him, without any other extra emolument than his family expenses. This plan, whatever might have been its details, was, in its general outlines, unacceptable to congress. A system was, at length, completed by that body, which General Greene believed to be incapable of execution. Resolving not to take upon himself the responsibility of measures the issue of which must be calamitous and disgraceful, he determined to withdraw from a station in which he despaired of being useful.

Apprehending the worst consequences from his resignation in so critical a moment, General Washington pressed him to suspend this decisive step, until the effect of an application from himself and from the committee of co-operation should be known. Their representations produced no effect. The resolution to make this bold experiment was unalterable. General Greene's resignation was accepted; and the letter conveying it excited so much irritation, that a design was intimated of suspending his command in the line of the army. But these impressions soon wore off, and the resentment of the moment subsided. Colonel Pickering, who succeeded General Greene, possessed, in an eminent degree, those qualities which fitted him to combat and subdue the difficulties of his department. To great energy of mind and body, he added a long experience in the affairs of the continent, with an ardent zeal for its interests; and General Greene himself, with several of the former officers, at the request of the Commander-in-chief, continued for some time after their resignation, to render all the services in their power; but there was a defect of means, for which neither talents nor exertion could compensate.

In the commissary department the same distress was experienced. General Washington was driven to the necessity of emptying the magazines at West Point, and of foraging on a people whose means of subsisting themselves were already nearly exhausted by the armies on both sides. The inadequate supplies drawn from these sources afforded but a short relief; and, once more, at a time when the public imagination was contemplating brilliant plans, the execution of which required steady courage with persevering labour, and consequently ample magazines, the army was frequently reduced to the last extremity by the want of food.

So great were the embarrassments produced by the difficulty of procuring subsistence that, although the second division of the fleet from Brest was daily expected, General Washington found it necessary to countermand the orders under which the militia were marching to camp.

Such was the state of preparation for the campaign, when intelligence was brought by the Alliance frigate that the port of Brest was blockaded. In the hope, however, that the combined fleets of France and Spain would be able to raise the blockade, General Washington adhered steadily to his purpose respecting New York, and continued his exertions to provide the means for its execution. The details of the plan of co-operation continued to be the subject of a correspondence with the Count de Rochambeau, and the Chevalier de Tunay; and, at length, a personal interview was agreed upon, to take place on the 21st of September, at Hartford, in Connecticut.

Enterprise against New York relinquished.

In this interview, ulterior eventual measures, as well as an explicit and detailed arrangement for acting against New York, were the subjects of consideration. No one of the plans, however, then concerted for the present campaign, was carried into execution. All, except an invasion of Canada, depended on a superiority at sea, which was soon rendered almost hopeless by certain information that the Count de Guichen had sailed for Europe.

Naval superiority of the British.

Not long after receiving this information, Admiral Rodney arrived at New York with eleven ships of the line and four frigates. This reinforcement not only disconcerted all the plans of the allies, but put it in the power of the British to prosecute in security their designs in the south.

Plans for the campaign abandoned.

It may well be supposed that the Commander-in-chief did not relinquish, without infinite chagrin, the sanguine expectations he had formed of rendering this summer decisive of the war. Never before had he indulged so strongly the hope of happily terminating the contest. In a letter to an intimate friend, this chagrin was thus expressed. "We are now drawing to a close an inactive campaign, the beginning of which appeared pregnant with events of a very favourable complexion. I hoped, but I hoped in vain, that a prospect was opening which would enable me to fix a period to my military pursuits, and restore me to domestic life. The favourable disposition of Spain, the promised succour from France, the combined force in the West Indies, the declaration of Russia, (acceded to by other powers of Europe, humiliating the naval pride and power of Great Britain) the superiority of France and Spain by sea in Europe, the Irish claims and English disturbances, formed in the aggregate an opinion in my breast, (which is not very susceptible of peaceful dreams) that the hour of deliverance was not far distant; for that, however unwilling Great Britain might be to yield the point, it would not be in her power to continue the contest. But alas! these prospects, flattering as they were, have proved delusive; and I see nothing before us but accumulating distress. We have been half of our time without provisions, and are likely to continue so. We have no magazines, nor money to form them. We have lived upon expedients until we can live no longer. In a word, the history of the war is a history of false hopes and temporary devices, instead of system and economy. It is in vain, however, to look back, nor is it our business to do so. Our case is not desperate, if virtue exists in the people, and there is wisdom among our rulers. But to suppose that this great revolution can be accomplished by a temporary army; that this army will be subsisted by state supplies; and that taxation alone is adequate to our wants, is in my opinion absurd, and as unreasonable as to expect an inversion of the order of nature to accommodate itself to our views. If it were necessary, it could be easily proved to any person of a moderate understanding, that an annual army, or any army raised on the spur of the occasion, besides being unqualified for the end designed, is, in various ways that could be enumerated, ten times more expensive than a permanent body of men under good organization and military discipline; which never was, nor will be the case with raw troops. A thousand arguments, resulting from experience and the nature of things, might also be adduced to prove that the army, if it is to depend upon state supplies, must

disband or starve, and that taxation alone (especially at this late hour) can not furnish the means to carry on the war. Is it not time to retract from error, and benefit by experience? Or do we want farther proof of the ruinous system we have pertinaciously adhered to."

CHAPTER VIII.

Treason and escape of Arnold.... Trial and execution of Major André.... Precautions for the security of West Point.... Letter of General Washington on American affairs.... Proceedings of congress respecting the army.... Major Talmadge destroys the British stores at Coram.... The army retires into winter quarters.... Irruption of Major Carlton into New York.... European transactions.

1780.

While the public mind was anticipating great events from the combined arms of France and America, treason lay concealed in the American camp, and was plotting the ruin of the American cause.

The great services and military talents of General Arnold, his courage in battle, and patient fortitude under excessive hardships, had secured to him a high place in the opinion of the army and of his country.

Not having sufficiently recovered from the wounds received before Quebec and at Saratoga to be fit for active service, and having large accounts to settle with the government which required leisure, he was, on the evacuation of Philadelphia in 1778, appointed to the command in that place.

Unfortunately, that strength of principle and correctness of judgment, which might enable him to resist the various seductions to which his fame and rank exposed him in the metropolis of the Union, were not associated with the firmness which he had displayed in the field, and in the most adverse circumstances. Yielding to the temptations of a false pride, and forgetting that he did not possess the resources of private fortune, he indulged in the pleasures of a sumptuous table and expensive equipage, and soon swelled his debts to an amount which it was impossible to discharge. Unmindful of his military character, he engaged in speculations which were unfortunate; and with the hope of immense profit, took shares in privateers which were unsuccessful. His claims against the United States were great, and he looked to them for the means of extricating himself from the

embarrassments in which his indiscretions had involved him; but the commissioners to whom his accounts were referred for settlement, had reduced them considerably; and, on his appeal from their decision to congress, a committee reported that the sum allowed by the commissioners was more than he was entitled to receive.

He was charged with various acts of extortion on the citizens of Philadelphia, and with peculating on the funds of the continent. Not the less soured by these multiplied causes of irritation, from the reflection that they were attributable to his own follies and vices, he gave full scope to his resentments, and indulged himself in expressions of angry reproach against, what he termed, the ingratitude of his country, which provoked those around him, and gave great offence to congress. Having become peculiarly odious to the government of Pennsylvania, the Executive of that state exhibited formal charges against him to congress, who directed that he should be arrested and brought before a court martial. His trial was concluded late in January, 1779, and he was sentenced to be reprimanded by the Commander-in-chief. This sentence was approved by congress and carried into execution.

From the time the sentence against him was approved, if not sooner, his proud unprincipled spirit revolted from the cause of his country, and determined him to seek an occasion to make the objects of his resentment, the victims of his vengeance. Turning his eyes on West Point as an acquisition which would give value to treason, and inflict a mortal wound on his former friends, he sought the command of that fortress for the purpose of gratifying both his avarice and his hate.[\[42\]](#)

To New York, the safety of West Point was peculiarly interesting; and, in that state, the reputation of Arnold was particularly high. To its delegation he addressed himself; and one of its members had written a letter to General Washington, suggesting doubts respecting the military character of Howe, to whom its defence was then entrusted, and recommending Arnold for that service. This request was not forgotten. Some short time afterwards, General Schuyler mentioned to the Commander-in-chief a letter he had received from Arnold intimating his wish to join the army, but stating his inability, in consequence of his wounds, to perform the active duties of the field. General Washington observed that, as there was a prospect of a vigorous campaign, he should be gratified with the aid of General Arnold.

That so soon as the operations against New York should commence, he designed to draw his whole force into the field, leaving even West Point to the care of invalids and a small garrison of militia. Recollecting however the former application of a member of congress respecting this post, he added, that "if, with this previous information, that situation would be more agreeable to him than a command in the field, his wishes should certainly be indulged."

This conversation being communicated to Arnold, he caught eagerly at the proposition, though without openly discovering any solicitude on the subject; and, in the beginning of August, repaired to camp, where he renewed the solicitations which had before been made indirectly.

At this juncture, Sir Henry Clinton embarked on an expedition he meditated against Rhode Island, and General Washington was advancing on New York. He offered Arnold the left wing of the army, which that officer declined under the pretexts mentioned in his letter to General Schuyler.

Incapable of suspecting a man who had given such distinguished proofs of courage and patriotism, the Commander-in-chief was neither alarmed at his refusal to embrace so splendid an opportunity of recovering the favour of his countrymen, nor at the embarrassment accompanying that refusal. Pressing the subject no farther, he assented to the request which had been made, and invested Arnold with the command of West Point. Previous to his soliciting this station, he had, in a letter to Colonel Robinson, signified his change of principles, and his wish to restore himself to the favour of his Prince by some signal proof of his repentance. This letter opened the way to a correspondence with Sir Henry Clinton, the immediate object of which, after obtaining the appointment he had solicited, was to concert the means of delivering the important post he commanded to the British general.

Major John André, an aid-de-camp of Sir Henry Clinton, and adjutant general of the British army, was selected as the person to whom the maturing of Arnold's treason, and the arrangements for its execution should be entrusted. A correspondence was carried on between them under a mercantile disguise, in the feigned names of Gustavus and Anderson; and, at length, to facilitate their communications, the Vulture sloop of war moved up the North River, and took a station convenient for the purpose, but not so near as to excite suspicion.

Treason and escape of Arnold.

The time when General Washington met the Count de Rochambeau at Hartford was selected for the final adjustment of the plan; and, as a personal interview was deemed necessary, Major André came up the river, and went on board the Vulture. The house of a Mr. Smith, without the American posts, was appointed for the interview; and to that place both parties repaired in the night—André being brought under a pass for John Anderson, in a boat despatched from the shore. While the conference was yet unfinished, day light approached; and, to avoid discovery, Arnold proposed that André should remain concealed until the succeeding night. He is understood to have refused peremptorily to be carried within the American posts; but the promise to respect this objection was not observed. They continued together the succeeding day; and when, in the following night, his return to the Vulture was proposed, the boatmen refused to carry him because she had shifted her station during the day, in consequence of a gun which was moved to the shore without the knowledge of Arnold, and brought to bear upon her. This embarrassing circumstance reduced him to the necessity of endeavouring to reach New York by land. To accomplish this purpose, he reluctantly yielded to the urgent representations of Arnold; and, laying aside his regimentals, which he had hitherto worn under a surtout, put on a plain suit of clothes, and received a pass from General Arnold, authorizing him, under the name of John Anderson, to proceed on the public service to the White Plains, or lower if he thought proper.

With this permit, he had passed all the guards and posts on the road unsuspected, and was proceeding to New York in perfect security, when one of three militia men who were employed between the lines of the two armies, springing suddenly from his covert into the road, seized the reins of his bridle, and stopped his horse. Losing his accustomed self-possession, Major André, instead of producing the pass[\[43\]](#) from General Arnold, asked the man hastily where he belonged? He replied "to below;" a term implying that he was from New York. "And so," said André, not suspecting deception, "am I." He then declared himself to be a British officer on urgent business, and begged that he might not be detained. The appearance of the other militia men disclosed his mistake, too late to correct it. He offered a purse of gold, and a valuable watch, with tempting promises of ample reward from his government, if they would permit him to escape; but his offers were rejected, and his captors proceeded to search him. They found concealed in his boots, in Arnold's hand writing, papers containing all the

information which could be important respecting West Point. When carried before Lieutenant Colonel Jameson, the officer commanding the scouting parties on the lines, he still maintained his assumed character, and requested Jameson to inform his commanding officer that Anderson was taken. Jameson despatched an express with this communication. On receiving it, Arnold comprehended the full extent of his danger, and, flying from well merited punishment, took refuge on board the Vulture.



Where Washington Stayed During André's Trial

In this brick house at Tappan, Rockland County, New York, the American Commander-in-Chief, during September, 1780, awaited the result of the trial of Major John André, who conspired with Benedict Arnold for the betrayal of West Point to the British. Fourteen American officers sat in judgment on André and ordered his execution on October 2, 1780. In Tappan also is still standing the old Tavern where André was imprisoned.

When sufficient time for the escape of Arnold was supposed to have elapsed, André, no longer affecting concealment, acknowledged himself to be the adjutant general of the British army. Jameson, seeking to correct the mischief of his indiscreet communication to Arnold, immediately

despatched a packet to the Commander-in-chief containing the papers which had been discovered, with a letter from André, relating the manner of his capture, and accounting for the disguise he had assumed.

The express was directed to meet the Commander-in-chief, who was then on his return from Hartford; but, taking different roads,[\[44\]](#) they missed each other, and a delay attended the delivery of the papers, which insured the escape of Arnold.

Precautions for the security of West Point.

Every precaution was immediately taken for the security of West Point; after which, the attention of the Commander-in-chief was turned to André. A board of general officers, of which Major General Greene was president, and the two foreign generals, Lafayette and Steuben, were members, was called, to report a precise state of his case, and to determine the character in which he was to be considered, and the punishment to which he was liable.

The frankness and magnanimity with which André had conducted himself from the time of his appearance in his real character, had made a very favourable impression on all those with whom he had held any intercourse. From this cause he experienced every mark of indulgent attention which was compatible with his situation; and, from a sense of justice as well as of delicacy, was informed, on the opening of the examination, that he was at liberty not to answer any interrogatory which might embarrass his own feelings. But, as if only desirous to rescue his character from imputations which he dreaded more than death, he confessed every thing material to his own condemnation, but would divulge nothing which might involve others.

Trial and execution of Major André.

The board reported the essential facts which had appeared, with their opinion that Major André was a spy, and ought to suffer death. The execution of this sentence was ordered to take place on the day succeeding that on which it was pronounced.

Superior to the terrors of death, but dreading disgrace, André was deeply affected by the mode of execution which the laws of war decree to persons in his situation. He wished to die like a soldier, not as a criminal. To obtain a mitigation of his sentence in this respect, he addressed a letter[\[45\]](#) to General Washington, replete with the feelings of a man of sentiment and honour. But the occasion required that the example should make its full

impression, and this request could not be granted. He encountered his fate with composure and dignity; and his whole conduct interested the feelings of all who witnessed it.

The general officers lamented the sentence which the usages of war compelled them to pronounce; and never perhaps did the Commander-in-chief obey with more reluctance the stern mandates of duty and policy. The sympathy excited among the American officers by his fate, was as universal as it is unusual on such occasions; and proclaims alike the merit of him who suffered, and the humanity of those who inflicted the punishment.

Great exertions were made by Sir Henry Clinton, to whom André was particularly dear, first, to have him considered as protected by a flag of truce, and afterwards, as a prisoner of war.

Even Arnold had the hardihood to interpose. After giving a certificate of facts tending, as he supposed, to exculpate the prisoner, exhausting his powers of reasoning on the case, and appealing to the humanity of the American general, he sought to intimidate that officer, by stating the situation of many of the most distinguished individuals of South Carolina, who had forfeited their lives, but had hitherto been spared through the clemency of the British general. This clemency, he said, could no longer be extended to them should Major André suffer.

It may well be supposed that the interposition of Arnold could have no influence on Washington. He conveyed Mrs. Arnold to her husband in New York,[\[46\]](#) and also transmitted his clothes and baggage, for which he had written; but, in every other respect, his letters, which were unanswered, were also unnoticed.

The mingled sentiments of admiration and compassion excited in every bosom for the unfortunate André, seemed to increase the detestation in which Arnold was held. "André," said General Washington in a private letter, "has met his fate with that fortitude which was to be expected from an accomplished man and a gallant officer; but I am mistaken if *at this time* Arnold is undergoing the torments of a mental hell. He wants feeling. From some traits[\[47\]](#) of his character which have lately come to my knowledge, he seems to have been so hardened in crime, so lost to all sense of honour and shame, that, while his faculties still enable him to continue his sordid pursuits, there will be no time for remorse."

From motives of policy, or of respect for his engagements, Sir Henry Clinton conferred on Arnold the commission of a brigadier general in the British service, which he preserved throughout the war. Yet it is impossible that rank could have rescued him from the contempt and detestation in which the generous, the honourable, and the brave, could not cease to hold him. It was impossible for men of this description to bury the recollection of his being a traitor, a sordid traitor, first the slave of his rage, then purchased with gold, and finally secured at the expense of the blood of one of the most accomplished officers in the British army.

His representations of the discontent of the country and of the army concurring with reports from other quarters, had excited the hope that the loyalists and the dissatisfied, allured by British gold, and the prospect of rank in the British service, would flock to his standard, and form a corps at whose head he might again display his accustomed intrepidity. With this hope he published an address to the inhabitants of America, in which he laboured to palliate his own guilt, and to increase their dissatisfaction with the existing state of things.

This appeal to the public was followed by a proclamation addressed "To the officers and soldiers of the continental army, who have the real interests of their country at heart, and who are determined to be no longer the tools and dupes of congress or of France."

The object of this proclamation was to induce the officers and soldiers to desert the cause they had embraced from principle, by holding up to them the very flattering offers of the British general, and contrasting the substantial emoluments of the British service with their present deplorable condition. He attempted to cover this dishonourable proposition with a decent garb, by representing the base step he invited them to take, as the only measure which could restore peace, real liberty, and happiness, to their country.

These inducements did not produce their intended effect. Although the temper of the army might be irritated by real suffering, and by the supposed neglect of government, no diminution of patriotism had been produced. Through all the hardships, irritations, and vicissitudes of the war, Arnold remains the solitary instance of an American officer who abandoned the side first embraced in this civil contest, and turned his sword upon his former companions in arms.

When the probable consequences of this plot, had it been successful, were considered, and the combination of apparent accidents by which it was discovered and defeated, was recollected, all were filled with awful astonishment; and the devout perceived in the transaction, the hand of Providence guiding America to independence.

The thanks of congress were voted to the three militia men^[48] who had rendered this invaluable service; and a silver medal, with an inscription expressive of their fidelity and patriotism, was directed to be presented to each of them. In addition to this flattering testimonial of their worth, and as a farther evidence of national gratitude, a resolution was passed granting to each, two hundred dollars per annum during life, to be paid in specie or an equivalent in current money.

The efforts of General Washington to obtain a permanent military force, or its best substitute, a regular system for filling the vacant ranks with draughts who should join the army on the first day of January in each year, were still continued. Notwithstanding the embarrassments with which congress was surrounded, it is not easy to find adequate reasons for the neglect of representations so interesting, and of recommendations apparently so essential to the safety of the United States.

Parties in Congress.

Private letters disclose the fact that two parties still agitated congress. One entered fully into the views of the Commander-in-chief. The other, jealous of the army, and apprehensive of its hostility to liberty when peace should be restored, remained unwilling to give stability to its constitution by increasing the numbers who were to serve during the war. They seemed to dread the danger from the enemy to which its fluctuations would expose them, less than the danger which might be apprehended for the civil authority from its permanent character. They caught with avidity at every intelligence which encouraged the flattering hope of a speedy peace,^[49] but entered reluctantly into measures founded on the supposition that the war might be of long duration. Perfectly acquainted with the extent of the jealousies entertained on this subject, although, to use his own expressions to a friend, "Heaven knows how unjustly," General Washington had foreborne to press the necessity of regular and timely reinforcements to his army so constantly and so earnestly as his own judgment directed. But the experience of every campaign furnished such strong additional evidences of

the impolicy and danger of continuing to rely on temporary expedients, and the uncertainty of collecting a force to co-operate with the auxiliaries from France was so peculiarly embarrassing, that he at length resolved to conquer the delicacy by which he had been in some degree restrained, and to open himself fully on the subject which he deemed more essential than any other to the success of the war.

August.

In August, while looking anxiously for such a reinforcement to the Chevalier de Tunay as would give him the command of the American seas, and while uncertain whether the campaign might not pass away without giving a single advantage promised at its opening, he transmitted a letter to congress, fully and freely imparting his sentiments on the state of things.

Letter of General Washington on American affairs.

As this letter contains an exact statement of American affairs, according to the view taken of them by General Washington, and a faithful picture of the consequences of the ruinous policy which had been pursued, drawn by the man best acquainted with them, copious extracts from it will, at least, be excused.

After examining the sources of supplies for the campaign, he proceeds to say—"But while we are meditating offensive operations which may not be undertaken at all, or, being undertaken, may fail, I am persuaded congress are not inattentive to the present state of the army, and will view in the same light with me the necessity of providing in time against a period (the first of January) when one half of our present force will dissolve. The shadow of an army that will remain, will have every motive, except mere patriotism, to abandon the service, without the hope which has hitherto supported them, of a change for the better. This is almost extinguished now, and certainly will not outlive the campaign, unless it finds something more substantial to rest upon. This is a truth of which every spectator of the distresses of the army can not help being convinced. Those at a distance may speculate differently; but on the spot an opinion to the contrary, judging human nature on the usual scale, would be chimerical.

"The honourable the committee of congress, who have seen and heard for themselves, will add their testimony to mine; and the wisdom and justice of congress can not fail to give it the most serious attention. To me it will appear miraculous, if our affairs can maintain themselves much longer in

their present train. If either the temper or the resources of the country will not admit of an alteration, we may expect soon to be reduced to the humiliating condition of seeing the cause of America, in America, upheld by foreign arms. The generosity of our allies has a claim to all our confidence, and all our gratitude; but it is neither for the honour of America, nor for the interest of the common cause, to leave the work entirely to them."

He then reviewed the resources of Great Britain; and, after showing her ability still to prosecute the war, added—"The inference from these reflections is, that we can not count upon a speedy end of the war; and that it is the true policy of America not to content herself with temporary expedients, but to endeavour, if possible, to give consistency and solidity to her measures. An essential step to this will be immediately to devise a plan and put it in execution, for providing men in time to replace those who will leave us at the end of the year; and for subsisting and for making a reasonable allowance to the officers and soldiers.

"The plan for this purpose ought to be of general operation, and such as will execute itself. Experience has shown that a peremptory draught will be the only effectual one. If a draught for the war or for three years can be effected, it ought to be made on every account; a shorter period than a year is inadmissible.

"To one who has been witness to the evils brought upon us by short enlistments, the system appears to have been pernicious beyond description; and a crowd of motives present themselves to dictate a change. It may easily be shown that all the misfortunes we have met with in the military line, are to be attributed to this cause.

"Had we formed a permanent army in the beginning, which, by the continuance of the same men in service, had been capable of discipline, we never should have to retreat with a handful of men across the Delaware in 1776, trembling for the fate of America, which nothing but the infatuation of the enemy could have saved; we should not have remained all the succeeding winter at their mercy, with sometimes scarcely a sufficient body of men to mount the ordinary guards, liable at every moment to be dissipated, if they had only thought proper to march against us; we should not have been under the necessity of fighting at Brandywine with an unequal number of raw troops, and afterwards of seeing Philadelphia fall a

prey to a victorious army; we should not have been at Valley Forge with less than half the force of the enemy, destitute of every thing in a situation neither to resist nor to retire; we should not have seen New York left with a handful of men, yet an overmatch for the main army of these states, while the principal part of their force was detached for the reduction of two of them; we should not have found ourselves this spring so weak as to be insulted by five thousand men, unable to protect our baggage and magazines, their security depending on a good countenance, and a want of enterprise in the enemy; we should not have been, the greatest part of the war, inferior to the enemy, indebted for our safety to their inactivity, enduring frequently the mortification of seeing inviting opportunities to ruin them, pass unimproved for want of a force which the country was completely able to afford; to see the country ravaged, our towns burnt, the inhabitants plundered, abused, murdered, with impunity from the same cause."

After presenting in detail the embarrassments under which the civil departments of the army also had laboured, in consequence of the expensiveness and waste inseparable from its temporary character, he proceeded to observe—"There is every reason to believe, that the war has been protracted on this account. Our opposition being less, made the successes of the enemy greater. The fluctuation of the army kept alive their hopes; and at every period of a dissolution of a considerable part of it, they have flattered themselves with some decisive advantages. Had we kept a permanent army on foot, the enemy could have had nothing to hope for, and would in all probability have listened to terms long since. If the army is left in its present situation, it must continue an encouragement to the efforts of the enemy; if it is put in a respectable one, it must have a contrary effect; and nothing I believe will tend more to give us peace the ensuing winter. Many circumstances will contribute to a negotiation. An army on foot, not only for another campaign, but for several campaigns, would determine the enemy to pacific measures, and enable us to insist upon favourable terms in forcible language. An army insignificant in numbers, dissatisfied, crumbling to pieces, would be the strongest temptation they could have to try the experiment a little longer. It is an old maxim that the surest way to make a good peace is to be well prepared for war.

"I can not forbear returning in this place to the necessity of a more ample and equal provision for the army. The discontents on this head have been

gradually matured to a dangerous extremity. There are many symptoms that alarm and distress me. Endeavours are using to unite both officers and men in a general refusal of the money, and some corps now actually decline receiving it. Every method has been taken to counteract it, because such a combination in the army would be a severe blow to our declining currency. The most moderate insist that the accounts of depreciation ought to be liquidated at stated periods, and certificates given by government for the sums due. They will not be satisfied with a general declaration that it shall be made good.

"I have often said, and I beg leave to repeat it, the half pay provision is in my opinion the most politic and effectual that can be adopted. On the whole, if something satisfactory be not done, the army (already so much reduced in officers by daily resignations as not to have a sufficiency to do the common duties of it) must either cease to exist at the end of the campaign, or will exhibit an example of more virtue, fortitude, self-denial, and perseverance, than has perhaps ever yet been paralleled in the history of human enthusiasm.

"The dissolution of the army is an event that can not be regarded with indifference. It would bring accumulated distress upon us; it would throw the people of America into a general consternation; it would discredit our cause throughout the world; it would shock our allies. To think of replacing the officers with others is visionary. The loss of the veteran soldiers could not be replaced. To attempt to carry on the war with militia against disciplined troops, will be to attempt what the common sense and common experience of mankind will pronounce to be impracticable. But I should fail in respect to congress, to dwell on observations of this kind in a letter to them."

Proceedings of Congress respecting the army.

At length the committee presented their report, reorganizing the regiments, reducing their number, and apportioning on the several states their respective numbers to complete the establishment. This report, being approved by congress, was transmitted to the Commander-in-chief for his consideration. By this arrangement, the states were required to recruit their quotas for the war, and to bring them into the field by the first of January; but, if in any state, it should be found impracticable to raise the men for the

war by the first day of December, it was recommended to such state to supply the deficiency with men engaged to serve for not less than one year.

In compliance with the request of congress, General Washington submitted his objections to the plan, in a long and respectful letter.

He recommended that legionary corps should be substituted in the place of regiments entirely of cavalry. He thought it more adviseable that the infantry attached to the cavalry should compose a part of the corps permanently, than that it should be drawn occasionally from the regiments of foot.

The reduction in the number of regiments appeared to him a subject of great delicacy. The last reduction, he said, had occasioned many to quit the service, independent of those who were discontinued; and had left durable seeds of discontent among those who remained. The general topic of declamation was, that it was as hard as dishonourable, for men who had made every sacrifice to the service, to be turned out of it, at the pleasure of those in power, without an adequate compensation. In the maturity to which their uneasiness had now risen from a continuance of misery, they would be still more impatient under an attempt of a similar nature.

It was not, he said, the intention of his remarks to discourage a reform, but to show the necessity of guarding against the ill effects which might otherwise attend it, by making an ample provision both for the officers who should remain in the service, and for those who should be reduced. This should be the basis of the plan; and without it, the most mischievous consequences were to be apprehended. He was aware of the difficulty of making a present provision sufficiently ample to give satisfaction; but this only proved the expediency of making one for the future, and brought him to that which he had so frequently recommended as the most economical, the most politic, and the most effectual, that could be devised; this was half pay for life. Supported by the prospect of a permanent provision, the officers would be tied to the service, and would submit to many momentary privations, and to those inconveniences, which the situation of public affairs rendered unavoidable. If the objection drawn from the principle that the measure was incompatible with the genius of the government should be thought insurmountable, he would propose a substitute, less eligible in his opinion, but which would answer the purpose. It was to make the present half pay for seven years, whole pay for the same period. He also

recommended that depreciation on the pay received, should be made up to the officers who should be reduced.

No objection occurred to the measure now recommended, but the expense it would occasion. In his judgment, whatever would give consistency to the military establishment, would be ultimately favourable to economy. It was not easy to be conceived, except by those who had witnessed it, what an additional waste and increased consumption of every thing, and consequently what an increase of expense, resulted from laxness of discipline in an army; and where officers thought they did a favour by holding their commissions, and the men were continually fluctuating, to maintain discipline was impossible. Nothing could be more obvious to him than that a sound military establishment and real economy were the same. That the purposes of war would be greatly promoted by it was too clear to admit of argument. He objected also to the mode of effecting the reduction. This was by leaving it to the several states to select the officers who should remain in service. He regretted that congress had not thought proper to retain the reduction and incorporation of the regiments under their own discretion. He regretted that it should be left to the states, not only because it was an adherence to the state system, which in the arrangements of the army, he disapproved; but because also he feared it would introduce much confusion and discontent in a business which ought to be conducted with the greatest circumspection. He feared also that professing to *select* the officers to be retained in service would give disgust both to those who should be discontinued, and to those who should remain. The former would be sent away under the public stigma of inferior merit, and the latter would feel no pleasure in a present preference, when they reflected that, at some future period, they might experience a similar fate.

He wished with much sincerity that congress had been pleased to make no alteration in the term of service, but had confined their requisition to men who should serve for the war, to be raised by enlistment, draught, or assessment, as might be found necessary. As it now stood, there would be very few men for the war, and all the evils of temporary engagements would still be felt. In the present temper of the states, he entertained the most flattering hopes that they would enter on vigorous measures to raise an army for the war, if congress appeared decided respecting it; but if they held up a different idea as admissible, it would be again concluded that they did not think an army for the war essential. This would encourage the

opposition of men of narrow, interested, and feeble tempers, and enable them to defeat the primary object of the revolution.

This letter was taken into consideration; and the measures it recommended were pursued in almost every particular. Even the two great principles which were viewed with most jealousy,—an army for the war, and half pay for life,—were adopted. It would have greatly abridged the calamities of America, could these resolutions have been carried into execution. Every effort for the purpose was made by the Commander-in-chief.

To place the officers of the army in a situation which would render their commissions valuable, and hold out to them the prospect of a comfortable old age, in a country saved by their blood, their sufferings, and the labours of their best years, was an object which had always been dear to the heart of General Washington, and he had seized every opportunity to press it on congress. That body had approached it slowly, taking step after step with apparent reluctance, as the necessity of the measure became more and more obvious.

The first resolution on the subject, passed in May, 1778, allowed to all military officers who should continue in service during the war, and not hold any office of profit under the United States or any of them, half pay for seven years, if they lived so long. At the same time the sum of eighty dollars, in addition to his pay, was granted to every non-commissioned officer and soldier who should serve to the end of the war. In 1779 this subject was resumed. After much debate, its farther consideration was postponed; and the officers and soldiers were recommended to the attention of their several states, with a declaration that their patriotism, valour, and perseverance, in defence of the rights and liberties of their country, had entitled them to the gratitude, as well as the approbation of their fellow citizens.

In 1780, a memorial from the general officers, depicting in strong terms the situation of the army, and requiring present support, and some future provision, was answered by a reference to what had been already done, and by a declaration "That patience, self-denial, fortitude and perseverance, and the cheerful sacrifice of time and health, are necessary virtues which both the citizen and soldier are called to exercise, while struggling for the liberties of their country; and that moderation, frugality, and temperance,

must be among the chief supports, as well as the brightest ornaments of that kind of civil government which is wisely instituted by the several states in this Union."

This philosophic lecture on the virtues of temperance to men who were often without food, and always scantily supplied, was still calculated to assuage irritations fomented by the neglect which was believed to have been sustained. In a few days afterwards, the subject was brought again before congress, and a more conciliating temper was manifested. The odious restriction, limiting the half pay for seven years to those who should hold no post of profit under the United States or any of them, was removed; and the bounty allowed the men was extended to the widows and orphans of those who had died or should die in the service; at length, the vote passed which has been stated, allowing half pay for life to all officers who should serve in the armies of the United States to the end of the war.

Resolutions were also passed, recommending it to the several states to make up the depreciation on the pay which had been received by the army; and it was determined that their future services should be compensated in the money of the new emission, the value of which, it was supposed, might be kept up by taxes and by loans.

While the government of the Union was thus employed in maturing measures for the preservation of its military establishment, the time for action passed away without furnishing any material event. The hostile armies continued to watch each other until the season of the year forced them out of the field.

Just before retiring into winter quarters, a handsome enterprise was executed by Major Talmadge, of Colonel Sheldon's regiment of light dragoons. That gentleman had been generally stationed on the lines, on the east side of the North River, and had been distinguished for the accuracy of his intelligence.

He was informed that a large magazine of forage had been collected at Coram, on Long Island, which was protected by the militia of the country, the cruisers in the Sound, and a small garrison in its neighbourhood.

Major Talmadge destroys the British stores at Coram.

At the head of a detachment of eighty dismounted dragoons, under the command of Captain Edgar, and of eight or ten who were mounted, he passed the Sound where it was twenty miles wide, marched across the

island in the night, and so completely surprised the fort, that his troops entered the works on three different sides before the garrison was prepared to resist them. The British took refuge in two houses connected with the fortifications, and commenced a fire from the doors and windows. Nov. 21. These were instantly forced open; and the whole party, amounting to fifty-four, among whom were a lieutenant colonel, captain, and subaltern, were killed or taken. Stores to a considerable amount were destroyed, the fort was demolished, and the magazines were consumed by fire. The objects of the expedition being accomplished, Major Talmadge recrossed the Sound without having lost a man. On the recommendation of General Washington, congress passed a resolution, expressing a high sense of the merit of those engaged in the expedition.

December.

The army retires into winter quarters.

No objects for enterprise presenting themselves, the troops were placed in winter quarters early in December. The Pennsylvania line was stationed near Morristown; the Jersey line about Pompton, on the confines of New York and New Jersey; and the troops belonging to the New England states, at West Point, and in its vicinity, on both sides the North River. The line of the state of New York remained at Albany, to which place it had been detached for the purpose of opposing an invasion from Canada.

Irruption of Major Carlton into New York.

Major Carlton, at the head of one thousand men, composed of Europeans, Indians, and Tories, had made a sudden irruption into the northern parts of New York, and taken forts Ann and George, with their garrisons. At the same time, Sir John Johnson, at the head of a corps composed of the same materials, appeared on the Mohawk. Several sharp skirmishes were fought in that quarter with the continental troops, and a regiment of new levies, aided by the militia of the country. General Clinton's brigade was ordered to their assistance; but before he could reach the scene of action, the invading armies had retired, after laying waste the whole country through which they passed.

While the disorder of the American finances, the exhausted state of the country, and the debility of the government, determined Great Britain to persevere in offensive war against the United States, by keeping alive her hopes of conquest, Europe assumed an aspect not less formidable to the

permanent grandeur of that nation, than hostile to its present views. European transactions. In the summer of 1780, Russia, Sweden, and Denmark, entered into the celebrated compact, which has been generally denominated "THE ARMED NEUTRALITY." Holland had also declared a determination to accede to the same confederacy; and it is not improbable that this measure contributed to the declaration of war which was made by Great Britain against that power towards the close of the present year.

The long friendship which had existed between the two nations was visibly weakened from the commencement of the American war. Holland was peculiarly desirous of participating in that commerce which the independence of the United States would open to the world: and, from the commencement of hostilities, her merchants, especially those of Amsterdam, watched the progress of the war with anxiety, and engaged in speculations which were profitable to themselves and beneficial to the United States. The remonstrances made by the British minister at the Hague against this conduct, were answered in the most amicable manner by the government, but the practice of individuals continued the same.

When the war broke out between France and England, a number of Dutch vessels trading with France, laden with materials for shipbuilding, were seized, and carried into the ports of Great Britain, although the existing treaties between the two nations were understood to exclude those articles from the list of contraband of war. The British cabinet justified these acts of violence, and persisted in refusing to permit naval stores to be carried to her enemy in neutral bottoms. This refusal, however, was accompanied with friendly professions, with an offer to pay for the vessels and cargoes already seized, and with proposals to form new stipulations for the future regulation of that commerce.

The States General refused to enter into any negotiations for the modification of subsisting treaties; and the merchants of all the great trading towns, especially those of Amsterdam, expressed the utmost indignation at the injuries they had sustained. In consequence of this conduct, the British government required those succours which were stipulated in ancient treaties, and insisted that the *casus fœderis* had now occurred. Advantage was taken of the refusal of the States General to comply with this demand, to declare the treaties between the two nations at an end.

The temper produced by this state of things, inclined Holland to enter into the treaty for an armed neutrality; and, in November, the Dutch government acceded to it. Some unknown causes prevented the actual signature of the treaty on the part of the States General, until a circumstance occurred which was used for the purpose of placing them in a situation not to avail themselves of the aid stipulated by that confederacy to its members.

While Mr. Lee, one of the ministers of the United States, was on a mission to the courts of Vienna and Berlin, he fell in company with a Mr. John de Neufville, a merchant of Amsterdam, with whom he held several conversations on the subject of a commercial intercourse between the two nations, the result of which was, that the plan of an eventual commercial treaty was sketched out, as one which might thereafter be concluded between them. This paper had received the approbation of the Pensionary Van Berkel, and of the city of Amsterdam, but not of the States General.

Mr. Henry Laurens, late president of congress, was deputed to the States General with this plan of a treaty, for the double purpose of endeavouring to complete it, and of negotiating a loan for the use of his government. On the voyage he was captured by a British frigate; and his papers, which he had thrown overboard, were rescued from the waves by a British sailor. Among them was found the plan of a treaty which has been mentioned, and which was immediately transmitted to Sir Joseph Yorke, the British minister at the Hague, to be laid before the government.

The explanations of this transaction not being deemed satisfactory by the court of London, Sir Joseph Yorke received orders to withdraw from the Hague, soon after which war was proclaimed against Holland.

This bold measure, which added one of the first maritime powers in Europe to the formidable list of enemies with whom Britain was already encompassed, was perhaps, not less prudent than courageous.

There are situations, to which only high minded nations are equal, in which a daring policy will conduct those who adopt it, safely through the very dangers it appears to invite; dangers which a system suggested by a timid caution might multiply instead of avoiding. The present was, probably, one of those situations. Holland was about to become a member of the armed neutrality, after which her immense navigation would be employed, unmolested, in transporting the property of the enemies of

Britain, and in supplying them with all the materials for shipbuilding, or the whole confederacy must be encountered.

America, however, received with delight the intelligence that Holland also was engaged in the war; and founded additional hopes of its speedy termination on that event.

CHAPTER IX.

Transactions in South Carolina and Georgia.... Defeat of Ferguson.... Lord Cornwallis enters North Carolina.... Retreats out of that state.... Major Wemyss defeated by Sumpter.... Tarlton repulsed.... Greene appointed to the command of the Southern army.... Arrives in camp.... Detaches Morgan over the Catawba.... Battle of the Cowpens.... Lord Cornwallis drives Greene through North Carolina into Virginia.... He retires to Hillsborough.... Greene recrosses the Dan.... Loyalists under Colonel Pyle cut to pieces.... Battle of Guilford.... Lord Cornwallis retires to Ramsay's mills.... To Wilmington.... Greene advances to Ramsay's mills.... Determines to enter South Carolina.... Lord Cornwallis resolves to march to Virginia.

1780.

In the South, Lord Cornwallis, after having nearly demolished the American army at Camden, found himself under the necessity of suspending, for a few weeks, the new career of conquest on which he had intended to enter. His army was enfeebled by sickness as well as by action; the weather was intensely hot, and the stores necessary for an expedition into North Carolina had not been brought from Charleston. Transactions in South Carolina and Georgia. In addition, a temper so hostile to the British interests had lately appeared in South Carolina as to make it unsafe to withdraw any considerable part of his force from that state, until he should subdue the spirit of insurrection against his authority. Exertions were made in other parts of the state, not inferior to those of Sumpter in the north-west. Colonel Marion, who had been compelled by the wounds he received in Charleston to retire into the country, had been promoted by Governor Rutledge to the rank of a brigadier general. As the army of Gates approached South Carolina, he had entered the north-eastern parts of that state with only sixteen men; had penetrated into the country as far as the Santee; and was successfully rousing the well-affected inhabitants to arms, when the defeat of the 16th of August chilled the growing spirit of resistance which he had contributed to increase.

With the force he had collected, he rescued about one hundred and fifty continental troops who had been captured at Camden, and were on their way to Charleston. Though compelled, for a short time, to leave the state, he soon returned to it, and at the head of a few spirited men, made repeated excursions from the swamps and marshes in which he concealed himself, and skirmished successfully with the militia who had joined the British standard, and the small parties of regulars by whom they were occasionally supported.

His talents as a partisan, added to his knowledge of the country, enabled him to elude every attempt to seize him; and such was his humanity as well as respect for the laws, that no violence or outrage was ever attributed to the party under his command.

The interval between the victory of the 16th of August, and the expedition into North Carolina, was employed in quelling what was termed the spirit of revolt in South Carolina. The efforts of the people to recover their independence were considered as new acts of rebellion, and were met with a degree of severity which policy was supposed to dictate, but which gave a keener edge to the resentments which civil discord never fails to engender. Several of the most active militia men who had taken protections as British subjects, and entered into the British militia, having been afterwards found in arms, and made prisoners at Camden, were executed as traitors. Orders were given to officers commanding at different posts to proceed in the same manner against persons of a similar description; and these orders were, in many instances, carried into execution. A proclamation was issued for sequestering the estates of all those inhabitants of the province, not included in the capitulation of Charleston, who were in the service, or acting under the authority of Congress, and of all those who, by an open avowal of what were termed rebellious principles, or by other notorious acts should manifest a wicked and desperate perseverance in opposing the re-establishment of royal authority.[\[50\]](#)

While taking these measures to break the spirit of independence, Lord Cornwallis was indefatigable in urging his preparations for the expedition into North Carolina.

The day after the battle near Camden, emissaries had been despatched into that state for the purpose of inviting the friends of the British government to take up arms. Meanwhile the utmost exertions were

continued to embody the people of the country as a British militia; and Major Ferguson was employed in the district of Ninety Six, to train the most loyal inhabitants, and to attach them to his own corps.^[51] After being employed for some time in Ninety Six, he was directed to enter the western parts of North Carolina, for the purpose of embodying the royalists in that quarter.

The route marked out for the main army was from Camden, through the settlement of the Waxhaws to Charlottestown, in North Carolina. On the 8th of September Lord Cornwallis moved from Camden, and reached Charlotte late in that month, where he expected to be joined by Ferguson. But in attempting to meet him, Ferguson was arrested by an event as important as it was unexpected.

Colonel Clarke, a refugee from Georgia, had formed a plan for the reduction of Augusta, which was defended only by a few provincials, under the command of Lieutenant Colonel Brown. September. About the time Lord Cornwallis commenced his march from Camden, Clarke advanced against Augusta, at the head of a body of irregulars whom he had collected in the frontiers of North and South Carolina, and invested that place. Brown made a vigorous defence; and the approach of Lieutenant Colonel Cruger with a reinforcement from Ninety Six, compelled Clarke to relinquish the enterprise, and to save himself by a rapid retreat. Intelligence of the transactions at Augusta was given to Ferguson, who, to favour the design of intercepting Clarke, moved nearer the mountains, and remained longer in that country than had been intended. This delay proved fatal to him. It gave an opportunity to several volunteer corps to unite, and to constitute a formidable force. The hardy mountaineers inhabiting the extreme western parts of Virginia and North Carolina, assembled on horseback with their rifles, under Colonels Campbell, M'Dowell, Cleveland, Shelby, and Sevier, and moved with their accustomed velocity towards Ferguson. On receiving notice of their approach, that officer commenced his march for Charlotte, despatching, at the same time, different messengers to Lord Cornwallis with information of his danger. These messengers being intercepted, no movement was made to favour his retreat.

When within about sixteen miles of Gilbert-town, where Ferguson was then supposed to lie, Colonel M'Dowell deputed to Gates with a request that he would appoint a general officer to command them; and, in the mean

time, Colonel Campbell of Virginia was chosen for that purpose. On reaching Gilbert-town, and finding that the British had commenced their retreat, it was determined to follow them with the utmost celerity. At the Cowpens, this party was joined by Colonels Williams, Tracy, and Branan, of South Carolina, with about four hundred men, who also gave information respecting the distance and situation of their enemy. About nine hundred choice men were selected, by whom the pursuit was continued through the night, and through a heavy rain; and, the next day, about three in the afternoon, they came within view of Ferguson, who, finding that he must be overtaken, had determined to await the attack on King's mountain, and was encamped on its summit,—a ridge five or six hundred yards long, and sixty or seventy wide.

October 7.

The Americans, who had arranged themselves into three columns, the right commanded by Colonel Sevier and Major Winston, the centre by Colonels Campbell and Shelby, and the left by Colonels Cleveland and Williams, immediately rushed to the assault. The attack was commenced by the centre, while the two wings gained the flanks of the British line; and, in about five minutes, the action became general. Ferguson made several impetuous charges with the bayonet, which, against riflemen, were necessarily successful. But, before any one of them could completely disperse the corps against which it was directed, the heavy and destructive fire of the others, who pressed him on all sides, called off his attention to other quarters, and the broken corps was rallied, and brought back to the attack.

In the course of these successive repulses, the right and centre had become intermingled, and were both, by one furious charge of the bayonet, driven almost to the foot of the mountain. With some difficulty they were rallied and again brought into the action; upon which the British, in turn, gave way, and were driven along the summit of the ridge, on Cleveland and Williams, who still maintained their ground on the left. Defeat of Ferguson. In this critical state of the action, Ferguson received a mortal wound, and instantly expired. The courage of his party fell with him, and quarter was immediately demanded.[\[52\]](#) The action continued rather more than an hour.

In this sharp action one hundred and fifty of Ferguson's party were killed on the spot, and about the same number were wounded. Eight hundred and ten, of whom one hundred were British troops, were made prisoners, and fifteen hundred stand of excellent arms were taken.

The Americans fought under cover of trees, and their loss was inconsiderable; but among the slain was Colonel Williams, who was greatly and justly lamented. As cruelty generally begets cruelty, the example set by the British at Camden was followed, and ten of the most active of the royalists were selected from the prisoners, and hung upon the spot. The victorious mountaineers, having accomplished the object for which they assembled, returned to their homes.

Lord Cornwallis retreats out of North Carolina.

The destruction of this party arrested the progress of Lord Cornwallis in North Carolina, and inspired serious fears for the posts in his rear. He retreated to Wynnsborough, between Camden and Ninety Six, where he waited for reinforcements from New York.

The victory obtained on the 16th of August having suggested views of more extensive conquest in the south, Sir Henry Clinton had determined to send a large reinforcement to the southern army. In the opinion that Lord Cornwallis could meet with no effectual resistance in the Carolinas, he had ordered the officer commanding this reinforcement to enter the Chesapeake in the first instance, and to take possession of the lower parts of Virginia, after which he was to obey the orders he should receive from Lord Cornwallis, to whom a copy of his instructions had been forwarded.

The detachment amounted to near three thousand men, under the command of General Leslie. It sailed on the 6th of October, and, entering James River after a short passage, took possession of the country on the south side as high as Suffolk. After a short time, Leslie drew in his outposts, and began to fortify Portsmouth. At this place he received orders from Lord Cornwallis to repair to Charleston by water.

While Cornwallis waited at Wynnsborough for this reinforcement, the light corps of his army were employed in suppressing the parties which were rising in various quarters of the country, in opposition to his authority. Marion had become so formidable as to endanger the communication between Camden and Charleston. Tarlton was detached against him, and Marion was under the necessity of concealing himself in the swamps. From

the unavailing pursuit of him through marshes which were scarcely penetrable, Tarlton was called to a different quarter, where an enemy supposed to be entirely vanquished, had reappeared in considerable force.

Sumpter had again assembled a respectable body of mounted militia, at the head of which he advanced towards the posts occupied by the British. On receiving intelligence of his approach, Earl Cornwallis formed a plan for surprising him in his camp on Broad River, the execution of which was committed to Major Wemyss. That officer marched from Wynnsborough at the head of a regiment of infantry and about forty dragoons, reached the camp of Sumpter several hours before day, and immediately charged the out piquet, which made but a slight resistance. Major Wemyss attacks and is defeated by Sumpter. Only five shots are said to have been fired, but from these Wemyss received two dangerous wounds which disabled him from the performance of his duty. The assailants fell into confusion, and were repulsed with the loss of their commanding officer and about twenty men. After this action, Sumpter crossed Broad River, and, having formed a junction with Clarke and Branan, threatened Ninety Six.

Alarmed for the safety of that post, Earl Cornwallis recalled Tarlton, and ordered him to proceed against Sumpter. So rapid was his movement that he had nearly gained the rear of his enemy before notice of his return was received. In the night preceding the day on which he expected to effect his purpose, a deserter apprised Sumpter of the approaching danger, and that officer began his retreat. Tarlton, pursuing with his usual rapidity, overtook the rear guard at the ford of the Ennoree, and cut it to pieces; after which, fearing that Sumpter would save himself by passing the Tyger, he pressed forward, with, as he states, about two hundred and eighty cavalry and mounted infantry, and, in the afternoon, came within view of the Americans, who were arranged in order for battle.

Sumpter had reached the banks of the Tyger, when the firing of his videttes announced the approach of his enemy. He immediately posted his troops to great advantage on a steep eminence, having their rear and part of their right flank secured by the river, and their left covered by a barn of logs, into which a considerable number of his men were thrown.

Tarlton, without waiting for his infantry, or for a field piece left with them in his rear, rushed to the charge with his usual impetuosity. After several ineffectual attempts to dislodge the Americans, he retired from the

field with great precipitation and disorder, leaving ninety-two dead, and one hundred wounded.

After remaining in possession of the ground for a few hours, Sumpter, who was severely wounded in the action, crossed the Tyger, after which his troops dispersed. His loss was only three killed, and four wounded.

Availing himself of the subsequent retreat and dispersion of the American militia, Tarlton denominated this severe check a victory; while congress, in a public resolution, voted their thanks to General Sumpter and the militia he commanded, for this and other services which had been previously rendered.

The shattered remains of the army defeated near Camden, had been slowly collected at Hillsborough, and great exertions were made to reorganize and reinforce it. The whole number of continental troops in the southern army amounted to about fourteen hundred men.

On receiving intelligence that Lord Cornwallis had occupied Charlotte, Gates detached Smallwood to the Yadkin, with directions to post himself at the ford of that river, and to take command of all the troops in that quarter of the country. The more effectually to harass the enemy, a light corps was selected from the army and placed under the command of Morgan, now a brigadier general.

As Lord Cornwallis retreated, Gates advanced to Charlotte, Smallwood encamped lower down the Catawba on the road to Camden; and Morgan was pushed forward some distance in his front. In the expectation that farther active operations would be postponed until the spring, Gates intended to pass the winter in this position. Such was the arrangement of the troops when their general was removed.

November 5.

On the 5th of November, without any previous indications of dissatisfaction, congress passed a resolution requiring the Commander-in-chief to order a court of inquiry on the conduct of General Gates as commander of the southern army, and to appoint some other officer to that command, until the inquiry should be made.

Greene appointed to the command of the southern army.

Washington, without hesitation, selected Greene for that important and difficult service. In a letter to congress recommending him to their support,

he mentioned General Greene as "an officer in whose abilities, fortitude, and integrity, from a long and intimate experience of them, he had the most entire confidence." To Mr. Matthews, a delegate from South Carolina, he said, "You have your wish in the officer appointed to the southern command. I think I am giving you a general; but what can a general do without men, without arms, without clothing, without stores, without provisions?" About the same time the legion of Lee was ordered into South Carolina.

Arrives in camp.

Greene hastened to the army he was to command; and, on the second of December, reached Charlotte, then its head quarters. Soon after his arrival in camp, he was gratified with the intelligence of a small piece of good fortune obtained by the address of Lieutenant Colonel Washington.

Smallwood, having received information that a body of royal militia had entered the country in which he foraged, for the purpose of intercepting his wagons, detached Morgan and Washington against them. Intelligence of Morgan's approach being received, the party retreated; but Colonel Washington, being able to move with more celerity than the infantry, resolved to make an attempt on another party, which was stationed at Rugely's farm, within thirteen miles of Camden. He found them posted in a logged barn, strongly secured by abattis, and inaccessible to cavalry. Force being of no avail, he resorted to the following stratagem. Having painted the trunk of a pine, and mounted it on a carriage so as to resemble a field piece, he paraded it in front of the enemy, and demanded a surrender. The whole party, consisting of one hundred and twelve men, with Colonel Rugely at their head, alarmed at the prospect of a cannonade, surrendered themselves prisoners of war.[\[53\]](#)

Detaches Morgan over the Catawba.

To narrow the limits of the British army, and to encourage the inhabitants, Greene detached Morgan west of the Catawba, with orders to take a position near the confluence of the Pacolet with the Broad River. His party consisted of rather more than three hundred chosen continental troops, commanded by Lieutenant Colonel Howard, of Maryland, of Washington's regiment of light dragoons, amounting to about eighty men, and of two companies of militia from the northern and western parts of Virginia commanded by Captains Triplet and Taite, which were composed almost

entirely of old continental soldiers. He was also to be joined on Broad River by seven or eight hundred volunteers and militia commanded by General Davidson, and by Colonels Clarke and Few.

After making this detachment, Greene, for the purpose of entering a more plentiful country, advanced lower down the Pedee, and encamped on its east side, opposite the Cheraw hills. Lord Cornwallis remained at Wynnsborough, preparing to commence active operations, so soon as he should be joined by Leslie.

The position he occupied on the Pedee was about seventy miles from Wynnsborough, and towards the north of east from that place. The detachment commanded by Morgan had taken post at Grindal's ford on the Pacolet, one of the south forks of Broad River, not quite fifty miles northwest of Wynnsborough. The active courage of his troops, and the enterprising temper of their commander, rendered him extremely formidable to the parties of royal militia who were embodying in that quarter of the country.

Supposing Morgan to have designs on Ninety Six, Lord Cornwallis detached Lieutenant Colonel Tarlton with his legion, part of two regiments of infantry, and a corps of artillery with two field pieces, consisting altogether of about one thousand men, across the Broad River, to cover that important post. As he lay between Greene and Morgan, he was desirous of preventing their junction, and of striking at one of them while unsupported by the other. To leave it uncertain against which division his first effort would be directed, he ordered Leslie to halt at Camden until the preparations for entering North Carolina should be completed. Having determined to penetrate into that state by the upper route, he put his army in motion and directed his course northwestward, between the Catawba and Broad Rivers. Leslie was directed to move up the banks of the former, and to join him on the march; and Tarlton was ordered to strike at Morgan. Should that officer escape Tarlton, the hope was entertained that he might be intercepted by the main army.[\[54\]](#)

High waters delayed Cornwallis and Leslie longer than had been expected; but Tarlton overcame the same obstacles, and reached Morgan before a correspondent progress was made by the other divisions.[\[55\]](#)

1781 January 14.

The combined movements of the British army were communicated to General Morgan on the 14th of January. Perceiving the insecurity of his own position, he retired across the Pacolet, the fords over which he was desirous of defending. But a passage of that river being effected at a ford about six miles below him, he made a precipitate retreat; and, on the evening of the same day, his pursuers occupied the camp he had abandoned. Morgan retired to the Cowpens, where he determined to risk a battle. Sixteenth. It was believed that he might have crossed the Broad River, or have reached a mountainous country which was also near him, before he could have been overtaken; and the superiority of his adversary was so decided as to induce his best officers to think that every effort ought to be made to avoid an engagement. But Morgan had great and just confidence in himself and in his troops; he was unwilling to fly from an enemy not so decidedly his superior as to render it madness to fight him; and he also thought that, if he should be overtaken while his men were fatigued and retreating, the probability of success would be much less than if he should exhibit the appearance of fighting from choice.

These considerations determined him to halt earlier than was absolutely necessary.[\[56\]](#)

Battle of the Cowpens.

Tarleton, having left his baggage under a strong guard, with orders not to move until break of day, recommenced the pursuit at three in the morning.

Before day, Morgan was informed of his approach, and prepared to receive him.

Although censured by many for having determined to fight, and by some for the ground he chose, all admit the judgment with which his disposition was made.

On an eminence, in an open wood, he drew up his continental troops, and Triplet's corps, deemed equal to continentals, amounting to between four and five hundred men, who were commanded by Lieutenant Colonel Howard. In their rear, on the descent of the hill, Lieutenant Colonel Washington was posted with his cavalry, and a small body of mounted Georgia militia commanded by Major M'Call, as a corps de reserve. On these two corps rested his hopes of victory, and with them he remained in person. The front line was composed entirely of militia, under the command of Colonel Pickens. Major M'Dowell, with a battalion of North Carolina

volunteers, and Major Cunningham, with a battalion of Georgia volunteers, were advanced about one hundred and fifty yards in front of this line, with orders to give a single fire as the enemy approached, and then to fall back into the intervals, which were left for them in the centre of the first line. The militia, not being expected to maintain their ground long, were ordered to keep up a retreating fire by regiments, until they should pass the continental troops, on whose right they were directed again to form. His whole force, as stated by himself, amounted to only eight hundred men.

Soon after this disposition was made, the British van appeared in sight. Confident of a cheap victory, Tarlton formed his line of battle, and his troops rushed forward with great impetuosity, shouting as they advanced.

After a single well directed fire, M'Dowell and Cunningham fell back on Colonel Pickens, who, after a short but warm conflict, retreated into the rear of the second line.[\[57\]](#) The British pressed forward with great eagerness; and, though received by the continental troops with a firmness unimpaired by the rout of the front line, continued to advance. Soon after the action with the continental troops had commenced, Tarlton ordered up his reserve. Perceiving that the enemy extended beyond him both on the right and left, and that, on the right especially, his flank was on the point of being turned, Howard ordered the company on his right to change its front, so as to face the British on that flank. From some mistake in the officer commanding this company, it fell back, instead of fronting the enemy, upon which the rest of the line, supposing a change of ground for the whole to have been directed, began to retire in perfect order. At this moment General Morgan rode up, and directed the infantry to retreat over the summit of the hill, about one hundred yards to the cavalry. This judicious but hazardous movement was made in good order, and extricated the flanks from immediate danger. Believing the fate of the day to be decided, the British pressed on with increased ardour, and in some disorder; and when the Americans halted, were within thirty yards of them. The orders then given by Howard to face the enemy were executed as soon as they were received; and the whole line poured in a fire as deadly as it was unexpected. Some confusion appearing in the ranks of the enemy, Howard seized the critical moment, and ordered a charge with the bayonet. These orders were instantly obeyed, and the British line was broken.

At the same moment the detachment of cavalry on the British right was routed by Washington. The militia of Pickens, who rode to the ground, had tied their horses in the rear of Howard's left. When the front line was broken, many of them fled to their horses, and were closely pursued by the cavalry, who, while the continental infantry were retiring, passed their flank, and were cutting down the scattered militia in their rear. Washington, who had previously ordered his men not to fire a pistol, now directed them to charge the British cavalry with drawn swords. A sharp conflict ensued, but it was not of long duration. The British were driven from the ground with considerable slaughter, and were closely pursued. Both Howard and Washington pressed the advantage they had respectively gained, until the artillery, and great part of the infantry had surrendered. So sudden was the defeat, that a considerable part of the British cavalry had not been brought into action; and, though retreating, remained unbroken. Washington, followed by Howard with the infantry, pursued them rapidly, and attacked^[58] them with great spirit; but, as they were superior to him in numbers, his cavalry received a temporary check; and in this part of the action he sustained a greater loss than in any other. But the infantry coming up to support him, Tarlton resumed the retreat.^[59]

In this engagement upwards of one hundred British, including ten commissioned officers, were killed; twenty-nine commissioned officers, and five hundred privates were made prisoners. Eight hundred muskets, two field pieces, two standards, thirty-five baggage wagons, and one hundred dragoon horses, fell into the hands of the conquerors.

Tarlton retreated towards the headquarters of Lord Cornwallis, then about twenty-five miles from the Cowpens.

This complete victory cost the Americans less than eighty men in killed and wounded.

Seldom has a battle in which greater numbers were not engaged, been so important in its consequences as that of the Cowpens. Lord Cornwallis was not only deprived of a fifth of his numbers, but lost a most powerful and active part of his army. Unfortunately, Greene was not in a condition to press the advantage. The whole southern army did not much exceed two thousand men, a great part of whom were militia.

The camp of Lord Cornwallis at Turkey Creek on the east side of Broad River, was as near as the Cowpens to the fords at which Morgan was to

cross the Catawba. Pursuit of the American army through North Carolina into Virginia. Of consequence, that officer had much cause to fear that, encumbered as he was with prisoners and military stores, he might be intercepted before he could pass that river. Comprehending the full extent of his danger, he abandoned the baggage he had taken, and leaving his wounded under the protection of a flag, detached the militia as an escort to his prisoners, and brought up the rear in person with his regulars. Passing Broad River on the evening of the day on which the battle was fought, he hastened to the Catawba, which he crossed on the 23d, at Sherald's ford, and encamped on its eastern bank.

January.

Lord Cornwallis employed the 18th in forming a junction with Leslie. Early next morning he put his army in motion, and, on the 25th, reached Ramsay's mills, where the roads taken by the two armies unite. At this place, to accelerate his future movements, he destroyed his baggage; and, after collecting a small supply of provisions, resumed the pursuit. He reached Sherald's ford in the afternoon of the 29th; and, in the night, an immense flood of rain rendered the river impassable.

January 31.

While Morgan remained on the Catawba, watching the motions of the British army, and endeavouring to collect the militia, General Greene arrived, and took command of the detachment.

In his camp on the Pedee, opposite the Cheraw hills, Greene had been joined by Lee's legion, amounting to about one hundred cavalry, and one hundred and twenty infantry. The day after his arrival, he was ordered to join Marion for the purpose of attempting to carry a British post at Georgetown, distant about seventy-five miles from the American army. The fort was surprised, but the success was only partial.

On receiving intelligence of the victory at the Cowpens, Greene detached Stevens' brigade of Virginia militia, whose terms of service were on the point of expiring, to conduct the prisoners to Charlottesville in Virginia, and turned his whole attention to the effecting of a junction between the two divisions of his army. It was principally with a view to this object that he hastened to the detachment under Morgan, leaving the other division to be commanded by General Huger.

February 1.

Early in the morning of the first of February, Lord Cornwallis forced a passage over the Catawba, at a private ford which was defended by General Davidson, with about three hundred North Carolina militia. Davidson was killed, and his troops dispersed. They were followed by Tarlton, who, hearing in the pursuit, that several bodies of militia were assembling at a tavern about ten miles from the ford, hastened to the place of rendezvous, and charging them with his usual impetuosity, broke their centre, killed some, and dispersed the whole party.

It was found impracticable to bring the militia into the field, and Huger, who had been directed to march to Salisbury, was ordered to effect a junction between the two divisions of the army at some place farther north.

Greene retreated along the Salisbury road, and, in the evening of the third, crossed the Yadkin at the trading ford. His passage of the river, then already much swollen by the rain of the preceding day, was facilitated by boats which had been previously collected. The rear guard, which, being impeded by the baggage of the whigs who fled from Salisbury did not cross till midnight, was overtaken by the van of the British army, and a skirmish ensued in which some loss was sustained, but the Americans effected the passage of the river.

February 3.

Ninth.

The rains having rendered the Yadkin unfordable, and the boats being collected on the opposite side, the pursuit was necessarily suspended; but Greene continued his march to Guilford court house where he was joined by Huger.

After some delay, and apparent hesitation respecting his movements, Lord Cornwallis marched up the Yadkin, which he crossed near its source on the morning of the eighth.

After the junction between the divisions of Huger and Morgan, the infantry of the American army, including six hundred militia, amounted to about two thousand effectives; and the cavalry to between two and three hundred. Lord Cornwallis lay twenty-five miles above them at Salem, with an army estimated from twenty-five hundred to three thousand men, including three hundred cavalry. Having failed in his attempt to prevent the junction of the two divisions of the American army, his object was to place himself between Greene and Virginia, and force that officer to a general

action before he could be joined by the reinforcements which were known to be preparing for him in that state. His situation favoured the accomplishment of this object.

Greene, on the other hand, was indefatigable in his exertions to cross the Dan without exposing himself to the hazard of a battle. To effect this object, the whole of his cavalry, with the flower of his infantry, amounting together to rather more than seven hundred men, were formed into a light corps, for the purpose of harassing and impeding the advance of the enemy, until the less active part of his force, with the baggage and military stores should be secured. Morgan being rendered incapable of duty by severe indisposition, the command of this corps was conferred on Colonels Otho and Williams.

Lord Cornwallis had been informed that it would be impossible to obtain boats at the ferries on the Dan in sufficient numbers for the transportation of the American troops before he could overtake them. And, as the river could not be forded below, he calculated with confidence on succeeding in his object by keeping above Greene, and prevent his reaching those shallow fords by which alone it was thought possible to escape into Virginia.

Dix's ferry is about fifty miles from Guilford court house, and was almost equidistant from the two armies. Considerably below, and more than seventy miles from Guilford court house, were two other ferries, Boyd's and Irwin's, which were only four miles apart. By directing their march towards the lower and more remote ferries, the distance from Lord Cornwallis was so much ground gained; and by despatching an officer with a few men to Dix's, the boats at that, and at an intermediate ferry, might be brought down the river in time to meet the army at the intended crossing place. These facts being suggested by Lieutenant Colonel Carrington, quartermaster general for the southern department, the proposition was instantly adopted, and an officer despatched to bring the boats from above down to Boyd's ferry.[\[60\]](#)

The next day both armies resumed their line of march. While General Greene pressed forward to Boyd's, Williams gained an intermediate road leading to Dix's ferry, and thus placed himself between the two armies, a small distance in front of the one, and considerably in rear of the other. Such was the boldness and activity of this corps that Lord Cornwallis found it necessary to temper the eagerness of his pursuit with caution. Yet he moved with great rapidity;—marching nearly thirty miles each day. On the morning of the third day, he attempted to surprise the Americans by

marching from the rear of his column into the road which had been taken by them, while his van proceeded slowly on its original route. Information of this movement was received, and Lieutenant Colonel Lee charged his advanced cavalry with such impetuosity, as to cut a company nearly to pieces. A captain and several privates were made prisoners. The whole British army turned into this road and followed in the rear of Williams, who used every effort to delay their march.

February 14.

The measures adopted by Greene for collecting the boats were successful; and, on the fourteenth, he effected the passage of his troops and stores.

When Williams supposed that the American army had reached the Dan, he left the road leading to Dix's ferry, and entering that which Greene had taken, urged his march to the lower ferries with the utmost celerity. Lord Cornwallis, being at length informed that Greene had taken the lower road, turned into it about the same time by a nearer way, and his front was in sight of the rear of Williams. So rapid were the movements of both armies that, in the last twenty-four hours, the Americans marched forty miles; and the rear had scarcely touched the northern bank, when the van of the enemy appeared on the opposite shore.

That General Greene was able to effect this retreat without loss, evidences the judgment with which he improved every favourable circumstance.

The exertions, the fatigues, the sufferings, and the patience of both armies, during this long, toilsome, and rapid pursuit, were extreme. Without tents, without spirits, often without provisions, and always scantily supplied with them; through deep and frozen roads, high waters, and frequent rains; each performed, without a murmur, the severe duties assigned to it. The difference between them consists only in this,—the British troops were well clothed; the Americans were almost naked, and many of them barefooted.

Great praise was bestowed by the general on his whole army; but the exertions of Colonel Williams, and of Lieutenant Colonel Carrington were particularly noticed.

Although that part of North Carolina through which the armies had passed, was well affected to the American cause, such was the rapidity with which they moved, and such the terror inspired by the presence of the

enemy, that no aid was drawn from the militia. Indeed, those who had joined the army from the more remote parts of the country could not be retained; and, when it reached the Dan, the militia attached to it did not exceed eighty men.

Having driven Greene out of North Carolina, Lord Cornwallis turned his attention to the re-establishment of regal authority in that state. Lord Cornwallis retires to Hillsborough. For this purpose, he proceeded by easy marches to Hillsborough, at that time its capital, where he erected the royal standard, and issued a proclamation inviting the inhabitants to repair to it, and to assist him in restoring the ancient government.

As soon as it was known that General Greene had entered Virginia, he was reinforced by six hundred militia drawn from the neighbouring counties, the command of which was given to General Stevens.

Apprehension that Lord Cornwallis, if left in the undisturbed possession of North Carolina, would succeed, to the extent of his hopes, in recruiting his army and procuring the submission of the people, General Greene determined, on receiving this small reinforcement, to re-enter that state; and, avoiding a general engagement, to keep the field against a superior enemy, who had demonstrated his capacity for rapid movement and hardy enterprise.

February.

Greene recrosses the Dan.

On the 18th, while Lord Cornwallis remained on the opposite shore, the legion of Lee had passed the Dan. On the 21st, the light infantry also recrossed it; and, on the 23d, they were followed by the main body of the army.

The light infantry hung round the quarters of the enemy, while the main body advanced slowly, keeping in view the roads to the western parts of the country, from which a considerable reinforcement of militia was expected.

[\[61\]](#)

General Greene was not mistaken in the consequences of leaving Lord Cornwallis in the peaceable possession of North Carolina. He was informed that seven independent companies were raised in one day. A large body of royalists had begun to embody themselves on the branches of the Haw River; and Colonel Tarlton, with the cavalry of his legion and some

infantry, was detached from Hillsborough to favour their rising, and to conduct them to the British army.

Intelligence of the movements of the loyalists and of Tarlton being received, Greene ordered Lieutenant Colonel Lee with the cavalry of his legion, and General Pickens with between three and four hundred militia, who had just formed a junction near Hillsborough, to move against both parties.

In a long lane, Lee, whose cavalry was in front of the whole detachment, came up with the royalists. He was mistaken by them for Tarlton, whom they had not yet seen, to whose encampment they were proceeding, and whose corps was then taking refreshment, not much more than a mile distant from them. Perceiving their mistake, Lee received their expressions of joy and attachment, and had just reached their colonel, to whom he was about to make communications which might have enabled him to proceed on his design of surprising Tarlton, when the infantry who followed close in his rear, were recognized by the insurgents; and a firing took place between them. Party of loyalists commanded by Colonel Pyle, cut to pieces. It being apparent that this circumstance must give the alarm to the British, Lee changed his plan, and turning on the royalists, who still supposed him to be a British officer, cut them to pieces while they were making protestations of loyalty, and asserting that they were "the very best friends of the king." More than one hundred, among whom was Colonel Pyle, their leader, fell under the swords of his cavalry. This terrible but unavoidable carnage broke, in a great measure, the spirits of the Tories in that part of the country. Some who were on their march to join the British standard, returned, determined to await the issue of events before they went too far to recede.

The hope of surprising Tarlton being thus disappointed, Pickens and Lee determined to postpone the attack till the morning; and took a position for the night between him and a corps of militia which was advancing from the western counties of Virginia under Colonel Preston. Tarlton had meditated an attempt on this corps; but at midnight, when his troops were paraded to march on this design, he received an express from Lord Cornwallis, directing his immediate return to the army. In obedience to this order, he began his retreat long before day, and crossed the Haw, just as the Americans, who followed him, appeared on the opposite bank. Two pieces of artillery commanded the ford and stopped the pursuit.

To approach more nearly the great body of the loyalists, who were settled between Haw and Deep Rivers, and to take a position in a country less exhausted than that around Hillsborough, Lord Cornwallis crossed the Haw, and encamped on Allimance creek.

As the British army retired, General Greene advanced. Not being yet in a condition to hazard an engagement, he changed his ground every night. In the course of the critical movements, which were made in order to avoid an action, and at the same time to overawe the loyalists, and maintain a position favourable to a junction with the several detachments who were marching from different quarters to his assistance, he derived immense service from a bold and active light infantry, and from a cavalry which, though inferior in numbers, was rendered superior in effect to that of his enemy, by being much better mounted. They often attacked boldly and successfully, and made sudden incursions into the country, which so intimidated the royalists, that Lord Cornwallis found it difficult to obtain intelligence. By these means, all his attempts to bring the American general to action were frustrated; and his lordship was under the necessity of keeping his men close in their quarters.

During this hazardous trial of skill, Lord Cornwallis moved out in full force towards Rudy fork, where the light infantry lay, in the hope of surprising that corps under cover of a thick fog; and probably with ulterior views against General Greene. His approach was perceived, and a sharp skirmish ensued between a part of the light infantry, and a much superior body of British troops commanded by Lieutenant Colonel Webster, in which the loss was supposed to be nearly equal. The advance of the British army obliged Williams to retire; and General Greene, by recrossing the Haw and uniting with the light infantry on its north-eastern bank at the Rocky ford, disappointed any farther designs which might have been formed against the army then under his command, or against the reinforcements which were approaching. Being thus foiled, Lord Cornwallis withdrew to Deep River, and General Greene fell back to the iron works on Troublesome creek.

At length his reinforcements, though much inferior to the number he had been taught to expect, were received, and Greene, in his turn, sought a battle. With this view, he dissolved the corps of light infantry, advanced

towards his enemy, and encamped within eight miles of him, at Guilford court house.

His army, including officers, amounted to about four thousand five hundred men, of whom not quite two thousand were continental troops and the residue consisted of Virginia and North Carolina militia. Those of Virginia were commanded by Generals Stevens and Lawson, and by Colonels Preston, Campbell, and Lynch; and those of North Carolina, by Generals Butler and Eaton.

Of the four regiments which composed the continental infantry, only one, the first of Maryland, was veteran. The other three consisted of new levies, with a few old continental soldiers interspersed among them. The legion of Lee, and the cavalry of Washington, like the first regiment of Maryland, added every advantage of experience to approved courage; and nearly all the officers commanding the new levies were veteran.

March 15.

Having determined to risk an action, Greene chose his ground with judgment. Early in the morning of the 15th, the fire of his reconnoitring parties announced the approach of the enemy on the great Salisbury road, and his army was immediately arranged in order of battle. Battle of Guilford. It was drawn up in three lines, on a large hill, surrounded by other hills, chiefly covered with trees and underwood.

The front line was composed of the two brigades of North Carolina militia, who were posted to great advantage on the edge of the wood, behind a strong rail fence, with an extensive open field in front.

The two brigades of Virginia militia formed the second line. They were drawn up entirely in the wood, about three hundred yards in rear of the first, and on either side of the great Salisbury road.

The third line was placed about three hundred yards in rear of the second, and was composed of continental troops. The Virginia brigade, commanded by General Huger, was on the right; that of Maryland, commanded by Colonel Williams, was on the left. They were drawn up obliquely, with their left diverging from the second line, and partly in open ground.

The first and third regiments of dragoons, amounting to one hundred and two troopers, Kirkwood's company of light infantry, and a regiment of militia riflemen under Colonel Lynch, formed a corps of observation for the

security of the right flank, which was commanded by Lieutenant Colonel Washington. The legion, consisting of one hundred and sixty-eight horse and foot, and a body of riflemen commanded by Colonels Campbell and Preston, formed a corps of observation for the security of the left flank, which was placed under Lieutenant Colonel Lee. The artillery was in the front line, in the great road leading through the centre, with directions to fall back as the occasion should require.

Though Lord Cornwallis was sensible that the numbers of the American army were greatly augmented by troops whose continuance in service would be of short duration, he deemed it so important to the interests of his sovereign to maintain the appearance of superiority in the field, that he was unwilling to decline the engagement now offered him.

March 14.

Fifteenth.

On the advance of Greene, therefore, he prepared for action; and early in the morning moved from his ground, determined to attack the adverse army wherever it should be found. About four miles from Guilford court house, the advance, led by Lieutenant Colonel Tarlton, fell in with Lee, and a sharp skirmish ensued, which was terminated by the appearance of such large bodies of British troops, as rendered it prudent for Lee to retire. His lordship continued to advance until he came within view of the American army. His disposition for the attack was then made in the following order.

The seventy-first British regiment, with the German regiment of Bose, led by General Leslie, and supported by the first battalion of the guards under Colonel Norton, formed the right, and the twenty-third and thirty-third regiments, led by Lieutenant Colonel Webster, and supported by Brigadier General O'Hara with the grenadiers and second battalion of the guards, formed the left. The light infantry of the guards and the Yagers, posted in the wood on the left of the artillery, and the cavalry in column behind it in the road, formed a corps of observation.[\[62\]](#)

This disposition being made, the British troops advanced to the charge, with the cool intrepidity which discipline inspires.

The North Carolina militia were not encouraged by the great advantages of their position to await the shock. They broke instantly; and, throwing away their arms and flying through the woods, sought their respective homes.

The British then advanced on the second line, which received them with more firmness; and maintained their ground for some time with great resolution. Lord Cornwallis perceiving the corps on his flanks, brought the whole of his reserved infantry into the line. On the right, General Leslie brought up the guards to oppose Lee; and, on the left, Webster changed his front to the left, and attacked Washington, while the grenadiers and second battalion of guards moved forward to occupy the place which he had just quitted.[\[63\]](#)

The ground being unfavourable to the action of horse, Washington had posted Lynch's riflemen, with whom he remained in person, on a height covered with thick woods; and had drawn up his cavalry and continental infantry about one hundred yards in their rear. On being attacked by Webster, the riflemen broke; and Washington, finding it impossible to rally them, rejoined his cavalry.

The British continuing to advance, and it being well understood that the militia could not stand the bayonet, General Stevens, who had received a ball in his right thigh, ordered his brigade to retreat. Lawson's brigade having given way a short time before, the second line was entirely routed; and the enemy advanced boldly on the third.

The several divisions of the British army had been separated from each other by extending themselves to the right and left in order to encounter the distinct corps which threatened their flanks; and by advancing in regiments at different times, as the different parts of the second line had given way. The thickness of the wood increased the difficulty of restoring order. They pressed forward with great eagerness, but with a considerable degree of irregularity.

Greene, in this state of the action, entertained the most sanguine hopes of a complete victory. His continental troops were fresh, in perfect order, and upon the point of engaging an enemy, broken into distinct parts, and probably supposing the severity of the action to be over. This fair prospect was blasted by the misconduct of a single corps. The second regiment of Maryland was posted at some distance from the first, in open ground; its left forming almost a right angle with the line, so as to present a front to any corps which might attack on that flank. The British in advancing, inclined to the right; and the second battalion of guards entered the open ground immediately after the retreat of Stevens, and rushed on the second regiment

of Maryland while the first was engaged with Webster. Without waiting to receive the charge, that regiment broke in confusion. By pursuing them, the guards were thrown into the rear of the first regiment, from which they were concealed by the unevenness of the ground, and by a skirt of wood.

Greene was himself on the left, and witnessed the misfortune without being able to remedy it. His militia being entirely routed, the flight of one-fourth of his continental troops would most probably decide the fate of the day. Unwilling to risk his remaining three regiments, only one of which could be safely relied on, without a man to cover their retreat should the event prove unfortunate, he ordered Colonel Greene of Virginia to withdraw his regiment from the line, and to take a position in the rear, for the purpose of affording a rallying point, and of covering the retreat of the two regiments which still continued in the field.

The guards were soon called from the pursuit of the second Maryland regiment, and led by Lieutenant Colonel Stuart against the first. About this time Webster, finding himself overpowered by the first Maryland regiment, then commanded by Colonel Gunby, and by Kirkwood's company and the remaining regiment of Virginia, with whom he was engaged at the same time, had in a great measure withdrawn from the action, and retired across a ravine into an adjoining wood. This critical respite enabled Gunby to provide for the danger in his rear. Facing about, he met the guards, and a very animated fire took place on both sides, during which the Americans continued to advance.

In this critical moment, Lieutenant Colonel Washington, who was drawn to this part of the field by the vivacity of the fire, made a furious charge upon the guards and broke their ranks. At this juncture, Gunby's horse was killed under him, and the command devolved on Lieutenant Colonel Howard. The regiment advanced with such rapidity that Gunby could not overtake it, and was within thirty yards of the guards when they were charged by the cavalry. Almost at the same instant the Maryland infantry rushed upon them with the bayonet, and following the horse through them, were masters of the whole battalion. In passing through it, Captain Smith of the infantry killed its commanding officer.

After passing through the guards into the open ground where the second regiment had been originally posted, Howard perceived several British columns, with some pieces of artillery. Believing his regiment to be the sole

infantry remaining in the field, he retreated in good order, and brought off some prisoners. The cavalry also retreated.[\[64\]](#)

About the same time the remaining Virginia regiment commanded by Colonel Hawes, and Kirkwood's infantry, who were still engaged with Webster, were directed by General Greene to retreat. The artillery was unavoidably abandoned; the horses which drew the pieces being killed, and the woods too thick to admit of their being dragged elsewhere than along the great road. The retreat was made in good order, and Greene, in person, brought up the rear.

Though the action was over on the right and centre, Campbell's riflemen still maintained their ground on the extreme of the American left, against General Leslie with the regiment of Bose and the first battalion of guards.

After the guards had routed the brigade commanded by Lawson, they were attacked on their right flank by the infantry of Lee's legion and by Campbell's riflemen, and were driven behind the regiment of Bose, which having moved with less impetuosity, was advancing in compact order.

This regiment sustained the American fire until Lieutenant Colonel Norton was able to rally the guards and to bring them back to the charge; after which the action was maintained with great obstinacy on both sides until the battle was decided on the right. Lieutenant Colonel Tarlton was then ordered to the support of Leslie. The legion infantry had retreated, and only a few resolute marksmen remained in the rear of Campbell who continued firing from tree to tree. Being unable to resist a charge of cavalry, they were quickly driven from the field.

Two regiments of infantry and a detachment of cavalry pursued the right wing and centre of the Americans for a short distance, but were soon ordered to return. On examining his situation, Lord Cornwallis found himself too much weakened, and his troops too much fatigued by the action, to hazard its renewal, or to continue the pursuit. General Greene halted about three miles from the field of battle, behind Rudy fork creek, for the purpose of collecting his stragglers; after which he retired about twelve miles, to the iron works on Troublesome creek, the place appointed for the rendezvous of his army in the event of its being defeated.

The returns made immediately after the action, exhibited a loss in killed, wounded and missing in the continental troops, of fourteen commissioned officers, and three hundred and twelve non-commissioned officers and

privates. Major Anderson, a valuable officer of Maryland, was killed; and General Huger, who commanded the continental troops of Virginia, was wounded.

The same return states the loss of the militia at four captains and seventeen privates killed; and, in addition to General Stevens, one major, three captains, eight subalterns, and sixty privates, were wounded. A great proportion of this part of the army was missing; but it seems to have been expected that they would either rejoin their corps, or be found at their homes.

The victory at Guilford was dearly purchased. Official accounts state the loss of the British army at five hundred and thirty-two men, among whom were several officers of high rank and distinguished merit. Lieutenant Colonel Stuart of the guards was killed, and Lieutenant Colonel Webster, who was ranked by his enemies among the best officers in the British service, was mortally wounded. This loss, when compared with the numbers brought by Lord Cornwallis into the field, was very considerable. The Americans did not compute his troops at more than two thousand rank and file, but his own accounts state them at only fourteen hundred and forty-five.

No battle in the course of the war reflects more honour on the courage of the British troops, than that of Guilford. On no other occasion have they fought with such inferiority of numbers, or disadvantage of ground. Estimating his first line at nothing, General Greene's army consisted of three thousand two hundred men, posted on ground chosen by himself; and his disposition was skilfully made.

The American general, expecting to be again attacked, prepared for another engagement. But the situation of Lord Cornwallis had become too desperate to hazard a second battle, or to maintain his position. He found himself under the necessity of retreating to a place of greater security, where provisions might be obtained.

When the expedition into North Carolina was originally meditated, Major Craig, at the head of a small military and naval force, took possession of Wilmington, a town near the mouth of Cape Fear, and extended his authority several miles up the river. Lord Cornwallis now looked to a communication with this post for aids which had become indispensable to the farther operations of the campaign.

On the third day after the battle, he broke up his encampment, and proceeded by slow and easy marches towards Cross creek.

Greene advances to Ramsay's mills with a determination to enter South Carolina.

General Greene, on hearing that the British army was retreating, resolved to follow it. The difficulty of subsisting the troops in an exhausted and hostile country; and the necessity of waiting for a supply of ammunition, impeded the march of his army so much that he did not reach Ramsay's mills until the 28th of March.

At this place Lord Cornwallis had halted, and here General Greene expected to overtake and attack him. But, on the approach of the American army, his lordship resumed his march to Cross creek, and afterwards to Wilmington, where he arrived on the 7th of April. April 7.

General Greene gave over the pursuit at Ramsay's mills. So excessive had been the sufferings of his army from the want of provisions, that many of the men fainted on the march, and it had become absolutely necessary to allow them some repose and refreshment. The expiration of the time for which the Virginia militia had been called into service, furnished an additional motive for suspending the pursuit.

At this place, the bold and happy resolution was taken to carry the war into South Carolina.

The motives which induced the adoption of this measure were stated by himself in a letter communicating his determination to the Commander-in-chief. It would compel Lord Cornwallis to follow him, and thus liberate North Carolina, or to sacrifice all his posts in the upper parts of South Carolina and Georgia.

The Southern army amounted to about seventeen hundred effectives. That of Lord Cornwallis is understood to have been still less numerous. So impotent were the means employed for the conquest and defence of states which were of immense extent and value.

This unexpected movement gave a new aspect to affairs, and produced some irresolution in the British general respecting his future operations. After weighing the probable advantages and disadvantages of following Greene into South Carolina, he decided against this retrograde movement and determined to advance into Virginia.

CHAPTER X.

Virginia invaded by Arnold.... He destroys the stores at Westham and at Richmond.... Retires to Portsmouth.... Mutiny in the Pennsylvania line.... Sir H. Clinton attempts to negotiate with the mutineers.... They compromise with the civil government.... Mutiny in the Jersey line.... Mission of Colonel Laurens to France.... Propositions to Spain.... Recommendations relative to a duty on imported and prize goods.... Reform in the Executive departments.... Confederation adopted.... Military transactions.... Lafayette detached to Virginia.... Cornwallis arrives.... Presses Lafayette.... Expedition to Charlottesville, to the Point of Fork.... Lafayette forms a junction with Wayne.... Cornwallis retires to the lower country.... General Washington's letters are intercepted.... Action near Jamestown.

1781

The evacuation of Portsmouth by Leslie afforded Virginia but a short interval of repose. So early as the 9th of December, 1780, a letter from General Washington announced to the governor that a large embarkation, supposed to be destined for the south, was about taking place at New York. On the 30th, a fleet of transports under convoy, having on board between one and two thousand men, commanded by General Arnold, anchored in Hampton road. Virginia invaded by Arnold. The troops were embarked the next day on board vessels adapted to the navigation, and proceeded up James' River under convoy of two small ships of war. On the fourth of January they reached Westover, which is distant about twenty-five miles from Richmond, the capital of Virginia.

January 2.

On receiving intelligence that a fleet had entered the capes, General Nelson was employed in raising the militia of the lower country; and on the 2d of January orders were issued to call out those above the metropolis and in its neighbourhood.

On reaching Westover, Arnold landed with the greater part of his army, and commenced his march towards Richmond. The few continental troops at Petersburg were ordered to the capital; and between one and two hundred militia, who had been collected from the town and its immediate vicinity, were directed to harass the advancing enemy.

This party was too feeble for its object; and, the day after landing at Westover, Arnold entered Richmond, where he halted with about five hundred men. The residue, amounting to about four hundred, including thirty horse, proceeded under Lieutenant Colonel Simcoe to Westham, where they burnt a valuable foundry, boring mill, powder magazine, and other smaller buildings, with military stores to a considerable amount, and many valuable papers belonging to the government, which had been carried thither as to a place of safety.

He destroys valuable stores at Richmond.

This service being effected, Lieutenant Colonel Simcoe rejoined Arnold at Richmond; where the public stores, and a large quantity of rum and salt, the property of private individuals, were entirely destroyed.

January.

Leaving Richmond the next day, the army returned to Westover^[65] on the seventh; and, re-embarking on the morning of the tenth, proceeded down the river. It was followed by the Baron Steuben, who commanded in Virginia; and, near Hoods, Colonel Clarke drew a party of them into an ambuscade, and gave them one fire with some effect; but, on its being partially returned, the Americans broke and fled in the utmost confusion.
^[66]

Arnold proceeded slowly down the river; and on the twentieth reached Portsmouth, where he manifested the intention of establishing a permanent post.

The loss of the British in this expedition, was stated in the gazette of New York, at seven killed, including one subaltern, and twenty-three wounded, among whom was one captain. This small loss was sustained almost entirely in the ambuscade near Hoods.

In the north, the year commenced with an event, which, for a time, threatened the American cause with total ruin.

The accumulated sufferings and privations of the army constitute a large and interesting part of the history of that war which gave independence to the United States. Winter, without much lessening their toils, added to those sufferings. The soldiers were perpetually on the point of starving, were often entirely without food; were exposed without proper clothing to the rigours of the season, and had now served almost twelve months without pay.

This state of things had been of such long continuance that scarcely the hope of a change could be indulged. It produced, unavoidably, some relaxation of discipline; and the murmurs, occasionally escaping the officers, sometimes heard by the soldiers, were not without their influence.

In addition to the general causes of dissatisfaction, the Pennsylvania line complained of a grievance almost peculiar to itself.

When congress directed enlistments to be made for three years, or during the war, the recruiting officers of Pennsylvania, in some instances, instead of engaging their men, definitively, for the one period or the other, engaged them generally for three years, or the war. This ambiguity in the terms of enlistment produced its natural effect. The soldier claimed his discharge at the expiration of three years, and the officer insisted on retaining him in service during the war. The soldier submitted with the more reluctance to the supposed imposition, as he constantly witnessed the immense bounties given to those who were not bound by a former enlistment.

Mutiny in the Pennsylvania line.

The discontents which these various causes had been long fomenting, broke out on the night of the 1st of January, in an open and almost universal revolt of the line.

On a signal given, the great body of the non-commissioned officers and privates paraded under arms, avowing the determination to march to the seat of congress, and either obtain redress of their complicated grievances, or serve no longer. In the attempt to suppress the mutiny, six or seven of the mutineers were wounded on the one side; and on the other, Captain Billing was killed, and several other officers were dangerously wounded. The authority of General Wayne availed nothing. On cocking his pistol, and threatening some of the most turbulent, the bayonet was presented to his bosom; and he perceived that strong measures would produce his own destruction, and perhaps the massacre of every officer in camp. A few

regiments who did not at first join the mutineers, were paraded by their officers; but, had they even been willing to proceed to extremities, they were not strong enough to restore order. Infected quickly with the general contagion, or intimidated by the threats of the mutineers, they joined their comrades; and the whole body, consisting of about thirteen hundred men, with six field pieces, marched, under the command of their sergeants, towards Princeton.

The next day. General Wayne, accompanied by Colonels Butler and Stewart, officers possessing, in a high degree, the affections of the soldiery, followed them, in the hope of bringing them back to their duty, or at least of dividing them. They were overtaken near Middlebrook, and invited by a written message from General Wayne, to appoint one man from each regiment to state the grievances of which they complained.

In consequence of this invitation, a sergeant from each regiment met the officers at their quarters, and some verbal communications were made, from the complexion of which sanguine hopes were entertained that the affair might be terminated without farther hazard, or much injury to the service.

On the following day, the line of march was resumed, and the soldiers proceeded to Princeton. The propositions of the general and field officers were reported to them, and a committee of sergeants, to whom they were referred, stated their claims. These were,

1st. A discharge for all those who had served three years under their original engagements, whatever those engagements might have been, and who had not taken the increased bounty, and re-enlisted for the war.

2nd. An immediate payment of all their arrears of pay and clothing, as well to those who should be discharged, as to those who should continue in service.

3rd. The residue of their bounty, and future real pay to those who should continue in the army.

General Wayne being unwilling to discharge all those who had not re-enlisted for the war, the subject was referred to the civil power.

On receiving intelligence of the mutiny, congress appointed a committee to confer with the executive of Pennsylvania respecting it. The result of this conference was that both the committee, and the governor with some

members of the executive council, left Philadelphia for the purpose of endeavouring to accommodate this dangerous commotion.

At his head quarters, at New Windsor, on the North River, General Washington received intelligence of this alarming mutiny. Accustomed as he had been to contemplate hazardous and difficult situations, it was not easy, under existing circumstances, to resolve instantly on the course it was most prudent to pursue. His first impression—to repair to the camp of the mutineers—soon gave place to opinions which were formed on more mature reflection.

It was almost certain that the business was already in the hands of the civil government, with whose arrangements it might be improper for him to interfere. Independent of this consideration, other motives of irresistible influence detained him on the North River.

The most important among those subjects of complaint which were alleged as the causes of the mutiny, were true in fact, were common to the whole army, and were of a nature to disseminate too generally those seeds of disquiet, which had attained their full growth and maturity in the Pennsylvania line. Strong symptoms of discontent had already been manifested; and it was, therefore, impossible to say with confidence, how far the same temper existed among the other troops; or how far the contagion of example had or would spread.

The danger arising from this state of things was much increased by the circumstance that the river was perfectly open, and afforded Sir Henry Clinton an easy and rapid transportation for his army to West Point, should the situation of its garrison invite an enterprise against that post.

It was an additional consideration of great weight, that it might have a most pernicious influence on the discipline of the whole army, should the authority of the Commander-in-chief be disregarded. He ought not to place himself in a situation where his orders might be disobeyed with impunity; an event much to be apprehended, should he repair to the camp of the mutineers, unattended by a military force adequate to the occasion.

Such a force could not be immediately commanded. His effectives in the Highlands amounted only to thirteen hundred and seventy-six men; and that whole division of the army, dispersed at various and distant stations, excluding the sick and those on furlough, did not exceed four thousand. Assuming therefore the fidelity of the troops, it was impracticable to march

immediately with a force sufficient to reduce the Pennsylvania line, without leaving the Highlands undefended. Nor was it unworthy of consideration that, in the actual situation of the mutineers, the probability of their being attacked by such a force might drive them to the enemy, or disperse them, events, either of which would deprive the army of a valuable part of its strength.

It was therefore thought adviseable to leave the negotiation with the civil power, and to prepare for those measures which ought to be adopted in the event of its failure. The disposition of the troops on the North River was sounded, and found to be favourable; after which, a detachment of eleven hundred men was ordered to be in readiness to move on a moment's warning. On the first notice of the mutiny, the militia of Jersey took the field under General Dickenson, and measures were taken to call out those of New York should the occasion require it.

Sir Henry Clinton attempts to negotiate with the mutineers.

To avail himself of an event appearing so auspicious to the royal cause, Sir Henry Clinton ordered a large body of troops to be in readiness to move on the shortest notice; and despatched three emissaries with tempting offers to the revolvers; and instructions to invite them, while the negotiation should be depending, to take a position behind the South River, where they should be effectually covered by detachments from New York. While these measures were taking, Sir Henry kept his eye on West Point, and held himself in readiness to strike at that place, should any movement on the part of General Washington open to him a prospect of success.[\[67\]](#)

His emissaries were immediately seized by the revolvers, and their proposals communicated to General Wayne, with assurances of the utter detestation in which every idea of going over to the common enemy was held.

This favourable symptom, however, was accompanied by suspicious circumstances. They retained the British emissaries in their own possession; and could not be induced to cross the Delaware, or to march from Princeton. They would not permit any of their former officers, other than those already mentioned, to enter their camp; and General St. Clair, the Marquis de Lafayette, and Lieutenant Colonel Laurens, were ordered to leave Princeton.

Such was the state of things when the committee of congress, and President Read with a part of his executive council, arrived in the neighbourhood of the revolvers. The former having delegated their power to the latter, a conference was held with the sergeants who now commanded, after which proposals were made and distributed among the troops for consideration.

In these proposals the government offered,

1st. To discharge all those who had enlisted indefinitely for three years or during the war, the fact to be examined into by three commissioners, to be appointed by the executive; and to be ascertained, when the original enlistment could not be produced, by the oath of the soldier.

2dly. To give immediate certificates for the depreciation on their pay, and to settle the arrearages as soon as circumstances would admit.

3dly. To furnish them immediately with certain specified articles of clothing which were most wanted.

They compromise with the civil authority.

On receiving these propositions, the troops agreed to march to Trenton. At that place the terms were accepted, with the addition that three commissioners should also be deputed by the line, who, conjointly with those of the executive should constitute the board authorized to determine on the claims of the soldiers to be discharged; and thereupon the British emissaries were surrendered, who were tried, condemned, and executed as spies.

Until the investigation should be made, and discharges given to those who should be found entitled to them, the sergeants retained their command. In consequence of the irksomeness of this state of things, the business was pressed with so much precipitation, that before the enlistments themselves could be brought from the huts, almost the whole of the artillery, and of the five first regiments of infantry, were liberated on the testimony of their own oaths. The enlistments being then produced, it was found that not many of the remaining regiments had engaged on the terms which, under the compact, would entitle them to leave the service; and that, of those actually dismissed, far the greater number had been enlisted absolutely for the war. The discharges given, however, were not cancelled; and the few who were to remain in service received furloughs for forty days.

Thus ended, in a temporary dissolution of the whole line of Pennsylvania, a mutiny, which a voluntary performance of much less than was extorted, would have prevented; and which, in the actual condition of the army, was of a nature and extent to inspire the most serious alarm.

The dangerous policy of yielding even to the just demands of soldiers made with arms in their hands, was soon illustrated. Mutiny in the Jersey line. The success of the Pennsylvania line inspired that of Jersey, many of whom were also foreigners, with the hope of obtaining similar advantages. On the night of the 20th, a part of the Jersey brigade, which had been stationed at Pompton, rose in arms; and, making precisely the same claims which had been yielded to the Pennsylvanians, marched to Chatham, where a part of the same brigade was cantoned, in the hope of exciting them also to join in the revolt.

General Washington, who had been extremely chagrined at the issue of the mutiny in the Pennsylvania line, and who was now assured of the confidence to be placed in the fidelity of the eastern troops, who were composed of natives, determined, by strong measures, to stop the farther progress of a spirit which threatened the destruction of the army, and ordered a detachment to march against the mutineers, and to bring them to unconditional submission. General Howe, who commanded this detachment, was instructed to make no terms with the insurgents while in a state of resistance; and, as soon as they should surrender, to seize a few of the most active leaders, and to execute them on the spot. These orders were promptly obeyed, and the Jersey mutineers returned to their duty.

In the hope of being more successful with the revolvers of Jersey than he had been with those of Pennsylvania, Sir Henry Clinton offered them the same terms which had been proposed to the mutineers at Princeton; and General Robertson, at the head of three thousand men, was detached to Staten Island with the avowed purpose of crossing over into Jersey, and covering any movement which they might make towards New York. The emissary, being in the American interest, delivered his papers to the officer commanding at the first station to which he came. Other papers were dispersed among the mutineers; but the mutiny was crushed too suddenly to allow time for the operation of these propositions.

The vigorous measures taken in this instance were happily followed by such an attention on the part of the states, to the actual situation of the army,

as checked the progress of discontent. Influenced by the representations of the Commander-in-chief, they raised three months' pay in specie, which they forwarded to the soldiers, who received it with joy, considering it as evidence that their fellow citizens were not entirely unmindful of their sufferings.

Although the army was thus reduced to such extreme distress, the discontents of the people were daily multiplied by the contributions which they were required to make, and by the irritating manner in which those contributions were drawn from them. Every article for public use was obtained by impressment; and the taxes were either unpaid, or collected by coercive means. Strong remonstrances were made against this system; and the dissatisfaction which pervaded the mass of the community, was scarcely less dangerous than that which had been manifested by the army.

To the judicious patriots throughout America, the necessity of giving greater powers to the federal government became every day more apparent; but the efforts of enlightened individuals were too feeble to correct that fatal disposition of power which had been made by enthusiasm uninstructed by experience.

To relieve the United States from their complicated embarrassments, a foreign loan seemed an expedient of indispensable necessity, and from France they hoped to obtain it. Mission of Colonel Laurens to France. Congress selected Lieutenant Colonel Laurens, a gentleman whose situation in the family of the Commander-in-chief had enabled him to take a comprehensive view of the military capacities and weaknesses of his country, for this interesting service; and instructed him also to urge the advantage of maintaining a naval superiority in the American seas. Before his departure, he passed some days at headquarters, and received from General Washington in the form of a letter, the result of his reflections on the existing state of things.

In this paper he detailed the pecuniary embarrassments of the government, and represented, with great earnestness, the inability of the nation to furnish a revenue adequate to the support of the war. He dwelt on the discontents which the system of impressment had excited among the people, and expressed his fears that the evils felt in the prosecution of the war, might weaken the sentiments which began it.

From this state of things, he deduced the vital importance of an immediate and ample supply of money, which might be the foundation for substantial arrangements of finance, for reviving public credit, and giving vigour to future operations; as well as of a decided effort of the allied arms on the continent to effect the great objects of the alliance, in the ensuing campaign.

Next to a supply of money, he considered a naval superiority in the American seas, as an object of the deepest interest.

To the United States, it would be of decisive importance, and France also might derive great advantages from transferring the maritime war to the coast of her ally.

The future ability of the United States to repay any loan which might now be obtained was displayed; and he concluded with assurances that there was still a fund of inclination and resource in the country, equal to great and continued exertions, provided the means were afforded of stopping the progress of disgust, by changing the present system, and adopting another more consonant with the spirit of the nation, and more capable of infusing activity and energy into public measures; of which a powerful succour in money must be the basis. "The people were discontented, but it was with the feeble and oppressive mode of conducting the war, not with the war itself."

With reason did the Commander-in-chief thus urge on the cabinet of Versailles, the policy of advancing a sum of money to the United States which might be adequate to the exigency. Deep was the gloom with which their political horizon was overcast. The British, in possession of South Carolina and of Georgia, had overrun the greater part of North Carolina also; and it was with equal hazard and address that Greene maintained himself in the northern frontier of that state.

A second detachment from New York was making a deep impression on Virginia, where the resistance had been neither so prompt nor so vigorous^[68] as the strength of that state and the unanimity of its citizens had given reason to expect.

The perplexities and difficulties in which the affairs of America were involved, were estimated by the British government even above their real value. Intercepted letters of this date from the minister, expressed the most sanguine hopes that the great superiority of force at the disposal of Sir

Henry Clinton, would compel Washington with his feeble army to take refuge on the eastern side of the Hudson.

Even congress relaxed for an instant from its habitual firmness; and, receding from the decisive manner in which that body had insisted on the territorial and maritime rights of the nation, directed the American minister at Madrid to relinquish, if it should be absolutely necessary, the claims of the United States to navigate the Mississippi below the thirty-first degree of north latitude, and to a free port on the banks of that river within the Spanish territory. It is remarkable that only Massachusetts, Connecticut, and North Carolina, dissented from this resolution; New York was divided.[\[69\]](#) Propositions to Spain. On a subsequent day, the subject was again brought forward, and a proposition was made for still farther concessions to Spain; but this proposition was negatived by all the states.[\[70\]](#)

Happily for the United States, Mr. Jay, their minister at the court of Madrid, required as the price of the concessions he was instructed to make, that the treaty he was labouring to negotiate should be immediately concluded.

The establishment of a revenue subject to the exclusive control and direction of the continental government, was connected inseparably with the restoration of credit. The efforts therefore to negotiate a foreign loan were accompanied by resolutions requesting the respective states to place a fund under the control of congress, which should be both permanent and productive. Recommendations relative to a duty on imported and prize goods. A resolution was passed, recommending to the respective states to vest a power in congress to levy for the use of the United States a duty of five *per centum ad valorem* on all goods imported into any of them; and also on all prizes condemned in any of the American courts of admiralty.

This fund was to be appropriated to the payment of both the principal and interest of all debts contracted in the prosecution of the war; and was to continue until those debts should be completely discharged.

Congress, at that time, contained several members who perceived the advantages which would result from bestowing on the government of the nation the full power of regulating commerce, and, consequently, of increasing the import as circumstances might render adviseable; but state influence predominated, and they were overruled by great majorities. Even the inadequate plan which they did recommend was never adopted.

Notwithstanding the greatness of the exigency, and the pressure of the national wants, never, during the existence of the confederation, did all the states unite in assenting to this recommendation; so unwilling are men possessed of power, to place it in the hands of others.

Reform in the organization of the executive departments.

About the same time a reform was introduced into the administration, the necessity of which had been long perceived. From a misplaced prejudice against institutions sanctioned by experience, all the great executive duties had been devolved either on committees of congress, or on boards consisting of several members. This unwieldy and expensive system had maintained itself against all the efforts of reason and public utility. But the scantiness of the national means at length prevailed over prejudice, and the several committees and boards yielded to a secretary for foreign affairs, a superintendent of finance, a secretary of war, and a secretary of marine. But so miserably defective was the organization of congress, as an executive body, that the year had far advanced before this measure, the utility of which all acknowledged, could be carried into complete operation by making all the appointments.

Confederation adopted.

About this time the articles of confederation were ratified. Much difficulty was encountered in obtaining the adoption of this instrument. The numerous objections made by the states yielded successively to the opinion that a federal compact would be of vast importance in the prosecution of the war. One impediment it was found peculiarly difficult to remove. Within the chartered limits of several states, were immense tracts of vacant territory, which, it was supposed, would constitute a large fund of future wealth; and the states not possessing that advantage insisted on considering this territory as a joint acquisition. At length this difficulty also was surmounted; and, in February, 1781, to the great joy of America, this interesting compact was rendered complete.^[71] Like many other human institutions, it was productive, neither in war nor in peace, of all the benefits which its sanguine advocates had expected. Had peace been made before any agreement for a permanent union was formed, it is far from being improbable that the different parts might have fallen asunder, and a dismemberment have taken place. If the confederation really preserved the idea of union until the good sense of the nation adopted a more efficient

system, this service alone entitles that instrument to the respectful recollection of the American people, and its framers to their gratitude.

Military transactions.

Such was the defensive strength of the positions taken by the adverse armies on the Hudson, and such their relative force, that no decisive blow could be given by either in that quarter of the continent. The anxious attentions of General Washington, therefore, were unremittingly directed to the south. One of those incidents which fortune occasionally produces, on the seizing or neglect of which the greatest military events frequently depend, presented, sooner than was expected, an opportunity which he deemed capable of being improved to the destruction of the British army in Virginia.

The French fleet, from its arrival on the American coast, had been blocked up in the harbour of Newport; and the land forces of that nation had been reduced to a state of inactivity by the necessity of defending their ships. Late in January, a detachment from the British fleet was encountered on the east end of Long Island by a furious storm, in which such damage was sustained as to destroy for a time the naval superiority which Arbuthnot had uniformly preserved.

To turn this temporary superiority to advantage, Monsieur Destouches resolved to detach a ship of the line, with two frigates, to the Chesapeake; a force which the delegation from Virginia had assured him would be sufficient for the purpose.

On receiving certain accounts of the loss sustained in the storm, General Washington conceived the design of improving that circumstance by immediate and powerful operations against Arnold. Confident that the critical moment must be seized, or the enterprise would fail, he ordered a detachment of twelve hundred men, under the command of the Marquis de Lafayette, to the head of the Chesapeake; there to embark for that part of Virginia which was to become the theatre of action, under convoy of a French frigate, for which he applied to the admiral. He immediately communicated this measure to the Count de Rochambeau, and to Monsieur Destouches, to whom he also stated his conviction that no serious advantage could be expected from a few ships, unaided by land troops. "There were," he said, "a variety of positions to be taken by Arnold, one of which was Portsmouth, his present station, where his ships might be so

protected by his batteries on the shore as to defy a mere naval attack; and where he would certainly be able to maintain himself until the losses sustained in the late storm should be repaired, and the superiority at sea recovered, when he would unquestionably be relieved."

To insure the success of the expedition, he recommended that the whole fleet should be employed on it, and that a detachment of one thousand men should be embarked for the same service.

February 9.

These representations did not prevail. The original plan had already been put in execution. On the 9th of February, a sixty-four gun ship with two frigates, under Monsieur de Tilley, had sailed for the Chesapeake; and, as some of the British ships had been repaired, the French admiral did not think it prudent to put to sea with the residue of his fleet.

As had been foreseen by General Washington, de Tilley found Arnold in a situation not to be assailed with any prospect of success. After showing himself therefore in the bay, and making an ineffectual attempt to enter Elizabeth River, he returned to Newport. At the capes, he fell in with the *Romulus*, a fifty gun ship, coming from Charleston to the Chesapeake, which he captured.

Both the Count de Rochambeau, and the Chevalier Destouches, being well disposed to execute the plans suggested by General Washington, they determined, on the return of Monsieur de Tilley, to make a second expedition to the Chesapeake with the whole fleet, and eleven hundred men. General Washington, therefore, hastened to Newport, that in a personal conference with them, he might facilitate the execution of an enterprise from which he still entertained sanguine hopes.

March 6.

Early on the 6th of March he reached Newport, and went instantly on board the *Admiral*, where he was met by the Count de Rochambeau. It was determined that a detachment from the army, then in perfect readiness, should be embarked under the Count de Viominil; and that the fleet should put to sea as soon as possible. The wind was favourable to the French, and adverse to the British. Yet the fleet did not sail until the evening of the eighth. It appears from a letter of Monsieur Destouches, that this delay was in some measure attributable to a disaster which befel one of his frigates in getting out of port; and there is reason to suppose that it may be ascribed to

a want of supplies. Whatever may have been the cause, Arnold is most probably indebted to it for his escape from the fate which his treason merited.

Two days after Destouches had sailed, he was followed by Arbuthnot, who overtook him off the capes of Virginia. A partial engagement ensued which continued about an hour, when the fleets were separated.

The French admiral called a council of war the next day, in which it was declared unadvisable to renew the action, and he returned to Newport.

March 26.

The arrival of two thousand men commanded by General Philips, gave the British a decided superiority in Virginia, and changed the destination of Lafayette, who had been ordered to join the southern army, but to whom the defence of that state was now committed. The troops under his command being taken chiefly from the eastern regiments, had imbibed strong prejudices against a southern climate; and desertions became so frequent as to threaten the dissolution of the corps.

This unpromising state of things was completely changed by a happy expedient adopted by Lafayette. Appealing to the generous principles of his soldiers, principles on which the feelings of his own bosom taught him to rely, he proclaimed in orders, that he was about to enter on an enterprise of great danger and difficulty, in which he persuaded himself his soldiers would not abandon him. If, however, any individual of the detachment was unwilling to accompany him, a permit to return should most assuredly be granted him.

This measure had the desired effect, and put an end to desertion.^[72] To keep up the good dispositions of the moment, this ardent young nobleman, who was as unmindful of fortune as he was ambitious of fame, borrowed from the merchants of Baltimore, on his private credit, a sum of money sufficient to purchase shoes, linen, spirits, and other articles of immediate necessity for the detachment.^[73]

Having made these preparations for the campaign, he marched with the utmost celerity to the defence of Virginia. That state was in great need of assistance. The enemy had penetrated deep into its bosom, and was committing those excesses on its inhabitants to which a country unable to repel invasion must always be exposed.

General Philips, on his arrival, took command of all the British troops in Virginia; and, after completing the fortification of Portsmouth, commenced offensive operations.

About two thousand five hundred men were embarked on board some small vessels, and landed at various places in the neighbourhood of Williamsburg. April 24. Different detachments spread themselves over the lower part of that neck of land which is made by York and James Rivers; and, after destroying, without opposition, a ship yard belonging to the state, with some armed vessels and public stores, re-embarked and proceeded to City Point, where they landed in the afternoon of the 24th. The next day they marched against Petersburg, at which place, immense quantities of tobacco and other stores were deposited.

Baron Steuben was not in a situation to check their progress. The levies of Virginia had marched to the aid of General Greene; and the whole number of militia, at that time in the field, did not much exceed two thousand men. Unwilling to abandon so important a place as Petersburg without the semblance of fighting, the baron posted about one thousand men a mile below the town with orders to skirmish with the enemy. The British troops, without being able to bring him to a close engagement, were two or three hours employed in driving him across the Appomattox, the bridge over which being taken up as soon as the militia had passed it, farther pursuit became impracticable.

This skirmish having terminated with scarcely any loss on either side, the baron retreated towards Richmond, and Philips took quiet possession of Petersburg; where he destroyed a considerable quantity of tobacco, and all the vessels lying in the river.

This service being accomplished, Arnold was detached through Osbornes to Warwick, between which place and Richmond, a respectable naval force, consisting of small armed vessels, had been collected with the intention of co-operating with the French fleet against Portsmouth; and a few militia were stationed on the northern bank of the river to assist in defending the flotilla.

The crews of the vessels, on receiving a fire from a few field pieces ordered by Arnold to the bank, scuttled them, escaped to the opposite shore, and dispersed with the militia. Philips marched with the residue of the army to Chesterfield court house, the place of rendezvous for the new levies of

Virginia, where he destroyed the barracks with a few public stores; after which he joined Arnold in the neighbourhood of Warwick, April 30. and marched without interruption to Manchester, a small town on the southern bank of James River, immediately opposite to Richmond; where, as was the general practice, the warehouses were set on fire, and all the tobacco consumed.

On the preceding evening, the Marquis de Lafayette, who had made a forced march from Baltimore, arrived with his detachment at Richmond; and that place, in which a great proportion of the military stores of the state were then collected, was saved, for the time, from a visit which was certainly designed.

The regular troops composing this detachment were joined by about two thousand militia, and sixty dragoons. Not thinking it adviseable to attempt the passage of the river in the presence of so respectable an army, General Philips retired to Bermuda Hundred, a point of land in the confluence of the James and Appomatox, at which place he re-embarked his troops, and fell down the river to Hog Island.

The Marquis fixed his head quarters on the north of Chiccahominy, about eighteen miles from Richmond; where he remained until a letter from Lord Cornwallis called Philips again up James River.

When that nobleman determined on marching from Wilmington into Virginia, he signified his wish that the British troops in that state, should take their station at Petersburg.

On receiving this letter, Philips proceeded to comply with the request it contained. As soon as the fleet moved up the river, Lafayette returned to the defence of Richmond. Having, on his arrival, received intelligence that Lord Cornwallis was marching northward, and finding Philips landed at Brandon on the south side of the river, he was persuaded that a junction of the two armies must be intended, and hastened to take possession of Petersburg[74] before Philips could reach that place. In this however he was anticipated by the British general; upon which he recrossed James River, and, encamping a few miles below Richmond, used his utmost exertions to remove the military stores in that town to a place of greater security.

Cornwallis arrives.

In this position his army was permitted to repose itself but a few days. Lord Cornwallis, after passing through North Carolina and the southern

parts of Virginia without encountering much opposition, and effecting a junction with Arnold, who had succeeded by the death of Philips to the command of the army in Virginia,[75] found himself at the head of a force which nothing in that state could resist; and determined on a vigorous plan of offensive operations. His immediate object was to bring the Marquis to an action; for which purpose he crossed James River at Westover, where he was joined by a reinforcement from New York, and attempted, by turning the left flank of the American army, to get into its rear. Lafayette was not in a condition to risk an engagement. His objects were the security of the public stores, the preservation of his small army for future services, and a junction with the Pennsylvania line which was on its march southward, under the command of General Wayne. As Lord Cornwallis crossed James River, he retired towards the upper country, inclining his route to the north in order to favour a junction with Wayne.

The fine horses found in the stables of private gentlemen, gave to the British general an efficient cavalry; and enabled him to mount so many infantry, as to move large detachments with unusual rapidity. With these advantages, he was so confident of overtaking and destroying his enemy, as to say exultingly in a letter which was intercepted, "the boy can not escape me." His sanguine hopes, however, were disappointed. Lafayette moved with so much celerity and caution as to convince Cornwallis of the impracticability of overtaking him, or of preventing his junction with Wayne.

After marching some distance up the northern side of Northanora, his lordship relinquished the pursuit, and turned his attention to other objects which were more attainable.

Military stores had been collected in various parts of the middle country, and, among others, at the Point of Fork, a point of land made by the confluence of the Rivanna and Fluvanna, the two branches of James' River. Colonel Simcoe was detached with five hundred men against this post, which was protected by between five and six hundred new levies, and a few militia. Tarlton, with two hundred and fifty cavalry and mounted infantry, was ordered at the same time against Charlottesville, where the general assembly was in session. So rapid were his movements that a mere accident prevented his entering the town before any notice of his approach was given. A private gentleman, Mr. Jouiette, who was acquainted with a nearer

route than the great road, hastened to Charlottesville on a fleet horse with the interesting intelligence, and entered the town about two hours before the British cavalry. Nearly all[76] the members of the legislature made their escape, and reassembled at Staunton, on the western side of the Blue Ridge. Tarlton, after destroying the stores at Charlottesville, proceeded down the Rivanna to the Point of Fork.

The detachment commanded by Simcoe, being composed chiefly of infantry, could not move with equal celerity. That officer, however, conducted his march with so much secrecy and address, that Steuben seems to have been either unapprized of his approach, or to have had no accurate information of his numbers. Intelligence of the expedition to Charlottesville had reached him, and he had prudently employed himself in removing his stores from the Point of Fork to the south side of the Fluvanna.

The river was at the time unfordable; and the boats were all secured on the southern bank. Yet Steuben, suspecting the detachment of Simcoe to be the van of the British army, or apprehending that Tarlton might get into his rear, withdrew precipitately in the night, and marched near thirty miles, leaving behind him such stores as could not be removed. These were destroyed next morning by a small detachment of men who crossed the river in a few canoes.

Presses Lafayette over the Rapidan.

To secure his junction with Wayne, and to keep open his communication towards the north, Lafayette had crossed the Rapidan.

Lafayette forms a junction with Wayne.

These movements of the two armies had thrown Lord Cornwallis between Lafayette and the military stores which had been transported from Richmond up James' River, and deposited at different places, but principally at Albemarle old court house, high up that river. To this place Lord Cornwallis directed his march.

The Marquis, having effected a junction with the Pennsylvania line consisting of eight hundred men, recrossed the Rapidan, and advanced with so much celerity towards the British army, that he encamped within a few miles of it, while upwards of a day's march from its point of destination.

Confident that the object of the American general must be to protect the magazines on the Fluvanna, Lord Cornwallis encamped at Elk Island, and

advanced his light troops to a position commanding the road, by which it was supposed the Americans must pass.

Lafayette, however, discovered in the night a nearer road which had long been disused; and the next morning the British general had the mortification to perceive that the American army had crossed the Rivanna, and taken a strong position behind the Mechunk creek, which, in a great measure, commanded the route leading from the camp of his lordship to Albemarle old court house. At this place a considerable reinforcement of mountain militia was received.

Cornwallis retires to the lower country.

Apprehending the force opposed to him to be greater than it was in reality, and probably desirous of transferring the war to the lower country, Lord Cornwallis abandoned the objects he had pursued, and retired first to Richmond, and afterwards to Williamsburg.

June 18.

The Marquis followed with cautious circumspection. On the 18th of June, he was reinforced by four or five hundred new levies under the Baron Steuben, which augmented his army to four thousand men, of whom two thousand were regulars. That of Lord Cornwallis was, probably, rather more numerous.

As the British army retreated to Williamsburg, Lafayette, who sought a partial, though he avoided a general engagement, pressed its rear with his light parties. Colonel Simcoe, who covered the retreat, was overtaken by Colonel Butler about six miles from Williamsburg, and a sharp action ensued. The Americans claimed the advantage; but were compelled to retire by the approach of the whole British army.

In the bold and rapid course taken by Lord Cornwallis through the lower and central parts of Virginia, much private as well as public property^[27] was destroyed; and the resources of the state were considerably diminished; but no solid advantage was obtained. Although, from various causes, especially from a want of arms, and from that general repugnance which a harassed, unpaid militia, will universally manifest to military service, less resistance was encountered than was to be expected from the strength and population of the state; no disposition was openly manifested to join the royal standard, or to withdraw from the contest. The Marquis complained of "much slowness, and much carelessness in the country; but the dispositions

of the people," he said, "were good, and they required only to be awakened." This, he thought, would be best effected by the presence of General Washington, an event for which he expressed the most anxious solicitude. But Washington deemed it of more importance to remain on the Hudson, for the purpose of digesting and conducting a grand plan of combined operations then meditated against New York, by the execution of which he counted more certainly on relieving the southern states, than by any other measure it was in his power to adopt.

General Washington's letters are intercepted.

An express carrying letters, communicating to congress the result of his consultations on this subject, with the commanders of the land and naval forces of France, was intercepted in Jersey. The interesting disclosure made by these letters, alarmed Sir Henry Clinton for the safety of New York, and determined him to require the return of a part of the troops in Virginia. Supposing himself too weak, after complying with this requisition, to remain at Williamsburg, Lord Cornwallis took the resolution of retiring to Portsmouth.

In pursuance of this resolution, he marched from Williamsburg and encamped in such a manner as to cover the ford into the island of Jamestown. On the same evening, the Queen's rangers crossed over into the island; and the two succeeding days were employed in passing over the baggage.

The morning after the evacuation of Williamsburg, Lafayette changed his position, and pushed his best troops within nine miles of the British camp, with the intention of attempting their rear, when the main body should have passed into Jamestown.

Suspecting his design, Lord Cornwallis encamped the greater part of his army on the main land as compactly as possible, and displayed a few troops on the island in such a manner as, in appearance, to magnify their numbers. All the intelligence received by Lafayette concurred in the representation that the greater part of the British army had passed over to the island in the night. July 6. Believing this to be the fact, he detached some riflemen to harass their out-posts, while he advanced at the head of the continental troops in order to cut off the rear.

Every appearance was calculated to countenance the opinion he had formed. The British light parties were drawn in, and the piquets were forced

by the riflemen without much resistance, but an advanced post which covered the encampment from the view of the Americans, was perseveringly maintained, though three of the officers commanding it were successively picked off by the riflemen. Lafayette, who arrived a little before sunset, suspected from the obstinacy with which this post was maintained, that it covered more than a rear guard, and determined to reconnoitre the camp, and judge of its strength from his own observation. [78] It was in a great measure concealed by woods; but from a tongue of land stretching into the river, he perceived the British force to be much more considerable than had been supposed, and hastened to call off his men.

Action near Jamestown.

He found Wayne closely engaged. A piece of artillery had been left weakly defended, which Wayne determined to seize. Scarcely was the attempt made, when he discovered the whole British army, arranged in order for battle, moving out against him. To retreat was impossible, and the boldest had become the safest measure. Under this impression he advanced rapidly, and, with his small detachment, not exceeding eight hundred men, made a gallant charge on the British line. A warm action ensued, which was kept up with great spirit until the arrival of Lafayette, who, perceiving Wayne to be out-flanked both on the right and left, ordered him to retreat and form in a line with the light infantry, who were drawn up about half a mile in his rear. The whole party then saved itself behind a morass.

Fortunately for Lafayette, Lord Cornwallis did not improve the advantage he had gained. Suspecting this to be a stratagem of the American general to draw him into an ambuscade, a suspicion equally favoured by the hardiness and time of the attack, Lord Cornwallis, who supposed his enemy to be stronger than he was in reality, would allow no pursuit; and, in the course of the night, crossed over into the island, whence he, soon afterwards, proceeded to Portsmouth.

In this action, the Americans lost one hundred and eighteen men, among whom were ten officers; and two pieces of artillery were left on the field, the horses attached to them being killed. The British loss was less considerable.

All active operations were now suspended; and the harassed army of Lafayette was allowed some repose.

Although no brilliant service was performed by that young nobleman, the campaign in Virginia enhanced his military reputation, and raised him in the general esteem. That with so decided an inferiority of effective force, and especially of cavalry, he had been able to keep the field in an open country, and to preserve a considerable proportion of his military stores, as well as his army, was believed to furnish unequivocal evidence of the prudence and vigour of his conduct.

CHAPTER XI.

Farther state of affairs in the beginning of the year 1781.... Measures of Mr. Morris, the superintendent of finances.... Designs of General Washington against New York.... Count Rochambeau marches to the North River.... Intelligence from the Count de Grasse.... Plan of operations against Lord Cornwallis.... Naval engagement.... The combined armies march for the Chesapeake.... Yorktown invested.... Surrender of Lord Cornwallis.

1781

The deep gloom which had enveloped the prospects of America in the commencement of the year, which darkened for a time in the south, had also spread itself over the north. The total incompetency of the political system adopted by the United States to their own preservation, became every day more apparent. State of affairs at the beginning of the year 1781. Each state seemed fearful of doing too much, and of taking upon itself a larger portion of the common burden than was borne by its neighbour.

The resolutions of congress had called for an army of thirty-seven thousand men, to be in camp by the first of January. Had this requisition been made in time, it is not probable that so large a force could have been brought into the field; but it was made late, and then the difficulties and delays on the part of the several states, exceeded every reasonable calculation. The regular force drawn from Pennsylvania to Georgia inclusive, at no time, during this active and interesting campaign, amounted to three thousand effective men; and the states from New Hampshire to New Jersey inclusive, so late as the month of April, had furnished only five thousand infantry. Of these, the returns for that month exhibit, in the northern department, less than three thousand effectives. The cavalry and artillery, at no time, amounted to one thousand men. This small army was gradually and slowly augmented so as, in the month of May, to exhibit a total of near seven thousand men, of whom rather more than four thousand might have been relied on for action.

The prospects for the campaign were rendered still more unpromising by the failure of supplies for the support of the troops. The long expected clothing from Europe had not arrived; and the want of provisions^[79] furnished a still more serious cause of alarm.

After congress had come to the resolution of emitting no more bills on the credit of the continent, the duty of supplying the army with provisions necessarily devolved on the states, who were required to furnish certain specified articles for the subsistence of the troops, according to a ratio established by the federal government. These requisitions had been neglected to such a degree as to excite fears that the soldiers must be disbanded from the want of food.

To increase the general embarrassment, the quartermaster department was destitute of funds, and unable to transport provisions or other stores from place to place, but by means of impressment supported by a military force. This measure had been repeated, especially in New York, until it excited so much disgust and irritation among the people, that the Commander-in-chief was under serious apprehensions of actual resistance to his authority.

While in this state of deplorable imbecility, intelligence from every quarter announced increasing dangers.

Information was received that an expedition was preparing in Canada against Fort Pitt, to be conducted by Sir John Johnston, and Colonel Conelly; and it was understood that many, in the country threatened with invasion, were ready to join the British standard. The Indians too had entered into formidable combinations, endangering the whole extent of the western frontier.

In addition to these alarming circumstances, some vessels had arrived at Crown Point from Canada, with information that three thousand men had been assembled on the lakes, for the purpose of attempting, once more, an invasion from that quarter.

This information, though unfounded, was believed to be true, and was, at that critical moment, the more alarming, because a correspondence of a criminal nature had just been discovered between some persons in Albany and in Canada. A letter intercepted by Generals Schuyler and Clinton, stated the disaffection of particular settlements, the provision made in those

settlements for the subsistence of an invading army, and their readiness to join such army.

This intelligence from the northern frontier derived increased interest from the ambiguous conduct observed by the inhabitants of that tract of country which now constitutes the state of Vermont. They had settled lands within the chartered limits of New York, under grants from the governor of New Hampshire; and had, early in the war, declared themselves independent, and exercised the powers of self-government. The state of New York, however, still continuing to assert her claim of sovereignty, the controversy on this delicate subject had become so violent as to justify the apprehension that, in the opinion of the people of Vermont, the restoration of British authority was an evil not of greater magnitude, than the establishment of that of New York. The declaration was openly made that, if not admitted into the union as an independent state, they held themselves at liberty to make a separate peace; and some negotiations had been commenced, which were believed to manifest a disposition in Vermont, to abandon the common cause of America.

Accustomed to contemplate all public events which might grow out of the situation of the United States, and to prepare for them while at a distance, the American chief was not depressed by this state of American affairs. With a mind happily tempered by nature, and improved by experience, those fortunate events which had occasionally brightened the prospects of his country, never relaxed his exertions, or lessened his precautions; nor could the most disastrous state of things drive him to despair. Although entirely uncertain what operation he might be enabled to undertake during the approaching campaign, he had adopted such preparatory steps as might enable him to turn to advantage any fortunate incident which might occur. In consequence of conferences previously held with the Count de Rochambeau, for the purpose of digesting a system adapted to contingent events, orders were transmitted to that officer, directing him to be in readiness to march as large a body of the French troops to the North River, as could be spared from the protection of the fleet.

Early in May, the Count de Barras, who had been appointed to the command of the French fleet stationed on the American coast, arrived in Boston accompanied by the Viscount de Rochambeau, and brought the long

expected information from the cabinet of Versailles, respecting the naval armament designed to act in the American seas. Twenty ships of the line, to be commanded by the Count de Grasse, were destined for the West Indies, twelve of which were to proceed to the continent of America, and might be expected to arrive in the month of July.

Designs of General Washington against New York.

An interview between General Washington and the Count de Rochambeau immediately took place at Weathersfield, in which it was determined to unite the troops of France to those of America on the Hudson, and to proceed against New York. The regular army at that station was estimated at four thousand five hundred men,^[80] and though it was understood that Sir Henry Clinton would be able to reinforce it with five or six thousand militia, it was believed that the post could not be maintained without recalling a considerable part of the troops from the south; in which event, the allied army might be employed advantageously in that part of the union.

The prospect of expelling the British from New York roused the northern states from that apathy into which they appeared to be sinking, and vigorous measures were taken to fill their regiments. Yet those measures were not completely successful. In the month of June, when the army took the field, and encamped at Peekskill, its effective numbers did not exceed five thousand men.

Such was the American force in the north, with which the campaign of 1781 was opened. It fell so far short of that on which the calculations had been made at Weathersfield, as to excite serious doubts respecting the propriety of adhering to the plan there concerted, although some compensation was made for this deficiency on the part of the states by the arrival of a reinforcement of fifteen hundred men to the army of Rochambeau under convoy of a fifty gun frigate.

To supply even this army with provisions, required much greater exertions than had ever been made since the system of requisitions had been substituted for that of purchasing. The hope of terminating the war produced these exertions. The legislatures of the New England states took up the subject in earnest, and passed resolutions for raising the necessary supplies. But until these resolutions could be executed, the embarrassments of the army continued; and, for some time after the troops had taken the

field, there was reason to apprehend, either that the great objects of the campaign must be relinquished for want of provisions, or that coercive means must still be used.

New England not furnishing flour, this important article was to be drawn from New York, New Jersey, and Pennsylvania. The two first states were much exhausted; and the application to Pennsylvania did not promise to be very successful. On this subject, therefore, serious fears existed.

These were removed, in a great degree, by the activity and exertions of an individual.

Superintendent of finances appointed.

The management of the finances had been lately committed to Mr. Robert Morris, a delegate to congress from the state of Pennsylvania. This gentleman united considerable political talents to a degree of mercantile enterprise, information, and credit, seldom equalled in any country. He had accepted this arduous appointment on the condition of being allowed the year 1781 to make his arrangements; during which time, the department was to be conducted by those already employed, with the resources which government could command. But the critical state of public affairs, and the pressing wants of the army, furnished irresistible motives for changing his original determination, and entering immediately on the duties of his office. The occasion required that he should bring his private credit in aid of the public resources, and pledge himself personally and extensively, for articles of absolute necessity which could not be otherwise obtained. Condemning the system of violence and of legal fraud, which had too long been practised, as being calculated to defeat its own object, he sought the gradual restoration of confidence by the only means which could restore it:—a punctual and faithful compliance with his engagements. Herculean as was this task in the existing derangement of American finances, he entered upon it courageously; and, if not completely successful, certainly did more than could have been supposed possible with the means placed in his hands. It is, in no inconsiderable degree, to be attributed to him, that the very active and decisive operations of the campaign were not impeded, perhaps defeated, by a failure of the means for transporting military stores, and feeding the army.

On determining to enter on the duties of his office, Mr. Morris laid before congress the plan of a national bank, whose notes were to be receivable

from the respective states as specie, into the treasury of the United States. Congress gave its full approbation to this beneficial institution; and passed an ordinance for its incorporation.

Important as was this measure to the future operations of the army, a contract entered into with the state of Pennsylvania was of still more immediate utility.

After furnishing flour to relieve the wants of the moment on his private credit, Mr. Morris proposed to take on himself the task of complying with all the specific requisitions made on Pennsylvania, and to rely for reimbursement on the taxes imposed by law, to be collected under his direction. This proposition being accepted, the contract was made; and supplies which the government found itself unable to furnish, were raised by an individual.

Count Rochambeau marches to the North River.

As the French troops approached the North River, intelligence was received that a large detachment from New York had made an incursion into Jersey, under appearances indicating an intention not to return immediately. This being thought a favourable moment for gaining the posts on the north end of York Island, a plan was formed for seizing them by a *coup de main*. General Washington fixed on the night of the second of July for making the attempt; it being supposed that the Count de Rochambeau might join the American army at Kingsbridge by that time. An aid-de-camp was therefore despatched to meet that officer with letters explaining the enterprise, and requesting him to meet the Commander-in-chief at the time and place appointed.

With the proposed attack on these works, an attempt to cut off some light troops stationed on the outside of Kingsbridge at Morrissania, under the command of Colonel Delaney, was to be combined. This part of the plan was to be executed by the Duke de Lauzun, to whose legion Sheldon's dragoons, and a small body of continental troops dispersed on the lines, under the command of General Waterbury, were to be added.

On the part of the Americans, all that could contribute to the success of this enterprise was done. A strong detachment commanded by General Lincoln, which fell down the river in boats with muffled oars, reached its ground undiscovered on the night of the first of July; and the army, conducted by General Washington, marched to Valentine's hill. The next

day, Lincoln perceived that the detachment had returned from Jersey, that the British were encamped in great force on the north end of the island, and that a ship of war watched the landing place. These unexpected obstacles having defeated the design upon the works, he proceeded to execute his eventual orders of co-operation with the Duke de Lauzun. These were, after landing above Spiken Devil Creek, to march to the high ground in front of Kingsbridge, and there conceal his detachment, until the attack on Delaney's corps should commence.

The Duke de Lauzun did not arrive, and the return of day betrayed Lincoln. A British corps advanced upon him; on hearing which, General Washington put his troops in motion, and, on his approach, the British troops retired into the island.

Both parts of the plan having thus failed, the army retreated to Dobbs' ferry, where it was joined by the Count de Rochambeau on the sixth of July.

The thanks of the Commander-in-chief were given to that officer in general orders, for the unremitting zeal with which he had proceeded to form his so long wished for junction with the American army; and he was requested to convey to the officers and soldiers under his command, the grateful sense which the general entertained of the cheerfulness with which they had performed so long and laborious a march at so hot a season.

The utmost exertions were made for the grand enterprise against New York. But as the execution of any plan that could be formed, depended on events which were uncertain, the Commander-in-chief directed his attention to other objects, to be pursued if that which was most desirable should prove unattainable. Should the siege of New York become unadvisable, his views were turned to Virginia, the Carolinas, and Georgia.

Early in August, the apprehension that he should be unable to accomplish his favourite object, began to influence his conduct. Letters from the Marquis de Lafayette announced that a large portion of the troops in Virginia were embarked, and that their destination was believed to be New York. Intelligence from the Count de Grasse. This intelligence induced him to turn his attention more seriously to the south; but, to conceal from Sir Henry Clinton this eventual change of plan, his arrangements were made secretly, and the preparations for acting against New York were continued. A reinforcement from Europe of near three thousand men, induced Sir Henry Clinton to countermand the orders he had given to Lord Cornwallis

to detach a part of the army in Virginia to his aid; and also to direct that nobleman to take a strong position on the Chesapeake, from which he might execute the designs meditated against the states lying on that bay, so soon as the storm which threatened the British power for the moment, should blow over. In a few days after the arrival of this reinforcement, the Count de Barras gave General Washington the interesting information, that De Grasse was to have sailed from Cape Francis for the Chesapeake, on the third of August, with from twenty-five to twenty-nine ships of the line, having on board three thousand two hundred soldiers; and that he had made engagements with the officers commanding the land and naval forces of Spain in the West Indies, to return to those seas by the middle of October.

This intelligence manifested the necessity of determining immediately, and positively, on the object against which the combined forces should be directed. The shortness of the time appropriated by De Grasse for his continuance on the American coast, the apparent unwillingness of the naval officers to attempt to force a passage into the harbour of New York, and the failure of the states to comply with the requisitions which had been made on them for men, decided in favour of operations to the south; and Lafayette was requested to make such a disposition of his army as should be best calculated to prevent Lord Cornwallis from saving himself by a sudden march to Charleston.[\[81\]](#)

Conformably to the intelligence communicated by the Count de Barras, the Count de Grasse arrived in the Chesapeake late in August with twenty-eight ships of the line and several frigates. At Cape Henry he found an officer despatched by Lafayette with full intelligence of the situation of the armies in Virginia. Lord Cornwallis had collected his whole force at Yorktown and Gloucester Point, which he was fortifying assiduously; and the Marquis had taken a position on James River.

In consequence of this information, four ships of the line and several frigates were detached to block up the mouth of York River, and convey the land forces brought from the West Indies, under the command of the Marquis de St. Simon, up the James to join Lafayette, who, on receiving this reinforcement, took post at Williamsburg. In the mean time, the fleet lay at anchor just within the capes. On the 25th of August the Count de Barras[\[82\]](#) sailed from Newport for the Chesapeake.

Rodney was apprized of the destination of De Grasse, but seems not to have suspected that the whole fleet would sail for the continent of America. Supposing therefore that a part of his squadron would be sufficient to maintain an equality of naval force in the American seas, he detached Sir Samuel Hood to the continent with only fourteen sail of the line. That officer arrived at Sandy Hook on the twenty-eighth of August.

Admiral Greaves, who had succeeded Arbuthnot in the command of the fleet on the American station, lay in the harbour of New York with seven ships of the line, only five of which were fit for service. On the day that Hood appeared and gave information that De Grasse was probably on the coast, intelligence was also received that De Barras had sailed from Newport.

The ships fit for sea were ordered out of the harbour; and Greaves, with the whole fleet, consisting of nineteen sail of the line, proceeded in quest of the French.

Not suspecting the strength of De Grasse, he hoped to fall in with one or the other of their squadrons, and to fight it separately.

Early in the morning of the 5th of September, while the French fleet lay at anchor just within the Chesapeake, the British squadron was descried. Orders were immediately given by De Grasse to form the line, and put to sea. About four in the afternoon, the action commenced between the headmost ships, and continued until sunset. Several ships were much damaged, but neither admiral could claim the victory. For five successive days the hostile fleets continued within view of each other. After which, De Grasse returned to his former station within the capes. At his anchorage ground he found De Barras with the squadron from Newport, and fourteen transports laden with heavy artillery, and military stores proper for carrying on a siege. The British admiral approaching the capes, found the entrance of the Chesapeake defended by a force with which he was unable to contend, and therefore bore away for New York.

Plan of operations against Lord Cornwallis.

General Washington had determined to entrust the defence of the Hudson to General Heath, and to command the southern expedition in person. All the French, and a detachment amounting to upwards of two thousand men from the continental army, were destined for this service. On the 19th of August, Hazen's regiment and the Jersey line, were directed to pass the

Hudson at Dobbs' ferry, and take a position between Springfield and Chatham, where they were to cover some bake-houses to be constructed in the neighbourhood, for the purpose of veiling the real designs of the American chief, and of exciting fears for Staten Island. The combined armies march for the Chesapeake. On the same day, the whole army was put in motion; and on the twenty-fifth the passage of the river was completed.

To conceal as long as possible the real object of this movement, the march of the army was continued until the thirty-first, in such a direction as to keep up fears for New York; and a considerable degree of address was used to countenance the opinion that the real design was against that place. The letters which had been intercepted by Sir Henry Clinton favoured this deception; and so strong was the impression they made that, even after it became necessary for the combined army to leave the route leading down the Hudson, he is stated to have retained his fears for New York, and not to have suspected the real object of his adversary until he had approached the Delaware;[\[83\]](#) and it had become too late to obstruct the progress of the allied army towards Virginia. He then resolved to make every exertion in his power to relieve Lord Cornwallis, and in the mean time to act offensively in the north. September 6. An expedition was planned against New London, in Connecticut, and a strong detachment, under the command of General Arnold, was embarked on board a fleet of transports, which landed early in the morning of the 6th of September on both sides the harbour, about three miles from the town.

New London is a seaport town on the west side of the Thames. A fort called fort Trumbull, and a redoubt had been constructed just below it, on the same side of the river; and opposite to it, on Groton hill, was fort Griswold, a strong square fortification, but not fully manned. General Arnold, who commanded in person the troops that landed on the western side of the harbour, advanced immediately against the posts on that side. These being untenable, were evacuated on his approach; and he took possession of them with inconsiderable loss. To prevent the escape of the vessels up the river, Lieutenant Colonel Eyre, who commanded the division which landed on the Groton side of the harbour, had been ordered to storm fort Griswold, which had been represented to Arnold as too incomplete to make any serious resistance. But the place being of some strength, and the approach to it difficult, Colonel Ledyard, who commanded it with a garrison of one hundred and sixty men, determined to defend it. On his

refusing to surrender, the British assaulted it on three sides, and overcoming the difficulties opposed to them, made a lodgement on the ditch and fraized work, and entered the embrasures with charged bayonets. Further resistance being hopeless, the action ceased on the part of the Americans, and Colonel Ledyard delivered his sword to the commanding officer of the assailants. Irritated by the obstinacy of the defence, and the loss sustained in the assault, the British officer on whom the command had devolved, tarnished the glory of victory by the inhuman use he made of it. Instead of respecting, with the generous spirit of a soldier, the gallantry which he had subdued, he indulged the vindictive feelings which had been roused by the slaughter of his troops. In the account given of this affair by Governor Trumbull to General Washington, he says, "The sword presented by Colonel Ledyard was immediately plunged into his bosom, and the carnage was kept up until the greater part of the garrison was killed or wounded."

In this fierce assault, Colonel Eyre was killed, and Major Montgomery, the second in command, also fell, as he entered the American works. The total loss of the assailants was not much less than two hundred men.

The town of New London, and the stores contained in it, were consumed by fire. To escape the odium which invariably attends the wanton destruction of private property, this fire was attributed to accident; but all the American accounts unite in declaring it to have been intentional.

September 6.

The march of General Washington was not arrested by this excursion into New England. Having made the arrangements for the transportation of his army down the Chesapeake, he proceeded in person to Virginia, attended by the Count de Rochambeau, and the Chevalier de Chatelleux; and, on the 14th of September, reached Williamsburg^[84] accompanied by Rochambeau, Chatelleux, Knox, and Du Portail, he immediately repaired to the fleet, and a plan of co-operation was adjusted on board the *Ville de Paris*, conforming to his wish in every respect, except that the Count de Grasse declined complying with a proposition to station some of his ships in the river above Yorktown, thinking it too hazardous.

While the close investment of the British army was delayed, only until the troops from the north should arrive, serious apprehensions were excited that the brilliant results confidently anticipated from the superiority of the land and naval forces of the allies, would be put in imminent hazard.

Information was received that a reinforcement of six ships of the line under Admiral Digby had reached New York. Confident that the British fleet, thus augmented, would attempt every thing for the relief of Lord Cornwallis, De Grasse expected to be attacked by a force not much inferior to his own. Thinking his station within the Chesapeake unfavourable for a naval combat, he designed to change it, and communicated to General Washington his intention to leave a few frigates to block up the mouths of James and York Rivers, and to put to sea with his fleet in quest of the British. If they should not have left the harbour of New York, he purposed to block them up in that place; supposing that his operations in that quarter would be of more service to the common cause, than his remaining in the bay, an idle spectator of the siege of York.

The Commander-in-chief was much alarmed at this communication. Should the admiral put to sea, the winds and many accidents might prevent his return to the Chesapeake. During his absence, a temporary naval superiority might be acquired by the British in those waters, and the army of Lord Cornwallis might be placed in perfect security. The movement would expose to the caprice of fortune, an object of vast importance, which was now reduced almost to certainty. The admiral was therefore entreated to preserve his station.

Fortunately, the wishes of the general prevailed, and the admiral consented to relinquish those plans of active enterprise which his thirst for military glory had suggested, and to maintain a station which the American general deemed so conducive to the interests of the allies.

September 25.

On the 25th of September, the last division of the allied troops arrived in James River, and were disembarked at the landing near Williamsburg; soon after which, the preparations for the siege were completed.

Yorktown invested.

York is a small village on the south side of the river which bears that name, where the long peninsula between the York and the James, is only eight miles wide. In this broad and bold river, a ship of the line may ride in safety. Its southern banks are high, and, on the opposite shore, is Gloucester Point, a piece of land projecting deep into the river, and narrowing it, at that place, to the space of one mile. Both these posts were occupied by Lord

Cornwallis. The communication between them was commanded by his batteries, and by some ships of war which lay under his guns.

The main body of his army was encamped on the open grounds about Yorktown, within a range of outer redoubts and field works, calculated to command the peninsula, and impede the approach of the assailants; and Lieutenant Colonel Dundass, with a small detachment consisting of six or seven hundred men, held the post at Gloucester Point. He was afterwards reinforced by Lieutenant Colonel Tarlton.

The legion of Lauzun, and a brigade of militia under General Weedon, the whole commanded by the French General de Choisé, were directed to watch the enemy on the side of Gloucester; and, on the twenty-eighth, the grand combined army moved down on the south side of the river, by different roads, towards Yorktown. About noon, the heads of the columns reached the ground assigned them respectively; and, after driving in the piquets and some cavalry, encamped for the evening. The next day, the right wing, consisting of Americans, extended farther to the right, and occupied the ground east of Beverdam creek; while the left wing, consisting of French, was stationed on the west side of that stream. In the course of the night, Lord Cornwallis withdrew from his outer lines; and the works he had evacuated were, the next day, occupied by the besieging army, which now invested the town completely on that side.

Two thousand men were stationed on the Gloucester side for the purpose of keeping up a rigorous blockade. On approaching the lines, a sharp skirmish took place which terminated unfavourably for the British; after which they remained under cover of their works, making no attempt to interrupt the blockade.

October 6.

On the night of the sixth of October, until which time the besieging army was incessantly employed in disembarking their heavy artillery and military stores, and drawing them to camp, the first parallel was commenced within six hundred yards of the British lines. This operation was conducted with so much silence, that it appears not to have been perceived until the return of daylight disclosed it to the garrison; by which time the trenches were in such forwardness as to cover the men. By the evening of the ninth, several batteries and redoubts were completed, and the effect of their fire was soon perceived. New batteries were opened the next day, and the fire became so

heavy that the besieged withdrew their cannon from the embrasures, and scarcely returned a shot. The shells and red hot balls from the batteries of the allied army reached the ships in the harbour, and, in the evening, set fire to the Charon of forty-four guns, and to three large transports, which were entirely consumed. Reciprocal esteem, and a spirit of emulation between the French and Americans, being carefully cultivated by the Commander-in-chief, the siege was carried on with great rapidity. October. The second parallel was opened, on the night of the eleventh, within three hundred yards of the British lines. The three succeeding days were devoted to the completion of this parallel, during which the fire of the garrison, which had opened several new embrasures, became more destructive than at any previous time. The men in the trenches were particularly annoyed by two redoubts advanced three hundred yards in front of the British works, which flanked the second parallel of the besiegers. Preparations were made, on the fourteenth, to carry them both by storm. The attack of one was committed to the Americans, and of the other to the French. The Marquis de Lafayette commanded the American detachment, and the Baron de Viominel the French. Towards the close of the day, the two detachments marched with equal firmness to the assault. Colonel Hamilton, who had commanded a battalion of light infantry throughout this campaign, led the advanced corps of the Americans; and Colonel Laurens turned the redoubt at the head of eighty men, in order to take the garrison in reverse, and intercept their retreat. The troops rushed to the charge without firing a gun and without giving the sappers time to remove the abattis and palisades. Passing over them, they assaulted the works with irresistible impetuosity on all sides at the same time, and entered them with such rapidity that their loss was inconsiderable.[\[85\]](#) This redoubt was defended by Major Campbell, with some inferior officers, and forty-five privates. The major, a captain, a subaltern, and seventeen privates, were made prisoners, and eight privates were killed while the assailants were entering the works.

The redoubt attacked by the French was defended by a greater number of men; and the resistance, being greater, was not overcome so quickly, or with so little loss. One hundred and twenty men, commanded by a lieutenant colonel, were in this work, eighteen of whom were killed, and forty-two, including a captain and two subaltern officers, were made prisoners. The assailants lost, in killed and wounded, near one hundred men.

The Commander-in-chief was highly gratified with the active courage displayed in this assault. Speaking of it in his diary, he says—"The bravery exhibited by the attacking troops was emulous and praiseworthy. Few cases have exhibited greater proofs of intrepidity, coolness, and firmness, than were shown on this occasion." The orders of the succeeding day, congratulating the army on the capture of these important works, expressed a high sense of the judicious dispositions and gallant conduct of both the Baron de Viominel and the Marquis de Lafayette, and requested them to convey to every officer and man engaged in the enterprise, the acknowledgments of the Commander-in-chief for the spirit and rapidity with which they advanced to the attack, and for the admirable firmness with which they supported themselves under the fire of the enemy without returning a shot. "The general reflects," concluding the orders, "with the highest degree of pleasure, on the confidence which the troops of the two nations must hereafter have in each other. Assured of mutual support, he is convinced there is no danger which they will not cheerfully encounter, no difficulty which they will not bravely overcome." [\[86\]](#)



The Moore House at Yorktown, Virginia

Where the terms for the surrender of the British army were arranged between Washington and Cornwallis. The actual drafting of the terms was

done by the Viscount de Noailles and Lieutenant-Colonel Laurens, representing the French-American forces, and Colonel Dundas and Major Ross for the British.

During the same night, these redoubts were included in the second parallel; and, in the course of the next day, some howitzers were placed in them, which, by five in the afternoon, were opened on the besieged.

The situation of Lord Cornwallis was becoming desperate. His works were sinking, in every quarter, under the fire of the besiegers. The batteries already playing on him had silenced nearly all his guns, and the second parallel was about to open, which must in a few hours render the town untenable. To suspend a catastrophe which appeared almost inevitable, he resolved on attempting to retard the completion of the second parallel, by a vigorous sortie against two batteries which appeared to be in the greatest forwardness, and were guarded by French troops. October 16. The party making this sortie was led by Lieutenant Colonel Abercrombie, who attacked the two batteries with great impetuosity about four in the morning, and carried both with inconsiderable loss; but the guards from the trenches immediately advancing on the assailants, they retreated without being able to effect any thing of importance.

About four in the afternoon the besiegers opened several batteries in their second parallel; and it was apparent that, in the course of the ensuing day, the whole line of batteries in that parallel would be ready to play on the town. The works of the besieged were not in a condition to sustain so tremendous a fire. In this extremity, Lord Cornwallis formed the bold design of forcing his way to New York.

He determined to leave his sick and baggage behind, and, crossing over in the night with his effectives to the Gloucester shore, to attack De Choisé. After cutting to pieces or dispersing the troops under that officer, he intended to mount his infantry on the horses taken from that detachment, and on others to be seized on the road, and, by a rapid march to gain the fords of the great rivers, and, forcing his way through Maryland, Pennsylvania, and Jersey, to form a junction with the army in New York. [\[87\]](#)

This desperate attempt would be extremely hazardous; but the situation of the British general had become so hopeless, that it could scarcely be

changed for the worse.

Boats prepared under other pretexts were held in readiness to receive the troops at ten in the evening, and convey them over the river. The arrangements were made with such secrecy that the first embarkation arrived at the point unperceived, and part of the troops were landed, when a sudden and violent storm interrupted the execution of this hazardous plan, and drove the boats down the river. The storm continued till near daylight, when the boats returned. But the plan was necessarily abandoned, and the boats were sent to bring back the soldiers, who were relanded on the southern shore in the course of the forenoon without much loss.

October 17.

In the morning of the seventeenth, several new batteries were opened in the second parallel, which poured in a weight of fire not to be resisted. The place being no longer tenable, Lord Cornwallis, about ten in the forenoon, beat a parley, and proposed a cessation of hostilities for twenty-four hours, that commissioners might meet at Moore's house, which was just in the rear of the first parallel, to settle terms for the surrender of the posts of York and Gloucester. To this letter General Washington returned an immediate answer declaring his "ardent desire to spare the further effusion of blood, and his readiness to listen to such terms as were admissible;" but as in the present crisis he could not consent to lose a moment in fruitless negotiations, he desired that "previous to the meeting of the commissioners, the proposals of his lordship might be transmitted in writing, for which purpose a suspension of hostilities for two hours should be granted." The general propositions^[88] stated by Lord Cornwallis as forming the basis of the capitulation, though not all admissible, being such as led to the opinion that no great difficulty would occur in adjusting the terms, the suspension of hostilities was prolonged for the night. In the mean time, to avoid the delay of useless discussion, the Commander-in-chief drew up and proposed such articles^[89] as he would be willing to grant. These were transmitted to Lord Cornwallis with the accompanying declaration that, if he approved them, commissioners might be immediately appointed to digest them into form. October 18. In consequence of this message, the Viscount de Noailles, and Lieutenant Colonel Laurens, were met next day by Colonel Dundass and Major Ross; but, being unable to adjust the terms of capitulation definitively, only a rough draught of them could be prepared, which was to

be submitted to the consideration of the British general. Determined not to expose himself to those accidents which time might produce, General Washington could not permit any suspense on the part of Lord Cornwallis. He therefore immediately directed the rough articles which had been prepared by the commissioners to be fairly transcribed, and sent them to his lordship early next morning, with a letter expressing his expectation that they would be signed by eleven, and that the garrison would march out by two in the afternoon. Surrender of Lord Cornwallis. Finding all attempts to obtain better terms unavailing, Lord Cornwallis submitted to a necessity no longer to be avoided, and, on the 19th of October, surrendered the posts of Yorktown and Gloucester Point, with their garrisons, and the ships in the harbour with their seamen, to the land and naval forces of America and France.

Nineteenth.

The army, artillery, arms, military chest, and public stores of every denomination, were surrendered to General Washington; the ships and seamen, to the Count de Grasse. The total number of prisoners,[\[90\]](#) excluding seamen, rather exceeded seven thousand men. The loss sustained by the garrison during the siege, amounted to five hundred and fifty-two men, including six officers.

Lord Cornwallis endeavoured to introduce an article into the capitulation, for the security of those Americans who had joined the British army; but the subject was declared to belong to the civil department, and the article was rejected. Its object, however, was granted without appearing to concede it. His lordship was permitted to send the Bonetta sloop of war untouched, with despatches to Sir Henry Clinton; and the Americans whose conduct had been most offensive to their countrymen were embarked on board this vessel.

The allied army may be estimated, including militia, at sixteen thousand men. In the course of this siege, they lost, in killed and wounded, about three hundred. The treaty was opened on the eleventh day after the ground was broken by the besiegers, and the capitulation was signed on the thirteenth. The whole army merited great approbation; but, from the nature of the service, the artillerists and engineers were enabled to distinguish themselves particularly. Generals du Portail and Knox were each promoted to the rank of Major General; and Colonel Govion, and Captain

Rochfontaine, of the corps of engineers, were each advanced a grade by brevet. In addition to the officers belonging to those departments, Generals Lincoln, De Lafayette, and Steuben, were particularly mentioned by the Commander-in-chief, in his orders issued the day after the capitulation; and terms of peculiar warmth were applied to Governor Nelson, who continued in the field during the whole siege, at the head of the militia of Virginia; and also exerted himself, in a particular manner, to furnish the army with those supplies which the country afforded. The highest acknowledgments were made to the Count de Rochambeau; and several other French officers were named with distinction. So many disasters had attended the former efforts of the United States to avail themselves of the succours occasionally afforded by France, that an opinion not very favourable to the alliance appears to have gained some ground in the country, and to have insinuated itself into the army. The Commander-in-chief seized this occasion to discountenance a course of thinking from which he had always feared pernicious consequences, and displayed the great value of the aids lately received, in language highly flattering to the French monarch, as well as to the land and naval forces of that nation.

Knowing the influence which the loss of the army in Virginia must have on the war, Sir Henry Clinton determined to hazard much for its preservation. About seven thousand of his best troops sailed for the Chesapeake, under convoy of a fleet augmented to twenty-five ships of the line. This armament left the Hook the day on which the capitulation was signed at Yorktown, and appeared off the capes of Virginia on the 24th of October. Unquestionable intelligence being there received that Lord Cornwallis had surrendered, the British general returned to New York.

The exultation manifested throughout the United States at the capture of this formidable army was equal to the terror it had inspired. In congress, the intelligence was received with joy proportioned to the magnitude of the event; and the sense of that body on this brilliant achievement was expressed in various resolutions, returning the thanks of the United States to the Commander-in-chief, to the Count de Rochambeau, to the Count de Grasse, to the officers of the allied army generally, and to the corps of artillery, and engineers particularly. In addition to these testimonials of gratitude, it was resolved that a marble column should be erected at Yorktown, in Virginia, with emblems of the alliance between the United States and his Most Christian Majesty, and inscribed with a succinct

narrative of the surrender of Earl Cornwallis to his Excellency General Washington, the Commander-in-chief of the combined forces of America and France; to his Excellency the Count de Rochambeau, commanding the auxiliary troops of his Most Christian Majesty in America; and to his Excellency Count de Grasse, commanding in chief the naval army of France in the Chesapeake. Two stand of colours taken in Yorktown were presented to General Washington; two pieces of field ordnance to the Count de Rochambeau; and application was made to his Most Christian Majesty, to permit the Admiral to accept a testimonial of their approbation similar to that presented to the Count de Rochambeau. Congress determined to go in solemn procession to the Dutch Lutheran church, to return thanks to Almighty God for crowning the allied arms with success, by the surrender of the whole British army under Lord Cornwallis; and also issued a proclamation, appointing the 13th day of December for general thanksgiving and prayer, on account of this signal interposition of Divine Providence.

It was not by congress only that the public joy at this great event, and the public approbation of the conduct of General Washington were displayed. The most flattering and affectionate addresses of congratulation were presented from every part of the union; and state governments, corporate towns, and learned institutions, vied with each other in the testimonials they gave of their high sense of his important services, and of their attachment to his person and character.

The superiority of the allied force opened a prospect of still farther advantages. The remaining posts of the British in the southern states were too weak to be defended against the army which had triumphed over Lord Cornwallis; and the troops which occupied them could neither escape nor be reinforced, if the Count de Grasse could be prevailed on to co-operate against them. Although, in his first conference, he had explicitly declared his inability to engage in any enterprise to be undertaken subsequent to that against Yorktown,[\[91\]](#) the siege of that place had employed so much less time than the admiral had consented to appropriate to it, that the general resumed his plan of southern operations. In a letter addressed to De Grasse, he used every argument which might operate on his love of fame, or his desire to promote the interests of the allies, to prevail on him to co-operate in an expedition against Charleston. If this object should be unattainable, his attention was next turned to Wilmington, in North Carolina, which was

still occupied by a small detachment of British troops who kept that state in check. The capture of this detachment, though not an object of much consequence in itself, was supposed to derive some importance from the influence which the complete liberation of North Carolina might have on the future military operations of the United States, and on their negotiations. General Washington proposed to send a detachment intended to reinforce General Greene, as far as Wilmington, under convoy. The reduction of that place, he supposed, would detain the fleet but a few days, after which it might proceed to the West Indies.

To enforce the representations contained in his letter, as well as to pay his respects to the admiral, and to express in person the high sense entertained of his important services, the Commander-in-chief repaired on board the *Ville de Paris*. October 23. The Count acknowledged his conviction of the advantages to be expected from an expedition against Charleston; but said, that "the orders of his court, ulterior projects, and his engagements with the Spaniards, rendered it impossible for him to remain on the coast during the time which would be required for the operation." As he also declined taking on board the troops designed to reinforce General Greene, preparations were made for their march by land; and Major General St. Clair, who commanded the detachment, was ordered to take Wilmington in his route, and to gain possession of that post.

November.

The Count de Grasse having consented to remain in the bay a few days for the purpose of covering the transportation of the eastern troops, and of the ordnance to the Head of Elk, they were embarked in the beginning of November, under the command of General Lincoln, who was directed to march them into New Jersey and New York, and to canton them for the winter in those states.^[92] The French troops remained in Virginia, not only for the protection of that state, but to be in readiness to march southward or northward, as the exigencies of the ensuing campaign might require.

The transportation of the troops and ordnance to the Head of Elk being effected, the Count de Grasse sailed for the West Indies, and the Commander-in-chief proceeded to Philadelphia.

NOTES.

NOTE—No. I. See [Page 3](#)

The following petition addressed to Governor Livingston, will furnish some evidence of the situation to which that part of Jersey was reduced.

To his excellency William Livingston, esquire, governor, captain general, and commander-in-chief in and over the state of New Jersey and the territories thereunto belonging in America, chancellor and ordinary in the same—the humble petition of the officers, civil and military, whose names are hereunto subscribed,

Showeth,—That a large detachment of the British army, a few weeks ago, made an invasion into the lower counties of this state on Delaware, and plundered a few of the inhabitants. That at present a large detachment are invading them a second time. That the enemy in this second incursion, have, as we have been credibly informed, by the express orders of Colonel Mawhood, the commanding officer, bayoneted and butchered in the most inhuman manner, a number of the militia who have unfortunately fallen into their hands. That Colonel Mawhood immediately after the massacre, in open letters, sent to both officers and privates by a flag, had the effrontery to insult us with a demand, that we should lay down our arms, and if not, threatened to burn, destroy, and lay the whole country waste, and more especially the property of a number of our most distinguished men, whom he named. That he has since put his threat into execution, in one instance, by burning one of the finest dwelling houses in Salem county, and all the other buildings on the same farm, the property of Colonel Benjamin Home. That plunder, rapine, and devastation in the most fertile and populous parts of these counties, widely mark their footsteps wherever they go. That they are spreading disaffection, they are using every possible means to corrupt the minds of the people, who, within their lines, have so little virtue as to purchase from them.

That we are in no state of defence. That we are so exposed by reason of our situation, that some of our officers, civil and military, have moved out of the counties for safety. That our militia, during the last winter, have been

so fatigued out by repeated calls and continued service, and disaffection is now so widely diffused, that very few can be called out, in some places, none. That we have no troops of light horse regularly embodied, there is a scarcity of small arms among us, and no field pieces. That in these two incursions, we have very sensibly felt the want of field pieces and artillery men, that the number of us assembled is so small, that though we should use the greatest conduct and bravery, we could only provoke, not injure our enemy.

That the extent of our country is so great, that our small number of men fatigued out, indifferently armed and without field pieces, can not defend it. That, as Delaware runs all along those counties, we are liable to be attacked in numberless places.

That the acquisition of these counties would be of great advantage to the enemy. That they could nearly maintain their whole army a campaign by the plunder, forage, and assistance they could draw from them. That although the United States might not need them, yet it might perhaps be adviseable to defend them, to prevent the advantage the enemy might receive from them. That our riches, and former virtue, make us a prey to an enemy, whose tender mercies are cruelties.

That in short, our situation is beyond description deplorable. That the powers civil and military are daily relaxing, and disaffection prevailing. That we can neither stay at our houses, go out, nor come in with safety. That we can neither plough, plant, sow, reap nor gather. That we are fast falling into poverty, distress, and into the hands of our enemy. That unless there can be sent to our relief and assistance a sufficient body of standing troops, we must be under the disagreeable necessity of leaving the country to the enemy, and removing ourselves and families to distant places for safety. That although the present detachment may be fled and gone, before the relief reaches us, yet a body of troops are necessary for our protection, as long as the enemy possess Philadelphia. And these are the sentiments not only of us the subscribers, but of all the rest of the officers civil and military, and other the good subjects of this state in these counties.

NOTE—No. II. See [Page 85](#)

The following is the report made by the committee:

"January 1, 1779. The committee appointed to confer with the Commander-in-chief on the operations of the next campaign, report, that the plan proposed by congress for the emancipation of Canada, in co-operation with an army from France, was the principal subject of the said conference.

"That, impressed with a strong sense of the injury and disgrace which must attend an infraction of the proposed stipulations, on the part of these states, your committee have taken a general view of our finances, of the circumstances of our army, of the magazines of clothes, artillery, arms and ammunition, and of the provisions in store, and which can be collected in season.

"Your committee have also attentively considered the intelligence and observations communicated to them by the Commander-in-chief, respecting the number of troops and strong holds of the enemy in Canada; their naval force, and entire command of the water communication with that country—the difficulties, while they possess such signal advantages, of penetrating it with an army by land—the obstacles which are to be surmounted in acquiring a naval superiority—the hostile temper of many of the surrounding Indian tribes towards these states, and above all the uncertainty whether the enemy will not persevere in their system of harassing and distressing our sea-coast and frontiers by a predatory war.

"That on the most mature deliberation, your committee can not find room for a well grounded presumption that these states will be able to perform their part of the proposed stipulations. That in a measure of such moment, calculated to call forth, and direct to a single object a considerable portion of the force of our ally, which may otherwise be essentially employed, nothing else than the highest probability of success could justify congress in making the proposition.

"Your committee are therefore of opinion that the negotiation in question, however desirable, and interesting, should be deferred until circumstances render the co-operation of these states more certain, practicable, and effectual.

"That the minister plenipotentiary of these states at the court of Versailles, the minister of France in Pennsylvania, and the minister of France, be respectively informed that the operations of the next campaign must depend on such a variety of contingencies to arise, as well from our own internal circumstances and resources, as the progress and movements

of our enemy, that time alone can mature and point out the plan which ought to be pursued. That congress, therefore, can not, with a degree of confidence answerable to the magnitude of the object, decide on the practicability of their co-operating the next campaign, in an enterprise for the emancipation of Canada; that every preparation in our power will nevertheless be made for acting with vigour against the common enemy, and every favourable incident embraced with alacrity, to facilitate, and hasten the freedom and independence of Canada, and her union with these states—events which congress, from motives of policy with respect to the United States, as well as of affection for their Canadian brethren, have greatly at heart."

Mr. de Sevelinges in his introduction to Botta's History, recites the private instructions given to Mr. Girard on his mission to the United States. One article was, "to avoid entering into any formal engagement relative to Canada and other English possessions which congress proposed to conquer." Mr. de Sevelinges adds that "the policy of the cabinet of Versailles viewed the possession of those countries, especially of Canada by England, as a principle of useful inquietude and vigilance to the Americans. The neighbourhood of a formidable enemy must make them feel more sensibly the price which they ought to attach to the friendship and support of the king of France."

The author has reason to believe that this policy was known to the Marquis de Lafayette when his devotion to the interests of the United States induced him to add his influence to their solicitations for aid to this enterprise.

NOTE—No. III. See [Page 233](#)

A letter to President Reed of Pennsylvania from which the following extracts are taken, is selected from many others written with the same view.

"Morristown, May 28th, 1780.

"Dear Sir,—I am much obliged to you for your favour of the 23d. Nothing could be more necessary than the aid given by your state towards supplying us with provisions. I assure you, every idea you can form of our distresses, will fall short of the reality. There is such a combination of circumstances to exhaust the patience of the soldiery, that it begins at length

to be worn out, and we see in every line of the army, the most serious features of mutiny and sedition: all our departments, all our operations are at a stand; and unless a system very different from that which has for a long time prevailed, be immediately adopted throughout the states, our affairs must soon become desperate beyond the possibility of recovery. If you were on the spot, my dear sir, if you could see what difficulties surround us on every side, how unable we are to administer to the most ordinary calls of the service, you would be convinced that these expressions are not too strong: and that we have every thing to dread: Indeed I have almost ceased to hope. The country in general is in such a state of insensibility and indifference to its interests, that I dare not flatter myself with any change for the better.

"The committee of congress in their late address to the several states, have given a just picture of our situation. I very much doubt its making the desired impression; and if it does not, I shall consider our lethargy as incurable. The present juncture is so interesting, that if it does not produce correspondent exertions, it will be a proof, that motives of honour, public good, and even self-preservation, have lost their influence upon our minds. This is a decisive moment, one of the most, I will go further and say, the most important America has seen. The court of France has made a glorious effort for our deliverance, and if we disappoint its intentions by our supineness, we must become contemptible in the eyes of all mankind; nor can we, after that, venture to confide that our allies will persist in an attempt to establish what it will appear we want inclination or ability to assist them in.

"Every view of our own circumstances ought to determine us to the most vigorous efforts; but there are considerations of another kind, that should have equal weight. The combined fleets of France and Spain last year were greatly superior to those of the enemy; the enemy nevertheless sustained no material damage, and at the close of the campaign gave a very important blow to our allies. This campaign, the difference between the fleets, from every account I have been able to collect, will be inconsiderable: indeed it is far from clear that there will be an equality. What are we to expect will be the case if there should be another campaign? In all probability the advantage would be on the side of the English, and then what would become of America? We ought not to deceive ourselves. The maritime resources of Great Britain are more substantial and real than those of France

and Spain united. Her commerce is more extensive than that of both her rivals; and it is an axiom, that the nation which has the most extensive commerce will always have the most powerful marine. Were this argument less convincing, the fact speaks for itself: her progress in the course of the last year is an incontestable proof.

"It is true France in a manner created a fleet in a very short space, and this may mislead us in the judgment we form of her naval abilities. But if they bore any comparison with those of Great Britain, how comes it to pass, that with all the force of Spain added, she has lost so much ground in so short a time, as now to have scarcely a superiority. We should consider what was done by France, as a violent and unnatural effort of the government, which, for want of sufficient foundation, can not continue to operate proportionable effects.

"In modern wars, the longest purse must chiefly determine the event. I fear that of the enemy will be found to be so. Though the government is deeply in debt and of course poor, the nation is rich, and their riches afford a fund which will not be easily exhausted. Besides, their system of public credit is such, that it is capable of greater exertions than that of any other nation. Speculatists have been a long time foretelling its downfall; but we see no symptoms of the catastrophe being very near. I am persuaded it will at least last out the war.

"France is in a very different position. The abilities of the present financier, have done wonders; by a wise administration of the revenues, aided by advantageous loans, he has avoided the necessity of additional taxes. But I am well informed if the war continues another campaign, he will be obliged to have recourse to the taxes usual in time of war, which are very heavy, and which the people of France are not in a condition to endure for any length of time. When this necessity commences, France makes war on ruinous terms, and England, from her individual wealth, will find much greater facilities in supplying her exigencies.

"Spain derives great wealth from her mines, but it is not so great as is generally imagined. Of late years the profit to government is essentially diminished. Commerce and industry are the best mines of a nation; both which are wanted by her. I am told her treasury is far from being so well filled as we have flattered ourselves. She is also much divided on the propriety of the war. There is a strong party against it. The temper of the

nation is too sluggish to admit of great exertions; and though the courts of the two kingdoms are closely linked together, there never has been in any of their wars, a perfect harmony of measures, nor has it been the case in this; which has already been no small detriment to the common cause.

"I mention these things to show that the circumstances of our allies, as well as our own, call for peace, to obtain which we must make one great effort this campaign. The present instance of the friendship of the court of France, is attended with every circumstance that can render it important and agreeable, that can interest our gratitude or fire our emulation. If we do our duty we may even hope to make the campaign decisive of the contest. But we must do our duty in earnest, or disgrace and ruin will attend us. I am sincere in declaring a full persuasion that the succour will be fatal to us if our measures are not adequate to the emergency.

"Now, my dear sir, I must observe to you, that much will depend on the state of Pennsylvania. She has it in her power to contribute, without comparison, more to our success, than any other state, in the two essential articles of flour and transportation. I speak to you in the language of frankness, and as a friend. I do not mean to make any insinuations unfavourable to the state. I am aware of the embarrassment the government labours under from the open opposition of one party and the underhand intrigues of another. I know that with the best dispositions to promote the public service, you have been obliged to move with circumspection. But this is a time to hazard, and to take a tone of energy and decision. All parties but the disaffected will acquiesce in the necessity and give their support.

"The matter is reduced to a point. Either Pennsylvania must give us all we ask, or we can undertake nothing. We must renounce every idea of co-operation, and must confess to our allies that we look wholly to them for our safety. This will be a state of humiliation and bitterness against which the feelings of every good American ought to revolt. Yours I am convinced will, nor have I the least doubt, but that you will employ all your influence to animate the legislature and the people at large. The fate of these states hangs upon it. God grant we may be properly impressed with the consequences.

"I wish the legislature could be engaged to vest the executive with plenipotentiary powers. I should then expect every thing practicable from your abilities and zeal. This is not a time for formality and ceremony. The

crisis in every point of view is extraordinary, and extraordinary expedients are necessary. I am decided in this opinion."

NOTE—No. IV. See [Page 261](#)

André having been unquestionably a spy, and his sentence consequently just; and the plot in which he had engaged having threatened consequences the most fatal to America; his execution, had he been an ordinary person, would certainly have been viewed with cold indifference. But he was not an ordinary person. In a letter written at the time by Colonel Hamilton, who in genius, in candour, and in romantic heroism, did not yield to this unfortunate Englishman, the character of André is thus feelingly and eloquently drawn. "There was something singularly interesting in the character and fortunes of André. To an excellent understanding, well improved by education and travel, he united a peculiar elegance of mind and manners, and the advantages of a pleasing person. It is said he possessed a pretty taste for the fine arts, and had himself attained some proficiency in poetry, music, and painting. His knowledge appeared without ostentation, and embellished by a diffidence that rarely accompanies so many talents and accomplishments, which left you to suppose more than appeared. His sentiments were elevated and inspired esteem, they had a softness that conciliated affection. His elocution was handsome, his address easy, polite, and insinuating. By his merit he had acquired the unlimited confidence of his general, and was making rapid progress in military rank and reputation. But in the height of his career, flushed with new hopes from the execution of a project the most beneficial to his party that could be devised, he is at once precipitated from the summit of prosperity, sees all the expectations of his ambition blasted, and himself ruined. The character I have given of him is drawn partly from what I saw of him myself, and partly from information. I am aware that a man of real merit is never seen in so favorable a light as through the medium of adversity. The clouds that surround him are so many shades that set off his good qualities. Misfortune cuts down little vanities, that in prosperous times, serve as so many spots in his virtues; and gives a tone to humanity that makes his worth more amiable.

"His spectators, who enjoy a happier lot, are less prone to detract from it through envy; and are much disposed by compassion to give the credit he

deserves, and perhaps even to magnify it."

NOTE—No. V. See [Page 377](#)

On the first of May, 1781, General Washington commenced a military journal. The following is a brief statement of the situation of the army at that time. "I begin at this epoch, a concise journal of military transactions, &c. I lament not having attempted it from the commencement of the war in aid of my memory: and wish the multiplicity of matter which continually surrounds me, and the embarrassed state of our affairs, which is momentarily calling the attention to perplexities of one kind or another, may not defeat altogether, or so interrupt my present intention and plan, as to render it of little avail.

"To have the clearer understanding of the entries which may follow, it would be proper to recite, in detail, our wants, and our prospects; but this alone would be a work of much time, and great magnitude. It may suffice to give the sum of them, which I shall do in a few words, viz:

"Instead of having magazines filled with provisions, we have a scanty pittance scattered here and there in the different states.

"Instead of having our arsenals well supplied with military stores, they are poorly provided, and the workmen all leaving them.—Instead of having the various articles of field equipage in readiness to deliver, the quartermaster general is but now applying to the several states (as the dernier ressort) to provide these things for their troops respectively. Instead of having a regular system of transportation established upon credit—or funds in the quartermaster's hands to defray the contingent expenses of it—we have neither the one or the other; and all that business, or a great part of it, being done by military impressment, we are daily and hourly oppressing the people, souring their tempers, and alienating their affections. Instead of having the regiments completed to the new establishments (and which ought to have been so by the —— of —— agreeably to the requisitions of congress, scarce any state in the union has, at this hour, one-eighth part of its quota in the field; and there is little prospect that I can see of ever getting more than half. In a word, instead of having every thing in readiness to take the field, we have nothing. And instead of having the prospect of a glorious offensive campaign before us, we have a bewildered and gloomy prospect

of a defensive one; unless we should receive a powerful aid of ships, land troops and money from our generous allies: and these at present are too contingent to build upon."

NOTE—No. VI. See [Page 405](#)

York in Virginia, 17th October, 1781, half past four, P.M.

Sir,—I have this moment been honoured with your excellency's letter dated this day. The time limited for sending my answer will not admit of entering into the details of articles, but the basis of my proposals will be, that the garrisons of York and Gloucester shall be prisoners of war with the customary honours; and for the convenience of the individuals which I have the honour to command, that the British shall be sent to Britain, and the Germans to Germany, under engagements not to serve against France, America, or their allies, until released or regularly exchanged. That all arms and public stores shall be delivered up to you, but that the usual indulgence of side arms to officers and of retaining private property shall be granted to officers and soldiers; and the interests of individuals in civil capacities, and connected with us, shall be attended to. If your excellency thinks that a continuance of the suspension of hostilities will be necessary to transmit your answer, I shall have no objection to the hour that you propose. I have the honour to be,

Sir, your most obedient and most humble servant,
CORNWALLIS.

His excellency General Washington, &c. &c. &c.

NOTE—No. VII. See [Page 406](#)

Head quarters before York, 18th October, 1781.

My Lord,—To avoid unnecessary discussions and delays, I shall at once, in answer to your lordship's letter of yesterday, declare the general basis upon which a definitive treaty of capitulation must take place. The garrison of York and Gloucester, including the seamen, as you propose, will be received prisoners of war. The condition annexed of sending the British and German troops to the parts of Europe to which they respectively belong, is inadmissible. Instead of this, they will be marched to such parts of the

country as can most conveniently provide for their subsistence; and the benevolent treatment of prisoners, which is invariably observed by the Americans, will be extended to them. The same honours will be granted to the surrendering army, as were granted to the garrison of Charleston.

The shipping and boats in the two harbours, with all their guns, stores, tackling, furniture, and apparel, shall be delivered in their present state to an officer of the navy appointed to take possession of them.

The artillery, arms, accoutrements, military chest, and public stores of every denomination, shall be delivered unimpaired, to the heads of departments, to which they respectively belong.

The officers will be indulged in retaining their side arms, and the officers and soldiers may preserve their baggage and effects with this reserve, that property taken in the country will be reclaimed.

With regard to the individuals in civil capacities, whose interests your lordship wishes may be attended to, until they are more particularly described, nothing definitive can be settled.

I have to add, that I expect the sick and wounded will be supplied with their own hospital stores, and attended by British surgeons particularly charged with the care of them.

Your lordship will be pleased to signify your determination either to accept or reject the proposals now offered, in the course of two hours from the delivery of this letter, that commissioners may be appointed to digest the articles of capitulation, or a renewal of hostilities may take place.

I have the honour to be, my lord, &c.

GEORGE WASHINGTON.

Lieutenant General Earl Cornwallis.

York, in Virginia, 18th October, 1781.

Sir,—I agree to open a treaty of capitulation upon the basis of the garrisons of York and Gloucester, including seamen, being prisoners of war without annexing the condition of their being sent to Europe; but I expect to receive a compensation in arranging the articles of capitulation for the surrender of Gloucester in its present state of defence.

I shall in particular desire that the Bonetta sloop of war, may be left entirely at my disposal from the hour the capitulation is signed, to receive

an aid-de-camp to carry my despatches to Sir Henry Clinton and such soldiers as I may think proper to send as passengers in her, to be manned with fifty men of her own crew, and to be permitted to sail without examination when my despatches are ready; engaging on my part that the ship shall be brought back and delivered to you, if she escapes the dangers of the sea; that the crew and soldiers sent as passengers shall be accounted for in future exchanges as prisoners; that she shall carry off no officer without your consent, nor public property of any kind; and I shall likewise desire that the traders and inhabitants may preserve their property, and that no person may be punished or molested for having joined the British troops.

If you choose to proceed to negotiation on these grounds, I shall appoint two field officers of my army to meet two officers from you at any time and place you think proper, to digest the articles of capitulation. I have the honour to be, sir,

Your most obedient and most humble servant,

CORNWALLIS.

His excellency General Washington, &c. &c. &c.

NOTE—No. VIII. See [Page 411](#)

Head quarters, 20th October, 1781.

Sir,—The surrender of York, from which so much glory and advantage are derived to the allies, and the honour of which belongs to your excellency, has greatly anticipated our most sanguine expectations. Certain of this event under your auspices, though unable to determine the time, I solicited your excellency's attention in the first conference with which you honoured me, to ulterior objects of decisive importance to the common cause. Although your excellency's answer on that occasion was unfavourable to my wishes, the unexpected promptness with which our operations have been conducted to their final success having gained us time, the defect of which was one of your excellency's principal objections, a perspective of the most extensive and happy consequences, engages me to renew my representations.

Charleston, the principal maritime port of the British in the southern parts of the continent, the grand deposite and point of support for the present

theatre of the war, is open to a combined attack, and might be carried with as much certainty as the place which has just surrendered.

This capture would destroy the last hope which induces the enemy to continue the war; for having experienced the impracticability of recovering the populous northern states, he has determined to confine himself to the defensive in that quarter, and to prosecute a most vigorous offensive in the south, with a view of conquering states, whose spare population and natural disadvantages render them infinitely less susceptible of defence; although their productions render them the most valuable in a commercial view. His naval superiority, previous to your excellency's arrival, gave him decisive advantages in the rapid transport of his troops and supplies: while the immense land marches of our succours, too tardy and expensive in every point of view, subjected us to be beaten in detail.

It will depend upon your excellency, therefore, to terminate the war, and enable the allies to dictate the law in a treaty. A campaign so glorious and so fertile in consequences, could be reserved only for the Count de Grasse.

It rarely happens that such a combination of means, as are in our hands at present, can be seasonably obtained by the most strenuous of human exertions.—A decisively superior fleet, the fortune and talents of whose commander overawe all the naval force that the most incredible efforts of the enemy have been able to collect; an army flushed with success, and demanding only to be conducted to new attacks; and the very season which is proper for operating against the points in question.

If upon entering into the detail of this expedition, your excellency should still determine it impracticable, there is an object which though subordinate to that above mentioned, is of capital importance to our southern operations, and may be effected at infinitely less expense; I mean the enemy's post at Wilmington in North Carolina. Circumstances require that I should at this period reinforce the southern army under General Greene. This reinforcement transported by sea under your excellency's convoy, would enable us to carry the post in question with very little difficulty, and would wrest from the British a point of support in North Carolina, which is attended with the most dangerous consequences to us, and would liberate another state. This object would require nothing more than the convoy of your excellency to the point of operation, and the protection of the debarkation.

I intreat your excellency's attention to the points which I have the honour of laying before you, and to be pleased at the same time to inform me what are your dispositions for a maritime force to be left on the American station.

I have the honour to be, &c.

GEORGE WASHINGTON.

NOTE—No. IX. See [Page 413](#)

Late in October an irruption was made into the country on the Mohawk, by Major Ross, at the head of about five hundred men, composed of regulars, rangers, and Indians. Colonel Willet, with between four and five hundred men, partly of the troops denominated levies, and partly militia, immediately marched in quest of them, and fell in with them at Johnstown, where they were slaughtering cattle, apparently unapprehensive of an enemy. Before showing himself, he detached Major Rowley of Massachusetts with the left wing to fall on the rear, while he should engage the front. On his appearance the British party retired to a neighbouring wood, and the American advance was just beginning to skirmish with them, when that whole wing, without any apparent cause, suddenly fled from the field, leaving a field-piece posted on a height in order to cover a retreat, to fall into the hands of the enemy. Fortunately for the party, Rowley appeared in the rear at this critical juncture, and regained what the right wing had lost. Night soon coming on, Major Ross retired further into the wood, and encamped on the top of a mountain. He seems after this skirmish to have been only intent on repassing the dreary wilderness in his rear, and securing his party; an object not to be accomplished without immense fatigue and great suffering, as Colonel Willet had cut off their return to their boats, and they were to retreat by the way of Buck island, or Oswegatchie. With a select part of his troops who were furnished with five days provisions, and about sixty Indians who had just joined him, and who, he said, "are the best cavalry for the service of the wilderness," he commenced a rapid pursuit, and in the morning of the 30th, at a ford on Canada creek, fell in with about forty whites and some Indians who were left in the rear to procure provisions. These were attacked and the greater number of them killed or taken, upon which the main body fled with such rapidity that the pursuit proved ineffectual. In the party at Canada creek was Major Walter Butler, the person who perpetrated the massacre at Cherry-valley. His entreaties for

quarter were disregarded, and he fell the victim of that vengeance which his own savage temper had directed against himself.

END OF VOLUME III.

FOOTNOTES

[1] See [note No. I.](#) at the end of the volume.

[2] General Wilkinson, in his memoirs, says that this notice was given by a person formerly a lieutenant in Proctor's regiment of artillery, who, disgusted at being discarded from the American service, became a spy to Sir William Howe; and, the better to fulfil his new engagements, kept up his acquaintance with his former comrades, and frequently visited the camp at Valley Forge. To avoid the suspicion which would be excited by his going into Philadelphia, a rendezvous had been established on Frankford Creek, where he met a messenger from General Howe, to whom his communications were delivered. This statement is certainly correct.

[3] Extracts of letters from the adjutant general and the officer of the day to Captain M'Clane.

Camp Valley Forge, May 21st, 1778.

Dear Captain,—I am happy you have with your brave little party conducted with so much honour to yourself. The Marquis effected, owing to your vigilance, a glorious retreat as well as a difficult one.

Signed Alex. Scammell, *Adj. Gen.*

Camp Valley Forge, May 23d, 1778.

Dear Captain,—I am pleased to hear you are still doing something to distinguish yourself in the eyes of your country. I have the pleasure to inform you that your conduct with the Marquis has been very pleasing to his Excellency and the whole army.

I am your obedient servant,

Charles Scott, *Brig. Gen. and officer of the day.*

[4] The danger with which this detachment was threatened, was perceived from the camp at Valley Forge, soon after it had been communicated to Lafayette. Alarm-guns were fired to announce it to him, and the whole army was put under arms, to act as circumstances might require. It has been erroneously stated that General Washington was unapprised of this movement of the British army until its object was defeated. The author was in camp at the time, saw the Commander-in-chief, accompanied by his aids and some of the general officers ride, soon after sun-rise, to the summit of the hill on the side of which the huts were constructed, and look anxiously towards the scene of action through a glass. He witnessed too the joy with which they returned after the detachment had crossed the Schuylkill.

[5] It has been said that his troops were excessively fatigued by a march of upwards of twenty miles, and that he waited, confident that the Marquis could not escape him, for information that Gray had reached his position.

[6] As the British army moved down Second street, Captain M'Lane, with a few light horse and one hundred infantry, entered the city, and cut off, and captured one Captain, one Provost Marshal, one guide to the army, and thirty privates, without losing a man.

[7] Letter of Sir Henry Clinton.

[8] General Lafayette, in a communication made to the author respecting this battle, expresses himself thus: "Never was General Washington greater in war than in this action. His presence stopped the retreat. His dispositions fixed the victory. His fine appearance on horseback, his calm courage, roused by the animation produced by the vexation of the morning, (*le dépit de la matinée*) gave him the air best calculated to excite enthusiasm."

[9] Alluding, it is presumed, to the delicacy of suggesting to General Sullivan the mischief to be apprehended from any intemperate expressions.

[10] The offensive words were "insidious interposition of a power which has, from the first settlement of the colonies, been actuated with enmity to us both; and notwithstanding the pretended date or present form of the French offers."

[11] Some expressions having been used in the letter, respecting the convention troops, which were deemed disrespectful, no other reply was made to it than that "congress gave no answer to insolent letters."

[12] The author has been favoured by his estimable friend, Major General Scott, with the perusal of an introduction written by Mr. L. De Sevelinges, to Botta's "History of the war of the independence of the United States of America," translated into French.

Mr. De Sevelinges professes to have received the most precious explanations, relative to incidents and motives, from a gentleman equally distinguished for his knowledge and his character, whose situation enabled him to become acquainted with facts which were concealed from the public. Speaking of the attempt made by Mr. Johnson, he says, p. 19, it was essential "to break off all communication with the agents of the British minister. Mr. Girard directed all his efforts to this object, and had the good fortune to effect it.

"But the English faction of tories subsisted. It was powerful from the credit of its chiefs."

In a note on this passage, he says, "The most influential were Samuel Adams and Richard Lee, (Richard H. Lee,) the brother of Arthur Lee, one of the deputies of congress in France. He was convicted of having secret intelligence with the British minister."

It would be injustice to the memoirs of these distinguished patriots to attempt their vindication against this atrocious and unfounded calumny. A calumny supported by no testimony, nor by a single circumstance wearing even the semblance of probability, and confuted by the whole tenour of their lives. The annals of the American revolution do not furnish two names more entirely above suspicion than Samuel Adams and Richard Henry Lee. With the first gentleman the author was not personally acquainted. With the last he was; and can appeal with confidence to every man who knew him, to declare the conviction, that he died as he lived, a pure and devoted, as well as enlightened friend of American independence. The same character was maintained by Mr. Adams.

In casting about for the foundation of this calumny, the author is inclined to look for it in the opinions entertained by these gentlemen, on subjects connected with the negotiations for peace.

Since the publication of the secret journals of congress, it is generally known that France countenanced the claim of Spain to circumscribe the western boundary of the United States, by the line prescribed in the royal proclamation of 1763, for settlement of vacant lands. After Great Britain had consented to acknowledge the independence of the United States, it was understood by those who were acquainted with the views of the belligerents, that a disposition existed on the part of France and Spain, to continue the war for objects in which the United States felt no interest,—among others, for Gibraltar and Jamaica. Some American statesmen, and the Lees were of the number, probably Mr. Adams also, were extremely apprehensive that the miseries of their country would be prolonged for these objects. It is not impossible that the sentiments of these gentlemen on these subjects, being in opposition to the views of France, might, though founded entirely in American policy, be attributed to British intrigues.

[13] This gentleman is stated not to have been of the same family with the leader of the invading army.

[14] The representation of this battle, and of the circumstances attending the destruction of the Wyoming settlement, have been materially varied from the statement made of them in the first edition. The papers of General Washington furnished allusions to the transaction, but no particular account of it. The author therefore relied on Mr. Gordon and Mr. Ramsay, whose authority was quoted. Soon after the work was published, he received a letter from a gentleman then residing in that country, (Mr. Charles Miner,) who asserted with confidence that the statement was incorrect, and gave himself a minute detail of events, collected from persons who were in the settlement at the time, and witnessed them.

The author has been since indebted to the same gentleman for a statement of the battle, and of the events which followed it, drawn up by one of the descendants of Colonel Zebulon Butler, to which the certificates of several gentlemen are annexed, who were engaged in the action. These documents, with one which will be mentioned, convince him that the combined treachery and savage ferocity which have been painted in such vivid colours, in the narratives that have been given of this furious and desolating irruption, have been greatly exaggerated. Historic truth demands that these misstatements should be corrected.

The other document alluded to, is a letter from Zebulon Butler to the board of war, making his report of the transaction. The letter has been lately found among his papers, and is copied below.

Grandenhtuten, Penn Township, July 10th, 1778.

Honoured Sir,—On my arrival at Westmoreland, (which was only four days after I left Yorktown,) I found there was a large body of the enemy advancing on that settlement. On the first of July we mustered the militia, and marched towards them by the river above the settlement,—found and killed two Indians at a place where the day before they had murdered nine men engaged in hoeing corn. We found some canoes, &c. but finding we were above their main body, it was judged prudent to return. And as every man had to go to his own house for his provision, we could not muster again till the 3d of July. In the mean time, the enemy had got possession of two forts, one of which we had reason to believe was designed for them, though they burnt them both. The inhabitants had seven forts for the security of their women and children, extending about ten miles on the river, and too many men would stay in them to take care of them; but after collecting about three hundred of the most spirited of them, including Captain Hewitt's company, I

held a council with the officers, who were all agreed that it was best to attack the enemy before they got any farther. We accordingly marched,—found their situation,—formed a front of the same extension of the enemy's, and attacked from right to left at the same time. Our men stood the fire well for three or four shots, till some part of the enemy gave way; but unfortunately for us, through some mistake, the word *retreat* was understood from some officer on the left, which took so quick that it was not in the power of the officers to form them again, though I believe, if they had stood three minutes longer, the enemy would have been beaten. The utmost pains were taken by the officers, who mostly fell. A lieutenant colonel, a major and five captains, who were in commission in the militia, all fell. Colonel Durkee, and Captains Hewitt and Ransom were likewise killed. In the whole, about two hundred men lost their lives in the action on our side. What number of the enemy were killed is yet uncertain, though I believe a very considerable number. The loss of these men so intimidated the inhabitants, that they gave up the matter of fighting. Great numbers ran off, and others would comply with the terms that I had refused. The enemy sent flags frequently—the terms you will see in the enclosed letter. They repeatedly said they had nothing to do with any but the inhabitants, and did not want to treat with me. Colonel Dennison, by desire of the inhabitants, went and complied,—which made it necessary for me and the little remains of Captain Hewitt's company to leave the place. Indeed it was determined by the enemy to spare the inhabitants after their agreement, and that myself and the few continental soldiers should be delivered up to the savages. Upon which I left the place, and came scarcely able to move, as I have had no rest since I left Yorktown. It has not been in my power to find a horse or man to wait on the board till now. I must submit to the board what must be the next step. The little remains of Hewitt's company (which are about fifteen) are gone to Shamoken, and Captain Spalding's company, I have heard, are on the Delaware. Several hundred of the inhabitants are strolling in the country destitute of provisions, who have large fields of grain and other necessities of life at Westmoreland. In short, if the inhabitants can go back, there may yet be saved double the quantity of provisions to support themselves, otherwise they must be beggars, and a burthen to the world.

I have heard from men that came from the place since the people gave up, that the Indians have killed no person since, but have burnt most of the buildings, and are collecting all the horses they can, and are moving up the

river. They likewise say the enemy were eight hundred, one-half white men. I should be glad that, if possible, there might be a sufficient guard sent for the defence of the place, which will be the means of saving thousands from poverty—but must submit to the wisdom of congress. I desire farther orders from the honourable board of war with respect to myself, and the soldiers under my direction.

I have the honour to be
Your Honour's most obedient, humble servant,
Zebulon Butler.

[15] See [note No. II.](#) at the end of the volume.

[16] So early as January, 1776, congress had recommended the reduction of St. Augustine to the southern colonies.—*Secret Journals of Congress*, page 38.

[17] Ramsay.

[18] The author was in the covering party, visited the fort next day, and conversed with the officers who had been engaged in storming the works.

[19] The author states these facts from his own observation, and conversations with other officers of the detachment.

[20] While Sullivan was preparing to invade their country, the savages were not inactive. At the head of a small party of whites and Indians, Joseph Brandt fell upon the frontiers of New York, murdered several of the inhabitants, carried others into captivity, and burnt several houses. He was pursued by about one hundred and fifty militia, whom he drew into an ambuscade, and entirely defeated. A few days afterwards, Captain M'Donald, at the head of a small party, of whom a third were British, took a fort on the west branch of the Susquehanna, and made the garrison, amounting to thirty men, prisoners of war. The women and children, contrary to the usage of Indians, were permitted to retire into the settled country.—*Gordon*.

[21] The author has seen notes taken by a member of congress, of communications made by Mr. Girard, when admitted to an audience, which avow these sentiments. The secret journals of congress sustain this statement.

[22] After the fleet passed the fort, Colonel Pinckney and a part of the garrison were withdrawn.

[23] Colonel Parker and Captain Peyton, two valuable officers from Virginia, fell in this manner.

[24] Lieutenant Bowyer, an American officer who was in the engagement, near the person of Colonel Buford, in a letter which the author has lately seen, states this affair in a manner not much conflicting with the statement made of it by Colonel Tarlton.

[25] Journal of Colonel Williams.

[26] Journal of Colonel Williams.

[27] This appointment was made without consulting the Commander-in-chief. He had determined, if consulted, to recommend General Greene.

[28] This valuable officer was pressing forward to Charleston when that place surrendered. Continuing to advance, he was within one day's march of Colonel Buford, when that officer was defeated. Colonel Porterfield still remained on the frontiers of the Carolinas; and had the address not only to avoid the fate of every other corps sent to the relief of Charleston, but to subsist his men; and keep up the semblance of holding that part of South Carolina.

[29] Journal of Colonel Williams.

[30] Journal of Colonel Williams.

[31] Colonel Williams says these orders were not executed.

[32] Journal of Colonel Williams.

[33] Journal of Colonel Williams.

[34] Journal of Colonel Williams.

[35] Journal of Colonel Williams.

[36] In some instances, the civil power of the state in which such soldiers happened to be, attempted to interfere and to discharge even those belonging to the lines of other states, who asserted their right to be discharged. It was with some difficulty the general could arrest this dangerous interposition.

[37] This circumstance would scarcely have deserved notice had it not been accompanied by one of those melancholy events, which even war does not authorize, and which made, at the time, a very deep impression.

Mrs. Caldwell, the wife of the clergyman of the village, had been induced to remain in her house, under the persuasion that her presence might protect it from pillage, and that her person could not be endangered, as Colonel

Dayton who commanded the militia determined not to stop in the settlement. While sitting in the midst of her children, with a sucking infant in her arms, a soldier came up to the window and discharged his musket at her. She received the ball in her bosom, and instantly expired.

[38] After he had visited the ministers, an arrest of eight days, during which he resided with his relation the Marshal de Noailles, was imposed on him for the sake of form and in honour of the royal authority, which he had disregarded by proceeding to America. After the expiration of this term he presented himself to the King, who graciously said he pardoned his disobedience, in consideration of his good conduct and of his services.—*Letter from Gen. Lafayette.*

[39] See [note No. III.](#) at the end of the volume.

[40] This instance of patriotism on the part of our fair and amiable countrywomen, is far from being single. Their conduct throughout the war was uniform. They shared with cheerfulness and gaiety, the privations and sufferings to which the distress of the times exposed their country. In every stage of this severe trial, they displayed virtues which have not been always attributed to their sex, but which it is believed they will, on every occasion calculated to unfold them, be found to possess. With a ready acquiescence, with a firmness always cheerful, and a constancy never lamenting the sacrifices which were made, they not only yielded up all the elegancies, delicacies, and even conveniences to be furnished by wealth and commerce, relying on their farms and on domestic industry for every article of food and raiment, but, consenting to share the produce of their own labour, they gave up without regret, a considerable portion of the covering designed for their own families, to supply the wants of the distressed soldiers; and heroically suppressed the involuntary sigh which the departure of their brothers, their sons, and their husbands, for the camp, rended from their bosoms.

[41] These orders were given at the instance of General Lafayette.—*Correspondence with General Lafayette.*

[42] The author is informed by General Lafayette that Arnold, while commanding at West Point, endeavoured to obtain from General Washington the names of his secret emissaries in New York, and his means of communicating with them. He pressed Lafayette, who had also his private intelligencers, for the same information. His applications were of course

unsuccessful. It cannot be doubted that his object was to commit the additional crime of betraying them to Sir Henry Clinton.

[43] Mr. Johnson says he did produce it; but that, on being surprised, he had thrust a paper containing a plan of the route in his boot, which, having been perceived, was demanded, and led to his discovery.

[44] General Lafayette adds some circumstances which are not found among the manuscript papers of General Washington. The Commander-in-chief with Generals Lafayette and Knox had turned from the direct route in order to visit a redoubt. Colonels Hamilton and M'Henry, the aids-de-camp of Generals Washington and Lafayette, went forward to request Mrs. Arnold not to wait breakfast. Arnold received André's billet in their presence. He turned pale, left them suddenly, called his wife, communicated the intelligence to her and left her in a swoon, without the knowledge of Hamilton and M'Henry. Mounting the horse of his aid-de-camp, which was ready saddled, and directing him to inform General Washington on his arrival that Arnold was gone to receive him at West Point, he gained the river shore, and was conveyed in a canoe to the Vulture.

The Commander-in-chief, on his arrival, was informed that Arnold awaited him at West Point. Taking it for granted that this step had been taken to prepare for his reception, he proceeded thither without entering the house, and was surprised to find that Arnold was not arrived. On returning to the quarters of that officer he received Jameson's despatch, which disclosed the whole mystery.

[45] See [note No. IV.](#) at the end of the volume.

[46] General Lafayette mentions a circumstance not previously known to the author, which serves to illustrate the character of Washington, and to mark the delicacy of his feelings towards even the offending part of that sex which is entitled to all the consolation and protection man can afford it.

The night after Arnold's escape, when his letter respecting André was received, the general directed one of his aids to wait on Mrs. Arnold, who was convulsed with grief, and inform her that he had done every thing which depended on him to arrest her husband, but that, not having succeeded, it gave him pleasure to inform her that her husband was safe. It is also honourable to the American character, that during the effervescence of the moment, Mrs. Arnold was permitted to go to Philadelphia, to take possession

of her effects, and to proceed to New York under the protection of a flag, without receiving the slightest insult.

[47] This allusion is thus explained in a private letter from Colonel Hamilton—"This man (Arnold) is in every sense despicable. In addition to the scene of knavery and prostitution during his command in Philadelphia, which the late seizure of his papers has unfolded, the history of his command at West Point is a history of little as well as great villanies. He practised every dirty act of peculation, and even stooped to connexions with the sutlers to defraud the public."

[48] Their names were John Paulding, David Williams, and Isaac Vanwert.

[49] The following extract from a private letter of General Washington to a member of congress, shows how sensible he was of the mischief produced by this temper. "The satisfaction I have in any successes that attend us, even in the alleviation of misfortunes, is always allayed by the fear that it will lull us into security. Supineness, and a disposition to flatter ourselves, seem to make parts of our national character. When we receive a check and are not quite undone, we are apt to fancy we have gained a victory; and when we do gain any little advantage, we imagine it decisive, and expect the war immediately to end. The history of the war is a history of false hopes and temporary expedients. Would to God they were to end here! This winter, if I am not mistaken, will open a still more embarrassing scene than we have yet experienced, to the southward. I have little doubt, should we not gain a naval superiority, that Sir Henry Clinton will detach to the southward to extend his conquests. I am far from being satisfied that we shall be prepared to repel his attempts."

[50] Rem.

[51] Sted.

[52] The details of this battle are chiefly taken from a paper signed by Colonels Campbell, Shelby, and Cleveland, and published in the Virginia Gazette of the 18th of November, 1780.

[53] The author received this account both from General Morgan and Colonel Washington.

[54] Letter of Lord Cornwallis.—*Stedman*.

[55] Letter of Lord Cornwallis.—*Stedman*.

[56] These reasons for his conduct were given to the author by General Morgan soon after his return from the southern campaign.

[57] Some of them formed afterwards, and renewed the action on Howard's right.

[58] In the eagerness of pursuit, Washington advanced near thirty yards in front of his regiment. Three British officers, observing this, wheeled about, and made a charge upon him. The officer on his right aimed a blow to cut him down as an American sergeant came up, who intercepted the blow by disabling his sword arm. The officer on his left was about to make a stroke at him at the same instant, when a waiter, too small to wield a sword, saved him by wounding the officer with a ball from a pistol. At this moment, the officer in the centre, who was believed to be Tarlton, made a thrust at him which he parried; upon which the officer retreated a few paces, and then discharged a pistol at him, which wounded his horse.

[59] The author has received statements of this action from General Morgan and from Colonels Howard and Washington.

[60] The author received this fact from Colonel Carrington.

[61] The western militia had been engaged in a war with the Cherokee Indians, who, neglected by the United States, and incited by the British, had determined once more to take up the hatchet. The militia from the western parts of Virginia and North Carolina entered their country, burnt their towns, containing near one thousand houses, destroyed fifty thousand bushels of grain, killed twenty-nine men, took several prisoners, and compelled the nation to sue for peace.

[62] Letter of Lord Cornwallis.—*Stedman*.

[63] Letter of Lord Cornwallis.—*Stedman*.

[64] After passing through the guards into the cleared ground, Washington, who always led the van, perceived an officer surrounded by several persons who appeared to be aids-de-camp. Believing this to be Lord Cornwallis, he rushed forward in the hope of making him a prisoner, but was arrested by an accident. His cap fell from his head, and, as he leaped to the ground to recover it, the officer leading the column was shot through the body, and rendered incapable of managing his horse. The animal wheeled round with his rider, and galloped off the field. He was followed by all the cavalry, who supposed that this movement had been directed.

[65] While the army lay at Westover, Lieutenant Colonel Simcoe, at the head of less than fifty horse, attacked and dispersed a body of militia at Charles City court house, with the loss of only one man killed, and three wounded.

[66] The author witnessed this skirmish.

[67] Letter of Sir Henry Clinton.

[68] A slave population must be unfavourable to great and sudden exertions by militia.

[69] Secret journals of Congress, v. 2, pp. 393, 396, 407. This measure was moved by the delegation from Virginia, in consequence of instructions of 2d Jan. 1781. Sec. 10, H. at large, 538.

[70] Secret journals of Congress, v. 2, p. 468.

[71] The secret journals of congress, published under the resolutions of March 27th, 1818, and April 21st, 1820, contain "A History of the Confederation." The course of public opinion on a most important point—the nature of the connexion which ought to be maintained between these United States—may be in some degree perceived in the progress of this instrument, and may not be entirely uninteresting to the American reader.

So early as July, 1775, Doctor Franklin submitted "Articles of Confederation and perpetual union" to the consideration of congress, which were to continue in force until a reconciliation with Great Britain should take place on the terms demanded by the colonies. Into this confederation, not only all the British colonies on the continent, but Ireland and the West India islands were to be admitted.

Congress was to consist of members chosen by each colony in proportion to its numbers, and was to sit in each successively. Its powers were to embrace the external relations of the country, the settling of all disputes between the colonies, the planting of new colonies; and were to extend to ordinances on such general subjects as, though necessary to the general welfare, particular assemblies can not be competent to, viz. "Those that may relate to our general commerce, or general currency; the establishment of ports; and the regulation of our common forces."

The executive was to consist of a council of twelve, selected by congress from its own body, one-third of whom were to be changed annually.

Amendments were to be proposed by congress; and, when approved by a majority of the colonial assemblies, were to become a part of the constitution.

In June, 1776, a committee was appointed to prepare and digest the form of a confederation to be entered into between the United Colonies, which brought in a draft (in the hand writing of Mr. John Dickinson) on the 12th of the succeeding month.

This report was under debate until the 14th of November, 1777, on which day congress agreed on the articles afterwards adopted by the states.

In the scheme supposed to be prepared by Mr. Dickinson, the confederation is considered as an alliance of sovereign states, who meet as equals by their deputies assembled to deliberate on their common concerns, each sovereign having a voice. This principle was retained; but several modifications in the language and principle of the original scheme were made, which indicate a watchful and growing jealousy of the powers of congress.

In each, an article is introduced reserving the rights of the states. That which is found in the report, "reserves to each state the sole and exclusive regulation and government of its internal police, in all matters that *shall not interfere with the articles of this confederation.*"

This article was so modified as to declare that "each state retains its sovereignty," "and every power, jurisdiction and right, which is not by this confederation *expressly* delegated to the United States in congress assembled."

This denial of all incidental powers had vast influence on the affairs of the United States. It defeated, in many instances, the granted powers, by rendering their exercise impracticable.

The report permits the states to impose duties on imports and exports; provided they "do not interfere with any stipulations in treaties hereafter entered into by the United States."

The confederation confines this restriction on the power of the state to such duties as interfere with the stipulations in treaties entered into "in pursuance of any treaties already proposed by congress to the courts of France and Spain."

Each plan assigns to the state in which troops shall be raised for the common defence, the power of appointing the field and inferior officers. The

confederation adds the power of filling up such vacancies as may occur.

The report inhibits a state from endeavouring by force to obtain compensation for advances made or injuries suffered during the war, which shall not be allowed by congress.

The confederation omits this inhibition.

The report gives to congress the power of making treaties.

The confederation adds a proviso, "that no treaty of commerce shall be made whereby the legislative power of the respective states shall be restrained from imposing such imports and duties on foreigners as their own people are subjected to, or from prohibiting the exportation or importation of any species of goods or commodities whatever."

The report authorizes congress to appoint "courts for the trial of all crimes, frauds, and piracies committed on the high seas, or on any navigable river not within a county or parish."

The confederation limits the jurisdiction to "piracies and felonies committed on the high seas."

Both empower congress to appoint courts for the trial of appeals in cases of capture; but the confederation provides that no member of congress shall be appointed a judge of any such court.

Both empower congress to settle differences between the states. The confederation prescribes minutely the manner in which this power shall be exercised.

Both empower congress "to regulate the trade and manage all affairs with the Indians." The confederation provides "that the legislative right of any state within its own limits be not infringed or violated."

The report gives the power of "establishing and regulating post offices throughout all the United Colonies (states) *on the lines of communication* from one colony (state) to another."

The confederation varies the phraseology and adds, "and exacting such postage on the papers passing through the same as may be requisite to defray the expenses of the said office."

The report places many important portions of the executive power in a council of state, to consist of one delegate from each state to be named annually by the delegates of that state.

The confederation empowers congress to appoint a committee to sit in the recess of congress, to be denominated "a committee of the states," and to consist of one delegate from each state, to exercise such powers as congress might from time to time vest them with.

A few of the states agreed to ratify the confederation unconditionally. By many, amendments were proposed which were steadily rejected by congress. It was obvious that the delays would be almost interminable should congress relax this determination, because every change would make it necessary again to submit the instrument as amended to the several states. It is remarkable that Jersey alone proposed an enlargement of the powers of congress. That state was desirous of investing the representatives of the state with the power of regulating commerce.

The states possessing no vacant lands, or an inconsiderable quantity within their chartered limits, pressed earnestly and perseveringly their claim to participate in the advantages of territory, which was, they said, acquired by the united arms of the whole; and Maryland refused, on this account, to accede to the confederation. At length, several of the states empowered their members in congress to ratify that instrument as forming a union between the twelve states who had assented to it. Maryland, alarmed at the prospect of being excluded from the union, gave her reluctant consent to the confederation, accompanied by a protest, in which she still asserted her claim to her interest in the vacant territory which should be acknowledged at the treaty of peace, to be within the United States.

It required the repeated lessons of a severe and instructive experience to persuade the American people that their greatness, their prosperity, their happiness, and even their safety, imperiously demanded the substitution of a government for their favourite league.

[72] The author was assured by General Lafayette that this was true. Such was the enthusiasm of the moment, that a lame sergeant hired a place in a cart to keep up with the army.

[73] It is not unworthy of notice, that the ladies of Baltimore charged themselves with the toil of immediately making up the summer clothing for the troops. Innumerable instances of their zeal in the common cause of their country were given in every state in the union.

[74] General Lafayette states that this movement also facilitated the transportation of some military stores to the southern army, which were

greatly needed.

[75] General Philips died the day on which the army entered Petersburg. Arnold on succeeding to the command addressed a letter to Lafayette, which the American general refused to receive, informing the officer who brought it, and whom he treated in other respects with great politeness, that he would receive no letter from Arnold.—*Cor. of Lafayette.*

[76] Seven fell into the hands of Tarlton.

[77] While the British army overran the country, their ships sailed up the rivers, pillaged the farms, received the slaves who fled from their masters, and, in some instances, reduced the houses to ashes. While they were in the Potowmac, a flag was sent on shore at Mount Vernon, requiring a supply of fresh provisions. The steward of General Washington, believing it to be his duty to save the property of his principal, and entertaining fears for the magnificent buildings of the Commander-in-chief, went on board with the flag, carried a supply of fresh provisions, asked the restoration of the slaves who had taken refuge in the fleet, and requested that the buildings might be spared. Mr. Lund Washington, to whom the general had entrusted the management of his estate, communicated these circumstances to him, and informed him that he too had sustained considerable losses. "I am sorry," said the general, in reply, "to hear of your loss; I am a little sorry to hear of my own. But that which gives me most concern is, that you should have gone on board the vessels of the enemy and furnished them with refreshments. It would have been a less painful circumstance to me to have heard, that in consequence of your non-compliance with their request, they had burnt my home and laid the plantation in ruins. You ought to have considered yourself as my representative, and should have reflected on the bad example of communicating with the enemy, and making a voluntary offer of refreshment to them, with a view to prevent a conflagration."

[78] Correspondence with Lafayette.

[79] See [note No. V.](#) at the end of the volume.

[80] Sir H. Clinton in a letter to Lord Cornwallis, dated June 11, 1781, states his effective force at ten thousand nine hundred and thirty-one.

[81] In pursuance of these orders, Wayne was detached to the south side of James River, under the pretext of reinforcing Greene, but was ordered to maintain a position which would enable him to intercept and oppose the march of Lord Cornwallis, should he attempt to force his way to Charleston.

Lafayette was on the alert to co-operate with Wayne in the event of such a movement.—*Cor. with Lafayette.*

[82] This admiral was the senior of De Grasse, to whom the command of the expedition had been entrusted, and was therefore authorized by the minister of marine, to cruise on the coast of Newfoundland while his ships should join the grand fleet. He preferred serving under his junior officer.—*Cor. of Lafayette.*

[83] The first indication given by Sir Henry Clinton of suspecting the southern expedition, is in his letter to Lord Cornwallis of the 2nd of September, in which he says, "By intelligence I have this day received, it would seem that Washington is moving southward."

[84] While the American troops were encamped at Williamsburg and the French fleet lay in the bay, the Count de Grasse, circumscribed in point of time, and therefore, unwilling to await the arrival of the army from the north, urged Lafayette to attack the British in Yorktown; offering to aid him not only with all the marines of the fleet, but with as many seamen as he should require. The Marquis de St. Simon, an officer of great experience, united himself with the admiral in pressing this measure. He stated that, the works of Cornwallis being incomplete, Yorktown and Gloucester might, in all probability, be carried by storm, if attacked by superior numbers. The temptation was great for a young general scarcely twenty-four years of age. A full excuse for the attempt was found in the declaration of De Grasse, that he could not wait for the arrival of the troops from the north. Success would have given unrivaled brilliancy to the reputation of Lafayette, but would necessarily have cost much blood. Lafayette refused to sacrifice the soldiers which were confided to him to his personal glory, and persuaded De Grasse to await the arrival of Washington and Rochambeau, when the capture of Cornwallis would be certainly made without the waste of human life.—*Cor. with Lafayette.*

[85] One sergeant and eight privates were killed; and one lieutenant colonel, four captains, one subaltern, one sergeant, and twenty-five rank and file, were wounded.

The irritation produced by the recent carnage in fort Griswold had not so far subdued the humanity of the American character as to induce retaliation. Not a man was killed except in action. "Incapable," said Colonel Hamilton in his report, "of imitating examples of barbarity, and forgetting recent

provocation, the soldiery spared every man that ceased to resist." Mr. Gordon, in his History of the American War, states the orders given by Lafayette, with the approbation of Washington, to have directed that every man in the redoubt, after its surrender, should be put to the sword. These sanguinary orders, so repugnant to the character of the Commander-in-chief and of Lafayette, were never given. There is no trace of them among the papers of General Washington; and Colonel Hamilton, who took a part in the enterprise, which assures his perfect knowledge of every material occurrence, has publicly contradicted the statement. It has been also contradicted by Lafayette.

[86] General Lafayette states a fact which proves in an eminent degree the good feelings of the American soldiers towards their allies. While encamped together under his command at Williamsburg, the Americans, who were *bivouacked*, saw their allies under tents without a murmur; and saw them supplied regularly with rations of flour for three days from the American magazines, while corn meal was measured out very irregularly to themselves. The superior officers lent their horses to those of France and walked themselves. Although their general was himself a Frenchman, the Americans saw not only without jealousy, but with pleasure, every preference given to their allies.

[87] Stedman, Annual Register, letter of Lord Cornwallis.

[88] See [note No. VI.](#) at the end of the volume.

[89] See [note No. VII.](#) at the end of the volume.

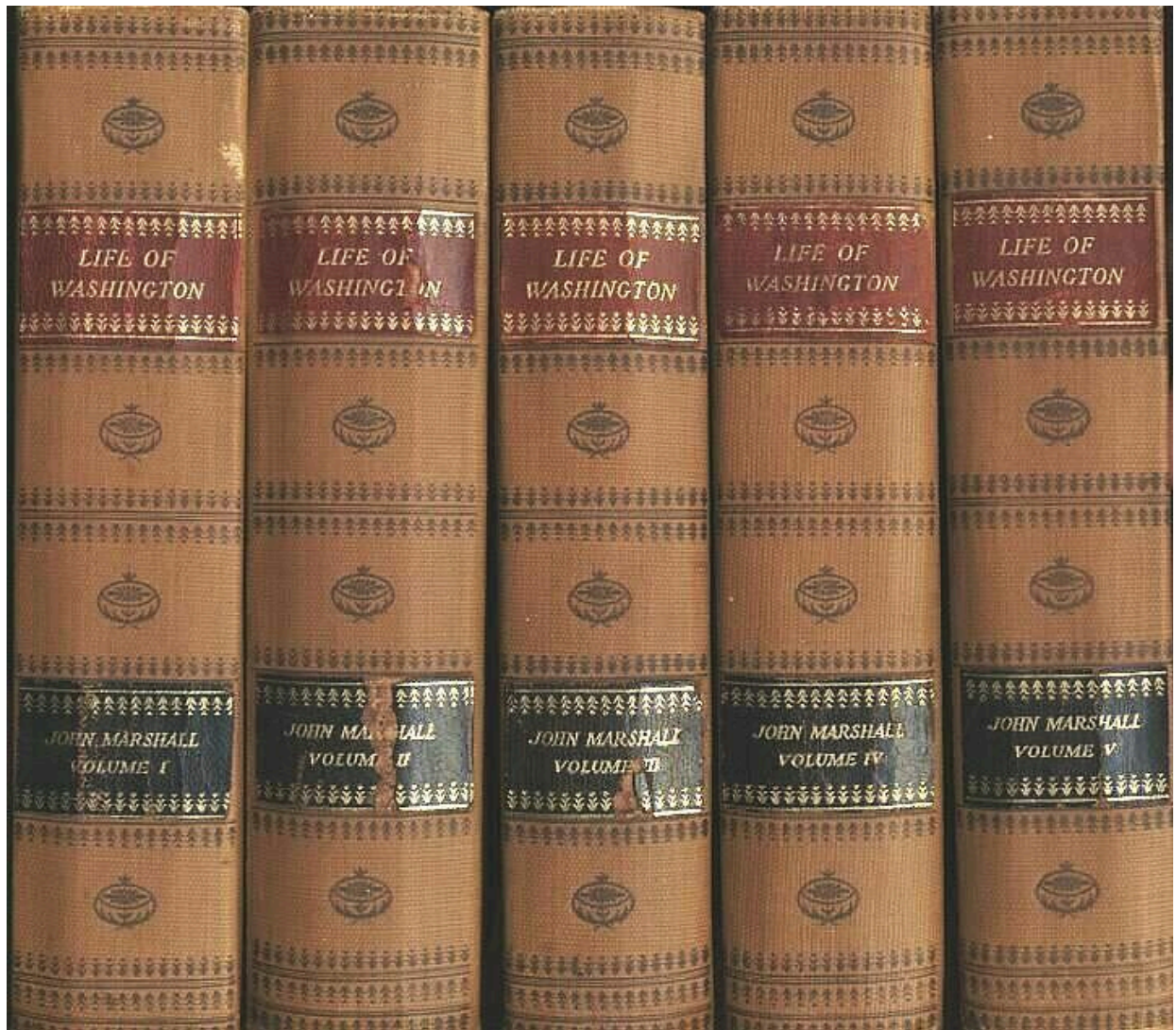
[90] The return of prisoners contained two generals, thirty-one field officers, three hundred and twenty-six captains and subalterns, seventy-one regimental staff, six thousand five hundred and twenty-seven non-commissioned officers and privates, and one hundred and twenty-four persons belonging to the hospital, commissary, and wagon departments, making in the whole seven thousand and seventy-three prisoners. To this number are to be added six commissioned, and twenty-eight non-commissioned officers and privates made prisoners in the two redoubts which were stormed, and in the sortie made by the garrison.

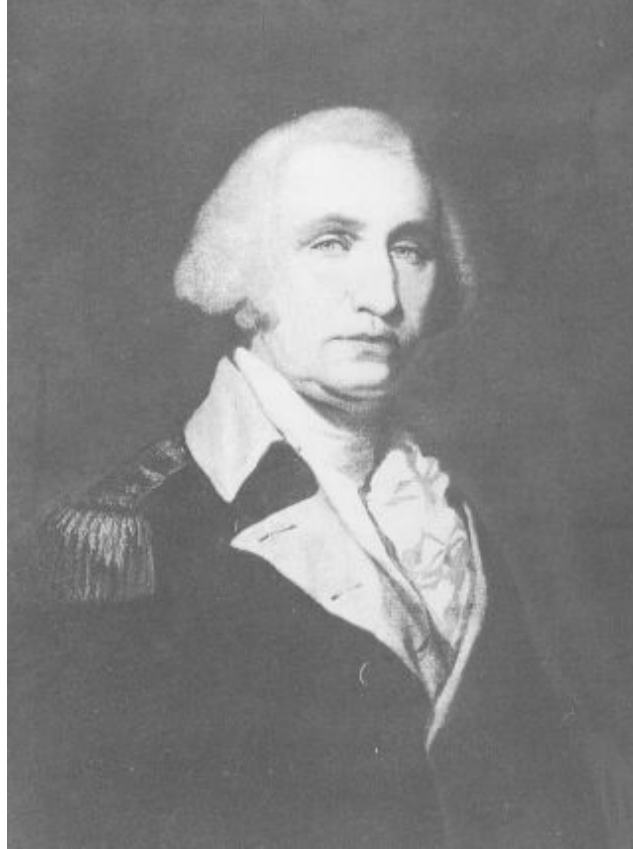
[91] See [note No. VIII.](#) at the end of the volume.

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George Washington

From the painting by James Sharples

Sharples is distinguished for having painted what the Washington family regarded as the most faithful likenesses of the Father of His Country. This portrait in particular is the best resemblance we have of Washington during the period between his resignation as Commander-in-Chief of the Continental Army and his inauguration as First President of the United States. The Sharples portraits of Washington were commissioned by Robert Cary, a London merchant and admirer of our First President, who sent the artist on a special trip to America to do the work. This and other portraits by Sharples of Washington and his compeers long remained in England, but are now in the Collection of Herbert L. Pratt, New York.

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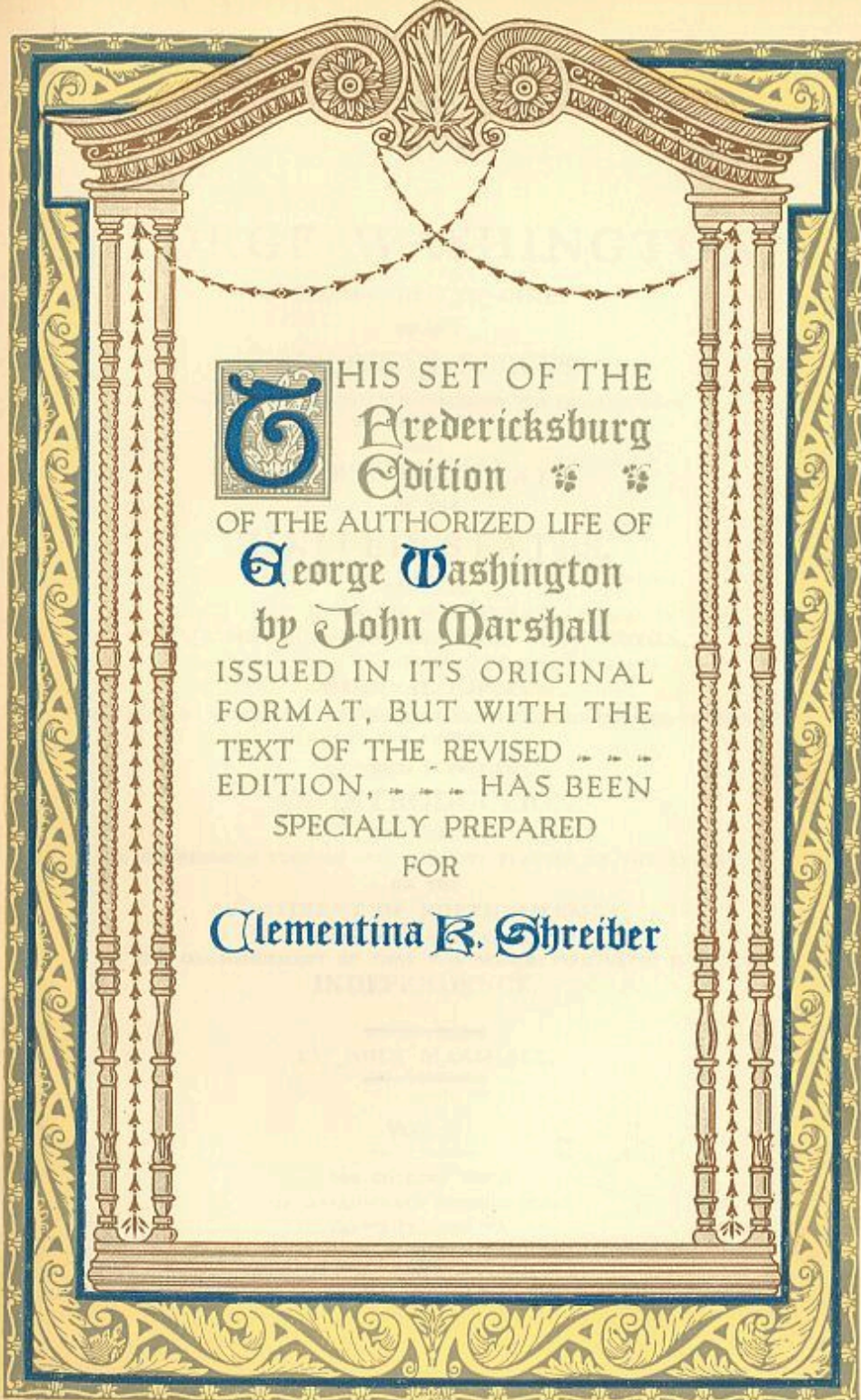
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SPECIALLY PREPARED

FOR

Clementina R. Shreiber

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THE LIFE

OF

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1781

In South Carolina and Georgia, the campaign of 1781 was uncommonly active. The importance of the object, the perseverance with which it was pursued, the talents of the generals, the courage, activity, and sufferings of the armies, and the accumulated miseries of the inhabitants, gave to the contest for these states, a degree of interest seldom bestowed on military transactions, in which greater numbers have not been employed.

When Lord Cornwallis entered North Carolina, the military operations in the more southern states were committed to Lord Rawdon. For the preservation of his power, a line of posts slightly fortified had been continued from Charleston, by the way of Camden and Ninety Six, to Augusta, in Georgia. The spirit of resistance was still kept up in the north-western and north-eastern parts of the state, by Generals Sumpter and Marion, who respectively commanded a corps of militia. Their exertions, though great, seem not to have been successful; and they excited no alarm, because no addition to their strength was apprehended.

Such was the situation of the country when General Greene formed the bold resolution of endeavouring to reannex it to the American union. His army consisted of about eighteen hundred men. The prospect of procuring subsistence was unpromising, and the chance of reinforcements precarious. He was apprized of the dangers to be encountered, but believed it to be for the public interest to meet them. "I shall take every measure," said this gallant officer, in a letter communicating his plan of operations to General Washington, "to avoid a misfortune. But necessity obliges me to commit

myself to chance, and if any accident should attend me, I trust my friends will do justice to my reputation."

The extensive line of posts maintained by Lord Rawdon, presented to Greene many objects, at which, it was probable he might strike with advantage. The day preceding his march from the camp on Deep river, he detached Lee to join General Marion, and communicated his intention of entering South Carolina to General Pickens with a request that he would assemble the western militia, and lay siege to Ninety Six, and Augusta.

April.

Green invests Camden.

Having made these arrangements, he moved from Deep river on the seventh of April, and encamped before Camden on the nineteenth of the same month, within half a mile of the British works. Lord Rawdon had received early notice of his approach, and was prepared for his reception.

April 24.

Camden stands on a gentle elevation, and is covered on the south and south-west by the Wateree,[\[1\]](#) and on the east by Pine-tree creek. A strong chain of redoubts, extending from the river to the creek, protected the north and west sides of the town. Being unable to storm the works or to invest them on all sides, Greene contented himself with lying before the place in the hope of being reinforced by militia, or of some event which might bring on an action in the open field. With this view he retired a small distance, and encamped on Hobkirk's hill, about a mile and a half from the town. While in this situation, he received information that Colonel Watson was marching up the Santee with about four hundred men. A junction between these two divisions of the British army, could be prevented only by intercepting Watson while at a distance from Camden. For this purpose, he crossed Sand-hill creek and encamped east of Camden, on the road leading to Charleston. It being impracticable to transport the artillery and baggage over the deep marshes adjoining the creek, Colonel Carrington with the North Carolina militia was directed to convey them to a place of safety, and to guard them till farther orders. The army continued a few days in its new encampment, during which the troops subsisted on the scanty supplies furnished by the neighbourhood. Greene was compelled at length, by the want of provisions, to relinquish this position. About the same time he received intelligence which induced him to doubt the approach of Watson. On which he ordered

Lieutenant Colonel Carrington to rejoin him; and on the 24th, returned to the north side of the town, and again encamped on Hobkirk's hill, a ridge covered with uninterrupted wood through which the great Waxhaw road passes. The army was encamped in order of battle, its left covered by the swamp of Pine-tree creek.

April 25.

A drummer, who deserted on the morning after Greene's return, and before he was rejoined by Lieutenant Colonel Carrington, gave information to Lord Rawdon that the artillery and militia had been detached. His lordship determined to seize this favourable occasion for fighting his enemy to advantage, and, at the head of nine hundred men, marched out of town on the morning of the twenty-fifth to attack the American army.

Lieutenant Colonel Carrington had arrived in camp that morning, and brought with him a supply of provisions which had been issued to the troops, some of whom were employed in cooking and others in washing their clothes. Notwithstanding those occupations, they were in reach of their arms, and were in readiness to take their ground and engage at a moment's warning.

Battle of Hobkirk's Hill.

By keeping close to the swamp, and making a circuit of some distance, Lord Rawdon gained the American left without being perceived; and about eleven, his approach was announced by the fire of the advanced piquets, who were half a mile in front of Greene's encampment. Orders were instantly given to form the American line of battle.

The Virginia brigade commanded by General Huger, consisting of two regiments under Campbell and Hawes, was drawn up on the right of the great road. The Maryland brigade commanded by Colonel Williams, consisting also of two regiments, under Gunby and Ford, was on the left, and the artillery was placed in the centre. The North Carolina militia under Colonel Read formed a second line; and Captain Kirkwood with the light infantry was placed in front for the purpose of supporting the piquets, and retarding the advance of the enemy. General Greene remained on the right, with Campbell's regiment.

Captain Morgan of Virginia, and Captain Benson of Maryland, who commanded the piquets, gave the enemy a warm reception; but were soon compelled to retire. Captain Kirkwood also was driven in, and the British

troops appeared in view. Rawdon continued his march through the wood along the low ground in front of the Maryland brigade which was in the act of forming, until he reached the road, where he displayed his column.

Perceiving that the British advanced with a narrow front, Greene ordered Colonel Ford, whose regiment was on the extreme left, and Lieutenant Colonel Campbell, whose regiment was on the extreme right, severally to attack their flanks, while Gunby and Hawes should advance upon their front with charged bayonets. To complete their destruction by cutting off their retreat to the town, Lieutenant Colonel Washington was ordered to pass their left flank and charge them in the rear.

The regiments commanded by Ford and Campbell, being composed chiefly of new levies, did not change their ground, and perform the evolutions necessary for the duty assigned to them, with the requisite rapidity and precision; in consequence of which Rawdon, who instantly perceived the danger that threatened his flanks, had time to extend his front by bringing the volunteers of Ireland into his line.

This judicious movement disconcerted the design on his flanks, and brought the two armies into action fronting each other. But the regiments of Ford and Campbell were thrown into some confusion by the abortive attempt to gain the flanks of the British.

Colonel Washington too was compelled by the thick underwood and felled trees which obstructed his direct course, to make so extensive a circuit, that he came into the rear of the British at a greater distance from the scene of action than was intended, in consequence of which he fell in with their medical and other staff, and with a number of the followers of the army and idle spectators, who took no part in the action. Too humane to cut his way through this crowd, he employed so much time in taking their verbal parole, that he could not reach the rear of the British line until the battle was ended. These casualties disappointed this very interesting part of Greene's intended operations.[\[2\]](#)

The artillery, however, played on the enemy with considerable effect; and the regiments of Gunby and Hawes advanced on the British front with resolution. Some companies on the right of the Maryland regiment returned the fire of the enemy, and their example was followed by the others. Notwithstanding this departure from orders, they continued to advance with intrepidity, and Greene entertained sanguine hopes of victory. His prospects

were blasted by one of those incidents against which military prudence can make no provision.

Captain Beaty, who commanded on the right of Gunby's regiment, was killed, upon which his company with that adjoining it got into confusion and dropped out of the line. Gunby ordered the other companies, which were still advancing, to fall back, and form, with the two companies, behind the hill which the British were ascending. This retrograde movement was mistaken for a retreat, and the regiment gave way. Encouraged by this circumstance, the British pressed forward with increased ardour, and all the efforts of Colonel Williams, and of Gunby and Howard, to rally the regiment were, for a time, ineffectual. This veteran regiment, distinguished alike for its discipline and courage, which with the cavalry of Washington, had won the battle of the Cowpens, and nearly won that at Guilford court house, was seized with an unaccountable panic which, for a time, resisted all the efforts of their officers.

The flight of the first Maryland regiment increased the confusion which the change of ground had produced in the second; and, in attempting to restore order, Colonel Ford was mortally wounded. Lord Rawdon improved these advantages to the utmost. His right gained the summit of the hill, forced the artillery to retire, and turned the flank of the second Virginia regiment, commanded by Lieutenant Colonel Hawes, which had advanced some distance down the hill. By this time the first Virginia regiment, which Greene had endeavoured to lead in person against the left flank of the British, being also in some disorder, began to give ground. Perceiving this reverse in his affairs, and knowing that he could not rely on his second line, Greene thought it most advisable to secure himself from the hazard of a total defeat by withdrawing the second Virginia regiment from the action.

The Maryland brigade was in part rallied; but Lord Rawdon had gained the hill, and it was thought too late to retrieve the fortune of the day. Greene determined to reserve his troops for a more auspicious moment, and ordered a retreat.

Finding that the infantry had retreated, Colonel Washington also retired with the loss of only three men, bringing with him about fifty prisoners, among whom were all the surgeons belonging to the British army.

The Americans retreated in good order about four miles from the field of battle, and proceeded, next day, to Rugeley's mills. The pursuit was

continued about three miles. In the course of it, some sharp skirmishing took place, which was terminated by a vigorous charge made by Colonel Washington on a corps of British horse who led their van. This corps being broken and closely pursued, the infantry in its rear retreated precipitately into Camden.

April 26.

The number of continental troops engaged in this action amounted to about twelve hundred^[3] men, and the loss in killed, wounded, and missing, to two hundred and sixty-six. Among the killed was Captain Beaty, of Maryland, who was mentioned by General Greene as an ornament to his profession; and among the wounded was Colonel Ford, of Maryland, a gallant officer, whose wounds proved mortal. The militia attached to the army amounted to two hundred and sixty-six, of whom two were missing. The total loss sustained by the British army has been stated at two hundred and fifty-eight, of whom thirty-eight were killed in the field.

The plan which the strength of Camden and his own weakness had induced General Greene originally to adopt, was still substantially pursued. He remained in the vicinity of that place, and by the activity of his cavalry, straightened the communication of the garrison with the neighbouring country. Their distress for provisions had been considerably increased by the progress of Marion and Lee.

Several British posts taken.

Lieutenant Colonel Lee joined Marion a few days after he was detached from the camp on Deep river; and these two officers commenced their operations against the line of communication between Camden and Charleston, by laying siege to fort Watson, which capitulated in a few days. The acquisition of this fort afforded the means of interrupting the intercourse between Camden and Charleston, and opposed an obstacle to the retreat of Lord Rawdon which he would have found it difficult to surmount.

From the increasing perils of his situation, his lordship was relieved by the arrival of Colonel Watson.

In attempting to obey the orders, which were given by Lord Rawdon on the approach of Greene, to join him at Camden, that officer found himself opposed by Marion and Lee, who had seized the passes over the creeks in his route; and had thus completely arrested his march. To elude these vigilant adversaries, Watson returned down the Santee, and crossing that river near

its mouth, marched up its southern side, and recrossing it above the American detachment, and, eluding all the measures taken to intercept him, accomplished his object with much toil and hazard.

This reinforcement gave the British general a decided superiority; and Greene entertained no doubt of its being immediately employed. On the day of its arrival, therefore, he withdrew from the neighbourhood of Camden, and took a strong position behind Sawney's creek.

May 7.

On the night of the seventh, as had been conjectured, Rawdon passed the Wateree at Camden ferry, intending to turn the flank of his enemy, and to attack his rear, where the ground was less difficult than in front. On being informed that the American army had changed its position, he followed it to its new encampment. This was so judiciously chosen that he despaired of being able to force it; and, after some ineffectual manoeuvres to draw Greene from it, returned to Camden.

Eighth.

Lord Rawdon had been induced to relinquish, thus hastily, his designs upon Greene, by the insecurity of his situation. The state of the British power in South Carolina was such as to require a temporary surrender of the upper country. Marion and Lee, after completely destroying his line of communication on the north side of the Santee, had crossed that river, and permitted no convoy from Charleston to escape their vigilance. On the eighth of May, after Watson had passed them, they laid siege to a post at Motte's house, on the south side of the Congaree, near its junction with the Wateree, which had been made the depot of all the supplies designed for Camden.

From the energy of this party as well as from the defection of the inhabitants, Lord Rawdon had reason to apprehend the loss of all his lower posts, unless he should take a position which would support them. He had therefore determined to evacuate Camden, unless the issue of a battle with Greene should be such as to remove all fears of future danger from that officer.

Lord Rawdon retires into the lower country.

May 12.

Having failed in his hope of bringing on a general engagement, he evacuated Camden, and marched down the river on its north side to

Neilson's ferry. Among the objects to be obtained by this movement was the security of the garrison at Motte's house. But the siege of that place had been so vigorously prosecuted that, on crossing the river, his lordship received the unwelcome intelligence that it had surrendered on the twelfth, and that its garrison, consisting of one hundred and sixty-five men, had become prisoners. On the preceding day, the post at Orangeburg had surrendered to Sumpter.

On the evening of the fourteenth, Lord Rawdon moved from Neilson's ferry, and marched to Monk's Corner, a position which enabled him to cover those districts from which Charleston drew its supplies.

May.

While the British army was thus under the necessity of retiring, the American force was exerted with a degree of activity which could not be surpassed. After the post at Motte's house had fallen, Marion proceeded against Georgetown, on the Black river, which place he reduced; and Lee marched against fort Granby, a post on the south of the Congaree, which was garrisoned by three hundred and fifty-two men, principally militia. The place was invested on the evening of the fourteenth, and the garrison capitulated the next morning.

The late movement of the British army had left the garrison of Ninety Six and of Augusta exposed to the whole force of Greene, and he determined to direct his operations against them. Lee was ordered to proceed against the latter, while the general should march in person to the former.

The post at Ninety Six was fortified. The principal work, which, from its form, was called the Star, and which was on the right of the village, consisted of sixteen salient and reentering angles, and was surrounded by a dry ditch, fraize, and abattis. On the left was a valley, through which ran a rivulet that supplied the place with water. This valley was commanded on one side by the town prison, which had been converted into a block-house, and on the other by a stockade fort, in which a block-house had been erected. The garrison, commanded by Lieutenant Colonel Cruger, was ample for the extent of the place, but was furnished with only three pieces of artillery.

On evacuating Camden, Lord Rawdon had given directions that the garrison of Ninety Six should retire to Augusta; but his messengers were intercepted; and Cruger, remaining without orders, determined to put his post in the best possible state of defence.

Greene invests Ninety Six.

On the 22nd of May the American army, consisting of about one thousand continental troops, appeared before the town, and encamped in a wood, within cannon shot of the place. On the following night they broke ground, within seventy yards of the British works; but the besieged having mounted several guns in the star, made a vigorous sally under their protection, and drove the advanced party of the besiegers from their trenches, put several of them to the bayonet, and brought off their intrenching tools.

This sortie was made with such rapidity, that, though General Greene put his whole army in motion, the party making it had accomplished the object and retired into the fort, before he could support his troops in the trenches. After this check, the siege was conducted with more caution, but with indefatigable industry.

On the 8th of June, Lee rejoined the army with the troops under his command.

The day after the fall of fort Granby, that active officer proceeded with great celerity to join General Pickens, and lay siege to Augusta. On the march, he took possession of fort Golphin, on the northern bank of the Savannah, which surrendered on the 21st of May; immediately after which the operations against Augusta were commenced.

The place was bravely defended by Lieutenant Colonel Brown; but the approaches of the besiegers were so well conducted, that on the 5th of June he was reduced to the necessity of capitulating; and the prisoners, amounting to about three hundred, were conducted by Lee to the main army.

This reinforcement enabled General Greene, who had till then made his approaches solely against the star, to commence operations against the works on the left also. The direction of the advances to be made in that quarter was entrusted to Lieutenant Colonel Lee. While the besiegers urged their approaches in the confidence that the place must soon capitulate, Lord Rawdon received a reinforcement which enabled him once more to overrun the state of South Carolina.

June 7.

On the third of June three regiments arrived from Ireland; and, on the seventh of that month, Lord Rawdon marched at the head of two thousand men to the relief of Ninety Six. Greene received intelligence of his approach on the eleventh, and ordered Sumpter, to whose aid the cavalry was

detached, to continue in his front, and to impede his march by turning to the best account every advantage afforded by the face of the country. But Lord Rawdon passed Sumpter below the junction of the Saluda and Broad rivers, after which that officer was probably unable to regain his front.

Greene had also intended to meet the British and fight them at some distance from Ninety Six, but found it impossible to draw together such aids of militia as would enable him to execute that intention with any prospect of success. The only remaining hope was to press the siege so vigorously as to compel a surrender before Lord Rawdon could arrive.

June 17.

In the execution of this plan, the garrison was reduced to extremities, when the near approach of his lordship was communicated to Cruger, by a loyalist who passed through the American lines, and extinguished every hope of carrying the place otherwise than by storm. Unwilling to relinquish a prize he was on the point of obtaining, Greene resolved to essay every thing which could promise success; but the works were so strong that it would be madness to assault them, unless a partial attempt to make a lodgement on one of the curtains of the star redoubt, and at the same time to carry the fort on the left, should the first succeed.

June 18.

Is repulsed and retires from before that place.

The proper dispositions for this partial assault being made, Lieutenant Colonel Lee, at the head of the legion infantry and Kirkwood's company, was ordered to assault the works on the left of the town; while Lieutenant Colonel Campbell was to lead the first regiment of Maryland, and the first of Virginia, against the star redoubt. The lines of the third parallel were manned, and all the artillery opened on the besieged. About noon the detachments on this service marched cheerfully to the assault. Lee's attack on the left was successful. He forced the works in that quarter and took possession of them. But the resistance on the right was more determined, and Campbell, though equally brave, was less fortunate. Lieutenants Duval of Maryland, and Selden of Virginia, led the forlorn hope, and entered the ditch with great intrepidity; but its depth, and the height of the parapet opposed obstructions which could not be surmounted. After a severe conflict of more than half an hour, during which Lieutenants Duval and Selden were both badly wounded, and nearly all the forlorn hope were either killed or

wounded, the assault was relinquished, and the few who remained alive were recalled from the ditch. The next day, Greene raised the siege, and, crossing the Saluda, encamped on Little River. The loss of the besieging army, in killed and wounded, amounted to one hundred and fifty-five men, among the former of whom was Captain Armstrong of Maryland. That of the garrison has been stated at eighty-five.

On the morning of the 21st of June, Lord Rawdon arrived at Ninety Six; and, on the evening of the same day, marched in quest of the American army. In the preceding operations of the campaign, he had felt the want of cavalry so severely that, while at Monk's Corner, and in Charleston, he had formed a corps of one hundred and fifty horse.

Active movements of the two armies.

Greene, foreseeing that his active adversary would avail himself to the utmost of his superiority, had sent his sick and wounded northward; and, as soon as Rawdon had crossed the Saluda, he retreated towards Virginia. Lord Rawdon pursued him to the Eunora, whence he returned to Ninety Six.

The retreat ceased with the pursuit. General Greene halted near the cross roads, on the north of Broad River.

As Rawdon retired, he was followed close by the legion as far as Ninety Six, at which place he remained but two days. Still retaining the opinion that circumstances required him to contract his posts, he left the principal part of his army, under the command of Lieutenant Colonel Cruger, to protect the loyalists while removing within those limits which were to be maintained by the British forces; and, at the head of less than one thousand men, marched in person towards the Congaree.

Supposing that his adversary intended to preserve the post at Ninety Six, where the royalists were numerous, and to establish one or two on the Congaree, where provisions were more plentiful than in any other part of the state, Greene determined to interrupt the execution of the plan which he believed to have been formed. Leaving his sick and baggage at Wynnsborough, to be conducted to Camden, he marched with the utmost expedition for Friday's ferry on the Congaree, at which place Lord Rawdon had arrived two days before him. As Greene drew near to his enemy, a detachment from the legion under the command of Captain Eggleston, announced his approach by attacking a foraging party within a mile of the British camp, and bringing off a troop consisting of forty-five men, with

their officers and horses. Rawdon retreated the next day to Orangeburg, where he formed a junction with a detachment from Charleston, commanded by Lieutenant Colonel Stuart.

July 11.

On the Congaree, Greene was reinforced by Sumpter and Marion with about one thousand men; and, on the 11th of July, marched towards Orangeburg with the intention of attacking the British army at that place. He arrived there the next day, but found it so strongly posted as to be unassailable. He offered battle, but prudence restrained him from attacking the enemy in his camp.

July 13.

At this place, intelligence was received of the evacuation of Ninety Six, and that Lieutenant Colonel Cruger was marching down to Orangeburg. The north branch of the Edisto, which, for thirty miles, was passable only at the place occupied by Rawdon, interposed an insuperable obstacle to any attempt on Cruger; and Greene thought it most advisable to force the British out of the upper country by threatening their lower posts at Monk's corner and at Dorchester. Sumpter, Marion, and Lee, were detached on this service; and, on the same day, Greene moved towards the high hills of Santee, a healthy situation, where he purposed to give some refreshment and repose to his harassed army, and where he hoped to be joined by a few continental troops and militia from North Carolina.

The detachments ordered against the posts in the north-eastern parts of the state, under the command of Sumpter, were not so completely successful as their numbers, courage, and enterprise deserved. The several corps took distinct routes, intending to fall on the different posts between Ashley and Cooper rivers, at the same time. That at Dorchester was broken up, on the approach of Lee, who captured horses, military stores, and baggage to a considerable amount, and obtained some trivial successes over the flying enemy. Lieutenant Colonel Wade Hampton, of the state cavalry, fell in with a body of mounted refugees, dispersed the whole, and made forty or fifty prisoners.

Sumpter advanced against Monk's corner. This post was defended by Lieutenant Colonel Coates with the 19th British regiment, and a troop of horse. He had taken possession of a brick church at a bridge over Biggin creek, the most northern of the water courses which form the west branch of

Cooper river. After passing Biggin, the road to Charleston crosses first Wattoo, and then Quinby creek; neither of which is passable except at the bridges over which the road leads, and at a ferry over Quinby.

On the sixteenth, Sumpter approached Monk's corner, but, not supposing himself strong enough to hazard an attack until all his detachments should be collected, sent a party to seize the bridge over Wattoo, and either to hold or to destroy it. This party being attacked by a superior force, retired from the bridge without completing its destruction, and without informing Sumpter that his orders had not been fully executed.

Marion had joined Sumpter. Lee arrived late in the evening, and the resolution was taken to attack Coates early next morning.

In the course of the night he set fire to the church, in order to destroy the stores which were collected in it, and commenced his march to Charleston, by the road east of Cooper. Having repaired the bridge over Wattoo, he met with no obstruction; and proceeded with his infantry on the road leading to Quinby bridge, directed his cavalry to take a road turning to the right, and crossing the creek at the ferry.

About three next morning, the flames bursting through the roof of the church announced the retreat of the British; and the pursuit was immediately commenced. Sumpter was preceded by the legion, supported by the state cavalry. A detachment from this regiment followed the British horse, in the vain hope of overtaking the troop at the ferry, while Lee pursued the infantry. Within a short distance of the bridge, which is eighteen miles from Monk's corner, he perceived the rear guard of the British, consisting of about one hundred men, commanded by Captain Campbell, which the cavalry charged, sword in hand. They threw down their arms, and begged for quarter; upon which they were placed under the care of a few militia horsemen, and the American cavalry resumed the pursuit.

They had not proceeded far, when Lee was called to the rear, by information that the prisoners had been ordered to resume their arms. At this critical moment, Armstrong, at the head of the leading section, came in sight of Coates, who having passed the bridge, and loosened the planks, lay, unapprehensive of danger, intending to destroy it as soon as his rear guard should cross the creek. Armstrong, in obedience to orders, given in the expectation that he would overtake Coates before passing the creek, dashed over the bridge on the guard stationed at the opposite end with a howitzer,

which he seized. In this operation, his horses threw off some of the loosened planks, and made a chasm, over which the following section, led by Lieutenant Carrington, leaped with difficulty. In doing this some other planks were thrown off, and the horses of the third section refused to take the leap. At this time Lee came up, and every effort was made to replace the planks, but without success. The creek was too deep and miry to afford foot hold to those who attempted to raise them from the water.

This halt revived the courage of the British soldiers, who returned to the support of their commander, then engaged in an equal conflict with the cavalry who had passed the bridge. These gallant men^[4] finding themselves overpowered by numbers, and that their comrades could not support them, pressed over the causeway, and wheeling into the woods, made their escape.

After finding the impracticability of replacing the planks on the bridge, in attempting which, Doctor Irvin, surgeon of the legion cavalry, and several of the troopers were wounded, Lee withdrew from the contest, and moved some distance up the creek, to a ford where he was soon joined by the infantry of the legion.

Coates then completed the demolition of the bridge, and retired to an adjoining plantation, where he took possession of the dwelling house and out buildings that surrounded it.

As the Americans were obliged to make a considerable circuit, Sumpter, who unfortunately left his artillery behind, did not arrive on the ground till three in the afternoon, and at four the house was attacked. The fire was kept up chiefly by Marion's division, from a fence near the house, till evening, when the ammunition was exhausted, and the troops were called off. In the course of the night, it was perceived that the loss had fallen almost entirely on Marion. Great discontent prevailed, and many of the men left him. The infection was communicated to Sumpter's troops, and there being reason to fear the approach of Lord Rawdon, the enterprise was abandoned. Sumpter crossed the Santee; and the legion rejoined the army, then encamped at the high hills of that river.

The intense heat of this sultry season demanded some relaxation from the unremitting toils which the southern army had encountered. From the month of January, it had been engaged in one course of incessant fatigue, and of hardy enterprise. All its powers had been strained, nor had any interval been

allowed to refresh and recruit the almost exhausted strength and spirits of the troops.

The continued labours and exertions of all were highly meritorious; but the successful activity of one corps will attract particular attention. The legion, from its structure, was peculiarly adapted to the partisan war of the southern states; and, by being detached against the weaker posts of the enemy, had opportunities for displaying with advantage all the energies it possessed. In that extensive sweep which it made from the Santee to Augusta, which employed from the 15th of April to the 5th of June, this corps, acting in conjunction, first with Marion, afterwards with Pickens, and sometimes alone, had constituted an essential part of the force which carried five British posts, and made upwards of eleven hundred prisoners. Its leader, in the performance of these services, displayed a mind of so much fertility of invention and military resource, as to add greatly to his previous reputation as a partisan.

The whole army had exhibited a degree of activity, courage, and patient suffering, surpassing any expectation that could have been formed of troops composed chiefly of new levies; and its general had manifested great firmness, enterprise, prudence, and skill.

The suffering sustained in this ardent struggle for the southern states was not confined to the armies. The inhabitants of the country felt all the miseries which are inflicted by war in its most savage form. Being almost equally divided between the two contending parties, reciprocal injuries had gradually sharpened their resentments against each other, and had armed neighbour against neighbour, until it became a war of extermination. As the parties alternately triumphed, opportunities were alternately given for the exercise of their vindictive passions. They derived additional virulence from the examples occasionally afforded by the commanders of the British forces. After overrunning Georgia and South Carolina, they seem to have considered those states as completely reannexed to the British empire; and they manifested a disposition to treat those as rebels, who had once submitted and again taken up arms, although the temporary ascendancy of the continental troops should have induced the measure. One of these executions, that of Colonel Hayne, took place on the third of August, while Lord Rawdon^[5] was in Charleston, preparing to sail for Europe. The American army being at this time in possession of great part of the country, the punishment inflicted on this gentleman was taken up very seriously by

General Greene, and was near producing a system of retaliation. The British officers, pursuing this policy, are stated to have executed several of the zealous partisans of the revolution who fell into their hands. These examples had unquestionably some influence in unbridling the revengeful passions of the royalists, and letting loose the spirit of slaughter which was brooding in their bosoms. The disposition to retaliate to the full extent of their power, if not to commit original injury, was equally strong in the opposite party. When fort Granby surrendered, the militia attached to the legion manifested so strong a disposition to break the capitulation, and to murder the most obnoxious among the prisoners who were inhabitants of the country, as to produce a solemn declaration from General Greene, that any man guilty of so atrocious an act should be executed. When fort Cornwallis surrendered, no exertions could have saved Colonel Brown, had he not been sent to Savannah protected by a guard of continental troops. Lieutenant Colonel Grierson, of the royal militia, was shot by unknown marksmen; and, although a reward of one hundred guineas was offered to any person who would inform against the perpetrator of the crime, he could never be discovered. "The whole country," said General Greene in one of his letters, "is one continued scene of blood and slaughter."

Greene was too humane, as well as too judicious, not to discourage this exterminating spirit. Perceiving in it the total destruction of the country, he sought to appease it by restraining the excesses of those who were attached to the American cause.

At the high hills of Santee the reinforcements expected from North Carolina were received. The American army, counting every person belonging to it, was augmented to two thousand six hundred men; but its effective force did not exceed sixteen hundred.

Active movements of the two armies.

After the retreat of General Greene from Orangeburg, Lord Rawdon was induced by ill health to avail himself of a permit to return to Great Britain, and the command of the British forces in South Carolina devolved on Lieutenant Colonel Stuart. He again advanced to the Congaree; and encamping near its junction with the Wateree, manifested a determination to establish a permanent post at that place. Though the two armies were within sixteen miles of each other on a right line, two rivers ran between them which could not be crossed without making a circuit of seventy miles; in consequence of which Lieutenant Colonel Stuart felt himself so secure, that

his foraging parties were spread over the country. To restrain them, and to protect the inhabitants, General Greene detached Marion towards Combahee ferry, and Washington over the Wateree. Frequent skirmishes ensued, which, from the superior courage and activity of the American cavalry, uniformly terminated in their favour.

Finding that Lieutenant Colonel Stuart designed to maintain his important position on the Congaree, Greene prepared to recommence active operations. Breaking up his camp at the high hills of Santee, he crossed the Wateree near Camden, and marched towards Friday's ferry.

After a short repose, they resume active operations.

On being informed of his approach, the British army retired to Eutaw, where it was reinforced by a detachment from Charleston. Greene followed by slow and easy marches, for the double purpose of preserving his soldiers from the effects of fatigue under a hot sun, and of giving Marion, who was returning from a critical expedition to the Edisto, time to rejoin him. In the afternoon of the seventh that officer arrived; and it was determined to attack the British camp next day.

September 8.

Battle of Eutaw.

At four in the morning of the eighth, the American army moved from its ground, which was seven miles from Eutaw, in the following order: The legion of Lee and the state troops of South Carolina formed the advance. The militia moved next, and were followed by the regulars. The cavalry of Washington and the infantry of Kirkwood brought up the rear. The artillery moved between the columns.

At eight in the morning, about four miles from the British camp, the van fell in with a body of horse and foot, who were escorting an unarmed foraging party, and a brisk action ensued. The British were instantly routed. The cavalry made their escape at the sight of the legion dragoons, and the infantry were killed or taken. About forty, including their captain, were made prisoners. The foraging party which followed in the rear saved themselves by flight, on hearing the first musket. Supposing this party to be the van of the English, Greene arranged his army in order of battle.

The militia, commanded by Generals Marion and Pickens, composed the first line. The second was formed of the continental infantry. The North Carolina brigade, commanded by General Sumner, was placed on the right;

the Virginians, commanded by Lieutenant Colonel Campbell, formed the centre; and the Marylanders, commanded by Colonel Williams, the left. The legion of Lee was to cover the right flank; the state troops of South Carolina, commanded by Colonel Henderson, the left; and the cavalry of Washington, with the infantry of Kirkwood, formed the reserve. Captain Lieutenant Gaines, with two three-pounders, was attached to the first line; and Captain Brown, with two sixes, to the second.

The British line also was immediately formed. It was drawn up across the road, in an oblique direction, in a wood, on the heights near the Eutaw springs, having its right flank on Eutaw creek. This flank was also covered by a battalion commanded by Major Majoribanks, which was posted in a thicket, in a line forming an obtuse angle with the main body. The left flank was protected by the cavalry commanded by Major Coffin, and by a body of infantry held in reserve. A detachment of infantry was pushed forward about a mile, with a field piece to employ the Americans until his arrangements should be completed.

The American van continuing to move forward, encountered the British advanced party; upon which Captain Lieutenant Gaines came up with his field pieces, which opened on the enemy with considerable effect. General Greene also ordered up his first line with directions to move on briskly, and to advance as they fired. As this line came into action, the legion formed on its right flank, and the state troops of South Carolina on its left.

The British advanced party was soon driven in; and the Americans, continuing to press forward, were engaged with the main body. Lieutenant Colonel Stuart, perceiving the materials of which this line was composed, and probably anticipating its speedy discomfiture, to avoid exposing his flanks to the American cavalry, had directed his troops not to change their position. His design was to meet the American regulars without any alteration of the arrangement originally made. But the militia, many of whom had frequently faced an enemy, being commanded by generals of experience and courage, exhibited a degree of firmness not common to that species of force, and maintained their ground with unexpected obstinacy. In the ardour of action, the order not to advance was disregarded, and the British pressed forward as the militia retired. The artillery which was placed in the road was well served on both sides, and did great execution till both the three-pounders commanded by Captain Lieutenant Gaines were dismounted. About the same time, one of the British shared the same fate.

When the militia gave way, Lee and Henderson still maintained the engagement on the flanks, General Sumner was ordered up to fill the place from which Marion and Pickens were receding; and his brigade, ranging itself with the legion infantry, and the state regiment of South Carolina, came into action with great intrepidity. The British, who had advanced upon the militia, fell back to their first ground, upon which Stuart ordered the corps of infantry posted in the rear of his left wing into the line, and directed Major Coffin with his cavalry to guard that flank. About this time Henderson received a wound which disabled him from keeping the field, and the command of his corps devolved on Lieutenant Colonel Hampton.

After sustaining the fire of the enemy with considerable resolution, Sumner's brigade began to give way, and the British rushed forward in some disorder. Greene then directed Williams and Campbell to charge with the bayonet, and at the same time ordered Washington to bring up the reserve, and to act on his left. Williams charged without firing a musket; but the soldiers of Campbell's regiment, being chiefly new levies, returned the fire of the enemy as they advanced. In this critical moment, Lee, perceiving that the American right extended beyond the British left, ordered Captain Rudolph, of the legion infantry, to turn their flank and give them a raking fire. This order was instantly executed with precision and effect. Charged thus both in front and flank, the British broke successively on the left, till the example was followed by all that part of the line. The Marylanders under Williams, had already used the bayonet, and before the troops opposed to them gave way, several had fallen on both sides, transfixed with that weapon.

The British left, when driven off the field, retreated through their encampment towards Eutaw creek, near which stood a three story brick house, surrounded with offices, and connected with a strongly enclosed garden, into which Major Sheridan, in pursuance of orders previously given by Lieutenant Colonel Stuart, threw himself with the New York volunteers. The Americans pursued them closely, and took three hundred prisoners and two pieces of cannon. Unfortunately for their hopes of victory, the refreshments found in camp furnished a temptation too strong to be resisted; and many of the soldiers left their ranks, and, under cover of the tents, seized the spirits and food within their view. The legion infantry, however, pressed the rear so closely as to make a serious struggle to enter the house with the British. The door was forcibly shut in their faces, and several British officers

and men were excluded. These were made prisoners, and mixed with the Americans, so as to save them from the fire of the house while retiring from it.

As the British left gave way, Washington was directed to charge their right. He advanced with his accustomed impetuosity, but found it impossible, with cavalry, to penetrate the thicket occupied by Majoribanks. Perceiving an interval between the British right and the creek, he determined to pass through it round their flank and to charge them in the rear. In making the attempt, he received a fire which did immense execution. The British occupied a thicket almost impervious to horse. In attempting to force it, Lieutenant Stuart who commanded the leading section was badly wounded, his horse killed under him, and every man in his section killed or wounded. Captain Watts, the second in command, fell pierced with two balls. Colonel Washington was wounded, and his horse was killed. They fell together; and, before he could extricate himself, he was made a prisoner.

After nearly all the officers, and a large portion of the men were killed or wounded, the residue of the corps was drawn off by Captain Parsons, assisted by Lieutenant Gordon. Soon after the repulse of Washington, Lieutenant Colonel Hampton and Captain Kirkwood with his infantry, came up and renewed the attack on Majoribanks. Great efforts were made to dislodge him, but they were ineffectual. Finding it impracticable to employ horse to advantage on that ground, Hampton drew off his troops and retired to the road.

The corps commanded by Sheridan kept up a continual and destructive fire from the house in which they had taken shelter; and Greene ordered up the artillery to batter it. The guns were too light to make a breach in the walls, and, having been brought within the range of the fire from the house, almost every artillerist was killed, and the pieces were abandoned.

The firm stand made by Majoribanks, and the disorder which had taken place among a part of the Americans, gave Stuart an opportunity of rallying his broken regiments, and bringing them again into action. They were formed between the thicket occupied by Majoribanks, and the house in possession of Sheridan.

Major Coffin, who had repulsed the legion cavalry about the time the British infantry was driven off the field, still maintained a formidable position on their left; and no exertions could dislodge Majoribanks or

Sheridan from the cover under which they fought. Perceiving that the contest was maintained on ground, and under circumstances extremely disadvantageous to the Americans, Greene withdrew them a small distance, and formed them again in the wood in which the battle had been fought. Thinking it unadvisable to renew the desperate attempt which had just failed, he collected his wounded, and retired with his prisoners to the ground from which he had marched in the morning, determined again to fight the British army when it should retreat from the Eutaws.

Every corps engaged in this hard fought battle received the applause of the general. Almost every officer whose situation enabled him to attract notice was named with distinction. "Never," he said, "was artillery better served;" but, "he thought himself principally indebted for the victory he had gained, to the free use made of the bayonet by the Virginians and Marylanders, and by the infantry of the legion and of Kirkwood." To Colonel Williams he acknowledged himself to be particularly indebted. He gave that praise too to the valour of his enemy which it merited. "They really fought," he said, "with courage worthy a better cause."

The loss on both sides bore a great proportion to the numbers engaged. That of the Americans was five hundred and fifty-five, including sixty officers. One hundred and thirty were killed on the spot. Seventeen commissioned officers were killed, and four mortally wounded. "This loss of officers," said their general, "is still more heavy on account of their value than their numbers."

Among the slain was Lieutenant Colonel Campbell, who received a mortal wound while leading the Virginia brigade to that bold and decisive charge which broke the adverse line.

The loss of the British army was stated by themselves at six hundred and ninety-three men, of whom only eighty-five were killed in the field. If this statement be correct,[\[6\]](#) the American dead greatly exceeded that of the adversary, which was probably the fact, as the carnage of the former, during their unavailing efforts to dislodge the latter from the house and strong adjoining ground, was immense.

Each party had pretensions to the victory, and each claimed the merit of having gained it with inferior numbers. The truth probably is that their numbers were nearly equal.

Nor can the claim of either to the victory be pronounced unequivocal. Unconnected with its consequences, the fortune of the day was nearly balanced. But if the consequences be taken into the account, the victory unquestionably belonged to Greene. The result of this, as of the two preceding battles fought by him in the Carolinas, was the expulsion of the hostile army from the territory which was the immediate object of contest.

Four six-pounders, two of which had been taken in the early part of the day, were brought to play upon the house, and, being pushed so near as to be within the command of its fire, were unavoidably abandoned; but a three-pounder which had been also taken, was brought off by Captain Lieutenant Gaines, whose conduct was mentioned with distinction by General Greene. Thus the trophies of victory were divided.

The thanks of congress were voted to every corps in the army; and a resolution was passed for "presenting to Major General Greene, as an honourable testimony of his merit, a British standard, and a golden medal, emblematic of the battle and of his victory."

September 9.

On the day succeeding the action, Lieutenant Colonel Stuart marched from Eutaw to meet Major M'Arthur, who was conducting a body of troops from Charleston. The junction was effected about fourteen miles from Eutaw; and this movement saved M'Arthur from Marion and Lee, who had been detached on the morning of the same day to intercept any reinforcement which might be coming from below. Stuart continued his retreat to Monk's corner, to which place he was followed by Greene, who, on finding that the numbers and position of the British army were such as to render an attack unadvisable, returned to the high hills of Santee.

The ravages of disease were added to the loss sustained in battle, and the army remained for some time in too feeble a condition for active enterprise.

Nov. 18.

The capitulation at Yorktown was soon followed by the evacuation of Wilmington, in North Carolina, and the British seemed to limit their views in the south to the country adjacent to the sea coast. As the cool season approached, the diseases of the American army abated; and Greene, desirous of partaking in the abundance of the lower country, marched from the high hills of Santee towards the Four Holes, a branch of the Edisto. Nov. 28. Leaving the army to be conducted by Colonel Williams, he proceeded in

person at the head of his cavalry, supported by about two hundred infantry, towards the British posts at Dorchester, where six hundred and fifty regular troops and two hundred royal militia were understood to be stationed.

The British army retires towards Charleston.

Though his march was conducted with the utmost secrecy, the country through which he passed contained so many disaffected, that it was impossible to conceal this movement; and intelligence of his approach was communicated to the officer commanding in Dorchester, the night before he reached that place. The advance, commanded by Lieutenant Colonel Hampton, met a small party, which he instantly charged, and, after killing and taking several, drove the residue over the bridge under cover of their works. In the course of the following night, the stores at Dorchester were burnt, and the garrison retired to the Quarter House, where their principal force was encamped. Greene returned to the army at the Round O, at which place he purposed to await the arrival of the reinforcements marching from the north under the command of General St. Clair. In the mean time, General Marion and Lieutenant Colonel Lee were stationed on each side of Ashley, so as to cover the country between the Cooper and the Edisto; thus confining the influence of the British arms to Charleston neck, and the adjacent islands.^[7]

While in his camp at the Round O, General Greene was informed that large reinforcements from Ireland and from New York were expected by the army in Charleston. This intelligence excited the more alarm, because the term of service for which the levies from Virginia were engaged was about expiring, and no adequate measures had been taken for supplying their places. It proved untrue; but such was its impression, that the general addressed a letter to the governors of South Carolina, in which, after taking a serious view of the state of his army, he recommended that it should be recruited from the slaves. The governor thought the proposition of sufficient importance to be laid before the legislature, which was soon afterwards convened; but the measure was not adopted.

On the fourth of January, General St. Clair, who conducted the reinforcement from the north, arrived in camp, and, five days afterward, General Wayne,^[8] with his brigade, and the remnant of the third regiment of dragoons, commanded by Colonel White, was detached over the Savannah for the recovery of Georgia.

General Greene crossed the Edisto and took post six miles in advance of Jacksonborough, on the road leading to Charleston, for the purpose of covering the state legislature, which assembled at that place on the eighteenth. Thus was civil government re-established in South Carolina, and that state restored to the union.

It is impossible to review this active and interesting campaign without feeling that much is due to General Greene; and that he amply justified the favourable opinion of the Commander-in-chief. He found the country completely conquered, and defended by a regular army estimated at four thousand men. The inhabitants were so divided, as to leave it doubtful to which side the majority was attached. At no time did the effective continental force which he could bring into the field, amount to two thousand men; and of these a considerable part were raw troops. Yet he could keep the field without being forced into action; and by a course of judicious movement, and of hardy enterprise, in which invincible constancy was displayed, and in which courage was happily tempered with prudence, he recovered the southern states. It is a singular fact, well worthy of notice, which marks impressively the soundness of his judgment, that although he never gained a decisive victory, he obtained, to a considerable extent, even when defeated, the object for which he fought.

A just portion of the praise deserved by these achievements, is unquestionably due to the troops he commanded. These real patriots bore every hardship and privation^[9] with a degree of patience and constancy which can not be sufficiently admired. And never was a general better supported by his inferior officers. Not shackled by men who, without merit, held stations of high rank obtained by political influence, he commanded young men of equal spirit and intelligence, formed under the eye of Washington, and trained in the school furnished in the severe service of the north, to all the hardships and dangers of war.

A peculiar importance was given to these successes in the south by the opinion that a pacific temper was finding its way into the cabinets of the belligerent powers of Europe. The communications from the court of Versailles rendered it probable that negotiations for peace would take place in the course of the ensuing winter; and dark hints had been given on the part of Great Britain to the minister of his most Christian Majesty, that all the American states could not reasonably expect to become independent, as several of them were subdued. Referring to the precedent of the low

countries, it was observed that of the seventeen provinces originally united against the Spanish crown, only seven obtained their independence.

Additional motives for exertion were furnished by other communications from the French monarch. These were that, after the present campaign, no farther pecuniary or military aids were to be expected from France. The situation of affairs in Europe would, it was said, demand all the exertions which that nation was capable of making; and the forces of his most Christian Majesty might render as much real service to the common cause elsewhere as in America.[\[10\]](#)

CHAPTER II.

Preparations for another campaign.... Proceedings in the Parliament of Great Britain.... Conciliatory conduct of General Carleton.... Transactions in the south.... Negotiations for peace.... Preliminary and eventual articles agreed upon between the United States and Great Britain.... Discontents of the American army.... Peace.... Mutiny of a part of the Pennsylvania line.... Evacuation of New York.... General Washington resigns his commission and retires to Mount Vernon.

1782

Preparations for another campaign.

The splendid success of the allied arms in Virginia, and the great advantages obtained still farther south, produced no disposition in General Washington to relax those exertions which might be necessary to secure the great object of the contest. "I shall attempt to stimulate congress," said he, in a letter to General Greene written at Mount Vernon, "to the best improvement of our late success, by taking the most vigorous and effectual measures to be ready for an early and decisive campaign the next year. My greatest fear is, that viewing this stroke in a point of light which may too much magnify its importance, they may think our work too nearly closed, and fall into a state of languor and relaxation. To prevent this error, I shall employ every means in my power, and, if unhappily we sink into this fatal mistake, no part of the blame shall be mine."

On the 27th of November he reached Philadelphia, and congress passed a resolution granting him an audience on the succeeding day. On his appearance the President addressed him in a short speech, informing him that a committee was appointed to state the requisitions to be made for the proper establishment of the army, and expressing the expectation that he would remain in Philadelphia, in order to aid the consultations on that important subject.

The secretary of war, the financier, and the secretary of foreign affairs, assisted at these deliberations; and the business was concluded with unusual celerity.

A revenue was scarcely less necessary than an army; and it was obvious that the means for carrying on the war must be obtained, either by impressment, or by a vigorous course of taxation. But both these alternatives depended on the states; and the government of the union resorted to the influence of the Commander-in-chief in aid of its requisitions.

But no exertions on the part of America alone could expel the invading army. A superiority at sea was indispensable to the success of offensive operations against the posts which the British still held within the United States. To obtain this superiority, General Washington pressed its importance on the minister of France and commanding officers of the French troops, as well as on the Marquis de Lafayette, who was about to return to his native country.

Proceedings in the British parliament.

The first intelligence from Europe was far from being calculated to diminish the anxieties still felt in America by the enlightened friends of the revolution. The parliament of Great Britain reassembled in November. The speech from the throne breathed a settled purpose to continue the war; and the addresses from both houses, which were carried by large majorities, echoed the sentiment.

In the course of the animated debates which these addresses occasioned, an intention was indeed avowed by some members of the administration to change their system. The plan indicated for the future was to direct the whole force of the nation against France and Spain; and to suspend offensive operations in the interior of the United States, until the strength of those powers should be broken. In the mean time, the posts then occupied by their troops were to be maintained.

This development of the views of administration furnished additional motives to the American government for exerting all the faculties of the nation, to expel the British garrisons from New York and Charleston. The efforts of the Commander-in-chief to produce these exertions were earnest and unremitting, but not successful. The state legislatures declared the inability of their constituents to pay taxes. Instead of filling the continental treasury, some were devising means to draw money from it; and some of those who passed bills imposing heavy taxes, directed that the demands of the state should be first satisfied, and that the residue only should be paid to the continental receiver. By the unwearied attention and judicious

arrangements of the minister of finance, the expenses of the nation had been greatly reduced. The bank established in Philadelphia, and his own high character, had enabled him to support in some degree a system of credit, the advantages of which were incalculably great.

He had through the Chevalier de la Luzerne obtained permission from his most Christian Majesty to draw for half a million of livres monthly, until six millions should be received. To prevent the diversion of any part of this sum from the most essential objects, he had concealed the negotiation even from congress, and had communicated it only to the Commander-in-chief; yet, after receiving the first instalment, it was discovered that Doctor Franklin had anticipated the residue of the loan, and had appropriated it to the purposes of the United States. At the commencement of the year 1782, not a dollar remained in the treasury; and, although congress had required the payment of two millions on the 1st of April, not a cent had been received on the twenty-third of that month; and, so late as the 1st of June, not more than twenty thousand dollars had reached the treasury. Yet to the financier every eye was turned; to him the empty hand of every public creditor was stretched forth; and against him, instead of the state governments, the complaints and imprecations of every unsatisfied claimant were directed. In July, when the second quarter annual payment of taxes ought to have been received, the minister of finance was informed by some of his agents, that the collection of the revenue had been postponed in some of the states, in consequence of which the month of December would arrive before any money could come into the hands of the continental receivers. In a letter communicating this unpleasant intelligence to the Commander-in-chief, he added, "with such gloomy prospects as this letter affords, I am tied here to be baited by continual clamorous demands; and for the forfeiture of all that is valuable in life, and which I hoped at this moment to enjoy, I am to be paid by invective. Scarce a day passes in which I am not tempted to give back into the hands of congress the power they have delegated, and to lay down a burden which presses me to the earth. Nothing prevents me but a knowledge of the difficulties I am obliged to struggle under. What may be the success of my efforts God only knows; but to leave my post at present, would, I know, be ruinous. This candid state of my situation and feelings I give to your bosom, because you who have already felt and suffered so much, will be able to sympathize with me."



Livingston Manor, Dobbs Ferry, New York

A monument erected by the Sons of the Revolution on the lawn of this historic mansion, overlooking the Hudson River, states that here, on July 6, 1781, the French allies under Rochambeau joined the American Army. Here also, on August 14, 1781, Washington planned the Yorktown campaign which brought to a triumphant end the War for American Independence; and here, on May 6, 1783, Washington and Sir Guy Carleton arranged for the evacuation of American soil by the British. A concluding paragraph reads: "And opposite this point, May 8, 1783, a British sloop of war fired 17 guns in honor of the American Commander-in-Chief, the first salute by Great Britain to the United States of America."

Fortunately for the United States, the temper of the British nation on the subject of continuing the war did not accord with that of its sovereign. That war, into which the people had entered with at least as much eagerness as the minister, had become almost universally unpopular.

February 27.

Motions against the measures of administration respecting America were repeated by the opposition; and, on every experiment, the strength of the minority increased. At length, on the 27th of February, General Conway moved in the house of commons, "that it is the opinion of this house that a farther prosecution of offensive war against America would, under present circumstances, be the means of weakening the efforts of this country against her European enemies, and tend to increase the mutual enmity so fatal to the interests both of Great Britain and America." The whole force of administration was exerted to get rid of this resolution, but was exerted in vain; and it was carried. An address to the king, in the words of the resolution, was immediately voted, and was presented by the whole house. March 4. The answer of the crown being deemed inexplicit, it was on the 4th of March resolved, "that the house will consider as enemies to his majesty and the country, all those who should advise, or attempt a farther prosecution of offensive war on the continent of North America."

These votes were soon followed by a change of ministers, and by instructions to the officers commanding the forces in America, which conformed to them.

While General Washington was employed in addressing circular letters to the state governments, suggesting all those motives which might stimulate

them to exertions better proportioned to the exigency, English papers containing the debates in parliament on the various propositions respecting America, reached the United States. Alarmed at the impression these debates might make, he introduced the opinions it was deemed prudent to inculcate respecting them, into the letters he was then about to transmit to the governors of the several states. "I have perused these debates," he said, "with great attention and care, with a view, if possible, to penetrate their real design; and upon the most mature deliberation I can bestow, I am obliged to declare it as my candid opinion, that the measure, in all its views, so far as it respects America, is merely delusory, having no serious intention to admit our independence upon its true principles, but is calculated to produce a change of ministers to quiet the minds of their own people, and reconcile them to a continuance of the war, while it is meant to amuse this country with a false idea of peace, to draw us from our connexion with France, and to lull us into a state of security and inactivity, which taking place, the ministry will be left to prosecute the war in other parts of the world with greater vigour and effect. Your excellency will permit me on this occasion to observe, that, even if the nation and parliament are really in earnest to obtain peace with America, it will undoubtedly be wisdom in us to meet them with great caution and circumspection, and by all means to keep our arms firm in our hands, and instead of relaxing one iota in our exertions, rather to spring forward with redoubled vigour, that we may take the advantage of every favourable opportunity, until our wishes are fully obtained. No nation yet suffered in treaty by preparing (even in the moment of negotiation) most vigorously for the field.

"The industry which the enemy is using to propagate their pacific reports, appears to me a circumstance very suspicious; and the eagerness with which the people, as I am informed, are catching at them, is, in my opinion, equally dangerous."

May.

Conciliatory conduct of General Carleton.

Early in May, Sir Guy Carleton, who had succeeded Sir Henry Clinton in the command of all the British forces in the United States, arrived at New York. Having been also appointed in conjunction with Admiral Digby, a commissioner to negotiate a peace, he lost no time in conveying to General Washington copies of the votes of the British Parliament, and of a bill

which had been introduced on the part of administration, authorizing his Majesty to conclude a peace or truce with those who were still denominated "the revolted colonies of North America." These papers, he said, would manifest the dispositions prevailing with the government and people of England towards those of America; and, if the like pacific temper should prevail in this country, both inclination and duty would lead him to meet it with the most zealous concurrence. He had addressed to congress, he said, a letter containing the same communications, and he solicited a passport for the person who should convey it.

At this time, the bill enabling the British monarch to conclude a peace or truce with America had not become a law; nor was any assurance given that the present commissioners were empowered to offer other terms than those which had been formerly rejected. General Carleton therefore could not hope that negotiations would commence on such a basis; nor be disappointed at the refusal of the passports he requested by congress, to whom the application was, of course, referred. The letter may have been written for the general purpose of conciliation, and of producing a disposition in the United States on the subject of hostilities, corresponding with that which had been expressed in the House of Commons. But the situation of the United States justified a suspicion of different motives; and prudence required that their conduct should be influenced by that suspicion. The repugnance of the king to a dismemberment of the empire was understood; and it was thought probable that the sentiments expressed in the House of Commons might be attributable rather to a desire of changing ministers, than to any fixed determination to relinquish the design of reannexing America to the crown.

Under these impressions, the overtures now made were considered as opiates, administered to lull the spirit of vigilance which the guardians of the public safety laboured to keep up, into a state of fatal repose; and to prevent those measures of security which it might yet be necessary to adopt.

This jealousy was nourished by all the intelligence received from Europe. The utmost address of the British cabinet had been employed to detach the belligerents from each other. The mediation of Russia had been accepted to procure a separate peace with Holland; propositions had been submitted both to France and Spain, tending to an accommodation of differences with each of those powers singly; and inquiries had been made of Mr. Adams,

the American minister at the Hague, which seemed to contemplate the same object with regard to the United States. These political manoeuvres furnished additional motives for doubting the sincerity of the English cabinet. Whatever views might actuate the court of St. James on this subject, the resolution of the American government to make no separate treaty was unalterable.[\[11\]](#)

But the public votes which have been stated, and probably his private instructions, restrained Sir Guy Carleton from offensive war; and the state of the American army disabled General Washington from making any attempt on the posts in possession of the British. The campaign of 1782 consequently passed away without furnishing any military operations of moment between the armies under the immediate direction of the respective commanders-in-chief.

August.

Negotiations for peace.

Early in August a letter was received by General Washington from Sir Guy Carleton and Admiral Digby, which, among other communications manifesting a pacific disposition on the part of England, contained the information that Mr. Grenville was at Paris, invested with full powers to treat with all the parties at war, that negotiations for a general peace were already commenced, and that his Majesty had commanded his minister to direct Mr. Grenville, that the independence of the thirteen provinces should be proposed by him in the first instance, instead of being made a condition of a general treaty. But that this proposition would be made in the confidence that the loyalists would be restored to their possessions, or a full compensation made them for whatever confiscations might have taken place.

This letter was, not long afterwards, followed by one from Sir Guy Carleton, declaring that he could discern no further object of contest, and that he disapproved of all farther hostilities by sea or land, which could only multiply the miseries of individuals, without a possible advantage to either nation. In pursuance of this opinion, he had, soon after his arrival in New York, restrained the practice of detaching parties of Indians against the frontiers of the United States, and had recalled those which were previously engaged in those bloody incursions.

These communications appear to have alarmed the jealousy of the minister of France. To quiet his fears, congress renewed the resolution "to enter into no discussion of any overtures for pacification, but in confidence and in concert with his most Christian Majesty;"[12] and again recommend to the several states to adopt such measures as would most effectually guard against all intercourse with any subjects of the British crown during the war.

The same causes which produced this inactivity in the north, operated to a considerable extent with the armies of the south.

When General Wayne entered Georgia, the British troops in that state retired to the town of Savannah; and the Americans advanced to Ebenezer. Though inferior to their enemy in numbers, they interrupted his communications with the country, and even burned some magazines which had been collected and deposited under the protection of his guns.

Not receiving the aids from the militia which he had expected, Wayne pressed Greene for reinforcements, which that officer was unable to furnish, until Lieutenant Colonel Posey arrived from Virginia with about two hundred men. He proceeded immediately to Georgia, and reached the camp at Ebenezer on the 1st of April.

These troops, though new levies, were veteran soldiers, who, having served the times for which they enlisted, had become the substitutes of men who were designated, by lot, for tours of duty they were unwilling to perform. Being commanded by old officers of approved courage and experience, the utmost confidence was to be placed in them; and Wayne, though still inferior to his enemy in numbers, sought for opportunities to employ them.

The Indians, who occupied the southern and western parts of Georgia, were in the habit of assembling annually at Augusta, for the purpose of receiving those presents which were indispensable to the preservation of British influence over them. The usual time for holding these meetings was arrived; but the Americans being in possession of Augusta, it was necessary to transfer them to a British post, and the Indians were invited to keep down the south side of the Altamaha to its mouth, whence they were to be conveyed through the inland passage to Savannah. Arrangements had been made for bringing a strong party of Creeks and Choctaws, assembled on the south side of Altamaha, to Harris's bridge, on the Ogechee, about seven miles from that town, and Colonel Brown marched at the head of a strong

detachment to convoy them into it. The Indians having quarrelled, instead of proceeding to Ogechee, returned home, and Brown marched back his detachment.

Wayne received intelligence of this movement; and, determining to avail himself of the opportunity given by this division of his enemy to fight him in detail, immediately put his army in motion. He was soon informed that Brown was on his return, and would reach Savannah that night. Disregarding the danger of throwing himself with inferior numbers between the two divisions of the British army, he determined on hazarding an action, and his advance, consisting of a troop of Virginia cavalry, commanded by Captain Hughes and Lieutenant Boyer, and a light company of Virginia infantry, commanded by Captain Parker, entered the road along which Brown was marching about twelve at night, just as his front appeared in view. A vigorous charge was instantly made, which, being entirely unexpected, was completely successful. The British, struck with a panic, dispersed among the thickets and fled in all directions. Colonel Douglass and about forty men were killed, wounded, or taken. The American loss was five men killed and two wounded. The next day, after parading in view of Savannah, Wayne resumed his position at Ebenezer.

The resolution of Parliament against the farther prosecution of active war in America was followed by instructions to the officers commanding the armies of Britain, in consequence of which propositions for the suspension of hostilities were made in the southern department, about the time that they were rejected in the north. The same motives continuing to influence congress, they were rejected in the south also, and the armies still continued to watch each other with vigilance. To avoid surprise, Wayne frequently changed his ground, and was continually on the alert. While his whole attention was directed towards Savannah, an enemy entirely unlooked for came upon his rear, entered his camp in the night, and, had not his army been composed of the best materials, must have dispersed it.

A strong party of Creeks, led by a gallant warrior, Emistasigo, or Guristersego, instead of moving down on the south side of the Altamaha, passed through the centre of Georgia with the determination of engaging the American posts. Marching entirely in the night, through unfrequented ways, subsisting on meal made of parched corn, and guided by white men, they reached the neighbourhood of the American army then encamped at

Gibbon's plantation, near Savannah, without being perceived, and made arrangements to attack it. In the night they emerged from the deep swamp in which they had been concealed, and, approaching the rear of the American camp with the utmost secrecy, reached it about three in the morning. The sentinel was killed before he could sound the alarm, and the first notice was given by the fire and the yell of the enemy. The Indians rushed into the camp, and, killing the few men they fell in with, seized the artillery. Fortunately some time was wasted in the attempt to turn the pieces on the Americans. Captain Parker, who commanded the light company, had been employed on a very fatiguing tour of duty near Savannah, and had returned that evening to camp. To allow his harassed soldiers some repose, he was placed in the rear near the artillery, and was asleep when the Indians entered the camp. Roused by the fire, and perceiving that the enemy was amidst them, he judiciously drew off his men in silence, and formed them with the quarter guard behind the house in which the general was quartered. Wayne was instantly on horseback, and, believing the whole garrison from Savannah to be upon him, determined to repulse the enemy or die in the attempt. Parker was directed to charge immediately with the bayonet, and orders were despatched to Posey, the commanding officer in camp, to bring up the troops without delay. The orders to Parker were so promptly executed, that Posey, although he moved with the utmost celerity, could not reach the scene of action in time to join in it. The light troops and quarter guard under Parker drove every thing before them at the point of the bayonet. The Indians, unable to resist the bayonet, soon fled, leaving their chief, his white guides, and seventeen of his warriors dead upon the spot. Wayne, who accompanied his light troops, now first discovered the character of his enemy, and adapted his pursuit to it. Yet only twelve prisoners were made. The general's horse was shot under him, and twelve privates were killed and wounded.[\[13\]](#)

This sharp conflict terminated the war in Georgia. Information was soon given of the determination to withdraw the British troops from Savannah; and arrangements being made, with the sanction of the civil government, for the security of such individuals as might remain in town, the place was evacuated. The regular troops retired to Charleston, and Colonel Brown conducted his loyalists through the islands into Florida. Wayne was directed to rejoin General Greene.

In South Carolina the American army maintained its position in front of Jacksonborough, and that of the British was confined to Charleston and its immediate vicinity. The situation of the ground as well as the condition of his army, was unfavourable to offensive operations on the part of General Greene; and General Leslie, who commanded in Charleston, was not strong enough to attempt the recovery of the lower country. While the two armies continued to watch each other, occasional enterprises were undertaken by detachments, in some of which a considerable degree of merit was displayed. In one of them, the corps of Marion, its general being attending in the legislature, was surprised and dispersed by the British Colonel Thompson; and in another, an English guard galley, mounting twelve guns, and manned with forty-three seamen, was captured by Captain Rudolph, of the legion.

From the possession of the lower country of South Carolina, which was known to contain considerable quantities of rice and beef cattle, the army had anticipated more regular and more abundant supplies of food than it had been accustomed to receive. This hope was disappointed by the measures of the government.

The generals, and other agents acting under the authority of congress, had been accustomed in extreme cases, which too frequently occurred, to seize provisions for the use of the armies. This questionable power had been exercised with forbearance, most commonly in concert with the government of the state, and under the pressure of such obvious necessity as carried its justification with it.

The war being transferred to the south at a time when the depreciation of paper money had deprived congress of its only fund, it became indispensably necessary to resort more generally to coercive means in order to procure subsistence for the troops. Popular discontent was the natural consequence of this odious measure, and the feelings of the people were communicated to their representatives. After the termination of the very active campaign of 1781 in Virginia, the legislature of that state passed a law prohibiting all impressment, "unless it be by warrant from the executive in time of actual invasion;" and the assembly of South Carolina, during the session at Jacksonborough, also passed a law forbidding impressment, and enacting, "that no other persons than those who shall be appointed by the

governor for that purpose, shall be allowed or permitted to procure supplies for the army."

The effect of this measure was soon felt. The exertions of the agent appointed by the governor failed to procure subsistence for the troops, and General Greene, after a long course of suffering, was compelled to relieve his urgent wants by an occasional recurrence to means forbidden by the law.

Privations, which had been borne without a murmur under the excitement of active military operations, produced great irritation during the leisure which prevailed after the enemy had abandoned the open field; and, in the Pennsylvania line, which was composed chiefly of foreigners, the discontent was aggravated to such a point as to produce a treasonable intercourse with the enemy, in which a plot is understood to have been laid for seizing General Greene and delivering him to a detachment of British troops, which would move out of Charleston for the purpose of favouring the execution of the design. It was discovered when it is supposed to have been on the point of execution; and a sergeant Gornell, believed to be the chief of the conspiracy, was condemned to death by a court martial, and executed on the 22nd of April. Some others, among whom were two domestics in the general's family, were brought before the court on suspicion of being concerned in the plot, but the testimony was not sufficient to convict them; and twelve deserted the night after it was discovered. There is no reason to believe that the actual guilt of this transaction extended farther.

July 11.

Charleston was held until the 14th of December. Previous to its evacuation, General Leslie had proposed a cessation of hostilities, and that his troops might be supplied with fresh provisions, in exchange for articles of the last necessity in the American camp. The policy of government being adverse to this proposition, General Greene was under the necessity of refusing his assent to it, and the British general continued to supply his wants by force. This produced several skirmishes with foraging parties, to one of which importance was given by the death of Lieutenant Colonel Laurens, whose loss was universally lamented.

This gallant and accomplished young gentleman had entered into the family of the Commander-in-chief at an early period of the war, and had always shared a large portion of his esteem. Brave to excess, he sought

every occasion to render service to his country, and to acquire that military fame which he pursued with the ardour of a young soldier, whose courage seems to have partaken largely of that romantic spirit which youth and enthusiasm produce in a fearless mind. No small addition to the regrets occasioned by his loss was derived from the reflection that he fell unnecessarily, in an unimportant skirmish, in the last moments of the war, when his rash exposure to the danger which proved fatal to him could no longer be useful to his country.

From the arrival of Sir Guy Carleton at New York, the conduct of the British armies on the American continent was regulated by the spirit then recently displayed in the house of commons; and all the sentiments expressed by their general were pacific and conciliatory. But to these nattering appearances it was dangerous to yield implicit confidence. With a change of men, a change of measures might also take place; and, in addition to the ordinary suggestions of prudence, the military events in the West Indies were calculated to keep alive the attention, and to continue the anxieties of the United States.

After the surrender of Lord Cornwallis, the arms of France and Spain in the American seas had been attended with such signal success, that the hope of annihilating the power of Great Britain in the West Indies was not too extravagant to be indulged. Immense preparations had been made for the invasion of Jamaica; and, early in April, Admiral Count de Grasse sailed from Martinique with a powerful fleet, having on board the land forces and artillery which were to be employed in the operations against that island. His intention was to form a junction with the Spanish Admiral Don Solano, who lay at Hispaniola; after which the combined fleet, whose superiority promised to render it irresistible, was to proceed on the important enterprise which had been concerted. On his way to Hispaniola, De Grasse was overtaken by Rodney, and brought to an engagement, in which he was totally defeated, and made a prisoner. This decisive victory disconcerted the plans of the combined powers, and gave security to the British islands. In the United States, it was feared that this alteration in the aspect of affairs might influence the councils of the English cabinet on the question of peace; and these apprehensions increased the uneasiness with which all intelligent men contemplated the state of the American finances.

It was then in contemplation to reduce the army, by which many of the officers would be discharged. While the general declared, in a confidential letter to the secretary of war, his conviction of the alacrity with which they would retire into private life, could they be placed in a situation as eligible as they had left to enter into the service, he added—"Yet I cannot help fearing the result of the measure, when I see such a number of men goaded by a thousand stings of reflection on the past, and of anticipation on the future, about to be turned on the world, soured by penury, and what they call the ingratitude of the public; involved in debts, without one farthing of money to carry them home, after having spent the flower of their days, and, many of them, their patrimonies, in establishing the freedom and independence of their country; and having suffered every thing which human nature is capable of enduring on this side of death. I repeat it, when I reflect on these irritating circumstances, unattended by one thing to soothe their feelings, or brighten the gloomy prospect, I cannot avoid apprehending that a train of evils will follow of a very serious and distressing nature.

"I wish not to heighten the shades of the picture so far as the real life would justify me in doing, or I would give anecdotes of patriotism and distress which have scarcely ever been paralleled, never surpassed, in the history of mankind. But you may rely upon it, the patience and long sufferance of this army are almost exhausted, and there never was so great a spirit of discontent as at this instant. While in the field, I think it may be kept from breaking out into acts of outrage; but when we retire into winter quarters (unless the storm be previously dissipated) I can not be at ease respecting the consequences. It is high time for a peace."

To judge rightly of the motives which produced this uneasy temper in the army, it will be necessary to recollect that the resolution of October, 1780, granting half pay for life to the officers, stood on the mere faith of a government possessing no funds enabling it to perform its engagements. From requisitions alone, to be made on sovereign states, the supplies were to be drawn which should satisfy these meritorious public creditors; and the ill success attending these requisitions while the dangers of war were still impending, furnished melancholy presages of their unproductiveness in time of peace. In addition to this reflection, of itself sufficient to disturb the tranquillity which the passage of the resolution had produced, were other considerations of decisive influence. The dispositions manifested by congress itself were so unfriendly to the half pay establishment as to

extinguish the hope that any funds the government might acquire, would be applied to that object. Since the passage of the resolution, the articles of confederation, which required the concurrence of nine states to any act appropriating public money, had been adopted; and nine states had never been in favour of the measure. Should the requisitions of congress therefore be respected, or should permanent funds be granted by the states, the prevailing sentiment of the nation was too hostile to the compensation which had been stipulated, to leave a probability that it would be substantially made. This was not merely the sentiment of the individuals then administering the government, which might change with a change of men. It was known to be the sense of the states they represented; and consequently the hope could not be indulged that, on this subject, a future congress would be more just, or would think more liberally. As therefore the establishment of that independence for which they had fought and suffered appeared to become more certain,—as the end of their toils approached—the officers became more attentive to their own situation; and the inquietude of the army increased with the progress of the negotiation.

In October, the French troops marched to Boston, in order to embark for the West Indies; and the Americans retired into winter quarters. The apparent indisposition of the British general to act offensively, the pacific temper avowed by the cabinet of London, and the strength of the country in which the American troops were cantoned, gave ample assurance that no military operations would be undertaken during the winter, which could require the continuance of General Washington in camp. But the irritable temper of the army furnished cause for serious apprehension; and he determined to forego every gratification to be derived from a suspension of his toils, in order to watch its discontents.

While the situation of the United States thus loudly called for peace, the negotiations in Europe were protracted by causes which, in America, were almost unknown, and which it would have been dangerous to declare. Although, so far as respected the dismemberment of the British empire, the war had been carried on with one common design, the ulterior views of the belligerent powers were not only different, but, in some respects, incompatible with each other. To depress a proud and hated rival was so eagerly desired by the house of Bourbon, that France and Spain might be disposed to continue hostilities for the attainment of objects in which America could feel no common interest. This circumstance, of itself,

furnished motives for prolonging the war, after the causes in which it originated were removed; and additional delays were produced by the discordant views which were entertained in regard to those claims which were the subject of negotiation. These were, the boundaries which should be assigned to the United States, and the participation which should be allowed them in the fisheries. On both these points, the wishes of France and Spain were opposed to those of America; and the cabinets both of Versailles and Madrid, seemed disposed to intrigue with that of London, to prevent such ample concessions respecting them, as the British minister might be inclined to make.

Preliminary and eventual articles agreed upon between the United States and Great Britain.

Nov. 30.

After an intricate negotiation, in which the penetration, judgment, and firmness, of the American commissioners were eminently displayed, eventual and preliminary articles were signed on the 30th of November. By this treaty every reasonable wish of America, especially on the questions of boundary and of the fisheries, was gratified.

The liberality of the articles on these points attests the success which attended the endeavours of the plenipotentiaries of the United States, to prove that the real interests of England required that America should become independent in fact, as well as name; and that every cause of future discord between the two nations should be removed.

1783

The effect of this treaty was suspended until peace should be concluded between France and Great Britain. The connexions between their most Christian and Catholic Majesties not admitting of a separate peace on the part of either, the negotiations between the belligerent powers of Europe had been protracted by the persevering endeavours of Spain to obtain the cession of Gibraltar. At length, the formidable armament which had invested that fortress was repulsed with immense slaughter; after which the place was relieved by Lord Howe, and the besiegers abandoned the enterprise in despair. Negotiations were then taken up with sincerity; and preliminary articles of peace between Great Britain, France, and Spain, were signed on the 20th of January, 1783.

Discontents of the American Army.

In America, the approach of peace, combined with other causes, produced a state of things alike interesting and critical. The officers who had wasted their fortunes and their prime of life in unrewarded service, fearing, with reason, that congress possessed neither the power nor the inclination to comply with its engagements to the army, could not look with unconcern at the prospect which was opening to them. In December, soon after going into winter quarters, they presented a petition to congress, respecting the money actually due to them, and proposing a commutation of the half pay stipulated by the resolutions of October, 1780, for a sum in gross, which, they nattered themselves, would encounter fewer prejudices than the half pay establishment. Some security that the engagements of the government would be complied with was also requested. A committee of officers was deputed to solicit the attention of congress to this memorial, and to attend its progress through the house.

Among the most distinguished members of the federal government, were persons sincerely disposed to do ample justice to the public creditors generally, and to that class of them particularly whose claims were founded in military service. But many viewed the army with jealous eyes, acknowledged its merit with unwillingness, and betrayed, involuntarily, their repugnance to a faithful observance of the public engagements. With this question, another of equal importance was connected, on which congress was divided almost in the same manner. One party was attached to a state, the other to a continental system. The latter laboured to fund the public debts on solid continental security, while the former opposed their whole weight to measures calculated to effect that object.

In consequence of these divisions on points of the deepest interest, the business of the army advanced slowly, and the important question respecting the commutation of their half pay remained undecided, when intelligence was received of the signature of the preliminary and eventual articles of peace between the United States and Great Britain.

Anonymous letters and the proceedings in consequence thereof.

The officers, soured by their past sufferings, their present wants, and their gloomy prospects—exasperated by the neglect which they experienced, and the injustice which they apprehended, manifested an irritable and uneasy temper, which required only a slight impulse to give it activity. To render this temper the more dangerous, an opinion had been insinuated that the

Commander-in-chief was restrained, by extreme delicacy, from supporting their interests with that zeal which his feelings and knowledge of their situation had inspired. Early in March, a letter was received from their committee in Philadelphia, showing that the objects they solicited had not been obtained. On the 10th of that month, an anonymous paper was circulated, requiring a meeting of the general and field officers at the public building on the succeeding day at eleven in the morning; and announcing the expectation that an officer from each company, and a delegate from the medical staff would attend. The object of the meeting was avowed to be, "to consider the late letter from their representatives in Philadelphia, and what measures (if any) should be adopted to obtain that redress of grievances which they seemed to have solicited in vain."

On the same day an address to the army was privately circulated, which was admirably well calculated to work on the passions of the moment, and to lead to the most desperate resolutions. Full justice can not be done to this eloquent paper without inserting it entire.

"To the officers of the army.

"Gentlemen,

"A fellow soldier, whose interests and affections bend him strongly to you, whose past sufferings have been as great, and whose future fortune may be as desperate as yours, would beg leave to address you.

"Age has its claims, and rank is not without its pretensions, to advise; but though unsupported by both, he flatters himself that the plain language of sincerity and experience will neither be unheard nor unregarded.

"Like many of you, he loved private life, and left it with regret. He left it, determined to retire from the field with the necessity that called him to it, and not until then—not until the enemies of his country, the slaves of power, and the hirelings of injustice, were compelled to abandon their schemes, and acknowledge America as terrible in arms as she had been humble in remonstrance. With this object in view, he has long shared in your toils, and mingled in your dangers. He has felt the cold hand of poverty without a murmur, and has seen the insolence of wealth without a sigh. But too much under the direction of his wishes, and sometimes weak enough to mistake desire for opinion, he has until lately—very lately—believed in the justice of his country. He hoped that, as the clouds of adversity scattered, and as the sunshine of peace and better fortune broke in

upon us, the coldness and severity of government would relax, and that more than justice, that gratitude would blaze forth upon those hands which had upheld her in the darkest stages of her passage from impending servitude to acknowledged independence. But faith has its limits, as well as temper, and there are points beyond which neither can be stretched without sinking into cowardice, or plunging into credulity. This, my friends, I conceive to be your situation. Hurried to the very verge of both, another step would ruin you for ever. To be tame and unprovoked when injuries press hard upon you, is more than weakness; but to look up for kinder usage without one manly effort of your own, would fix your character, and show the world how richly you deserve those chains you broke. To guard against this evil, let us take a review of the ground upon which we now stand, and from thence carry our thoughts forward for a moment into the unexplored field of expedient.

"After a pursuit of seven long years, the object for which we set out is at length brought within our reach.—Yes, my friends, that suffering courage of yours was active once.—It has conducted the United States of America through a doubtful and a bloody war.—It has placed her in the chair of independency; and peace returns again to bless—whom?—A country willing to redress your wrongs, cherish your worth, and reward your services? A country courting your return to private life with tears of gratitude and smiles of admiration—longing to divide with you that independency which your gallantry has given, and those riches which your wounds have preserved? Is this the case? Or is it rather a country that tramples upon your rights, disdains your cries, and insults your distresses? Have you not more than once suggested your wishes and made known your wants to congress? Wants and wishes which gratitude and policy would have anticipated rather than evaded; and have you not lately, in the meek language of entreating memorials, begged from their justice what you could no longer expect from their favour? How have you been answered? Let the letter which you are called to consider to-morrow reply.

"If this then be your treatment while the swords you wear are necessary for the defence of America, what have you to expect from peace, when your voice shall sink, and your strength dissipate by division? When those very swords, the instruments and companions of your glory, shall be taken from your sides, and no remaining mark of military distinction left but your wants, infirmities, and scars? Can you then consent to be the only sufferers

by this revolution, and, retiring from the field, grow old in poverty, wretchedness, and contempt? Can you consent to wade through the vile mire of dependency, and owe the miserable remnant of that life to charity which has hitherto been spent in honour? If you can—go—and carry with you the jest of tories, and the scorn of whigs;—the ridicule, and, what is worse, the pity of the world. Go,—starve and be forgotten. But if your spirit should revolt at this; if you have sense enough to discover, and spirit enough to oppose, tyranny under whatever garb it may assume; whether it be the plain coat of republicanism, or the splendid robe of royalty; if you have yet learned to discriminate between a people and a cause, between men and principles,—awake; attend to your situation, and redress yourselves. If the present moment be lost, every future effort is in vain; and your threats then will be as empty as your entreaties now.

"I would advise you therefore to come to some final opinion upon what you can bear, and what you will suffer. If your determination be in any proportion to your wrongs, carry your appeal from the justice to the fears of the government. Change the milk-and-water style of your last memorial. Assume a bolder tone,—decent, but lively, spirited, and determined; and suspect the man who would advise to more moderation and longer forbearance. Let two or three men who can feel as well as write, be appointed to draw up your *last remonstrance*; for I would no longer give it the sueing, soft, unsuccessful epithet of memorial. Let it be represented in language that will neither dishonour you by its rudeness, nor betray you by its fears, what has been promised by congress, and what has been performed;—how long and how patiently you have suffered;—how little you have asked, and how much of that little has been denied. Tell them that, though you were the first, and would wish to be the last to encounter danger; though despair itself can never drive you into dishonour, it may drive you from the field;—that the wound often irritated and never healed, may at length become incurable; and that the slightest mark of indignity from congress now must operate like the grave, and part you forever; that in any political event, the army has its alternative. If peace, that nothing shall separate you from your arms but death; if war, that courting the auspices, and inviting the directions of your illustrious leader, you will retire to some unsettled country, smile in your turn, and 'mock when their fear cometh on.' But let it represent also that, should they comply with the request of your late memorial, it would make you more happy and them more respectable.

That while war should continue you would follow their standard into the field; and when it came to an end, you would withdraw into the shade of private life, and give the world another subject of wonder and applause;—an army victorious over its enemies, victorious over itself."

Persuaded as the officers in general were of the indisposition of government to remunerate their services, this eloquent and impassioned address, dictated by genius and by feeling, found in almost every bosom a kindred though latent sentiment prepared to receive its impression. Quick as the train to which a torch is applied, the passions caught its flame, and nothing seemed to be required but the assemblage proposed for the succeeding day, to communicate the conflagration to the combustible mass, and to produce an explosion ruinous to the army and to the nation.

Fortunately, the Commander-in-chief was in camp. His characteristic firmness and decision did not forsake him in this crisis. The occasion required that his measures should be firm, but prudent and conciliatory,—evincive of his fixed determination to oppose any rash proceedings, but calculated to assuage the irritation which was excited, and to restore confidence in government.

Knowing well that it was much easier to avoid intemperate measures than to correct them, he thought it of essential importance to prevent the immediate meeting of the officers; but, knowing also that a sense of injury and a fear of injustice had made a deep impression on them, and that their sensibilities were all alive to the proceedings of congress on their memorial, he thought it more adviseable to guide their deliberations on that interesting subject, than to discountenance them.

With these views, he noticed in his orders, the anonymous paper proposing a meeting of the officers, and expressed his conviction that their good sense would secure them from paying any "attention to such an irregular invitation; but his own duty, he conceived, as well as the reputation and true interest of the army, required his disapprobation of such disorderly proceedings. At the same time, he requested the general and field officers, with one officer from each company, and a proper representation from the staff of the army, to assemble at twelve on Saturday, the 15th, at the new building, to hear the report of the committee deputed by the army to congress. After mature deliberation they will devise what farther measures ought to be adopted as most rational and best calculated to obtain

the just and important object in view." The senior officer in rank present was directed to preside, and report the result of the deliberations to the Commander-in-chief.

The day succeeding that on which these orders were published, a second anonymous address appeared, from the same pen which had written the first. Its author, acquainted with the discontents of the army, did not seem to despair of impelling the officers to the desired point. He affected to consider the orders in a light favourable to his views:—"as giving system to their proceedings, and stability to their resolves."

But Washington would not permit himself to be misunderstood. The interval between his orders and the general meeting they invited, was employed in impressing on those officers individually who possessed the greatest share of the general confidence, a just sense of the true interests of the army; and the whole weight of his influence was exerted to calm the agitations of the moment, and conduct them to a happy termination. This was a work of no inconsiderable difficulty. So convinced were many that government designed to deal unfairly by them, that only the reliance they placed on their general, and their attachment to his person and character, could have moderated their resentments so far as to induce them to adopt the measures he recommended.

On the 15th, the convention of officers assembled, and General Gates^[14] took the chair. The Commander-in-chief then addressed them in the following terms.

"Gentlemen,—

"By an anonymous summons, an attempt has been made to convene you together. How inconsistent with the rules of propriety, how unmilitary, and how subversive of all order and discipline, let the good sense of the army decide.

"In the moment of this summons, another anonymous production was sent into circulation, addressed more to the feelings and passions than to the judgment of the army. The author of the piece is entitled to much credit for the goodness of his pen; and I could wish he had as much credit for the rectitude of his heart; for as men see through different optics, and are induced by the reflecting faculties of the mind, to use different means to attain the same end, the author of the address should have had more charity, than to mark for suspicion the man who should recommend moderation and

longer forbearance; or, in other words, who should not think as he thinks, and act as he advises. But he had another plan in view, in which candour and liberality of sentiment, regard to justice, and love of country, have no part; and he was right to insinuate the darkest suspicion to effect the blackest design. That the address was drawn with great art, and is designed to answer the most insidious purposes; that it is calculated to impress the mind with an idea of premeditated injustice, in the sovereign power of the United States, and rouse all those resentments which must unavoidably flow from such a belief; that the secret mover of this scheme, whoever he may be, intended to take advantage of the passions, while they were warmed by the recollection of past distresses, without giving time for cool deliberate thinking, and that composure of mind which is so necessary to give dignity and stability to measures, is rendered too obvious by the mode of conducting the business to need other proof than a reference to the proceedings.

"Thus much, gentlemen, I have thought it incumbent on me to observe to you, to show upon what principles I opposed the irregular and hasty meeting which was proposed to have been held on Tuesday last, and not because I wanted a disposition to give you every opportunity consistent with your own honour, and the dignity of the army, to make known your grievances. If my conduct heretofore has not evinced to you, that I have been a faithful friend to the army, my declaration of it at this time would be equally unavailing and improper. But as I was among the first who embarked in the cause of our common country; as I have never left your side one moment but when called from you on public duty; as I have been the constant companion and witness of your distresses, and not among the last to feel and acknowledge your merits; as I have ever considered my own military reputation as inseparably connected with that of the army; as my heart has ever expanded with joy when I have heard its praises, and my indignation has arisen when the mouth of detraction has been opened against it; it can scarcely be supposed, at this last stage of the war, that I am indifferent to its interests. But how are they to be promoted? The way is plain, says the anonymous addresser.—If war continues, remove into the unsettled country; there establish yourselves, and leave an ungrateful country to defend itself! But who are they to defend? Our wives, our children, our farms and other property which we leave behind us? Or, in this

state of hostile separation, are we to take the two first (the latter can not be removed) to perish in a wilderness with hunger, cold, and nakedness?

"If peace takes place, never sheath your swords,' says he, 'until you have obtained full and ample justice.' This dreadful alternative of either deserting our country in the extremest hour of her distress, or turning our arms against it, which is the apparent object, unless Congress can be compelled into instant compliance, has something so shocking in it, that humanity revolts at the idea. My God! what can this writer have in view by recommending such measures. Can he be a friend to the army? Can he be a friend to this country? Rather is he not an insidious foe: some emissary, perhaps, from New York, plotting the ruin of both, by sowing the seeds of discord and separation between the civil and military powers of the continent? And what a compliment does he pay to our understandings, when he recommends measures, in either alternative, impracticable in their nature? But here, gentlemen, I will drop the curtain, because it would be as imprudent in me to assign my reasons for this opinion, as it would be insulting to your conception to suppose you stood in need of them. A moment's reflection will convince every dispassionate mind of the physical impossibility of carrying either proposal into execution. There might, gentlemen, be an impropriety in my taking notice, in this address to you, of an anonymous production,—but the manner in which that performance has been introduced to the army, together with some other circumstances, will amply justify my observations on the tendency of that writing.

"With respect to the advice given by the author, to suspect the man who shall recommend moderate measures and longer forbearance, I spurn it, as every man who regards that liberty, and reveres that justice for which we contend, undoubtedly must; for if men are to be precluded from offering their sentiments on a matter which may involve the most serious and alarming consequences that can invite the consideration of mankind, reason is of no use to us. The freedom of speech may be taken away, and dumb and silent, we may be led like sheep to the slaughter. I can not in justice to my own belief, and what I have great reason to conceive is the intention of congress, conclude this address, without giving it as my decided opinion, that that honourable body entertain exalted sentiments of the services of the army, and, from a full conviction of its merits and sufferings, will do it complete justice. That their endeavours to discover and establish funds for

this purpose have been unwearied, and will not cease until they have succeeded, I have not a doubt.

"But, like all other large bodies, where there is a variety of different interests to reconcile, their determinations are slow. Why then should we distrust them? And, in consequence of that distrust, adopt measures which may cast a shade over that glory which has been so justly acquired, and tarnish the reputation of an army which is celebrated through all Europe for its fortitude and patriotism? And for what is this done? To bring the object we seek nearer? No: most certainly, in my opinion, it will cast it at a greater distance. For myself, (and I take no merit in giving the assurance, being induced to it from principles of gratitude, veracity, and justice, and a grateful sense of the confidence you have ever placed in me,) a recollection of the cheerful assistance, and prompt obedience I have experienced from you, under every vicissitude of fortune, and the sincere affection I feel for an army I have so long had the honour to command, will oblige me to declare in this public and solemn manner, that in the attainment of complete justice for all your toils and dangers, and in the gratification of every wish, so far as may be done consistently with the great duty I owe my country, and those powers we are bound to respect, you may freely command my services to the utmost extent of my abilities.

"While I give these assurances, and pledge myself in the most unequivocal manner to exert whatever abilities I am possessed of in your favour, let me entreat you, gentlemen, on your part, not to take any measures which, viewed in the calm light of reason, will lessen the dignity, and sully the glory you have hitherto maintained. Let me request you to rely on the plighted faith of your country, and place a full confidence in the purity of the intentions of congress;—that, previous to your dissolution as an army, they will cause all your accounts to be fairly liquidated, as directed in the resolutions which were published to you two days ago; and that they will adopt the most effectual measures in their power to render ample justice to you for your faithful and meritorious services. And let me conjure you, in the name of our common country, as you value your own honour, as you respect the rights of humanity, and as you regard the military and national character of America, to express your utmost horror and detestation of the man who wishes, under any specious pretences, to overturn the liberties of our country, and who wickedly attempts to open the flood gates of civil discord, and deluge our rising empire in blood.

"By thus determining, and thus acting, you will pursue the plain and direct road to the attainment of your wishes; you will defeat the insidious designs of our enemies, who are compelled to resort from open force to secret artifice. You will give one more distinguished proof of unexampled patriotism and patient virtue, rising superior to the pressure of the most complicated sufferings; and you will by the dignity of your conduct, afford occasion for posterity to say, when speaking of the glorious example you have exhibited to mankind, had this day been wanting, the world had never seen the last stage of perfection to which human nature is capable of attaining."

These sentiments from a person whom the army had been accustomed to love, to revere, and to obey; the solidity of whose judgment, and the sincerity of whose zeal for their interests, were alike unquestioned, could not fail to be irresistible. No person was hardy enough to oppose the advice he had given; and the general impression was apparent. A resolution moved by General Knox, and seconded by Brigadier General Putnam, "assuring him that the officers reciprocated his affectionate expressions with the greatest sincerity of which the human heart is capable," was unanimously voted. On the motion of General Putnam, a committee consisting of General Knox, Colonel Brooks, and Captain Howard was then appointed, to prepare resolutions on the business before them, and to report in half an hour. The report of the committee being brought in and considered, the following resolutions were passed.

"Resolved unanimously, that at the commencement of the present war, the officers of the American army engaged in the service of their country from the purest love and attachment to the rights and privileges of human nature; which motives still exist in the highest degree; and that no circumstances of distress or danger shall induce a conduct that may tend to sully the reputation and glory which they have acquired at the price of their blood, and eight years faithful services.

"Resolved unanimously, that the army continue to have an unshaken confidence in the justice of congress and their country, and are fully convinced that the representatives of America will not disband or disperse the army until their accounts are liquidated, the balances accurately ascertained, and adequate funds established for payment; and in this

arrangement, the officers expect that the half pay, or a commutation for it, shall be efficaciously comprehended.

"Resolved unanimously, that his excellency the Commander-in-chief, be requested to write to his excellency the president of congress, earnestly entreating the most speedy decision of that honourable body upon the subject of our late address, which was forwarded by a committee of the army, some of whom are waiting upon congress for the result. In the alternative of peace or war, this event would be highly satisfactory, and would produce immediate tranquillity in the minds of the army, and prevent any farther machinations of designing men, to sow discord between the civil and military powers of the United States.

"On motion, resolved unanimously, that the officers of the American army view with abhorrence and reject with disdain, the infamous propositions contained in a late anonymous address to the officers of the army, and resent with indignation the secret attempts of some unknown person to collect the officers together in a manner totally subversive of all discipline and good order.

"Resolved unanimously, that the thanks of the officers of the army be given to the committee who presented to congress the late address of the army; for the wisdom and prudence with which they have conducted that business; and that a copy of the proceedings of this day be transmitted by the president to Major General M'Dougal; and that he be requested to continue his solicitations at congress until the objects of his mission are accomplished."

The storm which had been raised so suddenly and unexpectedly being thus happily dissipated, the Commander-in-chief exerted all his influence in support of the application the officers had made to congress. The following letter, written by him on the occasion, will show that he was not impelled to this measure by the engagements he had entered into more strongly than by his feelings.

"The result of the proceedings of the grand convention of the officers, which I have the honour of enclosing to your excellency for the inspection of congress, will, I flatter myself, be considered as the last glorious proof of patriotism which could have been given by men who aspired to the distinction of a patriot army; and will not only confirm their claim to the justice, but will increase their title to the gratitude of their country.

"Having seen the proceedings on the part of the army terminate with perfect unanimity, and in a manner entirely consonant to my wishes, being impressed with the liveliest sentiments of affection for those who have so long, so patiently, and so cheerfully, suffered and fought under my direction; having from motives of justice, duty, and gratitude, spontaneously offered myself as an advocate for their rights; and having been requested to write to your excellency, earnestly entreating the most speedy decision of congress upon the subjects of the late address from the army to that honourable body; it now only remains for me to perform the task I have assumed, and to intercede in their behalf, as I now do, that the sovereign power will be pleased to verify the predictions I have pronounced of, and the confidence the army have reposed in, the justice of their country.

"And here I humbly conceive it is altogether unnecessary (while I am pleading the cause of an army which have done and suffered more than any other army ever did in the defence of the rights and liberties of human nature) to expatiate on their claims to the most ample compensation for their meritorious services, because they are perfectly known to the whole world, and because (although the topics are inexhaustible) enough has already been said on the subject. To prove these assertions, to evince that my sentiments have ever been uniform, and to show what my ideas of the rewards in question have always been, I appeal to the archives of congress, and call on those sacred deposits to witness for me. And in order that my observations and arguments in favour of a future adequate provision for the officers of the army may be brought to remembrance again, and considered in a single point of view, without giving congress the trouble of having recourse to their files, I will beg leave to transmit herewith an extract from a representation made by me to a committee of congress, so long ago as the 20th of January, 1778, and also the transcript of a letter to the president of congress, dated near Passaic falls, October the 11th, 1780.

"That in the critical and perilous moment when the last mentioned communication was made, there was the utmost danger a dissolution of the army would have taken place unless measures similar to those recommended had been adopted, will not admit a doubt. That the adoption of the resolution granting half pay for life has been attended with all the happy consequences I foretold, so far as respected the good of the service, let the astonishing contrast between the state of the army at this instant and at the former period, determine. And that the establishment of funds, and

security of the payment of all the just demands of the army, will be the most certain means of preserving the national faith, and future tranquillity of this extensive continent, is my decided opinion.

"By the preceding remarks, it will readily be imagined that, instead of retracting and reprehending (from farther experience and reflection) the mode of compensation so strenuously urged in the enclosures, I am more and more confirmed in the sentiment; and if in the wrong, suffer me to please myself in the grateful delusion. For if, besides the simple payment of their wages, a farther compensation is not due to the sufferings and sacrifices of the officers, then have I been mistaken indeed. If the whole army have not merited whatever a grateful people can bestow, then have I been beguiled by prejudice, and built opinion on the basis of error. If this country should not in the event perform every thing which has been requested in the late memorial to congress, then will my belief become vain, and the hope that has been excited void of foundation. 'And if (as has been suggested for the purpose of inflaming their passions) the officers of the army are to be the only sufferers by this revolution; if, retiring from the field, they are to grow old in poverty, wretchedness, and contempt; if they are to wade through the vile mire of dependency, and owe the miserable remnant of that life to charity which has hitherto been spent in honour,' then shall I have learned what ingratitude is; then shall I have realized a tale which will embitter every moment of my future life.

"But I am under no such apprehensions. A country rescued by their arms from impending ruin, will never leave unpaid the debt of gratitude.

"Should any intemperate and improper warmth have mingled itself among the foregoing observations, I must entreat your excellency and congress that it may be attributed to the effusions of an honest zeal in the best of causes, and that my peculiar situation may be my apology; and I hope I need not, on this momentous occasion, make any new protestations of disinterestedness, having ever renounced for myself the idea of pecuniary reward. The consciousness of having attempted faithfully to discharge my duty, and the approbation of my country, will be a sufficient recompense for my services."

March 24.

Peace concluded.

These proceedings of the army produced a concurrence of nine states in favour of a resolution commuting the half pay into a sum in gross equal to five years full pay; immediately after the passage of which, the fears still entertained in America that the war might continue, were dissipated by a letter from the Marquis de Lafayette, announcing a general peace. This intelligence, though not official, was certain; and orders were immediately issued, recalling all armed vessels cruising under the authority of the United States. April 19. Early in April, the copy of a declaration published in Paris, and signed by the American commissioners, announcing the exchange of ratifications of the preliminary articles between Great Britain and France, was received; and on the 19th of that month, the cessation^[15] of hostilities was proclaimed.

Measures for disbanding the army.

The attention of congress might now be safely turned to the reduction of the army. This, in the empty state of the treasury, was a critical operation. In addition to the anxieties which the officers would naturally feel respecting their provision for the future, which of necessity remained unsecured, large arrears of pay were due to them, the immediate receipt of part of which was required by the most urgent wants. To disband an army to which the government was greatly indebted, without furnishing the individuals who composed it with the means of conveyance to their respective homes, was a perilous measure; and congress was unable to advance the pay of a single month.

Although eight millions had been required for the year 1782, the payments into the public treasury had amounted to only four hundred and twenty thousand and thirty-one dollars, and twenty-nine ninetieths; and the foreign loans had not been sufficient to defray expenses it was impossible to avoid, at the close of that year, the expenditures of the superintendent of the finances had exceeded his receipts four hundred and four thousand seven hundred and thirteen dollars and nine ninetieths; and the excess continued to increase rapidly.

Congress urged the states to comply so far with the requisitions as to enable the superintendent of the finances to advance a part of the arrears due to the soldiers; but, as the foreign danger diminished, they became still less attentive to these demands; and the financier was under the necessity of making farther anticipations of the revenue. Measures were taken to

advance three months pay in his notes; but, before they could be prepared, orders were issued for complying with a resolution of Congress for granting unlimited furloughs to the non-commissioned officers and privates who were engaged to serve during the war. These orders produced a serious alarm. The generals, and officers commanding regiments and corps cantoned on the Hudson, assembled, and presented an address to the Commander-in-chief, in which the most ardent affection to his person, and confidence in his attachment to the interests of the army, were mingled with expressions of profound duty and respect for the government. But they declared that, after the late explanation on their claims, they had confidently expected that their accounts would be liquidated, the balances ascertained, and adequate funds for the payment of those balances provided, before they should be dispersed or disbanded.

Bound to the army by the strongest ties of affection and gratitude, intimately convinced of the justice of their claims, and of the patriotic principles by which they were influenced, the General was induced by sentiment not less than by prudence, to regard this application. He returned an answer, on the succeeding day, in which, after declaring "that as no man could possibly be better acquainted than himself with the past merits and services of the army, so no one could possibly be more strongly impressed with their present ineligible situation; feel a keener sensibility at their distresses; or more ardently desire to alleviate or remove them." He added, "although the officers of the army very well know my official situation, that I am only a servant of the public, and that it is not for me to dispense with orders which it is my duty to carry into execution, yet as furloughs in all services are considered as a matter of indulgence, and not of compulsion; as congress, I am persuaded, entertain the best disposition towards the army; and as I apprehend in a very short time, the two principal articles of complaint will be removed; until the farther pleasure of congress can be known, I shall not hesitate to comply with the wishes of the army, under these reservations only, that officers sufficient to conduct the men who choose to receive furloughs, will attend them, either on furlough or by detachment."

This answer satisfied the officers. The utmost good temper was manifested; and the arrangements for retiring on furlough were made without a murmur. In the course of the summer, a considerable proportion of the troops enlisted for three years were also permitted to return to their

homes; and, in October, a proclamation was issued by congress, declaring all those who had engaged for the war to be discharged on the third of December.



The Long Room in Fraunces' Tavern, New York City

It was here that Washington took formal leave of his officers, preparatory to resigning his commission as Commander-in-Chief of the Continental Army. Controlling his emotion with difficulty, the General arose, at the conclusion of a light repast, and proposed the following health: "With a heart full of love and gratitude I must now take my leave of you. I most devoutly wish that your latter days may be as prosperous and happy as your former ones have been glorious and honorable." The toast was drunk in silence, and Washington added: "I cannot come to each of you to take my leave, but shall be obliged to you if each will come and take me by the hand."

Mutiny of a part of the Pennsylvania line.

While these excellent dispositions were manifested by the veterans serving under the immediate eye of their patriot chief, the government was exposed to insult and outrage from the mutinous spirit of a small party of new levies. About eighty men of this description belonging to Pennsylvania,

were stationed at Lancaster. Revolting against the authority of their officers, they marched in a body to Philadelphia, with the avowed purpose of obtaining redress of their grievances from the executive council of the state. The march of these insolent mutineers was not obstructed; and, after arriving in Philadelphia, their numbers were augmented by the junction of some troops quartered in the barracks. They then marched in military parade, with fixed bayonets, to the state-house, in which congress and the executive council of the state were sitting; and, after placing sentinels at the doors, sent in a written message, threatening the executive of the state with the vengeance of an enraged soldiery, if their demands were not gratified in twenty minutes. Although these threats were not directed particularly against congress, the government of the union was grossly insulted, and those who administered it were blockaded for several hours by licentious soldiers. After remaining in this situation about three hours, the members separated, having agreed to reassemble at Princeton.

On receiving information of this outrage, the Commander-in-chief detached fifteen hundred men under the command of Major General Howe, to suppress the mutiny. His indignation at this insult to the civil authority, and his mortification at this misconduct of any portion of the American troops, were strongly marked in his letter to the president of congress.

"While," said he, "I suffer the most poignant distress in observing that a handful of men, contemptible in numbers, and equally so in point of service, (if the veteran troops from the southward have not been seduced by their example,) and who are not worthy to be called soldiers, should disgrace themselves and their country as the Pennsylvania mutineers have done by insulting the sovereign authority of the United States, and that of their own, I feel an inexpressible satisfaction, that even this behaviour can not stain the name of the American soldiery. It can not be imputed to, or reflect dishonour on, the army at large; but, on the contrary, it will, by the striking contrast it exhibits, hold up to public view the other troops in the most advantageous point of light. Upon taking all the circumstances into consideration, I can not sufficiently express my surprise and indignation at the arrogance, the folly, and the wickedness of the mutineers; nor can I sufficiently admire the fidelity, the bravery, and patriotism, which must forever signalize the unsullied character of the other corps of our army. For when we consider that these Pennsylvania levies, who have now mutinied, are recruits, and soldiers of a day, who have not borne the heat and burden

of the war, and who can have in reality very few hardships to complain of; and when we at the same time recollect that those soldiers, who have lately been furloughed from this army, are the veterans who have patiently endured hunger, nakedness, and cold; who have suffered and bled without a murmur, and who, with perfect good order, have retired to their homes, without a settlement of their accounts, or a farthing of money in their pockets; we shall be as much astonished at the virtues of the latter, as we are struck with horror and detestation at the proceedings of the former, and every candid mind, without indulging ill-grounded prejudices, will undoubtedly make the proper discrimination."

Before the detachment from the army could reach Philadelphia, the disturbances were, in a great degree, quieted without bloodshed; but General Howe was ordered by congress to continue his march into Pennsylvania, "in order that immediate measures might be taken to confine and bring to trial all such persons belonging to the army as have been principally active in the late mutiny; to disarm the remainder; and to examine fully into all the circumstances relating thereto."

The interval between the treaty with Great Britain and his retiring into private life, was devoted by the Commander-in-chief to objects of permanent utility.

The independence of his country being established, he looked forward with anxiety to its future destinies. These might greatly depend on the systems to be adopted on the return of peace, and to those systems much of his attention was directed. The future peace establishment of the United States was one of the many interesting subjects which claimed the consideration of congress. As the experience of General Washington would certainly enable him to suggest many useful ideas on this important point, his opinions respecting it were requested by the committee to whom it was referred. His letter on this occasion, which was deposited, it is presumed, in the archives of state, will long deserve the attention of those to whom the interests of the United States may be confided. His strongest hopes of securing the future tranquillity, dignity and respectability of his country were placed on a well regulated and well disciplined militia, and his sentiments on this subject are entitled to the more regard, as a long course of severe experience had enabled him to mark the total incompetency of the existing system to the great purposes of national defence.

Evacuation of New York.

At length the British troops evacuated New York, and a detachment from the American army took possession of that town.

Guards being posted for the security of the citizens, General Washington, accompanied by Governor Clinton, and attended by many civil and military officers, and a large number of respectable inhabitants on horseback, made his public entry into the city; where he was received with every mark of respect and attention. His military course was now on the point of terminating; and he was about to bid adieu to his comrades in arms. This affecting interview took place on the 4th of December. At noon, the principal officers of the army assembled at Frances' tavern, soon after which, their beloved commander entered the room. His emotions were too strong to be concealed. Filling a glass, he turned to them and said, "With a heart full of love and gratitude, I now take leave of you; I most devoutly wish that your latter days may be as prosperous and happy, as your former ones have been glorious and honourable." Having drunk, he added, "I can not come to each of you to take my leave, but shall be obliged if each of you will come and take me by the hand." General Knox, being nearest, turned to him. Washington, incapable of utterance, grasped his hand, and embraced him. In the same affectionate manner he took leave of each succeeding officer. The tear of manly sensibility was in every eye; and not a word was articulated to interrupt the dignified silence, and the tenderness of the scene. Leaving the room, he passed through the corps of light infantry, and walked to White Hall, where a barge waited to convey him to Powles Hook. The whole company followed in mute and solemn procession, with dejected countenances, testifying feelings of delicious melancholy, which no language can describe. Having entered the barge, he turned to the company, and, waving his hat, bid them a silent adieu. They paid him the same affectionate compliment; and, after the barge had left them, returned in the same solemn manner to the place where they had assembled.[\[16\]](#)

Congress was then in session at Annapolis, in Maryland, to which place General Washington repaired, for the purpose of resigning into their hands the authority with which they had invested him.[\[17\]](#) He arrived on the 19th of December. The next day he informed that body of his intention to ask leave to resign the commission he had the honour of holding in their

service; and requested to know whether it would be their pleasure that he should offer his resignation in writing, or at an audience.

To give the more dignity to the act, they determined that it should be offered at a public audience on the following Tuesday, at twelve.

General Washington resigns his commission and retires to Mount Vernon.

When the hour arrived for performing a ceremony so well calculated to recall the various interesting scenes which had passed since the commission now to be returned was granted, the gallery was crowded with spectators, and several persons of distinction were admitted on the floor of congress. The members remained seated and covered. The spectators were standing, and uncovered. The general was introduced by the secretary, and conducted to a chair. After a short pause, the president^[18] informed him that "The United States in congress assembled were prepared to receive his communications." With native dignity improved by the solemnity of the occasion, the general rose and delivered the following address.

"Mr. President,

"The great events on which my resignation depended, having at length taken place, I have now the honour of offering my sincere congratulations to congress, and of presenting myself before them, to surrender into their hands the trust committed to me, and to claim the indulgence of retiring from the service of my country.

"Happy in the confirmation of our independence and sovereignty, and pleased with the opportunity afforded the United States of becoming a respectable nation, I resign with satisfaction the appointment I accepted with diffidence; a diffidence in my abilities to accomplish so arduous a task, which however was superseded by a confidence in the rectitude of our cause, the support of the supreme power of the union, and the patronage of heaven.

"The successful termination of the war has verified the most sanguine expectations; and my gratitude for the interposition of Providence, and the assistance I have received from my countrymen, increases with every review of the momentous contest.

"While I repeat my obligations to the army in general, I should do injustice to my own feelings not to acknowledge in this place, the peculiar services and distinguished merits of the gentlemen who have been attached

to my person during the war. It was impossible the choice of confidential officers to compose my family should have been more fortunate. Permit me, sir, to recommend in particular, those who have continued in the service to the present moment, as worthy of the favourable notice and patronage of congress.

"I consider it as an indispensable duty to close this last act of my official life, by commending the interests of our dearest country to the protection of Almighty God, and those who have the superintendence of them to his holy keeping.

"Having now finished the work assigned me, I retire from the great theatre of action, and, bidding an affectionate farewell to this august body, under whose orders I have so long acted, I here offer my commission, and take my leave of all the employments of public life."

After advancing to the chair and delivering his commission to the president, he returned to his place, and received standing the following answer of congress, which was delivered by the president.

"Sir,

"The United States in congress assembled, receive with emotions too affecting for utterance, the solemn resignation of the authorities under which you have led their troops with success through a perilous and a doubtful war. Called upon by your country to defend its invaded rights, you accepted the sacred charge, before it had formed alliances, and whilst it was without funds or a government to support you. You have conducted the great military contest with wisdom and fortitude, invariably regarding the rights of the civil power, through all disasters and changes. You have by the love and confidence of your fellow citizens, enabled them to display their martial genius, and transmit their fame to posterity. You have persevered until these United States, aided by a magnanimous king and nation, have been enabled under a just Providence, to close the war in freedom, safety, and independence; on which happy event we sincerely join you in congratulations.

"Having defended the standard of liberty in this new world, having taught a lesson useful to those who inflict and to those who feel oppression, you retire from the great theatre of action with the blessings of your fellow citizens. But the glory of your virtues will not terminate with your military command; it will continue to animate remotest ages.

"We feel with you our obligations to the army in general, and will particularly charge ourselves with the interests of those confidential officers who have attended your person to this affecting moment.

"We join you in commending the interests of our dearest country to the protection of Almighty God, beseeching him to dispose the hearts and minds of its citizens, to improve the opportunity afforded them of becoming a happy and respectable nation. And for you, we address to him our earnest prayers that a life so beloved, may be fostered with all his care; that your days may be as happy as they have been illustrious; and that he will finally give you that reward which this world can not give."

This scene being closed, a scene rendered peculiarly interesting by the personages who appeared in it, by the great events it recalled to the memory, and by the singularity of the circumstances under which it was displayed, the American chief withdrew from the hall of congress, leaving the silent and admiring spectators deeply impressed with those sentiments which its solemnity and dignity were calculated to inspire.

Divested of his military character, General Washington retired to Mount Vernon, followed by the enthusiastic love, esteem, and admiration of his countrymen. Relieved from the agitations of a doubtful contest, and from the toils of an exalted station, he returned with increased delight to the duties and the enjoyments of a private citizen. He indulged the hope that, in the shade of retirement, under the protection of a free government, and the benignant influence of mild and equal laws, he might taste that felicity which is the reward of a mind at peace with itself, and conscious of its own purity.

CHAPTER III.

General Washington devotes his time to rural pursuits.... to the duties of friendship.... and to institutions of public utility.... Resolves of Congress and of the Legislature of Virginia for erecting statues to his honour.... Recommends improvement in inland navigation.... Declines accepting a donation made to him by his native state.... The society of the Cincinnati.... He is elected President.... The causes which led to a change of the government of the United States.... Circular letter of General Washington to the governors of the several states.

1783 to 1787

After retiring to private life, General Washington devotes his time to rural pursuits, to the duties of friendship, and to institutions of public utility.

When an individual, long in possession of great power, and almost unlimited influence, retires from office with alacrity, and resumes the character of a private citizen with pleasure, the mind is gratified in contemplating the example of virtuous moderation, and dwells upon it with approving satisfaction. We look at man in his most estimable character; and this view of him exalts our opinion of human nature. Such was the example exhibited by General Washington to his country and to the world. His deportment, and his language, equally attest that he returned with these feelings to the employments of private life. In a letter to Governor Clinton, written only three days after his arrival at Mount Vernon, he says, "The scene is at length closed. I feel myself eased of a load of public care, and hope to spend the remainder of my days in cultivating the affections of good men, and in the practice of the domestic virtues." "At length, my dear marquis," said he to his noble and highly valued friend, Lafayette, "I have become a private citizen on the banks of the Potomac; and under the shadow of my own vine, and my own fig tree, free from the bustle of a camp, and the busy scenes of public life, I am solacing myself with those tranquil enjoyments, of which the soldier who is ever in pursuit of fame—the statesman whose watchful days and sleepless nights are spent in devising schemes to promote the welfare of his own—perhaps the ruin of

other countries, as if this globe was insufficient for us all—and the courtier who is always watching the countenance of his prince in the hope of catching a gracious smile—can have very little conception. I have not only retired from all public employments, but am retiring within myself, and shall be able to view the solitary walk, and tread the paths of private life, with heartfelt satisfaction. Envious of none, I am determined to be pleased with all; and this, my dear friend, being the order of my march, I will move gently down the stream of life, until I sleep with my fathers."

But a mind accustomed to labour for a nation's welfare, does not immediately divest itself of ancient habits. That custom of thinking on public affairs, and that solicitude respecting them, which belong to the patriot in office, follow him into his retreat. In a letter to General Knox, written soon after his resignation, General Washington thus expressed the feelings attendant upon this sudden transition from public to private pursuits. "I am just beginning to experience the ease and freedom from public cares, which, however desirable, takes some time to realize; for strange as it may seem, it is nevertheless true, that it was not until lately, I could get the better of my usual custom of ruminating, as soon as I awoke in the morning, on the business of the ensuing day; and of my surprise at finding, after revolving many things in my mind, that I was no longer a public man, or had any thing to do with public transactions. I feel now, however, as I conceive a wearied traveller must do, who, after treading many a painful step with a heavy burden on his shoulders, is eased of the latter, having reached the haven to which all the former were directed; and from his house-top is looking back, and tracing with an eager eye, the meanders by which he escaped the quick-sands and mires which lay in his way, and into which none but the all powerful Guide and Dispenser of human events could have prevented his falling."

For several months after arriving at Mount Vernon, almost every day brought him the addresses of an affectionate and grateful people. The glow of expression in which the high sense universally entertained of his services was conveyed, manifested the warmth of feeling which animated the American bosom. This unexampled tribute of voluntary applause, paid by a whole people, to an individual no longer in power, made no impression on the unassuming modesty of his character and deportment. The same firmness of mind, the same steady and well tempered judgment, which had guided him through the most perilous seasons of the war, still regulated his

conduct; and the enthusiastic applauses of an admiring nation served only to cherish sentiments of gratitude, and to give greater activity to the desire still further to contribute to the general prosperity.

Resolves of Congress and of the legislature of Virginia for erecting statues in honour of him.

It was not by addresses alone that his country manifested its attachment to him. Soon after peace was proclaimed, congress unanimously passed a resolution for the erection of an equestrian statue of their general,[\[19\]](#) at the place which should be established for the residence of the government.

The legislature of Virginia too, at its first session after his resignation, passed the following resolution.[\[20\]](#)

"Resolved, that the executive be requested to take measures for procuring a statue of General Washington, to be of the finest marble and best workmanship, with the following inscription on its pedestal:

"The general assembly of the commonwealth of Virginia have caused this statue to be erected as a monument of affection and gratitude to GEORGE WASHINGTON, who, uniting to the endowments of the hero, the virtues of the patriot, and exerting both in establishing the liberties of his country, has rendered his name dear to his fellow citizens, and given the world an immortal example of true glory."

Although the toils of General Washington were no longer exhibited to the public eye, his time continued to be usefully employed. The judicious cultivation of the earth is justly placed among the most valuable sources of national prosperity, and nothing could be more wretched than the general state of agriculture in America. To its melioration by examples which might be followed, and by the introduction of systems adapted to the soil, the climate, and to the situation of the people, the energies of his active and intelligent mind were now in a great degree directed. No improvement of the implements to be used on a farm, no valuable experiments in husbandry, escaped his attention. His inquiries, which were equally minute and comprehensive, extended beyond the limits of his own country; and he entered into a correspondence on this interesting subject with those foreigners who had been most distinguished for their additions to the stock of agricultural science.



**The Old Senate Chamber at Annapolis, Maryland, Where
Washington Resigned His Commission**

The fate of the Republic was in the hands of Washington when he resigned his commission to Congress, then sitting at Annapolis, December 23, 1783, and retired to private life. Had he so desired, it is probable that he could have founded a monarchy, sustained by his army. Instead, as he wrote to Lafayette, shortly after his return to Mount Vernon: "I have not only retired from all public employments but am retiring within myself, and shall be able to view the solitary walk, and tread the paths of private life, with heartfelt satisfaction. Envious of none, I am determined to be pleased with all; and this, my dear friend, being the order of my march, I will move gently down the stream of life, until I sleep with my fathers."

Mingled with this favourite pursuit, were the multiplied avocations resulting from the high office he had lately filled. He was engaged in an extensive correspondence with the friends most dear to his heart—the foreign and American officers who had served under him during the late war—and with almost every conspicuous political personage of his own, and with many of other countries. Literary men also were desirous of obtaining his approbation of their works, and his attention was solicited to every production of American genius. His countrymen who were about to

travel, were anxious to receive from the first citizen of this rising republic, some testimonial of their worth; and all those strangers of distinction who visited this newly created empire, were ambitious of being presented to its founder. Among those who were drawn across the Atlantic by curiosity, and perhaps by a desire to observe the progress of the popular governments which were instituted in this new world, was Mrs. Macauley Graham. By the principles contained in her History of the Stuarts, this lady had acquired much reputation in republican America, and by all was received with marked attention. For the sole purpose of paying her respects to a person whose fame had spread over Europe, she paid a visit to Mount Vernon; and, if her letters may be credited, the exalted opinion she had formed of its proprietor, was "not diminished by a personal acquaintance with him."

To these occupations, which were calculated to gratify an intelligent mind, or which derived a value from the indulgence they afforded to the feelings of the heart, others were unavoidably added, in the composition of which, no palatable ingredient was intermixed. Of these unwelcome intrusions upon his time, General Washington thus complained to an intimate military friend. "It is not, my dear sir, the letters of my friends which give me trouble, or add aught to my perplexity. I receive them with pleasure, and pay as much attention to them as my avocations will permit. It is references to old matters with which I have nothing to do—applications which oftentimes can not be complied with—inquiries, to satisfy which would employ the pen of a historian—letters of compliment, as unmeaning perhaps as they are troublesome, but which must be attended to; and the common-place business—which employ my pen and my time often disagreeably. Indeed, these, with company, deprive me of exercise; and, unless I can obtain relief, must be productive of disagreeable consequences. Already I begin to feel their effects. Heavy and painful oppressions of the head, and other disagreeable sensations often trouble me. I am determined therefore to employ some person who shall ease me of the *drudgery* of this business. At any rate, if the whole of it is thereby suspended, I am determined to use exercise. My private affairs also require infinitely more attention than I have given, or can give them, under present circumstances. They can no longer be neglected without involving my ruin."

It was some time after the date of this letter before he could introduce into his family a young gentleman, whose education and manners enabled him to fill the station of a private secretary and of a friend.

This multiplicity of private avocations could not entirely withdraw the mind of Washington from objects tending to promote and secure the public happiness. His resolution never again to appear in the busy scenes of political life, though believed by himself, and by his bosom friends, to be unalterable, could not render him indifferent to those measures on which the prosperity of his country essentially depended.

To a person looking beyond the present moment, it was only necessary to glance over the map of the United States, to be impressed with the importance of connecting the western with the eastern territory, by facilitating the means of intercourse between them. To this subject, the attention of General Washington had been directed in the early part of his life. While the American states were yet British colonies, he had obtained the passage of a bill for opening the Potomac so as to render it navigable from tide water to Wills creek.[\[21\]](#) The river James had also been comprehended in this plan; and he had triumphed so far over the opposition produced by local interests and prejudices, that the business was in a train which promised success, when the revolutionary war diverted the attention of its patrons, and of all America, from internal improvements to the still greater objects of liberty and independence. As that war approached its termination, subjects which for a time had yielded their pretensions to consideration, reclaimed that place to which their real magnitude entitled them; and internal navigation again attracted the attention of the wise and thinking part of society. Accustomed to contemplate America as his country, and to consider with solicitude the interests of the whole, Washington now took a more enlarged view of the advantages to be derived from opening both the eastern and the western waters; and for this, as well as for other purposes, after peace had been proclaimed, he traversed the western parts of New England and New York. "I have lately," said he in a letter to the Marquis of Chastellux, a nobleman in pursuit of literary as well as of military fame, "made a tour through the lakes George and Champlain as far as Crown Point;—then returning to Schenectady, I proceeded up the Mohawk river to fort Schuyler, crossed over to Wood creek which empties into the Oneida lake, and affords the water communication with Ontario. I then traversed the country to the head of the eastern branch of the Susquehanna, and viewed the lake Otswego, and the portage between that lake and the Mohawk river at Cotenahario. Prompted by these actual observations, I could not help taking a more contemplative and extensive

view of the vast inland navigation of these United States, and could not but be struck with the immense diffusion and importance of it; and with the goodness of that Providence which has dealt his favours to us with so profuse a hand. Would to God we may have wisdom enough to improve them. I shall not rest contented until I have explored the western country, and traversed those lines (or great part of them) which have given bounds to a new empire."

Scarcely had he answered those spontaneous offerings of the heart, which flowed in upon him from every part of a grateful nation, when his views were once more seriously turned to this truly interesting subject. Its magnitude was also impressed on others; and the value of obtaining the aid which his influence and active interference would afford to any exertions for giving this direction to the public mind, and for securing the happy execution of the plan which might be devised, was perceived by all those who attached to the great work its real importance. A gentleman^[22] who had taken an expanded view of it, concluded a letter to General Washington, containing a detailed statement of his ideas on the subject in these terms:

"But a most powerful objection always arises to propositions of this kind. It is, that public undertakings are carelessly managed, and much money spent to little purpose. To obviate this objection is the purpose of my giving you the trouble of this discussion. You have retired from public life. You have weighed this determination, and it would be impertinence in me to touch it. But would the superintendence of this work break in too much on the sweets of retirement and repose? If they would, I stop here. Your future time and wishes are sacred in my eye. If it would be only a dignified amusement to you, what a monument of your retirement would it be! It is one which would follow that of your public life, and bespeak it the work of the same great hand. I am confident, that would you either alone, or jointly with any persons you think proper, be willing to direct this business, it would remove the only objection, the weight of which I apprehend."

Recommends the opening and improving the inland navigation of the great rivers in Virginia.

In the autumn of 1784, General Washington made a tour as far west as Pittsburgh; after returning from which, his first moments of leisure were devoted to the task of engaging his countrymen in a work which appeared to him to merit still more attention from its political, than from its

commercial influence on the union. In a long and interesting letter to Mr. Harrison, then governor of Virginia, he detailed the advantages which might be derived from opening the great rivers, the Potomac and the James, as high as should be practicable. After stating with his accustomed exactness the distances, and the difficulties to be surmounted in bringing the trade of the west to different points on the Atlantic, he expressed unequivocally the opinion, that the rivers of Virginia afforded a more convenient, and a more direct course than could be found elsewhere, for that rich and increasing commerce. This was strongly urged as a motive for immediately commencing the work. But the rivers of the Atlantic constituted only a part of the great plan he contemplated. He suggested the appointment of commissioners of integrity and abilities, exempt from the suspicion of prejudice, whose duty it should be, after an accurate examination of the James and the Potomac, to search out the nearest and best portages between those waters and the streams capable of improvement, which run into the Ohio. Those streams were to be accurately surveyed, the impediments to their navigation ascertained, and their relative advantages examined. The navigable waters west of the Ohio, towards the great lakes, were also to be traced to their sources, and those which empty into the lakes to be followed to their mouths. "These things being done, and an accurate map of the whole presented to the public, he was persuaded that reason would dictate what was right and proper." For the execution of this latter part of his plan he had also much reliance on congress; and in addition to the general advantages to be drawn from the measure, he laboured, in his letters to the members of that body, to establish the opinion, that the surveys he recommended would add to the revenue, by enhancing the value of the lands offered for sale. "Nature," he said, "had made such an ample display of her bounties in those regions, that the more the country was explored, the more it would rise in estimation."

The assent and co-operation of Maryland being indispensable to the improvement of the Potomac, he was equally earnest in his endeavours to impress a conviction of its superior advantages on those individuals who possessed most influence in that state. In doing so, he detailed the measures which would unquestionably be adopted by New York and Pennsylvania, for acquiring the monopoly of the western commerce, and the difficulty which would be found in diverting it from the channel it had once taken. "I am not," he added, "for discouraging the exertions of any state to draw the

commerce of the western country to its sea-ports. The more communications we open to it, the closer we bind that rising world (for indeed it may be so called) to our interests, and the greater strength shall we acquire by it. Those to whom nature affords the best communication, will, if they are wise, enjoy the greatest share of the trade. All I would be understood to mean, therefore, is, that the gifts of Providence may not be neglected."

But the light in which this subject would be viewed with most interest, and which gave to it most importance, was its political influence on the union. "I need not remark to you, sir," said he in his letter to the governor of Virginia, "that the flanks and rear of the United States are possessed by other powers,—and formidable ones too: need I press the necessity of applying the cement of interest to bind all parts of the union together by indissoluble bonds,—especially of binding that part of it which lies immediately west of us, to the middle states. For what ties, let me ask, should we have upon those people, how entirely unconnected with them shall we be, and what troubles may we not apprehend, if the Spaniards on their right, and Great Britain on their left, instead of throwing impediments in their way as they now do, should hold out lures for their trade and alliance? when they get strength, which will be sooner than most people conceive, what will be the consequence of their having formed close commercial connexions with both, or either of those powers? it needs not, in my opinion, the gift of prophecy to foretell."

This idea was enlarged and pressed with much earnestness, in his letters to several members of congress.

The letter to the governor was communicated to the assembly of Virginia, and the internal improvements it recommended were zealously supported by the wisest members of that body. While the subject remained undecided, General Washington, accompanied by the Marquis de Lafayette, who had crossed the Atlantic, and had devoted a part of his time to the delights of an enthusiastic friendship, paid a visit to the capital of the state. Never was reception more cordial, or more demonstrative of respect and affection, than was given to these beloved personages. But amidst the display of addresses and of entertainments which were produced by the occasion, the great business of internal improvements was not forgotten; and the ardour of the moment was seized to conquer those objections to the plan, which yet

lingered in the bosoms of members who could perceive in it no future advantages to compensate for the present expense.

An exact conformity between the acts of Virginia and of Maryland, being indispensable to the improvement of the Potomac, the friends of the measure deemed it advisable to avail themselves of the same influence with the latter state, which had been successfully employed with the former; and a resolution was passed, soon after the return of General Washington to Mount Vernon, requesting him[\[23\]](#) to attend the legislature of Maryland, in order to agree on a bill which might receive the sanction of both states. This agreement being happily completed, the bills were enacted which form the first essay towards connecting the navigation of the eastern with the western waters of the United States.

These acts were succeeded by one, which conveys the liberal wishes of the legislature, with a delicacy scarcely less honourable to its framers, than to him who was its object. The treasurer had been instructed to subscribe, in behalf of the state, for a specified number of shares in each company. Just at the close of the session, when no refusal of their offer could be communicated to them, a bill was suddenly brought in, which received the unanimous assent of both houses, authorizing the treasurer to subscribe for the benefit of General Washington, the same number of shares in each company as were to be taken for the state. A preamble was prefixed to the enacting clause of this bill[\[24\]](#) in which its greatest value consisted. With simple elegance, it conveyed the sentiment, that in seizing this occasion, to make a donation which would in some degree testify their sense of the merits of their most favoured and most illustrious citizen, the donors would themselves be the obliged.

However delightful might be the sensations produced by this delicate and flattering testimony of the affection of his fellow citizens, it was not without its embarrassments. From his early resolution to receive no pecuniary compensation for his services, he could not permit himself to depart; and yet this mark of the gratitude and attachment of his country, could not easily be rejected without furnishing occasion for sentiments he was unwilling to excite. To the friend[\[25\]](#) who conveyed to him the first intelligence of this bill, his difficulties were thus expressed.

He declines accepting a donation made to him by his native state.

"It is not easy for me to decide by which my mind was most affected upon the receipt of your letter of the sixth instant—surprise or gratitude. Both were greater than I had words to express. The attention and good wishes which the assembly has evidenced by their act for vesting in me one hundred and fifty shares in the navigation of the rivers Potomac and James, is more than mere compliment,—there is an unequivocal and substantial meaning annexed. But, believe me, sir, no circumstance has happened since I left the walks of public life which has so much embarrassed me. On the one hand, I consider this act, as I have already observed, as a noble and unequivocal proof of the good opinion, the affection, and disposition of my country to serve me; and I should be hurt, if by declining the acceptance of it, my refusal should be construed into disrespect, or the smallest slight upon the generous intention of the legislature; or that an ostentatious display of disinterestedness, or public virtue, was the source of refusal.

"On the other hand, it is really my wish to have my mind and my actions, which are the result of reflection, as free and independent as the air, that I may be more at liberty (in things which my opportunities and experience have brought me to the knowledge of) to express my sentiments, and if necessary, to suggest what may occur to me, under the fullest conviction that, although my judgment may be arraigned, there will be no suspicion that sinister motives had the smallest influence in the suggestion. Not content then with the bare consciousness of my having in all this navigation business, acted upon the clearest conviction of the political importance of the measure, I would wish that every individual who may hear that it was a favourite plan of mine, may know also, that I had no other motive for promoting it, than the advantage of which I conceived it would be productive to the union at large, and to this state in particular, by cementing the eastern and western territory together, at the same time that it will give vigour and increase to our commerce, and be a convenience to our citizens."

At length he determined, in the same letter which should convey his resolution not to retain the shares for his private emolument, to signify his willingness to hold them in trust for such public institution as the legislature should approve. The following letter conveyed this resolution to the general assembly, through the governor of the state.

(October, 1785.)

"Sir,

"Your excellency having been pleased to transmit me a copy of the act appropriating to my benefit certain shares in the companies for opening the navigation of James and Potomac rivers, I take the liberty of returning to the general assembly through your hands, the profound and grateful acknowledgments inspired by so signal a mark of their beneficent intentions towards me. I beg you, sir, to assure them, that I am filled on this occasion with every sentiment which can flow from a heart warm with love for my country, sensible to every token of its approbation and affection, and solicitous to testify in every instance a respectful submission to its wishes.

"With these sentiments in my bosom, I need not dwell on the anxiety I feel in being obliged, in this instance, to decline a favour which is rendered no less flattering by the manner in which it is conveyed, than it is affectionate in itself. In explaining this, I pass over a comparison of my endeavours in the public service, with the many honourable testimonies of approbation which have already so far overrated, and overpaid them—reciting one consideration only which supersedes the necessity of recurring to every other.

"When I was first called to the station with which I was honoured during the late conflict for our liberties, to the diffidence which I had so many reasons to feel in accepting it, I thought it my duty to join a firm resolution to shut my hand against every pecuniary recompense. To this resolution I have invariably adhered, and from it (if I had the inclination) I do not consider myself at liberty now to depart.

"Whilst I repeat therefore my fervent acknowledgments to the legislature, for their very kind sentiments and intentions in my favour, and at the same time beg them to be persuaded that a remembrance of this singular proof of their goodness towards me, will never cease to cherish returns of the warmest affection and gratitude, I must pray that their act, so far as it has for its object my personal emolument, may not have its effect; but if it should please the general assembly to permit me to turn the destination of the fund vested in me, from my private emolument, to objects of a public nature, it will be my study, in selecting these, to prove the sincerity of my gratitude for the honour conferred upon me, by preferring such as may appear most subservient to the enlightened and patriotic views of the legislature."

The wish suggested in this letter, immediately received the sanction of the legislature; and at a subsequent time, the trust was executed by conveying the shares respectively to the use of a seminary of learning established in the vicinity of each river.

General Washington felt too strong an interest in the success of these works, to refuse the presidency of the companies instituted for their completion. In conducting the affairs of the Potomac company, he took an active part: to that formed for opening the navigation of the James, he could only give his counsel.

These were not the only institutions which occasionally drew the farmer of Mount Vernon from his retreat, and continued him in the public view.

The sentiments with which the officers of the American army contemplated a final separation from each other, will be comprehended by all who are conversant with the finest feelings of the human heart. Companions in virtuous suffering, in danger, and in glory—attached to each other by common exertions made in a severe struggle for the attainment of a common object—they felt that to part for ever was a calamity too afflicting to be supported. The means of perpetuating those friendships which had been formed, and of renewing that endearing social intercourse which had taken place in camp, were universally desired. Perhaps, too, that *esprit de corps* which, identifying the individual with the community, transfers to the aggregate of the society a portion of that self-love which is felt by every private person, and which inspires in the members with a repugnance to the dissolution of the political, not unlike in effect to that which is excited at the dissolution of the natural body, was not without its influence in suggesting some expedient which might preserve the memory of the army, while it cheered the officers who were on the point of separating, with the hope that the separation would not be eternal: that at distant intervals, they might still communicate with each other: that the bonds by which they were connected would not be totally dissolved: and that, for many beneficial purposes, the patriots of the American army would still form one great society.

Establishment of the society of the Cincinnati of which he is elected president.

This idea was suggested by General Knox, and was matured in a meeting composed of the generals, and of deputies from the regiments, at which Major General the Baron Steuben presided. An agreement was then entered

into, by which the officers were to constitute themselves into one society of friends, to endure as long as they should endure, or any of their eldest male posterity; and, in failure thereof, any collateral branches who might be judged worthy of becoming its supporters and members, were to be admitted into it. To mark their veneration for that celebrated Roman between whose situation and their own they found some similitude, they were to be denominated, "The Society of the Cincinnati." Individuals of the respective states, distinguished for their patriotism and abilities, might be admitted as honorary members for life, provided their numbers should at no time exceed a ratio of one to four.

The society was to be designated by a medal of gold representing the American eagle bearing on its breast the devices of the order, which was to be suspended by a ribbon of deep blue edged with white, descriptive of the union of America and France. To the ministers who had represented his Most Christian Majesty at Philadelphia, to the admirals who had commanded in the American seas, to the Count de Rochambeau, and the generals and colonels of the French troops who had served in the United States, the insignia of the order were to be presented, and they were to be invited to consider themselves as members of the society; at the head of which the Commander-in-chief was respectfully solicited to place his name. An incessant attention, on the part of the members, to the preservation of the exalted rights and liberties of human nature for which they had fought and bled, and an unalterable determination to promote and cherish between the respective states, union and national honour, were declared to be the immutable principles of the society. Its objects were, to perpetuate the remembrance of the American revolution, as well as cordial affection and the spirit of brotherly kindness among the officers; and to extend acts of beneficence to those officers and their families, whose situation might require assistance. To give effect to the charitable object of the institution, a common fund was to be created by the deposit of one month's pay on the part of every officer becoming a member; the product of which fund, after defraying certain necessary charges, was to be sacredly appropriated to this humane purpose.

The military gentlemen of each state were to constitute a distinct society, deputies from which were to assemble triennially, in order to form a general meeting for the regulation of general concerns.

Without encountering any open opposition, this institution was carried into complete effect; and its honours were sought, especially by the foreign officers, with great avidity. But soon after it was organized, those jealousies which in its first moments had been concealed, burst forth into open view. In October, 1783, a pamphlet was published by Mr. Burk of South Carolina, for the purpose of rousing the apprehensions of the public, and of directing its resentments against the society. Perceiving or believing that he perceived, in the Cincinnati, the foundation of an hereditary order, whose base, from associating with the military the chiefs of the powerful families in each state, would acquire a degree of solidity and strength admitting of any superstructure, he portrayed, in the fervid and infectious language of passion, the dangers to result from the fabric which would be erected on it. The ministers of the United States too in Europe, and the political theorists who cast their eyes towards the west for support to favourite systems, having the privileged orders constantly in view, were loud in their condemnations of an institution from which a race of nobles was expected to spring. The alarm was spread throughout every state, and a high degree of jealousy pervaded the mass of the people. In Massachusetts, the subject was even taken up by the legislature; and it was well understood that, in congress, the society was viewed with secret disapprobation.

"It was impossible for General Washington to view with indifference this state of the public feeling. Bound to the officers of his army by the strictest ties of esteem and affection, conscious of their merits, and assured of their attachment to his person, he was alive to every thing which might affect their reputation, or their interests. However innocent the institution might be in itself, or however laudable its real objects, if the impression it made on the public mind was such as to draw a line of distinction between the military men of America and their fellow citizens, he was earnest in his wishes to adopt such measures as would efface that impression. However ill founded the public prejudices might be, he thought this a case in which they ought to be respected; and, if it should be found impracticable to convince the people that their fears were misplaced, he was disposed to yield to them in a degree, and not to suffer that which was intended for the best of purposes, to produce a bad one."

A general meeting was to be held in Philadelphia in May, 1784; and, in the mean time, he had been appointed the temporary president.

To prepare the officers for those fundamental changes in the principles of the society, which he contemplated as a necessary sacrifice to the public apprehensions, his ideas were suggested to his military correspondents; and to give weight to the measures which might be recommended, his utmost influence was exerted to obtain a full assemblage of deputies, which should be respectable for its numbers, and for its wisdom.

Officers of high respectability entertained different opinions on surrendering those parts of the institution which were deemed objectionable. By some, the public clamour was attributed to a spirit of persecution, which only attached them more closely to the order. Many, it was said, were in quest of a cause of quarrel with their late protectors; and the removal of one ground of accusation against them, would only induce the substitution of some other. The source of the uneasiness which had been manifested was to be found in the temper of the people, not in the matters of which they complained; and if the present cause of irritation was removed, their ill humour would be openly and avowedly directed against the commutation.

General Washington was too much in the habit of considering subjects of difficulty in various points of view, and of deciding on them with coolness and deliberation, to permit his affections to influence his judgment. The most exact inquiries, assiduously made into the true state of the public mind, resulted in a conviction that opinions unfriendly to the institution, in its actual form, were extensively entertained; and that those opinions were founded, not in hostility to the late army, but in real apprehensions for equal liberty.

A wise and necessary policy required, he thought, the removal of these apprehensions; and, at the general meeting in May, the hereditary principle, and the power of adopting honorary members, were relinquished. The result demonstrated the propriety of this alteration. Although a few who always perceive most danger where none exists, and the visionaries then abounding in Europe, continued their prophetic denunciations against the order, America dismissed her fears; and, notwithstanding the refusal of one or two of the state societies to adopt the measures recommended by the general meeting, the members of the Cincinnati were received as brethren into the bosom of their country.

The causes which led to a change of the government of the United States.

While General Washington thus devoted a great part of his time to rural pursuits, to the duties of friendship, and to institutions of public utility, the political state of his country, becoming daily more embarrassed, attracted more and more deeply the anxious solicitude of every enlightened and virtuous patriot. From peace, from independence, and from governments of their own choice, the United States had confidently anticipated every blessing. The glorious termination of their contest with one of the most powerful nations of the earth; the steady and persevering courage with which that contest had been maintained; and the unyielding firmness with which the privations attending it had been supported, had surrounded the infant republics with a great degree of splendour, and had bestowed upon them a character which could be preserved only by a national and dignified system of conduct. A very short time was sufficient to demonstrate, that something not yet possessed was requisite, to insure the public and private prosperity expected to flow from self government. After a short struggle so to administer the existing system, as to make it competent to the great objects for which it was instituted, the effort became apparently desperate; and American affairs were impelled rapidly to a crisis, on which the continuance of the United States, as a nation, appeared to depend.

In tracing the causes which led to this interesting state of things, it will be necessary to carry back our attention to the conclusion of the war.

A government authorized to declare war, but relying on independent states for the means of prosecuting it; capable of contracting debts, and of pledging the public faith for their payment, but depending on thirteen distinct sovereignties for the preservation of that faith, could not be rescued from ignominy and contempt, but by finding those sovereignties administered by men exempt from the passions incident to human nature.

The debts of the union were computed, on the first of January, 1783, at somewhat more than forty millions of dollars. "If," say congress, in an address to the states, urging that the means of payment should be placed in their hands, "other motives than that of justice could be requisite on this occasion, no nation could ever feel stronger; for to whom are the debts to be paid?

"To an ally, in the first place, who to the exertion of his arms in support of our cause has added the succours of his treasure; who to his important

loans has added liberal donations, and whose loans themselves carry the impression of his magnanimity and friendship.

"*To individuals in a foreign country*, in the next place, who were the first to give so precious a token of their confidence in our justice, and of their friendship for our cause, and who are members of a republic which was second in espousing our rank among nations.

Another class of creditors is, that *illustrious and patriotic band of fellow citizens*, whose blood and whose bravery have defended the liberties of their country, who have patiently borne, among other distresses, the privation of their stipends, whilst the distresses of their country disabled it from bestowing them: and who, even now, ask for no more than such a portion of their dues, as will enable them to retire from the field of victory and glory, into the bosom of peace and private citizenship, and for such effectual security for the residue of their claims, as their country is now unquestionably able to provide.

"The remaining class of creditors is composed partly of such of our fellow citizens as originally lent to the public the use of their funds, or have since manifested most confidence in their country, by receiving transfers from the lenders; and partly of those whose property has been either advanced or assumed for the public service. To discriminate the merits of these several descriptions of creditors, would be a task equally unnecessary and invidious. If the voice of humanity plead more loudly in favour of some than of others, the voice of policy, no less than of justice, pleads in favour of all. A wise nation will never permit those who relieve the wants of their country, or who rely most on its faith, its firmness, and its resources, when either of them is distrusted, to suffer by the event."

In a government constituted like that of the United States, it would readily be expected that great contrariety of sentiment would prevail, respecting the principles on which its affairs should be conducted. It has been already stated that the continent was divided into two great political parties, the one of which contemplated America as a nation, and laboured incessantly to invest the federal head with powers competent to the preservation of the union. The other attached itself to the state government, viewed all the powers of congress with jealousy, and assented reluctantly to measures which would enable the head to act, in any respect, independently of the members. Men of enlarged and liberal minds who, in the imbecility

of a general government, by which alone the capacities of the nation could be efficaciously exerted, could discern the imbecility of the nation itself; who, viewing the situation of the world, could perceive the dangers to which these young republics were exposed, if not held together by a cement capable of preserving a beneficial connexion; who felt the full value of national honour, and the full obligation of national faith; and who were persuaded of the insecurity of both, if resting for their preservation on the concurrence of thirteen distinct sovereigns; arranged themselves generally in the first party. The officers of the army, whose local prejudices had been weakened by associating with each other, and whose experience had furnished lessons on the inefficacy of requisitions which were not soon to be forgotten, threw their weight almost universally into the same scale.

The other party, if not more intelligent, was more numerous, and more powerful. It was sustained by prejudices and feelings which grew without effort, and gained strength from the intimate connexions subsisting between a state and its citizens. It required a concurrence of extrinsic circumstances to force on minds unwilling to receive the demonstration, a conviction of the necessity of an effective national government, and to give even a temporary ascendancy to that party which had long foreseen and deplored the crisis to which the affairs of the United States were hastening.

Sensible that the character of the government would be decided, in a considerable degree, by the measures which should immediately follow the treaty of peace, gentlemen of the first political abilities and integrity sought a place in the congress of 1783. Combining their efforts for the establishment of principles on which the honour and the interest of the nation were believed to depend, they exerted all their talents to impress on the several states, the necessity of conferring on the government of the union, powers which might be competent to its preservation, and which would enable it to comply with the engagements it had formed. With unwearied perseverance they digested and obtained the assent of congress to a system, which, though unequal to what their wishes would have prepared, or their judgments have approved, was believed to be the best that was attainable. The great object in view was, "to restore and support public credit," to effect which it was necessary, "to obtain from the states substantial funds for funding the whole debt of the United States."

The committee^[26] to whom this interesting subject was referred, reported sundry resolutions, recommending it to the several states, to vest in congress permanent and productive funds adequate to the immediate payment of the interest on the national debt, and to the gradual extinction of the principal. A change in the rule by which the proportions of the different states were to be ascertained, was also recommended. In lieu of that article of the confederation which apportions on them the sums required for the public treasury, according to the value of their located lands with the improvements thereon, it was proposed to substitute another more capable of execution, which should make the population of each state the measure of its contribution.^[27]

To the application which congress had made during the war for power to levy an impost of five per cent on imported and prize goods, one state had never assented, and another had withdrawn the assent it had previously given.

It was impossible to yield to some of the objections which had been made to this measure, because they went to the certain destruction of the system itself; but in points where the alterations demanded, though mischievous, were not fatal to the plan, it was thought advisable to accommodate the recommendations of the government to the prejudices which had been disclosed. It had been insisted that the power of appointing persons to collect the duties, would enable congress to introduce into a state, officers unknown and unaccountable to the government thereof; and that a power to collect an indefinite sum for an indefinite time, for the expenditure of which that body could not be accountable to the states, would render it independent of its constituents, and would be dangerous to liberty. To obviate these objections, the proposition now made was so modified, that the grant was to be limited to twenty-five years; was to be strictly appropriated to the debt contracted on account of the war; and was to be collected by persons to be appointed by the respective states.

After a debate, which the tedious mode of conducting business protracted for several weeks, the report was adopted; and a committee, consisting of Mr. Madison, Mr. Hamilton, and Mr. Ellsworth, was appointed to prepare an address, which should accompany the recommendation to the several states.

After a full explanation of the principles on which the system had been framed, this address proceeds:—"The plan thus communicated and explained by congress, must now receive its fate from their constituents. All the objects comprised in it are conceived to be of great importance to the happiness of this confederated republic, are necessary to render the fruits of the revolution a full reward for the blood, the toils, the cares and the calamities which have purchased it. But the object of which the necessity will be peculiarly felt, and which it is peculiarly the duty of congress to inculcate, is the provision recommended for the national debt. Although this debt is greater than could have been wished, it is still less on the whole than could have been expected; and when referred to the cause in which it has been incurred, and compared with the burthens which wars of ambition and of vain glory have entailed on other nations, ought to be borne not only with cheerfulness but with pride. But the magnitude of the debt makes no part of the question. It is sufficient that the debt has been fairly contracted, and that justice and good faith demand that it should be fully discharged. Congress had no option but between different modes of discharging it. The same option is the only one that can exist with the states. The mode which has, after long and elaborate discussion, been preferred, is, we are persuaded, the least objectionable of any that would have been equal to the purpose. Under this persuasion, we call upon the justice and plighted faith of the several states to give it its proper effect, to reflect on the consequences of rejecting it, and to remember that congress will not be answerable for them."

After expatiating on the merits of the several creditors, the report concludes, "let it be remembered finally, that it ever has been the pride and boast of America, that the rights for which she contended, were the rights of human nature. By the blessing of the Author of these rights, on the means exerted for their defence, they have prevailed against all opposition, and formed the basis of thirteen independent states. No instance has heretofore occurred, nor can any instance be expected hereafter to occur, in which the unadulterated forms of republican government can pretend to so fair an opportunity of justifying themselves by their fruits. In this view, the citizens of the United States are responsible for the greatest trust ever confided to a political society. If justice, good faith, honour, gratitude, and all the other good qualities which ennoble the character of a nation, and fulfil the ends of government, be the fruits of our establishments, the cause of liberty will acquire a dignity and lustre which it has never yet enjoyed; and an example

will be set, which can not but have the most favourable influence on the rights of mankind. If, on the other side, our governments should be unfortunately blotted with the reverse of these cardinal and essential virtues, the great cause which we have engaged to vindicate will be dishonoured and betrayed; the last and fairest experiment in favour of the rights of human nature will be turned against them, and their patrons and friends exposed to be insulted and silenced by the votaries of tyranny and usurpation."

For the complete success of the plan recommended by congress, no person felt more anxious solicitude than General Washington. Of the vital importance of UNION, no man could be more entirely persuaded; and of the obligations of the government to its creditors, no man could feel a stronger conviction. His conspicuous station had rendered him peculiarly sensible to their claims; and he had unavoidably been personally instrumental in the creation of a part of them. All the feelings of his heart were deeply engaged in the payment of some of the creditors, and that high sense of national honour, of national justice, and of national faith, of which elevated minds endowed with integrity can never be divested, impelled him to take a strong interest in the security of all. Availing himself of the usage of communicating on national subjects with the state governments, and of the opportunity, which his approaching resignation of the command of the army gave, impressively to convey his sentiments to them, he had determined to employ all the influence which the circumstances of his life had created, in a solemn recommendation of measures, on which he believed the happiness and prosperity of his country to depend. On the eighth of June, 1783, he addressed to the governors of the several states respectively, the paternal and affectionate letter which follows.

Letters of General Washington to the governors of the several states.

"Sir,

"The great object for which I had the honour to hold an appointment in the service of my country being accomplished, I am now preparing to resign it into the hands of congress, and to return to that domestic retirement which, it is well known, I left with the greatest reluctance; a retirement for which I have never ceased to sigh through a long and painful absence, and in which (remote from the noise and trouble of the world) I meditate to pass the remainder of life in a state of undisturbed repose. But before I carry this

resolution into effect, I think it a duty incumbent upon me, to make this my last official communication; to congratulate you on the glorious events which heaven has been pleased to produce in our favour; to offer my sentiments respecting some important subjects which appear to me to be intimately connected with the tranquillity of the United States: to take my leave of your excellency as a public character: and to give my final blessing to that country in whose service I have spent the prime of my life, for whose sake I have consumed so many anxious days and watchful nights, and whose happiness, being extremely dear to me, will always constitute no inconsiderable part of my own.

"Impressed with the liveliest sensibility on this pleasing occasion, I will claim the indulgence of dilating the more copiously on the subjects of our mutual felicitation. When we consider the magnitude of the prize we contended for, the doubtful nature of the contest, and the favourable manner in which it has terminated, we shall find the greatest possible reason for gratitude and rejoicing. This is a theme that will afford infinite delight to every benevolent and liberal mind, whether the event in contemplation be considered as the source of present enjoyment, or the parent of future happiness: and we shall have equal occasion to felicitate ourselves on the lot which Providence has assigned us, whether we view it in a natural, a political, or moral point of light.

"The citizens of America, placed in the most enviable condition, as the sole lords and proprietors of a vast tract of continent, comprehending all the various soils and climates of the world, and abounding with all the necessaries and conveniencies of life, are now, by the late satisfactory pacification, acknowledged to be possessed of absolute freedom and independency. They are from this period, to be considered as the actors on a most conspicuous theatre, which seems to be peculiarly designated by Providence for the display of human greatness and felicity. Here they are not only surrounded with every thing which can contribute to the completion of private and domestic enjoyment; but heaven has crowned all its other blessings, by giving a fairer opportunity for political happiness, than any other nation has ever been favoured with. Nothing can illustrate these observations more forcibly, than a recollection of the happy conjuncture of times and circumstances, under which our republic assumed its rank among the nations. The foundation of our empire was not laid in the gloomy age of ignorance and superstition, but at an epoch when the rights

of mankind were better understood, and more clearly defined, than at any former period. The researches of the human mind after social happiness have been carried to a great extent; the treasures of knowledge acquired by the labours of philosophers, sages, and legislators, through a long succession of years, are laid open for our use; and their collected wisdom may be happily employed in the establishment of our forms of government. The free cultivation of letters; the unbounded extension of commerce; the progressive refinement of manners; the growing liberality of sentiment; and above all, the pure and benign light of revelation; have had a meliorating influence on mankind, and increased the blessings of society. At this auspicious period, the United States came into existence as a nation; and if their citizens should not be completely free and happy, the fault will be entirely their own.

"Such is our situation, and such are our prospects. But notwithstanding the cup of blessing is thus reached out to us; notwithstanding happiness is ours, if we have a disposition to seize the occasion, and make it our own; yet, it appears to me, there is an option still left to the United States of America; that it is in their choice, and depends upon their conduct, whether they will be respectable and prosperous, or contemptible and miserable as a nation. This is the time of their political probation; this is the moment when the eyes of the whole world are turned upon them; this is the moment to establish or ruin their national character forever; this is the favourable moment to give such a tone to our federal government, as will enable it to answer the ends of its institution, or this may be the ill-fated moment for relaxing the powers of the union, annihilating the cement of the confederation, and exposing us to become the sport of European politics, which may play one state against another, to prevent their growing importance, and to serve their own interested purposes. For according to the system of policy the states shall adopt at this moment, they will stand or fall; and by their confirmation or lapse, it is yet to be decided, whether the revolution must ultimately be considered a blessing or a curse:—a blessing or a curse not to the present age alone, for with our fate will the destiny of unborn millions be involved.

"With this conviction of the importance of the present crisis, silence in me would be a crime. I will therefore speak to your excellency the language of freedom and of sincerity, without disguise. I am aware, however, that those who differ from me in political sentiment, may perhaps remark that I

am stepping out of the proper line of my duty, and may possibly ascribe to arrogance or ostentation, what I know is alone the result of the purest intentions. But the rectitude of my own heart, which disdains such unworthy motives; the part I have hitherto acted in life; the determination I have formed of not taking any share in public business hereafter; the ardent desire I feel, and shall continue to manifest, of quietly enjoying, in private life, after all the toils of war, the benefits of a wise and liberal government: will, I flatter myself, sooner or later convince my countrymen, that I could have no sinister views in delivering with so little reserve the opinions contained in this address.

"There are four things which I humbly conceive are essential to the well being, I may even venture to say, to the existence of the United States as an independent power.

1st. An indissoluble union of the states under one federal head.

2d. A sacred regard to public justice.

3d. The adoption of a proper peace establishment, and,

4th. The prevalence of that pacific and friendly disposition, among the people of the United States, which will induce them to forget their local prejudices and politics, to make those mutual concessions which are requisite to the general prosperity, and in some instances, to sacrifice their individual advantages to the interest of the community.

"These are the pillars on which the glorious fabric of our independency and national character must be supported. Liberty is the basis, and whoever would dare to sap the foundation, or overturn the structure, under whatever specious pretext he may attempt it, will merit the bitterest execration, and the severest punishment, which can be inflicted by his injured country.

"On the three first articles, I will make a few observations, leaving the last to the good sense and serious consideration of those immediately concerned.

"Under the first head, although it may not be necessary or proper for me, in this place, to enter into a particular disquisition of the principles of the union, and to take up the great question which has frequently been agitated, whether it be expedient and requisite for the states to delegate a larger proportion of power to congress or not; yet it will be a part of my duty, and that of every true patriot, to assert without reserve, and to insist upon the

following positions: that unless the states will suffer congress to exercise those prerogatives they are undoubtedly invested with by the constitution, every thing must very rapidly tend to anarchy and confusion: that it is indispensable to the happiness of the individual states, that there should be lodged somewhere a supreme power to regulate and govern the general concerns of the confederated republic, without which the union can not be of long duration: that there must be a faithful and pointed compliance, on the part of every state, with the late proposals and demands of congress, or the most fatal consequences will ensue: that whatever measures have a tendency to dissolve the union, or contribute to violate or lessen the sovereign authority, ought to be considered as hostile to the liberty and independence of America, and the authors of them treated accordingly: and lastly, that unless we can be enabled, by the concurrence of the states, to participate of the fruits of the revolution, and enjoy the essential benefits of civil society, under a form of government so free and uncorrupted, so happily guarded against the danger of oppression as has been devised and adopted by the articles of confederation, it will be a subject of regret, that so much blood and treasure have been lavished for no purpose; that so many sufferings have been encountered without a compensation; and that so many sacrifices have been made in vain. Many other considerations might here be adduced to prove, that without an entire conformity to the spirit of the union, we can not exist as an independent power. It will be sufficient for my purpose to mention one or two, which seem to me of the greatest importance. It is only in our united character that we are known as an empire, that our independence is acknowledged, that our power can be regarded, or our credit supported among foreign nations. The treaties of the European powers with the United States of America, will have no validity on a dissolution of the union. We shall be left nearly in a state of nature, or we may find, by our own unhappy experience, that there is a natural and necessary progression from the extreme of anarchy to the extreme of tyranny; and that arbitrary power is most easily established on the ruins of liberty abused to licentiousness.

"As to the second article, which respects the performance of public justice, congress have in their late address to the United States, almost exhausted the subject. They have explained their ideas so fully, and have enforced the obligations the states are under, to render complete justice to all the public creditors, with so much dignity and energy, that in my

opinion, no real friend to the honour and independency of America, can hesitate a single moment respecting the propriety of complying with the just and honourable measures proposed. If their arguments do not produce conviction, I know of nothing that will have greater influence; especially when we recollect that the system referred to, being the result of the collected wisdom of the continent, must be esteemed, if not perfect, certainly the least objectionable of any that could be devised; and that if it should not be carried into immediate execution, a national bankruptcy, with all its deplorable consequences, will take place before any different plan can possibly be proposed and adopted. So pressing are the present circumstances, and such is the alternative now offered to the states.

"The ability of the country to discharge the debts which have been incurred in its defence is not to be doubted; an inclination I flatter myself will not be wanting. The path of our duty is plain before us—honesty will be found, on every experiment, to be the best and only true policy. Let us then as a nation, be just; let us fulfil the public contracts which congress had undoubtedly a right to make, for the purpose of carrying on the war, with the same good faith we suppose ourselves bound to perform our private engagements. In the mean time, let an attention to the cheerful performance of their proper business as individuals, and as members of society, be earnestly inculcated on the citizens of America. Then will they strengthen the hands of government, and be happy under its protection. Every one will reap the fruit of his labours; every one will enjoy his own acquisitions, without molestation, and without danger.

"In this state of absolute freedom and perfect security, who will grudge to yield a very little of his property to support the common interest of society, and insure the protection of government? Who does not remember the frequent declarations, at the commencement of the war, that we should be completely satisfied, if at the expense of one half, we could defend the remainder of our possessions? Where is the man to be found who wishes to remain indebted for the defence of his own person and property, to the exertions, the bravery, and the blood of others, without making one generous effort to repay the debt of honour and of gratitude? In what part of the continent shall we find any man or body of men, who would not blush to stand up and propose measures purposely calculated to rob the soldier of his stipend, and the public creditor of his due? And were it possible that such a flagrant instance of injustice could ever happen, would it not excite

the general indignation, and tend to bring down upon the authors of such measures, the aggravated vengeance of heaven? If, after all, a spirit of disunion, or a temper of obstinacy and perverseness, should manifest itself in any of the states; if such an ungracious disposition should attempt to frustrate all the happy effects that might be expected to flow from the union; if there should be a refusal to comply with the requisitions for funds to discharge the annual interest of the public debts; and if that refusal should revive again all those jealousies, and produce all those evils, which are now happily removed; congress, who have in all their transactions, shown a great degree of magnanimity and justice, will stand justified in the sight of God and man; and the state alone which puts itself in opposition to the aggregate wisdom of the continent, and follows such mistaken and pernicious counsels, will be responsible for all the consequences.

"For my own part, conscious of having acted while a servant of the public, in the manner I conceived best suited to promote the real interests of my country; having, in consequence of my fixed belief, in some measure pledged myself to the army, that their country would finally do them complete and ample justice; and not wishing to conceal any instance of my official conduct from the eyes of the world; I have thought proper to transmit to your excellency the enclosed collection of papers, relative to the half pay and commutation granted by congress to the officers of the army. From these communications, my decided sentiments will be clearly comprehended, together with the conclusive reasons which induced me, at an early period, to recommend the adoption of the measure, in the most earnest and serious manner. As the proceedings of congress, the army, and myself, are open to all, and contain, in my opinion, sufficient information to remove the prejudices, and errors, which may have been entertained by any, I think it unnecessary to say any thing more than just to observe, that the resolutions of congress now alluded to, are undoubtedly as absolutely binding upon the United States, as the most solemn acts of confederation or legislation. As to the idea which I am informed, has in some instances prevailed, that the half pay and commutation are to be regarded merely in the odious light of a pension, it ought to be exploded for ever. That provision should be viewed as it really was, a reasonable compensation offered by congress, at a time when they had nothing else to give to the officers of the army, for services then to be performed. It was the only means to prevent a total dereliction of the service.—It was a part of their

hire.—I may be allowed to say it was the price of their blood, and of your independence. It is therefore more than a common debt; it is a debt of honour. It can never be considered as a pension, or gratuity; nor be cancelled until it is fairly discharged.

"With regard to a distinction between officers and soldiers, it is sufficient that the uniform experience of every nation of the world, combined with your own, proves the utility and propriety of the discrimination. Rewards in proportion to the aids the public derives from them, are unquestionably due to all its servants. In some lines, the soldiers have perhaps generally had as ample a compensation for their services, by the large bounties which have been paid to them, as their officers will receive in the proposed commutation; in others, if besides the donation of lands, the payment of arrearages, of clothing and wages, (in which articles all the component parts of the army must be put upon the same footing,) we take into the estimate the bounties many of the soldiers have received, and the gratuity of one year's full pay which is promised to all, possibly their situation (every circumstance duly considered) will not be deemed less eligible than that of the officers. Should a further reward, however, be judged equitable, I will venture to assert, no one will enjoy greater satisfaction than myself, on seeing an exemption from taxes for a limited time, (which has been petitioned for in some instances,) or any other adequate immunity or compensation, granted to the brave defenders of their country's cause. But neither the adoption nor rejection of this proposition will in any manner affect, much less militate against, the act of congress, by which they have offered five years full pay, in lieu of the half pay for life, which had been before promised to the officers of the army.

"Before I conclude the subject of public justice, I can not omit to mention the obligations this country is under to that meritorious class of veteran non-commissioned officers and privates who have been discharged for inability, in consequence of the resolution of congress of the 23d April, 1782, on an annual pension for life. Their peculiar sufferings, their singular merits, and claims to that provision, need only be known, to interest all the feelings of humanity in their behalf. Nothing but a punctual payment of their annual allowance can rescue them from the most complicated misery, and nothing could be a more melancholy and distressing sight, than to behold those who have shed their blood or lost their limbs in the service of their country, without a shelter, without a friend, and without the means of

obtaining any of the necessaries or comforts of life; compelled to beg their daily bread from door to door. Surfer me to recommend those of this description, belonging to your state, to the warmest patronage of your excellency and your legislature.

"It is necessary to say but a few words on the third topic which was proposed, and which regards particularly the defence of the republic, as there can be little doubt but congress will recommend a proper peace establishment for the United States, in which a due attention will be paid to the importance of placing the militia of the union upon a regular and respectable footing. If this should be the case, I would beg leave to urge the great advantage of it in the strongest terms. The militia of this country must be considered as the palladium of our security, and the first effectual resort in case of hostility. It is essential, therefore, that the same system should pervade the whole; that the formation and discipline of the militia of the continent should be absolutely uniform, and that the same species of arms, accoutrements, and military apparatus should be introduced in every part of the United States. No one who has not learned it from experience, can conceive the difficulty, expense, and confusion, which result from a contrary system, or the vague arrangements which have hitherto prevailed.

"If in treating of political points, a greater latitude than usual has been taken in the course of this address, the importance of the crisis, and magnitude of the objects in discussion, must be my apology. It is, however, neither my wish nor expectation, that the preceding observations should claim any regard, except so far as they shall appear to be dictated by a good intention, consonant to the immediate rules of justice, calculated to produce a liberal system of policy, and founded on whatever experience may have been acquired by a long and close attention to public business. Here I might speak with the more confidence, from my actual observations; and, if it would not swell this letter (already too prolix) beyond the bounds I had prescribed myself, I could demonstrate to every mind open to conviction, that in less time, and with much less expense than has been incurred, the war might have been brought to the same happy conclusion, if the resources of the continent could have been properly drawn forth; that the distresses and disappointments which have very often occurred, have, in too many instances, resulted more from a want of energy in the continental government, than a deficiency of means in the particular states: that the inefficacy of measures, arising from the want of an adequate authority in

the supreme power, from a partial compliance with the requisitions of congress in some of the states, and from a failure of punctuality in others, while it tended to damp the zeal of those which were more willing to exert themselves, served also to accumulate the expenses of the war, and to frustrate the best concerted plans; and that the discouragement occasioned by the complicated difficulties and embarrassments in which our affairs were by this means involved, would have long ago produced the dissolution of any army less patient, less virtuous, and less persevering, than that which I have had the honour to command. But while I mention these things which are notorious facts, as the defects of our federal constitution, particularly in the prosecution of a war, I beg it may be understood, that as I have ever taken a pleasure in gratefully acknowledging the assistance and support I have derived from every class of citizens, so shall I always be happy to do justice to the unparalleled exertions of the individual states, on many interesting occasions.

"I have thus freely disclosed what I wished to make known before I surrendered up my public trust to those who committed it to me. The task is now accomplished. I now bid adieu to your excellency as the chief magistrate of your state; at the same time I bid a last farewell to the cares of office and all the employments of public life.

"It remains then to be my final and only request, that your excellency will communicate these sentiments to your legislature at their next meeting; and that they may be considered as the legacy of one who has ardently wished, on all occasions, to be useful to his country; and who, even in the shade of retirement, will not fail to implore the divine benediction upon it.

"I now make it my earnest prayer that God would have you, and the state over which you preside, in his holy protection, that he would incline the hearts of the citizens to cultivate a spirit of subordination and obedience to government; to entertain a brotherly affection and love for one another, for their fellow citizens of the United States at large, and particularly for their brethren who have served in the field, and finally, that he would most graciously be pleased to dispose us all to do justice, to love mercy, and to demean ourselves with that charity, humility, and pacific temper of mind, which were the characteristics of the Divine Author of our blessed religion; without an humble imitation of whose example in these things we can never hope to be a happy nation."

The impression made by this solemn and affecting admonition could not be surpassed. The circumstances under which it was given, added to the veneration with which it was received; and, like the counsel of a parent on whom the grave is about to close forever, it sunk deep into the hearts of all. But, like the counsels of a parent withdrawn from view, the advice was too soon forgotten, and the impression it had made was too soon effaced.

The recommendations of congress did not receive that prompt consideration which the public exigence demanded, nor did they meet that universal assent which was necessary to give them effect.

Not immediately perceiving that the error lay in a system which was unfit for use, the distinguished patriots of the revolution contemplated with increasing anxiety, the anti-American temper which displayed itself in almost every part of the union. The letters addressed to the late Commander-in-chief, by many of those who had borne a conspicuous part in the arduous struggle for independence, manifest the disappointment and chagrin occasioned by this temper. The venerable Trumbull, who had rendered great service to the cause of united America; who, like Washington, had supported the burden of office throughout a hazardous contest, and like Washington, had determined to withdraw from the cares of a public station when that contest should be terminated, in a letter communicating to his friend and compatriot the resolution he had taken, thus disclosed the fears which the dispositions manifested by many of his countrymen inspired. "The fruits of our peace and independence do not at present wear so promising an appearance as I had fondly painted to my mind. The prejudices, the jealousies, and turbulence of the people, at times, almost stagger my confidence in our political establishments; and almost occasion me to think that they will show themselves unworthy of the noble prize for which we have contended, and which, I had pleased myself with the hope, we were so near enjoying. But again, I check this rising impatience, and console myself under the present prospect with the consideration, that the same beneficent and wise Providence which has done so much for this country, will not eventually leave us to ruin our own happiness, to become the sport of chance, or the scoff of a once admiring world; but that great things are yet in store for this people, which time, and the wisdom of the Great Director will produce in its best season."

"It is indeed a pleasure," said General Washington in reply, "from the walks of private life to view in retrospect the difficulties through which we have waded, and the happy haven into which our ship has been brought. Is it possible after this that it should founder? will not the all wise and all powerful Director of human events preserve it? I think he will. He may, however, for some wise purpose of his own, suffer our indiscretions and folly to place our national character low in the political scale;—and this, unless more wisdom and less prejudice take the lead in our government, will most certainly happen."

That the imbecility of the federal government, the impotence of its requisitions, and the inattention of some of the states to its recommendations, would, in the estimation of the world, abase the American character, could scarcely be termed a prediction. That course of national degradation had already commenced.

As the system recommended to the states on the 18th of April, 1783, had been matured by the best wisdom in the federal councils, a compliance with it was the last hope of the government; and congress continued to urge its adoption on the several states. While its fate remain undecided, requisitions for the intermediate supply of the national demands were annually repeated, and were annually neglected. Happily, a loan had been negotiated in Holland by Mr. Adams, after the termination of the war, out of which the interest of the foreign debt had been partly paid; but that fund was exhausted, and the United States possessed no means of replacing it. Unable to pay the interest, they would, in the course of the succeeding year, be liable for the first instalment of the principal; and the humiliating circumstance was to be encountered of a total failure to comply with the most solemn engagements, unaccompanied with the prospect of being enabled to give assurances, that, at any future time, their situation would be more eligible. If the condition of the domestic creditors was not absolutely desperate, the prospect of obtaining satisfaction for their claims was so distant and uncertain, that their evidences of debt were transferred at an eighth, and even at a tenth of their nominal value. The distress consequent on this depreciation was great and afflicting. "The requisitions of congress for eight years past," say the committee in February, 1786, to whom the subject of the revenue had been referred, "have been so irregular in their operation, so uncertain in their collection, and so evidently unproductive, that a reliance on them in future as a source from whence moneys are to be

drawn to discharge the engagements of the confederacy, definite as they are in time and amount, would be not less dishonourable to the understandings of those who entertain such confidence, than it would be dangerous to the welfare and peace of the union." Under public embarrassments which were daily increasing, it had become, it was said, "the duty of congress to declare most explicitly that the crisis *had* arrived, when the people of the United States, by whose will, and for whose benefit, the federal government was instituted, must decide whether they will support their rank as a nation, by maintaining the public faith at home and abroad, or whether, for want of a timely exertion in establishing a general revenue, and thereby giving strength to the confederacy, they will hazard not only the existence of the union, but of those great and invaluable privileges for which they have so arduously and so honourably contended."

The revenue system of the 18th of April, 1783, was again solemnly recommended to the consideration of the several states, and their unanimous and early accession to it was declared to be the only measure which could enable congress to preserve the public faith, and to avoid the fatal evils which will inevitably flow from "a violation of those principles of justice which are the only solid basis of the honour and prosperity of nations."

In framing this system, a revenue adequate to the funding of the whole national debt had been contemplated, and no part of it was to go into operation until the whole should be adopted. By suspending partial relief to the pressing necessities of the government, it was believed that complete relief would be the more certainly secured.

The enlightened and virtuous statesmen with whom that measure originated, thought it impossible that their countrymen would be so unmindful of the obligations of honour and of justice, or could so mistake their real interests, as to withhold their assent from the entire plan, if convinced that no partial compliance with it would be received. In the progress of the business, however, there was reason to believe that the impost might be conceded, but that the application for internal taxes would encounter difficulties not to be surmounted. In the impoverished state of the federal treasury, an incompetent revenue was preferred to no revenue; and it was deemed more adviseable to accept a partial compliance with the recommendations of congress, than, by inflexibly adhering to the integrity

of the system, to lose the whole. The states therefore, were requested to enable congress, "to carry into effect that part which related to impost so soon as it should be acceded to." In the course of the year 1786, every state in the union had acted upon the recommendation, and, with the exception of New York, had granted the impost duty which had been required. New York had passed an act upon the subject; but, influenced by its jealousy of the federal government, had not vested in congress the power of collection, but had reserved to itself the sole right of levying the duties according to its own laws. Neither did the act permit the collectors to be made accountable to congress. To the state only were they amenable. In addition to these deviations from the plan recommended, New York had emitted bills of credit, which were liable to depreciation, and in them the duties were payable. As the failure on the part of this single state, suspended the operation of the grants made by all the others, the executive thereof was requested again to convene the legislature, in order to lay the subject once more before them. To a similar resolution Governor Clinton had already replied, that "he had not power to convene the legislature before the time fixed by law for their stated meeting, except on extraordinary occasions, and as the present business proposed for their consideration had already been repeatedly laid before them, and so recently as at their last session had received their determination, it could not come within that description." This second resolution was not more successful than that which preceded it, and thus was finally defeated the laborious and persevering effort made by the federal government to obtain from the states the means of preserving, in whole or in part, the faith of the nation. General Washington's letters of that period abound with passages showing the solicitude with which he watched the progress of this recommendation, and the chagrin with which he viewed the obstacles to its adoption. In a letter of October, 1785, he said, "the war, as you have very justly observed, has terminated most advantageously for America, and a fair field is presented to our view; but I confess to you freely, my dear sir, that I do not think we possess wisdom or justice enough to cultivate it properly. Illiberality, jealousy, and local policy, mix too much in our public councils, for the good government of the union. In a word, the confederation appears to me to be little more than a shadow without the substance; and congress a nugatory body, their ordinances being little attended to. To *me*, it is a solecism in politics:—indeed it is one of the most extraordinary things in nature, that we should confederate as a nation, and

yet be afraid to give the rulers of that nation, who are the creatures of our own making, appointed for a limited and short duration, and who are amenable for every action, recallable at any moment, and subject to all the evils which they may be instrumental in producing,—sufficient powers to order and direct the affairs of the same. By such policy as this, the wheels of government are clogged, and our brightest prospects, and that high expectation which was entertained of us by the wondering world, are turned into astonishment; and from the high ground on which we stood, we are descending into the vale of confusion and darkness.

"That we have it in our power to become one of the most respectable nations upon earth, admits, in my humble opinion, of no doubt, if we would but pursue a wise, just, and liberal policy towards one another, and would keep good faith with the rest of the world:—that our resources are ample and increasing, none can deny; but while they are grudgingly applied, or not applied at all, we give a vital stab to public faith, and will sink in the eyes of Europe, into contempt."

CHAPTER IV.

Differences between Great Britain and the United States.... Mr. Adams appointed minister to Great Britain.... Discontents excited by the commercial regulations of Britain.... Parties in the United States.... The convention at Annapolis.... Virginia appoints deputies to a convention at Philadelphia.... General Washington chosen one of them.... Insurrection at Massachusetts.... Convention at Philadelphia.... A form of government submitted to the respective states, as ratified by eleven of them.... Correspondence of General Washington respecting the chief magistracy.... He is elected president.... Meeting of the first congress.

1783 to 1787

While the friends of the national government were making these unavailing efforts to invest it with a revenue which might enable it to preserve the national faith, many causes concurred to prepare the public mind for some great and radical change in the political system of America.

Misunderstandings between Great Britain and the United States.

Scarcely had the war of the revolution terminated, when the United States and Great Britain reciprocally charged each other with violations of the treaty of peace. On the construction of that part of the seventh article which stipulates against the "destruction or carrying away of any negroes, or other property of the American inhabitants," a serious difference of opinion prevailed which could not be easily accommodated. As men seldom allow much weight to the reasoning of an adversary, the construction put upon that article by the cabinet of London was generally treated in America as a mere evasion; and the removal of the negroes who had joined the British army on the faith of a proclamation offering them freedom, was considered as a flagrant breach of faith. In addition to this circumstance, the troops of his Britannic Majesty still retained possession of the posts on the American side of the great lakes. As those posts gave their possessors a decided influence over the warlike tribes of Indians in their neighbourhood, this was a subject to which the United States were peculiarly sensible.

On the other hand, the United States were charged with infringing the fourth, fifth, and sixth articles, which contain agreements respecting the payment of debts, the confiscation of property, and prosecution of individuals for the part taken by them during the war.

On the 14th of January, 1784, the day on which the definitive articles were ratified, congress passed a resolution containing a recommendation in the words of the treaty, respecting confiscated property, which was transmitted without delay to the several states. They considered this resolution as merely formal; and contended that neither the American nor the British government expected from it any beneficial results. But other stipulations which are explicit, the performance of which was not to rest on the recommendation of the government, especially that respecting the payment of debts, were also neglected. These causes of mutual complaint being permitted to rankle for some time in the bosoms of both nations, produced a considerable degree of irritation. The British merchants had large credits in America. Those engaged in the colonial trade had been nearly ruined by the rupture between the two countries; and, without taking into the account the embarrassments in which the war had involved their debtors, they calculated, after the restoration of peace, on the prompt collection of the vast sums which were due to them. But the impediments to the recovery of debts were, in many instances, permitted to remain; and the dispositions manifested by those states in which they were chiefly due, did not authorize a belief that any favourable change of measures was about to take place. The complaints of the creditors were loud and incessant. They openly charged the American government with violating the most solemn obligations which public and private contract could create; and this charge affected the national character the more seriously, because the terms of the treaty were universally deemed highly advantageous to the United States. The recriminations on the part of individuals in America, were also uttered with the angry vehemence of men who believe themselves to be suffering unprovoked injuries. The negroes in possession of the British armies at the restoration of peace, belonged, in many cases, to actual debtors; and in all, to persons who required the labour of which they were thus deprived, to repair the multiplied losses produced by the war. To the detention of the posts on the lakes was ascribed the hostile temper manifested by the Indians; and thus, to the indignity of permitting a foreign power to maintain garrisons within the limits of the nation, were superadded the murders perpetrated by the savages, and the consequent difficulty of settling the fertile and vacant lands of the west.[\[28\]](#) On the north-eastern frontier too, the British were charged with making encroachments on the territory of the United States. On that side, the river St. Croix, from its source to its mouth

in the bay of Passamaquoddy, is the boundary between the two nations. Three rivers of that name empty into the bay. The Americans claimed the most eastern, as the real St. Croix, while settlements were actually made under the authority of the government of Nova Scotia to the middle river, and the town of St. Andrews was established on its banks.

Mr. Adams appointed to negotiate with the British cabinet.

But the cause of most extensive disquiet was the rigorous commercial system pursued by Great Britain. While colonists, the Americans had carried on a free and gainful trade with the British West Indies. Those ports were closed against them as citizens of an independent state; and their accustomed intercourse with other parts of the empire also was interrupted by the navigation act. To explore new channels for the commerce of the nation was, in the actual state of things, opposed by obstacles which almost discouraged the attempt. On every side they met with rigorous and unlooked for restrictions. Their trade with the colonies of other powers, as well as with those of England, was prohibited; and in all the ports of Europe they encountered regulations which were extremely embarrassing. From the Mediterranean, they were excluded by the Barbary powers, whose hostility they had no force to subdue, and whose friendship they had no money to purchase. Thus, the characteristic enterprise of their merchants, which, in better times, has displayed their flag in every ocean, was then in a great measure restrained from exerting itself by the scantiness of their means. These commercial difficulties suggested the idea of compelling Great Britain to relax the rigour of her system, by opposing it with regulations equally restrictive; but to render success in such a conflict possible, it was necessary that the whole power of regulating commerce should reside in a single legislature. Few were so sanguine as to hope that thirteen independent governments, jealous of each other, could be induced to concur for a length of time, in measures capable of producing the desired effect. With many, therefore, the desire of counteracting a system which appeared to them so injurious, triumphed over their attachment to state sovereignty; and the converts to the opinion that congress ought to be empowered to regulate trade, were daily multiplied. Meanwhile, the United States were unremitting in their endeavours to form commercial treaties in Europe. Three commissioners had been appointed for that purpose; and at length, as the trade with England was peculiarly important, and the growing misunderstandings between the two countries threatened serious

consequences should their adjustment be much longer delayed, Mr. John Adams was appointed minister plenipotentiary to the court of St. James. His endeavours to form a commercial treaty were not successful. His overtures were declined by the cabinet of London, because the government of the United States was unable to secure the observance of any general commercial regulations; and it was deemed unwise to enter into stipulations which could not be of reciprocal obligation. In fact, it is not probable that, had even this difficulty been surmounted, Britain could have been induced to grant advantages that would have been satisfactory to America. The latter expected great relaxations of the navigation act, and a free admission into the colonies of the former; and believed its commerce of sufficient importance to obtain these objects, if it could be regulated by a single legislature. The reflecting part of America did not require this additional evidence of the sacrifice which had been made of national interest on the altars of state jealousy, to demonstrate the defectiveness of the existing system. On the mind of no person had this impression been more strongly made, than on that of General Washington. His extensive correspondence bears ample testimony to the solicitude with which he contemplated the proceedings of the states on this interesting subject.

The opinion he sought to inculcate was, that the trade between the United States and Great Britain was equally important to each; and therefore, that a commercial intercourse between the two nations might be established on equal terms, if the political arrangements in America would enable its government to guard its interests; but without such arrangements, those interests could not be protected, and America must appear in a very contemptible point of view to those with whom she was endeavouring to form commercial treaties, without possessing the means of carrying them into effect:—who "must see and feel that the union, or the states individually are sovereign as best suits their purposes:—in a word, that we are one nation to day, and thirteen to-morrow. Who," he added, "will treat with us on such terms?"

About this time, General Washington received a long and affectionate letter from the Marquis de Lafayette, who had just returned from a tour through the north of Europe. In communicating the occurrences at the courts he had visited, and especially at that of Prussia, whose aged and distinguished monarch, uniting the acquirements of the scholar and the statesman with the most profound skill in the art of war, could confer either

literary or military fame, he dwelt with enthusiasm on the plaudits which were universally bestowed on his military patron and paternal friend. "I wish," he added, "the other sentiments I have had occasion to discover with respect to America, were equally satisfactory with those that are personal to yourself. I need not say that the spirit, the firmness, with which the revolution was conducted, has excited universal admiration:—That every friend to the rights of mankind is an enthusiast for the principles on which those constitutions are built:—but I have often had the mortification to hear, that the want of powers in congress, of union between the states, of energy in their government, would make the confederation very insignificant. By their conduct in the revolution," he added, "the citizens of America have commanded the respect of the world; but it grieves me to think they will in a measure lose it, unless they strengthen the confederation, give congress power to regulate their trade, pay off their debt, or at least the interest of it, establish a well regulated militia, and, in a word, complete all those measures which you have recommended to them."

"Unhappily for us," said the general in reply, "though the reports you mention are greatly exaggerated, our conduct has laid the foundation for them. It is one of the evils of democratic governments, that the people, not always seeing, and frequently misled, must often feel before they act right. But evils of this nature seldom fail to work their own cure. It is to be lamented, nevertheless, that the remedies are so slow, and that those who wish to apply them seasonably, are not attended to before they suffer in person, in interest, and in reputation. I am not without hopes that matters will soon take a favourable turn in the federal constitution. The discerning part of the community have long since seen the necessity of giving adequate powers to congress for national purposes, and those of a different description must yield to it ere long."

Discontents of the Americans against the commercial regulations of Britain.

While the recommendation of the 30th of April, 1784, was before the states, many causes contributed to diffuse through the community such a general dissatisfaction with the existing state of things, as to prepare the way for some essential change in the American system. In the course of the long war which had been carried on in the bosom of their country, the people of the United States had been greatly impoverished. Their property had been seized for the support of both armies; and much of their labour

had been drawn from agriculture for the performance of military service. The naval power of their enemy had almost annihilated their commerce; from which resulted the two-fold calamity, that imported commodities were enhanced to an enormous price, while those for exportation were reduced much below their ordinary value. The inevitable consequence was, that those consumable articles which habit had rendered necessary, were exhausted; and peace found the American people, not only destitute of the elegancies, and even of the conveniences of life, but also without the means of procuring them, otherwise than by anticipating the proceeds of future industry. On opening their ports, an immense quantity of foreign merchandise was introduced into the country, and they were tempted by the sudden cheapness of imported goods, and by their own wants, to purchase beyond their capacities for payment. Into this indiscretion, they were in some measure beguiled by their own sanguine calculations on the value which a free trade would bestow on the produce of their soil, and by a reliance on those evidences of the public debt which were in the hands of most of them. So extravagantly too did many estimate the temptation which equal liberty and vacant lands would hold out to emigrants from the old world, as to entertain the opinion that Europe was about to empty itself into America, and that the United States would derive from that source such an increase of population, as would enhance their lands to a price heretofore not even conjectured. Co-operating with the cause last mentioned, was the impression which had been made by paper money on public morals, and on public opinion. It had not escaped observation that every purchaser on credit, however excessive the price might apparently be, had not only been relieved by the depreciation, but had derived great gains from his contract. Speculating on a similar course of things, many individuals had made extensive purchases at high prices; and had thus contributed to continue for a time, the deception imposed on themselves by those who supposed that the revolution was a talisman, whose magic powers were capable of changing the nature of things. The delusive hopes created by these visionary calculations were soon dissipated, and a great proportion of the inhabitants found themselves involved in debts they were unable to discharge. One of the consequences resulting from this unprosperous state of things was a general discontent with the course of trade. It had commenced with the native merchants of the north, who found themselves incapable of contending in their own ports with foreigners; and was soon communicated

to others. The gazettes of Boston contained some very animated and angry addresses, which produced resolutions for the government of the citizens of that town, applications to their state legislature, a petition to congress, and a circular letter to the merchants of the several sea-ports throughout the United States. After detailing the disadvantages under which the trade and navigation of America laboured, and expressing their confidence that the necessary powers to the federal government would be soon, if not already, delegated, the petition to congress thus concludes: "Impressed with these ideas, your petitioners beg leave to request of the very august body which they have now the honour to address, that the numerous impositions of the British, on the trade and exports of these states, may be forthwith contravened by similar expedients on our part: else may it please your excellency and honours, the commerce of this country, and of consequence its wealth, and perhaps the union itself, may become victims to the artifice of a nation whose arms have been in vain exerted to accomplish the ruin of America."

The merchants of the city of Philadelphia presented a memorial to the legislature of that state, in which, after lamenting it as a fundamental defect in the constitution that full and entire power over the commerce of the United States had not been originally vested in congress, "as no concern common to many could be conducted to a good end, but by a unity of councils;" they say, "hence it is that the intercourses of the states are liable to be perplexed and injured by various and discordant regulations, instead of that harmony of measures on which the particular, as well as general interests depend; productive of mutual disgusts, and alienation among the several members of the empire.

"But the more certain inconveniences foreseen and now experimentally felt, flow from the unequal footing this circumstance puts us on with other nations, and by which we stand in a very singular and disadvantageous situation; for while the whole of our trade is laid open to these nations, they are at liberty to limit us to such branches of theirs as interest or policy may dictate:—unrestrained by any apprehensions, as long as the power remains severally with the states, of being met and opposed by any consistent and effectual restrictions on our part."

This memorial prayed that the legislature would endeavour to procure from congress, a recommendation to the several states, to vest in that body

the necessary powers over the commerce of the United States.

It was immediately taken into consideration, and resolutions were passed conforming to its prayer. Similar applications were made by other commercial towns.

From these proceedings, and from the general representations made by the American merchants, General Washington had augured the most happy effects.

In a letter to the Marquis de Lafayette, he thus expressed his hope of the consequences which would attend the efforts then making to enlarge the powers of congress. "However unimportant America may be considered at present, and however Britain may affect to despise her trade, there will assuredly come a day when this country will have some weight in the scale of empires."

But a concurrence of the states in granting to the general government the beneficial powers in question, was not so near being effected as was hoped by its friends. A resolution was moved in congress, recommending it to the several states to vest in that body full authority to regulate their commerce, both external and internal, and to impose such duties as might be necessary for that purpose. This power was to be fettered with several extraordinary limitations, which might render it more acceptable to the governments who were asked to bestow it, among which was a provision that the duties should be "collectible under the authority, and accrue to the use of the state in which the same should be made payable." Notwithstanding these restrictions, marking the keen sighted jealousy with which any diminution of state sovereignty was watched, this resolution encountered much opposition even in congress.

During these transactions, the public attention was called to another subject which served to impress still more powerfully on every reflecting mind, the necessity of enlarging the powers of the general government, were it only to give efficacy to those which in theory it already possessed.

The uneasiness occasioned by the infractions of the treaty of peace on the part of Great Britain, has been already noticed. To obtain its complete execution, constituted one of the objects for which Mr. Adams had been deputed to the court of St. James. A memorial presented by that minister in December, 1785, urging the complaints of America, and pressing for a full compliance with the treaty, was answered by an enumeration of the

violations of that compact on the part of the United States. The Marquis of Carmarthen acknowledged explicitly the obligation created by the seventh article to withdraw the British garrisons from every post within the United States; but insisted that the obligation created by the fourth article, to remove every lawful impediment to the recovery of *bona fide* debts, was equally clear and explicit.

"The engagements entered into by a treaty ought," he said, "to be mutual, and equally binding on the respective contracting parties. It would, therefore, be the height of folly as well as injustice, to suppose one party alone obliged to a strict observance of the public faith, while the other might remain free to deviate from its own engagements as often as convenience might render such deviation necessary, though at the expense of its own credit and importance."

He concluded with the assurance, "that whenever America should manifest a real determination to fulfil her part of the treaty, Great Britain would not hesitate to prove her sincerity to co-operate in whatever points depended upon her, for carrying every article of it into real and complete effect."

This letter was accompanied by a statement of the infractions of the fourth article.

Copies of both documents were immediately transmitted by Mr. Adams to congress, by whom they were referred to Mr. Jay, the secretary for foreign affairs. The report of that upright minister did not, by contravening facts, affect to exculpate his country. "Some of the facts," said he in a letter to General Washington, written after permission to communicate the papers had been given, "are inaccurately stated and improperly coloured; but it is too true that the treaty has been violated. On such occasions, I think it better fairly to confess and correct errors, than attempt to deceive ourselves and others, by fallacious though plausible palliations and excuses.

"To oppose popular prejudices, to censure the proceedings and expose the impropriety of states, is an unpleasant task, but it must be done."[\[29\]](#)

That the United States might with reason be required to fulfil the treaty before they could entitle themselves to demand a strict performance of it on the part of Great Britain, was a position the propriety of which they were prevented from contesting by the miserably defective organization of the government. If their treaties were obligatory in theory, the inability of

congress to enforce their execution had been demonstrated in practice. Restrained by this defect in the constitution from insisting that the evacuation of the western posts should precede the removal of the impediments to the *bona fide* execution of the treaty on the part of America, government exerted its earnest endeavours to prevail on the several states to repeal all existing laws which might be repugnant to that compact. The resolutions which were passed on that subject, and the circular letters which accompanied them to the several governors, contain arguments which ought to have demonstrated to all, the constitutional obligation of a treaty negotiated under the authority of congress, and the real policy, as well as the moral duty of faithfully executing that which had been formed with Great Britain. To the deep mortification of those who respected the character of the nation, these earnest representations did not produce the effect which was expected from them. "It was impolitic and unfortunate, if not unjust in these states," said General Washington to a member of congress by whom the objectionable conduct of America was first intimated to him, "to pass laws which by fair construction might be considered as infractions of the treaty of peace. It is good policy at all times to place one's adversary in the wrong. Had we observed good faith, and the western posts had been withheld from us by Great Britain, we might have appealed to God and man for justice."

"What a misfortune it is," said he in reply to the secretary for foreign affairs, "that the British should have so well grounded a pretext for their palpable infractions, and what a disgraceful part, out of the choice of difficulties before us, are we to act!"

Rise of parties in the United States.

The discontents arising from the embarrassments in which individuals were involved, continued to increase. At length, two great parties were formed in every state, which were distinctly marked, and which pursued distinct objects, with systematic arrangement.

The one struggled with unabated zeal for the exact observance of public and private engagements. By those belonging to it, the faith of a nation, or of a private man was deemed a sacred pledge, the violation of which was equally forbidden by the principles of moral justice, and of sound policy. The distresses of individuals were, they thought, to be alleviated only by industry and frugality, not by a relaxation of the laws, or by a sacrifice of

the rights of others. They were consequently the uniform friends of a regular administration of justice, and of a vigorous course of taxation which would enable the state to comply with its engagements. By a natural association of ideas, they were also, with very few exceptions, in favour of enlarging the powers of the federal government, and of enabling it to protect the dignity and character of the nation abroad, and its interests at home.

The other party marked out for themselves a more indulgent course. Viewing with extreme tenderness the case of the debtor, their efforts were unceasingly directed to his relief. To exact a faithful compliance with contracts was, in their opinion, a harsh measure which the people would not bear. They were uniformly in favour of relaxing the administration of justice, of affording facilities for the payment of debts, or of suspending their collection, and of remitting taxes. The same course of opinion led them to resist every attempt to transfer from their own hands into those of congress, powers, which by others were deemed essential to the preservation of the union. In many of these states, the party last mentioned, constituted a decided majority of the people; and in all of them, it was very powerful. The emission of paper money, the delay of legal proceedings, and the suspension of the collection of taxes, were the fruits of their rule wherever they were completely predominant. Even where they failed to carry their measures, their strength was such as to encourage the hope of succeeding in a future attempt; and annual elections held forth to them the prospect of speedily repairing the loss of a favourite question. Throughout the union, the contest between these parties was periodically revived; and the public mind was perpetually agitated with hopes and fears on subjects which essentially affected the fortunes of a considerable proportion of the society.

These contests were the more animated, because, in the state governments generally, no principle had been introduced which could resist the wild projects of the moment, give the people an opportunity to reflect, and allow the good sense of the nation time for exertion. This uncertainty with respect to measures of great importance to every member of the community, this instability in principles which ought, if possible, to be rendered immutable, produced a long train of ills; and is seriously believed to have been among the operating causes of those pecuniary embarrassments, which, at that time, were so general as to influence the

legislation of almost every state in the union. Its direct consequence was the loss of confidence in the government, and in individuals. This, so far as respected the government, was peculiarly discernible in the value of state debts.

The war having been conducted by nations in many respects independent of each other, the debts contracted in its prosecution were due, in part from the United States, and in part from the individual states who became immediately responsible to the creditors, retaining their claim against the government of the union for any balances which might appear to be due on a general settlement of accounts.

That the debt of the United States should have greatly depreciated will excite no surprise, when it is recollected that the government of the union possessed no funds, and, without the assent of jealous and independent sovereigns, could acquire none, to pay the accruing interest: but the depreciation of the debt due from those states which made an annual and adequate provision for the interest, can be ascribed only to a want of confidence in governments which were controlled by no fixed principles; and it is therefore not entirely unworthy of attention. In many of those states which had repelled every attempt to introduce into circulation a depreciated medium of commerce, or to defeat the annual provision of funds for the payment of the interest, the debt sunk in value to ten, five, and even less than four shillings in the pound. However unexceptionable might be the conduct of the existing legislature, the hazard from those which were to follow was too great to be encountered without an immense premium. In private transactions, an astonishing degree of distrust also prevailed. The bonds of men whose ability to pay their debts was unquestionable, could not be negotiated but at a discount of thirty, forty, and fifty *per centum*: real property was scarcely vendible; and sales of any article for ready money could be made only at a ruinous loss. The prospect of extricating the country from these embarrassments was by no means flattering. Whilst every thing else fluctuated, some of the causes which produced this calamitous state of things were permanent. The hope and fear still remained, that the debtor party would obtain the victory at the elections; and instead of making the painful effort to obtain relief by industry and economy, many rested all their hopes on legislative interference. The mass of national labour, and of national wealth, was consequently diminished. In every quarter were found those who asserted it to be impossible for the

people to pay their public or private debts; and in some instances, threats were uttered of suspending the administration of justice by violence.

By the enlightened friends of republican government, this gloomy state of things was viewed with deep chagrin. Many became apprehensive that those plans from which so much happiness to the human race had been anticipated, would produce only real misery; and would maintain but a short and a turbulent existence. Meanwhile, the wise and thinking part of the community, who could trace evils to their source, laboured unceasingly to inculcate opinions favourable to the incorporation of some principles into the political system, which might correct the obvious vices, without endangering the free spirit of the existing institutions.

While the advocates for union were exerting themselves to impress its necessity on the public mind, measures were taken in Virginia, which, though originating in different views, terminated in a proposition for a general convention to revise the state of the union.

To form a compact relative to the navigation of the rivers Potomac and Pocomoke, and of part of the bay of Chesapeake, commissioners were appointed by the legislatures of Virginia and Maryland, who assembled in Alexandria, in March, 1785. While at Mount Vernon on a visit, they agreed to propose to their respective governments, the appointment of other commissioners, with power to make conjoint arrangements, to which the assent of congress was to be solicited, for maintaining a naval force in the Chesapeake; and to establish a tariff of duties on imports, to which the laws of both states should conform. When these propositions received the assent of the legislature of Virginia, an additional resolution was passed, directing that which respected the duties on imports to be communicated to all the states in the union, who were invited to send deputies to the meeting.

On the 21st of January, 1786, a few days after the passage of these resolutions, another was adopted appointing certain commissioners,[\[30\]](#) "who were to meet such as might be appointed by the other states in the union, at a time and place to be agreed on, to take into consideration the trade of the United States; to examine the relative situation and trade of the said states; to consider how far a uniform system in their commercial relations may be necessary to their common interest, and their permanent harmony; and to report to the several states such an act relative to this great

object, as, when unanimously ratified by them, will enable the United States in congress assembled effectually to provide for the same."

In the circular letter transmitting these resolutions to the respective states, Annapolis in Maryland was proposed as the place, and the ensuing September as the time of meeting.

Before the arrival of the period at which these commissioners were to assemble, the idea was carried by those who saw and deplored the complicated calamities which flowed from the intricacy of the general government, much further than was avowed by the resolution of Virginia. "Although," said one of the most conspicuous patriots^[31] of the revolution, in a letter to General Washington, dated the 16th of March, 1786, "you have wisely retired from public employments, and calmly view from the temple of fame, the various exertions of that sovereignty and independence which Providence has enabled you to be so greatly and gloriously instrumental in securing to your country, yet I am persuaded you can not view them with the eye of an unconcerned spectator.

"Experience has pointed out errors in our national government which call for correction, and which threaten to blast the fruit we expected from our tree of liberty. The convention proposed by Virginia may do some good, and would perhaps do more, if it comprehended more objects. An opinion begins to prevail that a general convention for revising the articles of confederation would be expedient. Whether the people are yet ripe for such a measure, or whether the system proposed to be attained by it is only to be expected from calamity and commotion, is difficult to ascertain.

"I think we are in a delicate situation, and a variety of considerations and circumstances give me uneasiness. It is in contemplation to take measures for forming a general convention. The plan is not matured. If it should be well connected and take effect, I am fervent in my wishes that it may comport with the line of life you have marked out for yourself, to favour your country with your counsels on such an important and *single* occasion. I suggest this merely as a hint for consideration."

In the moment of tranquillity, and of real or imaginary security, the mind delights to retrace the intricate path by which this point of repose has been attained. The patriots who accomplished that great revolution which has given to the American people a national government capable of maintaining the union of the states, and of preserving republican liberty, must be

gratified with the review of that arduous and doubtful struggle, which terminated in the triumph of human reason, and the establishment of that government. Even to him who was not an actor in the busy scene, who enjoys the fruits of the labour without participating in the toils or the fears of the patriots who have preceded him, the sentiments entertained by the most enlightened and virtuous of America at the eventful period between the restoration of peace and the adoption of our present free and effective constitution, can not be uninteresting.

"Our affairs," said the same gentleman in a letter of the 27th of June, "seem to lead to some crisis, some revolution—something that I can not foresee or conjecture. I am uneasy and apprehensive, more so than during the war. *Then*, we had a fixed object, and though the means and time of obtaining it were often problematical, yet I did firmly believe that we should ultimately succeed, because I did firmly believe that justice was with us. The case is now altered; we are going, and doing wrong, and therefore I look forward to evils and calamities, but without being able to guess at the instrument, nature, or measure of them.

"That we shall again recover, and things again go well, I have no doubt. Such a variety of circumstances would not, almost miraculously, have combined to liberate and make us a nation, for transient and unimportant purposes. I therefore believe we are yet to become a great and respectable people—but when or how, only the spirit of prophecy can discern.

"There doubtless is much reason to think and to say that we are wofully, and, in many instances, wickedly misled. Private rage for property suppresses public considerations, and personal rather than national interests have become the great objects of attention. Representative bodies will ever be faithful copies of their originals, and generally exhibit a chequered assemblage of virtue and vice, of abilities and weakness. The mass of men are neither wise nor good, and the virtue, like the other resources of a country, can only be drawn to a point by strong circumstances, ably managed, or strong governments, ably administered. New governments have not the aid of habit and hereditary respect, and being generally the result of preceding tumult and confusion, do not immediately acquire stability or strength. Besides, in times of commotion, some men will gain confidence and importance who merit neither; and who, like political

mountebanks, are less solicitous about the health of the credulous crowd, than about making the most of their nostrums and prescriptions.

"What I most fear is, that the better kind of people (by which I mean the people who are orderly and industrious, who are content with their situations, and not uneasy in their circumstances) will be led by the insecurity of property, the loss of confidence in their rulers, and the want of public faith and rectitude, to consider the charms of liberty as imaginary and delusive. A state of uncertainty and fluctuation must disgust and alarm such men, and prepare their minds for almost any change that may promise them quiet and security."

To this interesting letter, General Washington made the following reply: "Your sentiments that our affairs are drawing rapidly to a crisis, accord with my own. What the event will be is also beyond the reach of my foresight. We have errors to correct; we have probably had too good an opinion of human nature in forming our confederation. Experience has taught us that men will not adopt and carry into execution measures the best calculated for their own good, without the intervention of coercive power. I do not conceive we can exist long as a nation, without lodging somewhere a power which will pervade the whole union in as energetic a manner, as the authority of the state governments extends over the several states. To be fearful of investing congress, constituted as that body is, with ample authorities for national purposes, appears to me the very climax of popular absurdity and madness. Could congress exert them for the detriment of the people, without injuring themselves in an equal or greater proportion? Are not their interests inseparably connected with those of their constituents? By the rotation of appointment, must they not mingle frequently with the mass of citizens? Is it not rather to be apprehended, if they were possessed of the powers before described, that the individual members would be induced to use them, on many occasions, very timidly and inefficaciously, for fear of losing their popularity and future election? We must take human nature as we find it: perfection falls not to the share of mortals. Many are of opinion that congress have too frequently made use of the suppliant humble tone of requisition in applications to the states, when they had a right to assert their imperial dignity, and command obedience. Be that as it may, requisitions are a perfect nullity, where thirteen sovereign, independent, disunited states, are in the habit of discussing, and refusing or complying with them at their option. Requisitions are actually little better than a jest

and a bye-word throughout the land. If you tell the legislatures they have violated the treaty of peace, and invaded the prerogatives of the confederacy, they will laugh in your face. What then is to be done? Things can not go on in the same train for ever. It is much to be feared, as you observe, that the better kind of people, being disgusted with these circumstances, will have their minds prepared for any revolution whatever. We are apt to run from one extreme into another. To anticipate and prevent disastrous contingencies, would be the part of wisdom and patriotism.

"What astonishing changes a few years are capable of producing! I am told that even respectable characters speak of a monarchical form of government without horror. From thinking, proceeds speaking, thence to acting is often but a single step. But how irrevocable and tremendous! what a triumph for our enemies to verify their predictions!—what a triumph for the advocates of despotism to find that we are incapable of governing ourselves, and that systems founded on the basis of equal liberty are merely ideal and fallacious! Would to God that wise measures may be taken in time to avert the consequences we have but too much reason to apprehend.

"Retired as I am from the world, I frankly acknowledge I can not feel myself an unconcerned spectator. Yet having happily assisted in bringing the ship into port, and having been fairly discharged, it is not my business to embark again on a sea of troubles.

"Nor could it be expected that my sentiments and opinions would have much weight on the minds of my countrymen.—They have been neglected, though given as a last legacy in the most solemn manner.—I had then perhaps some claims to public attention.—I consider myself as having none at present."

The convention at Annapolis.

The convention at Annapolis was attended by commissioners from only six states.[\[32\]](#) These, after appointing Mr. Dickinson their chairman, proceeded to discuss the objects for which they had convened. Perceiving that more ample powers would be required to effect the beneficial purposes which they contemplated, and hoping to procure a representation from a greater number of states, the convention determined to rise without coming to any specific resolutions on the particular subject which had been referred to them. Previous to their adjournment, however, they agreed on a report to be made to their respective states, in which they represented the necessity of

extending the revision of the federal system to all its defects, and recommended that deputies for that purpose be appointed by the several legislatures, to meet in convention in the city of Philadelphia, on the second day of the ensuing May.

The reasons for preferring a convention to a discussion of this subject in congress were stated to be, "that in the latter body, it might be too much interrupted by the ordinary business before them, and would, besides, be deprived of the valuable counsels of sundry individuals who were disqualified by the constitution or laws of particular states, or by peculiar circumstances, from a seat in that assembly."

A copy of this report was transmitted to congress in a letter from the chairman, stating the inefficacy of the federal government, and the necessity of devising such further provisions as would render it adequate to the exigencies of the union.

Virginia appoints deputies to meet those of other states at Philadelphia for the purpose of revising the federal system.

On receiving this report, the legislature of Virginia passed an act for the appointment of deputies to meet such as might be appointed by other states; to assemble in convention at Philadelphia, at the time, and for the purposes, specified in the recommendation from the convention which had met at Annapolis.

In communicating this act to General Washington, its principal advocate[\[33\]](#) thus intimated the intention of aiding it by the influence and character of the chief of the revolution. "It has been thought adviseable to give the subject a very solemn dress, and all the weight which could be derived from a single state. This idea will also be pursued in the selection of characters to represent Virginia in the federal convention. You will infer our earnestness on this point, from the liberty which will be used of placing your name at the head of them. How far this liberty may correspond with the ideas by which you ought to be governed, will be best decided where it must ultimately be decided. In every event it will assist powerfully in marking the zeal of our legislature, and its opinion of the magnitude of the occasion."

"Although," said the general in reply, "I have bid a public adieu to the public walks of life, and had resolved never more to tread that theatre; yet, if upon an occasion so interesting to the well being of the confederacy, it

had been the wish of the assembly that I should be an associate in the business of revising the federal system, I should from a sense of the obligation I am under for repeated proofs of confidence in me, more than from any opinion I could entertain of my usefulness, have obeyed its call; but it is now out of my power to do this with any degree of consistency—the cause I will mention.

"I presume you heard, sir, that I was first appointed, and have since been rechosen president of the society of the Cincinnati; and you may have understood also, that the triennial general meeting of this body is to be held in Philadelphia the first Monday in May next. Some particular reasons combining with the peculiar situation of my private concerns, the necessity of paying attention to them, a wish for retirement and relaxation from public cares, and rheumatic pains which I begin to feel very sensibly, induced me, on the 31st ultimo, to address a circular letter to each state society, informing them of my intention not to be at the next meeting, and of my desire not to be rechosen president. The vice-president is also informed of this, that the business of the society may not be impeded by my absence. Under these circumstances, it will readily be perceived that I could not appear at the same time and place on any other occasion, without giving offence to a very respectable and deserving part of the community—the late officers of the American army."

Washington chosen one of them.

Notwithstanding this letter, the name of General Washington was not withdrawn, and he was unanimously chosen a member of the convention. On receiving private information of this appointment, he addressed a second letter to his confidential friend, in which he detailed more at large, the motives which induced him to decline a service, the importance of which he felt sensibly, and which he would willingly have undertaken but for the peculiar circumstances which were stated.

His name, however, was continued in the appointment. The gloomy aspect of affairs in the north rendered this the more necessary, and it was thus explained by his correspondent. "I have considered well the circumstances which it (your letter) confidentially discloses, as well as those contained in your preceding favour. The difficulties which they oppose to an acceptance of the appointment in which you are included, can as little be denied, as they can fail to be regretted. But I still am inclined to

think, that the posture of our affairs, if it should continue, would prevent any criticism on the situation which the contemporary meetings would place you in; and wish that at least a door could be kept open for your acceptance hereafter, in case the gathering clouds should become so dark and menacing as to supersede every consideration but that of our national existence or safety. A suspense of your ultimate determination would be nowise inconvenient in a public view, as the executive are authorized to fill vacancies, and can fill them at any time; and in any event, three out of seven deputies are authorized to represent the state. How far it may be admissible in another view, will depend perhaps in some measure on the chance of your finally undertaking the service, but principally on the correspondence which is now passing on the subject, between yourself and the governor."

The governor of Virginia,[\[34\]](#) who was himself also elected to the convention, transmitted to General Washington the act, and the vote of the assembly in the following letter. "By the enclosed act you will readily discover that the assembly are alarmed at the storms which threaten the United States. What our enemies have foretold seems to be hastening to its accomplishment, and can not be frustrated but by an instantaneous, zealous, and steady union among the friends of the federal government. To you I need not press our present dangers. The inefficiency of congress you have often felt in your official character; the increasing languor of our associated republics you hourly see; and a dissolution would be, I know, to you, a source of the deepest mortification.

"I freely then entreat you to accept the unanimous appointment of the general assembly to the convention at Philadelphia. For the gloomy prospect still admits one ray of hope, that those who began, carried on, and consummated the revolution, can yet rescue America from the impending ruin."

"Sensible as I am," said the general in reply, "of the honour conferred on me by the general assembly of this commonwealth, in appointing me one of the deputies to a convention proposed to be held in the city of Philadelphia in May next, for the purpose of revising the federal constitution; and desirous as I am on all occasions of testifying a ready obedience to the calls of my country—yet, sir, there exist at this moment, circumstances which I am persuaded will render this fresh instance of confidence incompatible

with other measures which I had previously adopted, and from which seeing little prospect of disengaging myself, it would be disingenuous not to express a wish that some other character, on whom greater reliance can be had, may be substituted in my place, the probability of my non-attendance being too great to continue my appointment.

"As no mind can be more deeply impressed than mine is with the critical situation of our affairs, resulting in a great measure from the want of efficient powers in the federal head, and due respect to its ordinances, so consequently those who do engage in the important business of removing these defects, will carry with them every good wish of mine, which the best dispositions towards their attainment can bestow."

The executive, unwilling to relinquish the advantages which the legislature had expected to derive from exhibiting the name of Washington at the head of the Virginia delegation, refused to consider him as having declined the appointment. That his judgment had not completely decided on the course which duty and patriotism required him to pursue; that in a crisis on which probably depended the union of the states, and the happiness of America, he refused himself reluctantly to the anxious wishes of his countrymen; were too apparent not to leave a hope that events might yet determine him to yield to their desires. He was therefore emphatically requested not to decide absolutely, and was informed that as no inconvenience would result from not appointing a successor, the option of complying with the earnest solicitations of those who considered the effort about to be made as the last hope of the union, would, as long as possible, be permitted to remain with him. In the mean time, those who persuaded themselves that much good might result from the proposed convention, continued to urge him with delicacy but with earnestness, not to withhold on this great and particular occasion, those inestimable services which the confidence so justly reposed by the public in his talents and character, enabled him alone to render.

Placed in these circumstances, General Washington weighed deliberately in his own mind the arguments for and against accepting the appointment which was so seriously pressed upon him. That the proposed convention was, in any point of view in which it could be contemplated, an object of the first magnitude, appeared to him to be undeniable. It was apparent that the actual government could not exist much longer without additional

means. It was therefore necessary to meet the solemn question whether it ought to be supported or annihilated. Those who embraced the former part of the alternative must consider the convention as the only remaining experiment from which the federal government could derive powers sufficiently ample for its preservation. Those who embraced the latter, who thought that on a full and dispassionate revision of the system, its continuance would be adjudged impracticable or unwise, could not hesitate to admit that their opinion would derive great additional weight from the sanction of so respectable a body as that which was about to assemble: and that in such an event, it was greatly desirable, and would afford some security against civil discord, to put the public in possession of a plan prepared and digested by such high authority. "I must candidly confess," he added in a letter to Colonel Humphries, "as we could not remain quiet more than three or four years in time of peace, under the constitutions of our own choosing, which were believed in many states to have been formed with deliberation and wisdom, I see little prospect either of our agreeing on any other, or that we should remain long satisfied under it, if we could. Yet I would wish any thing and every thing essayed to prevent the effusion of blood, and to avert the humiliating and contemptible figure we are about to make in the annals of mankind!"

Earnestly as General Washington wished success to the experiment about to be made, he could not surrender his objections to the step its friends urged him to take, without the most serious consideration. In addition to that which grew out of his connexion with the Cincinnati, and to the reluctance with which he could permit himself to be drawn, on any occasion, into a political station, there were others which could not be disregarded. A convention, not originating in a recommendation of congress, was deemed by many an illegitimate meeting; and as the New England states had neglected the invitation to appear by their representatives at Annapolis, there was reason to apprehend they might be equally inattentive to the request now made them to assemble at Philadelphia. To appear in a public character, for a purpose not generally deemed of the utmost importance, would not only be unpleasant to himself, but might diminish his capacity to be useful on occasions which subsequent events might produce. "If," said he in a private letter to a military friend, "this second attempt to convene the states for the purposes proposed by the report of the partial representation at Annapolis in September, should also

prove abortive, it may be considered as unequivocal evidence that the states are not likely to agree on any general measure which is to pervade the union, and of course, that there is an end of the federal government. The states which make this last dying essay to avoid this misfortune would be mortified at the issue, and their deputies would return home chagrined at their ill success and disappointment. This would be a disagreeable circumstance to any one of them, but more particularly to a person in my situation." His letters of consultation therefore, with a few confidential friends, also requested information respecting those points on which his own judgment might ultimately be formed. He was particularly desirous of knowing how the proposition made by Virginia was received in the other states, and what measures were taken to contravene, or to give it effect. He inquired too with the utmost solicitude how the members of the Cincinnati would receive his appearance in convention, after declining to be rechosen the president of that society.

The enlightened friends of the union and of republican government, generally regarded the convention as a measure which afforded the best chance for preserving liberty and internal peace. And those whose hopes predominated over their fears, were anxious to increase the probability of deriving from it every practicable good, by retaining on the list of its members, the most conspicuous name of which America could boast. But this opinion was not universal. Among those who felt the importance of the crisis, and who earnestly wished that a free government, competent to the preservation of the union, might be established, there were some who despaired of a favourable issue to the attempt, and who were therefore anxious to rescue their general from the increased mortification which would attend its failure, should he be personally engaged in it. They believed that all the states would not be represented in the convention. In a letter of the 20th of January, 1787, Colonel Humphries, who was himself under this impression, thus accounts for the omission of the federal men in the assembly of Connecticut, to press the appointment of deputies. "The reason," he said, "was a conviction that the persons who could be elected were some of the best anti-federal men in the state, who believed, or acted as if they believed, that the powers of congress were already too unlimited, and who would wish, apparently, to see the union dissolved. These demagogues," continued the letter, "really affect to persuade the people (to use their own phraseology) that they are only in danger of having their

liberties stolen away by an artful designing aristocracy. But should the convention be formed under the most favourable auspices, and should the members be unanimous in recommending, in the most forcible, the most glowing, and the most pathetic terms which language can afford, that it is indispensable to the salvation of the country, congress should be clothed with more ample powers, the states," he thought, "would not all comply with the recommendation. They have a mortal reluctance to divest themselves of the smallest attribute of independent separate sovereignties." After assigning many reasons against accepting the appointment, this gentleman added: "the result of the convention may not perhaps be so important as is expected, in which case your character would be materially affected. Other people can work up the present scene. I know your personal influence and character is justly considered the last stake which America has to play. Should you not reserve yourself for the united call of a continent entire?"

"If you should attend on this convention, and concur in recommending measures which should be generally adopted, but opposed in some parts of the union, it would doubtless be understood that you had in a degree pledged yourself for their execution. This would at once sweep you back inevitably into the tide of public affairs."

The same opinion was also intimated by another military friend[\[35\]](#) who had always possessed a large portion of the esteem and affection of his general. After stating the various and contradictory plans of government which were suggested by the schemers of the day, he added: "you will see by this sketch, my dear sir, how various are the opinions of men, and how difficult it will be to bring them to concur in any effective government. I am persuaded, if you were determined to attend the convention, and it should be generally known, it would induce the eastern states to send delegates to it. I should therefore be much obliged for information of your decision on this subject. At the same time, the principles of the purest and most respectful friendship induce me to say, that however strongly I wish for measures which would lead to national happiness and glory, yet I do not wish you to be concerned in any political operations, of which there are such various opinions. There may indeed arise some solemn occasion, in which you may conceive it to be your duty again to exert your utmost talents to promote the happiness of your country. But this occasion must be

of an unequivocal nature, in which the enlightened and virtuous citizens should generally concur."

While the confidential friends of General Washington were thus divided on the part which it behoved him to act, there was much reason to fear that a full representation of the states would not be obtained. Among those who were disinclined to a convention, were persons who were actuated by different, and even by opposite motives. There were probably some who believed that a higher toned[\[36\]](#) government than was compatible with the opinions generally prevailing among the friends of order, of real liberty, and of national character, was essential to the public safety. They believed that men would be conducted to that point only through the road of misery into which their follies would lead them, and that "times must be worse before they could be better." Many had sketched in their own minds a plan of government strongly resembling that which had been actually adopted, but despaired of seeing so rational a system accepted, or even recommended; "some gentlemen," said the correspondent last mentioned, "are apprehensive that a convention of the nature proposed to meet in May next, might devise some expedient to brace up the present defective confederation, so as just to serve to keep us together, while it would prevent those exertions for a national character which are essential to our happiness: that in this point of view it might be attended with the bad effect of assisting us to creep on in our present miserable condition, without a hope of a generous constitution, that should, at the same time, shield us from the effects of faction, and of despotism."[\[37\]](#) Many discountenanced the convention, because the mode of calling it was deemed irregular, and some objected to it, because it was not so constituted as to give authority to the plan which should be devised. But the great mass of opposition originated in a devotion to state sovereignty, and in hostility to any considerable augmentation of federal power.

The ultimate decision of the states on this interesting proposition seems to have been in no inconsiderable degree influenced by the commotions which about that time agitated all New England, and particularly Massachusetts.

Insurrection in Massachusetts.

Those causes of discontent which existed, after the restoration of peace, in every part of the union, were particularly operative in New England. The

great exertions which had been made by those states in the course of the war, had accumulated a mass of debt, the taxes for the payment of which were the more burdensome, because their fisheries had become unproductive. The restlessness produced by the uneasy situation of individuals, connected with lax notions concerning public and private faith, and erroneous opinions which confound liberty with an exemption from legal control, produced a state of things which alarmed all reflecting men, and demonstrated to many the indispensable necessity of clothing government with powers sufficiently ample for the protection of the rights of the peaceable and quiet, from the invasions of the licentious and turbulent part of the community.

This disorderly spirit was cherished by unlicensed conventions, which, after voting their own constitutionality, and assuming the name of the people, arrayed themselves against the legislature, and detailed at great length the grievances by which they alleged themselves to be oppressed. Its hostility was principally directed against the compensation promised to the officers of the army, against taxes, and against the administration of justice: and the circulation of a depreciated currency was required, as a relief from the pressure of public and private burdens which had become, it was alleged, too heavy to be borne. Against lawyers and courts, the strongest resentments were manifested; and to such a dangerous extent were these dispositions indulged, that, in many instances, tumultuous assemblages of people arrested the course of law, and restrained the judges from proceeding in the execution of their duty. The ordinary recourse to the power of the country was found an insufficient protection, and the appeals made to reason were attended with no beneficial effect. The forbearance of the government was attributed to timidity rather than to moderation, and the spirit of insurrection appeared to be organized into a regular system for the suppression of courts.

In the bosom of Washington, these tumults excited attention and alarm. "For God's sake tell me," said he in a letter to Colonel Humphries, "what is the cause of all these commotions? Do they proceed from licentiousness, British influence disseminated by the tories, or real grievances which admit of redress? if the latter, why was redress delayed until the public mind had become so much agitated? if the former, why are not the powers of government tried at once? It is as well to be without, as not to exercise

them. Commotions of this sort, like snow-balls, gather strength as they roll, if there is no opposition in the way to divide and crumble them."

"As to your question, my dear general," said Colonel Humphries in reply, "respecting the cause and origin of these commotions, I hardly find myself in condition to give a certain answer. If from all the information I have been able to obtain, I might be authorized to hazard an opinion, I should attribute them to all the three causes which you have suggested. In Massachusetts particularly, I believe there are a few real grievances; and also some wicked agents or emissaries who have been busy in magnifying the positive evils, and fomenting causeless jealousies and disturbances. But it rather appears to me, that there is a licentious spirit prevailing among many of the people; a levelling principle; a desire of change; and a wish to annihilate all debts, public and private." "It is indeed a fact," said General Knox, after returning from a visit to the eastern country, "that high taxes are the ostensible cause of the commotion, but that they are the real cause, is as far remote from truth, as light is from darkness. The people who are the insurgents have never paid any, or but very little taxes. But they see the weakness of government. They feel at once their own poverty compared with the opulent, and their own force; and they are determined to make use of the latter, in order to remedy the former. Their creed is, that the property of the United States has been protected from confiscation by the joint exertions of all, and therefore ought to be common to all. And he that attempts opposition to this creed is an enemy to equity and justice, and ought to be swept from the face of the earth."

The force of this party throughout New England was computed by General Knox at twelve or fifteen thousand men. "They were chiefly," he said, "of the young and active part of the community, who were more easily collected than kept together. Desperate and unprincipled, they would probably commit overt acts of treason which would compel them, for their own safety, to embody and submit to discipline. Thus would there be a formidable rebellion against reason, the principle of all government, and the very name of liberty. This dreadful situation," he added, "has alarmed every man of principle and property in New England. They start as from a dream, and ask—what has been the cause of our delusion? What is to afford us security against the violence of lawless men? Our government must be braced, changed, or altered, to secure our lives and our property. We imagined that the mildness of the government, and the virtue of the people

were so correspondent, that we were not as other nations, requiring brutal force to support the laws. But we find that we are men, actual men, possessing all the turbulent passions belonging to that animal; and that we must have a government proper and adequate for him. Men of reflection and principle are determined to endeavour to establish a government which shall have the power to protect them in their lawful pursuits, and which will be efficient in cases of internal commotions, or foreign invasions. They mean that liberty shall be the basis, a liberty resulting from the equal and firm administration of the laws."

Deeply affected by these commotions, General Washington continued his anxious inquiries respecting the course they threatened to take. "I feel, my dear General Knox," said he, in answer to the letter from which the foregoing extracts are taken, "infinitely more than I can express to you, for the disorders which have arisen in these states. Good God! who besides a tory could have foreseen, or a Briton have predicted them? I do assure you that even at this moment, when I reflect upon the present aspect of our affairs, it seems to me like the visions of a dream. My mind can scarcely realize it as a thing in actual existence:—so strange, so wonderful does it appear to me. In this, as in most other matters, we are too slow. When this spirit first dawned, it might probably have been easily checked; but it is scarcely within the reach of human ken, at this moment, to say when, where, or how it will terminate. There are combustibles in every state, to which a spark might set fire.

"In bewailing, which I have often done with the keenest sorrow, the death of our much lamented friend General Greene,[\[38\]](#) I have accompanied my regrets of late with a query, whether he would not have preferred such an exit to the scenes which it is more than probable, many of his compatriots may live to bemoan."

Ostensibly, on account of the danger which threatened the frontiers, but, really, with a view to the situation of Massachusetts, congress had agreed to augment the military establishment to a legionary corps of two thousand and forty men, and had detached the secretary of war, General Knox, to that state, with directions to concert measures with its government for the safety of the arsenal at Springfield. So inauspicious was the aspect of affairs, as to inspire serious fears that the torch of civil discord, about to be lighted up in Massachusetts, would communicate its flame to all New England, and

perhaps to the union. Colonel Lee, a member of congress, drew the following picture of the condition of the eastern country at that time. "General Knox has just returned, and his report, grounded on his own knowledge, is replete with melancholy information. A majority of the people of Massachusetts are in opposition to the government. Some of the leaders avow the subversion of it to be their object, together with the abolition of debts, the division of property, and a reunion with Great Britain. In all the eastern states, same temper prevails more or less, and will certainly break forth whenever the opportune moment may arrive. The malcontents are in close connexion with Vermont, and that district, it is believed, is in negotiation with the government of Canada. In one word, my dear general, we are all in dire apprehension that a beginning of anarchy with all its calamities is made, and we have no means to stop the dreadful work. Knowing your unbounded influence, and believing that your appearance among the seditious might bring them back to peace and reconciliation, individuals suggest the propriety of an invitation to you from congress to pay us a visit. This is only a surmise, and I take the liberty to mention it to you, that, should the conjuncture of affairs induce congress to make this request, you may have some previous time for reflection on it."

"The picture which you have exhibited," replied the general, "and the accounts which are published of the commotions and temper of numerous bodies in the eastern country, present a state of things equally to be lamented and deprecated. They exhibit a melancholy verification of what our transatlantic foes have predicted; and of another thing perhaps which is still more to be regretted, and is yet more unaccountable—that mankind when left to themselves are unfit for their own government. I am mortified beyond expression when I view the clouds which have spread over the brightest morn that ever dawned upon any country. In a word, I am lost in amazement when I behold what intrigue, the interested views of desperate characters, ignorance and jealousy of the minor part, are capable of effecting as a scourge on the major part of our fellow citizens of the union; for it is hardly to be supposed that the great body of the people, though they will not act, can be so short sighted or enveloped in darkness, as not to see rays of a distant sun through all this mist of intoxication and folly."

"You talk, my good sir, of employing influence to appease the present tumults in Massachusetts. I know not where that influence is to be found; nor if attainable, that it would be a proper remedy for these disorders."

Influence is not *government*. Let us have a *government*, by which our lives, liberties, and properties will be secured; or let us know the worst at once. Under these impressions, my humble opinion is, that there is a call for decision. Know precisely what the insurgents aim at. If they have *real* grievances, redress them if possible; or acknowledge the justice of them, and your inability to do it in the present moment. If they have not, employ the force of the government against them at once. If this is inadequate, *all* will be convinced that the superstructure is bad, or wants support. To be more exposed in the eyes of the world, and more contemptible than we already are, is hardly possible. To delay one or the other of these expedients, is to exasperate on the one hand, or to give confidence on the other, and will add to their numbers; for like snow-balls, such bodies increase by every movement, unless there is something in the way to obstruct and crumble them before their weight is too great and irresistible.

"These are my sentiments. Precedents are dangerous things. Let the reins of government then be braced, and held with a steady hand; and every violation of the constitution be reprehended. If defective, let it be amended, but not suffered to be trampled upon while it has an existence."

In a letter written about the same period, Colonel Humphries, after stating his apprehensions that the insurgents would seize the continental magazine at Springfield, proceeded to add: "a general failure to comply with the requisitions of congress for money, seems to prognosticate that we are rapidly advancing to a crisis. The wheels of the great political machine can scarcely continue to move much longer, under their present embarrassment. Congress, I am told, are seriously alarmed, and hardly know which way to turn, or what to expect. Indeed, my dear general, nothing but a good Providence can extricate us from our present difficulties, and prevent some terrible conclusion.

"In case of civil discord I have already told you it was seriously my opinion that you could not remain neuter; and that you would be obliged in self defence, to take part on one side or the other, or withdraw from the continent. Your friends are of the same opinion; and I believe you are convinced that it is impossible to have more disinterested or zealous friends, than those who have been about your person."

"It is," said the general in reply, "with the deepest and most heartfelt concern, I perceive by some late paragraphs extracted from the Boston

papers, that the insurgents of Massachusetts, far from being satisfied with the redress offered by their general court, are still acting in open violation of law and government, and have obliged the chief magistrate, in a decided tone, to call upon the militia of the state to support the constitution. What, gracious God, is man! that there should be such inconsistency and perfidiousness in his conduct. It is but the other day that we were shedding our blood to obtain the constitutions under which we now live—constitutions of our own choice and making—and now, we are unsheathing the sword to overturn them. The thing is so unaccountable, that I hardly know how to realize it; or to persuade myself that I am not under the illusion of a dream.

"My mind, previous to the receipt of your letter of the first ultimo, had often been agitated by a thought similar to the one you expressed respecting an old friend of yours: but heaven forbid that a crisis should come when he shall be driven to the necessity of making a choice of either of the alternatives there mentioned."

Finding that the lenient measures which had been taken by the legislature to reclaim the insurgents, only enlarged their demands; and that they were proceeding systematically to organize a military force for the subversion of the constitution; Governor Bowdoin determined, with the advice of council, on a vigorous exertion of all the powers he possessed, for the protection and defence of the commonwealth. Upwards of four thousand militia were ordered into service, and were placed under the command of the veteran General Lincoln. "His military reputation," says Mr. Minot, "and mildness of temper, rendered him doubly capacitated for so delicate and important a trust." But the public treasury did not afford the means of keeping this force in the field a single week; and, the legislature not being in session, the government was incapable of putting the troops in motion. This difficulty was removed by individual patriotism. From the commencement of the commotions, the citizens of Boston had manifested, unequivocally, their fidelity to the constitution. On this occasion, a number of gentlemen, preceded by the governor, subscribed, in a few hours, a sufficient sum to carry on the proposed expedition.

In the depth of winter, the troops from the eastern part of the state assembled near Boston, and marched towards the scene of action. Those from the western counties met in arms under General Shepard, and took

possession of the arsenal at Springfield. Before the arrival of Lincoln, a party of the insurgents attempted to dislodge Shepard, but were repulsed with some loss. Not being pursued by that officer, who could not venture to weaken his post by detachments, they continued embodied, but did not venture again to undertake offensive operations.

Urging his march with the utmost celerity, Lincoln soon came up; and, pressing the insurgent army, endeavoured, by a succession of rapid movements, in which the ardour of his troops triumphed over the severity of the season, to disperse, or to bring it to action. Their generals retreated from post to post with a rapidity which for some time eluded his designs; and, rejecting every proposition to lay down their arms, used all their address to produce a suspension of hostilities until an accommodation might be negotiated with the legislature. "Applications were also made," says General Lincoln, "by committees and select men of the several towns in the counties of Worcester and Hampshire, praying that the effusion of blood might be avoided, while the real design of these applications was supposed to be, to stay our operations until a new court should be elected. They had no doubt, if they could keep up their influence until another choice of the legislature and of the executive, that matters might be moulded in general court to their wishes. To avoid this, was the duty of government." In answer to these applications, Lincoln exhorted those towns who sincerely wished to put an end to the rebellion without the effusion of blood, "to recall their men now in arms, and to aid in apprehending all abettors of those who should persist in their treason, and all who should yield them any comfort or supplies."

The army of government continued to brave the rigours of the climate, and to press the insurgents without intermission. At length, with the loss of a few killed, and several prisoners, the rebels were dispersed, their leaders driven out of the state, and this formidable and wicked rebellion was quelled.

The same love of country which had supported the officers and soldiers of the late army through a perilous war, still glowed in their bosoms; and the patriot veterans of the revolution, uninfected by the wide spreading contagion of the times, arranged themselves almost universally under the banners of the constitution and of the laws. This circumstance lessened the prejudices which had been excited against them as creditors of the public,

and diminished the odium which, in the eastern states, especially, had been directed against the order of the Cincinnati. But the most important effect of this unprovoked rebellion was, a deep conviction of the necessity of enlarging the powers of the general government; and the consequent direction of the public mind towards the convention which was to assemble at Philadelphia.

In producing this effect, a resolution of congress had also considerable influence. New York had given her final *veto* to the impost system, and in doing so, had virtually decreed the dissolution of the existing government. The confederation was apparently expiring from mere debility. The last hope of its friends having been destroyed, the vital necessity of some measure which might prevent the separation of the integral parts of which the American empire was composed, became apparent even to those who had been unwilling to perceive it; and congress was restrained from giving its sanction to the proposed convention, only by an apprehension that their taking an interest in the measure would impede rather than promote it. From this embarrassment, the members of that body were relieved by the legislature of New York. A vote of that state, which passed in the senate by a majority of only one voice, instructed its delegation to move in congress, a resolution, recommending to the several states, to appoint deputies to meet in convention, for the purpose of revising and proposing amendments to the federal constitution. On the 21st of February, 1787, the day succeeding the instructions given by New York, the subject, which had been for some time under consideration, was finally acted upon: and it was declared, "in the opinion of congress, to be expedient that, on the second Monday in May next, a convention of delegates, who shall have been appointed by the several states, be held at Philadelphia, for the sole and express purpose of revising the articles of confederation, and reporting to congress and the several legislatures, such alterations and provisions therein, as shall, when agreed to in congress, and confirmed by the states, render the federal constitution adequate to the exigencies of government, and the preservation of the union."

This recommendation removed all objections to the regularity of the convention; and co-operated with the impressions made by the licentious and turbulent spirit which had lately endangered the peace and liberty of New England, to incline those states to favour the measure. By giving the proposed meeting a constitutional sanction, and by postponing it to a day

subsequent to that on which the Cincinnati were to assemble, it also removed one impediment, and diminished another, to the attendance of General Washington as a member. He persuaded himself that by repairing to Philadelphia previous to the second Monday in May, in order to attend the general meeting of the Cincinnati, he should efface any impressions unfavourable to the attachment he felt to his military friends, which might otherwise be excited in their bosoms by his appearing in a public character, after declining the presidency of their society. The increasing probability that the convention would be attended by a full representation of the states, and would propose a scheme of government which, if accepted, might conduce to the public happiness, and would not be unworthy of his character, had also its influence on his mind. An opinion too began to prevail, that the government must be invigorated by agreement or by force, and that a part of the opposition to the convention originated in a desire to establish a system of greater energy than could spring from consent. The idea that his refusing his aid in the present crisis might be attributed to a dereliction of republican principles, furnished additional motives for yielding to the wishes of his fellow citizens. On the 28th of March, he addressed a letter to the governor of Virginia, in which, after stating the reasons which had induced him to decline attending the convention, the influence of which he still felt, he added—"However, as my friends, with a degree of solicitude which is unusual, seem to wish for my attendance on this occasion, I have come to a resolution to go if my health will permit, provided from the lapse of time between your excellency's letter and this reply, the executive may not (the reverse of which would be highly pleasing to me) have turned their thoughts to some other character."

After communicating this determination to the executive of Virginia, he received a letter from the secretary of war, one of the small number of his friends who had endeavoured to dissuade him from the resolution he had ultimately taken, in which that officer avowed an entire change of opinion on this subject. "It is," said he, "the general wish that you should attend. It is conceived to be highly important to the success of the propositions which may be made by the convention.

"The mass of the people feel the inconvenience of the present government, and ardently wish for such alterations as would remedy them. These must be effected by reason and by agreement, or by force. The convention appears to be the only mean by which to effect them peaceably.

If it should not be attended by a proper weight of wisdom and character to carry into execution its propositions, we are to look to events, and to force, for a remedy. Were you not then to attend the convention, slander and malice might suggest that force would be the most agreeable mode of reform to you. When civil commotion rages, no purity of character, no services, however exalted, can afford a secure shield from the shafts of calumny.

"On the other hand, the unbounded confidence the people have in your tried patriotism and wisdom, would exceedingly facilitate the adoption of any important alterations that might be proposed by a convention of which you were a member; and (as I before hinted) the president."

Convention at Philadelphia.

At the time and place appointed, the representatives of twelve states convened. In Rhode Island alone a spirit sufficiently hostile to every species of reform was found, to prevent the election of deputies on an occasion so generally deemed momentous. Having unanimously chosen General Washington for their president, the convention proceeded, with closed doors, to discuss the interesting and extensive subject submitted to their consideration.

On the great principles which should constitute the basis of their system, not much contrariety of opinion is understood to have prevailed. But on the various and intricate modifications of those principles, an equal degree of harmony was not to be expected. More than once, there was reason to fear that the rich harvest of national felicity, which had been anticipated from the ample stock of worth collected in convention, would all be blasted by the rising of that body without effecting the object for which it was formed. At length the high importance attached to union triumphed over local interests; and, on the 17th of September, that constitution which has been alike the theme of panegyric and invective, was presented to the American public.

The instrument with its accompanying resolutions was by the unanimous order of the convention, transmitted to congress in a letter subscribed by the president, in which it was said to be, "the result of a spirit of amity, and of that mutual deference and concession, which the peculiarity of their political situation rendered indispensable.

A form of government for the United States is submitted to the respective states, which is ratified by eleven of them.

"That it will meet the full and entire approbation of every state," continued the letter, "is not, perhaps, to be expected; but each will doubtless consider, that had her interests been alone consulted, the consequences might have been particularly disagreeable or injurious to others. That it is liable to as few exceptions as could reasonably have been expected, we hope and believe; that it may promote the lasting welfare of that country so dear to us all, and secure her freedom and happiness, is our most ardent wish."

Congress resolved unanimously, that the report with the letter accompanying it be transmitted to the several legislatures, in order to be submitted to a convention of delegates chosen in each state by the people thereof.

Neither the intrinsic merits of the constitution nor the imposing weight of character by which it was supported, gave assurance to its friends that it would be ultimately adopted. A comparison of the views and interests by which a powerful party was actuated, with particular provisions in the constitution which were especially designed to counteract those views and interests, prepared them to expect a mass of zealous and active opposition, against which the powers of reason would be in vain directed, because the real motives in which it originated would not be avowed. There were also many individuals, possessing great influence and respectable talents, who, from judgment, or from particular causes, seemed desirous of retaining the sovereignty of the states unimpaired, and of reducing the union to an alliance between independent nations. To these descriptions of persons, joined by those who supposed that an opposition of interests existed between different parts of the continent, was added a numerous class of honest men, many of whom possessed no inconsiderable share of intelligence, who could identify themselves perfectly with the state government, but who considered the government of the United States as in some respects foreign. The representation of their particular state not composing a majority of the national legislature, they could not consider that body as safely representing the people, and were disposed to measure out power to it with the same sparing hand with which they would confer it on persons not chosen by themselves, not accountable to them for its

exercise, nor having any common interest with them. That power might be abused, was, to persons of this opinion, a conclusive argument against its being bestowed; and they seemed firmly persuaded that the cradle of the constitution would be the grave of republican liberty. The friends and the enemies of that instrument were stimulated to exertion by motives equally powerful; and, during the interval between its publication and adoption, every faculty of the mind was strained to secure its reception or rejection. The press teemed with the productions of temperate reason, of genius, and of passion; and it was apparent that each party believed power, sovereignty, liberty, peace, and security;—things most dear to the human heart;—to be staked on the question depending before the public. From that oblivion which is the common destiny of fugitive pieces, treating on subjects which agitate only for the moment, was rescued, by its peculiar merit, a series of essays which first appeared in the papers of New York. To expose the real circumstances of America, and the dangers which hung over the republic; to detect the numerous misrepresentations of the constitution; to refute the arguments of its opponents; and to confirm, and increase, its friends, by a full and able development of its principles; three gentlemen,[\[39\]](#) distinguished for their political experience, their talents, and their love of union, gave to the public a series of numbers which, collected in two volumes under the title of the *FEDERALIST*, will be read and admired when the controversy in which that valuable treatise on government originated, shall be no longer remembered.

To decide the interesting question which agitated a continent, the best talents of the several states were assembled in their respective conventions. So balanced were parties in some of them, that, even after the subject had been discussed for a considerable time, the fate of the constitution could scarcely be conjectured; and so small, in many instances, was the majority in its favour, as to afford strong ground for the opinion that, had the influence of character been removed, the intrinsic merits of the instrument would not have secured its adoption. Indeed, it is scarcely to be doubted that, in some of the adopting states, a majority of the people were in the opposition. In all of them, the numerous amendments which were proposed, demonstrate the reluctance with which the new government was accepted; and that a dread of dismemberment, not an approbation of the particular system under consideration, had induced an acquiescence in it. The interesting nature of the question, the equality of the parties, the animation

produced inevitably by ardent debate, had a necessary tendency to embitter the dispositions of the vanquished, and to fix more deeply, in many bosoms, their prejudices against a plan of government, in opposition to which all their passions were enlisted.

1788

At length, the conventions of eleven states[\[40\]](#) assented to and ratified the constitution; and the preparatory measures were taken for bringing it into operation.

From the moment the public was possessed of this new arrangement of their political system, the attention of all was directed to General Washington as the first President of the United States. He alone was believed to fill so pre-eminent a station in the public opinion, that he might be placed at the head of the nation without exciting envy; and he alone possessed the confidence of the people in so unlimited a degree that under his auspices, the friends of the government might hope to see it introduced with a degree of firmness which would enable it to resist the open assaults, and secret plots of its numerous adversaries. By all who knew him, fears were entertained that his preference for private life would prevail over the wishes of the public; and, soon after the adoption of the constitution was ascertained, his correspondents began to press him on a point which was believed essential to the completion of the great work on which the grandeur and happiness of America was supposed to depend. "We can not," said Mr. Johnson, a gentleman of great political eminence in Maryland, "do without you, and I, and thousands more can explain to any body but yourself, why we can not do without you." "I have ever thought," said Mr. Gouverneur Morris, a gentleman who had been among the most valuable members of congress through great part of the war, and who had performed a most splendid part in the general convention, "and have ever said that you must be president; no other man can fill that office. No other man can draw forth the abilities of our country into the various departments of civil life. You alone can awe the insolence of opposing factions, and the greater insolence of assuming adherents. I say nothing of foreign powers, nor of their ministers. With these last you will have some plague. As to your feelings on this occasion, they are, I know, both deep and affecting; you embark property most precious on a most tempestuous ocean: for, as you possess the highest reputation, so you expose it to the perilous chance of

popular opinion. On the other hand, you will, I firmly expect, enjoy the inexpressible felicity of contributing to the happiness of all your countrymen. You will become the father of more than three millions of children; and while your bosom glows with parental tenderness, in theirs, or at least in a majority of them, you will excite the duteous sentiments of filial affection. This, I repeat it, is what I firmly expect; and my views are not directed by that enthusiasm which your public character has impressed on the public mind. Enthusiasm is generally short sighted and too often blind. I form my conclusions from those talents and virtues which the world *believes*, and which your friends *know* you possess."

To those who attribute human action in every case to the motives which most usually guide the human mind, it will appear scarcely possible that the supreme magistracy could possess no charms for a man long accustomed to command others; and that ambition had no share in tempting the hero of the American revolution to tread once more the paths of public life. Yet, if his communications to friends to whom he unbosomed the inmost sentiments of his soul be inspected, it will be difficult to resist the conviction that the struggle produced by the occasion was unaffected, and that, in accepting the presidency of the United States, no private passion was gratified; but a decided preference for private life yielded to a sense of duty, and a deep conviction of his obligations to his country.

As this is an important æra in the life of Washington, and the motives by which he was actuated will assist in developing his real character, the American reader, at least, will be gratified at seeing copious extracts from his correspondence on this interesting occasion.

In a letter detailing those arrangements which were making for the introduction of the new government, Colonel Lee proceeded thus to speak of the presidency of the United States. "The solemnity of the moment, and its application to yourself, have fixed my mind in contemplations of a public and a personal nature, and I feel an involuntary impulse which I can not resist, to communicate without reserve to you some of the reflections which the hour has produced. Solicitous for our common happiness as a people, and convinced as I continue to be that our peace and prosperity depend on the proper improvement of the present period, my anxiety is extreme that the new government may have an auspicious beginning. To

effect this, and to perpetuate a nation formed under your auspices, it is certain that again you will be called forth.

"The same principles of devotion to the good of mankind, which have invariably governed your conduct, will no doubt continue to rule your mind, however opposite their consequences may be to your repose and happiness. It may be wrong, but I can not suppress, in my wishes for national felicity, a due regard for your personal fame and content.

"If the same success should attend your efforts on this important occasion which has distinguished you hitherto, then, to be sure, you will have spent a life which Providence rarely if ever before gave to the lot of one man. It is my anxious hope, it is my belief, that this will be the case; but all things are uncertain, and perhaps nothing more so than political events." He then proceeded to state his apprehensions, that the government might sink under the active hostility of its foes, and in particular, the fears which he entertained from the circular letter of New York, around which the minorities in the several states might be expected to rally.

To counteract its baneful influence with the legislature of Virginia, he expressed his earnest wish, that Mr. Madison might be prevailed on to take a seat in that assembly, and then added,

"It would certainly be unpleasant to you, and obnoxious to all who feel for your just fame, to see you at the head of a trembling system. It is a sacrifice on your part unjustifiable in any point of view. But on the other hand no alternative seems to be presented.

"Without you, the government can have but little chance of success; and the people, of that happiness which its prosperity must yield."

1789

Letters from Gen. Washington respecting the chief magistracy of the new government.

In reply to this letter General Washington said, "Your observations on the solemnity of the crisis, and its application to myself, bring before me subjects of the most momentous and interesting nature. In our endeavours to establish a new general government, the contest, nationally considered, seems not to have been so much for glory, as existence. It was for a long time doubtful whether we were to survive as an independent republic, or decline from our federal dignity into insignificant and wretched fragments of empire. The adoption of the constitution so extensively, and with so

liberal an acquiescence on the part of the minorities in general, promised the former; but lately, the circular letter of New York has manifested, in my apprehension, an unfavourable, if not an insidious tendency to a contrary policy. I still hope for the best; but before you mentioned it, I could not help fearing it would serve as a standard to which the disaffected might resort. It is now evidently the part of all honest men, who are friends to the new constitution, to endeavour to give it a chance to disclose its merits and defects, by carrying it fairly into effect, in the first instance.

"The principal topic of your letter, is to me a point of great delicacy indeed;—insomuch that I can scarcely, without some impropriety, touch upon it. In the first place, the event to which you allude may never happen, among other reasons, because, if the partiality of my fellow citizens conceive it to be a mean by which the sinews of the new government would be strengthened, it will of consequence be obnoxious to those who are in opposition to it, many of whom, unquestionably, will be placed among the electors.

"This consideration alone would supersede the expediency of announcing any definitive and irrevocable resolution. You are among the small number of those who know my invincible attachment to domestic life, and that my sincerest wish is to continue in the enjoyment of it solely, until my final hour. But the world would be neither so well instructed, nor so candidly disposed, as to believe me to be uninfluenced by sinister motives, in case any circumstance should render a deviation from the line of conduct I had prescribed for myself indispensable. Should the contingency you suggest take place, and (for argument sake alone, let me say) should my unfeigned reluctance to accept the office be overcome by a deference for the reasons and opinions of my friends; might I not, after the declarations I have made, (and heaven knows they were made in the sincerity of my heart,) in the judgment of the impartial world, and of posterity, be chargeable with levity and inconsistency, if not with rashness and ambition? Nay, farther, would there not even be some apparent foundation for the two former charges? Now, justice to myself, and tranquillity of conscience require that I should act a part, if not above imputation, at least capable of vindication. Nor will you conceive me to be too solicitous for reputation. Though I prize as I ought the good opinion of my fellow citizens, yet, if I know myself, I would not seek or retain popularity at the expense of one social duty, or moral virtue. While doing what my conscience informed me was right, as it

respected my God, my country, and myself, I could despise all the party clamour and unjust censure which must be expected from some, whose personal enmity might be occasioned by their hostility to the government. I am conscious, that I fear alone to give any real occasion for obloquy, and that I do not dread to meet with unmerited reproach. And certain I am, whensoever I shall be convinced the good of my country requires my reputation to be put in risque, regard for my own fame will not come in competition with an object of so much magnitude.

"If I declined the task, it would be upon quite another principle. Notwithstanding my advanced season of life, my increasing fondness for agricultural amusements, and my growing love of retirement, augment and confirm my decided predilection for the character of a private citizen, yet it will be no one of these motives, nor the hazard to which my former reputation might be exposed, or the terror of encountering new fatigues and troubles, that would deter me from an acceptance;—but a belief that some other person, who had less pretence and less inclination to be excused, could execute all the duties full as satisfactorily as myself. To say more would be indiscreet; as a disclosure of a refusal before hand might incur the application of the fable, in which the fox is represented as undervaluing the grapes he could not reach. You will perceive, my dear sir, by what is here observed (and which you will be pleased to consider in the light of a confidential communication), that my inclinations will dispose and decide me to remain as I am, unless a clear and insurmountable conviction should be impressed on my mind, that some very disagreeable consequences must in all human probability result from the indulgence of my wishes."

About the same time, Colonel Hamilton concluded a letter on miscellaneous subjects with the following observations. "I take it for granted, sir, you have concluded to comply with what will, no doubt, be the general call of your country in relation to the new government. You will permit me to say that it is indispensable you should lend yourself to its first operations. It is to little purpose to have introduced a system, if the weightiest influence is not given to its firm establishment in the outset."

"On the delicate subject," said General Washington in reply, "with which you conclude your letter, I can say nothing; because the event alluded to may never happen; and because in case it should occur, it would be a point of prudence to defer forming one's ultimate and irrevocable decision, so

long as new data might be afforded for one to act with the greater wisdom and propriety. I would not wish to conceal my prevailing sentiment from you. For you know me well enough, my good sir, to be persuaded that I am not guilty of affectation, when I tell you it is my great and sole desire to live and die in peace and retirement on my own farm. Were it even indispensable a different line of conduct should be adopted, while you and some others who are acquainted with my heart would *acquit*, the world and posterity might probably *accuse* me of *inconsistency* and *ambition*. Still I hope, I shall always possess firmness and virtue enough to maintain (what I consider the most enviable of all titles) the character of *an honest man*."

This answer drew from Colonel Hamilton the following reply: "I should be deeply pained, my dear sir, if your scruples in regard to a certain station should be matured into a resolution to decline it; though I am neither surprised at their existence, nor can I but agree in opinion that the caution you observe in deferring the ultimate determination is prudent. I have, however, reflected maturely on the subject, and have come to a conclusion (in which I feel no hesitation) that every public and personal consideration will demand from you an acquiescence in what will *certainly* be the unanimous wish of your country.

"The absolute retreat which you meditated at the close of the late war was natural and proper. Had the government produced by the revolution gone on in a *tolerable* train, it would have been most adviseable to have persisted in that retreat. But I am clearly of opinion that the crisis which brought you again into public view left you no alternative but to comply; and I am equally clear in the opinion that you are by that act *pledged* to take a part in the execution of the government. I am not less convinced that the impression of the necessity of your filling the station in question is so universal, that you run no risk of any uncandid imputation by submitting to it. But even if this were not the case, a regard to your own reputation, as well as to the public good, calls upon you in the strongest manner to run that risk.

"It can not be considered as a compliment to say, that on your acceptance of the office of president, the success of the new government in its commencement may materially depend. Your agency and influence will be not less important in preserving it from the future attacks of its enemies, than they have been in recommending it in the first instance to the adoption

of the people. Independent of all considerations drawn from this source, the point of light in which you stand at home and abroad, will make an infinite difference in the respectability with which the government will begin its operations, in the alternative of your being or not being at the head of it. I forbear to mention considerations which might have a more personal application. What I have said will suffice for the inferences I mean to draw.

"First. In a matter so essential to the well being of society as the prosperity of a newly instituted government, a citizen of so much consequence as yourself to its success, has no option but to lend his services if called for. Permit me to say, it would be inglorious, in such a situation, not to hazard the glory, however great, which he might have previously acquired.

"Secondly. Your signature to the proposed system, pledges your judgment for its being such an one as upon the whole was worthy of the public approbation. If it should miscarry, (as men commonly decide from success or the want of it) the blame will in all probability be laid on the system itself. And the framers of it will have to encounter the disrepute of having brought about a revolution in government, without substituting any thing that was worthy of the effort; they pulled down one Utopia, it will be said, to build up another. This view of the subject, if I mistake not, my dear sir, will suggest to your mind greater hazard to that fame, which must be, and ought to be dear to you, in refusing your future aid to the system, than in affording it. I will only add, that in my estimate of the matter, that aid is indispensable.

"I have taken the liberty to express these sentiments, and to lay before you my view of the subject. I doubt not the considerations mentioned have fully occurred to you, and I trust, they will finally produce in your mind the same result which exists in mine. I flatter myself the frankness with which I have delivered myself, will not be displeasing to you. It has been prompted by motives which you would not disapprove."

In answer to this letter General Washington opened himself without reserve. "In acknowledging," said he, "the receipt of your candid and kind letter by the last post, little more is incumbent on me than to thank you sincerely for the frankness with which you communicated your sentiments, and to assure you that the same manly tone of intercourse will always be more than barely welcome,—indeed it will be highly acceptable to me.

"I am particularly glad, in the present instance, that you have dealt thus freely and like a friend. Although I could not help observing from several publications and letters that my name had been sometimes spoken of, and that it was possible the *contingency* which is the subject of your letter might happen, yet I thought it best to maintain a guarded silence, and to lack the counsel of my best friends (which I certainly hold in the highest estimation) rather than to hazard an imputation unfriendly to the delicacy of my feelings. For, situated as I am, I could hardly bring the question into the slightest discussion, or ask an opinion even in the most confidential manner, without betraying, in my judgment, some impropriety of conduct, or without feeling an apprehension that a premature display of anxiety, might be construed into a vain glorious desire of pushing myself into notice as a candidate. Now; if I am not grossly deceived in myself, I should unfeignedly rejoice, in case the electors, by giving their votes in favour of some other person, would save me from the dreadful dilemma of being forced to accept or refuse. If that may not be, I am in the next place, earnestly desirous of searching out the truth, and of knowing whether there does not exist a probability that the government would be just as happily and effectually carried into execution without my aid, as with it. I am *truly* solicitous to obtain all the previous information which the circumstances will afford, and to determine (when the determination can with propriety be no longer postponed) according to the principles of right reason, and the dictates of a clear conscience; without too great a reference to the unforeseen consequences which may affect my person or reputation. Until that period, I may fairly hold myself open to conviction, though I allow your sentiments to have weight in them; and I shall not pass by your arguments without giving them as dispassionate a consideration as I can possibly bestow upon them.

"In taking a survey of the subject, in whatever point of light I have been able to place it, I will not suppress the acknowledgment, my dear sir, that I have always felt a kind of gloom upon my mind, as often as I have been taught to expect I might, and perhaps must ere long be called to make a decision. You will, I am well assured, believe the assertion (though I have little expectation it would gain credit from those who are less acquainted with me) that if I should receive the appointment, and should be prevailed upon to accept it; the acceptance would be attended with more diffidence and reluctance, than ever I experienced before in my life. It would be,

however, with a fixed and sole determination of lending whatever assistance might be in my power to promote the public weal, in hopes that at a convenient and an early period, my services might be dispensed with; and that I might be permitted once more to retire—to pass an unclouded evening after the stormy day of life, in the bosom of domestic tranquillity."

This correspondence was thus closed by Colonel Hamilton. "I feel a conviction that you will finally see your acceptance to be indispensable. It is no compliment to say that no other man can sufficiently unite the public opinion, or can give the requisite weight to the office, in the commencement of the government. These considerations appear to me of themselves decisive. I am not sure that your refusal would not throw every thing into confusion. I am sure that it would have the worst effect imaginable.

"Indeed, as I hinted in a former letter, I think circumstances leave no option."

Although this correspondence does not appear to have absolutely decided General Washington on the part he should embrace, it could not have been without its influence on his judgment, nor have failed to dispose him to yield to the wish of his country. "I would willingly," said he to his estimable friend General Lincoln, who had also pressed the subject on him, "pass over in silence that part of your letter, in which you mention the persons who are candidates for the two first offices in the executive, if I did not fear the omission might seem to betray a want of confidence. Motives of delicacy have prevented me hitherto from conversing or writing on this subject, whenever I could avoid it with decency. I may, however, with great sincerity, and I believe without offending against modesty or propriety, say to *you*, that I most heartily wish the choice to which you allude might not fall upon me: and that if it should, I must reserve to myself the right of making up my final decision, at the last moment, when it can be brought into one view, and when the expediency or in expediency of a refusal can be more judiciously determined than at present. But be assured, my dear sir, if from any inducement I shall be persuaded ultimately to accept, it will not be (so far as I know my own heart) from any of a private or personal nature. Every personal consideration conspires, to rivet me (if I may use the expression) to retirement. At my time of life, and under my circumstances, nothing in this world can ever draw me from it, unless it be a *conviction* that the partiality of my countrymen had made my services absolutely

necessary, joined to a *fear* that my refusal might induce a belief that I preferred the conservation of my own reputation and private ease, to the good of my country. After all, if I should conceive myself in a manner constrained to accept, I call heaven to witness, that this very act would be the greatest sacrifice of my personal feelings and wishes, that ever I have been called upon to make. It would be to forego repose and domestic enjoyment for trouble, perhaps for public obloquy: for I should consider myself as entering upon an unexplored field, enveloped on every side with clouds and darkness.

"From this embarrassing situation I had naturally supposed that my declarations at the close of the war would have saved me; and that my sincere intentions, then publicly made known, would have effectually precluded me forever afterwards from being looked upon as a candidate for any office. This hope, as a last anchor of worldly happiness in old age, I had still carefully preserved; until the public papers and private letters from my correspondents in almost every quarter, taught me to apprehend that I might soon be obliged to answer the question, whether I would go again into public life or not?"

"I can say little or nothing new," said he in a letter to the Marquis de Lafayette, "in consequence of the repetition of your opinion on the expediency there will be, for my accepting the office to which you refer. Your sentiments indeed coincide much more nearly with those of my ether friends, than with my own feelings. In truth, my difficulties increase and magnify as I draw towards the period, when, according to the common belief, it will be necessary for me to give a definitive answer in one way or other. Should circumstances render it, in a manner, inevitably necessary to be in the affirmative, be assured, my dear sir, I shall assume the task with the most unfeigned reluctance, and with a real diffidence, for which I shall probably receive no credit from the world. If I know my own heart, nothing short of a conviction of duty will induce me again to take an active part in public affairs. And in that case, if I can form a plan for my own conduct, my endeavours shall be unremittingly exerted (even at the hazard of former fame or present popularity) to extricate my country from the embarrassments in which it is entangled through want of credit; and to establish a general system of policy, which, if pursued, will ensure permanent felicity to the commonwealth. I think I see a path, as clear and as direct as a ray of light, which leads to the attainment of that object. Nothing

but harmony, honesty, industry, and frugality, are necessary to make us a great and happy people. Happily, the present posture of affairs, and the prevailing disposition of my countrymen, promise to co-operate in establishing those four great and essential pillars of public felicity."



The Room in Which the First Constitutional Convention Met in Philadelphia

Delegates from twelve of the thirteen States (Rhode Island alone being unrepresented) assembled at Philadelphia, where the opening sessions of the first Constitutional Convention were held in this room in Independence Hall, May 14, 1787. George Washington presided during the four months taken to draft the Constitution of the United States. When it was completed on September 17th, it is said that many of the delegates seemed awe-struck and that Washington himself sat with his head bowed in deep meditation. As the Convention adjourned, Franklin, who was then over eighty-one years of age, arose and pointing to the President's quaint armchair on the back of which was emblazoned a half sun, brilliant with gilded rays, observed: "As I have been sitting here all these weeks, I have often wondered whether yonder sun is rising or setting, but now I know that it is a rising sun."

He is unanimously elected president.

After the elections had taken place, a general persuasion prevailed that the public will, respecting the chief magistrate of the union, had been too unequivocally manifested not to be certainly obeyed; and several applications were made to General Washington for those offices in the respective states, which would be in the gift of the president of the United States.

As marking the frame of mind with which he came into the government, the following extract is given from one of the many letters written to persons whose pretensions he was disposed to favour. "Should it become absolutely necessary for me to occupy the station in which your letter presupposes me, I have determined to go into it, perfectly free from all engagements of every nature whatsoever.—A conduct in conformity to this resolution, would enable me, in balancing the various pretensions of different candidates for appointments, to act with a sole reference to justice and the public good. This is, in substance, the answer that I have given to all applications (and they are not few) which have already been made. Among the places sought after in these applications, I must not conceal that the office to which you particularly allude is comprehended. This fact I tell you merely as matter of information. My general manner of thinking, as to the propriety of holding myself totally disengaged, will apologize for my not enlarging farther on the subject.

"Though I am sensible that the public suffrage which places a man in office, should prevent him from being swayed, in the execution of it, by his private inclinations, yet he may assuredly, without violating his duty, be indulged in the continuance of his former attachments."

Meeting of the first congress.

The impotence of the late government, added to the dilatoriness inseparable from its perplexed mode of proceeding on the public business, and to its continued session, had produced among the members of congress such an habitual disregard of punctuality in their attendance on that body, that, although the new government was to commence its operations on the 4th of March, 1789, a house of representatives was not formed until the first, nor a senate until the 6th day of April.

At length, the votes for the president and vice president of the United States were opened and counted in the senate. Neither the animosity of parties, nor the preponderance of the enemies of the new government in

some of the states, could deprive General Washington of a single vote. By the unanimous voice of an immense continent, he was called to the chief magistracy of the nation. The second number of votes was given to Mr. John Adams. George Washington and John Adams were therefore declared to be duly elected president and vice president of the United States, to serve for four years from the 4th of March, 1789.[\[41\]](#)

CHAPTER V.

The election of General Washington officially announced to him.... His departure for the seat of government.... Marks of affection shown him on his journey.... His inauguration and speech to Congress.... His system of intercourse with the world.... Letters on this and other subjects.... Answer of both houses of Congress to the speech.... Domestic and foreign relations of the United States.... Debates on the impost and tonnage bills.... On the power of removal from office.... On the policy of the secretary of the treasury reporting plans of revenue.... On the style of the President.... Amendments to the constitution.... Appointment of executive officers, and of the judges.... Adjournment of the first session of Congress.... The President visits New England.... His reception.... North Carolina accedes to the union.

1789

The election of General Washington officially announced to him.

The election of General Washington to the office of chief magistrate of the United States, was announced to him at Mount Vernon on the 14th of April, 1789. Accustomed to respect the wishes of his fellow citizens, he did not think himself at liberty to decline an appointment conferred upon him by the suffrage of an entire people. His acceptance of it, and his expressions of gratitude for this fresh proof of the esteem and confidence of his country, were connected with declarations of diffidence in himself. "I wish," he said, "that there may not be reason for regretting the choice,—for indeed, all I can promise, is to accomplish that which can be done by an honest zeal."

His departure for the seat of government.

As the public business required the immediate attendance of the president at the seat of government, he hastened his departure; and, on the second day after receiving notice of his appointment, took leave of Mount Vernon.

In an entry made by himself in his diary, the feelings inspired by an occasion so affecting to his mind are thus described, "About ten o'clock I bade adieu to Mount Vernon, to private life, and to domestic felicity; and

with a mind oppressed with more anxious and painful sensations than I have words to express, set out for New York in company with Mr. Thompson, and Colonel Humphries, with the best dispositions to render service to my country in obedience to its call, but with less hope of answering its expectations."

Marks of respect and affection shown him on his journey.

He was met by a number of gentlemen residing in Alexandria, and escorted to their city, where a public dinner had been prepared to which he was invited. The sentiments of veneration and affection which were felt by all classes of his fellow citizens for their patriot chief, were manifested by the most flattering marks of heartfelt respect; and by addresses which evinced the unlimited confidence reposed in his virtues and his talents. A place can not be given to these addresses: but that from the citizens of Alexandria derives such pretensions to particular notice from the recollection that it is to be considered as an effusion from the hearts of his neighbours and private friends, that its insertion may be pardoned. It is in the following words:

"Again your country commands your care. Obedient to its wishes, unmindful of your ease, we see you again relinquishing the bliss of retirement; and this too at a period of life, when nature itself seems to authorize a preference of repose!

"Not to extol your glory as a soldier; not to pour forth our gratitude for past services; not to acknowledge the justice of the unexampled honour which has been conferred upon you by the spontaneous and unanimous suffrages of three millions of freemen, in your election to the supreme magistracy; nor to admire the patriotism which directs your conduct, do your neighbours and friends now address you. Themes less splendid but more endearing, impress our minds. The first and best of citizens must leave us: our aged must lose their ornament; our youth their model; our agriculture its improver; our commerce its friend; our infant academy its protector; our poor their benefactor; and the interior navigation of the Potomac (an event replete with the most extensive utility, already, by your unremitted exertions, brought into partial use) its institutor and promoter.

"Farewell!—go! and make a grateful people happy, a people, who will be doubly grateful when they contemplate this recent sacrifice for their interest.

"To that Being who maketh and unmaketh at his will, we commend you; and after the accomplishment of the arduous business to which you are called, may he restore to us again, the best of men, and the most beloved fellow citizen!"

To this affectionate address General Washington returned the following answer:

"Gentlemen,

"Although I ought not to conceal, yet I can not describe the painful emotions which I felt in being called upon to determine whether I would accept or refuse the presidency of the United States. The unanimity in the choice, the opinion of my friends communicated from different parts of Europe, as well as from America, the apparent wish of those who were not entirely satisfied with the constitution in its present form; and an ardent desire on my own part to be instrumental in connecting the good will of my countrymen towards each other, have induced an acceptance. Those who know me best (and you my fellow citizens are, from your situation, in that number) know better than any others, my love of retirement is so great, that no earthly consideration, short of a conviction of duty, could have prevailed upon me to depart from my resolution, 'never more to take any share in transactions of a public nature.' For, at my age, and in my circumstances, what prospects or advantages could I propose to myself, from embarking again on the tempestuous and uncertain ocean of public life?

"I do not feel myself under the necessity of making public declarations, in order to convince you, gentlemen, of my attachment to yourselves, and regard for your interests. The whole tenor of my life has been open to your inspection; and my past actions, rather than my present declarations, must be the pledge of my future conduct.

"In the mean time, I thank you most sincerely for the expressions of kindness contained in your valedictory address. It is true, just after having bade adieu to my domestic connexions, this tender proof of your friendships is but too well calculated still further to awaken my sensibility, and increase my regret at parting from the enjoyments of private life.

"All that now remains for me is to commit myself and you to the protection of that beneficent Being who, on a former occasion, hath happily brought us together, after a long and distressing separation. Perhaps, the same gracious Providence will again indulge me. Unutterable sensations

must then be left to more expressive silence; while from an aching heart, I bid you all, my affectionate friends, and kind neighbours, farewell!"

In the afternoon of the same day, he left Alexandria, and was attended by his neighbours to Georgetown, where a number of citizens from the state of Maryland had assembled to receive him.

Throughout his journey the people continued to manifest the same feeling. Crowds flocked around him wherever he stopped; and corps of militia, and companies of the most respectable citizens, escorted him through their respective streets. At Philadelphia, he was received with peculiar splendour. Gray's bridge, over the Schuylkill, was highly decorated. In imitation of the triumphal exhibitions of ancient Rome, an arch, composed of laurel, in which was displayed the simple elegance of true taste, was erected at each end of it, and on each side was a laurel shrubbery. As the object of universal admiration passed under the arch, a civic crown was, unperceived by him, let down upon his head by a youth ornamented with sprigs of laurel, who was assisted by machinery. The fields and avenues leading from the Schuylkill to Philadelphia, were crowded with people, through whom General Washington was conducted into the city by a numerous and respectable body of citizens; and at night the town was illuminated. The next day, at Trenton, he was welcomed in a manner as new as it was pleasing. In addition to the usual demonstrations of respect and attachment which were given by the discharge of cannon, by military corps, and by private persons of distinction, the gentler sex prepared in their own taste, a tribute of applause indicative of the grateful recollection in which they held their deliverance twelve years before from a formidable enemy. On the bridge over the creek which passes through the town, was erected a triumphal arch highly ornamented with laurels and flowers: and supported by thirteen pillars, each entwined with wreaths of evergreen. On the front arch was inscribed in large gilt letters,

THE DEFENDER OF THE MOTHERS
WILL BE THE
PROTECTOR OF THE DAUGHTERS.

On the centre of the arch above the inscription, was a dome or cupola of flowers and evergreens, encircling the dates of two memorable events which were peculiarly interesting to New Jersey. The first was the battle of Trenton, and the second the bold and judicious stand made by the American

troops at the same creek, by which the progress of the British army was arrested on the evening preceding the battle of Princeton.

At this place, he was met by a party of matrons leading their daughters dressed in white, who carried baskets of flowers in their hands, and sang, with exquisite sweetness, an ode of two stanzas composed for the occasion.

At Brunswick, he was joined by the governor of New Jersey, who accompanied him to Elizabethtown Point. A committee of congress received him on the road, and conducted him with military parade to the Point, where he took leave of the governor and other gentlemen of Jersey, and embarked for New York in an elegant barge of thirteen oars, manned by thirteen branch pilots prepared for the purpose by the citizens of New York.

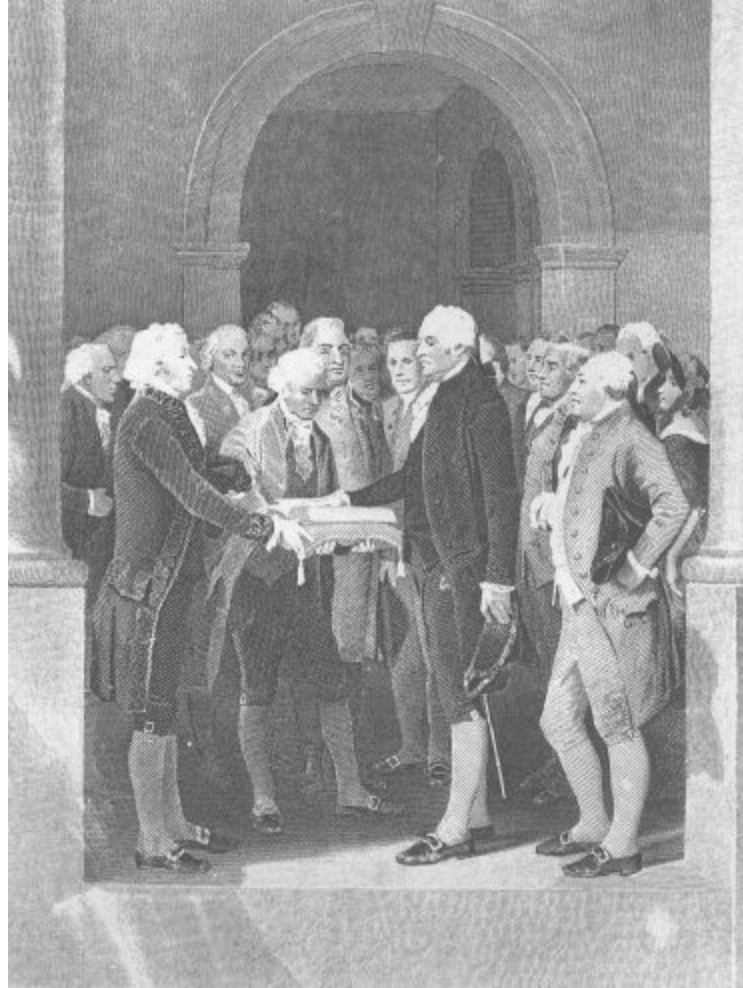
"The display of boats," says the general, in his private journal, "which attended and joined on this occasion, some with vocal, and others with instrumental music on board, the decorations of the ships, the roar of cannon, and the loud acclamations of the people, which rent the sky as I passed along the wharves, filled my mind with sensations as painful (contemplating the reverse of this scene, which may be the case after all my labours to do good) as they were pleasing."

At the stairs on Murray's wharf, which had been prepared and ornamented for the purpose, he was received by the governor of New York, and conducted with military honours, through an immense concourse of people, to the apartments provided for him. These were attended by all who were in office, and by many private citizens of distinction, who pressed around him to offer their congratulations, and to express the joy which glowed in their bosoms at seeing the man in whom all confided, at the head of the American empire. This day of extravagant joy was succeeded by a splendid illumination.

It is no equivocal mark of the worth of Washington, and of the soundness of his judgment, that it could neither be corrupted nor misguided by these flattering testimonials of attachment.

Two days before the arrival of the President, the Vice President took his seat in the senate, and addressed that body in a dignified speech adapted to the occasion, in which, after manifesting the high opinion that statesman always entertained of his countrymen, he thus expressed his sentiments of the executive magistrate.

"It is with satisfaction that I congratulate the people of America on the formation of a national constitution, and the fair prospect of a consistent administration of a government of laws: on the acquisition of a house of representatives, chosen by themselves; of a senate thus composed by their own state legislatures; and on the prospect of an executive authority, in the hands of one whose portrait I shall not presume to draw.—Were I blessed with powers to do justice to his character, it would be impossible to increase the confidence or affection of his country, or make the smallest addition to his glory. This can only be effected by a discharge of the present exalted trust on the same principles, with the same abilities and virtues which have uniformly appeared in all his former conduct, public or private. May I nevertheless be indulged to inquire, if we look over the catalogue of the first magistrates of nations, whether they have been denominated presidents or consuls, kings, or princes, where shall we find one, whose commanding talents and virtues, whose overruling good fortune, have so completely united all hearts and voices in his favour? who enjoyed the esteem and admiration of foreign nations, and fellow citizens, with equal unanimity? qualities so uncommon, are no common blessings to the country that possesses them. By these great qualities, and their benign effects, has Providence marked out the head of this nation, with a hand so distinctly visible, as to have been seen by all men, and mistaken by none."



Washington Taking the Oath of Office

From the painting by Alonzo Chappell

On the balcony of the old City Hall, Broad and Wall Streets, New York, Washington was sworn in as first President of the United States, April 30, 1789. The artist here accurately depicts him wearing a suit of dark brown, at his side a dress sword, and his hair powdered in the fashion of the period. White silk stockings and shoes with simple silver buckles completed his attire. On one side of him stood Chancellor Livingstone, who administered the oath. On the other side was Vice-President John Adams. Washington solemnly repeated the words of the oath, clearly enunciating, "I swear": adding in a whisper, with closed eyes, "So help me, God".

He forms a system of conduct to be observed in his intercourse with the world.

A President of the United States being a new political personage, to a great portion of whose time the public was entitled, it became proper to digest a system of conduct to be observed in his intercourse with the world, which would keep in view the duties of his station, without entirely disregarding his personal accommodation, or the course of public opinion. In the interval between his arrival in New York, and entering on the duties of his office, those most capable of advising on the subject were consulted; and some rules were framed by General Washington for his government in these respects. As one of them, the allotment of a particular hour for receiving visits not on business, became the subject of much animadversion; and, being considered merely as an imitation of the levee days established by crowned heads, has constituted not the least important of the charges which have been made against this gentleman. The motives assigned by himself for the rule may not be unworthy of attention.

Letters from him on this and other subjects.

Not long after the government came into operation, Doctor Stuart, a gentleman nearly connected with the President in friendship and by marriage, addressed to him a letter stating the accusations which were commonly circulating in Virginia on various subjects, and especially against the regal manners of those who administered the affairs of the nation. In answer to this letter the President observed, "while the eyes of America, perhaps of the world, are turned to this government, and many are watching the movements of all those who are concerned in its administration, I should like to be informed, through so good a medium, of the public opinion of both men and measures, and of none more than myself;—not so much of what may be thought commendable parts, if any, of my conduct, as of those which are conceived to be of a different complexion. The man who means to commit no wrong will never be guilty of enormities, consequently can never be unwilling to learn what are ascribed to him as foibles.—If they are really such, the knowledge of them in a well disposed mind will go half way towards a reform.—If they are not errors, he can explain and justify the motives of his actions.

"At a distance from the theatre of action, truth is not always related without embellishment, and sometimes is entirely perverted from a misconception of the causes which produced the effects that are the subject of censure.

"This leads me to think that a system which I found it indispensably necessary to adopt upon my first coming to this city, might have undergone severe strictures, and have had motives very foreign from those that governed me, assigned as causes thereof.—I mean first, returning *no* visits: second, appointing certain days to receive them generally (not to the exclusion however of visits on any other days under particular circumstances;) and third, at first entertaining no company, and afterwards (until I was unable to entertain any at all) confining it to official characters. A few days evinced the necessity of the two first in so clear a point of view, that had I not adopted it, I should have been unable to have attended to any sort of business, unless I had applied the hours allotted to rest and refreshment to this purpose; for by the time I had done breakfast, and thence until dinner—and afterwards until bed-time, I could not get relieved from the ceremony of one visit before I had to attend to another. In a word, I had no leisure to read or to answer the despatches that were pouring in upon me from all quarters."

In a subsequent letter written to the same gentleman, after his levees had been openly-censured by the enemies of his administration, he thus expressed himself:

"Before the custom was established, which now accommodates foreign characters, strangers, and others who from motives of curiosity, respect to the chief magistrate, or any other cause, are induced to call upon me, I was unable to attend to any business whatsoever. For gentlemen, consulting their own convenience rather than mine, were calling from the time I rose from breakfast—often before—until I sat down to dinner. This, as I resolved not to neglect my public duties, reduced me to the choice of one of these alternatives; either to refuse them *altogether*, or to appropriate a time for the reception of them. The first would, I well knew, be disgusting to many;—the latter I expected, would undergo animadversion from those who would find fault with or without cause. To please every body was impossible. I therefore adopted that line of conduct which combined public advantage with private convenience, and which, in my judgment, was unexceptionable in itself.

"These visits are optional. They are made without invitation. Between the hours of three and four every Tuesday, I am prepared to receive them. Gentlemen, often in great numbers, come and go;—chat with each other;—

and act as they please. A porter shows them into the room; and they retire from it when they choose, and without ceremony. At their first entrance, they salute me, and I them, and as many as I can talk to, I do. What pomp there is in all this I am unable to discover. Perhaps it consists in not sitting. To this two reasons are opposed: first, it is unusual; secondly, (which is a more substantial one) because I have no room large enough to contain a third of the chairs which would be sufficient to admit it. If it is supposed that ostentation, or the fashions of courts (which by the by I believe originate oftener in convenience, not to say necessity, than is generally imagined) gave rise to this custom, I will boldly affirm that *no* supposition was ever more erroneous; for were I to indulge my inclinations, every moment that I could withdraw from the fatigues of my station should be spent in retirement. That they are not, proceeds from the sense I entertain of the propriety of giving to every one as free access as consists with that respect which is due to the chair of government;—and that respect, I conceive, is neither to be acquired nor preserved, but by maintaining a just medium between too much state, and too great familiarity.

"Similar to the above, but of a more familiar and sociable kind, are the visits every Friday afternoon to Mrs. Washington, where I always am. These public meetings, and a dinner once a week to as many as my table will hold, with the references to and from the different departments of state, and other communications with all parts of the union, is as much if not more than I am able to undergo; for I have already had within less than a year, two severe attacks;—the last worse than the first,—a third, it is more than probable will put me to sleep with my fathers—at what distance this may be, I know not."

His inauguration and speech to congress.

The ceremonies of the inauguration having been adjusted by congress, the President attended in the senate chamber, on the 30th of April, in order to take, in the presence of both houses, the oath prescribed by the constitution.

To gratify the public curiosity, an open gallery adjoining the senate chamber had been selected by congress, as the place in which the oath should be administered. Having taken it in the view of an immense concourse of people, whose loud and repeated acclamations attested the joy with which his being proclaimed President of the United States inspired them, he returned to the senate chamber, where he delivered the following address:

"Fellow citizens of the Senate and of the House of Representatives:

"Among the vicissitudes incident to life, no event could have filled me with greater anxieties than that of which the notification was transmitted by your order, and received on the 14th day of the present month. On the one hand, I was summoned by my country, whose voice I can never hear but with veneration and love, from a retreat which I had chosen with the fondest predilection, and, in my flattering hopes, with an immutable decision, as the asylum of my declining years: a retreat which was rendered every day more necessary as well as more dear to me, by the addition of habit to inclination, and of frequent interruptions in my health to the gradual waste committed on it by time. On the other hand, the magnitude and difficulty of the trust to which the voice of my country called me, being sufficient to awaken in the wisest and most experienced of her citizens a distrustful scrutiny into his qualifications, could not but overwhelm with despondence, one, who, inheriting inferior endowments from nature, and unpractised in the duties of civil administration, ought to be peculiarly conscious of his own deficiencies. In this conflict of emotions, all I dare aver is, that it has been my faithful study to collect my duty from a just appreciation of every circumstance by which it might be effected. All I dare hope is, that, if in accepting this task, I have been too much swayed by a grateful remembrance of former instances, or by an affectionate sensibility to this transcendent proof of the confidence of my fellow citizens: and have thence too little consulted my incapacity, as well as disinclination for the weighty and untried cares before me; my ERROR will be palliated by the

motives which misled me, and its consequences be judged by my country, with some share of the partiality in which they originated.

"Such being the impressions under which I have, in obedience to the public summons, repaired to the present station, it will be peculiarly improper to omit in this first official act, my fervent supplications to that Almighty Being who rules over the universe—who presides in the councils of nations—and whose providential aids can supply every human defect, that his benediction may consecrate to the liberties and happiness of the people of the United States, a government instituted by themselves for these essential purposes: and may enable every instrument employed in its administration, to execute with success, the functions allotted to his charge. In tendering this homage to the great Author of every public and private good, I assure myself that it expresses your sentiments not less than my own; nor those of my fellow citizens at large, less than either. No people can be bound to acknowledge and adore the invisible hand which conducts the affairs of men, more than the people of the United States. Every step by which they have advanced to the character of an independent nation seems to have been distinguished by some token of providential agency; and in the important revolution just accomplished in the system of their united government, the tranquil deliberations and voluntary consent of so many distinct communities, from which the event has resulted, can not be compared with the means by which most governments have been established, without some return of pious gratitude along with an humble anticipation of the future blessings which the past seem to presage. These reflections, arising out of the present crisis, have forced themselves too strongly on my mind to be suppressed. You will join with me, I trust, in thinking that there are none, under the influence of which the proceedings of a new and free government can more auspiciously commence.

"By the article establishing the executive department, it is made the duty of the President 'to recommend to your consideration, such measures as he shall judge necessary and expedient.' The circumstances under which I now meet you will acquit me from entering into that subject, farther than to refer to the great constitutional charter under which you are assembled, and which in defining your powers, designates the objects to which your attention is to be given. It will be more consistent with those circumstances, and far more congenial with the feelings which actuate me, to substitute in place of a recommendation of particular measures, the tribute that is due to

the talents, the rectitude, and the patriotism, which adorn the characters selected to devise and adopt them. In these honourable qualifications, I behold the surest pledges that, as on one side, no local prejudices or attachments, no separate views nor party animosities, will misdirect the comprehensive and equal eye which ought to watch over this great assemblage of communities and interests: so, on another, that the foundations of our national policy will be laid in the pure and immutable principles of private morality; and the pre-eminence of free government be exemplified by all the attributes which can win the affections of its citizens, and command the respect of the world. I dwell on this prospect with every satisfaction which an ardent love for my country can inspire, since there is no truth more thoroughly established than that there exists, in the economy and course of nature, an indissoluble union between virtue and happiness—between duty and advantage—between the genuine maxims of an honest and magnanimous policy, and the solid rewards of public prosperity and felicity; since we ought to be no less persuaded that the propitious smiles of heaven can never be expected on a nation that disregards the eternal rules of order and right which heaven itself has ordained: and since the preservation of the sacred fire of liberty, and the destiny of the republican model of government, are justly considered as DEEPLY, perhaps as FINALLY staked, on the experiment entrusted to the hands of the American people.

"Besides the ordinary objects submitted to your care, it will remain with your judgment to decide, how far an exercise of the occasional power delegated by the fifth article of the constitution is rendered expedient, at the present juncture, by the nature of objections which have been urged against the system, or by the degree of inquietude which has given birth to them. Instead of undertaking particular recommendations on this subject, in which I could be guided by no lights derived from official opportunities, I shall again give way to my entire confidence in your discernment and pursuit of the public good: for I assure myself that whilst you carefully avoid every alteration which might endanger the benefits of a united and effective government, or which ought to await the future lessons of experience, a reverence for the characteristic rights of freemen, and a regard for the public harmony, will sufficiently influence your deliberations on the question how far the former can be more impregably fortified, or the latter be safely and advantageously promoted.

"To the preceding observations I have one to add, which will be most properly addressed to the house of representatives. It concerns myself, and will therefore be as brief as possible. When I was first honoured with a call into the service of my country, then on the eve of an arduous struggle for its liberties, the light in which I contemplated my duty required that I should renounce every pecuniary compensation. From this resolution I have in no instance departed. And being still under the impressions which produced it, I must decline, as inapplicable to myself, any share in the personal emoluments which may be indispensably included in a permanent provision for the executive department; and must accordingly pray that the pecuniary estimates for the station in which I am placed, may, during my continuance in it, be limited to such actual expenditures as the public good may be thought to require.

"Having thus imparted to you my sentiments, as they have been awakened by the occasion which brings us together, I shall take my present leave; but not without resorting once more to the benign Parent of the human race, in humble supplication, that since he has been pleased to favour the American people with opportunities for deliberating in perfect tranquillity, and dispositions for deciding with unparalleled unanimity on a form of government, for the security of their union, and the advancement of their happiness, so his divine blessing may be equally *conspicuous* in the enlarged views, the temperate consultations, and the wise measures on which the success of this government must depend."

Answer of both houses of congress to the speech.

In their answer to this speech, the senate say: "The unanimous suffrage of the elective body in your favour, is peculiarly expressive of the gratitude, confidence, and affection of the citizens of America, and is the highest testimonial at once of your merit, and their esteem. We are sensible, sir, that nothing but the voice of your fellow citizens could have called you from a retreat, chosen with the fondest predilection, endeared by habit, and consecrated to the repose of declining years. We rejoice, and with us all America, that, in obedience to the call of our common country, you have returned once more to public life. In you all parties confide; in you all interests unite; and we have no doubt that your past services, great as they have been, will be equalled by your future exertions; and that your prudence and sagacity, as a statesman, will tend to avert the dangers to which we

were exposed, to give stability to the present government, and dignity and splendour to that country, which your skill and valour as a soldier, so eminently contributed to raise to independence and to empire."

The affection for the person and character of the President with which the answer of the house of representatives glowed, promised that between this branch of the legislature also and the executive, the most harmonious co-operation in the public service might be expected.

"The representatives of the people of the United States," says this address, "present their congratulations on the event by which your fellow citizens have attested the pre-eminence of your merit. You have long held the first place in their esteem. You have often received tokens of their affection. You now possess the only proof that remained of their gratitude for your services, of their reverence for your wisdom, and of their confidence in your virtues. You enjoy the highest, because the truest honour, of being the first magistrate, by the unanimous choice of the freest people on the face of the earth."

After noticing the several communications made in the speech, intense of deep felt respect and affection, the answer concludes thus:

"Such are the sentiments with which we have thought fit to address you. They flow from our own hearts, and we verily believe that among the millions we represent, there is not a virtuous citizen whose heart will disown them.

"All that remains is, that we join in your fervent supplications for the blessing of heaven on our country; and that we add our own for the choicest of these blessings on the most beloved of her citizens."

Situation of the United States at this period in their domestic and foreign relations.

A perfect knowledge of the antecedent state of things being essential to a due administration of the executive department, its attainment engaged the immediate attention of the President; and he required the temporary heads of departments to prepare and lay before him such statements and documents as would give this information.

But in the full view which it was useful to take of the interior, many objects were to be contemplated, the documents respecting which were not to be found in official records. The progress which had been made in

assuaging the bitter animosities engendered in the sharp contest respecting the adoption of the constitution, and the means which might be used for conciliating the affections of all good men to the new government, without enfeebling its essential principles, were subjects of the most interesting inquiry.

The agitation had been too great to be suddenly calmed; and for the active opponents of the system to become suddenly its friends, or even indifferent to its fate, would have been a victory of reason over passion, or a surrender of individual judgment to the decision of a majority, examples of which are rarely given in the progress of human affairs.

In some of the states, a disposition to acquiesce in the decision which had been made, and to await the issue of a fair experiment of the constitution, was avowed by the minority. In others, the chagrin of defeat seemed to increase the original hostility to the instrument; and serious fears were entertained by its friends, that a second general convention might pluck from it the most essential of its powers, before their value, and the safety with which they might be confided where they were placed, could be ascertained by experience.

From the same cause, exerting itself in a different direction, the friends of the new system had been still more alarmed. In all those states where the opposition was sufficiently formidable to inspire a hope of success, the effort was made to fill the legislature with the declared enemies of the government, and thus to commit it, in its infancy, to the custody of its foes. Their fears were quieted for the present. In both branches of the legislature, the federalists, an appellation at that time distinguishing those who had supported the constitution, formed the majority; and it soon appeared that a new convention was too bold an experiment to be applied for by the requisite number of states. The condition of individuals too, was visibly becoming more generally eligible. Industry, notwithstanding the causes which had diminished its profits, was gradually improving their affairs; and the new course of thinking, inspired by the adoption of a constitution prohibiting all laws impairing the obligation of contracts, had, in a great measure, restored that confidence which is essential to the internal prosperity of nations. From these, or from other causes, the crisis of the pressure on individuals seemed to be passing away, and brighter prospects to be opening on them.

But, two states still remained out of the pale of the union; and a mass of ill humour existed among those who were included within it, which increased the necessity of circumspection in those who administered the government.

To the western parts of the continent, the attention of the executive was attracted by discontents which were displayed with some violence, and which originated in circumstances, and in interests, peculiar to that country.

Spain, in possession of the mouth of the Mississippi, had refused to permit the citizens of the United States to follow its waters into the ocean; and had occasionally tolerated or interdicted their commerce to New Orleans, as had been suggested by the supposed interest or caprice of the Spanish government, or of its representatives in America. The eyes of the inhabitants adjacent to the waters which emptied into that river, were turned down it, as the only channel through which the surplus produce of their luxuriant soil could be conveyed to the markets of the world. Believing that the future wealth and prosperity of their country depended on the use of that river, they gave some evidence of a disposition to drop from the confederacy, if this valuable acquisition could not otherwise be made. This temper could not fail to be viewed with interest by the neighbouring powers, who had been encouraged by it, and by the imbecility of the government, to enter into intrigues of an alarming nature.

Previous to his departure from Mount Vernon, the President had received intelligence, too authentic to be disregarded, of private machinations by real or pretended agents both of Spain and Great Britain, which were extremely hostile to the peace, and to the integrity of the union.

Spain had intimated that the navigation of the Mississippi could never be conceded, while the inhabitants of the western country remained connected with the Atlantic states, but might be freely granted to them, if they should form an independent empire.

On the other hand, a gentleman from Canada, whose ostensible business was to repossess himself of some lands on the Ohio which had been formerly granted to him, frequently discussed the vital importance of the navigation of the Mississippi, and privately assured several individuals of great influence, that if they were disposed to assert their rights, he was authorized by Lord Dorchester, the governor of Canada, to say, that they might rely confidently on his assistance. With the aid it was in his power to

give, they might seize New Orleans, fortify the Balise at the mouth of the Mississippi, and maintain themselves in that place against the utmost efforts of Spain.

The probability of failing in any attempt to hold the mouth of the Mississippi by force, and the resentments against Great Britain which prevailed generally throughout the western country, diminished the danger to be apprehended from any machinations of that power; but against those of Spain, the same security did not exist.

In contemplating the situation of the United States in their relations not purely domestic, the object demanding most immediate consideration was the hostility of several tribes of Indians. The military strength of the nations who inhabited the country between the lakes, the Mississippi, and the Ohio, was computed at five thousand men, of whom about fifteen hundred were at open war with the United States. Treaties had been concluded with the residue; but the attachment of young savages to war, and the provocation given by the undistinguishing vengeance which had been taken by the whites in their expeditions into the Indian country, furnished reasons for apprehending that these treaties would soon be broken.

In the south, the Creeks, who could bring into the field six thousand fighting men, were at war with Georgia. In the mind of their leader, the son of a white man, some irritation had been produced by the confiscation of the lands of his father, who had resided in that state; and several other refugees whose property had also been confiscated, contributed still further to exasperate the nation. But the immediate point in contest between them was a tract of land on the Oconee, which the state of Georgia claimed under a purchase, the validity of which was denied by the Indians.

The regular force of the United States was less than six hundred men.

Not only the policy of accommodating differences by negotiation which the government was in no condition to terminate by the sword; but a real respect for the rights of the natives, and a regard for the claims of justice and humanity, disposed the President to endeavour, in the first instance, to remove every cause of quarrel by a treaty; and his message to congress on this subject evidenced his preference of pacific measures.

Possessing many valuable articles of commerce for which the best market was often found on the coast of the Mediterranean, struggling to export them in their own bottoms, and unable to afford a single gun for their

protection, the Americans could not view with unconcern the dispositions which were manifested towards them by the Barbary powers. A treaty had been formed with the emperor of Morocco; but from Algiers, Tunis, and Tripoli, peace had not been purchased; and those regencies consider all as enemies to whom they have not sold their friendship. The unprotected vessels of America presented a tempting object to their rapacity; and their hostility was the more terrible, because by their public law, prisoners became slaves.

The United States were at peace with all the powers of Europe; but controversies of a delicate nature existed with some of them, the adjustment of which required a degree of moderation and firmness, which there was reason to fear, might not, in every instance, be exhibited.

The early apprehensions with which Spain had contemplated the future strength of the United States, and the consequent disposition of the house of Bourbon to restrict them to narrow limits, have been already noticed. After the conclusion of the war, the attempt to form a treaty with that power had been repeated; but no advance towards an agreement on the points of difference between the two governments had been made. A long and intricate negotiation between the secretary of foreign affairs, and Don Guardoqui, the minister of his Catholic majesty, had terminated with the old government; and the result was an inflexible adherence on the part of Mr. Guardoqui to the exclusion of the citizens of the United States from navigating the Mississippi below their southern boundary. On this point there was much reason to fear that the cabinet of Madrid would remain immovable. The violence with which the discontents of the western people were expressed, furnished Spain with additional motives for perpetuating the evil of which they complained. Aware of the embarrassments which this display of restlessness must occasion, and sensible of the increased difficulty and delay with which a removal of its primary cause must be attended, the executive perceived in this critical state of things, abundant cause for the exercise of its watchfulness, and of its prudence. With Spain, there was also a contest respecting boundaries. The treaty of peace had extended the limits of the United States to the thirty-first degree of north latitude, but the pretensions of the Catholic King were carried north of that line, to an undefined extent. He claimed as far as he had conquered from Britain, but the precise limits of his conquest were not ascertained.

The circumstances attending the points of difference with Great Britain, were still more serious; because, in their progress, a temper unfavourable to accommodation had been uniformly displayed.

The resentments produced by the various calamities war had occasioned, were not terminated with their cause. The idea that Great Britain was the natural enemy of America had become habitual. Believing it impossible for that nation to have relinquished its views of conquest, many found it difficult to bury their animosities, and to act upon the sentiment contained in the declaration of independence, "to hold them as the rest of mankind, enemies in war, in peace friends." In addition to the complaints respecting the violation of the treaty of peace, events were continually supplying this temper with fresh aliment. The disinclination which the cabinet of London had discovered to a commercial treaty with the United States was not attributed exclusively to the cause which had been assigned for it. It was in part ascribed to that jealousy with which Britain was supposed to view the growing trade of America.

The general restrictions on commerce by which every maritime power sought to promote its own navigation, and that part of the European system in particular, by which each aimed at a monopoly of the trade of its colonies, were felt with peculiar keenness when enforced by England. The people of America were perhaps the more sensible to the British resolutions on this subject, because, having composed a part of that empire, they had grown up in the habit of a free intercourse with all its ports; and, without accurately appreciating the cause to which a change of this usage was to be ascribed, they attributed it to a jealousy of their prosperity, and to an inclination to diminish the value of their independence. In this suspicious temper, almost every unfavourable event which occurred was traced up to British hostility.

That an attempt to form a commercial treaty with Portugal had failed, was attributed to the influence of the cabinet of London; and to the machinations of the same power were also ascribed the danger from the corsairs of Barbary, and the bloody incursions of the Indians. The resentment excited by these causes was felt by a large proportion of the American people; and the expression of it was common and public. That correspondent dispositions existed in England is by no means improbable,

and the necessary effect of this temper was to increase the difficulty of adjusting the differences between the two nations.

With France, the most perfect harmony subsisted. Those attachments which originated in the signal services received from his most Christian Majesty during the war of the revolution, had sustained no diminution. Yet, from causes which it was found difficult to counteract, the commercial intercourse between the two nations was not so extensive as had been expected. It was the interest, and of consequence the policy of France, to avail herself of the misunderstandings between the United States and Great Britain, in order to obtain such regulations as might gradually divert the increasing trade of the American continent from those channels in which it had been accustomed to flow; and a disposition was felt throughout the United States to co-operate with her, in enabling her merchants, by legislative encouragements, to rival those of Britain in the American market.

A great revolution had commenced in that country, the first stage of which was completed by limiting the powers of the monarch, and by the establishment of a popular assembly. In no part of the globe was this revolution hailed with more joy than in America. The influence it would have on the affairs of the world was not then distinctly foreseen: and the philanthropist, without becoming a political partisan, rejoiced in the event. On this subject, therefore, but one sentiment existed.

The relations of the United States with the other powers of Europe, did not require particular attention. Their dispositions were rather friendly than otherwise; and an inclination was generally manifested to participate in the advantages, which the erection of an independent empire on the western shores of the Atlantic, held forth to the commercial world.

By the ministers of foreign powers in America, it would readily be supposed, that the first steps taken by the new government would, not only be indicative of its present system, but would probably affect its foreign relations permanently, and that the influence of the President would be felt in the legislature. Scarcely was the exercise of his executive functions commenced, when the President received an application from the Count de Moustiers, the minister of France, requesting a private conference. On being told that the department of foreign affairs was the channel through which all official business should pass, the Count replied that the interview he

requested was, not for the purpose of actual business, but rather as preparatory to its future transaction.

The next day, at one in the afternoon, was named for the interview. The Count commenced the conversation with declarations of his personal regard for America, the manifestations of which, he said, had been early and uniform. His nation too was well disposed to be upon terms of amity with the United States: but at his public reception, there were occurrences which he thought indicative of coolness in the secretary of foreign affairs, who had, he feared, while in Europe, imbibed prejudices not only against Spain, but against France also. If this conjecture should be right, the present head of that department could not be an agreeable organ of intercourse with the President. He then took a view of the modern usages of European courts, which, he said, favoured the practice he recommended of permitting foreign ministers to make their communications directly to the chief of the executive. "He then presented a letter," says the President in his private journal, "which he termed confidential, and to be considered as addressed to me in my private character, which was too strongly marked with an intention, as well as a wish, to have no person between the Minister and President, in the transaction of business between the two nations."

In reply to these observations, the President gave the most explicit assurances that, judging from his own feelings, and from the public sentiment, there existed in America a reciprocal disposition to be on the best terms with France. That whatever former difficulties might have occurred, he was persuaded the secretary of foreign affairs had offered no intentional disrespect, either to the minister, or to his nation. Without undertaking to know the private opinions of Mr. Jay, he would declare that he had never heard that officer express, directly or indirectly, any sentiment unfavourable to either.

Reason and usage, he added, must direct the mode of treating national and official business. If rules had been established, they must be conformed to. If they were yet to be framed, it was hoped that they would be convenient and proper. So far as ease could be made to comport with regularity, and with necessary forms, it ought to be consulted; but custom, and the dignity of office, were not to be disregarded. The conversation continued upwards of an hour, but no change was made in the resolution of the President.

The subjects which pressed for immediate attention on the first legislature assembled under the new government, were numerous and important. Much was to be created, and much to be reformed.

The subject of revenue, as constituting the vital spring without which the action of government could not long be continued, was taken up in the house of representatives, as soon as it could be introduced. The qualification of the members was succeeded by a motion for the house to resolve itself into a committee of the whole on the state of the union; and in that committee, a resolution was moved by Mr. Madison, declaring the opinion that certain duties ought to be levied on goods, wares, and merchandise, imported into the United States; and on the tonnage of vessels.

As it was deemed important to complete a temporary system in time to embrace the spring importations, Mr. Madison presented the scheme of impost which had been recommended by the former congress, and had already received the approbation of a majority of the states; to which he added a general proposition for a duty on tonnage. By this scheme specific duties were imposed on certain enumerated articles; and an ad-valorem duty on those not enumerated. Mr. Fitzsimmons, of Pennsylvania, moved an amendment, enlarging the catalogue of enumerated articles.

Debates on the impost and tonnage bills.

Mr. Madison having consented to subjoin the amendment proposed by Mr. Fitzsimmons to the original resolution, it was received by the committee; but in proceeding to fill up the blanks with the sum taxable on each article, it was soon perceived that gentlemen had viewed the subject in very different lights. The tax on many articles was believed to press more heavily on some states than on others; and apprehensions were expressed that, in the form of protecting duties, the industry of one part of the union would be encouraged by premiums charged on the labour of another part. On the discrimination between the duty on the tonnage of foreign and American bottoms, a great degree of sensibility was discovered. The citizens of the United States not owning a sufficient number of vessels to export all the produce of the country, it was said that the increased tonnage on foreign bottoms operated as a tax on agriculture, and a premium to navigation. This discrimination, it was therefore contended, ought to be very small.

In answer to these arguments, Mr. Madison said, "If it is expedient for America to have vessels employed in commerce at all, it will be proper that she have enough to answer all the purposes intended; to form a school for seamen; to lay the foundation of a navy: and to be able to support itself against the interference of foreigners. I do not think there is much weight in the observations that the duty we are about to lay in favour of American vessels is a burden on the community, and particularly oppressive to some parts. But if there were, it may be a burden of that kind which will ultimately save us from one that is greater.

"I consider an acquisition of maritime strength essential to this country; should we ever be so unfortunate as to be engaged in war, what but this can defend our towns and cities upon the sea coast? Or what but this can enable us to repel an invading enemy? Those parts which are said to bear an undue proportion of the burden of the additional duty on foreign shipping, are those which will be most exposed to the operations of a predatory war, and will require the greatest exertions of the union in their defence. If therefore some little sacrifice be made by them to obtain this important object, they will be peculiarly rewarded for it in the hour of danger. Granting a preference to our own navigation will insensibly bring it forward to that perfection so essential to American safety; and though it may produce some little inequality at first, it will soon ascertain its level, and become uniform throughout the union."

But no part of the system was discussed with more animation than that which proposed to make discriminations in favour of those nations with whom the United States had formed commercial treaties. In the debate on this subject, opinions and feelings with respect to foreign powers were disclosed, which, strengthening with circumstances, afterwards agitated the whole American continent.

While the resolutions on which the bills were to be framed were under debate, Mr. Benson rose to inquire on what principle the proposed discriminations between foreign nations was founded? "It was certainly proper," he said, "to comply with existing treaties. But those treaties stipulated no such preference. Congress then was at liberty to consult the interests of the United States. If those interests would be promoted by the measure, he should be willing to adopt it, but he wished its policy to be shown."

The resolutions, as reported, were supported by Mr. Madison, Mr. Baldwin, Mr. Fitzsimmons, Mr. Clymer, Mr. Page, and Mr. Jackson.

They relied much upon the public sentiment which had, they said, been unequivocally expressed through the several state legislatures and otherwise, against placing foreign nations generally, on a footing with the allies of the United States. So strong was this sentiment, that to its operation the existing constitution was principally to be ascribed. They thought it important to prove to those nations who had declined forming commercial treaties with them, that the United States possessed and would exercise the power of retaliating any regulations unfavourable to their trade, and they insisted strongly on the advantages of America in a war of commercial regulation, should this measure produce one.

The disposition France had lately shown to relax with regard to the United States, the rigid policy by which her counsels had generally been guided, ought to be cultivated. The evidence of this disposition was an edict by which American built ships purchased by French subjects became naturalized. There was reason to believe that the person charged with the affairs of the United States at that court, had made some favourable impressions, which the conduct of the American government ought not to efface.

With great earnestness it was urged, that from artificial or adventitious causes, the commerce between the United States and Great Britain had exceeded its natural boundary. It was wise to give such political advantages to other nations as would enable them to acquire their due share of the direct trade. It was also wise to impart some benefits to nations that had formed commercial treaties with the United States, and thereby to impress on those powers which had hitherto neglected to form such treaties, the idea that some advantages were to be gained by a reciprocity of friendship.

That France had claims on the gratitude of the American people which ought not to be overlooked, was an additional argument in favour of the principle for which they contended.

The discrimination was opposed by Mr. Benson, Mr. Lawrence, Mr. Wadsworth, and Mr. Sherman.

They did not admit that the public sentiment had been unequivocally expressed; nor did they admit that such benefits had flowed from commercial treaties as to justify a sacrifice of interest to obtain them. There

was a commercial treaty with France; but neither that treaty, nor the favours shown to that nation, had produced any correspondent advantages. The license to sell ships could not be of this description, since it was well known that the merchants of the United States did not own vessels enough for the transportation of the produce of the country, and only two, as was believed, had been sold since the license had been granted. The trade with Great Britain, viewed in all its parts, was upon a footing as beneficial to the United States as that with France.

That the latter power had claims upon the gratitude of America was admitted, but that these claims would justify premiums for the encouragement of French commerce and navigation, to be drawn from the pockets of the American people, was not conceded. The state of the revenue, it was said, would not admit of these experiments.

The observation founded on the extensiveness of the trade between the United States and Great Britain was answered by saying, that this was not a subject proper for legislative interposition. It was one of which the merchants were the best judges. They would consult their interest as individuals; and this was a case in which the interest of the nation and of individuals was the same.

At length, the bills passed the house of representatives, and were carried to the senate, where they were amended by expunging the discrimination made in favour of the tonnage and distilled spirits of those nations which had formed commercial treaties with the United States.

These amendments were disagreed to; and each house insisting on its opinion, a conference took place, after which the point was reluctantly yielded by the house of representatives. The proceedings of the senate being at that time conducted with closed doors, the course of reasoning on which this important principle was rejected can not be stated.

This debate on the impost and tonnage bills was succeeded by one on a subject which was believed to involve principles of still greater interest.

On the President's power of removal from office.

In organizing the departments of the executive, the question in what manner the high officers who filled them should be removeable, came on to be discussed. Believing that the decision of this question would materially influence the character of the new government, the members supported their respective opinions with a degree of earnestness proportioned to the

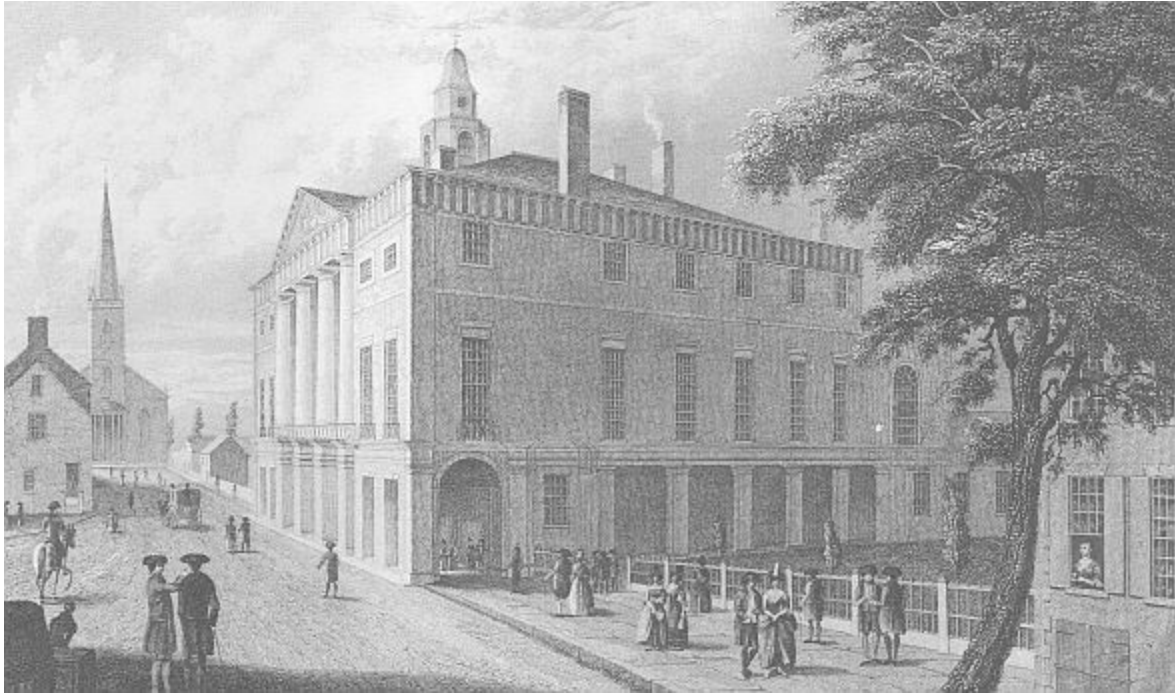
importance they attributed to the measure. In a committee of the whole house on the bill "to establish an executive department to be denominated the[42] department of foreign affairs," Mr. White moved to strike out the clause which declared the secretary to be removeable by the President. The power of removal, where no express provision existed, was, he said, in the nature of things, incidental to that of appointment. And as the senate was, by the constitution, associated with the President in making appointments, that body must, in the same degree, participate in the power of removing from office.

Mr. White was supported by Mr. Smith of South Carolina, Mr. Page, Mr. Stone, and Mr. Jackson.

Those gentlemen contended that the clause was either unnecessary or improper. If the constitution gave the power to the President, a repetition of the grant in an act of congress was nugatory: if the constitution did not give it, the attempt to confer it by law was improper. If it belonged conjointly to the President and senate, the house of representatives should not attempt to abridge the constitutional prerogative of the other branch of the legislature. However this might be, they were clearly of opinion that it was not placed in the President alone. In the power over all the executive officers which the bill proposed to confer upon the President, the most alarming dangers to liberty were perceived. It was in the nature of monarchical prerogative, and would convert them into the mere tools and creatures of his will. A dependence so servile on one individual, would deter men of high and honourable minds from engaging in the public service; and if, contrary to expectation, such men should be brought into office, they would be reduced to the necessity of sacrificing every principle of independence to the will of the chief magistrate, or of exposing themselves to the disgrace of being removed from office, and that too at a time when it might be no longer in their power to engage in other pursuits.

Gentlemen they feared were too much dazzled with the splendour of the virtues which adorned the actual President, to be able to look into futurity. But the framers of the constitution had not confined their views to the person who would most probably first fill the presidential chair. The house of representatives ought to follow their example, and to contemplate this power in the hands of an ambitious man, who might apply it to dangerous

purposes; who might from caprice remove the most worthy men from office.



View of the Old City or Federal Hall, New York, in 1789

On the balcony of this building, the site of which is now occupied by the United States Sub-Treasury, at the corner of Broad and Wall Streets, George Washington took the oath of office as First President of the United States, April 30, 1789. In the near distance, at the intersection of Wall and Broadway, may be seen the original Trinity Church structure which was completed in 1697. It was replaced by the present edifice in 1846. President Washington, who was an Episcopalian, did not attend Trinity, but maintained a pew in St. Paul's Chapel, Broadway and Vesey Street, which remains as it was when he worshipped there.

By the friends of the original bill, the amendment was opposed with arguments of great force drawn from the constitution and from general convenience. On several parts of the constitution, and especially on that which vests the executive power in the President, they relied confidently to support the position, that, in conformity with that instrument, the power in question could reside only with the chief magistrate: no power, it was said,

could be more completely executive in its nature than that of removal from office.

But if it was a case on which the constitution was silent, the clearest principles of political expediency required that neither branch of the legislature should participate in it.

The danger that a President could ever be found who would remove good men from office, was treated as imaginary. It was not by the splendour attached to the character of the present chief magistrate alone that this opinion was to be defended. It was founded on the structure of the office. The man in whose favour a majority of the people of this continent would unite, had probability at least in favour of his principles; in addition to which, the public odium that would inevitably attach to such conduct, would be an effectual security against it.

After an ardent discussion which consumed several days, the committee divided: and the amendment was negatived by a majority of thirty-four to twenty. The opinion thus expressed by the house of representatives did not explicitly convey their sense of the constitution. Indeed the express grant of the power to the President, rather implied a right in the legislature to give or withhold it at their discretion. To obviate any misunderstanding of the principle on which the question had been 'decided, Mr. Benson moved in the house, when the report of the committee of the whole was taken up, to amend the second clause in the bill so as clearly to imply the power of removal to be solely in the President. He gave notice that if he should succeed in this, he would move to strike out the words which had been the subject of debate. If those words continued, he said the power of removal by the President might hereafter appear to be exercised by virtue of a legislative grant only, and consequently be subjected to legislative instability; when he was well satisfied in his own mind, that it was by fair construction, fixed in the constitution. The motion was seconded by Mr. Madison, and both amendments were adopted. As the bill passed into a law, it has ever been considered as a full expression of the sense of the legislature on this important part of the American constitution.

On the policy of the secretary of the treasury reporting plans for the management of the revenue.

The bill to establish the treasury department, contained a clause making it the duty of the secretary "to digest and report plans for the improvement

and management of the revenue, and for the support of public credit."

Mr. Page moved to strike out these words, observing, that to permit the secretary to go further than to prepare estimates would be a dangerous innovation on the constitutional privilege of that house. It would create an undue influence within those walls, because members might be led by the deference commonly paid to men of abilities, who gave an opinion in a case they have thoroughly considered, to support the plan of the minister even against their own judgment. Nor would the mischief stop there. A precedent would be established which might be extended until ministers of the government should be admitted on that floor, to explain and support the plans they had digested and reported, thereby laying a foundation for an aristocracy, or a detestable monarchy.

Mr. Tucker seconded the motion of Mr. Page, and observed, that the authority contained in the bill to prepare and report plans would create an interference of the executive with the legislative powers, and would abridge the particular privilege of that house to originate all bills for raising a revenue. How could the business originate in that house, if it was reported to them by the minister of finance? All the information that could be required might be called for without adopting a clause that might undermine the authority of the house, and the security of the people. The constitution has pointed out the proper method of communication between the executive and legislative departments. It is made the duty of the President to give from time to time information to congress of the state of the union, and to recommend to their consideration such measures as he shall judge necessary and expedient. If revenue plans are to be prepared and reported to congress, he is the proper person to perform this service. He is responsible to the people for what he recommends, and will be more cautious than any other person to whom a less degree of responsibility was attached.

He hoped the house was not already weary of executing and sustaining the powers vested in them by the constitution; and yet the adoption of this clause would argue that they thought themselves less adequate than an individual, to determine what burdens their constituents were able to bear. This was not answering the high expectation that had been formed of their exertions for the general good, or of their vigilance in guarding their own and the people's rights.

The arguments of Mr. Page and Mr. Tucker were enforced and enlarged by Mr. Livermore and Mr. Gerry. The latter gentleman said, "that he had no objection to obtaining information, but he could not help observing the great degree of importance gentlemen were giving to this and the other executive officers. If the doctrine of having prime and great ministers of state was once well established, he did not doubt but he should soon see them distinguished by a green or red ribbon, insignia of court favour and patronage."

It was contended that the plans of the secretary, being digested, would be received entire. Members would be informed that each part was necessary to the whole, and that nothing could be touched without injuring the system. Establish this doctrine, and congress would become a useless burden.

The amendment was opposed by Mr. Benson, Mr. Goodhue, Mr. Ames, Mr. Sedgewick, Mr. Boudinot, Mr. Lawrence, Mr. Madison, Mr. Stone, Mr. Sherman, and Mr. Baldwin. It was insisted that to prepare and report plans for the improvement of the revenue, and support of public credit, constituted the most important service which could be rendered by the officer who should be placed at the head of the department of finance. When the circumstances under which the members of that house were assembled, and the various objects for which they were convened were considered, it was no imputation upon them to suppose that they might receive useful information from a person whose peculiar duty it was to direct his attention to systems of finance, and who would be in some measure selected on account of his fitness for that object. It was denied that the privileges of the house would be infringed by the measure. The plans of the secretary could not be termed bills, nor would they even be reported in that form. They would only constitute information which would be valuable, and which could not be received in a more eligible mode. "Certainly," said Mr. Goodhue, "we carry our dignity to the extreme, when we refuse to receive information from any but ourselves."

"If we consider the present situation of our finances," said Mr. Ames, "owing to a variety of causes, we shall no doubt perceive a great though unavoidable confusion throughout the whole scene. It presents to the imagination a deep, dark, and dreary chaos, impossible to be reduced to order, unless the mind of the architect be clear and capacious, and his power commensurate to the object. He must not be the flitting creature of the day;

he must have time given him competent to the successful exercise of his authority. It is with the intention of letting a little sunshine into the business, that the present arrangement is proposed."

It was not admitted that the plans of the secretary would possess an influence to which their intrinsic value would not give them a just claim. There would always be sufficient intelligence in that house to detect, and independence to expose any oppressive or injurious scheme which might be prepared for them. Nor would a plan openly and officially reported possess more influence on the mind of any member, than if given privately at the secretary's office.

Mr. Madison said, the words of the bill were precisely those used by the former congress on two occasions. The same power had been annexed to the office of superintendent of the finances; and he had never heard that any inconvenience had been experienced from the regulation. Perhaps if the power had been more fully and more frequently exercised, it might have contributed more to the public good. "There is," continued this gentleman, "a small probability, though it is but small, that an officer may derive weight from this circumstance, and have some degree of influence upon the deliberations of the legislature. But compare the danger likely to result from this cause, with the danger and inconvenience of not having well formed and digested plans, and we shall find infinitely more to apprehend from the latter. Inconsistent, unproductive, and expensive schemes, will produce greater injury to our constituents, than is to be apprehended from any undue influence which the well digested plans of a well informed officer can have. From a bad administration of the government, more detriment will arise than from any other source. Want of information has occasioned much inconvenience, and many unnecessary burdens in some of the state governments. Let it be our care to avoid those rocks and shoals in our political voyage which have injured, and nearly proved fatal to many of our contemporary navigators."

The amendment was rejected.

On the style by which the president should be addressed.

Among the interesting points which were settled in the first congress, was the question by what style the President and Vice President should be addressed. Mr. Benson, from the committee appointed to confer with a committee of the senate on this subject reported, "that it is not proper to

annex any style or title to the respective styles or titles of office expressed in the constitution;" and this report was, without opposition, agreed to in the house of representatives. In the senate, the report was disapproved, and a resolution passed requesting the house of representatives to appoint another committee, again to confer with one from the senate, on the same subject. This message being taken up in the house of representatives, a resolution was moved by Mr. Parker, seconded by Mr. Page, declaring that it would be improper to accede to the request of the senate. Several members were in favour of this motion; but others who were opposed to receding from the ground already taken, seemed inclined to appoint a committee as a measure properly respectful to the other branch of the legislature.

After a warm debate, the resolution proposed by Mr. Parker was set aside by the previous question, and a committee of conference was appointed. They could not agree upon a report, in consequence of which the subject was permitted to rest; and the senate, conforming to the precedent given by the house of representatives, addressed the President in their answer to his speech by the terms used in the constitution.

While the representatives were preparing bills for organizing the great executive departments, the senate was occupied with digesting the system of a national judiciary. This complex and extensive subject was taken up in the commencement of the session, and was completed towards its close.

Amendment to the constitution proposed by congress and ratified by the states.

In the course of this session Mr. Madison brought forward a proposition for recommending to the consideration and adoption of the states, several new articles to be added to the constitution.

Many of those objections to it which had been urged with all the vehemence of conviction, and which, in the opinion of some of its advocates, were entitled to serious consideration, were believed by the most intelligent to derive their sole support from erroneous construction of the instrument. Others were upon points on which the objectors might be gratified without injury to the system. To conciliate the affections of their brethren to the government, was an object greatly desired by its friends. Disposed to respect, what they deemed, the errors of their opponents, where that respect could be manifested without a sacrifice of essential principles, they were anxious to annex to the constitution those explanations and

barriers against the possible encroachments of rulers on the liberties of the people, which had been loudly demanded, however unfounded, in their judgments, might be the fears by which those demands were suggested. These dispositions were perhaps, in some measure, stimulated to exertion by motives of the soundest policy. The formidable minorities in several of the conventions, which in the legislatures of some powerful states had become majorities, and the refusal of two states to complete the union, were admonitions not to be disregarded, of the necessity of removing jealousies, however misplaced, which operated on so large a portion of society. Among the most zealous friends of the constitution therefore, were found some of the first and warmest advocates for amendments.

To meet the various ideas expressed by the several conventions; to select from the mass of alterations which they had proposed those which might be adopted without stripping the government of its necessary powers; to condense them into a form and compass which would be acceptable to persons disposed to indulge the caprice, and to adopt the language of their particular states; were labours not easily to be accomplished. But the greatest difficulty to be surmounted was, the disposition to make those alterations which would enfeeble, and materially injure, the future operations of the government. At length, ten articles in addition to and amendment of the constitution, were assented to by two-thirds of both houses of congress, and proposed to the legislatures of the several states. Although the necessity of these amendments had been urged by the enemies of the constitution, and denied by its friends, they encountered scarcely any other opposition in the state legislatures, than was given by the leaders of the anti-federal party. Admitting the articles to be good and necessary, it was contended that they were not sufficient for the security of liberty; and the apprehension was avowed that their adoption would quiet the fears of the people, and check the pursuit of those radical alterations which would afford a safe and adequate protection to their rights. They were at length ratified by the legislatures of three-fourths of the states, and probably contributed, in some degree, to diminish the jealousies which had been imbibed against the constitution.

Appointment of the officers of the cabinet, council and of the judges.

The government being completely organized, and a system of revenue established, the important duty of filling the offices which had been created,

remained to be performed. In the execution of this delicate trust, the purest virtue and the most impartial judgment were exercised in selecting the best talents, and the greatest weight of character, which the United States could furnish. The unmingled patriotism of the motives by which the President was actuated, would receive its clearest demonstration from a view of all his private letters on this subject: and the success of his endeavours is attested by the abilities and reputation which he drew into the public service.

At the head of the department of foreign affairs, since denominated the department of state, he placed Mr. Jefferson.

This gentleman had been bred to the bar, and at an early period of life, had acquired considerable reputation for extensive attainments in the science of politics. He had been a distinguished member of the second congress, and had been offered a diplomatic appointment, which he had declined. Withdrawing from the administration of continental affairs, he had been elected governor of Virginia, which office he filled for two years. He afterwards again represented his native state in the councils of the union, and in the year 1784, was appointed to succeed Dr. Franklin at the court of Versailles. In that station, he had acquitted himself much to the public satisfaction. His Notes on Virginia, which were read with applause, were believed to evince the soundness of his political opinions; and the Declaration of Independence was universally ascribed to his pen. He had long been placed by America amongst the most eminent of her citizens, and had long been classed by the President with those who were most capable of serving the nation. Having lately obtained permission to return for a short time to the United States, he was, while on his passage, nominated to this important office; and, on his arrival in Virginia, found a letter from the President, giving him the option of becoming the secretary of foreign affairs, or of retaining his station at the court of Versailles. He appears rather to have inclined to continue in his foreign appointment; and, in changing his situation, to have consulted the wishes of the first magistrate more than the preference of his own mind.

The task of restoring public credit, of drawing order and arrangement from the chaotic confusion in which the finances of America were involved, and of devising means which should render the revenue productive, and commensurate with the demand, in a manner least burdensome to the

people, was justly classed among the most arduous of the duties which devolved on the new government. In discharging it, much aid was expected from the head of the treasury. This important, and, at that time, intricate department, was assigned to Colonel Hamilton.

This gentleman was a native of the island of St. Croix, and, at a very early period of life, had been placed by his friends, in New York. Possessing an ardent temper, he caught fire from the concussions of the moment, and, with all the enthusiasm of youth, engaged first his pen, and afterwards his sword, in the stern contest between the American colonies and their parent state. Among the first troops raised by New York was a corps of artillery, in which he was appointed a captain. Soon after the war was transferred to the Hudson, his superior endowments recommended him to the attention of the Commander-in-chief, into whose family, before completing his twenty-first year, he was invited to enter. Equally brave and intelligent, he continued, in this situation, to display a degree of firmness and capacity which commanded the confidence and esteem of his general, and of the principal officers in the army.

After the capitulation at Yorktown, the war languished throughout the American continent, and the probability that its termination was approaching daily increased.

The critical circumstances of the existing government rendered the events of the civil, more interesting than those of the military department; and Colonel Hamilton accepted a seat in the congress of the United States. In all the important acts of the day, he performed a conspicuous part; and was greatly distinguished among those distinguished men whom the crisis had attracted to the councils of their country. He had afterwards been active in promoting those measures which led to the convention at Philadelphia, of which he was a member, and had greatly contributed to the adoption of the constitution by the state of New York. In the pre-eminent part he had performed, both in the military and civil transactions of his country, he had acquired a great degree of well merited fame; and the frankness of his manners, the openness of his temper, the warmth of his feelings, and the sincerity of his heart, had secured him many valuable friends.

To talents equally splendid and useful, he united a patient industry, not always the companion of genius, which fitted him, in a peculiar manner, for

subduing the difficulties to be encountered by the man who should be placed at the head of the American finances.

The department of war was already filled by General Knox, and he was again nominated to it.

Throughout the contest of the revolution, this officer had continued at the head of the American artillery, and from being the colonel of a regiment, had been promoted to the rank of a major general. In this important station, he had preserved a high military character; and, on the resignation of General Lincoln, had been appointed secretary of war. To his past services, and to unquestionable integrity, he was admitted to unite a sound understanding; and the public judgment, as well as that of the chief magistrate, pronounced him in all respects competent to the station he filled.

The office of attorney general was filled by Mr. Edmund Randolph. To a distinguished reputation in the line of his profession, this gentleman added a considerable degree of political eminence. After having been for several years the attorney general of Virginia, he had been elected its governor. While in this office, he was chosen a member of the convention which framed the constitution, and was also elected to that which was called by the state for its adoption or rejection. After having served at the head of the executive the term permitted by the constitution of the state, he entered into its legislature, where he preserved a great share of influence.

Such was the first cabinet council of the President. In its composition, public opinion as well as intrinsic worth had been consulted, and a high degree of character had been combined with real talent.

In the selection of persons for high judicial offices, the President was guided by the same principles. At the head of this department he placed Mr. John Jay.

From the commencement of the revolution, this gentleman had filled a large space in the public mind. Remaining, without intermission, in the service of his country, he had passed through a succession of high offices, and, in all of them, had merited the approbation of his fellow citizens. To his pen, while in congress, America was indebted for some of those masterly addresses which reflected most honour upon the government; and to his firmness and penetration, was to be ascribed, in no inconsiderable degree, the happy issue of those intricate negotiations, which were

conducted, towards the close of the war, at Madrid, and at Paris. On returning to the United States, he had been appointed secretary of foreign affairs, in which station he had conducted himself with his accustomed ability. A sound judgment improved by extensive reading and great knowledge of public affairs, unyielding firmness, and inflexible integrity, were qualities of which Mr. Jay had given frequent and signal proofs. Although for some years withdrawn from that profession to which he was bred, the acquisitions of his early life had not been lost; and the subjects on which his mind had been exercised, were not entirely foreign from those which would, in the first instance, employ the courts in which he was to preside.

John Rutledge of South Carolina, James Wilson of Pennsylvania, William Cushing of Massachusetts, Robert Harrison of Maryland, and John Blair of Virginia were nominated as associate justices. Some of these gentlemen had filled the highest law offices in their respective states; and all of them had received distinguished marks of the public confidence.

In the systems which had been adopted by the several states, offices corresponding to those created by the revenue laws of congress, had been already established. Uninfluenced by considerations of personal regard, the President could not be induced to change men whom he found in place, if worthy of being employed; and where the man who had filled such office in the former state of things was unexceptionable in his conduct and character, he was uniformly re-appointed. In deciding between competitors for vacant offices, the law he prescribed for his government was to regard the fitness of candidates for the duties they would be required to discharge; and, where an equality in this respect existed, former merits and sufferings in the public service, gave claims to preference which could not be overlooked.

In the legislative, as well as in the executive and judicial departments, great respectability of character was also associated with an eminent degree of talents. The constitutional prohibition to appoint any member of the legislature to an office created during the time for which he had been elected, did not exclude men of the most distinguished abilities from the first congress. Impelled by an anxious solicitude respecting the first measures of the government, its zealous friends had pressed into its service: and, in both branches of the legislature, men were found who possessed the fairest claims to the public confidence.

From the duties attached to his office, the Vice President of the United States, and President of the senate, though not a member of the legislature, was classed, in the public mind, with that department not less than with the executive. Elected by the whole people of America in common with the President, he could not fail to be taken from the most distinguished citizens, and to add to the dignity of the body over which he presided.

Mr. John Adams was one of the earliest and most ardent patriots of the revolution. Bred to the bar, he had necessarily studied the constitution of his country, and was among the most determined asserters of its rights. Active in guiding that high spirit which animated all New England, he became a member of the congress of 1774, and was among the first who dared to avow sentiments in favour of independence. In that body he soon attained considerable eminence; and, at an early stage of the war, was chosen one of the commissioners to whom the interests of the United States in Europe were confided. In his diplomatic character, he had contributed greatly to those measures which drew Holland into the war; had negotiated the treaty between the United States and the Dutch republic: and had, at critical points of time, obtained loans of money which were of great advantage to his country. In the negotiations which terminated the war, he had also rendered important services; and, after the ratification of the definitive articles of peace, had been deputed to Great Britain for the purpose of effecting a commercial treaty with that nation. The political situation of America having rendered this object unattainable, he solicited leave to return, and arrived in the United States soon after the adoption of the constitution.

As a statesman, this gentleman had, at all times, ranked high in the estimation of his countrymen. He had improved a sound understanding by extensive political and historical reading; and perhaps no American had reflected more profoundly on the subject of government. The exalted opinion he entertained of his own country was flattering to his fellow citizens; and the purity of his mind, the unblemished integrity of a life spent in the public service, had gained him their confidence.

A government, supported in all its departments by so much character and talent, at the head of which was placed a man whose capacity was undoubted, whose life had been one great and continued lesson of disinterested patriotism, and for whom almost every bosom glowed with an attachment bordering on enthusiasm, could not fail to make a rapid progress

in conciliating the affection of the people. That all hostility to the constitution should subside, that public measures should receive universal approbation; that no particular disgusts and individual irritations should be excited; were expectations which could not reasonably be indulged. Exaggerated accounts were indeed occasionally circulated of the pomp and splendour which were affected by certain high officers, of the monarchical tendencies of particular institutions, and of the dispositions which prevailed to increase the powers of the executive. That the doors of the senate were closed, and that a disposition had been manifested by that body to distinguish the President of the United States by a title,[\[43\]](#) gave considerable umbrage, and were represented as evincing inclinations in that branch of the legislature, unfriendly to republicanism. The exorbitance of salaries was also a subject of some declamation, and the equality of commercial privileges with which foreign bottoms entered American ports, was not free from objection. But the apprehensions of danger to liberty from the new system, which had been impressed on the minds of well meaning men, were visibly wearing off; the popularity of the administration was communicating itself to the government; and the materials with which the discontented were furnished, could not yet be efficaciously employed.

Towards the close of the session, a report on a petition which had been presented at an early period by the creditors of the public residing in the state of Pennsylvania, was taken up in the house of representatives. Though many considerations rendered a postponement of this interesting subject necessary, two resolutions were passed; the one, "declaring that the house considered an adequate provision for the support of the public credit, as a matter of high importance to the national honour and prosperity;" and the other directing, "the secretary of the treasury to prepare a plan for that purpose, and to report the same to the house at its next meeting."

Adjournment of the first session of congress.

On the 29th of September, congress adjourned to the first Monday in the succeeding January.

Throughout the whole of this laborious and important session, perfect harmony subsisted between the executive and the legislature; and no circumstance occurred which threatened to impair it. The modes of communication between the departments of government were adjusted in a

satisfactory manner, and arrangements were made on some of those delicate points in which the senate participate of executive power.

The president visits the New England states.

Anxious to visit New England, to observe in person the condition of the country and the dispositions of the people towards the government and its measures, the President was disposed to avail himself of the short respite from official cares afforded by the recess of congress, to make a tour through the eastern states. His resolution being taken, and the executive business which required his immediate personal attendance being despatched,[\[44\]](#) he commenced his tour on the 15th of October; and, passing through Connecticut and Massachusetts, as far as Portsmouth in New Hampshire, returned by a different route to New York, where he arrived on the 13th of November.

With this visit, the President had much reason to be satisfied. To contemplate the theatre on which many interesting military scenes had been exhibited, and to review the ground on which his first campaign as Commander-in-chief of the American army had been made, were sources of rational delight. To observe the progress of society, the improvements in agriculture, commerce, and manufactures; and the temper, circumstances, and dispositions of the people, could not fail to be grateful to an intelligent mind, and an employment in all respects, worthy of the chief magistrate of the nation. The reappearance of their general, in the high station he now filled, brought back to recollection the perilous transactions of the war; and the reception universally given to him, attested the unabated love which was felt for his person and character, and indicated unequivocally the growing popularity, at least in that part of the union, of the government he administered.

His reception.

The sincerity and warmth with which he reciprocated the affection expressed for his person in the addresses presented to him, was well calculated to preserve the sentiments which were generally diffused. "I rejoice with you my fellow citizens," said he in answer to an address from the inhabitants of Boston, "in every circumstance that declares your prosperity;—and I do so most cordially because you have well deserved to be happy.

"Your love of liberty—your respect for the laws—your habits of industry—and your practice of the moral and religious obligations, are the strongest claims to national and individual happiness. And they will, I trust, be firmly and lastingly established."

But the interchange of sentiments with the companions of his military toils and glory, will excite most interest, because on both sides, the expressions were dictated by the purest and most delicious feelings of the human heart. From the Cincinnati of Massachusetts he received the following address:

"Amidst the various gratulations which your arrival in this metropolis has occasioned, permit us, the members of the society of the Cincinnati in this commonwealth, most respectfully to assure you of the ardour of esteem and affection you have so indelibly fixed in our hearts, as our glorious leader in war, and illustrious example in peace.

"After the solemn and endearing farewell on the banks of the Hudson, which our anxiety presaged as final, most peculiarly pleasing is the present unexpected meeting. On this occasion we can not avoid the recollection of the various scenes of toil and danger through which you conducted us; and while we contemplate various trying periods of the war, and the triumphs of peace, we rejoice to behold you, induced by the unanimous voice of your country, entering upon other trials, and other services alike important, and, in some points of view, equally hazardous. For the completion of the great purposes which a grateful country has assigned you, long, very long, may your invaluable life be preserved. And as the admiring world, while considering you as a soldier, have long wanted a comparison, may your virtue and talents as a statesman leave them without a parallel.

"It is not in words to express an attachment founded like ours. We can only say that when soldiers, our greatest pride was a promptitude of obedience to your orders; as citizens, our supreme ambition is to maintain the character of firm supporters of that noble fabric of federal government over which you preside.

"As members of the society of the Cincinnati, it will be our endeavour to cherish those sacred principles of charity and fraternal attachment which our institution inculcates. And while our conduct is thus regulated, we can never want the patronage of the first of patriots and the best of men."

To this address the following answer was returned:

"In reciprocating with gratitude and sincerity the multiplied and affecting gratulations of my fellow citizens of this commonwealth, they will all of them with justice allow me to say, that none can be dearer to me than the affectionate assurances which you have expressed. Dear, indeed, is the occasion which restores an intercourse with my faithful associates in prosperous and adverse fortune; and enhanced are the triumphs of peace, participated with those whose virtue and valour so largely contributed to procure them. To that virtue and valour your country has confessed her obligations. Be mine the grateful task to add the testimony of a connexion which it was my pride to own in the field, and is now my happiness to acknowledge in the enjoyments of peace and freedom.

"Regulating your conduct by those principles which have heretofore governed your actions as men, soldiers, and citizens, you will repeat the obligations conferred on your country, and you will transmit to posterity an example that must command their admiration and grateful praise. Long may you continue to enjoy the endearments of fraternal attachments, and the heartfelt happiness of reflecting that you have faithfully done your duty.

"While I am permitted to possess the consciousness of this worth, which has long bound me to you by every tie of affection and esteem, I will continue to be your sincere and faithful friend."

Soon after his return to New York, the President was informed of the ill success which had attended his first attempt to negotiate a peace with the Creek Indians. General Lincoln, Mr. Griffin, and Colonel Humphries, had been deputed on this mission, and had met M'Gillivray with several other chiefs, and about two thousand men, at Rock landing, on the Oconee, on the frontiers of Georgia. The treaty commenced with favourable appearances, but was soon abruptly broken off by M'Gillivray. Some difficulties arose on the subject of a boundary, but the principal obstacles to a peace were supposed to grow out of his personal interests, and his connexions with Spain.

North Carolina accedes to the union.

This intelligence was more than counterbalanced by the accession of North Carolina to the union. In the month of November, a second convention had met under the authority of the legislature of that state, and the constitution was adopted by a great majority.

CHAPTER VI.

Meeting of congress.... President's speech.... Report of the secretary of the treasury on public credit.... Debate thereon.... Bill for fixing the permanent seat of government.... Adjournment of congress.... Treaty with the Creek Indians.... Relations of the United States with Great Britain and Spain.... The President visits Mount Vernon.... Session of congress.... The President's speech.... Debates on the excise.... On a national bank.... The opinions of the cabinet on the law.... Progress of parties.... War with the Indians.... Defeat of Harmar.... Adjournment of congress.

1790

On the eighth of January, 1790, the President met both houses of congress in the senate chamber.

Meeting of the second session of the first congress.

In his speech, which was delivered from the chair of the vice president, after congratulating congress on the accession of the important state of North Carolina to the union, and on the prosperous aspect of American affairs, he proceeded to recommend certain great objects of legislation to their more especial consideration.

"Among the many interesting objects," continued the speech, "which will engage your attention, that of providing for the common defence will merit your particular regard. To be prepared for war is one of the most effectual means of preserving peace.

"A free people ought not only to be armed but disciplined; to which end, a uniform and well digested plan is requisite; and their safety and interest require that they should promote such manufactories as tend to render them independent on others for essential, particularly for military supplies."

As connected with this subject, a proper establishment for the troops which they might deem indispensable, was suggested for their mature deliberation; and the indications of a hostile temper given by several tribes

of Indians, were considered as admonishing them of the necessity of being prepared to afford protection to the frontiers, and to punish aggression.

The interests of the United States were declared to require that the means of keeping up their intercourse with foreign nations should be provided; and the expediency of establishing a uniform rule of naturalization was suggested.

After expressing his confidence in their attention to many improvements essential to the prosperity of the interior, the President added, "nor am I less persuaded that you will agree with me in opinion that there is nothing which can better deserve your patronage than the promotion of science and literature. Knowledge is in every country the surest basis of public happiness. In one, in which the measures of government receive their impression so immediately from the sense of the community as in ours, it is proportionably essential. To the security of a free constitution it contributes in various ways: by convincing those who are intrusted with the public administration, that every valuable end of government is best answered by the enlightened confidence of the people; and by teaching the people themselves to know and to value their own rights; to discern and provide against invasions of them; to distinguish between oppression and the necessary exercise of lawful authority; between burdens proceeding from a disregard to their convenience, and those resulting from the inevitable exigencies of society; to discriminate the spirit of liberty from that of licentiousness, cherishing the first, avoiding the last, and uniting a speedy but temperate vigilance against encroachments, with an inviolable respect to the laws.

"Whether this desirable object will be best promoted by affording aids to seminaries of learning already established, by the institution of a national university, or by any other expedients, will be well worthy of a place in the deliberations of the legislature."

Addressing himself then particularly to the representatives he said: "I saw with peculiar pleasure at the close of the last session, the resolution entered into by you, expressive of your opinion, that an adequate provision for the support of the public credit is a matter of high importance to the national honour and prosperity. In this sentiment I entirely concur; and to a perfect confidence in your best endeavours to devise such a provision as will be truly consistent with the end, I add an equal reliance on the cheerful co-

operation of the other branch of the legislature. It would be superfluous to specify inducements to a measure in which the character and permanent interests of the United States are so obviously and so deeply concerned; and which has received so explicit a sanction from your declaration."

Addressing himself again to both houses, he observed, that the estimates and papers respecting the objects particularly recommended to their attention would be laid before them; and concluded with saying, "the welfare of our country is the great object to which our cares and efforts ought to be directed: and I shall derive great satisfaction from a co-operation with you in the pleasing though arduous task of insuring to our fellow citizens the blessings which they have a right to expect from a free, efficient, and equal government."

The answers of both houses were indicative of the harmony which subsisted between the executive and legislative departments.

Congress had been so occupied during its first session with those bills which were necessary to bring the new system into full operation, and to create an immediate revenue, that some measures which possessed great and pressing claims to immediate attention had been unavoidably deferred. That neglect under which the creditors of the public had been permitted to languish could not fail to cast an imputation on the American republics, which had been sincerely lamented by the wisest among those who administered the former government. The power to comply substantially with the engagements of the United States being at length conferred on those who were bound by them, it was confidently expected by the friends of the constitution that their country would retrieve its reputation, and that its fame would no longer be tarnished with the blots which stain a faithless people.

Report of the secretary of the treasury of a plan for the support of public credit.

On the 9th of January, a letter from the secretary of the treasury to the speaker of the house of representatives was read, stating that in obedience to the resolution of the 21st of September, he had prepared a plan for the support of public credit, which he was ready to report when the house should be pleased to receive it; and, after a short debate in which the personal attendance of the secretary for the purpose of making explanations

was urged by some, and opposed by others, it was resolved that the report should be received in writing on the succeeding Thursday.

Availing himself of the latitude afforded by the terms of the resolution under which he acted, the secretary had introduced into his report an able and comprehensive argument elucidating and supporting the principles it contained. After displaying, with strength and perspicuity, the justice and the policy of an adequate provision for the public debt, he proceeded to discuss the principles on which it should be made.

"It was agreed," he said, "by all, that the foreign debt should be provided for according to the precise terms of the contract. It was to be regretted that, with respect to the domestic debt, the same unanimity of sentiment did not prevail."

The first point on which the public appeared to be divided, involved the question, "whether a discrimination ought not to be made between original holders of the public securities, and present possessors by purchase." After reviewing the arguments generally urged in its support, the secretary declared himself against this discrimination. He deemed it "equally unjust and impolitic; highly injurious even to the original holders of public securities, and ruinous to public credit." To the arguments with which he enforced these opinions, he added the authority of the government of the union. From the circular address of congress to the states, of the 26th of April, 1783, accompanying their revenue system of the 18th of the same month, passages were selected indicating unequivocally, that in the view of that body the original creditors, and those who had become so by assignment, had equal claims upon the nation.

After reasoning at great length against a discrimination between the different creditors of the union, the secretary proceeded to examine whether a difference ought to be permitted to remain between them and the creditors of individual states.

Both descriptions of debt were contracted for the same objects, and were in the main the same. Indeed, a great part of the particular debts of the states had arisen from assumptions by them on account of the union; and it was most equitable that there should be the same measure of retribution for all. There were many reasons, some of which were stated, for believing this would not be the case, unless the state debts should be assumed by the nation.

In addition to the injustice of favouring one class of creditors more than another which was equally meritorious, many arguments were urged in support of the policy of distributing to all with an equal hand from the same source.

After an elaborate discussion of these and some other points connected with the subject, the secretary proposed that a loan should be opened to the full amount of the debt, as well of the particular states, as of the union.

The terms to be offered were,—

First. That for every one hundred dollars subscribed payable in the debt, as well interest as principal, the subscriber should be entitled to have two-thirds funded on a yearly interest of six per cent, (the capital redeemable at the pleasure of government by the payment of the principal) and to receive the other third in lands of the western territory at their then actual value. Or,

Secondly. To have the whole sum funded at a yearly interest of four per cent., irredeemable by any payment exceeding five dollars per annum both on account of principal and interest, and to receive as a compensation for the reduction of interest, fifteen dollars and eighty cents, payable in lands as in the preceding case. Or,

Thirdly. To have sixty-six and two-thirds of a dollar funded at a yearly interest of six per cent., irredeemable also by any payment exceeding four dollars and two-thirds of a dollar per annum on account both of principal and interest, and to have at the end of ten years twenty-six dollars and eighty-eight cents funded at the like interest and rate of redemption.

In addition to these propositions the creditors were to have an option of vesting their money in annuities on different plans; and it was also recommended to open a loan at five per cent, for ten millions of dollars, payable one half in specie, and the other half in the debt, irredeemable by any payment exceeding six dollars per annum both of principal and interest.

By way of experiment, a tontine on principles stated in the report was also suggested.

The secretary was restrained from proposing to fund the whole debt immediately at the current rate of interest, by the opinion, "that although such a provision might not exceed the abilities of the country, it would require the extension of taxation to a degree, and to objects which the true interest of the creditors themselves would forbid. It was therefore to be

hoped and expected, that they would cheerfully concur in such modifications of their claims, on fair and equitable principles, as would facilitate to the government an arrangement substantial, durable, and satisfactory to the community. Exigencies might ere long arise which would call for resources greatly beyond what was now deemed sufficient for the current service; and should the faculties of the country be exhausted, or even strained to provide for the public debt, there could be less reliance on the sacredness of the provision.

"But while he yielded to the force of these considerations, he did not lose sight of those fundamental principles of good faith which dictate that every practicable exertion ought to be made, scrupulously to fulfil the engagements of government; that no change in the rights of its creditors ought to be attempted without their voluntary consent; and that this consent ought to be voluntary in fact, as well as in name. Consequently, that every proposal of a change ought to be in the shape of an appeal to their reason and to their interest, not to their necessities. To this end it was requisite that a fair equivalent should be offered, for what might be asked to be given up, and unquestionable security for the remainder." This fair equivalent for the proposed reduction of interest was, he thought, offered in the relinquishment of the power to redeem the whole debt at pleasure.

That a free judgment might be exercised by the holders of public securities in accepting or rejecting the terms offered by the government, provision was made in the report for paying to non-subscribing creditors, a dividend of the surplus which should remain in the treasury after paying the interest of the proposed loans: but as the funds immediately to be provided, were calculated to produce only four per cent, on the entire debt, the dividend, for the present, was not to exceed that rate of interest.

To enable the treasury to support this increased demand upon it, an augmentation of the duties on imported wines, spirits, tea, and coffee, was proposed, and a duty on home made spirits was also recommended.

This celebrated report, which has been alike the fruitful theme of extravagant praise and bitter censure, merits the more attention, because the first regular and systematic opposition to the principles on which the affairs of the union were administered, originated in the measures which were founded on it.

On the 28th of January, this subject was taken up; and, after some animadversions on the speculations in the public debt to which the report, it was said, had already given birth, the business was postponed until the eighth of February, when it was again brought forward.

Debate thereon.

Several resolutions affirmative of the principles contained in the report, were moved by Mr. Fitzsimmons. To the first, which respected a provision for the foreign debt, the house agreed without a dissenting voice. The second, in favour of appropriating permanent funds for payment of the interest on the domestic debt, and for the gradual redemption of the principal, gave rise to a very animated debate.

Mr. Jackson declared his hostility to funding systems generally. To prove their pernicious influence, he appealed to the histories of Florence, Genoa, and Great Britain; and, contending that the subject ought to be deferred until North Carolina should be represented, moved, that the committee should rise. This question being decided in the negative, Mr. Scott declared the opinion that the United States were not bound to pay the domestic creditors the sums specified in the certificates of debts in their possession. He supported this opinion by urging, not that the public had received less value than was expressed on the face of the paper which had been issued, but that those to whom it had been delivered, by parting with it at two shillings and sixpence in the pound, had themselves fixed the value of their claims, and had manifested their willingness to add to their other sacrifices this deduction from their demand upon the nation. He therefore moved to amend the resolution before the committee so as to require a resettlement of the debt.

The amendment was opposed by Mr. Boudinot, Mr. Lawrence, Mr. Ames, Mr. Sherman, Mr. Hartley, and Mr. Goodhue. They stated at large the terms on which the debt had been contracted, and urged the confidence which the creditors had a right to place in the government for its discharge according to settlements already made, and acknowledgments already given. The idea that the legislative body could diminish an ascertained debt was reprobated with great force, as being at the same time unjust, impolitic, and subversive of every principle on which public contracts are founded. The evidences of debt possessed by the creditors of the United States were

considered as public bonds, for the redemption of which the property and the labour of the people were pledged.

After the debate had been protracted to some length, the question was taken on Mr. Scott's amendment, and it passed in the negative.

Mr. Madison then rose, and, in an eloquent speech, replete with argument, proposed an amendment to the resolution, the effect of which was to discriminate between the public creditors, so as to pay the present holder of assignable paper the highest price it had borne in the market, and give the residue to the person with whom the debt was originally contracted. Where the original creditor had never parted with his claim, he was to receive the whole sum acknowledged to be due on the face of the certificate.

This motion was supported by Mr. Jackson, Mr. White, Mr. Moore, Mr. Page, Mr. Stone, Mr. Scott, and Mr. Seney.

It was opposed with great earnestness and strength of argument, by Mr. Sedgewick, Mr. Lawrence, Mr. Smith, of South Carolina, Mr. Ames, Mr. Gerry, Mr. Boudinot, Mr. Wadsworth, Mr. Goodhue, Mr. Hartley, Mr. Bland, Mr. Benson, Mr. Burke, and Mr. Livermore.

The argument was ably supported on both sides, was long, animated, and interesting. At length the question was put, and the amendment was rejected by a great majority.

This discussion deeply engaged the public attention. The proposition was new and interesting. That the debt ought to be diminished for the public advantage, was an opinion which had frequently been advanced, and was maintained by many. But a reduction from the claims of its present holders for the benefit of those who had sold their rights, was a measure which saved nothing to the public purse, and was therefore recommended only by considerations, the operation of which can never be very extensive. Against it were arranged all who had made purchases, and a great majority of those who conceived that sound policy and honest dealing require a literal observance of public contracts.

Although the decision of congress against a discrimination in favour of the original creditor produced no considerable sensation, the determination on that part of the secretary's report which was the succeeding subject of deliberation, affecting political interests and powers which are never to be approached without danger, seemed to unchain all those fierce passions

which a high respect for the government and for those who administered it, had in a great measure restrained.

The manner in which the several states entered into and conducted the war of the revolution, will be recollected. Acting in some respects separately, and in others conjointly, for the attainment of a common object, their resources were exerted, sometimes under the authority of congress, sometimes under the authority of the local government, to repel the enemy wherever he appeared. The debt incurred in support of the war was therefore, in the first instance, contracted partly by the continent, and partly by the states. When the system of requisitions was adopted, the transactions of the union were carried on, almost entirely, through the agency of the states; and when the measure of compensating the army for the depreciation of their pay became necessary, this burden, under the recommendation of congress, was assumed by the respective states. Some had funded this debt, and paid the interest upon it. Others had made no provision for the interest; but all, by taxes, paper money, or purchase, had, in some measure, reduced the principal. In their exertions some degree of inequality had obtained; and they looked anxiously to a settlement of accounts, for the ascertainment of claims which each supposed itself to have upon the union. Measures to effect this object had been taken by the former government; but they were slow in their progress, and intrinsic difficulties were found in the thing itself, not easily to be overcome.

The secretary of the treasury proposed to assume these debts, and to fund them in common with that which continued to be the proper debt of the union.

The resolution which comprehended this principle of the report, was vigorously opposed.

It was contended that the general government would acquire an undue influence, and that the state governments would be annihilated by the measure. Not only would all the influence of the public creditors be thrown into the scale of the former, but it would absorb all the powers of taxation, and leave to the latter only the shadow of a government. This would probably terminate in rendering the state governments useless, and would destroy the system so recently established. The union, it was said, had been compared to a rope of sand; but gentlemen were cautioned not to push

things to the opposite extreme. The attempt to strengthen it might be unsuccessful, and the cord might be strained until it should break.

The constitutional authority of the federal government to assume the debts of the states was questioned. Its powers, it was said, were specified, and this was not among them.

The policy of the measure, as it affected merely the government of the union, was controverted, and its justice was arraigned.

On the ground of policy it was objected, that the assumption would impose on the United States a burden, the weight of which was unascertained, and which would require an extension of taxation beyond the limits which prudence would prescribe. An attempt to raise the impost would be dangerous; and the excise added to it would not produce funds adequate to the object. A tax on real estate must be resorted to, objections to which had been made in every part of the union. It would be more advisable to leave this source of revenue untouched in the hands of the state governments, who could apply to it with more facility, with a better understanding of the subject, and with less dissatisfaction to individuals, than could possibly be done by the government of the United States.

There existed no necessity for taking up this burden. The state creditors had not required it. There was no petition from them upon the subject. There was not only no application from the states, but there was reason to believe that they were seriously opposed to the measure. Many of them would certainly view it with a jealous,—a jaundiced eye. The convention of North Carolina, which adopted the constitution, had proposed, as an amendment to it, to deprive congress of the power of interfering between the respective states and their creditors: and there could be no obligation to assume more than the balances which on a final settlement would be found due to creditor states.

That the debt by being thus accumulated would be perpetuated was also an evil of real magnitude. Many of the states had already made considerable progress in extinguishing their debts, and the process might certainly be carried on more rapidly by them than by the union. A public debt seemed to be considered by some as a public blessing; but to this doctrine they were not converts. If, as they believed, a public debt was a public evil, it would be enormously increased by adding those of the states to that of the union.

The measure was unwise too as it would affect public credit. Such an augmentation of the debt must inevitably depreciate its value; since it was the character of paper, whatever denomination it might assume, to diminish in value in proportion to the quantity in circulation.

It would also increase an evil which was already sensibly felt. The state debts when assumed by the continent, would, as that of the union had already done, accumulate in large cities; and the dissatisfaction excited by the payment of taxes, would be increased by perceiving that the money raised from the people flowed into the hands of a few individuals. Still greater mischief was to be apprehended. A great part of this additional debt would go into the hands of foreigners; and the United States would be heavily burdened to pay an interest which could not be expected to remain in the country.

The measure was unjust, because it was burdening those states which had taxed themselves highly to discharge the claims of their creditors, with the debts of those which had not made the same exertions. It would delay the settlement of accounts between the individual states and the United States; and the supporters of the measure were openly charged with intending to defeat that settlement.

It was also said that, in its execution, the scheme would be found extremely embarrassing, perhaps impracticable. The case of a partial accession to the measure by the creditors, a case which would probably occur, presented a difficulty for which no provision was made, and of which no solution had been given. Should the creditors in some states come into the system, and those in others refuse to change their security, the government would be involved in perplexities from which no means of extricating itself had been shown. Nor would it be practicable to discriminate between the debts contracted for general and for local objects.

In the course of the debate, severe allusions were made to the conduct of particular states; and the opinions advanced in favour of the measure, were ascribed to local interests.

In support of the assumption, the debts of the states were traced to their origin. America, it was said, had engaged in a war, the object of which was equally interesting to every part of the union. It was not the war of a particular state, but of the United States. It was not the liberty and independence of a part, but of the whole, for which they had contended, and

which they had acquired. The cause was a common cause. As brethren, the American people had consented to hazard property and life in its defence. All the sums expended in the attainment of this great object, whatever might be the authority under which they were raised or appropriated, conduced to the same end. Troops were raised, and military stores purchased, before congress assumed the command of the army, or the control of the war. The ammunition which repulsed the enemy at Bunker's Hill, was purchased by Massachusetts; and formed a part of the debt of that state.

Nothing could be more erroneous than the principle which had been assumed in argument, that the holders of securities issued by individual states were to be considered merely as state creditors;—as if the debt had been contracted on account of the particular state. It was contracted on account of the union, in that common cause in which all were equally interested.

From the complex nature of the political system which had been adopted in America, the war was, in a great measure, carried on through the agency of the state governments; and the debts were, in truth, the debts of the union, for which the states had made themselves responsible. Except the civil list, the whole state expenditure was in the prosecution of the war; and the state taxes had undeniably exceeded the provision for their civil list. The foundation for the several classes of the debt was reviewed in detail; and it was affirmed to be proved from the review, and from the books in the public offices, that, in its origin, a great part of it, even in form, and the whole, in fact, was equitably due from the continent. The states individually possessing all the resources of the nation, became responsible to certain descriptions of the public creditors. But they were the agents of the continent in contracting the debt; and its distribution among them for payment, arose from the division of political power which existed under the old confederation. A new arrangement of the system had taken place, and a power over the resources of the nation was conferred on the general government. With the funds, the debt also ought to be assumed. This investigation of its origin demonstrated that the assumption was not the creation of a new debt, but the reacknowledgment of liability for an old one, the payment of which had devolved on those members of the system, who, at the time, were alone capable of paying it. And thence was inferred, not only the justice of the measure, but a complete refutation of the arguments

drawn from the constitution. If, in point of fact, the debt was in its origin continental, and had been transferred to the states for greater facility of payment, there could be no constitutional objection to restoring its original and real character.

The great powers of war, of taxation, and of borrowing money, which were vested in congress to pay the debts, and provide for the common defence and general welfare of the United States, comprised that in question. There could be no more doubt of their right to charge themselves with the payment of a debt contracted in the past war, than to borrow money for the prosecution of a future war. The impolicy of leaving the public creditors to receive payment from different sources was also strongly pressed; and the jealousy which would exist between the creditors of the union and of the states, was considered as a powerful argument in favour of giving them one common interest. This jealousy, it was feared, might be carried so far, as even to create an opposition to the laws of the union.

If the states should provide for their creditors, the same sum of money must be collected from the people, as would be required if the debt should be assumed; and it would probably be collected in a manner more burdensome, than if one uniform system should be established. If all should not make such provision, it would be unjust to leave the soldier of one state unpaid, while the services of the man who fought by his side were amply compensated; and, after having assumed the funds, it would dishonour the general government to permit a creditor for services rendered, or property advanced for the continent, to remain unsatisfied, because his claim had been transferred to the state, at a time when the state alone possessed the means of payment. By the injured and neglected creditor, such an arrangement might justly be considered as a disreputable artifice.

Instead of delaying, it was believed to be a measure which would facilitate the settlement of accounts between the states. Its advocates declared that they did not entertain, and never had entertained any wish to procrastinate a settlement. On the contrary, it was greatly desired by them. They had themselves brought forward propositions for that purpose; and they invited their adversaries to assist in improving the plan which had been introduced.

The settlement between the states, it was said, either would or would not be made. Should it ever take place, it would remedy any inequalities which

might grow out of the assumption. Should it never take place, the justice of the measure became the more apparent. That the burdens in support of a common war, which from various causes had devolved unequally on the states, ought to be apportioned among them, was a truth too clear to be controverted; and this, if the settlement should never be accomplished, could be effected only by the measure now proposed. Indeed, in any event, it would be the only certain, as well as only eligible plan. For how were the debtor states to be compelled to pay the balances which should be found against them?

If the measure was recommended by considerations which rendered its ultimate adoption inevitable, the present was clearly preferable to any future time. It was desirable immediately to quiet the minds of the public creditors by assuring them that justice would be done; to simplify the forms of public debt; and to put an end to that speculation which had been so much reprobated, and which could be terminated only by giving the debt a real and permanent value.

That the assumption would impair the just influence of the states was controverted with great strength of argument. The diffusive representation in the state legislatures, the intimate connexion between the representative and his constituents, the influence of the state legislatures over the members of one branch of the national legislature, the nature of the powers exercised by the state governments which perpetually presented them to the people in a point of view calculated to lay hold of the public affections, were guarantees that the states would retain their due weight in the political system, and that a debt was not necessary to the solidity or duration of their power.

But the argument it was said proved too much. If a debt was now essential to the preservation of state authority, it would always be so. It must therefore never be extinguished, but must be perpetuated, in order to secure the existence of the state governments. If, for this purpose, it was indispensable that the expenses of the revolutionary war should be borne by the states, it would not be less indispensable that the expenses of future wars should be borne in the same manner. Either the argument was unfounded, or the constitution was wrong; and the powers of the sword and the purse ought not to have been conferred on the government of the union. Whatever speculative opinions might be entertained on this point, they were

to administer the government according to the principles of the constitution as it was framed. But, it was added, if so much power follows the assumption as the objection implies, is it not time to ask—is it safe to forbear assuming? if the power is so dangerous, it will be so when exercised by the states. If assuming tends to consolidation, is the reverse, tending to disunion, a less weighty objection? if it is answered that the non-assumption will not necessarily tend to disunion; neither, it may be replied, does the assumption necessarily tend to consolidation.

It was not admitted that the assumption would tend to perpetuate the debt. It could not be presumed that the general government would be less willing than the local governments to discharge it; nor could it be presumed that the means were less attainable by the former than the latter.

It was not contended that a public debt was a public blessing. Whether a debt was to be preferred to no debt was not the question. The debt was already contracted: and the question, so far as policy might be consulted, was, whether it was more for the public advantage to give it such a form as would render it applicable to the purposes of a circulating medium, or to leave it a mere subject of speculation, incapable of being employed to any useful purpose. The debt was admitted to be an evil; but it was an evil from which, if wisely modified, some benefit might be extracted; and which, in its present state, could have only a mischievous operation.

If the debt should be placed on adequate funds, its operation on public credit could not be pernicious: in its present precarious condition, there was much more to be apprehended in that respect.

To the objection that it would accumulate in large cities, it was answered it would be a monied capital, and would be held by those who chose to place money at interest; but by funding the debt, the present possessors would be enabled to part with it at its nominal value, instead of selling it at its present current rate. If it should centre in the hands of foreigners, the sooner it was appreciated to its proper standard, the greater quantity of specie would its transfer bring into the United States.

To the injustice of charging those states which had made great exertions for the payment of their debts with the burden properly belonging to those which had not made such exertions, it was answered, that every state must be considered as having exerted itself to the utmost of its resources; and that if it could not, or would not make provision for creditors to whom the union

was equitably bound, the argument in favour of an assumption was the stronger.

The arguments drawn from local interests were repelled, and retorted, and a great degree of irritation was excited on both sides.

After a very animated discussion of several days, the question was taken, and the resolution was carried by a small majority. Soon after this decision, while the subject was pending before the house, the delegates from North Carolina took their seats, and changed the strength of parties. By a majority of two voices, the resolution was recommitted; and, after a long and ardent debate, was negatived by the same majority.

This proposition continued to be supported with a degree of earnestness which its opponents termed pertinacious, but not a single opinion was changed. It was brought forward in the new and less exceptionable form of assuming specific sums from each state. Under this modification of the principle, the extraordinary contributions of particular states during the war, and their exertions since the peace, might be regarded; and the objections to the measure, drawn from the uncertainty of the sum to be assumed, would be removed. But these alterations produced no change of sentiment; and the bill was sent up to the senate with a provision for those creditors only whose certificates of debt purported to be payable by the union.

In this state of things, the measure is understood to have derived aid from another, which was of a nature strongly to interest particular parts of the union.

From the month of June, 1783, when congress was driven from Philadelphia by the mutiny of a part of the Pennsylvania line, the necessity of selecting some place for a permanent residence, in which the government of the union might exercise sufficient authority to protect itself from violence and insult, had been generally acknowledged. Scarcely any subject had occupied more time, or had more agitated the members of the former congress than this.

Bill for fixing the permanent seat of government.

In December, 1784, an ordinance was passed for appointing commissioners to purchase land on the Delaware, in the neighbourhood of its falls, and to erect thereon the necessary public buildings for the reception of congress, and the officers of government; but the southern interest had been sufficiently strong to arrest the execution of this ordinance by

preventing an appropriation of funds, which required the assent of nine states. Under the existing government, this subject had received the early attention of congress; and many different situations from the Delaware to the Potomac inclusive, had been earnestly supported; but a majority of both houses had not concurred in favour of any one place. With as little success, attempts had been made to change the temporary residence of congress. Although New York was obviously too far to the east, so many conflicting interests were brought into operation whenever the subject was touched, that no motion designating a more central place, could succeed. At length, a compact respecting the temporary and permanent seat of government was entered into between the friends of Philadelphia, and the Potomac, stipulating that congress should adjourn to and hold its sessions in Philadelphia, for ten years, during which time, buildings for the accommodation of the government should be erected at some place on the Potomac, to which the government should remove at the expiration of the term. This compact having united the representatives of Pennsylvania and Delaware with the friends of the Potomac, in favour both of the temporary and permanent residence which had been agreed on between them, a majority was produced in favour of the two situations, and a bill which was brought into the senate in conformity with this previous arrangement, passed both houses by small majorities. This act was immediately followed by an amendment to the bill then pending before the senate for funding the debt of the union. The amendment was similar in principle to that which had been unsuccessfully proposed in the house of representatives. By its provisions, twenty-one millions five hundred thousand dollars of the state debts were assumed in specified proportions; and it was particularly enacted that no certificate should be received from a state creditor which could be "ascertained to have been issued for any purpose other than compensations and expenditures for services or supplies towards the prosecution of the late war, and the defence of the United States, or of some part thereof, during the same."

When the question was taken in the house of representatives on this amendment, two members representing districts on the Potomac, who, in all the previous stages of the business, had voted against the assumption, declared themselves in its favour; and thus the majority was changed.[\[45\]](#)

Thus was a measure carried, which was supported and opposed with a degree of zeal and earnestness not often manifested; and which furnished

presages, not to be mistaken, that the spirit with which the opposite opinions had been maintained, would not yield, contentedly, to the decision of a bare majority. This measure has constituted one of the great grounds of accusation against the first administration of the general government; and it is fair to acknowledge, that though, in its progress, it derived no aid from the President, whose opinion remained in his own bosom, it received the full approbation of his judgment.

A bill, at length, passed both houses, funding the debt upon principles which lessened considerably the weight of the public burdens, and was entirely satisfactory to the public creditors. The proceeds of the sales of the lands lying in the western territory, and, by a subsequent act of the same session, the surplus product of the revenue after satisfying the appropriations which were charged upon it, with the addition of two millions, which the President was authorized to borrow at five per centum, constituted a sinking fund to be applied to the reduction of the debt.

The effect of this measure was great and rapid. The public paper suddenly rose, and was for a short time above par. The immense wealth which individuals acquired by this unexpected appreciation, could not be viewed with indifference. Those who participated in its advantages, regarded the author of a system to which they were so greatly indebted, with an enthusiasm of attachment to which scarcely any limits were assigned. To many others, this adventitious collection of wealth in particular hands, was a subject rather of chagrin than of pleasure; and the reputation which the success of his plans gave to the secretary of the treasury, was not contemplated with unconcern. As if the debt had been created by the existing government, not by a war which gave liberty and independence to the United States, its being funded was ascribed by many, not to a sense of justice, and to a liberal and enlightened policy, but to the desire of bestowing on the government an artificial strength, by the creation of a monied interest which would be subservient to its will.

The effects produced by giving the debt a permanent value, justified the predictions of those whose anticipations had been most favourable. The sudden increase of monied capital derived from it, invigorated commerce, and gave a new stimulus to agriculture.

About this time, there was a great and visible improvement in the circumstances of the people. Although the funding system was certainly not

inoperative in producing this improvement, it can not be justly ascribed to any single cause. Progressive industry had gradually repaired the losses sustained by the war; and the influence of the constitution on habits of thinking and acting, though silent, was considerable. In depriving the states of the power to impair the obligation of contracts, or to make any thing but gold and silver a tender in payment of debts, the conviction was impressed on that portion of society which had looked to the government for relief from embarrassment, that personal exertions alone could free them from difficulties; and an increased degree of industry and economy was the natural consequence of this opinion.

Adjournment of congress.

On the 12th of August, after an arduous session, congress adjourned, to meet in Philadelphia the first Monday in the following December.

While the discussions in the national legislature related to subjects, and were conducted in a temper, well calculated to rouse the active spirit of party, the external relations of the United States wore an aspect not perfectly serene. To the hostile temper manifested by the Indians on the western and southern frontiers, an increased degree of importance was given by the apprehension that their discontents were fomented by the intrigues of Britain and of Spain. From Canada, the Indians of the north-west were understood to be furnished with the means of prosecuting a war which they were stimulated to continue; and, to the influence of the governor of the Floridas had been partly attributed the failure of the negotiation with the Creeks. That this influence would still be exerted to prevent a friendly intercourse with that nation was firmly believed; and it was feared that Spain might take a part in the open hostilities threatened by the irritable dispositions of individuals in both countries. From the intimate connexion subsisting between the members of the house of Bourbon, this event was peculiarly deprecated; and the means of avoiding it were sought with solicitude. These considerations determined the President to make another effort at negotiation; but, to preserve the respect of these savages for the United States, it was at the same time resolved that the agent to be employed should visit the country on other pretexts, and should carry a letter of introduction to M'Gillivray, blending with other subjects a strong representation of the miseries which a war with the United States would bring upon his people; and an earnest exhortation to repair with the chiefs

of his nation to the seat of the federal government, in order to effect a solid and satisfactory peace. Colonel Willett was selected for this service; and he acquitted himself so well of the duty assigned to him, as to induce the chiefs of the nation, with M'Gillivray at their head, to repair to New York, where negotiations were opened which terminated in a treaty of peace,[\[46\]](#) signed on the 7th day of August.[\[47\]](#)

Treaty with the Creek Indians.

The pacific overtures made to the Indians of the Wabash and the Miamis not having been equally successful, the western frontiers were still exposed to their destructive incursions. A long course of experience had convinced the President that, on the failure of negotiation, sound policy and true economy, not less than humanity, required the immediate employment of a force which should carry death and destruction into the heart of the hostile settlements. Either not feeling the same impressions, or disposed to indulge the wishes of the western people, who declared openly their preference for desultory military expeditions, congress did not adopt measures corresponding with the wishes of the executive, and the military establishment[\[48\]](#) was not equal to the exigency. The distresses of the frontier establishment, therefore, still continued; and the hostility they had originally manifested to the constitution, sustained no diminution.

United States in relations with Great Britain and Spain.

No progress had been made in adjusting the points of controversy with Spain and Britain. With the former power, the question of boundary remained unsettled; and the cabinet of Madrid discovered no disposition to relax the rigour of its pretensions respecting the navigation of the Mississippi. Its general conduct furnished no foundation for a hope that its dispositions towards the United States were friendly, or that it could view their growing power without jealousy.

The non-execution of the 4th, 5th, 6th, and 7th articles of the treaty of peace, still furnished the United States and Great Britain with matter for reciprocal crimination, which there was the more difficulty in removing, because no diplomatic intercourse was maintained between them. The cabinet of St. James having never appointed a minister to the United States, and Mr. Adams having returned from London without effecting the object of his mission, the American government felt some difficulty in repeating advances which had been treated with neglect. Yet there was much reason

to desire full explanations with the English government, and to understand perfectly its views and intentions. The subjects for discussion were delicate in their nature, and could not be permitted to remain in their present state, without hazarding the most serious consequences. The detention of a part of the territory of the United States, was a circumstance of much importance to the honour, as well as to the interests of the nation, and the commercial intercourse between the two countries was so extensive, as to require amicable and permanent regulations. The early attention of the President had been directed to these subjects; and, in October, 1789, he had resolved on taking informal measures to sound the British cabinet, and to ascertain its views respecting them. This negotiation was entrusted to Mr. Gouverneur Morris, who had been carried by private business to Europe; and he conducted it with ability and address, but was unable to bring it to a happy conclusion. The result of his conferences with the Duke of Leeds, and with Mr. Pitt, was a conviction that the British government, considering the posts they occupied on the southern side of the great lakes as essential to their monopoly of the fur trade, would surrender them reluctantly, and was not desirous of entering into a commercial treaty. Those ministers expressed a wish to be on the best terms with America; but repeated the complaints which had been previously made by Lord Carmarthen, of the non-execution of the treaty of peace on the part of the United States. To the observations made by Mr. Morris, that the constitution lately adopted, and the courts established under it, amounted to a full compliance with that treaty on the part of the American government, it was answered, that losses had already been sustained in consequence of the obstructions given by the states to the fair operation of that instrument, which rendered a faithful observance of it, at present, impossible; and, in a note, the Duke of Leeds avowed the intention, if the delay on the part of the American government to fulfil its engagements made in the treaty should have rendered their final completion impracticable, to retard the fulfilment of those which depended entirely on Great Britain, until redress should be granted to the subjects of his majesty on the specific points of the treaty itself, or a fair and just compensation obtained for the non-performance of those stipulations which the United States had failed to observe. Though urged by Mr. Morris to state explicitly in what respects, and to what degree, he considered the final completion of those engagements to which the United States were bound, as having been rendered impracticable, no such statement was given; and the

British government seemed inclined to avoid, for the present, those full and satisfactory explanations, which were sought on the part of the United States.

After detailing the motives which in his opinion influenced the English cabinet in wishing to suspend for a time all discussions with America, Mr. Morris observed, "perhaps there never was a moment in which this country felt herself greater; and consequently, it is the most unfavourable moment to obtain advantageous terms from her in any bargain."

Whilst these negotiations were pending, intelligence was received at London of the attack made on the British settlement at Nootka Sound; and preparations were instantly made to resent the insult alleged to have been offered to the nation. The high ground taken on this occasion by the government, and the vigour with which it acted in support of its pretensions, furnished strong reasons for the opinion that a war with Spain, and probably with France, would soon be commenced.

In America, this was considered as a favourable juncture for urging the claims of the United States to the free navigation of the Mississippi. Mr. Carmichael, their charge d'affaires at the court of Madrid, was instructed not only to press this point with earnestness, but to use his utmost endeavours to secure the unmolested use of that river in future, by obtaining a cession of the island of New Orleans, and of the Floridas. A full equivalent for this cession would be found, it was said, in the sincere friendship of the United States, and in the security it would give to the territories of Spain, west of the Mississippi.

Mr. Carmichael was also instructed to point the attention of the Spanish government to the peculiar situation of the United States. To one half of their territory, the use of the Mississippi was indispensable. No efforts could prevent their acquiring it. That they would acquire it, either by acting separately, or in conjunction with Great Britain, was one of those inevitable events against which human wisdom could make no provision. To the serious consideration of the Spanish government, therefore, were submitted the consequences which must result to their whole empire in America, either from hostilities with the United States, or from a seizure of Louisiana by Great Britain.

The opinion, that in the event of war between Great Britain and Spain, Louisiana would be invaded from Canada, was not a mere suggestion for

the purpose of aiding the negotiations at Madrid. It was seriously adopted by the American government; and the attention of the executive was turned to the measures which it would be proper to take, should application be made for permission to march a body of troops, through the unsettled territories of the United States, into the dominions of Spain; or should the attempt be made to march them, without permission.

Among the circumstances which contributed to the opinion that, in the event of war, the arms of Great Britain would be directed against the settlements of Spain in America, was the continuance of Lord Dorchester in the government of Canada. This nobleman had intimated a wish to visit New York on his return to England; but the prospect of a rupture with Spain had determined him to remain in Canada. Under the pretext of making his acknowledgments for the readiness with which his desire to pass through New York had been acceded to, his lordship despatched Major Beck with, a member of his family, to sound the American government, and if possible, to ascertain its dispositions towards the two nations. Alluding to the negotiations which had been commenced in London, this gentleman endeavoured to assign a satisfactory cause for the delays which had intervened. It was not improbable, he said, that these delays, and some other circumstances, might have impressed Mr. Morris with an idea of backwardness on the part of the British ministry. His lordship, however, had directed him to say, that an inference of this sort would not, in his opinion, be well founded, as he had reason to believe that the British cabinet was inclined not only towards a friendly intercourse, but towards an alliance with the United States.

Major Beckwith represented the particular ground of quarrel as one which ought to interest all commercial nations in favour of the views of Great Britain; and, from that circumstance, he presumed that, should a war ensue, the United States would find their interest in taking part with Britain, rather than with Spain.

After expressing the concern with which Lord Dorchester had heard of the depredations of the savages on the western frontier of the United States, he declared that his lordship, so far from countenancing these depredations, had taken every proper opportunity to impress upon the Indians a pacific disposition; and that, on his first hearing of the outrages lately committed, he had sent a messenger to endeavour to prevent them. Major Beckwith

further intimated, that the perpetrators of the late murders were banditti, composed chiefly of Creeks and Cherokees, in the Spanish interest, over whom the governor of Canada possessed no influence.

These communications were laid before the President, and appeared to him to afford an explanation of the delays experienced by Mr. Morris. He was persuaded that a disposition existed in the cabinet of London to retain things in their actual situation, until the intentions of the American government should be ascertained with respect to the war supposed to be approaching. If the United States would enter into an alliance with Great Britain, and would make a common cause with her against Spain, the way would be smoothed to the attainment of all their objects: but if America should be disinclined to such a connexion, and especially, if she should manifest any partiality towards Spain, no progress would be made in the attempt to adjust the point of difference between the two nations. Taking this view of the subject, he directed that the further communications of Mr. Beckwith should be heard civilly, and that their want of official authenticity should be hinted delicately, without using any expressions which might, in the most remote degree, impair the freedom of the United States, to pursue, without reproach, in the expected war, such a line of conduct as their interests or honour might dictate.

In the opinion that it would not only be useless but dishonourable further to press a commercial treaty, or the exchange of ministers, and that the subject of the western posts ought not again to be moved on the part of the United States, until they should be in a condition to speak a decisive language, the powers given to Mr. Morris were withdrawn. Should the interest of Britain produce a disposition favourable to an amicable arrangement of differences, and to a liberal commercial intercourse secured by compact, it was believed that she would make the requisite advances; until then, or until some other change of circumstances should require a change of conduct, things were to remain in their actual situation.

About the time of adopting this resolution, the dispute between Britain and Spain was adjusted. Finding France unwilling to engage in his quarrel, his Catholic Majesty, too weak to encounter alone the force of the British empire, yielded every point in controversy; and thus were terminated for the present, both the fear of inconveniences, and the hope of advantages which might result to America from hostilities between the two powers, whose

dominions were in her neighbourhood, and with each of whom she was already engaged in controversies not easily to be accommodated.

The president visits Mount Vernon.

Incessant application to public business, and the consequent change of active for sedentary habits, had greatly impaired the constitution of the President; and, during the last session of congress, he had, for the second time since entering on the duties of his present station, been attacked by a severe disease which reduced him to the brink of the grave. Exercise and a temporary relief from the cares of office being essential to the restoration of his health, he determined, for the short interval afforded by the recess of the legislature, to retire to the tranquil shades of Mount Vernon. After returning from a visit to Rhode Island,[\[49\]](#) which state not having then adopted the American constitution, had not been included in his late tour through New England, he took leave of New York; and hastened to that peaceful retreat, and those rural employments, his taste for which neither military glory, nor political power, could ever diminish.

After a short indulgence in these favourite scenes, it became necessary to repair to Philadelphia, in order to meet the national legislature.

The president's speech.

In the speech delivered to congress at the commencement of their third session, the President expressed much satisfaction at the favourable prospect of public affairs; and particularly noticed the progress of public credit, and the productiveness of the revenue.

Adverting to foreign nations,[\[50\]](#) he said, "the disturbed situation of Europe, and particularly the critical posture of the great maritime powers, whilst it ought to make us more thankful for the general peace and security enjoyed by the United States, reminds us at the same time of the circumspection with which it becomes us to preserve these blessings. It requires also, that we should not overlook the tendency of a war, and even of preparations for war among the nations most concerned in active commerce with this country, to abridge the means, and thereby at least to enhance the price, of transporting its valuable productions to their proper market." To the serious reflection of congress was recommended the prevention of embarrassments from these contingencies, by such encouragement to American navigation as would render the commerce and agriculture of the United States less dependent on foreign bottoms.

After expressing to the house of representatives his confidence arising from the sufficiency of the revenues already established, for the objects to which they were appropriated, he added, "allow me moreover to hope that it will be a favourite policy with you not merely to secure a payment of the interest of the debt funded, but as far, and as fast as the growing resources of the country will permit, to exonerate it of the principal itself." Many subjects relative to the interior government were succinctly and briefly mentioned; and the speech concluded with the following impressive and admonitory sentiment. "In pursuing the various and weighty business of the present session, I indulge the fullest persuasion that your consultations will be marked with wisdom, and animated by the love of country. In whatever belongs to my duty, you shall have all the co-operation which an undiminished zeal for its welfare can inspire. It will be happy for us both, and our best reward, if by a successful administration of our respective trusts, we can make the established government more and more instrumental in promoting the good of our fellow citizens, and more and more the object of their attachment and confidence."

The addresses of the two houses, in answer to the speech, proved that the harmony between the executive and legislative departments, with which the government had gone into operation, had sustained no essential interruption. But in the short debate which took place on the occasion, in the house of representatives, a direct disapprobation of one of the measures of the executive government was, for the first time, openly expressed.

In the treaty lately concluded with the Creeks, an extensive territory claimed by Georgia, under treaties, the validity of which was contested by the Indian chiefs, had been entirely, or in great part, relinquished. This relinquishment excited serious discontents in that state; and was censured by General Jackson with considerable warmth, as an unjustifiable abandonment of the rights and interests of Georgia. No specific motion, however, was made, and the subject was permitted to pass away for the present.

Scarcely were the debates on the address concluded, when several interesting reports were received from the secretary of the treasury, suggesting such further measures as were deemed necessary for the establishment of public credit.

It will be recollected that in his original report on this subject, the secretary had recommended the assumption of the state debts; and had proposed to enable the treasury to meet the increased demand upon it, which this measure would occasion, by an augmentation of the duties on imported wines, spirits, tea, and coffee, and by imposing duties on spirits distilled within the country. The assumption not having been adopted until late in the session, the discussion on the revenue which would be required for this portion of the public debt did not commence, until the house had become impatient for an adjournment. As much contrariety of opinion was disclosed, and the subject did not press,[\[51\]](#) it was deferred to the ensuing session; and an order was made, requiring the secretary of the treasury to prepare and report such further provision as might, in his opinion, be necessary for establishing the public credit. In obedience to this order, several reports had been prepared, the first of which repeated the recommendation of an additional impost on foreign distilled spirits, and of a duty on spirits distilled within the United States. The estimated revenue from these sources was eight hundred and seventy-seven thousand five hundred dollars, affording a small excess over the sum which would be

required to pay the interest on the assumed debt. The policy of the measure was discussed in a well digested and able argument, detailing many motives, in addition to those assigned in his original report, for preferring the system now recommended, to accumulated burdens on commerce, or to a direct tax on lands.

A new tax is the certain rallying point for all those who are unfriendly to the administration, or to the minister by whom it is proposed. But that recommended by the secretary, contained intrinsic causes of objection which would necessarily add to the number of its enemies. All that powerful party in the United States, which attached itself to the local, rather than to the general government, would inevitably contemplate any system of internal revenue with jealous disapprobation. They considered the imposition of a tax by congress on any domestic manufacture, as the intrusion of a foreign power into their particular concerns, which excited serious apprehensions for state importance, and for liberty. In the real or supposed interests of many individuals was also found a distinct motive for hostility to the measure. A large portion of the American population, especially that which had spread itself over the extensive regions of the west, consuming imported articles to a very inconsiderable amount, was not much affected by the impost on foreign merchandize. But the duty on spirits distilled within the United States reached them, and consequently rendered them hostile to the tax.

1791

Debate on the excise law.

A bill, which was introduced in pursuance of the report, was opposed with great vehemence by a majority of the southern and western members. By some of them it was insisted that no sufficient testimony had yet been exhibited, that the taxes already imposed would not be equal to the exigencies of the public. But, admitting the propriety of additional burdens on the people, it was contended that other sources of revenue, less exceptionable and less odious than this, might be explored. The duty was branded with the hateful epithet of an excise, a species of taxation, it was said, so peculiarly oppressive as to be abhorred even in England; and which was totally incompatible with the spirit of liberty. The facility with which it might be extended to other objects, was urged against its admission into the American system; and declarations made against it by the congress of 1775,

were quoted in confirmation of the justice with which inherent vices were ascribed to this mode of collecting taxes. So great was the hostility manifested against it in some of the states, that the revenue officers might be endangered from the fury of the people; and, in all, it would increase a ferment which had been already extensively manifested. Resolutions of Maryland, Virginia, and North Carolina, reprobating the assumption, were referred to as unequivocal evidences of growing dissatisfaction; and the last mentioned state had even expressed its decided hostility to any law of excise. The legislature of North Carolina had rejected with scorn, a proposal for taking an oath to support the constitution of the United States; had refused to admit persons sentenced to imprisonment under the laws of the United States into their jails; and another circumstance was alluded to, but not explained, which was said to exhibit a temper still more hostile to the general government than either of those which had been stated.

When required to produce a system in lieu of that which they so much execrated, the opponents of the bill alternately mentioned an increased duty on imported articles generally, a particular duty on molasses, a direct tax, a tax on salaries, pensions, and lawyers; a duty on newspapers, and a stamp act.

The friends of the bill contended, that the reasons for believing the existing revenue would be insufficient to meet the engagements of the United States, were as satisfactory as the nature of the case would admit, or as ought to be required. The estimates were founded on the best data which were attainable, and the funds already provided, had been calculated by the proper officer to pay the interest on that part of the debt only for which they were pledged. Those estimates were referred to as documents, from which it would be unsafe to depart. They were also in possession of official statements, showing the productiveness of the taxes from the time the revenue bill had been in operation; and arguments were drawn from these, demonstrating the danger to which the infant credit of the United States would be exposed, by relying on the existing funds for the interest on the assumed debt. It was not probable that the proposed duties would yield a sum much exceeding that which would be necessary; but should they fortunately do so, the surplus revenue might be advantageously employed in extinguishing a part of the principal. They were not, they said, of opinion, that a public debt was a public blessing, or that it ought to be perpetuated.

An augmentation of the revenue being indispensable to the solidity of the public credit, a more eligible system than that proposed in the bill, could not, it was believed, be devised. Still further to burden commerce, would be a hazardous experiment which might afford no real supplies to the treasury. Until some lights should be derived from experience, it behoved the legislature to be cautious not to lay such impositions upon trade as might probably introduce a spirit of smuggling, which, with a nominal increase, would occasion a real diminution of revenue. In the opinion of the best judges, the impost on the mass of foreign merchandise could not safely be carried further for the present. The extent of the mercantile capital of the United States would not justify the attempt. Forcible arguments were also drawn from the policy and the justice of multiplying the subjects of taxation, and diversifying them by a union of internal with external objects.

Neither would a direct tax be adviseable. The experience of the world had proved, that a tax on consumption was less oppressive, and more productive, than a tax on either property or income. Without discussing the principles on which the fact was founded, the fact itself was incontestable, that, by insensible means, much larger sums might be drawn from any class of men, than could be extracted from them by open and direct taxes. To the latter system there were still other objections. The difficulty of carrying it into operation, no census having yet been taken, would not be inconsiderable; and the expense of collection through a country thinly settled, would be enormous. Add to this, that public opinion was believed to be more decidedly and unequivocally opposed to it, than to a duty on ardent spirits. North Carolina had expressed her hostility to the one as well as to the other, and several other states were known to disapprove of direct taxes. From the real objections which existed against them, and for other reasons suggested in the report of the secretary, they ought, it was said, to remain untouched, as a resource when some great emergency should require an exertion of all the faculties of the United States.

Against the substitution of a duty on internal negotiations, it was said, that revenue to any considerable extent could be collected from them only by means of a stamp act, which was not less obnoxious to popular resentment than an excise, would be less certainly productive than the proposed duties, and was, in every respect, less eligible.

The honour, the justice, and the faith of the United States were pledged, it was said, to that class of creditors for whose claims the bill under consideration was intended to provide. No means of making the provision had been suggested, which, on examination, would be found equally eligible with a duty on ardent spirits. Much of the public prejudice which appeared in certain parts of the United States against the measure, was to be ascribed to their hostility to the term "excise," a term which had been inaccurately applied to the duty in question. When the law should be carried into operation, it would be found not to possess those odious qualities which had excited resentment against a system of excise. In those states where the collection of a duty on spirits distilled within the country had become familiar to the people, the same prejudices did not exist. On the good sense and virtue of the nation they could confidently rely for acquiescence in a measure which the public exigencies rendered necessary, which tended to equalize the public burdens, and which in its execution would not be oppressive.

A motion made by Mr. Jackson, to strike out that section which imposed a duty on domestic distilled spirits, was negatived by thirty-six to sixteen; and the bill was carried by thirty-five to twenty-one.

Some days after the passage of this bill, another question was brought forward, which was understood to involve principles of deep interest to the government.

On a national bank.

The secretary of the treasury had been the uniform advocate of a national bank. Believing that such an institution would be "of primary importance to the prosperous administration of the finances; and of the greatest utility in the operations connected with the support of public credit," he had earnestly recommended its adoption in the first general system which he presented to the view of congress; and, at the present session, had repeated that recommendation in a special report, containing a copious and perspicuous argument on the policy of the measure. A bill conforming to the plan he suggested was sent down from the senate, and was permitted to proceed, unmolested, in the house of representatives, to the third reading. On the final question, a great, and, it would seem, an unexpected opposition was made to its passage. Mr. Madison, Mr. Giles, Mr. Jackson, and Mr. Stone spoke against it. The general utility of banking systems was not admitted,

and the particular bill before the house was censured on its merits; but the great strength of the argument was directed against the constitutional authority of congress to pass an act for incorporating a national bank.

The government of the United States, it was said, was limited; and the powers which it might legitimately exercise were enumerated in the constitution itself. In this enumeration, the power now contended for was not to be found. Not being expressly given, it must be implied from those which were given, or it could not be vested in the government. The clauses under which it could be claimed were then reviewed and critically examined; and it was contended that, on fair construction, no one of these could be understood to imply so important a power as that of creating a corporation.

The clause which enables congress to pass all laws necessary and proper to execute the specified powers, must, according to the natural and obvious force of the terms and the context, be limited to means *necessary* to the *end* and *incident* to the *nature* of the specified powers. The clause, it was said, was in fact merely declaratory of what would have resulted by unavoidable implication, as the appropriate, and as it were technical means of executing those powers. Some gentlemen observed, that "the true exposition of a necessary mean to produce a given end was that mean without which the end could not be produced."

The bill was supported by Mr. Ames, Mr. Sedgwick, Mr. Smith, of South Carolina, Mr. Lawrence, Mr. Boudinot, Mr. Gerry, and Mr. Vining.

The utility of banking institutions was said to be demonstrated by their effects. In all commercial countries they had been resorted to as an instrument of great efficacy in mercantile transactions; and even in the United States, their public and private advantages had been felt and acknowledged.

Respecting the policy of the measure, no well founded doubt could be entertained; but the objections to the constitutional authority of congress deserved to be seriously considered.

That the government was limited by the terms of its creation was not controverted; and that it could exercise only those powers which were conferred on it by the constitution, was admitted. If, on examination, that instrument should be found to forbid the passage of the bill, it must be rejected, though it would be with deep regret that its friends would suffer

such an opportunity of serving their country to escape for the want of a constitutional power to improve it.

In asserting the authority of the legislature to pass the bill, gentlemen contended, that incidental as well as express powers must necessarily belong to every government: and that, when a power is delegated to effect particular objects, all the known and usual means of effecting them, must pass as incidental to it. To remove all doubt on this subject, the constitution of the United States had recognized the principle, by enabling congress to make all laws which may be necessary and proper for carrying into execution the powers vested in the government. They maintained the sound construction of this grant to be a recognition of an authority in the national legislature, to employ all the known and usual means for executing the powers vested in the government. They then took a comprehensive view of those powers, and contended that a bank was a known and usual instrument by which several of them were exercised.

After a debate of great length, which was supported on both sides with ability, and with that ardour which was naturally excited by the importance attached by each party to the principle in contest, the question was put, and the bill was carried in the affirmative by a majority of nineteen voices.

The opinions of the cabinet on the constitutionality of this last law.

The point which had been agitated with so much zeal in the house of representatives, was examined with equal deliberation by the executive. The cabinet was divided upon it. The secretary of state, and the attorney general, conceived that congress had clearly transcended their constitutional powers; while the secretary of the treasury, with equal clearness, maintained the opposite opinion. The advice of each minister, with his reasoning in support of it, was required in writing, and their arguments were considered by the President with all that attention which the magnitude of the question, and the interest taken in it by the opposing parties, so eminently required. This deliberate investigation of the subject terminated in a conviction, that the constitution of the United States authorized the measure;[\[52\]](#) and the sanction of the executive was given to the act.

Progress of parties.

The judgment is so much influenced by the wishes, the affections, and the general theories of those by whom any political proposition is decided, that a contrariety of opinion on this great constitutional question ought to

excite no surprise. It must be recollected that the conflict between the powers of the general and state governments was coeval with those governments. Even during the war, the preponderance of the states was obvious; and, in a very few years after peace, the struggle ended in the utter abasement of the general government. Many causes concurred to produce a constitution which was deemed more competent to the preservation of the union, but its adoption was opposed by great numbers; and in some of the large states especially, its enemies soon felt and manifested their superiority. The old line of division was still as strongly marked as ever. Many retained the opinion that liberty could be endangered only by encroachments upon the states; and that it was the great duty of patriotism to restrain the powers of the general government within the narrowest possible limits.

In the other party, which was also respectable for its numbers, many were found who had watched the progress of American affairs, and who sincerely believed that the real danger which threatened the republic was to be looked for in the undue ascendancy of the states. To them it appeared, that the substantial powers, and the extensive means of influence, which were retained by the local sovereignties, furnished them with weapons for aggression which were not easily to be resisted, and that it behoved all those who were anxious for the happiness of their country, to guard the equilibrium established in the constitution, by preserving unimpaired, all the legitimate powers of the union. These were more confirmed in their sentiments, by observing the temper already discovered in the legislatures of several states, respecting the proceedings of congress.

To this great and radical division of opinion, which would necessarily affect every question on the authority of the national legislature, other motives were added, which were believed to possess considerable influence on all measures connected with the finances.

As an inevitable effect of the state of society, the public debt had greatly accumulated in the middle and northern states, whose inhabitants had derived, from its rapid appreciation, a proportional augmentation of their wealth. This circumstance could not fail to contribute to the complacency with which the plans of the secretary were viewed by those who had felt their benefit, nor to the irritation with which they were contemplated by others who had parted with their claims on the nation. It is not impossible,

that personal considerations also mingled themselves with those which were merely political.

With so many causes to bias the judgment, it would not have been wonderful if arguments less plausible than those advanced by either party had been deemed conclusive on its adversary; nor was it a matter of surprise that each should have denied to those which were urged in opposition, the weight to which they were certainly entitled. The liberal mind which can review them without prejudice, will charge neither the supporters nor the opponents of the bill with insincerity, nor with being knowingly actuated by motives which might not have been avowed.

This measure made a deep impression on many members of the legislature; and contributed, not inconsiderably, to the complete organization of those distinct and visible parties, which, in their long and dubious conflict for power, have since shaken the United States to their centre.

Among the last acts of the present congress, was an act to augment the military establishment of the United States.

War with the Indians.

The earnest endeavours of the President to give security to the north-western frontiers, by pacific arrangements, having been entirely unavailing, it became his duty to employ such other means as were placed in his hands, for the protection of the country. Confirmed by all his experience in the opinion that vigorous offensive operations alone could bring an Indian war to a happy conclusion, he had planned an expedition against the hostile tribes north-west of the Ohio, as soon as the impracticability of effecting a treaty with them had been ascertained.

General Harmar, a veteran of the revolution, who had received his appointment under the former government, was placed at the head of the federal troops. On the 30th of September, he marched from fort Washington with three hundred and twenty regulars. The whole army when joined by the militia of Pennsylvania and Kentucky amounted to fourteen hundred and fifty-three men. About the middle of October, Colonel Harden, who commanded the Kentucky militia, and who had been also a continental officer of considerable merit, was detached at the head of six hundred men, chiefly militia, to reconnoitre the ground, and to ascertain the intentions of the enemy. On his approach, the Indians set fire to their principal village,

and fled with precipitation to the woods. As the object of the expedition would be only half accomplished, unless the savages could be brought to action and defeated, Colonel Harden was again detached at the head of two hundred and ten men, thirty of whom were regulars. About ten miles west of Chilicothe, where the main body of the army lay, he was attacked by a party of Indians. The Pennsylvanians, who composed his left column, had previously fallen in the rear; and the Kentuckians, disregarding the exertions of their colonel, and of a few other officers, fled on the first appearance of an enemy. The small corps of regulars commanded by Lieutenant Armstrong made a brave resistance. After twenty-three of them had fallen in the field, the surviving seven made their escape and rejoined the army.

Defeat of Harmar.

Notwithstanding this check, the remaining towns on the Scioto were reduced to ashes, and the provisions laid up for the winter were entirely destroyed. This service being accomplished, the army commenced its march towards fort Washington. Being desirous of wiping off the disgrace which his arms had sustained, General Harmar halted about eight miles from Chilicothe, and once more detached Colonel Harden with orders to find the enemy and bring on an engagement. His command consisted of three hundred and sixty men, of whom sixty were regulars commanded by Major Wyllys. Early the next morning, this detachment reached the confluence of the St. Joseph and St. Mary, where it was divided into three columns. The left division, commanded by Colonel Harden in person, crossed the St. Joseph, and proceeded up its western bank. The centre, consisting of the federal troops, was led by Major Wyllys up the eastern side of that river; and the right, under the command of Major M'Millan, marched along a range of heights which commanded the right flank of the centre division. The columns had proceeded but a short distance, when each was met by a considerable body of Indians, and a severe engagement ensued. The militia retrieved their reputation, and several of their bravest officers fell. The heights on the right having been, from some cause not mentioned, unoccupied by the American troops, the savages seized them early in the action, and attacked the right flank of the centre with great fury. Although Major Wyllys was among the first who fell, the battle was maintained by the regulars with spirit, and considerable execution was done on both sides. At length, the scanty remnant of this small band, quite overpowered by

numbers, was driven off the ground, leaving fifty of their comrades, exclusive of Major Wyllys and Lieutenant Farthingham, dead upon the field. The loss sustained by the militia was also considerable. It amounted to upwards of one hundred men, among whom were nine officers. After an engagement of extreme severity, the detachment joined the main army, which continued its march to fort Washington.

General Harmar, with what propriety it is not easy to discern, claimed the victory. He conceived, not entirely without reason, that the loss of a considerable number of men, would be fatal to the Indians, although a still greater loss should be sustained by the Americans, because the savages did not possess a population from which they could replace the warriors who had fallen. The event, however, did not justify this opinion.

The information respecting this expedition was quickly followed by intelligence stating the deplorable condition of the frontiers. An address from the representatives of all the counties of Kentucky, and those of Virginia bordering on the Ohio, was presented to the President, praying that the defence of the country might be committed to militia unmixed with regulars, and that they might immediately be drawn out to oppose "the exulting foe." To this address, the President gave a conciliatory answer, but he understood too well the nature of the service, to yield to the request it contained. Such were his communications to the legislature, that a regiment was added to the permanent military establishment, and he was authorized to raise a body of two thousand men, for six months, and to appoint a major general, and a brigadier general, to continue in command so long as he should think their services necessary.

Adjournment of congress.

With the 3d of March, 1791, terminated the first congress elected under the constitution of the United States. The party denominated federal having prevailed at the elections, a majority of the members were steadfast friends of the constitution, and were sincerely desirous of supporting a system they had themselves introduced, and on the preservation of which, in full health and vigour, they firmly believed the happiness of their fellow citizens, and the respectability of the nation, greatly to depend. To organize a government, to retrieve the national character, to establish a system of revenue, and to create public credit, were among the arduous duties which were imposed upon them by the political situation of their country. With

persevering labour, guided by no inconsiderable portion of virtue and intelligence, these objects were, in a great degree, accomplished. Out of the measures proposed for their attainment, questions alike intricate and interesting unavoidably arose. It is not in the nature of man to discuss such questions without strongly agitating the passions, and exciting irritations which do not readily subside. Had it even been the happy and singular lot of America to see its national legislature assemble uninfluenced by those prejudices which grew out of the previous divisions of the country, the many delicate points which they were under the necessity of deciding, could not have failed to disturb this enviable state of harmony, and to mingle some share of party spirit with their deliberations. But when the actual state of the public mind was contemplated, and due weight was given to the important consideration that, at no very distant day, a successor to the present chief magistrate must be elected, it was still less to be hoped that the first congress could pass away, without producing strong and permanent dispositions in parties, to impute to each other designs unfriendly to the public happiness. As yet, however, these imputations did not extend to the President. His character was held sacred, and the purity of his motives was admitted by all. Some divisions were understood to have found their way into the cabinet. It was insinuated that between the secretaries of state and of the treasury, very serious differences had arisen; but these high personages were believed, to be equally attached to the President, who was not suspected of undue partiality to either. If his assent to the bill for incorporating the national bank produced discontent, the opponents of that measure seemed disposed to ascribe his conduct, in that instance, to his judgment, rather than to any prepossession in favour of the party by whom it was carried. The opposition, therefore, in congress, to the measures of the government, seemed to be levelled at the secretary of the treasury, and at the northern members by whom those measures were generally supported, not at the President by whom they were approved. By taking this direction, it made its way into the public mind, without being encountered by that devoted affection which a great majority of the people felt for the chief magistrate of the union. In the mean time, the national prosperity was in a state of rapid progress; and the government was gaining, though slowly, in the public opinion. But in several of the state assemblies, especially in the southern division of the continent, serious evidences of dissatisfaction were

exhibited, which demonstrated the jealousy with which the local sovereignties contemplated the powers exercised by the federal legislature.

CHAPTER VII.

General St. Clair appointed Commander-in-chief.... The President makes a tour through the southern states.... Meeting of congress.... President's speech.... Debate on the bill for apportioning representatives.... Militia law.... Defeat of St. Clair.... Opposition to the increase of the army.... Report of the Secretary of the Treasury for raising additional supplies.... Congress adjourns.... Strictures on the conduct of administration, with a view of parties.... Disagreement between the Secretaries of State and Treasury.... Letters from General Washington.... Opposition to the excise law.... President's proclamation.... Insurrection and massacre in the island of St. Domingo.... General Wayne appointed to the command of the army.... Meeting of Congress.... President's speech.... Resolutions implicating the Secretary of the Treasury rejected.... Congress adjourns.... Progress of the French revolution, and its effects on parties in the United States.

1791

More ample means for the protection of the frontiers having been placed in the hands of the executive, the immediate attention of the President was directed to this interesting object.

General St. Clair appointed commander-in-chief of the army.

Major General Arthur St. Clair, governor of the territory north-west of the Ohio, was appointed Commander-in-chief of the forces to be employed in the meditated expedition. This gentleman had served through the war of the revolution with reputation, though it had never been his fortune to distinguish himself. The evacuation of Ticonderoga had indeed, at one time, subjected him to much public censure; but it was found, upon inquiry, to be unmerited. Other motives, in addition to the persuasion of his fitness for the service, conduced to his appointment. With the sword, the olive branch was still to be tendered; and it was thought adviseable to place them in the same hands. The governor, having been made officially the negotiator with the tribes inhabiting the territories over which he presided, being a military

man, acquainted with the country into which the war was to be carried, possessing considerable influence with the inhabitants of the frontiers, and being so placed as to superintend the preparations for the expedition advantageously, seemed to have claims to the station which were not to be overlooked. It was also a consideration of some importance, that the high rank he had held in the American army, would obviate those difficulties in filling the inferior grades with men of experience, which might certainly be expected, should a person who had acted in a less elevated station, be selected for the chief command.



Tomb of Mary, Mother of Washington

This is the original monument as it appeared before the present granite obelisk was erected over the grave of George Washington's mother in Fredericksburg, Virginia. It was in Fredericksburg that she made her home during her declining years, and it was on the Kenmore estate of her daughter, Elizabeth, and son-in-law, Fielding Lewis, that she was buried, September, 1789, having survived her husband, Augustine Washington, forty-six years.

The president makes a tour through the southern states.

After making the necessary arrangements for recruiting the army, the President prepared to make his long contemplated tour through the southern states.^[53] In passing through them, he was received universally with the same marks of affectionate attachment, which he had experienced in the northern and central parts of the union. To the sensibilities which these demonstrations of the regard and esteem of good men could not fail to inspire, was added the high gratification produced by observing the rapid improvements of the country, and the advances made by the government, in acquiring the confidence of the people. The numerous letters written by him after his return to Philadelphia, attest the agreeable impressions made by these causes. "In my late tour through the southern states," said he, in a letter of the 28th of July, to Mr. Gouverneur Morris, "I experienced great satisfaction in seeing the good effects of the general government in that part of the union. The people at large have felt the security which it gives, and the equal justice which it administers to them. The farmer, the merchant, and the mechanic, have seen their several interests attended to, and from thence they unite in placing a confidence in their representatives, as well as in those in whose hands the execution of the laws is placed. Industry has there taken place of idleness, and economy of dissipation. Two or three years of good crops, and a ready market for the produce of their lands, have put every one in good humour; and, in some instances, they even impute to the government what is due only to the goodness of Providence.

"The establishment of public credit is an immense point gained in our national concerns. This, I believe, exceeds the expectation of the most sanguine among us; and a late instance, unparalleled in this country, has been given of the confidence reposed in our measures, by the rapidity with which the subscriptions to the bank of the United States were filled. In two hours after the books were opened by the commissioners, the whole number of shares was taken up, and four thousand more applied for than were allowed by the institution. This circumstance was not only pleasing as it related to the confidence in government, but also as it exhibited an unexpected proof of the resources of our citizens."

This visit had undoubtedly some tendency to produce the good disposition which the President observed with so much pleasure. The affections are perhaps more intimately connected with the judgment than we are disposed to admit; and the appearance of the chief magistrate of the union, who was the object of general love and reverence, could not be

without its influence in conciliating the minds of many to the government he administered, and to its measures. But this progress towards conciliation was, perhaps, less considerable than was indicated by appearances. The hostility to the government, which was coeval with its existence, though diminished, was far from being subdued; and under this smooth exterior was concealed a mass of discontent, which, though it did not obtrude itself on the view of the man who united almost all hearts, was active in its exertions to effect its objects.

The difficulties which must impede the recruiting service in a country where coercion is not employed, and where the common wages of labour greatly exceed the pay of a soldier, protracted the completion of the regiments to a late season of the year; but the summer was not permitted to waste in total inaction.

The act passed at the last session for the defence of the frontiers, in addition to its other provisions, had given to the President an unlimited power to call mounted militia into the field. Under this authority, two expeditions had been conducted against the villages on the Wabash, in which a few of the Indian warriors were killed, some of their old men, women, and children, were made prisoners, and several of their towns and fields of corn were destroyed. The first was led by General Scott, in May, and the second by General Wilkinson, in September. These desultory incursions had not much influence on the war.

It was believed in the United States, that the hostility of the Indians was kept up by the traders living in their villages. These persons had, generally, resided in the United States; and, having been compelled to leave the country in consequence of the part they had taken during the war of the revolution, felt the resentments which banishment and confiscation seldom fail to inspire. Their enmities were ascribed by many, perhaps unjustly, to the temper of the government in Canada; but some countenance seemed to be given to this opinion by intelligence that, about the commencement of the preceding campaign, large supplies of ammunition had been delivered from the British posts on the lakes, to the Indians at war with the United States. While the President was on his southern tour, he addressed a letter to the secretary of state, to be communicated to Colonel Beckwith, who still remained in Philadelphia as the informal representative of his nation, in which he expressed his surprise and disappointment at this interference, by

the servants or subjects of a foreign state, in a war prosecuted by the United States for the sole purpose of procuring peace and safety for the inhabitants of their frontiers.

On receiving this communication, Colonel Beckwith expressed his disbelief that the supplies mentioned had been delivered; but on being assured of the fact, he avowed the opinion that the transaction was without the knowledge of Lord Dorchester, to whom he said he should communicate, without delay, the ideas of the American government on the subject.

Meeting of congress.

President's speech.

On the 24th of October the second congress assembled in Philadelphia. In his speech at the opening of the session, the President expressed his great satisfaction at the prosperous situation of the country, and particularly mentioned the rapidity with which the shares in the bank of the United States were subscribed, as "among the striking and pleasing evidences which presented themselves, not only of confidence in the government, but of resources in the community."

Adverting to the measures which had been taken in execution of the laws and resolutions of the last session, "the most important of which," he observed, "respected the defence and security of the western frontiers," he had, he said, "negotiated provisional treaties, and used other proper means to attach the wavering, and to confirm in their friendship the well disposed tribes of Indians. The means which he had adopted for a pacification with those of a hostile description having proved unsuccessful, offensive operations had been directed, some of which had proved completely successful, and others were still pending. Overtures of peace were still continued to the deluded tribes; and it was sincerely to be desired that all need of coercion might cease, and that an intimate intercourse might succeed, calculated to advance the happiness of the Indians, and to attach them firmly to the United States."

In marking the line of conduct which ought to be maintained for the promotion of this object, he strongly recommended "justice to the savages, and such rational experiments for imparting to them the blessings of civilization, as might from time to time suit their condition;" and then concluded this subject with saying—"A system corresponding with the mild

principles of religion and philanthropy towards an unenlightened race of men whose happiness materially depends on the conduct of the United States, would be as honourable to the national character, as conformable to the dictates of sound policy."

After stating that measures had been taken for carrying into execution the act laying duties on distilled spirits, he added—"The impressions with which this law has been received by the community have been, upon the whole, such as were to have been expected among enlightened and well disposed citizens, from the propriety and necessity of the measure. The novelty, however, of the tax, in a considerable part of the United States, and a misconception of some of its provisions, have given occasion, in particular places, to some degree of discontent. But it is satisfactory to know that this disposition yields to proper explanations, and more just apprehensions of the true nature of the law. And I entertain a full confidence that it will, in all, give way to motives which arise out of a just sense of duty, and a virtuous regard to the public welfare.

"If there are any circumstances in the law, which, consistently with its main design may be so varied as to remove any well intentioned objections that may happen to exist, it will comport with a wise moderation to make the proper variations. It is desirable on all occasions, to unite with a steady and firm adherence to constitutional and necessary acts of government, the fullest evidence of a disposition, as far as may be practicable, to consult the wishes of every part of the community, and to lay the foundations of the public administration in the affections of the people."

The answers of the two houses noticed, briefly and generally, the various topics of the speech; and, though perhaps less warm than those of the preceding congress, manifested great respect for the executive magistrate, and an undiminished confidence in his patriotic exertions to promote the public interests.

Debate on the bill "for apportioning representatives among the people of the states according to the first enumeration."

Among the first subjects of importance which engaged the attention of the legislature, was a bill "for apportioning representatives among the people of the several states according to the first enumeration." The constitution, in its original form, had affixed no other limits to the power of congress over the numbers of which the house of representatives might

consist, than that there should not be more than one member for every thirty thousand persons; but that each state should be entitled to at least one. Independent of the general considerations in favour of a more or less numerous representation in the popular branch of the legislature, there was one of a local nature, whose operation, though secret, was extensive, which gave to this question a peculiar interest. To whatever number of persons a representative might be allotted, there would still remain a fraction, which would be greater or less in each state, according to the ratio which congress should adopt between representation and population. The relative power of states, in one branch of the legislature, would consequently be affected by this ratio; and to questions of that description, few members can permit themselves to be inattentive.

This bill, as originally introduced into the house of representatives, gave to each state one member for every thirty thousand persons. On a motion to strike out the number thirty thousand, the debate turned chiefly on the policy and advantage of a more or less numerous house of representatives; but with the general arguments suggested by the subject, strong and pointed allusions to the measures of the preceding congress were interspersed, which indicated much more serious hostility to the administration than had hitherto been expressed. Speaking of the corruption which he supposed to exist in the British house of commons, Mr. Giles said that causes essentially different from their numbers, had produced this effect. "Among these, were the frequent mortgages of the funds, and the immense appropriations at the disposal of the executive."

"An inequality of circumstances," he observed, "produces revolutions in governments, from democracy, to aristocracy, and monarchy. Great wealth produces a desire of distinctions, rank, and titles. The revolutions of property, in this country, have created a prodigious inequality of circumstances. Government has contributed to this inequality. The bank of the United States is a most important machine in promoting the objects of this monied interest. This bank will be the most powerful engine to corrupt this house. Some of the members are directors of this institution; and it will only be by increasing the representation, that an adequate barrier can be opposed to this monied interest." He next adverted to certain ideas, which, he said, had been disseminated through the United States. "The legislature," he took occasion to observe, "ought to express some disapprobation of these

opinions. The strong executive of this government," he added, "ought to be balanced by a full representation in this house."

Similar sentiments were advanced by Mr. Findley.

After a long and animated discussion, the amendment was lost, and the bill passed in its original form.

In the senate, it was amended by changing the ratio, so as to give one representative for every thirty-three thousand persons in each state; but this amendment was disagreed to by the house of representatives; and each house adhering to its opinion, the bill fell; but was again introduced into the house of representatives, under a different title, and in a new form, though without any change in its substantial provisions. After a debate in which the injustice of the fractions produced by the ratio it adopted was strongly pressed, it passed that house. In the senate, it was again amended, not by reducing, but by enlarging the number of representatives.

The constitution of the United States declares that "representatives and direct taxes shall be apportioned among the several states which may be included within this union according to their respective numbers;" and that "the number of representatives shall not exceed one for every thirty thousand, but each state shall have at least one representative." Construing the constitution to authorize a process by which the whole number of representatives should be ascertained on the whole population of the United States, and afterwards "apportioned among the several states according to their respective numbers," the senate applied the number thirty thousand as a *divisor* to the total population, and taking the *quotient*, which was one hundred and twenty, as the number of representatives given by the ratio which had been adopted in the house where the bill had originated, they apportioned that number among the several states by that ratio, until as many representatives as it would give were allotted to each. The residuary members were then distributed among the states having the highest fractions. Without professing the principle on which this apportionment was made, the amendment of the senate merely allotted to the states respectively, the number of members which the process just mentioned would give. The result was a more equitable apportionment of representatives to population, and had the rule of construing that instrument been correct, the amendment removed objections which were certainly well founded. But the rule was novel, and overturned opinions which had been

generally assumed, and were supposed to be settled. In one branch of the legislature it had already been rejected; and in the other, the majority in its favour was only one.

In the house of representatives, the amendment was supported with considerable ingenuity.

After an earnest debate, however, it was disagreed to, and a conference took place without producing an accommodation among the members composing the committee. But finally, the house of representatives receded from their disagreement; and, by a majority of two voices, the bill passed as amended in the senate.

On the President, the solemn duty of deciding, whether an act of the legislature consisted with the constitution; for the bill, if constitutional, was unexceptionable.

In his cabinet, also, a difference of opinion is understood to have existed; the secretary of state and the attorney general were of opinion that the act was at variance with the constitution; the secretary of war was rather undecided; and the secretary of the treasury, thinking that, from the vagueness of expression in the clause relating to the subject, neither construction could be absolutely rejected, was in favour of acceding to the interpretation given by the legislature.

After weighing the arguments which were urged on each side of the question, the President was confirmed in the opinion that the population of each state, and not the total population of the United States, must give the numbers to which alone the process by which the number of representatives was to be ascertained could be applied. Having formed this opinion, to a correct and independent mind the course to be pursued was a plain one. Duty required the exercise of a power which a President of the United States will always find much difficulty in employing; and he returned the bill to the house in which it originated, accompanied with his objections^[54] to it. In observance of the forms prescribed in the constitution, the question was then taken on its passage by ayes and noes, and it was rejected. A third bill was soon afterwards introduced, apportioning the representatives on the several states at a ratio of one for every thirty-three thousand persons in each state, which passed into a law. Thus was this interesting part of the American constitution finally settled.

Militia law.

During this session of congress, an act passed for establishing a uniform militia.

The President had manifested, from the commencement of his administration, a peculiar degree of solicitude on this subject, and had repeatedly urged it on congress.

In his speech at the opening of the present session, he again called the attention of the legislature to it; and, at length, a law was enacted which, though less efficacious than the plan reported by the secretary of war, will probably, not soon, be carried into complete execution.

Defeat of St. Clair.

In December, intelligence was received by the President, and immediately communicated to congress, that the American army had been totally defeated on the fourth of the preceding month.

Although the most prompt and judicious measures had been taken to raise the troops, and to march them to the frontiers, they could not be assembled in the neighbourhood of fort Washington until the month of September, nor was the establishment even then completed.

The immediate objects of the expedition were, to destroy the Indian villages on the Miamis, to expel the savages from that country, and to connect it with the Ohio by a chain of posts which would prevent their return during the war.

On the seventh of September, the regulars moved from their camp in the vicinity of fort Washington, and marching directly north, towards the object of their destination, established two intermediate posts^[55] at the distance of rather more than forty miles from each other, as places of deposite, and of security either for convoys of provision which might follow the army, or for the army itself should any disaster befall it. The last of these works, fort Jefferson, was not completed until the 24th of October, before which time reinforcements were received of about three hundred and sixty militia. After placing garrisons in the forts, the effective number of the army, including militia, amounted to rather less than two thousand men. With this force, the general continued his march, which was rendered both slow and laborious by the necessity of opening a road. Small parties of Indians were frequently seen hovering about them, and some unimportant skirmishes took place. As the army approached the country in which they might expect to meet an enemy, about sixty of the militia deserted in a body. This diminution of

force was not, in itself, an object of much concern. But there was reason to fear that the example, should those who set it be permitted to escape with impunity, would be extensively followed; and it was reported to be the intention of the deserters, to plunder convoys of provisions which were advancing at some distance in the rear. To prevent mischiefs of so serious a nature, the general detached Major Hamtranck with the first regiment in pursuit of the deserters, and directed him to secure the provisions under a strong guard.

The army, consisting of about fourteen hundred effective rank and file, continued its march; and, on the third of November, encamped about fifteen miles south of the Miamis villages. The right wing under the command of General Butler formed the first line, and lay with a creek, about twelve yards wide, immediately in its front. The left wing commanded by Lieutenant Colonel Darke, formed the second; and between the two lines, was an interval of about seventy yards.[\[56\]](#) The right flank was supposed to be secured by the creek, by a steep bank, and by a small body of troops; the left was covered by a party of cavalry, and by piquets. The militia crossed the creek, and advanced about a quarter of a mile in front, where they also encamped in two lines. On their approach, a few Indians who had shown themselves on the opposite side of the creek, fled with precipitation.

At this place, the general intended to throw up a slight work for the security of the baggage; and, after being joined by Major Hamtranck, to march as unincumbered, and as expeditiously as possible, to the villages he purposed to destroy.

In both these designs he was anticipated. About half an hour before sun rise the next morning, just after the troops had been dismissed from the parade, an unexpected attack was made upon the militia, who fled in the utmost confusion, and rushing into camp through the first line of continental troops, which had been formed the instant the first gun was discharged, threw them too into disorder. The exertions of the officers to restore order were not entirely successful. The Indians pressed close upon the heels of the flying militia, and engaged General Butler with great intrepidity. The action instantly became extremely warm; and the fire of the assailants, passing round both flanks of the first line, was, in a few minutes, poured with equal fury on the rear division. Its greatest weight was directed against the centre of each wing, where the artillery was posted; and the

artillerists were mowed down in great numbers. Firing from the ground, and from the shelter which the woods afforded, the assailants were scarcely seen but when springing from one cover to another, in which manner they advanced close up to the American lines, and to the very mouths of the field pieces. They fought with the daring courage of men whose trade is war, and who are stimulated by all those passions which can impel the savage mind to vigorous exertions.

Under circumstances thus arduous, raw troops may be expected to exhibit that inequality which is found in human nature. While some of the American soldiers performed their duty with the utmost resolution, others seemed dismayed and terrified. Of this conduct the officers were, as usual, the victims. With a fearlessness which the occasion required, they exposed themselves to the most imminent dangers; and, in their efforts to change the face of affairs, fell in great numbers.

For several days, the Commander-in-chief had been afflicted with a severe disease, under which he still laboured, and which must have greatly affected him; but, though unable to display that activity which would have been useful in this severe conflict, neither the feebleness of his body, nor the peril of his situation, could prevent his delivering his orders with judgment and with self possession.[\[57\]](#)

It was soon perceived that the American fire could produce, on a concealed enemy, no considerable effect; and that the only hope of victory was placed in the bayonet. At the head of the second regiment, which formed the left of the left wing, Lieutenant Colonel Darke made an impetuous charge upon the enemy, forced them from their ground with some loss, and drove them about four hundred yards. He was followed by that whole wing; but the want of a sufficient number of riflemen to press this advantage, deprived him of the benefit which ought to have been derived from this effort; and, as soon as he gave over the pursuit, the Indians renewed their attack. In the mean time General Butler was mortally wounded, the left of the right wing was broken, the artillerists almost to a man killed, the guns seized, and the camp penetrated by the enemy. With his own regiment, and with the battalions commanded by Majors Butler[\[58\]](#) and Clarke, Darke was ordered again to charge with the bayonet. These orders were executed with intrepidity and momentary success. The Indians were driven out of the camp, and the artillery recovered. But while they

were pressed in one point by the bravest of the American troops, their fire was kept up from every other with fatal effect. Several times particular corps charged them, always with partial success, but no universal effort could be made, and in every charge a great loss of officers was sustained, the consequences of which were severely felt. Instead of keeping their ranks, and executing the orders which were given, a great proportion of the soldiers flocked together in crowds, and were shot down without resistance. To save the remnant of his army was all that remained to be done; and, about half past nine in the morning, General St. Clair ordered Lieutenant Colonel Darke with the second regiment, to charge a body of Indians who had intercepted their retreat, and to gain the road. Major Clarke with his battalion was directed to cover the rear. These orders were executed, and a disorderly flight commenced. The pursuit was kept up about four miles, when, fortunately for the surviving Americans, that avidity for plunder which is a ruling passion among savages, called back the victorious Indians to the ramp, where the spoils of their vanquished foes were to be divided. The routed troops continued their flight to fort Jefferson, a distance of about thirty miles, throwing away their arms on the road. At this place they met Major Hamtranck with the first regiment; and a council of war was called to deliberate on the course to be pursued. As this regiment was far from restoring the strength of the morning, it was determined not to attempt to retrieve the fortune of the day: and, leaving the wounded at fort Jefferson, the army continued its retreat to fort Washington.

In this disastrous battle, the loss on the part of the Americans was very great when compared with the numbers engaged. Thirty-eight commissioned officers were killed upon the field, and five hundred and ninety-three non-commissioned officers and privates were slain and missing. Twenty-one commissioned officers, several of whom afterwards died of their wounds, and two hundred and forty-two non-commissioned officers and privates were wounded. Among the dead was the brave and much lamented General Butler. This gallant officer had served through the war of the revolution; and had, on more than one occasion, distinguished himself in a remarkable manner. In the list of those who shared his fate, were the names of many other excellent officers who had participated in all the toils, the dangers, and the glory, of that long conflict which terminated in the independence of their country. At the head of the list of wounded were Lieutenant Colonels Gibson and Darke, Major Butler, and Adjutant

General Sargent, all of whom were veteran officers of great merit, who displayed their accustomed bravery on this unfortunate day. General St. Clair, in his official letter, observed: "the loss the public has sustained by the fall of so many officers, particularly of General Butler and Major Ferguson, can not be too much regretted; but it is a circumstance that will alleviate the misfortune in some measure, that all of them fell most gallantly doing their duty."

From the weight of the fire, and the circumstance of his being attacked nearly at the same time in front and rear, General St. Clair was of opinion that he was overpowered by numbers. The intelligence afterwards collected would make the Indian force to consist of from one thousand to fifteen hundred warriors. Of their loss, no estimate could be made; the probability is, that it bore no proportion to that sustained by the American army.

Nothing could be more unexpected than this severe disaster. The public had confidently anticipated a successful campaign, and could not believe, that the general who had been unfortunate, had not been culpable.

1792

The Commander-in-chief requested with earnestness that a court martial should sit on his conduct; but this request could not be granted, because the army did not furnish a sufficient number of officers of a grade to form a court for his trial on military principles. Late in the session, a committee of the house of representatives was appointed to inquire into the cause of the failure of the expedition, whose report, in explicit terms, exculpated the Commander-in-chief. This inquiry, however, was instituted rather for the purpose of investigating the conduct of civil than of military officers; and was not conducted by military men. More satisfactory testimony in favour of St. Clair is furnished by the circumstance, that he still retained the undiminished esteem and good opinion of the President.

The Indian war now assumed a still more serious aspect. There was reason to fear that the hostile tribes would derive a great accession of strength from the impression which their success would make upon their neighbours; and the reputation of the government was deeply concerned in retrieving the fortune of its arms, and affording protection to its citizens. The President, therefore, lost no time in causing the estimates for a competent force to be prepared and laid before congress. In conformity with a report made by the secretary of war, a bill was brought into the house of

representatives, directing three additional regiments of infantry, and a squadron of cavalry to be raised, to serve for three years, if not sooner discharged. The whole military establishment, if completed, would amount to about five thousand men. The additional regiments, however, were to be disbanded as soon as peace should be concluded with the Indians; and the President was authorized to discharge, or to forbear to raise, any part of them, "in case events should, in his judgment, render his so doing consistent with the public safety."

Opposition to the increase of the army.

This bill met with great opposition. A motion was made to strike out the section which authorized an augmentation of force. By those who argued in favour of the motion, the justice of the war was arraigned, and the practicability of obtaining peace at a much less expense than would be incurred in its further prosecution, was urged with vehemence. An extension of the present frontier was said not to be desirable, and if the citizens of the United States were recalled within their proper boundaries, hostilities would cease. At any rate, it was an idle waste of blood and treasure, to carry the war beyond the line of forts already established. It was only exposing their arms to disgrace, betraying their own weakness, and lessening the public confidence in the government, to send forth armies to be butchered in the forests, while the British were suffered to keep possession of posts within the territory of the United States. To this cause was to be ascribed any disposition which might exist on the part of the Indians to continue hostilities, and to its removal the efforts of the government ought to be directed.

But, admitting the war to have been just in its commencement, and its continuance to be required by the honour and interest of the nation, yet as an invasion of the Indian country ought not to be attempted, this augmentation of the military establishment could not be necessary. Regular troops could only be useful as garrisons for posts to which the militia might resort for protection or supplies. Experience had proved that the sudden desultory attacks of the frontier militia and rangers were productive of more valuable consequences, than the methodical operations of a regular force. But, should it even be conceded that invasion and conquest were to be contemplated, the existing establishment, if completed, would be

sufficiently great; and it was still insisted that, even for the purposes of conquest, the frontier militia were superior to any regulars whatever.

The expense of such an army as the bill contemplated was said to be an object worthy of serious attention; and members were requested to observe the progress of this business, and to say where it would stop. At first, only a single regiment had been raised, and the expense was about one hundred thousand dollars; a second was afterwards added, which swelled the expense to three hundred thousand; and now a standing force of five thousand one hundred and sixty-eight men is contemplated, at an annual expense of above a million and a quarter. They were preparing to squander away money by millions; and no one, except those who were in the secrets of the cabinet, knew why the war had been thus carried on for three years.

Against the motion for striking out, it was urged that the justice of the war could not be questioned by any man who would allow that self preservation, and indispensable necessity, could furnish sufficient motives for taking up arms. It was proved by unquestionable documents, that from the year 1783 to 1790, there had been not less than fifteen hundred persons, either the inhabitants of Kentucky, or emigrants on their way to that country, who had been massacred by the savages, or dragged into captivity; and there was reason to believe that on the frontiers of Virginia, and of Pennsylvania, the murdered and the prisoners would furnish a list almost equally numerous.

The conciliatory disposition of the government was stated, and its repeated efforts to obtain a peace were enumerated. It was particularly observed that in 1790, when a treaty was proposed at the Miamis villages, the Indians at first refused to treat;—they next required thirty days to deliberate;—this request was acceded to; and, in the interim, offensive operations were expressly prohibited by the President. Yet, notwithstanding this forbearance on the part of the whites, not less than one hundred and twenty persons were killed and captured by the savages, and several prisoners were roasted alive, during that short period; at the expiration of which, the Indians refused to give any answer to the proposition which had been made to them.

But it was now too late to inquire into the justice of the principles on which the war was originally undertaken. The nation was involved in it, and could not recede without exposing many innocent persons to be butchered

by the enemy. Should the government determine to discontinue the war, would the Indians also consent to a cessation of hostilities? The government could not, without impeachment, both of its justice and humanity, abandon the inhabitants of the frontiers to the rage of their savage enemies; and although the excise might be unpopular, although money might still be wanted, what was the excise, what was money, when put in competition with the lives of their friends and brethren? A sufficient force must be raised for their defence, and the only question was what that force should be.

The calculations of the best informed men were in favour of employing an army not inferior to that proposed in the bill. When the known attachment of Indians to war and plunder was adverted to, and the excitements to that attachment which were furnished by the trophies acquired in the last two campaigns were considered, no man would venture to pronounce with confidence how extensive the combination against the United States might become, or what numbers they would have to encounter. It certainly behoved them to prepare in time for a much more vigorous effort than had hitherto been made. The objections drawn from the increased expense which such an effort would require, must entirely vanish before the eyes of any man, who looks forward to the consequences of another unsuccessful campaign. Such a disaster would eventually involve the nation in much greater expense than that which is now made the ground of opposition. Better therefore is it, to make at once a vigorous and effectual exertion to bring the contest to a close, than to continue gradually draining the treasury, by dragging on the war, and renewing hostility from year to year.

The supporters of the bill also appealed to experience for the superiority of regular troops over militia, in accomplishing all the purposes, even of Indian war; and those arguments were urged in favour of this theory, which the subject readily suggests.

The motion for striking out the section was lost; and the bill was carried for the augmentation of force required by the executive.

The treasury was not in a condition to meet the demands upon it, which the increased expenses of the war would unavoidably occasion; and sources of additional revenue were to be explored. A select committee to whom this subject was referred, brought in a resolution directing the secretary of the treasury to report his opinion to the house on the best mode of raising those

additional supplies which the public service might require for the current year.

This proposition gave rise to a very animated debate.

It will be recollected that when the act for establishing the treasury department was under consideration, the clause which rendered it the duty of the secretary to digest and report plans for the improvement and management of the revenue, and for the support of public credit, was earnestly opposed. A large majority, however, was in favour of the principle; and, after being so modified, as only to admit a report if required by the house, it was retained in the bill. In complying with the various resolutions of congress, calling for reports on subjects connected with his department, the secretary had submitted plans which, having been profoundly considered, were well digested, and accompanied by arguments, the force of which it was difficult to resist. His measures were generally supported by a majority of congress; and, while the high credit of the United States was believed to attest their wisdom, the masterly manner in which his reports were drawn contributed to raise still higher, that reputation for great talents which he had long possessed. To the further admission of these reports, it was determined, on this occasion, to make a vigorous resistance.

But the opposition was not successful. On taking the question, the resolution was carried; thirty-one members voting in its favour, and twenty-seven against it.

Report of the secretary of the treasury for raising additional supplies.

The report[\[59\]](#) made by the secretary in pursuance of this resolution, recommended certain augmentations of the duties on imports; and was immediately referred to the consideration of a committee of the whole house. Resolutions were then passed which were to form the basis of a bill; and which adopted, not only the principles, but, with the exception of a few unimportant alterations, the minute details of the report.

Before the question was taken on the bill, a motion was made to limit its duration, the vote upon which strongly marked the progress of opinion in the house respecting those systems of finance which were believed to have established the credit of the United States.

The secretary of the treasury had deemed it indispensable to the creation of public credit, that the appropriations of funds for the payment of the

interest, and the gradual redemption of the principal of the national debt, should be not only sufficient, but permanent also. A party was found in the first congress who opposed this principle; and were in favour of retaining a full power over the subject in each branch of the legislature, by making annual appropriations. The arguments which had failed in congress appear to have been more successfully employed with the people. Among the multiplied vices which were ascribed to the funding system, it was charged with introducing a permanent and extensive mortgage of funds, which was alleged to strengthen unduly the hands of the executive magistrate, and to be one of the many evidences which existed, of monarchical propensities in those who administered the government.

The report lately made by the secretary of the treasury, and the bill founded on that report, contemplated a permanent increase of the duties on certain specified articles; and a permanent appropriation of the revenue arising from them, to the purposes of the national debt. Thirty-one members were in favour of the motion for limiting the duration of the bill, and only thirty against it. By the rules of the house, the speaker has a right first to vote as a member; and, if the numbers should then be equally divided, to decide as speaker. Being opposed to the limitation, the motion was lost by his voice.

On the eighth of May, after an active and interesting session, congress adjourned to the first Monday in November.

The asperity which, on more than one occasion, discovered itself in debate, was a certain index of the growing exasperation of parties; and the strength of the opposition on those questions which brought into review the points on which the administration was to be attacked, denoted the impression which the specific charges brought against those who conducted public affairs, had made on the minds of the people, in an extensive division of the continent. It may conduce to a more perfect understanding of subsequent transactions, to present, in this place, a sketch of those charges.

Strictures on the conduct of administration, with a view of parties.

It was alleged that the public debt was too great to be paid before other causes of adding to it would occur. This accumulation of debt had been artificially produced by the assumption of what was due from the states. Its immediate effect was to deprive the government of its power over those easy sources of revenue, which, applied to its ordinary necessities and

exigencies, would have answered them habitually, and thereby have avoided those burdens on the people which occasioned such murmurs against taxes, and tax gatherers. As a consequence of it, although the calls for money had not been greater than must be expected for the same or equivalent exigencies, yet congress had been already obliged, not only to strain the impost until it produced clamour, and would produce evasion, and war on their own citizens to collect it, but even to resort to an *excise* law, of odious character with the people, partial in its operation, unproductive unless enforced by arbitrary and vexatious means, and committing the authority of the government in parts where resistance was most probable, and coercion least practicable.

That the United States, if left free to act at their discretion, might borrow at two-thirds of the interest contracted to be paid to the public creditors, and thus discharge themselves from the principal in two-thirds of the time: but from this they were precluded by the irredeemable quality of the debt; a quality given for the avowed purpose of inviting its transfer to foreign countries. This transfer of the principal when completed would occasion an exportation of three millions of dollars annually for the interest, a drain of coin without example, and of the consequences of which no calculation could be made.

The banishment of coin would be completed by ten millions of paper money in the form of bank bills, which were then issuing into circulation. Nor would this be the only mischief resulting from the institution of the bank. The ten or twelve per cent, annual profit paid to the lenders of this paper medium would take out of the pockets of the people, who would have had, without interest, the coin it was banishing. That all the capital employed in paper speculation is barren and useless, producing like that on a gaming table no accession to itself, and is withdrawn from commerce and agriculture, where it would have produced addition to the common mass. The wealth therefore heaped upon individuals by the funding and banking systems, would be productive of general poverty and distress. That in addition to the encouragement these measures gave to vice and idleness, they had furnished effectual means of corrupting such a portion of the legislature as turned the balance between the honest voters. This corrupt squad, deciding the voice of the legislature, had manifested their dispositions to get rid of the limitations imposed by the constitution; limitations on the faith of which the states acceded to that instrument. They

were proceeding rapidly in their plan of absorbing all power, invading the rights of the states, and converting the federal into a consolidated government.

That the ultimate object of all this was to prepare the way for a change from the present republican form of government to that of a monarchy, of which the English constitution was to be the model. So many of the friends of monarchy were in the legislature, that aided by the corrupt squad of paper dealers who were at their devotion, they made a majority in both houses. The republican party, even when united with the anti-federalists, continued a minority.

That of all the mischiefs resulting from the system of measures which was so much reprobated, none was so afflicting, so fatal to every honest hope, as the corruption of the legislature. As it was the earliest of these measures, it became the instrument for producing the rest, and would be the instrument for producing in future, a king, lords, and commons; or whatever else those who directed it might choose. Withdrawn such a distance from the eye of their constituents, they would form the most corrupt government on earth, if the means of their corruption were not prevented.

These strictures on the conduct of administration were principally directed against measures which had originated with the secretary of the treasury, and had afterwards received the sanction of the legislature. In the southern division of the continent, that officer was unknown, except to a few military friends, and to those who had engaged in the legislative or executive departments of the former or present government. His systems of revenue having been generally opposed by the southern members, and the original opposition to the constitution having been particularly great in Virginia and North Carolina, the aspersions on his views, and on the views of the eastern members by whom his plans had been generally supported, were seldom controverted. The remote tendency of particular systems, and the motives for their adoption, are so often subjects of conjecture, that the judgment, when exercised upon them, is peculiarly exposed to the influence of the passions; and where measures are in themselves burdensome, and the necessity for their adoption has not been appreciated, suspicions of their unknown advocates, can seldom be unsuccessfully urged by persons, in whom the people have placed their confidence. It is not therefore cause of

astonishment, that the dark motives ascribed to the authors of tax laws, should be extensively believed.

Throughout the United States, the party opposed to the constitution had charged its supporters with a desire to establish a monarchy on the ruins of republican government; and the constitution itself was alleged to contain principles which would prove the truth of this charge. The leaders of that party had, therefore, been ready from the instant the government came into operation, to discover, in all its measures, those monarchical tendencies which they had perceived in the instrument they opposed.

The salaries allowed to public officers, though so low^[60] as not to afford a decent maintenance to those who resided at the seat of government, were declared to be so enormously high, as clearly to manifest a total disregard of that simplicity and economy which were the characteristics of republics.

The levees of the President, and the evening parties of Mrs. Washington, were said to be imitations of regal institutions, designed to accustom the American people to the pomp and manners of European courts. The Vice President too was said to keep up the state and dignity of a monarch, and to illustrate, by his conduct, the principles which were inculcated in his political works.

The Indian war they alleged was misconducted, and unnecessarily prolonged for the purposes of expending the public money, and of affording a pretext for augmenting the military establishment, and increasing the revenue.

All this prodigal waste of the money of the people was designed to keep up the national debt, and the influence it gave the government, which, united with standing armies, and immense revenues, would enable their rulers to rivet the chains which they were secretly forging. Every prediction which had been uttered respecting the anti-republican principles of the government, was said to be rapidly verifying, and that which was disbelieved as prophecy, was daily becoming history. If a remedy for these ills was not found in the increased representation of the people which would take place at the ensuing elections, they would become too monstrous to be borne; and when it was recollected that the division of opinion was marked by a geographical line, there was reason to fear that the union would be broken into one or more confederacies.

These irritable symptoms had assumed appearances of increased malignity during the session of congress which had just terminated; and, to the President, who firmly believed that the union and the liberty of the states depended on the preservation of the government, they were the more unpleasant and the more alarming, because they were displayed in full force in his cabinet.

Disagreement between the secretaries of state and treasury.

Between the secretaries of the state and treasury departments, a disagreement existed, which seems to have originated in an early stage of the administration, and to have acquired a regular accession of strength from circumstances which were perpetually occurring, until it grew into open and irreconcilable hostility.

Without tracing this disagreement to those motives, which, in elective governments especially, often produce enmities between distinguished personages, neither of whom acknowledges the superiority of the other, such radical differences of opinion, on points which would essentially influence the course of the government, were supposed to exist between the secretaries, as, in a great measure, to account for this unextinguishable enmity. These differences of opinion were, perhaps, to be ascribed, in some measure, to a difference in the original structure of their minds, and, in some measure, to the difference of the situations in which they had been placed.

Until near the close of the war, Mr. Hamilton had served his country in the field; and, just before its termination, had passed from the camp into congress, where he remained for some time after peace had been established. In the former station, the danger to which the independence of his country was exposed from the imbecility of the government was perpetually before his eyes; and, in the latter, his attention was forcibly directed towards the loss of its reputation, and the sacrifice of its best interests, which were to be ascribed to the same cause. Mr. Hamilton, therefore, was the friend of a government which should possess, in itself, sufficient powers and resources to maintain the character, and defend the integrity of the nation. Having long felt and witnessed the mischiefs produced by the absolute sovereignty of the states, and by the control which they were enabled and disposed separately to exercise over every measure of general concern, he was particularly apprehensive of danger from that

quarter; which he, probably, believed was to be the more dreaded, because the habits and feelings of the American people were calculated to inspire state, rather than national prepossessions. Under the influence of these impressions, he is understood to have avowed opinions in the convention favourable to a system in which the executive and senate, though elective, were to be rather more permanent, than they were rendered in that which was actually proposed. He afterwards supported the constitution, as framed, with great ability, and contributed essentially to its adoption. But he still retained, and openly avowed, the opinion, that the greatest hazards to which it was exposed arose from its weakness, and that American liberty and happiness had much more to fear from the encroachments of the great states, than from those of the general government.

Mr. Jefferson had retired from congress before the depreciation of the currency had produced an entire dependence of the general on the local governments; after which he filled the highest offices in the state of which he was a citizen. About the close of the war he was re-elected to congress; but, being soon afterwards employed on a mission to the court of Versailles, where he remained, while the people of France were taking the first steps of that immense revolution which has astonished and agitated two quarters of the world. In common with all his countrymen, he felt a strong interest in favour of the reformers; and it is not unreasonable to suppose, that while residing at that court, and associating with those who meditated some of the great events which have since taken place, his mind might be warmed with the abuses of the monarchy which were perpetually in his view, and he might be led to the opinion that liberty could sustain no danger but from the executive power. Mr. Jefferson, therefore, seems to have entertained no apprehensions from the debility of the government; no jealousy of the state sovereignties; and no suspicion of their encroachments. His fears took a different direction, and all his precautions were used to check and limit the exercise of the powers vested in the government of the United States. Neither could he perceive danger to liberty except from that government, and especially from the executive department.

He did not feel so sensibly, as those who had continued in the United States, the necessity of adopting the constitution; and had, at one time, avowed a wish that it might be rejected by such a number of states as would secure certain alterations which he thought essential. His principal objections seem to have been, the want of a bill of rights, and the re-

eligibility of the President. From this opinion, however, in favour of a partial rejection, he is understood to have receded, after seeing the plan pursued by the convention of Massachusetts, and followed by other states; which was to adopt unconditionally, and to annex a recommendation of the amendments which were desired.[\[61\]](#)

To these causes of division, another was superadded, the influence of which was soon felt in all the political transactions of the government.

The war which was terminated in 1783, had left in the bosoms of the American people, a strong attachment to France, and enmity to Great Britain. These feelings, in a greater or less degree, were perhaps universal; and had been prevented from subsiding by circumstances to which allusions have already been made. They had evinced themselves, in the state legislatures, by commercial regulations; and were demonstrated by all those means by which the public sentiment is usually displayed. They found their way also into the national councils, where they manifested themselves in the motions respecting the favours which ought to be shown to nations having commercial treaties with the United States.

Although affection for France, and jealousy of Britain, were sentiments common to the people of America, the same unanimity did not exist respecting the influence which ought to be allowed to those sentiments, over the political conduct of the nation. While many favoured such discriminations as might eventually turn the commerce of the United States into new channels, others maintained that, on this subject, equality ought to be observed; that trade ought to be guided by the judgment of individuals, and that no sufficient motives existed for that sacrifice of general and particular interests, which was involved in the discriminations proposed;—discriminations which, in their view, amounted to a tax on American agriculture, and a bounty on the navigation and manufactures of a favoured foreign nation.

The former opinion was taken up with warmth by the secretary of state; and the latter was adopted with equal sincerity by the secretary of the treasury. This contrariety of sentiment respecting commercial regulations was only a part of a general system. It extended itself to all the relations which might subsist between America and those two great powers.

In all popular governments, the press is the most ready channel by which the opinions and the passions of the few are communicated to the many;

and of the press, the two great parties forming in the United States, sought to avail themselves. The Gazette of the United States supported the systems of the treasury department, while other papers enlisted themselves under the banners of the opposition. Conspicuous among these, was the National Gazette, a paper edited by a clerk in the department of state. The avowed purpose for which the secretary patronized this paper, was to present to the eye of the American people, European intelligence derived from the Leyden gazette, instead of English papers; but it soon became the vehicle of calumny against the funding and banking systems, against the duty on home-made spirits, which was denominated an excise, and against the men who had proposed and supported those measures. With perhaps equal asperity, the papers attached to the party which had defended these systems, assailed the motives of the leaders of the opposition.

Letters from Washington on this subject.

This schism in his cabinet was a subject of extreme mortification to the President. Entertaining a high respect for the talents, and a real esteem for the characters, of both gentlemen, he was unwilling to part with either; and exerted all the influence he possessed to effect a reconciliation between them. In a letter of the 23d of August, addressed to the secretary of state, after reviewing the critical situation of the United States with respect to its external relations, he thus expressed himself on this delicate subject. "How unfortunate and how much is it to be regretted then, that, while we are encompassed on all sides with avowed enemies, and insidious friends, internal dissensions should be harassing and tearing our vitals. The last, to me, is the most serious, the most alarming, and the most afflicting of the two; and, without more charity for the opinions of one another in governmental matters, or some more infallible criterion by which the truth of speculative opinions, before they have undergone the test of experience, are to be forejudged, than has yet fallen to the lot of fallibility, I believe it will be difficult, if not impracticable, to manage the reins of government, or to keep the parts of it together: for if, instead of laying our shoulders to the machine, after measures are decided on, one pulls this way, and another that, before the utility of the thing is fairly tried, it must inevitably be torn asunder; and, in my opinion, the fairest prospect of happiness and prosperity that ever was presented to man will be lost, perhaps, for ever.

"My earnest wish and my fondest hope therefore is, that instead of wounding suspicions, and irritating charges, there may be liberal allowances, mutual forbearances, and temporizing yielding on all sides. Under the exercise of these, matters will go on smoothly; and if possible, more prosperously. Without them, every thing must rub; the wheels of government will clog; our enemies will triumph; and, by throwing their weight into the disaffected scale, may accomplish the ruin of the goodly fabric we have been erecting."

"I do not mean to apply this advice, or these observations, to any particular person or character. I have given them in the same general terms to other officers^[62] of the government, because the disagreements which have arisen from difference of opinions, and the attacks which have been made upon almost all the measures of government, and most of its executive officers, have for a long time past filled me with painful sensations, and can not fail, I think, of producing unhappy consequences, at home and abroad."

In a subsequent letter to the same gentleman, in answer to one which enclosed some documents designed to prove that, though desirous of amending the constitution, he had favoured its adoption, the President said—"I did not require the evidence of the extracts which you enclosed me, to convince me of your attachment to the constitution of the United States, or of your disposition to promote the general welfare of this country; but I regret, deeply regret, the difference of opinion which has arisen, and divided you and another principal officer of the government—and wish devoutly there could be an accommodation of them by mutual yieldings.

"A measure of this sort would produce harmony and consequent good in our public councils; and the contrary will inevitably produce confusion and serious mischiefs—and for what? because mankind can not think alike, but would adopt different means to attain the same end. For I will frankly and solemnly declare that I believe the views of both to be pure and well meant, and that experience only will decide with respect to the salubrity of the measures which are the subjects of this dispute.

"Why then, when some of the best citizens of the United States—men of discernment—uniform and tried patriots—who have no sinister views to promote, but are chaste in their ways of thinking and acting, are to be found some on one side, and some on the other of the questions which have

caused these agitations—why should either of you be so tenacious of your opinions as to make no allowance for those of the other?

"I could, and indeed was about to add more on this interesting subject, but will forbear, at least for the present, after expressing a wish that the cup which has been presented to us may not be snatched from our lips by a discordance of action, when I am persuaded there is no discordance in your views. I have a great, a sincere esteem and regard for you both; and ardently wish that some line could be marked out by which both of you could walk."

These earnest endeavours to sooth the angry passions, and to conciliate the jarring discords of the cabinet, were unsuccessful. The hostility which was so much and so sincerely lamented sustained no diminution, and its consequences became every day more diffusive.

Among the immediate effects of these internal dissensions, was the encouragement they afforded to a daring and criminal resistance which was made to the execution of the laws imposing a duty on spirits distilled within the United States.

To the inhabitants of that part of Pennsylvania which lies west of the Alleghany mountains, this duty was, from local considerations, peculiarly odious; nor was their hostility to the measure diminished by any affection for the source in which it originated. The constitution itself had encountered the most decided opposition from that part of the state; and that early enmity to the government which exerted every faculty to prevent its adoption, had sustained no abatement. Its measures generally, and the whole system of finance particularly, had been reprobated with peculiar bitterness by many of the most popular men of that district. With these dispositions, a tax law, the operation of which was extended to them, could not be favourably received, however generally it might be supported in other parts of the union. But when, to this pre-existing temper, were superadded the motives which arose from perceiving that the measure was censured on the floor of congress as unnecessary and tyrannical; that resistance to its execution was treated as probable; that a powerful and active party, pervading the union, arraigned with extreme acrimony the whole system of finance as being hostile to liberty; and, with all the passionate vehemence of conviction, charged its advocates with designing to subvert the republican institutions of America; we ought not to be surprised that the awful impressions, which usually restrain combinations to resist the laws, were

lessened; and that the malcontents were emboldened to hope that those combinations might be successful.

Opposition to the excise law.

Some discontents had been manifested in several parts of the union on the first introduction of the act; but the prudence and firmness of the government and its officers had dissipated them; and the law had been carried into general operation. But in the western district of Pennsylvania, the resistance wore the appearance of system, and was regularly progressive. In its commencement, it manifested itself by the circulation of opinions calculated to increase the odium in which the duty was held, and by endeavours to defeat its collection by directing the public resentments against those who were inclined either to comply with the law, or to accept the offices through which it was to be executed. These indications of ill temper were succeeded by neighbourhood meetings, in which resolutions of extreme violence were adopted, and by acts of outrage against the persons of revenue officers. At length, in September, 1791, a meeting of delegates from the malcontent counties was held at Pittsburg, in which resolutions were adopted breathing the same spirit with those which had previously been agreed to in county assemblies. Unfortunately, the deputy marshal, who was entrusted with the process against those who had committed acts of violence on the persons of revenue officers, was so intimidated by the turbulent spirit which was generally displayed, that he returned without performing his duty; and thus added to the confidence felt by the disaffected in their strength. Appearances were such as to justify apprehensions, that the judiciary would be found unable to punish the violators of the laws; and the means of obtaining aid from the executive had not been furnished by the legislature. This state of things was the more embarrassing, because the prejudices which had been widely disseminated, and the misconceptions of the act which had been extensively diffused, authorized some fears respecting the support which the law, while yet in the infancy of its operation, would receive from the people. These considerations, added to that repugnance which was felt by the government to the employment of harsh means, induced a forbearance to notice further these riotous proceedings, until the measure, by being carried into full effect in other parts of the union, should be better understood; and until congress should assemble, and modify the system in such a manner as to remove any real objections to it, the existence of which might be suggested by experience.

Accordingly, in the legislature which convened in October, 1791, this subject was taken up in pursuance of the recommendation of the President, and an amendatory act was passed in May, 1792, in which the whole system was revised, and great pains were taken to alter such parts of it as could be deemed exceptionable.

This conciliatory measure did not produce the desired effect. No abatement took place in the violence and outrage with which the resistance to the law was conducted. To carry it into execution, officers of inspection were necessary in every county. The malcontents, for a considerable time, deterred every person from consenting to permit an office to be held at his house; and when at length this difficulty was supposed to be overcome, those who had been prevailed on to accede to the propositions of the supervisor in this respect, were compelled, by personal violence, and by threats of the destruction of property, and even of death, to retract the consent they had given.

A meeting was again convened at Pittsburg, in which, among other very exceptionable resolutions, committees were established to correspond with any committees of a similar nature that might be appointed in other parts of the United States. By this meeting it was declared, that they would persist in every legal measure to obstruct the execution of the law, and would consider those who held offices for the collection of the duty as unworthy of their friendship; that they would have no intercourse or dealings with them; would withdraw from them every assistance, and withhold all the comforts of life which depend upon those duties which, as men and fellow citizens, they owed to each other; and would, upon all occasions, treat them with contempt. It was at the same time earnestly recommended to the people at large to adopt the same line of conduct.

President's proclamation.

No man could be more sensible than the President of the dangerous tendency of these measures, nor more indignant at the outrage thus offered to the government of the United States. But his prudence, and his high respect for the laws restrained him within the narrow limits which the legislature had prescribed. A proclamation^[63] was issued exhorting and admonishing all persons to desist from any combinations or proceedings whatsoever, tending to obstruct the execution of the laws, and requiring the interference of the civil magistrate; and prosecutions against the offenders

were directed to be instituted in every case in which they could be supported.

This proclamation produced no salutary effect. Many of the civil magistrates were themselves concerned in stimulating the excesses they were required to suppress; and those who had not embarked in the criminal enterprise, found themselves totally unable to maintain the sovereignty of the laws.

With a laudable solicitude to avoid extremities, the government still sought for means to recall these misguided people to a sense of duty, without the employment of a military force. To obtain this desirable object, the following system was digested and pursued:

Prosecutions were instituted against delinquents in those cases in which it was believed that they could be maintained. The spirits distilled in the non-complying counties were intercepted on their way to market, and seized by the officers of the revenue; and the agents for the army were directed to purchase only those spirits on which the duty had been paid. By thus acting on the interests of the distillers, the hope was indulged that they might be induced to comply with the law. Could they have obeyed their wishes, these measures would have produced the desired effect; but they were no longer masters of their own conduct. Impelled by a furious multitude, they found it much more dangerous to obey the laws than to resist them. The efficacy of this system too was diminished by a circumstance, which induced the necessity of a second application to the legislature. The act had not been extended to the territory north-west of the Ohio, in which great part of the army lay; and the distillers eluded the vigilance of the government by introducing their spirits into that territory.

While from causes which were incessant and active in their operation, some of which seem too strongly fixed in the human mind ever to be removed, a broad foundation was thus laid for those party struggles whose fury is generally proportioned to the magnitude of the objects to be attained, and to the means which may be employed in attaining them, the external affairs of the United States sustained no material change.

Of the good understanding which was preserved with France, a fresh proof had been recently given by the employment of Mr. Ternan, a person peculiarly acceptable to the American government, to succeed the Count de Moustiers, as minister plenipotentiary of his Most Christian Majesty; and in

turn, Mr. Gouverneur Morris, who was understood to have rendered himself agreeable to the French government, was appointed to represent the United States at the court of Versailles.

In addition to these interchanges of civility, a melancholy occasion had presented itself for giving much more substantial evidence of the alacrity with which the American administration would embrace any proper opportunity of manifesting its disposition to promote the interests of France. Insurrection and massacre in the island of St. Domingo.

Early and bitter fruits of that malignant philosophy, which, disregarding the actual state of the world, and estimating at nothing the miseries of a vast portion of the human race, can coolly and deliberately pursue, through oceans of blood, abstract systems for the attainment of some fancied untried good, were gathered in the French West Indies. Instead of proceeding in the correction of any abuses which might exist, by those slow and cautious steps which gradually introduce reform without ruin, which may prepare and fit society for that better state of things designed for it; and which, by not attempting impossibilities, may enlarge the circle of happiness, the revolutionists of France formed the mad and wicked project of spreading their doctrines of equality among persons, between whom distinctions and prejudices exist to be subdued only by the grave. The rage excited by the pursuit of this visionary and baneful theory, after many threatening symptoms, burst forth on the 23d day of August 1791, with a fury alike destructive and general. In one night, a preconcerted insurrection of the blacks took place throughout the colony of St. Domingo; and the white inhabitants of the country, while sleeping in their beds, were involved in one indiscriminate massacre, from which neither age nor sex could afford an exemption. Only a few females, reserved for a fate more cruel than death, were intentionally spared; and not many were fortunate enough to escape into the fortified cities. The insurgents then assembled in vast numbers, and a bloody war commenced between them and the whites inhabiting the towns. The whole French part of the island was in imminent danger of being totally lost to the mother country. The minister of his Most Christian Majesty applied to the executive of the United States for a sum of money which would enable him to preserve this valuable colony, to be deducted out of the debt to his sovereign; and the request was granted in a

manner evincing the interest taken by the administration in whatever might concern France.

On the part of Spain, a desire had been expressed to adjust the subjects in controversy between the two nations by negotiations to be carried on at Madrid; and Mr. Carmichael, and Mr. Short, had been appointed commissioners, with powers equal to the object. In the mean time, the officers of that nation persisted in measures which were calculated to embroil the United States with the southern Indians. By their intrigues with the Creeks, the treaty formed in 1790 with M'Gillivray, was prevented from being ratified, and the boundary line then agreed upon was not permitted to be run. The indefinite claim of territory set up by Spain was alleged to constitute a sufficient objection to any new line of demarcation, until that claim should be settled; and her previous treaties and relations with the Creeks were declared to be infringed by their stipulation, acknowledging themselves to be under the protection of the United States.

An official diplomatic intercourse had at length been opened with Great Britain also. Mr. Hammond, the minister plenipotentiary of that nation to the United States, arrived at Philadelphia in the autumn of 1791; upon which, Mr. Thomas Pinckney, a gentleman of South Carolina, who was highly and justly respected, had been charged with the interests of his country at the court of London.^[64] Soon after the arrival of Mr. Hammond, the non-execution of the treaty of peace became the subject of a correspondence between him and the secretary of state, in which the complaints of their respective nations were urged in terms manifesting clearly the sense entertained by each of the justice of those complaints, without furnishing solid ground for the hope that they would be immediately removed on either side.

Mr. Hammond's powers on the subject of a commercial treaty were far from being satisfactory. To the inquiries of Mr. Jefferson on this point, he replied, that he was authorized to enter into a negotiation respecting the commercial intercourse between the two countries, and to discuss those principles which might serve as a basis for a treaty, but not to *conclude* any definitive arrangements. In fact, there was much reason to believe that the obstacles to a commercial treaty between the two countries would not be soon or easily surmounted. In America, such an alteration in the law of nations as would permit the goods of an enemy to pass freely in the bottom

of a neutral, was a favourite project; and a full participation of the colonial trade was also most earnestly desired. That the latter of these objects would not be readily conceded by Great Britain did not admit of a doubt; but many intelligent men, possessing great political influence, had embraced the opinion that she could be forced out of that colonial system which every European power having settlements in America had adopted, by regulations restricting her navigation and commerce with the United States. To those who entertained this opinion, no commercial treaty could be acceptable, which did not contain the concessions they required.

In addition to a general knowledge of the sentiments of the British cabinet on these points, particular evidence had lately been received of its positive decision respecting them. A comprehensive report on American affairs had been made to the privy council by a committee of that body, which was laid before the king. A few copies of it had been printed for the members of the cabinet, which were soon called in by a sudden order of council; but one of these copies was obtained, and transmitted to the secretary of state of the United States. This report manifested a willingness to form a commercial treaty with the American government on principles of perfect equality, both with respect to navigation and commerce, so far as regarded the dominions of his Britannic Majesty in Europe; but it also discovered a determination, to adhere inflexibly to the existing regulations for the colonies; and to reject the principle that free bottoms make free goods.

In this state paper the opinion was advanced, that several important articles of exportation from the United States, especially tobacco, had been peculiarly favoured in Great Britain; but that these friendly regulations were not reciprocated by America. The means of retaliating injuries which might be inflicted on British commerce were stated, but those means, it was said, ought not hastily to be adopted, the more especially, as the existing government of the United States had discovered dispositions more favourable to a liberal and fair intercourse between the two countries, than had been manifested by the respective states. For several reasons it was deemed adviseable not suddenly to disturb the existing state of things, but to regulate the trade of the two nations by a treaty, the stipulations of which should be equal, and mutually beneficial, provided such a treaty could be formed without a departure from those principles which were considered as fundamental.

General Wayne appointed to the command of the army.

No abatement of hostility having taken place among the north-western Indians, the preparations for terminating the war by the sword were earnestly pressed. Major General Wayne was appointed to succeed General St. Clair, who resigned the command of the army; and the utmost exertions were made to complete it to the establishment; but the laws furnished such small inducements to engage in the service, that the highest military grades, next to that of Commander-in-chief, were declined by many to whom they were offered; and the recruiting business advanced too slowly to authorize a hope that the decisive expedition which was meditated, could be prudently undertaken in the course of the present year. Meanwhile, the public clamour against the war continued to be loud and violent. It was vehemently asserted, that if the intentions of the government respecting the savages were just and humane, those intentions were unknown to them, and that their resentments were kept up by the aggressions of whites, and by the opinion that their expulsion from the country they occupied was the object of the hostilities carried on against them. However satisfied the President might be of the fallacy of these opinions, they were too extensively maintained not to be respected, as far as was compatible with a due regard to the real interests of the nation. While, therefore, the preparations for offensive operations were hastened by a vigorous exertion of the means at the disposal of the executive, it was thought advisable to make another effort to terminate the war by a direct communication of the pacific views of the United States.—The failure of these attempts was still less to be lamented than the fate of those who were employed in them. Colonel Harden and Major Trueman, two brave officers and valuable men, were severally despatched with propositions of peace, and each was murdered by the savages.

Meeting of congress.

President's speech.

On the 5th of November congress again convened. In the speech delivered at the commencement of the session, Indian affairs were treated at considerable length, and the continuance of the war was mentioned as a subject of much regret. "The reiterated endeavours," it was said, "which had been made to effect a pacification, had hitherto issued in new and

outrageous proofs of persevering hostility on the part of the tribes with whom the United States were in contest.

"A detail of the measures that had been pursued, and of their consequences, which would be laid before congress, while it would confirm the want of success thus far, would evince that means as proper and as efficacious as could have been devised, had been employed. The issue of some of them was still pending; but a favourable one, though not to be despaired of, was not promised by any thing that had yet happened."

That a sanction, commonly respected even among savages, had been found insufficient to protect from massacre the emissaries of peace, was particularly noticed; and the families of those valuable citizens who had thus fallen victims to their zeal for the public service, were recommended to the attention of the legislature.

That unprovoked aggression had been made by the southern Indians, and that there was just cause for apprehension that the war would extend to them also, was mentioned as a subject of additional concern.

"Every practicable exertion had been made to be prepared for the alternative of prosecuting the war, in the event of a failure of pacific overtures. A large proportion of the troops authorized to be raised, had been recruited, though the numbers were yet incomplete; and pains had been taken to discipline them, and put them in a condition for the particular kind of service to be performed. But a delay of operations, besides being dictated by the measures that were pursuing towards a pacific termination of the war, had been in itself deemed preferable to immature efforts."

The humane system which has since been successfully pursued, of gradually civilizing the savages by improving their condition, of diverting them in some degree from hunting to domestic and agricultural occupations by imparting to them some of the most simple and useful acquisitions of society, and of conciliating them to the United States by a beneficial and well regulated commerce, had ever been a favourite object with the President, and the detailed view which was now taken of Indian affairs, was concluded with a repetition of his recommendations of these measures.

The subject next adverted to in the speech, was the impediments which in some places continued to embarrass the collection of the duties on spirits distilled within the United States. After observing that these impediments were lessening in local extent, but that symptoms of such increased

opposition had lately manifested themselves in certain places as, in his judgment, to render his special interposition adviseable, the President added,—“Congress may be assured that nothing within constitutional and legal limits which may depend on me, shall be wanting to assert and maintain the just authority of the laws. In fulfilling this trust, I shall count entirely on the full co-operation of the other departments of government, and upon the zealous support of all good citizens.”

After noticing various objects which would require the attention of the legislature, the President addressed himself particularly to the house of representatives, and said, “I entertain a strong hope that the state of the national finances is now sufficiently matured to enable you to enter upon a systematic and effectual arrangement for the regular redemption and discharge of the public debt, according to the right which has been reserved to the government. No measure can be more desirable, whether viewed with an eye to its intrinsic importance, or to the general sentiments and wish of the nation.”

The addresses of the two houses in answer to the speech, were, as usual, respectful and affectionate. The several subjects recommended to the attention of congress were noticed either in general terms, or in a manner to indicate a coincidence of sentiment between the legislative and executive departments. The turbulent spirit which had manifested itself in certain parts of the union was mentioned by both houses with a just degree of censure, and the measures adopted by the President, as well as the resolution he expressed to compel obedience to the laws, were approved; and the house of representatives, in the most unqualified terms, declared opinions in favour of systematic and effectual arrangements for discharging the public debt. But the subsequent proceedings of the legislature did not fulfil the expectations excited by this auspicious commencement of the session.

At an early day, in a committee of the whole house on the President's speech, Mr. Fitzsimmons moved “that measures for the reduction of so much of the public debt as the United States have a right to redeem, ought to be adopted: and that the secretary of the treasury be directed to report a plan for that purpose.”

This motion was objected to by Mr. Madison as being premature. The state of the finances, he thought, was not sufficiently understood to

authorize the adoption of the measure it contemplated. The debate however soon took a different direction. That part of the resolution which proposed a reference to the secretary of the treasury was particularly opposed; and an ardent discussion ensued, in which, without much essential variation, the arguments which had before been urged on the same subject were again employed. After a vehement contest, the motion to amend the resolution by striking out the proposed reference was overruled, and it was carried in its original form.

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In obedience to this order, the secretary made a report, in which he proposed a plan for the annual redemption of that portion of the debt, the payment of which was warranted by the contract between the United States and their creditors. But the expenses of the Indian war rendering it, in his opinion, unsafe to rest absolutely on the existing revenue, he proposed to extend the internal taxes to pleasure horses, or pleasure carriages, as the legislature might deem most eligible. The consideration of this report was deferred on various pretexts; and a motion was made to reduce the military establishment. The debate on this subject was peculiarly earnest; and, in its progress, the mode of conducting the Indian war, the relative merits and expensiveness of militia and of regular troops, and the danger to liberty from standing armies, were elaborately discussed. It was not until the fourth of January that the motion was rejected. While that question remained undecided, the report of the secretary was unavoidably postponed, because, on its determination would depend, in the opinion of many, the necessity of additional taxes. It would seem not improbable that the opponents of the American system of finances, who constituted rather a minority of the present congress, but who indulged sanguine hopes of becoming the majority in the next, were desirous of referring every question relating to the treasury department to the succeeding legislature, in which there would be a more full representation of the people. Whatever might be the operating motives for delay, neither the extension of the law imposing a duty on spirits distilled within the United States to the territory north-west of the river Ohio, nor the plan for redeeming the public debt, which was earnestly pressed by the administration, could be carried through the present congress. Those who claimed the favour and confidence of the people as a just reward for their general attachment to liberty, and especially for their watchfulness to prevent every augmentation of debt, were found in

opposition to a system for its diminution, which was urged by men who were incessantly charged with entertaining designs for its excessive accumulation, in order to render it the corrupt instrument of executive influence. It might be expected that the public attention would be attracted to such a circumstance. But when party passions are highly inflamed, reason itself submits to their control, and becomes the instrument of their will. The assertion that the existing revenues, if not prodigally or corruptly wasted, were sufficient for the objects contemplated by the President in his speech, would constitute an ample apology for the impediments thrown in the way of a system which could not be directly disapproved, and would justify a continuance of the charge that the supporters of the fiscal system were friends to the augmentation of the public debt.

Soon after the motion for the reduction of the military establishment was disposed of, another subject was introduced, which effectually postponed, for the present session, every measure connected with the finances of the nation.

An act of congress, which passed on the fourth of August, 1790, authorized the President to cause to be borrowed any sum not exceeding twelve millions of dollars, to be applied in payment of the foreign debt of the United States.

A subsequent act, which passed on the 12th of the same month, authorized another loan not exceeding two millions, to be applied, in aid of the sinking fund, towards the extinguishment of the domestic debt.

A power to make these loans was delegated by the President to the secretary of the treasury by a general commission referring to the acts. This commission was accompanied by written instructions, directing the payment of such parts of the foreign debt as should become due at the end of the year 1791; but leaving the secretary, with respect to the residue, to be regulated by the interests of the United States.

Under this commission two loans were negotiated in 1790, and others at subsequent periods.

As many considerations of convenience opposed such an arrangement as would appropriate all the monies arising from either of these loans to one object, to the total exclusion of the other; and no motive was perceived for thus unnecessarily fettering the operations of the treasury; each loan was negotiated under both laws; and consequently the monies produced by each

were applicable to both objects, in such proportions as the President might direct. It has been already observed that his written instructions had ordered the payment of those instalments of the foreign debt which should become due before the first of January, 1792; but no further sums on that account were to be borrowed until supplemental orders to that effect should be given, unless a loan could be made on such terms as would render it advantageous to the United States to anticipate the payments to their foreign creditors. It being the opinion of both the President and secretary that the official powers of the latter authorized him to draw the monies borrowed for domestic purposes into the treasury, where they would form a part of the sinking fund, and be applicable to the objects of that fund in conformity with the laws of appropriation, no written instructions were given respecting that part of the subject; but in the progress of the business, every material step which was taken was communicated to the President, and his directions obtained upon it. While the chief magistrate remained at the seat of government, these communications were verbal; when absent, they were made by letter.

At this period, the domestic debt bore a low price in the market, and foreign capital was pouring into the United States for its purchase. The immediate application of the sinking fund to this object would consequently acquire a large portion of the debt, and would also accelerate its appreciation. The best interests of the United States, and his own fame, thus impelling the secretary to give the operations of the sinking fund the utmost activity of which it was susceptible, he had, with the approbation of the President, directed a part of the first loan to be paid in discharge of the instalments of the foreign debt which were actually due, and had drawn a part of it into the public treasury in aid of the sinking fund.

In May, 1791, instructions were given to the agent of the United States in Europe, to apply the proceeds of future loans, as they should accrue, in payments to France, except such sums as should be previously and specially reserved. In the execution of these instructions, some delay intervened, which was to be ascribed, among other causes, to representations made by the French minister of marine that a plan would be adopted, to which a decree of the national assembly was requisite, for converting a large sum into supplies for St. Domingo: and to a desire on the part of the agent to settle, previously to further payments, a definitive rule by which the monies paid should be liquidated, and credited to the United States. The disordered

state of French affairs protracted both the one and the other of these causes of delay, to a later period than had been expected; and, in the mean time, the secretary continued to draw into the United States such portions of these loans, as were destined to be brought in aid of the sinking fund. Such was the state of this transaction, when the commencement of those calamities, which have finally overwhelmed St. Domingo, induced the American government, on the urgent application of the French minister, to furnish supplies to that ill fated colony, in payment of the debt to France. This being a mode of payment which, to a certain extent, was desired by the creditor, and was advantageous to the debtor, a consequent disposition prevailed to use it so far as might comport with the wish of the French government; and a part of the money designed for foreign purposes, was drawn into the United States. In the course of these operations, a portion of the instalments actually due to France, had been permitted to remain unsatisfied.

A part of the money borrowed in Europe being thus applicable to the extinguishment of the domestic debt, and a part of the domestic revenue being applicable to the payment of interest due on the loans made in Europe, the secretary of the treasury had appropriated a part of the money arising from foreign loans to the payment of interest due abroad, which had been replaced by the application of money in the treasury arising from domestic resources, to the purchase of the domestic debt.

The secretary had not deemed it necessary to communicate these operations in detail to the legislature: but some hints respecting them having been derived either from certain papers which accompanied a report made to the house of representatives early in the session, or from some other source, Mr. Giles, on the 23d of January, moved several resolutions, requiring information, among other things, on the various points growing out of these loans, and the application of the monies arising from them, and respecting the unapplied revenues of the United States, and the places in which the sums so unapplied were deposited. In the speech introducing these resolutions, observations were made which very intelligibly implied charges of a much more serious nature than inattention to the exact letter of an appropriation law. Estimates were made to support the position that a large balance of public money was unaccounted for.

The resolutions were agreed to without debate; and, in a few days, the secretary transmitted a report containing the information that was required.

This report comprehended a full exposition of the views and motives which had regulated the conduct of the department, and a very able justification of the measures which had been adopted; but omitted to state explicitly that part of the money borrowed in Europe had been drawn into the United States with the sanction of the President.—It is also chargeable with some expressions which can not be pronounced unexceptionable, but which may find their apology in the feelings of a mind conscious of its own uprightness, and wounded by the belief that the proceedings against him had originated in a spirit hostile to fair inquiry.

These resolutions, the observations which accompanied them, and the first number of the report, were the signals for a combined attack on the secretary of the treasury, through the medium of the press. Many anonymous writers appeared, who assailed the head of that department with a degree of bitterness indicative of the spirit in which the inquiry was to be conducted.

Resolutions implicating the secretary of the treasury rejected.

On the 27th of February, not many days after the last number of the report was received, Mr. Giles moved sundry resolutions which were founded on the information before the house. The idea of a balance unaccounted for was necessarily relinquished; but the secretary of the treasury was charged with neglect of duty in failing to give congress official information of the monies drawn by him from Europe into the United States; with violating the law of the 4th of August, 1790, by applying a portion of the principal borrowed under it to the payment of interest, and by drawing a part of the same monies into the United States, without instructions from the President; with deviating from the instructions of the President in other respects; with negotiating a loan at the bank, contrary to the public interest, while public monies to a greater amount than were required, lay unemployed in the bank; and with an indecorum to the house, in undertaking to judge of its motives in calling for information which was demandable of him from the constitution of his office; and in failing to give all the necessary information within his knowledge relative to subjects on which certain specified references had been previously made to him.

These resolutions were followed by one, directing that a copy of them should be transmitted to the President of the United States.

The debate on this subject, which commenced on the 28th of February, was continued to the 1st of March, and was conducted with a spirit of acrimony towards the secretary, demonstrating the soreness of the wounds that had been given and received in the political and party wars which had been previously waged.[\[65\]](#) It terminated in a rejection of all the resolutions. The highest number voting in favour of any one of them was sixteen.

Congress adjourns.

On the 3d of March, a constitutional period was put to the existence of the present congress. The members separated with obvious symptoms of extreme irritation. Various causes, the most prominent of which have already been noticed, had combined to organize two distinct parties in the United States, which were rapidly taking the form of a ministerial and an opposition party. By that in opposition, the President was not yet openly renounced. His personal influence was too great to be encountered by a direct avowal that he was at the head of their adversaries; and his public conduct did not admit of a suspicion that he could allow himself to rank as the chief of a party. Nor could public opinion be seduced to implicate him in the ambitious plans and dark schemes for the subversion of liberty, which were ascribed to a part of the administration, and to the leading members who had supported the measures of finance adopted by the legislature.

Yet it was becoming apparent that things were taking a course which must inevitably involve him in the political conflicts which were about to take place. It was apparent that the charges against the secretary of the treasury would not be relinquished, and that they were of a nature to affect the chief magistrate materially, should his countenance not be withdrawn from that officer. It was equally apparent that the fervour of democracy, which was perpetually manifesting itself in the papers, in invectives against levees, against the trappings of royalty, and against the marks of peculiar respect[\[66\]](#) which were paid to the President, must soon include him more pointedly in its strictures.

These divisions, which are inherent in the nature of popular governments, by which the chief magistrate, however unexceptionable his conduct, and however exalted his character, must, sooner or later, be more or less affected, were beginning to be essentially influenced by the great events of Europe.

Progress of the French revolution and its effects on parties in the United States.

That revolution which has been the admiration, the wonder, and the terror of the civilized world, had, from its commencement, been viewed in America with the deepest interest. In its first stage, but one sentiment respecting it prevailed; and that was a belief, accompanied with an ardent wish, that it would improve the condition of France, extend the blessings of liberty, and promote the happiness of the human race. When the labours of the convention had terminated in a written constitution, this unanimity of opinion was in some degree impaired. By a few who had thought deeply on the science of government, and who, if not more intelligent, certainly judged more dispassionately than their fellow citizens, that instrument was believed to contain the principles of self destruction. It was feared that a system so ill balanced could not be permanent. A deep impression was made on the same persons by the influence of the galleries over the legislature, and of mobs over the executive; by the tumultuous assemblages of the people, and their licentious excesses during the short and sickly existence of the regal authority. These did not appear to be the symptoms of a healthy constitution, or of genuine freedom. Persuaded that the present state of things could not last, they doubted, and they feared for the future.

In total opposition to this sentiment was that of the public. There seems to be something infectious in the example of a powerful and enlightened nation verging towards democracy, which imposes on the human mind, and leads human reason in fetters. Novelties, introduced by such a nation, are stripped of the objections which had been preconceived against them; and long settled opinions yield to the overwhelming weight of such dazzling authority. It wears the semblance of being the sense of mankind, breaking loose from the shackles which had been imposed by artifice, and asserting the freedom, and the dignity, of his nature.

The constitution of France, therefore, was generally received with unqualified plaudits. The establishment of a legislature consisting of a single body, was defended not only as being adapted to the particular situation of that country, but as being right in itself. Certain anonymous writers, who supported the theory of a balanced government, were branded as the advocates of royalty, and of aristocracy. To question the duration of the present order of things was thought to evidence an attachment to

unlimited monarchy, or a blind prejudice in favour of British institutions; and the partiality of America in favour of a senate was visibly declining.

In this stage of the revolution, however, the division of sentiment was not marked with sufficient distinctness, nor the passions of the people agitated with sufficient violence, for any powerful effect to be produced on the two parties in America. But when the monarchy was completely overthrown, and a republic decreed,[\[67\]](#) the people of the United States seemed electrified by the measure, and its influence was felt by the whole society. The war in which the several potentates of Europe were engaged against France, although in almost every instance declared by that power, was pronounced to be a war for the extirpation of human liberty, and for the banishment of free government from the face of the earth. The preservation of the constitution of the United States was supposed to depend on its issue; and the coalition against France was treated as a coalition against America also.

A cordial wish for the success of the French arms, or rather that the war might terminate without any diminution of French power, and in such a manner as to leave the people of that country free to choose their own form of government, was, perhaps, universal; but, respecting the probable issue of their internal conflicts, perfect unanimity of opinion did not prevail. By some few individuals, the practicability of governing by a system formed on the republican model, an immense, populous, and military nation, whose institutions, habits, and morals, were adapted to monarchy, and which was surrounded by armed neighbours, was deemed a problem which time alone could solve. The circumstances under which the abolition of royalty was declared, the massacres which preceded it, the scenes of turbulence and violence which were acted in every part of the nation, appeared to them, to present an awful and doubtful state of things, respecting which no certain calculations could be made; and the idea that a republic was to be introduced and supported by force, was, to them, a paradox in politics. Under the influence of these appearances, the apprehension was entertained that, if the ancient monarchy should not be restored, a military despotism would be established. By the many, these unpopular doubts were deemed unpardonable heresies; and the few to whom they were imputed, were pronounced hostile to liberty. A suspicion that the unsettled state of things in France had contributed to suspend the payment of the debt to that nation, had added to the asperity with which the resolutions on that subject were

supported; and the French revolution will be found to have had great influence on the strength of parties, and on the subsequent political transactions of the United States.

NOTES.

NOTE—No. I. See [Page 98](#).

The following is an extract from the orders of the preceding day. "The Commander-in-chief orders the cessation of hostilities between the United States of America and the king of Great Britain to be publicly proclaimed to-morrow at twelve at the new building; and that the proclamation which will be communicated herewith, be read to-morrow evening at the head of every regiment, and corps of the army; after which the chaplains with the several brigades will render thanks to Almighty God for all his mercies, particularly for his overruling the wrath of man to his own glory, and causing the rage of war to cease among the nations.

"Although the proclamation before alluded to, extends only to the prohibition of hostilities and not to the annunciation of a general peace, yet it must afford the most rational and sincere satisfaction to every benevolent mind, as it puts a period to a long and doubtful contest, stops the effusion of human blood, opens the prospect to a more splendid scene, and like another morning star, promises the approach of a brighter day than hath hitherto illuminated the western hemisphere. On such a happy day, which is the harbinger of peace, a day which completes the eighth year of the war, it would be ingratitude not to rejoice; it would be insensibility not to participate in the general felicity.

"The Commander-in-chief, far from endeavouring to stifle the feelings of joy in his own bosom, offers his most cordial congratulations on the occasion to all the officers of every denomination, to all the troops of the United States in general, and in particular to those gallant and persevering men, who had resolved to defend the rights of their invaded country, so long as the war should continue. For these are the men who ought to be considered as the pride and boast of the American Army; and who, crowned with well-earned laurels, may soon withdraw from the field of glory, to the more tranquil walks of civil life.

"While the general recollects the almost infinite variety of scenes through which we have passed with a mixture of pleasure, astonishment and

gratitude; while he contemplates the prospect before us with rapture, he can not help wishing that all the brave men (of whatever condition they may be,) who have shared in the toils and dangers of effecting this glorious revolution, of rescuing millions from the hand of oppression, and of laying the foundation of a great empire, might be impressed with a proper idea of the dignified part they have been called to act (under the smiles of Providence) on the stage of human affairs. For happy, thrice happy shall they be pronounced hereafter, who have contributed any thing; who have performed the meanest office in erecting this stupendous *fabric of freedom* and empire on the broad basis of independency; who have assisted in protecting the rights of human nature, and establishing an asylum for the poor and oppressed of all nations and religions. The glorious task for which we first flew to arms being thus accomplished, the liberties of our country being fully acknowledged and firmly secured by the smiles of heaven, on the purity of our cause, and on the honest exertions of a feeble people determined to be free, against a powerful nation disposed to oppress them, and the character of those who have persevered through every extremity of hardship, suffering, and danger, being immortalized by the illustrious appellation of the *patriot army*, nothing now remains but for the actors of this mighty scene to preserve a perfect unvarying consistency of character through the very last act; to close the drama with applause, and to retire from the military theatre with the same approbation of angels and men which has crowned all their former virtuous actions. For this purpose, no disorder or licentiousness must be tolerated: every considerate and well disposed soldier must remember, it will be absolutely necessary to wait with patience until peace shall be declared, or congress shall be enabled to take proper measures for the security of the public stores, &c. As soon as these arrangements shall be made, the general is confident there will be no delay in discharging with every mark of distinction and honour all the men enlisted for the war who will then have faithfully performed their engagements with the public. The general has already interested himself in their behalf, and he thinks he need not repeat the assurances of his disposition to be useful to them on the present and every other proper occasion. In the mean time, he is determined that no military neglects or excesses shall go unpunished while he retains the command of the army."

NOTE—No. II. See [Page 106](#).

On his way, he stopped a few days at Philadelphia, for the purpose of settling his accounts with the comptroller. The following account of this part of his duty is extracted from Mr. Gordon; "while in the city he delivered in his accounts to the comptroller, down to December the 13th, all in his own hand writing, and every entry made in the most particular manner, stating the occasion of each charge, so as to give the least trouble in examining and comparing them with the vouchers with which they were attended.

"The heads as follows, copied from the folio manuscript paper book in the file of the treasury office, number 3700, being a black box of tin containing, under lock and key, both that and the vouchers."

Total of expenditures from 1775 to 1783, exclusive of provisions from commissaries and contractors, and of liquors, &c. from them and others,	3,387 14 4
Secret intelligence and service,	1,982 10 0
Spent in reconnoitring and travelling,	1,874 8 0
Miscellaneous charges,	2,952 10 1
Expended besides, dollars according to the scale of depreciation,	6,114 14 0
	<i>l.</i> 16,311 17 1

"Two hundred guineas advanced to General M'Dougal are not included in the *l.* 1982 10 0 not being yet settled, but included in some of the other charges, and so reckoned in the general sum.

"Note; 104,364, of the dollars were received after March, 1780, and although credited at forty for one, many did not fetch at the rate of a hundred for one; while 27,775 of them are returned without deducting any thing from the above account (and, therefore, actually made a present of to the public)."

General Washington's account from June, 1778 to the end of June, 1783,	16,311 17 1
Expenditure from July 1, 1783, to December 13,	1,717 5 4
Added afterward from thence to December 28,	213 8 4
Mrs. Washington's travelling expenses in coming to the general and returning,	1,064 1 0
	l. 19,306 11 9

Lawful money of Virginia, the same as Massachusetts, or sterling, l. 14,479 18 9 $\frac{3}{4}$

The general entered in his book—"I find upon the final adjustment of these accounts, that I am a considerable loser, my disbursements falling a good deal short of my receipts, and the money I had upon hand of my own: for besides the sums I carried with me to Cambridge in 1775, I received monies afterwards on private account in 1777, and since, which (except small sums, that I had occasion now and then to apply to private uses) were all expended in the public service: through hurry, I suppose, and the perplexity of business, (for I know not how else to account for the deficiency) I have omitted to charge the same, whilst every debit against me is here credited."

July 1st, 1783.

NOTE—No. III. See [Page 179](#).

The year 1784 had nearly passed away before the determination of the British cabinet not to evacuate the western posts was known to the government of the United States. In the spring of that year, General Knox, who commanded the troops still retained in the service of the United States, was directed to "open a correspondence with the Commander-in-chief of his Britannic majesty's forces in Canada, in order to ascertain the precise time when each of the posts within the territories of the United States then occupied by the British troops should be delivered up." The measures

produced by this resolution exhibit a curious specimen of the political opinions on the subject of federal powers, which then prevailed in congress.

It being at that time believed that the British garrisons would certainly be withdrawn, it became necessary to provide for occupying the posts when surrendered, with troops belonging to the United States. A number deemed sufficient for the purpose not having been retained in service, a motion was made for raising seven hundred men, by requisitions on the states for that and other objects specified in the resolution. The power of congress to make these requisitions was seriously contested, and it was gravely urged that such a power, connected with the rights to borrow money, and to emit bills of credit, would be dangerous to liberty, and alarming to the states. The motion for raising this small number of regulars did not prevail; and an order was made that except twenty-five privates to guard the stores at fort Pitt, and fifty-five to guard those at West Point and other magazines, with a proportionable number of officers, no one to exceed the rank of captain, the troops already in service should be discharged, unless congress, before its recess, should dispose of them in some other manner. For the purpose of garrisoning the posts, seven hundred militia were required from Connecticut, New York, New Jersey and Pennsylvania, who should serve twelve months. While the discussions on this subject were pending, instructions from the legislature of New York to their delegates were laid before congress, requesting that body in terms of great strength, in pursuance of the confederation, to declare the number of troops of which the garrisons of those posts which were within the limits of that state should consist. The resolutions asserted a constitutional right to demand from congress a declaration upon this point, and avowed a determination to raise the troops should such declaration be withheld. After the determination of the British government not to surrender the posts was known, the militia ordered to be raised to garrison them, who were not in actual service, were discharged.

NOTE—No. IV. See [Page 370](#).

In the formation of this treaty, a question came on to be considered and decided which involved a principle that on an after occasion, and in a

different case, excited a ferment never to be forgotten by those who took an active part in the politics of the day.

The whole commerce of the Creek nation was in the hands of M'Gillivray, who received his supplies from a company of British merchants, free from duty, through the territories belonging to Spain. This circumstance constituted no inconsiderable impediment to the progress of the negotiation. M'Gillivray derived emoluments from the arrangement which he would not consent to relinquish; and was not without apprehensions, that Spain, disgusted by his new connexions with the United States, might throw embarrassments in the way of this profitable traffic. In addition to this consideration, it was, on the part of the United States, desirable to alter the channel through which the Indians should receive their supplies, and thereby to render them more dependent on the American government. But it would be necessary to exempt the goods designed for the Indian nation from the duties imposed by law on imported articles, and the propriety of such an exemption might well be questioned.

With that cautious circumspection which marked his political course, the president took this point into early consideration, and required the opinion of his constitutional advisers respecting it. The secretary of state was of opinion that the stipulation for importing his goods through the United States, duty free, might safely be made. "A treaty made by the president with the concurrence of two-thirds of the senate, was," he said, "a law of the land," and a law of superior order, because it not only repeals past laws, but can not itself be repealed by future ones. The treaty then will legally control the duty act, and the act for licensing traders in this particular instance. From this opinion there is no reason to suppose that any member of the cabinet dissented. A secret article providing for the case was submitted to the senate, and it has never been understood that in advising and consenting to it, that body was divided.

NOTE—No. V. See [Page 394](#).

This question was investigated with great labour, and being one involving principles of the utmost importance to the United States, on which the parties were divided, the subject was presented in all the views of which it was susceptible. A perusal of the arguments used on the occasion

would certainly afford much gratification to the curious, and their insertion at full length would perhaps be excused by those who recollect the interest which at the time was taken in the measure to which they related, and the use which was made of it by the opponents of the then administration; but the limits prescribed for this work will not permit the introduction of such voluminous papers. It may, however, be expected that the outline of that train of reasoning with which each opinion was supported, and on which the judgment of the president was most probably formed, should be briefly stated.

To prove that the measure was not sanctioned by the constitution, the general principle was asserted, that the foundation of that instrument was laid on this ground, "that all powers not delegated to the United States by the constitution, nor prohibited by it to the states, are reserved to the states or to the people." To take a single step beyond the boundaries thus specially drawn around the powers of congress, is to take possession of a boundless field of power, no longer susceptible of definition.

The power in question was said not to be among those which were specially enumerated, nor to be included within either of the general phrases which are to be found in the constitution.

The article which contains this enumeration was reviewed; each specified power was analyzed; and the creation of a corporate body was declared to be distinct from either of them.

The general phrases are,

1st. To lay taxes to provide for the general welfare of the United States. The power here conveyed, it was observed, was "to lay taxes," the purpose was "the general welfare." Congress could not lay taxes *ad libitum*, but could only lay them for the general welfare; nor did this clause authorize that body to provide for the general welfare otherwise than by laying taxes for that purpose.

2dly. To make all laws which shall be necessary and proper for carrying into execution the enumerated powers.

But they can all be carried into execution without a bank. A bank, therefore, is not necessary, and consequently not authorized by this phrase.

It had been much urged that a bank would give great facility or convenience in the collection of taxes. Suppose this were true; yet the

constitution allows only the means which are necessary, not those which are convenient. If such a latitude of construction be allowed this phrase, as to give any non-enumerated power, it will go to every one; for there is no one which ingenuity may not torture into a *convenience*, *in some way or other*, to some one of so long a list of enumerated powers. It would swallow up all the list of enumerated powers, and reduce the whole to one phrase. Therefore it was that the constitution restrained them to *necessary* means, that is to say, to those means without which the grant of the power must be nugatory.

The convenience was then examined. This had been stated in the report of the secretary of the treasury to congress, to consist in the augmentation of the circulation medium, and in preventing the transportation and retransportation of money between the states and the treasury.

The first was considered as a demerit. The second, it was said, might be effected by other means. Bills of exchange and treasury drafts would supply the place of bank notes. Perhaps indeed bank bills would be a more convenient vehicle than treasury orders; but a little difference in the degree of convenience can not constitute the *necessity* which the constitution makes the ground for assuming any non-enumerated power.

Besides, the existing state banks would, without doubt, enter into arrangements for lending their agency. This expedient alone suffices to prevent the existence of that *necessity* which may justify the assumption of a non-enumerated power as a means for carrying into effect an enumerated one.

It may be said that a bank whose bills would have a currency all over the states, would be more convenient than one whose currency is limited to a single state. So it would be still more convenient that there should be a bank whose bills should have a currency all over the world; but it does not follow from this superior conveniency, that there exists any where a power to establish such a bank, or that the world may not go on very well without it.

For a shade or two of convenience, more or less, it can not be imagined that the constitution intended to invest congress with a power so important as that of erecting a corporation.

In supporting the constitutionality of the act, it was laid down as a general proposition, "that every power vested in a government is in its nature *sovereign*," and includes by *force* of the *term*, a right to employ all

the *means* requisite and *fairly applicable* to the attainment of the *ends* of such power; and which are not precluded by restrictions and exceptions specified in the constitution, are not immoral, are not contrary to the essential ends of political society.

This principle, in its application to government in general, would be admitted as an axiom; and it would be incumbent on those who might refuse to acknowledge its influence in American affairs to *prove* a distinction; and to show that a rule which, in the general system of things, is essential to the preservation of the social order, is inapplicable to the United States.

The circumstance that the powers of sovereignty are divided between the national and state governments, does not afford the distinction required. It does not follow from this, that each of the portions of power delegated to the one or to the other, is not sovereign with regard to its *proper objects*. It will only follow from it, that each has sovereign power as to certain things, and not as to other things. If the government of the United States does not possess sovereign power as to its declared purposes and trusts, because its power does not extend to all cases, neither would the several states possess sovereign power in any case; for their powers do not extend to every case. According to the opinion intended to be combated, the United States would furnish the singular spectacle of *a political society* without *sovereignty*, or a people *governed* without a *government*.

If it could be necessary to bring proof of a proposition so clear as that which affirms that the powers of the federal government, *as to its objects*, were sovereign, there is a clause in the constitution which is decisive. It is that which declares the constitution of the United States, the laws made in pursuance of it, and the treaties made under its authority to be the supreme law of the land. The power which can create the supreme law in any case, is doubtless sovereign as to such case.

This general and indisputable principle puts an end to the abstract question, whether the United States have power to erect a corporation: for it is unquestionably incident to sovereign power to erect corporations, and consequently to that of the United States, in relation to the objects intrusted to the management of the government. The difference is this: where the authority of the government is general, it can create corporations *in all*

cases; where it is confined to certain branches of legislation, it can create corporations only *in those cases*.

That the government of the United States can exercise only those powers which are delegated by the constitution, is a proposition not to be controverted; neither is it to be denied on the other hand, that there are implied as well as express powers, and that the former are as effectually delegated as the latter. For the sake of accuracy it may be observed, that there are also *resulting* powers. It will not be doubted that if the United States should make a conquest of any of the territories of its neighbours, they would possess sovereign jurisdiction over the conquered territory. This would rather be a result of the whole mass of the powers of the government, and from the nature of political society, than a consequence of either of the powers specially enumerated. This is an extensive case in which the power of erecting corporations is either implied in, or would result from some or all of the powers vested in the national government.

Since it must be conceded that implied powers are as completely delegated as those which are expressed, it follows that, as a power of erecting a corporation may as well be implied as any other thing, it may as well be employed as an *instrument* or *mean* of carrying into execution any of the specified powers as any other *instrument* or *mean* whatever. The question in this as in every other case must be, whether the mean to be employed has a natural relation to any of the acknowledged objects or lawful ends of the government. Thus a corporation may not be created by congress for superintending the police of the city of Philadelphia, because they are not authorized to regulate the police of that city; but one may be created in relation to the collection of the taxes, or to the trade with foreign countries, or between the states, or with the Indian tribes, because it is in the province of the federal government to regulate those objects; and because it is incident to a general sovereign or legislative power to regulate a thing, to employ all the means which relate to its regulation, to the best and greatest advantage.

A strange fallacy seems to have crept into the manner of thinking and reasoning upon this subject. The imagination has presented an incorporation as some great, *independent*, *substantive* thing—as a political end of peculiar magnitude and moment; whereas it is truly to be considered as a quality, capacity, or mean to an end. Thus a mercantile company is formed with a

certain capital for the purpose of carrying on a particular branch of business. The business to be prosecuted is the *end*. The association in order to form the requisite capital is the primary *mean*. Let an incorporation be added, and you only add a new quality to that association which enables it to prosecute the business with more safety and convenience. The association when incorporated still remains the *mean*, and can not become the *end*.

To this reasoning respecting the inherent right of government to employ all the means requisite to the execution of its specified powers, it is objected, that none but *necessary* and *proper* means can be employed; and none can be *necessary*, but those without which the grant of the power would be nugatory. So far has this restrictive interpretation been pressed as to make the case of *necessity* which shall warrant the constitutional exercise of a power, to depend on casual and temporary circumstances; an idea, which alone confutes the construction. The expedience of exercising a particular power, at a particular time, must indeed depend on circumstances, but the constitutional right of exercising it must be uniform and invariable. All the arguments, therefore, drawn from the accidental existence of certain state banks which happen to exist to-day, and for aught that concerns the government of the United States may disappear to-morrow, must not only be rejected as fallacious, but must be viewed as demonstrative that there is a radical source of error in the reasoning.

But it is essential to the being of the government that so erroneous a conception of the meaning of the word *necessary* should be exploded.

It is certain that neither the grammatical nor popular sense of the term requires that construction. According to both, *necessary* often means no more than *needful*, *requisite*, *incidental*, *useful*, or *conducive to*. It is a common mode of expression to say that it is necessary for a government or a person to do this or that thing, where nothing more is intended or understood than that the interests of the government or person require, or will be promoted by doing this or that thing.

This is the true sense in which the word is used in the constitution. The whole turn of the clause containing it indicates an intent to give by it a liberal latitude to the exercise of the specified powers. The expressions have peculiar comprehensiveness. They are "to make *all laws* necessary and proper for carrying into execution the foregoing powers, and *all other*

powers vested by the constitution in the government of the United States, or in any *department* or *office* thereof." To give the word "necessary" the restrictive operation contended for, would not only depart from its obvious and popular sense, but would give it the same force as if the word *absolutely* or *indispensably* had been prefixed to it.

Such a construction would beget endless uncertainty and embarrassment. The cases must be palpable and extreme in which it could be pronounced with certainty that a measure was absolutely necessary, or one without which a given power would be nugatory. There are few measures of any government which would stand so severe a test. To insist upon it would be to make the criterion of the exercise of an implied power *a case of extreme necessity*; which is rather a rule to justify the overleaping the bounds of constitutional authority than to govern the ordinary exercise of it.

The degree in which a measure is necessary can never be a test of the legal right to adopt it. The relation between the *measure* and the *end*; between the nature of the *mean* employed towards the execution of a power, and the object of that power must be the criterion of constitutionality, not the more or less *necessity* or *utility*.

The means by which national exigencies are to be provided for, national inconveniences obviated, and national prosperity promoted, are of such infinite variety, extent, and complexity, that here must of necessity be great latitude of discretion in the selection and application of those means. Hence the necessity and propriety of exercising the authority intrusted to a government on principles of liberal construction.

While on the one hand, the restrictive interpretation of the word *necessary* is deemed inadmissible, it will not be contended on the other, that the clause in question gives any new and independent power. But it gives an explicit sanction to the doctrine of implied powers, and is equivalent to an admission of the proposition that the government, *as to its specified powers and objects*, has plenary and sovereign authority.

It is true that the power to create corporations is not granted in terms. Neither is the power to pass any particular law, nor to employ any of the means by which the ends of the government are to be attained. It is not expressly given in cases in which its existence is not controverted. For by the grant of a power to exercise exclusive legislation in the territory which may be ceded by the states to the United States, it is admitted to pass; and in

the power "to make all needful rules and regulations respecting the territory or other property of the United States," it is acknowledged to be implied. In virtue of this clause, has been implied the right to create a government; that is, to create a body politic or corporation of the highest nature; one that, in its maturity, will be able itself to create other corporations. Thus has the constitution itself refuted the argument which contends that, had it been designed to grant so important a power as that of erecting corporations, it would have been mentioned. But this argument is founded on an exaggerated and erroneous conception of the nature of the power. It is not of so transcendent a kind as the reasoning supposes. Viewed in a just light, it is a *mean* which ought to have been left to implication, rather than an *end* which ought to have been expressly granted.

The power of the government then to create corporations in certain cases being shown, it remained to inquire into the right to incorporate a banking company, in order to enable it the more effectually to accomplish *ends* which were in themselves lawful.

To establish such a right it would be necessary to show the relation of such an institution to one or more of the specified powers of government.

It was then affirmed to have a relation more or less direct to the power of collecting taxes, to that of borrowing money, to that of regulating trade between the states, to those of raising, supporting, and maintaining fleets and armies; and in the last place to that which authorizes the making of all needful rules and regulations concerning the property of the United States, as the same had been practised upon by the government.

The secretary of the treasury next proceeded, by a great variety of arguments and illustrations, to prove the position that the measure in question was a proper mean for the execution of the several powers which were enumerated, and also contended that the right to employ it resulted from the whole of them taken together. To detail those arguments would occupy too much space, and is the less necessary, because their correctness obviously depends on the correctness of the principles which have been already stated.

NOTE—No. VI. See [Page 434](#).

The officer to whom the management of the finances was confided was so repeatedly charged with a desire to increase the public debt and to render it perpetual, and this charge had such important influence in the formation of parties, that an extract from this report can not be improperly introduced.

After stating the sum to be raised, the secretary says, "three expedients occur to the option of the government for providing this:

"One, to dispose of the interest to which the United States are entitled in the bank of the United States. This at the present market price of bank stock would yield a clear gain to the government much more than adequate to the sum required.

"Another, to borrow the money upon an establishment of funds either merely commensurate with the interest to be paid, or affording a surplus which will discharge the principal by instalments within a short term.

"The third is to raise the amount by taxes."

After stating his objections to the first and second expedients, the report proceeds thus, "but the result of mature reflection is, in the mind of the secretary, a strong conviction that the last of the three expedients which have been mentioned, is to be preferred to either of the other two.

"Nothing can more interest the national credit and prosperity than a constant and systematic attention to husband all the means previously possessed for extinguishing the present debt, and to avoid, as much as possible, the incurring of any new debt.

"Necessity alone, therefore, can justify the application of any of the public property, other than the annual revenues, to the current service, or the temporary and casual exigencies; or the contracting of an additional debt by loans, to provide for those exigencies.

"Great emergencies indeed might exist, in which loans would be indispensable. But the occasions which will justify them must be truly of that description.

"The present is not of such a nature. The sum to be provided is not of magnitude enough to furnish the plea of necessity.

"Taxes are never welcome to a community. They seldom fail to excite uneasy sensations more or less extensive. Hence a too strong propensity in the governments of nations, to anticipate and mortgage the resources of

posterity, rather than to encounter the inconveniencies of a present increase of taxes.

"But this policy, when not dictated by very peculiar circumstances, is of the worst kind. Its obvious tendency is, by enhancing the permanent burdens of the people, to produce lasting distress, and its natural issue is in national bankruptcy."

It will be happy if the councils of this country, sanctioned by the voice of an enlightened community, shall be able to pursue a different course.

NOTE—No. VII. See [Page 450](#).

About the same time a letter was addressed to the attorney general on the same subject. The following extract is taken from one of the twenty-sixth of August to the secretary of the treasury.

"Differences in political opinions are as unavoidable as, to a certain point, they may be necessary; but it is exceedingly to be regretted that subjects can not be discussed with temper, on the one hand, or decisions submitted to on the other, without improperly implicating the motives which led to them; and this regret borders on chagrin when we find that men of abilities, zealous patriots, having the same *general* objects in view, and the same upright intentions to prosecute them, will not exercise more charity in deciding on the opinions and actions of each other. When matters get to such lengths, the natural inference is that both sides have strained the cords beyond their bearing, that a middle course would be found the best until experience shall have decided on the right way; or, which is not to be expected, because it is denied to mortals, until there shall be some infallible rule by which to forejudge events.

"Having premised these things, I would fain hope that liberal allowances will be made for the political opinions of each other; and instead of those wounding suspicions, and irritating charges with which some of our gazettes are so strongly impregnated, and which can not fail, if persevered in, of pushing matters to extremity, and thereby tearing the machine asunder, that there might be mutual forbearance and temporising yieldings on *all sides*. Without these, I do not see how the reins of government are to be managed, or how the union of the states can be much longer preserved.

"How unfortunate would it be if a fabric so goodly, erected under so many providential circumstances, after acquiring in its first stages, so much respectability, should, from diversity of sentiment, or internal obstructions to some of the acts of government (for I can not prevail on myself to believe that these measures are as yet the acts of a determined party) be brought to the verge of dissolution. Melancholy thought! But while it shows the consequences of diversified opinions, where pushed with too much tenacity, it exhibits evidence also of the necessity of accommodation, and of the propriety of adopting such healing measures as may restore harmony to the discordant members of the union, and the governing powers of it.

"I do not mean to apply this advice to any measures which are passed, or to any particular character. I have given it, in the same *general* terms, to other officers of the government. My earnest wish is that balm may be poured into *all* the wounds which have been given, to prevent them from gangrening, and to avoid those fatal consequences which the community may sustain if it is

withheld. The friends of the union must wish this: those who are not, but who wish to see it rended, will be disappointed; and all things I hope will go well."

NOTE—No. VIII. See [Page 479](#).

The gazettes of the day contain ample proofs on this subject. All the bitterness of party spirit had poured itself out in the most severe invectives against the heads of the state and treasury departments.

The secretary of the treasury was represented as the advocate of "aristocracy, monarchy, hereditary succession, a titled order of nobility, and all the other mock pageantry of kingly government." He was arraigned at the bar of the public for holding principles unfavourable to the sovereignty of the people, and with inculcating doctrines insinuating their inability to rule themselves. The theory of the British monarchy was said to have furnished his model for a perfect constitution; and all his systems of finance, which were represented as servile imitations of those previously adopted by England, were held up to public execration as being intended to promote the favourite project of assimilating the government of the United States to that of Great Britain. With this view, he had entailed upon the nation a heavy debt, and perpetual taxes; had created an artificial monied interest which had corrupted, and would continue to corrupt the legislature; and was endeavouring to prostrate the local authorities as a necessary step towards erecting that great consolidated monarchy which he contemplated.

To support some of these charges, sentences and parts of sentences were selected from his reports, which expressed the valuable purposes to which a funded debt might be applied, and were alleged to affirm, as an abstract principle, "that a public debt was a public blessing." He was, it was added, the inveterate enemy of Mr. Jefferson, because, in the republican principles of that gentleman, he perceived an invincible obstacle to his views.

If the counter charges exhibited against the secretary of state were less capable of alarming the fears of the public for liberty, and of directing the resentments of the people against that officer as the enemy of their rights, they were not less calculated to irritate his personal friends, and to wound his own feelings.

The adversaries of this gentleman said, that he had been originally hostile to the constitution of the United States, and adverse to its adoption; and "that his avowed opinions tended to national disunion, national insignificance, public

disorder, and discredit." Under the garb of democratic simplicity, and modest retiring philosophy, he covered an inordinate ambition which grasped unceasingly at power, and sought to gratify itself, by professions of excessive attachment to liberty, and by traducing and lessening in the public esteem, every man in whom he could discern a rival. To this aspiring temper they ascribed, not only "those pestilent whispers which, clandestinely circulating through the country, had, as far as was practicable, contaminated some of its fairest and worthiest characters," but also certain publications affecting the reputation of prominent individuals whom he might consider as competitors with himself for the highest office in the state. A letter written by Mr. Jefferson to a printer, transmitting for publication the first part of "the rights of man," which letter was prefixed to the American edition of that pamphlet, contained allusions to certain "political heresies" of the day, which were understood to imply a serious censure on the opinions of the vice president: and the great object of the national gazette, a paper known to be edited by a clerk in the department of state, was "to calumniate and blacken public characters, and, particularly, to destroy the public confidence in the secretary of the treasury, who was to be hunted down for the unpardonable sin of having been the steady and invariable friend of broad principles of national government." It was also said that his connexions with this paper, and the patronage he afforded it, authorized the opinion that it might fairly be considered "the mirror of his views," and thence was adduced an accusation not less serious in its nature than that which has been already stated.

The national gazette was replete with continual and malignant strictures on the leading measures of the administration, especially those which were connected with the finances. "If Mr. Jefferson's opposition to these measures had ceased when they had received the sanction of law, nothing more could have been said than that he had transgressed the rules of official decorum in entering the lists with the head of another department, and had been culpable in pursuing a line of conduct which was calculated to sow the seeds of discord in the executive branch of the government in the infancy of its existence. But when his opposition extended beyond that point, when it was apparent that he wished to *render odious*, and of course to *subvert* (for in a popular government these are convertible terms) all those deliberate and solemn acts of the legislature which had become the pillars of the public credit, his conduct deserved to be regarded with a still severer eye." It was also said to be peculiarly unfit for a person remaining at the head of one of the great executive departments, openly to employ all his influence in exciting the public rage

against the laws and the legislature of the union, and in giving circulation to calumnies against his colleagues in office, from the contamination of which the chief magistrate himself could not hope entirely to escape.

END OF VOLUME IV.

FOOTNOTES

[1] Higher up, this river is called the Catawba.

[2] This account of the battle of Hobkirk's Hill varies in several particulars from that contained in the first edition. In making the alteration the author has followed the letter of General Davie, published in Mr. Johnson's biography of General Greene. General Davie was known to the author to be a gentleman in whose representations great confidence is to be placed on every account, and his situation in the army enabled him to obtain the best information.

[3] There is some variance between this statement and that which has been made by Mr. Ramsay and Mr. Gordon, although their estimates are supposed to have been formed on the same document—the field return made by the adjutant general of the southern army, dated the 26th of April. This return contains a column of the present fit for duty, and also exhibits the killed, wounded, and missing, but contains no column of total numbers. Mr. Ramsay and Mr. Gordon are supposed to have taken the column of present fit for duty as exhibiting the strength of the army on the day of the battle; but as this return was made the day after the action, the author has supposed that the killed, wounded, and missing, must be added to the numbers fit for duty on the day of the return, to give the actual strength of the army at the time of the engagement.

[4] Mr. Johnson states that Captain M'Cauley, of South Carolina, had joined Armstrong and Carrington. Some of the troopers were killed on the bridge.

[5] The execution of Colonel Hayne has been generally ascribed to Lord Rawdon, and that gallant nobleman has been censured throughout America for an act which has been universally execrated. A letter addressed by him to the late General Lee, on receiving the memoirs of the southern war, written by that gentleman, which has been published in the "View of the Campaign of 1781, in the Carolinas, by H. Lee," gives the British view of that transaction, and exonerates Lord Rawdon from all blame. Lieutenant Colonel Balfour commanded, and Lord Rawdon sought to save Colonel Hayne.

[6] The British accounts acknowledge only two hundred and fifty-seven missing; but General Greene, in his letter of the ninth of September, says, that including seventy wounded who were left at Eutaw, he made five hundred prisoners.

[7] During this campaign a very effective expedition against the Cherokees was conducted by General Pickens. When the struggle for South Carolina recommenced, those savages were stimulated to renew their incursions into the settlements of the whites. At the head of about four hundred mounted militia, Pickens penetrated into their country, burned thirteen of their villages, killed upwards of forty Indians, and took a number of prisoners, without the loss of a single man. On this occasion a new and formidable mode of attack was introduced. The militia horse rushed upon the Indians, and charged them sword in hand. Terrified at the rapidity of the pursuit, the Cherokees humbly sued for peace, which was granted on terms calculated to restrain depredations in future.

[8] In the judicious orders given to Wayne, Greene endeavoured to impress on that officer the importance of a course of conduct, always observed by himself, which might tend to conciliate parties. "Try," says he, "by every means in your power, to soften the malignity and dreadful resentments subsisting between the Whig and Tory; and put a stop as much as possible to that cruel custom of putting men to death after they surrender themselves prisoners. The practice of plundering you will endeavour to check as much as possible; and point out to the militia the ruinous consequences of the policy. Let your discipline be as regular and as rigid as the nature and constitution of your troops will admit."—2 *Johnson*, 277.

[9] The distresses of the southern army were such that, if plainly described, truth would wear the appearance of fiction. They were almost naked and barefooted, frequently without food, and always without pay. That he might relieve them when in the last extremity, without diminishing the exertions of their general to derive support from other sources, by creating an opinion that supplies could be drawn from him, Mr. Morris, as was stated by himself in conversation with the author, employed an agent to attend the southern army as a volunteer, whose powers were unknown to General Greene. This agent was instructed to watch its situation; and, whenever it appeared impossible for the general to extricate himself from his embarrassments, to furnish him, on his pledging the public faith for repayment, with a draught on the financier for such a sum as would relieve the urgency of the moment. Thus was Greene occasionally rescued from impending ruin by aids which appeared providential, and for which he could not account.

[10] *Secret Journals of Congress*, vol. 2, pp. 305, 399, 400, 452.

[11] *Secret Journals of Congress*, v. 2, pp. 412, 418, 454.

[12] *Secret Journals of Congress*, v. 3, p. 249.

[13] In addition to the public documents and accounts, the author received a statement of this action in a letter from his friend Captain Parker.

[14] By a resolution of the preceding year, the inquiry into his conduct had been dispensed with, and he had been restored to his command in the army.

[15] See note, [No. I.](#) at the end of the volume.

[16] Gordon.

[17] See note, [No. II.](#) at the end of the volume.

[18] General Mifflin.

[19] "Resolved that the statue be of bronze: the general to be represented in a Roman dress, holding a truncheon in his right hand, and his head encircled with a laurel wreath. The statue to be supported by a marble pedestal on which are to be represented, in basso relievo, the following principal events of the war, in which General Washington commanded in person: the evacuation of Boston:—the capture of the Hessians at Trenton:—the battle of Princeton:—the action of Monmouth:—and the surrender of York.—On the upper part of the front of the pedestal to be engraved as follows: the United States in congress assembled, ordered this statue to be erected in the year of our Lord 1783, in honour of George Washington, the illustrious Commander-in-chief of the armies of the United States of America, during the war which vindicated and secured their liberty, sovereignty and independence."

[20] This resolution has been carried into execution. The statue it ordained now stands in the capitol of Virginia, in a spacious area in the centre of the building. A bust of the Marquis de Lafayette, which was also directed by the legislature, is placed in a niche of the wall in the same part of the building.

[21] About one hundred and fifty miles.

[22] Mr. Jefferson.

[23] General Gates was associated with him in the mission.

[24] It is in these words; "whereas it is the desire of the representatives of this commonwealth to embrace every suitable occasion of testifying their sense of the unexampled merits of George Washington, esquire, towards his country, and it is their wish in particular that those great works for its improvement, which both as springing from the liberty which he has been so instrumental in establishing, and as encouraged by his patronage, will be durable monuments of his glory, may be made monuments also of the gratitude of his country. Be it enacted, &c." This bill is understood to have been drawn by Mr. Madison.

[25] Mr. Madison.

[26] Mr. Fitzsimmons, and Mr. Rutledge.

[27] On a subsequent occasion, an attempt was made to obtain a resolution of congress, recommending as an additional amendment to the eighth article of the confederation, that the taxes for the use of the continent should be laid and levied separate from any other tax, and should be paid directly into the national treasury; and that the collectors respectively should be liable to an execution to be issued by the treasurer, or his deputy, under the direction of congress, for any arrears of taxes by him to be collected, which should not be paid into the treasury in conformity with the requisitions of congress.

Such was the prevalence of state policy, even in the government of the union, or such the conviction of the inutility of recommending such an amendment, that a vote of congress could not be obtained for asking this salutary regulation as a security for the revenue only for eight years.

[28] See note, [No. III.](#) at the end of the volume.

[29] The facts relative to this negotiation were stated in the correspondence of General Washington. The statement is supported by the Secret Journals of Congress, vol. 4, p. 329, and those which follow.

[30] Edmund Randolph, James Madison, Walter Jones, St. George Tucker, and Meriwether Smith.

[31] Mr. Jay.

[32] New York, New Jersey, Pennsylvania, Delaware, Maryland, and Virginia.

[33] Mr. Madison.

[34] Mr. Randolph.

[35] General Knox.

[36] This sentiment was far from being avowed by any correspondent of General Washington, but is stated in the private letters to him, to have been taken up by some.

[37] In a subsequent part of the same letter, this gentleman draws the outlines of a constitution such as he would wish. It is essentially the same with that which was recommended by the convention.

[38] This valuable officer died in Georgia in the year 1786.

[39] Colonel Hamilton, Mr. Madison, and Mr. Jay.

[40] North Carolina and Rhode Island did not at first accept the constitution, and New York was apparently dragged into it by a repugnance to being

excluded from the confederacy. By the convention of that state a circular letter was addressed to the several states in the union inviting them to unite in calling a general convention to revise the constitution. Its friends seem to have been persuaded that this measure, if successful, would effectually destroy the edifice they had erected with so much labour, before an experience of its advantages could dissipate the prejudices which had been excited against it. "You will have seen," said one of its most effective advocates, "the circular letter from the convention of this state. It has a most pernicious tendency. If an early general convention can not be parried, it is seriously to be feared that the system which has resisted so many direct attacks, may be at length successfully undermined by its enemies. It is now perhaps to be wished that Rhode Island may not accede until this new crisis of danger be over; some think it would be better if even New York had held out until the operation of the government could have dissipated the fears which artifice had created, and the attempts resulting from those fears and artifices."

[41] The reluctance with which General Washington assumed his new dignity, and that genuine modesty which was a distinguished feature of his character, are further illustrated by the following extract from a letter to General Knox. "I feel for those members of the new congress, who, hitherto, have given an unavailing attendance at the theatre of action. For myself, the delay may be compared to a reprieve; for in confidence, I tell *you* (with the *world* it would obtain *little credit*,) that my movements to the chair of government will be accompanied by feelings not unlike those of a culprit who is going to the place of his execution; so unwilling am I in the evening of life, nearly consumed in public cares, to quit a peaceful abode for an ocean of difficulties, without that competency of political skill, abilities, and inclination, which are necessary to manage the helm. I am sensible that I am embarking the voice of the people, and a good name of my own on this voyage; but what returns will be made for them heaven alone can foretell.—Integrity and firmness are all I can promise; these, be the voyage long or short, shall never forsake me, although I may be deserted by all men; for of the consolations which are to be derived from these, under any circumstances, the world can not deprive me."

[42] This has since been denominated the department of state.

[43] The following extract from a letter written July 1789, to Doctor Stuart, who had communicated to him this among other private insinuations, shows the ideas entertained by the President on this subject. "It is to be lamented that a question has been stirred which has given rise to so much animadversion, and

which I confess has given me much uneasiness, lest it should be supposed by some unacquainted with facts that the object in view was not displeasing to me. The truth is, the question was moved before I arrived, without any privy or knowledge of it on my part, and urged after I was apprised of it contrary to my opinion;—for I foresaw and predicted the reception it has met with, and the use that would be made of it by the enemies of the government. Happily the matter is now done with, I hope never to be revived."

[44] Just before his departure from New York the President received from the Count de Moustiers, the minister of France, official notice that he was permitted by his court to return to Europe. By the orders of his sovereign he added, "that His Majesty was pleased at the alteration which had taken place in the government, and congratulated America on the choice they had made of a President." As from himself, he observed that the government of this country had been hitherto of so fluctuating a nature, that no dependence could be placed on its proceedings; in consequence of which foreign nations had been cautious of entering into treaties, or engagements of any kind with the United States: but that in the present government there was a head to look up to, and power being placed in the hands of its officers, stability in its measures might be expected. The disposition of his Christian Majesty to cultivate the good will of the new government was also manifested by his conduct in the choice of a minister to replace the Count de Moustiers. Colonel Ternan was named as a person who would be particularly acceptable to America, and his appointment was preceded by the compliment of ascertaining the sense of the President respecting him.

[45] It has ever been understood that these members were, on principle, in favour of the assumption as modified in the amendment made by the senate; but they withheld their assent from it when originally proposed in the house of representatives, in the opinion that the increase of the national debt, added to the necessity of giving to the departments of the national government a more central residence. It is understood that a greater number would have changed had it been necessary.

[46] On the first information at St. Augustine that M'Gillivray was about to repair to New York, the intelligence was communicated to the governor at the Havanna, and the secretary of East Florida came to New York, with a large sum of money to purchase flour, as it was said; but to embarrass the negotiations with the Creeks was believed to be his real design. He was closely watched, and measures were taken to render any attempts he might make abortive.

[47] See note, [No. IV.](#) at the end of the volume.

[48] On giving his assent to the bill "regulating the military establishment of the United States," the President subjoined to the entry in his diary the remark, that although he gave it his sanction, "he did not conceive that the military establishment was adequate to the exigencies of the government, and to the protection it was intended to afford." It consisted of one regiment of infantry, and one battalion of artillery, amounting in the total, exclusive of commissioned officers, to twelve hundred and sixteen men.

[49] Rhode Island had adopted the constitution in the preceding May, and had thus completed the union.

[50] In a more confidential message to the senate, all the objects of the negotiation in which Mr. Morris had been employed were detailed, and the letters of that gentleman, with the full opinion of the President were communicated.

[51] The interest on the assumed debt was to commence with the year 1792.

[52] See note, [No. V.](#) at the end of the volume.

[53] He stopped several days on the Potomac, where he executed finally the powers vested in him by the legislature for fixing on a place which should become the residence of congress, and the metropolis of the United States.

[54] The following is the message which he delivered on this occasion.

Gentlemen of the house of representatives—

I have maturely considered the act passed by the two houses, entitled "an act for the apportionment of representatives among the several states according to the first enumeration," and I return it to your house, wherein it originated, with the following objections.

First. The constitution has prescribed that representatives shall be apportioned among the several states according to their respective numbers, and there is no proportion or divisor which, applied to the respective numbers of the states, will yield the number and allotment of representatives proposed by the bill.

Secondly. The constitution has also provided, that the number of representatives shall not exceed one for thirty thousand, which restriction is by the context, and by fair and obvious construction, to be applied to the separate and respective numbers of the states, and the bill has allotted to eight of the states more than one for thirty thousand.

[55] Forts Hamilton and Jefferson.

[56] In his official letter, General St. Clair says that the ground would not admit a larger interval.

[57] The following extract from the official letter of the Commander-in-chief is inserted, as showing both his own situation and his opinion of the behaviour of his troops. "I have nothing, sir, to lay to the charge of the troops but their want of discipline, which, from the short time they had been in service, it was impossible they should have acquired; and which rendered it very difficult when they were thrown into confusion, to reduce them again to order; and is one reason why the loss has fallen so heavily upon the officers who did every thing in their power to effect it. Neither were my own exertions wanting; but worn down with illness, and suffering under a painful disease, unable either to mount, or dismount a horse without assistance, they were not so great as they otherwise would, or perhaps ought to have been."

[58] Although his leg had been broken by a ball, Major Butler, mounted on horseback, led his battalion to the charge.

[59] See note, [No. VI.](#) at the end of the volume.

[60] The salary of the secretary of state, which was the highest, was three thousand five hundred dollars.

[61] See Mr. Jefferson's correspondence.

[62] See note, [No. VII.](#) at the end of the volume.

[63] In his letter enclosing the proclamation to the secretary of the treasury, the President observed, "I have no doubt but that the proclamation will undergo many strictures; and, as the effect proposed may not be answered by it, it will be necessary to look forward in time to ulterior arrangements. And here, not only the constitution and laws must strictly govern, but the employment of the regular troops avoided, if it be possible to effect order without their aid; yet if no other means will effectually answer, and the constitution and laws will authorize these, they must be used as the dernier ressort."

[64] In consequence of these nominations of foreign ministers, a motion was made in the senate on a point which is of some importance in settling the principles of the American government. It was contended that the power of that body over the appointment of a foreign minister gave the right to inquire into the policy of making any appointment whatever; and that in exercising this power, they were not to confine themselves to a consideration of the fitness of the person nominated, but were to judge of the propriety of the mission; and were consequently to be informed of the motives which had decided the

President to adopt the measure. This opinion was overruled by a small majority.

[65] See note, [No. VIII](#), at the end of the volume.

[66] On the 22d of February, the birthday of the President, a motion was made to adjourn for half an hour. It was perfectly understood that this motion was made to give the members an opportunity of waiting on the chief magistrate to make the compliments adapted to the occasion.

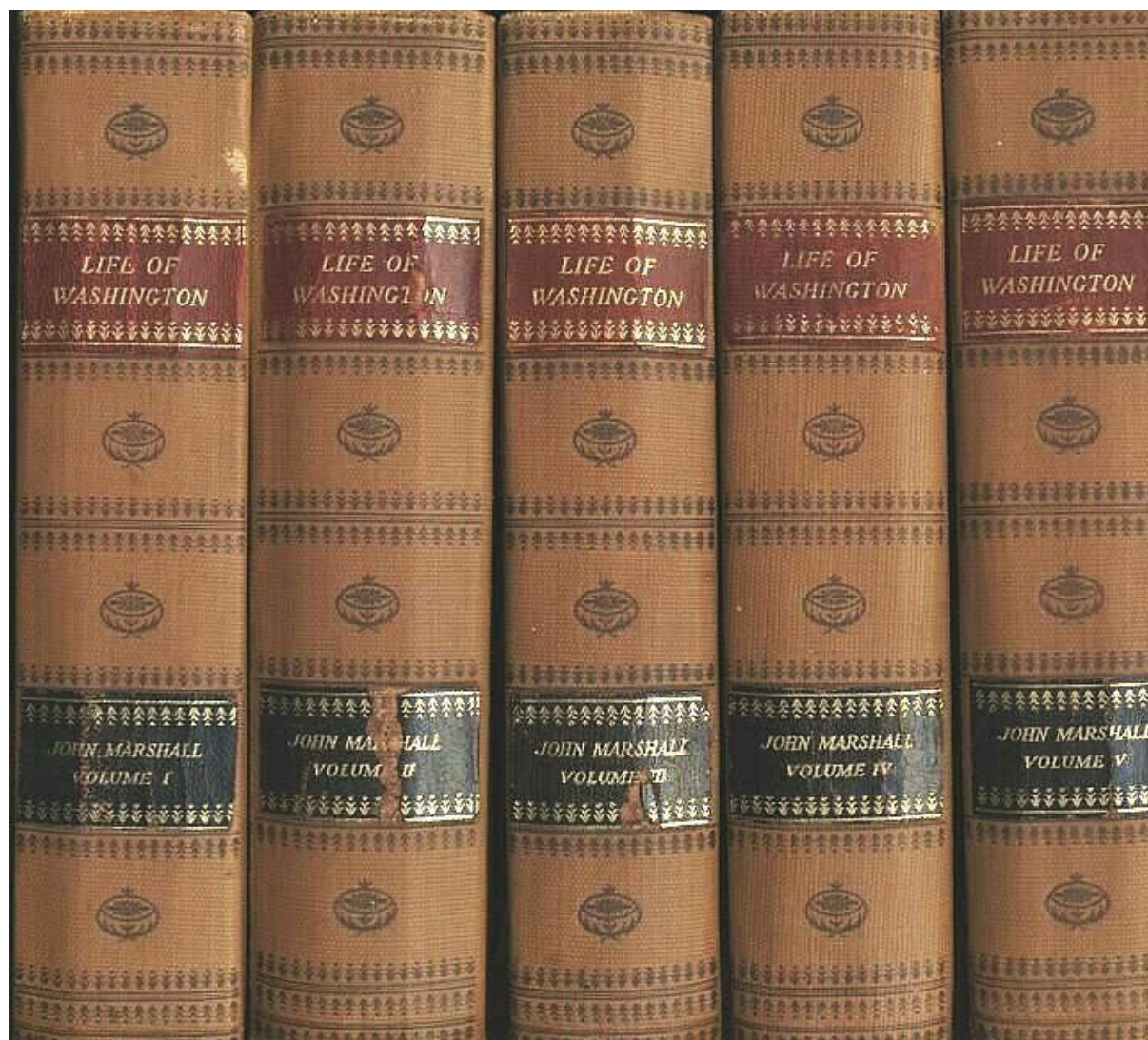
This was seriously opposed, and the ayes and noes called upon the question. The adjournment was carried by forty-one to eighteen. The day was celebrated by several companies, and some toasts were published manifesting the deep sense which was entertained of the exalted services of this illustrious citizen. These circumstances gave great umbrage to some of those who could perceive monarchical tendencies in every act of respect, and the offenders were rebuked in the National Gazette for setting up an idol who might become dangerous to liberty, and for the injustice of neglecting all his compatriots of the revolution, and ascribing to him the praise which was due to others.

[67] This event was announced to the President by the minister plenipotentiary of France at Philadelphia, in February, 1793. Through the secretary of state, an answer was returned, of which the following is an extract, "the President receives with great satisfaction this attention of the executive council, and the desire they have manifested of making known to us the resolution entered into by the national convention even before a definitive regulation of their new establishment could take place. Be assured, sir, that the government and the citizens of the United States, view with the most sincere pleasure, every advance of your nation towards its happiness, an object essentially connected with its liberty, and they consider the union of principles and pursuits between our two countries as a link which binds still closer their interests and affections.

"We earnestly wish, on our part, that these our mutual dispositions may be improved to mutual good, by establishing our commercial intercourse on principles as friendly to natural right and freedom as are those of our governments."

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President Washington

From the portrait by John Vanderlyn, in the Capitol at Washington

This full-length portrait of our First President is the work of an artist to whom Napoleon I awarded a gold medal for his "Marius Among the Ruins of Carthage," and another of whose masterpieces, "Ariadne in Naxos," is pronounced one of the finest nudes in the history of American art. For Vanderlyn sat many other notable public men, including Monroe, Madison, Calhoun, Clinton, Zachary Taylor and Aaron Burr, who was his patron and whose portrait by Vanderlyn hangs in the New York Metropolitan Museum of Art. Nevertheless, Vanderlyn failed in achieving the success his genius merited, and he once declared bitterly that "no one but a professional quack can live in America." Poverty paralyzed his energies, and in 1852, old and discouraged he retired to his native town of Kingston, New York, so poor that he had to borrow twenty-five cents to pay the expressage of his trunk. Obtaining a bed at the

local hotel, he was found dead in it the next morning, in his seventy-seventh year.

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FOR

Clementina K. Shreiber

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THE LIFE
OF

GEORGE WASHINGTON

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1793

The term for which the President and Vice President had been elected being about to expire on the third of March, the attention of the public had been directed to the choice of persons who should fill those high offices for the ensuing four years. Respecting the President, but one opinion prevailed. From various motives, all parties concurred in desiring that the present chief magistrate should continue to afford his services to his country. Yielding to the weight of the representations made to him from various quarters, General Washington had been prevailed upon to withhold a declaration, he had at one time purposed to make, of his determination to retire from political life.

Respecting the person who should fill the office of Vice President, the public was divided. The profound statesman who had been called to the duties of that station, had drawn upon himself a great degree of obloquy, by some political tracts, in which he had laboured to maintain the proposition that a balance in government was essential to the preservation of liberty. In these disquisitions, he was supposed by his opponents to have discovered sentiments in favour of distinct orders in society; and, although he had spoken highly of the constitution of the United States, it was imagined that his balance could be maintained only by hereditary classes. He was also understood to be friendly to the system of finance which had been adopted; and was believed to be among the few who questioned the durability of the French republic. His great

services, and acknowledged virtues, were therefore disregarded; and a competitor was sought for among those who had distinguished themselves in the opposition. The choice was directed from Mr. Jefferson by a constitutional restriction on the power of the electors, which would necessarily deprive him of the vote to be given by Virginia. It being necessary to designate some other opponent to Mr. Adams, George Clinton, the governor of New York, was selected for this purpose.

Throughout the war of the revolution, this gentleman had filled the office of chief magistrate of his native state; and, under circumstances of real difficulty, had discharged its duties with a courage, and an energy, which secured the esteem of the Commander-in-chief, and gave him a fair claim to the favour of his country. Embracing afterwards with ardour the system of state supremacy, he had contributed greatly to the rejection of the resolutions for investing congress with the power of collecting an impost on imported goods, and had been conspicuous for his determined hostility to the constitution of the United States. His sentiments respecting the measures of the government were known to concur with those of the minority in congress.

George Washington again unanimously elected president.

Both parties seemed confident in their strength; and both made the utmost exertions to insure success. On opening the ballots in the senate chamber, it appeared that the unanimous suffrage of his country had been once more conferred on General Washington, and that Mr. Adams had received a plurality of the votes.

The unceasing endeavours of the executive to terminate the Indian war by a treaty, had at length succeeded with the savages of the Wabash; and, through the intervention of the Six Nations, those of the Miamis had also been induced to consent to a conference to be held in the course of the ensuing spring. Though probability was against the success of this attempt to restore peace, all offensive operations, on the part of the United States, were still farther suspended. The Indians did not entirely abstain from hostilities; and the discontents of the western people were in no small degree increased by this temporary prohibition of all incursions into the country of their enemy. In Georgia, where a desire to commence hostilities against the southern Indians had been unequivocally manifested, this restraint increased the irritation against the administration.

The Indian war was becoming an object of secondary magnitude. The critical and irritable state of things in France began so materially to affect the United States, as to require an exertion of all the prudence, and all the firmness,

of the government. The 10th^[1] of August, 1792, was succeeded in that nation by such a state of anarchy, and by scenes of so much blood and horror; the nation was understood to be so divided with respect to its future course; and the republican party was threatened by such a formidable external force; that there was much reason to doubt whether the fallen monarch would be finally deposed, or reinstated with a greater degree of splendour and power than the constitution just laid in ruins, had assigned to him. That, in the latter event, any partialities which might be manifested towards the intermediate possessors of authority, would be recollected with indignation, could not be questioned by an attentive observer of the vindictive spirit of parties;—a spirit which the deeply tragic scenes lately exhibited, could not fail to work up to its highest possible pitch. The American minister at Paris, finding himself in a situation not expected by his government, sought to pursue a circumspect line of conduct, which should in no respect compromise the United States. The executive council of France, disappointed at the coldness which that system required, communicated their dissatisfaction to their minister at Philadelphia. At the same time, Mr. Morris made full representations of every transaction to his government, and requested explicit instructions for the regulation of his future conduct.

The administration entertained no doubt of the propriety of recognizing the existing authority of France, whatever form it might assume. That every nation possessed a right to govern itself according to its own will, to change its institutions at discretion, and to transact its business through whatever agents it might think proper, were stated to Mr. Morris to be principles on which the American government itself was founded, and the application of which could be denied to no other people. The payment of the debt, so far as it was to be made in Europe, might be suspended only until the national convention should authorize some power to sign acquittances for the monies received; and the sums required for St. Domingo would be immediately furnished. These payments would exceed the instalments which had fallen due; and the utmost punctuality would be observed in future. These instructions were accompanied with assurances that the government would omit no opportunity of convincing the French people of its cordial wish to serve them; and with a declaration that all circumstances seemed to destine the two nations for the most intimate connexion with each other. It was also pressed upon Mr. Morris to seize every occasion of conciliating the affections of France to the United States, and of placing the commerce between the two countries on the best possible footing.

^[2]

The feelings of the President were in perfect unison with the sentiments expressed in this letter. His attachment to the French nation was as strong, as consistent with a due regard to the interests of his own; and his wishes for its happiness were as ardent, as was compatible with the duties of a chief magistrate to the state over which he presided. Devoted to the principles of real liberty, and approving unequivocally the republican form of government, he hoped for a favourable result from the efforts which were making to establish that form, by the great ally of the United States; but was not so transported by those efforts, as to involve his country in their issue; or totally to forget that those aids which constituted the basis of these partial feelings, were furnished by the family whose fall was the source of triumph to a large portion of his fellow citizens.

He therefore still preserved the fixed purpose of maintaining the neutrality of the United States, however general the war might be in Europe; and his zeal for the revolution did not assume so ferocious a character as to silence the dictates of humanity, or of friendship.

Not much time elapsed before the firmness of this resolution was put to the test.

War between Great Britain and France.

Early in April, the declaration of war made by France against Great Britain and Holland reached the United States. This event restored full vivacity to a flame, which a peace of ten years had not been able to extinguish. A great majority of the American people deemed it criminal to remain unconcerned spectators of a conflict between their ancient enemy and republican France. The feeling upon this occasion was almost universal. Men of all parties partook of it. Disregarding totally the circumstances which led to the rupture, except the order which had been given to the French minister to leave London, and disregarding equally the fact that actual hostilities were first commenced by France, the war was confidently and generally pronounced a war of aggression on the part of Great Britain, undertaken with the sole purpose of imposing a monarchical government on the French people. The few who did not embrace these opinions, and they were certainly very few, were held up as objects of public detestation; and were calumniated as the tools of Britain, and the satellites of despotism.

Yet the disposition to engage in the war, was far from being general. The inclination of the public led to a full indulgence of the most extravagant partiality; but not many were willing to encounter the consequences which that indulgence would infallibly produce. The situation of America was precisely

that, in which the wisdom and foresight of a prudent and enlightened government, was indispensably necessary to prevent the nation from inconsiderately precipitating itself into calamities, which its reflecting judgment would avoid.

As soon as intelligence of the rupture between France and Britain was received in the United States, indications were given in some of the seaports, of a disposition to engage in the unlawful business of privateering on the commerce of the belligerent powers. The President was firmly determined to suppress these practices, and immediately requested the attention of the heads of departments to this interesting subject.

Queries put by the president to his cabinet in relation to the conduct proper to be adopted by the American government in consequence of this event.

As the new and difficult situation in which the United States were placed suggested many delicate inquiries, he addressed a circular letter to the cabinet ministers, inclosing for their consideration a well digested series of questions, the answers to which would form a complete system by which to regulate the conduct of the executive in the arduous situations which were approaching.[\[3\]](#)

These queries, with some of the answers of them, though submitted only to the cabinet, found their way to the leading members of the opposition; and were among the unacknowledged but operating pieces of testimony, on which the charge against the administration, of cherishing dispositions unfriendly to the French republic, was founded. In taking a view of the whole ground, points certainly occurred, and were submitted to the consideration of the cabinet, on which neither the chief magistrate nor his ministers felt any doubt. But the introduction of questions relative to these points, among others with which they were intimately connected, would present a more full view of the subject, and was incapable of producing any mischievous effect, while they were confined to those for whom alone they were intended.

In the meeting of the heads of departments and the attorney general, which was held in consequence of this letter, it was unanimously agreed, that a proclamation ought to issue, forbidding the citizens of the United States to take part in any hostilities on the seas, with, or against, any of the belligerent powers; warning them against carrying to any of those powers articles deemed contraband according to the modern usages of nations; and enjoining them from all acts inconsistent with the duties of a friendly nation towards those at war.

With the same unanimity, the President was advised to receive a minister from the republic of France; but, on the question respecting a qualification to his reception, a division was perceived. The secretary of state and the attorney general were of opinion, that no cause existed for departing in the present instance from the usual mode of acting on such occasions. The revolution in France, they conceived, had produced no change in the relations between the two nations; nor was there any thing in the alteration of government, or in the character of the war, which would impair the right of France to demand, or weaken the duty of the United States faithfully to comply with the engagements which had been solemnly formed.

The secretaries of the treasury, and of war, held a different opinion. Admitting in its fullest latitude the right of a nation to change its political institutions according to its own will, they denied its right to involve other nations, *absolutely and unconditionally*, in the consequences of the changes which it may think proper to make. They maintained the right of a nation to absolve itself from the obligations even of real treaties, when such a change of circumstances takes place in the internal situation of the other contracting party, as so essentially to alter the existing state of things, that it may with good faith be pronounced to render a continuance of the connexion which results from them, disadvantageous or dangerous.

They reviewed the most prominent of those transactions which had recently taken place in France, and noticed the turbulence, the fury, and the injustice with which they were marked. The Jacobin club at Paris, whose influence was well understood, had even gone so far, previous to the meeting of the convention, as to enter into measures with the avowed object of purging that body of those persons, favourers of royalty, who might have escaped the attention of the primary assemblies. This review was taken, to show that the course of the revolution had been attended with circumstances which militate against a full conviction of its having been brought to its present stage, by such a free, regular, and deliberate act of the nation, as ought to silence all scruples about the validity of what had been done. They appeared to doubt whether the present possessors of power ought to be considered as having acquired it with the real consent of France, or as having seized it by violence;—whether the existing system could be considered as permanent, or merely temporary.

They were therefore of opinion, not that the treaties should be annulled or absolutely suspended, but that the United States should reserve, for future consideration and discussion, the question whether the operation of those treaties ought not to be deemed temporarily and provisionally suspended.

Should this be the decision of the government, they thought it due to a spirit of friendly and candid procedure, in the most conciliating terms, to apprise the expected minister of this determination.

On the questions relative to the application of the clause of guarantee to the existing war, some diversity of sentiment also prevailed. The secretary of state and the attorney general conceived, that no necessity for deciding thereon existed, while the secretaries of the treasury, and of war, were of opinion that the treaty of alliance was plainly defensive, and that the clause of guarantee did not apply to a war which, having been commenced by France, must be considered as offensive on the part of that power.

Against convening congress, the opinion appears to have been unanimous.

The cabinet being thus divided on an important part of the system which, in the present critical posture of affairs, ought to be adopted by the executive, the President signified his desire that the ministers would respectively state to him in writing the opinions they had formed, together with the reasoning and authorities by which those opinions were supported.

The written arguments which were presented on this occasion, while they attest the labour, and reflect honour on the talents of those by whom they were formed, and evince the equal sincerity and zeal with which the opinions on each side were advanced, demonstrate an opposition of sentiment respecting the French revolution, which threatened to shed its influence on all measures connected with that event, and to increase the discord which already existed in the cabinet.

So far as respected the reception of a minister from the French republic without qualifying that act by any explanations, and the continuing obligation of the treaties, the President appears to have decided in favour of the opinions given by the secretary of state and the attorney general.

Proclamation of neutrality.

The proclamation of neutrality which was prepared by the attorney general, in conformity with the principles which had been adopted, was laid before the cabinet; and, being approved, was signed by the President, and ordered to be published.

This measure derives importance from the consideration, that it was the commencement of that system to which the American government afterwards inflexibly adhered, and to which much of the national prosperity is to be ascribed. It is not less important in another view. Being at variance with the prejudices, the feelings, and the passions of a large portion of the society, and

being founded on no previous proceedings of the legislature, it presented the first occasion, which was thought a fit one, for openly assaulting a character, around which the affections of the people had thrown an armour theretofore deemed sacred, and for directly criminating the conduct of the President himself. It was only by opposing passions to passions, by bringing the feeling in favour of France, into conflict with those in favour of the chief magistrate, that the enemies of the administration could hope to obtain the victory.

For a short time, the opponents of this measure treated it with some degree of delicacy. The opposition prints occasionally glanced at the executive; considered all governments, including that of the United States, as naturally hostile to the liberty of the people; and ascribed to this disposition, the combination of European governments against France, and the apathy with which this combination was contemplated by the executive. At the same time, the most vehement declamations were published, for the purpose of inflaming the resentments of the people against Britain; of enhancing the obligations of America to France; of confirming the opinions, that the coalition of European monarchs was directed, not less against the United States, than against that power to which its hostility was avowed, and that those who did not avow this sentiment were the friends of that coalition, and equally the enemies of America and France.

These publications, in the first instance, sufficiently bitter, quickly assumed a highly increased degree of acrimony.

As soon as the commotions which succeeded the deposition of Louis XVI. had, in some degree, subsided, the attention of the French government was directed to the United States, and the resolution was taken to recall the minister who had been appointed by the king; and to replace him with one who might be expected to enter, with more enthusiasm, into the views of the republic.^[4]

The citizen Genet, a gentleman of considerable talents, and of an ardent temper, was selected for this purpose.

The letters he brought to the executive of the United States, and his instructions, which he occasionally communicated, were, in a high degree, flattering to the nation, and decently respectful to its government. But Mr. Genet was also furnished with private instructions, which the course of subsequent events tempted him to publish. These indicate that, if the American executive should not be found sufficiently compliant with the views of France, the resolution had been taken to employ with the people of the United States the same policy which was so successfully used with those of Europe; and thus to affect an object which legitimate negotiations might fail to accomplish.

Arrival of Mr. Genet as minister from France.
His conduct.

Mr. Genet possessed many qualities which were peculiarly adapted to the objects of his mission; but he seems to have been betrayed by the flattering reception which was given him, and by the universal fervour expressed for his republic, into a too speedy disclosure of his intentions.

On the eighth of April he arrived, not at Philadelphia, but at Charleston, in South Carolina, a port whose contiguity to the West Indies would give it peculiar convenience as a resort for privateers. He was received by the governor of that state, and by its citizens, with an enthusiasm well calculated to dissipate every doubt he might previously have entertained, concerning the dispositions on which he was to operate. At this place he continued for several days, receiving extravagant marks of public attachment, during which time, he undertook to authorize the fitting and arming of vessels in that port, enlisting men, and giving commissions to cruise and commit hostilities on nations with whom the United States were at peace. The captures made by these cruisers were brought into port, and the consuls of France were assuming, under the authority of Mr. Genet, to hold courts of admiralty on them, to try, condemn, and authorize their sale.

From Charleston, Mr. Genet proceeded by land to Philadelphia, receiving on his journey, at the different towns through which he passed, such marks of enthusiastic attachment as had never before been lavished on a foreign minister. On the 16th of May, he arrived at the seat of government, preceded by the intelligence of his transactions in South Carolina. This information did not diminish the extravagant transports of joy with which he was welcomed by the great body of the inhabitants. Means had been taken to render his entry pompous and triumphal; and the opposition papers exultingly stated that he was met at Gray's ferry by "crowds who flocked from every avenue of the city, to meet the republican ambassador of an allied nation."

The day succeeding his arrival, he received addresses of congratulation from particular societies, and from the citizens of Philadelphia, who waited on him in a body, in which they expressed their fervent gratitude for the "zealous and disinterested aids," which the French people had furnished to America, unbounded exultation at the success with which their arms had been crowned, and a positive conviction that the safety of the United States depended on the establishment of the republic. The answers to these addresses were well calculated to preserve the idea of a complete fraternity between the two nations; and that their interests were identified.

The day after being thus accredited by the citizens of Philadelphia, he was presented to the President, by whom he was received with frankness, and with expressions of a sincere and cordial regard for his nation. In the conversation which took place on this occasion, Mr. Genet gave the most explicit assurances that, in consequence of the distance of the United States from the theatre of action, and of other circumstances, France did not wish to engage them in the war, but would willingly leave them to pursue their happiness and prosperity in peace. The more ready faith was given to these declarations, because it was believed that France might derive advantages from the neutrality of America, which would be a full equivalent for any services which she could render as a belligerent.

Before the ambassador of the republic had reached the seat of government, a long catalogue of complaints, partly founded on his proceedings in Charleston, had been made by the British minister to the American executive.

This catalogue was composed of the assumptions of sovereignty already mentioned;—assumptions calculated to render America an instrument of hostility to be wielded by France against those powers with which she might be at war.

Illegal proceedings of the French cruisers.

These were still further aggravated by the commission of actual hostilities within the territories of the United States. The ship *Grange*, a British vessel which had been cleared out from Philadelphia, was captured by the French frigate *L'Ambuscade* within the capes of the Delaware, while on her way to the ocean.

The prizes thus unwarrantably made, being brought within the power of the American government, Mr. Hammond, among other things, demanded a restitution of them.

On many of the points suggested by the conduct of Mr. Genet, and by the memorials of the British minister, it would seem impossible that any difference of opinion could exist among intelligent men, not under the dominion of a blind infatuation. Accordingly it was agreed in the cabinet, without a dissenting voice, that the jurisdiction of every independent nation, within the limits of its own territory, being of a nature to exclude the exercise of any authority therein by a foreign power, the proceedings complained of, not being warranted by any treaty, were usurpations of national sovereignty, and violations of neutral rights, a repetition of which it was the duty of the government to prevent.

It was also agreed that the efficacy of the laws should be tried against those citizens of the United States who had joined in perpetrating the offence.

Opinions of the Cabinet in relation thereto.

The question of restitution, except as to the Grange, was more dubious. The secretary of state and the attorney general contended that, if the commissions granted by Mr. Genet were invalid, the captures were totally void, and the courts would adjudge the property to remain in the former owners. In this point of view, therefore, there being a regular remedy at law, it would be irregular for the government to interpose.

If, on the contrary, the commissions were good, then, the captures having been made on the high seas, under a valid commission from a power at war with Great Britain, the original right of the British owner was, by the laws of war, transferred to the captor.

The legal right being in the captor, it could only be taken from him by an act of force, that is to say, of reprisal for the offence committed against the United States in the port of Charleston. Reprisal is a very serious thing, ought always to be preceded by a demand and refusal of satisfaction, is generally considered as an act of war, and never yet failed to produce it in the case of a nation able to make war.



Martha Washington

From the portrait by James Sharples

This is one of the three Sharples portraits of the Washington family and the only good profile of Martha Washington that was painted from life. Martha, who was a few months younger than her husband, is described as having been "amiable in character and lovely in person." By the courtesy of the period she was called Lady Washington, and whether in her own home or at the "federal court," she presided with marked dignity and grace. She died at Mount Vernon, May 22, 1802, having survived her husband two and a half years.

Courtesy Herbert L. Pratt

Admitting the case to be of sufficient importance to require reprisal, and to be ripe for that step, the power of taking it was vested by the constitution in congress, not in the executive department of the government.

Of the reparation for the offence committed against the United States, they were themselves the judges, and could not be required by a foreign nation, to demand more than was satisfactory to themselves. By disavowing the act, by taking measures to prevent its repetition, by prosecuting the American citizens

who were engaged in it, the United States ought to stand justified with Great Britain; and a demand of further reparation by that power would be a wrong on her part.

The circumstances under which these equipments had been made, in the first moments of the war, before the government could have time to take precautions against them, and its immediate disapprobation of those equipments, must rescue it from every imputation of being accessory to them, and had placed it with the offended, not the offending party.

Those gentlemen were therefore of opinion, that the vessels which had been captured on the high seas, and brought into the United States, by privateers fitted out and commissioned in their ports, ought not to be restored.

The secretaries of the treasury, and of war, were of different opinion. They urged that a neutral, permitting itself to be made an instrument of hostility by one belligerent against another, became thereby an associate in the war. If land or naval armaments might be formed by France within the United States, for the purpose of carrying on expeditions against her enemy, and might return with the spoils they had taken, and prepare new enterprises, it was apparent that a state of war would exist between America and those enemies, of the worst kind for them: since, while the resources of the country were employed in annoying them, the instruments of this annoyance would be occasionally protected from pursuit, by the privileges of an ostensible neutrality. It was easy to see that such a state of things could not be tolerated longer than until it should be perceived.

It being confessedly contrary to the duty of the United States, as a neutral nation, to suffer privateers to be fitted in their ports to annoy the British trade, it seemed to follow that it would comport with their duty, to remedy the injury which may have been sustained, when it is in their power so to do.

That the fact had been committed before the government could provide against it might be an excuse, but not a justification. Every government is responsible for the conduct of all parts of the community over which it presides, and is supposed to possess, at all times, the means of preventing infractions of its duty to foreign nations. In the present instance, the magistracy of the place ought to have prevented them. However valid this excuse might have been, had the privateers expedited from Charleston been sent to the French dominions, there to operate out of the reach of the United States, it could be of no avail when their prizes were brought into the American ports, and the government, thereby, completely enabled to administer a specific remedy for the injury.

Although the commissions, and the captures made under them, were valid as between the parties at war, they were not so as to the United States. For the violation of their rights, they had a claim to reparation, and might reasonably demand, as the reparation to which they were entitled, restitution of the property taken, with or without an apology for the infringement of their sovereignty. This they had a right to demand as a species of reparation consonant with the nature of the injury, and enabling them to do justice to the party in injuring whom they had been made instrumental. It could be no just cause of complaint on the part of the captors that they were required to surrender a property, the means of acquiring which took their origin in a violation of the rights of the United States.

On the other hand, there was a claim on the American government to arrest the effects of the injury or annoyance to which it had been made accessory. To insist therefore on the restitution of the property taken, would be to enforce a right, in order to the performance of a duty.

These commissions, though void as to the United States, being valid as between the parties, the case was not proper for the decision of the courts of justice. The whole was an affair between the governments of the parties concerned, to be settled by reasons of state, not rules of law. It was the case of an infringement of national sovereignty to the prejudice of a third party, in which the government was to demand a reparation, with the double view of vindicating its own rights, and of doing justice to the suffering party.

They, therefore, were of opinion that, in the case stated for their consideration, restitution ought to be made.

On the point respecting which his cabinet was divided, the President took time to deliberate. Those principles on which a concurrence of sentiment had been manifested being considered as settled, the secretary of state was desired to communicate them to the ministers of France and Britain; and circular letters were addressed to the executives of the several states, requiring their co-operation, with force if necessary, in the execution of the rules which were established.

The citizen Genet was much dissatisfied with these decisions of the American government. He thought them contrary to natural right, and subversive of the treaties by which the two nations were connected. In his exposition of these treaties, he claimed, for his own country, all that the two nations were restricted from conceding to others, thereby converting negative limitations into an affirmative grant of privileges to France.

Without noticing a want of decorum in some of the expressions which Mr. Genet had employed, he was informed that the subjects on which his letter treated had, from respect to him, been reconsidered by the executive; but that no cause was perceived for changing the system which had been adopted. He was further informed that, in the opinion of the President, the United States owed it to themselves, and to the nations in their friendship, to expect, as a reparation for the offence of infringing their sovereignty, that the vessels, thus illegally equipped, would depart from their ports.

Mr. Genet was not disposed to acquiesce in these decisions. Adhering to his own construction of the existing treaty, he affected to consider the measures of the American government as infractions of it, which no power in the nation had a right to make, unless the United States in congress assembled should determine that their solemn engagements should no longer be performed. Intoxicated with the sentiments expressed by a great portion of the people, and unacquainted with the firm character of the executive, he seems to have expected that the popularity of his nation would enable him to overthrow that department, or to render it subservient to his views. It is difficult otherwise to account for his persisting to disregard its decisions, and for passages with which his letters abound, such as the following:

"Every obstruction by the government of the United States to the arming of French vessels must be an attempt on the rights of man, upon which repose the independence and laws of the United States; a violation of the ties which unite the people of France and America; and even a manifest contradiction of the system of neutrality of the President; for, in fact, if our merchant vessels,^[5] or others, are not allowed to arm themselves, when the French alone are resisting the league of all the tyrants against the liberty of the people, they will be exposed to inevitable ruin in going out of the ports of the United States, which is certainly not the intention of the people of America. Their fraternal voice has resounded from every quarter around me, and their accents are not equivocal. They are pure as the hearts of those by whom they are expressed, and the more they have touched my sensibility, the more they must interest in the happiness of America the nation I represent;—the more I wish, sir, that the federal government should observe, as far as in their power, the public engagements contracted by both nations; and that, by this generous and prudent conduct, they will give at least to the world, the example of a true neutrality, which does not consist in the cowardly abandonment of their friends in the moment when danger menaces them, but in adhering strictly, if they can do no better, to the obligations they have contracted with them. It is by such proceedings that they

will render themselves respectable to all the powers; that they will preserve their friends and deserve to augment their numbers."

A few days previous to the reception of the letter from which the above is an extract, two citizens of the United States, who had been engaged by Mr. Genet in Charleston to cruise in the service of France, were arrested by the civil magistrate, in pursuance of the determination formed by the executive for the prosecution of persons having thus offended against the laws. Mr. Genet demanded their release in the following extraordinary terms:

"I have this moment been informed that two officers in the service of the republic of France, citizen Gideon Henfield and John Singletary, have been arrested on board the privateer of the French republic, the Citizen Genet, and conducted to prison. The crime laid to their charge—the crime which my mind can not conceive, and which my pen almost refuses to state,—is the serving of France, and defending with her children the common glorious cause of liberty.

"Being ignorant of any positive law or treaty which deprives Americans of this privilege, and authorizes officers of police arbitrarily to take mariners in the service of France from on board their vessels, I call upon your intervention, sir, and that of the President of the United States, in order to obtain the immediate releasement of the above mentioned officers, who have acquired, by the sentiments animating them, and by the act of their engagement, anterior to every act to the contrary, the right of French citizens, if they have lost that of American citizens."

This lofty offensive style could not fail to make a deep impression on a mind penetrated with a just sense of those obligations by which the chief magistrate is bound to guard the dignity of his government, and to take care that his nation be not degraded in his person. Yet, in no single instance, did the administration, in its communications with Mr. Genet, permit itself to be betrayed into the use of one intemperate expression. The firmness with which the extravagant pretensions of that gentleman were resisted, proceeding entirely from a sense of duty and conviction of right, was unaccompanied with any marks of that resentment which his language and his conduct were alike calculated to inspire. State of parties.

Mr. Genet appears to have been prevented from acquiescing in a line of conduct thus deliberately adopted and prudently pursued, by a belief that the sentiments of the people were in direct opposition to the measures of their government. So excessive, and so general, were the demonstrations of enthusiastic devotion to France; so open were their expressions of outrage and

hostility towards all the powers at war with that republic; so thin was the veil which covered the chief magistrate from that stream of malignant opprobrium directed against every measure which thwarted the views of Mr. Genet; that a person less sanguine than that minister might have cherished the hope of being able ultimately to triumph over the opposition to his designs. Civic festivals, and other public assemblages of people, at which the ensigns of France were displayed in union with those of America; at which the red cap, as a symbol of French liberty and fraternity, triumphantly passed from head to head; at which toasts were given expressive of a desire to identify the people of America with those of France; and, under the imposing guise of adhering to principles not to men, containing allusions to the influence of the President which could not be mistaken; appeared to Mr. Genet to indicate a temper extremely favourable to his hopes, and very different from that which would be required for the preservation of an honest neutrality. Through the medium of the press, these sentiments were communicated to the public, and were represented as flowing from the hearts of the great body of the people. In various other modes, that important engine contributed its powerful aid to the extension of opinions, calculated, essentially, to vary the situation of the United States. The proclamation of neutrality which was treated as a royal edict, was not only considered as assuming powers not belonging to the executive, and, as evidencing the monarchical tendencies of that department, but as demonstrating the disposition of the government to break its connexions with France, and to dissolve the friendship which united the people of the two republics. The declaration that "the duty and interest of the United States required that they should with sincerity and good faith adopt and pursue a conduct friendly and impartial towards the belligerent powers," gave peculiar umbrage. The scenes of the revolutionary war were brought into review; the object and effect of British hostility were painted in glowing colours; and the important aids afforded by France were drawn with a pencil not less animated. That the conduct of Britain, since the treaty of peace had furnished unequivocal testimony of enmity to the United States, was strongly pressed. With this continuing enmity was contrasted the amicable dispositions professed by the French republic; and it was asked with indignation, whether the interests of the United States required that they should pursue "a line of conduct entirely impartial between these two powers? That the services of the one as well as the injuries of the other, should be forgotten? that a friend and an enemy should be treated with equal favour? and that neither gratitude nor resentment should constitute a feature of the American character?" The supposed freedom of the French was opposed to the imagined slavery of the English; and it was

demanded whether "the people of America were alike friendly to republicanism and to monarchy? to liberty and to despotism?"

With infectious enthusiasm it was contended, that there was a natural and inveterate hostility between monarchies and republics; that the present combination against France was a combination against liberty in every part of the world; and that the destinies of America were inseparably linked with those of the French republic.

On the various points of controversy which had arisen between the executive and Mr. Genet, this active and powerful party openly and decidedly embraced the principles for which that minister contended. It was assumed that his demands were sanctioned by subsisting treaties, and that his exposition of those instruments was perfectly correct. The conduct of the executive in withholding privileges to which France was said to be entitled by the most solemn engagements, was reprobated with extreme acrimony; was considered as indicative of a desire to join the coalesced despots in their crusade against liberty; and as furnishing to the French republic such just motives for war, that it required all her moderation and forbearance to restrain her from declaring it against the United States.

Mr. Genet was exhorted not to relax in his endeavours to maintain the just rights of his country; and was assured that, in the affections of the people, he would find a firm and certain support.

These principles and opinions derived considerable aid from the labours and intrigues of certain societies, who had constituted themselves the guardians of American liberty.

The manner in which that attention of the conduct of those invested with the power which is essential in balanced governments, may safely be employed, had been so misconceived, that temporary and detached clubs of citizens had occasionally been formed in different parts of the United States, for the avowed purpose of watching the conduct of their rulers. After the adoption of the constitution, some slight use was made, by its enemies, of this weapon; and, in the German Republican Society particularly, many of the most strenuous opponents of the administration were collected.

Democratic societies formed.

The force and power of these institutions had been fully developed, and their efficacy in prostrating existing establishments clearly ascertained by the revolution in France. The increased influence which they derived from corresponding with each other, had been unequivocally demonstrated; and soon

after the arrival of Mr. Genet, a democratic society was formed in Philadelphia on the model of the Jacobin club in Paris. An anxious solicitude for the preservation of freedom, the very existence of which was menaced by a "European confederacy transcendent in power and unparalleled in iniquity;" which was endangered also by "the pride of wealth and arrogance of power," displayed within the United States; was the motive assigned for the association. "A constant circulation of useful information, and a liberal communication of republican sentiments, were thought to be the best antidotes to any political poison with which the vital principle of civil liberty might be attacked:" and to give the more extensive operation to their labours, a corresponding committee was appointed, through whom they would communicate with other societies, which might be established on similar principles, throughout the United States.

Faithful to their founder, and true to the real objects of their association, these societies continued, during the term of their existence, to be the resolute champions of all the encroachments attempted by the agents of the French republic on the government of the United States, and the steady defamers of the views and measures of the American executive.

Thus strongly supported, Mr. Genet persisted in his construction of the treaties between the two nations; and, in defiance of the positive determination of the government, continued to act according to that construction.

The President was called to Mount Vernon by urgent business, which detained him less than three weeks; and, in his absence, the heads of departments superintended the execution of those rules which had been previously established.

In this short interval, a circumstance occurred, strongly marking the rashness of the minister of France, and his disrespect to the executive of the United States.

The Little Sarah, an English merchantman, had been captured by a French frigate, and brought into the port of Philadelphia, where she was completely equipped as a privateer, and was just about to sail on a cruise under the name of *le petit Democrat*, when the secretary of the treasury communicated her situation to the secretaries of state and of war; in consequence of which, Governor Mifflin was desired to cause an examination of the fact. The warden of the port was directed to institute the proper inquiries; and late in the evening of the sixth of July, he reported her situation, and that she was to sail the next day.

Genet calculates upon the partialities of the American people for France and openly insults their government.

In pursuance of the instructions which had been given by the President, the governor immediately sent Mr. Secretary Dallas for the purpose of prevailing on Mr. Genet to relieve him from the employment of force, by detaining the vessel in port until the arrival of the President, who was then on his way from Mount Vernon. Mr. Dallas communicated this message to the French minister in terms as conciliatory as its nature would permit. On receiving it, he gave a loose to the most extravagant passion. After exclaiming with vehemence against the measure, he complained, in strong terms, and with many angry epithets, of the ill treatment which he had received from some of the officers of the general government, which he contrasted with the cordial attachment that was expressed by the people at large for his nation. He ascribed the conduct of those officers to principles inimical to the cause of France, and of liberty. He insinuated that, by their influence, the President had been misled; and observed with considerable emphasis, that the President was not the sovereign of this country. The powers of peace and war being vested in congress, it belonged to that body to decide those questions growing out of treaties which might involve peace or war; and the President, therefore, ought to have assembled the national legislature before he ventured to issue his proclamation of neutrality, or to prohibit, by his instructions to the state governors, the enjoyment of the particular rights which France claimed under the express stipulations of the treaty of commerce. The executive construction of that treaty was neither just nor obligatory; and he would make no engagement which might be construed into a relinquishment of rights which his constituents deemed indispensable. In the course of this vehement and angry declamation, he spoke of publishing his correspondence with the officers of government, together with a narrative of his proceedings; and said that, although the existing causes would warrant an abrupt departure, his regard for the people of America would induce him to remain here, amidst the insults and disgusts that he daily suffered in his official character from the public officers, until the meeting of congress; and if that body should agree in the opinions and support the measures of the President, he would certainly withdraw, and leave the dispute to be adjusted between the two nations themselves. His attention being again called by Mr. Dallas to the particular subject, he peremptorily refused to enter into any arrangements for suspending the departure of the privateer, and cautioned him against any attempt to seize her, as she belonged to the republic; and, in defence of the honour of her flag, would unquestionably repel force by force.

On receiving the report of Mr. Dallas, Governor Mifflin ordered out one hundred and twenty militia, for the purpose of taking possession of the privateer; and communicated the case, with all its circumstances, to the officers of the executive government. On the succeeding day, Mr. Jefferson waited on Mr. Genet, in the hope of prevailing on him to pledge his word that the privateer should not leave the port until the arrival of the President. The minister was not less intemperate with Mr. Jefferson than he had been with Mr. Dallas. He indulged himself, in a repetition of nearly the same passionate language, and again spoke, with extreme harshness, of the conduct of the executive. He persisted in refusing to make any engagements for the detention of the vessel; and, after his rage had in some degree spent itself, he entreated that no attempt might be made to take possession of her, as her crew was on board, and force would be repelled by force.

He then also said that she was not ready to sail immediately. She would change her position, and fall down the river a small distance on that day; but was not yet ready to sail.

In communicating this conversation to Governor Mifflin, Mr. Jefferson stated his conviction that the privateer would remain in the river until the President should decide on her case; in consequence of which, the governor dismissed the militia, and requested the advice of the heads of departments on the course which it would be proper for him to pursue. Both the governor and Mr. Jefferson stated, that in reporting the conversation between Mr. Genet and himself, Mr. Dallas had said that Mr. Genet threatened, in express terms, "to appeal from the President to the people."

Thus braved and insulted in the very heart of the American empire, the secretaries of the treasury, and of war, were of opinion that it was expedient to take immediate provisional measures for establishing a battery on Mud Island, under cover of a party of militia, with directions, that if the vessel should attempt to depart before the pleasure of the President should be known concerning her, military coercion should be employed to arrest her progress.

The secretary of state dissenting from this opinion, the measure was not adopted. The vessel fell down to Chester before the arrival of the President, and sailed on her cruise before the power of the government could be interposed.

On the 11th of July the President reached Philadelphia, and requested that his cabinet ministers would convene at his house the next day at nine in the morning.

Among the papers placed in his hands by the secretary of state, which required immediate attention, were those which related to the Little Democrat. On reading them, a messenger was immediately despatched for the secretary, but he had retired, indisposed, to his seat in the country. Upon hearing this, the President instantly addressed a letter to him, of which the following is an extract. "What is to be done in the case of the Little Sarah, now at Chester? Is the minister of the French republic to set the acts of this government at defiance *with impunity*—and then threaten the executive with an appeal to the people? What must the world think of such conduct? and of the government of the United States in submitting to it?

"These are serious questions—circumstances press for decision;—and as you have had time to consider them, (upon me they come unexpectedly,) I wish to know your opinion upon them even before to-morrow—for the vessel may then be gone."

In answer to this letter, the secretary stated the assurances which had on that day been given to him by Mr. Genet, that the vessel would not sail before the President's decision respecting her should be made. In consequence of this information, immediate coercive measures were suspended; and in the council of the succeeding day it was determined to retain in port all[6] privateers which had been equipped by any of the belligerent powers within the United States. This determination was immediately communicated to Mr. Genet; but, in contempt of it, the Little Democrat proceeded on her cruise.

In this, as in every effort made by the executive to maintain the neutrality of the United States, that great party which denominated itself "THE PEOPLE," could perceive only a settled hostility to France and to liberty, a tame subserviency to British policy, and a desire, by provoking France, to engage America in the war, for the purpose of extirpating republican principles.[7]

The administration received strong additional evidence of the difficulty that would attend an adherence to the system which had been commenced, in the acquittal of Gideon Henfield.

A prosecution had been instituted against this person who had enlisted in Charleston on board a French privateer equipped in that port, which had brought her prizes into the port of Philadelphia. This prosecution had been directed under the advice of the attorney general, who was of opinion, that persons of this description were punishable for having violated subsisting treaties, which, by the constitution, are the supreme law of the land; and that they were also indictable at common law, for disturbing the peace of the United States.

It could not be expected that the democratic party would be inattentive to an act so susceptible of misrepresentation. Their papers sounded the alarm; and it was universally asked, "what law had been offended, and under what statute was the indictment supported? Were the American people already prepared to give to a proclamation the force of a legislative act, and to subject themselves to the will of the executive? But if they were already sunk to such a state of degradation, were they to be punished for violating a proclamation which had not been published when the offence was committed, if indeed it could be termed an offence to engage with France, combating for liberty against the combined despots of Europe?"

As the trial approached, a great degree of sensibility was displayed; and the verdict in favour of Henfield was celebrated with extravagant marks of joy and exultation. It bereaved the executive of the strength to be derived from an opinion, that punishment might be legally inflicted on those who should openly violate the rules prescribed for the preservation of neutrality; and exposed that department to the obloquy of having attempted a measure which the laws would not justify.

About this time, a question growing out of the war between France and Britain, the decision of which would materially affect the situation of the United States, was presented to the consideration of the executive.

It will be recollected that during the war which separated America from Britain, the celebrated compact termed the *armed neutrality* was formed in the north of Europe, and announced to the belligerent powers. A willingness to acquiesce in the principles it asserted, one of which was that free bottoms should make free goods, was expressed by the governments engaged in the war, with the single exception of Great Britain. But, however favourably the United States, as a belligerent, might view a principle which would promote the interests of inferior maritime powers, they were not willing, after the termination of hostilities, to enter into engagements for its support which might endanger their future peace; and, in this spirit, instructions were given to their ministers in Europe.

This principle was ingrafted into the treaty of commerce with France; but no stipulation on the subject had been made with England. It followed, that, with France, the character of the bottom was imparted to the cargo; but with Britain, the law of nations was the rule by which the respective rights of the belligerent and neutral were to be decided.

Construing this rule to give security to the goods of a friend in the bottoms of an enemy, and to subject the goods of an enemy to capture in the bottoms of

a friend, the British cruisers took French property out of American vessels, and their courts condemned it as lawful prize.

Mr. Genet had remonstrated against the acquiescence of the American executive in this exposition of the law of nations, in such terms as he was accustomed to employ; and on the 9th of July, in the moment of the contest respecting the Little Democrat, he had written a letter demanding an immediate and positive answer to the question, what measures the President had taken, or would take, to cause the American flag to be respected? He observed, that "as the English would continue to carry off, with impunity, French citizens, and French property found on board of American vessels, without embarrassing themselves with the philosophical principles proclaimed by the President of the United States," and as the embarrassing engagements of France deprived her of the privileges of making reprisals at every point, it was necessary for the interests of both nations, quickly to agree on taking other measures.

Not receiving an immediate answer, Mr. Genet, towards the close of July, again addressed the secretary of state on the subject. In this extraordinary letter, after complaining of the insults offered to the American flag by seizing the property of Frenchmen confided to its protection, he added, "your political rights are counted for nothing. In vain do the principles of neutrality establish, that friendly vessels make friendly goods; in vain, sir, does the President of the United States endeavour, by his proclamation, to reclaim the observation of this maxim; in vain does the desire of preserving peace lead to sacrifice the interests of France to that of the moment; in vain does the thirst of riches preponderate over honour in the political balance of America: all this management, all this condescension, all this humility, end in nothing; our enemies laugh at it; and the French, too confident, are punished for having believed that the American nation had a flag, that they had some respect for their laws, some conviction of their strength, and entertained some sentiment of their dignity. It is not possible for me, sir, to paint to you all my sensibility at this scandal which tends to the diminution of your commerce, to the oppression of ours, and to the debasement and vilification of republics. It is for Americans to make known their generous indignation at this outrage; and I must confine myself to demand of you a second time, to inform me of the measures which you have taken, in order to obtain restitution of the property plundered from my fellow citizens, under the protection of your flag. It is from our government they have learnt that the Americans were our allies, that the American nation was sovereign, and that they knew how to make themselves respected. It is then under the very same sanction of the French nation, that they have confided

their property and persons to the safeguard of the American flag; and on her, they submit the care of causing those rights to be respected. But if our fellow citizens have been deceived, if you are not in a condition to maintain the sovereignty of your people, speak; we have guaranteed it when slaves, we shall be able to render it formidable, having become freemen."

On the day preceding the date of this offensive letter, the secretary of state had answered that of the 9th of July; and, without noticing the unbecoming style in which the decision of the executive was demanded, had avowed and defended the opinion, that "by the general law of nations, the goods of an enemy found in the vessels of a friend are lawful prize." This fresh insult might therefore be passed over in silence.

While a hope remained that the temperate forbearance of the executive, and the unceasing manifestations of its friendly dispositions towards the French republic, might induce the minister of that nation to respect the rights of the United States, and to abstain from violations of their sovereignty, an anxious solicitude not to impair the harmony which he wished to maintain between the two republics, had restrained the President from adopting those measures respecting Mr. Genet, which the conduct of that gentleman required. He had seen a foreign minister usurp within the territories of the United States some of the most important rights of sovereignty, and persist, after the prohibition of the government, in the exercise of those rights. In asserting this extravagant claim, so incompatible with national independence, the spirit in which it originated had been pursued, and the haughty style of a superior had been substituted for the respectful language of diplomacy. He had seen the same minister undertake to direct the civil government; and to pronounce, in opposition to the decisions of the executive, in what departments of the constitution of the United States had placed certain great national powers. To render this state of things more peculiarly critical and embarrassing, the person most instrumental in producing it, had, from his arrival, thrown himself into the arms of the people, stretched out to receive him; and was emboldened by their favour, to indulge the hope of succeeding in his endeavours, either to overthrow their government, or to bend it to his will. But the full experiment had now been made; and the result was a conviction not to be resisted, that moderation would only invite additional injuries, and that the present insufferable state of things could be terminated only by procuring the removal of the French minister, or by submitting to become, in his hands, the servile instrument of hostility against the enemies of his nation. Information was continually received from every quarter, of fresh aggressions on the principles established by the government; and, while the

executive was thus openly disregarded and contemned, the members of the administration were reproached in all the papers of an active and restless opposition, as the violators of the national faith, the partisans of monarchy, and the enemies of liberty and of France.

The unwearied efforts of that department to preserve that station in which the various treaties in existence had placed the nation, were incessantly calumniated[8] as infractions of those treaties, and ungrateful attempts to force the United States into the war against France.

The judgment of the President was never hastily formed; but, once made up, it was seldom to be shaken. Before the last letter of Mr. Genet was communicated to him, he seems to have determined to take decisive measures respecting that minister.

Rules laid down by the executive in relation to the powers at war within the ports of the United States.

The president requests the recall of Genet.

That the course to be pursued might be well considered, the secretary of state was requested to collect all the correspondence with him, to be laid before a cabinet council about to be held for the purpose of adjusting a complete system of rules to be observed by the belligerents in the ports of the United States. These rules were discussed at several meetings, and finally, on the third of August, received the unanimous approbation of the cabinet. They[9] evidence the settled purpose of the executive, faithfully to observe all the national engagements, and honestly to perform the duties of that neutrality in which the war found them, and in which those engagements left them free to remain.

In the case of the minister of the French republic, it was unanimously agreed that a letter should be written to Mr. Morris, the minister of the United States at Paris, stating the conduct of Mr. Genet, resuming the points of difference which had arisen between the government and that gentleman, assigning the reasons for the opinion of the former, desiring the recall of the latter, and directing that this letter, with those which had passed between Mr. Genet and the secretary of state, should be laid before the executive of the French government.

To a full view of the transactions of the executive with Mr. Genet, and an ample justification of its measures, this able diplomatic performance adds assurances of unvarying attachment to France, expressed in such terms of unaffected sensibility, as to render it impossible to suspect the sincerity of the concluding sentiment—"that, after independence and self-government, there

was nothing America more sincerely wished than perpetual friendship with them."

An adequate idea of the passion it excited in Mr. Genet, who received the communication in September, at New York, can be produced only by a perusal of his letter addressed, on that occasion, to the secretary of state. The asperity of his language was not confined to the President, whom he still set at defiance, whom he charged with transcending the limits prescribed by the constitution, and of whose accusation before congress he spoke as an act of justice "which the American people, which the French people, which all free people were interested to reclaim:" nor to those "gentlemen who had been painted to him so often as aristocrats, partisans of monarchy, partisans of England, and consequently enemies of the principles which all good Frenchmen had embraced with a religious enthusiasm." Its bitterness was also extended to the secretary of state himself, whom he had been induced to consider as his personal friend, and who had, he said, "initiated him into mysteries which had inflamed his hatred against all those who aspire to an absolute power."

During these deliberations, Mr. Genet was received in New York with the same remarks of partiality to his nation, and of flattering regard to himself, which had been exhibited in the more southern states. At this place too, he manifested the same desire to encourage discontent at the conduct of the government, and to embark America in the quarrel, by impressing an opinion that the existence of liberty depended on the success of the French republic, which he had uniformly avowed. In answer to an address from the republican citizens of New York, who had spoken of the proclamation of neutrality as relating only to acts of open hostility, not to the feelings of the heart; and who had declared that they would "exultingly sacrifice a liberal portion of their dearest interests could there result, on behalf of the French republic, an adequate advantage;" he said—"in this respect I can not but interpret as you have done the declaration of your government. They must know that the strict performance of treaties is the best and safest policy; they must know that good faith alone can inspire respectability to a nation; that a pusillanimous conduct provokes insult, and brings upon a country those very dangers which it weakly means to avert.

"There is indeed too much reason to fear that you are involved in the general conspiracy of tyrants against liberty. They never will, they never can forgive you for having been the first to proclaim the rights of man. But you will force them to respect you by pursuing with firmness the only path which is consistent with your national honour and dignity.

"The cause of France is the cause of all mankind, and no nation is more deeply interested than you are in its success. Whatever fate awaits her, you are ultimately to share. But the cause of liberty is great and it shall prevail.

"And if France, under a despotic yoke, has been able so successfully to assert your rights, they can never again be endangered while she is at liberty to exert, in your support, that powerful arm which now defies the combined efforts of a whole world."

While these exertions were successfully making to give increased force, and a wider extent, to opinions which might subvert the system adopted by the executive, Mr. Jay, the chief justice of the United States, and Mr. King, a senator representing the state, arrived in New York from Philadelphia. They had been preceded by a report, which was whispered in private circles, that the French minister had avowed a determination to appeal from the President to the people. The confidential intercourse subsisting between these gentlemen and a part of the administration rendering it probable that this declaration, if made, had been communicated to them, they were asked, whether the report was true; having received the information through a channel^[10] which was entitled to the most implicit faith, they answered that it was.

Their having said so was controverted; and they were repeatedly required, in the public papers, to admit or deny that they had made such an assertion. Thus called upon, they published a certificate avowing that they had made the declaration imputed to them.

On reflecting men this communication made a serious impression. The recent events in Poland, whose dismemberment and partition were easily traced to the admission of foreign influence, gave additional solemnity to the occurrence, and led to a more intent consideration of the awful causes which would embolden a foreign minister to utter such a threat.

That party, which in the commencement of the contests respecting the constitution was denominated federal, had generally supported the measures of the administration.

That which was denominated anti-federal, had generally opposed those measures. South of the Potomac especially, there was certainly many important exceptions to this arrangement of parties; yet as a general arrangement, it was unquestionably correct.

In the common partialities for France, in the common hope that the revolution in that country would be crowned with success, and would produce important benefits to the human race, they had equally participated; but in the

course to be pursued by the United States, the line of separation between the two parties was clear and distinct. The federalists were universally of opinion that, in the existing war, America ought to preserve a neutrality as impartial as was compatible with her treaties; and that those treaties had been fairly and justly construed by the executive. Seduced however by their wishes, and by their affections, they at first yielded implicit faith to the assurances given by Mr. Genet of the disinclination of the French republic to draw them from this eligible position; and from this belief, they receded slowly and reluctantly.

They were inclined to ascribe the bitter invectives which were pronounced against the executive to an inveterate hostility to the government, and to those who administered it; and, when at length they were compelled to perceive that the whole influence of Mr. Genet was employed in stimulating and pointing these invectives, they fondly indulged the hope that his nation would not countenance his conduct. Adding to their undiminished attachment to the chief magistrate, a keen sense of the disgrace, the humiliation, and the danger of permitting the American government to be forced into any system of measures by the machinations of a foreign minister with the people, they had occasionally endeavoured, through the medium of the press, to keep the public mind correct; and, when it was announced that an appeal to themselves was threatened, they felt impelled by the strongest sentiments of patriotism and regard for national honour, to declare the indignation which the threat had inspired. In every quarter of the union, the people assembled in their districts, and the strength of parties was fully tried. The contest was warm and strenuous. But public opinion appeared to preponderate greatly in favour of neutrality, and of the proclamation by which its observance was directed. It was apparent too, that the American bosom still glowed with ardent affection for their chief magistrate; and that, however successful might have been the shafts directed against some of those who shared his confidence, the arrows aimed at himself had missed their mark.

Yet it was not to be concealed that the indiscreet arrogance of Mr. Genet, the direct insults to the President, and the attachment which many, who were in opposition to the general measures of the administration, still retained for the person of that approved patriot, contributed essentially to the prevalence of the sentiment which was called forth by the occasion.

In the resolutions expressing the strongest approbation of the measures which had been adopted, and the greatest abhorrence of foreign influence, a decided partiality for France was frequently manifested; while in those of a contrary description, respect for the past services of the President, and a

willingness to support the executive in the exercises of its constitutional functions, seemed, when introduced, to be reluctantly placed among the more agreeable declarations of detestation for those who sought to dissolve the union between America and France, and of the devotion with which the French revolution ought to be espoused by all the friends of liberty.

The effect which the certificate of Mr. Jay and Mr. King might possibly produce was foreseen; and Mr. Genet sought to avoid its influence by questioning its veracity. Not only had it never been alleged that the exceptionable expressions were used to the President personally, but it was certain that they had not been uttered in his presence. Affecting not to have adverted to this obvious circumstance, the minister, on the 13th of August, addressed a letter to the chief magistrate, which, being designed for publication, was itself the act he had threatened, in which he subjoined to a detail of his accusations against the executive, the demand of an explicit declaration that he had never intimated to him an intention to appeal to the people.

On the 16th this letter was answered by the secretary of state, who, after acknowledging its receipt by the President, added, "I am desired to observe to you that it is not the established course for the diplomatic characters residing here to have any direct correspondence with him. The secretary of state is the organ through which their communications should pass.

"The President does not conceive it to be within the line of propriety or duty, for him to bear evidence against a declaration, which, whether made to him or others, is perhaps immaterial; he therefore declines interfering in the case."

Seldom has more conclusive testimony been offered of the ascendancy which, in the conflicts of party, the passions maintain over reason, than was exhibited, on this occasion, by the zealous partisans of the French minister. It might have been expected that, content with questioning the fact, or with diverting the obloquy attending it from the French nation, no American would have been found hardy enough to justify it; and but few, to condemn those gentlemen by whose means it had reached the public ear. Nothing could be farther removed from this expectation, than the conduct that was actually observed. The censure merited by the expressions themselves fell, not upon the person who had used them, but upon those who had communicated them to the public. Writers of considerable political eminence, charged them as being members of a powerful faction who were desirous of separating America from France, and connecting her with England, for the purpose of introducing the British constitution.

As if no sin could equal the crime of disclosing to the people a truth which, by inducing reflection, might check the flood of that passion for France which was deemed the surest test of patriotism, the darkest motives were assigned for the disclosure, and the reputation of those who made it has scarcely been rescued by a lapse of years, and by a change of the subjects of controversy, from the peculiar party odium with which they were at the time overwhelmed.

Sentiments of a still more extraordinary nature were openly avowed. In a republican country, it was said, the people alone were the basis of government. All powers being derived from them, might, by them, be withdrawn at pleasure. They alone were the authors of the law, and to them alone, must the ultimate decision on the interpretation belong. From these delicate and popular truths, it was inferred, that the doctrine that the sovereignty of the nation resided in the departments of government was incompatible with the principles of liberty; and that, if Mr. Genet dissented from the interpretation given by the President to existing treaties, he might rightfully appeal to the real sovereign whose agent the President was, and to whom he was responsible for his conduct. Is the President, it was asked, a *consecrated* character, that an appeal from his decisions must be considered criminal? or are the people in such a state of monarchical degradation, that to speak of consulting them is an offence as great, as if America groaned under a dominion equally tyrannical with the old monarchy of France?

It was soon ascertained that Mr. Dallas, to whom this threat of appealing to the people had been delivered, did not admit that the precise words had been used. Mr. Genet then, in the coarsest terms, averred the falsehood of the certificate which had been published, and demanded from the attorney general, and from the government, that Mr. Jay and Mr. King should be indicted for a libel upon himself and his nation. That officer accompanied his refusal to institute this information with the declaration that any other gentleman of the profession, who might approve and advise the attempt, could be at no loss to point out a mode which would not require his intervention.

While the minister of the French republic thus loudly complained of the unparalleled injury he received from being charged with employing a particular exceptionable phrase, he seized every fair occasion to carry into full execution the threat which he denied having made. His letters, written for the purpose of publication, and actually published by himself, accused the executive, before the tribunal of the people, on those specific points, from its decisions respecting which he was said to have threatened the appeal. As if the offence lay, not in perpetrating the act, but in avowing an intention to perpetrate it, this

demonstration of his designs did not render his advocates the less vehement in his support, nor the less acrimonious in reproaching the administration, as well as Mr. Jay and Mr. King.

Whilst insult was thus added to insult, the utmost vigilance of the executive officers was scarcely sufficient to maintain an observance of the rules which had been established for preserving neutrality in the American ports. Mr. Genet persisted in refusing to acquiesce in those rules; and fresh instances of attempts to violate them were continually recurring. Among these, was an outrage committed in Boston, too flagrant to be overlooked.

A schooner, brought as a prize into the port of Boston by a French privateer, was claimed by the British owner; who instituted proceedings at law against her, for the purpose of obtaining a decision on the validity of her capture. She was rescued from the possession of the marshal, by an armed force acting under the authority of Mr. Duplaine, the French consul, which was detached from a frigate then lying in port. Until the frigate sailed, she was guarded by a part of the crew; and, notwithstanding the determination of the American government that the consular courts should not exercise a prize jurisdiction within the territories of the United States, Mr. Duplaine declared his purpose to take cognizance of the case.

To this act of open defiance, it was impossible for the President to submit. The facts being well attested, the exequatur which had been granted to Mr. Duplaine was revoked, and he was forbidden further to exercise the consular functions. It will excite surprise that even this necessary measure could not escape censure. The self-proclaimed champions of liberty discovered in it a violation of the constitution, and a new indignity to France.

Mr. Genet did not confine his attempts to employ the force of America against the enemies of his country to maritime enterprises. On his first arrival, he is understood to have planned an expedition against the Floridas, to be carried on from Georgia; and another against Louisiana, to be carried on from the western parts of the United States. Intelligence was received that the principal officers were engaged; and the temper of the people inhabiting the western country was such as to furnish some ground for the apprehension, that the restraints which the executive was capable of imposing, would be found too feeble to prevent the execution of this plan. The remonstrances of the Spanish commissioners on this subject, however, were answered with explicit assurances that the government would effectually interpose to defeat any expedition from the territories of the United States against those of Spain; and

the governor of Kentucky was requested to co-operate in frustrating this improper application of the military resources of his state.

It was not by the machinations of the French minister alone that the neutrality of the United States was endangered. The party which, under different pretexts, urged measures the inevitable tendency of which was war, derived considerable aid, in their exertions to influence the passions of the people, from the conduct of others of the belligerent powers. The course pursued both by Britain and Spain rendered the task of the executive still more arduous, by furnishing weapons to the enemies of neutrality, capable of being wielded with great effect.

The resentment excited by the rigour with which the maritime powers of Europe retained the monopoly of their colonial commerce, had, without the aid of those powerful causes which had lately been brought into operation, been directed peculiarly against Great Britain. These resentments had been greatly increased. That nation had not mitigated the vexations and inconveniences which war necessarily inflicts on neutral trade, by any relaxations in her colonial policy.

Decree of the national convention relative to neutral commerce.

To this rigid and repulsive system, that of France presented a perfect contrast. Either influenced by the politics of the moment, or suspecting that, in a contest with the great maritime nations of Europe, her commerce must search for security in other bottoms than her own, she opened the ports of her colonies to every neutral flag, and offered to the United States a new treaty, in which it was understood that every mercantile distinction between Americans and Frenchmen should be totally abolished.

With that hasty credulity which, obedient to the wishes, can not await the sober and deliberate decisions of the judgment, the Americans ascribed this change, and these propositions, to the liberal genius of freedom; and expected the new commercial and political systems to be equally durable. As if, in the term republic, the avaricious spirit of commercial monopoly would lose its influence over men; as if the passions were to withdraw from the management of human affairs, and leave the helm to the guidance of reason, and of disinterested philanthropy; a vast proportion of the American people believed this novel system to be the genuine offspring of new-born liberty; and consequently expected that, from the success of the republican arms, a flood of untried good was to rush upon the world.

The avidity with which the neutral merchants pressed forward to reap the rich and tempting harvest offered to them by the regulations and the wants of France, presented a harvest not less rich and tempting to the cruisers of her enemies. Captures to a great extent were made, some with, others without, justifiable cause; and the irritations inseparable from disappointment in gathering the fruits of a gainful traffic, were extensively communicated to the agricultural part of society.

The vexations on the ocean to which neutrals are commonly exposed during war, were aggravated by a measure of the British cabinet, which war was not admitted to justify.

British order of 1793.

The vast military exertions of the French republic had carried many hands from their usual occupations, to the field; and the measures of government, added to the internal commotions, had discouraged labour by rendering its profits insecure. These causes, aided perhaps by unfavourable seasons, had produced a scarcity which threatened famine. This state of things suggested to their enemies the policy of increasing the internal

distress, by cutting off the external supply. In execution of this plan, the British cruisers were instructed "to stop all vessels loaded wholly or in part with corn, flour, or meal, bound to any port in France, or any port occupied by the armies of France, and to send them to such ports as shall be most convenient, in order that such corn, meal, or flour, may be purchased on behalf of his majesty's government, and the ships be relieved after such purchase, and after a due allowance for freight; or that the masters of such ships on giving due security, to be approved by the court of admiralty, be permitted to proceed to dispose of their cargoes of corn, meal, or flour, in the ports of any country in amity with his majesty."

In the particular character of the war, and in the general expressions of some approved modern writers on the law of nations, the British government sought a justification of this strong measure. But by neutrals generally, it was deemed an unwarrantable invasion of their rights; and the remonstrances made against it by the American government in particular, were serious and earnest. This attempt to make a principle, which was understood to be applicable only to blockaded places, subservient to the impracticable plan of starving an immense agricultural nation, was resisted with great strength of reasoning by the administration; and added, not inconsiderably, to the resentment felt by the body of the people.[\[11\]](#)

Hostilities on the ocean disclosed still another source of irritation, which added its copious stream to the impetuous torrent which threatened to sweep America into the war that desolated Europe.

The British government had long been accustomed to resort to the practice of manning their fleet by impressment. The exercise of this prerogative had not been confined to the land. Merchantmen in their ports, and even at sea, were visited, and mariners were taken out of them, to be employed in the royal navy. The profits of trade enabling neutral merchants to give high wages, British sailors were tempted, in great numbers, to enter their service; but the neutral ship furnished no protection. Disregarding the bottom in which they sailed, the officers of the navy impressed them wherever found, often leaving scarcely hands enough to navigate the vessel into port.

The Americans were peculiarly exposed to the abuse to which such usages are liable. Descended from the same ancestors and speaking the same language, the distinction between them and the English, though in

general sufficiently marked, was not always so visible as to prevent unintentional error; nor were the captains of ships of war, at all times, very solicitous to avoid mistake. Native Americans, therefore, were frequently impressed, and compelled to serve against the French republic.

The British cabinet disclaimed all pretensions to the impressment of real American citizens, and declared officially a willingness to discharge them, on the establishment of their citizenship. But time was necessary to procure the requisite testimonials; and those officers who had notoriously offended in this respect, were not so discountenanced by their government as to be deterred from a repetition of the offence. There was too, one class of citizens, concerning whose rights a difference of opinion prevailed, which has not even yet been adjusted. These were British subjects who had migrated to, and been adopted by, the United States.

The continuance of the Indian war added still another item to this catalogue of discontents.

The efforts of the United States to make a treaty with the savages of the Miamis had proved abortive. The Indians insisted on the Ohio as the boundary between them and the whites; and, although the American commissioners expressed a willingness to relinquish some of the lands purchased at the treaty of fort Harmar, and pressed them to propose some line between the boundary established by that treaty and the Ohio, they adhered inflexibly to their original demand.

It was extensively believed in America, and information collected from the Indians countenanced the opinion, that they were encouraged by the government of Canada to persevere in this claim, and that the treaty was defeated by British influence. The conviction was universal that this influence would continue so long as the posts south of the lakes should be occupied by British troops; and the uneasiness which the detention of those posts created, daily acquired strength. Unfortunately, the original pretext for detaining them was not yet removed. The courts of the United States had not yet declared that British debts contracted before the war, were recoverable. In one of the circuits, a decision had been recently made, partly favourable, and partly unfavourable, to the claim of the creditor. To this decision writs of error had been brought, and the case was pending before the supreme court. The motives therefore originally assigned for holding the posts on the lakes still remained; and, as it was a maxim with the executive

"to place an adversary clearly in the wrong," and it was expected that the existing impediments to the fulfilment of the treaty on the part of the United States would soon be done away, it was thought unadvisable, had the military force of the union been equal to the object, to seize those posts, until their surrender could be required in consequence of a complete execution of the treaty. In the mean time, the British minister was earnestly pressed upon the subject.

This prudent conduct was far from being satisfactory to the people. Estimating at nothing, infractions made by themselves, and rating highly those committed by the opposite party, they would, in any state of things, have complained loudly of this act of the British government. But, agitated as they were by the various causes which were perpetually acting on their passions, it is not wonderful that an increased influence was given to this measure; that it should be considered as conclusive testimony of British hostility, and should add to the bitterness with which the government was reproached for attempting a system "alike friendly and impartial to the belligerent powers."

The causes of discontent which were furnished by Spain, though less the theme of public declamation, continued to be considerable.

The American ministers at Madrid could make no progress in their negotiation. The question of limits remained unsettled, and the Mississippi was still closed against the Americans. In addition to these subjects of disquiet, the southern states were threatened with war from the Creeks and Cherokees, who were, with good reason, believed to be excited to hostility by the Spanish government. Of these irritating differences, that which related to the Mississippi was far the most operative, and embarrassing. The imagination, especially when warmed by discontent, bestows on a good which is withheld, advantages much greater than the reality will justify; and the people of the western country were easily persuaded to believe that the navigation of the Mississippi was a mine of wealth which would at once enrich them. That jealousy which men so readily entertain of the views of those with whom they do not associate, had favoured the efforts made by the enemies of the administration, to circulate the opinion that an opposition of interests existed between the eastern and the western people, and that the endeavours of the executive to open their great river were feeble and insincere. At a meeting of the Democratic Society in Lexington, in

Kentucky, this sentiment was unanimously avowed in terms of peculiar disrespect to the government; and a committee was appointed to open a correspondence with the inhabitants of the whole western country, for the purpose of uniting them on this all important subject, and of preparing on it a remonstrance to the President and congress of the United States, to be expressed "in the bold, decent and determined language, proper to be used by injured freemen when they address the servants of the people." They claimed much merit for their moderation in having thus long, out of regard to their government, and affection for their fellow citizens on the Atlantic, abstained from the use of those means which they possessed for the assertion of what they termed a natural and unalienable right; and seemed to indicate the opinion that this forbearance could not be long continued. Without regarding the determination of Spain in the case or the poverty of the means placed in the hands of the executive for inducing a change in this determination, they demanded from the government the free use of the Mississippi, as if only an act of the will was necessary to insure it to them. Not even the probability that the public and intemperate expression of these dangerous dispositions would perpetuate the evil, could moderate them. This restless uneasy temper gave additional importance to the project of an expedition against Louisiana, which had been formed by Mr. Genet.

These public causes for apprehending hostilities^[12] with Spain, were strengthened by private communications. The government had received intelligence from their ministers in Europe that propositions had been made by the cabinet of Madrid to that of London, the object of which was the United States. The precise nature of these propositions was not ascertained, but it was understood generally, that their tendency was hostile.

Thus unfavourable to the pacific views of the executive were the circumstances under which congress was to assemble.

CHAPTER II.

Meeting of congress.... President's speech.... His message on the foreign relations of the United States.... Report of the Secretary of State on the commerce of the United States.... He resigns.... Is succeeded by Mr. Randolph.... Mr. Madison's resolutions founded on the above report.... Debate thereon.... Debates on the subject of a navy.... An embargo law.... Mission of Mr. Jay to Great Britain.... Inquiry into the conduct of the Secretary of the Treasury, terminates honourably to him.... Internal taxes.... Congress adjourns.

1793

Meeting of Congress.

A malignant fever, believed to be infectious, had, through part of the summer and autumn, severely afflicted the city of Philadelphia, and dispersed the officers of the executive government. Although the fear of contagion was not entirely dispelled when the time for the meeting of congress arrived, yet, such was the active zeal of parties, and such the universal expectation that important executive communications would be made, and that legislative measures not less important would be founded on them, that both houses were full on the first day, and a joint committee waited on the President with the usual information that they were ready to receive his communications.

On the fourth of December, at twelve, the President met both houses in the senate chamber. His speech was moderate, firm, dignified, and interesting. It commenced with his own re-election, his feelings at which were thus expressed—

President's speech.

"Since the commencement of the term for which I have been again called into office, no fit occasion has arisen for expressing to my fellow-citizens at large, the deep and respectful sense which I feel of the renewed testimony of public approbation. While on the one hand, it awakened my gratitude for all those instances of affectionate partiality with which I have been

honoured by my country; on the other, it could not prevent an earnest wish for that retirement, from which no private consideration could ever have torn me. But, influenced by the belief that my conduct would be estimated according to its real motives, and that the people, and the authorities derived from them, would support exertions having nothing personal for their object, I have obeyed the suffrage which commanded me to resume the executive power; and I humbly implore that Being on whose will the fate of nations depends, to crown with success our mutual endeavours for the general happiness."

Passing to those measures which had been adopted by the executive for the regulation of its conduct towards the belligerent nations, he observed, "as soon as the war in Europe had embraced those powers with whom the United States have the most extensive relations, there was reason to apprehend that our intercourse with them might be interrupted, and our disposition for peace drawn into question by suspicions too often entertained by belligerent nations. It seemed therefore to be my duty to admonish our citizens of the consequence of a contraband trade, and of hostile acts to any of the parties; and to obtain, by a declaration of the existing state of things, an easier admission of our rights to the immunities belonging to our situation. Under these impressions the proclamation which will be laid before you was issued.

"In this posture of affairs, both new and delicate, I resolved to adopt general rules which should conform to the treaties, and assert the privileges of the United States. These were reduced into a system, which shall be communicated to you."

After suggesting those legislative provisions on this subject, the necessity of which had been pointed out by experience, he proceeded to say,

"I can not recommend to your notice measures for the fulfilment of *our* duties to the rest of the world, without again pressing upon you the necessity of placing ourselves in a condition of complete defence, and of exacting from *them* the fulfilment of their duties towards us. The United States ought not to indulge a persuasion that, contrary to the order of human events, they will forever keep at a distance those painful appeals to arms with which the history of every nation abounds. There is a rank due to the United States among nations which will be withheld, if not absolutely lost, by the reputation of weakness. If we desire to avoid insult, we must be able

to repel it; if we desire to secure peace—one of the most powerful instruments of our prosperity—it must be known that we are, at all times, ready for war."

These observations were followed by a recommendation to augment the supply of arms and ammunition in the magazines, and to improve the militia establishment.

After referring to a communication to be subsequently made for occurrences relative to the connexion of the United States with Europe, which had, he said, become extremely interesting; and after reviewing Indian affairs, he particularly addressed the house of representatives. Having presented to them in detail some subjects of which it was proper they should be informed, he added;—"no pecuniary consideration is more urgent than the regular redemption and discharge of the public debt; on none can delay be more injurious, or an economy of time more valuable.

"The productiveness of the public revenues hitherto has continued to be equal to the anticipations which were formed of it; but it is not expected to prove commensurate with all the objects which have been suggested. Some auxiliary provisions will therefore, it is presumed, be requisite; and it is hoped that these may be made consistently with a due regard to the convenience of our citizens, who can not but be sensible of the true wisdom of encountering a small present addition to their contributions, to obviate a future accumulation of burdens."

The speech was concluded with the following impressive exhortation:

"The several subjects to which I have now referred, open a wide range to your deliberations, and involve some of the choicest interests of our common country. Permit me to bring to your remembrance the magnitude of your task. Without an unprejudiced coolness, the welfare of the government may be hazarded; without harmony, as far as consists with freedom of sentiment, its dignity may be lost. But, as the legislative proceedings of the United States will never, I trust, be reproached for the want of temper, or of candour, so shall not the public happiness languish from the want of my strenuous and warmest co-operation."

His message on the subject of the foreign relations of the United States.

The day succeeding that on which this speech was delivered, a special message was sent to both houses, containing some of the promised

communications relative to the connexion of the United States with foreign powers.

After suggesting as a motive for this communication that it not only disclosed "matter of interesting inquiry to the legislature," but, "might indeed give rise to deliberations to which they alone were competent;" the President added—"the representative and executive bodies of France have manifested generally a friendly attachment to this country; have given advantages to our commerce and navigation; and have made overtures for placing these advantages on permanent ground. A decree, however, of the national assembly, subjecting vessels laden with provisions to be carried into their ports, and making enemy goods lawful prize in the vessel of a friend, contrary to our treaty, though revoked at one time as to the United States, has been since extended to their vessels also, as has been recently stated to us. Representations on the subject will be immediately given in charge to our minister there, and the result shall be communicated to the legislature.

"It is with extreme concern I have to inform you that the person whom they have unfortunately appointed their minister plenipotentiary here, has breathed nothing of the friendly spirit of the nation which sent him. Their tendency on the contrary has been to involve us in a war abroad and discord and anarchy at home. So far as his acts, or those of his agents, have threatened an immediate commitment in the war, or flagrant insult to the authority of the laws, their effect has been counteracted by the ordinary cognizance of the laws, and by an exertion of the powers confided to me. Where their danger was not imminent, they have been borne with, from sentiments of regard to his nation, from a sense of their friendship towards us, from a conviction that they would not suffer us to remain long exposed to the actions of a person who has so little respected our mutual dispositions, and, I will add, from a reliance on the firmness of my fellow-citizens in their principles of peace and order. In the mean time I have respected and pursued the stipulations of our treaties, according to what I judged their true sense; and have withheld no act of friendship which their affairs have called for from us, and which justice to others left us free to perform. I have gone further. Rather than employ force for the restitution of certain vessels which I deemed the United States bound to restore, I thought it more adviseable to satisfy the parties by avowing it to be my opinion,

that, if restitution were not made, it would be incumbent on the United States to make compensation."

The message next proceeded to state that inquiries had been instituted respecting the vexations and spoliations committed on the commerce of the United States, the result of which when received would be communicated.

The order issued by the British government on the 8th of June, and the measures taken by the executive of the United States in consequence thereof, were briefly noticed; and the discussions which had taken place in relation to the non-execution of the treaty of peace were also mentioned. The message was then concluded with a reference to the negotiations with Spain. "The public good," it was said, "requiring that the present state of these should be made known to the legislature in confidence only, they would be the subject of a separate and subsequent communication."

This message was accompanied with copies of the correspondence between the secretary of state and the French minister, on the points of difference which subsisted between the two governments, together with several documents necessary for the establishment of particular facts; and with the letter written by Mr. Jefferson to Mr. Morris, which justified the conduct of the United States by arguments too clear to be misunderstood, and too strong ever to be encountered.

The extensive discussions which had taken place relative to the non-execution of the treaty of peace, and the correspondence produced by the objectionable measures which had been adopted by the British government during the existing war, were also laid before the legislature.

In a popular government, the representatives of the people may generally be considered as a mirror, reflecting truly the passions and feelings which govern their constituents. In the late elections, the strength of parties had been tried; and the opposition had derived so much aid from associating the cause of France with its own principles, as to furnish much reason to suspect that, in one branch of the legislature at least, it had become the majority. The first act of the house of representatives served to strengthen this suspicion. By each party a candidate for the chair was brought forward; and Mr. Muhlenberg, who was supported by the opposition, was elected by a majority of ten votes, against Mr. Sedgewick, whom the federalists supported.

The answer, however, to the speech of the President, wore no tinge of that malignant and furious spirit which had infused itself into the publications of the day. Breathing the same affectionate attachment to his person and character which had been professed in other times, and being approved by every part of the house, it indicated that the leaders, at least, still venerated their chief magistrate, and that no general intention as yet existed, to involve him in the obloquy directed against his measures.

Noticing that unanimous suffrage by which he had been again called to his present station, "it was," they said, "with equal sincerity and promptitude they embraced the occasion for expressing to him their congratulations on so distinguished a testimony of public approbation, and their entire confidence in the purity and patriotism of the motives which had produced this obedience to the voice of his country. It is," proceeded the address, "to virtues which have commanded long and universal reverence, and services from which have flowed great and lasting benefits that the tribute of praise may be paid without the reproach of flattery; and it is from the same sources that the fairest anticipations may be derived in favour of the public happiness."

The proclamation of neutrality was approved in guarded terms, and the topics of the speech were noticed in a manner which indicated dispositions cordially to co-operate with the executive.

On the part of the senate also, the answer to the speech was unfeignedly affectionate. In warm terms they expressed the pleasure which the re-election of the President gave them. "In the unanimity," they added, "which a second time marks this important national act, we trace with particular satisfaction, besides the distinguished tribute paid to the virtues and abilities which it recognizes, another proof of that discernment, and constancy of sentiments and views, which have hitherto characterized the citizens of the United States." Speaking of the proclamation, they declared it to be "a measure well timed and wise, manifesting a watchful solicitude for the welfare of the nation, and calculated to promote it."

In a few days, a confidential message was delivered, communicating the critical situation of affairs with Spain. The negotiations attempted with that power in regard to the interesting objects of boundary, navigation, and commerce, had been exposed to much delay and embarrassment, in consequence of the changes which the French revolution had effected in the

political state of Europe. Meanwhile, the neighborhood of the Spanish colonies to the United States had given rise to various other subjects of discussion, one of which had assumed a very serious aspect.

Having the best reason to suppose that the hostility of the southern Indians was excited by the agents of Spain, the President had directed the American commissioners at Madrid to make the proper representations on the subject, and to propose that each nation should, with good faith, promote the peace of the other with their savage neighbours.

About the same time, the Spanish government entertained, or affected to entertain, corresponding suspicions of like hostile excitements by the agents of the United States, to disturb their peace with the same nations. The representations which were induced by these real or affected suspicions, were accompanied with pretensions, and made in a style, to which the American executive could not be inattentive. His Catholic Majesty asserted these claims as a patron and protector of those Indians. He assumed a right to mediate between them and the United States, and to interfere in the establishment of their boundaries. At length, in the very moment when those savages were committing daily inroads on the American frontier, at the instigation of Spain, as was believed, the representatives of that power, complaining of the aggressions of American citizens on the Indians, declared "that the continuation of the peace, good harmony, and perfect friendship of the two nations, was very problematical for the future, unless the United States should take more convenient measures, and of greater energy than those adopted for a long time past."

Notwithstanding the zeal and enthusiasm with which the pretensions of the French republic, as asserted by their minister, continued to be supported out of doors, they found no open advocate in either branch of the legislature. That this circumstance is, in a great measure, to be ascribed to the temperate conduct of the executive, and to the convincing arguments with which its decisions were supported, ought not to be doubted. But when it is recollected that the odium which these decisions excited, sustained no diminution; that the accusation of hostility to France and to liberty, which originated in them, was not retracted; that, when afterwards many of the controverted claims were renewed by France, her former advocates still adhered to her; it is not unreasonable to suppose that other considerations

mingled themselves with the conviction which the correspondence laid before the legislature was calculated to produce.

An attack on the administration could be placed on no ground more disadvantageous than on its controversy with Mr. Genet. The conduct and language of that minister were offensive to reflecting men of all parties. The President had himself taken so decisive a part in favour of the measures which had been adopted, that they must be ascribed to him, not to his cabinet; and, of consequence, the whole weight of his personal character must be directly encountered, in an attempt to censure those measures. From this censure it would have been difficult to extricate the person who was contemplated by the party in opposition as its chief; for the secretary of state had urged the arguments of the administration with a degree of ability and earnestness, which ought to have silenced the suspicion that he might not feel their force.

The expression of a legislative opinion, in favour of the points insisted on by the French minister, would probably have involved the nation in a calamitous war, the whole responsibility for which would rest on them.

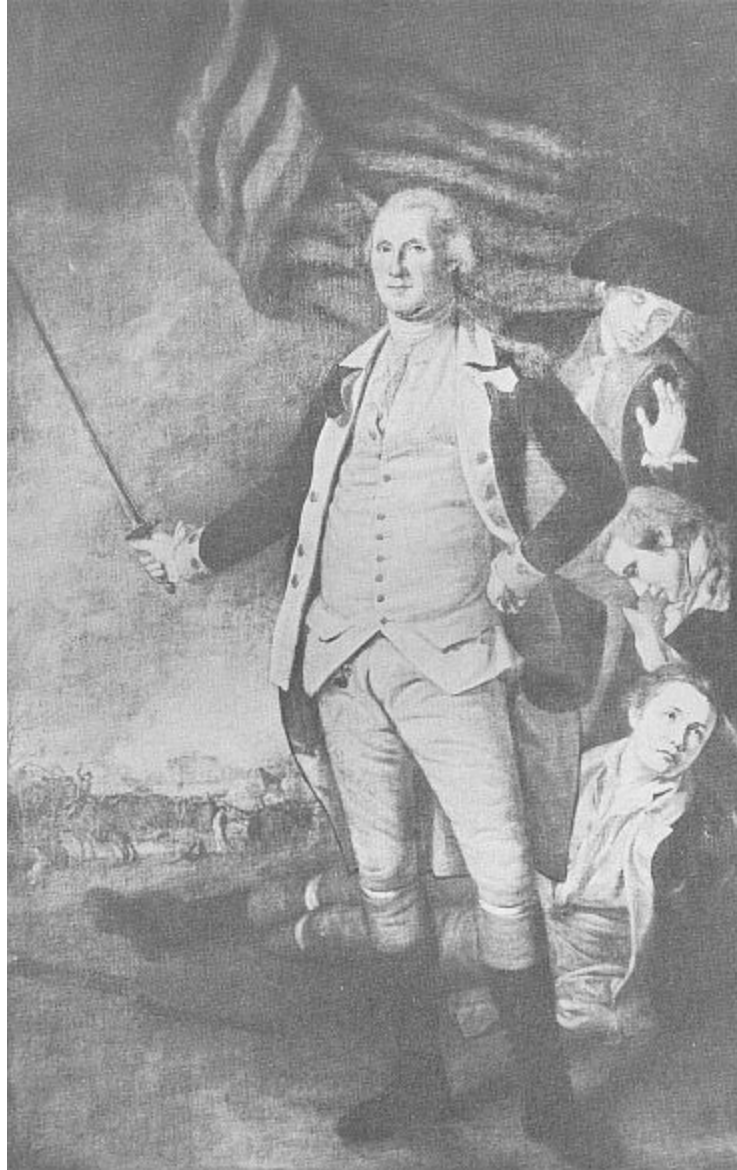
To these considerations was added another which could not be disregarded. The party in France, to which Mr. Genet owed his appointment, had lost its power; and his fall was the inevitable consequence of the fall of his patrons. That he would probably be recalled was known in America; and that his conduct had been disapproved by his government was generally believed. The future system of the French republic, with regard to the United States, could not be foreseen; and it would be committing something to hazard, not to wait its development.

These objections did not exist to an indulgence of the partialities and prejudices of the nation towards the belligerent powers, in measures suggested by its resentment against Great Britain. But, independent of these considerations, it is scarcely possible to doubt that congress really approved the conduct of the executive with regard to France, and was also convinced that a course of hostility had been pursued by Great Britain, which the national interest and the national honour required them to repel. In the irritable state of the public temper, it was not difficult to produce this opinion.

In addition to the causes of dissatisfaction with Great Britain which have already been suggested, others soon occurred. Under her auspices, a truce

for one year had been lately negotiated between Portugal and the Regency of Algiers, which, by withdrawing a small squadron stationed during the war, by the former power, in the Streights, opened a passage into the Atlantic to the cruisers of the latter. The capture of American merchantmen, which was the immediate consequence of this measure, was believed, in the United States, to have been its motive. Not admitting the possibility that a desire to extricate Portugal from a war unproductive of any advantages, and to leave her maritime force free to act elsewhere, could have induced this interposition of England, the Americans ascribed it, exclusively, to that enmity to their commerce, and to that jealousy of its prosperity, which had, as they conceived, long marked the conduct of those who administered the affairs of that nation.

This transaction was afterwards explained by England, and was ascribed to her desire to serve an ally, and to enable that ally to act more efficaciously in a common cause.



George Washington

From the painting by Charles Willson Peale.

In June, 1783, Washington spent some time in Princeton, New Jersey, whither the Continental Congress had adjourned from Philadelphia in consequence of a mutiny among the unpaid troops stationed there. On leaving Princeton the American Commander-in-Chief donated 50 guineas to the College of New Jersey, now Princeton University. The trustees spent the money on this portrait and had it put in the frame formerly occupied by a picture of King George III, which was destroyed by a cannon ball in the Battle of Princeton. This canvas still hangs in the Princeton Faculty room.

By Courtesy of Princeton University

From governments accustomed to trust rather to artifice, than to force or to reason, and influenced by vindictive passions which they have not strength or courage to gratify, hostility may be expected to exert itself in a cruel insidious policy, which unfeelingly dooms individuals to chains, and involves them in ruin, without having a tendency to effect any national object. But the British character rather wounds by its pride, and offends by its haughtiness, and open violence, than injures by the secret indulgence of a malignant, but a paltry and unprofitable revenge: and, certainly, such unworthy motives ought not lightly to be imputed to a great and magnanimous nation, which dares to encounter a world, and risk its existence, for the preservation of its station in the scale of empires, of its real independence, and of its liberty.

But, in believing the views of the British cabinet to be unfriendly to the United States, America was perhaps not entirely mistaken. Indeed, dispositions of a different nature could not reasonably have been expected. It may be denied, but can not be disguised, that the sentiments openly expressed by a great majority of the American people, warranted the opinion that, notwithstanding the exertions of the administration, they were about to arrange themselves, in the war, on the side of France. In a government like that of the United States, no firmness on the part of the chief magistrate can long resist the current of popular opinion; and that opinion, without professing it, unquestionably led to war.

If the character of the British minister at Philadelphia is to be collected from his intercourse with the executive of the country to which he was deputed, there is reason to suppose that his communications to his own government did not diminish the impression which the evidence furnished on this subject, by the American people themselves, was calculated to make. It is therefore not improbable, whatever may be the permanent views of England respecting the commercial prosperity of the United States, that the measures of the British cabinet, about this time, were taken in the belief that war between the two nations was a probable event.

Report of the secretary of state in relation to the commerce of the United States.

Early in the session a report was made by the secretary of state, in pursuance of a resolution of the house of representatives passed on the 23d

of February, 1791, requiring him "to report to congress the nature and extent of the privileges and restrictions of the commercial intercourse of the United States with foreign nations, and the measures which he should think proper to be adopted for the improvement of the commerce and navigation of the same."

This report stated the exports of the United States in articles of their own produce and manufacture at nineteen millions, five hundred and eighty-seven thousand, and fifty-five dollars; and the imports at nineteen millions, eight hundred and twenty-three thousand, and sixty dollars.

Of the exports, nearly one-half was carried to the kingdom of Great Britain and its dominions; of the imports, about four-fifths were brought from the same countries. The American shipping amounted to two hundred and seventy-seven thousand, five hundred and nineteen tons, of which not quite one-sixth was employed in the trade with Great Britain and its dominions.

In all the nations of Europe, most of the articles produced in the United States were subjected to heavy duties, and some of them were prohibited. In England, the trade of the United States was in the general on as good a footing as the trade of other countries; and several articles were more favoured than the same articles of the growth of other countries.

The statements and arguments of this report tended to enforce the policy of making discriminations which might favour the commerce of the United States with France, and discourage that with England; and which might promote the increase of American navigation as a branch of industry, and a resource of defence.

This was the last official act of the secretary of state. Early in the preceding summer, he had signified to the President his intention to retire in September from the public service; and had, with some reluctance, consented to postpone the execution of this intention to the close of the year. Retaining his purpose, he resigned his office on the last day of December.

He resigns.

This gentleman withdrew from political station at a moment when he stood particularly high in the esteem of his countrymen. His determined opposition to the financial schemes which had been proposed by the secretary of the treasury, and approved by the legislative and executive

departments of the government; his ardent and undisguised attachment to the revolutionary party in France; the dispositions which he was declared to possess in regard to Great Britain; and the popularity of his opinions respecting the constitution of the United States; had devoted to him that immense party whose sentiments were supposed to comport with his, on most, or all of these interesting subjects. To the opposite party he had, of course, become particularly unacceptable. But the publication of his correspondence with Mr. Genet dissipated much of the prejudice which had been excited against him. He had, in that correspondence, maintained with great ability the opinions embraced by the federalists on those points of difference which had arisen between the two republics; and which, having become universally the subjects of discussion, had in some measure displaced those topics on which parties were previously divided. The partiality for France that was conspicuous through the whole of it, detracted nothing from its merit in the opinion of the friends of the administration, because, however decided their determination to support their own government in a controversy with any nation whatever, they felt all the partialities for that republic which the correspondence expressed. The hostility of his enemies therefore was, for a time, considerably lessened, without a corresponding diminution of the attachment of his friends. It would have been impracticable, in office, long to preserve these dispositions. And it would have been difficult to maintain that ascendancy which he held over the minds of those who had supported, and probably would continue to support, every pretension of the French republic, without departing from principles and measures which he had openly and ably defended.

Is succeeded by Mr. Randolph.

He was immediately succeeded by Mr. Edmund Randolph; and the office of attorney general was filled by Mr. William Bradford, a gentleman of considerable eminence in Pennsylvania.

1794

On the fourth of January, the house resolved itself into a committee of the whole, on the report of the secretary of state, relative to the privileges and restrictions of the commerce of the United States; when Mr. Madison, after some prefatory observations, laid on the table a series of resolutions[\[13\]](#) for the consideration of the members.

Mr. Madison's resolutions founded on the above report.

These memorable resolutions embraced almost completely the idea of the report. They imposed an additional duty on the manufactures, and on the tonnage of vessels, of nations having no commercial treaty with the United States; while they reduced the duties already imposed by law, on the tonnage of vessels belonging to nations having such commercial treaty: and they reciprocated the restrictions which were imposed on American navigation.

Debate thereon.

On the 13th of January they were taken into consideration, when the debate was opened by Mr. Smith of South Carolina.

After noticing the importance of the subject to the best interests of the United States, he observed that, being purely commercial in its nature, he would exclude from the view he should take of it, those political considerations which some might think connected with it. He imagined it would be right to dismiss, for the present, all questions respecting the Indians, Algerines, and western posts. There would be a time for these questions; and then he should give his opinion upon them with firmness, and according to what he conceived to be the true interests of his country. The regulation of commerce gave of itself sufficient scope for argument, without mixing it with extraneous matter.

After some general observations on the delicacy of the crisis, and on the claims of the resolutions to dispassionate investigation, he proceeded to consider the report on which they were founded.

The great object of that report being to establish a contrast between France and Britain, he would request the attention of the committee to an accurate statement of facts, which, being compared with the report, would enable them to decide on the justness of its inferences.

In the opinion that any late relaxations of the French republic were produced by interests too momentary and fluctuating to be taken as the basis of calculations for a permanent system, he should present a comparative view of the commerce of the United States to those countries, as it stood anterior to the revolution of France. For this purpose, he produced a table which had been formed by a person whose commercial information was highly respectable, from which he said it would appear, notwithstanding the plaudits so generally bestowed on the justice and

liberality of the one nation, and the reproaches uttered against the other, that, with the exception of the trifling article of fish oil, the commerce of the United States was not more favoured in France than in Great Britain, and was, in many important articles, more favoured by the latter power, than that of other nations.

Mr. Smith then reviewed, in detail, the advantages and disadvantages attending the sale of the great products of America in the ports of each nation, which, he conceived, were more encouraged by the British than by the French market.

A comparative statement, he added, of the value of the exports of the two countries, would assist in confirming this opinion.

The value of the exports to Great Britain, at the close of the year ending with September, 1789, was nearly double those made to France in the same period: and even the average of the years 1790, 1791 and 1792, gave an annual excess to the exports to Great Britain of three millions, seven hundred and fifty-two thousand, seven hundred and sixty dollars.

The great amount of merchandise imported from Britain, instead of being a grievance, demonstrated, in the opinion of Mr. Smith, the utility of the trade with that country. For the extent of the intercourse between the two nations, several obvious reasons might be assigned. Britain was the first manufacturing country in the world, and was more able, than any other, to supply an assortment of those articles which were required in the United States. She entitled herself, too, to the preference which was given her, by the extensive credit she afforded. To a young country wanting capital, credit was of immense advantage. It enabled them to flourish by the aid of foreign capital, the use of which had, more than any other circumstance, nourished the industry of America.

By the advocates for forcing a trade with France, it was asserted that she could supply the wants of America on better terms than Great Britain. To do this, she must not only sell cheaper, but give credit, which, it was known her merchants either could not, or would not give.

The very necessity of laying a duty on British manufactures, in order to find a sale for those of other countries, was a proof that the first could be purchased on better terms, or were better adapted to the market.

If the object of the resolutions were the encouragement of domestic manufactures, there might be some semblance of argument in their favour.

But this is not contemplated. Their avowed object is to turn the course of trade from one nation to another, by means which would subject the citizens of the United States to great inconvenience.

Mr. Smith next proceeded to consider the subject with a view to navigation.

The trade of the United States to Great Britain, for the transportation of their own produce, was as free in American as in British bottoms, a few trifling port charges excepted. In France, they enjoyed the advantages granted to the most favoured nation. Thus far the comparison was in favour of Great Britain. In the West Indies, he admitted the existence of a different state of things. All American bottoms were excluded from the British islands, with the exception of Turks island. In the French islands, vessels under sixty tons were admitted, but this advantage was common to all other nations.

The effect of the difference in the regulations of the two rival nations in respect of navigation, was not so considerable as the secretary of state had supposed. He had stated the tonnage employed in the intercourse with France and her colonies, at 116,410 tons; and that employed in the commerce with Great Britain at 43,580 tons. The secretary was led into this miscalculation by taking for his guide, the actual entries of American bottoms from the dominions of each country in the year. As four voyages are made to the West Indies, while only two are made to Europe, the vessels employed in the former traffic will be counted four times in the year, and those employed in the latter will be counted only twice in the same period. The deceptiveness of the calculations made from these data had induced a call on the secretary of the treasury for an account of the actual tonnage employed in trade with foreign nations for one year. This account shows that France employs 82,510 tons, and Great Britain 66,582 tons, of American shipping; leaving in favour of France, an excess of 15,928, instead of 72,830 tons, as reported by the secretary of state.

From this comparative view taken of the regulations of the two nations, Mr. Smith conceived himself justified in saying, that the commercial system of Great Britain towards the United States, far from being hostile, was friendly; and that she made many discriminations in their favour. France, on the contrary, placed them on a better situation than her rival, only in one solitary instance, the unimportant article of fish oil.

If this be a true picture of the existing state of things, and he could not perceive in what it was defective, was it not time, he asked, that the deceptions practised on the people by the eulogists of France and the revilers of Great Britain, should be removed?

The resolutions were supported by Mr. Madison, Mr. Findley, Mr. Nicholas, Mr. Clarke, Mr. Smiley, Mr. Moore, and Mr. Giles.

They admitted the subject before the committee to be of a commercial nature, but conceived it to be impracticable to do justice to the interests of the United States, without some allusions to politics. The question was in some measure general. They were to inquire how far it was the interest of this country by commercial regulations to vary the state of commerce now existing. They were of opinion that most of the injuries proceeding from Great Britain were inflicted for the promotion of her commercial objects, and were to be remedied by commercial resistance. The Indian war, and the Algerine attack, originated both in commercial views, or Great Britain must stand without excuse for instigating the most horrid cruelties. The propositions before the committee were the strongest weapon America possessed, and would, more probably than any other, restore her to all her political and commercial rights. They professed themselves the friends of free trade, and declared the opinion that it would be to the general advantage, if all commerce was free. But this rule was not without its exceptions. The navigation act of Great Britain was a proof of the effect of one exception on the prosperity of national commerce. The effect produced by that act was equally rapid and extensive.

There is another exception to the advantages of a free trade, where the situation of a country is such with respect to another, that by duties on the commodities of that other, it shall not only invigorate its own means of rivalry, but draw from that other the hands employed in the production of those commodities. When such an effect can be produced, it is so much clear gain, and is consistent with the general theory of national rights.

The effect of leaving commerce to regulate itself is to submit it to the regulation of other nations. If the United States had a commercial intercourse with one nation only, and should permit a free trade, while that nation proceeded on a monopolizing system, would not the carrying trade be transferred to that nation, and with it, the maritime strength it confers be heaped upon a rival? Then, in the same proportion to the freedom granted to

the vessels of other nations in the United States, and to the burdens other nations impose on American vessels, will be the transfer of those maritime resources.

The propositions before the committee should be examined as they concern navigation, manufactures, and the just principles of discrimination that ought to prevail in their policy to nations having treaties with them.

With respect to navigation, it was conceded that they were not placed upon the same footing by the two nations with whom they had the greatest commercial intercourse. British vessels could bring the produce of all countries into any port of the United States; while American vessels could carry to the ports of Britain only their own commodities, and those only to a part of her dominions. From her ports in the West Indies they were entirely excluded.

To exhibit at a glance the effect of the British navigation act, it was sufficient to compare the quantity of American and British tonnage employed in their intercourse with each other. The former in 1790 amounted to 43,000 tons, and the latter to 240,000 tons. The effect of British policy would be further shown by showing the proportion of domestic tonnage employed at the same time in the intercourse with other European nations. With Spain the American was to the Spanish as five to one, with Portugal six to one, Netherlands fifteen to one, Denmark twelve to one, France five to one, Great Britain one to five. This ratio had by particular circumstances been somewhat changed. From calculations founded on the documents last introduced into the house, it appeared that, at present, the proportion of American to foreign tonnage employed in the American trade was, with Spain as sixteen to one, Portugal seventeen to one, Netherlands twenty-six to one, Denmark fifteen to one, Russia fourteen to one, France between four and five to one, and Great Britain one to three.

The situation of American commerce was the more mortifying when the nature and amount of their exports came to be considered. They were not only necessities of life, or necessities for manufactures, and therefore of life to the manufacturer, but their bulkiness gave them an advantage over the exports of every other country. If America, to increase her maritime strength, should secure to herself the transportation of her own commodities, leaving to other nations the transportation of theirs, it would greatly augment the proportion of her shipping and of her sailors.

In relation to manufactures, the regulations existing between the United States and Great Britain were not more equal. Out of the whole amount of manufactured articles imported into this country, which was stated in round numbers at fifteen millions, two hundred and ninety thousand dollars, Great Britain furnished thirteen millions, nine hundred and sixty thousand. In the same period, in the year 1789-90, the articles which the United States received from France, a country which actually consumed more of their produce, amounted only to one hundred and fifty-five thousand dollars. The balance of trade, at the same epoch, was greatly in favour of the United States with every other nation, and greatly against them with Britain. Although it might happen in some cases, that other advantages might be derived from an intercourse with a particular nation, which might compensate for an unfavourable balance of trade, it was impossible that this could happen in the intercourse with Great Britain. Other nations, however, viewed a balance of trade against them as a real evil; and Great Britain, in particular, was careful to prevent it. What then must be the feelings of a nation, between whom and the United States the most friendly relations existed, when she saw, not only the balance of trade against her, but that what was thus obtained from her, flowed in the same manner into the coffers of one of her most jealous rivals, and inveterate enemies?

The propriety of discriminating between nations having treaties with the United States, and those having none, was admitted in some states before the establishment of the present government, and was sanctioned by that house during their sittings in New York. It was the practice of nations to make such a discrimination. It was necessary to give value to treaties.

The disadvantages of depending on a single nation for articles of necessary consumption was strongly pressed; and it was added as an evil of most serious magnitude, more truly alarming than any other of its features, that this commercial dependence produced an influence in their councils which enabled it, the more inconvenient it became by its constant growth, to throw the more obstacles in the way of a necessary remedy.

They entertained no apprehensions of injurious consequences from adopting the proposed resolutions. The interests of Great Britain would not suffer her to retaliate: and the intercourse between the two countries would not be interrupted further than was required by the convenience and the interests of the United States. But if Great Britain should retaliate, the

effects of a commercial conflict would be felt by her, much more sensibly, than by the United States. Its effects would be felt in the shipping business, by the merchants, and above all by the manufacturer.

Calculations were offered, by comparing the total amount of British exports with those to the United States, to prove, that three hundred thousand British manufacturers would be suddenly thrown out of employment, by withdrawing the trade carried on between America and that country. In the complication of distress to which such a measure would reduce them, they would consider the United States as a natural asylum from wretchedness. But whether they remained in discontent at home, or sought their fortune abroad, the evil would be considered and felt by the British government as equally great, and they would surely beware of taking any step that might provoke it.

On the advantages of America in such a contest with a populous and manufacturing country, they dwelt with peculiar earnestness. She produced all the necessaries of life within herself, and could dispense with the articles received from others. But Great Britain, not producing them in sufficient abundance, was dependent on the United States for the supply of her most essential wants. Again, the manufacturer of that country was dependent on this for the sale of his merchandise which was to purchase his bread. Thus was produced a double dependence of Great Britain on the United States. She was also dependent on them for the raw materials which formed the basis of her manufactures. Her West Indies were almost completely dependent. This country furnished the best market for their productions, and was almost the only one which could supply them with the necessaries of life. The regulation excluding the provisions of other foreign countries was entitled to no consideration. It was of ancient date, and had remained untouched because there was no other foreign country by which provisions could be supplied.

That the commercial regulations of Great Britain were as favourable to the United States as to other nations, ought not to satisfy America. If other nations were willing to bear impositions, or were unable to retaliate, their examples were not worthy of imitation. America was in a condition to insist, and ought to insist, on perfect commercial equality.

It was denied that any real advantage was derived from the extensive credit given by the merchants of Great Britain. On the contrary, the use

made of British capital was pronounced a great political evil. It increased the unfavourable balance of trade, discouraged domestic manufactures, and promoted luxury. But its greatest mischief was, that it favoured a system of British influence, which was dangerous to their political security.

As the debate advanced, the expressions of exasperation against Britain became stronger; and occasionally allusions were made to those party questions which had long agitated the public mind, with a bitterness which marked their intimate connexion with the conduct of the United States to foreign countries.

It was said to be proper in deciding the question under debate, to take into view political, as well as commercial considerations. Ill will and jealousy had at all times been the predominant features of the conduct of England to the United States. That government had grossly violated the treaty of peace, had declined a commercial treaty, had instigated the Indians to raise the tomahawk and scalping knife against American citizens, had let loose the Algerines upon their unprotected commerce, and had insulted their flag, and pillaged their trade in every quarter of the world. These facts being notorious, it was astonishing to hear gentlemen ask how had Britain injured their commerce?

The conduct of France, on the contrary, had been warm and friendly. That nation respected American rights, and had offered to enter into commercial arrangements on the liberal basis of perfect reciprocity.

The period which Mr. Smith had taken as that at which the systems of the two nations should be compared with each other, was reprobated with peculiar severity. It was insinuated to proceed from a wish that the United States should directly countenance the restoration of despotism; and much regret was expressed that a distrust of the permanency of the French revolution should be avowed. It was hoped and believed that the present was the settled state of things; and that the old order of things was unsettled for ever: that the French revolution was as much more permanent than had been the French despotism, as was the great fabric of nature, than the petty plastic productions of art. To exclude the period since the revolution, would be to exclude some of the strongest evidences of the friendship of one nation, and the enmity of the other.

The animadversions which had been made on the report of the secretary of state were retorted with acrimony. It was declared that he would not

suffer by a comparison in point of intelligence, accuracy, and patriotism, either with the laborious compiler of the table produced by Mr. Smith, or with the gentleman who had been judiciously selected for its interpreter. Some explanations were given of the inaccuracies which had been alleged; and the facts omitted were declared to be immaterial circumstances, which, if inserted, would have swelled the report, without adding to the information it communicated.

In reply to the argument which stated that Great Britain did not, in common years, raise a sufficient quantity of grain for her own consumption, and would consequently afford an increasing market for American wheat and flour, it was remarked that this not only established the all important position of the dependence of that country on this, but suggested a very interesting reflection. It was that the continual increase of debt and paper machinery, will not produce a correspondent increase of ability in the nation to feed itself. That an infinity of paper will not produce an infinity of food.

In contrasting the ability of the two nations to support a commercial conflict, it was said, "Great Britain, tottering under the weight of a king, a court, a nobility, a priesthood, armies, navies, debts, and all the complicated machinery of oppression which serves to increase the number of unproductive, and lessen the number of productive hands; at this moment engaged in a foreign war; taxation already carried to the ultimatum of financial device; the ability of the people already displayed in the payment of taxes, constituting a political phenomenon; all prove the debility of the system, and the decrepitude of old age. On the other hand, the United States, in the flower of youth; increasing in hands; increasing in wealth; and, although an imitative policy had unfortunately prevailed in the erection of a funded debt, in the establishment of an army, the anticipation of a navy, [14] and all the paper machinery for increasing the number of unproductive, and lessening the number of productive hands; yet the operation of natural causes has, as yet, in some degree, countervailed their influence, and still furnish a great superiority in comparison with Great Britain."

An attempt was made to liken the present situation of America to that in which she stood at the commencement of her revolutionary war; and the arguments drawn from the inconvenience to which a privation of British manufactures would expose the people at large were answered by observing—"This was not the language of America at the time of the non-importation

association; this was not her language at the time of the declaration of independence. Whence then this change of American sentiment? Has America less ability than she then had? Is she less prepared for a national trial than she then was? This can not be pretended. There is, it is true, one great change in her political situation. America has now a funded debt: she had no funded debt at those glorious epochs. May not this change of sentiment, therefore, be looked for in her change of situation in this respect? May it not be looked for in the imitative sympathetic organization of our funds with the British funds? May it not be looked for in the indiscriminate participation of citizens and foreigners in the emoluments of the funds? May it not be looked for in the wishes of some to assimilate the government of the United States to that of Great Britain? or at least, in wishes for a more intimate connexion?

"If these causes exist, it is not difficult to find the source of the national debility. It is not difficult to see that the interests of the few, who receive and disburse the public contributions, are more respected than the interest of the great majority of the society, who furnish the contributions. It is not difficult to see that the government, instead of legislating for a few millions, is legislating for a few thousands; and that the sacredness of their rights is the great obstacle to a great national exertion."

In addition to Mr. Smith, of South Carolina, the resolutions were opposed by Mr. Smith, of Maryland, Mr. Goodhue, Mr. Lea, Mr. Dexter, Mr. Ames, Mr. Dayton, Mr. Hartley, Mr. Tracy, Mr. Hillhouse, Mr. Forest, Mr. Fitzsimmons, and Mr. Foster.

If, it was said, the United States had sustained political wrongs from Great Britain, they should feel as keenly as any persons for the prostrated honour of their country; but this was not the mode of redressing them. When that subject should be brought before congress, they would not be slow in taking such measures as the actual state of things might require. But they did not approve of retaliating injuries under the cloak of commercial regulations. Independent of other objections, it would derogate from the dignity of the American character.

The resolutions, it was said, ought to be contemplated commercially; and the influence they would probably have on the United States, deliberately weighed. If they were adopted, it ought to be because they would promote the interests of America, not because they would benefit one foreign nation,

and injure another. It was an old adage that there was no friendship in trade. Neither ought there to be any hatred. These maxims should not be forgotten in forming a judgment on the propositions before the committee. Their avowed objects were to favour the navigation and the manufactures of the United States, and their probable operation on these objects ought to be considered.

It had been said that the American tonnage ought to bear the same proportion to the foreign tonnage employed in her trade, as exists between the bulk of her exports and imports. But the correctness of this principle was not admitted. The fact was otherwise, and it was not believed to be an evil.

Great Britain carries for other nations from necessity. Her situation is calculated for navigation. Her country is fully peopled, so full that the ground is not sufficient to furnish bread for the whole. Instead, therefore, of ploughing the earth for subsistence, her subjects are obliged to plough the ocean. The defence of their coasts has been another cause which obliges them to abandon the more lucrative pursuits of agriculture, to provide for their defence. They have been compelled to sacrifice profit to safety.

The United States possessed a fertile, extensive, and unsettled country; and it might well be questioned how far their real interests would be promoted by forcing a further acceleration of the growth of their marine, by impelling their citizens from the cultivation of the soil to the navigation of the ocean. The measures already adopted had been very operative; and it was by no means certain that an additional stimulus would be advantageous. The increased duty on foreign tonnage, and on goods imported in foreign bottoms, had already been attended with sensible effects. In 1790, the American tonnage was one-half the whole tonnage employed in their trade: in 1791, it was three-fifths: in 1792, it had increased to two-thirds. This growth was believed to be sufficiently rapid. It was more rapid than the growth of British tonnage had ever been under the fostering care of their celebrated navigation act. Let the existing system be left to its natural operation, and it was believed that it would give to the United States that share in the carriage of their commodities, which it was their interest to take.

But if a different opinion prevailed, and it was conceived that additional encouragement ought to be given to navigation, then let the duty on all

foreign bottoms be increased, and let the particular disabilities to which American vessels are subjected in any country, be precisely retaliated. The discriminations proposed, instead of increasing American navigation, were calculated to encourage the navigation of one foreign nation at the expense of another.

The United States did not yet possess shipping sufficient for the exportation of their produce. The residue must reach a market in foreign bottoms, or rot upon their hands. They were advancing to a different state of things; but, in the mean time, they ought to pursue their interest, and employ those vessels which would best answer their purpose. The attempt to make it their interest to employ the vessels of France rather than those of Britain, by discriminating duties which must enhance the price of freight, was a premium to the vessels of the favourite nation, paid by American agriculture.

The navigation act of Great Britain had been made a subject of heavy complaint. But that act was not particularly directed against the United States. It had been brought into operation while they were yet colonies, and was not more unfavourable to them than to others. To its regulations, Great Britain was strongly attached; and it was not probable that America could compel her to relinquish them. Calculations were made on the proportion of British manufactures consumed in America, from which it was inferred that her trade, though important, was not sufficiently important to force that nation to abandon a system which she considered as the basis of her grandeur. In the contest, considerable injury would be unquestionably sustained; and nothing was perceived in the situation of the United States, which should induce them to stand forth the champions of the whole commercial world, in order to compel the change of a system, in which all other nations had acquiesced. But if they were to engage in such a contest, it was by a similar act, by opposing disabilities to disabilities, that it ought to be carried on. Upon this point, several members who were opposed to the resolutions, avowed an opinion favourable to an American navigation act, and expressed their willingness to concur in framing regulations which meet the prohibitions imposed on their vessels with corresponding prohibitions. Thus far they were ready to go; but they were not ready to engage in a contest injurious to themselves, for the benefit of a foreign nation.

Another avowed object of the resolutions was to favour the manufactures of the United States. But certainly it was not by discriminating duties, by endeavouring to shift commerce from one channel to another, that American manufactures were to be promoted. This was to be done by pursuing the course already adopted, by laying protecting duties on selected articles, in the manufacture of which America had made some progress; and by a prohibitory duty on others, of which a sufficient domestic supply could be afforded. But the proposed measure only went to the imposition of a tax on their own citizens, for the benefit of a foreign nation.

If the British market afforded an assortment of goods best suited to their consumption, and could give them cheaper, a prohibitory duty imposed upon those goods would only drive their citizens to seek them in another market, less able to supply their wants, and at a dearer rate. There was nothing in this tending to encourage manufactures.

If the United States were prepared to manufacture to the whole amount of their wants, the importation of all rival articles might be prohibited. But this they were not prepared to do. Their manufactures must advance by slow degrees; and they were not to enter into a measure of this kind, for the purpose of retaliating on a nation which had not commercially injured them.

The resolutions then were adapted to the encouragement neither of the navigation, nor the manufactures of the United States, but of a foreign nation. Their effect would obviously be to force trade to change its natural course, by discriminations against a nation which had in no instance discriminated against the United States, but had favoured them in many points of real importance. By what commercial considerations could such a system be recommended?

That it would be attended with great immediate inconveniences must be admitted; but for these, ample compensation, it had been said, was to be found in its remote advantages. These were, a diminution of American commerce with one nation, by its proportional augmentation with another; and a repeal of the navigation act, and of the colonial system of Great Britain.

On the subject of forcing trade from one nation to another, which is, of necessity, so complicated in principle, so various and invisible in consequence, the legislature should never act but with the utmost caution. They should constantly keep in view, that trade will seek its own markets,

find its own level, and regulate itself much better than it could be regulated by law. Although the government might embarrass it, and injure their own citizens, and even foreign nations, for a while, it would eventually rise above all the regulations they could make. Merchants, if left to themselves, would always find the best markets. They would buy as cheap and sell as dear as possible. Why drive them from those markets into others which were less advantageous? If trade with Britain was less free, or less profitable, than with France, the employment of coercive means to force it into French channels would be unnecessary. It would voluntarily run in them. That violence must be used in order to change its course, demonstrated that it was in its natural course.

It was extraordinary to hear gentlemen complaining of British restrictions on American commerce, and at the same time stating her proportion of that commerce as a national grievance, and that the trade was so free as to become an injury. The very circumstance that she retained so large a share of it, was evidence that it did not experience in her ports unusual burdens. Whenever greater advantages were offered by other countries, there would be no need of legislative interference to induce the merchants to embrace them. That portion of trade would go to each country, for which the circumstances of each were calculated. If Great Britain purchased more American produce than she consumed, it was because, all circumstances considered, it was the interest of America to sell her more than she consumed. While this interest continued, no mischief could result from the fact; when the cause should cease, the effect would cease also, without the intervention of the legislature.

It was very improbable that the resolutions under consideration would effect their other avowed object, a repeal of the British navigation act.

The season, it was said, was peculiarly unfavourable to such experiments. The internal convulsions of France had laid her manufactures in ruins. She was not in a condition to supply her own wants, much less those of the United States. The superb column erected at Lyons could furnish no stimulus to the industry of her manufacturers.

But the attempt to stop the natural intercourse between the United States and Great Britain, though incapable of producing on the latter the full effect which was desired, might inflict deep and lasting wounds on the most

essential interests of the former. The injuries which their agriculture would sustain from the measure, might be long and severely felt.

It had been proudly stated, that while America received articles which might be dispensed with, she furnished in return the absolute necessities of life; she furnished bread, and raw materials for manufactures. "One would think," said Mr. Tracy, "to hear the declarations in this house, that all men were fed at the opening of our hand; and, if we shut that hand, the nations starve, and if we but shake the fist after it is shut, they die." And yet one great objection to the conduct of Britain was, her prohibitory duty on the importation of bread stuff while it was under a certain price.

Nothing could be more deceptive than the argument founded on the nature of American exports. What, it was asked, would be done with the surplus produce of the United States? Was it to remain in the country, and rot upon the hands of those who raised it? If not, if it was to be exported, it would find its way to the place of demand. Food would search out those who needed it; and the raw material would be carried to the manufacturer whose labour could give it value.

But there was a much more serious aspect in which this subject ought to be placed. The products of America grew in other soils than hers. The demands for them might be supplied by other countries. Indeed, in some instances, articles usually obtained from the United States would be excluded by a fair competition with the same articles furnished by other countries. The discriminations made in their favour enabled them to obtain a preference in the British market. By withholding those which were of the growth of the United States, Great Britain would not lose the article, but America would lose the market; and a formidable rival would be raised up, who would last much longer than the resolutions under consideration. It is easy by commercial regulations to do much mischief, and difficult to retrieve losses. It is impossible to foresee all evils which may arise out of such measures; and their effects may last after the cause is removed.

The opponents of the resolutions persisted to consider the credit given by British merchants, as a solid advantage to any country which, like the United States, was defective in commercial capital; but they denied that, from that source, any political influence had arisen. "If," said Mr. Tracy, "we may argue from a great state, Virginia, to the union, this is not true; for although that state owes immense debts, her representatives come forward

with great spirit to bring Great Britain to her feet. The people to the eastward do not owe the English merchants, and are very generally opposed to these regulations. These facts must convince us that the credit given by Great Britain, does not operate to produce a fear, and a dependence, which can be alarming to government."

"If," said Mr. Dexter, "I have a predilection for any country besides my own, that bias is in favour of France, the place of my father's sepulture. No one, more than myself, laments the spasm of patriotism which convulses that nation, and hazards the cause of freedom; but I shall not suffer the torrent of love or hatred to sweep me from my post. I am sent neither to plead the cause of France nor England, but am delegated as a guardian of the rights and interests of America."

The speakers against the resolutions universally laboured to exclude from all weight in the decision on them, considerations which were foreign to the interests of the United States. "The discussion of this subject," said Mr. Tracy, "has assumed an appearance which must be surprising to a stranger, and painful in the extreme to ourselves. The supreme legislature of the United States is seriously deliberating, not upon the welfare of our own citizens, but upon the relative circumstances of two European nations; and this deliberation has not for its object, the relative benefits of their markets to us, but which form of government is best and most like our own, which people feel the greatest affection for us, and what measures we can adopt which will best humble one and exalt the other.

"The primary motive of these resolutions, as acknowledged by their defenders, is, not the increase of our agriculture, manufactures, or navigation, but to humble Great Britain and build up France; and although it is said our manufactures and navigation may receive some advantage, it is only mentioned as a substitute in case of failure as to the great object.

"The discussion in favour of these resolutions has breathed nothing but hostility and revenge against the English; and yet *they* put on the mild garb of commercial regulations. Legislatures, always cautious of attempting to force trade from its own channels and habits, should certainly be peculiarly cautious, when they do undertake such business, to set about it with temperance and coolness; but in this debate, we are told of the inexecution of a former treaty, withholding western posts, insults and dominations of a haughty people, that through the agency of Great Britain the savages are

upon us on one side, and the Algerines on the other. The mind is roused by a group of evils, and then called upon to consider a statement of duties on goods imported from foreign countries. If the subject is commercial, why not treat it commercially, and attend to it with coolness? if it is a question of political hostility, or of war, a firmer tone may be adopted."

On this side of the question, the conduct of Great Britain, if as hostile as it was represented to be, was spoken of with high indignation. "If," said Mr. Tracy, "these statements are founded in fact, I can not justify myself to my constituents, or my conscience, in saying the adoption of the regulations of commerce, a navigation act, or the whole parade of shutting ports, and freeing trade from its shackles, is in any degree calculated to meet or remedy the evil.

"Although I deprecate war as the worst of calamities for my country, yet I would inquire seriously whether we had on our part, fulfilled the treaty with Great Britain, and would do complete justice to them first. I would negotiate as long and as far as patience ought to go; and, if I found an obstinate denial of justice, I would then lay the hand of force upon the western posts, and would teach the world that the United States were no less prompt in commanding justice to be done them, than they had been patient and industrious in attempting to obtain it by fair and peaceable means. In this view of the subject I should be led to say, away with your milk and water regulations; they are too trifling to effect objects of such importance. Are the Algerines to be frightened with paper resolves, or the Indians to be subdued, or the western posts taken, by commercial regulations? when we consider the subject merely as a commercial one, it goes too far, and attempts too much; but when considered as a war establishment, it falls infinitely short of the mark, and does too little."

This earnest and interesting debate was protracted to a great length, and was conducted on both sides with great spirit and eloquence. At length, on the third of February, the question was taken on the first resolution, which was carried by a majority of five. The further consideration of the resolutions was then postponed until the first Monday in March.

This animated debate was succeeded by another, on a question which also brought into full view, the systems that were embraced by the opposite parties, on some of those great national subjects which give a character to an administration.

On the second of January, a resolution was agreed to in the house of representatives declaring "that a naval force adequate to the protection of the commerce of the United States against the Algerine corsairs, ought to be provided." The force proposed was to consist of six frigates; four of forty-four, and two of thirty-six guns.

This measure was founded on the communications of the President, representing the improbability of being able to negotiate a peace with the dey of Algiers; and on undoubted information that the corsairs of that regency had, during their first short cruise in the Atlantic, captured eleven American merchantmen, and made upwards of one hundred prisoners; and were preparing to renew their attack on the unprotected vessels of the United States.

In every stage of its progress this bill was most strenuously opposed. Debates on the subject of a navy.

The measure was viewed simply as a present protection to commerce, and then as the commencement of a permanent naval establishment. In both characters it was reprobated with extreme severity.

As a measure of protection, it was declared to be altogether incompetent to the attainment of its object, because the force contemplated was insufficient, and because it could not be brought into immediate use. The measure, therefore, would be totally inefficacious.

But the object might be effected by other means, more eligible, and less expensive. By proper management, and a due attention to time and circumstances, a peace might be procured with money.

Nations possessing a naval force greatly superior to the proposed armament, had found it to their advantage to purchase the friendship of the Algerines. That mode of procuring peace was recommended both by its efficacy, and its economy. Unless the object was obtained, the money would not be expended.

Another mode of giving security to their commerce, preferable to the plan in the bill, was to purchase the protection of foreign powers. This might be acquired at a less expense than would be incurred in fitting out the proposed armament, and its utility would be immediate.

But the measure was also to be considered as the commencement of a permanent navy. The question which this view of it presented, was one of

the most important that could engage the consideration of the house. The adoption of the principle would involve a complete dereliction of the policy of discharging the public debt. History afforded no instance of a nation which continued to increase its navy, and at the same time to decrease its debt.

To the expensiveness of the navy system were ascribed the oppression under which the people of England groaned, the overthrow of the French monarchy, and the dangers which threatened that of Great Britain. The expensiveness of the government was the true ground of the oppression of the people. The king, the nobility, the priesthood, the *army*, and above all, the navy. All this machinery lessens the number of productive, and increases the number of unproductive hands in the nation.

The United States had already advanced full far enough in this system. In addition to the civil list, they had funded a debt on the principles of duration, had raised an army at an immense expense, and now a proposition was made for a navy.

The system of governing by debts, was the most refined system of tyranny. It seemed to be a contrivance devised by politicians to succeed the old system of feudal tenures. Both were tyrannical, but the objects of their tyranny were different. The one operated on the person, the other operates on the pockets of the individual. The feudal lord was satisfied with the acknowledgment of the tenant that he was a slave, and the rendition of a pepper corn as an evidence of it; the product of his labour was left for his own support. The system of debts affords no such indulgence. Its true policy is to devise objects of expense, and to draw the greatest possible sum from the people in the least visible mode. No device can facilitate the system of debts and expense so much as a navy; and they should hold the liberty of the American people at a lower rate, should this policy be adopted.

Another great objection to the establishment of a navy was, that until the United States should be able to contend with the great maritime powers on the ocean, it would be a hostage, to its full value, for their good behaviour. It would increase rather than lessen their dependence.

In reply, it was said that if it had been the intention of the house to incur a vast expense in the establishment of a navy for vain parade, there might be force in some of the objections which had been made. But this was not the

case. It was a measure, not of choice, but of necessity. It was extorted by the pressure of unavoidable events.

It being universally admitted that their commerce required protection against the Algerine corsairs, the question was, simply, whether the plan proposed in the bill was the best mode of affording that protection.

To decide this question, it would be proper to consider the substitutes which had been offered; and then to review the objections which had been made to the measure.

The substitutes were, first, to purchase a peace; and secondly, to subsidize other nations to protect commerce.

On the first substitute, it was said that the late communications must satisfy every person who had attended to them, that all hope of purchasing a peace must be abandoned, unless there was a manifestation of some force which might give effect to negotiation. So long as the vessels of the United States remained an easy and tempting prey to the cupidity of those corsairs, it would be vain to expect that they would sell a peace for the price the government would be willing to give, or that a peace would be of any duration. If the executive had experienced such difficulties while the Algerine cruisers had captured only one or two vessels, and were confined to the Mediterranean by a Portuguese squadron, how much less prospect was there of success after they had captured a considerable number of ships, were likely to capture many more, and were at liberty to cruise on the Atlantic to the very coasts of the United States? Even that little prospect of success would be diminished, when the dey of Algiers should understand that the United States would take no measures to protect their trade, and were afraid of the expense of a small armament.

It was to be understood that they did not rely solely on the operations of the armament. They still looked forward to negotiation, and were willing to provide the means for purchasing a peace. But the former measure was necessary to give success to the latter, and the armament might be employed to advantage should negotiation fail.

The other substitute was to subsidize foreign powers. The national dishonour of depending upon others for that protection which the United States were able to afford themselves, was strongly urged. But there were additional objections to this project. Either the nations in contemplation were at peace or at war with the regency of Algiers. If the former, it was not

to be expected that they would relinquish that peace for any indemnification the United States could make them. If the latter, they had sufficient inducements to check the depredations of their enemies without subsidies. Such a protection would be hazardous, as it would be, at any time, in the power of the nation that should be employed, to conclude a truce with Algiers, and leave the trade of the United States at the mercy of her corsairs. While the expense of protection was perpetually to be incurred, it would never furnish the strength which that expense ought to give.

With a navy of her own, America might co-operate to advantage with any power at war with Algiers, but it would be risking too much to depend altogether on any foreign nation.

To the argument that the force was incompetent to the object, it was answered, that, from the documents before them, and from the diligent inquiries of a large committee, the number and strength of the Algerine corsairs had been ascertained, and the armament contemplated in the bill was believed to be sufficient. If gentlemen thought differently, it was surprising that they did not move to augment it.

The expense of the frigates had been strongly urged. But the saving in insurance, in ships and cargoes, and in the ransom of seamen, was more than equivalent to this item. "But are not the slavery of our fellow citizens, and the national disgrace resulting from it, to be taken into the account? these are considerations beyond all calculation. Who can, after reading the affecting narratives of the unfortunate, sit down contented with cold calculations and syllogisms? their narratives ought to excite every possible exertion, not only to procure the release of the captured, but to prevent the increase of the number of these unhappy victims."

That a bill providing six frigates, to exist during the war with the Algerines, should excite apprehensions of a large permanent navy, and of an immense debt, was truly astonishing. But even if the bill had not contained a clause enabling the President to discontinue the armament provided peace should be concluded with the regency of Algiers, the weight of the objection was denied. America was peculiarly fitted for a navy; she abounded in all kinds of naval resources, and had within herself, those means which other nations were obliged to obtain from abroad. Her situation, and the dispositions of a considerable proportion of her citizens, evinced still more the propriety of a naval establishment. Perhaps the

country was not yet mature for such an establishment to any great extent. But the period was not far distant when it would be. The United States had an increasing population, much individual wealth, and considerable national resources. It was not believed that the expense of equipping a small naval armament for the protection of their commerce, would be insupportable.

It was, however, matter of surprise, that gentlemen who had deemed the improvement of American navigation, as a source of defence, an object of so much importance as to be anxious to wage an immediate commercial war with Great Britain for that purpose, should avow such a fixed determination against resorting to that resource in any degree whatever, under circumstances the most urgent.

The original resolution was carried only by a majority of two voices; but as the bill advanced, several members who were accustomed to vote in the opposition gave it their support; and, on the final question, a majority of eleven appeared in its favour. The other branch of the legislature concurred, and it received the cordial assent of the President.

Pending these discussions, the irritations in which they commenced were greatly aggravated by accounts, that captures of American vessels by British cruisers were made to an extent altogether unprecedented; and early in March, an authentic paper was received which proved that those captures were not unauthorized.

On the sixth of November, 1793, additional instructions had been issued to the ships of war and privateers of Great Britain, requiring them to stop and detain all ships, laden with goods the produce of any colony belonging to France, or carrying provisions or other supplies to any such colony, and to bring the same, with their cargoes, to legal adjudication, in the British courts of admiralty.

These instructions made a serious impression on the most reflecting and moderate men in the United States. It was believed that they originated in a spirit of hostility which must lead to war; and that it had now become the part of prudence to prepare for that event.

On the 12th of March, Mr. Sedgewick moved several resolutions, the objects of which were to raise a military force, and to authorize the President to lay an embargo. The armament was to consist of fifteen thousand men, who should be brought into actual service in case of war with any European power, but not until war should break out. In the mean

time, they were to receive pay while assembled for the purpose of discipline, which was not to exceed twenty-four days in each year.

After stating the motives which led to the introduction of these resolutions, they were laid on the table for the consideration of the members. Two days afterwards, a motion was made to take up that which related to an embargo; but this motion was negatived for the purpose of resuming the consideration of the commercial regulations which had been offered by Mr. Madison. On the motion of Mr. Nicholas, those resolutions were amended so as to subject the manufactures of Great Britain alone, instead of those of all nations having no commercial treaties with the United States, to the proposed augmentation of duties. They were again debated with great earnestness, but no decision on them was made.

In addition to the objections urged against them as forming a commercial system in time of peace, they were said to be particularly inapplicable to the present moment. If, as was believed, the United States were about to be forced into a war, the public counsels ought to be directed to measures of defence. In that event, the resolutions would, at best, be useless. But the greater the danger of war, the more incumbent was it on the government to unite public opinion in support of it; and this would best be effected by observing a line of conduct which would furnish no just cause of hostility. The commercial discriminations proposed were of a hostile and irritating nature, might render war certain, would be considered by many as unnecessary, and might impair that unanimity in which the great strength of the country consisted. It was submitted to the gentlemen to decide whether it was wise to press their system through, with so small a majority as was in its favour.

The resolutions were defended on the principle, that though not in themselves contributing to the national defence, they would not prevent the adoption of such other measures as the state of things might render necessary. If war should take place, they could do no harm. But war must at some time be succeeded by peace: and they would form a valuable basis for negotiation.[\[15\]](#)

An embargo law.

On the 21st of March, Mr. Sedgewick's motion authorizing the President to lay an embargo was negatived by a majority of two voices; but in a few days, the consideration of that subject was resumed, and a resolution

passed, prohibiting all trade from the United States to any foreign port or place for the space of thirty days, and empowering the President to carry the resolution into effect.

This resolution was accompanied with vigorous provisional measures for defence, respecting the adoption of which, no considerable division of sentiment was avowed.

While the measures of congress indicated that expectation of war, a public document made its appearance which seemed to demonstrate that Great Britain also was preparing for that event. This was the answer of Lord Dorchester, on the 10th of February, to a speech delivered by the deputies of a great number of Indian tribes assembled at Quebec. In this answer, his lordship had openly avowed the opinion, founded, as he said, on the conduct of the American people, that a war between Great Britain and the United States, during the present year, was probable, and that a new line between the two nations must then be drawn by the sword.

This document was not authentic; but it obtained general belief, and contributed to confirm the opinion that war was scarcely to be avoided.

On the 27th of March, Mr. Dayton moved a resolution for sequestering all debts due to British subjects, and for taking means to secure their payment into the treasury, as a fund out of which to indemnify the citizens of the United States for depredations committed on their commerce by British cruisers, in violation of the laws of nations.

The debate on this resolution was such as was to be expected from the irritable state of the public mind. The invectives against the British nation were uttered with peculiar vehemence, and were mingled with allusions to the exertions of the government for the preservation of neutrality, censuring strongly the system which had been pursued.

Before any question was taken on the proposition for sequestering British debts, and without a decision on those proposed by Mr. Madison, Mr. Clarke moved a resolution, which in some degree suspended the commercial regulations that had been so earnestly debated. This was to prohibit all intercourse with Great Britain until her government should make full compensation for all injuries done to the citizens of the United States by armed vessels, or by any person or persons acting under the authority of the British king; and until the western posts should be delivered up.[\[16\]](#)

On the fourth of April, before any decision was made on the several propositions which have been stated, the President laid before congress a letter just received from Mr. Pinckney, the minister of the United States at London, communicating additional instructions to the commanders of British armed ships, which were dated the eighth of January. These instructions revoked those of the sixth of November; and, instead of bringing in for adjudication all neutral vessels trading with the French islands, British cruisers were directed to bring in those only which were laden with cargoes the produce of the French islands, and were on a direct voyage from those islands to Europe.

The letter detailed a conversation with Lord Grenville on this subject, in which his lordship explained the motives which had originally occasioned the order of the sixth of November, and gave to it a less extensive signification than it had received in the courts of vice admiralty.

It was intended, he said, to be temporary, and was calculated to answer two purposes. One was, to prevent the abuses which might take place in consequence of the whole of the St. Domingo fleet having gone to the United States; the other was, on account of the attack designed upon the French West India islands by the armament under Sir John Jarvis and Sir Charles Grey; but it was now no longer necessary to continue the regulations for those purposes. His lordship added, that the order of the sixth of November did not direct the confiscation of all vessels trading with the French islands, but only that they should be brought in for legal adjudication; and he conceived that no vessel would be condemned under it, which would not have been previously liable to the same sentence.

The influence of this communication on the party in the legislature which was denominated federal, was very considerable. Believing that the existing differences between the two nations still admitted of explanation and adjustment, they strenuously opposed all measures which were irritating in their tendency, or which might be construed into a dereliction of the neutral character they were desirous of maintaining; but they gave all their weight to those which, by putting the nation in a posture of defence, prepared it for war, should negotiation fail.

On the opposite party, no change of sentiment or of views appears to have been produced. Their system seems to have been matured, and not to have originated in the feelings of the moment. They adhered to it therefore

with inflexible perseverance; but seemed not anxious to press an immediate determination of the propositions which had been made. These propositions were discussed with great animation; but, notwithstanding an ascertained majority in their favour, were permitted to remain undecided, as if their fate depended on some extrinsic circumstance.

Meanwhile, great exertions were made to increase the public agitation, and to stimulate the resentments which were felt against Great Britain. The artillery of the press was played with unceasing fury on the minority of the house of representatives; and the democratic societies brought their whole force into operation. Language will scarcely afford terms of greater outrage than were employed against those who sought to stem the torrent of public opinion, and to moderate the rage of the moment. They were denounced as a British faction, seeking to impose chains on their countrymen. Even the majority was declared to be but half roused; and to show little of that energy and decision which the crisis required.

Unequivocal evidence, it was said, had been obtained of the liberticide intentions of Great Britain; and only the successes of freedom against tyranny, the triumphs of their magnanimous French brethren over slaves, had been the means of once more guaranteeing the independence of this country. The glorious example of France ought to animate the American people to every exertion to raise their prostrate character; and every tie of gratitude and interest should lead them to cement their connexion with that great republic. The proclamation of neutrality, though admitted to have originated in the best motives on the part of the President, was declared to be not only questionable in a constitutional point of view, but eventually to have proved impolitic. Being falsely construed by Great Britain into a manifestation of a pusillanimous disposition, it served to explain the aggressions of that nation. Experience now urged the abandonment of a line of conduct, which had fed the pride and provoked the insults of their unprincipled and implacable enemy; and was derogatory to the honour, inconsistent with the interest, and hostile to the liberties of their country.

Their tameness under British aggressions was declared to furnish just cause of offence to France; since every infringement of right submitted to by a neutral, inflicted a correspondent injury on the nation at war with the offending power.

The proceedings of the legislature continued to manifest a fixed purpose to pursue the system which had been commenced; and the public sentiment seemed to accord with that system. That the nation was advancing rapidly to a state of war, was firmly believed by many intelligent men, who doubted the necessity, and denied the policy of abandoning the neutral position which had been thus long maintained. In addition to the extensive calamities which must, in any state of things, result to the United States from a rupture with a nation which was the mistress of the ocean, and which furnished the best market for the sale of their produce, and the purchase of manufactures of indispensable necessity, there were considerations belonging exclusively to the moment, which, though operating only in a narrow circle, were certainly entitled to great respect.

That war with Britain, during the continuance of the passionate and almost idolatrous devotion of a great majority of the people to the French republic, would throw America so completely into the arms of France as to leave her no longer mistress of her own conduct, was not the only fear which the temper of the day suggested. That the spirit which triumphed in that nation, and deluged it with the blood of its revolutionary champions, might cross the Atlantic, and desolate the hitherto safe and peaceful dwellings of the American people, was an apprehension not so entirely unsupported by appearances, as to be pronounced chimerical. With a blind infatuation, which treated reason as a criminal, immense numbers applauded a furious despotism, trampling on every right, and sporting with life, as the essence of liberty; and the few who conceived freedom to be a plant which did not flourish the better for being nourished with human blood, and who ventured to disapprove the ravages of the guillotine, were execrated as the tools of the coalesced despots, and as persons who, to weaken the affection of America for France, became the calumniators of that republic. Already had an imitative spirit, captivated with the splendour, but copying the errors of a great nation, reared up in every part of the continent self created corresponding societies, who, claiming to be the people, assumed a control over the government, and were loosening its bands. Already were the mountain,[\[17\]](#) and a revolutionary tribunal, favourite toasts; and already were principles familiarly proclaimed which, in France, had been the precursors of that tremendous and savage despotism, which, in the name of the people, and by the instrumentality of affiliated societies, had spread its terrific sway over that fine country, and

had threatened to extirpate all that was wise and virtuous. That a great majority of those statesmen who conducted the opposition would deprecate such a result, furnished no security against it. When the physical force of a nation usurps the place of its wisdom, those who have produced such a state of things no longer control it.

These apprehensions, whether well or ill founded, produced in those who felt them, an increased solicitude for the preservation of peace. Their aid was not requisite to confirm the judgment of the President on this interesting subject. Fixed in his purpose of maintaining the neutrality of the United States, until the aggressions of a foreign power should clearly render neutrality incompatible with honour; and conceiving, from the last advices received from England, that the differences between the two nations had not yet attained that point, he determined to make one decisive effort, which should either remove the ostensible causes of quarrel, or demonstrate the indisposition of Great Britain to remove them. This determination was executed by the nomination of an envoy extraordinary to his Britannic majesty, which was announced to the senate on the 16th of April in the following terms:

"The communications which I have made to you during your present session, from the despatches of our minister in London, contain a serious aspect of our affairs with Great Britain. But as peace ought to be pursued with unremitted zeal, before the last resource which has so often been the scourge of nations, and can not fail to check the advanced prosperity of the United States, is contemplated, I have thought proper to nominate, and do hereby nominate John Jay, as envoy extraordinary of the United States, to his Britannic majesty.

Mr. Jay appointed envoy extraordinary to Great Britain.

"My confidence in our minister plenipotentiary in London continues undiminished. But a mission like this, while it corresponds with the solemnity of the occasion, will announce to the world a solicitude for the friendly adjustment of our complaints, and a reluctance to hostility. Going immediately from the United States, such an envoy will carry with him a full knowledge of the existing temper and sensibility of our country; and will thus be taught to vindicate our rights with firmness, and to cultivate peace with sincerity."

To those who believed the interests of the nation to require a rupture with England, and a still closer connexion with France, nothing could be more unlooked for, or more unwelcome, than this decisive measure. That it would influence the proceedings of congress could not be doubted; and it would materially affect the public mind was probable. Evincing the opinion of the executive that negotiation, not legislative hostility, was still the proper medium for accommodating differences with Great Britain, it threw on the legislature a great responsibility, if they should persist in a system calculated to defeat that negotiation. By showing to the people that their President did not yet believe war to be necessary, it turned the attention of many to peace; and, by suggesting the probability, rekindled the almost extinguished desire, of preserving that blessing.

Scarcely has any public act of the President drawn upon his administration a greater degree of censure than this. That such would be its effect, could not be doubted by a person who had observed the ardour with which opinions that it thwarted were embraced, or the extremity to which the passions and contests of the moment had carried all orders of men. But it is the province of real patriotism to consult the utility, more than the popularity of a measure; and to pursue the path of duty, although it may be rugged.

In the senate, the nomination was approved by a majority of ten voices; and, in the house of representatives, it was urged as an argument against persevering in the system which had been commenced. On the 18th of April, a motion for taking up the report of the committee of the whole house on the resolution for cutting off all commercial intercourse with Great Britain, was opposed, chiefly on the ground that, as an envoy had been nominated to the court of that country, no obstacle ought to be thrown in his way. The adoption of the resolution would be a bar to negotiation, because it used the language of menace, and manifested a partiality to one of the belligerents which was incompatible with neutrality. It was also an objection to the resolution that it prescribed the terms on which alone a treaty should be made, and was consequently an infringement of the right of the executive to negotiate, and an indelicacy to that department.

In support of the motion, it was said, that the measure was strictly within the duty of the legislature, they having solely the right to regulate commerce. That, if there was any indelicacy in the clashing of the

proceedings of the legislature and executive, it was to the latter, not to the former, that this indelicacy was to be imputed. The resolution which was the subject of debate had been several days depending in the house, before the nomination of an envoy extraordinary had been made. America having a right, as an independent nation, to regulate her own commerce, the resolution could not lead to war; on the contrary, it was the best means of bringing the negotiation to a happy issue.

The motion for taking up the report was carried in the affirmative. Some embarrassment was produced by an amendment offered by Mr. Smith of South Carolina, who proposed to add another condition to the restoration of intercourse between the two countries. This was, compensation for the negroes carried away in violation of the treaty of peace. The house avoided this proposition by modifying the resolutions so as to expunge all that part of it which prescribed the conditions on which the intercourse might be restored. A bill was brought in conforming to this resolution, and carried by a considerable majority. In the senate, it was lost by the casting vote of the Vice President. The system which had been taken up in the house of representatives was pressed no further.

The altercations between the executive and the minister of the French republic, had given birth to many questions which had been warmly agitated in the United States, and on which a great diversity of sentiment prevailed.

The opinion of the administration that the relations produced by existing treaties, and indeed by a state of peace independent of treaty, imposed certain obligations on the United States, an observance of which it was the duty of the executive to enforce, had been reprobated with extreme severity. It was contended, certainly by the most active, perhaps by the most numerous part of the community, not only that the treaties had been grossly misconstrued, but also that, under any construction of them, the interference of the executive acquired the sanction of legislative authority; that, until the legislature should interpose and annex certain punishments to infractions of neutrality, the natural right possessed by every individual to do any act not forbidden by express law, would furnish a secure protection against those prosecutions which a tyrannical executive might direct for the crime of disregarding its illegal mandates. The right of the President to call out the militia for the detention of privateers about to violate the rules he had

established, was, in some instances, denied; attempts to punish those who had engaged, within the United States, to carry on expeditions against foreign nations, were unsuccessful; and a grand jury had refused to find a bill of indictment against Mr. Duplaine, for having rescued, with an armed force, a vessel which had been taken into custody by an officer of justice. Of consequence, however decided the opinion of the executive might be with respect to its constitutional powers and duties, it was desirable to diminish the difficulties to be encountered in performing those duties, by obtaining the sanction of the legislature to the rules which had been established for the preservation of neutrality. The propriety of legislative provision for the case was suggested by the President at the commencement of the session, and a bill was brought into the senate, "in addition to the act for punishing certain crimes against the United States." This bill prohibited the exercise, within the American territory, of those various rights of sovereignty which had been claimed by Mr. Genet, and subjected any citizen of the United States who should be convicted of committing any of the offences therein enumerated, to fine and imprisonment. It also prohibited the condemnation and sale within the United States, of prizes made from the citizens or subjects of nations with whom they were at peace.

Necessary as this measure was, the whole strength of the opposition in the senate was exerted to defeat it. Motions to strike out the most essential clause were successively repeated, and each motion was negatived by the casting vote of the Vice President. It was only by his voice that the bill finally passed.[\[18\]](#)

In the house of representatives also, this bill encountered a serious opposition. The sections which prohibited the sale of prizes in the United States, and that which declared it to be a misdemeanour to accept a commission from a foreign power within the territory of the United States, to serve against a nation with whom they were at peace, were struck out; but that which respected the acceptance of commissions was afterwards reinstated.

In the course of the session, several other party questions were brought forward, which demonstrated, at the same time, the strength, and the zeal of the opposition. The subject of amending the constitution was revived; and a resolution was agreed to in both houses for altering that instrument, so far

as to exempt states from the suits of individuals. While this resolution was before the senate, it was also proposed to render the officers of the bank, and the holders of stock, ineligible to either branch of the legislature; and this proposition, so far as respected officers in the bank, was negatived by a majority of only one vote.[\[19\]](#) A bill to sell the shares of the United States in the bank was negatived by the same majority.

Inquiry into the conduct of the secretary of the treasury terminates honourably to him.

In both houses inquiries were set on foot respecting the treasury department, which obviously originated in the hope of finding some foundation for censuring that officer, but which failed entirely. In a similar hope, as respected the minister of the United States at Paris, the senate passed a vote requesting the President to lay before that body, his correspondence with the French republic, and also with the department of state.[\[20\]](#)

The preparations for an eventual war, which the aspect of public affairs rendered it imprudent to omit, and a heavy appropriation of a million, which, under the title of foreign intercourse, was made for the purpose of purchasing peace from Algiers, and liberating the Americans who were in captivity, created demands upon the treasury which the ordinary revenues were insufficient to satisfy.

That the imposition of additional taxes had become indispensable, was a truth too obvious to be controverted with the semblance of reason; but the subjects of taxation afforded at all times an ample field for discussion.

The committee of ways and means reported several resolutions for extending the internal duties to various objects which were supposed capable of bearing them, and also proposed an augmentation of the impost on foreign goods imported into the United States, and a direct tax. It was proposed to lay a tax on licenses to sell wines and spirituous liquors, on sales at auction, on pleasure carriages, on snuff manufactured, and on sugar refined in the United States, and also to lay a stamp duty.

Internal taxes laid.

The direct tax was not even supported by the committee. Only thirteen members voted in its favour. The augmentation of the duty on imposts met with no opposition. The internal duties were introduced in separate bills, that each might encounter only those objections which could be made to

itself; and that the loss of one might not involve the loss of others. The resolution in favour of stamps was rejected: the others were carried, after repeated and obstinate debates. The members of the opposition were in favour of raising the whole sum required by additional burdens on trade, and by direct taxes.

While these measures were depending before congress, memorials and resolutions against them were presented by the manufacturers, which were expressed in terms of disrespect that evidenced the sense in which numbers understood the doctrine, *that the people were sovereign, and those who administered the government, their servants*. This opportunity for charging the government with tyranny and oppression, with partiality and injustice, was too favourable not to be embraced by the democratic societies, those self proclaimed watchful sentinels over the rights of the people. A person unacquainted with those motives which, in the struggle of party, too often influence the conduct of men, would have supposed a direct tax to be not only in itself more eligible, but to be more acceptable to the community than those which were proposed. To the more judicious observers of the springs of human action, the reverse was known to be the fact.



George Washington's Bedroom at Mount Vernon

It was in this room that Washington expired, December 14, 1799. Two days previously he was exposed in the saddle, for several hours, to cold and snow, and contracted acute laryngitis for which he was ineffectually treated in the primitive manner of the period. A short time before ceasing to breathe, he said: "I die hard; but I am not afraid to go. I believed from my first attack that I should not survive it. My breath cannot last long." A little later he murmured: "I feel myself going. I thank you for your attentions; but I pray you to take no more trouble about me. Let me go off quietly. I cannot last long." After giving some instructions about his burial he became easier, felt his own pulse, and died without a struggle.

The friends of the administration supported the proposed system against every objection to it, because they believed it to be more productive, and less unpopular, than a direct tax. It is not impossible that what recommended the system to one party, might constitute a real objection to it with those who believed that the public interest required a change^[21] in the public councils.

On the ninth of June, this active and stormy session was closed by an adjournment to the first Monday in the succeeding November.

Congress adjourns.

The public was not less agitated than the legislature had been, by those interesting questions which had occasioned some of the most animated and eloquent discussions that had ever taken place on the floor of the house of representatives. Mr. Madison's resolutions especially, continued to be the theme of general conversation; and, for a long time, divided parties throughout the United States. The struggle for public opinion was ardent; and each party supported its pretensions, not only with those arguments which each deemed conclusive, but also by those reciprocal criminations which, perhaps, each, in part, believed.

The opposition declared that the friends of the administration were an aristocratic and corrupt faction, who, from a desire to introduce monarchy, were hostile to France, and under the influence of Britain; that they sought every occasion to increase expense, to augment debt, to multiply the public burdens, to create armies and navies, and, by the instrumentality of all this machinery, to govern and enslave the people: that they were a paper nobility, whose extreme sensibility at every measure which threatened the

funds, induced a tame submission to injuries and insults, which the interests and honour of the nation required them to resist.

The friends of the administration retorted, that the opposition was prepared to sacrifice the best interests of their country on the altar of the French revolution. That they were willing to go to war for French, not for American objects: that while they urged war they withheld the means of supporting it, in order the more effectually to humble and disgrace the government: that they were so blinded by their passion for France as to confound crimes with meritorious deeds, and to abolish the natural distinction between virtue and vice: that the principles which they propagated, and with which they sought to intoxicate the people, were, in practice, incompatible with the existence of government. That they were the apostles of anarchy, not of freedom; and were consequently not the friends of real and rational liberty.

CHAPTER III.

Genet recalled.... Is succeeded by Mr. Fauchet.... Gouverneur Morris recalled, and is succeeded by Mr. Monroe.... Kentucky remonstrance.... Intemperate resolutions of the people of that state.... General Wayne defeats the Indians on the Miamis.... Insurrection in the western parts of Pennsylvania.... Quelled by the prompt and vigorous measures of the government.... Meeting of Congress.... President's speech.... Democratic societies.... Resignation of Colonel Hamilton.... Is succeeded by Mr. Wolcott.... Resignation of General Knox.... Is succeeded by Colonel Pickering.... Treaty between the United States and Great Britain.... Conditionally ratified by the President.... The treaty unpopular.... Mr. Randolph resigns.... Is succeeded by Colonel Pickering.... Colonel M'Henry appointed secretary of war.... Charge against the President rejected.... Treaty with the Indians north-west of the Ohio.... With Algiers.... With Spain.... Meeting of Congress.... President's speech.... Mr. Adet succeeds Mr. Fauchet.... The house of representatives call upon the President for papers relating to the treaty with Great Britain.... He declines sending them.... Debates upon the treaty making power.... Upon the bill for making appropriations to carry into execution the treaty with Great Britain.... Congress adjourns.... The President endeavours to procure the liberation of Lafayette.

1794

That the most material of those legislative measures on which the two great parties of the United States were divided, might be presented in one unbroken view, some transactions have been passed over, which will now be noticed.

In that spirit of conciliation, which adopts the least irritating means for effecting its objects, the President had resolved to bear with the insults, the resistance, and the open defiance of Mr. Genet, until his appeal to the friendship and the policy of the French republic should be fairly tried. Early in January, this resolution was shaken, by fresh proofs of the perseverance

of that minister, in a line of conduct, not to be tolerated by a nation, which has not surrendered all pretensions to self government. Mr. Genet had meditated, and deliberately planned, two expeditions to be carried on from the territories of the United States, against the dominions of Spain; and had, as minister of the French republic, granted commissions to citizens of the United States, who were privately recruiting troops for the proposed service. The first was destined against the Floridas, and the second against Louisiana. The detail of the plans had been settled. The pay, rations, clothing, plunder, and division of the conquered lands to be allotted to the military; and the proportion of the acquisitions to be reserved to the republic of France, were arranged. The troops destined to act against the Floridas were to be raised in the three southern states, were to rendezvous in Georgia, were to be aided by a body of Indians and were to co-operate with the French fleet, should one arrive on the coast. This scheme had been the subject of a correspondence between the executive and Mr. Genet, but was in full progress in the preceding December, when by the vigilance of the legislature of South Carolina, it was more particularly developed, and some of the principal agents were arrested.

About the same time, intelligence less authentic, but wearing every circumstance of probability, was received, stating that the expedition against Louisiana, which was to be carried on down the Ohio from Kentucky, was in equal maturity.

Genet recalled.

This intelligence seemed to render a further forbearance incompatible with the dignity, perhaps with the safety of the United States. The question of superseding the diplomatic functions of Mr. Genet, and depriving him of the privileges attached to that character, was brought before the cabinet; and a message to congress was prepared, communicating these transactions, and avowing a determination to adopt that measure within —— days, unless, in the mean time, one or the other house should signify the opinion that it was not advisable so to do. In this state, the business was arrested by receiving a letter from Mr. Morris, announcing, officially, the recall of this rash minister.

Is succeeded by Mr. Fauchet.

Mr. Fauchet, the successor of Mr. Genet, arrived in February, and brought with him strong assurances that his government totally disapproved the

conduct of his predecessor. He avowed a determination to avoid whatever might be offensive to those to whom he was deputed, and a wish to carry into full effect the friendly dispositions of his nation towards the United States. For some time, his actions were in the spirit of these professions.

Gouverneur Morris is recalled and is succeeded by Mr. Monroe.

Not long after the arrival of Mr. Fauchet, the executive government of France requested the recall of Mr. Morris. With this request the president immediately complied; and Mr. Monroe, a senator from Virginia, who had embraced with ardour the cause of the French republic, and was particularly acceptable to the party in opposition, was appointed to succeed him.

The discontents which had been long fomented in the western country, had assumed a serious and alarming appearance.

Kentucky remonstrance.

A remonstrance to the President and congress of the United States from the inhabitants of Kentucky, respecting the navigation of the Mississippi, was laid before the executive, and each branch of the legislature. The style of this paper accorded well with the instructions under which it had been prepared.

In the language of an offended sovereign people, injured by the maladministration of public servants, it demanded the use of the Mississippi as a natural right which had been unjustly withheld; and charged the government, openly, with being under the influence of a local policy, which had prevented its making one single real effort for the security of a good which was all essential to the prosperity of the western people. Several intemperate aspersions upon the legislative and executive departments, accompanied with complaints that the course of the negotiations had not been communicated to those who were interested in the event, and with threats obviously pointing to dismemberment, were concluded with a declaration that nothing would remunerate the western people for the suspension of this great territorial right; that they must possess it; that the god of nature had given them the means of acquiring and enjoying it; and that to permit a sacrifice of it to any other considerations, would be a crime against themselves and their posterity.

In the senate, the subject was referred to a committee, who reported, "that in the negotiation now carrying on at Madrid between the United States and Spain, the right of the former to the free navigation of the Mississippi is

well asserted and demonstrated, and their claim to its enjoyment is pursued with all the assiduity and firmness which the magnitude of the subject demands; and will doubtless continue to be so pursued until the object shall be obtained, or adverse circumstances shall render the further progress of the negotiation impracticable. That in the present state of the business, it would be improper for congress to interfere. But in order to satisfy the citizens of the United States more immediately interested in the event of this negotiation, that the United States have uniformly asserted their right to the free use of the navigation of the river Mississippi, and have employed and will continue to pursue such measures as are best adapted to obtain the enjoyment of this important territorial right, the committee recommend that it be resolved by the senate—

"That the President of the United States be, and he hereby is requested to cause to be communicated to the executive of the state of Kentucky,[\[22\]](#) such part of the existing negotiation between the United States and Spain relative to this subject, as he may deem adviseable, and consistent with the course of the negotiation."

In the house of representatives also, a resolution was passed, expressing the conviction of the house, that the executive was urging the claim of the United States to the navigation of the Mississippi, in the manner most likely to prove successful.

Had the measures pursued in the western country been dictated, exclusively, by a wish to obtain an important good, these resolutions would have allayed the ferment which had been excited. The effect which must be produced on Spain by the insinuation that the continuance of their connexion with the Atlantic states depended on obtaining the object they sought, was too apparent to escape the notice of men endowed with an ordinary share of intelligence. But when the real motives for human action are latent, it is vain to demonstrate the unreasonableness of those which are avowed.

After the reception of these resolutions, a number of the principal citizens from various parts of Kentucky assembled at Lexington, and among many intemperate resolutions passed the following:

Intemperate resolutions of the people of that state.

"That the general government whose duty it was to put us in possession of this right (the navigation of the Mississippi) have, either through design

or mistaken policy, adopted no effectual measures for its attainment.

"That even the measures they have adopted, have been uniformly concealed from us, and veiled in mysterious secrecy.

"That civil liberty is prostituted, when the servants of the people are suffered to tell their masters, that communications which they may judge important ought not to be intrusted to them."

These resolutions concluded with a recommendation of county meetings, of county committees of correspondence, and of a convention when it might be judged expedient, to deliberate on the proper steps for the attainment and security of their just rights.

To estimate these resolutions accurately, it will be necessary to view in connexion with them, the military preparations which were making in that country, under the authority of France.

In October, 1793, it was alleged by the Spanish commissioners, that four Frenchmen had left Philadelphia, empowered by the minister of the French republic to prepare an expedition, in Kentucky, against New Orleans. This fact was immediately communicated by Mr. Jefferson to the governor of that state, with a request that he would use those means of prevention which the law enabled him to employ. Binding to good behaviour was particularly recommended. This letter was accompanied by one from the secretary of war, conveying the request of the President, that, if preventive means should fail, effectual military force should be employed to arrest the expedition; and General Wayne was ordered to hold a body of troops at the disposal of the governor, should he find the militia insufficient for his purpose.

The governor had already received information, that a citizen of Kentucky was in possession of a commission appointing him Commander-in-chief of the proposed expedition; and that the Frenchmen alluded to in the letter of Mr. Jefferson, had arrived, and, far from affecting concealment declared, that they only waited for money which they expected soon to receive, in order to commence their operations.

The following extract of a letter from the governor, on this subject, exhibits a curious specimen of the conclusions to which gentlemen were conducted by the course of political reasoning which prevailed at the day.

After stating the facts above alluded to, he says, "I have great doubts, even if they do attempt to carry their plan into execution, (provided they manage their business with prudence,) whether there is any legal authority to restrain or punish them, at least before they have actually accomplished it. For if it is lawful for any one citizen of this state to leave it, it is equally so for any number of them to do it. It is also lawful to carry with them any quantity of provisions, arms, and ammunition; and if the act is lawful in itself, there is nothing but the particular intention with which it is done that can possibly make it unlawful. But I know of no law which inflicts a punishment on intention only; or any criterion by which to decide what would be sufficient evidence of that intention, if it was a proper subject for legal censure.

"I shall, upon all occasions, be averse to the exercise of any power which I do not consider myself as clearly and explicitly invested with, much less would I assume power to exercise it against men whom I consider as friends and brethren, in favour of a man whom I view as an enemy and a tyrant. I shall also feel but little inclination to take an active part in punishing or restraining any of my fellow citizens for a supposed intrusion only, to gratify or remove the fears of the minister or a prince who openly withholds from us an invaluable right, and who secretly instigates against us a most savage and cruel enemy."

Upon the receipt of this extraordinary letter, the President directed General Wayne to establish a military post at Fort Massac, on the Ohio, for the purpose of stopping by force, if peaceful means should fail, any body of armed men who should be proceeding down that river.

This precaution appears to have been necessary. The preparations for the expedition were, for some time, carried on with considerable activity; and there is reason to believe that it was not absolutely relinquished, until Spain ceased to be the enemy of France.[\[23\]](#)

The proceedings of the legislature of South Carolina embarrassed those who had planned the invasion of the Floridas, but did not entirely disconcert them. In April, a French sloop of war arrived on the confines of Georgia and East Florida, with a small body of troops, who were landed on one of the islands on the coast, south of the St. Mary, and who declared themselves to be part of a larger force, which might soon be expected. Upon their arrival, several small corps of Americans who had engaged to serve the republic of

France, assembled in Georgia, for the purpose, as was universally understood, of co-operating with the French against the neighbouring dominions of Spain.

The interposition of government, and the inadequacy of the force to the object, disconcerted this expedition. Its leader conducted his followers into the Indian country, and endeavoured to make a settlement on their hunting grounds.

While these turbulent scenes were acting, the loud plaudits of France, which were dictated by a passionate devotion to that country, were reechoed from every part of the American continent. The friendship of that republic for the United States, her respect for their rights, the ingratitude with which her continuing benefits were repaid, the injustice done her by the executive, its tameness under British insults, were the inexhaustible themes of loud, angry, and unceasing declamation. It required a firmness of mind, and a weight of character possessed only by the chief magistrate, to maintain the ground he had taken, against such an assemblage of passions and of prejudices.

It will be recollected that in the preceding year, the attempt to treat with the hostile Indians had suspended the operations of General Wayne until the season for action had nearly passed away. After the total failure of negotiation, the campaign was opened with as much vigour as a prudent attention to circumstances would permit.

The Indians had expected an attempt upon their villages, and had collected in full force, with the apparent determination of risking a battle in their defence. A battle was desired by the American general; but the consequences of another defeat were too serious to warrant him in putting more to hazard by precipitate movements, than the circumstances of the war required. The negotiations with the Indians were not terminated till September, and it was then too late to complete the preparations which would enable General Wayne to enter their country and to hold it. He, therefore, contented himself with collecting his army and penetrating about six miles in advance of Fort Jefferson into the uninhabited country, where he established himself for the winter, in a camp called Greenville. After fortifying his camp, he took possession of the ground on which the Americans had been defeated in 1791, where he erected Fort Recovery.

These positions afforded considerable protection to the frontiers, and facilitated the opening of the ensuing campaign.

Seeing only the dark side of every measure adopted by the government, and not disinclined to militia expeditions made at the expense of the United States, the people of Kentucky loudly charged the President with a total disregard of their safety, pronounced the continental troops entirely useless, declared that the Indians were to be kept in awe alone by militia, and insisted that the power should be deposited with some person in their state, to call them out at his discretion, at the charge of the United States.

Meanwhile, some steps were taken by the governor of Upper Canada which were well calculated to increase suspicions respecting the dispositions of Great Britain.

It was believed by the President, not without cause,[\[24\]](#) that the cabinet of London was disposed to avail itself of the non-execution of that article of the treaty of peace, which stipulates for the payment of debts, to justify a permanent detention of the posts on the southern side of the great lakes, and to establish a new boundary line, whereby those lakes should be entirely comprehended in Upper Canada. Early in the spring, a detachment from the garrison of Detroit repossessed and fortified a position near fifty miles south of that station, on the Miamis of the lakes, a river which empties into Lake Erie at its westernmost point.

This movement, the speech of Lord Dorchester, and other facts which strengthened the belief that the hostile Indians were at least countenanced by the English, were the subjects of a correspondence between the secretary of state and Mr. Hammond, in which crimination was answered by recrimination, in which a considerable degree of mutual irritation was displayed, and in which each supported his charges against the nation of the other, much better than he defended his own. It did not, however, in any manner, affect the operations of the army.

The delays inseparable from the transportation of necessary supplies through an uninhabited country, infested by an active enemy peculiarly skilled in partisan war, unavoidably protracted the opening of the campaign until near midsummer. Meanwhile, several sharp skirmishes took place, in one of which a few white men were stated to be mingled with the Indians.

On the 8th of August, General Wayne reached the confluence of the Au Glaize and the Miamis of the lakes, where he threw up some works of

defence, and protection for magazines. The richest and most extensive settlements of the western Indians lay about this place.

The mouth of the Au Glaize is distant about thirty miles from the post occupied by the British on the Miamis of the lakes, in the vicinity of which the whole strength of the enemy, amounting, according to intelligence on which General Wayne relied, to rather less than two thousand men, was collected. The continental legion was not much inferior in number to the Indians: and a reinforcement of about eleven hundred mounted militia from Kentucky, commanded by General Scott, gave a decided superiority of strength to the army of Wayne. That the Indians had determined to give him battle was well understood; and the discipline of his legion, the ardour of all his troops, and the superiority of his numbers, authorized him confidently to expect a favourable issue. Yet, in pursuance of that policy by which the United States had been uniformly actuated, he determined to make one more effort for the attainment of peace without bloodshed. Messengers were despatched to the several hostile tribes who were assembled in his front, inviting them to appoint deputies to meet him on his march, in order to negotiate a lasting peace.

On the 15th of August, the American army advanced down the Miamis, with its right covered by that river; and on the 18th, arrived at the rapids. Here they halted on the 19th, in order to erect a temporary work for the protection of the baggage, and to reconnoitre the situation of the enemy.

The Indians were advantageously posted behind a thick wood, and behind the British fort.

General Wayne defeats the Indians at the Miamis.

At eight in the morning of the 20th, the American army advanced in columns: the legion with its right flank covered by the Miamis: One brigade of mounted volunteers commanded by General Todd was on the left; and the other under General Barbee was in the rear. A select battalion, commanded by Major Price, moved in front of the legion, sufficiently in advance to give timely notice for the troops to form in case of action.[\[25\]](#)

After marching about five miles, Major Price received a heavy fire from a concealed enemy, and was compelled to retreat.

The Indians had chosen their ground with judgment. They had advanced into the thick wood in front of the British works which extends several miles west from the Miamis, and had taken a position, rendered almost inaccessible to horse by a quantity of fallen timber which appeared to have been blown up in a tornado. They were formed in three lines, within supporting distance of each other; and, as is their custom, with a very extended front. Their line stretched to the west, at right angles with the river, about two miles; and their immediate effort was to turn the left flank of the American army.

On the discharge of the first rifle, the legion was formed in two lines, and the front was ordered to advance with trailed arms, and rouse the enemy from his covert at the point of the bayonet; then, and not until then, to deliver a fire, and to press the fugitives too closely to allow them time to load after discharging their pieces. Soon perceiving the strength of the enemy in front, and that he was endeavouring to turn the American left, the general ordered the second line to support the first. The legion cavalry, led by Captain Campbell, was directed to penetrate between the Indians and the river, where the wood was less thick and entangled, in order to charge their left flank; and General Scott, at the head of the mounted volunteers, was directed to make a considerable circuit, and to turn their right flank.

These orders were executed with spirit and promptitude; but such was the impetuosity of the charge made by the first line of infantry, so entirely was the enemy broken by it, and so rapid was the pursuit, that only a small part of the second line and of the mounted volunteers could get into the action. In the course of one hour, the Indians were driven more than two miles, through thick woods; when the pursuit terminated within gun shot of the British fort.

General Wayne remained three days on the banks of the Miamis, in front of the field of battle, during which time the houses and cornfields above and below the fort, some of them within pistol shot of it, were reduced to ashes. During these operations, a correspondence took place between General Wayne and Major Campbell, the commandant of the fort, which is stated by the former in such a manner as to show, that hostilities between them were avoided only by the prudent acquiescence of the latter in this devastation of property within the range of his guns.

On the 28th, the army returned to Au Glaize by easy marches, destroying on its route all the villages and corn within fifty miles of the river.

In this decisive battle, the loss of the Americans, in killed and wounded, amounted to one hundred and seven, including officers. Among the dead was Captain Campbell, who commanded the cavalry, and Lieutenant Towles of the infantry, both of whom fell in the first charge. General Wayne bestowed great and well merited praise on the courage and alacrity displayed by every part of the army.

The hostility of the Indians still continuing, their whole country was laid waste, and forts were erected in the heart of their settlements, to prevent their return.

This seasonable victory rescued the United States from a general war with all the Indians north-west of the Ohio. The Six Nations had discovered a restless uneasy temper; and the interposition of the President, to prevent a settlement which Pennsylvania was about to make at Presqueisle, seemed rather to suspend the commencement of hostilities, than to establish permanent pacific dispositions among those tribes. The battle of the 20th of August, however, had an immediate effect; and the clouds which had been long gathering in that quarter, were instantly dissipated.

In the south too, its influence was felt. In that quarter, the inhabitants of Georgia and the Indians seemed equally disposed to war. Scarcely was the feeble authority of the government competent to restrain the aggressions of the former, or the dread of its force sufficient to repress those of the latter. In this doubtful state of things, the effect of a victory could not be inconsiderable.

About this time, the seditious and violent resistance to the execution of the law imposing duties on spirits distilled within the United States, had advanced to a point in the counties of Pennsylvania lying west of the

Alleghany mountains, which required the decisive interposition of government.

Insurrection in the Western parts of Pennsylvania.

Notwithstanding the multiplied outrages committed on the persons and property of the revenue officers, and of those who seemed willing to submit to the law, yet, in consequence of a steady adherence to the system of counteraction adopted by the executive, it was visibly gaining ground, and several distillers in the disaffected country were induced to comply with its requisites. The opinion, that the persevering efforts of the administration would ultimately prevail, derived additional support from the passage of an act by the present congress, containing those provisions which had been suggested by the chief of the treasury department. The progress of this bill, which became a law on the fifth of June, could not have been unknown to the malcontents, nor could its probable operation have been misunderstood. They perceived that the certain loss of a market for the article, added to the penalties to which delinquents were liable, might gradually induce a compliance on the part of distillers, unless they could, by a systematic and organized opposition, deprive the government of the means it employed for carrying the law into execution.

On the part of the executive, this open defiance of the laws, and of the authority of the government, was believed imperiously to require, that the strength and efficacy of those laws should be tried. Against the perpetrators of some of the outrages which had been committed, bills of indictment had been found in a court of the United States, upon which process was directed to issue; and at the same time, process was also issued against a great number of non-complying distillers.

The marshal repaired in person to the country which was the scene of these disorders, for the purpose of serving the processes. On the 15th of July, while in the execution of his duty, he was beset on the road by a body of armed men, who fired on him, but fortunately did him no personal injury. At daybreak, the ensuing morning, a party attacked the house of General Nevil, the inspector; but he defended himself resolutely, and obliged the assailants to retreat.

Knowing well that this attack had been preconcerted, and apprehending that it would be repeated, he applied to the militia officers and magistrates of the county for protection. The answer was, that "owing to the too general

combination of the people to oppose the revenue system, the laws could not be executed so as to afford him protection: that should the *posse comitatus* be ordered out to support the civil authority, they would favour the party of the rioters."

On the succeeding day, the insurgents re-assembled to the number of about five hundred, to renew their attack on the house of the inspector. That officer, finding that no protection could be afforded by the civil authority, had applied to the commanding officer at Fort Pitt, and had obtained a detachment of eleven men from that garrison, who were joined by Major Kirkpatrick. Successful resistance to so great a force being obviously impracticable, a parley took place, at which the assailants, after requiring that the inspector^[26] and all his papers should be delivered up, demanded that the party in the house should march out and ground their arms. This being refused, the parley terminated, and the assault commenced. The action lasted until the assailants set fire to several adjacent buildings, the heat from which was so intense that the house could no longer be occupied. From this cause, and from the apprehension that the fire would soon be communicated to the main building, Major Kirkpatrick and his party surrendered themselves.

The marshal and Colonel Pressly Nevil were seized on their way to General Nevil's house, and detained until two the next morning. The marshal, especially, was treated with extreme rudeness. His life was frequently threatened, and was probably saved by the interposition of some leading individuals who possessed more humanity, or more prudence, than those with whom they were associated. He could obtain his liberty only by entering into a solemn engagement, which was guaranteed by Colonel Nevil, to serve no more process on the western side of the Alleghany mountains.

The marshal and inspector having both retired to Pittsburg, the insurgents deputed two of their body, one of whom was a justice of the peace, to demand that the former should surrender all his process, and that the latter should resign his office; threatening, in case of refusal, to attack the place, and seize their persons. These demands were not acceded to; but Pittsburg affording no security, these officers escaped from the danger which threatened them, by descending the Ohio; after which, they found their way by a circuitous route to the seat of government.

The perpetrators of these treasonable practices, being desirous to ascertain their strength, and to discover any latent enemies who might remain unsuspected in the bosom of the disaffected country, despatched a party which stopped the mail from Pittsburg to Philadelphia, cut it open, and took out the letters which it contained. In some of these letters, a direct disapprobation of the violent measures which had been adopted was avowed; and in others, expressions were used which indicated unfriendly dispositions towards them. Upon acquiring this intelligence, delegates were deputed from the town of Washington to Pittsburg, where the writers of the offensive letters resided, to demand the banishment of the offenders. A prompt obedience to this demand was unavoidable; and the inhabitants of Pittsburg, who were convened on the occasion, engaged to attend a general meeting of the people, who were to assemble the next day in Braddock's field, in order to carry into effect such further measures as might be deemed advisable with respect to the excise and its friends. They also determined to elect delegates to a convention which was to meet, on the 14th of August, at Parkinson's ferry. The avowed motives to these outrages were to compel the resignation of all officers engaged in the collection of the duties on distilled spirits; to withstand by force of arms the authority of the United States; and thereby to extort a repeal of the law imposing those duties, and an alteration in the conduct of government.

Affidavits attesting this serious state of things were laid before the President.

The opposition had now reached to a point which seemed to forbid the continuance of a temporizing system. The efforts at conciliation, which, for more than three years, the government had persisted to make, and the alterations repeatedly introduced into the act for the purpose of rendering it less exceptionable, instead of diminishing the arrogance of those who opposed their will to the sense of the nation, had drawn forth sentiments indicative of designs much deeper than the evasion of a single act. The execution of the laws had at length been resisted by open force, and a determination to persevere in these measures was unequivocally avowed. The alternative of subduing this resistance, or of submitting to it was presented to the government.

The act of congress which provided for calling forth the militia "to execute the laws of the union, suppress insurrections, and repel invasions,"

required as a pre-requisite to the exercise of this power, "that an associate justice, or the judge of the district, should certify that the laws of the United States were opposed, or their execution obstructed, by combinations too powerful to be suppressed by the ordinary course of judicial proceedings, or by the powers vested in the marshals." In the same act it was provided, "that if the militia of the state, where such combinations may happen, shall refuse, or be insufficient, to suppress the same, the President may employ the militia of other states."

The evidence which had been transmitted to the President was laid before one of the associate justices, who gave the certificate, which enabled the chief magistrate to employ the militia in aid of the civil power.

The executive being now authorized to adopt such measures as the crisis might require, the subject was again seriously considered in the cabinet; and the governor of Pennsylvania was also consulted respecting it. To avoid military coercion, if obedience to the laws could be produced by other means, was the universal wish; and therefore, all concurred in advising the appointment of commissioners from the governments of both the union, and the state, who should warn the deluded insurgents of the impending danger, and should convey a full pardon for past offences, upon the condition of future submission. But, respecting ulterior and eventual measures, a difference of opinion prevailed. The act already mentioned, made it the duty of the President, previous to the employment of military force, to issue his proclamation, commanding the insurgents to disperse within a limited time. The secretary of state (and the governor of Pennsylvania is understood to have concurred with him) was of opinion, that this conciliatory mission should be unaccompanied by any measure which might wear the appearance of coercion. He was alarmed at the strength of the insurgents, at their connexion with other parts of the country, at the extensive-ness of the prevailing discontents with the administration, and at the difficulty and expense of bringing the militia into the field. The governor of Pennsylvania having declared his opinion, that the militia of that state, who could be drawn forth, would be incompetent to enforce obedience, the aid of the neighbouring states would consequently be necessary. The secretary of state feared that the militia of the neighbouring states would refuse to march; and that, should he be mistaken in this, their compliance with the orders of the executive might be not less fatal than their disobedience. The introduction of a foreign militia into Pennsylvania might greatly increase the discontents

prevailing in that state. His apprehensions of a failure, in the attempt to restore tranquillity by coercive means, were extreme; and the tremendous consequences of a failure were strongly depicted. From the highly inflamed state of parties, he anticipated a civil war, which would pervade the whole union, and drench every part of it with the blood of American citizens.

The secretary of the treasury, the secretary of war, and the attorney general, were of opinion that the President was bound by the most high and solemn obligations to employ the force which the legislature had placed at his disposal, for the suppression of a criminal and unprovoked insurrection. The case contemplated by congress had clearly occurred; and the President was urged by considerations the most awful, to perform the duty imposed on him by the constitution, of providing "that the laws be faithfully executed." The long forbearance of government, and its patient endeavours to recall the deluded people to a sense of their duty and interest by appeals to their reason, had produced only increase of violence, and a more determined opposition. Perseverance in that system could only give a more extensive range to disaffection, and multiply the dangers resulting from it.

Those who were of opinion that the occasion demanded a full trial of the ability of the government to enforce obedience to the laws, were also of opinion, that policy and humanity equally dictated the employment of a force which would render resistance desperate. The insurgent country contained sixteen thousand men able to bear arms; and the computation was, that they could bring seven thousand into the field. If the army of the government should amount to twelve thousand men, it would present an imposing force which the insurgents would not venture to meet.

It was impossible that the President could hesitate to embrace the latter of these opinions. That a government entrusted to him should be trampled under foot by a lawless section of the union, which set at defiance the will of the nation, as expressed by its representatives, was an abasement to which neither his judgment nor his feelings could submit. He resolved, therefore, to issue the proclamation, which, by law, was to precede the employment of force.

On the same day, a requisition was made on the governors of New Jersey, Pennsylvania, Maryland, and Virginia, for their several quotas of militia to compose an army of twelve thousand[\[27\]](#) men; who were to be immediately organized, and prepared to march at a minute's warning.

While steps were taking to bring this force into the field, a last essay was made to render its employment unnecessary. Three distinguished and popular citizens of Pennsylvania were deputed by the government to be the bearers of a general amnesty for past offences, on the sole condition of future obedience to the laws.

It having been deemed adviseable that the executive of the state should act in concert with that of the United States, Governor Mifflin also issued a proclamation, and appointed commissioners to act with those of the general government.

Meanwhile, the insurgents omitted nothing which might enlarge the circle of disaffection. Attempts were made to embark the adjacent counties of Virginia in their cause, and their violence was extended to Morgantown, at which place an inspector resided, who saved himself by flight, and protected his property by advertising on his own door that he had resigned his office. They also made similar excursions into the contiguous counties of Pennsylvania, lying east of the Alleghany mountains, where numbers were ready to join them. These deluded men, giving too much faith to the publications of democratic societies, and to the furious sentiments of general hostility to the administration, and particularly to the internal taxes, with which the papers in the opposition abounded, seem to have entertained the opinion, that the great body of the people were ready to take up arms against their government, and that the resistance commenced by them would spread throughout the union, and terminate in a revolution.

The convention at Parkinson's ferry had appointed a committee of safety consisting of sixty members, who chose fifteen of their body to confer with the commissioners of the United States, and of the state of Pennsylvania. This committee of conference was not empowered to conclude on any thing. They could only receive and report the propositions which might be made to them.

Men of property and intelligence, who had contributed to kindle the flame under the common error of being able to regulate its heat, now trembled at the extent of the conflagration. It had passed the limits they had assigned to it, and was no longer subject to their control.

The committee of conference expressed themselves unanimously in favour of accepting the terms offered by the government, and exerted themselves in the committee of safety to obtain a decision to the same

effect. In that committee, the question whether they would submit peaceably to the execution of the law, retaining expressly the privilege of using all constitutional means to effect its repeal, was debated with great zeal. The less violent party carried it by a small majority; but, not thinking themselves authorized to decide for their constituents on so momentous a question, they afterwards resolved that it should be referred to the people.

This reference resulted in demonstrating that, though many were disposed to demean themselves peaceably, yet a vast mass of opposition remained, determined to obstruct the re-establishment of civil authority.

From some causes, among which was disaffection to the particular service, the prospect of bringing the quota of troops required from Pennsylvania into the field, was at first unpromising. But the assembly, which had been summoned by the governor to meet on the first of September, expressed in strong terms its abhorrence of this daring attempt to resist the laws, and to subvert the government of the country; and a degree of ardour and unanimity was displayed by the people of other states, which exceeded the hopes of the most sanguine friends of the administration. Some feeble attempts were indeed made to produce a disobedience to the requisition of the President, by declaring that the people would never be made the instruments of the secretary of the treasury to shed the blood of their fellow citizens; that the representatives of the people ought to be assembled before a civil war was commenced; and by avowing the extravagant opinion that the President could not lawfully call forth the militia of any other state, until actual experiment had ascertained the insufficiency of that of Pennsylvania. But these insidious suggestions were silenced by the general sense of the nation, which loudly and strongly proclaimed that the government and laws must be supported. The officers displayed an unexampled activity; and intelligence from every quarter gave full assurance that, with respect to both numbers and time, the requisitions of the President would be punctually observed.

The governor of Pennsylvania compensated for the defects in the militia law of that state by his personal exertions. From some inadvertence, as was said, on the part of the brigade inspectors, the militia could not be drafted, and consequently the quota of Pennsylvania could be completed only by volunteers. The governor, who was endowed with a high degree of popular elocution, made a circuit through the lower counties of the state, and

publicly addressed the militia, at different places where he had caused them to be assembled, on the crisis in the affairs of their country. So successful were these animating exhortations, that Pennsylvania was not behind her sister states in furnishing the quota required from her.

On the 25th of September, the President issued a second proclamation, describing in terms of great energy the obstinate and perverse spirit with which the lenient propositions of the government had been received; and declaring his fixed determination, in obedience to the high and irresistible duty consigned to him by the constitution, "to take care that the laws be faithfully executed," to reduce the refractory to obedience.

The troops of New Jersey and Pennsylvania were directed to rendezvous at Bedford, and those of Maryland and Virginia at Cumberland, on the Potomac.[\[28\]](#) The command of the expedition had been conferred on Governor Lee of Virginia; and the governors of New Jersey and Pennsylvania commanded the militia of their respective states under him.

The President, in person, visited each division of the army; but, being confident that the force employed must look down all resistance, he left the secretary of the treasury to accompany it, and returned himself to Philadelphia, where the approaching session of congress required his presence.

Quelled by the prompt and vigorous measures of the government.

From Cumberland and Bedford, the army marched in two divisions into the country of the insurgents. The greatness of the force prevented the effusion of blood. The disaffected did not venture to assemble in arms. Several of the leaders who had refused to give assurances of future submission to the laws were seized, and some of them detained for legal prosecution.

But although no direct and open opposition was made, the spirit of insurrection was not subdued. A sour and malignant temper displayed itself, which indicated, but too plainly, that the disposition to resist had only sunk under the pressure of the great military force brought into the country, but would rise again should that force be withdrawn. It was, therefore, thought advisable to station for the winter, a detachment to be commanded by Major General Morgan, in the centre of the disaffected country.

Thus, without shedding a drop of blood, did the prudent vigour of the executive terminate an insurrection, which, at one time, threatened to shake

the government of the United States to its foundation. That so perverse a spirit should have been excited in the bosom of prosperity, without the pressure of a single grievance, is among those political phenomena which occur not unfrequently in the course of human affairs, and which the statesman can never safely disregard. When real ills are felt, there is something positive and perceptible to which the judgment may be directed, the actual extent of which may be ascertained, and the cause of which may be discerned. But when the mind, inflamed by supposititious dangers, gives a full loose to the imagination, and fastens upon some object with which to disturb itself, the belief that the danger exists seems to become a matter of faith, with which reason combats in vain. Under a government emanating entirely from the people, and with an administration whose sole object was their happiness, the public mind was violently agitated with apprehensions of a powerful and secret combination against liberty, which was to discover itself by the total overthrow of the republican system. That those who were charged with these designs were as destitute of the means, as of the will to effect them, did not shake the firm belief of their existence. Disregarding the apparent partiality of the administration for France, so far as that partiality was compatible with an honest neutrality, the zealots of the day ascribed its incessant labours for the preservation of peace, to a temper hostile to the French republic; and, while themselves loudly imprecating the vengeance of heaven and earth on one of the belligerents, and openly rejoicing in the victories of the other; while impetuously rushing into a war with Britain, and pressing measures which would render accommodation impracticable; they attributed a system calculated to check them in this furious career, not to that genuine American spirit which produced it, but to an influence which, so far as opinions are to depend on facts, has at no time insinuated itself into the councils of the United States.

In popular governments, the resentments, the suspicions, and the disgusts, produced in the legislature by warm debate, and the chagrin of defeat; by the desire of gaining, or the fear of losing power; and which are created by personal views among the leaders of parties, will infallibly extend to the body of the nation. Not only will those causes of dissatisfaction be urged which really operate on the minds of intelligent men, but every instrument will be seized which can effect the purpose, and the passions will be inflamed by whatever may serve to irritate them. Among the multiplied evils generated by faction, it is perhaps not the least,

that it has a tendency to abolish all distinction between virtue and vice; and to prostrate those barriers which the wise and good have erected for the protection of morals, and which are defended solely by opinion. The victory of the party becomes the great object; and, too often, all measures are deemed right or wrong, as they tend to promote or impede it. The attainment of the end is considered as the supreme good, and the detestable doctrine is adopted that the end will justify the means. The mind, habituated to the extenuation of acts of moral turpitude, becomes gradually contaminated, and loses that delicate sensibility which instinctively inspires horror for vice, and respect for virtue.

In the intemperate abuse which was cast on the principal measures of the government, and on those who supported them; in the violence with which the discontents of the opponents to those measures were expressed; and especially in the denunciations which were uttered against them by the democratic societies; the friends of the administration searched for the causes of that criminal attempt which had been made in the western parts of Pennsylvania, to oppose the will of the nation by force of arms. Had those misguided men believed that this opposition was to be confined within their own narrow limits, they could not have been so mad, or so weak as to have engaged in it.

The ideas of the President on this subject were freely given to several of his confidential friends. "The *real people*" he said, "occasionally assembled in order to express their sentiments on political subjects, ought never to be confounded with permanent self-appointed societies, usurping the right to control the constituted authorities, and to dictate to public opinion. While the former was entitled to respect, the latter was incompatible with all government, and must either sink into general disesteem, or finally overturn the established order of things."

Meeting of congress.

In his speech, at the opening of congress, the President detailed at considerable length the progress of opposition to the laws, the means employed both by the legislature and executive to appease the discontents which had been fomented,[\[29\]](#) and the measures which he had finally taken to reduce the refractory to submission.

As Commander-in-chief of the militia when called into actual service, he had, he said, visited the places of general rendezvous, to obtain more

correct information, and to direct a plan for ulterior movements. Had there been room for a persuasion that the laws were secure from obstruction, he should have caught with avidity at the opportunity of restoring the militia to their families and homes. But succeeding intelligence had tended to manifest the necessity of what had been done, it being now confessed by those who were not inclined to exaggerate the ill conduct of the insurgents, that their malevolence was not pointed merely to a particular law; but that a spirit inimical to all order had actuated many of the offenders.

After bestowing a high encomium on the alacrity and promptitude with which persons in every station had come forward to assert the dignity of the laws, thereby furnishing an additional proof that they understood the true principles of government and liberty, and felt their inseparable union; he added—

Democratic societies.

"To every description indeed of citizens, let praise be given. But let them persevere in their affectionate vigilance over that precious depository of American happiness,—the constitution of the United States. And when in the calm moments of reflection, they shall have retraced the origin and progress of the insurrection, let them determine whether it has not been fomented by combinations of men, who, careless of consequences, and disregarding the unerring truth that those who rouse can not always appease a civil convulsion, have disseminated, from an ignorance or perversion of facts, suspicions, jealousies, and accusations of the whole government."

The President could not omit this fair occasion, once more to press on congress a subject which had always been near his heart. After mentioning the defectiveness of the existing system, he said—

"The devising and establishing of a well regulated militia, would be a genuine source of legislative honour, and a perfect title to public gratitude. I therefore entertain a hope that the present session will not pass without carrying to its full energy the power of organizing, arming, and disciplining the militia; and thus providing, in the language of the constitution, for calling them forth to execute the laws of the union, suppress insurrections, and repel invasions."

After mentioning the intelligence from the army under the command of General Wayne, and the state of Indian affairs, he again called the attention

of the house of representatives to a subject scarcely less interesting than a system of defence against external and internal violence.

"The time," he said, "which has elapsed since the commencement of our fiscal measures, has developed our pecuniary resources, so as to open the way for a definitive plan for the redemption of the public debt. It is believed that the result is such as to encourage congress to consummate this work without delay. Nothing can more promote the permanent welfare of the union, and nothing would be more grateful to our constituents. Indeed, whatever is unfinished of our system of public credit, can not be benefited by procrastination; and, as far as may be practicable, we ought to place that credit on grounds which can not be disturbed, and to prevent that progressive accumulation of debt which must ultimately endanger all governments."

He referred to subsequent communications for certain circumstances attending the intercourse of the United States with foreign nations. "However," he added, "it may not be unseasonable to announce that my policy in our foreign transactions has been, to cultivate peace with all the world; to observe treaties with pure and inviolate faith; to check every deviation from the line of impartiality; to explain what may have been misapprehended; and correct what may have been injurious to any nation; and having thus acquired the right, to lose no time in acquiring the ability, to insist upon justice being done to ourselves."

In the senate, an answer was reported which contained the following clause:

"Our anxiety, arising from the licentious and open resistance to the laws in the western counties of Pennsylvania, has been increased by the proceedings of certain self-created societies relative to the laws and administration of the government; proceedings, in our apprehension, founded in political error, calculated, if not intended, to disorganize our government, and which, by inspiring delusive hopes of support, have been instrumental in misleading our fellow citizens in the scene of insurrection."

The address proceeded to express the most decided approbation of the conduct of the President in relation to the insurgents; and, after noticing the different parts of the speech, concluded with saying—

"At a period so momentous in the affairs of nations, the temperate, just, and firm policy that you have pursued in respect to foreign powers, has

been eminently calculated to promote the great and essential interest of our country, and has created the fairest title to the public gratitude and thanks."

To this unequivocal approbation of the policy adopted by the executive with regard to foreign nations, no objections were made. The clause respecting democratic societies was seriously opposed; but the party in favour of the administration had been strengthened in the senate by recent events, and the address reported by the committee was agreed to without alteration.

The same spirit did not prevail in the house of representatives. In that branch of the legislature, the opposition party continued to be the most powerful, and the respect of their leaders for the person and character of the chief magistrate was visibly diminishing. His interference with a favourite system was not forgotten, and the mission of Mr. Jay still rankled in their bosoms.

The address prepared by the committee, to whom the speech was referred, omitted to notice those parts which respected self created societies, the victory of General Wayne, and the policy observed by the executive in its intercourse with foreign nations. On a motion being made by Mr. Dayton to amend it, by inserting a clause which should express the satisfaction of the house at the success of the army under General Wayne, Mr. Madison said, that it had been the wish of the committee who framed the address, to avoid the minutia of the speech: but as a desire was manifested to amplify particular parts, it might not be amiss to glance at the policy observed towards foreign nations. He therefore moved to amend the amendment by adding the words, "solicitous also as we are for the preservation of peace with all nations, we can not otherwise than warmly approve of *a* policy in our foreign transactions, which keeps in view as well the maintenance of our national rights, as the continuance of that blessing." Mr. Hillhouse wished the word *your* to be substituted for the article *a*, that the answer might point, not to an abstract policy, but to that of the executive, and thus have a direct application to the speech. This motion produced a warm discussion, which terminated in a request that Mr. Madison would withdraw his amendment; the friends of the administration being of opinion, that it was more eligible to pass over that part of the speech in silence, than to answer it in terms so equivocal as those to which alone the house seemed willing to assent.

A proposition was then made by Mr. Fitzsimmons to introduce into the address, a clause declaring, that "in tracing the origin and progress of the insurrection, they (the house of representatives) entertain no doubt that certain self created societies and combinations of men, careless of consequences, and disregarding truth, by disseminating suspicions, jealousies, and accusations of the government, have had an influence in fomenting this daring outrage against the principles of social order, and the authority of the laws."

This attempt to censure certain organized assemblages of factious individuals, who, under the imposing garb of watchfulness over liberty, concealed designs subversive of all those principles which preserve the order, the peace, and the happiness of society, was resisted by the whole force of the opposition. A very eloquent and animated debate ensued, which terminated in the committee, by striking out the words "self created societies;" forty-seven voting for, and forty-five against expunging them. The question was resumed in the house; and, the chairman of the committee being opposed in sentiment to the speaker, who was now placed in the chair, the majority was precisely changed, and the words were reinstated. This victory, however, if it may be termed one, was soon lost. A motion for confining the censure to societies and combinations within the four western counties of Pennsylvania and the adjacent country, succeeded by the casting vote of the speaker, upon which, the friends of the amendment gave it up, and the address was voted without expressing any sentiment on the subject.

This triumph over the administration revived, for a moment, the drooping energies of these pernicious societies. But it was only for a moment. The agency ascribed to them by the opinion of the public, as well as of the President, in producing an insurrection which was generally execrated, had essentially affected them; and while languishing under this wound, they received a deadly blow from a quarter whence hostility was least expected.

The remnant of the French convention, rendered desperate by the ferocious despotism of the Jacobins, and of the sanguinary tyrant who had made himself their chief; perceiving that the number of victims who were immolated as his caprice might suggest, instead of satiating, could only stimulate his appetite for blood, had, at length, sought for safety by boldly confronting danger; and, succeeding in a desperate attempt to bring Robespierre to the guillotine, had terminated his reign of terror. The

colossean power of the clubs, which had been abused to an excess that gives to faithful history the appearance of fiction, fell with that of their favourite member, and they sunk into long merited disgrace. The means by which their political influence had been maintained were wrested from them; and, in a short time, their meetings were prohibited. Not more certain is it that the boldest streams must disappear, if the fountains which fed them be emptied, than was the dissolution of the democratic societies of America, when the Jacobin clubs were denounced by France. As if their destinies depended on the same thread, the political death of the former was the unerring signal for that of the latter; and their expiring struggles, incapable of deferring their fate, only attested the reluctance with which they surrendered their much abused power.

Notwithstanding the disagreement between the executive and one branch of the legislature concerning self created societies, and the policy observed towards foreign nations, the speech of the President was treated with marked respect; and the several subjects which it recommended, engaged the immediate attention of congress. A bill was passed authorizing the President to station a detachment of militia in the four western counties of Pennsylvania; provision was made to compensate those whose property had been destroyed by the insurgents, should those who had committed the injury be unable to repair it: and an appropriation exceeding one million one hundred thousand dollars was made to defray the expenses occasioned by the insurrection.

Many of the difficulties which had occurred in drawing out the militia were removed, and a bill was introduced to give greater energy to the militia system generally; but this subject possessed so many intrinsic difficulties, that the session passed away without effecting any thing respecting it.

A bill for the gradual redemption of the national debt was more successful. The President had repeatedly and earnestly recommended to the legislature the adoption of measures which might effect this favourite object; but, although that party which had been reproached with a desire to accumulate debt as a means of subverting the republican system had uniformly manifested a disposition to carry this recommendation into effect, their desire had hitherto been opposed by obstacles they were unable to surmount. Professions of an anxious solicitude to discharge the national

engagements, without providing the means of actual payment, might gratify those who consider words as things, but would be justly estimated by men, who, neither condemning indiscriminately, nor approving blindly, all the measures of government, expect that, in point of fact, it shall be rightly and honestly administered. On the friends of the administration, therefore, it was incumbent to provide real, substantial funds, which should attest the sincerity of their professions. This provision could not be made without difficulty. The duty on imported articles, and on tonnage, though rapidly augmenting, could not, immediately, be rendered sufficiently productive to meet, alone, the various exigencies of the treasury, and yield a surplus for the secure establishment of a permanent fund to redeem the principal of the debt. Additional sources of revenue must therefore be explored, or the idea of reducing the debt be abandoned. New taxes are the never failing sources of discontent to those who pay them, and will ever furnish weapons against those who impose them, too operative not to be seized by their antagonists. In a government where popularity is power, it requires no small degree of patriotism to encounter the odium which, however urgently required, they seldom fail to excite. Ready faith is given to the declaration that they are unjust, tyrannical, and unnecessary; and no inconsiderable degree of firmness is requisite to persevere in a course attended with so much political hazard. The opposition made to the internal taxes, which commenced in congress, had extended itself through the community. Although only the act imposing duties on spirits distilled within the United States had been resisted by force, yet such a degree of irritation was manifested against the whole system, as to evince the repugnance with which a large portion of the people saw it go into operation. The duties on refined sugars, and manufactured tobacco, especially, were censured in terms which would authorize an opinion that a defect of power, rather than of will, to resist the execution of the law, confined some of its opponents to remonstrances. Nothing could be more unfriendly than this spirit, to the reduction of the debt.

The reports of the secretary of the treasury having suggested the several steps which had been taken by congress in the system of internal taxation, he was justly considered as its author. The perseverance which marked the character of this officer, gave full assurance that no clamour would deter him from continuing to recommend measures which he believed to be essential to the due administration of the finances. That the establishment of

public credit on a sound basis was all important to the character and prosperity of the United States, constituted one of those political maxims to which he invariably adhered; and to effect it completely, seems to have been among the first objects of his ambition. He had bestowed upon this favourite subject the most attentive consideration; and while the legislature was engaged in the discussions of a report made by a select committee on a resolution moved by Mr. Smith, of South Carolina, purporting that further provision ought to be made for the reduction of the debt, addressed a letter to the house of representatives, through their speaker, informing them that he had digested and prepared a plan on the basis of the actual revenues, for the further support of public credit, which he was ready to communicate.

This comprehensive and valuable report presented the result of his laborious and useful investigations, on a subject equally intricate and interesting.

This was the last official act of Colonel Hamilton. The penurious provision made for those who filled the high executive departments in the American government, excluded from a long continuance in office all those whose fortunes were moderate, and whose professional talents placed a decent independence within their reach. While slandered as the accumulator of thousands by illicit means, Colonel Hamilton had wasted in the public service great part of the property acquired by his previous labours, and had found himself compelled to decide on retiring from his political station. The accusations brought against him in the last session of the second congress had postponed the execution of this design, until opportunity should be afforded for a more full investigation of his official conduct; but he informed the President that, on the close of the session, to meet in December, 1793, he should resign his situation in the administration. The events which accumulated about that time, and which were, he said in a letter to the President, of a nature to render the continuance of peace in a considerable degree precarious, deferred his meditated retreat. "I do not perceive," he added, "that I could voluntarily quit my post at such a juncture, consistently with considerations either of duty or character; and therefore, I find myself reluctantly obliged to defer the offer of my resignation.

"But if any circumstances should have taken place in consequence of the intimation of an intention to resign, or should otherwise exist, which serve

to render my continuance in office in any degree inconvenient or ineligible, I beg leave to assure you, sir, that I should yield to them with all the readiness naturally inspired by an impatient desire to relinquish a situation, in which, even a momentary stay is opposed by the strongest personal and family reasons, and could only be produced by a sense of duty or reputation."

Resignation of Colonel Hamilton.

1795

Assurances being given by the President, of the pleasure with which the intelligence, that he would continue at his post through the crisis, was received, he remained in office until the commencement of the ensuing year. On the 1st of December, immediately on his return from the western country, the dangers of domestic insurrection or foreign war having subsided, he gave notice that he should on the last day of January give in his resignation.

Seldom has any minister excited the opposite passions of love and hate in a higher degree than Colonel Hamilton. His talents were too pre-eminent not to receive from all the tribute of profound respect; and his integrity and honour as a man, not less than his official rectitude, though slandered at a distance, were admitted to be superior to reproach, by those enemies who knew him.

But with respect to his political principles and designs, the most contradictory opinions were entertained. While one party sincerely believed his object to be the preservation of the constitution of the United States in its original purity; the other, with perhaps equal sincerity, imputed to him the insidious intention of subverting it. While his friends were persuaded, that as a statesman, he viewed all foreign nations with an equal eye; his enemies could perceive in his conduct, only hostility to France and attachment to her rival.

It was his fortune to hold a conspicuous station in times which were peculiarly tempestuous, and under circumstances peculiarly unfavourable to the fair action of the judgment. In the midst of prejudices against the national debt, which had taken deep root, and had long been nourished, he was called to the head of a department, whose duty it was to contend with those prejudices, and to offer a system which, in doing justice to the creditor of the public, might retrieve the reputation of his country. While the

passions were inflamed by a stern contest between the advocates of a national, and of state governments, duties were assigned to him, in the execution of which there were frequent occasions to manifest his devotion to the former. When a raging fever, caught from that which was desolating France, and exhibiting some of its symptoms, had seized the public mind, and reached its understanding, it was unfavourable to his quiet, and perhaps to his fame, that he remain uninfected by the disease. He judged the French revolution without prejudice; and had the courage to predict that it could not terminate in a free and popular government.

Such opinions, at such a time, could not fail to draw a load of obloquy upon a man whose frankness gave them publicity, and whose boldness and decision of character insured them an able and steady support. The suspicions they were calculated to generate, derived great additional force from the political theories he was understood to hold. It was known that, in his judgment, the constitution of the United States was rather chargeable with imbecility, than censurable for its too great strength; and that the real sources of danger to American happiness and liberty, were to be found in its want of the means to effect the objects of its institution;—in its being exposed to the encroachments of the states,—not in the magnitude of its powers. Without attempting to conceal these opinions, he declared his perfect acquiescence in the decision of his country; his hope that the issue would be fortunate; and his firm determination, in whatever might depend upon his exertions, to give the experiment the fairest chance for success. No part of his political conduct has been perceived, which would inspire doubts of the sincerity of these declarations. His friends may appeal with confidence to his official acts, to all his public conduct, for the refutation of those charges which were made against him while at the head of the treasury department, and were continued, without interruption, till he ceased to be the object of jealousy.

In the esteem and good opinion of the President, to whom he was best known, Colonel Hamilton at all times maintained a high place. While balancing on the mission to England, and searching for a person to whom the interesting negotiation with that government should be confided, the mind of the chief magistrate was directed, among others, to this gentleman. [30] He carried with him out of office, [31] the same cordial esteem for his character, and respect for his talents, which had induced his appointment.

Is succeeded by Mr. Wolcott.

The vacant office of secretary of the treasury was filled by Mr. Wolcott, of Connecticut, a gentleman of sound judgment, who was well versed in its duties. He had served as comptroller for a considerable time, and in that situation, had been eminently useful to the head of the department.

The report of the select committee recommended additional objects for internal taxation, and that the temporary duties already imposed should be rendered permanent. The opposition made to this important part of the system was so ardent, and so persevering, that, though the measure was taken up early in the session, the bill did not pass the house of representatives until late in February. Not only were the taxes proposed by the friends of the administration encountered successively by popular objections, urged with all the vehemence of passion, and zeal of conviction, but it was with extreme difficulty that the duties on sugar refined, and tobacco manufactured, within the United States, could be rendered permanent. When gentlemen were urged to produce a substitute for the system they opposed, a direct tax was mentioned with approbation; but no disposition was shown to incur the responsibility of becoming the patrons of such a measure. At length, by the most persevering exertions of the federal party, the bill was carried through the house; and thus was that system adopted, which, if its operations shall not be disturbed, and if no great accumulations of debt be made, will, in a few years, discharge all the engagements of the United States.

On the third of March, this important session was ended. Although the party hostile to the administration had obtained a small majority in one branch of the legislature, several circumstances had occurred to give great weight to the recommendations of the President. Among these may be reckoned the victory obtained by General Wayne, and the suppression of the western insurrection. In some points, however, which he had pressed with earnestness, his sentiments did not prevail. One of these was a bill introduced into the senate for preserving peace with the Indians, by protecting them from the intrusions and incursions of the whites.

From the commencement of his administration, the President had reviewed this subject with great interest, and had permitted scarcely a session of congress to pass away, without pressing it on the attention of the legislature. It had been mentioned in his speech at the commencement of

the present session, and had been further enforced by a message accompanying a report made upon it by the secretary of war. The following humane sentiments, extracted from that report, are characteristic of the general views of the administration.

"It seems that our own experience would demonstrate the propriety of endeavouring to preserve a pacific conduct in preference to a hostile one with the Indian tribes. The United States can get nothing by an Indian war; but they risk men, money, and reputation. As we are more powerful and more enlightened than they are, there is a responsibility of national character that we should treat them with kindness, and even with liberality."

The plan suggested in this report was, to add to those arrangements respecting trade, which were indispensable to the preservation of peace, a chain of garrisoned posts within the territory of the Indians, provided their assent to the measure should be obtained; and to subject all those who should trespass on their lands to martial law. A bill founded on this report passed the senate, but was lost, in the house of representatives, by a small majority.

Resignation of General Knox.

This report preceded the resignation of the secretary of war but a few days. This valuable officer, too, was driven from the service of the public, by the scantiness of the compensation allowed him.

On the 28th of December, 1794, he addressed a letter to the President giving him official notice that, with the year, his services as secretary for the department of war would cease. This resolution had long before been verbally communicated.

"After having served my country," concluded the letter, "near twenty years, the greater portion of the time under your immediate auspices, it is with extreme reluctance I find myself constrained to withdraw from so honourable a situation. But the natural and powerful claims of a numerous family will no longer permit me to neglect their essential interests.

"In whatever situation I shall be, I shall recollect your confidence and kindness with all the fervour and purity of affection, of which a grateful heart is susceptible."

In the letter accepting his resignation, the President expressed the regret it occasioned, and added:

"I can not suffer you, however, to close your public service, without uniting to the satisfaction which must arise in your own mind from conscious rectitude, assurances of my most perfect persuasion that you have deserved well of your country.

"My personal knowledge of your exertions, while it authorizes me to hold this language, justifies the sincere friendship which I have borne you, and which will accompany you in every situation of life."

Is succeeded by Colonel Pickering.

Colonel Pickering, a gentleman who had filled many important offices through the war of the revolution; who had discharged several trusts of considerable confidence under the present government; and who at the time was postmaster general, was appointed to succeed him.

On the seventh of March, the treaty of amity, commerce, and navigation, between the United States and Great Britain, which had been signed by the ministers of the two nations, on the 19th of the preceding November, was received at the office of state.

Treaty between the United States and Great Britain.

From his arrival in London on the 15th of June, Mr. Jay had been assiduously and unremittingly employed on the arduous duties of his mission. By a deportment respectful, yet firm, mingling a decent deference for the government to which he was deputed, with a proper regard for the dignity of his own, this minister avoided those little asperities which frequently embarrass measures of great concern, and smoothed the way to the adoption of those which were suggested by the real interests of both nations. Many and intricate were the points to be discussed. On some of them an agreement was found to be impracticable; but, at length, a treaty was concluded, which Mr. Jay declared to be the best that was attainable, and which he believed it for the interests of the United States to accept.[\[32\]](#) Indeed it was scarcely possible to contemplate the evidences of extreme exasperation which were given in America, and the nature of the differences which subsisted between the two countries, without feeling a conviction that war was inevitable, should this attempt to adjust those differences prove unsuccessful.

On Monday, the 8th of June, the senate, in conformity with the summons of the President, convened in the senate chamber, and the treaty, with the documents connected with it, were submitted to their consideration.

On the 24th of June, after a minute and laborious investigation, the senate, by precisely a constitutional majority, advised and consented to its conditional ratification.

An insuperable objection existed to an article regulating the intercourse with the British West Indies, founded on a fact which is understood to have been unknown to Mr. Jay. The intention of the contracting parties was to admit the direct intercourse between the United States and those islands, but not to permit the productions of the latter to be carried to Europe in the vessels of the former. To give effect to this intention, the exportation from the United States of those articles which were the principal productions of the islands was to be relinquished. Among these was cotton. This article, which a few years before was scarcely raised in sufficient quantity for domestic consumption, was becoming one of the richest staples of the southern states. The senate being informed of this fact, advised and consented that the treaty should be ratified on condition that an article be added thereto, suspending that part of the twelfth article which related to the intercourse with the West Indies.

Although, in the mind of the President, several objections to the treaty had occurred, they were overbalanced by its advantages; and before transmitting it to the senate, he had resolved to ratify it, if approved by that body. The resolution of the senate presented difficulties which required consideration. Whether they could advise and consent to an article which had not been laid before them; and whether their resolution was to be considered as the final exercise of their power, were questions not entirely free from difficulty. Nor was it absolutely clear that the executive could ratify the treaty, under the advice of the senate, until the suspending article should be introduced into it. A few days were employed in the removal of these doubts, at the expiration of which, intelligence was received from Europe which suspended the resolution which the President had formed.

The English papers contained an account, which, though not official, was deemed worthy of credit, that the order of the 8th of June, 1793, for the seizure of provisions going to French ports, was renewed. In the apprehension that this order might be construed and intended as a practical construction of that article in the treaty which seemed to favour the idea that provisions, though not generally contraband, might occasionally become so, a construction in which he had determined not to acquiesce, the President

thought it wise to reconsider his decision. Of the result of this reconsideration, there is no conclusive testimony. A strong memorial against this objectionable order was directed; and the propositions to withhold the ratifications of the treaty until the order should be repealed; to make the exchange of ratifications dependent upon that event; and to adhere to his original purpose of pursuing the advice of the senate, connecting with that measure the memorial which had been mentioned, as an act explanatory of the sense in which his ratification was made, were severally reviewed by him. In conformity with his practice of withholding his opinion on controverted points until it should become necessary to decide them, he suspended his determination on these propositions until the memorial should be prepared and laid before him. In the meantime, his private affairs required that he should visit Mount Vernon.

So restless and uneasy was the temper respecting foreign nations, that no surprise ought to be excited at the anxiety which was felt on the negotiation of a treaty with Great Britain, nor at the means which were used, before its contents were known, to extend the prejudices against it.

Great umbrage was taken at the mysterious secrecy in which the negotiation had been involved. That the instrument itself was not immediately communicated to the public, and that the senate deliberated upon it with closed doors, were considered as additional evidences of the contempt in which their rulers held the feelings and understandings of the people, and of the monarchical tendencies of the government. Crowned heads, it was loudly repeated, who were machinating designs subversive of the rights of man, and the happiness of nations, might well cover with an impenetrable veil, their dark transactions; but republics ought to have no secrets. In republics, those to whom power was delegated, being the servants of the people, acting solely for their benefit, ought to transact all national affairs in open day. This doctrine was not too absurd for the extravagance of the moment.

The predetermined hostility to the treaty increased in activity, as the period for deciding its fate approached. On its particular merits, no opinion could be formed, because they were unknown; but on the general question of reconciliation between the two countries, a decisive judgment was extensively made up. The sentiments called forth by the occasion demonstrated, that no possible adjustment of differences with Great Britain,

no possible arrangement which might promise a future friendly intercourse with that nation, could be satisfactory. The President was openly attacked; his whole system strongly condemned; and the mission of Mr. Jay, particularly, was reprobated in terms of peculiar harshness. That a treaty of amity and commerce should have been formed, whatever might be its principles, was a degrading insult to the American people; a pusillanimous surrender of their honour; and an insidious injury to France. Between such a compact, and an alliance, no distinction was taken. It was an abandonment of the ancient ally of the United States, whose friendship had given them independence, and whose splendid victories still protected them, for a close connexion with her natural enemy, and with the enemy of human liberty.

The pretended object of the mission, it was said, was a reparation for wrongs, not a contaminating connexion with the most faithless and corrupt court in the world. The return of the envoy without that reparation, was a virtual surrender of the claim. The honour of the United States required a peremptory demand of the immediate surrender of the western posts, and of compensation for the piratical depredations committed on their commerce; not a disgraceful and humiliating negotiation. The surrender, and the compensation, ought to have been made instantly; for no reliance could be placed in promises to be performed in future.

That the disinclination formerly manifested by Great Britain, to give the stability and certainty of compact to the principles regulating the commercial intercourse between the two countries, had constituted an important item in the catalogue of complaints against that power: that the existence, or non-existence of commercial treaties had been selected as the criterion by which to regulate the discriminations proposed to be made in the trade of foreign nations; that, in the discussion on this subject, the favourers of commercial hostility had uniformly supported the policy of giving value to treaties with the United States; these opinions were instantly relinquished by the party which had strenuously asserted them while urged by their leaders in congress; and it was imputed as a crime to the government, and to its negotiator, that he had proceeded further than to demand immediate and unconditional reparation of the wrongs sustained by the United States.

The most strenuous and unremitting exertions to give increased energy to the love which was openly avowed for France, and to the detestation which

was not less openly avowed for England,[33] were connected with this course of passionate declamation.

Such was the state of parties when the senate advised the ratification of the treaty. Although common usage, and a decent respect for the executive, and for a foreign nation, not less than a positive resolution, required that the seal of secrecy should not be broken by the senate, an abstract of this instrument, not very faithfully taken, was given to the public; and on the 29th of June, a senator of the United States transmitted a copy of it to the most distinguished editor of the opposition party in Philadelphia, to be communicated to the public through the medium of the press.

If the negotiation itself had been acrimoniously censured; if amicable arrangements, whatever might be their character, had been passionately condemned; it was not to be expected that the treaty would assuage these pre-existing irritations.

In fact, public opinion did receive a considerable shock, and men uninfected by the spirit of faction felt some disappointment on its first appearance. In national contests, unless there be an undue attachment to the adversary country, few men, even among the intelligent, are sensible of the weakness which may exist in their own pretensions, or can allow their full force to the claims of the other party. If the people at large enter keenly into the points of controversy with a foreign power, they can never be satisfied with any equal adjustment of those points, unless other considerations, stronger than abstract reason, afford that satisfaction; nor will it ever be difficult to prove to them, in a case unassisted by the passions, that in any practicable commercial contract, they give too much, and receive too little.

On no subject whatever have considerations, such as these, possessed more influence than in that which was now brought before the American people. Their operation was not confined to those whose passions urged them to take part in the war, nor to the open enemies of the executive. The friends of peace, and of the administration, had generally received impressions unfavourable to the fair exercise of judgment in the case, which it required time and reflection to efface. Even among them, strong prejudices had been imbibed in favour of France, which the open attempts on the sovereignty of the United States had only weakened; and the matters of controversy with Great Britain had been contemplated with all that partiality which men generally feel for their own interests. With respect to

commerce also, strong opinions had been preconceived. The desire to gain admission into the British West India islands, especially, had excited great hostility to that colonial system which had been adopted by every country in Europe; and sufficient allowances were not made for the prejudices by which that system was supported.

The treaty, therefore, when exposed to the public view, found one party prepared for a bold and intrepid attack, but the other, not ready in its defence. An appeal to the passions, the prejudices, and the feelings of the nation, might confidently be made by those whose only object was its condemnation; which reflection, information, and consequently time, were required by men whose first impressions were not in its favour, but who were not inclined to yield absolutely to those impressions.

That a treaty involving a great variety of complicated national interests, and adjusting differences of long standing, which had excited strong reciprocal prejudices, would require a patient and laborious investigation, both of the instrument itself, and of the circumstances under which it was negotiated, before even those who are most conversant in diplomatic transactions could form a just estimate of its merits, would be conceded by all reflecting men. But an immense party in America, not in the habit of considering national compacts, without examining the circumstances under which that with Great Britain had been formed, or weighing the reasons which induced it; without understanding the instrument, and in many instances without reading it, rushed impetuously to its condemnation; and, confident that public opinion would be surprised by the suddenness, or stormed by the fury of the assault, expected that the President would be compelled to yield to its violence.

In the populous cities, meetings of the people were immediately summoned, in order to take into their consideration, and to express their opinions respecting an instrument, to comprehend the full extent of which, a statesman would need deep reflection in the quiet of his closet, aided by considerable inquiry. It may well be supposed that persons feeling some distrust of their capacity to form, intuitively, a correct judgment on a subject so complex, and disposed only to act knowingly, would be unwilling to make so hasty a decision, and consequently be disinclined to attend such meetings. Many intelligent men, therefore, stood aloof, while the most intemperate assumed, as usual, the name of the people; pronounced a

definitive and unqualified condemnation of every article in the treaty; and, with the utmost confidence, assigned reasons for their opinions, which, in many instances, had only an imaginary existence; and in some, were obviously founded on the strong prejudices which were entertained with respect to foreign powers. It is difficult to review the various resolutions and addresses to which the occasion gave birth, without feeling some degree of astonishment, mingled with humiliation, at perceiving such proofs of the deplorable fallibility of human reason.

The first meeting was held in Boston. The example of that city was soon followed by New York, Philadelphia, Baltimore, and Charleston; and, as if their addresses were designed at least as much for their fellow citizens as for their President, while one copy was transmitted to him, another was committed to the press. The precedent set by these large cities was followed, with wonderful rapidity, throughout the union; and the spirit in which this system of opposition originated sustained no diminution of violence in its progress.

On the 18th of July, at Baltimore, on his way to Mount Vernon, the President received the resolutions passed by the meeting at Boston, which were enclosed to him in a letter from the select men of that town. The answer to this letter and to these resolutions evinced the firmness with which he had resolved to meet the effort that was obviously making, to control the exercise of his constitutional functions, by giving a promptness and vigour to the expression of the sentiments of a party, which might impose it upon the world as the deliberate judgment of the public.

Addresses to the chief magistrate, and resolutions of town and country meetings, were not the only means which were employed to enlist the American people against the measure which had been advised by the senate. In an immense number of essays, the treaty was critically examined, and every argument which might operate on the judgment or prejudice of the public, was urged in the warm and glowing language of passion. To meet these efforts by counter efforts, was deemed indispensably necessary by the friends of that instrument; and the gazettes of the day are replete with appeals to the passions, and to the reason, of those who are the ultimate arbiters of every political question. That the treaty affected the interests of France not less than those of the United States, was, in this memorable controversy, asserted by the one party, with as much zeal as it was denied

by the other. These agitations furnished matter to the President for deep reflection, and for serious regret; but they appear not to have shaken the decision he had formed, or to have affected his conduct otherwise than to induce a still greater degree of circumspection in the mode of transacting the delicate business before him. On their first appearance, therefore, he resolved to hasten his return to Philadelphia, for the purpose of considering, at that place rather than at Mount Vernon, the memorial against the provision order, and the conditional ratification of the treaty. In a private letter to the secretary of state, of the 29th of July, accompanying the official communication of this determination, he stated more at large the motives which induced it. These were, the violent and extraordinary proceedings which were taking place, and might be expected, throughout the union; and his opinion that the memorial, the ratification, and the instructions which were framing, were of such vast magnitude as not only to require great individual consideration, but a solemn conjunct revision.

He viewed the opposition which the treaty was receiving from the meetings in different parts of the union, in a very serious light;—not because there was more weight in any of the objections than was foreseen at first,—for in some of them there was none, and in others, there were gross misrepresentations; nor as it respected himself personally, for that he declared should have no influence on his conduct. He plainly perceived, and was accordingly preparing his mind for, the obloquy which disappointment and malice were collecting to heap upon him. But he was alarmed on account of the effect it might have on France, and the advantage which the government of that country might be disposed to make of the spirit which was at work, to cherish a belief, that the treaty was calculated to favour Great Britain at her expense. Whether she believed or disbelieved these tales, their effect, he said, would be nearly the same.

"To sum up the whole," he added, "in a few words, I have never, since I have been in the administration of the government, seen a crisis which, in my opinion, has been so pregnant with interesting events, nor one from which more is to be apprehended, whether viewed on one side or the other. From New York there is, and I am told will further be, a counter current; [34] but how formidable it may appear I know not. If the same does not take place at Boston and other towns, it will afford but too strong evidence that the opposition is in a manner universal, and would make the ratification a very serious business indeed. But as it respects the French, even counter

resolutions would, for the reasons I have already mentioned, do little more than weaken, in a small degree, the effect the other side would have."

In a private letter of the 31st of July to the same gentleman, after repeating his determination to return to Philadelphia, and his impression of the wisdom, the temperateness, and the firmness for which the crisis most eminently called; he added, "for there is too much reason to believe, from the pains that have been taken before, at, and since the advice of the senate respecting the treaty, that the prejudices against it are more extensive than is generally imagined. How should it be otherwise? When no stone has been left unturned that could impress on the minds of the people the most arrant misrepresentation of facts: that their rights have not only been neglected, but absolutely sold; that there are no reciprocal advantages in the treaty: that the benefits are all on the side of Great Britain: and, what seems to have had more weight with them than all the rest, and has been most pressed, that the treaty is made with the design to oppress the French republic, in open violation of our treaty with that nation, and contrary too to every principal of gratitude and sound policy. In time, when passion shall have yielded to sober reason, the current may possibly turn; but, in the mean while, this government, in relation to France and England, may be compared to a ship between Scylla and Charybdis. If the treaty is ratified, the partisans of the French (or rather of war and confusion) will excite them to hostile measures, or at least to unfriendly sentiments;—if it is not, there is no foreseeing all the consequences that may follow as it respects Great Britain.

"It is not to be inferred from hence that I am or shall be disposed to quit the ground I have taken, unless circumstances more imperious than have yet come to my knowledge, should compel it; for there is but one straight course, and that is to seek truth, and to pursue it steadily. But these things are mentioned to show that a close investigation of the subject is more than ever necessary; and that there are strong evidences of the necessity of the most circumspect conduct in carrying the determination of government into effect, with prudence as it respects our own people, and with every exertion to produce a change for the better with Great Britain."

In a letter of the third of August, written to the same gentleman, in which he stated the increasing extent of hostility to the treaty, the President added:

"All these things do not shake my determination with respect to the proposed ratification, nor will they, unless something more imperious and unknown to me, should, in the opinion of yourself and the gentlemen with you, make it adviseable for me to pause."

Conditionally ratified by the president.

In the afternoon of the 11th of August the President arrived in Philadelphia; and on the next day, the question respecting the immediate ratification of the treaty was brought before the cabinet. The secretary of state maintained, singly, the opinion, that, during the existence of the provision order,[\[35\]](#) and during the war between Britain and France, this step ought not to be taken. This opinion did not prevail. The resolution was adopted to ratify the treaty immediately, and to accompany the ratification with a strong memorial against the provision order, which should convey, in explicit terms, the sense of the American government on that subject. By this course, the views of the executive were happily accomplished. The order was revoked, and the ratifications of the treaty were exchanged.

The treaty unpopular in the United States.

The President was most probably determined to adopt this course by the extreme intemperance with which the treaty was opposed, and the rapid progress which this violence was apparently making. It was obvious that, unless this temper could be checked, it would soon become so extensive, and would arrive at such a point of fury, as to threaten dangerous consequences. It was obviously necessary either to attempt a diminution of its action by rendering its exertions hopeless, and by giving to the treaty the weight of his character and influence, or to determine ultimately to yield to it. A species of necessity therefore seems to have been created for abandoning the idea, if it was ever taken up, of making the ratification of the treaty dependent on the revocation of the provision order.

The soundness of the policy which urged this decisive measure was proved by the event. The confidence which was felt in the judgment and virtue of the chief magistrate, induced many, who, swept away by the popular current, had yielded to the common prejudices, to re-examine, and discard opinions which had been too hastily embraced; and many were called forth by a desire to support the administration in measures actually adopted, to take a more active part in the general contest than they would

otherwise have pursued. The consequence was, that more moderate opinions respecting the treaty began to prevail.

In a letter from Mount Vernon of the 20th of September, addressed to General Knox, who had communicated to him the change of opinion which was appearing in the eastern states, the President expressed in warm terms the pleasure derived from that circumstance, and added: "Next to a conscientious discharge of my public duties, to carry along with me the approbation of my constituents, would be the highest gratification of which my mind is susceptible. But the latter being secondary, I can not make the former yield to it, unless some criterion more infallible than partial (if they are not party) meetings can be discovered as the touchstone of public sentiment. If any person on earth could, or the great power above would, erect the standard of infallibility in political opinions, no being that inhabits this terrestrial globe would resort to it with more eagerness than myself, so long as I remain a servant of the public. But as I have hitherto found no better guide than upright intentions, and close investigation, I shall adhere to them while I keep the watch, leaving it to those who will come after me, to explore new ways, if they like, or think them better."

Charge against the president rejected.

If the ratification of the treaty increased the number of its open advocates, it seemed also to give increased acrimony to the opposition. Such hold had the President taken of the affections of the people, that even his enemies had deemed it generally necessary to preserve, with regard to him, external marks of decency and respect. Previous to the mission of Mr. Jay, charges against the chief magistrate, though frequently insinuated, had seldom been directly made; and the cover under which the attacks upon his character were conducted, evidenced the caution with which it was deemed necessary to proceed. That mission visibly affected the decorum which had been usually observed towards him; and the ratification of the treaty brought sensations into open view, which had long been ill concealed. His military and political character was attacked with equal violence, and it was averred that he was totally destitute of merit, either as a soldier, or a statesman. The calumnies with which he was assailed were not confined to his public conduct; even his qualities as a man were the subjects of detraction. That he had violated the constitution in negotiating a treaty without the previous advice of the senate, and in embracing within that

treaty subjects belonging exclusively to the legislature, was openly maintained, for which an impeachment was publicly suggested; and that he had drawn from the treasury for his private use, more than the salary annexed to his office, was asserted without a blush.[\[36\]](#) This last allegation was said to be supported by extracts from the treasury accounts which had been laid before the legislature, and was maintained with the most persevering effrontery.

Though the secretary of the treasury denied that the appropriations made by the legislature had ever been exceeded, the atrocious charge was still confidently repeated; and the few who could triumph in any spot which might tarnish the lustre of Washington's fame, felicitated themselves on the prospect of obtaining a victory over the reputation of a patriot, to whose single influence, they ascribed the failure of their political plans. With the real public, the confidence felt in the integrity of the chief magistrate remained unshaken; but so imposing was the appearance of the documents adduced, as to excite an apprehension that the transaction might be placed in a light to show that some indiscretion, in which he had not participated, had been inadvertently committed.

This state of anxious suspense was of short duration. The late secretary of the treasury, during whose administration of the finances this speculation was said to have taken place, came forward with a full explanation of the fact. It appeared that the President himself had never touched any part of the compensation annexed to his office, but that the whole was received, and disbursed, by the gentleman who superintended the expenses of his household. That it was the practice of the treasury, when a sum had been appropriated for the current year, to pay it to that gentleman occasionally, as the situation of the family might require. The expenses at some periods of the year exceeded, and at others fell short of the allowance for the quarter; so that at some times money was paid in advance on account of the ensuing quarter, and at others, that which was due at the end of the quarter was not completely drawn out. The secretary entered into an examination of the constitution and laws to show that this practice was justifiable, and illustrated his arguments by many examples in which an advance on account of money appropriated to a particular object, before the service was completed, would be absolutely necessary. However this might be, it was a transaction in which the President personally was unconcerned.[\[37\]](#)

When possessed of the entire fact, the public viewed, with just indignation, this attempt to defame a character which was the nation's pride. Americans felt themselves involved in this atrocious calumny on their most illustrious citizen; and its propagators were frowned into silence.

Mr. Randolph resigns. Is succeeded by Colonel Pickering.
Colonel McHenry appointed secretary of war.

On the 19th of August, the secretary of state had resigned[38] his place in the administration, and some time elapsed before a successor was appointed.[39] At length, Colonel Pickering was removed to the department of state, and Mr. M'Henry, a gentleman who had served in the family of General Washington, and in the congress prior to the establishment of the existing constitution, was appointed to the department of war. By the death of Mr. Bradford, a vacancy was also produced in the office of attorney general, which was filled by Mr. Lee, a gentleman of considerable eminence at the bar, and in the legislature of Virginia.

Many of those embarrassments in which the government, from its institution, had been involved, were now ended, or approaching their termination.

The opposition to the laws, which had so long been made in the western counties of Pennsylvania, existed no longer.

Treaty with the Indians north-west of the Ohio.

On the third of August, a definitive treaty was concluded by General Wayne with the hostile Indians north-west of the Ohio, by which the destructive and expensive war which had long desolated that frontier, was ended in a manner perfectly agreeable to the United States. An accommodation had taken place with the powerful tribes of the south also; and to preserve peace in that quarter, it was only necessary to invest the executive with the means of restraining the incursions which the disorderly inhabitants of the southern frontier frequently made into the Indian territory; incursions, of which murder was often the consequence.

Few subjects had excited more feeling among the people, or in the government of the United States, than the captivity of their fellow citizens in Algiers. Even this calamity had been seized as a weapon which might be wielded with some effect against the President. Overlooking the exertions he had made for the attainment of peace, and the liberation of the American captives; and regardless of his inability to aid negotiation by the exhibition

of force, the discontented ascribed the long and painful imprisonment of their unfortunate brethren to a carelessness in the administration respecting their sufferings, and to that inexhaustible source of accusation,—its policy with regard to France and Britain.

Treaty with Algiers.

After the failure of several attempts to obtain a peace with the regency of Algiers, a treaty was, at length, negotiated on terms which, though disadvantageous, were the best that could be obtained.

The exertions of the executive to settle the controversy with Spain respecting boundary, and to obtain the free use of the Mississippi, had been unavailing. A negotiation in which Mr. Short and Mr. Carmichael were employed at Madrid, had been protracted by artificial delays on the part of the Spanish cabinet, until those ministers had themselves requested that the commission should be terminated.

Treaty with Spain.

At length, Spain, embarrassed by the war in which she was engaged, discovered symptoms of a temper more inclined to conciliation, and intimated to the secretary of state, through her commissioners at Philadelphia, that a minister, deputed on the special occasion, of higher rank than Mr. Short, who was a resident, would be able to expedite the negotiation. On receiving this intimation, the President, though retaining a high and just confidence in Mr. Short, nominated Mr. Pinckney, in November, 1794, as envoy extraordinary to his Catholic Majesty. Mr. Pinckney repaired in the following summer to Madrid, and a treaty was concluded on the 20th of October, in which the claims of the United States, on the important points of boundary, and the Mississippi, were fully conceded.

Thus were adjusted, so far as depended on the executive, all those external difficulties with which the United States had long struggled; most of which had originated before the establishment of the existing government, and some of which portended calamities that no common share of prudence could have averted.

Meeting of Congress.

Although the signature of the treaties with Spain and Algiers had not been officially announced at the meeting of congress, the state of the

negotiations with both powers was sufficiently well understood to enable the President with confidence to assure the legislature, in his speech at the opening of the session, that those negotiations were in a train which promised a happy issue.

President's speech.

After expressing his gratification at the prosperous state of American affairs, the various favourable events which have been already enumerated were detailed in a succinct statement, at the close of which he mentioned the British treaty, which, though publicly known, had not before been communicated officially to the house of representatives.

"This interesting summary of our affairs," continued the speech, "with regard to the powers between whom and the United States controversies have subsisted; and with regard also to our Indian neighbours with whom we have been in a state of enmity or misunderstanding, opens a wide field for consoling and gratifying reflections. If by prudence and moderation on every side, the extinguishment of all the causes of external discord which have heretofore menaced our tranquillity, on terms compatible with our national faith and honour, shall be the happy results,—how firm and how precious a foundation will have been laid for accelerating, maturing, and establishing the prosperity of our country."

After presenting an animated picture of the situation of the United States, and recommending several objects to the attention of the legislature, the President concluded with observing: "Temperate discussion of the important subjects that may arise in the course of the session, and mutual forbearance where there is a difference in opinion, are too obvious and necessary for the peace, happiness, and welfare of our country, to need any recommendation of mine."

In the senate, an address was reported which echoed back the sentiments of the speech.

In this house of representatives, as in the last, the party in opposition to the administration had obtained a majority. This party was unanimously hostile to the treaty with Great Britain; and it was expected that their answer to the speech of the President would indicate their sentiments on a subject which continued to agitate the whole American people. The answer reported by the committee contained a declaration, that the confidence of his fellow citizens in the chief magistrate remained undiminished.

On a motion, to strike out the words importing this sentiment, it was averred, that the clause asserted an untruth. It was not true that the confidence of the people in the President was undiminished. By a recent transaction it had been considerably impaired; and some gentlemen declared that their own confidence in him was lessened.

By the friends of the administration, the motion was opposed with great zeal, and the opinion that the confidence of the people in their chief magistrate remained unshaken, was maintained with ardour. But they were outnumbered.

To avoid a direct vote on the proposition, it was moved, that the address should be recommitted. This motion succeeded, and, two members being added to the committee, an answer was reported in which the clause objected to was so modified as to be free from exception.

That part of the speech which mentioned the treaty with Great Britain was alluded to in terms which, though not directly expressive of disapprobation, were sufficiently indicative of the prevailing sentiment.

Early in the month of January the President transmitted to both houses of congress a message, accompanying certain communications from the French government which were well calculated to cherish those ardent feelings that prevailed in the legislature.

It was the fortune of Mr. Monroe to reach Paris, soon after the death of Robespierre, and the fall of the Jacobins. On his reception as the minister of the United States, which was public, and in the convention, he gave free scope to the genuine feelings of his heart; and, at the same time, delivered to the President of that body, with his credentials, two letters addressed by the secretary of state to the committee of public safety. These letters were answers to one written by the committee of safety to the congress of the United States. The executive department being the organ through which all foreign intercourse was to be conducted, each branch of the legislature had passed a resolution directing this letter to be transmitted to the President, with a request, that he would cause it to be answered in terms expressive of their friendly dispositions towards the French republic.

So fervent were the sentiments expressed on this occasion, that the convention decreed that the flag of the American and French republics should be united together, and suspended in its own hall, in testimony of eternal union and friendship between the two people. To evince the

impression made on his mind by this act, and the grateful sense of his constituents, Mr. Monroe presented to the convention the flag of the United States, which he prayed them to accept as a proof of the sensibility with which his country received every act of friendship from its ally, and of the pleasure with which it cherished every incident which tended to cement and consolidate the union between the two nations.

Mr. Adet succeeds Mr. Fauchet.

The committee of safety, disregarding the provisions of the American constitution, although their attention must have been particularly directed to them by the circumstance that the letter to congress was referred by that body to the executive, again addressed the legislature in terms adapted to that department of government which superintends its foreign intercourse, and expressive, among other sentiments, of the sensibility with which the French nation had perceived those sympathetic emotions with which the American people had viewed the vicissitudes of her fortune. Mr. Adet, who was to succeed Mr. Fauchet at Philadelphia, and who was the bearer of this letter, also brought with him the colours of France, which he was directed to present to the United States. He arrived in the summer; but probably in the idea that these communications were to be made by him directly to congress, did not announce them to the executive until late in December.

1796

The first day of the new year was named for their reception; when the colours were delivered to the President, and the letter to congress also was placed in his hands.

In executing this duty, Mr. Adet addressed a speech to the President, which, in the glowing language of his country, represented France as struggling, not only for her own liberty, but for that of the human race. "Assimilated to, or rather identified with free people by the form of her government, she saw in them," he said, "only friends and brothers. Long accustomed to regard the American people as her most faithful allies, she sought to draw closer the ties already formed in the fields of America, under the auspices of victory, over the ruins of tyranny."

To answer this speech was a task of some delicacy. It was necessary to express feelings adapted to the occasion, without implying sentiments with respect to the belligerent powers, which might be improper to be used by

the chief magistrate of a neutral country. With a view to both these objects, the President made the following reply:

"Born, sir, in a land of liberty; having early learned its value; having engaged in a perilous conflict to defend it; having, in a word, devoted the best years of my life to secure its permanent establishment in my own country; my anxious recollections, my sympathetic feelings, and my best wishes, are irresistibly attracted, whensoever, in any country, I see an oppressed nation unfurl the banners of freedom. But above all, the events of the French revolution have produced the deepest solicitude, as well as the highest admiration. To call your nation brave, were to pronounce but common praise. Wonderful people! Ages to come will read with astonishment the history of your brilliant exploits. I rejoice that the period of your toils, and of your immense sacrifices is approaching. I rejoice that the interesting revolutionary movements of so many years have issued in the formation of a constitution,[\[40\]](#) designed to give permanency to the great object for which you have contended. I rejoice that liberty, which you have so long embraced with enthusiasm,—liberty, of which you have been the invincible defenders, now finds an asylum in the bosom of a regularly organized government;—a government which, being formed to secure the happiness of the French people, corresponds with the ardent wishes of my heart, while it gratifies the pride of every citizen of the United States by its resemblance to their own. On these glorious events, accept, sir, my sincere congratulations.

"In delivering to you these sentiments, I express not my own feelings only, but those of my fellow citizens in relation to the commencement, the progress, and the issue of the French revolution: and they will certainly join with me in purest wishes to the Supreme Being, that the citizens of our sister republic, our magnanimous allies, may soon enjoy in peace, that liberty which they have purchased at so great a price, and all the happiness that liberty can bestow.

"I receive, sir, with lively sensibility, the symbol of the triumphs, and of the enfranchisements of your nation, the colours of France, which you have now presented to the United States. The transaction will be announced to congress, and the colours will be deposited with the archives of the United States, which are at once the evidence and the memorials of their freedom

and independence; may these be perpetual! and may the friendship of the two republics be commensurate with their existence."

The address of Mr. Adet, the answer of the President, and the colours of France, were transmitted to congress with the letter from the committee of safety.

In the house of representatives a resolution was moved, requesting the President to make known to the representatives of the French republic, the sincere and lively sensations which were excited by this honourable testimony of the existing sympathy and affections of the two republics; that the house rejoiced in an opportunity of congratulating the French republic on the brilliant and glorious achievements accomplished during the present afflictive war; and hoped that those achievements would be attended with a perfect attainment of their object, the permanent establishment of the liberty and happiness of that great and magnanimous people.

The letter to congress having come from the committee of safety, which, under the revolutionary system, was the department that was charged with foreign intercourse; and a constitution having been afterwards adopted in France, by which an executive directory was established, to which all the foreign relations of the government were confided, an attempt was made to amend this resolution, by substituting the directory for the representatives of the people. But this attempt failed; after which the resolution passed unanimously.

In the senate also a resolution was offered, expressive of the sensations of that house, and requesting the President to communicate them to the proper organ of the French republic. An amendment was moved to vary this resolution so as to express the sentiment to the President, and omit the request that it should be communicated to the French republic. The complimentary correspondence between the two nations, had, it was said, reached a point, when, if ever, it ought to close. This amendment, though strenuously combated by the opposition, was adopted.

In February, the treaty with Great Britain was returned, in the form advised by the senate, ratified by his Britannic Majesty. The constitution declaring a treaty, when made, the supreme law of the land, the President announced it officially to the people in a proclamation, requiring from all persons its observance and execution; a copy of which was transmitted to each house on the 1st of March.

The party which had obtained the majority in one branch of the legislature, having openly denied the right of the President to negotiate a treaty of commerce, was not a little dissatisfied at his venturing to issue this proclamation before the sense of the house of representatives had been declared on the obligation of the instrument.

The house of representatives call upon the president for papers relating to the treaty with Great Britain.

This dissatisfaction was not concealed. On the 2d of March, Mr. Livingston laid upon the table a resolution, requesting the President "to lay before the house a copy of the instructions to the minister of the United States, who negotiated the treaty with the king of Great Britain, communicated by his message of the 1st of March, together with the correspondence and other documents relative to the said treaty."

On the 7th of March, he amended this resolution by adding the words, "excepting such of the said papers as any existing negotiation may render improper to be disclosed."

After some debate, Mr. Madison proposed to modify the amendment of Mr. Livingston, so as to except such papers, as in the judgment of the President, it might be inconsistent with the interest of the United States at this time to disclose. This proposition was rejected by a majority of ten voices, and the discussion of the original resolution was resumed. The debate soon glided into an argument on the nature and extent of the treaty making power.

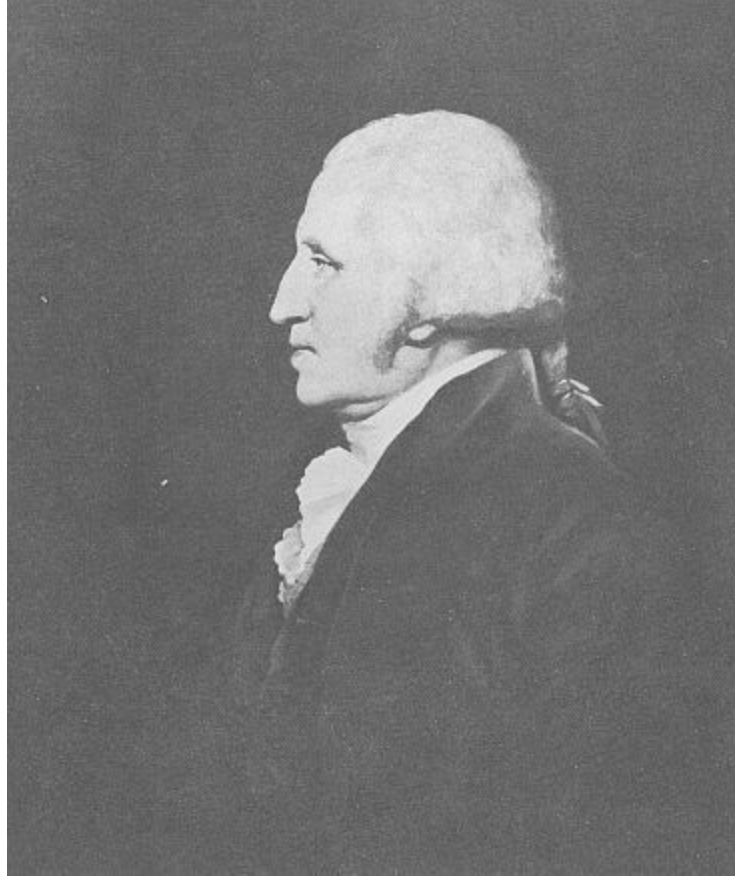
The friends of the administration maintained, that a treaty was a contract between two nations, which, under the constitution, the President, by and with the advice and consent of the senate, had a right to make; and that it was made when, by and with such advice and consent, it had received his final act. Its obligations then became complete on the United States; and to refuse to comply with its stipulations, was to break the treaty, and to violate the faith of the nation.

The opposition contended, that the power to make treaties, if applicable to every object, conflicted with powers which were vested exclusively in congress. That either the treaty making power must be limited in its operation, so as not to touch objects committed by the constitution to congress, or the assent and co-operation of the house of representatives must be required to give validity to any compact, so far as it might

comprehend those objects. A treaty, therefore, which required an appropriation of money, or any act of congress to carry it into effect, had not acquired its obligatory force until the house of representatives had exercised its powers in the case. They were at full liberty to make, or to withhold, such appropriation, or other law, without incurring the imputation of violating any existing obligation, or of breaking the faith of the nation.

The debate on this question was animated, vehement, and argumentative; all the party passions were enlisted in it; and it was protracted until the 24th of March, when the resolution was carried in the affirmative by sixty-two to thirty-seven voices. The next day, the committee appointed to present it to the chief magistrate reported his answer, which was, "that he would take the resolution into consideration."

The situation in which this vote placed the President was peculiarly delicate. In an elective government, the difficulty of resisting the popular branch of the legislature is at all times great, but is particularly so when the passions of the public have been strongly and generally excited. The popularity of a demand for information, the large majority by which that demand was supported, the additional force which a refusal to comply with it would give to suspicions already insinuated, that circumstances had occurred in the negotiation which the administration dared not expose, and that the President was separating himself from the representatives of the people, furnished motives, not lightly to be over-ruled, for yielding to the request which had been made.



George Washington

From the profile portrait by James Sharples

Sharples painted two pictures of Washington—this portrait showing him in the costume of a country gentleman, distinguished as being the only profile of the First President ever painted, and a full face presentation of him in military dress, reproduced in Volume IV of this work.

Sharples, an English painter by birth, was recommended by the great George Romney as being equipped to produce a work "worthy of the greatest of Americans." His success is attested by the praise of Washington's adopted son, who declared the Sharples portraits to be "the truest likenesses ever made," and by Ralph Waldo Emerson, who saw the pictures later in England and wrote: "I would willingly have crossed the Atlantic, if only to look on these portraits."

Courtesy Herbert L. Pratt

But these considerations were opposed by others which, though less operative with men who fear to deserve the public favour by hazarding its loss, possess an irresistible influence over a mind resolved to pursue steadily the path of duty, however it may abound with thorns.

That the future diplomatic transactions of the government might be seriously and permanently affected by establishing the principle that the house of representatives could demand as a right, the instructions given to a foreign minister, and all the papers connected with a negotiation, was too apparent to be unobserved. Nor was it less obvious that a compliance with the request now made, would go far in establishing this principle. The form of the request, and the motives which induced it, equally led to this conclusion. It left nothing to the discretion of the President with regard to the public interests; and the information was asked for the avowed purpose of determining whether the house of representatives would give effect to a public treaty.

It was also a subject for serious reflection, that in a debate unusually elaborate, the house of representatives had claimed a right of interference in the formation of treaties, which, in the judgment of the President, the constitution had denied them. Duties the most sacred requiring that he should resist this encroachment on the department which was particularly confided to him, he could not hesitate respecting the course it became him to take; and on the 30th of March he returned the following answer to the resolution which had been presented to him.

"Gentlemen of the house of representatives,

"With the utmost attention I have considered your resolution of the 24th instant, requesting me to lay before your house, a copy of the instructions to the minister of the United States, who negotiated the treaty with the king of Great Britain, together with the correspondence and other documents relative to that treaty, excepting such of the said papers, as any existing negotiation may render improper to be disclosed.

"In deliberating upon this subject, it was impossible for me to lose sight of the principle which some have avowed in its discussion, or to avoid extending my views to the consequences which must flow from the admission of that principle.

"I trust that no part of my conduct has ever indicated a disposition to withhold any information which the constitution has enjoined it upon the

President as a duty to give, or which could be required of him by either house of congress as a right; and with truth I affirm, that it has been, as it will continue to be, while I have the honour to preside in the government, my constant endeavour to harmonize with the other branches thereof, so far as the trust delegated to me by the people of the United States, and my sense of the obligation it imposes, to preserve, protect and defend the constitution[\[41\]](#) will permit.

"The nature of foreign negotiations require caution, and their success must often depend on secrecy: and even when brought to a conclusion, a full disclosure of all the measures, demands, or eventual concessions which may have been proposed or contemplated would be extremely impolitic; for this might have a pernicious influence on future negotiations, or produce immediate inconveniences, perhaps danger and mischief to other persons. The necessity of such caution and secrecy was one cogent reason for vesting the power of making treaties in the President, with the advice and consent of the senate, the principle on which that body was formed confining it to a small number of members.

"To admit then a right in the house of representatives to demand, and to have as a matter of course, all the papers respecting a negotiation with a foreign power, would be to establish a dangerous precedent.

"It does not occur that the inspection of the papers asked for, can be relative to any purpose under the cognizance of the house of representatives, except that of an impeachment, which the resolution has not expressed. I repeat that I have no disposition to withhold any information which the duty of my station will permit, or the public good shall require to be disclosed; and in fact, all the papers affecting the negotiation with Great Britain were laid before the senate, when the treaty itself was communicated for their consideration and advice.

"The course which the debate has taken on the resolution of the house, leads to some observations on the mode of making treaties under the constitution of the United States.

"Having been a member of the general convention, and knowing the principles on which the constitution was formed, I have ever entertained but one opinion upon this subject; and from the first establishment of the government to this moment, my conduct has exemplified that opinion. That the power of making treaties is exclusively vested in the President, by and

with the advice and consent of the senate, provided two-thirds of the senators present concur; and that every treaty so made and promulgated, thenceforward becomes the law of the land. It is thus that the treaty making power has been understood by foreign nations: and in all the treaties made with them, *we* have declared, and *they* have believed, that when ratified by the President with the advice and consent of the senate, they became obligatory. In this construction of the constitution, every house of representatives has heretofore acquiesced; and until the present time, not a doubt or suspicion has appeared to my knowledge, that this construction was not a true one. Nay, they have more than acquiesced; for until now, without controverting the obligation of such treaties, they have made all the requisite provisions for carrying them into effect.

"There is also reason to believe that this construction agrees with the opinions entertained by the state conventions when they were deliberating on the constitution; especially by those who objected to it, because there was not required in commercial treaties, the consent of two-thirds of the whole number of the members of the senate, instead of two-thirds of the senators present; and because in treaties respecting territorial and certain other rights and claims, the concurrence of three-fourths of the whole number of the members of both houses respectively was not made necessary.

"It is a fact declared by the general convention and universally understood, that the constitution of the United States was the result of a spirit of amity and mutual concession. And it is well known, that under this influence, the smaller states were admitted to an equal representation in the senate with the larger states; and that this branch of the government was invested with great powers; for on the equal participation of those powers, the sovereignty and political safety of the smaller states were deemed essentially to depend.

"If other proofs than these and the plain letter of the constitution itself be necessary to ascertain the point under consideration, they may be found in the journals of the general convention which I have deposited in the office of the department of state. In these journals it will appear, that a proposition was made 'that no treaty should be binding on the United States which was not ratified by a law,' and that the proposition was explicitly rejected.

He declines sending them.

"As therefore it is perfectly clear to my understanding that the assent of the house of representatives is not necessary to the validity of a treaty; as the treaty with Great Britain exhibits in itself all the objects requiring legislative provision; and on these the papers called for can throw no light; and as it is essential to the due administration of the government that the boundaries fixed by the constitution between the different departments should be preserved; a just regard to the constitution, and to the duty of my office, under all the circumstances of this case, forbid a compliance with your request."

The terms in which this decided, and, it would seem, unexpected negative to the call for papers was conveyed, appeared to break the last cord of that attachment which had theretofore bound some of the active leaders of the opposition to the person of the President. Amidst all the agitations and irritations of party, a sincere respect, and real affection for the chief magistrate, the remnant of former friendship, had still lingered in the bosoms of some who had engaged with ardour in the political contests of the day. But, if the last spark of this affection was not now extinguished, it was at least concealed under the more active passions of the moment.

Debates upon the treaty making power.

A motion to refer the message of the President to a committee of the whole house, was carried by a large majority. In committee, resolutions were moved by Mr. Blount of North Carolina, declaratory of the sense of the house respecting its own power on the subject of treaties. These resolutions take a position less untenable than had been maintained in argument, and rather inexplicit on an essential part of the question. Disclaiming a power to interfere in making treaties, they assert the right of the house of representatives, whenever stipulations are made on subjects committed by the constitution to congress, to deliberate on the expediency of carrying them into effect, without deciding what degree of obligation the treaty possesses on the nation, so far as respects those points, previous to such deliberation. After a debate in which the message was freely criticised, the resolutions were carried, fifty-seven voting in the affirmative, and thirty-five in the negative.

In the course of the month of March, the treaties with his Catholic majesty, and with the Dey of Algiers, had been ratified by the President, and were laid before congress. On the 13th of April, in a committee of the

whole house on the state of the union, the instant the chairman was seated, Mr. Sedgewick moved "that provision ought to be made by law for carrying into effect with good faith the treaties lately concluded with the Dey and Regency of Algiers, the King of Great Britain, the King of Spain, and certain Indian tribes north-west of the Ohio."

This motion produced a warm altercation. The members of the majority complained loudly of the celerity with which it had been made, and resented the attempt to blend together four treaties in the same resolution, after the solemn vote entered upon their journals, declaratory of their right to exercise a free discretion over the subject, as an indignity to the opinions and feelings of the house.

After a discussion manifesting the irritation which existed, the resolution was amended, by changing the word "treaties" from the plural to the singular number, and by striking out the words "Dey and Regency of Algiers, the King of Great Britain, and certain Indian tribes north-west of the river Ohio," so that only the treaty with the King of Spain remained to be considered.

Mr. Gallatin then objected to the words "provision ought to be made by law," as the expression seemed to imply a negative of the principle laid down in their resolution, that the house was at perfect liberty to pass, or not to pass, any law for giving effect to a treaty. In lieu of them, he wished to introduce words declaring the expediency of passing the necessary laws. This amendment was objected to as an innovation on the forms which had been invariably observed; but it was carried; after which, the words "with good faith," were also discarded.

The resolution thus amended was agreed to without a dissenting voice; and then, similar resolutions were passed respecting the treaties with Algiers, and with the Indians north-west of the Ohio.

Upon the bill for making appropriations to carry into execution the treaty with Great Britain.

This business being despatched, the treaty with Great Britain was brought before the house. The friends of that instrument urged an immediate decision of the question. On a subject which had so long agitated the whole community, the judgment of every member, they believed, was completely formed; and the hope to make converts by argument was desperate. In fact, they appeared to have entertained the opinion that the majority would not

dare to encounter the immense responsibility of breaking that treaty, without previously ascertaining that the great body of the people were willing to meet the consequences of the measure. But the members of the opposition, though confident of their power to reject the resolution, called for its discussion. The expectation might not unreasonably have been entertained, that the passions belonging to the subject would be so inflamed by debate, as to produce the expression of a public sentiment favourable to their wishes; and, if in this they should be disappointed, it would be certainly unwise, either as a party, or as a branch of the legislature, to plunge the nation into embarrassments in which it was not disposed to entangle itself, and from which the means of extricating it could not be distinctly perceived.

The minority soon desisted from urging an immediate decision of the question; and the spacious field which was opened by the propositions before the house, seemed to be entered with equal avidity and confidence by both parties.

At no time perhaps have the members of the national legislature been stimulated to great exertions by stronger feelings than impelled them on this occasion. Never has a greater display been made of argument, of eloquence, and of passion; and never has a subject been discussed in which all classes of their fellow citizens took a deeper interest.

To those motives which a doubtful contest for power, and for victory, can not fail to furnish, were added others of vast influence on the human mind. Those who supported the resolution, declaring the expediency of carrying the treaty into effect, firmly believed that the faith of the nation was pledged, and that its honour, its character, and its constitution, depended on the vote about to be given. They also believed that the best interests of the United States required an observance of the compact as formed. In itself, it was thought as favourable as the situation of the contracting parties, and of the world, entitled them to expect; but its chief merit consisted in the adjustment of ancient differences, and in its tendency to produce future amicable dispositions, and friendly intercourse. If congress should refuse to perform this treaty on the part of the United States, a compliance on the part of Great Britain could not be expected. The posts on the great lakes would still be occupied by their garrisons; no compensation would be made for American vessels illegally captured; the hostile dispositions which had been

excited would be restored with increased aggravation; and that these dispositions must lead infallibly to war, was implicitly believed. They also believed that the political subjugation of their country would be the inevitable consequence of a war with Britain, during the existing impassioned devotion of the United States to France.

The opposite party was undoubtedly of opinion that the treaty contained stipulations really injurious to the United States. Several favourite principles to which they attached much importance, were relinquished by it; and some of the articles relative to commerce, were believed to be unequal in their operation. Nor ought the sincerity with which their opinion on the constitutional powers of the house had been advanced, to be questioned. In the fervour of political discussion, that construction which, without incurring the imputation of violating the national faith, would enable the popular branch of the legislature to control the President and senate in making treaties, may have been thought the safe and the correct construction. But no consideration appears to have had more influence than the apprehension that the amicable arrangements made with Great Britain, would seriously affect the future relations of the United States with France.

Might a conjecture on this subject be hazarded, it would be that, in the opinion of many intelligent men, the preservation of that honest and real neutrality between the belligerent powers, at which the executive had aimed, was impracticable; that America would probably be forced into the war; and that the possibility of a rupture with France was a calamity too tremendous not to be avoided at every hazard.

As had been foreseen, this animated debate was on a subject too deeply and immediately interesting to the people, not to draw forth their real sentiments. The whole country was agitated; meetings were again held throughout the United States; and the strength of parties was once more tried.

The fallacy of many of the objections to the treaty had been exposed, the odium originally excited against it had been diminished, the belief that its violation would infallibly precipitate the nation into a war, if not universal, was extensive. These considerations brought reflecting men into action; and the voice of the nation was pronounced unequivocally with the minority in the house of representatives.

This manifestation of the public sentiment was decisive with congress. On the 29th of April the question was taken in the committee of the whole, and was determined, by the casting vote of the chairman, in favour of the expediency of making the necessary laws. The resolution was finally carried, fifty-one voting in the affirmative, and forty-eight in the negative.

That necessity to which a part of the majority in the house of representatives had reluctantly yielded, operated on no other subject; nor did it affect the strength of parties. Their opinion respecting that system of policy which ought to be observed in their external relations, remained the same; and their partialities and prejudices for and against foreign nations, sustained no diminution.

With regard to internal affairs also, the same spirit was retained.

So excessive had been the jealousy entertained by the opposition against a military force of any kind, that, even under the pressure of the Algerine war, the bill providing a naval armament could not be carried through the house without the insertion of a section suspending all proceedings under the act, should that war be terminated. The event which was to arrest the executive in the prosecution of this work having occurred, not a single frigate could be completed, without further authority from the legislature. This circumstance was the more important, as a peace had not been concluded with Tunis, or Tripoli; and, of consequence, the Mediterranean could not yet be safely navigated by the vessels of the United States. The President called the attention of congress to this subject; and stated the loss which would accrue from the sudden interruption of the work, and dispersion of the workmen. A bill to enable him to complete three, instead of six frigates, was with difficulty carried through the house.

But, except the treaty with Great Britain, no subject was brought forward in which parties felt a deeper interest, than on those questions which related to the revenue.

Notwithstanding the increasing productiveness of the duties on external commerce, this resource had not yet become entirely adequate to the exigencies of the nation. To secure the complete execution of the system for gradually redeeming the public debt, without disregarding those casualties to which all nations are exposed, it was believed that some additional aids to the treasury would be required. Upon the nature of these aids, much contrariety of opinion prevailed. The friends of the administration were in

favour of extending the system of indirect internal taxation: but, constituting the minority in one branch of the legislature, they could carry no proposition on which the opposition was united; and the party which had become the majority in the house of representatives, had been generally hostile to that mode of obtaining revenue. From an opinion that direct taxes were recommended by intrinsic advantages, or that the people would become more attentive to the charges against the administration, should their money be drawn from them by visible means, those who wished power to change hands, had generally manifested a disposition to oblige those who exercised it, to resort to a system of revenue, by which a great degree of sensibility will always be excited. The indirect taxes proposed in the committee of ways and means were strongly resisted; and only that which proposed an augmentation of the duty on carriages for pleasure was passed into a law.

Congress adjourns.

On the first day of June, this long and interesting session was terminated. No preceding legislature had been engaged in discussions by which their own passions, or those of their constituents were more strongly excited; nor on subjects more vitally important to the United States.

From this view of the angry contests of party, it may not be unacceptable to turn aside for a moment, and to look back to a transaction in which the movements of a feeling heart discover themselves, not the less visibly, for being engaged in a struggle with the stern duties of a public station.

The president endeavors to procure the liberation of Lafayette.

No one of those foreigners who, during the war of the revolution, had engaged in the service of the United States, had embraced their cause with so much enthusiasm, or had held so distinguished a place in the affections of General Washington, as the Marquis de Lafayette. The attachment of these illustrious personages to each other had been openly expressed, and had yielded neither to time, nor to the remarkable vicissitude of fortune with which the destinies of one of them had been chequered. For his friend, while guiding the course of a revolution which fixed the anxious attention of the world, or while a prisoner in Prussia, or in the dungeon of Olmutz, the President manifested the same esteem, and felt the same solicitude. The extreme jealousy, however, with which the persons who administered the government of France, as well as a large party in America, watched his

deportment towards all those whom the ferocious despotism of the Jacobins had exiled from their country, imposed upon him the painful necessity of observing great circumspection in his official conduct, on this delicate subject. A formal interposition in favour of the virtuous and unfortunate victim of their furious passions, would have been unavailing. Without benefiting the person whom it would be designed to aid, it might produce serious political mischief. But the American ministers employed at foreign courts were instructed to seize every fair occasion to express, unofficially, the interest taken by the President in the fate of Lafayette; and to employ the most eligible means in their power to obtain his liberty, or to meliorate his situation. A confidential person^[42] had been sent to Berlin to solicit his discharge: but before this messenger had reached his destination, the King of Prussia had delivered over his illustrious prisoner to the Emperor of Germany. Mr. Pinckney had been instructed not only to indicate the wishes of the President to the Austrian minister at London, but to endeavour, unofficially, to obtain the powerful mediation of Britain; and had at one time flattered himself that the cabinet of St. James would take an interest in the case; but this hope was soon dissipated.

After being disappointed in obtaining the mediation of the British cabinet, the President addressed the following letter to the Emperor of Germany.

"It will readily occur to your majesty that occasions may sometimes exist, on which official considerations would constrain the chief of a nation to be silent and passive in relation even to objects which affect his sensibility and claim his interposition as a man. Finding myself precisely in this situation at present, I take the liberty of writing this private letter to your majesty, being persuaded that my motives will also be my apology for it.

"In common with the people of this country, I retain a strong and cordial sense of the services rendered to them by the Marquis de Lafayette; and my friendship for him has been constant and sincere. It is natural, therefore, that I should sympathize with him and his family in their misfortunes, and endeavour to mitigate the calamities they experience, among which his present confinement is not the least distressing.

"I forbear to enlarge on this delicate subject. Permit me only to submit to your majesty's consideration, whether his long imprisonment, and the

confiscation of his estate, and the indigence and dispersion of his family, and the painful anxieties incident to all these circumstances, do not form an assemblage of sufferings which recommend him to the mediation of humanity? allow me, sir, on this occasion, to be its organ; and to entreat that he may be permitted to come to this country, on such conditions, and under such restrictions, as your majesty may think it expedient to prescribe.

"As it is a maxim with me not to ask what, under similar circumstances, I would not grant, your majesty will do me the justice to believe that this request appears to me to correspond with those great principles of magnanimity and wisdom, which form the basis of sound policy, and durable glory."

This letter was transmitted to Mr. Pinckney to be conveyed to the Emperor through his minister at London. How far it operated in mitigating immediately the rigour of Lafayette's confinement, or in obtaining his liberation, remains unascertained.

CHAPTER IV.

Letter from General Washington to Mr. Jefferson.... Hostile measures of France against the United States.... Mr. Monroe recalled and General Pinckney appointed to succeed him.... General Washington's valedictory address to the people of the United States.... The Minister of France endeavours to influence the approaching election.... The President's speech to Congress.... He denies the authenticity of certain spurious letters published in 1776.... John Adams elected President, and Thomas Jefferson Vice President.... General Washington retires to Mount Vernon.... Political situation of the United States at this period.... The French government refuses to receive General Pinckney as Minister.... Congress is convened.... President's speech.... Three envoys extraordinary deputed to France.... Their treatment.... Measures of hostility adopted by the American government against France.... General Washington appointed Commander-in-chief of the American army.... His death.... And character.

1796

The confidential friends of the President had long known his fixed purpose to retire from office at the end of his second term, and the people generally suspected it. Those who dreaded a change of system, in changing the person, of the chief magistrate, manifested an earnest desire to avoid this hazard, by being permitted once more to offer to the public choice a person who, amidst all the fierce conflicts of party, still remained the object of public veneration. But his resolution was to be shaken only by the obvious approach of a perilous crisis, which, endangering the safety of the nation, would make it unworthy of his character, and incompatible with his principles, to retreat from its service. In the apprehension that the co-operation of external with internal causes might bring about such a crisis, he had yielded to the representations of those who urged him to leave himself master of his conduct, by withholding a public declaration of his intention, until the propriety of affording a reasonable time to fix on a successor

should require its disclosure. "If," said Colonel Hamilton in a letter on this subject of the fifth of July, "a storm gathers, how can you retreat? this is a most serious question."

The suspense produced in the public opinion by this silence on the part of the chief magistrate, seemed to redouble the efforts of those who laboured to rob him of the affection of the people, and to attach odium to the political system which he had pursued. As passion alone is able successfully to contend with passion, they still sought, in the hate which America bore to Britain, and in her love to France, for the most powerful means with which to eradicate her love to Washington. Amongst the various artifices employed to effect this object, was the publication of those queries which had been propounded by the President to his cabinet council, previous to the arrival of Mr. Genet. This publication was intended to demonstrate the existence of a disposition in the chief magistrate unfriendly to the French republic, of "a Machiavellian policy, which nothing but the universal sentiment of enthusiastic affection displayed by the *people* of the United States, on the arrival of Mr. Genet, could have subdued." Some idea of the intemperance of the day may be formed from the conclusion of that number of a series of virulent essays, in which these queries were inserted, and from recollecting that it was addressed to a man who, more than any other, had given character as well as independence to his country; and whose life, devoted to her service, had exhibited one pure undeviating course of virtuous exertion to promote her interests.

It is in these words: "The foregoing queries were transmitted for consideration to the heads of departments, previously to a meeting to be held at the President's house. The text needs no commentary. It has stamped upon its front in characters brazen enough for idolatry to comprehend, perfidy and ingratitude. To doubt in such a case was dishonourable, to proclaim those doubts treachery. For the honour of the American character and of human nature, it is to be lamented that the records of the United States exhibit such a stupendous monument of degeneracy. It will almost require the authenticity of holy writ to persuade posterity that it is not a libel ingeniously contrived to injure the reputation of the saviour of his country."

As this state paper was perfectly confidential, and had been communicated only to the cabinet ministers, Mr. Jefferson thought proper to

free himself from any possible suspicion of having given it publicity, by assuring the President that this breach of confidence must be ascribed to some other person.

Letter from General Washington to Mr. Jefferson.

In answer to this letter the President said—

"If I had entertained any suspicion before, that the queries which have been published in Bache's paper proceeded from you, the assurances you have given of the contrary would have removed them:—but the truth is, I harboured none. I am at no loss to conjecture from what source they flowed, through what channel they were conveyed, nor for what purpose they and similar publications appear.

"As you have mentioned[\[43\]](#) the subject yourself, it would not be frank, candid, or friendly to conceal, that your conduct has been represented as derogating from that opinion I conceived you entertained of me; that to your particular friends and connexions you have described, and they have denounced me, as a person under a dangerous influence, and that, if I would listen *more* to some *other* opinions, all would be well. My answer invariably has been, that I had never discovered any thing in the conduct of Mr. Jefferson to raise suspicions in my mind of his sincerity; that if he would retrace my public conduct while he was in the administration, abundant proofs would occur to him, that truth and right decisions were the *sole* objects of my pursuit; that there were as many instances within his *own* knowledge of my having decided *against* as in *favour* of the person evidently alluded to; and moreover, that I was no believer in the infallibility of the politics or measures of any man living. In short, that I was no party man myself, and that the first wish of my heart was, if parties did exist, to reconcile them.

"To this I may add, and very truly, that until the last year or two, I had no conception that parties would, or even could go the lengths I have been witness to; nor did I believe, until lately, that it was within the bounds of probability—hardly within those of possibility—that while I was using my utmost exertions to establish a national character of our own, independent as far as our obligations and justice would permit, of every nation of the earth; and wished by steering a steady course to preserve this country from the horrors of a desolating war, I should be accused of being the enemy of one nation and subject to the influence of another; and to prove it, that every act of my administration would be tortured, and the grossest and most insidious misrepresentations of them be made, by giving one side only of a subject, and that too in such exaggerated and indecent terms as could

scarcely be applied to a Nero—to a notorious defaulter—or even to a common pick-pocket.

"But enough of this—I have already gone further in the expression of my feelings than I intended."

Of the numerous misrepresentations and fabrications which, with unwearied industry, were pressed upon the public in order to withdraw the confidence of the nation from its chief, no one marked more strongly the depravity of that principle which justifies the means by the end, than the republication of certain forged letters, purporting to have been written by General Washington in the year 1776.

These letters had been originally published in the year 1777, and in them were interspersed, with domestic occurrences which might give them the semblance of verity, certain political sentiments favourable to Britain in the then existing contest.

But the original fabricator of these papers missed his aim. It was necessary to assign the manner in which the possession of them was acquired; and in executing this part of his task, circumstances were stated so notoriously untrue, that, at the time, the meditated imposition deceived no person.

In the indefatigable research for testimony which might countenance the charge that the executive was unfriendly to France, and under the influence of Britain, these letters were drawn from the oblivion into which they had sunk, it had been supposed forever, and were republished as genuine. The silence with which the President treated this as well as every other calumny, was construed into an acknowledgment of its truth; and the malignant commentators on this spurious text, would not admit the possibility of its being apocryphal.

Those who laboured incessantly to establish the favourite position that the executive was under other than French influence, reviewed every act of the administration connected with its foreign relations, and continued to censure every part of the system with extreme bitterness. Not only the treaty with Great Britain, but all those measures which had been enjoined by the duties of neutrality, were reprobated as justly offensive to France; and no opinion which had been advanced by Mr. Genet, in his construction of the treaties between the two nations, was too extravagant to be approved. The ardent patriot can not maintain the choicest rights of his country with more

zeal than was manifested in supporting all the claims of the French republic upon the United States. These discussions were not confined to the public prints. In almost every assemblage of individuals, whether for social or other purposes, this favourite theme excluded all others; and the pretensions of France were supported and controverted with equal earnestness. The opposing parties, mutually exasperated by unceasing altercations, cherished reciprocal suspicions of each other, and each charged its adversary with being under a foreign influence.^[44] Those who favoured the measures adopted by America were accused as the enemies of liberty, the enemies of France, and the tools of Britain. In turn, they charged their opponents with disseminating principles subversive of all order in society; and with supporting a foreign government against their own.

Whatever might be the real opinion of the French government on the validity of its charges against the United States, those charges were too vehemently urged, and too powerfully espoused in America, to be abandoned at Paris. If at any time they were in part relinquished, they were soon resumed.

For a time, Mr. Fauchet forbore to press the points on which his predecessor had insisted; but his complaints of particular cases which grew out of the war, and out of the rules which had been established by the executive were unremitting. The respectful language in which these complaints were at first urged, soon yielded to the style of reproach; and in his correspondence with the secretary of state, towards its close, he adopted the sentiments, without absolutely discarding the manner of Mr. Genet.

Mr. Adet, the successor of Mr. Fauchet, arrived at Philadelphia, while the senate was deliberating on the treaty of amity with Great Britain.

In the observations he made on that instrument, when submitted to his consideration by order of the President, he complained particularly of the abandonment of the principle that free ships should make free goods; and urged the injustice, while French cruisers were restrained by treaty from taking English goods out of American bottoms, that English cruisers should be liberated from the same restraint. No demonstration could be more complete than was the fallacy of this complaint. But the American government discovered a willingness voluntarily to release France from the pressure of a situation in which she had elected to place herself.

Hostile measures of France against the United States.

In the anxiety which was felt by the President to come to full and immediate explanations on this treaty, the American minister at Paris had been furnished, even before its ratification, and still more fully afterwards, with ample materials for the justification of his government. But, misconceiving^[45] the views of the administration, he reserved these representations to answer complaints which were expected, and omitted to make them in the first instance, while the course to be pursued by the Directory was under deliberation. Meanwhile, his letters kept up the alarm which had been excited with regard to the dispositions of France; and intelligence from the West Indies served to confirm it. Through a private channel, the President received information that the special agents of the Directory in the islands were about to issue orders for the capture of all American vessels, laden in the whole or in part with provisions, and bound for any port within the dominions of the British crown.

Mr. Monroe recalled and General Pinckney appointed to succeed him.

Knowing well that the intentions of the executive towards the French republic had been at all times friendly, and entertaining a strong conviction that its conduct was liable to no just objection, the President had relied with confidence on early and candid communications, for the removal of any prejudices or misconceptions, which the passions of the moment might have occasioned. That the French government would be disappointed at the adjustment of those differences which had threatened to embroil the United States with Great Britain, could not be doubted; but as neither this adjustment, nor the arrangements connected with it, had furnished any real cause of complaint, he cherished the hope that it would produce no serious consequences, if the proper means of prevention should be applied in time. He was therefore dissatisfied with delays which he had not expected; and seems to have believed that they originated in a want of zeal to justify a measure, which neither the minister himself nor his political friends had ever approved. To insure an earnest and active representation of the true sentiments and views of the administration, the President was inclined to depute an envoy extraordinary for the particular purpose, who should be united with the actual minister; but an objection drawn from the constitution was suggested to this measure. During the recess of the senate, the President can only fill up vacancies; and the appointment of a minister when no vacancy existed, might be supposed to transcend his powers. From respect to this construction of the constitution, the resolution was taken to

appoint a successor to Colonel Monroe. The choice of a person in all respects qualified for this mission was not without its difficulty. While a disposition friendly to the administration was a requisite not to be dispensed with, it was also desirable that the person employed should have given no umbrage to the French government. No individual who had performed a conspicuous part on the political theatre of America, fitted both branches of this description. All who had openly sustained with zeal and with talents, the measures of the American government, had been marked as the enemies of France, and were on this account to be avoided.

For this critical and important service, the President, after some deliberation, selected General Charles Cotesworth Pinckney, of South Carolina, an elder brother of Mr. Thomas Pinckney, the late [\[46\]](#) minister of the United States at London. No man in America was more perfectly free from exception than this gentleman. Having engaged with ardour in that war which gave independence to his country, he had, in its progress, sustained from the British army indignities to his person, and injuries to his fortune, which are not easily forgotten. In the early part of the French revolution, he had felt and expressed all the enthusiasm of his countrymen for the establishment of the republic; but, after the commencement of its contests with the United States, he stood aloof from both those political parties which had divided America. Restrained by the official situation of his brother during the negotiations which had been carried on with England, he had forborne to express any opinion respecting the treaty in which those negotiations terminated, and had consequently taken no part with those who approved, or with those who condemned that instrument. No man, therefore, who had not declared himself unfriendly to the principles he would be deputed to support, could be less objectionable to France.

To the President he was recommended by an intimate knowledge of his worth; by a confidence in the sincerity of his personal attachment to the chief magistrate; by a conviction that his exertions to effect the objects of his mission would be ardent and sincere; and that, whatever might be his partialities for France, he possessed a high and delicate sense of national as well as individual honour, was jealous for the reputation of his country, and tenacious of its rights.

In July, immediately after the appointment of General Pinckney, letters were received from Colonel Monroe communicating the official complaints

against the American government which had been made to him in March by Mr. de La Croix, the minister of exterior relations, together with his answer to those complaints.

In this answer the American minister had effectually refuted the criminations of Mr. de La Croix; and the executive was satisfied with it. But the Directory had decided on their system, and it was not by reasoning, however conclusive, that this decision was to be changed.

As the time for electing the chief magistrate approached, the anxiety of the public respecting the person in office, seemed to increase. In states where the electors are chosen by the people, names of great political influence were offered for their approbation. The strong hold which Washington had taken of the affections of his countrymen was, on this occasion, fully evinced. In districts where the opposition to his administration was most powerful, where all his measures were most loudly condemned, where those who approved his system possessed least influence, the men who appeared to control public opinion on every other subject, found themselves unable to move it on this. Even the most popular among the leaders of the opposition were reduced to the necessity of surrendering their pretensions to a place in the electoral body, or of pledging themselves to bestow their suffrage on the actual President. The determination of his fellow citizens had been unequivocally manifested, and it was believed to be apparent that the election would again be unanimous, when he announced his resolution to withdraw from the honours and the toils of office.

Having long contemplated this event, and having wished to terminate his political course with an act which might be at the same time suitable to his own character, and permanently useful to his country, he had prepared for the occasion a valedictory address, in which, with the solicitude of a person, who, in bidding a final adieu to his friends, leaves his affections and his anxieties for their welfare behind him, he made a last effort to impress upon his countrymen those great political truths which had been the guides of his own administration, and could alone, in his opinion, form a sure and solid basis for the happiness, the independence, and the liberty of the United States.

This interesting paper was published in September, at a time when hopes were entertained that the discontents of France might be appeased by proper

representations. It contains precepts to which the American statesman can not too frequently recur, and though long, is thought too valuable to be omitted or abridged.

General Washington's valedictory address to the people of the United States in which he declines being considered as a candidate for the presidency.

TO THE PEOPLE OF THE UNITED STATES.

"Friends and fellow citizens,

"The period for a new election of a citizen to administer the executive government of the United States being not far distant, and the time actually arrived when your thoughts must be employed in designating the person who is to be clothed with that important trust, it appears to me proper, especially as it may conduce to a more distinct expression of the public voice, that I should now apprise you of the resolution I have formed, to decline being considered among the number of those, out of whom a choice is to be made.

"I beg you, at the same time, to do me the justice to be assured, that this resolution has not been taken, without a strict regard to all the considerations appertaining to the relation which binds a dutiful citizen to his country; and that, in withdrawing the tender of service which silence in my situation might imply, I am influenced by no diminution of zeal for your future interest; no deficiency of grateful respect for your past kindness; but am supported by a full conviction that the step is compatible with both.

"The acceptance of, and continuance hitherto in the office to which your suffrages have twice called me, have been a uniform sacrifice of inclination to the opinion of duty and to a deference for what appeared to be your desire. I constantly hoped that it would have been much earlier in my power, consistently with motives which I was not at liberty to disregard, to return to that retirement from which I had been reluctantly drawn. The strength of my inclination to do this, previous to the last election, had even led to the preparation of an address to declare it to you; but mature reflection on the then perplexed and critical posture of our affairs with foreign nations, and the unanimous advice of persons entitled to my confidence, impelled me to abandon the idea.

"I rejoice that the state of your concerns, external as well as internal, no longer renders the pursuit of inclination incompatible with the sentiment of duty or propriety; and am persuaded, whatever partiality may be retained

for my services, that in the present circumstances of our country, you will not disapprove my determination to retire.

"The impressions with which I first undertook the arduous trust, were explained on the proper occasion. In the discharge of this trust, I will only say that I have, with good intentions, contributed towards the organization and administration of the government, the best exertions of which a very fallible judgment was capable. Not unconscious in the outset, of the inferiority of my qualifications, experience, in my own eyes, perhaps still more in the eyes of others, has strengthened the motives to diffidence of myself; and, every day, the increasing weight of years admonishes me more and more, that the shade of retirement is as necessary to me as it will be welcome. Satisfied that if any circumstances have given peculiar value to my services, they were temporary, I have the consolation to believe that, while choice and prudence invite me to quit the political scene, patriotism does not forbid it.

"In looking forward to the moment which is to terminate the career of my political life, my feelings do not permit me to suspend the deep acknowledgment of that debt of gratitude which I owe to my beloved country, for the many honours it has conferred upon me; still more for the steadfast confidence with which it has supported me; and for the opportunities I have thence enjoyed of manifesting my inviolable attachment, by services faithful and persevering, though in usefulness unequal to my zeal. If benefits have resulted to our country from these services, let it always be remembered to your praise, and as an instructive example in our annals, that under circumstances in which the passions, agitated in every direction, were liable to mislead amidst appearances sometimes dubious, vicissitudes of fortune often discouraging—in situations in which not unfrequently, want of success has countenanced the spirit of criticism—the constancy of your support was the essential prop of the efforts, and a guarantee of the plans by which they were effected. Profoundly penetrated with this idea, I shall carry it with me to my grave, as a strong incitement to unceasing vows, that heaven may continue to you the choicest tokens of its beneficence—that your union and brotherly affection may be perpetual—that the free constitution, which is the work of your hands, may be sacredly maintained—that its administration in every department may be stamped with wisdom and virtue—that, in fine, the happiness of the people of these states, under the auspices of liberty, may be

made complete by so careful a preservation, and so prudent a use of this blessing, as will acquire to them the glory of recommending it to the applause, the affection, and adoption of every nation which is yet a stranger to it.

"Here, perhaps, I ought to stop. But a solicitude for your welfare, which can not end but with my life, and the apprehension of danger, natural to that solicitude, urge me, on an occasion like the present, to offer to your solemn contemplation, and to recommend to your frequent review, some sentiments which are the result of much reflection, of no inconsiderable observation, and which appear to me all important to the permanency of your felicity as a people. These will be offered to you with the more freedom, as you can only see in them the disinterested warnings of a parting friend, who can possibly have no personal motive to bias his counsel. Nor can I forget, as an encouragement to it, your indulgent reception of my sentiments on a former and not dissimilar occasion.

"Interwoven as is the love of liberty with every ligament of your hearts, no recommendation of mine is necessary to fortify or confirm the attachment.

"The unity of government which constitutes you one people, is also now dear to you. It is justly so; for it is a main pillar in the edifice of your real independence; the support of your tranquillity at home; your peace abroad; of your safety; of your prosperity; of that very liberty which you so highly prize. But, as it is easy to foresee, that from different causes, and from different quarters, much pains will be taken, many artifices employed, to weaken in your minds the conviction of this truth; as this is the point in your political fortress against which the batteries of internal and external enemies will be most constantly and actively (though often covertly and insidiously) directed; it is of infinite moment, that you should properly estimate the immense value of your national union to your collective and individual happiness; that you should cherish a cordial, habitual, and immovable attachment to it; accustoming yourselves to think and speak of it as of the palladium of your political safety and prosperity; watching for its preservation with jealous anxiety; discountenancing whatever may suggest even a suspicion that it can, in any event, be abandoned; and indignantly frowning upon the first dawning of every attempt to alienate any portion of

our country from the rest, or to enfeeble the sacred ties which now link together the various parts.

"For this you have every inducement of sympathy and interest. Citizens by birth, or choice, of a common country, that country has a right to concentrate your affections. The name of American, which belongs to you in your national capacity, must always exalt the just pride of patriotism, more than any appellation derived from local discriminations. With slight shades of difference, you have the same religion, manners, habits, and political principles.—You have, in a common cause, fought and triumphed together; the independence and liberty you possess, are the work of joint counsels, and joint efforts, of common dangers, sufferings, and successes.

"But these considerations, however powerfully they address themselves to your sensibility, are greatly outweighed by those which apply more immediately to your interest.—Here, every portion of our country finds the most commanding motives for carefully guarding and preserving the union of the whole.

"The *north* in an unrestrained intercourse with the *south*, protected by the equal laws of a common government, finds in the productions of the latter, great additional resources of maritime and commercial enterprise, and precious materials of manufacturing industry.—The *south*, in the same intercourse, benefiting by the same agency of the *north*, sees its agriculture grow, and its commerce expand. Turning partly into its own channels the seamen of the *north*, it finds its particular navigation invigorated; and while it contributes, in different ways, to nourish and increase the general mass of the national navigation, it looks forward to the protection of a maritime strength, to which itself is unequally adapted. The *east*, in a like intercourse with the *west*, already finds, and in the progressive improvement of interior communications by land and water, will more and more find a valuable vent for the commodities which it brings from abroad, or manufactures at home. The *west* derives from the *east* supplies requisite to its growth and comfort—and what is perhaps of still greater consequence, it must of necessity owe the *secure* enjoyment of indispensable *outlets* for its own productions, to the weight, influence, and the future maritime strength of the Atlantic side of the union, directed by an indissoluble community of interest as *one nation*. Any other tenure by which the *west* can hold this essential advantage, whether derived from its own separate strength, or from an apostate and

unnatural connexion with any foreign power, must be intrinsically precarious.

"While then every part of our country thus feels an immediate and particular interest in union, all the parts combined can not fail to find in the united mass of means and efforts, greater strength, greater resource, proportionably greater security from external danger, a less frequent interruption of their peace by foreign nations; and, what is of inestimable value, they must derive from union an exemption from those broils and wars between themselves, which so frequently afflict neighbouring countries not tied together by the same government; which their own rivalships alone would be sufficient to produce, but which, opposite foreign alliances, attachments, and intrigues, would stimulate and embitter.—Hence likewise, they will avoid the necessity of those overgrown military establishments, which under any form of government are inauspicious to liberty, and which are to be regarded as particularly hostile to republican liberty. In this sense it is, that your union ought to be considered as a main prop of your liberty, and that the love of the one ought to endear to you the preservation of the other.

"These considerations speak a persuasive language to every reflecting and virtuous mind, and exhibit the continuance of the union as a primary object of patriotic desire. Is there a doubt whether a common government can embrace so large a sphere? Let experience solve it. To listen to mere speculation in such a case were criminal. We are authorized to hope that a proper organization of the whole, with the auxiliary agency of governments for the respective subdivisions, will afford a happy issue to the experiment. It is well worth a fair and full experiment. With such powerful and obvious motives to union, affecting all parts of our country, while experience shall not have demonstrated its impracticability, there will always be reason to distrust the patriotism of those, who, in any quarter, may endeavour to weaken its bands.

"In contemplating the causes which may disturb our union, it occurs as matter of serious concern, that any ground should have been furnished for characterizing parties by *geographical* discriminations,—*northern* and *southern*—*Atlantic* and *western*; whence designing men may endeavour to excite a belief that there is a real difference of local interests and views. One of the expedients of party to acquire influence within particular

districts, is to misrepresent the opinions and aims of other districts. You can not shield yourselves too much against the jealousies and heart burnings which spring from these misrepresentations: they tend to render alien to each other those who ought to be bound together by fraternal affection. The inhabitants of our western country have lately had a useful lesson on this head: they have seen, in the negotiation by the executive, and in the unanimous ratification by the senate of the treaty with Spain, and in the universal satisfaction at the event throughout the United States, a decisive proof how unfounded were the suspicions propagated among them of a policy in the general government and in the Atlantic states, unfriendly to their interests in regard to the Mississippi. They have been witnesses to the formation of two treaties, that with Great Britain and that with Spain, which secure to them every thing they could desire, in respect to our foreign relations, towards confirming their prosperity. Will it not be their wisdom to rely for the preservation of these advantages on the union by which they were procured? will they not henceforth be deaf to those advisers, if such there are, who would sever them from their brethren, and connect them with aliens?

"To the efficacy and permanency of your union, a government for the whole is indispensable. No alliances, however strict, between the parts can be an adequate substitute; they must inevitably experience the infractions and interruptions which all alliances, in all times, have experienced. Sensible of this momentous truth, you have improved upon your first essay, by the adoption of a constitution of government better calculated than your former for an intimate union, and for the efficacious management of your common concerns. This government, the offspring of our own choice uninfluenced and unawed, adopted upon full investigation and mature deliberation, completely free in its principles, in the distribution of its powers uniting security with energy, and containing within itself a provision for its own amendment, has a just claim to your confidence and your support. Respect for its authority, compliance with its laws, acquiescence in its measures, are duties enjoined by the fundamental maxims of true liberty. The basis of our political systems is the right of the people to make and to alter their constitutions of government.—But the constitution which at any time exists, until changed by an explicit and authentic act of the whole people, is sacredly obligatory upon all. The very idea of the power and the

right of the people to establish government, presupposes the duty of every individual to obey the established government.

"All obstructions to the execution of the laws, all combinations and associations under whatever plausible character, with the real design to direct, control, counteract, or awe the regular deliberations and action of the constituted authorities, are destructive of this fundamental principle, and of fatal tendency.—They serve to organize faction, to give it an artificial and extraordinary force, to put in the place of the delegated will of the nation the will of party, often a small but artful and enterprising minority of the community; and, according to the alternate triumphs of different parties, to make the public administration the mirror of the ill concerted and incongruous projects of faction, rather than the organ of consistent and wholesome plans digested by common councils, and modified by mutual interests.

"However combinations or associations of the above description may now and then answer popular ends, they are likely, in the course of time and things, to become potent engines, by which cunning, ambitious, and unprincipled men, will be enabled to subvert the power of the people, and to usurp for themselves the reins of government; destroying afterwards the very engines which have lifted them to unjust dominion.

"Towards the preservation of your government and the permanency of your present happy state, it is requisite, not only that you steadily discountenance irregular oppositions to its acknowledged authority, but also that you resist with care the spirit of innovation upon its principles, however specious the pretext. One method of assault may be to effect, in the forms of the constitution, alterations which will impair the energy of the system; and thus to undermine what can not be directly overthrown. In all the changes to which you may be invited, remember that time and habit are at least as necessary to fix the true character of governments, as of other human institutions:—that experience is the surest standard by which to test the real tendency of the existing constitution of a country:—that facility in changes, upon the credit of mere hypothesis and opinion, exposes to perpetual change from the endless variety of hypothesis and opinion: and remember, especially, that for the efficient management of your common interests, in a country so extensive as ours, a government of as much vigour as is consistent with the perfect security of liberty is indispensable. Liberty itself

will find in such a government, with powers properly distributed and adjusted, its surest guardian. It is, indeed, little else than a name, where the government is too feeble to withstand the enterprises of faction, to confine each member of the society within the limits prescribed by the laws, and to maintain all in the secure and tranquil enjoyment of the rights of person and property.

"I have already intimated to you the danger of parties in the state, with particular references to the founding them on geographical discriminations. Let us now take a more comprehensive view, and warn you in the most solemn manner against the baneful effects of the spirit of party generally.

"This spirit, unfortunately, is inseparable from our nature, having its root in the strongest passions of the human mind.—It exists under different shapes in all governments, more or less stifled, controlled, or repressed; but in those of the popular form, it is seen in its greatest rankness, and is truly their worst enemy.

"The alternate domination of one faction over another, sharpened by the spirit of revenge natural to party dissension, which, in different ages and countries has perpetrated the most horrid enormities, is itself a frightful despotism.—But this leads at length to a more formal and permanent despotism. The disorders and miseries which result, gradually incline the minds of men to seek security and repose in the absolute power of an individual; and, sooner or later, the chief of some prevailing faction, more able or more fortunate than his competitors, turns this disposition to the purposes of his own elevation on the ruins of public liberty.

"Without looking forward to an extremity of this kind, (which nevertheless ought not to be entirely out of sight,) the common and continual mischiefs of the spirit of party, are sufficient to make it the interest and duty of a wise people to discourage and restrain it.

"It serves always to distract the public councils, and enfeeble the public administration. It agitates the community with ill founded jealousies and false alarms; kindles the animosity of one part against another; foment occasional riot and insurrection. It opens the door to foreign influence and corruption, which finds a facilitated access to the government itself through the channels of party passions. Thus the policy and the will of one country are subjected to the policy and will of another.

"There is an opinion that parties in free countries are useful checks upon the administration of the government, and serve to keep alive the spirit of liberty. This, within certain limits, is probably true; and, in governments of a monarchical cast, patriotism may look with indulgence, if not with favour, upon the spirit of party. But in those of the popular character, in governments purely elective, it is a spirit not to be encouraged. From their natural tendency, it is certain there will always be enough of that spirit for every salutary purpose. And there being constant danger of excess, the effort ought to be, by force of public opinion, to mitigate and assuage it. A fire not to be quenched, it demands a uniform vigilance to prevent it bursting into a flame, lest, instead of warming, it should consume.

"It is important likewise, that the habits of thinking in a free country should inspire caution in those intrusted with its administration, to confine themselves within their respective constitutional spheres, avoiding in the exercise of the powers of one department, to encroach upon another. The spirit of encroachment tends to consolidate the powers of all the departments in one, and thus to create, whatever the form of government, a real despotism. A just estimate of that love of power and proneness to abuse it which predominate in the human heart, is sufficient to satisfy us of the truth of this position. The necessity of reciprocal checks in the exercise of political power, by dividing and distributing it into different depositories, and constituting each the guardian of the public weal against invasions of the others, has been evinced by experiments ancient and modern: some of them in our country, and under our own eyes.—To preserve them must be as necessary as to institute them. If, in the opinion of the people, the distribution or modification of the constitutional powers be in any particular wrong, let it be corrected by an amendment in the way which the constitution designates.—But let there be no change by usurpation; for though this, in one instance, may be the instrument of good, it is the customary weapon by which free governments are destroyed. The precedent must always greatly overbalance in permanent evil, any partial or transient benefit which the use can at any time yield.

"Of all the dispositions and habits which lead to political prosperity, religion and morality are indispensable supports. In vain would that man claim the tribute of patriotism, who should labour to subvert these great pillars of human happiness, these firmest props of the duties of men and citizens. The mere politician, equally with the pious man, ought to respect

and to cherish them.—A volume could not trace all their connexions with private and public felicity. Let it simply be asked, where is the security for property, for reputation, for life, if the sense of religious obligation *desert* the oaths which are the instruments of investigation in courts of justice? And let us with caution indulge the supposition that morality can be maintained without religion. Whatever may be conceded to the influence of refined education on minds of peculiar structure, reason and experience both forbid us to expect, that national morality can prevail in exclusion of religious principle.

"It is substantially true, that virtue or morality is a necessary spring of popular government. The rule, indeed, extends with more or less force to every species of free government. Who that is a sincere friend to it can look with indifference upon attempts to shake the foundation of the fabric?

"Promote, then, as an object of primary importance, institutions for the general diffusion of knowledge. In proportion as the structure of a government gives force to public opinion, it should be enlightened.

"As a very important source of strength and security, cherish public credit. One method of preserving it is to use it as sparingly as possible, avoiding occasions of expense by cultivating peace, but remembering also, that timely disbursements, to prepare for danger, frequently prevent much greater disbursements to repel it; avoiding likewise the accumulation of debt, not only by shunning occasions of expense, but by vigorous exertions in time of peace, to discharge the debts which unavoidable wars may have occasioned, not ungenerously throwing upon posterity the burden which we ourselves ought to bear. The execution of these maxims belongs to your representatives, but it is necessary that public opinion should co-operate. To facilitate to them the performance of their duty, it is essential that you should practically bear in mind, that towards the payment of debts there must be revenue; that to have revenue, there must be taxes; that no taxes can be devised which are not more or less inconvenient and unpleasant; that the intrinsic embarrassment inseparable from the selection of the proper objects, (which is always a choice of difficulties,) ought to be a decisive motive for a candid construction of the conduct of the government in making it, and for a spirit of acquiescence in the measures for obtaining revenue, which the public exigencies may at any time dictate.

"Observe good faith and justice towards all nations; cultivate peace and harmony with all. Religion and morality enjoin this conduct; and can it be that good policy does not equally enjoin it? it will be worthy of a free, enlightened, and, at no distant period, a great nation, to give to mankind the magnanimous and too novel example of a people always guided by an exalted justice and benevolence. Who can doubt but, in the course of time and things, the fruits of such a plan would richly repay any temporary advantages which might be lost by a steady adherence to it; can it be that Providence has not connected the permanent felicity of a nation with its virtue? the experiment, at least, is recommended by every sentiment which ennobles human nature. Alas! is it rendered impossible by its vices?

"In the execution of such a plan, nothing is more essential than that permanent, inveterate antipathies against particular nations, and passionate attachments for others, should be excluded; and that, in place of them, just and amicable feelings towards all should be cultivated. The nation which indulges towards another an habitual hatred, or an habitual fondness, is in some degree a slave. It is a slave to its animosity or to its affection, either of which is sufficient to lead it astray from its duty and its interest. Antipathy in one nation against another, disposes each more readily to offer insult and injury, to lay hold of slight causes of umbrage, and to be haughty and intractable when accidental or trifling occasions of dispute occur. Hence, frequent collisions, obstinate, envenomed, and bloody contests. The nation, prompted by ill will and resentment, sometimes impels to war the government, contrary to the best calculations of policy. The government sometimes participates in the national propensity, and adopts through passion what reason would reject; at other times, it makes the animosity of the nation subservient to projects of hostility, instigated by pride, ambition, and other sinister and pernicious motives.—The peace often, sometimes perhaps the liberty of nations has been the victim.

"So likewise, a passionate attachment of one nation for another produces a variety of evils. Sympathy for the favourite nation, facilitating the illusion of an imaginary common interest in cases where no real common interest exists, and infusing into one the enmities of the other, betrays the former into a participation in the quarrels and wars of the latter, without adequate inducements or justification. It leads also to concessions to the favourite nation, of privileges denied to others, which is apt doubly to injure the nation making the concessions; by unnecessarily parting with what ought to

have been retained; and by exciting jealousy, ill will, and a disposition to retaliate in the parties from whom equal privileges are withheld: and it gives to ambitious, corrupted or deluded citizens who devote themselves to the favourite nation, facility to betray or sacrifice the interests of their own country, without odium, sometimes even with popularity; gilding with the appearances of a virtuous sense of obligation, a commendable deference for public opinion, or a laudable zeal for public good, the base or foolish compliances of ambition, corruption, or infatuation.

"As avenues to foreign influence in innumerable ways, such attachments are particularly alarming to the truly enlightened and independent patriot. How many opportunities do they afford to tamper with domestic factions, to practise the arts of seduction, to mislead public opinion, to influence or awe the public councils!—such an attachment of a small or weak, towards a great and powerful nation dooms the former to be the satellite of the latter.

"Against the insidious wiles of foreign influence, (I conjure you to believe me, fellow citizens) the jealousy of a free people ought to be *constantly* awake; since history and experience prove, that foreign influence is one of the most baneful foes of republican government. But that jealousy, to be useful must be impartial; else it becomes the instrument of the very influence to be avoided, instead of a defence against it. Excessive partiality for one foreign nation, and excessive dislike for another, cause those whom they actuate to see danger only on one side, and serve to veil and even second the arts of influence on the other. Real patriots, who may resist the intrigues of the favourite, are liable to become suspected and odious; while its tools and dupes usurp the applause and confidence of the people, to surrender their interests.

"The great rule of conduct for us, in regard to foreign nations, is, in extending our commercial relations, to have with them as little *political* connexion as possible. So far as we have already formed engagements, let them be fulfilled with perfect good faith.—Here, let us stop.

"Europe has a set of primary interests, which to us have none, or a very remote relation. Hence, she must be engaged in frequent controversies, the causes of which are essentially foreign to our concerns.—Hence, therefore, it must be unwise in us to implicate ourselves, by artificial ties, in the ordinary vicissitudes of her politics, or the ordinary combinations and collisions of her friendships or enmities.

"Our detached and distant situation invites and enables us to pursue a different course. If we remain one people, under an efficient government, the period is not far off when we may defy material injury from external annoyance; when we may take such an attitude as will cause the neutrality we may at any time resolve upon, to be scrupulously respected; when belligerent nations under the impossibility of making acquisitions upon us, will not lightly hazard the giving us provocation; when we may choose peace or war, as our interest, guided by justice, shall counsel.

"Why forego the advantages of so peculiar a situation? why quit our own to stand upon foreign ground? why, by interweaving our destiny with that of any part of Europe, entangle our peace and prosperity in the toils of European ambition, rivalry, interest, humour, or caprice?

"It is our true policy to steer clear of permanent alliances with any portion of the foreign world; so far, I mean, as we are now at liberty to do it; for let me not be understood as capable of patronizing infidelity to existing engagements. I hold the maxim no less applicable to public than to private affairs, that honesty is always the best policy. I repeat it, therefore, let those engagements be observed in their genuine sense. But in my opinion, it is unnecessary, and would be unwise to extend them.

"Taking care always to keep ourselves, by suitable establishments, on a respectable defensive posture, we may safely trust to temporary alliances for extraordinary emergencies.

"Harmony, and a liberal intercourse with all nations, are recommended by policy, humanity, and interest. But even our commercial policy should hold an equal and impartial hand; neither seeking nor granting exclusive favours or preferences; consulting the natural course of things; diffusing and diversifying by gentle means the streams of commerce, but forcing nothing; establishing with powers so disposed, in order to give trade a stable course, to define the rights of our merchants, and to enable the government to support them, conventional rules of intercourse, the best that present circumstances and mutual opinion will permit, but temporary, and liable to be from time to time abandoned or varied as experience and circumstances shall dictate; constantly keeping in view, that it is folly in one nation to look for disinterested favours from another; that it must pay with a portion of its independence for whatever it may accept under that character; that by such acceptance, it may place itself in the condition of having given

equivalents for nominal favours, and yet of being reproached with ingratitude for not giving more. There can be no greater error than to expect, or calculate upon real favours from nation to nation. It is an illusion which experience must cure, which a just pride ought to discard.

"In offering to you, my countrymen, these counsels of an old and affectionate friend, I dare not hope they will make the strong and lasting impression I could wish; that they will control the usual current of the passions; or prevent our nation from running the course which has hitherto marked the destiny of nations; but if I may even flatter myself, that they may be productive of some partial benefit, some occasional good; that they may now and then recur to moderate the fury of party spirit, to warn against the mischiefs of foreign intrigue, to guard against the impostures of pretended patriotism; this hope will be a full recompense for the solicitude for your welfare by which they have been dictated.

"How far, in the discharge of my official duties, I have been guided by the principles which have been delineated, the public records and other evidences of my conduct must witness to you and to the world. To myself, the assurance of my own conscience is, that I have, at least, believed myself to be guided by them.

"In relation to the still subsisting war in Europe, my proclamation of the 22d of April, 1793, is the index to my plan. Sanctioned by your approving voice, and by that of your representatives in both houses of congress; the spirit of that measure has continually governed me; uninfluenced by any attempts to deter or divert me from it.

"After deliberate examination, with the aid of the best lights I could obtain, I was well satisfied that our country, under all the circumstances of the case, had a right to take, and was bound, in duty and interest, to take a neutral position.—Having taken it, I determined, as far as should depend upon me, to maintain it with moderation, perseverance, and firmness.

"The considerations which respect the right to hold this conduct, it is not necessary on this occasion to detail.—I will only observe that, according to my understanding of the matter, that right, so far from being denied by any of the belligerent powers, has been virtually admitted by all.

"The duty of holding a neutral conduct may be inferred, without anything more, from the obligation which justice and humanity impose on every

nation, in cases in which it is free to act, to maintain inviolate the relations of peace and amity towards other nations.

"The inducements of interest for observing that conduct will best be referred to your own reflections and experience. With me, a predominant motive has been to endeavour to gain time to our country to settle and mature its yet recent institutions, and to progress, without interruption, to that degree of strength and consistency which is necessary to give it, humanly speaking, the command of its own fortunes.

"Though in reviewing the incidents of my administration, I am unconscious of intentional error; I am nevertheless too sensible of my defects not to think it probable that I may have committed many errors. Whatever they may be, I fervently beseech the Almighty to avert or mitigate the evils to which they may tend. I shall also carry with me the hope that my country will never cease to view them with indulgence; and that, after forty-five years of my life dedicated to its service, with an upright zeal, the faults of incompetent abilities will be consigned to oblivion, as myself must soon be to the mansions of rest.

"Relying on its kindness in this as in other things, and actuated by that fervent love towards it, which is so natural to a man who views in it the native soil of himself and his progenitors for several generations; I anticipate with pleasing expectation that retreat in which I promise myself to realize, without alloy, the sweet enjoyment of partaking, in the midst of my fellow citizens, the benign influence of good laws under a free government—the ever favourite object of my heart, and the happy reward, as I trust, of our mutual cares, labours, and dangers."

The sentiments of veneration with which this address was generally received, were manifested in almost every part of the union. Some of the state legislatures directed it to be inserted at large in their journals; and nearly all of them passed resolutions expressing their respect for the person of the President, their high sense of his exalted services, and the emotions with which they contemplated his retirement from office. Although the leaders of party might rejoice at this event it produced solemn and anxious reflections in the great body even of those who belonged to the opposition.

The person in whom alone the voice of the people could be united having declined a re-election, the two great parties in America brought forward their respective chiefs; and every possible effort was made by each, to

obtain the victory. Mr. John Adams and Mr. Thomas Pinckney, the late minister at London, were supported as President and Vice President by the federalists: the whole force of the opposite party was exerted in favour of Mr. Jefferson.

Motives of vast influence were added, on this occasion, to those which usually impel men in a struggle to retain or acquire power. The continuance or the change not only of those principles on which the internal affairs of the United States had been administered, but of the conduct which had been observed towards foreign nations, was believed to depend on the choice of a chief magistrate. By one party, the system pursued by the existing administration with regard to the belligerent powers, had been uniformly approved; by the other, it had been as uniformly condemned. In the contests therefore which preceded the choice of electors, the justice of the complaints which were made on the part of the French republic were minutely discussed, and the consequences which were to be apprehended from her resentment, or from yielding to her pretensions, were reciprocally urged as considerations entitled to great weight in the ensuing election.

The minister of France endeavors to influence the approaching election.

In such a struggle, it was not to be expected that foreign powers could feel absolutely unconcerned. In November, while the parties were so balanced that neither scale could be perceived to preponderate, Mr. Adet addressed a letter to the secretary of state, in which he recapitulated the numerous complaints which had been urged by himself and his predecessors, against the government of the United States; and reproached that government, in terms of great asperity, with violating those treaties which had secured its independence, with ingratitude to France, and with partiality to England. These wrongs, which commenced with the "*insidious*" proclamation of neutrality, were said to be so aggravated by the treaty concluded with Great Britain, that Mr. Adet announced the orders of the Directory to suspend his ministerial functions with the federal government. "But the cause," he added, "which had so long restrained the just resentment of the executive Directory from bursting forth, now tempered its effects. The name of America, notwithstanding the wrongs of its government, still excited sweet emotions in the hearts of Frenchmen; and the executive Directory wished not to break with a people whom they loved to salute with the appellation of a friend." This suspension of his functions therefore was

not to be regarded "as a rupture between France and the United States, but as a mark of just discontent which was to last until the government of the United States returned to sentiments and to measure more conformable to the interests of the alliance, and to the sworn friendship between the two nations."

This letter was concluded in the following terms:

"Alas! Time has not yet demolished the fortifications with which the English roughened this country—nor those the Americans raised for their defence; their half rounded summits still appear in every quarter, amidst plains, on the tops of mountains. The traveller need not search for the ditch which served to encompass them; it is still open under his feet. Scattered ruins of houses laid waste, which the fire had partly respected, in order to leave monuments of British fury, are still to be found.—Men still exist, who can say, here a ferocious Englishman slaughtered my father; there my wife tore her bleeding daughter from the hands of an unbridled Englishman.—Alas! the soldiers who fell under the sword of the Britons are not yet reduced to dust: the labourer in turning up his field, still draws from the bosom of the earth their whitened bones; while the ploughman, with tears of tenderness and gratitude, still recollects that his fields, now covered with rich harvests, have been moistened with French blood. While every thing around the inhabitants of this country animates them to speak of the tyranny of Great Britain, and of the generosity of Frenchmen; when England has declared a war of death to that nation, to avenge herself for its having cemented with its blood the independence of the United States:—It was at this moment their government made a treaty of amity with their ancient tyrant, the implacable enemy of their ancient ally. Oh Americans covered with noble scars! Oh you who have so often flown to death and to victory with French soldiers! You who know those generous sentiments which distinguish the true warrior! whose hearts have always vibrated with those of your companions in arms! consult them to-day to know what they experience; recollect at the same time, that if magnanimous souls with liveliness resent an affront, they also know how to forget one. Let your government return to itself, and you will still find in Frenchmen faithful friends and generous allies."



Martha Washington's Bedroom at Mount Vernon

Returning to their beloved Mount Vernon with General Washington after his retirement, in 1796, as First President of the United States, Martha Washington seldom spent a night away from the historic mansion overlooking the Potomac. There she continued to offer a gracious hospitality to the many visitors attracted by her distinguished husband. She never recovered from his death in 1799, and dwelt in deep mourning until she followed him, May 22, 1802. Her remains rest with those of Washington in the vault at Mount Vernon.

As if to remove all doubts respecting the purpose for which this extraordinary letter was written, a copy was, on the day of its date, transmitted to a printer for publication.

Whatever motives might have impelled Mr. Adet to make this open and direct appeal to the American people, in the critical moment of their election of a chief magistrate, it does not appear, in any material degree, to have influenced that election. Many reflecting men, who had condemned the course of the administration, could not approve this interference in the internal affairs of the United States; and the opposite party, generally, resented it as an attempt to control the operations of the American people in the exercise of one of the highest acts of sovereignty, and to poison the

fountain of their liberty and independence, by mingling foreign intrigue with their elections. Viewing it as a fulfilment of their most gloomy prognostics respecting the designs of France to establish an influence in the councils of America, they believed the best interests of their country to require that it should be defeated; and their exertions against the candidate Mr. Adet was understood to favour, were the more determined and the more vigorous.

The president's speech to congress.

On the 7th of December, while this dubious and ardently contested election was depending, the President, for the last time, met the national legislature in the senate chamber. His address on the occasion was comprehensive, temperate, and dignified. In presenting a full and clear view of the situation of the United States, and in recommending those great national measures, in the utility of which he felt a confidence, no personal considerations could induce the omission of those, to which open and extensive hostility had been avowed.

After congratulating congress on the internal situation of the United States, and on the progress of that humane system which had been adopted for the preservation of peace with their Indian neighbours; after stating the measures which had been taken in execution of the treaties with Great Britain, Spain, and Algiers, and the negotiations which were pending with Tunis and Tripoli; he proceeded to say:

"To an active external commerce, the protection of a naval force is indispensable—this is manifest with regard to wars in which a state is itself a party—but besides this, it is in our own experience, that the most sincere neutrality is not a sufficient guard against the depredations of nations at war. To secure respect to a neutral flag, requires a naval force, organized and ready to vindicate it from insult or aggression—this may even prevent the necessity of going to war, by discouraging belligerent powers from committing such violations of the rights of the neutral party, as may first or last, leave no other option. From the best information I have been able to obtain, it would seem as if our trade to the Mediterranean, without a protecting force, will always be insecure; and our citizens exposed to the calamities from which numbers of them have but just been relieved.

"These considerations invite the United States to look to the means, and to set about the gradual creation of a navy. The increasing progress of their

navigation promises them, at no distant period, the requisite supply of seamen; and their means, in other respects, favour the undertaking. It is an encouragement likewise, that their particular situation will give weight, and influence, to a moderate naval force in their hands. Will it not then be adviseable, to begin without delay, to provide and lay up the materials for the building and equipping of ships of war; and to proceed in the work by degrees, in proportion as our resources shall render it practicable, without inconvenience; so that a future war of Europe may not find our commerce in the same unprotected state, in which it was found by the present?"

The speech next proceeded earnestly to recommend the establishment of national works for manufacturing such articles as were necessary for the defence of the country; and also of an institution which should grow up under the patronage of the public, and be devoted to the improvement of agriculture. The advantages of a military academy,[\[47\]](#) and of a national university, were also urged; and the necessity of augmenting the compensations to the officers of the United States, in various instances, was explicitly stated.

Adverting to the dissatisfaction which had been expressed by one of the great powers of Europe, the President said, "while in our external relations some serious inconveniences and embarrassments have been overcome, and others lessened, it is with much pain and deep regret I mention, that circumstances of a very unwelcome nature have lately occurred. Our trade has suffered, and is suffering extensive injuries in the West Indies from the cruisers and agents of the French republic; and communications have been received from its minister here, which indicate the danger of a further disturbance of our commerce by its authority; and which are, in other respects, far from agreeable.

"It has been my constant, sincere and earnest wish, in conformity with that of our nation, to maintain cordial harmony, and a perfectly friendly understanding with that republic. This wish remains unabated; and I shall persevere in the endeavour to fulfil it to the utmost extent of what shall be consistent with a just and indispensable regard to the rights and honour of our country; nor will I easily cease to cherish the expectation, that a spirit of justice, candour and friendship, on the part of the republic, will eventually ensure success.

"In pursuing this course, however, I can not forget what is due to the character of our government and nation; or to a full and entire confidence in the good sense, patriotism, self-respect, and fortitude of my countrymen.

"I reserve for a special message, a more particular communication on this interesting subject."

The flourishing state of the revenue, the expectation that the system for the gradual extinction of the national debt would be completed at this session, the anxiety which he felt respecting the militia, were successively mentioned, and the speech was concluded in the following terms:

"The situation in which I now stand, for the last time, in the midst of the representatives of the people of the United States, naturally recalls the period when the administration of the present form of government commenced; and I can not omit the occasion to congratulate you, and my country, on the success of the experiment; nor to repeat my fervent supplications to the Supreme Ruler of the universe, and sovereign arbiter of nations, that his providential care may still be extended to the United States;—that the virtue and happiness of the people may be preserved; and that the government, which they have instituted for the protection of their liberties, may be perpetual."

The answer of the senate embraced the various topics of the speech, and approved every sentiment it contained.

To a review of the prosperous situation of the interior of the United States, the senate subjoined—

"Whilst contemplating the causes that produce this auspicious result, we must acknowledge the excellence of the constitutional system, and the wisdom of the legislative provisions;—but we should be deficient in gratitude and justice, did we not attribute a great portion of these advantages, to the virtue, firmness, and talents of your administration; which have been conspicuously displayed, in the most trying times, and on the most critical occasions—it is therefore, with the sincerest regrets, that we now receive an official notification of your intentions to retire from the public employments of your country.

"When we review the various scenes of your public life, so long and so successfully devoted to the most arduous services, civil and military; as well during the struggles of the American revolution, as the convulsive periods of a recent date, we can not look forward to your retirement without

our warmest affections, and most anxious regards, accompanying you; and without mingling with our fellow citizens at large, in the sincerest wishes for your personal happiness, that sensibility and attachment can express.

"The most effectual consolation that can offer for the loss we are about to sustain, arises from the animating reflection, that the influence of your example will extend to your successors, and the United States thus continue to enjoy an able, upright, and energetic administration."

In the house of representatives, a committee of five had been appointed to prepare a respectful answer to the speech, three of whom were friends to the administration. Knowing well that the several propositions it contained could not be noticed in detail, without occasioning a debate in which sentiments opposed to those of the address would be expressed, probably by a majority of the house; and hoping that the disposition would be general to avow in strong terms their attachment to the person and character of the President, the committee united in reporting an answer, which, in general terms, promised due attention to the various subjects recommended to their consideration, but was full and explicit in the expression of attachment to himself, and of approbation of his administration.

But the unanimity which prevailed in the committee did not extend to the house.

After amplifying and strengthening the expressions of the report which stated the regrets of the house that any interruption should have taken place in the harmony which had subsisted between the United States and France, and modifying those which declared their hopes in the restoration of that affection which had formerly subsisted between the two republics, so as to avoid any implication that the rupture of that affection was exclusively ascribable to France, a motion was made by Mr. Giles to expunge from the answer the following paragraphs.

"When we advert to the internal situation of the United States, we deem it equally natural and becoming to compare the present period with that immediately antecedent to the operation of the government, and to contrast it with the calamities in which the state of war still involves several of the European nations, as the reflections deduced from both tend to justify, as well as to excite a warmer admiration of our free constitution, and to exalt our minds to a more fervent and grateful sense of piety towards Almighty

God for the beneficence of his Providence, by which its administration has been hitherto so remarkably distinguished.

"And while we entertain a grateful conviction that your wise, firm, and patriotic administration has been signally conducive to the success of the present form of government, we can not forbear to express the deep sensations of regret with which we contemplate your intended retirement from office.

"As no other suitable occasion may occur, we can not suffer the present to pass without attempting to disclose some of the emotions which it can not fail to awaken.

"The gratitude and admiration of your countrymen are still drawn to the recollection of those resplendent virtues and talents which were so eminently instrumental to the achievement of the revolution, and of which that glorious event will ever be the memorial. Your obedience to the voice of duty and your country, when you quitted reluctantly, a second time, the retreat you had chosen, and first accepted the presidency, afforded a new proof of the devotedness of your zeal in its service, and an earnest of the patriotism and success which have characterized your administration. As the grateful confidence of the citizens in the virtues of their chief magistrate has essentially contributed to that success, we persuade ourselves that the millions whom we represent, participate with us in the anxious solicitude of the present occasion.

"Yet we can not be unmindful that your moderation and magnanimity, twice displayed by retiring from your exalted stations, afford examples no less rare and instructive to mankind than valuable to a republic.

"Although we are sensible that this event, of itself, completes the lustre of a character already conspicuously unrivalled by the coincidence of virtue, talents, success, and public estimation; yet we conceive we owe it to you, sir, and still more emphatically to ourselves and to our nation, (of the language of whose hearts we presume to think ourselves, at this moment, the faithful interpreters) to express the sentiments with which it is contemplated.

"The spectacle of a free and enlightened nation offering by its representatives the tribute of unfeigned approbation to its first citizen, however novel and interesting it may be, derives all its lustre (a lustre

which accident or enthusiasm could not bestow, and which adulation would tarnish) from the transcendent merit, of which it is the voluntary testimony.

"May you long enjoy that liberty which is so dear to you, and to which your name will ever be so dear; may your own virtue and a nation's prayers obtain the happiest sunshine for the decline of your days, and the choicest of future blessings. For our country's sake; for the sake of republican liberty, it is our earnest wish that your example may be the guide of your successors; and thus, after being the ornament and safeguard of the present age, become the patrimony of our descendants."

In support of this motion, after urging the indelicacy of exulting over the misfortunes of others by contrasting our happiness with their misery, Mr. Giles said, that with respect to the wisdom^[48] and firmness of the President, he differed in opinion from the answer; and though he might be singular, yet it being his opinion, he should not be afraid to avow it. He had not that grateful conviction there mentioned, and if he were to come there and express it, he should prove an inconsistent character. He should not go into a lengthy discussion on this point, but if they turned their eyes to our foreign relations, there would be found no reason to exult in the wisdom and firmness of the administration. He believed, on the contrary, that it was from a want of wisdom and firmness that we were brought into our present critical situation. If gentlemen had been satisfied with expressing their esteem of the patriotism and virtue of the President, they might have got a unanimous vote; but they could not suppose that gentlemen would so far forget self-respect as to join in the proposed adulation.

Mr. Giles said he was one of those citizens who did not regret the President's retiring from office. He hoped he would retire to his country seat and enjoy all the happiness he could wish; and he believed he would enjoy more there than in his present situation. He believed the government of the United States would go on without him. The people were competent to their own government. What calamities would attend the United States if one man alone was essential to their government! He believed there were a thousand men in the United States who were capable of filling the presidential chair as well as it had been filled heretofore. And although a clamour had been raised in all parts of the United States, more or less, from apprehensions on the departure of the President from office, yet, not feeling these apprehensions himself, he was perfectly easy on the occasion. He

wished the President as much happiness as any man; and hoping he would retire, he could not express any regrets at the event. And it would be extraordinary, if gentlemen whose names in the yeas and nays are found in opposition to certain prominent measures of the administration, should now come forward and approve those measures. This could not be expected. He, for his part, retained the same opinions he had always done with respect to those measures, nor should any influence under heaven prevent him from expressing that opinion—an opinion in which he was confident, ere long, all America would concur.[\[49\]](#)

This motion was opposed with great earnestness by the party which had supported the administration. The advantages which had resulted from the constitution were said to be too obvious to be controverted; and it was maintained that a comparison of the present situation of the United States with its condition anterior to the adoption of that instrument, or with the condition of foreign powers, was natural and proper. This comparison was made not for the purposes of exultation, but of exciting just sentiments respecting their own conduct.

In reply to the observations respecting the President, it was said, that the whole course of his administration had demonstrated the correctness with which the terms "wisdom and firmness" were applied to it. Particular circumstances were stated in which these qualities had been pre-eminently displayed; but the general impression which facts had made on the public mind was considered as dispensing with the necessity of stating the particular facts themselves.

It might be true, they said, that there were many others who could fill with propriety and advantage the presidential chair, but no man could fill it who possessed, in an equal degree, the confidence of the people. The possession of this confidence enabled the chief magistrate to perform the duties of his office in a manner greatly conducive to the interests of the nation, and the loss of so valuable a public servant was certainly just cause of regret. With this sentiment, the feelings of the community fully accorded. In every part of the United States, the declarations of their constituents attested the regrets with which this event was contemplated by them. Those gentlemen who did not participate in these feelings would have an opportunity to record their names with their opinions. But those who did participate in them ought not to be restrained from expressing them.

The motion to strike out was lost; after which the words "the spectacle of a whole nation, the freest and most enlightened in the world," were amended, so as to read, "the spectacle of a free and enlightened nation," and the answer was carried by a great majority.

1797

Early in the session, the President communicated to congress in a special message, the complaints alleged by the representative of the French republic against the government of the United States. These complaints embracing most of the transactions of the legislative and executive departments, in relation to the belligerent powers, a particular and careful review of almost every act of the administration, which could affect those powers, became indispensable. The principal object for the mission of General Pinckney to Paris, having been to make full and fair explanations of the principles and conduct of the American government, this review was addressed to that minister. It presented a minute and comprehensive detail of all the points of controversy which had arisen between the two nations; and defended the measures which had been adopted in America, with a clearness, and a strength of argument, believed to be irresistible. To place the subject in a point of view, admitting of no possible misunderstanding, the secretary of state had annexed to his own full and demonstrative reasoning, documents, establishing the real fact in each particular case, and the correspondence relating to it.

This letter, with its accompanying documents, was laid before congress.

Those who read these valuable papers will not be surprised, that the President should have relied upon their efficacy in removing from the government of France, all impressions unfavourable to the fairness of intention which had influenced the conduct of the United States; and in effacing from the bosoms of the great body of the American people, all those unjust and injurious suspicions which had been entertained against their own administration. Should their immediate operation on the executive of France disappoint his hopes, he persuaded himself that he could not mistake their influence in America; and he felt the most entire conviction that the accusations against the United States would cease, with the evidence that those accusations were countenanced and supported by a great portion of the American people.

These documents were communicated to the public; but, unfortunately, their effect at home was not such as had been expected, and they were consequently inoperative abroad. The fury of political controversy seemed to sustain no diminution; and the American character continued to be degraded by reciprocal criminations, which the two great parties made upon each other, of being under a British, and a French influence.

The measures particularly recommended by the President in his speech, at the opening of the session, were not adopted; and neither the debates in Congress, nor the party publications with which the nation continued to be agitated, furnished reasonable ground for the hope, that the political intemperance which had prevailed from the establishment of the republican form of government in France, was about to be succeeded by a more conciliatory spirit.

The President contemplated with a degree of pleasure[\[50\]](#) seldom felt at the resignation of power, his approaching retirement to the delightful scenes of domestic and rural life.

It was impossible to be absolutely insensible to the bitter invectives, and malignant calumnies of which he had long been the object. Yet in one instance only, did he depart from the rule he had prescribed for his conduct regarding them. Apprehending permanent injury from the republication of certain spurious letters which have been already noticed, he, on the day which terminated his official character, addressed to the secretary of state the following letter.

He denies the authenticity of certain spurious letters published as his in 1776.

"Dear Sir,

"At the conclusion of my public employments, I have thought it expedient to notice the publication of certain forged letters which first appeared in the year 1777, and were obtruded upon the public as mine. They are said by the editor to have been found in a small portmanteau that I had left in the care of my mulatto servant named Billy, who, it is pretended, was taken prisoner at Fort Lee, in 1776. The period when these letters were first printed will be recollected, and what were the impressions they were intended to produce on the public mind. It was then supposed to be of some consequence to strike at the integrity of the motives of the American Commander-in-chief, and to paint his inclinations as at variance with his

professions and his duty—another crisis in the affairs of America having occurred, the same weapon has been resorted to, to wound my character and deceive the people.

"The letters in question have the dates, addresses, and signatures here following:

New York, June 12th, 1776.

To Mr. Lund Washington, at Mount Vernon, Fairfax county, Virginia.

G.W.

June 18th, 1776.

To John Parke Custis, Esqr., at the Hon Benedict Calvert's Esqr., Mount Airy, Maryland.

G.W.

New York, July 8th, 1776.

To Mr. Lund Washington, Mount Vernon, Fairfax county, Virginia.

G.W.

New York, July 16th, 1776.

To Mr. Lund Washington.

G.W.

New York, July 15th, 1776.

To Mr. Lund Washington.

G.W.

New York, July 22d, 1776.

To Mr. Lund Washington.

G.W.

June 24th, 1776.

To Mrs. Washington.

G.W.

"At the time when these letters first appeared, it was notorious to the army immediately under my command, and particularly to the gentlemen attached to my person, that my mulatto man Billy had never been one moment in the power of the enemy. It is also a fact that no part of my baggage, or any of my attendants, were captured during the whole course of

the war. These well known facts made it unnecessary, during the war, to call the public attention to the forgery by any express declaration of mine; and a firm reliance on my fellow citizens, and the abundant proofs they gave of their confidence in me, rendered it alike unnecessary to take any formal notice of the revival of the imposition, during my civil administration. But as I can not know how soon a more serious event may succeed to that which will this day take place, I have thought it a duty that I owed to myself, to my country, and to truth, now to detail the circumstances above recited, and to add my solemn declaration that the letters herein described are a base forgery, and that I never saw or heard of them until they appeared in print. The present letter I commit to your care, and desire it may be deposited in the office of the department of state, as a testimony of the truth to the present generation and to posterity. Accept, &c. &c."

John Adams elected president, and Thomas Jefferson vice president.

In February, the votes for the first and second magistrates of the union were opened and counted in presence of both houses; and the highest number appearing in favour of Mr. Adams, and the second in favour of Mr. Jefferson, the first was declared to be the President, and the second the Vice President, of the United States, for four years to commence on the fourth day of the ensuing March.

On that day, the members of the senate, conducted by the Vice President, together with the officers of the general and state governments, and an immense concourse of citizens, convened in the hall of the house of representatives, in which the oaths were administered to the President.

The sensibility which was manifested when General Washington entered, did not surpass the cheerfulness which overspread his own countenance, nor the heartfelt pleasure with which he saw another invested with the powers that had so long been exercised by himself.[\[51\]](#)

General Washington retires to Mount Vernon.

After the solemnities of the occasion had been concluded, and he had paid to his successor those respectful compliments which he believed to be equally due to the man and to the office, he hastened[\[52\]](#) to that real felicity which awaited him at Mount Vernon, the enjoyment of which he had long impatiently anticipated.

The same marks of respect and affection for his person, which had on all great occasions been manifested by his fellow citizens, still attended him.

His endeavours to render his journey private were unavailing; and the gentlemen of the country through which he passed, were still ambitious of testifying their sentiments for the man who had, from the birth of the republic, been deemed the first of American citizens. Long after his retirement, he continued to receive addresses from legislative bodies, and various classes of citizens, expressive of the high sense entertained of his services.

Notwithstanding the extraordinary popularity of the first President of the United States, scarcely has any important act of his administration escaped the most bitter invective.

Political situation of the United States at this period.

On the real wisdom of the system which he pursued, every reader will decide for himself. Time will, in some measure, dissipate the prejudices and passions of the moment, and enable us to view objects through a medium which represents them truly.

Without taking a full review of measures which were reprobated by one party and applauded by the other, the reader may be requested to glance his eye at the situation of the United States in 1797, and to contrast it with their condition in 1788.

At home, a sound credit had been created; an immense floating debt had been funded in a manner perfectly satisfactory to the creditors: an ample revenue had been provided; those difficulties which a system of internal taxation, on its first introduction, is doomed to encounter, were completely removed; and the authority of the government was firmly established. Funds for the gradual payment of the debt had been provided; a considerable part of it had been actually discharged; and that system which is now operating its entire extinction, had been matured and adopted. The agricultural and commercial wealth of the nation had increased beyond all former example. The numerous tribes of warlike Indians, inhabiting those immense tracts which lie between the then cultivated country and the Mississippi, had been taught, by arms and by justice, to respect the United States, and to continue in peace. This desirable object having been accomplished, that humane system was established for civilizing, and furnishing them with the conveniences of life which improves their condition, while it secures their attachment.

Abroad, the differences with Spain had been accommodated; and the free navigation of the Mississippi had been acquired, with the use of New Orleans as a place of deposit for three years, and afterwards, until some other equivalent place should be designated. Those causes of mutual exasperation which had threatened to involve the United States in a war with the greatest maritime and commercial power in the world, had been removed; and the military posts which had been occupied within their territory, from their existence as a nation, had been evacuated. Treaties had been formed with Algiers and with Tripoli, and no captures appear to have been made by Tunis; so that the Mediterranean was opened to American vessels.

This bright prospect was indeed, in part, shaded by the discontents of France. Those who have attended to the particular points of difference between the two nations, will assign the causes to which these discontents are to be ascribed, and will judge whether it was in the power of the President to have avoided them, without surrendering the real independence of the nation, and the most invaluable of all rights —the right of self-government.

Such was the situation of the United States at the close of Washington's administration. Their circumstances at its commencement will be recollected; and the contrast is too striking not to be observed.

That this beneficial change in the affairs of America is to be ascribed exclusively to the wisdom which guided the national councils will not be pretended. That many of the causes which produced it originated with the government, and that their successful operation was facilitated, if not secured, by the system which was adopted, will scarcely be denied. To estimate that system correctly, their real influence must be allowed to those strong prejudices, and turbulent passions, with which it was assailed.

Accustomed in the early part of his life to agricultural pursuits, and possessing a real taste for them, General Washington was particularly well qualified to enjoy, in retirement, that tranquil felicity which he had anticipated. Resuming former habits, and returning to ancient and well known employments, he was familiar with his new situation, and therefore exempt from the danger of that disappointment which is the common lot of those who, in old age, retire from the toils of business, or the cares of office, to the untried pleasures of the country. A large estate, which exhibited many

proofs of having been long deprived of the attentions of its proprietor, in the management and improvement of which he engaged with ardour, an extensive correspondence, and the society of men and books, gave employment to every hour which was equally innocent and interesting, and furnished ground for the hope that the evening of a life which had been devoted to the public service, would be as serene, as its mid-day had been brilliant.

Though devoted to these occupations, an absolute indifference to public affairs would have been incompatible with that love of country which had influenced all his conduct. Feeling strong impressions in favour of that system, with regard to foreign powers, which had been adopted by himself, and which was faithfully pursued by his successor, he could not be inattentive to the immense, and continued exertions, made by a powerful party to overturn it. Yet for a time, he sought to abstract himself from these political contests, and to diminish the interest which his feelings impelled him to take in them. His letters abound in paragraphs not unlike the following. "I have confidence however in that Providence which has shielded the United States from the evils that have hitherto threatened them; and, as I believe the major part of the people of this country to be well affected to its constitution and government, I rest satisfied that, should a crisis ever arise to call forth the sense of the community, it will be strong in support of the honour and dignity of the nation. Therefore, however much I regret the opposition which has for its object the embarrassment of the administration, I shall view things in the 'calm light of mild philosophy,' and endeavour to finish my course in retirement and ease."

But the designs of France were soon manifested in a form which, to the veteran soldier and statesman of Mount Vernon, appeared to be too dangerous as well as unequivocal, to admit the preservation of this equanimity.

The French government refuses to receive General Pinckney as minister.

In the executive of that republic, General Pinckney encountered dispositions of a very different character from that amicable and conciliatory temper which had dictated his mission. After inspecting his letter of credence, the Directory announced to him their haughty determination "not to receive another minister plenipotentiary from the United States, until after the redress of grievances demanded of the

American government, which the French republic had a right to expect from it." This message was succeeded, first by indecorous verbal communications, calculated to force the American minister out of France, and afterwards, by a written mandate to quit the territories of the republic.

This act of hostility was accompanied with another which would explain the motives for this conduct, if previous measures had not rendered all further explanation unnecessary.

On giving to the recalled minister his audience of leave, the president of the directory addressed a speech to him, in which terms of outrage to the government, were mingled with expressions of affection for the people of the United States; and the expectation of ruling the former, by their influence over the latter, was too clearly manifested not to be understood. To complete this system of hostility, American vessels were captured wherever found; and, under the pretext of their wanting a document, with which the treaty of commerce had been uniformly understood to dispense, they were condemned as prize.

Congress is convened.

President's speech.

This serious state of things demanded a solemn consideration. On receiving from General Pinckney the despatches which communicated it, the President issued his proclamation requiring congress to meet on the 15th day of June. The firm and dignified speech delivered by the chief magistrate at the commencement of the session, exhibited that sensibility which a high minded and real American might be expected to feel, while representing to the national legislature the great and unprovoked outrages of a foreign government. Adverting to the audience of leave given by the executive Directory to Colonel Monroe, he said, "the speech of the President discloses sentiments more alarming than the refusal of a minister, because more dangerous to our independence and union; and, at the same time, studiously marked with indignities towards the government of the United States. It evinces a disposition to separate the people from their government; to persuade them that they have different affections, principles, and interests from those of their fellow citizens whom they themselves have chosen to manage their common concerns; and thus to produce divisions fatal to our peace. Such attempts ought to be repelled with a decision which shall convince France, and the world, that we are not a degraded people,

humiliated under a colonial spirit of fear, and sense of inferiority, fitted to be the miserable instruments of foreign influence, and regardless of national honour, character, and interest."

"Retaining still the desire which had uniformly been manifested by the American government to preserve peace and friendship with all nations, and believing that neither the honour nor the interest of the United States absolutely forbade the repetition of advances for securing these desirable objects with France, he should," he said, "institute a fresh attempt at negotiation, and should not fail to promote and accelerate an accommodation on terms compatible with the rights, duties, interests, and honour of the nation." But while he should be making these endeavours to adjust all differences with the French republic by amicable negotiation, he earnestly recommended it to congress to provide effectual measures of defence.

Three envoys extraordinary deputed to negotiate with France.

To carry into effect the pacific dispositions avowed in the speech, three envoys extraordinary were appointed, at the head of whom General Pinckney was placed. Their instructions conformed to the public language of the President. Peace and reconciliation were to be pursued by all means, compatible with the honour and the faith of the United States; but no national engagements were to be impaired; no innovation to be permitted upon those internal regulations for the preservation of peace which had been deliberately and uprightly established; nor were the rights of the government to be surrendered.

The debates in the house of representatives, on the answer to the speech, were long and earnest. To expressions approving the conduct of the executive with regard to foreign nations, the opposition was ardent, but unsuccessful. On the third of June, an answer was agreed to which contained sentiments worthy of an American legislature, and for which several of the leaders of the opposition voted.

The speech of the President was well adapted to the occasion, and to the times. It was calculated to rouse those indignant feelings which a high spirited people, insulted and injured by a foreign power, can never fail to display, if their judgment be not blinded, or their sensibility to external wrongs blunted, by invincible prejudices. He relied principally on the manifestation of these feelings for the success of the negotiation; and on

their real existence, for the defence of the national rights, should negotiation fail. His endeavours were not absolutely unsuccessful. Some impression was made on the mass of the people; but it was too slight to be productive of the advantages expected from it. The conduct of France was still openly defended; and the opinion, that the measures which had been adopted by the executive of the United States furnished that republic with just cause of war, was still publicly maintained, and indefatigably circulated. According to these opinions, America could entitle herself to peace, only by retracing the steps she had taken, and yielding to the demands of her justly offended but generous and magnanimous ally.

Still jealous for the honour, as well as confident of the importance, of his country, and retaining that full conviction respecting the propriety of its measures which had induced their adoption, General Washington could not repress the solicitude with which he contemplated passing events. His confidential letters disclose the strong feelings of his own bosom, but betray no apprehensions that the French government would press its present system to extremities. He firmly believed that the hostile attitude it had assumed was to be, exclusively, ascribed to the conduct of those Americans who had been the uniform advocates of all the pretensions of France, and who were said to be supported by a real majority of the people; and confidently expected that, under the old pretext of magnanimous forbearance, the executive directory would, slowly, and gradually, recede from its present system, so soon as the error in which it originated should become manifest. The opinion he had always entertained of the good sense and patriotism of his fellow citizens, silenced every doubt respecting the manner in which they would act, when their real situation should be perceived by themselves.

1798

For a considerable length of time, no certain intelligence reached the United States respecting the negotiation at Paris. At length, in the winter of 1798, letters were received from the American envoys, indicating an unfavourable state of things; and, in the spring, despatches arrived which announced the total failure of the mission.

History will scarcely furnish the example of a nation, not absolutely degraded, which has received from a foreign power such open contumely,

and undisguised insult, as were, on this occasion, suffered by the United States in the persons of their ministers.

Their treatment.

It was insinuated that their being taken from the party^[53] which had supported the measures of their own government furnished just cause of umbrage; and, under slight pretexts, the executive directory delayed to accredit them as the representatives of an independent nation. In this situation, they were assailed by persons, not indeed invested with formal authority, but exhibiting sufficient evidence of the source from which their powers were derived, who, in direct and explicit terms, demanded money from the United States as the condition which must precede, not only the reconciliation of America to France, but any negotiation on the differences between the two countries.

That an advance of money by a neutral to a belligerent power would be an obvious departure from neutrality, though an insuperable objection to this demand, did not constitute the most operative reason for repelling it. Such were the circumstances under which it was made, that it could not be acceded to without a surrender of the real independence of the United States; nor without being, in fact, the commencement of a system, the end of which it was impossible to foresee.



Mount Vernon

This colonial mansion overlooking the Potomac River fifteen miles south of Washington, D.C., and famous as the home and burial-place of the "Father of His Country," was built in 1743 by Washington's elder brother, Lawrence, who called it Mount Vernon, after Admiral Vernon, under whom he had served in the British Navy. Mount Vernon, which was much enlarged by President Washington, was by him bequeathed to Bushrod Washington, upon whose death it came into the hands of John A. Washington, his nephew, who sold it in 1858 to the Ladies Mount Vernon Association, which holds it in trust as a national shrine.

A decided negative was therefore given to the preliminary required by these unofficial agents; but they returned to the charge with wonderful perseverance, and used unwearied arts to work upon the fears of the American ministers for their country, and for themselves. The immense power of France was painted in glowing colours, the humiliation of the house of Austria was stated, and the conquest of Britain was confidently anticipated. In the friendship of France alone, it was said, could America look for safety; and the fate of Venice was held up to warn her of the danger which awaited those who incurred the displeasure of the great republic. The ministers were assured that, if they believed their conduct would be approved in the United States, they were mistaken. The means which the Directory possessed, in that country, to excite odium against them, were great, and would unquestionably be employed.

This degrading intercourse was at length interrupted by the positive refusal of the envoys to hold any further communication with the persons employed in it.

Meanwhile, they urged the object of their mission with persevering but unavailing solicitude. The Directory still refused to acknowledge them in their public character; and the secretary of exterior relations, at unofficial visits which they made him, renewed the demand which his agents had unsuccessfully pressed.

Finding the objections to their reception in their official character insurmountable, the American ministers made a last effort to execute the duties assigned to them. In a letter addressed to the secretary of exterior relations, they entered at large into the explanations committed to them by

their government, and illustrated, by a variety of facts, the uniform friendliness of its conduct to France.^[54] Notwithstanding the failure of this effort, and their perfect conviction that all further attempts would be equally unavailing, they continued, with a passiveness which must search for its apology in their solicitude to demonstrate to the American people the real views of the French republic, to employ the only means in their power to avert the rupture which was threatened, and which appeared to be inevitable.

During these transactions, occasion was repeatedly taken to insult the American government; open war was continued to be waged by the cruisers of France on American commerce; and the flag of the United States was a sufficient justification for the capture and condemnation of any vessel over which it waved.

At length, when the demonstration became complete, that the resolution of the American envoys was not less fixed, than their conduct had been guarded and temperate, various attempts were made to induce two of them, voluntarily, to relinquish their station; on the failure of which, they were ordered to quit the territories of the republic. As if to aggravate this national insult, the third, who had been selected from that party which was said to be friendly to France, was permitted to remain, and was invited to resume the discussions which had been interrupted.

The despatches communicating these events were laid before congress, and were afterwards published. The indignation which they excited was warm and extensive. The attempt to degrade the United States into a tributary nation was too obvious to be concealed; and the resentment produced, as well by this attempt as by the threats which accompanied it, was not confined to the federalists. For the moment, a spirit was roused on which an American may reflect with pride, and which he may consider as a sure protection from external danger. In every part of the continent, the favourite sentiment was "millions for defence, not a cent for tribute."

The disposition still existed to justify France, by criminating the American government, by contending that her intentions were not really hostile, that her conduct was misrepresented by men under British influence, who wished for war, or had been deceived by unauthorized intriguers; that, admitting it to be otherwise, she only demanded those marks of friendship which, at a critical moment, she had herself afforded;

that the real interests of the United States required a compliance with this demand; that it would cost more money to resist than to yield to it; that the resistance would infallibly be ineffectual; and that national honour was never secured by national defeat. Neither these sentiments, nor the arguments which were founded on them, accorded with the general feeling; and it required the co-operation of other causes to establish the influence of those who urged them.

Measures of hostility adopted by the American government against France.

In congress, vigorous measures were adopted for retaliating injuries which had been sustained, and for repelling those which were threatened. Amongst these was a regular army. A regiment of artillerists and engineers was added to the permanent establishment; and the President was authorized to raise twelve additional regiments of infantry, and one regiment of cavalry, to serve during the continuance of the existing differences with the French republic if not sooner discharged. He was also authorized to appoint officers for a provisional army, and to receive and organize volunteer corps who would be exempt from ordinary militia duty; but neither the volunteers nor the officers of the provisional army were to receive pay unless called into actual service.

Addresses^[55] to the executive from every part of the United States attested the high spirit of the nation, and the answers of the President were well calculated to give it solidity and duration.

No sooner had a war become probable, to the perils of which no man could be insensible, than the eyes of all were directed to General Washington, as the person who should command the American army. He alone could be seen at the head of a great military force without exciting jealousy; he alone could draw into public service, and arrange properly the best military talents of the nation; and he more than any other, could induce the utmost exertions of its physical strength.

Indignant at the unprovoked injuries which had been heaped upon his country, and convinced that the conflict, should a war be really prosecuted by France with a view to conquest, would be extremely severe, and could be supported, on the part of America, only by a persevering exertion of all her force, he could not determine, should such a crisis arrive, to withhold those aids which it might be in his power to afford, should public opinion really attach to his services that importance which would render them

essential. His own reflections appear to have resulted in a determination not to refuse once more to take the field, provided he could be permitted to secure efficient aid by naming the chief officers of the army, and to remain at home until his service in the field should be required by actual invasion.

A confidential and interesting letter from Colonel Hamilton of the 19th of May, on political subjects, concludes with saying, "You ought also to be aware, my dear sir, that in the event of an open rupture with France, the public voice will again call you to command the armies of your country; and though all who are attached to you will from attachment as well as public considerations, deplore an occasion which should once more tear you from that repose to which you have so good a right; yet it is the opinion of all those with whom I converse that you will be compelled to make the sacrifice. All your past labours may demand, to give them efficacy, this further, this very great sacrifice."

"You may be assured," said General Washington in reply, "that my mind is deeply impressed with the present situation of public affairs, and not a little agitated by the outrageous conduct of France towards the United States, and at the inimitable conduct of those partisans who aid and abet her measures. You may believe further, from assurances equally sincere, that if there was any thing in my power to be done consistently, to avert or lessen the danger of the crisis, it should be rendered with hand and heart.

"But, my dear sir, dark as matters appear at present, and expedient as it is to be prepared for the worst that can happen, (and no man is more disposed to this measure than I am) I can not make up my mind yet, for the expectation of open war; or, in other words, for a formidable invasion by France. I can not believe, although I think her capable of any thing, that she will attempt to do more than she has done. When she perceives the spirit and policy of this country rising into resistance, and that she has falsely calculated upon support from a large part of the people[56] to promote her views and influence in it, she will desist even from those practices, unless unexpected events in Europe, or the acquisition of Louisiana and the Floridas, should induce her to continue them. And I believe further, that although the leaders of their party in this country will not change their sentiments, they will be obliged to change their plan, or the mode of carrying it on. The effervescence which is appearing in all quarters, and the

desertion of their followers, will frown them into silence—at least for a while.

"If I did not view things in this light, my mind would be infinitely more disquieted than it is: for, if a crisis should arrive when a sense of duty, or a call from my country should become so imperious as to leave me no choice, I should prepare for relinquishment, and go with as much reluctance from my present peaceful abode, as I should go to the tombs of my ancestors."

The opinion that prudence required preparations for open war, and that General Washington must once more be placed at the head of the American armies, strengthened every day; and on the 22d of June, the President addressed him a letter in which that subject was thus alluded to.

"In forming an army, whenever I must come to that extremity, I am at an immense loss whether to call out the old generals, or to appoint a young set. If the French come here, we must learn to march with a quick step, and to attack, for in that way only they are said to be vulnerable. I must tax you, sometimes, for advice. We must have your name, if you will in any case permit us to use it. There will be more efficacy in it than in many an army."

A letter from the secretary of war, written four days afterwards, concludes with asking, "May we flatter ourselves that, in a crisis so awful and important, you will accept the command of all our armies? I hope you will, because you alone can unite all hearts and all hands, if it is possible that they can be united."

These letters reached General Washington on the same day. The following extract from his reply to the President will exhibit the course of his reflections relative to his appearance once more at the head of the American armies.

"At the epoch of my retirement, an invasion of these states by any European power, or even the probability of such an event in my days, was so far from being contemplated by me, that I had no conception either that or any other occurrence would arise in so short a period which could turn my eyes from the shades of Mount Vernon. But this seems to be the age of wonders. And it is reserved for intoxicated and lawless France (for purposes of Providence far beyond the reach of human ken) to slaughter her own citizens, and to disturb the repose of all the world besides. From a view of the past,—from the prospect of the present,—and of that which seems to be expected, it is not easy for me to decide satisfactorily on the part it might

best become me to act. In case of actual invasion by a formidable force, I certainly should not intrench myself under the cover of age and retirement, if my services should be required by my country to assist in repelling it. And if there be good cause to expect such an event, which certainly must be better known to the government than to private citizens, delay in preparing for it may be dangerous, improper, and not to be justified by prudence. The uncertainty however of the latter, in my mind, creates my embarrassment; for I can not bring it to believe, regardless as the French are of treaties, and of the laws of nations, and capable as I conceive them to be of any species of despotism and injustice, that they will attempt to invade this country after such a uniform and unequivocal expression of the determination of the people in all parts to oppose them with their lives and fortunes. That they have been led to believe by their agents and partisans among us that we are a divided people, that the latter are opposed to their own government, and that the show of a small force would occasion a revolt, I have no doubt; and how far these men (grown desperate) will further attempt to deceive, and may succeed in keeping up the deception, is problematical. Without that, the folly of the Directory in such an attempt would, I conceive, be more conspicuous, if possible, than their wickedness.

"Having with candour made this disclosure of the state of my mind, it remains only for me to add, that to those who knew me best, it is best known that, should imperious circumstances induce me to exchange once more the smooth paths of retirement for the thorny ways of public life, at a period too when repose is more congenial to nature, it would be productive of sensations which can be more easily conceived than expressed."

His letter to the secretary of war was more detailed and more explicit. "It can not," he said, "be necessary for me to promise to you or to others who know my sentiments, that to quit the tranquillity of retirement, and enter the boundless field of responsibility, would be productive of sensations which a better pen than I possess would find it difficult to describe. Nevertheless, the principle by which my conduct has been actuated through life, would not surfer me, in any great emergency, to withhold any services I could render when required by my country;—especially in a case where its dearest rights are assailed by lawless ambition and intoxicated power, in contempt of every principle of justice, and in violation of solemn compact, and of laws which govern all civilized nations:—and this too with the obvious intent to sow thick the seeds of disunion for the purpose of

subjugating our government, and destroying our independence and happiness.

"Under circumstances like these, accompanied by an actual invasion of our territory, it would be difficult for me, at any time, to remain an idle spectator, under the plea of age or retirement. With sorrow, it is true, I should quit the shades of my peaceful abode, and the ease and happiness I now enjoy, to encounter anew the turmoils of war, to which, possibly, my strength and powers might be found incompetent. These, however, should not be stumbling blocks in my own way. But there are other things highly important for me to ascertain and settle before I could give a definite answer to your question.

1st. The propriety in the opinion of the public, so far as that opinion has been expressed in conversation, of my appearing again on the public theatre, after declaring the sentiments I did in my valedictory address of September, 1796.

2dly. A conviction in my own breast, from the best information that can be obtained, that it is the wish of my country that its military force should be committed to my charge; and,

3dly. That the army now to be formed should be so appointed as to afford a well grounded hope of its doing honour to the country, and credit to him who commands it in the field.

"On each of these heads you must allow me to make observations."

General Washington then proceeded to detail his sentiments on those points on which his consent to take command of the army must depend.

General Washington appointed commander-in-chief of the American Army.

Some casual circumstances delayed the reception of the letters of the President and secretary of war for several days, in consequence of which, before the answer of General Washington reached the seat of government, the President had nominated him to the chief command of all the armies raised or to be raised in the United States, with the rank of Lieutenant General; and the senate had unanimously advised and consented to his appointment.

By the secretary of war, who was directed to wait upon him with his commission, the President addressed to him the following letter:

"Mr. M'Henry, the secretary of war, will have the honour to wait on you in my behalf, to impart to you a step I have ventured to take, which I should have been happy to have communicated in person, had such a journey, at this time, been in my power.

"My reasons for this measure will be too well known to need any explanation to the public. Every friend and every enemy of America will comprehend them at first blush. To you, sir, I owe all the apology I can make. The urgent necessity I am in of your advice and assistance, indeed of your conduct and direction of the war, is all I can urge; and that is a sufficient justification to myself and to the world. I hope it will be so considered by yourself. Mr. M'Henry will have the honour to consult you upon the organization of the army, and upon every thing relating to it."

Open instructions, signed by the President, were on the same day delivered to the secretary of war, of which the following is a copy:

"It is my desire that you embrace the first opportunity to set out on your journey to Mount Vernon, and wait on General Washington with the commission of Lieutenant General and Commander-in-chief of the armies of the United States, which, by the advice and consent of the senate, has been signed by me.

"The reasons and motives which prevailed on me to venture on such a step as the nomination of this great and illustrious character, whose voluntary resignation alone occasioned my introduction to the office I now hold, were too numerous to be detailed in this letter, and are too obvious and important to escape the observation of any part of America or Europe. But as it is a movement of great delicacy, it will require all your address to communicate the subject in a manner that shall be inoffensive to his feelings, and consistent with all the respect that is due from me to him.

"If the General should decline the appointment, all the world will be silent, and respectfully acquiesce. If he should accept it, all the world, except the enemies of his country, will rejoice. If he should come to no decisive determination, but take the subject into consideration, I shall not appoint any other lieutenant general until his conclusion is known.

"His advice in the formation of a list of officers would be extremely desirable to me. The names of Lincoln, Morgan, Knox, Hamilton, Gates, Pinckney, Lee, Carrington, Hand, Muhlenberg, Dayton, Burr, Brooks, Cobb, Smith, as well as the present Commander-in-chief, may be

mentioned to him, and any others that occur to you. Particularly, I wish to have his opinion on the men most suitable for inspector general, adjutant general, and quarter master general.

"His opinion on all subjects would have great weight, and I wish you to obtain from him as much of his reflections upon the times and the service as you can."

The communications between General Washington and the secretary of war appear to have been full and unreserved. The impressions of the former respecting the critical and perilous situation of his country had previously determined him to yield to the general desire, and accept the commission offered him, provided he could be permitted to select for the high departments of the army, and especially for the military staff, those in whom he could place the greatest confidence. Being assured that there was every reason to believe his wishes in this respect would not be thwarted, he gave to the secretary the arrangement^[57] which he would recommend for the principal stations in the army; and, on the 13th of July, addressed the following letter to the President.

"I had the honour, on the evening of the 11th instant, to receive from the hands of the secretary at war, your favour of the seventh, announcing that you had, with the advice and consent of the senate, appointed me Lieutenant General and Commander-in-chief of the armies raised or to be raised for the service of the United States.

"I can not express how greatly affected I am at this new proof of public confidence, and at the highly flattering manner in which you have been pleased to make the communication. At the same time, I must not conceal from you my earnest wish that the choice had fallen upon a man less declined in years, and better qualified to encounter the usual vicissitudes of war.

"You know, sir, what calculations I had made relative to the probable course of events on my retiring from office, and the determination, with which I had consoled myself, of closing the remnant of my days in my present peaceful abode. You will therefore be at no loss to conceive and appreciate the sensations I must have experienced, to bring my mind to any conclusion that would pledge me, at so late a period of life, to leave scenes I sincerely love, to enter upon the boundless field of public action, incessant trouble, and high responsibility.

"It was not possible for me to remain ignorant of, or indifferent to recent transactions. The conduct of the Directory of France towards our country; their insidious hostility to its government; their various practices to withdraw the affections of the people from it; the evident tendency of their arts, and those of their agents, to countenance and invigorate opposition; their disregard of solemn treaties and the laws of nations; their war upon our defenceless commerce; their treatment of our ministers of peace; and their demands, amounting to tribute, could not fail to excite in me sentiments corresponding with those my countrymen have so generally expressed in their affectionate addresses to you.

"Believe me, sir, no man can more cordially approve the wise and prudent measures of your administration. They ought to inspire universal confidence, and will no doubt, combined with the state of things, call from congress such laws and means as will enable you to meet the full force and extent of the crisis.

"Satisfied, therefore, that you have sincerely wished and endeavoured to avert war, and exhausted to the last drop the cup of reconciliation, we can, with pure hearts, appeal to heaven for the justice of our cause, and may confidently trust the final result to that kind Providence who has heretofore, and so often, signally favoured the people of the United States.

"Thinking in this manner, and feeling how incumbent it is upon every person of every description to contribute, at all times, to his country's welfare, and especially in a moment like the present, when every thing we hold dear and sacred is so seriously threatened, I have finally determined to accept the commission of Commander-in-chief of the armies of the United States, with the reserve only,—that I shall not be called into the field until the army is in a situation to require my presence, or it becomes indispensable by the urgency of circumstances.

"In making this reservation, I beg it to be understood that I do not mean to withhold any assistance to arrange and organize the army, which you may think I can afford. I take the liberty also to mention that I must decline having my acceptance considered as drawing after it any immediate charge upon the public, or that I can receive any emoluments annexed to the appointment before I am in a situation to incur expense."

From this period, General Washington intermingled the cares and attentions of office with his agricultural pursuits. His solicitude respecting

the organization of an army which he might possibly be required to lead against an enemy the most formidable in the world, was too strong to admit of his being inattentive to its arrangements. Yet he never did believe that an invasion of the United States would actually take place. His conviction that it was not the interest of France to wage an unprovoked war with America, and that the hostile measures which the executive Directory had adopted originated in the opinion that those measures would overthrow the administration, and place power in the hands of those who had uniformly supported all the pretensions of the French republic, remained unshaken. As a necessary consequence of this conviction, he was persuaded that the indignation which this system had excited, would effect its change. The only circumstance that weakened this hope, arose from the persevering opposition which was still maintained in congress, and from the evidence which was daily afforded that those party animosities, to which he ascribed the present dangerous crisis, were far from being healed. Those who had embraced the cause of France in the controversy between that nation and the United States, had been overwhelmed by a flood of testimony which silenced them for a time, but which weakened them more in appearance than in reality. They were visibly recovering both strength and confidence. It is not therefore wonderful that General Washington should have expressed himself more freely than had been his custom, respecting American parties, and that he should have exerted an influence which he had not been in the habit of employing, to induce men whose talents he respected, but who had declined political life, to enter into the national and state legislatures.

Events soon demonstrated that he had not calculated unreasonably on the effects of the spirit manifested by his country. Although America, supplicating for peace, had been spurned with contempt; although the executive Directory had rejected with insult her repeated and sincere prayers to be permitted to make explanations, and had haughtily demanded a concession of their arrogant and unfounded claims or the advance of pecuniary aids, as a preliminary to negotiation;—America, in arms, was treated with some respect. Indirect pacific overtures were made, and a willingness on the part of France, to accommodate the existing differences on reasonable terms, was communicated.

The President, truly solicitous to restore that harmony and good understanding which the United States had laboured so incessantly and so sincerely to preserve with their ancient ally, caught at the overtures which were indirectly made, and again appointed three envoys extraordinary and ministers plenipotentiary to the French republic. These gentlemen found the government in the hands of a person who had taken no part in those transactions which had embroiled the two countries, and who entered into negotiations with them which terminated in the amicable adjustment of differences.

General Washington did not live to witness the restoration of peace. His death.

On Friday the 13th of December, while attending to some improvements upon his estate, he was exposed to a light rain, by which his neck and hair became wet. Not apprehending danger from this circumstance, he passed the afternoon in his usual manner; but, in the night, was seized with an inflammatory affection of the windpipe. The disease commenced with a violent ague, accompanied with some pain in the upper and fore part of the throat, a sense of stricture in the same part, a cough, and a difficult rather than a painful deglutition, which were soon succeeded by fever, and a quick and laborious respiration.

Believing bloodletting to be necessary, he procured a bleeder who took from his arm twelve or fourteen ounces of blood, but he would not permit a messenger to be despatched for his family physician until the appearance of day. About eleven in the morning Doctor Craik arrived; and perceiving the extreme danger of the case, requested that two consulting physicians should be immediately sent for. The utmost exertions of medical skill were applied in vain. The powers of life were manifestly yielding to the force of the disorder; speaking, which was painful from the beginning, became almost impracticable: respiration became more and more contracted and imperfect, until half past eleven on Saturday night; when, retaining the full possession of his intellect, he expired without a struggle.

Believing at the commencement of his complaint, as well as through every succeeding stage of it, that its conclusion would be mortal, he submitted to the exertions made for his recovery, rather as a duty, than from any expectation of their efficacy. Some hours before his death, after repeated efforts to be understood, he succeeded in expressing a desire that

he might be permitted to die without interruption. After it became impossible to get any thing down his throat, he undressed himself and went to bed, there to die. To his friend and physician, Doctor Craik, who sat on his bed, and took his head in his lap, he said with difficulty, "Doctor, I am dying, and have been dying for a long time, but I am not afraid to die."

During the short period of his illness he economized his time, in arranging with the utmost serenity those few concerns which required his attention; and anticipated his approaching dissolution with every demonstration of that equanimity, for which his life was so uniformly, and singularly, conspicuous.

The deep and wide spreading grief occasioned by this melancholy event, assembled a great concourse of people for the purpose of paying the last tribute of respect to the first of Americans. His body, attended by military honours and the ceremonies of religion, was deposited in the family vault at Mount Vernon, on Wednesday, the 18th of December.

So short was his illness that, at the seat of government, the intelligence of his death preceded that of his indisposition. It was first communicated by a passenger in the stage to an acquaintance whom he met in the street, and the report quickly reached the house of representatives which was then in session. The utmost dismay and affliction was displayed for a few minutes; after which a member stated in his place, the melancholy information which had been received. This information he said was not certain, but there was too much reason to believe it true.

"After receiving intelligence," he added, "of a national calamity so heavy and afflicting, the house of representatives can be but ill fitted for public business." He therefore moved an adjournment. Both houses adjourned until the next day.

On the succeeding day, as soon as the orders were read, the same member addressed the chair in the following terms:

"The melancholy event which was yesterday announced with doubt, has been rendered but too certain. Our Washington is no more! the hero, the patriot, and the sage of America;—the man on whom, in times of danger, every eye was turned, and all hopes were placed,—lives now only in his own great actions, and in the hearts of an affectionate and afflicted people.

"If, sir, it had even not been usual openly to testify respect for the memory of those whom heaven has selected as its instruments for

dispensing good to man, yet, such has been the uncommon worth, and such the extraordinary incidents which have marked the life of him whose loss we all deplore, that the whole American nation, impelled by the same feelings, would call, with one voice, for a public manifestation of that sorrow which is so deep and so universal.

"More than any other individual, and as much as to one individual was possible, has he contributed to found this our wide spreading empire, and to give to the western world independence and freedom.

"Having effected the great object for which he was placed at the head of our armies, we have seen him convert the sword into the ploughshare, and sink the soldier into the citizen.

"When the debility of our federal system had become manifest, and the bonds which connected this vast continent were dissolving, we have seen him the chief of those patriots who formed for us a constitution which, by preserving the union, will, I trust, substantiate and perpetuate those blessings which our revolution had promised to bestow.

"In obedience to the general voice of his country calling him to preside over a great people, we have seen him once more quit the retirement he loved, and, in a season more stormy and tempestuous than war itself, with calm and wise determination, pursue the true interests of the nation, and contribute, more than any other could contribute, to the establishment of that system of policy, which will, I trust, yet preserve our peace, our honour, and our independence.

"Having been twice unanimously chosen the chief magistrate of a free people, we have seen him, at a time when his re-election with universal suffrage could not be doubted, afford to the world a rare instance of moderation, by withdrawing from his high station to the peaceful walks of private life.

"However the public confidence may change, and the public affections fluctuate with respect to others, with respect to him, they have, in war and in peace, in public and in private life, been as steady as his own firm mind, and as constant as his own exalted virtues.

"Let us then, Mr. Speaker, pay the last tribute of respect and affection to our departed friend. Let the grand council of the nation display those sentiments which the nation feels. For this purpose I hold in my hand some resolutions which I take the liberty of offering to the house."

The resolutions,[\[58\]](#) after a preamble stating the death of General Washington, were in the following terms.

"Resolved, that this house will wait on the President in condolence of this mournful event.

"Resolved, that the speaker's chair be shrouded with black, and that the members and officers of the house wear black during the session.

"Resolved, that a committee, in conjunction with one from the senate, be appointed to consider on the most suitable manner of paying honour to the memory of the Man, first in war, first in peace, and first in the hearts of his fellow citizens."

Immediately after the passage of these resolutions, a written message was received from the President, accompanying a letter from Mr. Lear, which he said, "will inform you that it had pleased Divine Providence to remove from this life our excellent fellow citizen, George Washington, by the purity of his life, and a long series of services to his country, rendered illustrious through the world. It remains for an affectionate and grateful people, in whose hearts he can never die, to pay suitable honour to his memory."

To the speaker and members of the house of representatives who waited on him in pursuance of the resolution which has been mentioned, he expressed the same deep-felt and affectionate respect "for the most illustrious and beloved personage America had ever produced."

The senate, on this melancholy occasion, addressed to the President the following letter:

"The senate of the United States respectfully take leave, sir, to express to you their deep regret for the loss their country sustains in the death of General George Washington.

"This event, so distressing to all our fellow citizens, must be peculiarly heavy to you who have long been associated with him in *deeds of patriotism*. Permit us, sir, to mingle our tears with yours. On this occasion it is manly to weep. To lose such a man, at such a crisis, is no common calamity to the world. Our country mourns a father. The Almighty disposer of human events has taken from us our greatest benefactor and ornament. It becomes us to submit with reverence, to Him who 'maketh darkness his pavilion.'

"With patriotic pride we review the life of our Washington, and compare him with those of other countries who have been pre-eminent in fame. Ancient and modern names are diminished before him. Greatness and guilt have too often been allied; but *his* fame is whiter than it is brilliant. The destroyers of nations stood abashed at the majesty of *his* virtues. It reproved the intemperance of their ambition, and darkened the splendour of victory. The scene is closed,—and we are no longer anxious lest misfortune should sully his glory; he has traveled on to the end of his journey, and carried with him an increasing weight of honour: he has deposited it safely where misfortune can not tarnish it; where malice can not blast it. Favoured of heaven, he departed without exhibiting the weakness of humanity; magnanimous in death, the darkness of the grave could not obscure his brightness.

"Such was the man whom we deplore. Thanks to God, his glory is consummated. Washington yet lives on earth in his spotless example—his spirit is in heaven.

"Let his countrymen consecrate the memory of the heroic general, the patriotic statesman, and the virtuous sage: let them teach their children never to forget that the fruits of his labours and his example *are their inheritance*."

To this address the President returned the following answer: "I receive, with the most respectful and affectionate sentiments, in this impressive address, the obliging expressions of your regret for the loss our country has sustained in the death of her most esteemed, beloved, and admired citizen.

"In the multitude of my thoughts and recollections on this melancholy event, you will permit me to say that I have seen him in the days of adversity, in some of the scenes of his deepest distress and most trying perplexities. I have also attended him in his highest elevation and most prosperous felicity, with uniform admiration of his wisdom, moderation, and constancy.

"Among all our original associates in that memorable *league of this continent* in 1774, which first expressed the Sovereign will of a Free Nation in America, he was the only one remaining in the general government. Although with a constitution more enfeebled than his, at an age when he thought it necessary to prepare for retirement, I feel myself alone, bereaved of my last brother; yet I derive a strong consolation from the unanimous

disposition which appears in all ages and classes to mingle their sorrows with mine on this common calamity to the world.

"The life of our Washington can not suffer by a comparison with those of other countries who have been most celebrated and exalted by fame. The attributes and decorations of *royalty* could only have served to eclipse the majesty of those virtues which made him, from being a modest *citizen*, a more resplendent luminary. Misfortune, had he lived, could hereafter have sullied his glory only with those superficial minds who, believing that characters and actions are marked by success alone, rarely deserve to enjoy it. *Malice* could never blast his honour, and *Envy* made him a singular exception to her universal rule. For himself, he had lived long enough to life and to glory:—for his fellow citizens, if their prayers could have been answered, he would have been immortal: for me, his departure is at a most unfortunate moment. Trusting, however, in the wise and righteous dominion of Providence over the passions of men, and the results of their councils and actions, as well as over their lives, nothing remains for me but *humble resignation*.

"His example is now complete; and it will teach wisdom and virtue to magistrates, citizens, and men, not only in the present age, but in future generations, as long as our history shall be read. If a Trajan found a Pliny, a Marcus Aurelius can never want biographers, eulogists, or historians."

The joint committee which had been appointed to devise the mode by which the nation should express its feelings on this melancholy occasion, reported the following resolutions:

"That a marble monument be erected by the United States at the city of Washington, and that the family of General Washington be requested to permit his body to be deposited under it; and that the monument be so designed as to commemorate the great events of his military and political life.

"That there be a funeral procession from congress hall to the German Lutheran church, in memory of General Washington, on Thursday, the 26th instant, and that an oration be prepared at the request of congress, to be delivered before both houses on that day; and that the president of the senate, and speaker of the house of representatives, be desired to request one of the members of congress to prepare and deliver the same.

"That it be recommended to the people of the United States to wear crape on the left arm as a mourning for thirty days.

"That the President of the United States be requested to direct a copy of these resolutions to be transmitted to Mrs. Washington, assuring her of the profound respect congress will ever bear to her person and character, of their condolence on the late affecting dispensation of Providence, and entreating her assent to the interment of the remains of General Washington in the manner expressed in the first resolution.

"That the President be requested to issue his proclamation, notifying to the people throughout the United States the recommendation contained in the third resolution."

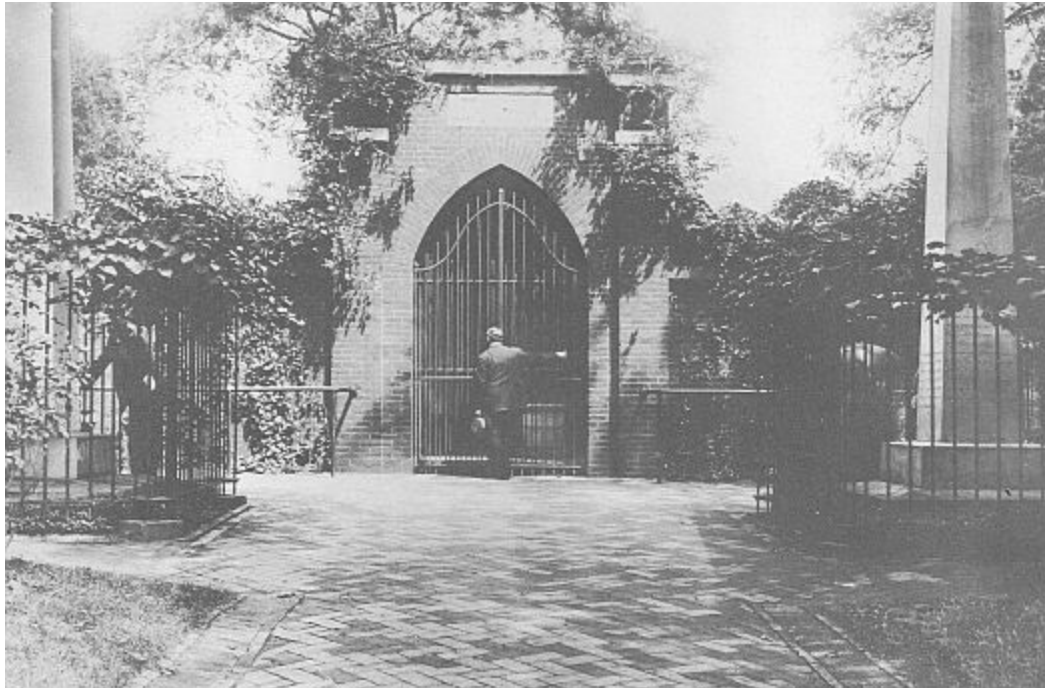
These resolutions passed both houses unanimously, and those which would admit of immediate execution were carried into effect. The whole nation appeared in mourning. The funeral procession was grand and solemn, and the eloquent oration, which was delivered on the occasion by General Lee, was heard with profound attention and with deep interest.

Throughout the United States, similar marks of affliction were exhibited. In every part of the continent funeral orations were delivered, and the best talents of the nation were devoted to an expression of the nation's grief.

To the letter of the President which transmitted to Mrs. Washington the resolutions of congress, and of which his secretary was the bearer, that lady answered, "Taught by the great example which I have so long had before me, never to oppose my private wishes to the public will, I must consent to the request made by congress which you have had the goodness to transmit to me;—and in doing this, I need not, I can not say what a sacrifice of individual feeling I make to a sense of public duty."

The monument, however, has not been erected. That the great events of the political as well as military life of General Washington should be commemorated, could not be pleasing to those who had condemned, and who continued to condemn, the whole course of his administration. This resolution, although it passed unanimously, had many enemies. That party which had long constituted the opposition, and which, though the minority for the moment, nearly divided the house of representatives, declared its preference for the equestrian statue which had been voted by congress at the close of the war. The division between a statue and a monument was so nearly equal, that the session passed away without an appropriation for

either. The public feelings soon subsided, and those who possessed the ascendancy over the public sentiment employed their influence to draw odium on the men who favoured a monument; to represent that measure as a part of a general system to waste the public money; and to impress the idea that the only proper monument to the memory of a meritorious citizen, was that which the people would erect in their affections.



Resting-Place of George and Martha Washington at Mount Vernon

Dying December 14, 1799, the body of Washington Was placed, with simple but impressive ceremonies, in the old family vault, from which it was removed in 1831 to a tomb of plain brick construction, near a wooded ravine a short distance from the house. Behind an iron grating may be seen the two sarcophagi which contain the mortal remains of George Washington and his wife, Martha.

General Washington was rather above the common size, his frame was robust, and his constitution vigorous—capable of enduring great fatigue, and requiring a considerable degree of exercise for the preservation of his health. His exterior created in the beholder the idea of strength, united with manly gracefulness.

And character.

His manners were rather reserved than free, though they partook nothing of that dryness, and sternness, which accompany reserve when carried to an extreme; and on all proper occasions, he could relax sufficiently to show how highly he was gratified by the charms of conversation, and the pleasures of society. His person and whole deportment exhibited an unaffected and indescribable dignity, unmingled with haughtiness, of which all who approached him were sensible; and the attachment of those who possessed his friendship, and enjoyed his intimacy, was ardent, but always respectful.

His temper was humane, benevolent, and conciliatory; but there was a quickness in his sensibility to any thing apparently offensive, which experience had taught him to watch, and to correct.

In the management of his private affairs he exhibited an exact yet liberal economy. His funds were not prodigally wasted on capricious and ill examined schemes, nor refused to beneficial though costly improvements. They remained therefore competent to that expensive establishment which his reputation, added to a hospitable temper, had in some measure imposed upon him; and to those donations which real distress has a right to claim from opulence.

He made no pretensions to that vivacity which fascinates, or to that wit which dazzles, and frequently imposes on the understanding—More solid

than brilliant, judgment, rather than genius, constituted the most prominent feature of his character.

Without making ostentatious professions of religion, he was a sincere believer in the Christian faith, and a truly devout man.

As a military man, he was brave, enterprising, and cautious. That malignity which was sought to strip him of all the higher qualities of a General, has conceded to him personal courage, and a firmness of resolution which neither dangers nor difficulties could shake. But candour will allow him other great and valuable endowments. If his military course does not abound with splendid achievements, it exhibits a series of judicious measures adapted to circumstances, which probably saved his country.

Placed, without having studied the theory, or been taught in the school of experience the practice of war, at the head of an undisciplined, ill organized multitude, which was impatient of the restraints, and unacquainted with the ordinary duties of a camp, without the aid of officers possessing those lights which the Commander-in-chief was yet to acquire, it would have been a miracle indeed had his conduct been absolutely faultless. But, possessing an energetic and distinguishing mind, on which the lessons of experience were never lost, his errors, if he committed any, were quickly repaired; and those measures which the state of things rendered most adviseable, were seldom, if ever, neglected. Inferior to his adversary in the numbers, in the equipment, and in the discipline of his troops, it is evidence of real merit that no great and decisive advantages were ever obtained over him, and that the opportunity to strike an important blow never passed away unused. He has been termed the American Fabius; but those who compare his actions with his means, will perceive at least as much of Marcellus as of Fabius, in his character. He could not have been more enterprising, without endangering the cause he defended, nor have put more to hazard, without incurring justly the imputation of rashness. Not relying upon those chances which sometimes give a favourable issue to attempts apparently desperate, his conduct was regulated by calculations made upon the capacities of his army, and the real situation of his country. When called a second time to command the armies of the United States, a change of circumstances had taken place, and he meditated a corresponding change of conduct. In modelling the army of 1798, he sought for men distinguished for their

boldness of execution, not less than for their prudence in counsel, and contemplated a system of continued attack. "The enemy," said the General in his private letters, "must never be permitted to gain foothold on our shores."

In his civil administration, as in his military career, ample and repeated proofs were exhibited of that practical good sense, of that sound judgment, which is perhaps the most rare, and is certainly the most valuable quality of the human mind. Devoting himself to the duties of his station, and pursuing no object distinct from the public good, he was accustomed to contemplate at a distance those critical situations in which the United States might probably be placed; and to digest, before the occasion required action, the line of conduct which it would be proper to observe. Taught to distrust first impressions, he sought to acquire all the information which was attainable, and to hear, without prejudice, all the reasons which could be urged for or against a particular measure. His own judgment was suspended until it became necessary to determine; and his decisions, thus maturely made, were seldom if ever to be shaken. His conduct therefore was systematic, and the great objects of his administration were steadily pursued.

Respecting, as the first magistrate in a free government must ever do, the real and deliberate sentiments of the people, their gusts of passion passed over, without ruffling the smooth surface of his mind. Trusting to the reflecting good sense of the nation for approbation and support, he had the magnanimity to pursue its real interests, in opposition to its temporary prejudices; and, though far from being regardless of popular favour, he could never stoop to retain, by deserving to lose it. In more instances than one, we find him committing his whole popularity to hazard, and pursuing steadily, in opposition to a torrent which would have overwhelmed a man of ordinary firmness, that course which had been dictated by a sense of duty.

In speculation, he was a real republican, devoted to the constitution of his country, and to that system of equal political rights on which it is founded. But between a balanced republic and a democracy, the difference is like that between order and chaos. Real liberty, he thought, was to be preserved, only by preserving the authority of the laws, and maintaining the energy of government. Scarcely did society present two characters which, in his opinion, less resembled each other, than a patriot and a demagogue.

No man has ever appeared upon the theatre of public action, whose integrity was more incorruptible, or whose principles were more perfectly free from the contamination of those selfish and unworthy passions, which find their nourishment in the conflicts of party. Having no views which required concealment, his real and avowed motives were the same; and his whole correspondence does not furnish a single case, from which even an enemy would infer that he was capable, under any circumstances, of stooping to the employment of duplicity. No truth can be uttered with more confidence than that his ends were always upright, and his means always pure. He exhibits the rare example of a politician to whom wiles were absolutely unknown, and whose professions to foreign governments, and to his own countrymen, were always sincere. In him was fully exemplified the real distinction, which forever exists, between wisdom and cunning, and the importance as well as truth of the maxim that "honesty is the best policy."

If Washington possessed ambition, that passion was, in his bosom, so regulated by principles, or controlled by circumstances, that it was neither vicious, nor turbulent. Intrigue was never employed as the means of its gratification, nor was personal aggrandizement its object. The various high and important stations to which he was called by the public voice, were unsought by himself; and, in consenting to fill them, he seems rather to have yielded to a general conviction that the interests of his country would be thereby promoted, than to an avidity for power.

Neither the extraordinary partiality of the American people, the extravagant praises which were bestowed upon him, nor the inveterate opposition and malignant calumnies which he encountered, had any visible influence upon his conduct. The cause is to be looked for in the texture of his mind.

In him, that innate and unassuming modesty which adulation would have offended, which the voluntary plaudits of millions could not betray into indiscretion, and which never obtruded upon others his claims to superior consideration, was happily blended with a high and correct sense of personal dignity, and with a just consciousness of that respect which is due to station. Without exertion, he could maintain the happy medium between that arrogance which wounds, and that facility which allows the office to be degraded in the person who fills it.

It is impossible to contemplate the great events which have occurred in the United States under the auspices of Washington, without ascribing them, in some measure, to him. If we ask the causes of the prosperous issue of a war, against the successful termination of which there were so many probabilities? of the good which was produced, and the ill which was avoided, during an administration fated to contend with the strongest prejudices, that a combination of circumstances, and of passions, could produce? of the constant favour of the great mass of his fellow citizens, and of the confidence which, to the last moment of his life, they reposed in him? the answer, so far as these causes may be found in his character, will furnish a lesson well meriting the attention of those who are candidates for political fame.

Endowed by nature with a sound judgment, and an accurate discriminating mind, he feared not that laborious attention which made him perfectly master of those subjects, in all their relations, on which he was to decide: and this essential quality was guided by an unvarying sense of moral right, which would tolerate the employment, only, of those means that would bear the most rigid examination; by a fairness of intention which neither sought nor required disguise: and by a purity of virtue which was not only untainted, but unsuspected.

NOTES.

NOTE—No. I. See [Page 9](#).

The following are copies of these interesting questions, and of the letter which enclosed them.

Philadelphia, 18th April, 1793.

Sir,—The posture of affairs in Europe, particularly between France and Great Britain, place the United States in a delicate situation, and require much consideration of the measures which will be proper for them to observe in the war between those powers. With a view to forming a general plan of conduct for the executive, I have stated and enclosed sundry questions to be considered preparatory to a meeting at my house to-morrow, where I shall expect to see you at 9 o'clock, and to receive the result of your reflections thereon.

Ques. I. Shall a proclamation issue for the purpose of preventing interferences of the citizens of the United States in the war between France and Great Britain, &c.? shall it contain a declaration of neutrality or not? what shall it contain?

Ques. II. Shall a minister from the republic of France be received?

Ques. III. If received, shall it be absolutely or with qualifications; and if with qualifications, of what kind?

Ques. IV. Are the United States obliged by good faith to consider the treaties heretofore made with France as applying to the present situation of the parties? may they either renounce them or hold them suspended until the government of France shall be *established*?

Ques. V. If they have the right, is it expedient to do either? and which?

Ques. VI. If they have an option, would it be a breach of neutrality to consider the treaties still in operation?

Ques. VII. If the treaties are to be considered as now in operation, is the guarantee in the treaty of alliance applicable to a defensive war only, or to war, either offensive or defensive?

Ques. VIII. Does the war in which France is engaged appear to be offensive or defensive on her part? or of a mixed and equivocal character?

Ques. IX. If of a mixed and equivocal character, does the guarantee in any event apply to such a war?

Ques. X. What is the effect of a guarantee, such as that to be found in the treaty of alliance between the United States and France?

Ques. XI. Does any article in either of the treaties prevent ships of war, other than privateers, of the powers opposed to France, from coming into the ports of the United States to act as convoys to their own merchantmen? or does it lay any other restraints upon them more than would apply to the ships of war of France?

Ques. XII. Should the future regent of France send a minister to the United States, ought he to be received?

Ques. XIII. Is it necessary or adviseable to call together the two houses of congress with a view to the present posture of European affairs? if it is, what should be the particular objects of such a call?

NOTE—No. II. See [Page 15](#).

The official letter announcing to the convention the appointment of Mr. Genet, contained a communication of a very delicate nature, which was immediately made public. That the French government had not mingled with its desire to separate America from Britain, a willingness to see the United States acquire a degree of strength which might render them truly independent, and formidable to their neighbours, though well known to congress, had been concealed from the people at large. It seems, therefore, to have been apprehended by the leaders of the revolution in France, that some remnant of that affection which had been so lavishly expressed for their fallen monarch while exercising sovereign power, might still be cherished in the American bosom, and might obstruct the endeavours they were about to make to produce a more intimate connexion between the two nations. It might be supposed that such sentiments, if they existed, would be effectually destroyed by a disclosure of the motives which had influenced the conduct of those by whom the aids so highly valued had been granted. The letter alluded to contains this passage: "From the instructions that were

given by the former ministry to the agents in that country (America) which the executive council caused to be laid before them, they have seen with indignation, that at the very time when the good people of America expressed to us their friendship and gratitude in the most affectionate manner, Vergennes and Montmorin thought, *that it was not suitable to France to give to America all the consistence of which it was capable, because it would acquire a strength which it might probably abuse.* They, therefore, enjoined on their agents a passive conduct in regard to that nation, and to speak of nothing but the personal views of the king for its prosperity. The operations of war were directed by the same Machiavellian maxims. The same duplicity was employed in the negotiations of peace; in which, when signed, the people for whom we had taken up arms were altogether neglected." The official letter brought by Mr. Genet, to the executive of the United States, conveyed in less explicit terms the same idea; and to prove the correctness of these allegations, he communicated copies of official documents expressing in plain terms the solicitude of France and Spain to exclude the United States from the Mississippi; their jealousies of the growing power and ambition of this country; and the wish of France, expressed while the question was pending, that the constitution might not be adopted, as it "suits France that the United States should remain in their present state, because if they should acquire the consistence of which they are susceptible, they would soon acquire a force or a power which they would be very ready to abuse." The minister of the king, however, was directed not to avow the inclination of his sovereign on this point.

NOTE—No. III. See [Page 40](#).

Of the excessive and passionate devotion which was felt for the French republic, and of the blind and almost equally extensive hostility to the measures of the administration, the gazettes of the day are replete with the most abundant proof. As an example of this spirit, the following toasts are selected, because they were given at a festival made by persons of some distinction, at which the governor of Pennsylvania and the minister of France were present.

To commemorate the 14th of July, the anniversary of the destruction of the Bastille, the officers of the 2d regiment of Philadelphia militia assembled at Weed's ferry. Eighty-five rounds were discharged from the artillery in honour of the eighty-five departments of France, and the following toasts were given:

1st. The *fourteenth* day of July; may it be a sabbath in the calendar of freedom, and a jubilee to the European world.

2d. The *tenth* of August; may the freemen who offered up their lives on the altar of liberty be ever remembered as martyrs, and canonized as saints.

3d. May the Bastille of despotism throughout the earth be crumbled into dust, and the Phoenix of freedom grow out of the ashes.

4th. Nerve to the arm, fortitude to the heart, and triumph to the soul struggling for the rights of man.

5th. May no blind attachment to men lead France to the precipice of that tyranny from which they have escaped.

6th. May the sister republics of France and America be as incorporate as light and heat, and the man who endeavours to disunite them be viewed as the Arnold of his country.

7th. May honour and probity be the principles by which the connexions of free nations shall be determined; and no Machiavellian commentaries explain the text of treaties.

8th. *The treaty of alliance with France*: may those who attempt to evade or violate the political obligations and faith of our country be considered as traitors, and consigned to infamy.

9th. *The citizen soldiers*, before they act may they know and approve the cause, and may remorse attend the man that would think of opposing the French while they war for the rights of man.

10th. The *youth of the Paris legion*; may the rising generation of America imitate their heroism and love of country.

11th. The republics of France and America; may the cause of liberty ever be a bond of union between the two nations.

12th. A dagger to the bosom of that man who makes patriotism a cover to his ambition, and feels his country's happiness absorbed in his own.

13th. May *French*, superior to *Roman or Grecian* virtue, be the electric fluid of freedom, that shall animate and quicken the earth.

14th. Union and mutual confidence to the patriots of France; confusion and distress to the counsels of their enemies.

15th. May the succeeding generation wonder that such beings as *kings* were ever permitted to exist.

Volunteer from the chair.

The rule of proportion; as France acted with respect to America, so may America act with respect to France!

NOTE—No. IV. See [Page 47](#).

Of the sensibility of the president to the calumnies against his administration with which the press abounded, and of their new direction against him personally, his correspondence furnishes but few evidences. The first and almost only notice taken of them is in a private letter of the 21st of July, to his friend General Lee, then governor of Virginia, an extract from which follows:

"That there are in this, as in all other countries, discontented characters I well know; as also that these characters are actuated by very different views:—Some good, from an opinion that the measures of the general government are impure;—some bad, and (if I might be allowed to use so harsh an expression) diabolical, inasmuch as they are not only meant to impede the measures of that government generally, but more especially to destroy the confidence which it is necessary the people should place (until they have unequivocal proof of demerit) in their public servants:—for in this light I consider myself whilst I am an occupant of office; and if they were to go further and call me their slave, during this period, I would not dispute the point with them. But in what will this abuse terminate?

"For the result, as it respects myself, I care not. I have a consolation within of which no earthly efforts can deprive me;—and that is, that neither ambitious nor interested motives have influenced my conduct. The arrows of malevolence, therefore, however barbed and pointed, can never reach my most valuable part; though, whilst I am *up* as a *mark*, they will be continually aimed at me. The publications in Freneau's and Bache's papers

are outrages on common decency; and they progress in that style in proportion as their pieces are treated with contempt, and passed over in silence by those against whom they are directed. Their tendency, however, is too obvious to be mistaken by men of cool and dispassionate minds;—and, in my opinion, ought to alarm them; because it is difficult to prescribe bounds to their effect."

NOTE—No. V. See [Page 48](#).

They are as follows:

1st. The original arming and equipping of vessels in the ports of the United States by any of the belligerent parties, for military service, offensive or defensive, is deemed unlawful.

2d. Equipments of merchant vessels, by either of the belligerent parties in the ports of the United States, purely for the accommodation of them as such, is deemed lawful.

3d. Equipments in the ports of the United States of vessels of war in the immediate service of the government of any of the belligerent parties, which if done to other vessels would be of a doubtful nature as being applicable either to commerce or war, are deemed lawful, except those which shall have made prize of the subjects, people, or property of France, coming with their prizes into the ports of the United States pursuant to the seventeenth article of our treaty of amity and commerce with France.

4th. Equipments in the ports of the United States by any of the parties at war with France of vessels fitted for merchandise and war, whether with or without commissions, which are doubtful in their nature as being applicable either to commerce or war, are deemed lawful, except those which shall have made prize, &c.

5th. Equipments of any of the vessels of France, in the ports of the United States, which are doubtful in their nature as being applicable to commerce or war, are deemed lawful.

6th. Equipments of every kind in the ports of the United States, of privateers of the powers at war with France, are deemed unlawful.

7th. Equipments of vessels in the ports of the United States, which are of a nature solely adapted to war, are deemed unlawful; except those stranded

or wrecked, as mentioned in the eighteenth article of our treaty with France, the sixteenth of our treaty with the United Netherlands, the ninth of our treaty with Prussia, and except those mentioned in the nineteenth article of our treaty with France, the seventeenth of our treaty with the United Netherlands, the eighteenth of our treaty with Prussia.

8th. Vessels of either of the parties, not armed, or armed previous to their coming into the ports of the United States, which shall not have infringed any of the foregoing rules, may lawfully engage or enlist therein their own subjects or citizens, not being inhabitants of the United States, except privateers of the powers at war with France, and except those vessels which shall have made prize, &c.

NOTE—No. VI. See [Page 64](#).

The earnestness as well as force with which the argument against this measure was pressed on the British cabinet, and the extreme irritation it produced on the public mind, contrasted with the silence of the executive respecting a much more exceptionable decree of the national convention, and the composure of the people of the United States under that decree, exhibits a striking proof of the difference with which not only the people, but an administration, which the phrensy of the day accused of partiality to England, contemplated at that time the measures of the two nations.

On the 9th of May, 1793, the national convention passed a decree relative to the commerce of neutrals; the first article of which is in these words: "The French ships of war and privateers may stop and bring into the ports of the republic, such neutral vessels as are loaded, in whole or in part either with provisions belonging to neutrals and destined for enemy ports, or with merchandise belonging to enemies."

On the 23d of May, in consequence of the remonstrances of Mr. Morris, the convention declared, "that the vessels of the United States are not comprised in the regulations of the decree of the 9th of May." On the 28th of the same month the decree of the 23d was repealed, and on the first of July it was re-established. But on the 27th of July it was again repealed, and thus the decree of the 9th of May was left in full operation against the vessels of the United States.

So far was this regulation from affecting the sentiments of America for France, that its existence was scarcely known.

NOTE—No. VII. See [Page 90](#).

Before these resolutions were offered, the strength of parties was in some measure tried in a fuller house than that which had elected the speaker.

A rule had been entered into by a former congress providing, that on the discussion of confidential communications from the president, the house should be cleared of all persons except the members and clerk. On taking up a confidential message relative to the truce between Portugal and Algiers, the doors as usual were closed. The next day when the subject was resumed, Mr. Nicholas expressed his opinion that there was no necessity for shutting the galleries; upon which the rule was mentioned with a request that it should be read. Mr. Madison moved a reconsideration of this rule. In the course of the debate on the motion, it was said by its advocates that secrecy in a republican government wounds the majesty of the sovereign people—that this government is in the hands of the people—and that they have a right to know all the transactions relative to their own affairs. This right ought not to be infringed incautiously, for such secrecy tends to diminish the confidence of the people in their own government.

In reply to these remarks it was said, that because this government is republican, it will not be pretended that it can have no secrets. The President of the United States is the depository of secret transactions. His duty may lead him to communicate them to the members of the house, and the success, safety, and energy of the government may depend on keeping those secrets inviolable. The people have a right to be well governed. They have interests as well as rights, and it is the duty of the legislature to take every possible measure to promote those interests. To discuss the secret transactions of the government publicly, was the ready way to sacrifice the public interest, and to deprive the government of all foreign information. Afterwards the rule was amended so far as to leave it in the discretion of the house, after receiving a confidential message, to debate upon it in private or in public.

Among the resolutions reported from the committee of the whole house on this occasion, was one for appointing a committee to report the naval

force which would be necessary for the protection of the commerce of the United States against the Algerine corsairs, together with an estimate of the expense. It was moved to amend this resolution by adding, "and the ways and means for defraying the same." This motion revived the old party question of calling on the secretary of the treasury to report ways and means. The amendment was carried, Ayes 46. Noes 44.

NOTE—No. VIII. See [Page 147](#).

The private correspondence of Mr. Morris with the president exhibits a faithful picture, drawn by the hand of a master, of the shifting revolutionary scenes which with unparalleled rapidity succeeded each other in Paris. With the eye of an intelligent, and of an unimpassioned observer, he marked all passing events, and communicated them with fidelity. He did not mistake despotism for freedom, because it was sanguinary, because it was exercised by those who denominated themselves the people, or because it assumed the name of liberty. Sincerely wishing happiness and a really free government to France, he could not be blind to the obvious truth that the road to those blessings had been mistaken. It was expected by his enemies that the correspondence which was asked for would disclose something which might be deemed offensive to the rulers of the republic, and consequently furnish additional matter for charging the administration with unfriendliness to France.

The resolution requesting all the correspondence, not even excluding that which the president might think proper to withhold, involved considerations of some delicacy, respecting which it was proper that the rights of the executive should be precisely understood. It was, therefore, laid before the cabinet, and, in conformity with their advice, the President sent a message to the senate informing them that he had examined the correspondence they requested, and had caused it to be copied, except in those particulars which in his judgment, for public considerations, ought not to be communicated; which copies he transmitted to them. The nature of these papers, he added, manifested the propriety of their being received as confidential.

NOTE—No. IX. See [Page 164](#).

This opinion derived fresh confirmation from a notification transmitted in August, 1794, by the governor of Upper Canada to Captain Williamson, who was establishing a settlement on the Great Sodus, a bay of lake Ontario, about twenty miles from Oswego, and within the state of New York. Captain Williamson not being at the place, Lieutenant Sheaff, the bearer of the message, addressed a letter to him, in which he said, that he had come with instructions from the lieutenant governor of Upper Canada to demand by what authority an establishment had been ordered at that place, and to require that such a design be immediately relinquished for the reasons stated in the written declaration accompanying the letter.

The written declaration was in these words:

"I am commanded to declare that, during the inexecution of the treaty of peace between Great Britain and the United States, and until the existing differences respecting it shall be mutually and finally adjusted, the taking possession of any part of the Indian territory, either for the purposes of war or sovereignty, is held to be a direct violation of his Britannic majesty's rights, as they unquestionably existed before the treaty, and has an immediate tendency to interrupt, and in its progress to destroy that good understanding which has hitherto subsisted between his Britannic majesty and the United States of America. I, therefore, require you to desist from any such aggression."

In the same spirit, complaints had been made as early as 1792, of encroachments made by the people of Vermont on a country confessedly within the territorial line of the United States, but inhabited by persons said to live under the protection of the British garrisons.

NOTE—No. X. See [Page 205](#).

On receiving the resignation of the secretary, the President addressed a letter to him expressive of the sense he entertained of his services. This letter is not found in the letter book, but its purport may be collected from the following answer.

Philadelphia, February 3d, 1795.

"Sir,—My particular acknowledgments are due for your very kind letter of yesterday. As often as I may recall the vexations I have endured, your

approbation will be a great and precious consolation.

"It was not without a struggle that I yielded to the very urgent motives which impelled me to relinquish a station in which I could hope to be in any degree instrumental in promoting the success of an administration under your direction; a struggle which would have been far greater had I supposed that the prospect of future usefulness was proportioned to the sacrifices to be made.

"Whatever may be my destination hereafter, I entreat you to be persuaded (not the less for my having been sparing in professions) that I shall never cease to render a just tribute to those eminent and excelling qualities which have been already productive of so many blessings to your country—that you will always have my fervent wishes for your public and personal felicity, and that it will be my pride to cultivate a continuance of that esteem, regard and friendship, of which you do me the honour to assure me."

NOTE—No. XI. See [Page 216](#).

The following toasts which were given at a civic feast in Philadelphia on the first of May, attended by a great number of American citizens, to celebrate the victories of France, and which was honoured by the presence of the minister and consul of the French republic, and of the consul of Holland, then subdued by the arms of France, will furnish some idea of the prevailing spirit of the times.

1st. The republic of France; whose triumphs have made this day a jubilee; may she destroy the race of kings, and may their broken sceptres and crowns, like the bones and teeth of the Mammoth, be the only evidences that such monsters ever infested the earth.

2d. The republic of France; may the shores of Great Britain soon hail the tricoloured standard, and the people rend the air with shouts of long live the republic.

3d. The republic of France; may her navy clear the ocean of pirates, that the common highway of nations may no longer, like the highways of Great Britain, be a receptacle for robbers.

4th. The republic of France; may all free nations learn of her to transfer their attachment from men to principles, and from individuals to the people.

5th. The republic of France; may her example in the abolition of titles and splendour be a lesson to all republics to destroy those leavens of corruption.

6th. The republic of Holland; may the flame of liberty which they have rekindled never be permitted to expire for want of vigilance and energy.

7th. The republic of Holland; may her two sisters, the republics of France and America, form with her an invincible triumvirate in the cause of liberty.

8th. The republic of Holland; may she again give birth to a Van Tromp and De Ruyter, who shall make the satellites of George tremble at their approach, and seek their safety in flight.

9th. The republic of Holland; may that fortitude which sustained her in the dire conflict with Philip II. and the success that crowned her struggles, be multiplied upon her, in the hour of her regeneration.

10th. The republic of Holland; may that government which they are about establishing have neither the balances of aristocracy, nor the checks of monarchy.

11th. The republic of America; may the sentiment that impelled her to resist a British tyrant's will, and the energy which rendered it effectual, prompt her to repel usurpation in whatever shape it may assail her.

12th. The republic of America; may the aristocracy of wealth founded upon the virtues, the toils, and the blood of her revolutionary armies soon vanish, and like the baseless fabric of a vision, leave not a wreck behind.

13th. The republic of America; may her government have public good for its object, and be purged of the dregs of sophisticated republicanism.

14th. The republic of America; may the alliance formed between her and France acquire vigour with age, and that man be branded as the enemy of liberty who shall endeavour to weaken or unhinge it.

15th. The republic of America; may her administration have virtue enough to defy the ordeal of patriotic societies, and patriotism enough to cherish instead of denouncing them.

It was not in Philadelphia alone that this temper was manifested. In every part of the United States, the love of France appeared to be a passion much

more active with immense numbers, than that of America. Her victories were celebrated with enthusiasm, her heroes were toasted on public occasions, and moderation with regard to England was deemed a crime not readily to be pardoned.

General Washington received an invitation to attend this feast in the following terms.

Sir,—The subscribers, a committee in behalf of a number of American, French, and Dutch citizens, request the honour of your company to a civic festival, to be given on Friday, April 17th, appointed to celebrate the late victories of the French republic, and the emancipation of Holland.

NOTE—No. XII. See [Page 231](#).

A letter addressed to his government in October, 1794, by the minister of the French republic was intercepted by the captain of a British frigate and forwarded to Mr. Hammond, by whom it was delivered about the last of July to the secretary of the treasury, who, on the arrival of the President in Philadelphia, placed it in his hands. This letter alluded to communications from Mr. Randolph which, in the opinion of the President, were excessively improper. The eclairsissements which the occasion required were followed by the resignation of the secretary. For the purpose, he alleged, of vindicating his conduct, he demanded a sight of a confidential letter which had been addressed to him by the President, and which was left in the office. His avowed design was to give this as well as some others of the same description to the public in order to support the allegation, that in consequence of his attachment to France and to liberty, he had fallen a victim to the intrigues of a British and an aristocratic party. The answer given to this demand was a license which few politicians in turbulent times could allow to a man who had possessed the unlimited confidence of the person giving it. "I have directed," said the President, "that you should have the inspection of my letter of the 22d of July, agreeable to your request: and you are at full liberty to publish without reserve *any* and *every* private and confidential letter I ever wrote *you*: nay more—every word I ever uttered to or in your presence, from whence you can derive any advantage in your vindication."

As the asperity with which Mr. Randolph spoke of the President on other occasions as well as in his vindication, was censured by many, it may rescue the reputation of that gentleman from imputations which might be injurious to it to say that, some time before his death, he had the magnanimity to acknowledge the injustice of those imputations. A letter to the honourable Bushrod Washington, of July 2d, 1810, a copy of which was transmitted by Mr. Randolph to the author, contains the following declarations among others of similar import. "I do not retain the smallest degree of that feeling which roused me fifteen years ago against some individuals. For the world contains no treasure, deception, or charm which can seduce me from the consolation of being in a state of good will towards all mankind; and I should not be mortified to ask pardon of any man with whom I have been at variance for any injury which I may have done him. If I could now present myself before your venerated uncle, it would be my pride to confess my contrition that I suffered my irritation, let the cause be what it might, to use some of those expressions respecting him which, at this moment of my indifference to the ideas of the world, I wish to recall, as being inconsistent with my subsequent conviction. My life will I hope be sufficiently extended for the recording of my sincere opinion of his virtues and merit, in a style which is not the result of a mind merely debilitated by misfortune, but of that Christian philosophy on which alone I depend for inward tranquillity."

NOTE—No. XIII. See [Page 231](#).

This place was offered to Mr. Henry, a gentleman of eminent talents, great influence, and commanding eloquence. He had led the opposition to the constitution in Virginia, but, after its adoption, his hostility had in some measure subsided. He was truly a personal friend of the President, and had lately manifested a temper not inimical to the administration. The chief magistrate was anxious to engage him in the public service, but was aware of the embarrassments which must result from placing in so confidential a station, a person whose opinions might lead him to thwart every measure of the executive. It was, therefore, necessary to come to some explanations with Mr. Henry on this subject, and the letter which invited him into the department of state opened the way for this explanation by stating truly the

views and character of the administration. "I persuade myself, sir," said the President, "it has not escaped your observation, that a crisis is approaching which must, if it can not be arrested, soon decide whether order and good government shall be preserved, or anarchy and confusion ensue. I can most religiously aver that I have no wish incompatible with the dignity, happiness, and true interests of the people of this country. My ardent desire is, and my aim has been (as far as depended upon the executive department) to comply strictly with all our foreign and domestic engagements; but to keep the United States free from political connexions with *every* other country;—to see them independent of *all*, and under the influence of *none*. In a word, I want an *American* character; that the powers of Europe may be convinced we act for *ourselves* and not for *others*. This, in my judgment, is the only way to be respected abroad, and happy at home; and not by becoming the partisans of Great Britain or France, create dissensions, disturb the public tranquillity, and destroy, perhaps forever, the cement that binds the union.

"I am satisfied these sentiments can not be otherwise than congenial to your own. Your aid, therefore, in carrying them into effect would be flattering and pleasing to me."

This accurate chart of the road he was invited to travel, presented in itself no impediments which to Mr. Henry appeared insurmountable. By private considerations alone was he restrained from proceeding in it.

NOTE—No. XIV. See [Page 272](#).

The course of the war in Europe had brought the two parties into opposition on a point on which no difference had originally existed between them, which gave more countenance to the charge that the advocates of the American government were unfriendly to France than it could justly claim when first made. Those who in 1793 had supported the proclamation of neutrality, and the whole system connected with it, were then, generally speaking, ardent and sincere in their wishes for the success of the French arms. But as the troops of the republic subdued Belgium and Holland; as they conquered Italy, and established the complete influence of France over the monarchy of Spain, this union of sentiment gradually disappeared. By one party it was contended that America could feel no interest in seeing

Europe subjected to any one power. That to such a power, the Atlantic would afford no impassable barriers; and that no form of government was a security against national ambition. They, therefore, wished this series of victories to be interrupted; and that the balance of Europe should not be absolutely overturned. Additional strength was undoubtedly given to this course of reasoning by the aggressions of France on the United States.

In the opinion of the opposite party, the triumphs of France were the triumphs of liberty. In their view every nation which was subdued, was a nation liberated from oppression. The fears of danger to the United States from the further aggrandizement of a single power were treated as chimerical, because that power being a republic must, consequently, be the friend of republics in every part of the globe, and a stranger to that lust of domination which was the characteristic passion of monarchies. Shifting with address the sentiment really avowed by their opponents, they ridiculed a solicitude for the existence of a balance of power in Europe, as an opinion that America ought to embark herself in the crusade of kings against France in order to preserve that balance.

NOTE—No. XV. See [Page 326](#).

The following extract from a letter written to General Knox the day before the termination of his office, exhibits the sentiments with which he contemplated this event, and with which he viewed the unceasing calumnies with which his whole administration continued to be aspersed.

"To the wearied traveller who sees a resting place, and is bending his body to lean thereon, I now compare myself; but to be suffered to do *this* in peace, is too much to be endured by *some*. To misrepresent my motives; to reprobate my politics; and to weaken the confidence which has been reposed in my administration;—are objects which can not be relinquished by those who will be satisfied with nothing short of a change in our political system. The consolation, however, which results from conscious rectitude, and the approving voice of my country unequivocally expressed by its representatives—deprives their sting of its poison, and places in the same point of view both the weakness and the malignity of their efforts.

"Although the prospect of retirement is most grateful to my soul, and I have not a wish to mix again in the great world, or to partake in its politics,

yet I am not without my regrets at parting with (perhaps never more to meet) the few intimates whom I love. Among these, be assured you are one."

NOTE—No. XVI. See [Page 329](#).

In the speech delivered by the President on taking the oaths of office, after some judicious observations on the constitution of his country, and on the dangers to which it was exposed, that able statesman thus spoke of his predecessor.

"Such is the amiable and interesting system of government (and such are some of the abuses to which it may be exposed) which the people of America have exhibited, to the admiration and anxiety of the wise and virtuous of all nations, for eight years, under the administration of a citizen, who, by a long course of great actions, regulated by prudence, justice, temperance and fortitude, conducting a people inspired with the same virtues, and animated with the same ardent patriotism and love of liberty, to independence and peace, to increasing wealth and unexampled prosperity, has merited the gratitude of his fellow-citizens, commanded the highest praises of foreign nations, and secured immortal glory with posterity.

"In that retirement which is his voluntary choice, may he long live to enjoy the delicious recollection of his services, the gratitude of mankind, the happy fruits of them to himself and the world, which are daily increasing, and that splendid prospect of the future fortunes of his country which is opening from year to year. His name may be still a rampart, and the knowledge that he lives a bulwark against all open or secret enemies of his country's peace."

NOTE—No. XVII. See [Page 330](#).

To testify their love for the person who had for eight years administered the government of the United States, the merchants of Philadelphia had prepared a splendid banquet for the day, to which the general, several officers of rank in the late army, the heads of departments, foreign ministers, and other persons of distinction were invited.

In the rotundo in which it was given, an elegant compliment was prepared for the *principal guest*, which is thus described in the papers of the day.

"Upon entering the area the general was conducted to his seat. On a signal given, music played Washington's march, and a scene which represented simple objects in the rear of the principal seat was drawn up, and discovered emblematical painting.

"The principal was a female figure large as life, representing America, seated on an elevation composed of sixteen marble steps. At her left side, stood the federal shield and eagle, and at her feet, lay the cornucopia; in her right hand, she held the Indian calumet of peace supporting the cap of liberty: in the perspective appeared the temple of fame; and on her left hand, an altar dedicated to public gratitude, upon which incense was burning. In her left hand she held a scroll inscribed valedictory; and at the foot of the altar lay a plumed helmet and sword, from which a figure of General Washington, large as life, appeared, retiring down the steps, pointing with his right hand to the emblems of power which he had resigned, and with his left to a beautiful landscape representing Mount Vernon, in front of which oxen were seen harnessed to the plough. Over the general appeared a *Genius* placing a wreath of laurels on his head."

NOTE—No. XVIII. See [Page 348](#).

(All footnotes on pages covered by Note No. XVIII are references to the correspondence of Thomas Jefferson.)

A letter from Mr. Jefferson to Mr. Mazzei, an Italian who had passed some time in the United States, was published in Florence, and republished in the *Moniteur*, with some severe strictures on the conduct of the United States, and a remark "that the French government had testified its resentment by breaking off communication with an ungrateful and faithless ally until she shall return to a more just and benevolent conduct. No doubt," adds the editor, "it will give rise in the United States to discussions which may afford a triumph to the party of good republicans, the friends of France.

"Some writers, in disapprobation of this wise and necessary measure of the Directory, maintain that, in the United States, the French have for partisans only certain demagogues who aim to overthrow the existing government. But their impudent falsehoods convince no one, and prove only, what is too evident, that they use the liberty of the press to serve the enemies of France."

Mr. Jefferson, in his correspondence,[\[59\]](#) has animadverted on the preceding note with such extreme bitterness, as to impose on its author the necessity of entering into some explanations. Censure from a gentleman who has long maintained an unexampled ascendancy over public opinion, can not be entirely disregarded.

The offence consists in the reference to the letter written by him to Mr. Mazzei, which was published in Florence, and republished in Paris by the editor of the *Moniteur*, then the official paper of the Directory. In this letter, Mr. Jefferson says, a paragraph was interpolated which makes him charge his own country with ingratitude and injustice to France.

By the word "country," Mr. Jefferson is understood to allude to the government, not to the people of America.

This letter, containing the sentence now alleged to be interpolated, was published throughout the United States in the summer of 1797. It became immediately, as may well be supposed, the subject of universal conversation. The writer, and the individual to whom it particularly alludes, filled too large a space in the public mind for such a paper not to excite general attention and deep interest. It did excite both.

Had it been fabricated, Mr. Jefferson, it was supposed, could not have permitted it to remain uncontradicted. It came in a form too authentic, the matter it contained affected his own reputation and that of the illustrious individual who is its principal subject, too vitally to permit the imputation to remain unnoticed. It would not, it could not have remained unnoticed, if untrue. Yet its genuineness was never questioned by Mr. Jefferson, or by any of his numerous friends. Not even to General Washington, as is now avowed, was it ever denied. Had it been denied to him, his strong sense of justice and of right would have compelled him to relieve the reputation of the supposed writer from a charge of such serious import.

It was, of course, universally received as a genuine letter. An open avowal of it could not have added to the general conviction.

The letter having this irresistible claim on the general confidence, no one part of it was entitled to less credit than every other. The interpolation of a particular sentence was neither suggested nor suspected. The whole was published in Europe and republished in America as the letter of Mr. Jefferson, with his name subscribed. The genuineness of no part of it was ever called into question. How then could the public or any individual have ventured to select a particular sentence, and to say—this is spurious?

Had it been suggested by Mr. Jefferson or his confidential friends that the letter was in general his, but that one sentence was fabricated, there is not perhaps an individual in the United States who would have pointed to that which censured the conduct of our government towards France, as the fabricated sentence. That which placed the then chief magistrate at the head of the "Anglican, monarchical, and aristocratical party which had sprung up," would have been much more probably selected. This conjecture is hazarded because, at the date of the letter,[\[60\]](#) Mr. Jefferson shared the confidence of General Washington, and was on terms of intimate professed friendship with him; while his censures of the conduct of the United States towards France were open and unreserved. The sentence there said to be interpolated would, if really written by him, have involved no imputation on his sincerity,—would have consisted perfectly with his general declarations. These declarations were so notorious, especially after the mission of Mr. Jay to Great Britain, and the reception of the treaty negotiated by him, that there was perhaps not an individual in the United States, at all conversant with public affairs, to whom they were unknown. Without reference to other proofs, sufficient evidence of this fact is furnished by that portion of his correspondence which has been selected for publication. Some examples will be quoted.

In a letter of the 27th of April, 1795,[\[61\]](#) he says, "I sincerely congratulate you on the great prosperities of our two first allies, the French and the Dutch.[\[62\]](#) If I could but see them now at peace with the rest of their continent, I should have little doubt of dining with Pichegru in London next autumn; for I believe I should be tempted to leave my clover for a while, to go and hail the dawn of republicanism in that island."

In a letter of September 21st, 1795,[\[63\]](#) after speaking of the discussions in the papers concerning the treaty, and alluding to the efforts made to give it effect as the boldest act of Hamilton and Jay to undermine the

government, he says, "a bolder party stroke was never struck. For it certainly is an attempt by a party who find they have lost their majority in one branch of the legislature, to make a law by the aid of the other branch and of the executive, under colour of a treaty, which shall bind up the hands of the adverse branch from ever restraining the commerce of their patron nation."

On the 30th of November, 1795,[\[64\]](#) he says, "I join with you in thinking the treaty an execrable thing." "I trust the popular branch of the legislature will disapprove of it, and thus rid us of this infamous act, which is really nothing more than an alliance between England and the Anglo men of this country, against the legislature and people of the United States."

On the 21st of December, 1795,[\[65\]](#) speaking of a contemporary member of the cabinet, he says, "The fact is that he has generally given his principles to the one party and his practice to the other, the oyster to one, and the shell to the other. Unfortunately, the shell was generally the lot of his friends, the French and Republicans, and the oyster of their antagonists."

On the 21st of March, 1796,[\[66\]](#) he says, "The British treaty has been formally at length laid before congress. All America is a tiptoe to see what the house of representatives will decide on it." Speaking of the right of the legislature to determine whether it shall go into effect or not, and of the vast importance of the determination, he adds, "It is fortunate that the first decision is to be made in a case so palpably atrocious as to have been predetermined by all America."

On the 27th of the same month he says,[\[67\]](#) "If you decide in favour of your right to refuse co-operation, I should wonder on what occasion it is to be used, if not in one, where the rights, the interest, the honour and faith of our nation are so grossly sacrificed; where a faction has entered into a conspiracy with the enemies of their country to chain down the legislature at the feet of both; where the whole mass of your constituents have condemned the work in the most unequivocal manner, and are looking to you as their last hope to save them from the effects of the avarice and corruption of the first agent, the revolutionary machinations of others, and the incomprehensible acquiescence of the only honest man who has assented to it. I wish that his honesty and his political errors may not furnish a second occasion to exclaim, 'curse on his virtues, they have undone his country.'"

On the 12th of June, 1796,[\[68\]](#) he says, "Congress have risen. You will have seen by their proceedings what I always observed to you, that one man outweighs them all in influence over the people, who have supported his judgment against their own, and that of their representatives. Republicanism must lie on its oars, resign the vessel to its pilot, and themselves to the course he thinks best for them."

On the 22d of January, 1797,[\[69\]](#) he says, "I sincerely deplore the situation of our affairs with France. War with them and consequent alliance with Great Britain will completely compass the object of the executive council from the commencement of the war between France and England; taken up by some of them from that moment; by others more latterly."

On the 17th of June, 1797,[\[70\]](#) he says, "I have always hoped that the popularity of the late President being once withdrawn from active effect, the natural feelings of the people towards liberty would restore the equilibrium between the executive and legislative departments which had been destroyed by the superior weight and effect of that popularity; and that their natural feelings of moral obligation would discountenance the unnatural predilection of the executive in favour of Great Britain. But, unfortunately, the preceding measures had already alienated the nation who were the object of them, and the reaction has on the minds of our citizens an effect which supplies that of the Washington popularity."

"P.S. Since writing the above we have received a report that the French Directory has proposed a declaration of war against the United States to the Council of Ancients, who have rejected it. Thus we see two nations who love one another affectionately, brought by the ill temper of their executive administrations to the very brink of a necessity to imbrue their hands in the blood of each other."

On the 14th of February, 1799,[\[71\]](#) he says, "The President has appointed, and the senate approved, Rufus King, to enter into a treaty of commerce with the Russians, at London, and William Smith (Phocion) envoy extraordinary and minister plenipotentiary to go to Constantinople to make one with the Turks. So that as soon as there is a coalition of Turks, Russians, and English against France, we seize that moment to countenance it as openly as we dare, by treaties which we never had with them before. All this helps to fill up the measure of provocation towards France, and to

get from them a declaration of war which we are afraid to be the first in making."

If these sentiments, in perfect coincidence with the pretensions of France, and censuring the neutral course of the American government, were openly avowed by Mr. Jefferson; if, when they appeared embodied in a letter addressed to a correspondent in Europe, and republished throughout the United States, they remained, even after becoming the topic of universal interest and universal excitement, totally uncontradicted, who could suspect that any one sentence, particularly that avowing a sentiment so often expressed by the writer, had been interpolated?

Yet Mr. Jefferson, unmindful of these circumstances, after some acrimonious remarks on Colonel Pickering, has said,[\[72\]](#) "and even Judge Marshall makes history descend from its dignity, and the ermine from its sanctity, to exaggerate, to record, and to sanction this forgery."

The note itself will best demonstrate the inaccuracy of this commentary. To this text an appeal is fearlessly made.

This unmerited invective is followed by an accusation not less extraordinary. It is made a cause of crimination that the author has copied the remark of the Parisian editor, instead of the letter itself.

To remove this reproach, he will now insert the letter, not as published in Europe, and transferred from the French to the American papers, but as preserved and avowed by Mr. Jefferson, and given to the world by his grandson. It is in these words.

"Monticello, April 24th, 1796.[\[73\]](#)

"My Dear Friend,

"The aspect of our politics has wonderfully changed since you left us. In place of that noble love of liberty and republican government which carried us triumphantly through the war, an Anglican, monarchical, and aristocratical party has sprung up, whose avowed object is to draw over us the substance as it has already done the forms of the British government. The main body of our citizens, however, remain true to their republican principles; the whole landed interest is republican, and so is a great mass of talents. Against us are the executive, the judiciary, two out of three branches of the legislature, all the officers of the government, all who want to be officers, all timid men who prefer the calm of despotism to the boisterous

sea of liberty, British merchants and Americans trading on British capitals, speculators and holders in the banks and public funds, a contrivance invented for the purposes of corruption, and for assimilating us in all things to the rotten as well as sound parts of the British model. It would give you a fever were I to name to you the apostates who have gone over to these heresies, men who were Samsons in the field and Solomons in council, but who have had their heads shorn by the harlot England. In short, we are likely to preserve the liberty we have obtained only by unremitting labours and perils. But we shall preserve it; and our mass of weight and wealth on the good side is so great as to leave no danger that force will ever be attempted against us. We have only to awake and snap the Lilliputian cords with which they have been entangling us during the first sleep which succeeded our labours.

"I will forward the testimonials, &c."

The reader is requested to pause, to reflect on the state of things at the date of this letter, and to ask himself if its inevitable tendency be not to strengthen the impression in the Directory of France which had influenced its conduct towards the United States?—If it be not in the same spirit with the interpolated sentence, carried to a greater extreme, and calculated to produce the same effect?—If the editor who made the interpolation might not reasonably suppose that he was only applying expressly to France a sentiment already indicated in terms too plain to be misunderstood?

France and Great Britain were then waging deadly war against each other. In this mortal conflict, each sought to strengthen herself, or weaken her adversary by any influence to be acquired over foreign powers—by obtaining allies when allies were attainable, or securing neutrality where co-operation was not to be expected. The temper with which the American people contemplated this awful spectacle can not be forgotten. The war of our revolution, in which France fought by the side of America against Great Britain, was fresh in their recollection. Her unexamined professions of republicanism enlisted all their affections in her favour, and all their antipathies against the monarchs with whom she was contending. Feelings which were believed to be virtuous, and which certainly wore the imposing garb of patriotism, impelled them with almost irresistible force against that wise neutrality which the executive government had laboured to preserve, and had persisted in preserving with wonderful and unexampled firmness.

France might, not unreasonably, indulge the hope that our government would be forced out of its neutral course, and be compelled to enter into the war as her ally. The letter to Mazzei could scarcely fail to encourage this hope.

The suggestion had been repeatedly made, and France not only countenanced but acted on it, that the American people were ready to take part with her, and were with difficulty restrained by their government. That the government had fallen into the hands of an English party who were the more closely attached to their favourite nation, because they were unfriendly to republicanism, and sought to assimilate the government of the United States to that of England. Partiality to England was ingratitude to France. Monarchical propensities were of course anti-republican, and led to a system of policy separating the United States from republican France, and connecting them with her monarchical enemies.

These sentiments were expressed in the interpolated sentence; and are intimated in terms perhaps more offensive, certainly not to be mistaken, in the letter as avowed.

Review its language.

"In place of that noble love of liberty and republican government which carried us triumphantly through the War, an Anglican, monarchical, and aristocratical party has sprung up, whose avowed object is to draw over us the substance as it has already done the forms of the British government."

Could this party have been friendly—must it not have been hostile to France? It was not only monarchical and aristocratical,—it was Anglican also. Consequently it was anti-Gallican. But it did not comprehend the mass of the people. "The main body of our citizens, however," continues the letter, "remain true to their republican principles; the whole landed interest is republican, and so is a great mass of talents." Who then composed this odious Anglican, monarchical, aristocratical party? The letter informs us: "Against us are the executive, the judiciary, two out of three branches of the legislature, all the officers of the government, all who want to be officers, all timid men who prefer the calm of despotism to the boisterous sea of liberty, British merchants and Americans trading on British capitals, speculators, and holders in the banks and public funds."

The executive then and at least one other branch of the legislature were Anglican. The judiciary, a department not absolutely insignificant in a

maritime war, was also Anglican. But the executive, being the organ of intercourse with foreign nations, is considered by them as essentially the government. This being thought Anglican, its course being such as to induce the writer to brand it with this odious epithet, ought it to excite surprise that an editor, the organ of the French government, made the strictures upon it which are quoted in the note? Are not those strictures as applicable to the letter now avowed as to the interpolated sentence?

The remark that the "French government had testified its resentment by breaking off communication with an ungrateful and faithless ally until she shall return to a more just and benevolent conduct," was the assertion of a fact which had taken place, and the commentary discloses its object not less plainly than did the time at which this fact was announced to the American government and people.^[74] "It will give rise in the United States," says the editor, "to discussions which may afford a triumph to the party of good republicans, the friends of France."

The letter, without the aid of the interpolated sentence, could not fail to cherish this sentiment. It states explicitly an unequivocal division and a decided hostility between those who administered the government, and the great body of land holders, who, in this country, are the people. The first were Anglican and monarchical, the last were republican, and, in the language of the *Moniteur*, "the friends of France." What so certain to produce or continue the rupture of communication mentioned by the editor as the opinion that this statement was true? If we could doubt, our doubts are removed by the declaration that it would produce "discussions in the United States which may afford a triumph to the party of good republicans, the friends of France;" and by the declaration of Mr. Adet.

The interpolated sentence then does not vary the import of the letter, nor change the impression it made in France, and must make on the mind of the reader.

Were it otherwise, Mr. Jefferson should have directed his reproaches towards himself for the countenance his silent acquiescence gave to the opinion that the whole letter was genuine—not towards the great body of his countrymen who yielded implicit faith to this imposing testimony.

Could such a letter from such a personage be entirely overlooked by the biographer of Washington? Having assumed the task of delineating the character, and detailing the actions and opinions of the great soldier and

statesman of America, an essential part of which was to be looked for in the difficulties and the opposition he encountered and overcame, could a transaction which contains such strong intrinsic evidence of those difficulties and that opposition be passed over in total silence? These questions were revolved in his mind while engaged in this part of the work; and the result to which his judgment conducted him was a conviction that, though he might forbear to make those strictures on the letter which the relative situation of the writer and the individual so seriously criminated seemed to invite, his duty required him to notice it so far as it indicated the violence of party spirit at the time, the extreme to which it was carried, the dangers to which it led, and the difficulties which the wise and firm mind of Washington was doomed to encounter.

The remarks of the French editor were quoted because they have a strong tendency, especially when connected with subsequent events, to explain the motives by which the Directory was actuated in its aggressions on the United States, and to justify the policy of the Washington administration. These remarks did not grow out of the interpolated sentence, nor were they confined to it. They apply to the whole letter. That sentence is not cited, nor is any particular allusion made to it, in the note which is charged with "exaggerating, recording, and sanctioning the forgery." How then could Mr. Jefferson deliberately make the charge?

In the same letter he endeavours to convey the opinion that the harsh and injurious strictures made to Mazzei were not intended for General Washington, and that this distinguished individual never applied them to himself.

The evidence in support of this proposition is not derived from the person whose opinion Mr. Jefferson undertakes to state. The writer says,[\[75\]](#) "I do affirm that there never passed a word, written or verbal, directly or indirectly, between General Washington and myself on the subject of that letter." If his observations on this point are to be considered as reasoning rather than assertion, they may be freely examined.

At the head of the list of those composing the "Anglican, monarchical, aristocratical party," the letter places "the executive." "Against us are the executive, the judiciary, two out of three branches of the legislature, all the officers of government, all who want to be officers," &c.

The letter speaks in the present tense, and the term "executive" can describe only the then actual President. Consequently, it designates General Washington as expressly as if he had been named.

If this positive evidence could be strengthened by auxiliary proof, it is furnished by the same sentence. "All officers of government, all who want to be officers," are included in the enumeration of those composing the party opposed to "the main body of citizens who remained true to republican principles."

By whom were these Anglican, monarchical, and aristocratical officers selected? By General Washington. To him alone were they indebted for their appointments. To whom did those "who wanted to be officers" look for the gratification of their wishes? To the same person. Would every individual in search of office enlist himself in a party so odious to "the main body of our citizens," and "the whole landed interest," if he did not think the road leading directly to that which he sought?

As if willing to keep out of view what can not be explained away, Mr. Jefferson turns our attention to other passages supposed to be more equivocal. He insists^[76] that the letter saying "that two out of the three branches of the legislature were against us, was an obvious exception of him; it being well known that the majorities in the two branches of the senate and representatives were the very instruments which carried, in opposition to the old and real republicans, the measures which were the subjects of condemnation in this letter."

But did these measures obtain the force of laws by the mere act of the senate and house of representatives? Did not the President assent to them? If he did, how could the expression "two out of three branches of the legislature" be an obvious exception of him? But the letter speaks of the then existing legislature. "Against us *are* two out of three branches of the legislature." The fact is notorious that the house of representatives was, at the date of the letter, opposed to the administration. Mr. Jefferson himself gives us this information. In September, 1795,^[77] he terms the effort to carry the treaty with Great Britain into effect, "an attempt of a party who find *they have lost their majority in one branch of the legislature* to make a law by the aid of the other branch and the executive under colour of a treaty," &c. Mr. Jefferson then has deprived himself of this explanation. He

could not have intended to exclude the President by the phrase "two out of three branches of the legislature."

The same letter contains also the following expression,[\[78\]](#) "Mr. Pickering quotes the passage in the letter of the men who were Samsons in the field and Solomons in the council, but who had their heads shorn by the harlot England." "Now this expression also was perfectly understood by General Washington. He knew that I meant it for the Cincinnati generally; and that from what had passed between us at the commencement of that institution, I could not mean to include him."

In the letter to Mazzei these words obviously designate distinguished individuals, not whole classes of men, many of whom were unknown. "It would give you a fever were *I to name to you the apostates* who have gone over to these heresies; men who were Samsons in the field and Solomons in the council, but who have had their heads shorn by the harlot England."

In addition to this apparent allusion to individuals, it may be asked, could Mr. Jefferson mean to say that every officer engaged in the war of our revolution (for almost every one of them was a member of the Cincinnati) was an apostate who had gone over to the heresies he was describing? Could he mean to say that all those who had passed their prime of manhood in the field fighting the battles of American independence, and of republicanism against England, had become apostates from the cause to which their lives had been devoted, and the vile instruments of the power it was their pride and boast to have overthrown? That they were in a body following their ancient chief in a course directly opposite to that glorious career by which they had elevated their country to its high rank among the nations of the earth?

There is other evidence that he could not have intended to fix this foul stigma on the officers of the revolution. They were far from being united in support of the administration. In Virginia certainly, a large number, perhaps a majority of the Cincinnati were opposed to it. Two[\[79\]](#) of them in congress at the time, and were among the most zealous supporters of Mr. Jefferson, and of that system of measures which he termed republican. The very letter under discussion contains an assertion incompatible with this construction of these terms. "The whole landed interest is republican." At the date of this letter there were few if any members of the Cincinnati in the

south who were not also land holders. In the southern region generally, the army of our revolution was officered by land holders and their sons.

But if the writer of the letter could have intended to designate the members of the Cincinnati as "Samsons in the field," could he also have alluded to them as "Solomons in council?" Were the brave and hardy men who passed their youth, not in college, not in study, but under arms, suddenly converted, all of them, into "Solomons in council?" That some of them were entitled to this appellation is acknowledged with pride and pleasure, but as a class, it could not fit them. It is difficult to treat the proposition seriously.

It is impossible for the intelligent reader to concur with Mr. Jefferson in the conclusion he draws from these premises, when he says,[\[80\]](#) "General Washington then understanding perfectly what and whom I meant to designate in both phrases, and that they could not have any application or view to himself, could find in neither any cause of offence to himself."

But were it otherwise, had Mr. Jefferson been as successful in the opinion of others as he would seem to be in his own, in proving that the phrases on which he reasons do not comprehend General Washington, what would be gained? Would it follow that the word "executive" did not mean the President, or that it excluded General Washington who was President when the letter was written, and had been President during the whole time while the laws were enacted, and the measures carried into execution, which he so harshly criminales? If the word "executive" must mean him, does it palliate the injury to be assured that the writer did not class him among "Samsons in the field" or "Solomons in council?"

It is matter of some surprise to find a letter written so late as June, 1824, on the political paragraph contained in the letter to Mazzei, the following averment.[\[81\]](#) "In this information there was not one word which would not then have been or would not now be approved by every republican in the United States, looking back to those times."

In June, 1834, then, twenty-eight years after this extraordinary letter was written, and twenty-three years after its principal object had ceased to thwart the policy, or be an obstacle to the ambition of any man, Mr. Jefferson could deliberately, and on full consideration permit himself to make this assertion, and thus in effect to repeat the charge that General Washington belonged to an "Anglican, monarchical, and aristocratical party

whose *avowed* object was to draw over us the substance as they had already done the forms of the British government,"—and this too while the venerated object of the charge was the chief magistrate of this great republic, acting under the obligation of a solemn oath "faithfully to execute the office of President of the United States, and to the best of his ability to preserve, protect, and defend the constitution!"

This unpleasant subject is dismissed. If the grave be a sanctuary entitled to respect, many of the intelligent and estimable friends of Mr. Jefferson may perhaps regret that he neither respected it himself, nor recollected that it is a sanctuary from which poisoned arrows ought never to be shot at the dead or the living.

END OF VOLUME V.

FOOTNOTES

[1] The day on which the palace of the Tuilleries was stormed and the royal government subverted.

[2] With this letter were addressed two others to the ministers at London and Paris respectively, stating the interest taken by the President and people of the United States in the fate of the Marquis de Lafayette. This gentleman was declared a traitor by France, and was imprisoned by Prussia. The ministers of the United States were to avail themselves of every opportunity of sounding the way towards his liberation, which they were to endeavour to obtain by informal solicitations; but, if formal ones should be necessary, they were to watch the moment when they might be urged with the best prospect of success. This letter was written at the sole instance of the President.

[3] See note [No. I.](#) at the end of the volume.

[4] See note [No. II.](#) at the end of the volume.

[5] The regulation alluded to as was stated by Mr. Jefferson in reply, did not relate to vessels arming for defence, but to cruisers against the enemies of France.

[6] They were particularly enumerated, and the decision was also extended to the ship Jane, an English armed merchantman, alleged by Mr. Genet to be a privateer, and the governor was requested to attend to her, and if he found her augmenting her force and about to depart, to cause her to be stopped.

The Jane had augmented her armament by replacing four old gun-carriages with new ones, and opening two new portholes. The request of the British consul that these alterations might be allowed was peremptorily rejected, and directions were given that she should be restored precisely to the situation in which she entered the port. Had she attempted to sail without obeying these orders, Governor Mifflin had taken measures to stop her at Mud Island.

[7] See note [No. III.](#) at the end of the volume.

[8] See note [No. IV.](#) at the end of the volume.

[9] See note [No. V.](#) at the end of the volume.

[10] They received it from the secretaries of the treasury and of war.

[11] See note [No. VI.](#) at the end of the volume.

[12] The state of affairs was so inauspicious to the continuance of peace that in a letter written in the month of June, to the secretary of war, the President thus expressed himself: "It is of great importance that this government should be fully informed of the Spanish force in the Floridas, the troops which have lately arrived, the number of their posts, and the strength and situation of each; together with such other circumstances as would enable it to adopt correspondent measures, in case we should, in spite of our endeavours to avoid it, get embroiled with that nation. It would be too improvident, might be too late, and certainly would be disgraceful, to have this information to obtain when our plans ought to be formed." After suggesting the propriety of making the proper inquiries in a particular channel, he added, "I point you to the above as one source only of information. My desire to obtain knowledge of these facts leads me to request with equal earnestness, that you would improve every other to ascertain them with certainty. No reasonable expense should be spared to accomplish objects of such magnitude in times so critical."

[13] See note [No. VII.](#) at the end of the volume.

[14] Resolutions had been offered for the creation of a small navy to be employed in the Mediterranean.

[15] In the course of this debate the resolutions were still considered as calculated to promote the interests, not of the United States, but of France. Mr. Ames said they had *French* stamped upon the very face of them. This expression produced a warm retort from Colonel Parker. He wished there was a stamp on the forehead of every person to designate whether he was for France or Britain. For himself he would not be silent and hear that nation abused to whom America was indebted for her rank as a nation. He was firmly persuaded that but for the aid of France in the last war, those gentlemen now on the floor who prided themselves in abusing her, would not have had an opportunity in that place of doing it. This sentiment produced a clap in the galleries. This indecorum was severely reprobated, and a motion was made to clear the galleries. Although the debate shows that the degree of sensibility excited by this disorder was extremely

different in the different parties, it was justified by none, and the galleries were cleared.

[16] A few days before the motions of Mr. Dayton and Mr. Clarke, a report was made by the secretary of state relative to the vexations of American commerce committed by the officers and cruisers of the belligerent powers. It was made from materials collected in an inquiry which had been instituted by the President before the meeting of congress. In this report, after detailing the numerous complaints which were made against Great Britain, the secretary proceeded to notice those which were brought against other nations. Against France, he said, it was urged that her privateers harassed the American trade no less than those of the British. That their courts of admiralty were guilty of equal oppression. That they had violated the treaty between the two nations. That a very detrimental embargo had detained a number of American vessels in her ports, and that the government had discharged a specie contract with assignats. The effect of this report seems to have been to excite a suspicion that the secretary of state was not sufficiently attached to liberty and to France.

[17] A well known term designating the most violent party in France.

[18] Previous to taking the question on this bill, a petition had been received against Mr. Gallatin, a senator from the state of Pennsylvania, who was determined not to have been a citizen a sufficient time to qualify him under the constitution for a seat in the senate. This casual circumstance divided the senate, or the bill would probably have been lost.

[19] A clause in the resolution as proposed, which was understood to imply that the act for incorporating the bank was unconstitutional, was previously struck out by the same majority.

[20] See note [No. VIII.](#) at the end of the volume.

[21] The declaration was not unfrequently made that the people could only be roused to a proper attention to the violation of their rights, and to the prodigal waste of their money, by perceiving the weight of their taxes. This was concealed from them by the indirect, and would be disclosed to them by the direct, system of taxation.

[22] Two months previous to the passage of this resolution, the secretary of state had, by direction of the President, given the governor the most solemn assurances on this point.

[23] Intercepted letters were laid before the President, showing that this expedition had been communicated to some members of the national convention and approved. It was stated that Mr. Genet, with the rank of major general, was to be Commander-in-chief of all forces raised on the American continent, and to direct their movements.

[24] See note [No. IX.](#) at the end of the volume.

[25] An evasive answer having been returned to the pacific overture made from the Au Glaize, General Wayne was uncertain whether the Indians had decided for peace or war.

[26] The inspector had left the house and secreted himself. The demand of the papers was acceded to.

[27] This requisition was afterwards augmented to fifteen thousand.

[28] The spirit of disaffection was rapidly spreading, and had it not been checked by this vigorous exertion of the powers of the government, it would be difficult to say what might have been its extent. Even while the militia were assembling, it broke out in more than one county in Pennsylvania, and showed itself in a part of Maryland.

[29] The impression, he said, made by this moderation on the discontented, did not correspond with what it deserved. The acts of delusion were no longer confined to the efforts of designing individuals. The very forbearance to press prosecutions was misinterpreted into a fear of urging the execution of the laws, and associations of men began to denounce threats against the officers employed. From a belief that by a more formal concert their operations might be defeated, certain self-created societies assumed the tone of condemnation.

[30] The apprehensions entertained by the opposition that Colonel Hamilton would be appointed on the embassy to England were extreme. Among the letters to General Washington, are some from members of each branch of the legislature, advising against the mission generally, and dissuading him from the appointment of Colonel Hamilton particularly, in terms which manifest a real opinion that the best interests of the nation would be sacrificed by such an appointment. Colonel Hamilton himself recommended Mr. Jay.

[31] See note [No. X.](#) at the end of the volume.

[32] In a private letter to the President, of the same date with the signature of the treaty, Mr. Jay said "to do more was impossible. I ought not to conceal from you, that the confidence reposed in your personal character was visible and useful throughout the negotiation.

"If there is not a good disposition in the far greater part of the cabinet and nation towards us, I am exceedingly mistaken. I do not mean an ostensible and temporizing, but a real good disposition.—I wish it may have a fair trial."

[33] See note [No. XI.](#) at the end of the volume.

[34] The chamber of commerce in New York had voted resolutions expressing their approbation of the treaty.

[35] Previous to the reception of the account of this order, the opinion of the secretary had been in favour of ratifying the treaty.

[36] See the Aurora from August to December, 1795. See, in particular, a series of essays, signed "A Calm Observer," published from the 23d of October to the 5th of November, 1795.

[37] Gazette of the United States, 16th November, 1795.

[38] See note [No. XII.](#) at the end of the volume.

[39] See note [No. XIII.](#) at the end of the volume.

[40] Subsequent to the mission of Mr. Adet, but previous to this time, the revolutionary government which succeeded the abolition of monarchy had yielded to the constitution of the republican form.

[41] The words of the oath of office prescribed for the chief magistrate.

[42] Mr. James Marshall.

[43] In the same letter Mr. Jefferson had stated his total abstraction from party questions.

[44] See note [No. XIV.](#) at the end of the volume.

[45] See Monroe's View.

[46] At his own request, Mr. Pinckney had been recalled; and Mr. King, a gentleman whose talents have been universally acknowledged, and whose services will be long recollected with approbation, had succeeded him.

[47] The constitutional power of congress to appropriate money to objects of the description here recommended was denied by the opposition.

[48] Some objection has been made to the accuracy of this speech, as reported in the Daily Advertiser. The author has therefore deemed it proper to make some extracts from the Aurora, the leading paper of that party, of which Mr. Giles was a conspicuous member.

Mr. Giles, after stating that "the want of wisdom and firmness" in the administration, "had conducted the affairs of the nation to a crisis which threatens greater calamities than any that has before occurred,"—remarks as follows:—"Another sentiment in the report he could not agree to. He did not regret the President's retiring from office. He hoped he would retire, and enjoy the happiness that awaited him in retirement. He believed it would more conduce to that happiness that he should retire than if he should remain in office. He believed the government of the United States, founded on the broad basis of the people, that they were competent to their own government, and the remaining of no man in office was necessary to the success of that government. The people would truly be in a calamitous situation, if one man were essential to the existence of the government. He was convinced that the United States produces a thousand citizens capable of filling the presidential chair, and he would trust to the discernment of the people for a proper choice. Though the voice of all America should declare the President's retiring as a calamity, he could not join in the declaration, because he did not conceive it a misfortune. He hoped the President would be happy in his retirement, and he hoped he would retire." He reverted again to that part of the report which declared the administration to have been wise and firm in its measures. "He had always disapproved," he repeated, "of the measures of that administration with respect to foreign relations, and many members of the house had also; he was therefore surprised that gentlemen should now come forward and wish him, in one breath, to disavow all his former opinions, without being previously convinced of having been in an error. For his own part, he conceived there was more cause than ever for adhering to his old opinion. The course of events had pointed out their propriety; and, if he was not much mistaken, a crisis was at hand which would confirm them. He wished, that while gentlemen were willing to compliment the President, they would have some respect for the feelings of others."—*Aurora, December 15th, 1796.*

[49] Dunlap and Claypole's Daily Advertiser, December 16th, 1796.

[50] See note [No. XV.](#) at the end of the volume.

[51] See note [No. XVI.](#) at the end of the volume.

[52] See note [No. XVII.](#) at the end of the volume.

[53] Two of them were of the party denominated federal; the third was arranged with the opposition.

[54] It is a remarkable fact, that the answer of the French minister to this letter, an answer which criminated the American government in bitter terms, was in the possession of a printer in Philadelphia who had uniformly supported the pretensions of that republic, before it reached the American government.

[55] Having heard that the President contemplated a tour as far south as the district of Columbia, General Washington invited him to Mount Vernon, and concluded his letter with saying: "I pray you to believe that no one has read the various approbatory addresses which have been presented to you with more heartfelt satisfaction than I have done, nor are there any who more sincerely wish that your administration of the government may be easy, happy and honourable to yourself, and prosperous to the country."

[56] See note [No. XVIII.](#) at the end of the volume.

[57] *The following is the list of generals, and of the military staff.*

Alexander Hamilton, *Inspector.*

Charles C. Pinckney, }

Henry Knox, or, if either refuses } Major Generals.

Henry Lee. }

Henry Lee (if not Major General) }

John Brooks, }

William S. Smith, or } Brigadiers.

John E. Howard. }

Edward Hand, or }

Jonathan Dayton, or } Adjutant General.

William S. Smith. }

Edward Carrington, Quarter Master General.

James Craik, Director of the Hospital.

[58] These resolutions were prepared by General Lee, who happening not to be in his place when the melancholy intelligence was received and first mentioned in the house, placed them in the hands of the member who moved them.

[59] Vol. iv. p. 402.

[60] April, 1796.

[61] Vol. iii. p. 313.

[62] Holland, it will be remembered, had been conquered by Pichegru.

[63] Vol. iii. p. 316.

[64] Vol. iii. p. 317.

[65] Vol. iii. p. 319.

[66] Vol. iii. p. 323.

[67] Vol. iii. p. 324.

[68] Vol. iii. p. 328.

[69] Vol. iii. p. 347.

[70] Vol. iii. p. 347

[71] Vol. iii. p. 418.

[72] Vol. iv. p. 402.

[73] Vol. iii. p. 327.

[74] It was announced by Mr. Adet in the crisis of the first contest for the Presidency between Mr. Adams and Mr. Jefferson.

[75] Vol. iv. p. 401.

[76] Vol. iv. p. 405.

[77] Vol. iii. p. 316.

[78] Vol. iv. p. 404.

[79] Colonels Cabell and Par.

[80] Vol. iv. p. 406.

[81] Vol. iv. p. 402.

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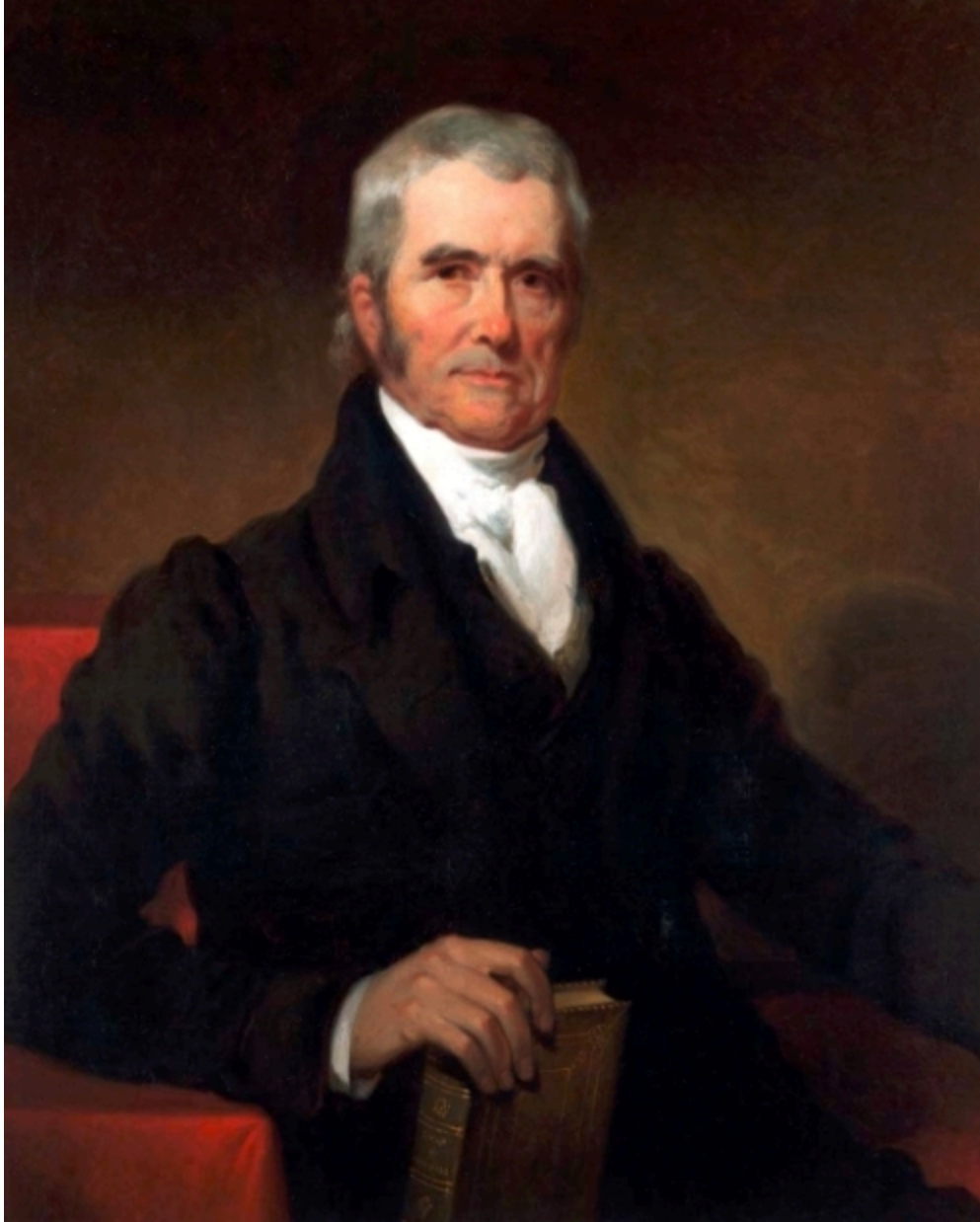
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